

CASES AND MATERIALS ON
FAMILY LAW
FOR THE
SOUTH DAKOTA LAWYER

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Roger M. Baron
July, 2010

PREFACE

This book is designed primarily for the student. It would serve well for a three or four hour course in Family Law. In addition to serving the student, special effort has been made to make this book worthwhile to the practitioner. In that regard, it is my intent that this book should represent the current state of the law in South Dakota. This book also contains whatever historical information is necessary to understand or appreciate how we have arrived at the point we are today. The opinions are almost all edited. Accordingly, one should not hesitate to pull the full opinion for a more detailed examination.

The law of South Dakota necessarily involves the laws of the United States and sister states. The vast majority of family law issues and controlling rules are, however, local in nature; accordingly, the majority of the law in this book has been uniquely formed in South Dakota. This is not to say that it is unlike the law formed elsewhere. It is, quite simply, South Dakota law.

The law of several jurisdictions is presented on numerous topics. In addition to presenting "South Dakota law as it is," it is my hope is that this book also presents "South Dakota law as contrasted with other approaches across the country."

Learning and teaching family law is fun and exciting. The cases are interesting and they are, for the most part, easily digested. Practicing family law is not necessarily fun and exciting. It may, at times, be rewarding. More often than not the practice of family law is frustrating and gut-wrenching. The successful family law attorney has developed a special degree of maturity. She is able to communicate with the client, appreciate the client's concerns and anxieties, and aggressively pursue the goals of the client, but there is more! The successful attorney keeps in perspective that which is reasonably attainable.

Family law is pervasive. It affects many people and, no matter what type of practice a lawyer falls into, she will cross paths with family law issues on many occasions. Family law cases comprise perhaps the most pervasive area of civil law and are difficult for practicing lawyers to avoid, even by choice.

The student should pay close attention to the Table of Contents of this book. It will be especially beneficial to the student in review for the final exam.

The practicing lawyer will probably make the most use of the Index. It has been included for use by those of you already out there in the trenches.

Divorce cases routinely resolve all issues surrounding the dissolution of a marriage in one fell swoop. As a result, it is sometimes difficult to isolate and categorize cases as pertaining to only one particular issue or chapter in this book. This means that as the student progresses through these materials, she will probably find herself learning about the issues of "child support" and "custody" in the chapter on "divorce." Similarly, she will acquire some information about "alimony" in the "division of property" chapter. The alert student should, therefore, be prepared to receive knowledge on more than what is encompassed by the chapter title as she takes up the material contained in the chapter.

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"Almost anything you do will be insignificant, but it is very important that you do it."

Mohandas Ghandi

Chapter One

MARRIAGE

A. The "Common Law Marriage"

In most chapters of this book, relevant provisions from the South Dakota Codified Laws are reproduced. In this chapter, those provisions are found at the end, following the subchapter on "Statutory Requisites."

The South Dakota statutes formerly recognized that a "common law" marriage could be created in South Dakota. This is mentioned in each of the first two cases in this chapter. The *Kranig* opinion reproduces the statutes as they existed before the "common law" marriage was abrogated by the South Dakota legislature in 1959.

You should be able to answer the following questions after you have studied the materials in these first two sub-chapters:

- Had there been much success in upholding "common law" marriages in litigation in South Dakota (at least in reported opinions)?
- Why is it important that we still study "common law" marriages? Or, is it important?

ESTATE OF MILLER

Supreme Court of South Dakota, 1976.
243 N.W.2d 788, 90 S.D. 544

DUNN, Chief Justice.

This case arises from a proceeding to determine the amount of inheritance tax due with respect to the estate of William O. Miller. The South Dakota Division of Taxation denied treatment of the appellant Nell Miller as a widow, stating that the requirements for a nonceremonial or common-law marriage had not been met. Appellant was taxed as a person unrelated to the decedent. She applied to the circuit court for a hearing on appraisal and determination of inheritance tax. The court upheld the determination of the Division of Taxation. We reverse.

In March 1914, William O. Miller and Nell Fletcher were married ceremonially in Canton, South Dakota. A son was born to the Millers in 1914. William and Nell lived together for twenty-one years, farming first near Montrose and later near Arlington. Sometime in 1935 Nell left her husband and went to Sioux Falls. There she worked as a waitress and lived with her sister. Nell sought and on January 2, 1936, received a default decree of divorce from William upon grounds of wilful neglect and failure to provide a home and necessities of life for more than one year.

In late 1937 or early 1938, William arrived in Sioux Falls and asked Nell to return with him to the farm near Arlington. Asked at trial what was said by the parties at that time, Nell stated:

"He said, 'Will you come on back home?' and I said, 'O.K., will we get married again?' and he said, 'Yeah.'"

Nell returned to the farm and lived with William until his death on April 6, 1974. In December 1952, reciprocal wills were drawn by an attorney in De Smet. In those wills, William and Nell Miller referred to each other as "my divorced husband" and "my divorced wife."

This court has stated that common-law marriage can exist in South Dakota. *Svendsen v. Svendsen*, 1916, 37 S.D. 353, 368, 158 N.W. 410, 414, and *Bracken v. Bracken*, 1922, 45 S.D. 430, 431, 188 N.W. 46. SDCL 25-1-1 and 25-1-29 require that a marriage be solemnized; however, SDCL 25-1-29 excepts "any lawful marriage consented to and subsequently consummated prior to July 1, 1959." The two requirements of consent and consummation were contained and defined in the 1919 and 1939 Codes, which provided:

"Marriage is a personal relation arising out of a civil contract, to which the consent of parties capable of making it is necessary. Consent alone will not constitute marriage; it must be followed by a solemnization, or by a mutual assumption of marital rights, duties, or obligations."

"The consent to a marriage must be to one commencing instantly, and not to an agreement to marry afterwards."

There is no dispute that the Millers had a mutual assumption of marital rights, duties and obligations. Respondent admitted and the evidence at trial indicated that William and Nell lived together as, acted as though, and were generally regarded by friends and neighbors to be husband and wife. In its memorandum opinion the trial court relied upon the reference in the will to Nell as William's "divorced wife," and found that there "never was an agreement commencing instantly to be married."

* * *

We feel that the trial court relied too heavily upon the language in the wills. The reference in the wills to "my divorced wife" and "my divorced husband" was put in by the draftsman in an abundance of caution. It is clear from the record that the words were not chosen by William or Nell Miller. Nell stated that she did not even read the terms of the will.

The statements made in Sioux Falls evidenced a desire to return to the marital relation. The consent to marry can be shown in many ways. Here, William and Nell resumed their relationship for a period of thirty-six years following a separation of only three years during the depression. The lack of a second

ceremony did not affect the permanence of their union. When asked why there was no ceremony, Nell explained:

“... it never happened. We just worked hard ... and kept putting it off. You know how things go. I figured, too, we had been married once and he figured that, too.”

If consent to marry did not exist at the time of Nell's return to Arlington, we find it existed when she and William made this conclusion. We do not view the term "commencing instantly" to mean that the parties had to reach mutual consent the instant they began living together as husband and wife. This consent could come later, so long as it was a mutual consent at a given time.

Although, as stated above, the principle of common-law marriage has been recognized by this court, this case is the first in which we uphold a common-law marriage. Several factors lead to this result. Here, there was a prior ceremonial marriage. The harsh judicial scrutiny of the statements and actions of parties engaged in a common-law relationship should not be applied to an informal remarriage. Such a relationship should be encouraged, not discouraged. In *Re Wagner's Estate*, 1960, 398 Pa 531, 159 A.2d 495; In *Re Peterson's Estate*, 1961, 148 Colo. 52, 365 P.2d 254. William and Nell Miller were 49 and 45 years old in 1938 when returning to Arlington. They were not blind to the duties and responsibilities of living as husband and wife "because of the consuming anticipation of immediate pleasure." In *Re Erickson's Estate*, 1954, 75 S.D. 345, 355, 64 N.W.2d 316, 321. The time period of their short separation and the permanent reuniting of the couple are also indicative of a legitimate relationship. Nell Miller should be entitled to inheritance tax treatment as William Miller's widow.

Because of our disposition of this issue, we will not consider the other issues raised on appeal.

Reversed.

ESTATE OF KRANIG

Supreme Court of South Dakota, 1980.
291 N.W.2d 781.

MILLER, Circuit Judge.

Appellant appeals from a judgment of the trial court holding that she was not the surviving spouse of Melvin Kranig, deceased, and which denied her application for homestead and family allowance. We affirm.

FACTS

Harriet Abdalla (appellant) first met decedent, Melvin Kranig, in 1941. About one year later they began "going around together." On or about December 12, 1942, Melvin asked appellant to commence living with him, which she did. Appellant's uncorroborated testimony was that Melvin "asked me to come and live with him as his wife." It is undisputed that they never entered into any formal wedding ceremony.

Appellant lived in Melvin's home continuously for a period of thirty-five years, until his death in July 1977, except for a short period of time in 1945 during which she resided and was employed in Chicago. During these many years of cohabiting, the appearance of a normal marriage relationship was present. Appellant kept house, did the laundry and cooking and generally conducted herself as a farm wife.

Early in their relationship things were particularly difficult for them. Originally they lived in a rented house which had no improvements or running water. She hauled water some distance, up a hill, and it was necessary for her to haul firewood for fuel. In 1948 they moved to their present farm which had a somewhat better home. However, this house also lacked the conveniences of running water and indoor plumbing and appellant therefore continued to carry water for the home until 1967. In 1975 Melvin built a new modern home where they lived until his death in 1977.

Throughout their relationship no property was acquired in which appellant had any title. Nearly all of Melvin's property was held in partnership with his brothers. They had no joint bank account.

It seems clear that Melvin's immediate family treated appellant in a manner as is typical of a relationship between in-laws.

Appellant comforted Melvin in his last illness and was the first one notified of his death. She selected a casket and the burial clothes. Cemetery lots were selected so that they could be interred side by side. A headstone has been selected bearing the name "Kranig" and showing both of their given names. Subsequent to Melvin's death many expressions of sympathy were given to appellant in the same manner and form as would be given any widow.

Unfortunately, Melvin died intestate. One of his brothers petitioned for letters of administration. The petition did not name appellant as an heir.

* * *

The sole issue is whether the trial court erred in holding that appellant is not the surviving spouse of Melvin Kranig, deceased. We find that the trial court did not so err.

SCOPE OF REVIEW

In our review here the issue is not whether we agree with the decision of the trial court nor whether we would reach the same or a different decision were we to collectively review the record. We may not set aside findings of fact unless they are "clearly erroneous" and must give due regard to the opportunity of the trial court to judge the credibility of the witnesses. SDCL 15-6-52(a); *In re Estate of Hobelsberger*, 85 S.D. 282, 181 N.W.2d 455 (1970).

DECISION

As stated earlier herein, it is undisputed that the parties never entered into a formal marriage ceremony. At the time the parties commenced their cohabitation, our statutes provided for "common law" or "informal" marriages. The salient statutes are as follows:

SDC 14.0101 Marriage defined: consent necessary; solemnization or assumption of marital status required. Marriage is a personal relation arising out of a civil contract to which the consent of the parties capable of making it is necessary. Consent alone will not constitute marriage; it must be followed by a solemnization or by a mutual assumption of marital rights, duties or obligations. [Amended by 1959 S.D. Sess.L Ch. 50. abrogating common-law marriage. The statute now appears as SDCL 25-1-1.]

SDC 14.0104 [SDCL 25-1-2] Present consent necessary. The consent to a marriage must be to one commencing instantly, and not to an agreement to marry afterwards.

SDC 14.0105 [SDCL 25-1-5] Proof of marriage. Consent to and subsequent consummation of marriage may be manifested in any form and may be proved under the same general rules of evidence as facts in other cases.

As pointed out in appellant's brief, the necessary elements to prove and establish the existence of an "informal" marriage are: (1) the mutual consent of the parties in the present tense, (2) followed by the mutual assumption of the marital rights, duties and obligations.

Under those considerations the trial court concluded that no marriage had been proven. The following are a portion of various evidentiary facts which support the trial court's findings of fact, conclusions of law and judgment:

- (1) That the expenses of the home, including food and utilities, were all paid by Melvin from his separate funds or from partnership funds.
- (2) That appellant's personal needs were provided for through income she derived from the sale of eggs and poultry from a flock of chickens that Melvin had purchased for her.
- (3) That during their entire relationship appellant continued to maintain her personal post office box in the name of Harriet Abdalla, at Wagner, South Dakota; that she sold all of her eggs and poultry under the name of Harriet Abdalla; that she deposited all monies into a checking account in the name of Harriet Abdalla, upon which all checks were written and endorsed in said name.
- (4) That all of her medical records listed her name as Harriet Abdalla.
- (5) That on April 19, 1973, appellant admitted herself to a hospital in Omaha declaring herself to be a single person.
- (6) That appellant made applications, under oath, for social security supplements under the name of Harriet Abdalla, stating that she was a single person.
- (7) That two weeks before Melvin's death appellant signed his admission to a hospital under her name of Harriet Abdalla, listing her relationship to him as a "friend."
- (8) That Melvin never discussed his property or income with appellant and that she

never participated in any transactions in the sale or mortgage of property.

(9) That appellant was not authorized to write checks on the same account as Melvin and that when she was shopping for groceries she would receive a check from him made payable to the merchant. She was accordingly required to account for all monies spent by her.

(10) That Melvin always filed his income tax returns as a single person and did not claim appellant as an exemption. Further, Melvin, on the personal property assessment forms, listed himself as a single person.

(11) That Melvin listed himself as a single person on his application for social security benefits in 1974.

Under the guidelines previously established by this Court in the cases of *In re Erickson's Estate*, 75 S.D. 345, 64 N.W.2d 316 (1954); *Agnew v. Agnew*, 58 S.D. 164, 235 N.W. 644 (1931); and *In re Svendsen's Estate*, 37 S.D. 353, 158 N.W. 410 (1916), the trial court was well within its appropriate bounds in finding that no marriage existed. Accordingly, its holding is not clearly erroneous.

The judgment is affirmed.

NOTES and QUESTIONS

1. The former statutes which dealt with the "common law marriage" in South Dakota are reproduced, as part of the court's opinion in *Estate of Kranig*.

2. The "common law marriage" in the *Estate of Miller* case was actually a "remarriage." Since cohabitation by couples following a divorce is not that unusual, there has been much litigation on "common law remarriages." For a discussion of the issues which arise in these types of cases, see Roger M. Baron, "Remarriage: The 'I Do, I Don't, I Do' Syndrome," 26 *The Houston Lawyer*, No. 2, page 26 (Sept.-Oct. 1988). For a particularly fascinating case involving a "common law remarriage" which was alleged to have taken place only five days after the date the parties were divorced, see *Persons v. Persons*, 666 S.W.2d 560 (Tex.App. -- Houston [1st Dist.] 1984 writ ref'd n.r.e.).

3. How may a marriage end? Is it possible to have a "common law divorce?" Why or why not? Compare SDCL 25-4-1, which is reproduced at the end of this chapter.

4. Is it possible for a person to be married to more than just one other person at a time? See SDCL 25-1-8.

5. It is common for a man and a woman to attempt to marry unsuccessfully because of the existence of a prior marriage involving one of the parties. If the prior marriage is considered an "impediment" to the attempted marriage, then what happens when the impediment is removed? Some states have "impediment removal" statutes which validate the attempted marriages upon the removal of the impediment of a prior marriage provided the parties are still cohabiting as husband and wife. See eg., Section 2.22 of the Texas Family Code. South Dakota does not have a clearly worded impediment removal statute, but perhaps the underlying notion may be found in SDCL 25-1-8.

6. Note that SDCL 25-1-8 presumes a valid marriage where a former spouse "was absent and not known . . . to be living for the space of five successive years immediately preceding" the marriage or where the former spouse "was generally reputed and was believed . . . to be dead at the time" of the marriage.

7. It appears that the state of Georgia is the most recent state to have abrogated the "common law" marriage. It was reported in 22 FLR ["Family Law Reporter"] 1448 (8/6/96) that by virtue of HB 1278 being enacted into law, no "common law" marriages shall be entered into in the state of Georgia as of 1/1/97.

8. The requirements for a "common law marriage" vary from jurisdiction to jurisdiction. Apparently the District of Columbia and the following eleven (11) states continue to uphold the validity of "common law marriages" formed within their borders: Alabama, Colorado, Idaho, Iowa, Kansas, Montana, Oklahoma, Pennsylvania, Rhode Island, South Carolina, and Texas. For more information, see Nadine E. Roddy, "Interstate Recognition of Common Law Marriages," 4 *Divorce Litigation* 77 (April 1992) and Homer H. Clark, Jr., "The Law of Domestic Relations in the United States," Section 2.4, Student Edition (2d ed. 1988), West Publishing.

9. In *Kelley v. Kelley*, 2000 UT App 236, 9 P.3d 171, the Utah Court of Appeals upheld the finding of "common law remarriage" by the trial court which had found that the remarriage "commenced immediately following the entry of the Divorce Decree," based on continued cohabitation and treatment by the parties as being married to each other.

10. In *PNC Bank v. Workers' Comp. Appeal Bd (Stamos)*, 831 A.2d 1269 (Pa.Comm.w.Ct. 2003), the commonwealth court purportedly abolished the common-law marriage in Pennsylvania, at least in a Workers Compensation setting. Apparently, other courts in Pennsylvania are not following this decision. See, e.g., *Bell v. Ferraro*, 849 A.2d 1243 (Pa.Super.Ct. 2004) where the court stated, "We recognize that the Commonwealth Court has purported to prospectively abolish common law marriage in the context of Workers' Compensation Claims. *PNC Bank v. Workers' Comp. Appeal Bd (Stamos)*, 831 A.2d 1269 (Pa.Comm.w.Ct. 2003). We point out, however, that (1) we are not bound by decisions of the Commonwealth Court, and (2) both this Court and our Supreme Court have declined the invitation to abolish common law marriage, deferring such action to the legislature."

B. The "Migratory" Common Law Marriage

MISSION INSURANCE COMPANY v. THRASH

Court of Appeals of Arizona, 1976.
559 P.2d 1085, 114 Ariz. 170.

HAIRE, Chief Judge.

The sole issue for determination on this appeal is the correctness of the hearing officer's decision that the claimant was the lawful wife of decedent employee at the time of his death in an industrially related accident.

Claimant, Gertrude E. Thrash, and the employee Willie C. Thrash cohabited as husband and wife in Kansas from 1969 until November of 1974, at which time they moved to Tucson, Arizona, where they continued to live together until the industrial accident which caused Mr. Thrash's death. Although both Mr. Thrash and claimant were married to other persons when they first began to live together, both had obtained divorces by October of 1972.

Claimant testified that after they were both divorced from their prior spouses she and Thrash continued to live together and "felt that they were married just the same as anybody else, except we didn't have a piece of paper to show for it." She also testified that they planned that when Mr. Thrash's work as a truck driver should take him to Las Vegas they would get married there, just "to have a piece of paper to prove it to other people." No such marriage ever took place. It is undisputed that claimant and Mr. Thrash held themselves out to the public both in Kansas and in Arizona as husband and wife, traveled together as husband and wife, filed tax returns jointly as husband and wife and signed documents as Mr. and Mrs. Thrash. No evidence was presented that either ever denied that they were married or represented in any way, privately or publicly, that they were not married to each other.

Although Arizona does not recognize common law marriages contracted here, A.R.S. § 25-111, under A.R.S. § 25-112A claimant's marriage to decedent would be valid under Arizona law if her marriage was valid according to the law of Kansas. *Roy v. Industrial Commission*, 97 Ariz. 98, 397 P.2d 211 (1964).

Kansas does recognize common law marriage if three basic elements are shown to exist:

"The validity of common-law marriages has long been recognized in this state. The basic elements essential in establishing the existence of such marriage relationship are: (1) capacity of the parties to marry, (2) a present marriage agreement, and (3) a holding out of each other as husband and wife to the public." *Sullivan v. Sullivan*, 196 Kan. 705, 413 P.2d 988, 922 (1966).

On this appeal, petitioning insurance company does not dispute the existence of element (1) that the parties had capacity (after October of 1972) to marry, or (3) that they held each other out to the public as

husband and wife, but does claim that the evidence is inadequate to support the hearing officer's finding that the claimant and decedent fulfilled the requirement of having a present marriage agreement between them.

* * *

It would seem, then, that under Kansas law no particular formal words between the parties should be necessary to create this marriage agreement, but rather that evidence of conduct between the parties consistent with its existence is sufficient proof that there was such an agreement. For this Court to require testimony of a specific formal contract would be contrary to the idea that such an agreement can be inferred from the conduct of the parties.

* * *

Petitioner's contention that it is necessary to show that the agreement was express and verbal between the parties, and occurred at a specific time and place within the borders of the state of Kansas, is not supported by any Kansas law cited to us. Rather, no express exchange of formal words of consent seems to be necessary to establish the existence of the agreement.

* * *

In the instant case, there was abundant evidence before the hearing officer that Mr. Thrash at all times considered the claimant as his wife, consistently acknowledged her in public as his wife, and that the only reputation the parties enjoyed was as husband and wife to the other. Absent evidence negating the inference that such behavior was pursuant to a marriage agreement, under Kansas law this is sufficient to establish the existence of the requisite agreement to marry.

* * *

The hearing officer's conclusions, for which there is ample support in the record, are in conformity with both Kansas and Arizona law. His decision is therefore affirmed.

FROEB, P. J., and JACOBSON, J., concur.

NOTES and QUESTIONS

1. Although most states do not permit the formation of a common law marriage, most states will recognize the validity of a common law marriage formed in a jurisdiction which permits its formation. Accordingly, there is much litigation over common law marriages in all jurisdictions. *Compare Grant v. Superior Court*, 555 P.2d 895 (1976) with *Etienne v. DKM Enterprises*, 186 Cal.Rptr. 321 (1982).

2. In 1910, however, the South Dakota Supreme Court was confronted with the alleged validity of a California marriage between first cousins. Under South Dakota law, such marriages were not only void, but also constituted criminal offenses. A portion of the *Garcia* opinion follows these notes. Does South Dakota law still prohibit marriages between first cousins? *See* SDCL 25-1-6, which is reproduced at the end of this chapter.

3. Is a spouse to a "common law marriage" treated the same as a spouse married ceremoniously? *See eg., Villareal v. State*, 716 S.W.2d 640 (Tex.App. -- Corpus Christi 1986) (does the privilege against testifying against one's spouse also apply to common law spouses?).

GARCIA v. GARCIA

Supreme Court of South Dakota , 1910.
25 S. D. 645, 127 N.W. 586.

* * *

It will be observed that the complaint alleges that the plaintiff has been a resident of Lincoln county in this state for a period of more than one year next preceding the commencement of this action; that she entered into a form of marriage with the defendant at Los Angeles, in the state of California, in 1901; that the plaintiff and the defendant were cousins of the whole blood, and that said marriage is incestuous and void under section 38, Civil Code of the state of South Dakota, and prohibited, criminal, and cohabitation thereunder criminal under section 350, Pen. Code of the state of South Dakota. Section 38 of the Civil Code provides : "Marriages between . . . cousins of the half, as well as of the whole blood, are incestuous and void from the beginning, whether the relationship is legitimate or illegitimate." Section 359, Pen. Code, provides:

"Persons who, being within the degree of consanguinity within which marriages are, by the laws of the state declared incestuous and void, intermarry with each other, or commit adultery or fornication with each other, are punishable by imprisonment in the state prison not exceeding ten years."

* * *

But it is conceded by counsel for the respective parties that the marriage was valid at the time it was solemnized in the state of California under the laws of that state, and no question in the briefs of counsel is raised as to that point. We will therefore assume for the purposes of the decision in this case that the marriage between the parties was at the time of its solemnization valid and legal in the state of California.

The contention of the appellant that the courts of this state have jurisdiction to declare a marriage contracted in the state of California where the same was valid and legal, illegal, and void cannot, in our opinion, be sustained. The law of this state upon the subject of marriage cannot properly be held to apply to marriages contracted in other states, legal and valid where contracted, and where, as in this state, there is no provision in our Code authorizing our courts to declare such marriage legally contracted in another state void in this state. The consequences of declaring a marriage void ab initio and annulling the same are very serious. Its effect is to bastardize innocent children, deprive them of their inheritance, and to make the parties whose marriage was legal and valid in the state where contracted criminally liable in this state, and subject to exceedingly severe penalties.

* * *

NOTE: South Dakota Supreme Court recognizes the possibility of a migratory common law marriage but reverses trial court's finding of one alleged to have been created in Mexico and/or Oklahoma. *Estate of Duval*, 2010 SD 2, ___ N.W.2d ___, involves an alleged common law marriage which was entered into in Mexico and/or Oklahoma. The parties were domiciled in South Dakota but spent time in Mexico and in Oklahoma. The parties bought a winter home in Mexico as "husband and wife" and they reported that they were married on their income tax filing. The trial court found that there was a common law marriage under both the laws of Mexico and of Oklahoma and accorded the "wife" treatment as "surviving spouse" for inheritance purposes upon the death of "husband." The SD Supreme Court reversed, holding that under the

law of Oklahoma a common law marriage had not been established and that a Mexican "concubinage" relationship is not tantamount to a common law marriage. The Court's opinion did recognize, however, that South Dakota will recognize a valid common law marriage which is entered into in a jurisdiction which so permits. SDCL 25-1-38. Furthermore, the SD Supreme Court rejected the argument that persons domiciled in South Dakota cannot enter into a common law marriage in a different jurisdiction so long as their domicile remains in South Dakota. Thus, under a different set of facts, it is possible for two persons domiciled in South Dakota to travel into a common law marriage jurisdiction and become married by virtue of a common law marriage and that marriage will be upheld in SD so long as it was valid under the law of the jurisdiction where created.

C. Statutory Requisites

STARRET, et al. v. TYON

Supreme Court of South Dakota, 1986.
392 N.W.2d 94.

FOSHEIM, Chief Justice.

This appeal is from a summary judgment which in effect declared the marriage of Frank A. Cisar and Louise Tyon to be void. Louise Tyon appeals. We reverse.

A marriage license was issued to Frank A. Cisar and Louise Tyon by the Meade County Treasurer on April 12, 1985. The marriage was solemnized before the Chaplain at Ft. Meade on May 14, 1985, and the parties thereafter lived together as husband and wife until June 3, 1985, when Frank A. Cisar died. When proceedings were commenced to administer the estate of Frank A. Cisar, his children became aware that a will, executed prior to this marriage, would be invalid under SDCL 29-3-7. They brought this action to have the marriage declared void because it was solemnized more than 20 days after the marriage license was issued, contrary to SDCL 25-1-24.

The validity of a marriage is governed by statutes which are to be construed in favor of validation even when the marriage was not entered into according to statutory requirements, unless the statutes cannot fairly be so construed. *In re Svendsen's Estate*, 37 S.D. 353, 158 N.W. 410 (1916).

SDCL ch. 25-1 defines marriage, specifies the requirements for perfecting the relationship, and declares certain marriages, such as incestuous (SDCL 25-1-6), and bigamous (SDCL 25-1-8) marriages to be void. SDCL 25-1-10 states that previous to any marriage within this state, a license for that purpose shall be obtained from the county treasurer. SDCL 25-1-24 determines that marriage *licenses* become void and of no effect unless the marriage is solemnized within 20 days after the license is issued. However, it is significant that while incestuous and bigamous marriages are expressly declared void, no statute determines a *marriage* solemnized without a valid license to be void. SDCL 25-1-31 provides, regarding a marriage solemnized without the required license, only that the persons so married and all those aiding in such marriage are guilty of a misdemeanor. However, a marriage is valid notwithstanding a statute which imposes a criminal penalty upon those who fail to comply with solemnizing requirements. *Svendsen*, 158 N.W. at 413; 61 A.L.R.2d § 2[a] p. 849; 55 C.J.S. *Marriages* § 7. It is also note worthy that instead of voiding the union, SDCL 25-1-31 speaks of those persons joined without a valid license as being "so married." That language assumes the existence of a valid marriage. *Svendsen*, 158 N.W. at 413. Accordingly, a fair construction of

the marriage statutes indicates a legislative intent that the failure to solemnize a marriage within 20 days of receiving a licence voids the license, but not the marriage.

In *Svendsen*, this court held that a marriage is valid regardless of the failure to conform to statutory requirements looking to the solemnization, authentication and recording of the marriage, because such statutes are not mandatory but only directory in nature. This was our language: "License merely looks to the authentication of the marriage. We conclude that a marriage license is not an essential to a valid marriage in this State." *Id* at 413. The trial court distinguished *Svendsen* on the basis that common-law marriages were then recognized. However, the license aspect of the decision did not rest on the finding of a common-law marriage and the rationale applied is equally applicable to a solemnized marriage.

In *Lessert v. Lessert*, 64 S.D. 3, 263 N.W. 559 (1935), the effect of issuing a marriage license to two minors who failed to obtain the statutorily required consent of their parents was considered. We concluded in *Lessert* that the consent of the parents is primarily concerned with the obtaining of a license, and referred to *Svendsen* to reaffirm the proposition that requiring a marriage license is directory only. We now conclude that the same reasoning applies to an expired license.

The order granting the motion for summary judgment is reversed.

MORGAN, WUEST, and SABERS, JJ., concur.

HENDERSON, Justice (specially concurring).

Although I agree that in this case, the marriage should not be voided because it was solemnized more than 20 days after the marriage license was issued, at least the parties obtained a marriage license and went through a marriage ceremony and they believed, in all good faith, that they were husband and wife. This was a technical violation of a statute. There is the letter of the law and the spirit of the law. Thus, I would not void this marriage and I join in the decision of this Court.

However, I would modify the 1916 holding of *Svendsen*, as common-law marriages were recognized in that era, but there is a statute which has abolished common-law marriage in this state, effective July 1, 1959. SDCL 25-1-29. A marriage license and a ceremony are favored in the law and the *Svendsen* language is too strong for me. I repeat that the two principals had a marriage license in this case. In the *Svendsen* case, the two principals did not have a marriage license. SDCL 25-1-10 requires that previous to any marriage, a license must be obtained from the county treasurer.

NOTE

Failure to record a marriage license after the ceremony does not invalidate the marriage. Even though the statutes (SDCL 25-1-35 and 25-1-37) use the word "shall" in connection with the duties of the person solemnizing the marriage and the register of deeds, neither of the statutes imposes a duty on the husband and wife. The legislature did not intend that marriages should be "perfected" as in UCC filings. *Accounts Management, Inc. v. Litchfield*, 1998 SD 24, 576 N.W.2d 233 (S.D. 1998). Accordingly, the surviving widow in this case was held liable for her deceased husband's medical bill of \$14,170. Under SDCL 25-2-11, a spouse is jointly and severally liable of "all the necessities of life" and this includes medical care and treatment.

D. Selected Relevant Statutes

CHAPTER 25-1: VALIDITY AND PERFORMANCE OF MARRIAGES

25-1-1. Marriages - Definition - "Marriage" - Consent - Solemnization. Marriage is a personal relation, between a man and a woman, arising out of a civil contract to which the consent of parties capable of making it is necessary. Consent alone does not constitute a marriage; it must be followed by a solemnization.

Source: Amendments - 1996:

25-1-6. Incestuous marriages void. Marriages between parents and children, ancestors and descendants of every degree, and between brothers and sisters of the half as well as the whole blood, and between uncles and nieces, or aunts and nephews, and between cousins of the half as well as of the whole blood, are null and void from the beginning, whether the relationship is legitimate or illegitimate. The relationships provided for in this section include such relationships that arise through adoption.

25-1-8. Bigamous marriage void—Former spouse absent or believed dead. A subsequent marriage contracted by any person during the life of a former husband or wife of such person with any person other than such former husband or wife, is null and void from the beginning, unless the former marriage has been annulled or dissolved, or unless such former husband or wife was absent and not known to such person to be living for the space of five successive years immediately preceding such subsequent marriage, or was generally reputed and was believed by such person to be dead at the time such subsequent marriage was contracted, in either of which cases the subsequent marriage is valid until its nullity is adjudged by a competent tribunal.

25-1-9. Age of consent to marriage with and without parental consent. Any unmarried applicant for a marriage license who is eighteen years old or older, and who is not otherwise disqualified, is capable of consenting to and consummating a marriage. If either applicant for a marriage license is between the age of sixteen and eighteen, that applicant shall submit to the register of deeds a notarized statement of consent to marry from one parent or legal guardian of the applicant.

25-1-13. Consent of parent or guardian required for marriage of minor—Memorandum in record book. If either party is a minor, no marriage license shall be granted unless the written consent of the parent or guardian, duly acknowledged by the parent or guardian, or proved to be genuine, is filed in the office of the county register of deeds prior to issuing the license, and a memorandum of the facts shall be entered in the marriage record book with the other records of the marriage license.

25-1-19. Certificate of freedom from communicable syphilis—Filing with treasurer. Repealed by SL 1984, ch 187, § 2.

25-1-20. Laboratories authorized to make syphilis tests—Laboratory reports. Repealed by SL 1984, ch 187, § 3.

25-1-21. Syphilis certificates issued in other states acceptable. Repealed by SL 1984, ch 187, § 4.

25-1-22. Syphilis-free requirements waived in case of pregnancy— Physician's affidavit. Repealed by SL 1984, ch 187, § 5.

25-1-24. Time allowed after license for solemnization of marriage. Marriage licenses issued under the provisions of this chapter shall become void and of no effect unless the marriage be solemnized within twenty days following the issuance thereof.

25-1-28.1. Distribution of HIV educational material before license issued. At the time the application for a marriage license is filed, the register of deeds shall distribute to each applicant educational materials prepared and provided at no cost to the counties by the department of health on topics related to sexually transmitted disease, HIV transmission, and prenatal care. The information shall include a list of locations where counseling and testing services are available.

25-1-31. Solemnization of marriage without license as misdemeanor. If any marriage is solemnized without the license required by this title being procured, the parties so married and all persons aiding in such marriage are guilty of a Class 1 misdemeanor.

25-1-35. Certificate delivered to parties -- Return to register of deeds. After performing the ceremony, the person solemnizing the marriage shall deliver the marriage certificate to the persons married and return, within ten days, the license and record of marriage to the county register of deeds.

25-1-38. Validity of marriages contracted outside state. Any marriage contracted outside the jurisdiction of this state, except a marriage contracted between two persons of the same gender, which is valid by the laws of the jurisdiction in which such marriage was contracted, is valid in this state.
Source: Amendments - 2000:

CHAPTER 25-4: DIVORCE AND SEPARATE MAINTENANCE

25-4-1. Marriage dissolved only by death or divorce—Status of parties after divorce. Marriage is dissolved only:

- (1) By the death of one of the parties; or
 - (2) By the judgment of a court of competent jurisdiction decreeing a divorce of the parties. The effect of such judgment is to restore the parties to the state of unmarried persons.
-

QUESTIONS

1. In South Dakota, at what age may a person obtain a marriage license without parental consent?
 2. How young may a person in South Dakota be and still be able to get married with parental consent?
-

“I have nothing to offer but blood, toil, tears and sweat”

Winston Churchill

Chapter Two

PUTATIVE SPOUSE, PALIMONY, and RELATED ISSUES

Although the “common law” marriage still exists in various states, overall the judicial systems in the United States have been witnessing the demise of the “common law” marriage. With its demise, it should not be a surprise that alternative theories have been developed to provide relief for persons who cohabit without the benefit of a lawful marriage. Indeed, alternative theories continue to be put forth today, especially in scenarios involving gay and lesbian couples who presently cannot enter into lawful marital relationships in most jurisdictions.

In the seventies (1970s), there was a push for the recognition of the creation of “rights” in situations where parties had simply cohabited without becoming married. Many theories were advanced in support of such rights. Most of these theories are discussed in a law review article which was published by Carol S. Bruch at 10 Family Law Quarterly 101 (1976).

An effort to seek relief in the splitting up of a “live-in” arrangement involving the then-famous actor Lee Marvin and his companion Michelle Triola found itself in the California court system. Eventually, the California Supreme Court granted Michelle Triola relief in a decision which gained wide-spread publicity as the “palimony” decision.

The following case, decided by the Illinois Supreme Court, presents the arguments for and against the recognition of “rights” in such “informal” cohabitations. The court also cites and discusses the California “palimony” decision involving Lee Marvin and Michelle Triola.

HEWITT v. HEWITT

Supreme Court of Illinois, 1979.

77 Ill. 2d 49, 394 N.E.2d 1204.

UNDERWOOD, Justice:

The issue in this case is whether plaintiff Victoria Hewitt, whose complaint alleges she lived with defendant Robert Hewitt from 1960 to 1975 in an unmarried, family-like relationship to which three children have been born, may recover from him “an equal share of the profits and properties accumulated by the parties” during that period.

Plaintiff initially filed a complaint for divorce, but at a hearing on defendant's motion to dismiss, admitted that no marriage ceremony had taken place and that the parties have never obtained a marriage license. In dismissing that complaint the trial court found that neither a ceremonial nor a common law marriage existed; that since defendant admitted the paternity of the minor children, plaintiff need not bring a separate action under the Paternity Act (Ill.Rev.Stat. 1975, ch. 1063/4, par. 51 *Et seq.*) to have the question of child support determined; and directed plaintiff to make her complaint more definite as to the nature of the property of which she was seeking division.

Plaintiff thereafter filed an amended complaint alleging the following bases for her claim: (1) that because defendant promised he would "share his life his future, his earnings and his property" with her and all of defendant's property resulted from the parties' joint endeavors, plaintiff is entitled in equity to a one-half share; (2) that the conduct of the parties evinced an implied contract entitling plaintiff to one-half the property accumulated during their "family relationship"; (3) that because defendant fraudulently assured plaintiff she was his wife in order to secure her services, although he knew they were not legally married, defendant's property should be impressed with a trust for plaintiff's benefit; (4) that because plaintiff has relied to her detriment on defendant's promises and devoted her entire life to him, defendant has been unjustly enriched.

The factual background alleged or testified to is that in June 1960, when she and defendant were students at Grinnell College in Iowa, plaintiff became pregnant; that defendant thereafter told her that they were husband and wife and would live as such, no formal ceremony being necessary, and that he would "share his life, his future, his earnings and his property" with her; that the parties immediately announced to their respective parents that they were married and thereafter held themselves out as husband and wife; that in reliance on defendant's promises she devoted her efforts to his professional education and his establishment in the practice of pedodontia, obtaining financial assistance from her parents for this purpose; that she assisted defendant in his career with her own special skills and although she was given payroll checks for these services she placed them in a common fund; that defendant, who was without funds at the time of the marriage, as a result of her efforts now earns over \$80,000 a year and has accumulated large amounts of property, that she has given him every assistance a wife and mother could give, including social activities designed to enhance his social and professional reputation.

The amended complaint was also dismissed, the trial court finding that Illinois law and public policy require such claims to be based on a valid marriage. The appellate court reversed, stating that because the parties had outwardly lived a conventional married life, plaintiff's conduct had not "so affronted public policy that she should be denied any and all relief" (62 Ill.App.3d 861, 869, 20 Ill.Dec. 476, 482, 380 N.E.2d 454, 460), and that plaintiff's complaint stated a cause of action on an express oral contract. We granted leave to appeal. Defendant apparently does not contest his obligation to support the children, and that question is not before us.

The appellate court, in reversing, gave considerable weight to the fact that the parties had held themselves out as husband and wife for over 15 years. The court noted that they lived "a most conventional, respectable and ordinary family life" (62 Ill.App.3d 861, 869, 20 Ill.Dec. 476, 482, 380 N.E.2d 454, 457) that did not openly flout accepted standards, the "single flaw" being the lack of a valid marriage.

* * *

In finding that plaintiff's complaint stated a cause of action on an express oral contract, the appellate court adopted the reasoning of the California Supreme Court in the widely publicized case of *Marvin v. Marvin* (1976), 18 Cal.3d 660, 134 Cal.Rptr. 815, 557 P.2d 106, quoting extensively therefrom. In *Marvin*,

Michelle Triola and defendant Lee Marvin lived together for 7 years pursuant to an alleged oral agreement that while “the parties lived together they would combine their efforts and earnings and would share equally any and all property accumulated as a result of their efforts whether individual or combined.” (18 Cal.3d 660, 666, 134 Cal.Rptr. 815, 819, 557 P.2d 106, 110.) In her complaint she alleged that, in reliance on this agreement, she gave up her career as a singer to devote herself full time to defendant as “companion, homemaker, housekeeper and cook.” (18 Cal.3d 660, 666, 134 Cal.Rptr. 815, 819, 557 P.2d 106, 110.) In resolving her claim for one-half the property accumulated in defendant’s name during that period the California court held that “The courts should enforce express contracts between nonmarital partners except to the extent that the contract is explicitly founded on the consideration of meretricious sexual services” and that “In the absence of an express contract, the courts should inquire into the conduct of the parties to determine whether that conduct demonstrates an implied contract, agreement of partnership or joint venture, or some other tacit understanding between the parties. The courts may also employ the doctrine of quantum meruit, or equitable remedies such as constructive or resulting trusts, when warranted by the facts of the case.” (18 Cal.3d 660, 665, 134 Cal.Rptr. 815, 819, 557 P.2d 106, 110.)

* * *

It is apparent that the *Marvin* court adopted a pure contract theory, under which, if the intent of the parties and the terms of their agreement are proved, the pseudo-conventional family relationship which impressed the appellate court here is irrelevant; recovery may be had unless the implicit sexual relationship is made the explicit consideration for the agreement. In contrast, the appellate court here, as we understand its opinion, would apply contract principles only in a setting where the relationship of the parties outwardly resembled that of a traditional family. It seems apparent that the plaintiff in *Marvin* would not have been entitled to recover in our appellate court because of the absence of that outwardly appearing conventional family relationship.

* * *

Illinois’ public policy regarding agreements such as the one alleged here was implemented long ago in *Wallace v. Rappleye* (1882), 103 Ill. 229, 249, where this court said: “An agreement in consideration of future illicit cohabitation between the plaintiffs is void.” This is the traditional rule, in force until recent years in all jurisdictions. (See, e.g., *Gauthier v. Laing* (1950), 96 N.H. 80, 70 A.2d 207; *Grant v. Butt* (1941), 198 S.C. 298, 17 S.E.2d 689.) Section 589 of the Restatement of Contract (1932) states, “A bargain in whole or in part for or in consideration of illicit sexual intercourse or of a promise thereof is illegal.” See also 6A Corbin, Contracts sec. 1476 (1962), and cases cited therein.

* * *

The real thrust of plaintiff’s argument here is that we should abandon the rule of illegality because of certain changes in societal norms and attitudes. It is urged that social mores have changed radically in recent years, rendering this principle of law archaic. It is said that because there are so many unmarried cohabitants today the courts must confer a legal status on such relationships.

* * *

The issue, realistically, is whether it is appropriate for this court to grant a legal status to a private arrangement substituting for the institution of marriage sanctioned by the State. The question whether change is needed in the law governing the rights of parties in this delicate area of marriage-like relationships involves evaluations of sociological data and alternatives we believe best suited to the superior investigative and fact-finding facilities of the legislative branch in the exercise of its traditional authority to declare public policy in the domestic relations field. *Strukoff v. Strukoff* (1979), 76 Ill.2d 53, 27 Ill.Dec. 762, 389 N.E.2d 1170; *Siegal v. Solomon* (1960), 19 Ill.2d 145, 166 N.E.2d 5.) That belief is reinforced by the fact that judicial recognition of mutual property rights between unmarried cohabitants would, in our opinion, clearly

violate the policy of our recently enacted Illinois Marriage and Dissolution of Marriage Act. Although the Act does not specifically address the subject of nonmarital cohabitation, we think the legislative policy quite evident from the statutory scheme.

The act provides:

“This Act shall be liberally construed and applied to promote its underlying purposes, which are to :

- (1) provide adequate procedures for the solemnization and registration of marriage;
 - (2) strengthen and preserve the integrity of marriage and safeguard family relationships.”
- (Ill.Rev.Stat.1977, ch. 40, par. 102.)

* * *

Further, in enacting the Illinois Marriage and Dissolution of Marriage Act, our legislature considered and rejected the “no-fault” divorce concept that has been adopted in many other jurisdictions, including California. (See Uniform Marriage and Divorce Act secs. 302, 305.) Illinois appears to be one of three States retaining fault grounds for dissolution of marriage. (Ill.Rev.Stat.1977, ch. 40, par. 401; comment, *Hewitt v. Hewitt, Contract Cohabitation and Equitable Expectations Relief for Meretricious Spouses*, 12 J. Mar. J. Prac. & Proc. 435, 452-53 (1979).) Certainly a significantly stronger promarriage policy is manifest in that action, which appears to us to reaffirm the traditional doctrine that marriage is a civil contract between three parties--the husband, the wife and the State. (*Johnson v. Johnson* (1942), 381 Ill. 362, 45 N.E.2d 625; *VanKoten v. VanKoten* (1926), 323 Ill. 323, 154 N.E. 146.) The policy of the Act gives the State a strong continuing interest in the institution of marriage and prevents the marriage relation from becoming in effect a private contract terminable at will. This seems to us another indication that public policy disfavors private contractual alternatives to marriage.

Lastly, in enacting the Illinois Marriage and Dissolution of Marriage Act, the legislature adopted for the first time the civil law concept of the putative spouse. The Act provides that an unmarried person may acquire the rights of a legal spouse only if he goes through a marriage ceremony and cohabits with another in the good-faith belief that he is validly married. When he learns that the marriage is not valid his status as a putative spouse terminates; common law marriages are expressly excluded. (Ill.Rev.Stat.1977, ch. 40, par. 305.) The legislature thus extended legal recognition to a class of nonmarital relationships, but only to the extent of a party’s good-faith belief in the existence of a valid marriage. Moreover, during the legislature’s deliberations on the Act *Marvin* was decided and received wide publicity. (See Note, 12 J. Mar. J. Prac. & Proc. 435, 450 (1979).) These circumstances in our opinion constitute a recent and unmistakable legislative judgment disfavoring the grant of mutual property rights to knowingly unmarried cohabitants.

* * *

In our judgment the fault in the appellate court holding in this case is that its practical effect is the reinstatement of common law marriage, as we earlier indicated, for there is no doubt that the alleged facts would, if proved, establish such a marriage under our pre-1905 law. (*Cartwright v. McGown* (1887), 121 Ill. 388, 12 N.E. 737.)

* * *

We accordingly hold that plaintiff’s claims are unenforceable for the reason that they contravene the public policy, implicit in the statutory scheme of the Illinois Marriage and Dissolution of Marriage Act, disfavoring the grant of mutually enforceable property rights to knowingly unmarried cohabitants. The judgment of the circuit court of Champaign County is affirmed.

Appellate court reversed; circuit court affirmed.

NOTES AND QUESTIONS

1. There has been only one time that the South Dakota Supreme Court has addressed the prospect of “palimony.” It was in the 1984 decision of *Owen v. Owen*, 351 N.W.2d 139, wherein the court considered the wife’s request for compensation for services rendered for three and one-half years prior to marriage to be in the “nature of a request for palimony.” The wife’s argument was rejected as “totally frivolous and without merit.” *Id.* at 142.

2. In considering the different theories for relief, the student should keep in mind that the classes of persons who might be served by the various theories are not the same. For example, would the “common law” marriage theory have helped Michelle Triola in her separation from Lee Marvin? Why or why not? What about the “putative spouse” doctrine which is mentioned at the end of the *Hewitt* opinion?

3. Although the “putative spouse” doctrine has not been discussed in any South Dakota Supreme Court opinions thus far published (at least none found by this author), it is the subject of the next case.

DAVIS v. DAVIS

Supreme Court of Texas, 1975.
521 S.W.2d 603

REAVLEY, Justice.

Charles Davis was killed by shipwreck in the Sea of Java on December 24, 1970, at the age of 36 years. The Probate Court of Chambers County, where the administration of his estate is pending, is in possession of the small amount of his personal property, together with wages due from his employer, Reading & Bates Offshore Drilling Company, and the proceeds of a group accidental death insurance policy which was purchased by that employer and issued a few days prior to the death of Charles. The insurer has paid \$51,031.38 into the registry of the Chambers County Court. This litigation will determine the heirship of Charles Davis and the manner of division of this property.

Charles married Mary Nell in Liberty County in 1966, and in 1967 he departed for Australia without her on an assignment with Reading & Bates. After a year or so in Australia he was in Iran briefly, and then in August of 1968 he was assigned to Singapore. On October 2, 1968, a Buddhist wedding ceremony was performed to unite Charles and Nancy, and they lived together as man and wife in Singapore from that time until his death. Approximately one month after his death, both Mary Nell and Nancy gave birth to daughters.

* * *

Nancy is here contending that she is the lawful widow or, at least, that she was the putative wife. Mary Nell’s daughter contends that she is the legitimate child of Charles.

We hold, first, that Nancy was not the lawful widow of Charles. While it is initially presumed that Charles and Mary Nell were divorced prior to the wedding ceremony between Charles and Nancy (*Texas Employers’ Insurance Ass’n. v. Elder*, 155 Tex. 27, 282 S.W.2d 371, 1955; Vernon’s Tex. Family Code Ann. §2.01, 1973), the evidence presented by Mary Nell was legally adequate to rebut that presumption. It is shown that the records in Chambers and Liberty Counties reflect no divorce between them, that the records

of the State of Queensland, Australia, show no divorce during the period from September 1, 1967 to December 31, 1970, and that the records in Singapore show no divorce between them during that same period. It is not necessary in order to rebut the presumption that Mary Nell prove the nonexistence of divorce in every jurisdiction where proceedings could have been possible; it is only necessary to rule out those proceedings where Charles might reasonably have been expected to have pursued them. *Caruso v. Lucius*, 448 S.W.2d 711 (Tex.Civ.App.1969, writ ref'd n. r. e.). The trial court was entitled to find that there had been no divorce between Charles and Mary Nell and that Mary Nell was therefore his lawful widow.

We next hold that Nancy was the putative wife of Charles. A written contract of marriage (the Chinese document and the English translation), signed by Charles and Nancy, together with her father and another witness, certifying the marriage as being solemnized on October 2, 1968, was placed in evidence. Nancy and two other witnesses testified to the full formality of the ceremony, which was held in the home of her parents with all of her family participating and with twenty persons in attendance. For more than two years thereafter, and until the date of his death, Charles and Nancy lived together as man and wife. Nancy testified that Charles told her of his previous marriage but also assured her that he was divorced and free to marry her. The evidence clearly warrants the finding that Nancy entered this relationship in good faith.

* * *

The Court of Civil Appeals has held that even though Nancy may have become the putative wife of Charles at the outset and continued in that relationship for two years thereafter, at a time prior to his death she was put on notice that he was not divorced from Mary Nell--whereupon her putative standing terminated. The evidence on this point turns on the following testimony by Nancy:

Q: Now, during--well--subsequent to April 2, 1968 and before December 23, 1970, you learned, did you not, that Mary Nell Davis was trying to get a divorce from Charles Davis?

A: I didn't learning nothing of that.

Q: Well, you remember you [sic] asking that question on your deposition?

A: You asking me whether I received ---

Q: No ma'am, I didn't ask you if you received it. I asked you if you learned that Mary Nell Davis was trying to get a divorce from Charles?

A: I learned it.

Q: Yes.

A: I know it.

The interrogation on the occasion of Nancy's deposition, which was introduced at the trial by the lawyer for Nancy to show a waiver of the dead man's statute, does not throw much light on this matter except for her statements that she knew that Charles was asked to sign a paper which came in the mail at a time when she was pregnant with the child born after the death of Charles. This testimony does not establish conclusively her lack of good faith. In the first place, it is not clear when Nancy understood that Mary Nell was "trying to get a divorce." She appreciated the facts as of the time of the trial, but it is not clear that she did so prior

to the death of Charles. And even if she knew that these were divorce papers, it does not necessarily follow that Nancy had any reason to believe that Charles had been dishonest with her and had not obtained a prior divorce from Mary Nell. Before we charge Nancy with bad faith or impose upon her duty to investigate matters, we must take into account that she was in Singapore and not in Texas, that she knew nothing of Texas law, and that she was a 20 year old Chinese woman who had always lived in Singapore and was then expecting a child by a husband who had given her no reason to believe that he had another wife. The trial court was entitled to find in her favor; we hold that the record does not conclusively establish her lack of good faith.

As a putative wife Nancy is entitled to the same right in the property acquired during her marital relationship with Charles as if she were a lawful wife. *Lee v. Lee*, 112 Tex. 392, 247 S.W. 828 (1923); *Speer's Marital Rights in Texas* §56 (4th ed. 1962). In her case it will be half of the wages owed by the employer at the date of his death as well as half of the proceeds from the insurance policy which was furnished by the employer as an incident of the employment.

This brings us to the question of the legitimacy of Mary Nell's daughter who was born a month after the death of Charles. We agree with the Court of Civil Appeals that impossibility of access between Charles and Mary Nell, during the time when this child might have been conceived, has not been proved unless we consider the testimony to that effect by Mary Nell herself. Whether her testimony may be considered depends on whether we apply the Rule of Lord Mansfield, so-called because it was Lord Mansfield in *Goodright v. Moss*, 98 Eng.Rep. 1257 who said in 1777 that husband and wife "shall not be permitted to say after marriage that they had no connection and therefore that the offspring is spurious." This rule has been applied to exclude testimony to facts that would bastardize one's own child as of the time of birth. *Esparza v. Esparza*, 382 S.W.2d 162 (Tex.Civ.App.1964, no writ).

* * *

Rules that exclude evidence bearing directly on the truth to be determined ought not to survive without very good cause. The testimony of a spouse on the matter of non-access by the other spouse is, subject to the usual tests of credibility, clearly the best evidence of that fact. The present case is one where all of the testimony establishes beyond any reasonable doubt that Mary Nell's daughter is not the child of Charles. Then why should the courts refuse to accept the truth? And is there not a valid objection to allowing the child of another father to inherit part of this estate? Some courts have said that the Rule is required for the protection of the child. *E.G., Esparza v. Esparza*, 382 S.W.2d 162 (Tex.Civ.App.1964, no writ).

* * *

Proof of illegitimacy has been made more difficult, but there is no rule of law that prevents the fact from being shown if other evidence is available. Regarding blindfolds on triers of fact with disfavor, and finding no justification for perpetuating this decree by Lord Mansfield, we hold that testimony of non-access between man and woman is admissible from any witness knowledgeable of the fact.

The judgment of the Court of Civil Appeals is reversed; the judgment of the District Court is affirmed.

BRACKEN v. BRACKEN

Supreme Court of South Dakota, 1927.
217 N.W. 192.

BURCH, Justice.

This action was originally commenced by plaintiff against defendant for a divorce and alimony. Plaintiff did not claim a formal marriage, but relied on a common-law marriage. Defendant denied the marriage, and on appeal to this court it was held that plaintiff and defendant had never married. *Bracken v. Bracken*, 45 S.D. 430, 188 N.W. 46. But this court affirmed the judgment of the trial court adjudging the joint ownership of 480 acres of land. The pleadings were then amended, and under the partition of the land and for a general accounting between the parties. The trial court partitioned the land by giving to each party 240 acres of the land, took an account of improvements, taxes, and rents, and in addition too a general account of all transactions between the parties, except damages claimed by plaintiff for injury to personal property stored on the premises of defendant. The accounting resulted in a judgment in favor of plaintiff for \$1,695.75. From the judgment and an order overruling a motion for new trial defendant appeals.

* * *

The former relations of the parties cannot be considered as giving the woman any rights incident to marriage or any rights in lieu of marital rights, nor can equity consider the woman as a wife for the purpose of compensating her for wifely duties performed, but the assumed relationship may have a very material effect upon contracts between the parties. If a woman should assume the duties of a housewife and care for a home, while the man assumed the duties of a husband and ran the farm, although both parties knew there was no marriage, such assumed relation might have a great bearing in determining the right to wages of one against the other, or upon the interest of each in the property acquired in the joint enterprise.

* * *

The trial court had this evidence before it, and upon the record before us we do not feel that his findings and conclusions should be disturbed. The illicit relations could, of course, be abandoned at any time, by either party without the consent of the other, but when two persons enter into a joint enterprise involving property rights, the mere fact that those two persons happen to be a man and a woman, who also pose as husband and wife to the public, does not permit one to take all the property acquired during their association, without an accounting and settlement of jointly owned or acquired property.

* * *

Finding no prejudicial error in the record, the judgment and order appealed from are affirmed.

CAMPBELL, P.J., and POLLEY, SHERWOOD, and BROWN, J.J., concur.

NOTES

1. In *Beuck v. Howe*, 23 N.W.2d 744 (S.D. 1946), the trial court awarded real estate which was titled in the woman's name to the man and ordered the man to pay her \$250. The trial court found that the property was acquired through the "joint enterprise" of the unmarried couple. The man died during the pendency of her appeal and the South Dakota Supreme Court reversed the award based on its review of the evidence. In dictum, the court continued to recognize the "joint efforts" theory set forth in *Bracken*, stating the following:

"The illicit relations of a man and woman who live together without being married give rise to neither marital nor property rights. However, either the man or the woman may gain an interest in property accumulated in the name of the other, while so associated. In the absence of a controlling contract such an interest stems from the fact that the property was acquired through the joint efforts or contributions of the parties with the intention that both should share in its benefits; its extent is proportioned to the contribution of money or effort of the individual."

23 N.W.2d at 744-45.

2. In a relationship that never developed into marriage, Marilyn moved in with James and became a tour guide and business manager in Big Thunder Gold Mine, Inc., a corporation in which he was the sole shareholder. She bought 44% of the stock and became a director. Six years after the relationship began, it turned sour and she moved into her daughter's bedroom. He demanded she move back into his bedroom or be fired. Through the creation of a 3rd seat on the board of directors and the naming of his father to that position, she was eventually fired, expelled from the residence and the corporate car was taken away from her. She sued him and the corporation for WRONGFUL TERMINATION and SEXUAL HARASSMENT. The jury found for Marilyn, awarding her \$25,000. On appeal, the South Dakota Supreme Court (4-1) reversed, holding that she failed to exhaust her administrative remedies by omitting to file a charge with the South Dakota Division of Human Rights. (Justice Sabers dissented, pointing out that had Marilyn filed a charge with the Division of Human Rights, she could have proceeded into circuit court because the relief she requested could not be granted by the Division -- *i.e.*, the reversal promotes form over substance, merely upholding the technical requirement of filing the administrative charge first before going into court.) *Montgomery v. Big Thunder Gold Mine, Inc.*, 531 N.W.2d 577 (S.D. 1995).

3. In *Alexander v. Hamilton*, 525 N.W.2d 41 (S.D. 1994), the trial court awarded the mother some personal property which was in the possession of the father. Since the case was a "paternity" action, the father argued there was no authority for such an award. The South Dakota Supreme Court affirmed under the general equitable powers of the court, but the dissenting opinion of Justice Wuest accurately points out that this is arguably an implicit recognition of legal rights arising out of illicit unmarried live-in relationships. It should be observed that South Dakota abolished common law marriages in 1959 and has not recognized "palimony." According to Justice Wuest, such remedies should come from the legislature.

4. Man brought action to collect \$11,780 from former girlfriend for money allegedly loaned to her during "ill-fated" romantic relationship. Based on the statute of frauds, SDCL 53-8-2, the trial court directed a verdict for plaintiff in the amount of only \$654.01, the amount for which there were written "IOU's". The South Dakota Supreme Court affirmed, with observations that the trial court was apparently persuaded that the payments were "gratuitous expenditures" and that the plaintiff's effort to collect was a "thinly veiled attempt to mete out some form of revenge for the soured relationship." *Owens v. Moyes*, 530 N.W.2d 663 (S.D. 1995). The dissenting opinion by Justice Sabers points out that the statute of frauds only prohibits the

enforcement of an *agreement* or promise to loan money, not the *collection* of money actually loaned. The dissent also points out that the defendant's answer admitted a loan of \$5,000.

5. Although the South Dakota legislature repealed the statutory cause of action for "breach of promise to marry" in 1991, a party may still bring an action to recover gifts made in contemplation of marriage. In *Fanning v. Iversen*, 535 N.W.2d 770 (S.D. 1995), the South Dakota Supreme Court distinguished between the "heart balm" cause of action ("breach of promise to marry") and an action for the recovery of conditional gifts where the donee breaks the engagement. The lower court's award of some \$13,775 and title to real estate was affirmed.

6. **Property owned by unmarried couple as "joint tenants with right of survivorship" is subject to partition action.** The case of *Wisner v. Pavlin*, 2006 SD 64, 719 N.W.2d 770, stems from a situation in which an unmarried couple (man and woman) purchased a house together and held title to the property as joint tenants with the right of survivorship. About three years later, the man deeded his interest in the house to his son by way of quit claim deed without the woman's consent. His son then brought this lawsuit seeking a partition sale of the property by virtue of his right as a cotenant. The woman resisted, arguing that the deed was not lawful and that her "homestead" interest in the property precluded a partition action. The trial court ruled against the woman and the SD Supreme Court affirmed. Woman's reliance on SDCL 43-31-17 was misplaced because this statute only deals with "husband and wife" -- married cotenants. Furthermore, the woman's homestead interest only attaches to her one-half undivided interest in the house. The Court did acknowledge that the "equities" in this case and the nature of the woman's homestead interest were factors to be considered in connection with the "appropriate partition." These equities do not, however, prevent the partition.

RIGHTS FOR SAME-SEX COUPLES

There has been much litigation and scholarly attention paid to the recognition of "rights" for persons involved in a same-sex relationship. For example, *see* Note, "Extending Family Benefits to Gay Men and Lesbian Women," 68 *Chicago Kent Law Review* 447 (1992). Efforts to judicially force same-sex couples to be treated the same as married couples have failed until recent years. It was reported that "no American case has yet accorded same-sex marriages legal status equal to that granted to opposite-sex marriages" in Note, "Same-Sex Marriages," 10 *N.Y. Law School Journal of Human Rights* 555, 563 (1993).

This issue will also be addressed later in this book in connection with the Constitutional "Right to Marry" and whether or not that right extends to same-sex marriages. The Hawaii Supreme Court was one of the first courts to take a sympathetic look at this issue in *Baehr v. Lewin*, 852 P.2d 44 (Haw. 1993). The court held that an evidentiary hearing was required upon remand to determine if the state could demonstrate that the denial to same-sex couples of the right to marry furthers a compelling state interest. The history on remand in that case is quite complex. The long and short of it (right now anyway) is that the determination of a "compelling state interest" was made into a legislative issue and, subsequently, this turned into a referendum issue for the registered voters of Hawaii to decide. The voters decided against the proponents of gay marriage.

The prospect that Hawaii might become the first state in the United States to permit same-sex marriages triggered a great deal of legislative action in the other states, as well as the U.S. Congress itself. It was reported in the July 1996 ABA Journal that "At least 10 states have passed bills barring the recognition

of same-sex marriages." Henry J. Reske, "A Matter of Full Faith," page 32. Federal legislation, known as the "Defense of Marriage Act" was passed. This act denies federal recognition of same-sex marriages. (The federal "Defense of Marriage Act" is reproduced immediately following this discussion.)

In 1999, the Vermont Supreme Court held that same-sex couples were entitled to the same rights as heterosexual couples. *Baker v. State*, 170 Vt. 194, 744 A.2d 864 (1999) [holding that state could not, consistent with Vermont State Constitutional common benefits provision, deny same-sex couples the benefits and protections which are incident to marriage under Vermont law]. As a result of this decision, the Vermont legislature enacted a "civil union" bill that was close to, but not the same as, permitting a "gay marriage." Many out-of-state same-sex couples traveled to Vermont to participate in civil union ceremonies. A news article dated July 11, 2001, stated "Vermont legislators enacted the civil union bill last year ... Since then, more than 2,300 civil union ceremonies have been performed in Vermont, mostly involving out-of-staters." *Sioux Falls Argus Leader*, July 11, 2001, page 4A.

A jurisdiction could, of course, decide voluntarily "to recognize" or at least confer some degree of credence to same-sex unions. Typically, such legislation would permit the registration of a same-sex couple as a domestic partnership. Denmark has apparently adopted legislation which authorizes same-sex marriages. Sweden and several cities in the United States have afforded some degree of recognition to same-sex couples. (Madison, Wisconsin, and the following cities in California: West Hollywood, Berkeley, Santa Cruz, and San Francisco). See generally Mary C. Dunlap, "The Lesbian and Gay Marriage Debate: A Microcosm of Our Hopes and Troubles in the Nineties," 1 *Law & Sexuality* 63, 94-95 (1991).

The State of California came very close to recognizing "domestic partnerships." In 1994, the California legislature passed legislation that would allow unmarried couples, gay or heterosexual to register with the state and gain certain rights afforded to married couples. Governor Pete Wilson vetoed the legislation on September 11, 1994. It had been reported in the 1990 census that nearly 500,000 households in California consisted of unmarried couples. The statistics also showed that less than 10% of those households (*i.e.* less than 50,000) consisted of same-sex couples. (Most of the information in this paragraph was taken from a story by the Associated Press on p. 5A, *Argus Leader Newspaper*, September 12, 1994.)

As conservative factions across the country began to react to the possibility that Hawaii might begin permitting same-sex marriages, the various state legislatures became active. When the South Dakota legislature examined its own marriage requirements, it found that there was nothing in the statutes that actually required that a marriage be confined to relationships between persons of the opposite sex. Although, no same-sex marriage has ever been reported in South Dakota, the legislature amended SDCL 25-1-1 in 1996 to specifically define marriage as a personal relation "between a man and a woman" arising out of a civil contract. The South Dakota legislature next amended SDCL 25-1-38 in 2000 so as to withdraw recognition of validity as to same-sex marriages contracted outside the state.

Massachusetts – the first state to recognize same-sex marriages

On November 18, 2003, the Massachusetts Supreme Court upheld the right of an individual to enter into a same-sex marriage, ordering the state to comply with the decision within 6 months. As of March 3, 2010, same-sex marriages have been authorized in Iowa, Connecticut, Vermont, New Hampshire and the District of Columbia. Same-sex unions, being substantially equivalent to marriage, are recognized in California, Nevada, New Jersey, Oregon and Washington. Same-sex unions, representing something less than the status of marriage, are recognized in Alaska, Colorado, Maryland, Hawaii, Maine and Wisconsin.

(The author wishes to thank Professor Lynn Wardle for sharing his updated data report of March 3, 2010, as to the status of same-sex marriages and unions, on a jurisdiction by jurisdiction basis.)

On the international level, same-sex marriage is recognized in seven nations: The Netherlands, Belgium, Canada, Spain, South Africa, Norway, and Sweden. Some portions of Mexico recognize same-sex marriage. Same-sex unions, being substantially equivalent to marriage, are recognized in twelve nations: Denmark, Iceland, Finland, France, Germany, Luxembourg, Slovenia, South Africa, Andorra, Switzerland, UK, and New Zealand. Same-sex unions, representing something less than the status of marriage, are recognized in seven nations: Argentina, Columbia, Croatia, Czech Republic, Hungary, Israel, and Portugal. (The author wishes to thank Professor Lynn Wardle for sharing his updated data report of March 3, 2010, as to the status of same-sex marriages and unions, on a jurisdiction by jurisdiction basis.)

Constitutional Amendments

As a result of the Massachusetts experience, conservative factions have countered with efforts to define marriage as existing only between a man and a woman in constitutional amendments. Although there is an effort to amend the U.S. Constitution in such a fashion, it is unlikely that this effort, even if successful, would result in a timely response to the situation in Massachusetts and to similar decisions which may be forthcoming from other state courts.

Amendment of state constitutions, however, has proven to be more fertile soil for those in opposition to gay marriage. Eleven states passed such amendments, through ballot initiatives that were voted upon in the general election on November 2, 2004 – the same election in which George W. Bush was re-elected President, defeating John Kerry. The states passing state constitutional amendments which bar same-sex marriage on Nov. 2, 2004, are as follows: Arkansas, Georgia, Kentucky, Michigan, Mississippi, Montana, North Dakota, Ohio, Oklahoma, Oregon and Utah. These eleven states join the following six states which had previously adopted similar amendments: Alaska, Hawaii, Louisiana, Missouri, Nebraska, and Nevada. *See generally* 31 Family Law Reporter 1022 (November 9, 2004). According to the report in the Family Law Reporter, “the proliferation of amendments pose problems not only for same-sex couples legally married in Massachusetts, but also those married in Canada, the Netherlands, or Belgium, as well as such couples married in Oregon earlier this year ... Furthermore, couples who are parties to civil unions entered into under Vermont law will clearly have difficulty asserting some of their rights in the states whose constitutions deny their unions recognition.” *Id.* at 1022.

MN gay couples lag behind others in getting married in Iowa

Minneapolis Star Tribune
May 20, 2010

When it comes to gay couples traveling to Iowa to get married, Minnesotans are getting beat to the altar. A majority of same-sex couples who marry in Iowa are from outside the state, according to Iowa Department of Health data released last week.

There were 2,020 same-sex marriages in Iowa from April 27, 2009, when the state started allowing such unions, until March 31, 2010, the department said.

Iowa couples made up 815 of those marriages, leaving 1,005 for all other states. Next was Illinois (199), followed by Missouri (158), Nebraska (111) and Minnesota (109).

Lesbian marriages were far more common in Iowa than those involving two men (1,292 vs. 728). Lesbians accounted for 71 of the gay Minnesota couples getting married in Iowa. Justin Uebelhor of the gay-rights group One Iowa says he wasn't surprised to see that so many of the gay couples were from other states. He says many have Iowa ties and wanted to get married at home, while others live in nearby states.

Iowa became the first state in the Midwest to allow gay marriage after the state Supreme Court ruled that an Iowa ban on such marriages was unconstitutional.

Paul Walsh

The Associated Press contributed to this report.

FEDERAL “DEFENSE OF MARRIAGE” ACT

In 1996 Congress enacted the Federal Defense of Marriage Act. Motivation for the passage of this Act was found primarily in the activities in Hawaii and the possibility that Hawaii might become the first state to permit same-sex marriages. The Act may now be found in two different sections of the United States Code, as follows:

1 U.S.C. § 7. Definition of “marriage” and “spouse”

In determining the meaning of any Act of Congress, or of any ruling, regulation, or interpretation of the various administrative bureaus and agencies of the United States, the word “marriage” means only a legal union between one man and one woman as husband and wife, and the word “spouse” refers only to a person of the opposite sex who is a husband or a wife.

(Added Pub.L. 104-199, § 3(a), Sept. 21, 1996, 110 Stat. 2419.)

28 U.S.C. § 1738C. Certain acts, records and proceedings and the effect thereof

No state, territory, or possession of the United States, or Indian tribe, shall be required to give effect to any public act, record, or judicial proceeding of any other State, territory, possession or tribe respecting a relationship between persons of the same sex that is treated as a marriage under the laws of such other State, territory, possession, or tribe, or a right or claim arising from such relationship.

(Added Pub.L. 104-199, § 2(a), Sept. 21, 1996, 110 Stat. 2419.)

NOTE

Article IV, U.S. Constitution, provides in Section 1 as follows:

Section 1. Full Faith and Credit shall be given in each State to the public Acts, Records, and judicial Proceedings of every other State. And the Congress may by general Laws prescribe the Manner in which such Acts, Records and Proceedings shall be proved, and the Effect thereof.

“Love does not consist in gazing at each other, but in looking outward in the same direction.”

Antoine De Saint-Exupery

Chapter Three

PATERNITY AND THE PRESUMPTION OF LEGITIMACY

Historically, illegitimate children have faced severe discriminations under both the common law and American legislation. The original idea, although now seemingly ridiculous, was that society would *discourage* sexual relations between adults outside of marriage by punishing the offspring of such illicit unions. At common law, the illegitimate child (or "bastard") was declared to be "filius nullius" (also referred to as "nullius filius"), meaning the "son of nobody." As a result, the illegitimate child was incapable of being heir to anyone and could have no heirs except direct lineal descendants. He was "of kin" to no one. This rationale was implanted in the statutory schemes of most of the states when the various legislatures established probate laws. Fortunately now, the U.S. Supreme Court has dealt with such ridiculous notions in many cases involving equal protection arguments in the context of discriminations seen between legitimate children and illegitimate children.

Since the stigma of "illegitimacy" carried such harsh results, there were many ramifications. The problem of "infanticide" [babies being slain by their unwed mothers] was so great during the early days of this country's settlement that John Winthrop wrote extensively about it in his journal. And, in 1696, the Massachusetts Colony enacted a statute that imposed the death penalty on single mothers whose babies should be found dead unless there was an eyewitness to the stillbirth.

In Europe, a "tour" (a turning box) became utilized as a device for dropping off unwanted children. Originally, the "tour" was used to allow communication and the passing of goods between outsiders and the inhabitants of a convent or monastery, while maintaining the privacy of the inhabitants. Reacting to the problem of "infanticide" and abandonment, Napoleon decreed in 1811 that "tours" were to be installed and utilized in all foundling homes. The abuses continued and by 1860 the use of "tours" to drop off unwanted children became outlawed.

The courts at common law reacted to such harsh treatment of illegitimates by developing the "presumption of legitimacy" and declaring it to be the strongest presumption known at law. This presumption is discussed in the notes which follow. It should be observed, at this point however, that the presumption was utilized in a case which arose during the reign of King Edward II involving the birth of a child to the Countess of Gloucester 1 year and 7 months after the death of her husband. Applying the "presumption of legitimacy," the court found the child to be legitimate -- meaning there would have had to have been a period of gestation which extended for at least 19 months.

A. The "Presumption of Legitimacy"

NOTES

1. At common law a child conceived during wedlock was presumed to be the legitimate offspring of the legal parents. This "presumption of legitimacy" has been frequently described as the "strongest presumption known to the law." The presumption stretches out chronologically from both ends of the period of time encompassed by the marriage. A child born before a marriage becomes legitimate by virtue of the subsequent marriage. Children born after the termination of a marriage may be deemed legitimate by virtue of the presumption.

2. In *Smith v. Smith*, 24 N.W.2d 8 (S.D. 1946), a child was born to the wife eight (8) months after the parties were divorced. In a subsequent modification action, the husband was declared to be the father despite good evidence of his sterility. The husband fell prey to the "presumption of legitimacy" which the South Dakota Supreme Court recognized as "one of the very strongest, if not the strongest, presumption known to the law." *Id.* at 9.

3. The "presumption of legitimacy" was codified in South Dakota until 1991. It was then found in Sections 25-5-1 through 25-5-5. (Previously found in Sections 14.0301 and 14.0302.) These provisions were inadvertently repealed by the legislature in 1991 in the process of reforming the probate code. The former sections 25-5-1 through 25-5-5 are reproduced in sub-chapter C of this chapter. In 1994, the South Dakota legislature re-enacted the presumption of legitimacy. See SDCL 25-8-57 and the present version of SDCL 25-5-3 which were enacted by the 1994 legislature.

4. At common law there were only two recognized exceptions which would avoid the operation of the "presumption of legitimacy." The exceptions were when (1) the husband was impotent; and (2) the husband was beyond the four seas of England during the period of gestation.

5. The Rule of Lord Mansfield discussed in *Davis v. Davis*, in the preceding chapter, is considered the "evidentiary ally" to the "presumption of legitimacy." [*Compare* the last sentence of SDCL 25-5-4 which was repealed in 1991 – this former statute is reproduced in part C. of this Chapter.]

6. Reconsider note 4 above and the facts in *Smith v. Smith*, set forth in note 2 above. Didn't the father in *Smith v. Smith* fall under one of the common law exceptions? Why or why not?

7. Responding to a request by the Department of Social Services (hereinafter also referred to as "DSS") in 1994, the South Dakota legislature amended Chapter 25-8 so as to create a "rebuttable presumption" of paternity through either genetic testing (now found in SDCL 25-8-58) or through an affidavit of paternity (now found in SDCL 25-8-50, 25-8-51, and 25-8-52). These new amendments also provide that once a presumption is created, the Department of Social Services may proceed to establish a support obligation without the necessity of instituting paternity proceedings. If the presumed father wishes to contest the results, he must commence his own action in circuit court to establish that he is not the father of the child. (See SDCL 25-8-59). Furthermore, the presumed father has only 60 days following the "creation of the presumption of paternity" within which to contest the rebuttable presumption, except in cases of "fraud, duress, or material mistakes of fact" in which case he has 3 years. (SDCL 25-8-59). The prosecution of an action to contest paternity does not stay the establishment of the support obligation which is created by the rebuttable presumption of paternity. (SDCL 25-7A-8).

Child advocates herald boom in paternity declarations

California law leads to closer
ties with dads

By VIRGINIA ELLIS

Los Angeles Times

As his 2-day-old daughter squirms in her mother's arms, Nicolas Reyes, 23, prepares to take a step that will have an indelible effect on the child's future. Slowly, carefully, he signs his name on a short white form.

The signature etches into the legal record the formal declaration that Reyes, an unmarried man, is the biological father of Carla Reyes-Osoy and cements a legal link between father and daughter that will govern the rest of their lives.

When he finishes, a shy smile spreads across the new father's face. "I want my name to be on her birth certificate," he says through an interpreter. "I think it's very important for her to have my name."

In California, where one in three children is born out of wedlock, unmarried fathers such as Reyes have been stepping forward in record numbers to voluntarily sign legal declarations of paternity.

In 1997, the number of new fathers who put their names on the form soared to 111,850, more than a 600 percent increase over the previous year.

Their signatures represented 66 percent of all out-of-wedlock births that year, a dramatic jump from 1996, when only 10 percent of unmarried fathers

signed declarations. In 1998, the numbers have continued to climb.

The ramifications of the trend are huge not only for the well-being of children but also for taxpayers who must foot the bill for the support of many poor youngsters who were born out of wedlock.

* * *

New law makes difference

What makes 1997 the watershed year, officials say, is a little-noticed state law that required unmarried fathers to sign paternity declarations before their names could go on their children's birth certificate.

* * *

The new law makes the name on the birth certificate legally binding, entitles the unwed fathers to the same rights as a married one and obligates him to help provide child support.

The paternity declarations are an outgrowth of a national effort to reconnect fathers with their children and a governmental campaign to extract child support from more absent parents.

Both have been given impetus by federal welfare reforms, which require states to establish paternity for increasingly higher percentages of fathers or face the loss of welfare funds.

For decades, out-of-wedlock births have been inextricably tied to the welfare system. Four out of five unwed mothers go on welfare within a few years of

their first child's birth, according to a 1990 congressional budget office study.

In California today, 50 percent of the single mothers on welfare have never been married and 38 percent of the children have no legal father.

Governmental efforts to push welfare families into self-sufficiency have put a spotlight on absent fathers. But in the case of unwed fathers, district attorneys cannot seek child support until paternity is established. When a voluntary declaration is already filed, however, it saves the time and cost of a court action.

* * *

B. Blood and Tissue Tests

NOTES

1. Prior to the last couple of decades, blood tests were only useful to disprove alleged paternity. A defendant in a paternity suit could undergo blood tests. If the results favored the defense, then the case would be dismissed against the defendant. If the results failed to disprove paternity, then the defendant would simply be required to stand trial.

2. The science of blood and (now) tissue testing has advanced considerably. Testing techniques are now available which serve to predict paternity with a high degree of probability. As indicated in some of the cases to follow, these tests typically come back with statements such as "there is a 96% likelihood that the defendant is the father" or "of the male population, the defendant belongs to the group of 4% of all males that could have fathered the child. "

3. Courts and legislatures have had to cope with the evidentiary problems and burden of proof problems generated by the improvement of the state of science in blood and tissue testing. The Texas legislature initially dealt with the problem by providing that a "prima facie" showing of paternity was satisfied if the tests established that at least 95 percent of the male population is excluded and that the alleged father remains in the 5 percent of males who could be the father. Section 13.06 (c) of the Texas Family Code. In 1993 the Texas legislature raised the percentage needed to trigger the "prima facie" showing (and switch in the burden of proof) from 95 percent to 99 percent.

4. Blood and tissue testing is now authorized in South Dakota by SDCL 25-8-7.1.

5. In 1994 the South Dakota legislature amended Chapter 25-8 to provide that "Genetic test results establishing a threshold probability of ninety-nine percent or more shall create a rebuttable presumption of paternity. . ." (See SDCL 25-8-58). SDCL 25-8-7.1 was also amended in 1994 to authorize tests on "other bodily substances" in addition to blood and tissue specimens.

6. Sometimes it may be necessary to also test the parents of the alleged father for a better result (*i.e.*, the child's would-be paternal grandparents). Are such tests authorized by statute? By Rule 35? *Compare Manuel v. Spector*, 712 S.W.2d 219 (Tex.App. San Antonio 1986).

7. **Legislative update (2007): Authority Granted for the Issuance of Birth Certificates for Stillbirths.** Senate Bill 206, which permits issuance of birth certificates for stillbirths and also requires a burial permit for fetus which has reached the gestational age of 20 weeks, was enacted into law. Legislation of this type, also known as "Missing Angels" legislation, has recently been introduced and passed by various legislatures across the country. The only motive for this legislation is to provide closure for the parents who experience a stillbirth. Several new sections are added to SDCL 34-25, namely SDCL 34-25-32.8, 34-25-32.9, 34-25-32.10, 34-25-32.11, 34-25-32.12, 34-25-32.13, 34-25-32.14, 34-25-32.15, and 34-25-32.16. The parents of a stillbirth are permitted, but not required, to provide a name for the child on the birth certificate. Testimony in support of this bill indicates that the numbers are not great in SD, but the issue is present and the need for this type of legislation exists. In SD in 2003 there were 34 stillbirths; in 2004, there were 36 stillbirths; and in 2005, there were 43 stillbirths. This bill also amends SDCL 34-25-24 and SDCL 34-25-32.1 to require burial permits for a

fetus which has reached the gestational age of 20 weeks, thereby changing the previous criterion which set triggered the requirement for a fetus which weighed “five hundred grams or more.”

8. DNA samples from South Dakota’s criminal database made available in limited situations for use in paternity testing. In 2003 the South Dakota Legislature authorized the establishment of a DNA database for usage by the FBI and CODIS, specifying that the procedures and computer software to be compatible with the procedures set forth by the FBI. DNA samples are required and taken of, inter alia, all felony prisoners. The 2010 legislature passed SB 132 which permits DNA samples from this data base to be utilized for paternity testing in limited situations where no other sample is available, all other reasonable opportunities to acquire a sample have been exhausted and a court so orders. SDCL 23-5A-17 and 23-5A-25 are amended accordingly.

C. Selected Relevant Statutory Provisions

CHAPTER 25-5: PARENT AND CHILD

These first five statutes (SDCL 25-5-1 through 25-5-5) were repealed by the legislature in 1991.

25-5-1. Children born in wedlock presumed legitimate. All children born in wedlock are presumed to be legitimate. (Repealed in 1991.)

25-5-2. Legitimacy of children of void marriages—Effect of divorce. The issue of all marriages null in law or dissolved by divorce, are legitimate. (Repealed in 1991.)

25-5-3. Presumed legitimacy of children born within ten months after dissolution of marriage. All children of a woman who has been married, born within ten months after dissolution of the marriage are presumed to be legitimate children of that marriage. (Repealed in 1991.)

25-5-4. Persons entitled to dispute presumption of legitimacy —Proof of illegitimacy. The presumption of legitimacy can be disputed only by the husband or wife, or the descendant of one or both of them. Illegitimacy in such cases may be proved like any other fact. (Repealed in 1991.)

25-5-5. Legitimation by subsequent marriage of parents. A child born before wedlock becomes legitimate by the subsequent marriage of its parents. (Repealed in 1991.)

The following statutes are currently in effect (at least at the time of publication of this book):

25-5-3. Presumption of parentage. The husband and wife are presumed to be the parents of any child born to the wife during the marriage or within ten months after the dissolution of marriage.

25-5-10. Custody and earnings of children born out of wedlock. The mother of an unmarried minor born out of wedlock is entitled to its custody, services, and earnings subject to the court's right to award custody of the child to either parent, considering the best interests of the child as to its temporal, mental and moral welfare.

25-5-10.1. Best interest of child not presumed--Change of custody. Notwithstanding any initial entitlement to custody pursuant to § 25-5-10, there is no legal presumption that such custody is in the best interest of the child, nor is a change of circumstances required for a change of the initial custody as determined by § 25-5-10. Source: SL 2008, ch 131, § 2.

CHAPTER 25-6: ADOPTION OF CHILDREN

25-6-1. Adoption of illegitimate child by acknowledgment and conduct of father—Legitimation from birth. The father of an illegitimate child by publicly acknowledging it as his own, receiving it as such into his family, with the consent of his wife if he is married and otherwise treating it as if it were a legitimate child, thereby adopts it as such, and such child is thereupon deemed for all purposes legitimate from the time of its birth. The other provisions of law relating to adoption shall not apply in such cases.

CHAPTER 25-8: PATERNITY PROCEEDINGS

25-8-3. Father and mother's liability for confinement expense. The father and mother of a child born out of wedlock are jointly and severally liable to pay the expenses of the mother's pregnancy and confinement.

25-8-5. Mother's recovery of support from father—Period for which support recoverable. The mother may recover support for a period of three years before the date of application with any Title IV-D agency, the date of filing with a court of competent jurisdiction, or the date of a written demand served personally or by registered or certified mail, return receipt requested, upon the father at his last known address, whichever occurs earlier.

Source: SL 2005.

25-8-7. Proceedings to determine paternity or compel support as civil actions—Rules of procedure—Remedies authorized. An action to determine paternity or proceedings to compel support by the father are civil actions governed by the Rules of Civil Procedure. They are not exclusive of other proceedings that may be available on principles of law or equity.

Upon determining paternity of a child, the court shall give judgment declaring the paternity of the father to the child. The court may award a money judgment to the appropriate party for the recovery of the reasonable expenses of the mother's pregnancy and confinement, for the education, support or funeral expenses for the child, or for any other expenses with respect to the child as the court deems reasonable.

The court shall enter an order for the support and custody of the child. The court may require the person ordered to pay support to give reasonable security for providing the support. The court may modify or vacate any order issued pursuant to this section at any time.

25-8-7.1. Court ordered testing for paternity—Filing of results. In any action or proceeding in which the parentage of a child is at issue, upon motion of the court, the department, or any of the interested parties, the court shall, for good cause shown, order the mother, the child, or any alleged father to submit to an examination of blood, tissue, or other bodily substances for the purpose of testing any genetic systems that are generally accepted within the scientific community for the conclusive determination of paternity probability. The results of the tests, together with the opinions and conclusions of the testing laboratory, shall be filed with the court. Upon written agreement of the mother and any presumed or alleged father, tests may be conducted prior to filing of an action. If the action is then filed, the test results shall be filed with the court and admitted into evidence as provided in § 25-8-7.3.

25-8-7.2. Persons authorized to perform test—Liability. Only a physician, laboratory technician, registered nurse, physician's assistant, phlebotomist, expanded role licensed practical nurse, medical technician, or medical technologist, acting under court order, or at the request of both the mother and any alleged father of the child, may withdraw blood for the purpose of testing genetic systems to determine parentage. Tissue, saliva, or other bodily substances may be withdrawn, by a qualified person, acting under court order, or at the request of both the mother and any alleged father of the child, using a noninvasive procedure, for the purpose of testing genetic systems to determine parentage. No person, and no entity, hospital, or laboratory employing such person, is liable for damages to the party from whom the blood, tissue, or other bodily substance is withdrawn, if the withdrawal is administered with usual and ordinary care.

25-8-7.3. Test results—Documentation -- Filing objections to admissibility. The chain of custody of the blood, tissue, or other bodily substance taken under §§ 25-8-7.1 and 25-8-7.2 may be established through certified documentation of the change of custody if such documentation was made at or near the time of change of custody, if it was made in the course of a regularly conducted business activity, and if it was the regular practice of that business activity to make the documentation. Any objections to the admissibility of the genetic test results shall be made in writing and filed with the court at least twenty days prior to any trial or hearing to establish paternity. If written objections are not filed with the court, the genetic test results are admissible as evidence of paternity without further testimony regarding foundation, accuracy, or authenticity.

25-8-8. Agreement on father's liability not binding unless judicially approved — Other remedies barred when approved and performed. An agreement or compromise made by the mother or child or by some authorized person on their behalf, with the alleged father concerning the support of the child born out of wedlock is binding upon the mother and child only if adequate support is secured by payment, or otherwise, and if approved by a court having jurisdiction to compel support of the child.

The performance of the agreement, when approved, bars other remedies of the mother or child for the support of the child.

The approval by the court shall be entered by the court as a judgment of paternity and order for support, and the judgment and order are enforceable as provided by law. An agreement which does not meet the requirements of this statute is void.

25-8-9. Time for bringing proceedings. Proceedings to establish paternity and enforce the obligation of the father may be brought at any time before the eighteenth birthday of the child.

Source: SDC 1939 & Supp 1960, § 37.2131; SL 1983, ch 207, § 2; SL 1986, ch 218, § 57; SL 1989, ch 222.

25-8-50. Voluntary hospital-based paternity establishment program. Upon the birth of a child to an unmarried woman, and prior to discharge, any hospital, physician, health care provider, midwife, or nurse who assists in the birth of the child shall:

(1) Provide an opportunity for the child's mother and alleged father to sign under oath an affidavit of paternity; and

(2) Provide to the mother and to the alleged father, any necessary oral information, and also written information furnished by the Department of Social Services which describes, among other things, the rights and responsibilities of parentage; the benefits of having the child's paternity established; the alleged father's legal rights and responsibilities, including his right to request genetic testing; the child's right to receive child support; that a signed affidavit of paternity creates a rebuttable presumption of paternity; that a signed affidavit of paternity allows the establishment of a support obligation without requiring further proceedings to establish paternity; and, that completion of the affidavit of paternity is voluntary and is not required of either the mother or the alleged father.

If obtained, the fully completed, signed, and notarized original affidavit of paternity shall be forwarded to the Department of Health as provided in chapter 34-25 within seven days following the birth of the child.

25-8-51. Forwarding of affidavit of paternity to department of social services.

Notwithstanding §34-25-16.4, upon request from the Department of Social Services, the Department of Health shall forward to the Department of Social Services a copy of any affidavit of paternity on file with the Department of Health.

25-8-52. Rebuttable presumption of paternity—Signed and notarized affidavit. A signed and notarized affidavit of paternity creates a rebuttable presumption of paternity, admissible as evidence of paternity, and allows the Department of Social Services to proceed to establish a support obligation in accordance with the provisions of §§ 25-7A-5 to 25-7A-8, inclusive, without requiring any further proceedings to establish paternity.

25-8-53. Reimbursement of reasonable costs for affidavit of paternity. The hospital, physician, health care provider, or nurse is entitled to reimbursement for all reasonable costs associated

with obtaining the affidavit of paternity. The Department of Social Services shall establish by rules, promulgated pursuant to chapter 1-26, the amount of reasonable costs, which may not exceed the amount for which federal financial participation is available, and the procedures for claiming such reimbursement from the department.

25-8-54. Use of forms and information prescribed by department. All hospitals, physicians, health care providers, midwives, and nurses shall use all forms and written information as prescribed by the department of social services.

25-8-55. Default judgment establishing paternity. Any default judgment establishing paternity shall be obtained in accordance with the provisions of § 15-6-55.

25-8-56. Judgment of paternity—Full faith and credit. Any judgment of paternity, whether established through a voluntary acknowledgment process, or established by a court or administrative entity of this state, or any other state or jurisdiction, is entitled full faith and credit in this state.

25-8-57. Rebuttable presumption of legitimacy. Any child born in wedlock, or born within ten months after dissolution of the marriage, is presumed legitimate to that marriage even if the marriage is subsequently declared to be null and void, or subsequently dissolved by divorce. This rebuttable presumption of legitimacy can only be disputed by the husband or wife, or a descendant of one or both of them.

25-8-58. Genetic test results. Genetic test results establishing a threshold probability of paternity of ninety-nine percent or more shall create a rebuttable presumption of paternity and allow the department of social services to establish a support obligation in accordance with the provisions of §§ 25-7A-5 to 25-7A-8, inclusive, without requiring any further proceedings to establish paternity.

25-8-59. Actions contesting rebuttable presumption of paternity. Any action contesting a rebuttable presumption of paternity as established by §§ 25-8-50 to 25-8-58, inclusive, shall be commenced either sixty days after the creation of the presumption of paternity or the date of any administrative or Judicial proceedings relating to the child including proceedings to establish a support obligation in accordance with § 25-8-52, whichever occurs earlier, except in cases where there are allegations of fraud, duress, or material mistake of fact. In cases involving allegations of fraud, duress, or material mistake of fact, any action contesting a rebuttable presumption of paternity shall be commenced within three years after the creation of any presumption. The burden of proof shall be upon the moving party and the payment of child support, or any other legal responsibilities of the parties, may not be suspended during the pendency of the proceedings, except upon a showing of good cause by the moving party.

25-8-60. Circumstances where name of father appears with birth record for out of wedlock birth. In any out of wedlock birth, the name of the father shall be included within the birth record of the child only if the father and mother have signed an affidavit of paternity, or a court or administrative tribunal of competent jurisdiction has issued an order which adjudicates the paternity of the child.

25-8-61. Trial by jury prohibited in paternity action. In any action to establish paternity within this state, trial by jury is not allowed.

25-8-62. Admissible medical billing evidence in paternity actions. In any action to establish paternity, medical bills related to childbirth, pregnancy, or confinement expenses, and genetic testing bills shall be admissible as evidence without foundation testimony, and shall constitute prima facie evidence of the amounts incurred.

25-8-63. Filing affidavits or adjudications of paternity. Every affidavit or adjudication of paternity shall be filed with the Department of Health for comparison with information contained within the state case registry.

Arrearage Statute for out-of-wedlock children – prior to 2005 amendment

25-8-5. Mother's recovery of support from father—Period for which support recoverable. The mother may recover from the father a reasonable share of the necessary support of a child born out of wedlock. In the absence of a previous demand in writing served personally or by registered or certified letter addressed to the father at his last known residence, not more than six years' support furnished before bringing an action may be recovered from the father.

D. Involuntary Proceedings

NOTE

An action to determine paternity under SDCL 25-8-7 necessarily requires that the court also determine custody and child support.

DEPT. OF SOCIAL SERVICES v. MCCARTY

Supreme Court of South Dakota, 1993.
506 N.W.2d 144.

HENDERSON, Justice.

* * * [Roslea Ann]Wolf gave birth to E.V.W. on April 4, 1990 and identified three men as possible fathers. Genetic testing through DNA profiling eliminated two of the men from contention. DNA, as explained to the jury, is shorthand for Deoxyribonucleic Acid, the genetic material which carries the coded messages of heredity that determine the appearance and physiological characteristics of an individual. With a probability of paternity of 99.89%, McCarty could not be excluded as the biological father. A second examination of his blood revealed a 99.5% probability. Furthermore, Wolf had previously denied having sexual intercourse with anyone other than McCarty during the probable period of conception. Although McCarty admits that Wolf stayed at his home one night when she was intoxicated, he denies any sexual encounter, then or ever, with Wolf.

During 1982, when McCarty worked for the Federal Drug Enforcement Agency (DEA), he was tortured by drug dealers. One such torture included the application of electrodes to his genitals, which he claims left him sterile. As this condition allegedly existed at the time of conception, he claims that he was

incapable of impregnating Wolf. Although a medical expert was prepared to testify that such torture could have caused the sterility, the expert was not willing to testify to a medical certainty or probability that the condition existed at the time of the alleged conception.

McCarty's sterility was confirmed prior to trial, however, he had no knowledge of this sterility prior to a medical examination in the fall of 1991. Despite fathering a child in April of 1978, he additionally claims that the court erred in presuming that he was still fertile in 1989.

DECISION

I. *McCarty's defense was improperly excluded.*

Over twenty years ago, this Court established the realm of admissible medical expert testimony. In *Koenig v. Weber*, 84 S.D. 558, 174 N.W.2d 218 (1970), we held, "Medical experts are qualified to express their opinions based upon medical certainty or medical probability, but not upon possibility." *Accord Armstrong v. Minor*, 323 N.W.2d 127 (S.D.1982); *Bertness v. Hanson*, 292 N.W.2d 316 (S.D.1980); *Thomas v. St. Mary's Roman Catholic Church*, 283 N.W.2d 254 (S.D.1979). When a court-ordered examination confirmed that McCarty was presently sterile, the trial court ruled that expert medical testimony must establish with "reasonable medical certainty or medical probability" that McCarty was sterile at the time of conception.

Proposed medical testimony indicated that injuries McCarty received years prior to the conception *possibly* could have caused sterility. However, McCarty conceded that the testimony could not meet the required burden of medical certainty or medical probability that McCarty was in fact sterile at the time of conception, let alone prior to 1991. Regardless, McCarty contends that because he has never had a vasectomy, has had no other children, and is presently sterile, he, therefore, has been sterile since the torture in 1982. This assumption is a gap which this Court cannot bridge. "Where the claimant's medical experts are unwilling to express an opinion, this Court will not infer a medical prognosis." *Guthmiller v. S.D. Dept. of Transp.*, 502 N.W.2d 586, 589 (S.D.1993). Conversely, the trial court placed too great a restriction on the medical expert testimony. Although the trial court properly prohibited the expert from providing medical testimony that could not meet the evidentiary standard, it erroneously denied any mention of McCarty's sterility defense. We note that a distinction exists.

In *Zepp v. Hofmann*, 444 N.W.2d 28, 33 (S.D.1989), we permitted the medical expert, under the requisite standard, to give his "medical opinion as to whether the injuries were consistent with [being hit with a board]." Likewise, McCarty's expert should be permitted to testify with medical certainty or medical probability as to whether sterility is an injury consistent with torture of the genitals. Afterward, the Zepp expert was asked:

Doctor, based upon a reasonable degree of medical certainty, are you of the opinion that Frank Zepp was hit in the face with a board?

As the proposed testimony indicates, a similar inquiry to McCarty's expert would reveal that there can be no medical certainty of McCarty's sterility prior to 1991. This differs from simply asking if the type of injury was probable. Accordingly, the trial court should have permitted McCarty the opportunity to plead his defense before the trier of fact, who will decide the ultimate issue. Any confusion perceived by the jury, as the Department of Social Services fears, may be remedied by the art of cross-examination.

Through two separate DNA tests, McCarty's probability of paternity was determined to be in excess of 99%. Cross-examination of the DNA medical expert revealed that the probability would be the same even if McCarty had not had sex with Wolf, as McCarty so contends. DNA, the entire genetic blueprint for an individual, is extracted from samples of blood from the child. (Semen, saliva, skin, and hair follicle samples can also be used in DNA testing.) Thereafter, a "DNA profile" is developed by analyzing three to five locations in DNA where individual variations are common. Because offspring inherit roughly half their DNA from their mother and half from their father, this profile is then compared with DNA taken directly from the suspect father. See *DNA Technology in Forensic Science* (National Research Council, July 1992).

* * *

In South Dakota, it is unnecessary to have a special hearing on the admissibility of DNA analysis when SDCL 25-8-7.1 provides for its admission. DNA testing has previously been recognized by this Court in *Matter of A.J.H.*, 363 N.W.2d 196 (S.D.1985) and *Matter of F.J.F.*, 312 N.W.2d 718 (S.D.1981). Furthermore, McCarty does not challenge DNA testing as conflicting with the admissibility standards previously required by *Frye*. Rather, McCarty challenges the evidence as confusing and violative of public policy. In paternity proceedings, trial court's findings will not be set aside unless they are clearly erroneous in light of the evidence. *State ex rel. Maeschen v. Wittstruck*, 377 N.W.2d 137 (S.D.1985). McCarty's arguments concerning DNA admissibility are without merit.

McCarty further notes that the trial court proclaimed the sterility defense to be an affirmative defense under SDCL 15-6-8(c) and held there is a presumption of fertility. Although this statute lists several affirmative defenses, sterility is not one of them. Simply stated, an affirmative defense is a response to an admitted act; however, McCarty completely denies having sexual intercourse with Wolf. Hence, no admitted act exists. Additionally, we find no authority cited requiring a presumption of fertility. Therefore, we find no reason to deem it true. SDCL 15-26A- 60(6); *Corbly v. Matheson*, 335 N.W.2d 347 (S.D.1983). At this time, this Court finds no sound reason to add sterility, by judicial fiat, to the list of affirmative defenses.

No purpose is served when the defendant in a paternity suit is not permitted to present evidence of sterility. Here, the testimony should have been admitted, and then the jury would decide what weight or credibility such a defense would merit. *Nelson v. Palmquist*, 363 N.W.2d 570 (S.D.1985).

* * *

Reversed and remanded.

MILLER, C.J., and AMUNDSON, J., concur.

SABERS, J., concurs specially.

WUEST, J., dissents.

STATE ex rel. FITCH v. POWERS

Supreme Court of South Dakota, 1954.
62 N.W.2d 764.

Appellant was found by a jury to be the father of a child of respondent in a proceeding brought under SDC 37.91. He appeals from the judgment providing support for the child and from an order denying a new trial.

* * *

Respondent with the court's consent took the child in her arms to the witness stand in the presence of the jury. Her counsel later argued that there was resemblance in certain physical traits of the child and appellant. It is now urged not only that it is error to display a child to the jury in such a case as this . . .

* * *

There is a sharp conflict in the authorities as to the propriety of exhibiting a child to a jury as evidence of paternity. 7 Am.Jur., Bastards, §§ 36 and 121; 10 C. J.S., Bastards, § 92; Annotation 40 A.L.R. 97, 111, 163, and 95 A.L.R. 314, 315, 319. This court has never ruled on the question although it has been discussed to some extent in *State ex rel. Berge v. Patterson*, 18 S.D. 251, 100 N.W. 162; *State ex rel. Larson v. Benson*, 46 S.D. 565, 195 N.W. 437; and *State ex rel. Sievert v. Merrigan*, S.D., 46 N.W.2d 909. We reject the rule that holds it is never admissible evidence to display the child to the jury. From the other variations of the rule that hinge largely on the matter of the child's age we need not here select a rule for all future cases and that we do not do. We simply hold that in this case the display of this baby even though very young did not constitute error. In so holding we seem to be conforming to a rule sometimes said to be most sound and one propounded by Professor Wigmore. It leaves to the trial judge a preliminary determination of the question as to whether or not the child is sufficiently mature to have developed fixed physical features and then permits, by the display of the child, a comparison of specific traits. Wigmore, Evidence, § 166, p. 627.

The judgment of the circuit court is affirmed.

All the Judges concur.

NOTE

In 1997, the South Dakota legislature enacted SDCL 25-8-61 (reproduced in the preceding subchapter) which eliminates the right to a jury trial in paternity actions.

LUEDTKE v. KOOPSMA

Supreme Court of South Dakota, 1981.
303 N.W.2d 112.

DUNN, Justice.

David R. Koopsma (appellant) appeals from an order of the circuit court dated May 12, 1980, directing that he pay Kathlyn Luedtke (appellee) \$75.00 per month for the support of their minor child, Lisa M. Koopsma (Lisa). We affirm.

The parties were married on October 27, 1972, in Mountain Home, Idaho; approximately four months later on February 6, 1973, Lisa was born. On the 8th day of November, 1973, appellee obtained a judgment, in Idaho, granting her a divorce. Appellant voluntarily chose to make no appearance in the divorce action. The Idaho court granted appellee custody of Lisa and ordered that appellant pay child support of \$75.00 per month.

On January 14, 1980, appellee, who now resides in Wisconsin, filed in that state a "Petition for Support," and pursuant to the "Uniform Reciprocal Enforcement of Support Act" (URESA), a hearing on this petition was held on May 12, 1980, in the South Dakota Circuit Court at Canton. At this hearing appellant (who is a South Dakota resident) sought to contest paternity. Appellant's argument is predicated upon a petition for termination of parental rights which appellee filed in Wisconsin on October 10, 1979. Therein, appellee alleges that one Phillip Taylor is the natural father of Lisa and that appellant is merely the father through marriage. This petition was never pursued beyond the initial filing; however, appellant urges that in light of this sworn petition he should be allowed to contest paternity in the URESA proceeding.

The sole issue on appeal is whether the original judgment of divorce was res judicata in the URESA action on the issue of paternity. The authorities uniformly indicate that it is. *See Baum v. Baum*, 20 Mich.App. 68, 173 N.W.2d 744 (1969); *Dornfeld v. Dornfeld*, 200 App.Div. 38, 192 N.Y.S. 497 (1922); *Johns v. Johns*, 64 Wash.2d 696, 393 P.2d 948 (1964). *See generally* Annot. 78 A.L.R.3d 846 (1977).

Although the record contains no findings by the Idaho court there is an Idaho judgment which refers to Lisa as the "minor child of the parties" Logic and reason dictates that the Idaho court found that Lisa was appellant's child. We also note that there is a rebuttable presumption that children who are born during wedlock are the legitimate issue of the marriage. Moreover, the Idaho court ordered appellant to provide child support of \$75.00 per month. "(A) support order, although uncontested, constitutes an adjudication of paternity in regard to the (appellant's) duty of support." *Baum*, *supra*, at 747.

* * *

If appellant had shown that the Idaho judgment was obtained by fraud on appellee's part, a substantially different question might be presented. *See Johns v. Johns, supra*. That, however, is not the case presented. Appellant merely claims that appellee's statement in the petition seeking termination of appellant's parental rights is sufficient to estop enforcement of the judgment of divorce and its holding that Lisa is the minor child of the parties. The rule in such a case is that, "(a)lthough statements of fact in other pleadings are inconclusively admissible ... they cannot be used for the purpose of establishing the

defense of estoppel." *Mich. Health Care, Inc. v. Flagg Industries, Inc.*, 67 Mich.App. 125, 129, 240 N.W.2d 295, 297 (1976).

Generally the only defenses the defendant can make to a judgment obtained in another state when the judgment is sued upon in this state are that the court did not have jurisdiction ... or that the judgment has been paid, satisfied, or released.... No defense may be set up which goes to the merits of the original controversy, or which might have been imposed in the original action.

Bahr v. Bahr, 85 S.D. 240, 245, 180 N.W.2d 465, 467 (1970).

We find that appellant had an opportunity to contest paternity in the original action, but failed to do so. He also has not alleged fraud in appellee's obtaining of the original judgment. He therefore should not be heard to complain that he has been precluded from presenting this issue to the courts. Paternity in such a situation is not properly raised in an action to enforce child support obligations.

Accordingly, we affirm.

All the Justices concur.

NOTES AND QUESTIONS

1 In *Culhane v. Michels*, 2000 SD 100, 615 N.W.2d 580, ex-husband sought paternity tests for youngest daughter, producing affidavits from two of wife's friends stating that she told them that she knew even when she was pregnant that her husband was not the father. This request by husband arose some 11 years after the divorce and was raised in a proceeding brought by ex-wife to require him to pay for a child support arrearage which developed when he took a pro-rata deduction for the emancipation for the older child. The decree had ordered \$800 per month for 2 children and he paid only \$400 per month for the younger daughter when the older one turned 18. Both the trial court and the South Dakota Supreme Court denied husband's request for the paternity testing. Despite husband's assertion that he had only recently become aware of the wife's statements as to his non-paternity, it was noted that husband nonetheless had the opportunity to raise the issue of paternity during the divorce proceedings and he did not do so. The SD Supreme Court stated, "Belated efforts to declare a child illegitimate, for whatever reasons, should seldom prevail." Paragraph No. 30, 615 N.W.2d at 589.

2. The current statute of limitations for paternity actions is found in SDCL 25-8-9. It provides that a paternity action may be brought at any time before the child's eighteenth birthday. This particular limitation has varied from as low as 2 years to 6 years to its present form. The development of South Dakota's statute of limitations in paternity actions is better understood after studying the *Gomez* and *Mills* cases in the next chapter.

3. In *State ex rel. Stearns v. Blume*, 333 N.W.2d 721 (S.D. 1983), the South Dakota Supreme Court held that an action by a state agency to establish paternity and collect child support was governed by the 6 year limitation of SDCL 15-2-13(1). The result of the holding in *Blume* was to allow the action to proceed where it would have otherwise been barred by the 2 year provision of SDCL 25-8-9 as it existed at the time. It is doubtful that the Department of Social Services (DSS) would now claim that the 6 year

provision in SDCL 15-2-13(1) (as opposed to the more generous 18 year provision in SDCL 25-8-9) controls. The South Dakota Supreme Court has yet to address the question of whether or not the DSS may now take advantage of the longer statute.

4. Henry fathers a child born to Madeline. Madeline makes absolutely no effort to seek support from Henry for 15 years. In fact Madeline has not, over the 15 year period, even notified Henry that she believes that he is the father of the child born out of wedlock. On the child's 15th birthday Madeline sues Henry for support. Can Madeline collect 15 years worth of arrearages? *See* SDCL 25-8-5. *Compare* *Linard v. Hershey*, 489 N.W.2d 599 (S.D. 1992).

5. Is it possible for a biological father who is not married to the child's mother to be benefitted or protected by the "presumption of legitimacy" if the mother is married to another man. Consider the following recent case: When child was 11 years old, mother sought to collect child support from alleged biological father, Do Rego. Child was born some 5 months after mother's marriage to husband and mother has remained married to this husband. Child was given husband's last name and treated as his child, a child of the marriage. Paternity tests established 99.99% probability that biological father was indeed Do Rego, not the mother's husband. The trial court held that the 60 day statute of limitations found in SDCL 25-8-59 applied to the "presumption of legitimacy" – and that this presumption was created on the date child was born. This was affirmed by the South Dakota Supreme Court in *In Re Support Obligation of Do Rego*, 2001 SD 1, 620 N.W.2d 770. It should be noted that the precise wording of SDCL 25-8-59 states that the 60 day provision applies to contests relating to the "creation of the presumption of paternity"-- not the "presumption of legitimacy." Seemingly, SDCL 25-8-59 was meant to apply to those presumptions created by the paternity affidavit of SDCL 25-8-50 through 52 and the genetic testing of SDCL 25-8-58. Nevertheless, SDCL 25-8-59 indeed references Section "SDCL 25-8-50 to 25-8-58, inclusive" and this includes the "presumption of legitimacy due to marriage" found in SDCL 25-8-57. Accordingly, since this presumption was created on the date of the child's birth, April 10, 1988, the presumption could only be contested within 60 days of that date.

6. Query: Will the *Do Rego* holding (described in the preceding note) be applied to parties who are divorcing more than 60 days after the birth of a child? What if a child is fathered by someone not the husband, but yet born while the parties are still living together as husband and wife? Must the husband of the marriage bring suit within 60 days of the birth of any child born during the marriage if he wishes to challenge the true paternity of the child? *i.e.*, Can a husband in a divorce case deny paternity for any child more than 60 days old? The *Do Rego* holding suggests the following answers: The holding suggests that parties who are divorcing more than 60 days after the birth of a child will not be permitted to contest paternity. Apparently the husband of a marriage must bring suit within 60 days of the birth of any child born of the marriage if he wishes to challenge true paternity. A husband in a divorce case is seemingly prohibited from denying his paternity of any child more than 60 days old.

These answers represent a major change in the previous practice which permitted parties in a pending divorce to examine the issue of true paternity in the divorce proceeding itself, without regard to the 60 day limitations provision.

**Sixty (60) Day Statute of Limitations Held Unconstitutional
(but the opinion is “suspended” upon rehearing)**

The statutory limitation of sixty (60) days, found in SDCL 25-8-59, for contesting rebuttable presumptions of paternity was held to be unconstitutional in *DSS ex rel. Wright v. Byer*, 2004 SD 41, 678 N.W.2d 586. Husband and wife were divorced in 1999 at which time wife was pregnant with her third child. The divorce decree incorporated the parties’ stipulation which stated, “considering the plaintiff is currently pregnant, the parties agree that a paternity test will be performed after the child is born. If [husband] is determined [to be] the biological father of the child, the visitation schedule for the minor child will be the same schedule as for the other children...” Neither wife nor husband brought a paternity action within 60 days of the birth of child. DSS brought a paternity action almost three years later against Bret Byer, a man with whom wife resided when she moved out of the marital home. Relying on SDCL 25-8-59 and also the previous South Dakota Supreme Court decision in *In re Support Obligation of Do Rego*, 2001 SD 1, 620 N.W.2d 770, the trial court dismissed the paternity action against Byer because it had not been brought within 60 days of the birth of the child. [According to the *Do Rego* decision, the statutory requirement of SDCL 25-8-59 (that actions to contest a rebuttable presumption paternity be brought within 60 days) applies to presumptions of legitimacy which are created when a child is born during a marriage or within 10 months after the dissolution of a marriage.]

As a result of the trial court’s dismissal, neither the husband from the marriage nor the child’s biological father could be required to support the child. “Now the child faces the prospect of having no father to support her.” ¶ 7. In a 3-2 decision, the South Dakota Supreme Court held SDCL 25-8-59 to be unconstitutional “because it improperly discriminates between children with presumed fathers and children without presumed fathers.” ¶ 1.

With the 60 day limitation removed, that leaves a situation where there are conflicting presumptions – the husband will be presumed to be the father by virtue of the presumption of legitimacy and Byer will likely be presumed to be the father by virtue of genetic testing. “Because [the child] can have only one legal father, we believe that the best way to resolve the competing presumptions afforded to [husband] and Byer is to consider the best interests of the child.” ¶ 22. The Court further stated, “Between two men not wishing to pay support, someone needs to look out for the interests of the child. To accomplish this, courts must balance conflicting presumptions in an effort to protect the child. Otherwise, [the child] may have no father to support her, not her putative father and not her presumed father. We reverse the summary judgment and remand to the circuit court to consider the best interests of the child. At the close of the case, at least one of the two, the presumed father or the putative father, should be required to support the child.” ¶¶ 24 & 25.

Justice Zinter dissented, with Chief Justice Gilbertson concurring. The dissent points out that a constitutional challenge had not been raised by any party at any stage of the proceeding and that the Attorney General has not received any notice of a possible constitutional challenge to SDCL 25-8-59. The dissent also expresses displeasure at the Court’s pronouncement of the “best interest of the child” test as a basis for resolving conflicting paternity presumptions. [“Today this Court, on its own motion, declares that a statute of limitations violates equal protections guarantees. This Court also adopts a new test in this jurisdiction for resolving conflicts in paternity presumptions.” (¶ 33, also the 1st ¶ in dissent) “Therefore, while I do not disagree with the reasoning and result of the Court, I would not, considering the facts and posture of this case, raise and analyze these issues *sua sponte*. I would certainly not attempt to choose the best method of analyzing conflicting paternity presumptions without the opportunity to consider the alternatives.” ¶ 38.]

Author's Note: Following is a critique written by the author shortly after the decision in the *Byer* case was handed down:

-----Original Message-----

From: Baron, Roger

Sent: Friday, April 09, 2004 2:02 PM

To: USDLAW

Subject: DSS ex rel. Wright v. Byer, 2004 SD 41

This decision holds the 60 day provision of SDCL 25-8-59 is unconstitutional. It is held to be in violation of "the equal protection guarantees of the South Dakota and United States Constitution." ¶ 1. The impact of this decision may be significant. With the 60 day limitation provision removed, it appears that all paternity presumptions presently being created are not restricted by a limitation clause. This would include those presumptions created by genetic testing and by affidavit. Perhaps even all paternity presumptions created in the past are also now subject to challenge.

It is interesting to note that the Court did not hold that the statute was unconstitutional "as applied" in this case, but rather the opinion simply states "We need go no further than to state that the sixty-day limitation period in SDCL 25-8-59 is unconstitutional." ¶ 15. [The technique of declaring a statute unconstitutional "as applied in this case" was utilized by the U.S. Supreme Court in its recent decision involving grandparent visitation rights -- see *Troxel v. Granville*, 530 U.S. 57 (2000).]

The trial court's dismissal of the paternity action in the *Byer* case was supported by the Supreme Court's previous opinion in *Do Rego*, 2001 SD 1, 620 N.W.2d 770. [Despite the specific reference to "presumption of paternity" in SDCL 25-8-59 in connection with the 60 day limitation, the *Do Rego* opinion held that the 60 day limitation provision also applies to the presumption of legitimacy. There is a difference between the "presumption of legitimacy" which involves a marriage and the "presumption of paternity" which is created by genetic tests or by affidavit. Nevertheless the *Do Rego* opinion held that the presumption of legitimacy was encompassed in the words "presumption of paternity" referenced in the statute.]

There is no doubt that the *Do Rego* opinion has been problematic. The holding in *Do Rego* would suggest that paternity could never be contested in a divorce case for any child who was older than 60 days old at the time the divorce action was filed. It is doubtful that such was intended by the legislature when it enacted SDCL 25-8-57. It is far more likely that the legislature had simply intended for the 60 day limitation provision to apply to those "presumptions of paternity" created by genetic testing or by affidavit.

It is interesting to note that the Court in the *Byer* case did not address the matter of "standing" for the alleged putative father in his effort to assert the 60 day limitation provision. If the alleged putative father had wished to challenge the "presumption of legitimacy" in order to have himself declared to be the child's father, such would be barred by the last sentence SDCL 25-8-57 because only spouses (and their descendants) have standing to do so. In matters dealing with marriage and the presumption of legitimacy as to children born of the marriage, historically only spouses (and their descendants) have been granted standing. In this case, the alleged putative father was

permitted by the trial court, apparently without addressing the matter of standing, to have the advantage of the 60 day limitation that attaches to the presumption of legitimacy.

It is also interesting that, in the *Byer* case, the trial court had, in the divorce decree itself, addressed the issue of the wife's pending pregnancy. The decree called for paternity testing and made a conditional custody ruling contingent upon a determination of paternity. One might think that claims made in the divorce action, which was filed prior to the birth of the child, constituted an "action contesting a rebuttable presumption of paternity" as that phrase is utilized in SDCL 25-8-59. [Compare *Luedtke v. Koopsma*, 303 N.W.2d 112 (SD 1982) which holds that a divorce decree is res judicata on the issue of paternity.]

The 2005 South Dakota legislature will no doubt address the *Byer* decision. One possible and relatively simple solution would be for the legislature to simply make clear that the 60 day limitation applies only to the "presumption of paternity" as created by genetic testing or by affidavit and that it does not apply to the presumption of legitimacy. In the mean time, we may see some interesting cases challenging established presumptions of paternity.

NOTE: A motion for rehearing in the *Byer* case was granted by the South Dakota Supreme Court and on March 16, 2005, the South Dakota Supreme Court, suspended the question of whether or not SDCL 25-8-59 is constitutional and remanded the *Byer* case for additional factual determinations in regard to the presumed father and the putative father. The opinion upon rehearing is found at *DSS ex rel. Wright v. Byer*, 2005 SD 37, 694 N.W.2d 705. Two justices dissented, observing that DSS is not authorized to proceed any further against the putative father under SDCL 25-8-59 and under the *Do Rego* opinion. The dissent states, "unless this Court overrules *Do Rego*, we have no authority to decline to follow the statute of limitations in SDCL 25-8-59." *Id.* at ¶ 16.

Decisions post-Byer

Visitation rights to non-parent affirmed on the basis of "extraordinary circumstances." SDCL 25-8-59 considered to be constitutional. In *Clough v. Nez*, 2008 SD 125, 759 N.W.2d 297, the trial court awarded visitation rights to a non-parent on the basis of "extraordinary circumstances." The award was to a man who 1) was originally believed to be the natural father of the child, 2) who, together with the mother, executed a sworn acknowledgment of paternity, 3) whose name was put on the child's birth certificate and 4) who served as child's primary caretaker for an extended period of time, commencing immediately after birth and for at least 4 years thereafter. The SD Supreme Court affirmed in a unanimous decision with the Court's opinion being authored by Justice Zinter.

NOTE: The joint execution of a notarized affidavit of paternity creates a rebuttable presumption of paternity by virtue of SDCL 25-8-52. Actions to contest such a rebuttable presumption are limited by SDCL 25-8-59 to those filed within 60 days of the creation of the presumption (3 years where there are allegations of fraud, duress or material mistake of fact). In this case mother was permitted by the trial court to bring a challenge to paternity after the limitation period of SDCL 25-8-29 with the trial court relying upon the SD Supreme Court's ruling in *DSS ex rel. Wright v. Byer*, 2004 SD 41, 678 N.W.2d 586 (holding SDCL 25-8-59 unconstitutional). But, subsequent to its initial ruling in *Byer*, the SD Supreme Court took up a motion for rehearing and declared that its initial decision was to be held in "abeyance" pending further action in the trial court. The dispute in *Byer* never returned to the SD Supreme Court. Accordingly the statute is to be currently considered constitutional. The SD Supreme Court addressed the question of the validity of SDCL 25-8-59 in footnote 4 of *Clough v. Nez* stating, "Because the *Byer II*

dispute never returned to the Court, this Court's suspension of its unconstitutionality declaration is our last ruling on this issue."

Husband not permitted to challenge paternity in divorce proceeding for child born during the marriage in *Chapman v. Chapman*, 2006 SD 36. Child was born on June 2, 2000, some three months after husband and wife separated and about 15 months after parties were married. Mother deliberately left the name of the father blank on birth certificate and listed the last name of her former spouse as child's last name. A child support enforcement proceeding was brought against husband in the fall of 2001 and a child support order and judgment was entered against him on December 12, 2001. Husband did not contest paternity of child until he filed for divorce on March 3, 2004 – 3 years and 9 months after the child was born. Under the appropriate statutes, SDCL 25-8-59, and SDCL 25-8-57 (child born in wedlock), husband was required to contest paternity within 60 days after the birth of the child or within 3 years after the birth of the child in the event of allegation of fraud, duress or material mistake of fact.

Husband requested paternity testing but the trial court denied his request because husband did not contest paternity at the time the child support enforcement action was brought against him. The South Dakota Supreme Court affirmed in *Chapman v. Chapman*, 2006 SD 36, 713 N.W.2d 572, holding as follows:

1) Under SDCL 25-8-59, husband was required to contest the rebuttable presumption of paternity created under SDCL 25-8-57 (child born in wedlock) within 60 days of the birth of the child. The fact that the wife left the name of the father off the birth certificate and that such could be "viewed as an allegation of fraud, duress or material mistake of fact" might create a situation which "would have extended the time for contesting paternity to three years from the date of creation." ¶ 19. Nonetheless, husband's divorce action was filed 9 months beyond the child's 3rd birthday and was untimely even under the 3 year provision as applied to the child's date of birth. .

2) Husband's argument that the date of the "creation" of the presumption of legitimacy did not occur until December 12, 2001 (when the child support order and judgment was entered) is clearly contrary to the direct language of SDCL 25-8-59 which specifically states that the paternity action "shall be commenced in circuit court either sixty days after the creation of the presumption of paternity or the date of any administrative or judicial proceeding..., *whichever occurs earlier..*" (emphasis added). [Apparently, husband's only hope of securing compliance with the time requirement of SDCL 25-8-59 was to have the 3 year extension for fraud, etc., run from the date of the child support order and judgment of 12/12/01.]

3) Wife's failure to plead "statute of limitations" as an affirmative defense at the trial level was excused because of the South Dakota Supreme Court's (then-authoritative) decision in *Byer I*, 2004 SD 41, which held that SDCL 25-8-59 was unconstitutional – a holding which the Court subsequently suspended or stayed in *Byer II*, 2005 SD 37. ¶ 23 and accompanying footnote 2.

4) Husband also lost to the notion that the issue of paternity was "res judicata" as a result of the child support order and judgment, notwithstanding the fact the issue of paternity was not raised by the Office of Child Support Enforcement and that all he received (in connection with the issue of paternity) was a letter to the effect that he would have "to commence an action in Circuit Court" if he wished to contest paternity. ¶ 4, ¶¶ 24-27.

Tor's Case **(*Tovslund v. Reub*, 2004 SD 93, 686 N.W.2d 392)**

Tor Tovslund fathered a child born to Tara Reub. Tor's home was in Norway, but he moved to Rapid City. The child was born in early 1994 while Tara was living with another man (Randy) who she

presumed was the father. Tara and Tor's relationship ended in November, 1993. This child was born premature and medical expenses of \$615,000 were incurred.

Tor was eventually pursued by Office of Child Support Enforcement and a paternity test in June, 2002, showed his paternity to be 99.99% probability. The paternity test on Randy ruled him out as a possible father.

Tor was pursued, in 2002, for child support and his share of medical expenses.

This case involves many issues. The South Dakota Supreme Court's rulings are basically against Tor in all substantial respects. The following principles are to be found in the opinion:

A) The 6 years limitation under SDCL 25-8-5 applies only to child support, not to medical expenses which are authorized by SDCL 25-8-3.

B) Action for medical expenses is not controlled by SDCL 25-8-9 (until 18th birthday)

C) Action for medical expenses is controlled by the general six (6) year statute of limitations found in SDCL 15-2-13

D) In this case, Tor is not protected by SDCL 15-2-13 because he was out of state (back in Norway) for 3 years and the s/l was tolled under SDCL 15-2-20 (for defendant out of state).

E) Tor is not helped by "laches" or "estoppel" because those are disfavored defenses (reversing the trial court).

F) several other issues are addressed in this opinion including: 1) "de novo" review by trial judge over referee's decision; 2) consideration of "other fathers" in calculation of child support; 3) alleged "barratry" claim by mother against Tor.

The 1997 South Dakota Legislature increased the already extensive powers given to the Department of Social Services (DSS) in child support matters. The 1997 changes include:

a.) creation of a "central registry" and authorization of a "big brother" type of computer networking system among the state courts, DSS, and the federal government; and

b.) elimination of the right to jury trial in paternity cases; and

c.) reporting requirements now imposed on all employers to report new employees to a state directory within 20 days of their hire; and

d.) withholding orders go into effect immediately now, subject to an "after the fact" hearing on the existence of the order, the amount of arrearage, and the identity of the obligor; and

e.) "community service" authorized for persons not paying child support; and

f.) In addition to the revocation or suspension of professional and drivers licenses, DSS may now restrict the use of "recreation" licenses, such as hunting and fishing licenses; and

g.) the time within which to contest the rebuttable presumption of paternity [which is created by genetic testing or affidavit] has been reduced from 3 years to 60 days; and

h.) numerous other changes.

Obtaining a Refund

In *Kohl v. Amundson*, 2001 SD 4, 620 N.W.2d 606, a default judgment of paternity was entered against Kohl requiring him to pay \$368 per month for child born to Amundson. A total of \$4,362.60 was withheld from Kohl's wages. Upon subsequent motion and DNA blood testing, the judgment of paternity was vacated. Kohl then brought this action for a money judgment against the mother for the child support withheld from his wages. The trial court awarded Kohl a money judgment for \$4,432.60 and the South Dakota Supreme Court affirmed. Mother unsuccessfully argued that Kohl's remedy should lie against the biological father (who had not been determined). Kohl's remedy against the mother is recognized by South Dakota statutes which give him a remedy against both parents [SDCL 25-7-6.1 creates mother's obligation of support and SDCL 25-7-10 gives a third person who provides necessities a cause of action against a parent]. In addition to the statutory remedy, the South Dakota Supreme Court specifically found that Kohl's remedy is also recognized under principles of equity relating to unjust enrichment. (Paragraph No. 10, 620 N.W.2d at 607).

E. Voluntary Proceedings

IN THE MATTER OF F.J.F. AND F.M.F.

Supreme Court of South Dakota, 1981.
312 N.W.2d 718.

FOSHEIM, Justice.

This case began as a dependency and neglect proceeding. Following the adjudication hearing an order was entered declaring F.J.F. and F.M.F., nonidentical twins, dependent and neglected children. Six days later, on February 5, 1980, a dispositional hearing was held. The court ordered termination of the parental rights of the mother and F.R., the alleged father. The order noted that F.R. appeared personally, denied paternity, and consented to the termination of any parental rights in the twins which he may have had. The court thereupon granted the Department of Social Services permanent custody of the twins for purposes of adoption.

On May 29, 1980 Mr. Henkel petitioned the court to reopen the dependency and neglect proceedings for the purpose of determining his claimed paternity of, and custody rights to, the twins. Mr. Henkel alleged he was not given notice of the dependency and neglect proceedings. The trial court granted his petition and on June 25, 1980 heard his testimony and accepted evidence, introduced by the State, of the cost incurred by the State of South Dakota for the care and medical expenses of the twins. The trial court then ordered that the mother, the children and Mr. Henkel submit to blood tests for the purpose of determining paternity. The State and Mr. Henkel stipulated that if such blood tests showed a

paternity index of 95 percent or greater, in support of Mr. Henkel's claim, his paternity would be established.

* * *

On March 6, 1981, the trial court held the final paternity hearing to determine whether Mr. Henkel was the twins' father. Subsequent to this hearing the trial court entered findings of fact which stated, in part, that the parental rights of the mother were terminated by the court; that the mother named one F.R., her live-in companion, as the twins' father; that F.R. denied paternity, and that any parental rights to the twins which he may have had were terminated; that Mr. Henkel and the mother of the twins had sexual intercourse on December 10 and 11, 1978, and that the twins were born nine months later; that the blood tests showed a 97.27 percent likelihood that Mr. Henkel was the father of the male twin and a 0 percent possibility that he was the father of the female twin; and that although it is rare for twins to have separate fathers, it is possible. The trial court determined that Mr. Henkel is the father of the male twin but not the female twin and ordered the Department of Social Services to retain custody of the twins until the matter was decided on appeal or the time for appeal had elapsed. The State thereupon appealed from the trial court's judgment. We affirm.

We first address the issue of whether the trial court had jurisdiction to reopen the proceedings to determine paternity. The State contends that the jurisdiction of the trial court to hear dependency and neglect actions is governed by SDCL ch. 26-8 and, since these proceedings were instituted pursuant to that chapter, SDCL 26-8-63 expresses the controlling procedure. The State argues that no "new evidence has been discovered which was not known and could not with due diligence have been made available at the original hearing and which might affect the decree," as SDCL 26-8-63 requires.

The State maintains that Mr. Henkel had actual or constructive notice of the adjudication hearing and that his evidence of sexual intercourse with the mother was then known to him and should have been presented at that time. Although the notice testimony is conflicting as to the adjudication hearing, the record clearly indicates that Mr. Henkel had actual knowledge of the disposition hearing and that he believed he was the father. Mr. Henkel's stated reason for not then asserting paternity was that he did not want to disturb the possibility of the mother's family obtaining custody of the twins, if they so desired.

The claim upon which Mr. Henkel petitioned could not be termed "new evidence" until the trial court had an opportunity to judge whether Mr. Henkel's suspicions that he was the father were more than that. When Mr. Henkel appeared on the scene, no one, including Mr. Henkel, knew for certain who was the father of the twins. The mother did not claim he was the father and F.R., the alleged father, denied paternity. When parentage had been scientifically tested, however, new and material evidence clearly was available which might affect the original decree and the trial court could revise its disposition accordingly.

We believe, however, that an additional, fundamental question of law was activated by the facts. It relates to whether Mr. Henkel could be denied the opportunity to be heard on his claim of paternity. We believe the Due Process Clause of the Fourteenth Amendment to the United States Constitution required the trial court to hear Mr. Henkel's paternity claim and transcended any statute that might otherwise preclude such a hearing. Mr. Henkel had a right to an opportunity to establish his liberty interest as a parent. This interest is guaranteed by the Fourteenth Amendment and protected by the Due Process Clause.

* * *

We conclude from the peculiar circumstances of this case that the trial court did not err in ordering a new hearing pursuant to SDCL 26-8-63 and that the constitutional principles expounded in *Mayer, Stanley and Quilloin* logically mandated the trial court, by virtue of the Due Process Clause, to grant Mr. Henkel a hearing on his paternity claim. Lest our holding be read too broadly, however, we recognize that circumstances may very well exist whereby a right to a paternity hearing must be deemed waived and yield to other considerations.

The State also claims the trial court erred when it refused to allow it to introduce evidence concerning Mr. Henkel's parental fitness. The trial court properly excluded that evidence. The sole issue before the court at this hearing was his paternity. *Cf. Matter of Adoption of Zimmer*, 299 N.W.2d 574 (S.D.1980) (trial court cannot consider adoption prior to determining whether the natural parent abandoned his children).

The State next complains that Mr. Henkel must prove his paternity by clear and convincing evidence and that he failed to do so. The State cites *Smith v. Smith*, 71 S.D. 305, 24 N.W.2d 8 (1946), as authority for the clear and convincing burden. In *Smith* the appellant attempted to prove he was not the father of a child born of his former wife. The child was born eight months after the appellant and his former wife were divorced. There is a presumption of legitimacy which operates under such circumstances, and the *Smith* court correctly held such presumption could only be overcome by the greater burden of clear and convincing evidence. Here there is no presumption to overcome. In a civil paternity proceeding the quantum of required proof is a preponderance of the evidence. *Cudmore v. Cudmore*, 311 N.W.2d 47 (S.D.1981). *Vander Werf v. Anderson*, 86 S.D. 321, 195 N.W.2d 145 (1972). Although *Vander Werf* was an action brought by the mother of the child against the alleged father, we see no reason to impose a different burden of proof upon Mr. Henkel.

Additionally, the State's argument ignores the fact that it proposed to Mr. Henkel the stipulation stating that his paternity would be established if the blood tests indicated a paternity index of 95 percent or greater in his favor. Mr. Henkel agreed to this proffered stipulation and, based thereon, his paternity of the male twin would be established.

Upon a review of the evidence, we conclude that the trial court's finding of paternity was not clearly erroneous.

* * *

All the Justices concur.

NOTES

1. Pursuant to SDCL 25-8-50 through 25-8-52, which was enacted in 1994, a father and mother may now voluntarily execute an "affidavit of paternity" which creates a "rebuttable presumption of paternity." This "rebuttable presumption" authorizes DSS to proceed to establish a support obligation without bringing separate paternity action.

2. Any other admission of paternity by an alleged father, other than an "affidavit of paternity" discussed in the preceding paragraph serves as prima facie evidence of paternity under SDCL 25-8-49, a

much older statute which has been rendered somewhat out-of-date by virtue of the more streamlined procedures now available for DSS. SDCL 25-8-49 provides as follows:

25-8-49. Admission of paternity as prima facie evidence. An admission by an alleged father of paternity of a child born out of wedlock, other than completion of an affidavit of paternity which creates a presumption of paternity as specified within this chapter, is prima facie evidence of paternity.

3. As discussed in the preceding note, an admission of paternity is prima facie evidence of paternity and is highly useful in an action against an alleged father. One might consider the usefulness of such an admission in a setting where paternity is contested by a party other than the claimed father. In *Luke for Luke v. Bowen*, 666 F.Supp 1340 (S.D. 1987), social security benefits were denied the child allegedly fathered by the deceased. Although the deceased had acknowledged the child as his son in a notarized statement before his death, the court held that under either state law or federal law, a biological relationship was necessary and that such was not proven. The case was a difficult one because the mother testified that during the time she lived with the deceased (July, 1980 through May, 1984) she did not have sexual relations with anyone else. The child was born 13 months after they began living together. The court based its decision on the deceased's previous vasectomy, the effectiveness of which was disputed. On appeal, the trial court was affirmed in a 2-1 decision. 868 F.2d 974 (1989).

4. Another form of voluntary legitimation may be obtained through the operation of SDCL 25-6-1 which is reproduced earlier in this book. An example of how SDCL 25-6-1 may be applied can be found in *Application of G.K.*, 248 N.W.2d 380 (S.D. 1977). The holding in *G.K.* on the issue of "receiving it as such into his family" is quite significant and quite liberal. The *G.K.* case is found in this book in the chapter on Custody.

In connection with the next three notes, consider the following South Dakota statute:

25-6-1.1 Father of illegitimate child not entitled to notice unless acknowledged.

Notwithstanding any other provision of law or court rule the father of an illegitimate child shall, as a requirement of due process, have no rights to the service of process in adoption, dependency, delinquency, or termination of parental rights proceedings unless he is known and identified by the mother or unless he, prior to the entry of a final order, in any of the three proceedings, shall have acknowledged the child as his own by affirmatively asserting paternity, within sixty days after the birth of the child,

- (1) As outlined in § 25-6-1, or
- (2) By causing his name to be affixed to the birth certificate as provided by § 34-25-13.2, or
- (3) Otherwise by commencing a judicial proceeding claiming a parental right.

5. The student should take notice of the fact that in the *F.J.F.* case that Mr. Henkel was permitted to wait some 8-9 months after the birth of the twins to "come forward" to assert his claim for paternity. It is doubtful that such would be permitted today, in light of the *Baby Boy K* case which is discussed in the next note.

6. In settings involving the adoption of infants, it is desirable by most involved that the proceeding be finalized as quickly as possible. Unwed mothers frequently control the events. What about the father? The important inquiry becomes how much time does the state have to allow for “the father to step forward?” *i.e.*, What is the minimum amount of time the state is required to afford the father the opportunity to step forward? This question has not been directly answered by the U.S. Supreme Court. Through the enactment of SDCL 25-6-1.1, the South Dakota legislature has said that a father loses his rights if he does not acknowledge the child as his within 60 days of birth. The constitutionality of this statute was upheld in case of *Matter of Baby Boy K*, 546 N.W. 2d 86 (S.D. 1996). The court refused to recognize any sort of exception for situations where the mother, through misrepresentations, deceives a father and keeps the fact of pregnancy from him. The court stated, “When a putative father is ignorant of his parenthood due to his own fleeting relationship with the mother and her unwillingness to later notify him of her pregnancy, the child should not be made to suffer.”

7. It is interesting to contrast the very brief amount of time that a father has to acknowledge paternity when opposing forces wish to eliminate him from the picture together with the statute of limitations which exists in those situations when opposing forces wish to collect child support from him. See SDCL 25-8-9 which is reproduced in Part C of this chapter.

Surname of Child Born by a Putative Father

In *Blase v. Brewer*, 2005 SD 7, 692 N.W.2d 785, a paternity action blossomed into a dispute over custody/visitation rights, as well as a dispute over the surname for the child. The mother's surname, “Brewer,” was put on the child's birth certificate. Father sought to change the child's surname to his surname, “Blase,” or to a hyphenated last name that included both the mother's and father's name. The trial court entertained a hearing on the issues and entered its order about 14 months after the child was born, ruling that the child's surname should remain the mother's name “Brewer.” The South Dakota Supreme Court affirmed that trial court's ruling on custody/visitation rights, but remanded the issue of the child's surname to the trial court. Although all five justices voted to affirm the custody/visitation rights determination, only three Justices voted to remand the surname issue. The three-justice majority (Justice Konenkamp authoring the majority opinion with Justices Zinter and Meierhenry concurring on the surname issue) addressed the disadvantage which exists for putative fathers at ¶14 as follows:

“[The trial court's] decision places improper emphasis on the mother's unilateral act of naming the child at birth. The finding [supporting the trial court's decision] is couched in terms that seem to be in accord with the length of time a surname has been used. However, Blase has contested the child's surname for virtually that entire time. Thus, by considering the length of time the surname had been used, the trial court was, in effect, giving Brewer the very advantage that this Court has determined to be improper. Thus, the ultimate question should not be whether ‘there appears to be no good cause for changing the child's surname,’ but whether the child's best interests favor such a change. Brewer argues that Blase's failure to list his name on the birth certificate at the child's birth amounted to an acquiescence of the surname Brewer. We do not believe it would be fair to use this rationale. A putative father is at a disadvantage when he wishes to obtain a paternity test before accepting the duties and privileges of fatherhood. If he admits paternity before testing and the tests later prove he is not the father, he loses the opportunity to challenge paternity, which the law allows him. Thus we conclude the trial court erred in not considering the proper factors [set forth in the case of *Block v. Bartelt*, 1998 SD 65, ¶11, 580 N.W.2d 152,154].”

**Reversible error to change child's surname to reflect biological
father's surname where child is part of "family unit"**

In the Matter of the Change of Name of L.M.G., 2007 SD 83, 738 N.W.2d 71. Mother, while married to Husband, had an affair with Father of Child. Father did not know Mother was married. They had a "relationship for approximately 7 months with Mother staying at Father's house 3 or 4 nights per week." Mother reconciled with Husband. Child was born and Mother put surname of herself and Husband on birth certificate. Paternity testing revealed Father was indeed father and he was awarded visitation rights. Father sought name change and mother opposed. Trial court found it was in best interests of child to change her surname to that of biological Father. Trial court also awarded Father joint legal custody. Mother appealed to SD Supreme Court which reversed in 3-2 decision. Justice Sabers (on reassignment) is the author of the majority opinion which holds that the trial court abused its discretion in making the name change to that of Father. The majority opinion emphasizes, *inter alia*, the "family unit" which consists of Mother, Husband and younger sister born to Mother and Husband, have all had the same surname and that Child would have to explain why her name is different in future circumstances such as going to school. The majority opinion is critical of the trial court's emphasis on the "supposed instability of Mother and Husband's marital relationship." The majority opinion indicates that the trial court failed to give adequate consideration to the future potential embarrassment, difficulties and harassment which the change would cause to Child. Justice Meierhenry dissents and Justice Zinter concurs in her dissent. Justice Meierhenry reviews the evidence and believes that the trial judge's decision was "reasonable and justified." Justice Meierhenry points out that the "Cleaver" family is "less and less common" in modern society, that the Husband did not even testify, and that the evidence did indicate a possible separation between Mother and Husband in the future. Justice Zinter files an additional opinion in which he, in addition to agreeing with Justice Meierhenry's opinion, states that the majority opinion does not follow the "multifactor approach" which has previously been approved by the SD Supreme Court.

“The fir tree has no choice about starting its life in the crack of a rock.... What [nourishment] it finds is often meager, and above the ground appears a twisted trunk, grown in irregular spurts, marred by dead and broken branches, and bent far to one side by the battering winds. Yet at the top ... some twigs hold their green needles year after year, giving proof that -- misshapen, imperfect, scarred -- the tree lives.”

Harriet Arrow

Chapter Four

CONSTITUTIONAL CONSIDERATIONS

A. The Right to Marry and Equal Protection

LOVING v. COMMONWEALTH OF VIRGINIA

Supreme Court of the United States, 1967.
388 U.S. 1. 87 S.Ct. 1817.

Mr. Chief Justice WARREN delivered the opinion of the Court.

This case presents a constitutional question never addressed by this Court: whether a statutory scheme adopted by the State of Virginia to prevent marriages between persons solely on the basis of racial classifications violates the Equal Protection and Due Process Clauses of the Fourteenth Amendment.¹ For reasons which seem to us to reflect the central meaning of those constitutional commands, we conclude that these statutes cannot stand consistently with the Fourteenth Amendment.

In June 1958, two residents of Virginia, Mildred Jeter, a Negro woman, and Richard Loving, a white man, were married in the District of Columbia pursuant to its laws. Shortly after their marriage, the Lovings returned to Virginia and established their marital abode in Caroline County. At the October Term, 1958, of the Circuit Court of Caroline County, a grand jury issued an indictment charging the Lovings with violating Virginia's ban on interracial marriages. On January 6, 1959, the Lovings pleaded guilty to the charge and were sentenced to one year in jail; however, the trial judge suspended the sentence for a period of 25 years on the condition that the Lovings leave the State and not return to Virginia together for 25 years. He stated in an opinion that:

“Almighty God created the races white, black, yellow, malay and red, and he placed them on separate continents. And but for the interference with his arrangement there would be no cause for such marriages. The fact that he separated the races shows that he did not intend for the races to mix.”

¹ Section 1 of the Fourteenth Amendment provides:

“All persons born or naturalized in the United States and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.”

After their convictions, the Lovings took up residence in the District of Columbia. On November 6, 1963, they filed a motion in the state trial court to vacate the judgment and set aside the sentence on the grounds that the statutes which they had violated were repugnant to the Fourteenth Amendment. The motion not having been decided by October 28, 1964, the Lovings instituted a class action in the United States District Court for the Eastern District of Virginia requesting that a three judge court be convened to declare the Virginia antimiscegenation statutes unconstitutional

* * *

There can be no question but that Virginia's miscegenation statutes rest solely upon distinctions drawn according to race. The statutes proscribe generally accepted conduct if engaged in by members of different races. Over the years, this Court has consistently repudiated "(d)istinctions between citizens solely because of their ancestry" as being "odious to a free people whose institutions are founded upon the doctrine of equality." *Hirabayashi v. United States*, 320 U.S. 81, 100, 63 S.Ct. 1375, 1385, 87 L.Ed. 1774 (1943). At the very least, the Equal Protection Clause demands that racial classifications, especially suspect in criminal statutes, be subjected to the "most rigid scrutiny," *Korematsu v. United States*, 323 U.S. 214, 216, 65 S.Ct. 193, 194, 89 L.Ed. 194 (1944), and, if they are ever to be upheld, they must be shown to be necessary to the accomplishment of some permissible state objective, independent of the racial discrimination which it was the object of the Fourteenth Amendment to eliminate. Indeed, two members of this Court have already stated that they "cannot conceive of a valid legislative purpose * * * which makes the color of a person's skin the test of whether his conduct is a criminal offense." *McLaughlin v. Florida*, *supra*, 379 U.S. at 198, 85 S.Ct. at 292, (Stewart, J., joined by Douglas, J., concurring).

There is patently no legitimate overriding purpose independent of invidious racial discrimination which justifies this classification. The fact that Virginia prohibits only interracial marriages involving white persons demonstrates that the racial classifications must stand on their own justification, as measures designed to maintain White Supremacy. We have consistently denied the constitutionality of measures which restrict the rights of citizens on account of race. There can be no doubt that restricting the freedom to marry solely because of racial classifications violates the central meaning of the Equal Protection Clause.

These statutes also deprive the Lovings of liberty without due process of law in violation of the Due Process Clause of the Fourteenth Amendment. The freedom to marry has long been recognized as one of the vital personal rights essential to the orderly pursuit of happiness by free men.

Marriage is one of the "basic civil rights of man" fundamental to our very existence and survival. *Skinner v. State of Oklahoma*, 316 U.S. 535, 541, 62 S.Ct. 1110, 1113, 86 L.Ed. 1655 (1942). *See also Maynard v. Hill*, 125 U.S. 190, 8 S.Ct. 723, 31 L.Ed. 654 (1888). To deny this fundamental freedom on so unsupportable a basis as the racial classifications embodied in these statutes, classifications so directly subversive of the principle of equality at the heart of the Fourteenth Amendment, is surely to deprive all the State's citizens of liberty without due process of law. The Fourteenth Amendment requires that the freedom of choice to marry not be restricted by invidious racial discriminations. Under our Constitution, the freedom to marry or not marry, a person of another race resides with the individual and cannot be infringed by the State.

These convictions must be reversed. It is so ordered.

Reversed.

Mr. Justice STEWART, concurring.

I have previously expressed the belief that “it is simply not possible for a state law to be valid under our Constitution which makes the criminality of an act depend upon the race of the actor.” *McLaughlin v. State of Florida*, 379 U.S. 184, 198, 85 S.Ct. 283, 292, 13 L.Ed.2d 222 (concurring opinion). Because I adhere to that belief, I concur in the judgment of the Court.

NOTES AND QUESTIONS

Generally speaking, the state has the right to impose reasonable regulations on the institution of marriage. In considering the following scenarios, try to determine whether the state is acting reasonably or whether the state has gone too far and infringed a constitutionally protected right of the individual:

1. May a state deny a marriage license to a man who has not financially supported his previous children? *See Zablocki v. Redhail*, 434 U.S. 374 (1978).

2. May a state prohibit the marriage of minors? *See Moe v. Dinkins*, 533 F.Supp 625 (S.D.N.Y. 1981).

3. May a state prohibit marriage between persons of the same sex? *See Baker v. Nelson*, 291 Minn. 310, 191 N.W.2d 185, appeal dismissed 409 U.S. 810 (1972).

4. In *Reynolds v. U.S.*, 98 U.S. 145 (1878), a conviction for bigamy was affirmed notwithstanding the defendant's argument that polygamy was required in certain circumstances by his religious (Mormon) belief. In light of *Reynolds* then, may a state require prospective voters to swear an oath that they would not "teach, advise, counsel, or encourage any person to commit the crime of bigamy or polygamy" prior to allowing them to vote? *See Davis v. Beacon*. 133 U.S. 333 (1890).

5. In connection with the matter of bigamy/polygamy and the *Reynolds* and *Davis* cases in the preceding note, struggles continue today in Utah. It was estimated by the Utah Attorney General's office recently that some 25,000 practitioners of polygamy continue to exist in Utah alone. This was reported in a news article entitled "Polygamy Goes on Trial in Case of Child Abuse," *The Sioux City Journal*, April 21, 1999, page A14.

6. May a state prohibit the use of contraceptives by married couples? *See Griswold v. Connecticut*, 381 U.S. 479 (1965), holding "no" in a case which generated five different opinions by the Justices. The most number of concurrences in one opinion is a collection of three justices who focus on the Ninth Amendment. These opinions span more than 50 pages in the U.S. Reporter.

(Excerpts from)

A Mixed Marriage's 25th Anniversary of Legality

by David Margolick
New York *Times*, June 12, 1992, at B20

Mildred Jeter Loving is now a widow, the marriage that made her famous having ended in tragedy. But she remains the same intensely private woman she was a quarter-century ago, when her name entered the law books, and she is as reluctant to acknowledge her contribution to the civil rights movement as she once was to participate in it.

In the wee hours of one morning in July 1958, the quiet life that Mrs. Loving and her husband, Richard, enjoyed in this remote hamlet was shattered when three law officers opened the unlocked door of their home, walked into their bedroom and shined a flashlight on the couple. What they saw confirmed what they had been told: Mrs. Loving was black and Mr. Loving was white, making their marriage illegal in Virginia.

"What are you doing in bed with this lady?" Sheriff R. Garnett Brooks of Caroline County asked Mr. Loving, who was 24 years old at the time. Mr. Loving pointed to the wall where the couple had hung their marriage certificate, from the District of Columbia. "That's no good here," Sheriff Brooks replied. He charged the couple with unlawful cohabitation, carted them into nearby Bowling Green and threw them into the county jail...

The county circuit judge, Leon M. Bazile, sentenced the Lovings to a year in prison... But the judge offered the Lovings a deal: they could go free as long as they promised to steer clear of Virginia, at least as man and wife, for the next 25 years...

[F]or Mrs. Loving, whose husband was killed in an automobile accident in 1975, the blazing legal trails was an experience she would gladly have forgone. The ordeal -which included five days in jail and banishment to a place where she could no longer walk down a country lane to pick up her mail- is one she revisits only reluctantly.

"It was thrown in my lap," she said about the case. "What choice did I have?"

Mrs. Loving, fingering a crumpled paper napkin at her kitchen table, continued, "We weren't bothering anyone, and if we were hurting somebody's feelings, too bad." ...

The High Court's decision, which Mrs. Loving said she never read, allowed her, her husband and their three young children, who were considered illegitimate under the law, to live in Virginia in peace and to begin building the simple white cinderblock house in which Mrs. Loving still lives, a mile and a half from where the sheriff and his deputies rousted them...

But while laws can be changed by judicial fiat or by the stroke of a pen, attitudes cannot, particularly racial attitudes among some people in an area where storied names from the Confederate past -A.P. Hill and Stonewall Jackson, Spotsylvania Court House and Chancellorsville- pop up alongside Golden Arches and Texaco stars.

In the 34 years since the raid, Mr. Brooks and Mrs. Loving have not exchanged a single word. Mrs. Loving said she sees him occasionally, including once last week while he was cutting his grass, but steers clear of him. Mr. Brooks said he would not know Mrs. Loving if he saw her. But he made clear he had no qualms about his actions.

"I was acting according to the law at the time, and I still think it should be on the books," said Sheriff Brooks, sitting with his wife on the porch of his home in Bowling Green. "I don't think a white person should marry a black person. I'm from the old school. The Lord made sparrows and robins, not to mix with one another."

Mr. Brooks said he had rarely pondered the case in the last 35 years. "If they'd been outstanding people, I would have thought something about it," he said. "But with the caliber of those people, it didn't matter. They were both low-class."

Robert D. McIlwain 3d of Petersburg, Va., who as an assistant State Attorney General argued before the Supreme Court that Virginia's anti-miscegenation law served the same public health interests as laws barring polygamy, incest and marriages between retarded people, also said he has thought little about the case since it was handed down. "Nobody even remembers it," he said. "It's a footnote to history."

Even in Caroline County, an area known for relatively benign race relations and a high degree of racial commingling, Richard Loving and Mildred Jeter, who grew up seven miles apart, attended different churches and schools. But their families were friendly, and when he was 17 and she was 11, they began courting. But when thoughts turned to marriage, the statute stood in the way...

Thus, when the Lovings decided to marry in June 1958, they went to Washington. After the raid, the two lived separately with their parents until January 1959, when Judge Bazile offered them exile as an alternative to incarceration.

"Each one of them can come to Caroline separately to visit his or her people as often as they please," he ruled. The couple moved to Washington.

It was in that time that Mrs. Loving's cousin suggested she write the Attorney General of the United States. "I was crying the blues all the time, so she said, 'Why don't you write Robert Kennedy?'" she recalled. "She said that's what he's there for."

Mr. Kennedy told the Lovings to contact the American Civil Liberties Union, she said, and the group placed two lawyers from Alexandria, Va., Philip J. Hirschkop and Bernard S. Cohen, on the case.

The two men paid a price for their part in legal history. There were cold shoulders from some disapproving bar colleagues, nasty anonymous telephone calls, disparaging references to "two Jew lawyers" in the Ku Klux Klan newspaper and sugar dumped into the gasoline tanks of family cars.

From 1963 until 1967 the case bounced around the courts...

Mr. Cohen, now a member of Virginia's House of Delegates, recalled how, before oral arguments, he explained various constitutional doctrines to Mr. Loving. "That stuff don't mean nothing to me," Mr. Loving told him. "Mr. Cohen, tell the Court I love my wife, and it is just unfair that I can't live with her in Virginia."

Peggy Loving Fortune, at 32 the youngest of the Lovings' three children, is married to a man of mixed parentage. By challenging the law, she said, her parents had made things "a whole lot easier" for people of such backgrounds.

"I'm very proud of them," she said. "To me, they set the world free to be with whomever they want. I feel it's what they were put on this earth for, that God used them to do what they did."

Mrs. Loving makes no such claims about her role, but agrees that things have improved. "A few are still very hostile, but attitudes toward people have really changed," she said. "The Old South is going away."

GOMEZ v. PEREZ

Supreme Court of the United States, 1972.
409 U.S. 535.

PER CURIAM.

The issue presented by this appeal is whether the laws of Texas may constitutionally grant legitimate children a judicially enforceable right to support from their natural fathers and at the same time deny that right to illegitimate children.

In 1969, appellant filed a petition in Texas District Court seeking support from appellee on behalf of her minor child. After a hearing, the state trial judge found that appellee is “the biological father” of the child, and that the child “needs the support and maintenance of her father” but concluded that because the child was illegitimate “there is no legal obligation to support the child and the Plaintiff take nothing.” The Court of Civil Appeals affirmed this ruling over the objection that this illegitimate child was being denied equal protection of law. 466 S.W.2d 41. The Texas Supreme Court refused application for a writ of error, finding no “reversible error.” We noted probable jurisdiction. 408 U.S. 920, 92 S.Ct. 2479, 33 L.Ed.2d 331.

In Texas, both at common law and under the statutes of the State, the natural father has a continuing and primary duty to support his legitimate children. *See Lane v. Phillips*, 69 Tex. 240, 243, 6 S.W. 610, 611 (1887); Tex.Fam.Code § 4.02 (1970) (husband's duty). That duty extends even beyond dissolution of the marriage, Tex.Rev.Civ.Stat., Art. 4639a (Supp.1972--1973); *Hooten v. Hooten*, 15 S.W.2d 141 (Tex.Civ.App.1929), and is enforceable on the child's behalf in civil proceedings and, further, is the subject of criminal sanctions. Tex. Penal Code § 602. The duty to support exists despite the fact that the father may not have custody of the child. *Hooten v. Hooten*, *supra*. The Court of Civil Appeals has held in this case that nowhere in this elaborate statutory scheme does the State recognize any enforceable duty on the part of the biological father to support his illegitimate children and that, absent a statutory duty to support, the controlling law is the Texas common-law rule that illegitimate children, unlike legitimate children, have no legal right to support from their fathers. *See also Home of the Holy Infancy v. Kaska*, 397 S.W.2d 208 (Tex.1965); *Lane v. Phillips*, *supra*, at 243, 6 S.W., at 611; *Bjorgo v. Bjorgo*, 391 S.W.2d 528 (Tex.Civ.App.1965). It is also true that fathers may set up illegitimacy as a defense to prosecutions for criminal nonsupport of their children. *See Curtin v. State*, 155 Tex.Cr.R. 625, 238 S.W.2d 187 (1950); *Beaver v. State*, 96 Tex.Cr.R. 179, 256 S.W. 929 (1923).

In this context appellant's claim, on behalf of her daughter that the child has been denied equal protection of the law is unmistakably presented. Indeed, at argument here, the attorney for the State of Texas, appearing as amicus curiae, conceded that but for the fact that this child is illegitimate she would be entitled to support from appellee under the laws of Texas.

We have held that under the Equal Protection Clause of the Fourteenth Amendment a State may not create a right of action in favor of children for the wrongful death of a parent and exclude illegitimate children from the benefit of such a right. *Levy v. Louisiana*, 391 U.S. 68, 88 S.Ct. 1509, 20 L.Ed.2d 436 (1968). Similarly, we have held that illegitimate children may not be excluded from sharing equally with other children in the recovery of workmen's compensation benefits for the death of their parent. *Weber v. Aetna Casualty & Surety Co.*, 406 U.S. 164, 92 S.Ct. 1400, 31 L.Ed.2d 768 (1972). Under these decisions, a State may not invidiously discriminate against illegitimate children by denying them substantial benefits accorded children generally. We therefore hold that once a State posits a judicially enforceable right on

behalf of children to needed support from their natural fathers there is no constitutionally sufficient justification for denying such an essential right to a child simply because its natural father has not married its mother. For a State to do so is “illogical and unjust.” *Id.*, at 175, 92 S.Ct., at 1406. We recognize the lurking problems with respect to proof of paternity. Those problems are not to be lightly brushed aside, but neither can they be made into an impenetrable barrier that works to shield otherwise invidious discrimination. *Stanley v. Illinois*, 405 U.S. 645, 656--657, 92 S.Ct. 1208, 1215--1216, 31 L.Ed.2d 551 (1972); *Carrington v. Rash*, 380 U.S. 89, 85 S.Ct. 775, 13 L.Ed.2d 675 (1965).

The judgment is reversed and the case remanded for further proceedings not inconsistent with this opinion.

It is so ordered.

Reversed and remanded.

Mr. Justice STEWART, with whom Mr. Justice REHNQUIST joins, dissenting.

This case came here as an appeal, on the representation that the Texas courts had sustained the constitutionality of § 4.02 of the Texas Family Code and Articles 602 and 602--A of the Texas Penal Code, over a challenge to those statutes under the Equal Protection Clause of the Fourteenth Amendment.

* * *

Upon the submission of briefs and oral argument, it became clear that neither statute had been the actual subject of litigation in the courts of Texas. Hence, this is not properly an appeal under 28 U.S.C. s 1257(2). I would, therefore, dismiss the appeal for want of jurisdiction, and treat “the papers whereon the appeal was taken” as a petition for writ of certiorari. 28 U.S.C. s 2103.

* * *

With the issues so vaguely drawn and the alleged discriminations so imprecise, I would dismiss the writ of certiorari as improvidently granted.

NOTES

1. Questions of equal protection and rights concerning illegitimate children have been the focus of many U.S. Supreme Court decisions over the several two decades. A few are summarized below.

2. A state statute which barred an illegitimate child from recovering for the wrongful death of its mother has been held unconstitutional as a denial of equal protection where such recoveries by legitimate children were authorized. *Levy v. Louisiana*, 391 U.S. 68 (1968). The father of an illegitimate child may be denied the right to sue for the child's wrongful death. *Parham v. Hughes*, 441 U.S. 347 (1979). In *Levy*, the Court recognized that the mere fact that the child was born out of wedlock did not lessen the dependency of the child on its mother. In *Parham*, however, the father could have legitimated his out-of-wedlock child.

3. Following the "dependency" notion in *Levy v. Louisiana*, it has also been held that dependent illegitimate children cannot be denied recovery rights under workmen's compensation schemes for the death of their father. *Weber v. Aetna Casualty & Surety Company*, 406 U.S. 164 (1972).

4. A state may not deny an illegitimate child inheritance from its father if the state provides for inheritance from the mother. *Trimble v. Gordon*, 430 U.S. 762 (1977). The state may, however, require proof of paternity in the form of a court order of filiation made during the lifetime of the father as a prerequisite to allowing an illegitimate child to inherit from its father. *Lalli v. Lalli* 439 U.S. 259 (1978).

MILLS v. HABLUETZEL

Supreme Court of the United States, 1982.
456 U.S. 91, 102 S.Ct. 1549.

Justice REHNQUIST delivered the opinion of the Court.

This Court has held that once a State posits a judicially enforceable right of children to support from their natural fathers, the Equal Protection Clause of the Fourteenth Amendment prohibits the State from denying that same right to illegitimate children. *Gomez v. Perez*, 409 U.S. 535, 93 S.Ct. 872, 35 L.Ed.2d 56 (1973). In this case we are required to determine the extent to which the right of illegitimate children recognized in *Gomez* may be circumscribed by a State's interest in avoiding the prosecution of stale or fraudulent claims. The Texas Court of Civil Appeals, Thirteenth Supreme Judicial District, upheld against federal constitutional challenges the State's one-year statute of limitation for suits to identify the natural fathers of illegitimate children. We noted probable jurisdiction. 451 U.S. 936, 101 S.Ct. 2014, 68 L.Ed.2d 322. We begin by reviewing the history of the statute challenged by appellant.

* * *

Prior to our decision in *Gomez*, Texas recognized no enforceable duty on the part of a natural father to support his illegitimate children. See *Home of the Holy Infancy v. Kaska*, 397 S.W.2d 208 (Tex.1965); *Lane v. Phillips*, 69 Tex. 240, 6 S.W. 610 (1887); *Bjorgo v. Bjorgo*, 391 S.W.2d 528 (Tex.Civ.App.1965). A natural father could even assert illegitimacy as a defense to prosecution for criminal nonsupport. See *Curtin v. State*, 155 Tex.Cr.R. 625, 238 S.W.2d 187 [1950].

Reviewing the Texas law in *Gomez*, we held that "a State may not invidiously discriminate against illegitimate children by denying them substantial benefits accorded children generally." 409 U.S., at 538, 93 S.Ct., at 875. "Once a State posits a judicially enforceable right on behalf of children to needed support from their natural fathers," we stated, "there is no constitutionally sufficient justification for denying such an essential right to a child simply because its natural father has not married its mother." *Ibid*. Although we recognized that "the lurking problems with respect to proof of paternity ... are not to be lightly brushed aside," we concluded that they did not justify "an impenetrable barrier that works to shield otherwise invidious discrimination." *Ibid*. Accordingly, we held Texas' denial of support rights to illegitimate children to be a denial of equal protection of law.

In response to our decision in *Gomez*, the Texas Legislature considered Legislation that would have provided illegitimate children with a cause of action to establish the paternity of their natural fathers and would have imposed upon those fathers the same duty of support owed to legitimate children. The legislature did not enact that legislation, however, choosing instead to establish a procedure by which natural fathers voluntarily could legitimate their illegitimate children and thereby take upon themselves the obligation of supporting those children. *Texas Dept. of Human Resources v. Hernandez*, 595 S.W.2d 189, 191 (Tex.Civ.App.1980). No provision was made for illegitimate children to seek support from fathers who fail to support them.

Not surprisingly, this legislation was found by Texas courts to be an inadequate response to *Gomez*. A panel of the Texas Court of Civil Appeals held that, because of *Gomez*, "when the Legislature later provided judicial relief against the father on behalf of a legitimate child for support, it necessarily provided the same relief on behalf of an illegitimate child." *In re R---- V---- M----*, 530 S.W.2d 921, 922-923 (Tex.Civ.App.1975). Only after this judicial recognition of a right to support did the Texas Legislature establish procedures for a paternity and support action on behalf of illegitimate children. *Texas Dept. of Human Resources v. Hernandez, supra*, at 191.

* * *

Although it granted illegitimate children the opportunity to obtain support by establishing paternity, Texas was less than generous. It significantly truncated that opportunity by the statutory provision at issue in this case, § 13.01:

"A suit to establish the parent-child relationship between a child who is not the legitimate child of a man and the child's natural father by proof of paternity must be brought before the child is one year old, or the suit is barred."

Texas views this provision as part of the substantive right accorded illegitimate children, not simply as a procedural limitation on that right. *Texas Dept. of Human Resources v. Hernandez, supra*, at 192-193. Moreover, Texas courts have applied § 13.01 literally to mean that failure to bring suit on behalf of illegitimate children within the first year of their life "results in [their] being forever barred from the right to sue their natural father for child support, a limitation their legitimate counterparts do not share." *In re Miller, supra*, at 334. Thus, in response to the constitutional requirements of *Gomez*, Texas has created a one-year window in its previously "impenetrable barrier," through which an illegitimate child may establish paternity and obtain paternal support.¹

Appellant in this case is the mother of a child born out of wedlock in early 1977. In October 1978, she and the Texas Department of Human Resources, to which appellant had assigned the child's support rights,² brought suit on behalf of the child to establish that appellee was his natural father. Appellee answered by asserting that the action was barred by § 13.01 because the child was one year and seven months old when the suit was filed. The trial court agreed with appellee and dismissed the suit.

Appellant argues that the § 13.01 bar imposes a burden on illegitimate children that is not shared by legitimate children, and that the burden is not justified by the State's interest in avoiding the prosecution of stale or fraudulent claims. In addition, appellant argues that § 13.01 deprives illegitimate children of their right to support without due process of law. Because we agree with appellant's first argument, we need not

¹ Since the court of Civil Appeals' decision in this case, the Texas Legislature has amended 13.01 to increase to four years the period for asserting paternity claims. 1981 Tex.Gen.Laws, ch. 674 2, Tex.Fam.Code Ann. 13.01 (Supp. 1982). Appellee argues that this amendment renders appellant's claim moot because 13.01, as applied by the courts below, continues to stand as a bar to appellant's assertion of a paternity claim against appellee. At the filing of appellant's claim the child was more than one year old, and on September 1, 1981, the effective date of the amendment, the child was more than four years old...

² Prior to filing this support suit against appellee, appellant sought financial assistance under the Aid to Families with Dependent Children program. As conditions to eligibility for such assistance, appellant was required "to assign the State any rights to support" held by the child, 42 U.S.C. § 602(a)(26)(A), and "to cooperate with the State ... in establishing the paternity of [the] child born out of wedlock with respect to whom aid [was] claimed." 42 U.S.C. § 602(a)(26)(B)(i).

consider her second.

Our decision in *Gomez* held that "a State may not invidiously discriminate against illegitimate children by denying them substantial benefits accorded children generally." 409 U.S., at 538, 93 S.Ct., at 875. Specifically, we held that a State which grants an opportunity for legitimate children to obtain paternal support must also grant that opportunity to illegitimate children. If *Gomez* and the equal protection principles which underlie it are to have any meaning, it is clear that the support opportunity provided by the State to illegitimate children must be more than illusory. The period for asserting the right to support must be sufficiently long to permit those who normally have an interest in such children to bring an action on their behalf despite the difficult personal, family, and financial circumstances that often surround the birth of a child outside of wedlock. It would hardly satisfy the demands of equal protection and the holding of *Gomez* to remove an "impenetrable barrier" to support, only to replace it with an opportunity so truncated that few could utilize it effectively.

The fact that Texas must provide illegitimate children with a bona fide opportunity to obtain paternal support does not mean, however, that it must adopt procedures for illegitimate children that are coterminous with those accorded legitimate children. Paternal support suits on behalf of illegitimate children contain an element that such suits for legitimate children do not contain: proof of paternity. Such proof is often sketchy and strongly contested, frequently turning upon conflicting testimony from only two witnesses. Indeed, the problems of proving paternity have been recognized repeatedly by this Court. *Parham v. Hughes*, 441 U.S. 347, 357, 361, 99 S.Ct. 1742, 1748, 1750, 60 L.Ed.2d 269 (1979); *Lalli v. Lalli*, 439 U.S. 259, 269, 99 S.Ct. 518, 525, 58 L.Ed.2d 503 (1978); *Trimble v. Gordon*, 430 U.S. 762, 772, 97 S.Ct. 1459, 1466, 52 L.Ed.2d 31 (1977); *Gomez v. Perez*, 409 U.S., at 538, 93 S.Ct., at 875.⁴

Therefore, in support suits by illegitimate children more than in support suits by legitimate children, the State has an interest in preventing the prosecution of stale or fraudulent claims, and may impose greater restrictions on the former than it imposes on the latter. Such restrictions will survive equal protection scrutiny to the extent they are substantially related to a legitimate state interest. See *Lalli v. Lalli*, *supra*, 439 U.S., at 265, 99 S.Ct., at 523; *Trimble v. Gordon*, *supra*, 430 U.S., at 767, 97 S.Ct., at 1463; *Mathews v. Lucas*, 427 U.S. 495, 510, 96 S.Ct. 2755, 2764, 49 L.Ed.2d 651 (1976). The State's interest in avoiding the litigation of stale or fraudulent claims will justify those periods of limitation that are sufficiently long to present a real threat of loss or diminution of evidence, or an increased vulnerability to fraudulent claims.

⁴ Appellant contends that time limitations on the right of illegitimate children to prove paternity would never be justified by the State's desire to avoid litigation of stale or fraudulent claims because "[t]he interests of the state, and those of the alleged father, to prevent incorrect claims of paternity are ... protected by the recent advance in blood and genetic testing." Brief for Appellant 29. We previously have recognized that blood tests are highly probative in proving paternity, *Little v. Streater*, 452 U.S. 1, 6-8, 101 S.Ct. 2202, 2205-06, 68 L.Ed.2d 627 (1981), but disagree with appellant's contention that their existence negates the State's interest in avoiding prosecution of stale or fraudulent claims.

Traditional blood tests do not prove paternity. They prove nonpaternity, excluding from the class of possible fathers a high percentage of the general male population. H. Krause, *Illegitimacy: Law and Social Policy* 123-136 (1971). Thus the fact that a certain male is not excluded by these tests does not prove that he is the child's natural father. only that he is a member of the limited class of possible fathers. More recent developments in the field of blood testing have sought not only to "prove nonpaternity" but also to predict paternity with a high degree of probability. See Terasaki, *Resolution by HLA Testing of 1000 Paternity Cases Not Excluded by ABO Testing*, 16 J.Fam.L. 543 (1978). The proper evidentiary weight to be given to these techniques is still a matter of academic dispute. See, e.g. Jaffee, *Comment on the Judicial Use of HLA Paternity Test Results and Other Statistical Evidence: Response to Terasaki*, 17 J.Fam.L. 457 (1979). Whatever evidentiary rule the courts of a particular State choose to follow. if the blood test evidence does not exclude a certain male. he must thereafter turn to more conventional forms of proof--evidence of lack of access to the mother, his own testimony. the testimony of others--to prove that, although not excluded by the blood test, he is not in fact the child's father. As to this latter form of proof, the State clearly has an interest in litigating claims while the evidence is relatively fresh....

The equal protection analysis in this case, therefore, focuses on two related requirements. First, the period for obtaining support granted by Texas to illegitimate children must be sufficiently long in duration to present a reasonable opportunity for those with an interest in such children to assert claims on their behalf. Second, any time limitation placed on that opportunity must be substantially related to the State's interest in avoiding the litigation of stale or fraudulent claims. Applying these two requirements to the one-year right granted by Texas, we find a denial of equal protection.

By granting illegitimate children only one year in which to establish paternity, Texas has failed to provide them with an adequate opportunity to obtain support. Paternity suits in Texas "may be brought by any person with an interest in the child," Code § 11.03, but during the child's early years will often be brought by the mother. It requires little experience to appreciate the obstacles to such suits that confront unwed mothers during the child's first year. Financial difficulties caused by childbirth expenses or a birth-related loss of income, continuing affection for the child's father, a desire to avoid disapproval of family and community, or the emotional strain and confusion that often attend the birth of an illegitimate child all encumber a mother's filing of a paternity suit within 12 months of birth. Even if the mother seeks public financial assistance and assigns the child's support claim to the State, it is not improbable that 12 months would elapse without the filing of a claim. Several months could pass before a mother finds the need to seek such assistance, takes steps to obtain it, and is willing to join the State in litigation against the natural father. A sense of the inadequacy of this one-year period is accentuated by a realization that failure to file within 12 months "results in illegitimates being forever barred from the right to sue their natural father for child support," *In re Miller*, 605 S.W.2d, at 334, while legitimate children may seek such support at any time until the age of 18.

Moreover, this unrealistically short time limitation is not substantially related to the State's interest in avoiding the prosecution of stale or fraudulent claims. In *Gomez* we recognized that the problems of proof in paternity suits "are not to be lightly brushed aside," but held that such problems do not justify a complete denial of support rights to illegitimate children. 409 U.S., at 538, 93 S.Ct., at 875. Neither do they justify a period of limitation which so restricts those rights as effectively to extinguish them. We can conceive of no evidence essential to paternity suits that invariably will be lost in only one year, nor is it evident that the passage of 12 months will appreciably increase the likelihood of fraudulent claims.

Accordingly, we conclude that the one-year period for establishing paternity denies illegitimate children in Texas the equal protection of law. The judgment of the Texas Court of Civil Appeals is reversed, and the case is remanded for further proceedings not inconsistent with this opinion.

Reversed.

Justice O'CONNOR, with whom THE CHIEF JUSTICE, Justice BRENNAN, and Justice BLACKMUN join, and with whom Justice POWELL joins as to Part I, concurring.

Today, this Court holds that a Texas statute prescribing a one-year statute of limitation for paternity suits violates the Equal Protection Clause of the Fourteenth Amendment. Although I agree with the Court's analysis and result, I write separately because I fear that the opinion may be misinterpreted as approving the 4-year statute of limitation now used in Texas. *See* Tex.Fam.Code Ann. § 13.01 (Supp. 1982).

* * *

Finally, the practical obstacles to filing suit within one year of birth could as easily exist several

years after the birth of the illegitimate child. For example, if, because of the continuing relationship between the natural father and the mother, the father has provided the child with financial support for several years, the mother understandably would be unlikely or even unwilling to jeopardize her relationship with the child's father by filing a paternity suit in order to protect her child's right to financial support at some indeterminate future date. Alternatively, the child may have lived with the father alone or his relatives for a number of years, a situation that leaves the child obviously unable to sue his father to establish paternity. The risk that the child will find himself without financial support from his natural father seems as likely throughout his minority as during the first year of his life.

A review of the factors used in deciding that the one-year statute of limitation cannot withstand an equal protection challenge indicates that longer periods of limitation for paternity suits also may be unconstitutional. In short, there is nothing special about the first year following birth that compels the decision in this case. Because I do not read the Court's decision as prejudging the constitutionality of longer periods of limitation, I join it.

The unwillingness of the mother to file a paternity action on behalf of her child, which could stem from her relationship with the natural father or, as the Court points out, from the emotional strain of having an illegitimate child, or even from the desire to avoid community and family disapproval, may continue years after the child is born. The problem may be exacerbated if, as often happens, the mother herself is a minor. The possibility of this unwillingness to file suit underscores that the mother's and child's interests are not congruent, and illustrates the unreasonableness of the Texas statute of limitation.

NOTES AND QUESTIONS

1. If you read the preceding case carefully, you observed that the 1 year statute of limitations was not the first response made by the Texas legislature to the *Gomez* decision. What was the first response?

2. In *Pickett v. Brown*, 103 S.Ct. 2199 (1983), the Supreme Court struck down a Tennessee statute of limitations which required that a paternity suit be brought within two years of the child's birth. The court held that a 2 year period did not provide certain illegitimate children with an adequate opportunity to obtain support, thereby denying them equal protection of the laws guaranteed by the Fourteenth Amendment.

3. On June 6, 1988, the Supreme Court ruled upon the constitutionality of a 6 year statute of limitations for paternity actions in Pennsylvania. The opinion was unanimous by the Court. How do you think the court ruled? See *Clark v. Jeter*, 108 S.Ct. 1910 (1988).

STATE ex rel. WIEBER v. HENNINGS

Supreme Court of South Dakota, 1981.
311 N.W.2d 41.

HENDERSON, Justice.

Julie Wieber (appellant) appeals from a judgment entered by the trial court which directed Vern Hennings (appellee) to pay \$100.00 per month as child support for the minor child Angela Marie Wieber until said child reaches the age of sixteen years. Appellee was also ordered to pay \$5,659.38 in arrearages and medical expenses. On appeal, appellant contends that under the statutory scheme of this state, an arbitrary classification exists between legitimate and illegitimate children with regard to the duration of lawfully required support payments. Appellee filed no brief and is proceeding pro se.

The State of South Dakota ex rel. appellant commenced this action by filing a complaint alleging appellee to be the father of the aforementioned minor child. Accompanying this complaint was an assignment of child support rights from appellant, the child's mother, to the State in return for ADC benefits. Subsequent to a probable cause hearing and various filings by the parties, appellee signed an affidavit of paternity. A judgment was accordingly entered declaring appellee to be the father of the child.

Following this judgment, the trial court conducted a hearing which resulted in appellee being ordered to provide support for the child until her sixteenth birthday. This appeal ensued⁵.

Does SDCL 25-8-29 violate the United States Constitution because it denies equal protection to illegitimate children? We hold that it does.

This Court has utilized a two-part test in determining whether the equal protection clause has been violated.⁶ *City of Aberdeen v. Meidinger*, 89 S.D. 412, 233 N.W.2d 331 (1975). The first part of this test is "whether the statute does set up arbitrary classifications among various persons subject to it." *Id.*, at 415, 233 N.W.2d at 333. The second part of the test is the application of the appropriate standard of review to the arbitrary classification. *Dorian v. Johansen*, 297 N.W.2d 175 (S.D.1980).

Initially, then, it must be determined if SDCL 25-8-29, when read in conjunction with the other applicable statutes, creates an arbitrary classification between illegitimate and legitimate children. SDCL 25-8-29 reads as follows:

If the finding or verdict be against the defendant, the court shall give judgment against him declaring paternity and for support of the child.

The judgment shall be for annual amounts, equal or varying, having regard to the

⁵ We note that the State of South Dakota did not intervene pursuant to SDCL 15-6-24(c). The record reflects, however, that appellant's notice of appeal was served upon the Attorney General on November 20, 1980; moreover, appellant's brief to this Court was also served upon the Attorney General on January 15, 1981. Hence, we believe that the office of the Attorney General was given a reasonable opportunity to intervene and apparently chose not to do so.

⁶ United States Constitution, Amend. 14, §1 provides:
No state shall . . . deny to any person within its jurisdiction the equal protection of the laws.

obligation of the father under §§ 25-8-1 to 25-8-3, inclusive, as the court directs, until the child reaches the age of sixteen years.

The payments may be required to be made at such periods or intervals as the court directs.

We find it unnecessary to quote verbatim the various codified references establishing a parent's duty to support his or her minor child, legitimate or illegitimate. Suffice it to say, under the statutory scheme of this state, such a duty exists. Furthermore, this Court has recently held that a minor child has an inherent right to support from its natural parents; this right exists at common-law and is separate and distinct from any statutory obligation. *Johansen v. Johansen*, 305 N.W.2d 383 (S.D.1981).

In South Dakota, minors are defined as individuals being less than eighteen years of age. SDCL 26-1-1. Also, the authority of a parent ceases upon the child attaining majority. SDCL 25-5-17(3).

By its express terms, SDCL 25-8-29 abrogates the right of an illegitimate child to receive support from its natural father until the illegitimate reaches majority. As a consequence, we hold that SDCL 25-8-29 creates an arbitrary classification between legitimate and illegitimate children.

We next review SDCL 25-8-29 under the appropriate standard. *Dorian v. Johnson*, *supra*. A legislative classification based upon illegitimacy must bear an evident and substantial relation to the particular interest the statute is designed to serve. *United States v. Clark*, 445 U.S. 23, 100 S.Ct. 895, 63 L.Ed.2d 171 (1980); *Lalli v. Lalli* 439 U.S. 259, 99 S.Ct. 518, 58 L.Ed.2d 503 (1978) (plurality opinion); *see id.*, 439 U.S. at 279, 99 S.Ct. at 530, 58 L.Ed.2d at 518 (BRENNAN, J., dissenting); *see also Trimble v. Gordon*, 430 U.S. 762, 97 S.Ct. 1459, 52 L.Ed.2d 31 [1977].

* * *

In *Parham v. Hughes*, 441 U.S. 347, 352, 99 S.Ct. 1742, 1746, 60 L.Ed.2d 269, 275 (1979) (citations omitted), the U. S. Supreme Court stated:

The Court has held on several occasions that state legislative classifications based upon illegitimacy -- *i.e.*, that differentiate between illegitimate children and legitimate children -- violate the Equal Protection Clause. The basic rationale of these decisions is that it is unjust and ineffective for society to express its condemnation of procreation outside the marital relationship by punishing the illegitimate child who is in no way responsible for his situation and is unable to change it.

Gomez v. Perez, 409 U.S. 535, 93 S.Ct. 872, 35 L.Ed.2d 56 (1973) dealt with a situation apposite to the case at bar. In *Gomez*, the Court held that a Texas statute which created a judicially enforceable right to support for legitimate children from their natural fathers but denied such a right to illegitimates was a denial of equal protection and therefore unconstitutional.

* * *

Similarly, in the instant case, we cannot say that there exists any permissible legislative purpose which bears a substantial relationship to the classification in question. We accordingly hold that SDCL 25-8-29 is violative of the equal protection of the U.S. Constitution.

The unconstitutional provisions of a statute may be extracted and the remainder left intact. *Direct Auto Buying Service, Inc. v. Welch*, 308 N.W.2d 570 (S.D.1981); *South Dakota Ass'n., etc. v. State Dept. of Revenue*, 280 N.W.2d 662 (S.D.1979). Hence, SDCL 25-8-29 is hereby qualified to read as follows:

If the finding or verdict be against the defendant, the court shall give judgment against him declaring paternity and for support of the child.

The judgment shall be for annual amounts, equal or varying, having regard to the obligation of the father under §§ 25-8-1 to 25-8-3, inclusive, as the court directs, ~~until the child reaches the age of sixteen years.~~

The payments may be required to be made at such periods or intervals as the court directs.

The judgment of the trial court is affirmed as modified and remanded in accord with the now announced qualification of SDCL 25-8-29.

DUNN and FOSHEIM, JJ., concur.

WOLLMAN, C. J., and MORGAN, J., dissent. MORGAN, Justice (dissenting).

I respectfully dissent because the appellant lacks standing on appeal to challenge the decision of the trial court. This is a jurisdictional issue that we can raise *sue sponte*. *Long v. Knight Const. Co., Inc.*, 262 N.W.2d 207, 209 (S.D.1978).

I have no disagreement with the majority's discussion or resolution of the constitutional issue, but I am personally opposed to the exercise of our rather awesome authority to declare a legislative act unconstitutional without a full briefing and argument. In this instance, no brief was filed to support the constitutionality of the statute. Moreover, we considered the case on our nonoral calendar. Although the State had notice of the appeal, it failed to appear. I am amazed at the failure of the Attorney General's Office to fulfill what I consider a statutory duty to defend the legislation.

* * *

I would dismiss the appeal.

I am authorized to state that WOLLMAN, Chief Justice, joins in this dissent.

B. Full Faith and Credit

1. Non-Custodial Aspects

SHERRE v. SHERRE

Supreme Court of the United States, 1947.
334 U.S. 343, 68 S.Ct. 1087.

Mr. Chief Justice VINSON delivered the opinion of the Court.

We granted certiorari in this case and in *Coe v. Coe*, 334 U.S. 378, 68 S.Ct. 1094, to consider the contention of petitioners that Massachusetts has failed to accord full faith and credit to decrees of divorce rendered by courts of sister States.¹

Petitioner Margaret E. Sherrer and the respondent, Edward C. Sherrer, were married in New Jersey in 1930, and from 1932 until April 3, 1944, lived together in Monterey, Massachusetts. Following a long period of marital discord, petitioner, accompanied by the two children of the marriage, left Massachusetts on the latter date, ostensibly for the purpose of spending a vacation in the State of Florida. Shortly after her arrival in Florida, however, petitioner informed her husband that she did not intend to return to him. Petitioner obtained housing accommodations in Florida, placed her older child in school, and secured employment for herself.

On July 6, 1944, a bill of complaint for divorce was filed at petitioner's direction in the Circuit Court of the Sixth Judicial Circuit of the State of Florida. The bill alleged extreme cruelty as grounds for divorce and also alleged that petitioner was a "bona fide resident of the State of Florida."² The respondent received notice by mail of the pendency of the divorce proceedings. He retained Florida counsel who entered a general appearance and filed an answer denying the allegations of petitioner's complaint, including the allegation as to petitioner's Florida residence.³

On November 14, 1944, hearings were held in the divorce proceedings. Respondent appeared

¹ U.S.Const. Art. IV, § 1, provides: 'Full Faith and Credit shall be given in each State to the public Acts, Records, and Judicial Proceedings of every other State. And the Congress may by general Laws prescribe the Manner in which such Acts, Records and Proceedings shall be proved, and the Effect thereof.'

The Act of May 26, 1790, 1 Stat. 122, as amended, R.S. § 905, 28 U.S.C. § 687, 28 U.S.C.A. § 687, provides in part: '* * * And the said records and judicial proceedings * * * shall have such faith and credit given to them in every court within the United States as they have by law or usage in the courts of the State from which they are taken.'

² Section 65.02 of Florida Stat. Ann. Provides: "In order to obtain a divorce the complainant must have resided ninety days in the State of Florida before the filing of the bill of complaint."

³ The first allegation of respondent's answer stated: "That the Plaintiff is not a bona-fide legal resident of the State of Florida and has not been such continuously for more than the ninety days immediately preceding the filing of the bill of complaint. That on or about April 3, 1944, while the parties were living together as residents of Monterey, Massachusetts, the Plaintiff came to Florida with the children of the parties for a visit and without any expressed intention of establishing a separate residence from the Defendant and has remained in Florida ever since, but without any intention of becoming a bona-fide resident of Florida."

personally to testify with respect to a stipulation entered into by the parties relating to the custody of the children. Throughout the entire proceedings respondent was represented by counsel. Petitioner introduced evidence to establish her Florida residence and testified generally to the allegations of her complaint. Counsel for respondent failed to cross-examine or to introduce evidence in rebuttal.

The Florida court on November 29, 1944, entered a decree of divorce after specifically finding that petitioner “is a bona fide resident of the State of Florida, and that this court has jurisdiction of the parties and the subject matter in said cause; * * *” Respondent failed to challenge the decree by appeal to the Florida Supreme Court.

On December 1, 1944, petitioner was married in Florida to one Henry A. Phelps, whom petitioner had known while both were residing in Massachusetts and who had come to Florida shortly after petitioner's arrival in that State. Phelps and petitioner lived together as husband and wife in Florida, where they were both employed, until February 5, 1945, when they returned to Massachusetts.

In June, 1945, respondent instituted an action in the Probate Court of Berkshire County, Massachusetts, which has given rise to the issues of this case. Respondent alleged that he is the lawful husband of petitioner, that the Florida decree of divorce is invalid, and that petitioner's subsequent marriage is void. Respondent prayed that he might be permitted to convey his real estate as if he were sole [owner] and that the court declare that he was living apart from his wife for justifiable cause. Petitioner joined issue on respondent's allegations.

In the proceedings which followed, petitioner gave testimony in defense of the validity of the Florida divorce decree.⁴ The Probate Court, however, resolved the issues of fact adversely to petitioner's contentions, found that she was never domiciled in Florida, and granted respondent the relief he had requested. The Supreme Judicial Court of Massachusetts affirmed the decree on the grounds that it was supported by the evidence and that the requirements of full faith and credit did not preclude the Massachusetts courts from reexamining the finding of domicile made by the Florida court.

At the outset, it should be observed that the proceedings in the Florida court prior to the entry of the decree of divorce were in no way inconsistent with the requirements of procedural due process. We do not understand respondent to urge the contrary. The respondent personally appeared in the Florida proceedings. Through his attorney he filed pleadings denying the substantial allegations of petitioner's complaint. It is not suggested that his rights to introduce evidence and otherwise to conduct his defense were in any degree impaired; nor is it suggested that there was not available to him the right to seek review of the decree by appeal to the Florida Supreme Court. It is clear that respondent was afforded his day in court with respect to every issue involved in the litigation, including the jurisdictional issue of petitioner's domicile. Under such circumstances, there is nothing in the concept of due process which demands that a defendant be afforded a second opportunity to litigate the existence of jurisdictional facts. *Chicago Life Insurance Co. v. Cherry*, 1917, 244 U.S. 25, 37 S.Ct. 492, 61 L.Ed. 966; *Baldwin v. Iowa State Traveling Men's*

⁴ Petitioner testified that for many years prior to her departure for Florida, respondent had made frequent allusions to the fact that petitioner's mother had been committed to a mental institution and had suggested that petitioner was revealing the same traits of mental instability. Petitioner testified that as a result of these remarks and other acts of cruelty, her health had been undermined and that it had therefore become necessary for her to leave respondent. In order to insure her departure, she had represented that her stay in Florida was to be only temporary, but from the outset she had in fact intended not to return. Petitioner testified further that both before and after the Florida decree of divorce had been entered, she had intended to reside permanently in Florida and that she and Phelps had returned to Massachusetts only after receiving a letter stating that Phelps' father was in poor health.

Association, 283 U.S. 522 (1931).

* * *

We believe that the decision of this Court in the *Davis* case and those in related situations are clearly indicative of the result to be reached here. Those cases stand for the proposition that the requirements of full faith and credit bar a defendant from collaterally attacking a divorce decree on jurisdictional grounds in the courts of a sister State where there has been participation by the defendant in the divorce proceedings, where the defendant has been accorded full opportunity to contest the jurisdictional issues, and where the decree is not susceptible to such collateral attack in the courts of the State which rendered the decree.

* * *

It is urged further, however, that because we are dealing with litigation involving the dissolution of the marital relation, a different result is demanded from that which might properly be reached if this case were concerned with other types of litigation. It is pointed out that under the Constitution, the regulation and control of marital and family relationships are reserved to the States. It is urged, and properly so, that the regulation of the incidents of the marital relation involves the exercise by the States of powers of the most vital importance. Finally, it is contended that a recognition of the importance to the States of such powers demands that the requirements of full faith and credit be viewed in such a light as to permit an attack upon a divorce decree granted by a court of a sister State under the circumstances of this case even where the attack is initiated in a suit brought by the defendant in the original proceedings.

* * *

It is one thing to recognize as permissible the judicial reexamination of findings of jurisdictional fact where such findings have been made by a court of a sister State which has entered a divorce decree in ex parte proceedings. It is quite another thing to hold that the vital rights and interests involved in divorce litigation may be held in suspense pending the scrutiny by courts of sister States of findings of jurisdictional fact made by a competent court in proceedings conducted in a manner consistent with the highest requirements of due process and in which the defendant has participated. We do not conceive it to be in accord with the purposes of the full faith and credit requirement to hold that a judgment rendered under the circumstances of this case may be required to run the gauntlet of such collateral attack in the courts of sister States before its validity outside of the State which rendered it is established or rejected. That vital interests are involved in divorce litigation indicates to us that it is a matter of greater rather than lesser importance that there should be a place to end such litigation. And where a decree of divorce is rendered by a competent court under the circumstances of this case, the obligation of full faith and credit requires that such litigation should end in the courts of the State in which the judgment was rendered.

Reversed.

NOTE

The Plaintiff in the next case was a famous hero of World War II and a governor of the State of South Dakota. The airport in Sioux Falls bears his name, "Foss Field."

FOSS v. FOSS
Supreme Court of South Dakota.
83 S.D. 574, 163 N.W.2d 354 (S.D. 1968)

MANSON, Circuit Judge.

The appeals here joined for decision are taken from a decree of absolute divorce granted to June E. Foss on August 18, 1967, in an action begun on August 26, 1965, by service of process upon the said June E. Foss, defendant therein, by the plaintiff, Joseph J. Foss. For convenience and clarity the parties are herein designated as they were in the trial court. The record fails to disclose an answer, but it would reasonably appear that the cause was thereafter tried on the general issue, evidence being submitted to the Hon. George A. Rice. On March 2, [1966], Judge Rice directed a memorandum decision to the contending parties, advising that he found the evidence insufficient to justify a decree for the plaintiff. This memorandum was never implemented by order or otherwise, but the plaintiff was apparently satisfied that his cause had failed since he admittedly stated to defendant that he would go to Nevada or Mexico to secure a divorce if he could not get one in South Dakota.

Whatever his motivation, it is clear that plaintiff thereafter took voluntary steps to abandon his South Dakota residence and domicile and to acquire such in Nevada, where, on August 23, 1966, he commenced an action for divorce against June E. Foss, alleging that the parties to the action had lived separate and apart without cohabitation for more than three years preceding the commencement of the Nevada action. Process in the Nevada action was issued from the District Court for Clark County, Nevada, served by publication in Nevada, mailed to defendant at her Sioux Falls, South Dakota address and personally served on her in South Dakota on or about August 24, 1966.

Stimulated, no doubt, by service of Nevada process, defendant in the South Dakota action secured a stipulation signed by plaintiff's South Dakota attorney, providing that defendant might interpose an amended answer and cross-complaint for divorce, that plaintiff would reply thereto and that the cause might then be brought on for trial at the instance of either party. The amended answer and cross-complaint was served on plaintiff's South Dakota counsel on August 30, 1966 and a reply thereto was served upon counsel for defendant on August 31, 1966. The cross-complaint prayed for divorce on grounds of extreme cruelty, with prayers for property settlement and alimony.

These steps accomplished, the South Dakota action languished through the ensuing fall and winter. Meanwhile, back in Las Vegas, the Clark County District Court, presented with a praecipe of default in the Nevada action, on September 15, 1966, entered a decree of absolute divorce to plaintiff, establishing there as jurisdictional elements that plaintiff, for more than six weeks prior to the date of verification of the complaint and on the date of the decree was a bona fide and actual resident and domiciliary of the State of Nevada, that defendant had been personally served with process, that she made no appearance in that action and that all of the allegations of the complaint were true. The decree in Nevada contented itself with severance of the matrimonial bonds between the parties, no reference therein being made to ancillary matters, although the plaintiff had prayed that the court there determine his obligation for alimony and maintenance.

Made aware of the entry of the Nevada decree, defendant on April 4, 1967, made and served a second amended answer and cross-complaint upon plaintiff's South Dakota counsel, a reply being interposed thereto on April 8, 1967. The issues framed by these latter pleadings were the same as those indicated by the earlier cross-complaint except that the second amendment set up the fact of the Nevada divorce, asking that it be held invalid by the trial court here as being based upon a simulated and fraudulent claim of domicile by

plaintiff and further praying for divorce. The reply thereto asserts the validity of the Nevada divorce and asks dismissal of the South Dakota action for divorce, conceding that the South Dakota court might nevertheless maintain jurisdiction for the purpose of making a property settlement and providing maintenance.

These are the issues which came on for trial before the trial court on April 26, 1967. Memorandum decision was entered on June 29, 1967 and findings of fact and conclusions of law were entered, together with a decree granting defendant a divorce upon her cross-complaint on August 18, 1967.

The appeal with which we are first concerned is that wherein plaintiff, Joseph J. Foss, asserts that the trial court was without jurisdiction to enter a decree of divorce in favor of defendant, June E. Foss, no appeal being taken nor objection made to those portions of the decree relating to property settlement or allowances.

The proceedings in the Nevada forum were placed in evidence before the trial court by the introduction of authenticated copies of all pleadings and associated papers, no objection being made thereto. In addition to this showing, plaintiff testified at length concerning and in support of, his claim of domicile and residence in Nevada. Countervailing evidence on the part of the defendant consisted of testimony relating to plaintiff's statement that he would go elsewhere for a divorce and an exhibit consisting of an envelope, post-marked May 15, 1967 at Scottsdale, Arizona and addressed to defendant. This was the sum of the evidence going to the jurisdictional ground of domicile as plead by defendant.

Consideration of such evidence, as framed in the pleadings, proceeds from the proposition, basic in our law, that a judgment or decree of a court of one state is entitled to full faith and credit in all other states, in accordance with Article 4, § 1, U.S. Constitution, as elaborated by 28 U.S.C.A. § 1738.

* * *

[T]he only permissible finding which would justify judicial nullification of the Nevada decree would be one which determined that the Nevada domicile of the plaintiff was simulated and fraudulent. No such finding was made in this case.

In the instant case, the only "finding" which supports the invalidation of the Nevada decree in the trial court appears as Finding of Fact VI. This finding-conclusion reads as follows:

"That when the Defendant amended her pleadings and asked for a divorce in this action, the South Dakota court was the only court having jurisdiction to award the support and alimony requested by both parties, it being the only court having complete and effective jurisdiction of all matters embraced in the South Dakota action and that based upon the facts herein set forth, the Plaintiff's Nevada decree is not entitled to the 'full faith and credit' clause of the U.S. Constitution."

Since this finding, or what may be more proper, conclusion, is not clearly responsive to the issue of domiciliary jurisdiction as framed by the pleadings, we have had recourse to the memorandum decision of the trial court for possible explication of the rationale employed. There we find that the court says "I am of the opinion that the Nevada decree is not valid and effective to oust this court of jurisdiction. It would be against the public policy of this state to recognize such decree taken while the plaintiff by his counsel in an action which he commenced in South Dakota and which was pending in South Dakota stipulated to allow

defendant to serve an amended complaint asking for divorce, replied thereto and agreed to trial on the amended pleadings.” This at least partially clarifies the decision taken in the trial court, if it is otherwise supportable in the law.

If the decision was taken on the basis of “public policy”, it cannot be sustained, however convenient it may appear to have all issues in one court. The case of *Williams v. North Carolina*, 317 U.S. 287, 63 S.Ct. 207, 87 L.Ed. 279, bars this avenue of attack upon the decree of a sister state, pointing out that the proper test of jurisdiction lies in the area of propriety of domicile and due process.

If, on the other hand, the decision below was taken on the theory that appellant's change of domicile was in some manner wrongful, because his case was pending in South Dakota, or that the stipulation which was entered into in this state in some manner inhibited him from choosing any other domicile, or cast doubt upon its validity, the rules run to the contrary. As stated in 27B C.J.S. Divorce § 330:

“Whether the foreign divorce action was commenced prior or subsequent to the one in issue is not controlling in deciding whether the resulting foreign decree will be recognized in the latter state.”

Thus, in determining whether a foreign divorce decree is entitled to full faith and credit, it is immaterial that the action in which it is offered as a defense was instituted before the action in which the decree was rendered, particularly where the defendant named therein failed to appear and inform the foreign court of the pendency of the prior action.

Nor are the reasons which impel the husband to change his domicile in any sense material to consideration of the issue. *Ragovis v. Ragovis*, Sup., 124 N.Y.S.2d 655.

* * *

Considering the whole record, we are impelled to the view that no acceptable legal grounds were shown to exist upon which the trial court could properly premise its determination of the invalidity of the Nevada decree. This being so, the ensuing determination of the trial court, allowing defendant a divorce on her cross-complaint, must be set aside and that portion of the judgment is reversed as contrary to law.

* * *

Judgment affirmed as to awards and division of property. No costs to be allowed.

All the Judges concur.

NOTE

It is an uncomfortable fact of life that family law cases are often splintered about various forums as a result of the jurisdiction rules that have come about. The court which makes the custody determination may lack jurisdiction over the non-custodial parent and hence, a court in another forum may be required to rule on child support. The court which grants the divorce may lack jurisdiction to decide custody. This latter scenario was demonstrated in *Lustig v. Lustig*, 1997 SD 24, 560 N.W.2d 239 (S.D. 1997) wherein the trial court was found to have acted properly in deferring the custody determination to Minnesota, but was found to have acted improperly in dismissing the husband's properly filed divorce action in South Dakota. An

action for divorce can properly proceed in South Dakota, notwithstanding the fact that another court [in this case a Minnesota court] will be adjudicating the custody issues. The *Lustig* decision also stands for the proposition that an action for divorce is not governed by the Uniform Child Custody Jurisdiction Act (also referred to as the "UCCJA"), even though a custody determination (which might logically be otherwise included in the divorce action) is governed by the UCCJA.

WOOSTER v. WOOSTER

Supreme Court of South Dakota, 1986.

399 N.W.2d 330.

FOSHEIM, Retired Justice.

Appellee Irene Wooster (Irene) filed a \$4,435 judgment against her ex-husband Grant Wooster (Grant) in South Dakota circuit court under the Uniform Enforcement of Foreign Judgments Act (UEFJA), SDCL ch. 15-16A. The Superior Court of the State of California for the County of Orange issued the judgment. Grant thereafter moved from California to South Dakota. Grant submitted motions for a new trial and to vacate the foreign judgment. He appeals from the denial of these motions. We affirm.

* * *

Grant challenged the California judgment by motions made under SDCL 15-6- 59(a) and 60(b) from our Rules of Civil Procedure. Rule 59(a) allows the grant of a new trial for irregularity in court proceedings, insufficiency of the evidence to justify the decision, and for other reasons. Rule 60(b) allows relief from a judgment for fraud, misrepresentation, because the judgment has been satisfied, is void and for other reasons.

Grant's reliance upon our Rules of Civil Procedure is misplaced. It is settled law "that the power of a state to reopen or vacate a foreign judgment is more limited than under the rules of civil procedure." *Matson v. Matson*, 333 N.W.2d 862, 867, 31 A.L.R. 4th 696, 704 (Minn.1983). Although a motion to vacate under Rule 60(b) was a correct procedure or defense contemplated by the uniform act, the grounds mentioned in Rule 60(b) which allow relief from a judgment are not available to vacate a foreign judgment. *Matson, supra*; see *Miller v. Eloie Farms, Inc.*, 128 Ariz. 269, 625 P.2d 332 (1980); *Thompson v. Safeway Enterprises, Inc.*, 67 Ill.App.3d 914, 24 Ill.Dec. 561, 385 N.E.2d 702 (1978). Rather, as we stated in *Baldwin v. Heinold Commodities, Inc.*, 363 N.W.2d 191, 194 (S.D.1985):

When a foreign judgment has been appropriately filed the grounds for vacating it are limited to lack of personal or subject matter jurisdiction of the rendering court, fraud in procurement of the judgment, satisfaction, lack of due process, or other grounds that make the judgment invalid or unenforceable; however, the nature, amount, or other merits of the judgment cannot be relitigated in the state in which enforcement is sought. (Citations omitted.)

See also *Luedtke v. Koopsma*, 303 N.W.2d 112 (S.D.1981); *Bahr v. Bahr*, 85 S.D. 240, 180 N.W.2d 465 (1970); *Foss v. Foss*, 83 S.D. 574, 163 N.W.2d 354 (1968); *Nelson v. Nelson*, 71 S.D. 342, 24 N.W.2d 327 (1946);

* * *

"No defense may be set up which goes to the merits of the original controversy, or which might have been interposed in the original action." *Bahr*, 85 S.D. at 245, 180 N.W.2d at 467.

Foreign judgments are accorded this deference to avoid offending the Full Faith and Credit Clause of the United States Constitution. See *Morris v. Jones*, 329 U.S. 545, 67 S.Ct. 451, 91 L.Ed. 488 (1946);

Phares v. Nutter, 125 Ariz. 291, 609 P.2d 561 (1980); *Stevens, supra*; *Morris Lapidus, supra*; *Thompson, supra*; *Purser, supra*. We also note that prior South Dakota authority has enforced foreign judgments in the interest of interstate comity. See *Application of Heintz*, 78 S.D. 188, 99 N.W.2d 794 (1959); *Application of Habeck*, 75 S.D. 535, 69 N.W.2d 353 (1955); *Sorenson v. Spence*, 65 S.D. 134, 272 N.W. 179 (1937).

* * *

Grant alleges other grounds upon which to vacate the California judgment. They also are without merit because they contravene the res judicata effect accorded foreign judgments by the Full Faith and Credit Clause and by the UEFJA.

We do not in this opinion rule on the ability of courts in this state to modify, as opposed to vacate, a foreign judgment. See *Barber v. Barber*, 323 U.S. 77, 65 S.Ct. 137, 89 L.Ed. 82 (1944); *Loree v. Pearson*, 88 S.D. 330, 219 N.W.2d 615 (1974).

Affirmed.

B. Full Faith and Credit

2. Custody

Before taking up the next case, a few comments about the “writ of habeas corpus” are in order. Historically, the writ of “habeas corpus” was utilized in a criminal law setting to test the “lawfulness” of the restraint placed upon a prisoner. The writ compelled an immediate examination by a court or judicial officer (magistrate) as to the propriety of the incarceration of a prisoner. A prisoner who was being unlawfully detained could secure a speedy release through the successful application for a writ of habeas corpus. The writ was considered to be so important and fundamental that the framers of the U.S. Constitution specifically protected its existence from encroachment by acts of Congress in Article I, Section 9, Clause 2.

In a family law setting, the writ of habeas corpus may be utilized to determine the lawfulness of the custody arrangement for a child. Instead of looking at the lawfulness of the restraint placed upon a prisoner, the court examines the restraint placed upon a child. Habeas corpus will, in a custody dispute, determine which party has the “superior” right to possession of the child.

The usefulness of the writ of habeas corpus in child custody matters varies from jurisdiction to jurisdiction. Some states have enacted detailed statutory guidelines for the use of the writ in child custody proceedings. See Roger M. Baron, “Retrieving Possession of Children in Texas Through Habeas Corpus,” 7 Probate Law Journal 145 (1986).

In South Dakota, there has not been any legislative enactment on habeas corpus that has been specifically geared to child custody disputes; however, the general habeas corpus statutes found in SDCL 21-27 have had some usage in the family law area. Eg. *Application of G.K.*, 248 N.W.2d 380 (S.D. 1977).

NOTE

In the following case the Petitioner is the mother, Mrs. Halvey. The Respondent is the father, Mr. Halvey.

NEW YORK *ex rel.* HALVEY v. HALVEY

Supreme Court of the United States, 1947
330 U.S. 610, 67 S.Ct. 903.

Mr. Justice DOUGLAS delivered the opinion of the Court.

The Halveys were married in 1937 and lived together in New York until 1944. In 1938 a son was born. Marital troubles developed. In 1944 Mrs. Halvey, without her husband's consent, left home with the child, went to Florida, and established her residence there. In 1945 she instituted a suit for divorce in Florida. Service of process on Mr. Halvey was had by publication, he making no appearance in the action. The day before the Florida decree was granted, Mr. Halvey, without the knowledge or approval of his wife, took the child back to New York. The next day the decree was entered by the Florida court, granting Mrs. Halvey a divorce and awarding her the permanent care, custody, and control of the child.

Thereupon she brought this *habeas corpus* proceeding in the New York Supreme Court, challenging the legality of Mr. Halvey's detention of the child. After hearing, the New York court ordered (1) that the custody of the child remain with the mother; (2) that the father have rights of visitation including the right to keep the child with him during stated vacation periods in each year, and (3) that the mother file with the court a surety bond in the sum of \$5,000, conditioned on the delivery of the child in Florida for removal by the father to New York for the periods when he had the right to keep the child with him. 185 Misc. 52, 55 N.Y.S.2d 761. Both the Appellate Division, 269 App.Div. 1019, 59 N.Y.S.2d 396 and the Court of Appeals, 295 N.Y. 836, 66 N.E.2d 851, affirmed without opinion. The case is here on a petition for a writ of certiorari which we granted because it presented an important problem under the Full Faith and Credit Clause of the Constitution. Article IV, § 1.

The custody decree was not irrevocable and unchangeable; the Florida court had the power to modify it at all times. * * * *Frazier v. Frazier*, 109 Fla. at page 169, 147 So. at page 466. Facts which have arisen since the original decree are one basis for modification of the custody decree. *Frazier v. Frazier*, 109 Fla. at page 168, 147 So. at page 464; *Jones v. Jones*, 156 Fla. 524, 23 So.2d 623, 625. But the power is not so restricted. It was held in *Meadows v. Meadows*, 78 Fla. 576, 83 So. 392, 393, that "the proper custody of the minor child is a proper subject for consideration by the chancellor at any time, even if facts in issue could have been considered at a previous hearing, *if such facts were not presented or considered at a former hearing.*" (Italics added.) Or, as stated in *Frazier v. Frazier*, 109 Fla. at page 168, 147 So. at page 465, a custody decree "is not to be materially amended or changed afterward, unless on altered conditions shown to have arisen since the decree, or because of material facts bearing on the question of custody and existing at the time of the decree, but which were unknown to the court, and then only for the welfare of the child." The result is that custody decrees of Florida courts are ordinarily not res judicata either in Florida or elsewhere, except as to the facts before the court at the time of judgment. *Minick v. Minick*, 111 Fla. 469, 490, 491, 149 So. 483, 492.

* * *

It seems to us plain, therefore, that under the rule of *Meadows v. Meadows, supra*, the Florida court would have been empowered to modify the decree in the interests of the child and to grant respondent the right of visitation, if he had applied to it rather than to the New York court and had presented his version of the controversy for the first time in his application for modification.

So far as the Full Faith and Credit Clause is concerned, what Florida could do in modifying the decree, New York may do. Article IV, § 1 of the Constitution provides that “Full Faith and Credit shall be given in each State to the public Acts, Records, and Judicial Proceedings of every other State. And the Congress may by general Laws prescribe the Manner in which such acts, Records and Proceedings shall be proved, and the Effect thereof.” Congress by the Act of May 26, 1790, c. 11, as amended, R.S. § 905, 28 U.S.C. § 687, 28 U.S.C.A. § 687, declared that judgments “shall have such faith and credit given to them in every court within the United States as they have by law or usage in the courts of the State from which they are taken.” The general rule is that this command requires the judgment of a sister State to be given full, not partial, credit in the State of the forum. *See Davis v. Davis*, 305 U.S. 32, 59 S.Ct. 3, 83 L.Ed. 26, 118 A.L.R. 1518; *Williams v. State of North Carolina*, 317 U.S. 287, 63 S.Ct. 207, 87 L.Ed. 279, 143 A.L.R. 1273. But a judgment has no constitutional claim to a more conclusive or final effect in the State of the forum than it has in the State where rendered.

* * *

Affirmed.

CHILD CUSTODY JURISDICTION

Roger M. Baron

The following is reproduced from the text on pages 484-87.

Custody decrees present an anomaly when viewed in the context of our federal system of government consisting of fifty co-equal sovereigns. The Full Faith and Credit Clause of the United States Constitution which traditionally makes one state's judgment binding in sister states is wholly inept when applied to custody determinations. Because custodial placements are (and should be) always subject to modification, every state recognizes certain criteria as being sufficient for the purpose of modifying a custody decree. The result is that custody decrees, which are not absolute in the forum where entered, are not entitled to receive any more conclusive or final effect in sister states. In other words, custody decrees are not "sufficiently final to trigger full faith and credit requirements."

The failure of the Full Faith and Credit Clause to provide any protection to custody decrees gave rise to a serious problem. Unsuccessful litigants in a custody dispute might regain custody in another forum, without running afoul of the Full Faith and Credit Clause. Alternative forums in sister states are especially attractive since most states require, as does South Dakota, that future modifications in that state be heard by the original court. The losing party in the custody litigation would much prefer to avoid having a modification hearing before the same court which has once already ruled in favor of the opposing side. Child-snatching and removal to alternative forums (viewed as "haven forums") became "quasi-accepted behavior, somewhere in a no man's land of the law." By the time the PKPA was enacted, it was estimated that between 25,000 and 100,000 children had been kidnaped by parents who were seeking to avoid lawful custody decrees.

The first real concerted effort aimed toward the problem of child-snatching and alternative forums was the development and promulgation of the UCCJA. Unfortunately not all fifty states have enacted the UCCJA and many enacted the UCCJA with modifications. Additionally, state courts vary in their interpretations of the UCCJA. Many instances of concurrent jurisdiction were found to exist and many states continued to exist as "havens" for child-snatchers.

The UCCJA brought the country a long way toward solving the problem of child-snatching, but it lacks the ability to impose a truly uniform set of standards on the states. The next step in solving the problem was the enactment of the PKPA through which Congress imposed a tightened set of standards upon all the states. In enacting the PKPA, Congress acted decisively in closing the gaps which had evolved under the various state enactments and interpretations of the UCCJA. Congress set forth specific findings which accompany the PKPA. These findings clearly demonstrate that Congress intended to establish national standards, binding upon all the states. The United States Supreme Court has indicated its belief and expectation that the states would faithfully apply the PKPA in state court. The vast majority of state courts addressing the issue have acknowledged that the PKPA preempts state law to the contrary.

B. Full Faith and Credit

3. Tribal Orders

Questions of exclusive and overlapping jurisdiction abound in South Dakota due to the co-existence of Indian Tribal Courts. The *Defender* case deals with the issue of recognition due to a tribal order. It also deals with the Indian Child Welfare Act (“ICWA”) and some “in personam jurisdiction” issues.

The Indian Child Welfare Act is taken up much later in this book in the chapter concerning adoption and termination of parental rights; however, the holding in *Defender* as to the applicability of ICWA to traditional custody disputes is an important one to tie down now.

IN THE MATTER OF DEFENDER

Supreme Court of South Dakota, 1988.
435 N.W.2d 717.

MILLER, Justice.

In this child custody appeal we hold that (1) the circuit court properly refused to grant comity to a certain tribal court order, (2) the Indian Child Welfare Act does not apply to custody disputes between a child's natural parents, and (3) there was no abuse of discretion in awarding custody of the child to its mother.

FACTS

The parties to this litigation are Indian. Appellant Loren Zephier (Father) is an enrolled member of the Cheyenne River Sioux Tribe. Appellee Carole Defender (Mother) is enrolled in the Standing Rock Sioux Tribe. Their daughter, Danielle, is enrolled with the Cheyenne River Sioux Tribe. Danielle was born out of wedlock on February 4, 1982. At the time of Danielle's birth, Mother was living in Aberdeen, South Dakota, where she held a temporary position with the Bureau of Indian Affairs (BIA), and Father resided in Sioux Falls, South Dakota, where he worked for Minnehaha County. After Danielle's birth, Father would travel frequently to Aberdeen to visit his daughter. Despite these visits, the parents were unable to agree on child support and visitation matters.

Mother's temporary position with the BIA ended in November 1983. She then moved to her parents' home in Kenel, South Dakota, which is located on the Standing Rock Sioux Indian Reservation. In August 1984 she began attending the University of North Dakota (UND), necessitating that she move her family to Grand Forks, North Dakota.⁵ The record indicates that from November 1983 to April 1986 Father visited his daughter on only one occasion, when he had the child for approximately one month.

⁵ Mother has two older children born out of wedlock. Mother's fifteen-year-old son lives with her parents in Kenel. Astrid (a female child, age 12 at the time of the hearing) resides with Mother.

In June 1984 the circuit court in Minnehaha County ordered Father to pay \$250 per month in child support for Danielle. He failed to comply with that order, resulting in two separate contempt proceedings. In June 1985 Father filed a petition for permanent custody of Danielle with the Cheyenne River Sioux Tribal Court. At that time, Father resided in Sioux Falls and Danielle and Mother were in Grand Forks. The record indicates that Mother was never properly served with a copy of that petition and that the tribal court did not act upon the petition at that time. However, Father ceased making child support payments from the time he filed the petition with the tribal court until September of 1986.

In March 1986 the Cheyenne River Sioux Tribal Court granted an ex parte temporary custody order which awarded Father temporary custody of Danielle. At that time, Mother and Danielle were still living in Grand Forks and Mother contends that she was never notified of any hearing to be held regarding that custody order.

In April 1986 Father traveled to Grand Forks. At that time the parties agreed that he could take Danielle with him, on the condition that she be returned to Mother in August. Mother contends that she was not aware of the temporary custody order entered by the tribal court.

In late April 1986 Mother received a letter from the Cheyenne River Sioux Tribal Court notifying her that a hearing on the permanent custody of Danielle would be held one week later. Mother telephoned the tribal court office and asked for a continuance of that hearing because of her pending final examinations at UND. Her request for a continuance was denied and the tribal court conducted the hearing in Mother's absence. The tribal court granted permanent custody to Father with visitation rights to Mother. It also vacated and forgave Father for all child support arrearages which had accrued under the circuit court's child support order.

Mother filed a motion for relief from the tribal court's custody order in May 1986 alleging that the tribal court lacked jurisdiction and that the service of process upon her was insufficient. That motion has yet to be ruled upon by the tribal court.

Meanwhile, Father attempted to utilize the tribal court custody order to vacate the circuit court's order regarding child support payments. In July 1986 the circuit court in Brown County held a hearing on a motion to show cause why Father should not be held in contempt for failing to pay his child support obligation. At the hearing, Father represented that the Cheyenne River Sioux Tribal Court had awarded custody of Danielle to him. The circuit court then suspended Father's payment of future child support to Mother pending final resolution of the custody issue. However, the circuit court did not forgive the past child support arrearages.

In August 1986 Mother filed a petition for a writ of habeas corpus with the circuit court in Brown County, requesting that the court award her custody of Danielle. The circuit court held that it would not grant comity to the earlier tribal court order and that it had jurisdiction over the habeas corpus petition. It further ordered alternating custody of Danielle between the parents pending a trial upon the merits of Mother's petition.

In April 1987 a trial to the court was held concerning Mother's habeas corpus petition. The circuit court, after hearing the testimony and reviewing the evidence, concluded that both Father and Mother were fit and capable parents. However, because, among other things, Danielle had lived most of her life with her mother and because she had a strong bond with her older half-sister, Astrid, the court found that Danielle's

best interests would be served by awarding permanent custody to Mother with visitation rights granted to Father. The trial court's previous order regarding Father's payment of child support was also reinstated. Father appeals.

DECISION

I

WHETHER THE TRIBAL COURT'S ORDER SHOULD HAVE BEEN RECOGNIZED BY COMITY.

Father contends that the order granting him custody of Danielle which was entered by the Cheyenne River Sioux Tribal Court was entitled to comity in the circuit court proceeding held in Brown County. As we noted in *State ex rel Joseph v. Redwing*, 429 N.W.2d 49 (S.D.1988), a party seeking recognition of a tribal court order under the principle of comity must establish the mandatory requisites of SDCL 1-1-25 by clear and convincing evidence. Under SDCL 1-1-25, the party must establish that (1) the tribal court had jurisdiction over both the subject matter and the parties; (2) the order or judgment was not fraudulently obtained; (3) the order or judgment was obtained by a process that assures the requisite of an impartial administration of justice, including but not limited to due notice and a hearing; (4) the order or judgment complies with the laws of the jurisdiction in which it was obtained; and (5) the order or judgment does not contravene the public policy of the State of South Dakota. *See also Hilton v. Guyot*, 159 U.S. 113, 16 S.Ct. 139, 40 L.Ed. 95 (1895); *Mexican v. Circle Bear*, 370 N.W.2d 737 (S.D.1985). It is clear, for the reasons stated below, that Father has failed to meet his burden and that the circuit court did not abuse its discretion in refusing to grant comity to the tribal court order.

First, the tribal court did not properly have jurisdiction over Mother. In order to exercise jurisdiction over a nonresident, the forum court must act in compliance with the requirements of due process. Both components of due process--notice and minimum contacts--must be satisfied before a court may properly exercise personal jurisdiction over a party. *See International Shoe Co. v. Washington*, 326 U.S. 310, 66 S.Ct. 154, 90 L.Ed. 95 (1945).⁶ The standard set forth for determining whether the assertion of jurisdiction comports with due process was summarized by the United States Supreme Court as follows:

The existence of personal jurisdiction ... depends upon the presence of reasonable notice to the defendant that an action has been brought ... and a sufficient connection between the defendant and the forum State to make it fair to require defense of the action in the forum.

Kulko v. Superior Court, 436 U.S. 84, 91, 98 S.Ct. 1690, 1696, 56 L.Ed.2d 132, 141 (1978) (citations omitted). Here, the record indicates that Mother was never properly served with either a copy of Father's petition for permanent custody of Danielle or a copy of the tribal court's temporary custody order. Further, the record shows that Mother received only a bare summons (served by certified mail) to appear in the Tribal Court for a hearing on who would receive permanent custody of Danielle and that Mother has never had any contacts with the Cheyenne River Sioux Reservation. As a result, we conclude that Mother did not have sufficient contacts with the Cheyenne River Sioux Tribe so as to render her amenable to its personal jurisdiction. *Kulko, supra*; *International Shoe, supra*. Moreover, we do not believe that Mother did

⁶ Although *International Shoe* did not involve a claim of jurisdiction by a tribal court, the same due process standard is applicable to tribal courts due to incorporation of the Due Process Clause in the Indian Civil Rights Act. *See* 25 U.S.C. § 1302(8); *see also Loncassion v. Leekity*, 334 F.Supp. 370 (D.N.M.1971).

anything so as to purposely avail herself of the privilege of conducting activities within the Cheyenne River Sioux Indian Reservation so as to render herself subject to personal jurisdiction by Tribal Court. *See Hanson v. Denckla*, 357 U.S. 235, 78 S.Ct. 1228, 2 L.Ed.2d 1283 (1958). Finally, we must note that the actions of Father alone are insufficient for the tribe to take jurisdiction over Mother.⁷ "The unilateral activity of those who claim some relationship with a nonresident defendant cannot satisfy the requirement of contact with the forum State." *Kulko*, 436 U.S. at 93-94, 98 S.Ct. at 1698, 56 L.Ed.2d at 142, quoting *Hanson*, *supra*.

We note that the tribe's own Law and Order Code fails to provide for jurisdiction in this instance. Its preamble makes no reference to the Code's applicability to off-reservation Indians. Its provisions for the assumption of jurisdiction by the tribe also do not appear to apply. T.C. § 1-4-1 applies only to those Indians living within the territorial jurisdiction of the reservation. T.C. § 1-4-2 extends the tribe's jurisdiction to the exterior boundaries of the reservation and upon certain Indian trust lands. T.C. § 1-4-3 extends personal jurisdiction only in the case where one has had sufficient contact with the reservation, *e.g.*, living on the reservation, transacting business or owning property thereon, or tortious or criminal activity within the reservation.

The tribe's Juvenile Code also does not appear to grant jurisdiction. T.C. § 5-3-1 applies only to Indians found upon the reservation and only in certain enumerated circumstances. The tribal court attempted to exercise jurisdiction under one such circumstance, namely that Danielle was neglected or dependent, pursuant to T.C. § 5-3-1(2). However, Danielle's absence from the reservation rendered such exercise a nullity.

Further, because the tribe could not assume jurisdiction over Danielle under its Juvenile Code, its attempt to exercise jurisdiction over Mother pursuant to T.C. § 5-8-2, which extends jurisdiction to certain adults who are necessary for a juvenile adjudication, is likewise a nullity. Thus, the tribal court's failure to gain personal jurisdiction over Mother precludes the circuit court from extending comity to the tribal court's order.⁸

II WHETHER THE CIRCUIT COURT LACKED JURISDICTION DUE TO THE INDIAN CHILD WELFARE ACT.

Father next contends that the Indian Child Welfare Act of 1978 (ICWA), 25 U.S.C. § 1901 *et seq.*, prohibited the circuit court from exercising jurisdiction over this issue. We disagree. The ICWA applies only to child custody proceedings. As defined by the Act, a child custody proceeding may be either a foster care placement, termination of parental rights, preadoptive placement or adoptive placement. *See* 25 U.S.C. § 1903(1). Here, the placement of Danielle with either of her natural parents does not fit within the definition of a custody proceeding and thus does not implicate the ICWA. This is clarified in the guidelines

⁷ It should be observed, too, that Father's contacts with his tribe were quite minimal. He lived on the reservation from age 4 to 13, during a time his father worked for the BIA. He has not resided there for several years. None of his family, including his parents and various siblings, reside there.

⁸ While we are able to dispose of the comity issue solely on the basis of the tribe's lack of personal jurisdiction (SDCL 1-1-25(1)(a)), we also believe that it lacked subject matter jurisdiction under SDCL 1-1- 25(1)(a) (see Issue II, *infra*), and that the tribal court's order was not obtained by due process because of the lack of sufficient notice given to Mother relative to the temporary and permanent custody hearings (SDCL 1- 1-25(1)(c)).

published by the Bureau of Indian Affairs which provide that: "Child custody disputes arising in the context of divorce or separation proceedings or other similar domestic relations proceedings are not covered by the Act so long as custody is awarded to one of the parents." *See* Guidelines for State Courts; Indian Child Custody Proceedings, 44 Fed.Reg. 67,584, 67,587 (1979).

Because the ICWA does not apply in this particular circumstance, we must resort to the traditional jurisdictional test set forth in *Williams v. Lee*, 358 U.S. 217, 79 S.Ct. 269, 3 L.Ed.2d 251 (1959). Under *Williams*, we must determine whether the exercise of state jurisdiction infringes upon the right of reservation Indians to make their own laws and be governed by them. *Id.* Further, we must be guided by the United States Supreme Court's admonition that tribal courts have been recognized as appropriate forums for the exclusive adjudication of disputes affecting important personal and property interests of both Indians and non-Indians. *Santa Clara Pueblo v. Martinez*, 436 U.S. 49, 98 S.Ct. 1670, 56 L.Ed.2d 106 (1978); *see also National Farmers Union Ins. Co. v. Crow Tribe of Indians*, 471 U.S. 845, 105 S.Ct. 2447, 85 L.Ed.2d 818 (1985); *Iowa Mut. Ins. Co. v. LaPlante*, 480 U.S. 9, 107 S.Ct. 971, 94 L.Ed.2d 10 (1987). We also recognize that tribal courts play a vital role in the area of custody of Indian children. *See Matter of Guardianship of D.L.L. & C.L.L.*, 291 N.W.2d 278 (S.D.1980). However, absent the applicability of the ICWA, we do not believe that these principles may be extended so as to grant tribal courts the exclusive authority to adjudicate disputes which involve Indian children when neither the child nor the parents reside on the reservation. Thus, the circuit court did not abuse its discretion in exercising state jurisdiction over this issue.

III WHETHER THE CIRCUIT COURT ERRED IN AWARDING CUSTODY OF DANIELLE TO MOTHER.

Having determined that the circuit court properly exercised jurisdiction over this matter, we turn to the issue of whether it erred in awarding custody of Danielle to Mother. Again, our standard of review is whether the circuit court abused its discretion in making its determination. *See Kolb v. Kolb*, 324 N.W.2d 279 (S.D.1982). The evidence adduced by the circuit court was that each parent was equally fit to be the primary custodian of Danielle. The court noted, however, that Danielle had lived most of her life with Mother and had become attached to her older half-sister. While Father and Mother each volleyed allegations of abuse and neglect of Danielle against each other, none of the allegations were substantiated so as to necessitate the removal of Danielle from either parent's custody.

Reviewing the circuit court's decision in its entirety, we do not believe that it abused its discretion in finding that Danielle's best interests would be served by placing her in the primary custody of Mother with liberal visitation granted to Father.

For all of the foregoing reasons, the judgment of the circuit court is affirmed.

WUEST, C.J., and MORGAN and SABERS, JJ., concur.

HENDERSON, J., concurs in result.

NOTES AND QUESTIONS

1. The “personal jurisdiction” analysis in *Defender* inquires into the mother’s “minimum contacts” with the reservation and her “purposeful availment” of the privilege of undertaking activities on the reservation. Is this the proper analysis for determining whether or not a forum has the ability to adjudicate the custody (“status”) of one of its inhabitants? If the mother’s contacts with the forum are inconsequential, then had child resided in the forum the length of time necessary to give the forum a legitimate interest in adjudicating the child’s custody or “status?” In connection with these questions, consider the extract from “Child Custody Jurisdiction” which follows these notes, as well as the next sub-chapter in this book on “The Court’s Jurisdiction over the Person of the Defendant” and the next chapter in this book on the Uniform Child Custody Jurisdiction Act (“UCCJA”) and the Parental Kidnaping Prevention Act (“PKPA”).

2. As indicated in the *Defender* opinion, tribal court orders may be entitled to recognition in state court on a “comity” basis. The requisites for comity recognition are set forth in SDCL 1-1-25 which is reproduced after this note. How generous has the South Dakota legislature been in extending recognition to tribal orders?

1-1-25. When order or judgment of tribal court may be recognized in state courts. No order or judgment of a tribal court in the state of South Dakota may be recognized as a matter of comity in the state courts of South Dakota, except under the following terms and conditions:

(1) Before a state court may consider recognizing a tribal court order or judgment the party seeking recognition shall establish by clear and convincing evidence that:

- (a) The tribal court had jurisdiction over both the subject matter and the parties;
- (b) The order or judgment was not fraudulently obtained;
- (c) The order or judgment was obtained by a process that assures the requisites of an impartial administration of justice including but not limited to due notice and a hearing;
- (d) The order or judgment complies with the laws, ordinances and regulations of the jurisdiction from which it was obtained; and
- (e) The order or judgment does not contravene the public policy of the state of South Dakota.

(2) If a court is satisfied that all of the foregoing conditions exist, the court may recognize the tribal court order or judgment in any of the following circumstances:

- (a) In any child custody or domestic relations case; or
- (b) In any case in which the jurisdiction issuing the order or judgment also grants comity to orders and judgments of the South Dakota courts; or
- (c) In other cases if exceptional circumstances warrant it; or
- (d) Any order required or authorized to be recognized pursuant to 25 U.S.C., s 1911(d) or 25 U.S.C., s 1919.

3. In *Geisinger v. Geisinger*, 531 N.W.2d 17 (S.D. 1995), the South Dakota Supreme Court affirmed the trial court’s “comity” recognition of a \$29,517.86 judgment entered by a tribal court. The dispute in this case was between a father and son and the judgment was for wrongful conversion of cattle. This is one of the few reported cases in which a party has successfully persuaded a South Dakota state court to enforce a tribal court order pursuant to the doctrine of comity, as codified in SDCL 1-1-25. *See also Mexican v. Circle Bear*, 370 N.W.2d 737 (S.D. 1985).

Infringing Upon the Rights of Reservation Indians

In the *Defender* opinion, the Court stated as follows:

“[W]e must resort to the traditional jurisdictional test set forth in *Williams v. Lee*, 358 U.S. 217, 79 S.Ct. 269, 3 L.Ed.2d 251 (1959). Under *Williams*, we must determine whether the exercise of state jurisdiction infringes upon the right of reservation Indians to make their own laws and be governed by them. *Id.*”

There have been a few opinions by the South Dakota Supreme Court, subsequent to the *Defender* case that have explored this boundary line. Some of those cases are summarized in the following notes.

NOTES

1. In *Harris v. Young*, 473 N.W.2d 141 (S.D. 1991) the South Dakota Supreme Court recognized concurrent jurisdiction in state court for custody litigation between an Indian domiciled on a reservation and an off-reservation party. In dictum at page 144, the court acknowledged that if the custody dispute was between two enrolled Indians domiciled on the reservation, then tribal court jurisdiction would be *exclusive*. The court also noted that the UCCJA has no applicability to disputes between parties in the same state where one party is on a reservation and the other party is off the reservation.

2. The 2005 South Dakota Legislature repealed the Uniform Child Custody Jurisdiction Act and enacted in its place, the Uniform Child Custody Jurisdiction and Enforcement Act (UCCJEA). Under §§ 104(b) and (c) of the UCCJEA, an Indian tribe is treated as a state of the U.S. and tribal custody determinations which are made in substantial conformity with the jurisdictional standards of the UCCJEA must be recognized and enforced. Accordingly, the holding in *Harris v. Young* as to the applicability of the UCCJA to disputes between parties in the same state where one party is on a reservation and the other party is off reservation (as described in the preceding note) appears to have been effectively overruled by South Dakota's adoption of the UCCJEA.

3. *Jurisdiction by Estoppel?* Husband and wife are both enrolled members of the Flandreau Santee Tribe, residing on Indian trust lands. Wife sued husband for divorce in state court in Moody County in 1996. Although husband initially contested the jurisdiction of the state court, he subsequently entered into a settlement agreement and the circuit court entered a decree incorporating that agreement. Neither side appealed. In 1998, husband twice invoked the jurisdiction of state court through modification proceedings relating to his child support obligation. In 1999, husband filed a motion to dismiss the judgment and decree for lack of subject matter jurisdiction or, in the alternative to transfer the matter to tribal court. The trial court denied the motion and the SD Supreme Court affirmed in *Weston v. Jones*, 1999 SD 160, 603 N.W.2d 706, holding that husband was *estopped* from challenging jurisdiction. Following a line of authority from other jurisdictions, the court approved the “estoppel” notion in the situation where 1) the present challenge is inconsistent with prior conduct both before and after the entry of the decree, 2) both parties have relied upon the decree and formed expectations based upon it, and 3) these expectations would become upset if the decree was vacated. Justice Sabers dissented, arguing that “jurisdiction by estoppel” is not permissible where the facts show that *exclusive* jurisdiction (for two Native Americans domiciled on reservation land) was with the tribal court. Chief Justice Miller wrote a special concurring opinion in order to respond to the dissent, arguing that the dissent oversimplifies the problem because it wasn't until recently that tribal courts and domestic relations jurisdiction in tribal courts became available. According to Chief Justice Miller,

“hundreds, if not thousands of Indian parties domiciled on reservations” have been granted divorces and “To blindly adopt the dissenting opinion would tell everyone impacted by those divorce decrees ... that their divorces ... are void.” (Paragraph no. 18, 603 N.W.2d at 709.) This case is the subject of a student note by John R. Hinrichs, “*Weston v. Jones*: Using State Court Subject Matter Jurisdiction By Estoppel to Undermine Tribal Sovereignty,” 45 South Dakota Law Review 345 (2000).

4. South Dakota state court was permitted to entertain a child support enforcement action against an enrolled member of the Oglala Sioux Tribe based upon the finding that defendant was domiciled off the reservation in *State ex rel. Jealous of Him v. Mills*, 2001 SD 65, 627 N.W.2d 790. Both mother and father, who were never married, were enrolled tribal members. Mother successfully applied for AFDC and this action was commenced in state court by the state for child support. Father argued that this was a dispute between two enrolled members of the tribe domiciled on the reservation and under the U.S. Supreme Court decision in *Williams v. Lee*, 358 U.S. 217, the assertion of state court jurisdiction would improperly infringe upon the right of reservation Indians to make their own laws and be governed by them. The trial court found that father “has had employment off the reservation since 1995” and that father “resided and was domiciled off the reservation.” Paragraph nos. 14 & 15 of opinion. The SD Supreme Court affirmed, following the established view in South Dakota that when one party is domiciled off the reservation, both state and tribal courts enjoy concurrent jurisdiction and the case may be adjudicated by whichever court first obtains valid personal jurisdiction. The Court also confirmed that if father had in fact been domiciled on the reservation then “tribal court jurisdiction would indeed be exclusive.” Paragraph No. 8 of Opinion.

5. South Dakota state court was permitted to entertain child support recovery action against enrolled member of Cheyenne River Sioux Tribe, notwithstanding prior involvement of tribal court, where the father was domiciled off reservation and the prior involvement of tribal court on child support issue was through an unenforceable “oral support order.” In *State ex rel. LeCompte v. Keckler*, 2001 SD 68, 628 N.W.2d 749. There had been extensive involvement by the tribal court through the issuance of custody and visitation orders. Child support had been handled by an oral child support order of \$100 per month, and said order had been complied with by father. Subsequently, mother applied to the state for “Temporary Assistance to Needy Families (“TANF”) while father moved to New Mexico. Father was found to no longer be domiciled on the reservation. The state then brought a child support recovery action in state court which accepted and asserted jurisdiction. The South Dakota Supreme Court affirmed. Since father was not domiciled on the reservation, the matter was subjected to the prevailing view in South Dakota that there is concurrent jurisdiction for both state and tribal courts and that “the case may be adjudicated by the first tribunal to validly exercise jurisdiction.” Par. No. 7. Although the tribal court acted first, its order was *oral* only, running afoul of the rule that “an order must be reduced to writing before it takes legal effect.” (Par. No. 10 of Opinion). Accordingly, the state court validly exercised its concurrent jurisdiction. [Part of the development of the record involves an effort by the father to seek an after-the-fact order by the tribal court, to reduce to writing the nature of the previous oral child support order. The opinion suggests in paragraph no. 12 that the tribal court could have possibly have been found to have acted properly had there been a “corrected order” entered by the tribal court to show that the custody and visitation orders were intended to also encompass child support, but such was not done – instead the tribal court entered an after-the-fact written order (instead of a “clarification order”) which simply recognized that the child support order was indeed an oral order which had been entered by the tribal court.] [Oral argument in this case took place at USD Law School during the March, 2001 term.]

6. *Wells v. Wells*, 2005 SD 67, 698 N.W.2d 504. H & W and children were domiciled and living on the Crow Creek Reservation. Both H & W were enrolled members of the Crow Creek Sioux Tribe. In April, 1987, W took children and moved to Rapid City. H brought divorce action against W in the Crow Creek Sioux Tribal Court, but never obtained service of process on W. W initiated her 1st divorce action in state court in Pennington County, obtaining improper service of process on H. W's 1st action was dismissed. W initiated 2nd action in state court and obtained proper service of process on H. H attempted to secure service of his tribal court action on W by mailing a copy of the tribal court summons and complaint to W's attorney in the state court action. Based on this, the tribal court entered a default judgment against W, giving H custody of children. Meanwhile, in W's 2nd state court action, H contested jurisdiction (both personal and subject matter). The state court held that it had concurrent subject matter jurisdiction and that it could not recognize the tribal judgment because of H's failure to personally serve W. (The tribal code itself required personal service.) H took an intermediate appeal and lost on the issue of the state court's ability to entertain the divorce action. (H also lost on the assertion that the state court should recognize the tribal divorce decree.) The state court then proceeded to determine child custody in favor of W and ordered H to pay \$650.00 per month in child support, entering a judgment for W in July, 1991. H filed pro se notice of appeal from the state court's child custody/child support judgment asserting lack of personal jurisdiction and lack of subject matter jurisdiction. H then abandoned his appeal and it was eventually dismissed by the South Dakota Supreme Court.

Some 12-13 years later, the South Dakota DSS began pursuing H for arrearages of almost \$80,000 (by the time of this decision the arrearage exceeded \$100,000.) H then sought to set aside the state court action, pursuant to SDCL 15-6-60(b)(4), claiming that the judgment was void because at all times relevant he was an enrolled member of the Crow Creek Sioux Tribe, residing on the reservation.

The state trial court ruled that the 1991 state court judgment was valid because of *res judicata*. The South Dakota Supreme Court affirmed in a 4-1 decision. The SD Supreme Court cited and quoted *Ballwin v. Iowa State Traveling Men's Ass'n.*, the 1931 U.S. Supreme Court decision which upholds the *res judicata* principle. The U.S. Supreme Court stated, "Public policy dictates that there be an end of litigation; that those who have contested an issue shall be bound by the result of the contest; and that matters once tried shall be considered forever settled as between the parties." (quoted by the SD Supreme Court in ¶ 17.) As to the argument that state court would, in this case, be infringing "on the right of reservation Indians to make their own laws and be ruled by them" under the doctrine of *Williams v. Lee*, the SD Supreme Court stated, "Tribal law and tribal self-governance are not in issue. What is in issue is the support of six children living off the reservation in state jurisdiction." ¶ 20.

Justice Sabers dissented, stating that, "At that time (1990), the law clearly provided that tribal courts, not circuit courts, had exclusive subject matter jurisdiction over two Native American Indians domiciled on Indian land." ¶ 26. Justice Sabers also stated that the majority decision does indeed infringe upon tribal sovereignty under the doctrine of *Williams v. Lee*. Justice Sabers' dissent, which is consistent with his dissent in *Weston v. Jones*, also stated, "What is more important to the rights of reservation Indians than to make, determine and enforce their own laws concerning custody, child support or property rights on tribal land? This case and *Weston* go a long way to making tribal domestic law irrelevant." ¶ 31.

7. South Dakota Supreme Court addresses many jurisdictional issues with a unanimous opinion in *Langdeau v. Langdeau*. The case of *Langdeau v. Langdeau*, 2008 SD 44, 751 N.W.2d 722 contains a hodgepodge of issues dealing with child custody jurisdiction, divorce jurisdiction, tribal jurisdiction, comity recognition and SD's recently adopted version of the UCCJEA.

H is an enrolled member of Lower Brule Sioux Tribe. W is non-Indian. H & W were married and resided on tribal land with two children (ages 9 and 6) born of the marriage. The children were either enrolled or eligible for enrollment with the tribe. Taking the children with her, W moved away from the

reservation. Five days later, on February 27, 2007. W filed suit for divorce in state court. H was served with process from W's state court action on that same day. W also filed for domestic abuse protection in state court on the next day, February 28, 2007. H filed for divorce and associated interim relief in tribal court on February 28, 2007. W was served with process from H's tribal court action on that same day.

The state court judge subsequently dismissed the state court divorce action and W's *ex parte* temporary protection order. The state court (trial judge) held, without rendering a memorandum opinion and without findings of fact and conclusions of law:

A) state court lacked jurisdiction over the children because the tribal forum was the "home state" for the children under the UCCJEA which was enacted into law in SD in 2005.

B) state court was an "inconvenient forum" and jurisdiction was denied on this basis, holding that the Indian reservation was the more appropriate forum for the divorce and all related matters.

A short time later the state court entered an order which recognized orders (relating to custody and visitation) entered by the tribal court. The state court's order enforcing the tribal orders was also entered without a written memorandum opinion and without findings of fact and conclusions of law.

On appeal the South Dakota Supreme Court affirmed in part, reversed in part and reversed and remanded in part in a unanimous decision with the opinion being authored by Chief Justice Gilbertson. The SD Supreme Court held:

1) The trial court's dismissal of the child custody proceeding was correct because the tribal forum was the home state of the children and its jurisdiction was *exclusive* under the UCCJEA. A tribe is treated as a "state of the United States" under the UCCJEA, SDCL 26-5B-104(b).

2) It was reversible error for the trial court dismiss the divorce action. Since W was a non-Indian, state court had concurrent jurisdiction over the divorce action itself. The Court stated, "[H]ere [W] was a resident of South Dakota and the State *at all times* had both subject matter and personal jurisdiction over the dissolution of her marriage to [H]." ¶ 22 (emphasis original with the Court). This is especially true since W's divorce action was filed *first* in time. This holding is consistent with and follows this Court's prior ruling in *Lustig v. Lustig*, 1997 SD 24, 560 N.W.2d at 245 wherein the trial court was upheld in its decision to defer the custody determination of the parties' children to a Minnesota court, but was reversed for dismissing the underlying divorce action.

3) The trial court did not error in its decision to refrain from exercising temporary emergency jurisdiction to protect the children under SDCL 26-5B-204(a), a provision of the UCCJEA. Emergency jurisdiction may be deferred to a more convenient forum under SDCL 26-5B-207(a).

4) The trial court is required to enter findings of fact and conclusions of law in making a "more convenient forum" determination under SDCL 26-5B-207(b) which provides,

Before determining whether it is an inconvenient forum, a court of this state *shall consider* whether it is appropriate for a court of another state to exercise jurisdiction. For this purpose, the court shall allow the parties to submit information and shall consider all relevant factors, including... (Emphasis added by Court.)

In this case W asserts domestic violence which falls under factor (1) of SDCL 26-5B-207(b) which requires the court to consider whether "domestic violence has occurred and is likely to continue in the future." Accordingly this issue is remanded to the trial court for the necessary evidentiary proceedings and findings of fact and conclusions of law required by SDCL 26-5B-207(b).

5) Similar to the ruling just set forth, the trial court erred in recognizing the tribal court's orders for custody and visitation without entertaining evidentiary proceedings and the entry of findings of fact and conclusions of law. South Dakota's "comity" statute, SDCL 1-1-25 clearly sets forth several criteria which must be established by "clear and convincing" evidence prior to recognition of a tribal order. In this case W asserts that she had no opportunity to be heard, that the tribal orders were not "obtained by a process that assures the requisites of an impartial administration of justice," that she was not accorded "due process" by

the tribal court and that the tribal proceeding was contaminated by *ex parte* communication between H's attorney and the tribal court. The SD legislature's enactment of SDCL 1-1-25 represents that it "intended the circuit court to enter findings of fact and conclusions of law for appellate review, before granting recognition to a tribal court order under the principle of comity." This issue, too, was remanded to the trial court for "appropriate evidentiary proceedings along with findings of fact and conclusions of law." ¶ 41.

8. Tribal Court's Assertion of Jurisdiction Rejected by SD Supreme Court, overruling state trial court's recognition of tribal order on the bases of full faith and credit, ICWA and comity.

In the case of *In Re The Matter of J.D.M.C.*, 2007 SD 97, 739 N.W.2d 796, the South Dakota Supreme Court was called upon to determine whether the state trial court had acted appropriately in upholding a tribal court order (from the Sisseton-Wahpeton Oyate Tribe) in favor of the mother, an enrolled member of the tribe. The father, a non-Indian, contested the tribal order when the mother sought enforcement of the order in state court. In this case the parties had two children from their marriage. Their divorce was granted in state court with a shared joint legal and physical custody arrangement for their two daughters. Tragically, the younger daughter died when the father accidentally left her in his car one day when he went to work during the summer of 2005. No criminal charges were filed against the father. As a result of this death, mother instituted an abuse and neglect proceeding against father in tribal court and sought protective custody of the older daughter. The tribal court granted an *ex parte* temporary custody order in favor of mother. The state court refused to honor the *ex parte* order. Then the tribal Child Protection Program sought emergency protection for the child in tribal court and this resulted in a proceeding in which father participated by specially appearing to contest jurisdiction. The tribal court declared the child to be a ward of court and issued an order placing the child with the tribal Child Protection Program which was to place the child with "an appropriate family member." The tribe then sought enforcement of this order in state court. The state court trial judge upheld the tribal order on the basis of full faith and credit, on the basis of ICWA (since the tribal court had declared the child a ward of the tribal court) and on the basis of comity.

The SD Supreme Court reversed in a 4-1 decision with the majority opinion authored by Justice Sabers. The Court found that the child was not domiciled on the reservation and was not truly a ward of the tribal court because the child was neither domiciled nor residing on the reservation at the time the tribal proceeding was initiated. Under the language of ICWA, exclusive jurisdiction concerning a "ward" is vested as follows, "Where an Indian child is a ward of a tribal court, the Indian tribe shall retain exclusive jurisdiction, notwithstanding the residence or domicile of the child." 25 U.S.C. § 1911(a). This opinion reviews case law from Indiana, as well as South Dakota, and places emphasis on the word *retain* as used in the statute. The Court holds, "The plain language of section 1911(a) and the case law demonstrate the only effective way a wardship order can be used to obtain exclusive jurisdiction is to enter the order while the Indian child is domiciled or residing on the reservation and before the proceeding commenced. Therefore, [the tribe] could not obtain exclusive jurisdiction by declaring [the child] a ward of the tribal court after the proceeding began." ¶ 27. The Court rejected the arguments that the tribal court order was entitled to full faith and credit recognition and comity recognition because, given the record before the Court, it was not possible to review whether or not the jurisdictional issues (both personal and subject matter) were fully and fairly litigated in tribal court. Additionally, all of the conduct at issue in this case occurred entirely off the reservation and the child was not present on the reservation. This opinion also holds that the father did not have sufficient contacts with the forum so as to justify tribal court assertion of personal jurisdiction over him and that "the status exception to due process" which is found in custody determinations is not available when the child is not present in the forum.

Justice Konenkamp dissented, basing his view on the principle that the full faith and credit clause applies to tribal court proceedings and, under the facts of this case, the father is barred by the doctrine of res judicata from raising jurisdictional issues in state court since he had previously contested jurisdiction in tribal

court.

Excerpts from 38 South Dakota Law Review 479 (1993)

CHILD CUSTODY JURISDICTION

Roger M. Baron

* * *

I. Introduction

Jurisdictional disputes over child custody may be intrastate, interstate, or international in nature. Child custody jurisdiction disputes may also involve tribal courts pitted against state courts or other tribal courts. This article addresses the considerations inherent in each of these four scenarios.

* * *

V. TRIBAL FORUMS

Perhaps the most undeveloped and frustrating area of the law lies in conflicts which arise between tribal forums and state courts. There has been no concerted effort to deal with child custody disputes which overlap Indian country and non-Indian country. For that matter, there has been no concerted effort to deal with child custody disputes involving separate Indian tribes wholly outside the realm of state courts.

The Indian Child Welfare Act,¹⁰⁴ which was passed by Congress in 1978, does not cover child custody disputes which arise in the context of divorce or separation proceedings where custody is awarded to one of the parents.¹⁰⁵ The Indian Child Welfare Act only applies to foster care placement, termination of parental rights, and preadoptive or adoptive placements.¹⁰⁶

The definition of "state" under the UCCJA does not include Indian tribes.¹⁰⁷ Therefore, the UCCJA does not apply to a dispute between parties located on an Indian reservation and in non-reservation areas.¹⁰⁸ Similarly, the PKPA fails to encompass Indian territory in its definition of "state."¹⁰⁹

¹⁰⁴ Indian Child Welfare Act, 25 U.S.C. ss 1901-1963 (1988).

¹⁰⁵ *Application of Defender*, 435 N.W.2d 717, 721-22 (S.D. 1989).

¹⁰⁶ See generally Roger M. Baron, The Resurgence of the "Tribal Interest" in Indian Child Custody Proceedings, 26 TULSA L.J. 315 (1991).

¹⁰⁷ S.D.C.L. s 26-5A-2(10).

¹⁰⁸ *Harris v. Young*, 473 N.W.2d 141, 143 (S.D. 1991).

¹⁰⁹ 28 U.S.C. s 1738A(b)(8).

The South Dakota Supreme Court has expressed its willingness to recognize orders entered by tribal forums on the basis of comity, provided the following conditions are satisfied: (1) the tribal court had subject matter jurisdiction and personal jurisdiction over the parties; (2) the tribal order was not obtained fraudulently; (3) the tribal laws reasonably assure the impartial administration of justice, due notice and hearing; and (4) the tribal order does not contravene the public policy of South Dakota.¹¹⁰ Subsequent legislation in South Dakota¹¹¹ has attempted to codify the principle of comity, specifically recognizing its utilization in child custody disputes.¹¹²

The Rosebud Sioux Tribe has responded by its own enactment of comity legislation which parallels that enacted by the South Dakota Legislature.¹¹³

Similar comity legislation has been enacted by the Oglala Sioux Tribe.¹¹⁴ The tribal enactments of

¹¹⁰ *Mexican v. Circle Bear*, 370 N.W.2d 737, 740 (S.D. 1985) (upholding tribal court order regarding custody of deceased's body on the basis of comity).

¹¹¹ S.D.C.L. s 1-1-25 (1992). The statute provides:
No order or judgment of a tribal court in the state of South Dakota may be recognized as a matter of comity in the state courts of South Dakota, except under the following terms or conditions: (1) Before a state court may consider recognizing a tribal court order or judgment the party seeking recognition shall establish by clear and convincing evidence that:

- (a) The tribal court had jurisdiction over both the subject matter and the parties;
 - (b) The order or judgment was not fraudulently obtained;
 - (c) The order or judgment was obtained by a process that assures the requisites of an impartial administration of justice including but not limited to due notice and a hearing;
 - (d) The order or judgment complies with the laws, ordinances and regulations of the jurisdiction from which it was obtained; and
 - (e) The order or judgment does not contravene the public policy of the state of South Dakota.
- (2) If a court is satisfied that all of the foregoing conditions exist, the court may recognize the tribal court order or judgment in any of the following circumstances: (a) In any child custody or domestic relations case, or (b) In any case in which the jurisdiction issuing the order or judgment also grants comity to orders and judgments of the South Dakota courts; or (c) In other cases if exceptional circumstances warrant it; or (d) Any order required or authorized to be recognized pursuant to 25 U.S.C. s 1911(d) or 25 U.S.C. s 1919.

¹¹² S.D.C.L. §1-1-25(2)(a)(1992).

¹¹³ Rosebud Sioux Tribal Code s 4-2-9 (1989). The Code provides:
When Order or Judgment of Other State, Tribal or Foreign Court may be Recognized in Tribal Court. No order or judgment of a state, tribal or foreign court may be recognized as a matter of comity in the Rosebud Sioux Tribal Court except under the following terms and conditions: (1) Before the Rosebud Sioux Tribal Court may consider recognizing a state, tribal or foreign court order of judgment, the party seeking recognition shall establish by clear and convincing evidence that:

- (a) The court had jurisdiction over both the subject matter and the parties;
- (b) The order or judgment was not fraudulently obtained;
- (c) The order or judgment was obtained by a process that assures the requisites of an impartial administration of justice including but not limited to due notice and a hearing;
- (d) The order or judgment complies with the laws, ordinances and regulations of the jurisdiction from which it was obtained; and
- (e) The order or judgment does not contravene the public policy of the Rosebud Sioux Tribe.

(2) If a Court is satisfied that all of the foregoing conditions exist, the Court may recognize the court order or judgment in any of the following circumstances:

- (a) In any child custody or domestic relations case;
- (b) In any case in which the jurisdiction issuing the order or judgment also grants comity to orders and judgment of the Rosebud Sioux Tribal Courts;
- (c) In other cases if exceptional circumstances warrant it; or
- (d) Any order authorized to be recognized pursuant to 25 U.S.C. s 1911(d) or 25 U.S.C. s 1919.

Id. For an application of this statute in a civil action, see *Red Fox v. Hettich*, 494 N.W.2d 638 (S.D. 1993).

¹¹⁴ Interview with Frank Pommersheim, Professor of Indian Law, University of South Dakota, School of Law, in Vermillion, S.D. (Dec. 9, 1992).

comity legislation extend recognition not only to South Dakota state court orders, but also to orders entered by tribal courts serving other Indian tribes.¹¹⁵

One aspect of the traditional criteria associated with comity appears to be inappropriate for its utilization with child custody decrees. The criterion that the forum court have "personal jurisdiction" over the defendant¹¹⁶ is in conflict with traditional and current legal thought in child custody determinations. Traditionally, a forum's authority to adjudicate child custody was predicated upon the forum's ability to determine the status of its citizens, regardless of whether or not it was also affecting the right of a nonresident.¹¹⁷ The ability of a forum to adjudicate status has been regularly recognized by the courts,¹¹⁸ including the United States Supreme Court,¹¹⁹ without a determination as to whether or not the defendant has minimum contacts with the forum. These principles have been carried over into both the UCCJA and PKPA which approach custody jurisdiction on the "home state" basis without regard to personal jurisdiction over a nonresident defendant.

By way of an example suppose mother, a resident of forum A (be it an Indian reservation or a state), travels into forum B and becomes pregnant in forum B. Mother returns to forum A, delivers the child in forum A, and continues to reside in forum A with the child. Forum A ought to have the authority to determine the custody of the child, one of its residents, regardless of the fact that the father has absolutely no contacts in forum A. So long as forum A is the "home state" of the child it can make a child custody determination under the UCCJA and the PKPA. If forum A happens to be an Indian reservation and the proceeding in the tribal court otherwise satisfies the requirements for "comity," the lack of personal jurisdiction over the father should not make a difference as to whether forum A's judgment is entitled to "comity" recognition elsewhere.¹²⁰

Utilization of the doctrine of "comity" is an extremely weak basis for dealing with child custody jurisdictional disputes which are carried into or originate in Indian country. This is truly an area which warrants in-depth consideration and authoritative resolution. The prospect of competing litigation in multiple forums is unacceptable, regardless of the nature of the forum. It encourages child snatching and undermines the security and well-being of the child. It also drains the emotions and the pocketbooks of the litigants.

* * *

¹¹⁵ See *supra* notes 113-14.

¹¹⁶ S.D.C.L. s 1-1-25(1)(a).

¹¹⁷ *Pennoyer v. Neff*, 95 U.S. 714, 734-35 (1877).

¹¹⁸ See, e.g., *Perry v. Ponder*, 604 S.W.2d 306, 314 (Tex. Civ. App. 1980).

¹¹⁹ *Shaffer v. Heitner*, 433 U.S. 186, 208 n.30 (1977).

¹²⁰ Some of the dictum in *Application of Defender*, 435 N.W.2d at 720-21, suggests otherwise; however, it is important to note that in *Application of Defender*, the South Dakota Supreme Court found the tribal order also lacking in notice and subject matter jurisdiction. 435 N.W.2d at 721 n.4.

C. The Court's Jurisdiction over the Person of the Defendant

1. Issues of Status

Consider the following hypothetical:

H and W were born and raised in Kansas. They were married in Kansas, had a child, C, and lived there as a family unit until January, 2005, when W and C moved to South Dakota. Much time has now passed (well over a year) without H instituting any legal proceedings. Accordingly, W now institutes a divorce action in South Dakota state court. H has never set foot in South Dakota and H has no contacts whatsoever with the State of South Dakota.

Acting in a manner consistent with the Due Process Clause of the Fourteenth Amendment to the United States Constitution, may the South Dakota state court:

- A. Grant W a divorce?
- B. Adjudicate the custody of C?
- C. Assuming custody is awarded to W, may the court enter a binding order for child support against H?

In answering these questions, it is important to keep in mind that questions of “in personam jurisdiction” and the ability of a forum to proceed in cases which affect the rights of nonresidents were first raised and authoritatively decided in *Pennoyer v. Neff*. The holding of *Pennoyer* is that personal service of process within the borders of the forum is required before a court may render a personal judgment that is binding on the defendant.

Exceptions to the rule of *Pennoyer* have developed over the years. One of the most famous exceptions is the “minimum contacts” analysis first given in *International Shoe Co. v. Washington*, 326 U.S. 310 (1945). (The assertion of jurisdiction over the nonresident is authorized so long as the nonresident has minimum contacts with the forum such that the maintenance of the suit satisfies traditional notions of fair play and substantial justice.)

Much time is spent in Civil Procedure class in Law School going over the exceptions to the rule of *Pennoyer* which have been developed in case law over the years. With so much time and attention being given to the historical developments under *Pennoyer*, many law students lose sight of the fact that the *Pennoyer* opinion itself is full of important language which recognizes exceptions to its holding. Some of the language in *Pennoyer* is extremely important to the development of family law issues.

PENNOYER v. NEFF

Supreme Court of the United States, 1877.
95 U.S. (5 Otto) 714, 24 L.Ed. 565.

Error to the Circuit Court of the United States for the District of Oregon.

Mr. Justice FIELD delivered the opinion of the court.

* * *

It follows from the views expressed that the personal judgment recovered in the State Court of Oregon against the plaintiff herein, then a non-resident of the State, was without any validity, and did not authorize a sale of the property in controversy.

To prevent any misapplication of the views expressed in this opinion, it is proper to observe that we do not mean to assert, by anything we have said, that a State may not authorize proceedings to determine the status of one of its citizens towards a non-resident, which would be binding within the State, though made without service of process or personal notice to the non-resident. The jurisdiction which every State possesses to determine the civil status and capacities of all its inhabitants involves authority to prescribe the conditions on which proceedings affecting them may be commenced and carried on within its territory. The State, for example, has absolute right to prescribe the conditions upon which the marriage relation between its own citizens shall be created, and the causes for which it may be dissolved. One of the parties guilty of acts for which, by the law of the State, a dissolution may be granted, may have removed to a State where no dissolution is permitted. The complaining party would, therefore, fail if a divorce were brought in the State of the defendant; and if application could not be made to the tribunals of the complainant's domicile in such case, and proceedings be there instituted without personal service of process or personal notice to the offending party, the injured citizen would be without redress. * * *

NOTES

1. The Iowa Supreme Court recently held that an Iowa court does not need personal jurisdiction over a nonresident defendant in order for it to enter a valid protective order in a domestic abuse case. *Bartsch v. Bartsch*, 636 N.W.2d 3, (Iowa 2001). The rationale is that a protection order is an adjudication which affects the *status* of the plaintiff – not an order which imposes a personal judgment against the nonresident defendant.

2. An appellate court in New Jersey reached the same result as the Iowa Supreme Court in *Shah v. Shah*, N.J. App. Div., No. A-0899-03T5, 11/9/04, 31 Family Law Reporter 1033. In this case the husband had instituted a divorce proceeding in Illinois and the wife fled to New Jersey where she sought an order of protection against the husband. The New Jersey trial court granted the wife a restraining order despite the absence of “minimum contacts” between the defendant-husband and the forum. The trial court also ordered the husband to pay temporary support to wife. The appellate court affirmed the trial court’s ability to grant the restraining order regardless of the fact the husband was not subject to personal jurisdiction in New Jersey. The portion of the order which required temporary support was struck down because of the inability of the court to impose a personal order against husband.

C. The Court's Jurisdiction over the Person of the Defendant

2. Personal Jurisdiction

NOTES AND QUESTIONS

1. The most common form of “personal jurisdiction” in family law matters lies in the assessment of a support obligation – child support or alimony.

2. It is an uncomfortable fact of life that family law cases are often splintered about various forums as a result of the jurisdiction rules that have come about. The court which makes the custody determination may lack jurisdiction over the non-custodial parent and hence a court in another forum may be required to rule on child support. The court which grants the divorce may lack jurisdiction to decide custody. This latter scenario was demonstrated in *Lustig v. Lustig*, 1997 SD 24, 560 N.W.2d 239 (S.D. 1997) wherein the trial court was found to have acted properly in deferring the custody determination to Minnesota, but was found to have acted improperly in dismissing the husband's properly filed divorce action in South Dakota. An action for divorce can properly proceed in South Dakota, notwithstanding the fact that another court [in this case a Minnesota court] will be adjudicating the custody issues. The *Lustig* decision also stands for the proposition that an action for “divorce” is not governed by the Uniform Child Custody Jurisdiction Act (also referred to as the “UCCJA”), even though a custody determination (which might logically be otherwise included in the divorce action) is governed by the UCCJA.

3. Consistent with the holding in *Pennoyer v. Neff*, personal jurisdiction in many cases has been upheld based solely on the fact that the defendant was literally served with process while he was in the forum, even though he may have just been passing through it. (This is also known as “tagging” jurisdiction, because the defendant is “tagged” on his way through the forum much as a baseball player may be tagged while running to base.) One of the most extreme examples of this may be found in *Grace v. MacArthur*, 170 F.Supp. 442 (E.D.Ark. 1959) where jurisdiction was upheld on the defendant who was served with process while on an airplane passing over the forum.

4. Without going over the historical post-*Pennoyer* developments in detail, it should be noted that the case of *Shaffer v. Heitner*, 433 U.S. 186 (1977) did cast some doubt upon the validity of such “tagging” jurisdiction.

5. Notwithstanding the intervening *Shaffer* decision, the U.S. Supreme Court recently upheld “tagging” jurisdiction upon a father who was served in California while there only briefly visiting his children. The children were taken from New Jersey to California and the father had virtually no contacts in California. Nonetheless, personal jurisdiction was upheld, based on his physical presence in the forum when served. *Burnham v. Superior Court*, 110 S.Ct. 2105 (1990).

6. The South Dakota Long Arm Statute (SDCL 15-7-2) is set forth following these notes. Note that the reach of state courts is governed not only by the 14th amendment, but also by legislative authority. Are sections (1) through (13) of the South Dakota Long Arm Statute needed in light of section (14)?

7. What if the father in *Burnham* has never set foot in California? Compare SDCL 15-7-2-(7) with the *Kulko* case which follows.

Many of the provisions of South Dakota's Long Arm Statute have been geared toward family law issues. That statute is reproduced as follows:

15-7-2. Acts within the state subjecting persons to jurisdiction of the courts. Any person is subject to the jurisdiction of the courts of this state as to any cause of action arising from the doing personally, through any employee, through an agent or through a subsidiary, of any of the following acts:

- (1) The transaction of any business within the state;
- (2) The commission of any act which results in accrual within this state of a tort action;
- (3) The ownership, use, or possession of any property, or of any interest therein, situated within this state;
- (4) Contracting to insure any person, property, or risk located within this state at the time of contracting;
- (5) Entering into a contract for services to be rendered or for materials to be furnished in this state by such person;
- (6) Acting as director, manager, trustee, or other officer of any corporation organized under the laws of, or having its principal place of business within this state, or as personal representative of any estate within this state;
- (7) Failure to support a minor child residing in South Dakota;
- (8) Having sexual intercourse in this state, which act creates a cause of action for the determination of paternity of a child who may have been conceived by that act of intercourse;
- (9) With respect to any action for divorce, separate maintenance or spousal support the maintenance in this state of a matrimonial domicile at the time the claim arose or the commission in this state of an act giving rise to the claim, subject to the provisions of § 25-4-30;
- (10) Entering into negotiations with any person within the state with the apparent objective of contracting for services to be rendered or materials to be furnished in this state;
- (11) Commencing or participating in negotiations, mediation, arbitration or litigation involving subject matter located in whole or in part within the state;
- (12) Doing any act for the purpose of influencing legislation, administrative rule-making or judicial or administrative decision-making by any local, state or federal official whose official function is being performed within the state, providing that an appearance to contest personal jurisdiction shall not be within this subsection;
- (13) The commission of any act which results in the accrual of an action in this state for a violation of the antitrust laws of the United States or chapter 37-1;
- (14) The commission of any act, the basis of which is not inconsistent with the Constitution of this state or with the Constitution of the United States.

Source: SL 1965, ch 163, §2; 1978, ch 146, §§ 1, 2; 1983, ch 156, § 1; 1984, ch 190, § 48; 1986, ch 162. Amendments. The 1986 amendment added subdivision (14).

KULKO v. SUPERIOR COURT

Supreme Court of the United States, 1978
436 U.S. 84, 98 S.Ct. 1690.

Mr. Justice MARSHALL delivered the opinion of the Court.

The issue before us is whether, in this action for child support, the California state courts may exercise in personam jurisdiction over a nonresident, nondomiciliary parent of minor children domiciled within the State. For reasons set forth below, we hold that the exercise of such jurisdiction would violate the Due Process Clause of the Fourteenth Amendment.

Appellant Ezra Kulko married appellee Sharon Kulko Horn in 1959, during appellant's three-day stopover in California en route from a military base in Texas to a tour of duty in Korea. At the time of this marriage, both parties were domiciled in and residents of New York State. Immediately following the marriage, Sharon Kulko returned to New York, as did appellant after his tour of duty. Their first child, Darwin, was born to the Kulkos in New York in 1961, and a year later their second child, Ilsa, was born, also in New York. The Kulkos and their two children resided together as a family in New York City continuously until March 1972, when the Kulkos separated.

Following the separation, Sharon Kulko moved to San Francisco, Cal. A written separation agreement was drawn up in New York; in September 1972, Sharon Kulko flew to New York City in order to sign this agreement. The agreement provided, inter alia, that the children would remain with their father during the school year but would spend their Christmas, Easter, and summer vacations with their mother. While Sharon Kulko waived any claim for her own support or maintenance, Ezra Kulko agreed to pay his wife \$3,000 per year in child support for the periods when the children were in her care, custody, and control. Immediately after execution of the separation agreement, Sharon Kulko flew to Haiti and procured a divorce there; the divorce decree incorporated the terms of the agreement. She then returned to California, where she remarried and took the name Horn.

The children resided with appellant during the school year and with their mother on vacations, as provided by the separation agreement, until December 1973. At this time, just before Ilsa was to leave New York to spend Christmas vacation with her mother, she told her father that she wanted to remain in California after her vacation. Appellant bought his daughter a one-way plane ticket, and Ilsa left, taking her clothing with her. Ilsa then commenced living in California with her mother during the school year and spending vacations with her father. In January 1976, appellant's other child, Darwin, called his mother from New York and advised her that he wanted to live with her in California. Unbeknownst to appellant, appellee Horn sent a plane ticket to her son, which he used to fly to California where he took up residence with his mother and sister.

Less than one month after Darwin's arrival in California, appellee Horn commenced this action against appellant in the California Superior Court. She sought to establish the Haitian divorce decree as a California judgment; to modify the judgment so as to award her full custody of the children; and to increase appellant's child-support obligations. Appellant appeared specially and moved to quash service of the summons on the ground that he was not a resident of California and lacked sufficient "minimum contacts" with the State under *International Shoe Co. v. Washington*, 326 U.S. 310, 316, 66 S.Ct. 154, 158, 90 L.Ed. 95 (1945), to warrant the State's assertion of personal jurisdiction over him.

The trial court summarily denied the motion to quash, and appellant sought review in the

California Court of Appeal by petition for a writ of mandate. Appellant did not contest the court's jurisdiction for purposes of the custody determination, but, with respect to the claim for increased support, he renewed his argument that the California courts lacked personal jurisdiction over him. The appellate court affirmed the denial of appellant's motion to quash, reasoning that, by consenting to his children's living in California, appellant had "caused an effect in th[e] state" warranting the exercise of jurisdiction over him. 133 Cal.Rptr. 627, 628 (1976).

* * *

The Due Process Clause of the Fourteenth Amendment operates as a limitation on the jurisdiction of state courts to enter judgments affecting rights or interests of nonresident defendants. *See Shaffer v. Heitner*, 433 U.S. 186, 198-200, 97 S.Ct. 2569, 2577, 53 L.Ed.2d 683 (1977). It has long been the rule that a valid judgment imposing a personal obligation or duty in favor of the plaintiff may be entered only by a court having jurisdiction over the person of the defendant. *Pennoyer v. Neff*, 95 U.S. 714, 732-733, 24 L.Ed. 565, 572 (1878); *International Shoe Co. v. Washington*, 326 U.S., at 316, 66 S.Ct., at 158. The existence of personal jurisdiction, in turn, depends upon the presence of reasonable notice to the defendant that an action has been brought. *Mullane v. Central Hanover Trust Co.*, 339 U.S. 306, 313-314, 70 S.Ct. 652, 656-657, 94 L.Ed. 865 (1950), and a sufficient connection between the defendant and the forum State to make it fair to require defense of the action in the forum. *Milliken v. Meyer*, 311 U.S. 457, 463-464, 61 S.Ct. 339, 342-343, 85 L.Ed. 278 (1940). In this case, appellant does not dispute the adequacy of the notice that he received, but contends that his connection with the State of California is too attenuated, under the standards implicit in the Due Process Clause of the Constitution, to justify imposing upon him the burden and inconvenience of defense in California.

The parties are in agreement that the constitutional standard for determining whether the State may enter a binding judgment against appellant here is that set forth in this Court's opinion in *International Shoe Co. v. Washington*, *supra*: that a defendant "have certain minimum contacts with [the forum State] such that the maintenance of the suit does not offend 'traditional notions of fair play and substantial justice.'" 326 U.S., at 316, 66 S.Ct., at 158, quoting *Milliken v. Meyer*, *supra*, 311 U.S., at 463, 61 S.Ct., at 342. While the interests of the forum State and of the plaintiff in proceeding with the cause in the plaintiff's forum of choice are, of course, to be considered, *see McGee v. International Life Insurance Co.*, 355 U.S. 220, 223, 78 S.Ct. 199, 201, 2 L.Ed.2d 223 (1957), an essential criterion in all cases is whether the "quality and nature" of the defendant's activity is such that it is "reasonable" and "fair" to require him to conduct his defense in that State. *International Shoe Co. v. Washington*, *supra*, 326 U.S., at 316-317, 319, 66 S.Ct., at 158, 159. *Accord*, *Shaffer v. Heitner*, *supra*, 433 U.S., at 207-212, 97 S.Ct., at 2581-2584; *Perkins v. Benguet Mining Co.*, 342 U.S. 437, 445, 72 S.Ct. 413, 418, 96 L.Ed. 485 (1952).

Like any standard that requires a determination of "reasonableness," the "minimum contacts" test of *International Shoe* is not susceptible of mechanical application; rather, the facts of each case must be weighed to determine whether the requisite "affiliating circumstances" are present. *Hanson v. Denckla*, 357 U.S. 235, 246, 78 S.Ct. 1228, 1235, 2 L.Ed.2d 1283 (1958). We recognize that this determination is one in which few answers will be written "in black and white. The greys are dominant and even among them the shades are innumerable." *Estin v. Estin*, 334 U.S. 541, 545, 68 S.Ct. 1213, 1216, 92 L.Ed. 1561 (1948). But we believe that the California Supreme Court's application of the minimum-contacts test in this case represents an unwarranted extension of *International Shoe* and would, if sustained, sanction a result that is neither fair, just, nor reasonable.

In reaching its result, the California Supreme Court did not rely on appellant's glancing presence in the State some 13 years before the events that led to this controversy, nor could it have. Appellant has been in California on only two occasions, once in 1959 for a three-day military stopover on his way to Korea, *see supra*, at 1694, and again in 1960 for a 24-hour stopover on his return from Korean service. To hold such temporary visits to a State a basis for the assertion of in personam jurisdiction over unrelated actions arising in the future would make a mockery of the limitations on state jurisdiction imposed by the Fourteenth Amendment. Nor did the California court rely on the fact that appellant was actually married in California on one of his two brief visits. We agree that where two New York domiciliaries, for reasons of convenience, marry in the State of California and thereafter spend their entire married life in New York, the fact of their California marriage by itself cannot support a California court's exercise of jurisdiction over a spouse who remains a New York resident in an action relating to child support.

Finally, in holding that personal jurisdiction existed, the court below carefully disclaimed reliance on the fact that appellant had agreed at the time of separation to allow his children to live with their mother three months a year and that he had sent them to California each year pursuant to this agreement. As was noted below, 19 Cal.3d, at 523-524, 138 Cal.Rptr., at 590, 564 P.2d, at 357, to find personal jurisdiction in a State on this basis, merely because the mother was residing there, would discourage parents from entering into reasonable visitation agreements. Moreover, it could arbitrarily subject one parent to suit in any State of the Union where the other parent chose to spend time while having custody of their offspring pursuant to a separation agreement. As we have emphasized:

"The unilateral activity of those who claim some relationship with a nonresident defendant cannot satisfy the requirement of contact with the forum State. . . . [I]t is essential in each case that there be some act by which the defendant purposefully avails [him]self of the privilege of conducting activities within the forum State" *Hanson v. Denckla, supra*, 357 U.S., at 253, 78 S.Ct., at 1240.

The "purposeful act" that the California Supreme Court believed did warrant the exercise of personal jurisdiction over appellant in California was his "actively and fully consent[ing] to Ilsa living in California for the school year . . . and . . . sen[ding] her to California for that purpose." 19 Cal.3d, at 524, 138 Cal.Rptr., at 591, 564 P.2d, at 358. We cannot accept the proposition that appellant's acquiescence in Ilsa's desire to live with her mother conferred jurisdiction over appellant in the California courts in this action. A father who agrees, in the interests of family harmony and his children's preferences, to allow them to spend more time in California than was required under a separation agreement can hardly be said to have "purposefully availed himself" of the "benefits and protections" of California's laws. *See Shaffer v. Heitner*, 433 U.S., at 216, 97 S.Ct., at 2586.

Nor can we agree with the assertion of the court below that the exercise of in personam jurisdiction here was warranted by the financial benefit appellant derived from his daughter's presence in California for nine months of the year. 19 Cal.3d at 524-525, 138 Cal.Rptr., at 590-591, 564 P.2d, at 358. This argument rests on the premise that, while appellant's liability for support payments remained unchanged, his yearly expenses for supporting the child in New York decreased. But this circumstance, even if true, does not support California's assertion of jurisdiction here. Any diminution in appellant's household costs resulted, not from the child's presence in California, but rather from her absence from appellant's home. Moreover, an action by appellee Horn to increase support payments could now be brought, and could have been brought when Ilsa first moved to California, in the State of New York; a

New York court would clearly have personal jurisdiction over appellant and, if a judgment were entered by a New York court increasing appellant's child-support obligations, it could properly be enforced against him in both New York and California.¹ Any ultimate financial advantage to appellant thus results not from the child's presence in California, but from appellee's failure earlier to seek an increase in payments under the separation agreement. The argument below to the contrary, in our view, confuses the question of appellant's liability with that of the proper forum in which to determine that liability.

In light of our conclusion that appellant did not purposefully derive benefit from any activities relating to the State of California, it is apparent that the California Supreme Court's reliance on appellant's having caused an "effect" in California was misplaced. *See supra.*, at 1695. This "effects" test is derived from the American Law Institute's Restatement (Second) of Conflict of Laws § 37 (1971), which provides:

"A state has power to exercise judicial jurisdiction over an individual who causes effects in the state by an act done elsewhere with respect to any cause of action arising from these effects unless the nature of the effects and of the individual's relationship to the state make the exercise of such jurisdiction unreasonable."

While this provision is not binding on this Court, it does not in any event support the decision below. As is apparent from the examples accompanying § 37 in the Restatement, this section was intended to reach wrongful activity outside of the State causing injury within the State, *see, e. g.*, Comment a, p. 157 (shooting bullet from one State into another), or commercial activity affecting state residents, *ibid.* Even in such situations, moreover, the Restatement recognizes that there might be circumstances that would render "unreasonable" the assertion of jurisdiction over the nonresident defendant.

* * * To make jurisdiction in a case such as this turn on whether appellant bought his daughter her ticket or instead unsuccessfully sought to prevent her departure would impose an unreasonable burden on family relations, and one wholly unjustified by the "quality and nature" of appellant's activities in or relating to the State of California. *International Shoe Co. v. Washington*, 326 U.S., at 319, 66 S.Ct., at 159.

* * *

California's legitimate interest in ensuring the support of children resident in California without unduly disrupting the children's lives, moreover, is already being served by the State's participation in the Revised Uniform Reciprocal Enforcement of Support Act of 1968. This statute provides a mechanism for communication between court systems in different States, in order to facilitate the procurement and enforcement of child-support decrees where the dependent children reside in a State that cannot obtain personal jurisdiction over the defendant. California's version of the Act essentially permits a California resident claiming support from a nonresident to file a petition in California and have its merits adjudicated in the State of the alleged obligor's residence, without either party's having to leave his or her own State. Cal.Civ.Proc. Code Ann. § 1650 et seq. (West 1972 and Supp. 1978). New York State is a signatory to a similar Act. Thus, not only may plaintiff-appellee here vindicate her claimed right to additional child support from her former husband in a New York court, *see supra.*, at 1698-1699, but also the Uniform Acts will facilitate both her prosecution of a claim for additional support and collection of

¹ A final judgment entered by a New York court having jurisdiction over the defendant's person and over the subject matter of the lawsuit would be entitled to full faith and credit in any State. *See New York ex rel. Halvey v. Halvey*, 330 U.S. 610, 614, 6a7 S.Ct. 903, 905, 91 L.Ed. 1133 (1947). *See also Sosna v. Iowa*, 419 U.S. 393, 407, 95 S.Ct. 553, 561, 42 L.Ed.2d 532 (1975).

any support payments found to be owed by appellant.

* * *

Accordingly, we conclude that the appellant's motion to quash service, on the ground of lack of personal jurisdiction, was erroneously denied by the California courts. The judgment of the California Supreme Court is, therefore,

Reversed.

Mr. Justice BRENNAN, with whom Mr. Justice WHITE and Mr. Justice POWELL join, dissenting.

* * * I cannot say that the Court's determination against state-court in personam jurisdiction is implausible, but, though the issue is close, my independent weighing of the facts leads me to conclude, in agreement with the analysis and determination of the California Supreme Court, that appellant's connection with the State of California was not too attenuated, under the standards of reasonableness and fairness implicit in the Due Process Clause, to require him to conduct his defense in the California courts. I therefore dissent.

NOTES

1. The *Kulko* opinion mentions the Revised Uniform Enforcement of Support Act ("RURESA"). South Dakota's participation in URESA, RURESA, and the UIFSA is discussed in this book in the chapter on Enforcement. *See also* SDCL 25-9B.

2. There have been a few family law cases decided by the South Dakota Supreme Court in which the various provisions of the South Dakota Long Arm Statute have been drawn into focus. One in particular is troublesome. In *Johansen v. Johansen*, 305 N.W.2d 383 (S.D. 1981) jurisdiction was asserted over the nonresident father solely on the basis of his "(7) Failure to support a minor child residing in South Dakota." Neither the trial court nor the South Dakota Supreme Court were advised of the U.S. Supreme Court's decision in *Kulko* when the *Johansen* case was argued. The result in *Johansen* is inconsistent with *Kulko* and not reliable in dealing with future assertions of jurisdiction. *See* John Larson, "In Personam Jurisdiction," 31 South Dakota Law Review 116 at 152-53 (1985).

3. For further discussion on "failure to support" as a basis for jurisdiction, see Ann Bradford Stevens, "Is Failure to Support a Minor Child in the State Sufficient Contact with that State to Justify In Personam Jurisdiction," 17 S.I.U. Law J. 491 (1993).

4. Mere "failure to support a child" was held to be not a sufficient basis for personal jurisdiction over an alleged father in a paternity action. The child was not alleged to have been conceived in South Dakota and the alleged father never resided in South Dakota in *State ex rel. Murphy v. Basile*, 516 N.W.2d 663 (S.D.1994). Prior "failure to support" case law in South Dakota was distinguished as not involving a paternity contest. The South Dakota Supreme Court did not cite or rely on *Kulko v. Superior Court*, 436 U.S. 84 (1978) which appears to dictate the same result. The *Basile* case was the subject of a student work by Heather M. Lammers in "*Murphy v. Basile: Successful Abandonment by the Judicial System of a Mother Asserting In Personam Jurisdiction Against a Nonresident Putative Father*," 40 South Dakota Law Review 546 (1995).

5. “Having sexual intercourse in this state” under SDCL 15-7-2 (8) was the primary basis for the assertion of jurisdiction over the defendant (a Nebraska resident) in a paternity action in *Johnson v. Kusel*, 298 N.W.2d 91 (S.D.1980) where the child was allegedly conceived in Yankton County. The situation was the same in the Nebraska case of, *State DSS v. Cummings*, 515 N.W.2d 680 (Neb.App. 1994), where personal jurisdiction over a South Dakota resident was upheld in Nebraska state court paternity and child support proceeding, based upon the defendant’s act of sexual intercourse in the State of Nebraska.

6. The maintenance of a matrimonial domicile in this state (SDCL 15-7-2 (9)) and the ownership of property in this state (SDCL 15-7-2 (3)) served as adequate bases of jurisdiction for the entry of a personal judgment against the husband for alimony and child support in *Plucker v. Plucker*, 338 N.W.2d 842 (1983).

7. Supporting the result in *Plucker*, it should be noted that personal jurisdiction over “absent” citizens was authorized in *Milliken v. Meyer*, 311 U.S. 457 (1940). “Absent” citizens are persons who are (or have been) citizens and residents of the forum but who later become absent.

8. Personal jurisdiction over a father (in Idaho) in a Colorado paternity/child support proceeding was found to be authorized by virtue of a letter which he sent to the mother in Colorado. *In re H.Z.G.*, Colorado Court of Appeals, 77 P.3d 848, (Col.Ct.App. 2003). Although the child was conceived in Idaho, the letter was designed to help the mother secure welfare payments in Colorado and the father understood that his letter would be submitted as part of mother’s application for welfare. *Kulko* was distinguished because in this case the father’s letter was deemed to be a purposeful act, not a random or fortuitous contact with the forum.

D. Due Process

1. Reasonable Notice

NOTES

1. The leading case on the requirement of reasonable notice is *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306 (1950) wherein the Court stated as follows:

An elementary and fundamental requirement of due process in any proceeding which is to be accorded finality is notice reasonably calculated under all the circumstances, to apprise interested parties of the pendency of the action and afford them the opportunity to present their objections.

Id. at 314.

2. Many divorces are and have been granted following service of process by publication. Service by publication may be warranted in some cases where all reasonable efforts have been made to locate the defendant and there is no other feasible way to proceed. Certainly in many cases, considering the fact the plaintiff is married to the defendant, it is hard to believe that the plaintiff does not know of someone somewhere who would know where the defendant is located.

3. The next case brings under scrutiny the situation where the plaintiff did not know where her husband was when she instituted her suit for divorce, but later determined his whereabouts before the case was heard.

NOLAN v. NOLAN

Supreme Court of South Dakota, 1992.
490 N.W.2d 517.

* * *

On October 3, 1986, mother filed an affidavit with the trial court seeking leave to serve process in a divorce action against father by publication in accordance with SDCL 15-9-7 and 15-9-8. In her affidavit, mother averred she had, "no idea of the location or whereabouts of [father]." The trial court subsequently granted mother's request and entered its order allowing the divorce summons to be served by publication. The summons was published in a local newspaper for four successive weeks from October 17 through November 7, 1986. On January 12, 1987, the trial court entered a default divorce decree which, among other provisions, required father to pay \$300 per month in child support for the parties' three children.

* * *

On February 12, 1991, mother filed an affidavit and application for a trial court order for father to show cause why he should not be held in contempt for failure to pay child support. In her affidavit, mother

averred father had failed to pay any child support whatsoever. In his responding affidavit, father requested that the trial court determine that the parties' divorce decree was entered without jurisdiction on the issue of child support because mother obtained service in the action by publication at a time when she knew his whereabouts and was in constant telephone contact with him.

The show cause hearing began on March 6, 1991. This part of the hearing concentrated on the jurisdictional validity of the divorce decree. The trial court upheld the validity of the decree in a memorandum opinion filed on March 22, 1991. The show cause hearing continued on April 15, 1991, and, on May 6, 1991, the trial court entered its findings of fact, conclusions of law and a judgment holding father in contempt for failing to pay child support. Father appeals.

* * *

In *United Nat. Bank v. Searles*, 331 N.W.2d 288, 292 (S.D.1983), this court made clear that, "when a party litigant discovers the address of an out-of- state defendant before or during the pendency of service by publication of notice, that party litigant must then attempt to obtain personal service of process *to secure in personam jurisdiction over defendant.*" (emphasis added).

In this instance, mother signed an affidavit stating she did not know father's whereabouts in order to serve the divorce papers. However, the trial court specifically found from the bench that father's address was known by October 8, 1986. This was still during the pendency of the divorce action. The trial court further found that sometime between September 14, 1986, and October 8, 1986, mother was given a phone number where father could be reached and did learn father was in Tennessee. During the initial hearing on this matter, mother herself conceded some knowledge of father's whereabouts during the pendency of the divorce action:

Q: [by Mr. McCann] Did he call you in November of '86?

A: [Kim Nolan] I might have known where he was by November or December.

Q: Did you make any attempt--?

A: I knew--I knew. I don't know how I knew. I don't even remember how I knew, but I knew he was down in Nashville in rehab.

* * *

Q: Well, isn't it a fact that in November and December that you and he talked on the phone more than once?

A: No.

Q: That's not true?

A: (Head shake. No verbal response.)

Q: You are saying you only talked to him once?

A: I think so.

Q: Okay. And at that time, you knew where he was at?

A: I knew that he was in Nashville in the rehab center.

Q: And you knew where it was?

A: I knew it was in Nashville. I don't remember where it was.

Thus, by mother's own testimony, it is clear she knew father was in Nashville, Tennessee, at least a month and possibly two months prior to entry of the initial divorce decree. Although the trial court's findings and conclusions placed particular emphasis on the fact mother did not have a precise address for father in Tennessee, this court has placed a heavier duty on those seeking exemption from personal service

requirements than to simply ignore the information they do obtain.

As we held in *Ryken v. State*, 305 N.W.2d 393 (S.D.1981), before service by publication under SDCL 15-9-7 may be ordered, the party instituting the litigation must exhaust all reasonable means available in an effort to locate interested parties to the litigation. Clearly, a legally sufficient, due diligent search should have the purpose of generating information. *If some of that information is developed and bears fruit only after service by publication has been initiated, party litigants are not free to seek haven under or within the framework of a former state of facts.*

Appellee's duty to apprise appellant, the interested party, did not evaporate once it had conducted a search which comported with the "due diligence" standards in light of its discovery as to the actual whereabouts of appellant. *Appellee owed a duty to put this additional information to use, rather than restricting its view to hopes of obtaining a default judgment by publication.*

United Nat. Bank, 331 N.W.2d at 292 (emphasis added).

In this instance, there is no indication in the record that mother even attempted to use her knowledge of father's telephone number or his presence in Nashville, Tennessee to ascertain his address and accomplish personal service of process. Under *United Nat. Bank*, mother was required to contact the appropriate Tennessee authorities and at least attempt to ascertain father's address prior to the entry of the default divorce decree. Since mother failed in any attempt to obtain personal service of process in the divorce action and thereby secure in personam jurisdiction over father, the default judgment entered in this case is void and should have been vacated by the trial court. *See, United Nat. Bank, supra.* See also, *Ryken v. State*, 305 N.W.2d 393 (S.D.1981) (judgment in quiet title action vacated where defendants should not have been served by publication because plaintiffs failed to exercise due diligence in attempting to discover defendants' interests in property).

Moreover, mother's contention that father had actual notice of the pendency of the divorce proceedings requires no change in the above conclusion.

* * *

Based upon the foregoing authorities and particularly our own settled law in *United Nat. Bank, supra*, we hold that the trial court in the present case never acquired in personam jurisdiction over father sufficient to validate the default divorce decree rendered on mother's invalid service of process by publication. The decree was void ab initio and the trial court had no alternative but to vacate the decree on father's jurisdictional challenge.

* * *

Reversed and remanded.

* * *

QUESTION

Is “no” notice at all permissible? Apparently so, according to the South Dakota Supreme Court, in the situation concerning the father of an illegitimate child where he is ignorant of his own parenthood. Consider the following case:

An unwed mother wished to give her baby up for adoption. The child was born on 2/12/94. Four days later a petition for the voluntary termination of parental rights was filed. One publication of notice in a newspaper took place and on 2/28/94 (just 16 days after birth), a hearing was held at which time the mother’s rights were terminated and parental rights for adoption were transferred to Lutheran Social Services of South Dakota. At the hearing, the mother falsely testified that she was impregnated by a male unknown to her. The father first learned of the pregnancy in the second week of March and he filed a paternity action and an application for writ of habeas corpus on 5/23/94. Father also pursued a motion to vacate the final order in the voluntary proceeding. Father secured no relief at the trial level and appealed. Before the case was decided on appeal, the father consented to the termination. Nonetheless, the South Dakota Supreme Court handed down its opinion which validated the proceedings. Even though the proceedings were initiated before the expiration of 60 days from the birth of the child, the father had no assertable rights because he waited longer than 60 days from the birth of the child to acknowledge the child as his own. The court held SDCL 25-6-1.1 (the statute requiring acknowledgment within 60 days of birth) to be constitutional. The court refused to recognize any sort of exception for situations where the mother, through misrepresentations, deceives a father and keeps the fact of pregnancy from him. The court stated, “When a putative father is ignorant of his parenthood due to his own fleeting relationship with the mother and her unwillingness to later notify him of her pregnancy, the child should not be made to suffer.” *Matter of Baby Boy K*, 546 N.W.2d 86 (S.D. 1996).

D. Due Process

2. Opportunity to be Heard

In order for jurisdiction to lie in the U.S. Supreme Court, 28 U.S.C. § 1257 requires that there must have been a “final” judgment by the “highest” court of the state. What was the decision of the Texas Supreme Court in the following case? Perhaps a better understanding of the position taken by the Texas Supreme Court in *Armstrong v. Manzo* can be attained after taking up *Page v. Sherrill* which follows the *Ex Parte J.A.P.* case.

ARMSTRONG v. MANZO

Supreme Court of the United States, 1965.
380 U.S. 545, 85 S.Ct. 1187.

Mr. Justice STEWART delivered the opinion of the Court.

The petitioner, R. Wright Armstrong, Jr., and his wife were divorced by a Texas court in 1959. Custody of their only child, Molly Page Armstrong, was awarded to Mrs. Armstrong, and the petitioner was granted “the privilege of visiting with said child at reasonable times, places, and intervals.” The divorce decree ordered the petitioner to pay \$50 a month for his daughter's support. In 1960 Mrs. Armstrong married the respondent, Salvatore E. Manzo. Two years later the Manzos filed a petition for adoption in the District Court of El Paso County, Texas, seeking to make Salvatore Manzo the legal father of Molly Page Armstrong.

Texas law provides that an adoption such as this one shall not be permitted without the written consent of the child's natural father, except in certain specified circumstances. One such exceptional circumstance is if the father “shall have not contributed substantially to the support of such child during (a) period of two (2) years commensurate with his financial ability.” In that event, the written consent of the judge of the juvenile court of the county of the child's residence may be accepted by the adoption court in lieu of the father's consent.

Preliminary to filing the adoption petition, Mrs. Manzo filed an affidavit in the juvenile court, alleging in conclusory terms that the petitioner had “failed to contribute to the support of Molly Page Armstrong “for a period in excess of two years preceding this date.” No notice was given to the petitioner of the filing of this affidavit, although the Manzos well knew his precise whereabouts in Fort Worth, Texas. On the basis of the affidavit, and without, so far as the record shows, a hearing of any kind, the juvenile court judge promptly issued his consent to the adoption. In the adoption petition, filed later the same day, the Manzos alleged that “consent of the natural father, R. W. Armstrong, Jr., to the adoption herein sought is not necessary upon grounds that the said father has not contributed to the support of said minor child commensurate with his ability to do so for a period in excess of two (2) years, and the Judge of a Juvenile Court of El Paso County, Texas * * * has consented in writing to said adoption.” No notice of any kind was given to the petitioner of the filing or pendency of this adoption petition.

An investigator appointed by the court made a detailed written report recommending the adoption, and a few weeks later the adoption decree was entered. The decree provided in accord with Texas law that “all legal relationship and all rights and duties between such Child and the natural father shall cease and determine, and such Child is hereafter deemed and held to be for every purpose the child of its parent by adoption, as fully as though naturally born to him in lawful wedlock,” and further provided that “the said Molly Page Armstrong shall be known by the Christian and Surname as Molly Page Manzo, from this day forward.”

During this entire period the petitioner was not given, and did not have, the slightest inkling of the pendency of these adoption proceedings. On the day the decree was entered, however, Salvatore Manzo wrote to the petitioner's father, advising him that “I have this date completed court action to adopt Molly Page as my daughter and to change her name to Molly Page Manzo.” The petitioner's father immediately relayed this news to the petitioner, who promptly filed a motion in the District Court of El Paso County, asking that the adoption decree be “set aside and annulled and a new trial granted,” upon the ground that he had been given no notice of the adoption proceedings.

The petitioner appealed to the appropriate Texas court of civil appeals, upon the ground, among others, that the trial court had erred in not setting aside the adoption decree, because the entry of the decree without notice to the petitioner had deprived him “of his child without due process of law.” The appellate court affirmed the trial court's judgment, and the Supreme Court of Texas refused an application for writ of error.

We granted certiorari. 379 U.S. 816, 85 S.Ct. 46, 13 L.Ed.2d 26. The questions before us are whether failure to notify the petitioner of the pendency of the adoption proceedings deprived him of due process of law so as to render the adoption decree constitutionally invalid, and, if so, whether the subsequent hearing on the petitioner's motion to set aside the decree served to cure its constitutional invalidity.

In disposing of the first issue, there is no occasion to linger long. It is clear that failure to give the petitioner notice of the pending adoption proceedings violated the most rudimentary demands of due process of law. “Many controversies have raged about the cryptic and abstract words of the Due Process Clause but there can be no doubt that at a minimum they require that deprivation of life, liberty or property by adjudication be preceded by notice and opportunity for hearing appropriate to the nature of the case.” *Mullane v. Central Hanover Bank & Tr. Co.*, 339 U.S. 306, at 313, 70 S.Ct. 652, at 656, 94 L.Ed. 865. “An elementary and fundamental requirement of due process in any proceeding which is to be accorded finality is notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections. *Milliken v. Meyer*, 311 U.S. 457, 61 S.Ct. 339, 85 L.Ed. 278; *Grannis v. Ordean*, 234 U.S. 385, 34 S.Ct. 779, 58 L.Ed. 1363; *Priest v. Board of Trustees of Town of Las Vegas*, 232 U.S. 604, 34 S.Ct. 443, 58 L.Ed. 751; *Roller v. Holly*, 176 U.S. 398, 20 S.Ct. 410, 44 L.Ed. 52.” *Id.*, at 314, 70 S.Ct. at 657. Questions frequently arise as to the adequacy of a particular form of notice in a particular case. See, e.g., *Schroeder v. City of New York*, 371 U.S. 208, 83 S.Ct. 279, 9 L.Ed.2d 255; *New York v. New York, N.H. & H.R. Co.*, 344 U.S. 293, 73 S.Ct. 299, 97 L.Ed. 333; *Walker v. Hutchinson City*, 352 U.S. 112, 77 S.Ct. 200, 1 L.Ed.2d 178; *Mullane v. Central Hanover Bank & Tr. Co.*, *supra*. But as to the basic requirement of notice itself there can be no doubt, where, as here, the result of the judicial proceeding was permanently to deprive a legitimate parent of all that parenthood implies. Cf. *May v. Anderson*, 345 U.S. 528, 533, 73 S.Ct. 840, 843, 97 L.Ed. 1221.

The Texas Court of Civil Appeals implicitly recognized this constitutional rule, but held, in accord

with its understanding of the Texas precedents, that whatever constitutional infirmity resulted from the failure to give the petitioner notice had been cured by the hearing subsequently afforded to him upon his motion to set aside the decree. 371 S.W.2d at 412. We cannot agree.

Had the petitioner been given the timely notice which the Constitution requires, the Manzos, as the moving parties, would have had the burden of proving their case as against whatever defenses the petitioner might have interposed. See *Jones v. Willson*, Tex.Civ.App., 285 S.W.2d 877; *Ex parte Payne*, Tex.Civ.App., 301 S.W.2d 194. It would have been incumbent upon them to show not only that Salvatore Manzo met all the requisites of an adoptive parent under Texas law, but also to prove why the petitioner's consent to the adoption was not required. Had neither side offered any evidence, those who initiated the adoption proceedings could not have prevailed.

Instead, the petitioner was faced on his first appearance in the courtroom with the task of overcoming an adverse decree entered by one judge, based upon a finding of nonsupport made by another judge. As the record shows, there was placed upon the petitioner the burden of affirmatively showing that he had contributed to the support of his daughter to the limit of his financial ability over the period involved. The burdens thus placed upon the petitioner were real, not purely theoretical. For "it is plain that where the burden of proof lies may be decisive of the outcome." *Speiser v. Randall*, 357 U.S. 513, 525, 78 S.Ct. 1332, 1342, 2 L.Ed.2d 1460. Yet these burdens would not have been imposed upon him had he been given timely notice in accord with the Constitution.

A fundamental requirement of due process is "the opportunity to be heard." *Grannis v. Ordean*, 234 U.S. 385, 394, 34 S.Ct. 779, 783. It is an opportunity which must be granted at a meaningful time and in a meaningful manner. The trial court could have fully accorded this right to the petitioner only by granting his motion to set aside the decree and consider the case anew. Only that would have wiped the slate clean. Only that would have restored the petitioner to the position he would have occupied had due process of law been accorded to him in the first place. His motion should have been granted.

For the reasons stated, the judgment is reversed, and the case is remanded for further proceedings not inconsistent with this opinion.

It is so ordered.

Reversed and remanded.

EX PARTE J. A. P.

Missouri Court of Appeals, 1977.
546 S.W.2d 806.

PER CURIAM:

Our writ issued on an original petition for writ of habeas corpus brought by the mother of the child involved against the father. After further and due proceedings, we ordered (with opinion to follow) that the custody of the child be vested in the mother in accordance with the last legal custodial provisions of the orders of the Circuit Court of Howell County.

After the regular judge recused himself, a special judge entered a decree of divorce in the Circuit Court of Howell County in November 1973. The mother was awarded custody of the child and the father was afforded certain visitation rights. In June 1974 the father filed a motion to modify the decree as it related to child custody. The regular circuit judge was again disqualified and after the first assigned special judge was also disqualified, a second special judge heard testimony on the motion and decreed on December 8, 1975, that the mother should retain primary custody of the child. The father appealed and that appeal is now pending in this court. We find it unnecessary to detail the tumultuous events which have interlaced this matter since the initial divorce decree was made. It suffices to note the intervening contempt charges levied and the habeas corpus proceedings had are grim evidence of bitter self-interest on the part of the two involved adults which cannot help but have a disastrous effect upon the welfare and well-being of the innocent child.

The present fracas had its start in this manner. Under the December 8, 1975, decree, the father was to have custody of the child during the 1976 school Christmas vacation from the start thereof until 10 a.m. December 25, at which time the child's custody was to revert to the mother who was then residing in Greene County. However, on December 23, 1976, while the child was in the custody of the father in Howell County, the father filed in the Circuit Court of Howell County a Motion to Modify the former decree so as to place the care, custody and control of the child in him. The father also filed a Motion for Temporary Custody. On the day following (December 24, 1976), the regular judge of the Circuit Court of Howell County, although twice before disqualified in the case,² issued an order placing the custody of the child in the father "until further order of the court." The order of December 24 was issued without service of the motions upon the mother and before any notice thereof had been given to the mother. The mother, upon becoming aware of the motions and order ex post facto, sought by habeas corpus immediate delivery of the child to her. If the December 24 order of the trial court is void, then habeas corpus is the proper remedy. *Ex parte S. M. C.*, 479 S.W.2d 501, 502 (Mo.App.1972).

An original divorce decree and any subsequent modification thereof as regards child custody, are final and binding and cannot be disturbed except upon due proceedings and a hearing for that purpose. *Hayes v. Hayes*, 363 Mo. 583, 589, 252 S.W.2d 323, 328(10) (1952). If all interested persons survive, the divorce court awarding custody retains continued exclusive jurisdiction of the cause until the child reaches majority. *Tripp v. Brawley*, 261 S.W.2d 508, 510(2) (Mo.App.1953). A motion to modify a prior custody decree is in the nature of an independent proceeding and the motion is treated as a petition in an independent proceeding. *Mahan v. Mahan*, 239 Mo.App. 317, 319, 192 S.W.2d 626, 627(2) (1946). While there is no

² We do not reach the question of whether a regular circuit judge, who has recused and again been disqualified in a divorce action, has any authority thereafter to act in the subsequent proceedings involving modification of prior custody determinations resolved by special judges. Cf. *State ex rel. Ellis v. Creech*, 364 Mo. 92, 259 S.W.2d 372 (banc 1953); *Prather v. Prather*, 263 S.W.2d 57 (Mo.App. 1954).

particular method of service of a motion to modify prescribed by statute or rule, an essential prerequisite to the modification of a decree is notice to the party adversely affected, and a modification by changing custody without prior proper notice is a violation of due process. Mo.Const. art. 1, § 10; *Greene v. Greene*, 368 S.W.2d 426, 428(3) (Mo.1963). Power to review and alter a prior custody order is dependent not only upon giving proper notice, but also upon proper application being made therefor (Rule 55.26(a); *C_ _ C_ _ v. J_ _ A_ _ C_ _*, 499 S.W.2d 809, 812 (Mo.App.1973)), and an order which purports to rule on a motion to modify when proper notice is missing and without a hearing at which evidence is adduced, is in excess of the court's jurisdiction and void. *In re Lipschitz*, 466 S.W.2d 183, 185(4) (Mo.App.1971).

Under the authorities above cited, the order of December 24, 1976, having been issued without any notice having been given to the mother and without the conduct of a hearing at which evidence was adduced, was beyond the jurisdiction of the Circuit Court of Howell County and was, therefore, void. We refuse to ingest the feeble claims that the ex parte order of December 24, 1976, was made under emergency circumstances or because the situation arose in an area where a "vacant spot" existed in the law [to] handle the immediate needs of a child's welfare. The so-called emergency circumstances and the child's averred immediate needs stated in the father's motion to modify filed December 23, 1976, are not unlike those alleged in his motion to modify filed in June 1974. Although the jurisdiction of a divorce suit or a dissolution of marriage action remains exclusive in the circuit court wherein it was filed and determined, the jurisdiction of the cause as it concerns child custody may still be affected or superseded by the juvenile court under certain circumstances. *Hayes v. Hayes, supra*, 252 S.W.2d at 327. Hence our order made January 24, 1977, as follows:

"ORDER

Custody of . . . , minor, vested in (mother). (Mother) ordered not to remove minor from Greene County, Missouri, until further order of this Court. All without prejudice to (father) to make application to appropriate juvenile court pursuant to Chapter 211 R.S.Mo. 1969, Costs taxed against (father)."

All concur.

NOTES

1. Courts and juries are quite reluctant to remove a child from his present environment, especially if it is a good one. Having physical custody and the benefit of the "status quo" may very well be the single-most important factor in custody litigation. If a court is going to order a transfer of custody (even on a temporary basis), it is much easier and less painful for the court if it is done on an ex parte basis where the court can be persuaded by one party's version of the facts. There are always two sides to a dispute. Should a judicial system permit an ex parte order transferring custody? Can not even an "emergency situation" be preceded by notice and an opportunity to be heard even if the notice period is shortened?

2. The Missouri case above (*J.A.P.*) is in accord with the majority view. Consider the following:

“It is the generally accepted rule in the courts of this country that where the custody of a child has been awarded to one parent by a decree of divorce a subsequent order modifying that decree and awarding the custody of the child can only be made after notice to the custodial parent and an order without notice is void.” *Ex parte Saunders*, 173 P.2d 818, 820 (Cal.Dis. Ct. App. 1946).

PAGE v. SHERRILL

Supreme Court of Texas, 1967.
415 S.W.2d 642.

CALVERT, Chief Justice.

This is an original proceeding in which relator seeks a writ of mandamus to compel the respondent, Honorable Charles Sherrill, Judge of the 112th District Court of Texas, to vacate a temporary child custody order.

On July 7, 1966, the marriage of Melba Jean Page, relator, and William E. Page was dissolved by a decree of divorce entered by the Second 38th District Court of Kerr County, Texas. The custody of the parties' two minor children was awarded to relator.

On September 20, 1966, William E. Page filed a petition in the Second 38th District Court alleging a change of conditions, asserting that relator was unfit to have custody of the children, and seeking a change of custody to his sister and brother-in-law, Maxine and Harry Powell. On October 10, 1966, relator answered plaintiff's petition with special exceptions and a general denial. On January 26, 1967, William E. Page filed his first amended original petition in which Maxine and Harry Powell joined as plaintiffs.

On March 16, 1967, plaintiffs filed their second amended original petition, alleging that relator was unfit as a custodian and citing acts demonstrating custodial unfitness performed by relator in Kerrville and Fredericksburg, Texas. Alleging that relator was then residing in Alpine, Texas, plaintiffs asserted that “if said children remain (in Alpine) away from friends and relatives * * * and away from their family doctor, * * * because of the habits, attitude and conduct of (relator), the said minors * * * are in danger of suffering irreparable and permanent injuries to their health and * * * it is dangerous for them to be in such condition * * *.”

Plaintiffs' petition was presented to Judge Sherrill who had been assigned temporarily to the Second 38th Judicial District. The assignment of Judge Sherrill appears regular, and his right to sit as Judge of the Second 38th Judicial District is not questioned by the parties.

On March 16, 1967, Judge Sherrill issued an order, without notice, commanding the sheriff or any authorized officer in the county where the children were found to take them from the custody of relator and deliver them to Kerrville, Texas, to the Supervisor of Child Welfare who, in turn, was “to place them under the care, custody and control of such person or persons in Kerrville, Texas, who, in his opinion will, care for them to the best interest of said children during the pendency of this suit, or until further order of this court.”

The order was based upon a finding, made by Judge Sherrill “from the verified allegations of said petition,” as follows:

“* * * the Court is of the opinion that the health and welfare of the two minor children, Linda Ann Page and Glenda Ann Page are in danger, under the present circumstances; that it would be to the best interest of the health and welfare of said minors for the present custody to be changed during the pendency of this suit, and there is danger, under the present circumstances, of said children suffering irreparable injury under the present situation.”

In the same order, Judge Sherrill commanded the relator to appear in the District Court of Kerr County, Texas, on March 20, 1967, and show cause, if any, why the custody of the two children should not remain as ordered during the pendency of the suit.

On March 17, 1967, pursuant to the court's order, the children were taken from relator who resided in Alpine, Texas, and were turned over to the Supervisor of Child Welfare in Kerrville, Texas.

On March 20, 1967, relator appeared in the District Court of Kerr County and filed a motion to quash the court's order of March 16, 1967. The court proceeded to hear argument on relator's motion to quash. The court then indicated that it was ready to hear evidence on the show cause order of March 16, and plaintiffs' counsel offered to go forward with evidence to substantiate such order. Relator's counsel, however, refused to participate in a hearing on the show cause order, asserting that to do so would constitute a waiver of relator's rights. The court overruled relator's motion to quash. Relator then brought the present mandamus action to vacate the temporary child custody order of March 16.

Relator contends first that a district court has no power to take minor children from their parents without notice. While it is true this power has not been specifically granted, general authority for the exercise of such power is set forth in the Constitution of Texas:

“The District Court shall have * * * original jurisdiction and general control over * * * minors under such regulations as may be prescribed by law.” Tex.Const. Art. V, § 8, Vernon's Ann.St.

It was early declared that the foregoing constitutional provision placed jurisdiction over the custody of minors in the district courts and empowered those courts to transfer such custody. *See Ex parte Reeves*, 100 Tex. 617, 103 S.W. 478 (1907). It has long been recognized that the district courts have broad discretion in determining the custody of children, even to the extent of taking the custody of a minor from its own parents. *Legate v. Legate*, 87 Tex. 248, 28 S.W. 281 (1894). Moreover, the power may be exercised as an incident to the granting of a divorce, Art. 4639, Vernon's Texas Civil Statutes, or it may be exercised in an independent habeas corpus proceeding. *Worden v. Worden*, 148 Tex. 356, 224 S.W.2d 187 (1949).

There would seem to be no room for doubt of the power of a court to enter an order, without notice to the parents, for the temporary custody of a child of parties to a pending suit for divorce. Art. 4639, Vernon's Texas Civil Statutes, confers power on a divorce court to make temporary orders respecting the welfare of children of the parties in the broadest possible language. The article provides:

“* * * *The court shall have power*, in all divorce suits, to give the custody and education of the children to either father or mother * * * to be determined and decided on the petition of either party; and *in the meantime* to issue any injunction or *make any order that the safety and well-being of any such children may require.*” [emphasis by the court.]

The express grant of power to make any order that the safety and well-being of children may require, carries with it by necessary implication the power to make temporary custody orders without notice. And just as the statutory grant of power to the district courts to adjudicate the custody of children in divorce actions did not preempt their power to adjudicate custody in independent suits, neither does the statutory implied grant of power to make temporary custody orders in divorce suits, without notice, preempt the power of the courts to make such orders, without notice, in independent custody proceedings.

Power of the district court to enter an emergency custody order, without notice, when no valid suit for divorce is pending was upheld in *Green v. Green*, 146 S.W. 567 (Tex.Civ.App.--Amarillo 1912, writ dismissed). In that case the trial court granted an injunction on petition of a wife, without notice to the husband, commanding the husband to desist from removing their children from the county and ordering him to deliver one of the children to the wife. The court of civil appeals held that it was within the discretion of the district judge to enter such an order as was necessary “to properly guard the welfare of the children until a final hearing could be had on the (custody) issue.” *Green v. Green* has been cited with approval by this court on at least two occasions. See *Worden v. Worden*, 148 Tex. 356, 224 S.W.2d 187 (1949); *Knollhoff v. Norris*, 152 Tex. 231, 256 S.W.2d 79 (1953). Cf. *Urbach v. Urbach*, 52 Wyo. 207, 73 P.2d 953, 113 A.L.R. 889 (1937); *Ex parte Badger*, 286 Mo. 139, 226 S.W. 936, 14 A.L.R. 286 (1920).

Since the district courts are vested with general supervisory control of minors, they are charged with the profound responsibility of protecting their health and safety. Effective discharge of this responsibility under situations of emergency will sometime demand immediate action by the courts. Such action may, by necessity, consist of a temporary taking of a child from the possession of its legal custodian, with or without notice, pending a full hearing. It follows that the district court's power to enter such temporary orders is implied since it is necessarily incidental to the power of general control over minors granted to the district courts by section 8 of Article V of the Texas Constitution.

Relator contends further that the taking of her children without notice was a violation of due process, relying principally upon the authority of *Armstrong v. Manzo*, 380 U.S. 545, 85 S.Ct. 1187, 14 L.Ed.2d 62 (1965). In that decision the United States Supreme Court held that failure to notify a divorced parent of the pendency of proceedings for the adoption of his child constituted a deprivation of due process of law. The Court stated that without doubt notice is required where “the result of the judicial proceeding was permanently to deprive a legitimate parent of all that parenthood implies.” Moreover, the Court held that the constitutional infirmity resulting from failure to give notice could not be cured by a subsequent hearing on a motion to set aside the decree; particularly since the burden of proof, normally upon the parties seeking the adoption, is shifted in the subsequent hearing to the party who had lost parenthood. This burden, the Court observed, “would not have been imposed upon him had he been given timely notice in accord with the Constitution.”

In contrast to *Armstrong*, the present case presents no violations of due process. The court's order to take the children from relator's custody, although without notice, is purely a *temporary* order; it does not purport to be a *final adjudication* of relator's rights. Clearly the order contemplates only a temporary interruption of custody to be followed by proper notice, appropriate pleadings, and a full hearing in which

the burden of proof will not be upon relator but upon the parties seeking a change of custody.

We hold that the district court had the power to issue the temporary order of March 16, 1967. Moreover, the court did not abuse its discretion in issuing the order, and neither does the order deprive relator of due process of law.

The writ of mandamus is denied.

NOTES

1. Subsequent to the decision in *Page v. Sherill*, the Texas legislature enacted legislation requiring notice and hearing prior to the issuance of any temporary custody order. See Sections 11.11(a)(1) and 11.11 (b) of the Texas Family Code. Nonetheless, some Texas courts have continued to hold that the trial judge may still issue *ex parte* temporary orders to protect children. *McElreath v. Stewart*, 545 S.W.2d 955 at 958 (Tex. 1977); *In Interest of Stuart*, 544 S.W.2d 821 at 824 (Tex. App. - Tyler 1976 writ ref'd. n.r.e.).

2. Many judges take the view seen in *Page v. Sherill* — *i.e.* that the judge can act immediately when confronted with one party's version of the facts. In fact, *ex parte* custody orders may be entered by any court in any state and, unless challenged, may establish the unalterable "status quo." The "minority view" was recently endorsed in *Richard v. McCarty* 489 S.E.2d 503 (Sup. Ct. App. 1997) where the Supreme Court of Appeals for West Virginia held that an *ex parte* custody order would be permitted provided a full evidentiary hearing on the custody issue is held within twenty (20) days of the date of the order.

3. The majority view (seen in *J.A.P.*) and the minority view (seen in *Page v. Sherill*) are both reviewed in Baron, "A Parent's Constitutional Right to Possession of His Children," 7 Probate Law Journal 251, 257-63 (1987).

4. The preceding cases involved claims of due process raised in state court proceedings. On more than one occasion federal courts have entertained claims for damages under 42 U.S.C. Section 1983 for violations of due process where the defendants acted under color of state law in removing a child from a parent's possession without notice and hearing. One such case is *Elam v. Montgomery County*, which is taken up later in this book. See also *Hooks v. Hooks*, 771 F.2d 935 (6th Cir. 1985) and the discussion in Baron, "A Parent's Constitutional Right to Possession of His Children," 7 Probate Law Journal 251, 253-57 (1987).

5. Before going into the specific provisions of South Dakota law which are discussed in the next two notes, a word should be said about *Troxel v. Granville*, 530 U.S. 57, 120 S.Ct. 2054, which was handed down by the U.S. Supreme Court on June 5, 2000. In this case which is discussed in greater detail later, the high Court gave a tremendous boost to the recognition of parent's right to possession of his/her child. Here six (6) U.S. Supreme Court Justices wrote or agreed to opinions which hold that an award of visitation rights to grandparents is an unconstitutional infringement of the natural parent's rights if the award is based only on the "best interest of the child" criteria. Notably, in this case, the award came after notice and opportunity to be heard. Certainly, the parent's constitutional right to notice

and opportunity to be heard *prior to* the disruption of that parent's possession of the child is enhanced by the *Troxel* opinion. Stated differently, the Court holds that a parent's liberty interest in his/her child cannot be disrupted in favor of a non-parent based upon a determination that such disruption is in the child's best interests, *even after notice and hearing*. This would logically imply that even *less* could be done without notice and hearing. The *Troxel* holding suggests that the parent's constitutionally-protected liberty interest appears to be far more encompassing than any U.S. Supreme Court opinion has heretofore ever suggested.

6. South Dakota's UCCJEA specifically requires that reasonable notice and opportunity to be heard be extended to child custody contestants. SDCL 26-5B-205. South Dakota's former version of the UCCJA had a similar requirement. SDCL 26-5A-4 (now repealed). *See also Ex Parte Engelbert*, 18 N.W.2d 794 (S.D. 1945) (guardianship order held to have been entered without jurisdiction where the father of the child had no notice and the effect of the order served to divest the father of custody).

7. These fundamental notions of due process have also been implanted in South Dakota's extensive statutory scheme for protection from domestic violence through which a party may obtain an *ex parte* restraining order under SDCL 25-10-6, but an award of temporary custody may only be made upon notice and hearing. SDCL 25-10-5. (These statutes are reproduced in the last chapter of this book titled "Miscellaneous" and in sub-chapter "B. Domestic Violence.") Query: Isn't the entry of an *ex parte* temporary restraining order against a parent under SDCL 25-10-6 [which restrains the parent from the dwelling house] a "de facto" award of custody to the other parent?

8. The matter of *ex parte* custody orders is especially troublesome in those situations where a custody decree is already in place. As seen in both the *J.A.P.* case and in *Page v. Sherrill* case, the existing custody orders were found in divorce decrees. And, as is demonstrated in both of these cases, the impact of the entry of an *ex parte* custody order can be a monumental shift in power, displacing the custodial parent without even affording that parent a day in court prior to the displacement.

9. Generally speaking, there has been more tolerance in our judicial systems for *ex parte* custody orders in situations where the spouses are in the process of separating initially and there is no existing custody order in place. It has not been unusual for courts to make quick rulings on temporary custody upon the initial filing of a divorce action, sometimes making those orders on an *ex parte* basis. This had been the practice in South Dakota prior to 2002.

10. Together with authorization for the implementation of the South Dakota Supreme Court's visitation guidelines, the 2002 South Dakota Legislature also enacted SDCL 25-4A-11 which provides, in part, "Any minor child of the marriage shall remain in the custody of the parent who has been the primary caregiver for the minor child for the majority of time in the thirty days preceding the filing of the summons and complaint, unless the parties agree otherwise." (This statute is reproduced in full, *infra*, in Chapter 8 which deals with "Custody.") In 2008, the 3rd sentence of SDCL 25-4A-11 was amended so as to read, "Any minor child of the marriage shall remain in the custody of the parent who has been the primary caregiver for the minor child for the majority of time in the twelve months preceding the filing of the summons and complaint, unless the parties agree otherwise." This changes the "look back period" from 30 days to 12 months.

11. Thus, in situations where the parties are in the process of becoming divorced and there is no existing custody order in place, the courts and the parties now have guidance in South Dakota as to how the matter of temporary custody is to be resolved.

12. The case of *In Re The Matter of J.D.M.C.*, 2007 SD 97, 739 N.W.2d 796, is summarized at length elsewhere. But, it should be noted here that originally the tribal court granted an *ex parte* temporary custody order (in favor of mother) which the state trial court refused to honor. The issues in this appeal do not relate to the *ex parte* order, but its issuance and the state court's refusal to honor it are duly noted.

13. The 8th Circuit Federal Court of Appeals recognized that a non-custodial parent – the father – possessed a 14th Amendment “liberty interest” in connection with the right of visitation with his child in *Swipies v. Kofka*, 419 F.3d 709 (2005).

14. As shown in the excerpt from the law review article that follows, notice and hearing are also required by the federal Parental Kidnaping Prevention Act (“PKPA”).

Excerpt from 45 Arkansas Law Review 885 (1993)

FEDERAL PREEMPTION IN THE RESOLUTION OF CHILD CUSTODY JURISDICTION DISPUTES

Roger M. Baron

* * *

C. Due Process

Most courts are reluctant to remove a child from his present environment, especially if it is a suitable one. In custody litigation, possession is indeed nine-tenths of the law because as long as that possession is lawful and not injurious to the welfare of the child, a court will not likely disturb the possession. Possession or status quo is always a strong advantage to a custody litigant. Nevertheless the law does permit courts to order that possession be transferred. Most states have, through their own state laws, recognized the importance of requiring notice and an opportunity to be heard prior to the entry of a custody order.¹⁴¹ The right to notice and hearing has also been sporadically protected by the Fourteenth and Fifth Amendments to the Constitution — in particular as a “liberty” interest in the Due Process Clauses.¹⁴²

An *ex parte* custody order irretrievably alters the status quo. It is extremely fertile ground for custody decision-making based unduly on bias and political influence. No judicial system is perfect and there will always be some bias and political influence in the administration of justice. Nonetheless,

¹⁴¹ J. Sherman, Annotation, Right of a Parent to Notice and Hearing Before Being Deprived of Custody of Child, 76 A.L.R. 242, 253-58 (1932); See also Roger M. Baron, *A Parent's Constitutional Right to Possession of His Children*, 7 Prob. L.J. 251, 258-60.

¹⁴² Baron, *supra* note 141 at 252-56.

notice and hearing prior to the entry of a custody order helps insure that the decision is, as much as is possible, based on the merits.

The PKPA also imposes due process in custody decision-making by providing as follows:

Before a child custody determination is made, reasonable notice and opportunity to be heard shall be given to contestants, any parent whose parental rights have not been previously terminated and any person who has physical custody of a child.¹⁴³

The failure of state courts to afford the contestant notice and a hearing prior to the entry of a custody order renders the order unenforceable in sister states.¹⁴⁴ Ex parte custody orders are thus not entitled to full faith and credit!¹⁴⁵

“It’s incredibly easy to get caught up in an activity trap, in the busy-ness of life, to work harder and harder at climbing the ladder of success only to discover it’s leaning against the wrong wall.”

Stephen Covey

¹⁴³ 28 U.S.C. § 1738A(e).

¹⁴⁴ Wachter v. Wachter, 439 So.2d 1260 (La. App. 1983); *In Re Thorensen*, 730 P.2d 1380 (Wash. App. 1987).

¹⁴⁵ Joel M. v. Karen MI, 507 N.Y.S.2d 369 (N.Y. Fam. Ct. 1986); Sherry Ann v. Bennet S., 502 N.Y.S.2d 383 (N.Y. Fam. Ct. 1986).

Chapter Five

THE UCCJEA, UCCJA & PKPA — NECESSARY CONSTRAINTS ON SUBJECT MATTER JURISDICTION

A. Background

Before understanding the operation of the UCCJA and the PKPA, one needs a working knowledge of the jurisdictional principles set forth in the preceding chapter of this book and of shortcomings of the Full Faith and Credit Clause in dealing with custody decrees, also discussed in the preceding chapter.

As a beginning point, the student is encouraged to go back and re-read the materials dealing with custody decrees under the “Full Faith and Credit” subchapter. This passage basically explains that the UCCJA and the PKPA were created for the purpose of dealing with the problem of multiple forums. This problem is exacerbated by the failure of the Full Faith and Credit Clause to provide any meaningful protection to a custody decree rendered in a state beyond that state’s border.

The solutions provided in the UCCJA and the PKPA come in the form of constraints placed on subject matter jurisdiction. These acts impose limitations on the ability of state courts to proceed in situations where the courts would otherwise be authorized to proceed. These constraints are imposed by statute and are not required constitutionally.

It is extremely important for the student to keep in mind that a custody determination is in the nature of a “status” determination. As such, the custody proceeding can be undertaken regardless of whether a nonresident’s rights are being affected and regardless of the nonresident’s contacts, or lack thereof, with the forum. This principle is embodied in both the UCCJA and the PKPA which initially approach custody jurisdiction on the “home state” basis without regard to personal jurisdiction over a nonresident defendant.

Making the study of the UCCJA and the PKPA more difficult is the fact that questions of “personal jurisdiction” do sometimes accompany the cases. The next case was decided prior to the adoption of the UCCJA in Texas. It helps demonstrate the interplay of personal jurisdiction, “status,” and multiple forums.

As you read the case, try to view the dispute from the standpoint of each parent. The intensity of this custody dispute is obvious from the opinion. Such intensity is the rule, not the exception, in such cases.

PERRY v. PONDER

Court of Civil Appeals of Texas, Dallas, 1980.
604 S.W.2d 306.

Before GUITTARD, C. J., and AKIN and STOREY, JJ.

GUITTARD, Chief Justice.

This child support and custody suit was dismissed by the trial court for lack of personal jurisdiction over the father, a resident of Alabama. The court found that the father did not have those "minimum contacts" with the state of Texas required by due process. Insofar as the petition seeks to impose a personal obligation of support on the father, we affirm, but insofar as it seeks appointment of the mother as managing conservator, we reverse on the ground that since the child and the mother were residents of Texas at the time the suit was filed, the court should not have limited the inquiry to the father's contacts, but should have determined whether the child and the mother had resided in Texas long enough to give this state an interest in the child's welfare and access to evidence sufficient to enable it to make an informed decision concerning the child's best interests.

The evidence at the special appearance hearing is limited to the "minimum contacts" issue. The mother formerly lived with the father in Alabama. They were divorced there in June 1978 by a decree giving custody to the mother. On September 19, 1978, the mother moved with the child to Texas, where they have since resided. In April 1979 the father obtained a decree from the Alabama court modifying the divorce decree by granting custody to the father. Service of notice was attempted on the mother by registered mail, but the effectiveness of this service is disputed. On May 4, 1979, the mother filed the present suit in Dallas County, Texas, alleging that the Alabama modification decree was void because she and the child were then residents of Texas and she was given no notice or opportunity to appear in the Alabama proceeding. She alleged that it was in the best interest of the child that she be appointed managing conservator. She also alleged that the father should be ordered to make monthly payments for the support of the child.

* * *

The father contends that the court had no personal jurisdiction over him because of lack of the "minimum contacts" required by *International Shoe Co. v. Washington*, 326 U.S. 310, 66 S.Ct. 154, 90 L.Ed. 95 (1945), and also that in the absence of personal jurisdiction, the court properly declined to exercise subject-matter jurisdiction.

* * *

Subdivision (4) of section 11.051 raises a different question. That subdivision provides that the court may exercise "personal jurisdiction" over a nonresident parent if "there is any basis consistent with the constitution of this state or the United States for the exercise of personal jurisdiction."

With respect to the claim for support, we conclude that the due process standard in subdivision (4) has not been met. Due process with respect to support orders was authoritatively defined in *Kulko v. Superior Court*, 436 U.S. 84, 98 S.Ct. 1690, 56 L.Ed.2d 132 (1978). In that case both parties lived in New York until their separation. The mother moved to California, but agreed to a Haitian divorce which awarded custody of two children to the father for the school months. After the divorce the father permitted one of the children to live with her. The other child followed without his acquiescence. The mother then sued in California for custody and increased support. The father did not contest the custody issue, but appeared specially to object to lack of personal jurisdiction with respect to the issue of support. The California courts overruled his objection to personal jurisdiction, but the Supreme Court reversed on the ground that the "minimum contacts"

test of *International Shoe Co. v. Washington*, 326 U.S. 310, 316, 66 S.Ct. 154, 158, 90 L.Ed. 95 (1945) had not been met, since the father "did not purposefully benefit from any activities relating to the State of California." 98 S.Ct. at 1699. In the present case the evidence shows no contacts with the forum state on the part of the nonresident father more significant than those in *Kulko*. Consequently, we conclude that the trial court properly sustained the special appearance with respect to the support issue.

Due process requirements have a different impact on the question of jurisdiction in a suit concerning conservatorship, as this court recognized in *Zeisler v. Zeisler*, 553 S.W.2d 927, 931 n. 3 (Tex.Civ.App.-Dallas 1977, writ dismissed). A support claim is like a claim for debt in that it seeks a personal judgment establishing a direct obligation to pay money. As a practical matter, such a judgment can usually be enforced only by the courts of the state of residence of the parent on whom such a duty is to be imposed, and those courts are usually in a better position to determine the circumstances bearing on his ability to pay. Custody, on the other hand, is more in the nature of a status, which can be determined and enforced by the courts of the state where the child resides, without any personal judgment requiring affirmative action by the nonresident parent. If he defaults, the consequence of the decree for him is largely negative, reducing his rights rather than increasing his obligations. See Traynor, *Is This Conflict Really Necessary?*, 37 Texas L.Rev. 657, 660-61 (1959).

* * *

We recognize the disadvantage of a custody adjudication by a court which has no jurisdiction to render a personal judgment for support against a nonresident parent. This difficulty, however, is inherent in the Supreme Court's holding in *Kulko*. Weintraub, *Texas Long-Arm Jurisdiction in Family Law Cases*, 32 Sw.L.J. 965, 981 (1978). In that case the jurisdiction of the California court to adjudicate custody was not contested. The Supreme Court recognized California's substantial interest in providing for the support of children residing in California, but observed that this interest was served by the state's participation in the Uniform Reciprocal Enforcement of Support Act, which had also been adopted in New York. The Court pointed out that under that Act the California plaintiff could vindicate her claim for additional support by filing a petition in a California court and having its merits adjudicated in New York without either party having to leave his or her own state. This Act has also been adopted in both Texas and Alabama. Tex. Family Code Ann. §§ 21.01 to 21.66 (Vernon 1975); Code of Ala., Tit. 34, §§ 105 to 123 (1959). Consequently, the necessity for a separate adjudication of the support claim in Alabama does not present an insuperable obstacle to adjudication of conservatorship in Texas.

* * *

Accordingly, the principal question before us is whether due process permits a Texas court to adjudicate the custody of a child residing with one parent in Texas, based on nonresident notice to the other parent outside the state. We hold, for reasons now to be stated, that due process permits adjudication of the custody of a child residing in the forum state without a showing of "minimum contacts" on the part of the nonresident parent...

* * *

In *Shaffer v. Heitner*, 433 U.S. 186, 97 S.Ct. 2569, 53 L.Ed.2d 683 (1977), the Supreme Court swept away the distinctions formerly recognized between actions *in rem* and actions *in personam*, and held that the fairness standard of *International Shoe* applies to suits concerning property within the court's jurisdiction since such suits determine the rights of persons to such property. Nevertheless, the Court recognized that special principles apply to adjudications of status. Thus, in commenting that the rigid categories of *Pennoyer v. Neff*, 95 U.S. 714, 24 L.Ed. 565 (1878) "could not accommodate some necessary litigation," the Court noted that the *Pennoyer* opinion pointed out that "cases involving the personal status of the plaintiff, such

as divorce actions, could be adjudicated in the plaintiff's home State even though the defendant could not be served within that State." *Shaffer v. Heitner*, *supra*, 433 U.S. at 201, 97 S.Ct. at 2578. Acknowledging the continuing validity of this exception, the Shaffer opinion explains in footnote 30, *id.* at 208, 97 S.Ct. at 2852, as follows:

We do not suggest that jurisdictional doctrines other than those discussed in text, such as the *particularized rules governing adjudications of status*, are inconsistent with the standard of fairness. (Emphasis added.)

This footnote has been interpreted as recognizing adjudications of status as an exception to the "minimum contacts" requirement of *International Shoe*. Bodenheimer & Neeley-Kvarme, *Jurisdiction Over Child Custody and Adoption After Shaffer and Kulko*, 12 U.Cal.D.L.Rev. 229, 230 (1979); Developments in the Law-The Constitution and the Family, 93 Harv.L.Rev. 1156, 1240 (1980).

* * *

The reasonableness of such an adjudication is well recognized in divorce cases, in which the status of marriage may be adjudicated at the domicile of one party without establishing any contacts by the nonresident spouse with the state of the forum. *See Williams v. North Carolina*, 317 U.S. 287, 63 S.Ct. 207, 87 L.Ed. 279 (1942). Custody of children is a status or relationship in which the state has an interest no less than in a marriage. *See Wicks v. Cox*, 146 Tex. 489, 208 S.W.2d 876, 878 (1948); *Goldsmith v. Salkey*, 131 Tex. 139, 112 S.W.2d 165, 168 (1938). Moreover, custody litigation necessarily involves third persons, namely the children, whose interests should be paramount. Consequently, there is equal or greater reason for a court to determine a relationship affecting children residing within its borders without requiring personal service of process within the state or the "minimum contacts" recognized as equivalent to such personal service. Hazard, *May v. Anderson: Preamble to Family Law Chaos*, 45 Va.L.Rev. 379, 387 (1959); Ratner, *Child Custody in a Federal System*, 62 Mich.L.Rev. 795, 827 (1964); Traynor, *Is This Conflict Really Necessary?*, 37 Tex.L.Rev. 657, 661 (1959). For these reasons, custody of children has been recognized traditionally as a status which may be determined at the domicile of the child. *Peacock v. Bradshaw*, 145 Tex. 68, 194 S.W.2d 551, 555 (1946); *Mills v. Howard*, 228 S.W.2d 906, 908 (Tex.Civ.App.-Amarillo 1950, no writ).

* * *

Further recognition of child custody as a relationship which may be determined in a proper case without service of process within the state or the equivalent "minimum contacts" on the part of the nonresident parent is provided by the Uniform Child Custody Jurisdiction Act, which has now been enacted in at least thirty-four states. *See* Uniform Child Custody Jurisdiction Act, reprinted in 9 Uniform Laws Ann. 8 (West.Supp.1980) (table of adopting jurisdictions) (hereinafter cited as Uniform Act). As one alternative ground of jurisdiction, that Act adopts the concept of the "home state," which is defined as the state in which the child has lived for as long as six months, or since birth if the child is younger than six months. Uniform Act, §§ 2(5), 3(a)(1). An alternative ground of jurisdiction is that it is in the best interest of the child that a court of the forum state assume jurisdiction because the child and at least one contesting parent have a significant connection with the forum state and there is available in the forum state substantial evidence concerning the child's present or future care, protection, training, and personal relationships. *Id.*, § 3. The Act further provides that notice required for the exercise of jurisdiction shall be given in a manner reasonably calculated to give actual notice, including personal delivery of notice outside the state. *Id.*, § 5. If the court has jurisdiction, the decree is made binding on parties or persons served outside the state who have been given the opportunity to be heard. *Id.*, § 12. Courts subject to the Act are required to recognize decrees of other states which have assumed jurisdiction in accordance with similar requirements. *Id.*, § 13. The Act

makes no requirement concerning "minimum contacts" on the part of nonresident parties, but a court which has jurisdiction may decline to exercise it if it finds that a court in another state would be a more appropriate forum. *Id.*, § 7. This approach has been justified on the grounds, first, that custody determinations are proceedings affecting status, analogous to proceedings in rem, . . .

* * *

It follows that lack of personal contacts by the nonresident parent with the forum state cannot properly be held to outweigh the state's vital interest in the welfare of children residing within its borders, and thus to relieve its courts of their responsibility of providing the protection of a stable home environment.

* * *

If the child and the parent seeking to invoke the court's powers have only a tenuous relation with the forum state, the court may properly decide that the best interest of the child requires it to defer to the courts of another state having a more substantial interest and better access to relevant information. * * * The evidence shows that the child has resided in Texas more than six months (section 3(1)), and also indicates that the interests of the child may be best served by a custody adjudication in Texas because the child and one parent appear to have had a significant connection with Texas and there may be available to the Texas court substantial evidence concerning the child's present or future care, protection, training, and personal relationships (section 3(2)). Since the Act has not been adopted in Texas, we must make our own formulation of the rule to be applied in this case. Accordingly, we hold that the trial court should not have sustained the father's special appearance and dismissed the suit for lack of contacts by him with the state of Texas, but should have inquired into the circumstances of the parties and the child for the purpose of determining whether the child and the mother have been in Texas long enough to give this state a sovereign's interest in and responsibility for the child's welfare and to provide access to sufficient evidence to make an informed decision concerning the child's best interests.

* * *

Although the court does not have jurisdiction to render a personal judgment for support against the nonresident father, we hold that it has jurisdiction to bind him by a custody decree if he has had the notice and opportunity to be heard required by due process, and if the court finds that it is a proper forum to determine the best interests of the child. Consequently, he should remain as a party if the court determines that it has jurisdiction to determine the conservatorship issue, at least for that limited purpose.

* * *

Affirmed with respect to support; reversed and remanded with respect to conservatorship. Costs of the appeal are divided equally.

NOTES

1. *Perry v. Ponder* is concisely reviewed in Solender, Family Law: Parent and Child, 36 Sw.L.J. 155, 174-75 (1982).

2. The South Dakota version of the Uniform Child Custody Jurisdiction Act (UCCJA) is in SDCL 26-5A-2, *et seq.* Selected relevant provisions are reproduced immediately following these notes. As you take up the following cases, keep in mind that the applicable statutes may not have been in the same form as the current ones. In most cases, the court's opinion sets forth the appropriate statute.

3. The concept of the "Home state" is of primary importance in the application of the UCCJA. Note

how jurisdiction may vest in the “Home state” pursuant to SDCL 26-5A-3(1). The definition of “Home state” under SDCL 26-5A-2(5) requires the child to have lived in South Dakota at least six (6) consecutive months.

B. The Uniform Child Custody Jurisdiction Act (“UCCJA”)

NOTE: The 2005 South Dakota Legislature repealed the Uniform Child Custody Jurisdiction Act and enacted in its place, the Uniform Child Custody Jurisdiction and Enforcement Act (UCCJEA) which is now found at SDCL 26-5B.

Selected portions of South Dakota’s (former) version of the UCCJA are reproduced below:

CHAPTER 26-5A: UNIFORM CHILD CUSTODY JURISDICTION ACT

26-5A-2 Definition of terms. Terms used in this chapter, unless the context otherwise requires, mean:

(1) "Contestant," a person, including a parent, who claims a right to custody or visitation rights with respect to a child;

(2) "Custody determination," a court decision and court orders and instructions providing for the custody of a child, including visitation rights; it does not include a decision relating to child support or any other monetary obligation of any person;

(3) "Custody proceeding" includes proceedings in which a custody determination is one of several issues, such as an action for divorce or separation, and includes child neglect and dependency proceedings;

(4) "Decree" or "custody decree," a custody determination contained in a judicial decree or order made in a custody proceeding, and includes an initial decree and a modification decree;

(5) "Home state," the state in which the child immediately preceding the time involved lived with his parents, a parent, or a person acting as parent, for at least six consecutive months, and in the case of a child less than six months old the state in which the child lived from birth with any of the persons mentioned. Periods of temporary absence of any of the named persons are counted as part of the six-month or other period;

(6) "Initial decree," the first custody decree concerning a particular child;

(7) "Modification decree," a custody decree which modifies or replaces a prior decree, whether made by the court which gave the prior decree or by another court;

(8) "Person acting as parent," a person, other than a parent, who has physical custody of a child and who has either been awarded custody by a court or claims a right to custody;

(9) "Physical custody," actual possession and control of a child;

(10) "State," any state, territory, or possession of the United States, the commonwealth of Puerto Rico, and the District of Columbia.

26-5A-3 Jurisdiction. A court of this state which is competent to decide child custody matters has jurisdiction to make a child custody determination by initial or modification decree if:

(1) This state is the home state of the child at the time of commencement of the proceeding, or had been the child's home state within six months before commencement of the proceeding and the child is absent from this state because of his removal or retention by a person claiming his custody or for other reasons, and a parent or person acting as parent continues to live in this state; or

(2) It is in the best interest of the child that a court of this state assume jurisdiction because the child and his parents, or the child and at least one contestant, have a significant connection with this state, and there is available in this state substantial evidence concerning the child's present or future care, protection, training, and personal relationships; or

(3) The child is physically present in this state and the child has been abandoned or it is necessary in an emergency to protect the child because he has been subjected to or threatened with mistreatment or abuse or is otherwise neglected or dependent; or

(4) It appears that no other state would have jurisdiction under prerequisites substantially in accordance with subdivisions (1), (2), or (3) of this section, or another state has declined to exercise jurisdiction on the ground that this state is the more appropriate forum to determine the custody of the child, and it is in the best interest of the child that this court assume jurisdiction.

Except under subdivisions (3) and (4) of this section physical presence in this state of the child, or of the child and one of the contestants, is not alone sufficient to confer jurisdiction on a court of this state to make a child custody determination.

Physical presence of the child, while desirable, is not a prerequisite for jurisdiction to determine his custody.

Source: SL 1978, ch 190, s 2; SDCL Supp, §§ 26-5-6 to 26-5-10.
See Uniform Child Custody Jurisdiction Act, § 3.

26-5A-6 Simultaneous proceedings in other states. A court of this state may not exercise its jurisdiction under this chapter if at the time of filing the petition a proceeding concerning the custody of the child was pending in a court of another state exercising jurisdiction substantially in conformity with this chapter, unless the proceeding is stayed by the court of the other state because this state is a more appropriate forum or for other reasons.

Before hearing the petition in a custody proceeding the court shall examine the pleadings and other information supplied by the parties under § 26-5A-9 and shall consult the child custody registry established under § 26-5A-16 concerning the pendency of proceedings with respect to the child in other states. If the court has reason to believe that proceedings may be pending in another state it shall direct an inquiry to the state court administrator or other appropriate official of the other state.

If the court is informed during the course of the proceeding that a proceeding concerning the custody of the child was pending in another state before the court assumed jurisdiction it shall stay the proceeding. It shall communicate with the court in which the other proceeding is pending in order that the issue may be litigated in the more appropriate forum and that information be exchanged in accordance with §§ 26-5A-19 and 26-5A-22. If a court of this state has made a custody decree before being informed of a pending proceeding in a court of another state, it shall immediately inform that court of the fact. If the court is informed that a proceeding was commenced in another state after it assumed jurisdiction, it shall likewise inform the other court in order that the issues may be litigated in the more appropriate forum.

Source: SL 1978, ch 190, § 5; SDCL Supp, §§ 26-5-14 to 26-5-18.
See Uniform Child Custody Jurisdiction Act, § 6.

26-5A-7 Inconvenient forum. A court which has jurisdiction under this chapter to make an initial or modification decree may decline to exercise its jurisdiction any time before making a decree if it finds that it is an inconvenient forum to make a custody determination under the circumstances of the case and that a court of another state is a more appropriate forum.

A finding of inconvenient forum may be made upon the court's own motion or upon motion of a party or a guardian ad litem or other representative of the child.

In determining if it is an inconvenient forum, the court shall consider if it is in the interest of the child that another state assume jurisdiction. For this purpose it may take into account the following factors, including:

- (1) If another state is or recently was the child's home state;
- (2) If another state has a closer connection with the child and his family or with the child and one or more of the contestants;
- (3) If substantial evidence concerning the child's present or future care, protection, training, and personal relationships is more readily available in another state;
- (4) If the parties have agreed on another forum which is no less appropriate.

Before determining whether to decline or retain jurisdiction the court may communicate with a court of another state and exchange information pertinent to the assumption of jurisdiction by either court assuring that jurisdiction will be exercised by the more appropriate court and that a forum will be available to the parties.

If the court finds that it is an inconvenient forum and that a court of another state is a more appropriate forum, it may dismiss the proceedings, or it may stay the proceedings upon condition that a custody proceeding be promptly commenced in another named state or upon any other conditions which may be just and proper, including the condition that a moving party stipulate his consent and submission to the jurisdiction of the other forum.

The court may decline to exercise its jurisdiction under this chapter if a custody determination is incidental to an action for divorce or another proceeding while retaining jurisdiction over the divorce or other proceeding.

If it appears to the court that it is clearly an inappropriate forum it may require the party who commenced the proceedings to pay, in addition to the costs of the proceedings in this state, necessary travel and other expenses, including attorneys' fees, incurred by other parties or their witnesses. Payment is to be made to the clerk of the court for remittance to the proper party.

Upon dismissal or stay of proceedings under this section, the court shall inform the court found to be the more appropriate forum of this fact. If the court which would have jurisdiction in the other state is not certainly known, the court shall transmit the information to the court administrator or other appropriate official for forwarding to the appropriate court.

Any communication received from another state informing this state of a finding of inconvenient forum because a court of this state is the more appropriate forum shall be filed in the custody registry of the appropriate court. Upon assuming jurisdiction the court of this state shall inform the original court of this fact.

Source: SL 1978, ch 190, § 6; SDCL Supp, §§ 26-5-22 to 26-5-29. See Uniform Child Custody Jurisdiction Act, § 7.

26-5A-8 Jurisdiction declined by reason of conduct. If the petitioner for an initial decree has wrongfully taken the child from another state or has engaged in similar reprehensible conduct, the court may decline to exercise jurisdiction if this is just and proper under the circumstances.

Unless required in the interest of the child, the court may not exercise its jurisdiction to modify a custody decree of another state if the petitioner, without consent of the person entitled to custody, has improperly removed the child from the physical custody of the person entitled to custody, or has improperly retained the child after a visit or other temporary relinquishment of physical custody. If the petitioner has violated any other provision of a custody decree of another state the court may decline to exercise its jurisdiction if this is just and proper under the circumstances.

In appropriate cases a court dismissing a petition under this section may charge the petitioner with necessary travel and other expenses, including attorneys' fees, incurred by other parties or their witnesses.

Source: SL 1978, ch 190, § 7; SDCL Supp, §§ 26-5-19 to 26-5-21. See Uniform Child Custody Jurisdiction Act, § 8.

26-5A-14 Modification of custody decree of another state. If a court of another state has made a custody decree, a court of this state shall not modify that decree unless it appears to the court of this state that the court which gave the decree does not now have jurisdiction under jurisdictional prerequisites substantially in accordance with this chapter or has declined to assume jurisdiction to modify the decree and the court of this state has jurisdiction.

If a court of this state is authorized to modify a custody decree of another state it shall give due consideration to the transcript of the record and other documents of all previous proceedings submitted to it in accordance with § 26-5A-22.

Source: SL 1978, ch 190, § 13; SDCL Supp, §§ 26-5-47, 26-5-48.
See Uniform Child Custody Jurisdiction Act, § 14.

NOTE: The 2005 South Dakota Legislature repealed the Uniform Child Custody Jurisdiction Act and enacted in its place, the Uniform Child Custody Jurisdiction and Enforcement Act (UCCJEA) which is now found at SDCL 26-5B..

WINKELMAN v. MOSES

Supreme Court of South Dakota, 1979.
279 N.W.2d 897.

DUNN, Justice (on reassignment).

This original proceeding involves a dispute over child custody. Marguerite R. Winkelman and Kenneth E. Winkelman were divorced on August 17, 1973, in Lawrence County, South Dakota. By the terms of the divorce decree, Mrs. Winkelman was given custody of the parties' two minor children, Norman and Karen Winkelman. Shortly after the divorce, Mrs. Winkelman and her two children moved to California. Since that time, Mrs. Winkelman and Karen have consistently and continually remained residents of California. In October of 1974, Mr. Winkelman brought an action for modification of the divorce decree. He requested that the Circuit Court of the Eighth Judicial Circuit, Lawrence County, South Dakota, grant him legal custody of both minor children. The circuit court modified the divorce decree by entering an order granting Mr. Winkelman custody of Norman and denying Mr. Winkelman's request for custody of Karen. After modification of the divorce decree, Mrs. Winkelman and Karen returned to California. Mrs. Winkelman obtained employment in California as a school teacher. Karen was enrolled in school in California and attended regularly from the time that she and Mrs. Winkelman moved to California until the summer of 1978. In August of 1978, Mr. Winkelman traveled to California and removed Karen from that state and returned her to South Dakota. Mr. Winkelman took this action without first notifying Mrs. Winkelman or school authorities and without any further order of the court. On September 6, 1978, Mr. Winkelman moved the circuit court in Lawrence County to issue an order temporarily restraining Mrs. Winkelman from removing Karen from the custody of Mr. Winkelman and required her to show cause why the amended divorce decree should not be further modified and amended to award full custody of Karen to Mr. Winkelman. The Honorable Scott C. Moses, a circuit judge of the Eighth Judicial Circuit, Lawrence County, granted Mr. Winkelman's motion.

On or about September 27, 1978, Mrs. Winkelman filed a motion for dismissal of the action for modification of the divorce decree on the basis of lack of subject matter jurisdiction under the South Dakota Uniform Child Custody Jurisdiction Act embodied in SDCL 26-5. In December of 1978, a hearing was held on the motion to dismiss. The Honorable Scott C. Moses entered findings of fact, conclusions of law, and an order on February 9, 1979, denying Mrs. Winkelman's motion to dismiss. The basis for such denial was that the original divorce was granted in Lawrence County, the divorce decree was modified in Lawrence County, Karen Winkelman had attended school in South Dakota over five years ago, and Karen was currently in the state with Mr. Winkelman under the court's temporary restraining order.

On March 16, 1979, Mrs. Winkelman made application to this court for a writ of prohibition to restrain the circuit court in Lawrence County from exercising jurisdiction and from conducting any further proceedings in this custody matter. In her application for a writ of prohibition, Mrs. Winkelman contends that the circuit court in Lawrence County does not have jurisdiction to make a child custody determination by modifying the initial divorce decree. Mrs. Winkelman argues that such jurisdiction is lacking as a result of the application of the South Dakota Uniform Child Custody Jurisdiction Act (the Act).¹ SDCL 26-5. In order to more fully understand the Act's application to and impact upon the circumstances present in this case, we must be cognizant of the underlying purposes of the Act. These purposes are enumerated in the

¹ The Act was enacted by the South Dakota Legislature in 1978 (S.D.Sess.L. ch. 190), and its provisions were not available to Mrs. Winkelman in the child custody modification action brought by Mr. Winkelman in 1974.

Uniform Child Custody Jurisdiction Act, 9 U.L.A. 103-104, § 1 (the Model Act) as follows:

- (1) avoid jurisdictional competition and conflict with courts of other states in matters of child custody which have in the past resulted in the shifting of children from state to state with harmful effects on their well-being;
- (2) promote cooperation with the courts of other states to the end that a custody decree is rendered in that state which can best decide the case in the interest of the child;
- (3) assure that litigation concerning the custody of a child take place ordinarily in the state with which the child and his family have the closest connection and where significant evidence concerning his care, protection, training, and personal relationships is most readily available, and that courts of this state decline the exercise of jurisdiction when the child and his family have a closer connection with another state;
- (4) discourage continuing controversies over child custody in the interest of greater stability of home environment and of secure family relationships for the child;
- (5) deter abductions and other unilateral removals of children undertaken to obtain custody awards;
- (6) avoid re-litigation of custody decisions of other states in this state insofar as feasible;
- (7) facilitate the enforcement of custody decrees of other states;
- (8) promote and expand the exchange of information and other forms of mutual assistance between the courts of this state and those of other states concerned with the same child; and
- (9) make uniform the law of those states which enact it.

Accordingly, we will construe the Act to promote the general purposes as stated in the Model Act above.

The Act establishes two major bases for jurisdiction which can be applied alternatively. *See*, Model Act § 3, Commissioners' Note, p. 107. The first major basis for jurisdiction is home state jurisdiction embodied in SDCL 26-5-6 (Model Act § 3(a)(1)) as follows:

A court of this state which is competent to decide child custody matters has jurisdiction to make a child custody determination by initial or modification decree if this state is the home state of the child at the time of commencement of the proceeding, or had been the child's home state within six months before commencement of the proceeding and the child is absent from this state because of his removal or retention by a person claiming his custody or for other reasons, and a parent or person acting as parent continues to live in this state.

The applicable definition under the present circumstances provides that the home state is that state "in which the child immediately preceding the time involved lived with his parents, a parent, or a person acting as parent, for at least six consecutive months." SDCL 26-5-5(5). Further, periods of temporary absence of any of the persons involved are counted as part of the six-month period. SDCL 26-5-5(5). We deem abductions or other unilateral removals of children without notice and approval, such as the removal of Karen from the custody of Mrs. Winkelman by Mr. Winkelman, the noncustodial parent, to be of no effect upon the residency of the child or to be within the classification of a "temporary absence" to be counted as part of the six-month home state period. It would be completely contrary to the intent and purpose of the Act for a noncustodial parent to qualify for the six-month home state period by abduction. California is the home state under the Act since Karen lived with her mother in California for a period of approximately five years immediately prior to the commencement of these proceedings. *See Marriage of Settle*, 276 Or. 759, 556 P.2d 962 (1976); *Wheeler v. District Court In & For City & Co. of Denver*, 186 Colo. 218, 526 P.2d 658 (1974);

Clark v. Superior Ct. In And For County Of Mendocino, 73 Cal.App.3d 298, 140 Cal.Rptr. 709 (1977); *Howard v. Gish*, 36 Md.App. 446, 373 A.2d 1280 (1977). In fact, the provisions of the Act clearly provide that six months after Mrs. Winkelman and Karen moved to California this state was divested of jurisdiction to make a child custody determination as the home state. See *Bryant v. Bryant*, 545 S.W.2d 938 (Ky.1977); *Turley v. Griffin*, 508 S.W.2d 764 (Ky.App.1974).

The second major basis for jurisdiction involves significant connection and availability of evidence embodied in SDCL 26-5-7 (Model Act § 3(a)(2)) as follows:

A court of this state which is competent to decide child custody matters has jurisdiction to make a child custody determination by initial or modification decree if it is in the best interest of the child that a court of this state assume jurisdiction because the child and his parents, or the child and at least one contestant, have a significant connection with this state, and there is available in this state substantial evidence concerning the child's present or future care, protection, training, and personal relationships.

It would appear that Karen and Mr. Winkelman do have a significant connection with this state in that the initial divorce decree and modification of that decree were entered by the circuit court in Lawrence County; that Karen, her brother Norman, and Mr. Winkelman all reside in Lawrence County; that Karen attended school in South Dakota prior to moving to California with Mrs. Winkelman; and that Karen currently attends school in South Dakota because of the temporary restraining order referred to above. Further, substantial evidence is probably available in this state concerning Karen's present or future care, protection, training, and personal relationships. Therefore, the circuit court of Lawrence County, South Dakota, could meet the minimum requirements of jurisdiction under the Act to make the child custody determination by modification decree.² We find, however, that South Dakota is an inconvenient forum to make such a custody modification determination under the circumstances of this case and that the courts of the State of California would be a more appropriate forum. The circuit court in Lawrence County must therefore decline to exercise its jurisdiction. SDCL 26-5-22.

There are several factors to be taken into consideration in such a determination of convenience of forum. SDCL 26-5-23. In our determination that South Dakota is an inconvenient forum, we have considered the best interests of Karen. We have already concluded that California is Karen's home state. SDCL 26-5-23(1). Although there is a connection between South Dakota and Karen and Mr. Winkelman, it would appear that California has a *closer* connection with Karen and Mrs. Winkelman based upon the fact that Karen and Mrs. Winkelman resided in California for approximately five years prior to the commencement of this action.³ SDCL 26-5-23(2). Additionally, on the basis of the fact that Karen moved out of South Dakota when she was seven years old and lived continuously in California with her mother for approximately five years, substantial evidence concerning Karen's present or future care, protection, training, and personal relationships is more readily available in California. See, *Wheeler v. District Court In & For*

² We do not address Mr. Winkelman's contention that the circuit court in Lawrence County, South Dakota, also has jurisdiction under SDCL 26-5-8 (Model Act § 3(a)(3)) which provides for jurisdiction if the child has been abandoned or an emergency situation necessitates protection of the child because of mistreatment, abuse, or neglect.

³ The fact that a South Dakota court originally considered the custody case may be a factor favoring continued jurisdiction, but if the persons involved in the custody matter have moved out of the state or "the contact with the state has otherwise become slight, modification jurisdiction would shift elsewhere." Model Act § 14, Commissioners' Note, p. 122. In the present case, contact with South Dakota is relatively slight when compared with the five-year contact established with California.

City & Co. of Denver, 186 Colo. 218, 526 P.2d 658 (1974); *Schlumpf v. Superior Court Of Cty. Of Trinity*, 79 Cal.App.3d 892, 145 Cal.Rptr. 190 (1978); *Brooks v. Brooks*, 20 Or.App. 43, 530 P.2d 547 (1975). It would appear that the effects of Karen's five-year residence in California would be reflected by numerous witnesses in California regarding Karen's care, protection, training, and personal relationships, e. g., teachers, doctors, dentists, orthodontists, friends, and acquaintances. SDCL 26-5-23(3). It must be remembered that the child's interest is paramount to the mere interest or convenience of the feuding parties in a determination of child custody. "The interest of the child is best served when the forum has optimum access to relevant evidence about the child and family" which means that "(t)here must be maximum rather than minimum contact with the state." Model Act § 3, Commissioners' Note, p. 108. See *Marriage of Settle*, 276 Or. 759, 556 P.2d 962 (1976). We expressly find that California is the forum having such optimum access and maximum contact.

In our determination of inconvenient forum, we emphasize that the exercise of jurisdiction by the circuit court in Lawrence County would tend to contravene the underlying purposes of the Act as quoted above. See Model Act § 7(c)(5). We are primarily concerned about the deterrence of abductions and other unilateral removals of children undertaken to obtain custody awards. Model Act § 1(a)(5). The Act is specifically designed to discourage such abductions and other unilateral removals as is readily discernible from SDCL 26-5-6 and 26-5-7 quoted above. The Act's drafters state that SDCL 26-5- 7 (Model Act § 3(a)(2)) "perhaps more than any other provision of the Act requires that it be interpreted in the spirit of the legislative purposes expressed" above. Model Act § 3, Commissioners' Note, p. 108. In fact, SDCL 26-5-10⁴ was drafted to guard generally against too liberal an interpretation of SDCL 26-5-7. The Act also contains SDCL 26- 5-20 (Model Act § 8(b)) which incorporates a "clean hands doctrine" under which a court will refuse to assume jurisdiction to modify an out-of-state custody decree when the petitioner has abducted the child or has engaged in some other objectionable scheme to gain or retain physical custody of the child in violation of the decree. Model Act § 8, Commissioners' Note, pp. 115-116. This further evidences the specific design of the Act to discourage child abduction by a noncustodial parent.

By allowing the circuit court of Lawrence County to exercise its jurisdiction, we would be putting a premium upon an improper removal of children from their state of original residence. *Marriage of Settle*, 276 Or. 759, 556 P.2d 962 (1976). We fully intend to discourage forum shopping and to protect the best interests of children. The potential harm to children such as Karen is enormous. Shifting these children from state to state while their parents battle over custody deprives children of a chance to develop a sense of belonging or close personal attachment so essential in the formative years. *Wheeler v. District Court In & For City & Co. of Denver*, 186 Colo. 218, 526 P.2d 658 (1974). Therefore, we hold that while the facts of this case are minimally sufficient to vest jurisdiction in South Dakota to make a child custody modification determination in accordance with the provisions of the Act, we decline to exercise jurisdiction in the best interests of the child and in deference to a more convenient and appropriate forum, i.e., California.

The application for a writ of prohibition is granted, and a writ of prohibition shall issue accordingly.

WOLLMAN, C. J., and MORGAN and FOSHEIM, JJ., concur.
HENDERSON, J., dissents.

⁴ SDCL 26-5-10 (Model Act §§ 3(b), 3(c)) provides that physical presence in this state of the child, or of the child and one of the contestants, is not alone sufficient to confer jurisdiction on a court of this state to make a child custody determination. Physical presence of the child, while desirable, is not a prerequisite for jurisdiction to determine his custody.

This provision places a chilling effect upon child abduction and limits the scope of SDCL 26-5-7 which is quoted supra.

RYAN v. RYAN

Supreme Court of South Dakota, 1981.
301 N.W.2d 675.

FOSHEIM, Justice.

The trial court granted appellant-mother a divorce, but deferred to the State of Arizona for a custody determination regarding the two minor children of the marriage on the grounds that South Dakota is an inconvenient forum. This appeal is from the child custody part of that judgment. We reverse.

On April 10, 1979, appellee-father entered the marital home in Yankton, South Dakota, with two adult male relatives and, against appellant's wishes, removed the couple's two minor children. Appellant promptly filed an action for divorce, alleging her fitness and desire for custody of the children, and on April 25, 1979, filed an affidavit and motion for an order that the children be returned to her. On June 12, 1979, all the pleadings were served on appellee in Arizona. On June 14, 1979, appellee appeared specially by counsel to challenge the jurisdiction of the trial court. He has not appeared otherwise and has not disputed the mother's fitness or her right to have custody of the children. The record discloses no custody proceedings pending in the State of Arizona.

The trial court rendered a decision in which it found appellant to be a fit and proper person to have the care, custody and control of the minor children. The trial court concluded, however, that while it had jurisdiction to grant appellant custody of the minor children under SDCL 26-5-6, South Dakota is an inconvenient forum to make such a determination. SDCL 26-5-22. The divorce decree deferred to the State of Arizona for a determination of custody for the reason that Arizona has a more recent connection to the children and appellee. SDCL 26-5-23. The basic issue for our review is whether the trial court erred in refusing to make a custody determination under the provisions of the Uniform Child Custody Jurisdiction Act, SDCL ch. 26-5, which has been adopted by both South Dakota and Arizona.

In *Both v. Superior Court*, 121 Ariz. 381, 590 P.2d 920 (1979), the parents had separated in New Jersey in 1976 under a written agreement that gave custody of their four-year-old daughter to the father. Six months later, the father moved from New Jersey to the State of Washington with his daughter. Some four months later, the mother moved to Seattle and the Boths attempted to live together as a family. Five months later, however, while the father was at work, the mother took the child from school and left the state. The father then filed for a divorce in the State of Washington and obtained an order for temporary custody of the child in December, 1977. In January, 1978, the father discovered that his wife and daughter were living in Mohave County, Arizona, and he journeyed to Arizona to obtain physical custody of his daughter pursuant to the Washington custody order. Meanwhile, the mother filed for a separation in Mohave County in December of 1977. The father was served on February 8, 1978, when he was in Mohave County to obtain custody of his daughter. The mother was served the same day with notice of the Washington divorce proceedings.

The father appeared before the Arizona court, but the mother did not appear in the Washington proceedings. In *Both*, the Arizona court said:

The purpose of the (Uniform Child Custody Jurisdiction) Act ... is to promote cooperation with courts of our sister states and to deter the practice, sadly all too common, of taking the child and fleeing to another jurisdiction. Usually the best interest of the child is served by having a determination in the state where the parties both reside and where the facts concerning the custody of the child are more readily available

to the court. To allow the new state in which the child has been wrongfully taken automatically to take jurisdiction, defeats the purpose of the statute and in almost all instances is contrary to the best interest of the child.

121 Ariz. at 384, 590 P.2d at 923.

To sustain the trial court under the circumstances in this case would allow a parent, knowing that marital problems exist and that divorce proceedings are imminent, to preclude a custodial disposition by the court of the marital domicile simply by removing the children to another state. The absconding parent could thus effectively deny the other parent an opportunity to have custody matters determined in the state of their residence, where the divorce action is properly venued. As the court stated in *Both*, this is not the purpose of the Uniform Act. See *Winkelman v. Moses*, 279 N.W.2d 897 (S.D.1979).

It appears that South Dakota was the "home state" of the children shortly before commencement of the divorce action and had been their home state within six months before the commencement of such proceedings. Cf. *Marriage of Settle*, 276 Or. 759, 556 P.2d 962 (1976). The children were absent from this state because of their removal or retention by a person claiming their custody or for other reasons, and a parent continued to live in this state. The conditions for South Dakota to retain jurisdiction under SDCL 26-5-6 therefore existed. The criteria in SDCL 26-5-23 also pointed to South Dakota rather than Arizona as the proper forum for a custody determination. Physical presence of the children is not determinative of custody,⁶ *McNeal v. Mahoney*, 117 Ariz. 543, 574 P.2d 31 (1977), and unilateral removal of children without notice and approval has no effect upon the residency of the child nor is it within the classification of a "temporary absence." *Winkelman v. Moses*, *supra*.

In *Winkelman v. Moses*, *supra*, we were faced with inapposite facts. In that case, the father unilaterally removed his daughter from the custody of the mother in the State of California contrary to the order of the court and brought her to South Dakota. The child had been residing with her mother in California for a period of five years, and we noted that to allow the circuit court of Lawrence County to exercise jurisdiction would amount to putting a premium upon an improper removal of children from their home state.

In view of the conclusions reached, we find it unnecessary to consider the other issues raised by appellant. The case is reversed and remanded with directions to make a determination as to custody of the children.

WOLLMAN, C. J., and DUNN and MORGAN, JJ., concur.

HENDERSON, J., concurs in the result.

⁶ SDCL 26-5-10 reads:

Except under §§ 26-5-8 and 26-5-9, physical presence in this state of the child, or of the child and one of the contestants, is not alone sufficient to confer jurisdiction on a court of this state to make a child custody determination. Physical presence of the child, while desirable, is not a prerequisite for jurisdiction to determine his custody.

BLARE v. BLARE
Supreme Court of South Dakota, 1981.
302 N.W.2d 787.

FOSHEIM, Justice.

* * *

Appeal #13043 is from an order specifying child visitation rights. By the terms of the divorce judgment entered in September of 1977, both parties were granted reasonable and liberal rights of visitation with the children not in their custody.

In October of 1979, appellee initiated proceedings to clarify the child visitation provision of the divorce decree. He claimed to have experienced difficulty exercising his visitation rights with his daughters in the State of Colorado, and requested that the terms and conditions of the divorce decree be made more definite and specific as to visitation. Appellant appeared specially by counsel and resisted the motion on jurisdictional grounds. Both daughters were then enrolled in school in Colorado. The only evidence introduced at the hearing was appellee's affidavit.

The trial court entered findings of fact and conclusions of law determining that it had jurisdiction over the subject matter and the parties by virtue of the divorce action. The order amending the judgment allowed appellee to have custody of his daughters on alternating Christmas and Thanksgiving holidays and further granted him visitation rights in South Dakota for a period of sixty consecutive days each summer.

Basically, the issue is whether that modification of the decree of divorce is a custody determination within the purview of the Uniform Child Custody Jurisdiction Act (SDCL ch. 26-5) and, if so, whether the trial court erred in exercising jurisdiction under the provisions of that statute.

Appellant seems to acknowledge that the jurisdiction of the trial court to modify the divorce judgment concerning direction for the custody, care, and education of the children under SDCL 25-4-45 is continuing, *In Re Crawford*, 81 S.D. 331, 135 N.W.2d 140 (1965), but contends that the trial court should have deferred to the jurisdiction of the State of Colorado because South Dakota cannot meet the requirements of the Uniform Child Custody Jurisdiction Act.

* * *

We recognize a distinction between custody and visitation rights. *Hershey v. Hershey*, 85 S.D. 85, 177 N.W.2d 267 (1970). Unlike custody, visitation rights can be modified without showing a material change of circumstances of the parties when custodial rights would not thereby be prejudiced. *Andera v. Andera*, 277 N.W.2d 725 (S.D.1979); *Hershey v. Hershey*, *supra*. The relief sought was not a change in the custody determination of the original divorce decree, but rather a clarification of its reasonable and liberal visitation provisions. We conclude that the trial court acted within its prerogative to make that clarification and, in doing so, did not exceed the purposes or meaning of SDCL ch. 26-5.

* * *

All the Justices concur.

NOTES

1. In 1994, SDCL 25-4-45 was amended as reflected below. Prior to this amendment, SDCL 25-4-45 existed simply as only one sentence and that sentence remains intact as the first sentence in the statute below. As seen in the *Blare* opinion, this sentence has been utilized as authority for the proposition that continuing jurisdiction vests in the trial court which grants the original divorce.

This statute, SDCL 25-4-45, is extremely important and will be taken up numerous times throughout the course.

25-4-45. Child custody provisions — Modification — Preference of child. In an action for divorce, the court may, before or after judgment, give such direction for the custody, care, and education of the children of the marriage as may seem necessary or proper, and may at any time vacate or modify the same. In awarding the custody of a child, the court shall be guided by consideration of what appears to be for the best interests of the child in respect to the child's temporal and mental and moral welfare. If the child is of a sufficient age to form an intelligent preference, the court may consider that preference in determining the question. As between parents adversely claiming the custody, neither parent may be given preference over the other determining custody.

2. Is the *Blare* analysis consistent with the definition of “custody determination” seen in SDCL 26-5A-2(2)?

3. Wouldn't jurisdiction in the *Blare* case be consistent with the “significant connection” and “substantial evidence” criteria of SDCL 26-5A-3(2)? Isn't South Dakota to be recognized as the exclusive forum for modifications under SDCL 26-5A-14? Compare 28 U.S.C. 1738A(d).

4. SDCL 26-5A-5 deals specifically with “notice” and, *inter alia*, requires at least 20 days notice to a person outside the state prior to any hearing. In *Giles v. Anderst*, 305 N.W.2d 381 (S.D. 1981), the mother was served with an order to show cause on 2/11/81 directing her to appear at a modification hearing on 2/20/81. She was residing in Pocatello, Idaho with her daughter, having been awarded custody at the time of the divorce. The South Dakota Supreme Court issued a permanent writ of prohibition directing the trial court to refrain and desist from any further proceedings, holding the 20 day notice requirement of SDCL 26-5A-5 to be jurisdictional.

5. Is a protection order entered pursuant to South Dakota's Domestic Abuse Act (SDCL 25-10) subject to the jurisdictional requirements of the UCCJA? See *Zapitello v. Moses*, 458 N.W.2d 784 (S.D. 1990), which holds “yes” the UCCJA also applies to protection orders. .

The Decision to Defer – or Not – to Another Jurisdiction **(More Recent Rulings on the “More Convenient Forum” Assertion)**

JOHNSON v. JOHNSON

Supreme Court of South Dakota, 1991.
477 N.W.2d 603.

SABERS, Justice.

Sharon Johnson (Mother) filed this discretionary appeal of a circuit court order denying her request that it decline to exercise jurisdiction over this child custody dispute.

Mother and Darrell Johnson (Father) were divorced by a South Dakota circuit court in Aberdeen in January 1987. Mother received custody of the couple's two youngest children, Terri (now 9 years) and Carrie (now 17 years). Father received custody of the two elder children, Kristi (now 22 years) and Tamara (now 21 years). Father continues to reside in Aberdeen. Mother, Terri and Carrie have lived in Minnesota for approximately two years.⁷

In August 1990, Father filed a motion with the South Dakota circuit court in Aberdeen, requesting a custody change for Carrie. Mother responded by requesting that the South Dakota circuit court decline jurisdiction under the Uniform Child Custody Jurisdiction Act (UCCJA). The UCCJA is law in both South Dakota (SDCL 26-5A-1 through 26) and Minnesota (Minn.Stat. § 518A.01 through 518A.25). Both parties submitted substantial affidavits and memorandum of law in support of their respective positions. The South Dakota circuit court chose to exercise jurisdiction. This Court granted Mother's petition for discretionary appeal of the circuit court's jurisdictional ruling.

In child custody disputes, more than one state may have jurisdiction over the parties. *See generally*, 2 Rutkin, Family Law and Practice § 32.03[4] [a] [hereinafter "Rutkin"]. This multiple jurisdiction resulted in forum shopping, abduction of children, and conflict between state courts over jurisdiction. *Id.* The UCCJA was designed to alleviate these problems by setting standards and procedures to decide what state should exercise jurisdiction. UCCJA § 14, Comment. *See also Rutkin, supra*, at §§ 32.03[4][c] and [d]. To achieve these goals, the UCCJA provides, in pertinent part, that a state court has jurisdiction to make a child custody determination by initial or modification decree if it:

- (1) is the home state of the child ...; or
- (2) is in the best interest of the child that a court of this state assume jurisdiction because the child and his parents, or the child and at least one contestant, have a significant connection with this state, and there is available in this state substantial evidence concerning the child's present or future care, protection, training, and personal relationships;

SDCL 26-5A-3. *See also* 1 McCahey, Kaufman, Kraut, Gafner, Silverman and Zett, Child Custody &

⁷ There are no allegations that Mother improperly removed the children from South Dakota. She moved to Minnesota to pursue a job opportunity. Apparently, Father did not object to the relocation to Minnesota. Thus, there are no issues concerning child snatching.

Visitation: Law and Practice. § 3.01[4][a] at p. 3- 19 [hereinafter "McCahey"]. In short, the goal of the UCCJA is to avoid jurisdictional conflicts between states and assure that the state best suited to handle a particular controversy ultimately ends up exercising jurisdiction.⁸

This case is an example of how two states may simultaneously have jurisdiction over a child custody dispute. Minnesota has jurisdiction as Carrie's "home state." SDCL 26-5A-3(1). South Dakota has jurisdiction because Carrie and Father have a significant connection with South Dakota and there is substantial evidence concerning Carrie's present or future care, protection, training, and personal relationships available in South Dakota. SDCL 26-5A-3(2).

Section 14 of the UCCJA (SDCL 26-5A-14) provides:

If a court of another state has made a custody decree, a court of this state shall not modify that decree unless it appears to the court of this state that the court which gave the decree does not now have jurisdiction under jurisdictional prerequisites substantially in accordance with this chapter or has declined to assume jurisdiction to modify the decree and the court of this state has jurisdiction.

In other words, the South Dakota court which originally decided custody of the children has continuing jurisdiction over the matter. The UCCJA provides for continuing jurisdiction so parents cannot simply move to another state and have an unfavorable child custody ruling relitigated. 2 McCahey, *supra*, Chapter 5, at p. 5-1. When parents move to a new state, the new state must defer to the continuing jurisdiction of the state that originally decided custody, unless the original state no longer has jurisdiction or has declined to assume jurisdiction. *Id.* at § 5.03[2]; Rutkin, *supra*, at § 32.03[5].

* * *

The trial court reviewed the arguments of counsel and considered the nature of evidence available in South Dakota and Minnesota. Carrie grew up in South Dakota and evidence of her first fourteen years of life is available here. Minnesota is now her home state and evidence about the last two years of her life is available there. Carrie expressed her desire to move to South Dakota to live with her father. The South Dakota trial court exercised its discretion and chose to accept jurisdiction. Discretionary acts by their very nature involve choices. While perhaps not every member of this Court would have chosen to accept jurisdiction, the trial court's decision was not contrary to reason. There is no abuse of discretion if "a judicial mind, in view of the law and circumstances, could reasonably have reached that conclusion." *State v. Rose*, 324 N.W.2d 894, 896 (S.D.1982). Affirmed.

WUEST and AMUNDSON, JJ., concur.

⁸ This Court previously noted:

It must be remembered that the child's interest is paramount to the mere interest or convenience of the feuding parties in a determination of child custody. "The interest of the child is best served when the forum has optimum access to relevant evidence about the child and family" which means that "[t]here must be maximum rather than minimum contact with the state." *Winkelman v. Moses*, 279 N.W.2d 897, 900 (S.D.1979) quoting Model Act § 3, Commissioners' Note, p. 108.

NOTES

1. The trial judge's decision to retain jurisdiction in the *Johnson* case was upheld by the South Dakota Supreme Court as a matter lying within the discretion of the trial judge. In a more recent decision, *Fuerstenberg v. Fuerstenberg*, 1999 SD 35, 591 N.W.2d 798, the South Dakota Supreme Court similarly affirmed the decision of a South Dakota trial judge to retain jurisdiction in a modification proceeding despite the fact the child and custodial mother had lived in Minnesota for ten (10) years following the entry of the South Dakota decree. The trial court was found not to have abused its discretion in asserting modification jurisdiction in connection with an action instituted by the father. The SD court had entered the initial custody decree and it retained exclusive continuing jurisdiction under the PKPA so long as the child or one of the contestants remained in SD. The issue arose in the context of the mother's motion to decline jurisdiction because SD was alleged to be an inconvenient forum. The trial court denied the motion to decline jurisdiction and ruled for the father on his modification action. The retention of jurisdiction was affirmed by the SD Supreme Court "finding no abuse [of discretion.]" The *Fuerstenberg* case is somewhat unusual, however, in that the custody decision itself (which was in favor of the father) was reversed and remanded. This case demonstrates how the rules for custody jurisdiction have become solidified in recognizing the authority of the court with exclusive continuing jurisdiction. On the other hand, this case may also give some comfort to out-of-state parties who fear that the SD courts will automatically rule in favor of the SD resident.

2. What about decisions by a SD trial court which *defer* jurisdiction to another forum? Yes, recent cases like this exist and, in each such case (discussed below), the decision to defer to a more convenient forum has been affirmed by the SD Supreme Court. Those cases are summarized as follows:

A. *Lustig v. Lustig*, 1997 SD 24, 560 N.W.2d 239 (S.D. 1997). Although South Dakota was the "home state" of the child, the trial court deferred to Minnesota as a more appropriate and a more convenient forum for the custody determination. Factors supporting the trial court's decision that South Dakota was an "inconvenient forum" as compared to Minnesota included the following: that the family had previously resided in Minnesota for 10 years, the children had been residing in Minnesota for five months prior to the filing of the husband's suit in South Dakota, and that a number of witnesses were available in Minnesota. The South Dakota Supreme Court noted that courts must adhere to both the Uniform Child Custody Jurisdiction Act (UCCJA) and the Parental Kidnapping Prevention Act (PKPA) in deciding child custody jurisdiction matters. *Id.* At 242. The trial court's action in this case was consistent with both the UCCJA and the PKPA.

[In the *Lustig* case, however, the SD Supreme Court reversed the trial judge's decision to dismiss the underlying divorce action. The Court noted that it was permissible and appropriate for the SD trial court to adjudicate the divorce action even though Minnesota would be adjudicating the custody decision. Retention of jurisdiction to decide the divorce issue is specifically authorized by the "Inconvenient forum" statute, SDCL 26-5A-7 in situations where custody jurisdiction is declined. See the one-sentence paragraph which is about the sixth paragraph down in SDCL 26-5A-7.]

B. In the case of *Miley v. Miley*, 1999 SD 96, 598 N.W.2d 228, the trial court decided *not* to assert jurisdiction in a modification proceeding brought where the three children and their custodial parent (father) had been living in Arizona for over four years. Although the original divorce decree was entered in South Dakota and the mother continued to be a resident of South Dakota, the SD Supreme Court affirmed the trial court's decision to decline jurisdiction because South Dakota was an

inconvenient forum, holding that the “trial court did not abuse its discretion.” The affirmance was a 5-0 *per curiam* opinion. [The original divorce decree in this case granted “joint custody,” with father receiving actual physical custody. This was followed by many reappearances of the parties in court between 1991 and 1994, with issues involving whether mother should allow the children to be around farm machinery, firearms and a relative who exhibited inappropriate sexual behavior. Tragically, the mother and stepfather’s young son was killed in a farm accident in May, 1995. This led to more bickering and a new court order amending the visitation arrangement. In support of mother’s motion to modify custody filed in the SD trial court, there were identical affidavits filed by each of the three children (then ages 14, 13, and 12) which stated their desire to live with their mother.]

C. *Ford v. Ford*, 2002 SD 147, 655 N.W.2d 85. Parties were divorced in South Dakota. Husband agreed to allow Wife and child move to Michigan in August, 1999. Child support proceedings were entertained in South Dakota in both 2000 and in 2001. In November, 2001, just over two years after the move to Michigan, Husband filed a modification of custody proceeding in South Dakota. Trial court declined jurisdiction, pursuant to SDCL 26-5A-7, the “inconvenient forum” portion of the UCCJA, yielding to Michigan. Husband appealed. The South Dakota Supreme Court affirmed, upholding the exercise of discretion by the trial court. Husband argued that the decision in *Fuerstenberg v. Fuerstenberg*, 1999 SD 35, required the assertion of jurisdiction, but the Court stated, “In *Fuerstenberg*, *supra*, this Court yielded to the discretion of the circuit court in choosing to exercise jurisdiction on the basis of the pattern of legal proceedings that were conducted in this state subsequent to the divorce. That hardly stands for the proposition advocated by father here that a pattern of subsequent legal proceedings *mandates* a circuit court’s exercise of jurisdiction over a custody modification proceeding.” ¶ 11. (Interestingly enough, it is the same trial judge in this case as in the *Fuerstenberg* case.) The Court also pointed out that this case is closer to *Miley v. Miley*, 1999 SD 96, where the trial court also declined to assert jurisdiction in a modification proceeding where the children had been in Arizona with their father for four years.

D. *Regalado v. Mathieson*, 2004 SD 87, 684 N.W.2d 67. In this custody dispute between mother and paternal grandmother, the trial court had previously ruled in favor of grandmother but had been reversed in a prior appeal (*T.H.M. I*, 2002 SD 13, 640 N.W.2d 68) when the South Dakota Supreme Court held that the South Dakota guardianship statutes could not be used by grandmother “to gain custody of the children based upon allegations of abuse and neglect.” ¶ 2. Although the SD Supreme Court had ordered DSS to intervene in the action for the purpose of protecting the children, DSS did not conduct an investigation and no proceeding for abuse and neglect was instituted. Instead, grandmother filed an action for custody, invoking SDCL 25-5-29 and 25-5-30, which were passed by the 2002 South Dakota Legislature following the decision in *T.H.M. I*. Grandmother also commenced a guardianship proceeding in California, where she maintained actual physical custody of the children. Despite the fact she had in fact commenced the South Dakota proceeding for custody under the 2002 SD legislation, grandmother requested the trial court to dismiss the South Dakota proceeding on the basis that it was an “inconvenient forum,” with the more convenient forum being in California. The trial court agreed with grandmother on this issue and dismissed the action, deferring jurisdiction to the California guardianship proceeding. Furthermore, the SD trial court declined the opportunity to communicate directly with the California trial court, notwithstanding the language found in SDCL 26-5A-6 which encourages such communication. Mother appealed. The

South Dakota Supreme Court affirmed the trial court in an unanimous decision authored by Chief Justice Gilbertson. Despite the fact the South Dakota trial court had continuing exclusive jurisdiction under the UCCJA and the PKPA, it acted within its prerogative when it decided to decline jurisdiction in favor of the California court. The children had been living with grandmother in California for more than four years, the children had closer connections with California and evidence that concerned the children's current or future well-being was more readily available in California. It was also significant that the trial court's previous findings (in the initial custody proceeding) were to the effect that the children received proper and needed medical and dental care only after their relocation to California. The South Dakota Supreme Court observed, "We afford the trial court wide latitude in making such determinations, whether it chooses to exercise or decline jurisdiction." ¶ 9.

[The South Dakota Supreme Court also held that trial court did not commit reversible error by failing to communicate with the California court, especially since the trial court had already decided that California was the more appropriate forum. ¶¶ 12-13.]

[Mother also challenged grandmother's use of the new statutory provisions found in SDCL 25-5-29 and 25-5-30. The South Dakota Supreme Court noted that the issue had been rendered moot by the trial court's dismissal of grandmother's action and that the issue was probably "res judicata" in this case due to the preceding appeal by mother. See ¶ 17 and accompanying note 3. The Court also stated that, in essence, mother was making a constitutional challenge to the new statutes and that mother had failed to properly serve notice on the South Dakota Attorney General of her challenge. ¶¶ 18-19.]

3. With the exception of the early decisions in *Winkelman v. Moses* (where the trial court asserted modification jurisdiction in favor of the father who abducted the child from her mother in California) and it *Ryan v. Ryan* (which seems to have been an arbitrary deferral to Arizona in the face of an egregious abduction), the decision of the trial court to either retain jurisdiction or to defer to another forum has been uniformly upheld by the South Dakota Supreme Court. In the *Johnson* case (which is presented as the main case, *supra*) and in each of the note cases discussed above, whatever the trial judge decided as to whether or not to defer to a more convenient forum was upheld by the SD Supreme Court.

AND, ALL OF A SUDDEN, WE HAVE A NEWBORN BABY IN SOUTH DAKOTA!

MATTER OF M.C.S.

Supreme Court of South Dakota, 1993.

504 N.W.2d 322.

DOBBERPUHL, Circuit Judge.

V.M.S. (husband), appeals the denial of a motion questioning the circuit court's jurisdiction, the lack of evidence to support findings of fact and conclusions of law, and the failure to provide due process to him in the matter of the termination of his parental rights to M.C.S., a minor child, born to his wife, J.A.S. We reverse.

J.A.S., the natural mother of M.C.S., is a lifelong resident of Iowa. On June 30, 1988, J.A.S. married husband, also an Iowa resident in Doon, Iowa. The couple had two children. In November or December of 1990, the couple separated with the two children living with their mother in Rock Rapids, Iowa, while husband lived in Merville, Iowa. The couple continued to visit each other. The couple had sexual intercourse on the occasion of these visits up to and including February 14, 15, 16, 17, 1991.

In June or July 1991, J.A.S. informed husband that she was pregnant. J.A.S. told husband that the child was not his but that of J.P., a resident of Sheldon, Iowa. On October 18, 1991, J.P. stating that he was the father, signed a Consent to Termination of Parental Rights, Consent to Adoption, Waiver of Notice, and Power of Attorney pertaining to the as yet unborn child of J.A.S.

The child, M.C.S., was born on November 3, 1991, in Luverne, Minnesota, a town approximately 18 miles north of Rock Rapids, Iowa. Following the birth of M.C.S., J.A.S. traveled with the child to Sioux Falls, South Dakota, where the adoption agency, Christian Counseling Service (CCS), is located. (It is noted that SDCL 25-5A-4 requires a five day waiting period after the birth of a child before a petition for the voluntary termination of parental rights can be filed.) J.A.S. signed a petition seeking termination of her parental rights over M.C.S. In the petition, J.A.S. stated that J.P. was the natural father of M.C.S. It is not known what, if any, other evidence of paternity was presented since husband has been denied access to the file and consequently does not know the contents of J.P.'s statement. The director of CCS appeared as attorney in fact for J.P. The court was advised that J.A.S. was still married to husband, but he was not notified of the proceedings. Parental rights of the child were transferred to CCS on November 12, 1991.

It was disputed as to when husband found out about the date of the child's birth. J.A.S. and her sister say that husband was told of the birth in November 1991 and that he expressed no interest in the child. Husband says he found out the child's birth date in December 1991 and that upon finding out the date of birth he realized that the child could be his.

Husband contacted CCS concerning the child prior to the finalization of the adoption. Husband filed for divorce on April 6, 1992, in Sioux City, Iowa, listing M.C.S. as one of his three children.

On May 22, 1992, husband filed a petition for writ of habeas corpus and motion for relief from

order terminating parental rights. Adoption became final before the hearing. The hearing was held on June 9, 1992. The habeas petition was denied June 25, 1992, because neither CCS nor J.A.S. had custody of M.C.S. An oral motion to require CCS to identify the adoptive parents after the court ruled from the bench that the adoptive parents were a necessary party to the habeas corpus action was denied.

ISSUE ONE

WHETHER SOUTH DAKOTA HAD SUBJECT MATTER JURISDICTION TO TERMINATE PARENTAL RIGHTS AND DETERMINE CUSTODY OF M.C.S. ON NOVEMBER 12, 1991?

* * *

Husband argues that the State of South Dakota did not have subject matter jurisdiction to determine custody of M.C.S. under the Uniform Child Custody Jurisdiction Act. CCS argues that the Uniform Child Custody Jurisdiction Act does not apply because a termination is not a "custody proceeding." Instead, CCS argues that South Dakota had subject matter jurisdiction and venue in terminating the parental rights of the child based on SDCL 25-5A-5 because (1) the authorized agency, CCS, was based in Sioux Falls, (2) the child was in the physical custody of CCS at the time of the termination proceeding, (3) the child was physically present in South Dakota at the time of the termination proceeding.

The Uniform Child Custody Jurisdiction Act (UCCJA) was promulgated in 1968 by the National Conference of Commissioners on Uniform State Laws in response to jurisdictional problems in interstate custody cases which were resulting in child snatchings. 126 Cong.Rec. 22807 (daily ed. August 25, 1980) (statement of Sen. Wallop). In these cases, the child was being denied access to one parent by the unilateral actions and efforts of the other parent. Court-shopping parents were fleeing to other states seeking to obtain more favorable decrees. Cong. Record, *supra*, at 22807.

The UCCJA was enacted by the South Dakota Legislature in 1978 (S.D.Sess.L. ch. 190). *Winkelman v. Moses*, 279 N.W.2d 897, 898 n. 1 (S.D.1979). The UCCJA is intended, among other things, to assure that litigation concerning the custody of a child take place ordinarily in the state with which the child and his family have the closest connection and where significant evidence concerning the child's personal relationship is most readily available. The UCCJA's underlying policy is to eliminate forum shopping and to enable the courts to act in the best interest of the child. *Zappitello v. Moses*, 458 N.W.2d 784, 786 (S.D.1990) (citing *Winkelman*, 279 N.W.2d at 898-99). South Dakota's UCCJA is currently codified at chapter 26-5A.

Case law on the issue of the applicability of the UCCJA to terminations and adoptions is mixed.

* * *

Based on current case law and the broad interpretation of "custody" being found by state courts which have adopted the UCCJA, the UCCJA is applicable in the case of M.C.S.

We have previously stated that a finding of any of the four grounds under SDCL 26-5A-3 is sufficient to confer jurisdiction over interstate child custody disputes in a state court. Once it is determined that jurisdiction exists under SDCL 26-5A-3, then the court must determine whether jurisdiction should be exercised in view of SDCL 26-5A-6 (simultaneous proceedings in other states), 26-5A-7 (inconvenient forum), and 26-5A-8 (reasons of conduct). *Zappitello*, 458 N.W.2d at 787.

The first ground is that the forum is the home state of the child. SDCL 26-5A-3(1). "Home state" as defined under SDCL 26-5A-2(5) includes where the child has lived for the prior six months or where the child has lived from birth with a parent. M.C.S. was only nine days old at the time of the petition so the six

months cutoff is eliminated. M.C.S. was born in Minnesota and was in the custody of her mother, an Iowan until the court turned custody over to CCS on November 12, 1991. As seen in *In re Lehr's Guardianship*, 249 Iowa 625, 87 N.W.2d 909, 912 (1958), young children are not sui juris. Their domiciles are established by operation of law and are that of their guardians. M.C.S.'s parents are her natural guardians. M.C.S.'s natural mother J.A.S., and father, whether V.M.S. or J.P., all live in Iowa.

The statute says that periods of temporary absence of the parent are counted as time in the home state. SDCL 26-5A-2(5). Whether J.A.S. returned to Iowa after her child's birth in Minnesota or drove directly to South Dakota with the child does not change the fact that her absence from Iowa was temporary. South Dakota did not qualify as M.C.S.'s home state prior to November 12, 1991.

The second ground is that "the child and his parents, or the child and at least one contestant, have significant connection with this state...." SDCL 26-5A-3(2).

Husband and the man she named as the child's father are all Iowans. None of the three work in South Dakota. Other family members, including the couple's two children, are in Iowa. The child, M.C.S., was not conceived nor born in South Dakota. Husband did not tell J.A.S. to take M.C.S. to South Dakota nor did he apparently know until after the fact that J.A.S. had taken M.C.S. to South Dakota for adoption. Husband filed for divorce in Iowa claiming parentage of M.C.S. prior to the finalization of the adoption. Only CCS, the adoption agency, is in South Dakota.

" 'Physical presence' of the child alone does not suffice to confer jurisdiction." *In re Guardianship of Donaldson*, 178 Cal.App.3d 477, 223 Cal.Rptr. 707 (5 Dist.1986) (citing Commissioner's Note 9 Uniform Laws Annot. (1973) at pp. 124-125 § 5152 subd. (2) [§ 3, subd. (d)]). "The 'significant connection' basis for jurisdiction requires maximum rather than minimum contact with the state and is intended to limit rather than proliferate jurisdiction." *Donaldson*, 223 Cal.Rptr. at 713 (citations omitted). "[T]he unilateral movement of a child to another state is not enough to confer jurisdiction...." *A.E.H.*, 468 N.W.2d at 201 (citing Commissioner's comments). M.C.S.'s most significant connections were in Iowa prior to November 12, 1991.

The third ground is that "[t]he child is physically present in this state and the child has been abandoned or it is necessary in an emergency to protect the child because he has been subjected to or threatened with mistreatment or abuse or is otherwise neglected or dependent." SDCL 26-5A-3(3) (emphasis added).

* * *

Clearly, at the time of the court case dealing with the petition, M.C.S. was physically present in the state of South Dakota. However, M.C.S. was not abandoned nor does the record reveal any evidence of mistreatment, child neglect, or abuse necessary to assume jurisdiction in an "emergency" situation. Both elements are necessary to meet the third ground.

The fourth ground is that no other state appears to have jurisdiction under the first three grounds. SDCL 26-5A-3(4). That is not the case here. Iowa has jurisdiction under the first two grounds.

* * *

The UCCJA applies in this termination of parental rights. Under the grounds applying the UCCJA, South Dakota does not have subject matter jurisdiction; Iowa does. The action of the court in the termination of parental rights is therefore void due to lack of subject matter jurisdiction.

Because the State of South Dakota does not have subject matter jurisdiction under the first issue, issues two and three are moot.

MILLER, C.J., and WUEST, J., and MILLER, Circuit Judge, concur.
SABERS, J., concurs in result.

NOTES

1. Issue of Attorney Fees/Costs May Be Deferred to Court in Other State, according to *Parsley v. Parsley*, 2007 SD 58, 734 N.W.2d 813. In *Parsley v. Parsley*, 2007 SD 58, 734 N.W.2d 813, the trial court granted a decree of divorce on December 22, 2004, based on wife's admission of service (as defendant) and the parties' "Stipulation and Agreement." Wife subsequently filed a motion to vacate the divorce decree almost 10 months later on October 22, 2005. The trial court upheld its decree, but did "defer" jurisdiction over child custody matters in favor of Arizona. The South Dakota Supreme court affirmed the trial court's decision in all respects in a unanimous opinion authored by Chief Justice Gilbertson.

Apparently Arizona had been the home state of the child when the divorce action was filed. When this was brought to the attention of the trial court, it "in consultation with the Superior Court of Maricopa County, Arizona, ... agreed to defer to that court's jurisdiction for purposes of child custody, support and visitation." Wife claimed that since she prevailed on this aspect of her challenge, she was entitled to attorney fees of \$2,915.96. In addressing this assertion, the SD Supreme Court stated, "As it is within the discretion of the circuit court to defer jurisdiction on the matter of child custody to the Arizona court, so to it is within the circuit court's discretion to defer to that court on the issue of attorney fees and costs." ¶ 44. The SD Supreme Court also noted that Wife waived the issue of attorney fees prior to appeal by failing to make an argument before the trial court. ¶45.

2. South Dakota trial court entertaining an adoption proceeding over children residing in South Dakota must defer to Colorado court which previously determined custody over children because "termination of parental rights," which is necessarily a part of the adoption proceeding, is considered a custody proceeding under the UCCJA. In *the Matter of the Adoption of H.L.C. and B.A.C.*, 2005 SD 110, 706 N.W.2d 90 involves a situation where the maternal grandparents were awarded custody of their two grandchildren in a Colorado proceeding. The other contestants – mother, father, and paternal grandparents all reside in Colorado. Maternal grandparents subsequently sought to terminate the father's rights and adopt the children in South Dakota state court. The Colorado state court asserted that it had exclusive jurisdiction because both parents were still living in Colorado, but also acknowledged that "... under Colorado law, the court was precluded from exercising jurisdiction over an adoption proceeding unless the children resided in Colorado. Because the children were living in South Dakota, the [Colorado] district court concluded that it could not prevent the South Dakota circuit court from exercising jurisdiction over the issue of adoption." ¶ 22.

The South Dakota trial court terminated father's rights and granted the adoption. The South Dakota Supreme Court reversed and vacated, holding that the South Dakota trial court was required under the UCCJA (which was applicable at the time) and under the PKPA to have refused jurisdiction pursuant to SDCL 26-5A-6. The South Dakota Supreme Court stated that "in the case of *In re M.C.S.*, we held that termination of parental rights is a custody proceeding under the UCCJA" and "Thus, even though the circuit court had jurisdiction to order the adoption, it should have refused to exercise its jurisdiction ... The termination of the father's parental rights, which, was a prerequisite to ordering the adoption, was clearly a custody proceeding" and "the Colorado court had continuing jurisdiction over the matter." ¶ 24.

This opinion notes that South Dakota replaced the UCCJA with the UCCJEA, effective July 1, 2005.

It is worth observing that the definition of “child custody proceeding” under the UCCJEA specifically references “termination of parental rights.” SDCL 26-5B-102(4). Under the UCCJA’s definition, there was no specific reference to “termination of parental rights.” SDCL 26-5A-2(3) (now repealed).

SIMULTANEOUS PROCEEDINGS

CUNNINGHAM v. CUNNINGHAM

Court of Appeals of Texas, 1986.
719 S.W.2d 224.

VANCE, Justice.

Robert R. Cunningham appeals from a default judgment of divorce which dissolved his marriage to Marthallynn Cunningham, divided the property, appointed Marthallynn managing conservator of the only child of the marriage, appointed him possessory conservator, and ordered him to pay child support plus Marthallynn's attorney's fees. Robert did not make a general appearance to contest the merits but, instead, made a special appearance to contest the subject matter jurisdiction and in personam jurisdiction of the court. Consequently, the only issues on appeal are: (1) whether under the Texas Uniform Child Custody and Jurisdiction Act, the trial court was precluded from asserting jurisdiction concerning the custody and support of the child and; (2) whether the trial court had personal jurisdiction over Robert. We conclude that, because of a prior custody proceeding pending in North Carolina, the trial court did not have subject matter jurisdiction concerning child custody or support. In addition, the trial court did not have personal jurisdiction over Robert. Accordingly, (1) we reverse the judgment of the trial court except as to that part of the decree which dissolves the marriage of the parties; (2) we strike out Marthallynn's judgment for her attorney's fees, her judgment for court costs and her judgment holding Robert liable for the outstanding indebtedness of the marriage; (3) we dismiss her claims for child custody and child support.

Robert and Martha were married on September 26, 1981, and had one child, R.R. Cunningham, born on May 12, 1982. The parties lived in Texas until May of 1984 when they moved to North Carolina. The following September, the parties began living apart and in November executed a settlement agreement which divided the property and set forth the terms of custody and visitation agreed upon by the parties. However, after the agreement was executed, the parties lived together for approximately two weeks, but separated again. Robert, by the terms of the agreement, had custody of R.R. until January 1, 1985. At that time Marthallynn's term of custody began as provided by the agreement. After receiving custody and without Robert's consent, she removed R.R. from North Carolina to Texas. In April, 1985, Robert made a trip to Texas in an effort to visit with R.R., but Marthallynn denied him access to the child.

Robert returned to North Carolina and on May 10, 1985, filed a petition to have sole custody rights over R.R. He alleged that Marthallynn had violated the separation agreement and that Marthallynn had exposed R.R. to places and persons potentially dangerous to his safety and well-being. In addition, Robert made a motion for temporary custody and support, and the court immediately scheduled a hearing date and issued notice. When the constable attempted service of process in Texas at Marthallynn's parents' address, her father advised him that her attorney had instructed the family not to divulge any information about where she could be found. After the efforts to make personal service failed, a copy of the citation was mailed to

Marthallynn at her parent's address by certified mail, return receipt requested. The postal service on two occasions attempted to deliver the citation but returned it marked "unclaimed."

On September 6, 1985, the North Carolina court entered an order awarding temporary custody to Robert until a final hearing could be held on the merits of the petition. The court found that it had subject matter jurisdiction under the Uniform Child Custody Jurisdiction Act, N.C.GEN.STAT. § 50A- 3(a)(1) (1984), because: (1) North Carolina was the home state of the child and had been the child's home state within six months before the commencement of the proceeding; (2) the child's absence from the state was due to his removal and retention by Marthallynn while Robert still resided in North Carolina; and (3) no other custody proceeding was pending in another state. The court further found that Robert had fulfilled all of the requirements of the Uniform Child Custody Jurisdiction Act (UCCJA).

The North Carolina court further found that Marthallynn's conduct and her family's conduct supporting Marthallynn's secreting herself and the child was prima facie detrimental to the child. Under section 50-13.5(d)(2) of the North Carolina General Statutes, once the trial court has gained jurisdiction under its UCCJA, it may enter an ex parte order for temporary custody prior to service of process if the circumstances of the case render it appropriate. Consequently, in view of Marthallynn's conduct, the court awarded temporary custody to Robert and ordered Marthallynn to return the child to Robert and appear in court for a hearing on the merits.

Marthallynn, however, after residing in Texas with R.R. for six months, filed for divorce and managing conservatorship of R.R. in Texas on July 5, 1985. Robert made a special appearance on October 25 contesting the subject matter and personal jurisdiction of the court. At the conclusion of the hearing the trial court overruled Robert's special appearance regarding matters of child custody but sustained it as to child support. Apparently, the court later withdrew this ruling because its judgment ordered Robert to pay \$450 per month in child support in addition to court costs, and Martha's attorney's fees. In addition, the court awarded managing conservatorship of R.R. to Martha. The Texas court found that North Carolina did not have jurisdiction over the cause because: (1) Martha was not served with citation; (2) the child, R.R., had been in Texas under Martha's care and custody for six months prior to the filing of the petition in Texas; and (3) the separation agreement, under North Carolina law, was null and void.

Robert contends that the Texas trial court erred in asserting subject matter and personal jurisdiction in this cause. We agree. The Texas trial court did not have subject matter jurisdiction over this case except to dissolve the marriage between the parties. *Blenkle v. Blenkle*, 674 S.W.2d 501, 503 (Tex.App.--El Paso 1984, no writ). Moreover, the Texas trial court did not have personal jurisdiction over Robert. Because this is a case with little Texas precedent, we rely in considerable measure on other jurisdictions who have adopted the UCCJA.

SUBJECT MATTER JURISDICTION

The Texas Uniform Child Custody Jurisdiction Act, sections 11.51 through 11.75 of the Texas Family Code,¹ in pertinent part provides:

§ 11.51.

(a) The general purposes of this subchapter are to:

(1) avoid jurisdictional competition and conflict with courts of other states in matters of child custody that have in the past resulted in the shifting of children from state to state

¹ All references are to the Texas Family Code (Vernon Supp.1986) unless otherwise noted.

with harmful effects on their well-being;

* * *

(5) deter abductions and other unilateral removals of children undertaken to obtain custody awards;

* * *

(7) facilitate the enforcement of custody decrees of other states

* * *

§ 11.53 Jurisdiction

(a) A court of this state that is competent to decide child custody matters has jurisdiction to make a child custody determination by initial decree or modification decree or order if:

(1) this state:

(A) is the home state of the child on the date of the commencement of the proceeding; or

(B) had been the child's home state within six months before the date of the commencement of the proceeding and the child is absent from this state because of his removal or retention by a person claiming his custody ... and a parent or person acting as parent continues to live in this state;

* * *

§ 11.52 Definitions

(5) "Home state" means the state in which the child immediately preceding the time involved lived with his parents ... for at least six consecutive months...

§ 11.56 Simultaneous Proceeding in Other State

(a) A court of this state may not exercise its jurisdiction under this subchapter if, at the time of filing the petition, a proceeding concerning the custody of the child was pending in a court of another state exercising jurisdiction substantially in conformity with this subchapter, unless the proceeding is stayed by the court of the other state....

The UCCJA and its federal counterpart, the Parental Kidnapping Prevention Act of 1980 (PKPA), 28 U.S.C. § 1738A (Vernon Supp.1986), were enacted to prevent jurisdictional conflict and competition over child custody and, in particular, to deter parents from abducting children for the purpose of obtaining custody awards. *Peterson v. Peterson*, 464 A.2d 202, 204 (Me.1983). Both statutes attempt to "eliminate jurisdictional fishing with children as bait." *Id.*; *Wheeler v. District Court*, 186 Colo. 218, 220, 526 P.2d 658, 660 (1974).

The UCCJA specifically rejects the necessity for a court to have personal jurisdiction over both parents before a trial court can determine the custody status of a minor child. Commissioner's Note to Uniform Child Custody Jurisdiction Act §§ 12, 13, 9 U.L.A. 150-51 (1979). Child custody determinations, as distinguished from support actions, under the UCCJA are proceedings in rem affecting status. *Id.* at 150. Moreover, the physical presence of the child is not a prerequisite for jurisdiction to determine his custody. TEX.FAM.CODE ANN. § 11.53(c) (Vernon Supp.1986).

Further, the UCCJA establishes the dominance of "home state" jurisdiction for proceedings to make both an initial decree or a modification and a decree. Under section 11.53, a state court has jurisdiction to make an initial custody order if it is the home state of the child at the commencement of the proceeding or if it had been the home state of the child within six months of the commencement of the proceeding "and the

child is absent from this state because of his removal or retention by a person claiming his custody ... and a parent or person acting as parent continues to live in this state." Section 11.53(a)(1)(B). When two states have a jurisdictional base under section 11.53, priority in time in the commencement of the proceeding governs which court will proceed with the action. Commissioner's Note to § 6, 9 U.L.A. 135 (1979); see section 11.56.

In the instant case, North Carolina, which enacted substantially identical provisions when it adopted the UCCJA, had subject matter jurisdiction over this case because: (1) North Carolina had been R.R. Cunningham's "home state" within six months of the filing of the proceeding in North Carolina and the child's absence from the state was due to the mother's removal of the child while the father was still residing in North Carolina; and (2) the proceeding in North Carolina commenced before the Texas proceeding. The Cunninghams moved to North Carolina in May of 1984. The child, R.R., resided in North Carolina for approximately seven consecutive months before his removal on January 1, 1985. Consequently, at the time of his removal, North Carolina was the child's "home state." Robert's petition was filed on May 10, 1985 within six months of R.R.'s removal and before any custody proceeding had been commenced in Texas. Marthallynn did not file her Texas suit until July 5, 1985.

Because the jurisdiction of the North Carolina court was exercised in conformity to the UCCJA, the Texas trial court, under section 11.56, could not exercise jurisdiction. * * * Under section 11.56, the only issue that the Texas court could have determined when shown that there was a prior custody proceeding in another state was whether that state was exercising "jurisdiction substantially in conformity with this subchapter [the UCCJA]." Section 11.56.

Under such circumstances, a trial court must determine if the other state is the child's "home state" or if the prior proceeding was begun in conformity to any jurisdictional base enumerated in section 11.53. When a sister state is already exercising jurisdiction in conformity with the UCCJA at the time of filing in Texas, the only power that the trial court has is to dismiss. *See Porter v. Johnson*, 712 S.W.2d 598 (Tex.App.--Corpus Christi, no writ). In the instant case, because the North Carolina trial court was exercising subject matter jurisdiction in conformity to section 11.53, the trial court erred in not dismissing the custody and support action.

Marthallynn, however, contends that the North Carolina court did not have jurisdiction because she was not given notice of the proceedings in North Carolina and her presence in Texas with the child for six months established Texas jurisdiction over the cause. We disagree. The UCCJA and PKPA were enacted to prevent the type of situation that we have before us. The record before us clearly shows that Marthallynn intentionally evaded service of process. She cannot now use her deliberate evasion as a basis of a claim of right. *Siler v. Storey*, 677 S.W.2d 504, 507 (Tex.1984). "To do so would make a mockery of the Act." *Id.* at 507. Consequently, we hold that Texas did not have subject matter jurisdiction over this custody dispute.

* * *

The divorce is affirmed. In all other respects the judgment of the court below is reversed and the petitioner's claims stricken and dismissed.

NOTE

In the *Cunningham* case, the trial court's ability to adjudicate the "divorce" issue was affirmed, even though the court's attempt to decide custody (or "conservatorship") was reversed.

C. Preemption by the Parental Kidnaping Prevention Act (“PKPA”)

1. The PKPA — a Federal Mandate

Excerpts from 45 Arkansas Law Review 885 (1993)

FEDERAL PREEMPTION IN THE RESOLUTION OF CHILD CUSTODY JURISDICTION DISPUTES

Roger M. Baron **

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I. INTRODUCTION

Child custody cases are a matter of state law. Determining who is the appropriate custodian or

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custodians of a child is governed exclusively by criteria lying within the peculiar province of state law.¹ Those criteria are of a wide variety, including the "best interests of the child" standard, "joint custody," and the "primary caretaker" doctrine, to name just a few.² There is no suggestion in the current development of the law, nor in this article, that the substantive law of the states in the resolution of custody disputes is (or should be) preempted by federal law.

This article addresses the issue of jurisdiction--not how to decide a particular custody dispute, but rather which court should decide it. Where the parties have maneuvered themselves into the potential jurisdiction of courts in different states, the conflict takes on a new dimension. Jurisdictional disputes over which court should determine custody cannot be resolved by looking at just one state's laws. In many, if not most, cases of this nature, the conflict lacks an authoritative resolution through the application of the laws of the interested states. The conflict is exacerbated by the following factors: (1) the inherent nature of a child custody decree is such that the decree is always subject to modification, (2) our federal system of government consisting of fifty co-equal sovereigns, and (3) the ease of movement by parent and child from state to state. These factors are present even though the laws of the interested states may be harmonious and even though those states may have adopted identical provisions of the Uniform Child Custody Jurisdiction Act (UCCJA)--the first real concerted effort to resolve jurisdictional quandaries.³

The solution to this jurisdictional problem lies in one uniform set of criteria imposed equally upon all the states. Congress has provided such a solution in the Parental Kidnaping Prevention Act (PKPA) of 1980.⁴ In short, the PKPA is a federal mandate to each of the fifty states requiring jurisdictional disputes in child custody cases to be resolved in the manner prescribed by the PKPA.

Although the solution presented by the PKPA is a federal solution, the PKPA does not provide a federal remedy. In 1988 the Supreme Court held that the PKPA does not create a private right of action in federal court to determine the validity of conflicting custody decrees.⁵ Based on the legislative history of the PKPA and the limited nature of federal jurisdiction in custody disputes, the Supreme Court was unwilling to involve the federal courts in an enforcement role. The Court did, however, indicate its belief and expectation that the states would faithfully apply the PKPA in state courts, noting that ultimate review of any recalcitrant state court action would remain available in the Supreme Court.⁶

¹ *Rose v. Rose*, 481 U.S. 619 (1987) The Court said: "We have consistently recognized the whole subject of the domestic relations of husband and wife, parent and child, belongs to the laws of the States and not to the laws of the United States!" 481 U.S. at 625 (quoting *In Re Burrus*, 136 U.S. 586, 593-94 (1890)).

² For a discussion of the "best interests of the child" standard, "joint custody," and the "primary caretaker" doctrine, *see generally* Le Ann Larson LaFave, *Origins and Evolution of the "Best Interests of the Child" Standard*, 34 S.D. L. Rev. 459, 505-514 (1989).

³ Unif. Child Custody Jurisdiction Act, 9 U.L.A. pt. 1 at 115-331 (1988), originally promulgated in 1968.

⁴ Pub. L. No. 96-611, §§ 6-10, 94 Stat. 3568 (1980); codified primarily in 28 U.S.C. § 1738A (1988).

⁵ *Thompson v. Thompson*, 484 U.S. 174 (1988).

⁶ The Supreme Court refused to find that the PKPA created a cause of action in federal court:

[T]he context, language, and history of the PKPA together make out a conclusive case against inferring a cause of action in federal court . . . ultimate review remains available in this Court for truly intractable deadlocks. In addition, the unspoken presumption in petitioner's argument is that the States are either unable or unwilling to enforce the [PKPA]. This is a presumption

* * *

IV. RECURRENT SCENARIOS TRIGGERING PREEMPTION

Matters triggering federal preemption of child custody jurisdictional disputes fall into one of two primary categories: (a) initial jurisdiction, and (b) continuing jurisdiction. A third category relating to "due process" is evolving and will be discussed separately, as well as the topic of "emergency jurisdiction" as a possible basis for invoking the jurisdiction of a court otherwise not available.

* * *

The Parental Kidnaping Prevention Act ("PKPA") — 28 U.S.C.A. § 1738A

§ 1738A. Full faith and credit given to child custody determinations

(a) The appropriate authorities of every State shall enforce according to its terms, and shall not modify except as provided in subsection (f) of this section, any child custody determination made consistently with the provisions of this section by a court of another State.

(b) As used in this section, the term--

- (1) "child" means a person under the age of eighteen;
- (2) "contestant" means a person, including a parent, who claims a right to custody or visitation of a child;
- (3) "custody determination" means a judgment, decree, or other order of a court providing for the custody or visitation of a child, and includes permanent and temporary orders, and initial orders and modifications;
- (4) "home State" means the State in which, immediately preceding the time involved, the child lived with his parents, a parent, or a person acting as parent, for at least six consecutive months, and in the case of a child less than six months old, the State in which the child lived from birth with any of such persons. Periods of temporary absence of any of such persons are counted as part of the six-month or other period;
- (5) "modification" and "modify" refer to a custody determination which modifies, replaces, supersedes, or otherwise is made subsequent to, a prior custody determination concerning the same child, whether made by the same court or not;
- (6) "person acting as a parent" means a person, other than a parent, who has physical custody of a child and who has either been awarded custody by a court or claims a right to custody;
- (7) "physical custody" means actual possession and control of a child; and
- (8) "State" means a State of the United States, the District of Columbia, the Commonwealth of Puerto Rico, or a territory or possession of the United States.

we are not prepared, and more importantly, Congress was not prepared, to indulge. State courts faithfully administer the Full Faith and Credit Clause every day; now that Congress has extended full faith and credit requirements to child custody orders, we can think of no reason why the courts' administration of federal law in custody disputes will be any less vigilant.
Id. at 187.

(c) A child custody determination made by a court of a State is consistent with the provisions of this section only if--

(1) such court has jurisdiction under the law of such State; and

(2) one of the following conditions is met:

(A) such State (i) is the home State of the child on the date of the commencement of the proceeding, or (ii) had been the child's home State within six months before the date of the commencement of the proceeding and the child is absent from such State because of his removal or retention by a contestant or for other reasons, and a contestant continues to live in such State;

(B) (i) it appears that no other State would have jurisdiction under subparagraph (A), and (ii) it is in the best interest of the child that a court of such State assume jurisdiction because (I) the child and his parents, or the child and at least one contestant, have a significant connection with such State other than mere physical presence in such State, and (II) there is available in such State substantial evidence concerning the child's present or future care, protection, training, and personal relationships;

(C) the child is physically present in such State and (i) the child has been abandoned, or (ii) it is necessary in an emergency to protect the child because he has been subjected to or threatened with mistreatment or abuse;

(D) (i) it appears that no other State would have jurisdiction under subparagraph (A), (B), (C), or (E), or another State has declined to exercise jurisdiction on the ground that the State whose jurisdiction is in issue is the more appropriate forum to determine the custody of the child, and (ii) it is in the best interest of the child that such court assume jurisdiction; or
(E) the court has continuing jurisdiction pursuant to subsection (d) of this section.

(d) The jurisdiction of a court of a State which has made a child custody determination consistently with the provisions of this section continues as long as the requirement of subsection (c)(1) of this section continues to be met and such State remains the residence of the child or of any contestant.

(e) Before a child custody determination is made, reasonable notice and opportunity to be heard shall be given to the contestants, any parent whose parental rights have not been previously terminated and any person who has physical custody of a child.

(f) A court of a State may modify a determination of the custody of the same child made by a court of another State, if--

(1) it has jurisdiction to make such a child custody determination; and

(2) the court of the other State no longer has jurisdiction, or it has declined to exercise such jurisdiction to modify such determination.

(g) A court of a State shall not exercise jurisdiction in any proceeding for a custody determination commenced during the pendency of a proceeding in a court of another State where such court of that other State is exercising jurisdiction consistently with the provisions of this section to make a custody determination.

(Added Pub. L. 96-611, § 8(a), Dec. 28, 1980, 94 Stat. 3569.)

C. Preemption by the Parental Kidnaping Prevention Act (“PKPA”)

2. Initial Jurisdiction

GARRETT v. GARRETT

Supreme Court of Arkansas, 1987.
292 Ark. 584, 732 S.W.2d 127.

HOLT, Chief Justice.

This case is an appeal of a Franklin County Chancery Court order in which custody of the children of Charles and Jolene Garrett was awarded to Jolene, appellee. Charles, appellant, argues that the trial court should not have taken jurisdiction of the case because an Oklahoma court had previously entered an order granting custody to him and because he was not personally served with notice of the Arkansas proceedings. We reverse and dismiss.

The events leading to the Arkansas court's decree are as follows. Charles and Jolene Garrett were married in Clarksville, Arkansas, on May 29, 1982, and immediately moved to Miami, Oklahoma. On August 11, 1986, the couple separated. Charles left their two children, ages three and two, with Jolene and went to his parents' home in Miami. The next day, Jolene took the children to Altus, Arkansas, and moved in with her parents. Two days later, on August 13, Jolene filed a complaint in Franklin County, Arkansas, asking for custody of the children. On August 15, Charles filed a petition for divorce in Ottawa County, Oklahoma, asking for custody of the children. The Oklahoma court entered an order the same day giving him temporary custody.

On September 9, the Arkansas court entered an order giving temporary custody to Jolene. Charles filed a special entry of appearance in the Arkansas court, in which he challenged the court's jurisdiction. Jolene also entered a special appearance in the Oklahoma court to challenge that court's jurisdiction.

On September 18, the Oklahoma court, after a hearing in which both parties were present and represented by counsel, found that it had jurisdiction as the "home state" as defined by the Uniform Child Custody Jurisdiction Act (UCCJA) and continued in force its temporary order of custody in Charles. The order recited that the trial judge had, pursuant to the UCCJA, communicated by telephone with the chancellor presiding over the Arkansas proceedings, and that he had informed the Arkansas chancellor that he invoked jurisdiction over the parties and the children. On September 26, the Oklahoma court entered a final decree of divorce and awarded custody to Charles. The Oklahoma court decree stated that it had sole and exclusive jurisdiction under the UCCJA as enacted by both Oklahoma and Arkansas. No appeal was taken from the Oklahoma court decree.

The UCCJA provisions on jurisdiction relied on by the Oklahoma court, codified in Arkansas as Ark.Stat.Ann. § 34-2703 (Supp.1985), state:

- (a) A court of this State which is competent to decide child custody matters has jurisdiction to make a child custody determination by initial or modification decree

if:

(1) this State (i) is the home state of the child at the time of commencement of the proceeding, or (ii) had been the child's home state within six (6) months before commencement of the proceeding and the child is absent from this State because of his removal or retention by a person claiming his custody or for other reasons, and a parent or person acting as parent continues to live in this State; or

(2) it is in the best interest of the child that a court of this State assume jurisdiction because (i) the child and his parents, or the child and at least one [1] contestant, have a significant connection with this State, and (ii) there is available in this State substantial evidence concerning the child's present or future care, protection, training, and personal relationships;....

"Home state" is defined as the state in which the child immediately preceding the time involved lived with his parents, a parent, or a person acting as parent, for at least six (6) consecutive months,....

Ark.Stat.Ann. § 34-2702(5) (Supp.1985).

The Arkansas court, after a hearing in which the Oklahoma decree was put into evidence, nevertheless found that it had jurisdiction pursuant to paragraph (2) of § 34-2703(a), inasmuch as the parties had a significant contact with the state because Jolene and the children were residing in Arkansas, Jolene was raised in Arkansas, and the parties lived here for a substantial time before their marriage and were married here. The order also said that there was available in this state substantial evidence concerning the children's present and future care, protection, training, and personal relationships and that it was to the best interest of the children that this court assume jurisdiction. The order, entered on October 28, gave custody of the children to Jolene.

Under both the UCCJA and the Parental Kidnaping Prevention Act, 28 U.S.C. § 1738A, (PKPA) the Arkansas court erroneously exercised jurisdiction. These two acts must be read in conjunction, and where they conflict, the preemptive PKPA controls. *Norsworthy v. Norsworthy*, 289 Ark. 479, 713 S.W.2d 451 (1986).

The scenario in this case, and the instability created for the family, is precisely what both of these acts were designed to prevent. Their stated purposes are to avoid jurisdictional conflict with courts of different states, to promote cooperation between courts so that the custody decree is rendered by the state which can best decide the case, to discourage continuing controversies over child custody, to deter abductions, and to avoid re-litigation of custody decisions. Ark.Stat.Ann. § 34-2701 (Supp. 1985); 28 U.S.C.S. § 1738A (History; Ancillary Laws and Directives).

The PKPA seeks to minimize jurisdictional controversies by giving little leeway to the court of the second state when the home state enters an order regarding custody. Subsection (a) of the PKPA states:

The appropriate authorities of every State shall enforce according to its terms, and shall not modify except as provided in subsection (f) of this section, any child custody determination made consistently with the provisions of this section by a court of another State.

Unlike the UCCJA, under the PKPA jurisdiction is given to the "home state" to the exclusion of

other jurisdictional considerations. 28 U.S.C. § 1738A(b)(4); *Norsworthy, supra*. Because Oklahoma was clearly the home state under the PKPA, which defines that term just as the UCCJA does, the Oklahoma decree was entitled to enforcement in the Arkansas court under the PKPA.

* * *

As we have found that the Arkansas court should not have taken jurisdiction over the parties under the provisions of the PKPA and the UCCJA, it is not necessary for us to reach the issue of the notice given Charles of that proceeding.

Reversed and dismissed.

C. Preemption by the Parental Kidnaping Prevention Act (“PKPA”)

3. Modification Jurisdiction

MURPHY v. WOERNER

Supreme Court of Alaska, 1988.
748 P.2d 749.

BURKE, Justice.

This is an appeal from a superior court decision modifying a Kansas child custody and support order. It raises the question whether Alaska has jurisdiction to modify the Kansas decree under the Uniform Child Custody Jurisdiction Act and the Parental Kidnaping Prevention Act of 1980.

Randall Murphy and Mary Woerner were divorced in Kansas in 1981. Under the original decree, Woerner obtained sole custody of their two children; Murphy was ordered to pay \$300 per month child support.

Woerner and the children moved to Alaska in 1982. After several hearings, Kansas granted Woerner and Murphy joint custody; Woerner had physical custody during the school year and Murphy had specific visitation rights. Murphy was not required to pay child support. The Kansas court has asserted jurisdiction over custody and visitation disputes several times since entry of the original decree.

In 1985, Woerner filed a complaint in Alaska to modify the 1982 Kansas custody order. She then asked Kansas to relinquish jurisdiction in favor of Alaska, but the Kansas court refused.

Murphy entered a limited appearance to contest Alaska's jurisdiction under the Uniform Child Custody Jurisdiction Act, AS 25.30.010-.910 (UCCJA). The Alaska court concluded that it had home state jurisdiction pursuant to AS 25.30.020(a)(1) and modified the Kansas decree, limiting Murphy's visitation rights, and imposing upon him a child support obligation.

This appeal followed. After oral argument, we ordered supplemental briefing on the question whether the Parental Kidnaping Prevention Act of 1980, 28 U.S.C. § 1738A (1980) (PKPA), prohibits Alaska from modifying the custody provisions of the Kansas decree.

PARENTAL KIDNAPING PREVENTION ACT OF 1980

Interstate child custody jurisdiction disputes are governed by the PKPA and the UCCJA. When the UCCJA proved an imperfect remedy for the staggering national problem of parental child-snatching and forum shopping in interstate child custody disputes, Congress enacted the PKPA to provide a uniform federal standard to ascertain the one state with jurisdiction to modify an existing child custody order. *Meade v. Meade*, 812 F.2d 1473, 1475-76 (4th Cir.1987). To the extent that the PKPA and the UCCJA conflict, the PKPA preempts state law. *Id.*

Under the PKPA, a court of one state generally must enforce, and may not modify, a child custody determination of another state when the custody determination was made consistently with the provisions of the PKPA. 28 U.S.C. § 1738A(a).¹ However, the court of one state may modify the decree of another if the modifying state has jurisdiction and the decree state no longer has jurisdiction or declines to exercise it. *Id.* § 1738A(f).²

The threshold question is whether the 1982 Kansas decree was made consistently with the PKPA. Since Murphy is still a Kansas resident, the Kansas decree conforms with the PKPA if Kansas had jurisdiction under its version of the UCCJA. *Id.* § 1738A(c)(1), (c)(2)(E), (d).³

When the initial decree was entered, Kansas had jurisdiction because it was the home state of the children. Kan.Stat.Ann. § 38-1303(a)(1) (1986). Kansas had continuing modification jurisdiction in 1982 because Murphy resided there and was the primary custodial parent. Therefore, the 1982 Kansas order is consistent with the PKPA. 28 U.S.C. § 1738A(c)(1), (c)(2)(E),(d).

Having concluded that the Kansas decree was entered consistently with the PKPA, Alaska may modify that order only if it has jurisdiction as a matter of state law and Kansas no longer has jurisdiction or declines to exercise it. *Id.* § 1738A(f). Kansas retains jurisdiction to modify its custody orders so long as the child and at least one parent have a "significant connection" with the state and substantial evidence concerning the child's care is available there. Kan.Stat.Ann. § 38-1303(a)(2). Kansas courts have previously asserted modification jurisdiction after the children acquired a new home state. *Larsen v. Larsen*, 5

¹ 28 U.S.C. § 1738A(a) provides:

The appropriate authorities of every State shall enforce according to its terms, and shall not modify except as provided in subsection (f) of this section, any child custody determination made consistently with the provisions of this section by a court of another State.

² *Id.* § 1738A(f) provides:

A court of a State may modify a determination of the custody of the same child made by a court of another State, if

(1) it has jurisdiction to make such a child custody determination; and

(2) the court of the other State no longer has jurisdiction, or it has declined to exercise such jurisdiction to modify such determination.

³ *Id.* § 1738A(c) provides in part:

A child custody determination made by a court of a State is consistent with the provisions of this section only if

(1) such court has jurisdiction under the law of such State; and

(2) one of the following conditions is met:

....

(E) the court has continuing jurisdiction pursuant to subsection (d) of this section.

Id. § 1738A(d) provides:

The jurisdiction of a court of a State which has made a child custody determination consistently with the provisions of this section continues as long as the requirement of subsection (c)(1) of this section continues to be met and such State remains the residence of the child or of any contestant.

Kan.App.2d 284, 615 P.2d 806, 809 (1980) (trial court did not abuse discretion by modifying own custody decree upon motion of resident mother after father and children had lived in Minnesota four years).

Kansas has continuing modification jurisdiction today because Murphy is still a Kansas resident, and the children retain a significant connection with Kansas because they enjoy regular summer and holiday visitation with Murphy and their maternal grandparents. Kansas denied Woerner's petition to relinquish jurisdiction to Alaska. We therefore conclude that the PKPA prohibits Alaska from modifying the 1982 Kansas custody order. 28 U.S.C. § 1738A(a).

The order of the superior court is VACATED and the case REMANDED with instructions to dismiss the petition to modify the Kansas decree.

RABINOWITZ, Chief Justice, with whom MATTHEWS, Justice, joins, dissenting.

IN RE CLAUSEN

Supreme Court of Michigan, 1993 .
442 Mich. 648, 502 N.W.2d 649.

PER CURIAM.

These two related cases arise out of a child custody dispute involving the competing claims of the child's natural parents (Cara and Daniel Schmidt) and the third-party custodians with whom the child now lives (Roberta and Jan DeBoer).

* * *

The facts are set out at length in the opinion of the Court of Appeals. Briefly, on February 8, 1991, Cara Clausen gave birth to a baby girl in Iowa. Proceedings in Iowa have established that defendant Daniel Schmidt is the child's father. On February 10, 1991, Clausen signed a release of custody form, relinquishing her parental rights to the child. Clausen, who was unmarried at the time of the birth, had named Scott Seefeldt as the father. On February 14, 1991, he executed a release of custody form.

On February 25, 1991, petitioners Roberta and Jan DeBoer, who are Michigan residents, filed a petition for adoption of the child in juvenile court in Iowa. A hearing was held the same day, at which the parental rights of Cara Clausen and Seefeldt were terminated, and petitioners were granted custody of the child during the pendency of the proceeding. The DeBoers returned to Michigan with the child, and she has lived with them in Michigan continuously since then.

However, the prospective adoption never took place. On March 6, 1991, nine days after the filing of the adoption petition, Cara Clausen filed a motion in the Iowa Juvenile Court to revoke her release of custody. In an affidavit accompanying the request, Clausen stated that she had lied when she named Seefeldt as the father of the child, and that the child's father actually was Daniel Schmidt. Schmidt filed an affidavit of paternity on March 12, 1991, and on March 27, 1991, he filed a petition in the Iowa district court, seeking to intervene in the adoption proceeding initiated by the DeBoers.

On November 4, 1991, the district court in Iowa conducted a bench trial on the issues of paternity, termination of parental rights, and adoption. On December 27, 1991, the district court found that Schmidt established by a preponderance of the evidence that he was the biological father of the child; that the DeBoers failed to establish by clear and convincing evidence that Schmidt had abandoned the child or that his parental rights should be terminated; and that a best interests of the child analysis did not become appropriate unless abandonment was established. On the basis of these findings, the court concluded that the termination proceeding was void with respect to Schmidt, and that the DeBoers' petition to adopt the child must be denied. Those decisions have been affirmed by the Iowa appellate courts.

On remand from the Iowa Supreme Court, the district court ordered the DeBoers to appear on December 3, 1992, with the child. The DeBoers did not appear at the hearing; instead, their Iowa attorney informed the court that the DeBoers had received actual notice of the hearing but had decided not to appear. In an order entered on December 3, 1992, the district court terminated the DeBoers' rights as temporary guardians and custodians of the child. The court found that

"Mr. and Mrs. DeBoer have no legal right or claim to the physical custody of this child. They are acting outside any legal claim to physical control and possession of this child."

On the same day their rights were terminated in Iowa, the DeBoers filed a petition in Washtenaw Circuit Court, asking the court to assume jurisdiction under the UCCJA. The petition requested that the court enjoin enforcement of the Iowa custody order and find that it was not enforceable, or, in the alternative, to modify it to give custody to the DeBoers. On December 3, 1992, the Washtenaw Circuit Court entered an ex parte temporary restraining order, which directed that the child remain in the custody of the DeBoers, and ordered Schmidt not to remove the child from Washtenaw County.

On December 11, 1992, Schmidt filed a motion for summary judgment to dissolve the preliminary injunction and to recognize and enforce the Iowa judgment. The Washtenaw Circuit Court held a hearing on Schmidt's motion on January 5, 1993. It found that it had jurisdiction to determine the best interests of the child. It denied Schmidt's motion for summary judgment, and directed that the child remain with the DeBoers until further order of the court.

On March 29, 1993, the Court of Appeals reversed the Washtenaw Circuit Court's denial of Schmidt's motion for summary judgment, concluding that that court lacked jurisdiction under the UCCJA, and that under our decision in *Bowie v. Arder, supra*, the DeBoers lacked standing to bring the action. 199 Mich.App. 10, 501 N.W.2d 193 (1993).

* * *

Interstate enforcement of child custody orders has long presented vexing problems. This arose principally from uncertainties about the applicability of the Full Faith and Credit Clause of the United States Constitution. Because custody decrees were generally regarded as subject to modification, states had traditionally felt free to modify another state's prior order.

The initial attempt to deal with these jurisdictional problems was the drafting of the Uniform Child Custody Jurisdiction Act, promulgated by the National Conference of Commissioners on Uniform State Laws in 1968. 9 ULA 123. That uniform act has now been enacted, in some form, in all fifty states, the District of Columbia, and the U.S. Virgin Islands. The Michigan version of the act is found at M.C.L. § 600.651 *et seq.*; M.S.A. § 27A.651 *et seq.* The act provides standards for determining whether a state may take jurisdiction of a child custody dispute, and sets forth the circumstances in which the courts of other states are prohibited from subsequently taking jurisdiction, are required to enforce custody decisions of the original state, and are permitted to modify such decisions.

Despite the widespread enactment of the UCCJA, variations in the versions adopted in some states, and differing interpretations, resulted in continuing uncertainty about the enforceability of custody decisions.¹⁹ In 1980, Congress responded by adopting the Parental Kidnaping Prevention Act, 28 U.S.C. § 1738A. The PKPA "imposes a duty on the States to enforce a child custody determination entered by a court of a sister State if the determination is consistent with the provisions of the Act." *Thompson v. Thompson*, 484 U.S. 174, 175-176, 108 S.Ct. 513, 514, 98 L.Ed.2d 512 (1988). The PKPA includes provisions similar to the UCCJA, and emphatically imposes the requirement that sister-state custody orders be given effect.

* * *

The DeBoers argue that the Iowa custody orders were subject to modification by Michigan courts because the Iowa proceedings were no longer "pending" under the UCCJA at the time the Washtenaw Circuit

¹⁹ See, generally, Baron, *Federal preemption in the resolution of child custody jurisdiction disputes*, 45 Ark.L.R. 885 (1993).

Court action was filed on December 3, 1992. They point to *Ford Motor Co. v. Jackson*, 47 Mich.App. 700, 209 N.W.2d 794 (1973), for the proposition that an action is no longer pending once a final determination has been made on appeal. They maintain that when the Iowa Supreme Court affirmed the judgment awarding custody to the natural father on September 23, 1992, and thereafter denied the DeBoers' request for rehearing, that made the decree final, and therefore modifiable. The only remaining matters in Iowa were hearings to enforce the final order. They maintain that such enforcement proceedings do not involve custody issues, and thus the proceeding with regard to custody was no longer pending.

We reject the DeBoers' construction of the UCCJA. Enforcement of the Iowa decision is required by the PKPA, and therefore a detailed analysis of the UCCJA is not required.

* * *

It has been aptly noted that the vulnerability of a custody decree to an out-of-state modification presented the greatest need of all for the reform effort of the PKPA. "In language that is subject to little or no misinterpretation the jurisdiction of the initial court continues to the exclusion of all others as long as that court has jurisdiction under the law of that state and the state remains the residence of the child or any contestant." Baron, *Federal preemption in the resolution of child custody jurisdiction disputes*, 45 Ark.L.R. 885, 901 (1993).

Certainty and stability are given priority under the PKPA, which gives the home state exclusive continuing jurisdiction. Thus, the PKPA expressly provides that if a custody determination is made consistently with its provisions, "[t]he appropriate authorities of every State shall enforce [it] according to its terms, and shall not modify" that custody decision. 28 U.S.C. § 738A(a) (emphasis added). "A child custody determination ... is consistent with the provisions [of the PKPA] only if" the court making the determination had jurisdiction under its own laws, and the state was the "home state" of the child when the proceedings were commenced. 28 U.S.C. § 1738A(c)(1). At the time of commencement of both the termination and adoption proceedings, Iowa unquestionably had jurisdiction under its own laws and Iowa was unquestionably the home state of the child. Thus, the child custody determination made by the Iowa court was made consistently with the provisions of the PKPA.

Where the custody determination is made consistently with the provisions of the PKPA, the jurisdiction of the court that made the decision is exclusive and continuing as long as that state "remains the residence of the child or of any contestant," and it still had jurisdiction under its own laws. 28 U.S.C. § 1738A(d). Unquestionably, Daniel Schmidt continues to reside in Iowa. Furthermore, Iowa law provides for continuing jurisdiction in custody matters, and the Iowa courts regarded themselves as continuing to have jurisdiction of the custody proceeding because they continued to issue orders in the case: the order of December 3, 1992, terminating the DeBoers' right to custody and appointing Daniel Schmidt as custodian, and the order of January 27, 1993, holding the DeBoers in contempt. Because the Iowa custody determination was made consistently with the terms of the PKPA, and because Iowa's jurisdiction continues, the Iowa court's order must be enforced.

The courts of this state may only modify Iowa's order if Iowa has declined to exercise its jurisdiction to modify it. 28 U.S.C. § 1738A(f). Iowa has not declined to exercise its jurisdiction to modify its custody order; it has simply declined to order the relief sought by the DeBoers. Modification is not permitted on these facts: Iowa continues to have jurisdiction, it has not declined to exercise that jurisdiction, its jurisdiction is, therefore, exclusive, and Iowa's exclusive continuing jurisdiction precludes the courts of this state from exercising jurisdiction to modify the Iowa order.

The UCCJA and the PKPA are legislative responses to the concerns expressed by Justice Jackson regarding the failure to recognize a custody judgment of a sister state. "A state of the law such as this, where possession is not merely nine points of the law but all of them and self-help the ultimate authority, has little to commend it in legal logic or as a principle of order in a federal system." However, the uniformity of decisions contemplated by Congress cannot be realized if "judicial home-state favoritism and the substitution of 'the best interest of the child' inquiry for jurisdictional inquiry ... promote continuing custody litigation...." Blakesley, *Child custody--jurisdiction and procedure*, 35 Emory L.J. 291, 359 (1986).

"The PKPA does indeed preempt state law in the resolution of jurisdictional disputes. Initial custody jurisdiction is limited to just one forum--the home state. Modification jurisdiction is exclusively reserved to the court that rendered the initial decree. Notice and opportunity to be heard must be given prior to a custody determination. Sister states are required to enforce those decrees and give them full faith and credit. Sister states are prohibited from interfering with those courts which are properly asserting jurisdiction. * * * Custody litigation is full of injustice--let there be no doubt about that. No system of laws is perfect. Consistency in the application of the laws, however, goes a long way toward curing much of the injustice. While the laws of the fifty states may vary as to the substantive rules in custody determinations, at least there is a uniform standard imposed equally on all the states by the PKPA for determining which court makes that determination. The PKPA and its preemptive effect can no longer be avoided." Baron, *supra* at 912.

* * *

We direct the Washtenaw Circuit Court to enter an order enforcing the custody orders entered by the Iowa courts. In consultation with counsel for the Schmidts and the DeBoers, the circuit court shall promptly establish a plan for the transfer of custody, with the parties directed to cooperate in the transfer with the goal of easing the child's transition into the Schmidt home. The circuit court shall monitor and enforce the transfer process, employing all necessary resources of the court, and shall notify the clerk of this Court 21 days following the release of this opinion of the arrangements for transfer of custody. The actual transfer shall take place within 10 days thereafter.

To a perhaps unprecedented degree among the matters that reach this Court, these cases have been litigated through fervent emotional appeals, with counsel and the adult parties pleading that their only interests are to do what is best for the child, who is herself blameless for this protracted litigation and the grief that it has caused. However, the clearly applicable legal principles require that the Iowa judgment be enforced and that the child be placed in the custody of her natural parents. It is now time for the adults to move beyond saying that their only concern is the welfare of the child and to put those words into action by assuring that the transfer of custody is accomplished promptly with minimum disruption of the life of the child.

MICHAEL F. CAVANAGH, C.J., and MALLET, RILEY, BRICKLEY, BOYLE and GRIFFIN, JJ., concur.

LEVIN, Justice (dissenting).

Custody fight marks 10 years

THE ASSOCIATED PRESS
BLAIRSTOWN, Iowa — It's

been a decade since the emotional custody fight ended between a pair of birth parents from this eastern Iowa town and a Michigan couple who wanted to adopt their child, dubbed "Baby Jessica" by the media.

Today, Anna Schmidt, now 12, will celebrate her return 10 years ago to her birth parents, Dan and Cara Schmidt, of Blainstown.

Anna said she doesn't remember anything of the tumultuous first two years of her life. That's when she was called Jessica by Jan and Roberta DeBoer, of Ann Arbor, Mich., who were trying to finalize her adoption.

Anna was born in February 1991 in Cedar Rapids and was put up for adoption by her mother, Cara, a decision Cara quickly regretted.

From the third week after the birth, Cara and Anna's father, Dan Schmidt, not then married, fought to get the baby back, a battle that took two years.

The Iowa and Michigan supreme courts and the U.S. Supreme Court ruled for the Schmidts' right to regain their child.

Even though Anna may not recall the legal battle, she says she is well aware of what happened and has even seen the made-for-TV movie of her family's story, which she said she laughs at when she finds inaccuracies.

As Anna said she doesn't have plans to meet the DeBoers, her dad, interrupted, saying, "No, we don't communicate with them. That's how we all prefer it"

Anna didn't disagree.

She and her dad, sister Chloe, 10, and dog, Sparky, live in an apartment in the Benton County town of 700. Anna will be entering the seventh grade and Chloe the fifth grade in the Benton Community district this fall. Anna has secured a spot on the cheerlead-ing squad and is good at spelling. She said she'd like to be a photographer someday and live in New York City.

Proud father, Dan Schmidt, 51, said his two greatest victories are his daughters.

"They're my life, you know," he said, "I love them dearly."

After they got Anna back, the Schmidts moved into a house in the countryside just south of Blainstown. It was Cara's hometown. But in October 1998, Schmidt was injured in a construction accident and hasn't worked since.

Next, the marriage fell apart. In spring 1999, Schmidt's wife moved out. The couple divorced in March 2000, with shared custody of the girls.

Dan Schmidt said he wishes he had his marriage back and praised Cara's parenting.

"Cara is a good mother," Schmidt said. "She does a lot for the girls."

As the 10th anniversary of the end of the custody fight approached, he said he has received inquiries from national television news shows about taking Anna and Chloe to New York City to appear on air.

For now, he has declined, saying the girls' mother, who tried to keep the family from much of the media attention, would frown on such a trip.

"I'm proud to show people that we did the right thing," Schmidt said. "That it did work. That it isn't what they said it would be."

"I'm proud of that because I'd never have forgiven myself if we had left her there."

C. Preemption by the Parental Kidnapping Prevention Act (“PKPA”)

4. Emergency Jurisdiction

Additional Excerpts from Baron, “Federal Preemption in the Resolution of Child Custody Disputes,” 45 Ark. L. Rev. 885 (1993):

* * *

D. Emergency Jurisdiction

Protective orders for a child present in a state may be entered if the child has been abandoned or "in an emergency to protect the child because he has been subjected to or threatened with mistreatment or abuse."¹⁴⁶ The prospect of engaging "emergency jurisdiction" is too tempting to resist for many custody litigants, especially since the UCCJA and the PKPA severely limit the number of available forums. Attempts to create jurisdiction where it would not otherwise exist are not unique to the PKPA. They were previously dealt with and resisted by courts applying the UCCJA.¹⁴⁷

Courts applying the PKPA have similarly found that "emergency jurisdiction" is very difficult to establish¹⁴⁸ requiring an even more stringent showing than under the UCCJA.¹⁴⁷ Furthermore, there is no reference to "emergency" jurisdiction in either of the sections of the PKPA which deal with modification jurisdiction.¹⁵⁰ Therefore, "emergency" jurisdiction is wholly unavailable for the purpose of granting modification authority.¹⁵¹ In the event an emergency situation presents itself to a court in a state other than the state of the initial decree, that state may, at most, enter a temporary order and allow the court with exclusive continuing jurisdiction to determine the issues.¹⁵²

¹⁴⁶ 28 U.S.C. § 1738A(c)(2)(c)(ii).

¹⁴⁷ Bodenheimer, *supra* note 17 at 225.

¹⁴⁸ *Michael P. v. Diana G.*, 553 N.Y.S.2d 689, 693 (1990) ("in practice an emergency situation is extremely difficult to demonstrate. Thus, in order to establish an emergency, there must, in effect, be evidence of imminent and substantial danger to the child.).

¹⁴⁷ *State In Interest of D.S.K.*, 792 P.2d 118 (Utah 1990). In *D.S.K.*, the Utah Supreme Court noted that "[e]mergency jurisdiction under the PKPA requires a more stringent showing than under the UCCJA." *Id.* at 129.

¹⁵⁰ 28 U.S.C. § 1738A(d) and (f).

¹⁵¹ *Mitchell v. Mitchell*, 437 So.2d 122, 127 (Ala.Civ.App.1983) (PKPA does not recognize an emergency as granting modification authority).

¹⁵² *Stanley v. Dept. of Human Resources*, 567 So.2d 310, 312 (Ala.Civ.App.1990); *Via V. Johnston*, 521 So.2d 1324, 1326 (Ala.Civ.App.1987). Compare Bodenheimer, *supra* note 17 at 225-26.

An argument has been made that the preemptive effect of the PKPA does not apply to neglect and dependency proceedings following an initial custody decree because the PKPA does not expressly reference "neglect and dependency proceedings."¹⁵³ This argument has been rejected because the PKPA specifically applies to a modification of "any child custody determination"¹⁵⁴ regardless of what that proceeding is labeled.¹⁵⁵ If the PKPA were read otherwise, forum shopping would otherwise continue to exist through allegations of neglect.¹⁵⁶

Claims are frequently made that to return the child to the state of continuing jurisdiction would endanger the child.¹⁵⁷ The court of the state where the child is located is urged to deny full faith and credit to the decree of the court with continuing jurisdiction on the basis that the child's physical or emotional well-being would be in jeopardy. Such arguments necessarily assume that the courts of the other states are less concerned about the welfare of children or are less able to deal with the issues. This type of argument was occasionally effective under the UCCJA,¹⁵⁸ although such was not the design of the drafters of the UCCJA.¹⁵⁹

The PKPA is much more specific and firm in its notion of exclusive continuing jurisdiction than the UCCJA, and such arguments are no longer plausible. Consider, for example, the case of *Archambault v. Archambault*.¹⁶⁰ A recently-enacted state statute specifically allowed state courts in Massachusetts to deny compliance with out-of-state custody orders if the court made a "finding that there is probable cause to believe that such child may be placed in jeopardy or exposed to risk of mental or physical harm by such return to said other state."¹⁶¹ In a proceeding involving the continuing jurisdiction of New Hampshire, the mother sought to invoke this statute for the purpose of securing a Massachusetts hearing. The Supreme Judicial Court of Massachusetts held the statute was void because it was preempted by the PKPA. The Massachusetts court noted that the newly-enacted statute

¹⁵³ *State ex rel. Dept. of Human Services v. Avinger*, 720 P.2d 290 (N.M.1986) (modification rejected anyway on the basis of the UCCJA).

¹⁵⁴ "The appropriate authorities of every State ... shall not modify except as provided in subsection (f) ... any child custody determination made consistently with the provisions of this section...." 28 U.S.C. § 1738A(a) (emphasis added).

¹⁵⁵ *State in Interest of D.S.K.*, 792 P.2d 118, 129-30 (Utah App.1990).

¹⁵⁶ *Id.* at 130.

¹⁵⁷ Compare, Brigitte Bodenheimer, *Progress Under the Uniform Child Custody Jurisdiction Act and Remaining Problems: Primitive Decrees, Joint Custody, and Excessive Modifications*, 65 CAL.L.REV. 978, 993-995 (1977).

¹⁵⁸ *Id.*

¹⁵⁹ *Id.*

¹⁶⁰ 555 N.E.2d 201 (Mass.1990).

¹⁶¹ § 11(b) Mass. Child Custody Jurisdiction Act. Codified at Mass.Gen.L. ch. 209B, s 11(b) (1987) (quoted in *Archambault*, 555 N.E.2d at 204).

"would serve to frustrate the overall purpose of the PKPA to encourage comity between States."¹⁶² The assumption that courts in other states "will be unwilling or unable to protect children in custody disputes is unwarranted."¹⁶³

IV. CONCLUSION

There are those who suggest that the PKPA makes child custody litigation more complex and the judicial system less efficient.¹⁶⁴ Reform has been suggested.¹⁶⁵ In response to these criticisms, I say be patient. The simple fact of the matter is that the PKPA is working wonderfully well. Given our federal system of government and the glacial speed with which legal reform moves, the accomplishments have been tremendous. The word is getting out. The PKPA does indeed preempt state law in the resolution of jurisdictional disputes. Initial custody jurisdiction is limited to just one forum--the home state. Modification jurisdiction is exclusively reserved to the court that rendered the initial decree. Notice and opportunity to be heard must be given prior to a custody determination. Sister states are required to enforce those decrees and give them full faith and credit. Sister states are prohibited from interfering with those courts which are properly asserting jurisdiction.

The number of states that have come to recognize the preemptive nature of the PKPA has grown tremendously. The number of courts entering orders that are inconsistent with the PKPA has decreased substantially.

Custody litigation is full of injustice--let there be no doubt about that. No system of laws is perfect. Consistency in the application of the laws, however, goes a long way toward curing much of the injustice. While the laws of the fifty states may vary as to the substantive rules in custody determinations, at least there is a uniform standard imposed equally on all the states by the PKPA for determining which court¹⁶⁶ makes that determination. The PKPA and its preemptive effect can no longer be avoided. Progress has been made.

¹⁶² *Archambault*, 555 N.E.2d at 207.

¹⁶³ *Id.* at 208.

¹⁶⁴ HOMER H. CLARK, JR., *The Law of Domestic Relations in the United States*, 485 (2nd ed. student edition 1988 West Publishers).

¹⁶⁵ Goldstein, *supra* note 122, at 938-47; Andrea S. Charlow, *Jurisdictional Gerrymandering and the Parental Kidnaping Prevention Act*, 25 FAM.L.Q. 299, 313-324 (1991). See also Brett R. Turner, *Deciding Who Decides: A Critical Review of the Law of Jurisdiction in Child Custody Cases*, 4 DIVORCE LITIGATION 153 (August 1992), where the author states "[t]he federal act is one of the most poorly drafted statutes ever to get through Congress, and, even though it has been in force since 1982, an amazing number of state courts are still unaware of its presence. *Id.* at 153.

¹⁶⁶ Not which "courts."

C. Preemption by the Parental Kidnapping Prevention Act (“PKPA”)

5. Review

NOTES AND QUESTIONS

1. Recall that the PKPA also requires that reasonable notice and opportunity to be heard be afforded to all contestants prior to a custody determination. At this point, the student should review the pages of this book which deal with the notice and hearing requirements found in state law and in the PKPA.

2. Now that some familiarity has been gained with the PKPA, the student should reconsider the factual scenarios that occurred in each of the following cases that we have previously taken up for the purpose of asking whether or not the PKPA would require a different result:

A. *Harris v. Young* found in the notes following the *Defender* case, *supra*, parties were originally divorced in Wyoming by a Wyoming court and they all subsequently moved to South Dakota — The mother moved onto an Indian reservation with the three daughters and the father lived off-reservation. The South Dakota court modified the Wyoming decree so as to transfer custody of one of the daughters to the father);

B. *Perry v. Ponder, supra*;

C. *Winkleman v. Moses, supra*;

D. *Ryan v. Ryan, supra*;

E. *Blare v. Blare, supra*;

F. *Johnson v. Johnson, supra*;

G. *Matter of M.C.S., supra*;

H. *Cunningham v. Cunningham, supra*;

I. *Lustig v. Lustig, supra*;

3. In any of the South Dakota opinions that we have studied, did the South Dakota Supreme Court ever discuss or cite the PKPA?

4. Under the UCCJEA, which was adopted in South Dakota in 2005, the “significant connection/substantial evidence” basis for the assertion of jurisdiction is permitted *only* if there is no “home state” jurisdiction. I.e., the same restriction placed on this 2nd basis for the assertion of jurisdiction found in the PKPA is also found in the UCCJEA. Accordingly, in South Dakota today, it is not possible for one of our state trial courts to assert jurisdiction on the basis of the “significant connection/substantial evidence” if there is another state which qualifies for “home state” jurisdiction unless that other state has deferred to South Dakota.

D. Miscellaneous Comments

1. Statutory Cessation of Jurisdiction

Under the PKPA the court which entered the initial decree retains *continuing and exclusive* jurisdiction under the scenario where the custodial parent relocates with the child to another jurisdiction. By virtue of 28 U.S.C. § 1738A(d), this jurisdiction is maintained so long as one of the contestants or child remains as a resident of the state and so long as the requirement of (c)(1) is met — namely that the original court continues to have subject matter jurisdiction under the law of that state. In most states, subject matter jurisdiction is retained through the “significant connection” and “substantial evidence” criteria — criteria seen originally in the UCCJA and adopted into most states.

Some states, however, statutorily cede jurisdiction when the child has relocated and established a new home state. *See e.g.*, Section 11.53 (d) of the Texas Family Code which formerly provided as follows:

Except on written agreement of all the parties, a court may not exercise its continuing jurisdiction to modify custody if the child and the party with custody have established another home state unless the action to modify was filed before the new home state was acquired.

This means that if the facts of *Johnson v. Johnson*, *supra*, were to be reconsidered under a statute like the former Texas statute, then the South Dakota trial court would not have retained modification jurisdiction since the mother and children had established a new home state (Minnesota). The PKPA only protects *continuing and exclusive* jurisdiction where the law of the state grants such jurisdiction.

South Dakota retains continuing jurisdiction through SDCL 25-4-45. This statute was cited and relied upon by the South Dakota Supreme Court in *Blare v. Blare*, *supra*, and is reproduced in a note following the *Blare* opinion.

2. Relocation Laws

Each state has developed its own law on the issue of whether or not a custodial parent may relocate from the state with the child, once a divorce has been granted. Many states require the custodial parent to obtain either consent of the other parent or leave of court before relocating.

The necessary showing which would permit a relocation varies widely. In New York, for example, a custodial parent must show “exceptional circumstances” which justify a relocation. In South Dakota presently, a custodial parent may relocate so long as the relocation is consistent with the “best interests” of the child. *Fortin v. Fortin*, 500 N.W.2d 229, 233 (S.D. 1993) (applying SDCL 25-5-13).

Why not require, in the relocation laws of each state, an acknowledgment by the relocating parent that he or she will not attempt to invoke the jurisdiction of a court in another state so long as the court of the state from which the parent is relocating continues to have exclusive jurisdiction over all future custody decisions? Wouldn't this save a great deal of expense and unnecessary litigation? This idea is explored together with a review of the relocation laws of several states in Baron, *Refining Relocation Laws — The Next Step in Attacking the Problem of Parental Kidnaping*, 25 Texas Tech Law Review 119 (1993).

3. International Child Custody Disputes

In today's society, child custody disputes can easily extend across the borders of the United States. The UCCJA attempted to extend its principles into the international arena by the inclusion of a section (section 23) addressing the international problems. For some reason never discovered by this author, South Dakota chose not to enact this section. (See SDCL 26-5A-23 which is "reserved.") It may be that this section was omitted because of the unpredictable results which might be seen in conflicts with tribal courts in South Dakota.

The 2005 South Dakota Legislature repealed the Uniform Child Custody Jurisdiction Act and enacted in its place, the Uniform Child Custody Jurisdiction and Enforcement Act (UCCJEA). Under §§ 105 (a) and (b) of the UCCJEA, a foreign country is treated as state of the U.S. and custody determinations made by courts in foreign countries which are made in substantial conformity with the jurisdictional standards of the UCCJEA must be recognized and enforced.

A major step toward the solution of international child custody disputes has come about. In 1980, the Convention on the Civil Aspects of International Child Abduction was unanimously approved by the Hague Convention. The United States and well over fifty (50) other countries are now signatories to the treaty. It has worked quite well in international custody problems. A parent whose child has been abducted from the United States may seek relief through the State Department's Office of Citizen's Consular Services. For more information, see Roger M. Baron, *Child Custody Jurisdiction*, 38 South Dakota Law Review 479, 492-95 (1993). This international convention/treaty was ratified by Congress on July 1, 1988. See 42 U.S.C. §§ 11601-11610. These federal statutes also authorize federal jurisdiction for the enforcement of the terms of the international treaty.

NOTES

1. **Mother permitted to take minor children to Philippines for summer visit.** *Sullivan v. Sullivan*, 2009 SD 27, 764 N.W.2d 895, involves a dispute concerning international travel for children in a post-divorce situation. Mother (who is originally from the Philippines) was granted permission to take the parties' minor children to the Philippines to visit relatives for 3 weeks during the summer of 2008. Father resisted this effort because the Philippines is not a signatory to the Hague Convention on Child Abduction and also to due to increased risk of terrorism and "gang kidnapping for ransom" events in that region. Father appeals the trial court's adverse ruling. Father's effort to "stay" the court's order permitting international travel was rejected by both the trial court and the SD Supreme Court. Despite the fact this particular travel has already taken place, father persisted in this appeal so that the parties would have a ruling that would address this issue in the event mother's again seeks to take the children to the Philippines. The trial court indicated that travel to the Philippines was an event he would probably be considering every 2 years. Father urged a recognized exception to the "mootness" doctrine – the exception that permits determination of the issue where the situation is "capable of repetition, yet evading review." Father also appeals the trial court's refusal to modify other aspects of the visitation agreement between the parties. The SD Supreme Court ruled that the international travel issue was moot and did not address the merits of this portion of father's appeal, holding that the factual circumstances (terrorist and kidnapping threats, Philippines adopting or not the Hague Convention) were such that could easily change in 2 years' time. As to remaining issue (modification of visitation agreement), the Court affirmed the trial court. The Court's opinion is authored by Justice Sabers. As to the international travel issue, Justice Konenkamp filed a dissenting

opinion in which Justice Zinter joined. The dissent stresses the fact that this issue will be recurring and that the “best interests” of the children concerning “their safety and, indeed, their very lives” warrant “meaningful appellate review.”

2. South Dakota Supreme Court addresses many jurisdictional issues with a unanimous opinion in *Langdeau v. Langdeau*. The case of *Langdeau v. Langdeau*, 2008 SD 44, 751 N.W.2d 722 contains a hodgepodge of issues dealing with child custody jurisdiction, divorce jurisdiction, tribal jurisdiction, comity recognition and SD’s recently adopted version of the UCCJEA.

H is an enrolled member of Lower Brule Sioux Tribe. W is non-Indian. H & W were married and resided on tribal land with two children (ages 9 and 6) born of the marriage. The children were either enrolled or eligible for enrollment with the tribe. Taking the children with her, W moved away from the reservation. Five days, on February 27, 2007. W filed suit for divorce in state court. H was served with process from W’s state court action on that same day. W also filed for domestic abuse protection in state court on the next day, February 28, 2007. H filed for divorce and associated interim relief in tribal court on February 28, 2007. W was served with process from H’s tribal court action on that same day.

The state court judge subsequently dismissed the state court divorce action and W’s *ex parte* temporary protection order. The state court (trial judge) held, without rendering a memorandum opinion and without findings of fact and conclusions of law:

A) state court lacked jurisdiction over the children because the tribal forum was the “home state” for the children under the UCCJEA which was enacted into law in SD in 2005.

B) state court was an “inconvenient forum” and jurisdiction was denied on this basis, holding that the Indian reservation was the more appropriate forum for the divorce and all related matters.

A short time later the state court entered an order which recognized orders (relating to custody and visitation) entered by the tribal court. The state court’s order enforcing the tribal orders was also entered without a written memorandum opinion and without findings of fact and conclusions of law.

On appeal the South Dakota Supreme Court affirmed in part, reversed in part and reversed and remanded in part in a unanimous decision with the opinion being authored by Chief Justice Gilbertson. The SD Supreme Court held:

1) The trial court’s dismissal of the child custody proceeding was correct because the tribal forum was the home state of the children and its jurisdiction was *exclusive* under the UCCJEA. A tribe is treated as a “state of the United States” under the UCCJEA, SDCL 26-5B-104(b).

2) It was reversible error for the trial court dismiss the divorce action. Since W was a non-Indian, state court had concurrent jurisdiction over the divorce action itself. The Court stated, “[H]ere [W] was a resident of South Dakota and the State *at all times* had both subject matter and personal jurisdiction over the dissolution of her marriage to [H].” ¶ 22 (emphasis original with the Court). This is especially true since W’s divorce action was filed *first* in time. This holding is consistent with and follows this Court’s prior ruling in *Lustig v. Lustig*, 1997 SD 24, 560 N.W.2d at 245 wherein the trial court was upheld in its decision to defer the custody determination of the parties’ children to a Minnesota court, but was reversed for dismissing the underlying divorce action.

3) The trial court did not error in its decision to refrain from exercising temporary emergency jurisdiction to protect the children under SDCL 26-5B-204(a), a provision of the UCCJEA. Emergency jurisdiction may be deferred to a more convenient forum under SDCL 26-5B-207(a).

4) The trial court is required to enter findings of fact and conclusions of law in making a “more convenient forum” determination under SDCL 26-5B-207(b) which provides,

Before determining whether it is an inconvenient forum, a court of this state *shall consider* whether it is appropriate for a court of another state to exercise jurisdiction. For this purpose,

the court shall allow the parties to submit information and shall consider all relevant factors, including. (Emphasis added by Court.)

In this case W asserts domestic violence which falls under factor (1) of SDCL 26-5B-207(b) which requires the court to consider whether “domestic violence has occurred and is likely to continue in the future.” Accordingly this issue is remanded to the trial court for the necessary evidentiary proceedings and findings of fact and conclusions of law required by SDCL 26-5B-207(b).

5) Similar to the ruling just set forth, the trial court erred in recognizing the tribal court’s orders for custody and visitation without entertaining evidentiary proceedings and the entry of findings of fact and conclusions of law. South Dakota’s “comity” statute, SDCL 1-1-25 clearly sets forth several criteria which must be established by “clear and convincing” evidence prior to recognition of a tribal order. In this case W asserts that she had no opportunity to be heard, that the tribal orders were not “obtained by a process that assures the requisites of an impartial administration of justice,” that she was not accorded “due process” by the tribal court and that the tribal proceeding was contaminated by *ex parte* communication between H’s attorney and the tribal court. The SD legislature’s enactment of SDCL 1-1-25 represents that it “intended the circuit court to enter findings of fact and conclusions of law for appellate review, before granting recognition to a tribal court order under the principle of comity.” This issue, too, was remanded to the trial court for “appropriate evidentiary proceedings along with findings of fact and conclusions of law.” ¶ 41.

E. Uniform Child Abduction Prevention Act

South Dakota enacted the Uniform Child Abduction Prevention Act (UCAPA) through the passage of Senate Bill 88 in 2007. This new Act is found as subchapter SDCL 26-18, occupying the statutory provisions of SDCL 26-18-1 through 26-18-12. Supporting testimony stated that in 1999 there were 262,000 children abducted in the United States, with 78% being done by family members or close members of the family. The Uniform Law Commissioners promulgated this Act in 2006.

This Act provides a broad grant of standing for those who may bring an action seeking “abduction prevention measures.” Those granted standing include, “A party to a child-custody determination or another individual or entity having a right under the law of this state or any other state to seek a child-custody determination for the child.” This Act also specifically permits a “prosecutor or public authority designated under SDCL 26-5B-315” to “seek a warrant to take physical custody of a child” or to seek “other appropriate prevention measures.” Additionally, this Act permits a court to act on its own motion.

An “abduction prevention order” may be entered if the court finds that there is a “credible risk of abduction.” This Act sets forth an extensive list of the forms of relief that may be granted in the “abduction prevention order.” (See forms of relief set forth below.) This Act addresses the issues related to inter-state abductions as well as to international abductions.

Furthermore, in order to prevent “imminent abduction,” a court may issue a warrant for physical custody of the child. The act specifically allows the issuance of an ex parte warrant for physical custody of a child if “there is a credible risk that the child is imminently likely to be wrongfully removed.”

The following relief is authorized in Section 8 of the UCAPA [SDCL 26-18-8(c)]:

- (c) An abduction prevention order may include one or more of the following:
 - (1) An imposition of travel restrictions that require that a party traveling with the child outside a designated geographical area provide the other party with the following:
 - (A) The travel itinerary of the child;
 - (B) A list of physical addresses and telephone numbers at which the child can be reached at specified times; and
 - (C) Copies of all travel documents;
 - (2) A prohibition of the respondent directly or indirectly:
 - (A) Removing the child from this state, the United States, or another geographic area without permission of the court or the petitioner's written consent;
 - (B) Removing or retaining the child in violation of a child-custody determination;
 - (C) Removing the child from school or a child-care or similar facility; or
 - (D) Approaching the child at any location other than a site designated for supervised visitation;
 - (3) A requirement that a party to register the order in another state as a prerequisite to allowing the child to travel to that state;
 - (4) With regard to the child's passport:
 - (A) A direction that the petitioner place the child's name in the United States Department of State's Child Passport Issuance Alert Program;
 - (B) A requirement that the respondent surrender to the court or the petitioner's attorney

- any United States or foreign passport issued in the child's name, including a passport issued in the name of both the parent and the child; and
- (C) A prohibition upon the respondent from applying on behalf of the child for a new or replacement passport or visa;
- (5) As a prerequisite to exercising custody or visitation, a requirement that the respondent provide:
 - (A) To the United States Department of State Office of Children's Issues and the relevant foreign consulate or embassy, an authenticated copy of the order detailing passport and travel restrictions for the child;
 - (B) To the court:
 - (i) Proof that the respondent has provided the information in subparagraph (A); and
 - (ii) An acknowledgment in a record from the relevant foreign consulate or embassy that no passport application has been made, or passport issued, on behalf of the child;
 - (C) To the petitioner, proof of registration with the United States Embassy or other United States diplomatic presence in the destination country and with the Central Authority for the Hague Convention on the Civil Aspects of International Child Abduction, if that Convention is in effect between the United States and the destination country, unless one of the parties objects; and
 - (D) A written waiver under the Privacy Act, 5 U.S.C. Section 552a, with respect to any document, application, or other information pertaining to the child authorizing its disclosure to the court and the petitioner; and
- (6) Upon the petitioner's request, a requirement that the respondent obtain an order from the relevant foreign country containing terms identical to the child-custody determination issued in the United States.
- (d) In an abduction prevention order, the court may impose conditions on the exercise of custody or visitation that:
 - (1) Limit visitation or require that visitation with the child by the respondent be supervised until the court finds that supervision is no longer necessary and order the respondent to pay the costs of supervision;
 - (2) Require the respondent to post a bond or provide other security in an amount sufficient to serve as a financial deterrent to abduction, the proceeds of which may be used to pay for the reasonable expenses of recovery of the child, including reasonable attorneys fees and costs if there is an abduction; and
 - (3) Require the respondent to obtain education on the potentially harmful effects to the child from abduction.
- (e) To prevent imminent abduction of a child, a court may:
 - (1) Issue a warrant to take physical custody of the child under section 9 of this Act or the law of this state other than this Act;
 - (2) Direct the use of law enforcement to take any action reasonably necessary to locate the child, obtain return of the child, or enforce a custody determination under this Act or the law of this state other than this Act; or
 - (3) Grant any other relief allowed under the law of this state other than this Act.

"A man has made at least a start on discovering the meaning of human life when he plants shade trees under which he knows full well he will never sit."

D. Elton Trueblood

Chapter Six

ANNULMENTS

A. Introductory Comments

The statutory grounds for annulment in South Dakota are found in Chapter 25-3. They consist of the following:

- (1) former marriage (SDCL 25-3-1);
- (2) unsoundness of mind (SDCL 25-3-2);
- (3) underage (SDCL 25-3-4);
- (4) forced consent (SDCL 25-3-5);
- (5) fraud (SDCL 25-3-6); and
- (6) physical incapacity (SDCL 25-3-8).

In the event of an annulment, authority exists for the imposition of awards of spousal maintenance (SDCL 25-3-10), child custody and child support (SDCL 25-3-11).

There are very few reported decisions in South Dakota involving annulments. This is typical of most jurisdictions. In the study of annulments, one quickly learns that very few contested annulments succeed. (Uncontested annulments would not result in an appeal and accompanying reported opinion.) Why would a party seek an annulment in lieu of a divorce?

A common restriction among the various states in annulment proceedings is the provision that relief is only available in the event the parties did not “freely cohabit” with each other following the discovery of the grounds for an annulment. Additionally, there is usually a limitations provision accompanying most annulment statutes. Query: Is there a statute of limitations on divorce proceedings?

Two of South Dakota’s annulment statutes are reproduced below:

25-3-5. Forced consent as ground — Party bringing action — Time of action. A marriage may be annulled by an action in the circuit court to obtain a decree of nullity if, at the time of the marriage, the consent of either party was obtained by force, *unless such party afterwards freely cohabitated* with the other as husband or wife. An action to obtain a decree of nullity of marriage for causes mentioned in this section must be commenced by the injured party, *within four years after the marriage*. (emphasis added)

25-3-6. Fraud as ground -- Party bringing action -- Time of action. A marriage may be annulled by an action in the circuit court to obtain a decree of nullity if, at the time of the marriage, the consent of either party was obtained by fraud, *unless such party afterwards, with full knowledge of the facts constituting*

the fraud, freely cohabitated with the other as husband or wife. An action to obtain a decree of nullity of marriage for causes mentioned in this section must be commenced by the party injured, within four years after the discovery of the facts constituting the fraud. (emphasis added)

B. Physical Incapacity

COFER v. COFER

Court of Civil Appeals of Texas, 1956.

287 S.W.2d 212.

HUGHES, Justice.

This suit was brought January 18, 1955, by Billy M. Cofer, an army sergeant, against Helen E. Cofer for annulment of their marriage which was ceremoniously contracted August 8, 1951, upon the ground that appellee was incurably impotent at the time of marriage and if mistaken in this then that fraud was practiced upon him in that appellant entered into the marriage with the intent never to consummate it by cohabitation.

At the conclusion of appellant's evidence the court instructed the attendant jury to return a verdict for appellee. This was done and judgment was rendered denying appellant any relief.

* * *

Appellant testified that following the marriage he and appellee went on a honeymoon of a month's duration and that he lived with her until October 19, 1951, when he was sent overseas; upon his return October 21, 1954, he lived with appellee at her mother's home in South Carolina until November 18, 1954, when he was sent to Fort Hood, Texas. During the Christmas holidays appellant returned to South Carolina for appellee and they returned and lived in an apartment near Fort Hood until January 18, 1955, when appellee left and did not return.

Appellant, regarding his marital experiences, testified that although he had tried he had never succeeded in having a complete act of intercourse with appellee. He gave this testimony:

“Q. Then you did not think that she was incapable of the act, did you? A. I did not, sir.”

“Q. And you don't think so now, do you? A. I don't think so now, no, sir.”

Appellant also testified that he took appellee to a doctor in Denver, Colorado, in 1951 and that after examining her the doctor advised him that she was capable of having sexual intercourse.

While he was overseas appellant received a letter from appellee saying that she had submitted to an operation in order that they could enjoy each other when he returned.

The only other witness was Major Garrett Nalley, a chaplain, who testified to a conversation with appellee shortly before she left Fort Hood about her domestic troubles “and she stated that it was a case of

sexual incompatibility, and that she was not able to perform the acts of a wife, and that she had tried three separate times during the course of their marriage, that neither of them had been successful and that she had no intention of trying to make a further go of it.” The Major further quoted her as saying “I have no intention of making him a wife.”

In appellee's depositions, above referred to, she stated that she had had frequent sexual intercourse with her husband.

Dr. Denham, in her deposition, stated that she had examined appellee in November, 1952, and at later dates and that no physical abnormalities were demonstrated and that appellee was capable of having sexual intercourse.

It is our opinion that the judgment rendered below should be affirmed for the reason that the evidence is not full and satisfactory that grounds for annulment are shown as is required by law. *Christoph v. Sims*, Tex.Civ.App., 234 S.W.2d 901, Dallas, writ ref., N.R.E.

In reaching this conclusion we have, in addition to the above admitted evidence, considered the long delay by appellant in bringing suit, the fact that when he did sue he was not then qualified to sue for divorce in Texas and the further possibility, reflected by the evidence, that if appellee obtained a divorce in South Carolina alimony might be awarded.

Art. 4628, Vernon's Ann.Civ.St., authorizes dissolution of a marriage “where the causes alleged therefor shall be natural or incurable impotency of body” at the time of marriage. “Natural or incurable impotency” have the same meaning except perhaps as to origin because “natural impotency” denotes incurability. *Griffith v. Griffith*, 162 Ill. 368, 44 N.E. 820. To constitute impotency the incapacity must be incurable. 55 C.J.S. Marriage, s 13, pp. 826-827, 35 Am.Jur. pp. 256-258; *Viermann v. Viermann*, Mo.App., 213 S.W.2d 259.

There is no evidence in this record that appellee was impotent since there is no evidence that the impairment, if any, of her sexual capacity was permanent or incurable.

We also fail to find any evidence that appellee was guilty of fraud in marrying appellant. Her statement that “I have no intention of making him a wife” was made more than three years after the marriage and when their separation was imminent. The reference was to her present and future intention, not the past.

The evidence shows that appellee tried to be a wife and even submitted to surgery in order to be more fit. This, in our opinion, refutes the implication, if any there be in the record, that appellee did not enter the marriage in good faith.

No error appearing, the judgment of the trial court is affirmed.

C. Fraud

NOTE

SDCL 25-3-6 authorizes fraud as a ground for annulment. Apparently, the only reported South Dakota decision which considers fraud as a ground for an annulment is *Schneller v. Schneller*, 274 N.W. 586 (S.D. 1937). The trial court's judgment of annulment based on fraud was reversed. The very brief reported opinion is based entirely on insufficiency of evidence.

WOLFE v. WOLFE

Appellate Court of Illinois, 1978.
62 Ill.App.3d 498, 378 N.E.2d 1181.

LINN, Justice.

Judith Wolfe, plaintiff, sued her husband, James Wolfe, defendant, for divorce. Defendant filed a counter-complaint for annulment on the grounds that he had been induced to marry plaintiff by her fraudulent representation that her former husband was dead when, in fact, he was alive, plaintiff having been divorced from him. Defendant claims that his religious beliefs would have prevented him from marrying plaintiff, a divorced woman, while her former husband was living.

After the case was tried before an advisory jury, the court, on motion of defendant, directed a verdict for defendant and dismissed plaintiff's complaint for divorce. The jury returned a verdict in favor of defendant on his counter-complaint for annulment and the trial court entered a judgment for annulment on the verdict. Thereafter, based on plaintiff's post-trial motion, the trial court set aside the annulment judgment and dismissed defendant's counter-complaint for annulment for want of equity. Defendant appeals, contending that the plaintiff's false representation made to induce a marriage which violated defendant's religious beliefs, constitutes fraud which goes to the essence of the marriage relationship thereby providing grounds for annulment and that the judgment granting the annulment should be reinstated.

We reverse the trial court's ruling on plaintiff's post-trial motion with regard to the annulment and reinstate the judgment for annulment.

The record indicates that the parties were married in March, 1965, and separated in November, 1973. One child, John, was born to the couple. On December 14, 1973, plaintiff filed suit for divorce on grounds of extreme and repeated mental cruelty. Defendant answered the complaint. On May 10, 1974, defendant filed a counter-complaint for annulment alleging that before their marriage, plaintiff had fraudulently misrepresented her status as that of a widow when, in fact, her first husband, from whom she had been divorced, was still alive. Defendant learned that plaintiff's first husband was alive in February of 1974, after the couple had separated and plaintiff had initiated divorce proceedings. The counter-complaint alleged that defendant a practicing Roman Catholic, would not have married plaintiff if he had known that her first husband was alive and, further, that she knew of his religious convictions before their marriage. Defendant claimed that the alleged fraud vitiated his consent to the marriage. Attached to the counter-complaint were a purported death certificate issued by the State of Arizona, produced by plaintiff as proof of her former

husband's death, and an affidavit, completed by plaintiff prior to the parties' marriage and attesting to her widowhood in accordance with the requirements of defendant's church.

* * *

The following testimony was adduced at trial relevant to the complaint for annulment. Plaintiff, Judith Wolfe, called as an adverse witness under section 60 of the Illinois Civil Practice Act (Ill.Rev.Stat.1975, ch. 110, par. 60), testified that she previously had been married to and divorced from Thomas Haffner, and that defendant knew this fact. When questioned about the contents of the affidavit executed by her at the time of the parties' marriage, plaintiff admitted that her assertion that her first husband was dead was not true and known by her to be false at the time she signed the affidavit. She also admitted that her former husband had been living at the time she executed the affidavit, but later claimed that she was not sure whether her ex-husband was dead at the time she married defendant. She refused to answer questions regarding the manner in which she obtained the purported death certificate of Thomas Haffner which had been attached to the counter-complaint for annulment, claiming the fifth amendment privilege against self-incrimination. Plaintiff also denied that defendant had refused to marry her as long as her former husband was living.

Thomas Haffner, plaintiff's ex-husband, testified for the admitted purpose of proving that he was in fact alive.

Defendant, James Wolfe, testified that prior to his marriage to plaintiff he had a series of conversations with her in which he told her that as a Roman Catholic he could not marry her because she was divorced. He further testified that plaintiff thereafter informed him she had been notified by an acquaintance that her first husband had been killed in an automobile accident. With the belief that plaintiff was, in religious contemplation, a widow rather than a divorcee, defendant agreed to proceed with marriage plans. Defendant claimed that plaintiff had shown him a purported death certificate of Thomas Haffner before their marriage. He maintained that had he known the ex-husband was alive he would not have entered into the marriage.

Based on this testimony the advisory jury returned a verdict for defendant on the counter-complaint for annulment. In accordance with the jury verdict, the trial court entered an order annulling the marriage.

In response to the various post-trial motions filed by the parties the trial court subsequently entered an order providing, *Inter alia*, 1) that the judgment for annulment was vacated; 2) that the findings of the advisory jury on the issues of annulment were contrary to law and the evidence; and, 3) that the counter-complaint for annulment was dismissed. The defendant appeals from that portion of the final order denying the relief of annulment and from the denial of his post-trial motion.

To sustain a cause of action for annulment based on fraud, the law requires proof of fraud which goes to the essence of the marriage contract. (*Louis v. Louis* (1970), 124 Ill.App.2d 325, 260 N.E.2d 469; *Bielby v. Bielby* (1929), 333 Ill. 478, 165 N.E. 231.) It must be shown that the fraud was of such a nature as to vitiate the actual consent of the defrauded party.

The fraudulent representation giving rise to the action must be of an existing fact, essential to the marriage contract (*Louis v. Louis* (1970), 124 Ill.App.2d 325, 260 N.E.2d 469), which makes impossible the performance of the duties and obligations of the marriage relationship (*Helfrick v. Helfrick* (1927), 246 Ill.App. 294), or renders the continuation of the marriage dangerous to life or health (*Lyon v. Lyon* (1907),

230 Ill. 366, 82 N.E. 850).

Within the framework of these time-honored rules this court must determine whether the false representation made by the plaintiff to induce a marriage in violation of defendant's religious convictions is of such a nature as to constitute grounds for annulment in this state. We believe that it is.

Although fraud has long been recognized as a ground for the annulment of a marriage, the public policy interest in upholding the security of the marriage contract has caused the application of more rigid tests for materiality in suits for annulment than in suits for the rescission of other contracts. Thus, courts have limited the number of fact situations which will give rise to an action for annulment by determining that many types of fraud are not materially or essentially related to the performance of marital obligations, generally. The early Illinois cases, relied on by plaintiff, reflect this desire to preserve the state of marriage at all costs, even when the relationship is no longer viable.

For instance, it was held that an annulment would not be granted where a woman falsely represented that she was a good, religious woman when in fact she was a prostitute (*Beckley v. Beckley* (1904), 115 Ill.App. 27); where a woman falsely stated that she had been cured of epilepsy (*Lyon v. Lyon* (1907), 230 Ill. 366, 82 N.E. 850); and where a man misrepresented to his intended wife that he was chaste, however, another woman was pregnant with his child (*Hull v. Hull* (1915), 191 Ill.App. 307). Finding in each case that the alleged fraud did not impair the ability of the parties to live together and perform the obligations and duties of marriage, it was reasoned that the defrauded party "got possession of the same flesh and bones he bargained for; * * * '(t)he law makes no provision for the relief of a blind credulity, however it may have been produced.' Kent, Com., vol. 2, p. 78." *Beckley v. Beckley* (1904), 115 Ill.App. 27, 31.

Moreover, in *Helfrick v. Helfrick* (1927), 246 Ill.App. 294, the court affirmed the dismissal of the complaint for annulment which alleged that the wife had falsely represented to her prospective husband that she was pregnant with his child at the time of the marriage, when, in fact, she was pregnant by another man. The court held that the facts stated in the complaint did not render the performance of the marital duties impossible.

A woman's false representations that she intended to live with her prospective spouse and make a home for him were held to be an insufficient basis to sustain the award of an annulment in both *Bielby v. Bielby* (1929), 333 Ill. 478, 165 N.E. 231, and *Johnson v. Johnson* (1930), 257 Ill.App. 587. These courts recited the rule that fraud sufficient to establish grounds for annulment must be as to some existing fact, not a mere promise made with an affirmative intent not to perform at some future time.

Although recognizing the existence of these early decisions, defendant contends that the more recent Illinois decisions, as well as the decisions of other jurisdictions, indicate a trend towards a more liberal approach to annulment based on a subjective determination of the type of fraud which reaches the essence of the marriage relationship. Particularly, defendant cites *Arndt v. Arndt* (1948), 336 Ill.App. 65, 82 N.E.2d 908, in which the court held that a husband was entitled to an annulment where the wife, pregnant at the time of the marriage, untruthfully represented that he was the father of her unborn child. This decision must be compared with *Helfrick*, cited earlier. Although based on essentially identical facts, opposite decisions were reached by the court in each case. Adopting the rule "of the modern, and, in our judgment, better reasoned cases", the court in *Arndt* held that it is not a defense to an action for annulment based on fraud that the innocent party negligently failed to ascertain the truth or falsity of the representations made. The court held that the plaintiff would be entitled to an annulment on proof of the charges contained in the complaint.

The most recent Illinois case on this subject, *Louis v. Louis* (1970), 124 Ill.App.2d 325, 260 N.E.2d 469, involved a suit for annulment based upon a wife's charges that the husband fraudulently represented before their marriage that he wanted children and was willing to consummate the marriage, which he thereafter refused to do. In determining that the misrepresentations were sufficient to sustain an annulment based on fraud, the court distinguished *Bielby* and *Johnson* and held that the misrepresentation of the willingness to consummate the marriage related to present rather than future facts. The court stated:

"In determining the materiality of fraud, the above cited cases indicate the salutary policy that marriages ought to be protected and promoted. Where, as in the instant case, the fraudulent representations induce consent in form only and performance of marital obligations is rendered impossible, annulment of such a marriage is appropriate. (Citations) The policy of protecting and nurturing the institution of marriage is not fostered by declining to legally declare the non-existence of such marriages when in reality they do not and can not exist." 124 Ill.App.2d at 330, 260 N.E.2d at 472.

In yet another Illinois case, *Vachata v. Vachata* (1965), 58 Ill.App.2d 78, 207 N.E.2d 129 (unpublished abstract), it was held that an annulment would be granted where a husband concealed from his prospective wife the fact that he was guilty of a felony and under indictment at the time of the marriage.

In each of the newer cases, the court necessarily found that the fraud complained of went to the essence of the marriage and rendered its continuation impossible, or dangerous to the defrauded party's life or health, and that but for the fraudulent representations, the defrauded party would not have given his or her consent to the marriage.

* * *

We hold that fraudulent representations of religious convictions are a legally sufficient basis upon which an annulment may be predicated. To one who is deeply religious, his faith is the foundation on which he builds his life and conducts his everyday affairs. His religious commitment determines his attitudes and behavior toward his fellow men. When one partner has discovered that unwittingly he has been duped into a violation of his religious beliefs and that indeed he has been living in a state of calamitous and grievous sin, that discovery may well make continuation of the relationship impossible. In such an instance the fraud eliminates the innocent party's consent to the relationship and goes directly to the essence of the marriage relationship, for in our opinion the essence of the marriage is not merely "flesh and bones" but heart and soul and mind as well.

* * *

The facts support the granting of an annulment in this case and meet the requirements which we have set forth above. We, therefore, reverse the trial court's ruling on the plaintiff's post-trial motion and reinstate the judgment for annulment.

Reversed. Annulment granted.

ROMITI, J., concurs.

JOHNSON, Presiding Justice, dissenting:

I respectfully dissent. Fraud, in order to constitute a ground for an annulment, must go to the essence of the marriage relationship.

* * *

Although Mr. Wolfe was aware of his wife's ex-husband being alive, he took no action until after she had filed for divorce and was seeking alimony. His complaint for annulment was filed after 11 years of marriage and 10 years after the birth of their son.

For these reasons, the annulment should be denied.

NOTE

A five month marriage was ended by annulment on the ground of fraud. The effect of this short marriage (and its subsequent annulment) in regard to the wife's previous award of alimony is the subject of *Amundson v. Amundson*, 2002 SD 60, 645 N.W.2d 837. The annulment proceeding itself is not the subject of this appeal, but the fact that the annulment was granted by a South Dakota trial court is reported in this opinion.

“The craftsman does not always build toward a prior vision. Often images come in the process of working. The material, his hands -- together they beget.”

M.C. Richards

D. Underage

NOTES

In *Lessert v. Lessert*, 64 S.D. 3, 263 N.W. 559 (1935), the parties married without the consent of their parents. He was 20 and she was 17. The trial court granted an annulment in response to an action filed by the husband's mother. The Supreme Court of South Dakota reversed and set aside the annulment, holding that since the parties had reached the legal age whereby they were capable of consenting, the statutory requirements of parental consent were only directory and did not affect the validity of the marriage. *Lessert* is reviewed in Schutter, *Nonage as a Cause for Annulment of Marriage in South Dakota*, 1 S.D.L.Rev. 83 at 89-90 (1956).

What is the present "age of consent" in South Dakota?
SDCL 25-1-9

When is parental consent required?
SDCL 25-1-13

Who is a "minor"?
SDCL 26-1-1

The present statutory provision for annulment of an underage marriage is SDCL 25-3-4.

FINK v. FINK

Supreme Court of South Dakota, 1945.
70 S.D. 366, 17 N.W.2d 717.

SICKEL, Judge.

Plaintiff is the mother of William Fink, defendant, and brings this action to annul his marriage to Beulah Harbeck Fink, the other defendant.

The defendants were married in Dakota county, Nebraska, on October 2, 1942. Both defendants were at that time domiciled in Sioux City, Iowa, and both were 17 years of age. The defendant William Fink obtained the marriage license by misrepresenting his age. Immediately after the ceremony the defendants returned to Sioux City where they lived together for a period of about two weeks and separated. During this time the wife became pregnant, and gave birth to a child on July 20, 1943. Both defendants were still living in Sioux City when this action was commenced, and both of them were served with process there. The circuit court entered judgment annulling the marriage and the defendant, Beulah Harbeck Fink, has appealed.

Appellant claims that the plaintiff's complaint does not state, and that the evidence is insufficient to prove, a cause of action in favor of the plaintiff. This contention is based upon the fact that the

plaintiff has brought the action in her own right as the mother of the defendant William Fink and not on his behalf.

In the absence of statute, a parent cannot maintain an action for annulment of a marriage entered into by a minor child without the parent's consent. *In Re Hollopeter*, 52 Wash. 41, 100 P. 159, 21 L.R.A., N.S., 847, 132 Am.St.Rep. 952, 17 Ann.Cas. 91; *Niland v. Niland*, 96 N.J.Eq. 438, 126 A. 530; *Ridgely v. Ridgely*, 79 Md. 298, 29 A. 597, 25 L.R.A. 800; *Henderson v. Ressor*, 141 Mo.App. 540, 126 S.W. 203; 35 Am.Jur. 247, Marriage s 105; 38 C.J. 1353.

* * *

SDC 14.0601 provides the statutory grounds for the annulment of a marriage. The first ground stated in this section is: "(1) That the party in whose behalf it is sought to have the marriage annulled was under the age of legal consent, * * *."

This is the only statute granting a right of action for the annulment of a marriage on the ground that one of the contracting parties was under the age of legal consent at the time of the marriage. The right to sue is granted by this statute to the minor, and to no one else. If the action is brought during his minority, it must be brought in his behalf by some person legally authorized to do so.

The exclusive method of bringing an action on behalf of a minor is provided by SDC 33.0405 which states: "Whenever an infant or an incompetent is a party, he must appear either by his general guardian or by a guardian ad litem appointed by the court in which the action is prosecuted."

This statute was construed in the case of *Olsen v. Steele*, 51 S.D. 505, 215 N.W. 531. In that case the court adopted the New York interpretation of this statute saying: "An infant plaintiff must have a guardian appointed before he commences his action. If he fails to do so, the defendant may move to have the proceedings set aside for irregularity."

For the reasons stated the plaintiff had no cause of action for the annulment of the marriage entered into by defendants, and therefore the action should have been dismissed.

Judgment reversed.
All the Judges concur.

E. Effects of an Annulment

FERNANDEZ v. FERNANDEZ

Court of Appeals of Texas, 1986.
717 S.W.2d 781.

FULLER, Justice.

Appellant filed a motion for contempt and for other relief against Appellee, her former husband, for failure to pay child support as ordered for their daughter, Jo-Ann Fernandez. Appellee's sole defense as pled and argued was that the minor child had married, thereby was emancipated, and that his duty of support therefore ended. The trial court agreed, even though the child's marriage had been annulled. We affirm in part, and reverse and render in part.

The sparse amount of largely uncontested evidence showed that the minor daughter, at fourteen years of age, married under a belief that she was pregnant. Sixty days thereafter, the parties separated after discovery that she was not expecting a child. Annulment of the marriage followed some months later. The natural mother then filed the motion for contempt against the natural father for his failure to pay the court-ordered child support. The father's defense was that the minor child became emancipated when she married, and even though an annulment of that marriage took place, it in no way affected her emancipation; therefore, he owed no duty of support.

Appellant's Points of Error Nos. One and Two assert that the trial court erred in finding that the annulment of the marriage did not affect the minor daughter's emancipation, and also erred in finding no duty of support by the father after the minor daughter's marriage was annulled.

There is no question in our state that by virtue of the Tex.Fam.Code Ann. art. 4.03 (Vernon 1975), a married person becomes emancipated and has the power and capacity of an adult; otherwise, majority is not attained until age eighteen years. Tex.Civ.Prac. & Rem.Code sec. 129.001 (Vernon 1986). The duty of support terminates by marriage of the child. Tex.Fam.Code Ann. art. 14.05(d) (Vernon 1986). However, generally annulment voids ab initio the marriage. *Bruni v. State*, 669 S.W.2d 829 (Tex.App.--Austin 1984, no writ).

* * *

In the instant case, Appellee's fourteen-year-old daughter, the product of a broken home, believed she was pregnant and then married. The marriage was annulled, and the minor daughter moved back with her mother who was unemployed, and sought work at a local pizza parlor. The minor daughter had a limited education, having left school in the ninth grade. She testified that her mother "buys me ... personal things. She buys my clothes. She buys my food, my shampoo, my toothbrush, my toothpaste." The Court notes that the motion to hold the natural father in contempt was filed under pauper's oath, whereby the natural mother stated she was unemployed and too poor to pay the court costs.

Should that marriage, which consisted of living with a husband for sixty days resulting in annulment of the marriage, forever free the natural father of any support obligation? In 1900, our Supreme Court in *State v. Deaton*, 93 Tex. 243, 54 S.W. 901, at 903, so aptly said, and it is worth repeating in this day and age:

God, in his wisdom, has placed upon the father and mother the obligation to nurture, educate, protect and guide their offspring, and has qualified them to discharge those important duties by writing in their hearts sentiments of affection, and establishing between them and their children ties which cannot exist between the children and any other persons.

Apparently, Appellee feels no legal or moral obligation to further support this child of a broken marriage.

On the record before this Court, we find that the annulment of the Appellee's minor daughter reinstated her minority and, also, reinstated Appellee's duty of support as provided in the previous court orders. We sustain Points of Error Nos. One and Two.

We affirm the trial court's decision on failure to find the Appellee in contempt; but, that part of the judgment finding the minor child emancipated and terminating Appellee's duty of child support is reversed and judgment is rendered that Appellee's duty of support is hereby reinstated effective from the date of the granting of the annulment of the marriage of the minor daughter, Jo-Ann Fernandez.

NOTES

1. Would the result here have been different in the event Jo Ann had obtained a divorce instead of an annulment? *See Laird v. Swor*, 737 S.W.2d 601 (Tex. App. - Beaumont 1987).

2. In *Amundson v. Amundson*, 2002 SD 60, 645 N.W.2d 837, we learn that wife had been married for 15 years to Mr. Amundson. That marriage ended by divorce decree in 1998. Wife was awarded alimony of \$15,000 per year for 15 years. This alimony award was based primarily on the disparity of the parties' income, with the husband's annual income at \$150,000 and the wife's annual income at \$30,000. Wife married another man in the year 2000, but that marriage was subsequently annulled by a South Dakota trial court. Based upon the wife's remarriage to another man (and prior to the annulment), Mr. Amundson (husband in first marriage) sought to have the alimony award terminated. Both the trial court and a unanimous Supreme Court held that wife's right to receive alimony remained intact, even during the 5 months between her remarriage and the annulment. Upholding and applying the rule of *Marquardt*, wife had the burden of showing "extraordinary circumstances" in order to overcome the *Marquardt* principle that remarriage establishes a prima facie case for termination absent extraordinary circumstances. Wife met that burden by showing that the alimony award was still justified and that the annulment rendered her attempted second marriage *void ab initio* or "null from the beginning." The Supreme Court observed that the trial court found "that the annulment was not a subterfuge." ¶ 13 of opinion. The opinion also notes that this result is supported by SDCL 25-3-10 which specifically allows for the maintenance of a former spouse after an annulment. At first blush, this statute might appear to apply only to the imposition of an award of alimony against the other party to the annulment proceeding, but the *Amundson* opinion suggests that this statute supports the continuation of an existing alimony obligation.

Chapter Seven

DIVORCE

Some Statistics on Marriages and Divorces in South Dakota (from news article in Sioux Falls Argus Leader, February 10, 2005, page 7A)

For all of South Dakota (for 2002 and 2003):

For 2002:

Marriages in South Dakota: 6,585 Divorces in South Dakota: 2,561

For 2003:

Marriages in South Dakota: 6,427 Divorces in South Dakota: 2,502

For Lincoln County and Minnehaha County (for 1998-2004)

Lincoln County, South Dakota

Marriages for 1998-2004: 466

Divorces for 1998-2003: 454

Minnehaha County, South Dakota

Marriages for 1998-2004: 10,232

Divorces for 1998-2004: 4,404

A. Grounds

1. The Notion of “Fault”

The following passage is taken from Rory P. King, “*Marriage, Divorce and Custody Reform in South Dakota*,” 18 South Dakota Law Review at 668. King’s article was published in 1973.

* * *

Divorce statutes contain many sharp contrasts with current social custom. Whereas it is widely recognized that marital breakdown can seldom be attributed to any single act or omission, single acts or omissions remain as the primary grounds for dissolution. Whereas it is conceded that marital breakdown can seldom be blamed upon one party or the other, fault continues to be the focus of divorce law. Statutory divorce law has as a result become a dead letter. By estimate of South Dakota’s circuit judges, an estimate which is verified by Public Health Department statistics, uncontested, “sham” divorces comprise well over ninety percent of the total. The procedure involved in an uncontested divorce is well recognized by lawyers to be hypocritical, unnecessary, and a waste of time for them and for the courts. Several circuit judges indicated that the *evolved* primary purpose of the “fault” grounds is to provide attorneys with bargaining tools with which to negotiate a more favorable financial settlement for his client. When the settlement is worked out, the divorce then goes to court uncontested. To quote one of our eminent circuit judges, “[D]ivorce grounds are like icebergs with only one-tenth of the facts exposed in court.” This is a blatant example of the evasion of the judicial process spawned by our unrealistic divorce law. Again, by estimate of the circuit judges, fewer than one in two hundred divorces result in denial, eliciting the conclusion that the statutory requirements are not strictly adhered to even by the courts. South Dakota Public Health Department statistics indicate that over ninety percent of divorce actions are grounded upon “extreme cruelty.” This is the statutory ground in South Dakota which, although it retains the fault connotation, fits more closely within the no-fault “irretrievable breakdown” ground advocated by the Uniform Act. This statistic buttresses the conclusion that the “fault” divorce grounds are considered unrealistic and are avoided whenever possible.

* * *

A. Grounds

2. Adultery

South Dakota's "adultery" statute is SDCL 25-4-3. It is reproduced as follows:

25-4-3 Adultery defined. Adultery is the voluntary sexual intercourse of a married person with one of the opposite sex to whom he or she is not married.

The effective date of this section is July 1, 1984.

Amendments. The 1985 amendment added "to whom he or she is not married" at the end of the first paragraph; and added the second paragraph.

WATT V. WATT

Supreme Court of South Dakota, 1981.
312 N.W.2d 707.

WOLLMAN, Chief Justice.

* * *

The circumstances contributing to the breakdown of the marriage were compounded by the family's poor economic situation. The house on the farm was in a poor state of repair when appellant moved his family there and, for the most part, it remained that way throughout the marriage.

Appellee left home for short periods on two occasions during the marriage, and in November 1979 she left permanently, moving to North Dakota to be near her parents. Appellee gave as her reasons for leaving her dissatisfaction with the marginal economic situation the family was forced to maintain due to appellant's occupation, together with her perceived lack of hope that conditions would improve. She is currently employed on a full-time basis.

Appellant alleged in his complaint for divorce that appellee's conduct had caused him mental suffering and constituted extreme cruelty. Appellee counterclaimed and was awarded the divorce on grounds of extreme mental cruelty. Under the trial court's pretrial order, appellant retains custody of the children during the pendency of this action.

The first issue is whether the trial court erred in refusing to grant appellant a divorce on the basis of appellee's admission during trial that she had committed adultery on one occasion after she left the family home for good. Adultery constitutes a ground for divorce, SDCL 25-4-2(1), and in the light of appellee's admitted adulterous act the trial court should have made a finding of adultery and should have granted appellant a divorce on this ground. As we recently held in *Sioux Valley Hospital Ass'n v. Jones County*, 309 N.W.2d 835 (S.D.1981),

The circuit court has a duty to make findings of fact upon every issue raised by the pleadings and

its failure to do so is reversible error if a substantial right has been prejudiced. *Grady v. Commers Interiors, Inc.*, 268 N.W.2d 823 (S.D.1978); *Stugelmayer v. Ulmer*, 260 N.W.2d 236 (S.D.1977). To determine whether a substantial right has been prejudiced, this court must decide if sufficient evidence exists in the record on which a finding in favor of the party alleging reversible error can be made.

Although appellant did not allege adultery in his complaint, he did submit findings and conclusions that adequately presented the matter of his wife's adultery to the trial court. SDCL 15-6-52(a) states:

Any action or decision of the court in making or modifying findings of fact or conclusions of law shall be deemed excepted to, but the failure of the court to make a finding or conclusion on a material issue shall not be deemed excepted to unless such finding or conclusion has been proposed to or requested from the court.

Since appellant raised the issue of his wife's adultery, the court erred by not also granting appellant a divorce on this ground.

We have considered appellant's contention that the trial court erred in granting appellee a divorce on her counterclaim and conclude that the evidence was sufficient to justify the trial court's action in the light of the principles set forth in *Pochop v. Pochop*, 89 S.D. 466, 233 N.W.2d 806 (1975). *Cf. Palmer v. Palmer*, 281 N.W.2d 263 (S.D.1979). Accordingly, we hold that the evidence supports the grant of a decree of divorce to both parties and that it was error to grant the divorce to appellee alone.

* * *

We affirm the custody, property settlement, and lien provisions of the trial court's judgment. To the extent that it granted a divorce to appellee only and granted an award of prejudgment interest, the judgment is reversed and the case is remanded to the circuit court for entry of judgment consistent with the views set forth in this opinion.

MORGAN and FOSHEIM, JJ., concur.

DUNN and HENDERSON, JJ., concur in part and dissent in part.

ADAM v. ADAM

Supreme Court of South Dakota, 1988.
436 N.W.2d 266.

SABERS, Justice.

Roland Adam (Roland) obtained a divorce on the grounds of adultery and was awarded custody of the minor child, Ralandi. Lou Anne Adam (Lou Anne) appeals. We affirm.

Roland and Lou Anne were married on August 16, 1980. At the time of divorce, Roland was twenty-nine and Lou Anne was thirty-five. Both were in good health. The parties had one child during the marriage, Ralandi, who was five at the time of divorce. Lou Anne had two children from a previous

marriage.

Roland was employed with a gas company in Platte, South Dakota, earning an annual net salary of approximately \$13,000. Lou Anne was employed as a part-time cook at Platte Community Memorial Hospital earning approximately \$80 per week. She was also receiving \$200 per month child support from her previous husband. The court divided the property by awarding \$16,226 in property to Lou Anne and \$7,807.50 to Roland. Roland received custody of Ralandi. Neither party was awarded alimony or present child support.*

The court found by a preponderance of the evidence that it was in Ralandi's best interests to award custody to Roland. This finding was based upon Roland's testimony that he cared for the child's physical needs, took her to church and Sunday School, shared activities with her, and was involved in teaching her necessary school skills. Roland showed a wide knowledge of her needs and interests, and there was testimony from Roland, and others, that he provided a more stable and predictable home environment for her.

In contrast, the court found that Lou Anne did not present a good environment for the child because of her preoccupation with friends, other interests, and involvement in an adulterous relationship. There was circumstantial evidence that Lou Anne was involved in an extra-marital affair with Mervin Sterk (Sterk). This included evidence that the two often saw one another at parties, where Roland was not present. One party was an all night video party attended by Sterk, Lou Anne, Ralandi, and others. On another occasion, Sterk and Lou Anne spent the night at the residence of Sterk's friend. There was evidence that Lou Anne left Roland for three days during which she stayed at a Mitchell motel. Sterk claimed to be deer hunting during this time. The evidence showed that Sterk, who was married, traveled from Sioux Falls to Platte nearly every weekend for a period of three months. Sterk would stay with his sister, who was Lou Anne's best friend. In addition, there were numerous long distance phone calls between Lou Anne and Sterk, which Lou Anne originally attempted to hide. There was also testimony from Sterk's minor son that he saw the two kissing at a party. The court rejected Lou Anne's denial of the extra-marital affair, finding that her testimony was not credible.

The court found that the child was exposed to and affected by the relationship between Lou Anne and Sterk. This finding was based on evidence that Lou Anne often took the child to the parties where she would meet Sterk. Roland testified that the child told him that on an overnight camping trip she had slept in the car alone, while Lou Anne and Sterk slept in a tent and that this experience scared her. Roland also testified that the child had described Lou Anne's friends as "icky." There was testimony that Ralandi was exposed to obscene gestures and foul language from both Lou Anne and her friends. In addition, there was evidence that Ralandi would attempt to run away and feign sickness when the time came for Roland to return her to Lou Anne, and that the child resorted to bed wetting while in the custody of the mother, but that the problems lessened in the father's care.

1. Was finding of adultery clearly erroneous?

Findings of fact are reviewed under the clearly erroneous standard. They will not be overturned unless we are left with a definite and firm conviction that a mistake has been made. *Hilbrands v. Hilbrands*, 429 N.W.2d 750 (S.D.1988); *Cole v. Cole*, 384 N.W.2d 312 (S.D.1986); *Temple v. Temple*, 365 N.W.2d

* Child support was not awarded because Lou Anne lacked the present means to pay support. However, the court provided that Lou Anne should pay child support in accordance with SDCL 25-7-7 if her future earnings exceeded the sum of \$600 per month.

561 (S.D.1985). The findings of fact are presumptively correct and the burden is upon the challenger to show error. *Insurance Agents, Inc. v. Zimmerman*, 381 N.W.2d 218 (S.D.1986); *Temple, supra*.

It is not necessary in divorce cases to show a direct act of adultery. *Rykhus v. Rykhus*, 319 N.W.2d 167 (S.D.1982). Adultery may be inferred from the circumstances which when proven lead naturally and fairly to such a conclusion. *Rykhus, supra*. Though Lou Anne and Sterk denied such a relationship, the court found their testimony was not credible. Due regard must be given to the opportunity of the trial court to judge the credibility of the witnesses and to weigh their testimony. *Rykhus, supra*; *Watt v. Watt*, 312 N.W.2d 707 (S.D.1981). Further, we must accept the evidence most favorable to the decision, and any reasonable inferences drawn therefrom. *Isaak v. Isaak*, 278 N.W.2d 445 (S.D.1979); *Schutterle v. Schutterle*, 260 N.W.2d 341 (S.D.1977). The trial court was not clearly erroneous in granting the divorce to Roland on the grounds of adultery as there was sufficient circumstantial evidence to support the finding.

AFFIRMED.

WUEST, C.J., and MORGAN and MILLER, JJ., concur.
HENDERSON, J., concurring specially.

NOTES

1. Do sexual relations between persons of the same sex constitute adultery? In the case of *In Re Blanchflower*, 150 N.H. 226, 834 A.2d 1010 (2003), the New Hampshire Supreme Court held that the wife's lesbian relationship with another woman did not constitute "adultery" under the New Jersey state statute which specified "adultery" as a ground for divorce. The court held that a spouse can only commit adultery with someone of the opposite sex.

2. Under the South Dakota statute, SDCL 25-4-3, reproduced above, does it appear as though the ground of "adultery" would encompass homosexual relations? If not, could the conduct of a spouse who engages in a homosexual relationship constitute "extreme cruelty?" Compare *Chicoine v. Chicoine*, 479 N.W.2d 891 (S.D. 1991). (The *Chicoine* case is also included in the sub-chapter on "Visitation Rights" in the Custody Chapter of this book.)

3. Notice the footnote in the *Adam* opinion indicates that the mother was not ordered to pay child support. This result is unlikely today under South Dakota's current child support statutes.

A. Grounds

3. Extreme Cruelty

South Dakota's "extreme cruelty" statute is SDCL 25-4-4. It is reproduced as follows:

25-4-4 Extreme cruelty defined. Extreme cruelty is the infliction of grievous bodily injury or grievous mental suffering upon the other, by one party to the marriage.

PALMER V. PALMER

Supreme Court of South Dakota, 1979.
281 N.W.2d 263.

WOLLMAN, Chief Justice (on reassignment).

This is an appeal from a decree of divorce in favor of plaintiff husband that terminated a twenty-five year marriage between the parties. Defendant wife appeals, arguing that plaintiff did not establish grounds for granting the decree.¹ We reverse.

The parties were married on December 23, 1950. Three children were born to the marriage, all of whom are now adults.

In 1973, plaintiff admitted to his wife that he had been seeing his secretary but that the relationship "was all over now." Upon plaintiff's return from a trip to Reno, Nevada, in 1974, however, Mrs. Palmer discovered a receipt for a diamond ring that plaintiff had purchased for his secretary. Plaintiff moved out of the home in June of 1975, and the parties have been separated since that time. Plaintiff acknowledged at trial that he was still carrying on his relationship with the other woman.

Plaintiff alleged in his complaint that his wife had inflicted grievous mental suffering upon him. He testified that she was suspicious of his activities away from the home and that she had sought to confirm these suspicions by periodically checking on his whereabouts, by observing the mileage on his car, and by checking the contents of his pockets. Plaintiff's only evidence of the effect of his wife's behavior on him was his unsupported assertion that stresses in the marriage had caused him to suffer backaches.²

SDCL 25-4-2 includes among the grounds for divorce extreme cruelty, which is defined by SDCL 25-4-4 as "the infliction of grievous bodily injury or grievous mental suffering upon the other, by one party

¹ Defendant wife also appeals from the property settlement, support, and alimony judgment entered by the trial court. In view of our disposition of the divorce decree upon which the judgment is based, we do not discuss the merits of this contention.

² That this marriage, like so many others, was not entirely free from discord is illustrated by plaintiff's testimony that in 1972 Mrs. Palmer had suggested counseling and that they had spoken to marriage counselors on two occasions. Mrs. Palmer testified that she and plaintiff had spoken with a marriage counselor on one occasion, apparently in the summer of 1972, but that plaintiff had refused to go back for further counseling.

to the marriage."

The evidence of extreme cruelty in this case does not even approach that found in *Pochop v. Pochop*, 89 S.D. 466, 233 N.W.2d 806 (1975), a decision that may well represent the outer limits of liberality in sustaining a finding of extreme cruelty and which should not be read as abrogating the requirement that there be record evidence of the grounds for divorce. We conclude that the trial court erred in determining that Mrs. Palmer had been guilty of extreme cruelty toward plaintiff. Suspicious she may have been, but plaintiff can hardly fault her for that, given his admissions and her discoveries.³

The judgment is reversed.

DUNN and MORGAN, JJ., concur.

HENDERSON and FOSHEIM, JJ., dissent.

DISSENTING OPINION

HENDERSON, Justice (dissenting).

For purposes of clarity, plaintiff-respondent shall be referred to as "husband" and defendant-appellant shall be referred to as "wife."

SDCL 25-4-4 defines extreme cruelty as "the infliction of grievous bodily injury or grievous mental suffering upon the other, by one party to the marriage." It is one of the six grounds for divorce in the State of South Dakota. Husband sued for divorce. The wife put husband on his proof; she did not sue for divorce. Essentially, she is waging a blocking action.

In my opinion the husband proved up grounds for divorce. The parties have been separated and living apart since 1975. He established that he had endured grievous mental suffering from the actions, words, conduct, and abuse of his wife. The wife could well be characterized, in this case, as a petulant fault finder, nag, and crank. She treated her husband with disdain, scorn, and very little respect. This conduct, over a period of many years of married life, long anteceded his gift of a diamond ring to his secretary. The trial court had the right to consider the entire series of acts constituting cruel and inhuman treatment and to conclude that all, taken together, would justify granting a divorce, even though no one act alone would. See *Habeck v. Habeck*, 51 S.D. 455, 214 N.W. 846 (1927).

Some of the facts that the husband testified to are:

1. Wife criticized his manner of dress.

³The transcript in this case is rather typical of contested divorce cases. The husband's extra-curricular activities are suspect; the wife is a jealous nag and impossible to live with. The only clear, tangible, and undisputed evidence that sets this case apart from the typical case is the fact of plaintiff's purchase of a diamond ring for his girl friend. This he could not deny. When confronted with the proof of his misconduct, he responds by attempting to ascribe his actions to his wife's jealous conduct over the years. The fact remains that plaintiff did live with his wife for a quarter of a century, including a period in 1973 during which, according to plaintiff's testimony, the relationship between the parties was "very good," and now seeks a divorce based upon her jealous rages after her suspicions were confirmed by undisputed evidence. This opinion should not be read as a judicial revival of the statutorily repealed defense of recrimination. Rather, we view the evidence in the light of the full context of the relationship between the parties and not in the narrow light of isolated incidents, at least one of which dates back nearly a score of years.

2. Wife resented and vocalized discontentment of his hiring an eighteen-year- old girl to do a job his daughter had been discharging in his contracting business. His daughter had referred this young girl to him as she needed work. Wife was an insanely jealous woman who suspected that his conduct with this young girl was improper. (There was no testimony to establish that at any time he did anything improper). Husband had asked wife if she would substitute for their daughter as an office worker and she refused.

3. Wife distrusted husband and indicated that he was deceiving her.

4. Husband was in the Reserves; wife vocally resented and was highly jealous of a certain noncommissioned female officer who worked under him. Wife caustically referred to this woman as his "Wacky-Dacky." (Nothing in the testimony or the record in any way reflects that he ever did anything improper with this woman).

5. Wife was uncommunicative and unsociable. A vivid example was that she would not speak to him for two days at a time.

6. Husband was a deacon in the Baptist Church. Wife did not like his going to these meetings. There was nothing to suggest that at any time, as a deacon of the Baptist Church, that he was in any way improperly consorting with women. Wife suspected it. She did not want him to leave the house and did not want him involved in any religious extra-curricular activities.

7. Husband became a director of a girls club in Sioux Falls and had to go to meetings. Wife resented this.

8. On weekends husband would play golf. He went to the Thursday night stags in Sioux Falls. Wife would go there, check his car and lurk in the parking lot. When he returned home, she would check his clothing, his hankies, and his money.

9. The parties were married in 1950. In 1959, wife cut husband with a knife because he had said hello to a babysitter from next door that had come over to a lawn party. (This demonstrates the years of heckling, distrust, and cruelty).

10. Wife repeatedly checked on husband at the office and would later hang up the phone without identifying herself.

11. When husband would try to show wife affection by putting his arms or hands on her, she would tell him "take your hands off of me!"

12. Generally speaking, for approximately five to six years, wife was openly hostile to husband. During these years, she repeatedly told him that she would divorce him as soon as their daughter, Diane, graduated from high school.

13. Wife many times asked husband to move out of the house.

14. Wife stood in front of the shower and would not let husband get into the shower because she thought he did not need one.

15. Husband had hepatitis and could not work. The doctor gave him advice. Upon returning home, he was to generally get into work on an easy rehabilitative program, *i.e.*, so many hours per day; then, increase his daily workload as he improved. Husband tried to go to work, was tired, and came home. When wife saw him, she censured him in obscene language, belittling his early return home.

16. Husband was affected mentally and physically by wife's conduct. He testified he had a pain in his back for five or six years. When he moved from the family home he testified the pain went away; he testified he was tense and suffered mental anguish due to the discord in the marriage.

Wife testified that all the problems in the marriage started in 1973, after he hired the new girl (the secretary who received the diamond ring). Wife testified, which appears patently erroneous, that there had been no definite problems in the marriage of any sort up until the time that husband hired the new girl. However, in 1972 they had sought out marriage counseling concerning the problems in the marriage, which were obviously unrelated to the gift of the diamond ring to the secretary.

* * *

Excerpts from
**PALMER V. PALMER; ESTABLISHING EXTREME CRUELTY
IN CONTESTED SOUTH DAKOTA DIVORCE CASES**

26 South Dakota Law Review 58 (1981)

* * *

Background of Extreme Cruelty

Extreme cruelty has been the fault ground for divorce most often relied on in the United States.⁸ In South Dakota, where all divorce grounds are based on fault,⁹ nearly ninety-eight percent of all divorces are granted for extreme cruelty.¹⁰

The South Dakota statute attempts to define extreme cruelty as “the infliction of grievous bodily injury or grievous mental suffering upon the other, by one party to the marriage.”¹¹ The South Dakota Supreme Court, however, recognizes that any extreme cruelty definition differs with the sensitivity and personalities of the parties involved.¹² Family traditions, religious and ethnic backgrounds, local customs, local standards, and cultural differences also affect a determination of whether extreme cruelty has been established.¹³ Personality and background are not the only considerations which frustrate an attempt to create a reliable definition of extreme cruelty; an entire series of acts may constitute extreme cruelty although no single act alone will.¹⁴

Conduct That Evidences Extreme Cruelty in South Dakota

In previous cases where the South Dakota Supreme Court has denied a divorce for extreme cruelty, these denials were not based on the conduct of the parties. The denials were based on evidence of provocation,¹⁸ evidence of condonation,¹⁹ acceptance of the trial court’s findings of fact that the alleged cruel

⁸H. Clark, *The Law of Domestic Relations*, §12.4 at 341 (1968).

⁹S.D.C.L. § 25-4-2 (1976). The six grounds for divorce in South Dakota are adultery, extreme cruelty, willful desertion, wilful neglect, habitual intemperance, and conviction of a felony.

¹⁰Out of a total of 2,665 divorces granted in South Dakota in 1979, 2,601 were granted on extreme cruelty grounds. Interview with Bill Johnson, Director of Public Health Statistics, South Dakota Department of Health, by telephone (September 22, 1980).

¹¹S.D.C.L. §25-4-4 (1976).

¹²*Pochop v. Pochop*, 89 S.D. 466, 467, 233 N.W.2d 806, 807 (1975).

¹³*Id.*

¹⁴*Habeck v. Habeck*, 51 S.D. 455, 458, 214 N.W. 846, 847 (1927).

¹⁸*Hopkins v. Hopkins*, 34 S.D. 637, 638, 150 N.W. 293, 293 (1914).

¹⁹*Brown v. Brown*, 47 S.D. 168, 173, 197 N.W.153, 154 (1924).

conduct did not occur,²⁰ or on evidence that misconduct occurred before, not after, the marriage.²¹

The range of conduct different jurisdictions have held to constitute cruelty is extremely broad²² and it is likely that the unreported South Dakota Circuit Court extreme cruelty cases also cover a broad range of conduct. Although the South Dakota Supreme Court often deems it unnecessary to recite the evidence when the record indicates the trial court's findings are not outweighed by a clear preponderance of the evidence,²³ in the following South Dakota cases the court described the conduct that established the existence of extreme cruelty.

In *Brown v. Brown*,²⁴ the court held the husband's habit of calling the wife vile names warranted granting a divorce for extreme cruelty. In *Gassman v. Gassman*,²⁵ the husband's conduct of name-calling as well as the continual beratement of the wife for undergoing an abortion before the marriage prompted the court to reverse the trial court's decree and grant the wife a divorce for extreme cruelty.

In *Habeck v. Habeck*²⁶ the court upheld a finding of extreme cruelty when the husband had called the wife vile names, struck her, permitted his mother to live in the home and interfere with the wife's household duties, refused to provide the wife necessary medical assistance, and compelled the wife to perform hard farm labor in spite of her illness and his financial ability to hire farm labor. In *Peterson v. Peterson*²⁷ the court upheld a finding of extreme cruelty when the husband slapped the wife, twisted her wrist, objected to her mother's presence in the home, accused the wife of looking like a Chester White hog, and was otherwise disagreeable in the home.

In *Pfutzenreuter v. Pfutzenreuter*²⁸ the court held that intemperance of a degree that would reasonably inflict grievous mental anguish upon the innocent spouse constitutes extreme cruelty. And in *Pochop v. Pochop*,²⁹ a case the *Palmer* majority describes as "a decision that may well represent the outer limits of liberality in sustaining a finding of extreme cruelty,"³⁰ the court held that extreme cruelty was established when the husband had experienced frequent and heated outbursts of temper, suggested placing the couple's child up for adoption, made excessive sexual demands, and held religious philosophies conflicting with those

²⁰*Fink v. Fink*, 87 S.D. 639, 213 N.W.2d 458 (1973); *Jewett v. Jewett*, 74 S.D. 227, 50 N.W. 2d 793 (1951).

²¹*Gassman v. Gassman*, — S.D. —, 296 N.W.2d 518 (1980).

²²24 Am.Jur.2d *Divorce & Separation* §§42-66 (1966).

²³*Masek v. Masek*, 89 S.D. 62, 228 N.W.2d 334 (1975); *Kressly v. Kressly*, 77 S.D. 143, 87 N.W.2d 601 (1958); *Alwin v. Alwin*, 74 S.D. 111, 49 N.W.2d 296 (1951).

²⁴47 S.D. 168, 174-76, 197 N.W. 153, 155 (1924).

²⁵*Gassman v. Gassman*, — S.D. —, 296 N.W.2d 518 (1980).

²⁶51 S.D. 455, 214 N.W. 846 (1927).

²⁷71 S.D. 314, 24 N.W.2d 35 (1946).

²⁸76 S.D. 276, 77 N.W.2d 563 (1956).

²⁹89 S.D. 466, 233 N.W.2d 806, 807-08 (1975).

³⁰*Palmer v. Palmer*, — S.D. —, —, 281 N.W.2d 263, 264 (1979).

of the wife.

Although the courts must determine extreme cruelty on a case-by-case basis to enable consideration of the parties' personalities and backgrounds,³¹ the above cases represent conduct the South Dakota Supreme Court recognizes as capable of manifesting extreme cruelty. In these cases the court has indicated that it will consider abusive language, habitual intemperance, and a combination of conduct displaying disregard of the other spouse's feelings as evidence of extreme cruelty.

* * *

It may be inappropriate for the South Dakota legal profession to devote so much time and effort to determining fault in a divorce when society is recognizing that marriage can break down through neither spouse's fault.⁵⁹ The only relevant consideration may be that two people can no longer make a marriage work. While different individual perceptions of extreme cruelty may produce different conclusions as to whether *Palmer* met the statutory requirements for extreme cruelty, few would dispute that the facts depict incompatibility, irreconcilable differences, or irretrievable breakdown.⁶⁰ Unfortunately, South Dakota is one of the three states that has not adopted one of these forms of no fault divorce.⁶¹

Either because it is politically advantageous to oppose no fault legislation⁶² or because of fear that no fault divorce will cause family breakdown, the South Dakota Legislature has failed to pass legislation to add a no fault ground for divorce six times in the last ten years.⁶³ In 1980, following the controversial *Palmer* decision, no such legislation was even introduced. In light of the *Palmer* decision, however, the Domestic Relations Committee of the South Dakota Bar supports adding "irretrievable breakdown" as an additional ground for divorce.⁶⁴

Past South Dakota reforms indicate a departure from fault concepts. The recrimination statute was repealed in 1973.⁶⁵ Fault is no longer controlling in either property settlement⁶⁶ or custody cases.⁶⁷ And at least some members of the South Dakota Supreme Court appear to recognize such no fault considerations

³¹ *Pochop v. Pochop*, 89 S.D. 466, 467, 233 N.W.2d 806, 807 (1975).

⁵⁹ Clark, *Divorce Policy and Divorce Reform*, 42 U. of Colo. L. Rev. 403, 405 (1971).

⁶⁰ UNIFORM MARRIAGE AND DIVORCE ACT §305.

⁶¹ Freed & Foster, *Divorce in the Fifty States — An Overview*, 13 Fam. L.Q. 105, 109 (1979). Illinois and Pennsylvania are the other two states not to adopt no fault divorce.

⁶² *Id.* at 107.

⁶³ S. 148 1977 South Dakota Legislature; H.R. 612, 1976 South Dakota Legislature; H.R. 869, 1974 South Dakota Legislature; S. 14, 1973 South Dakota Legislature; S. 94, 1972 South Dakota Legislature; S. 166, 1971 South Dakota Legislature.

⁶⁴ The State Bar of South Dakota 48th Annual Meeting Program 29 (1980).

⁶⁵ S.D.C.L. §25-4-27 (1967) (repealed 1973).

⁶⁶ S.D.C.L. § 25-4-45.1 (1976), construed in *Price v. Price*, — S.D. —, 278 N.W.2d 455 (1979).

⁶⁷ S.D.C.L. § 25-4-45.1 (1976), construed in *Holforthy v. Holforthy*, — S.D. —, 272 N.W.2d 810 (1978).

as the marriage being beyond salvage⁶⁸ and the right to domestic tranquility.⁶⁹ The time may have come when the South Dakota Legislature will acknowledge considerations other than fault of one or both of the parties as legitimate reasons for divorce.

CONCLUSION

By denying a divorce in a case that revealed evidence at least comparable to evidence that in prior cases established extreme cruelty, the *Palmer* court exposed the subjectivity and unreliability of determining extreme cruelty on a case-by-case basis. *Palmer*, in conjunction with other recent divorce cases, indicates that the South Dakota Supreme Court will impose stricter evidence requirements and apply a stricter standard of review than it has in prior contested cases.

Palmer also raises the fundamental question of whether South Dakota law, which provides only fault grounds for divorce, is adequate in light of modern views on divorce. The need for the addition of a no fault ground for divorce is indicated by the existence of no fault divorce grounds in forty-seven states as well as by recent reforms in other areas of South Dakota divorce law. If *Palmer* does not warrant passage of no fault divorce legislation, it should at least warrant skepticism of the statement that “South Dakota never has been a particular[ly] difficult state to get a divorce in.”

RITA DUENWALD HAVERLY

⁶⁸*Gassman v. Gassman*, — S.D. —, 296 N.W.2d 518 (1980). (Morgan, J.).

⁶⁹*Currier v. Currier*, — S.D. —, 196 N.W.2d 713 (1980). (Henderson, J., dissenting).

BRANDSMA v. BRANDSMA

Supreme Court of South Dakota, 1981.
318 N.W.2d 318.

PER CURIAM.

This is an appeal from a judgment dismissing, with prejudice, appellant Marjorie A. Brandsma's complaint for a divorce. We reverse and remand.

Appellant sought a divorce from appellee, Robert L. Brandsma. Her cause of action was based upon extreme cruelty. The trial court found that appellee had struck and was verbally abusive to appellant on several occasions without just cause. The court concluded, however, that these acts did not constitute extreme cruelty and that there were no grounds upon which a divorce could be granted.

The record is replete with instances of appellee's outbursts of temper directed at appellant throughout the years of this marriage. Appellant withstood the physical abuse and, as the trial court characterized them, "verbal beatings," in an attempt to keep the family together for the benefit of their children. She broke the pattern after appellee struck her in the head so hard that she had a severe headache and dizziness. She continued to live with appellee only until the wedding of their youngest daughter was over. This action followed.

We are convinced that the showing of verbal and physical abuse in this case was sufficient to constitute extreme cruelty within the meaning of SDCL 25-4-4, which provides.: "Extreme cruelty is the infliction of grievous bodily injury or grievous mental suffering upon the other, by one party to the marriage." SDCL 25-4-4. In a marital setting, the definition differs according to the personalities of the parties involved. *Pochop v. Pochop*, 89 S.D. 466, 233 N.W.2d 806 (1975). The evidence must be viewed "in the light of the full context of the relationship between the parties and not in the narrow light of isolated incidents..." *Palmer v. Palmer*, 281 N.W.2d 263, 264 n.3 (S.D.1979). *See also Watt v. Watt*, 312 N.W.2d 707 (S.D.1981).

The judgment is reversed, and the case is remanded for further proceedings consistent with this opinion.

MORGAN, J., did not participate.

SCHAACK v. SCHAACK

Supreme Court of South Dakota, 1987.
414 N.W.2d 818.

WUEST, Chief Justice.

Paul M. Schaak (husband) appeals from a judgment and decree of separate maintenance dismissing with prejudice his counterclaim for divorce. We affirm.

Husband is 73 years old. He is hard of hearing and has a severe case of epilepsy which causes seizures and blackouts. He is described as a slow thinker and communicator, but a man who knows what he is talking about. Through pension and retirement programs his income is approximately \$1,091 per month.

Marlys Schaak (wife) is 48 years old. In twelve years at the Redfield State Hospital she completed the fifth grade. She earns approximately \$31 per week babysitting.

The parties were married in 1971. They lived in a home husband completed building after the marriage. Throughout the marriage the couple borrowed money to pay such expenses as taxes, expenses from automobile accidents, and doctor bills.

In January 1981, on the advice of doctors, husband began living in a nursing home where his medication for epilepsy could be carefully monitored and controlled. Wife visited him in the nursing home every other Sunday until he told her not to return. She does not drive so her ex-husband drove her to the nursing home twice. She testified that husband always visited with her and was not upset during the visits. She did swear at him, though, when he called her at midnight to have her come and release him from the nursing home. She denied that her visits were motivated by a need for money. She did obtain a court order, however, that enabled her to receive \$214 per month of his funds.

The nursing home administrator handled husband's finances during the four years that he lived in the home. He testified that wife infrequently visited husband during the week. He knew that some of the visits were for money since he wrote the checks. Although he did not see what upset husband, the administrator did see husband leave the home upset "a couple of times" while wife was still visiting. He was also aware that husband's seizure activity increased when he was upset after visits, but he could not remember whether the visits were from wife.

In December 1984, husband returned home for an overnight visit. When he left the house in the evening husband told wife that he would be back, but he did not return. Instead he began living with an elderly woman. Both he and this woman had a paid caretaker who testified that she once overheard a telephone conversation where wife swore at husband, threatened to rip up two of his checks and sell his house. Wife denied such a conversation, but admitted swearing at him when he refused to come back to live with her or to give her some money.

Wife sold the home in April 1985. She testified that she told husband that she would not sell it if he would come back and live with her. When she sold the home wife testified that on the advice of her attorney she signed the deed as a single person. She used all but \$13 of the \$11,900 proceeds from the sale to pay the parties' outstanding debts.

After wife sold the house she lived with her ex-husband for fifteen months. She testified that she

did so because she had no other place to go. They did not have a sexual relationship and she worked to pay for her food. By the time of the court trial, though, she was living with a daughter.

Wife brought suit seeking a decree of separate maintenance and a reasonable amount of money for support. Husband counterclaimed for a divorce on the grounds of extreme mental cruelty and irreconcilable differences. The trial court concluded that wife was entitled to a decree of separate maintenance on the grounds of extreme cruelty and willful desertion. The court found that wife's actions toward husband did not constitute extreme cruelty and dismissed his counterclaim. Husband contends that the trial court erred in not granting him an absolute divorce on the grounds of extreme cruelty.

Extreme cruelty is defined as "the infliction of grievous bodily injury or grievous mental suffering upon the other, by one party to the marriage." SDCL 25-4-4, 25-4-2. In a marital setting, the definition of extreme cruelty differs according to the personalities of the parties involved. *Brandsma v. Brandsma*, 318 N.W.2d 318 (S.D.1982).

What might be acceptable and even commonplace in the relationship between rather stolid individuals could well be extraordinary and highly unacceptable in the lives of more sensitive or high-strung husbands and wives. Family traditions, ethnic and religious backgrounds, local customs and standards and other cultural differences all come into play when trying to determine what should fall within the parameters of a workable marital relationship and what will not. *Pochop v. Pochop*, 89 S.D. 466, 467-68, 233 N.W.2d 806, 807 (1975). "We must view the evidence in light of the full context of the marriage and not in light of isolated incidents." *Rykhus v. Rykhus*, 319 N.W.2d 167 (S.D.1982). Consequently, the factual conditions that this court has reviewed to determine whether extreme cruelty existed in a marital setting have been widely varied. Compare *Pochop*, *supra*; *Palmer v. Palmer*, 281 N.W.2d 263 (S.D.1979); *Rhykus*, *supra*; *Gassman v. Gassman*, 296 N.W.2d 518 (S.D.1980).

* * *

In this case we defer to the judgment of the trial court for two reasons. First, husband had great difficulty in testifying and, from our review of the cold record, limited ability to answer the questions asked. Therefore, the trial court allowed wide latitude in questioning husband and the trial court's assessment of credibility and demeanor takes on greater importance. See *Pochop*, *supra*.

The second reason why we defer to the trial court in this case is that virtually all of the trial testimony was controverted. Husband testified below and now argues that four basic facts support a finding of extreme cruelty: Wife lived with another man while being married to husband; wife sold all of his property without his knowledge or consent; all contacts with wife in the past five years resulted in arguments which increased his seizure activity; and, wife's only interest in husband is for his money.

Wife, however, disputed these claims or the circumstances surrounding them. Husband, she claimed, gave away part of his property prior to entering the nursing home. She was forced to sell their home after husband began living with the other woman, refused to live with wife, and their joint debts needed payment. Husband's refusal to return to her coupled with her limited earning capacity forced the living arrangements with her ex-husband. She disputed husband's claim that all their contact resulted in arguments and testified that she would willingly live with husband if he would return.

Where findings of the trial court are based on conflicting testimony, as they are in this case, we will not disturb them on appeal. *Matter of Estate of Joseph*, 304 N.W.2d 419 (S.D.1981). Therefore, having thoroughly reviewed the record in light of our prior holdings on the topic, we cannot say that the trial court was clearly erroneous in finding that wife's actions did not constitute extreme cruelty. *Pochop, supra*.

The judgment is affirmed.

MORGAN, SABERS and MILLER, JJ., concur.

HENDERSON, J., dissents.

NOTE

What was Mrs. Schaack's claim? In particular review SDCL 25-4-40 which is reproduced below. Under the facts in this case, she was able to prove "grounds" for a divorce against Mr. Schaack, yet she did not want a divorce. With those grounds for divorce, she was able to secure a decree of separate maintenance. On the other side, even though there were grounds for a divorce, Mr. Schaack could not secure a divorce since the grounds were founded in his "fault." He was unable to establish that Mrs. Schaack's conduct constituted grounds for divorce. Is there any likelihood after the decision denying the divorce in this case, that the parties will happily cohabit as husband and wife? [Backing up to the *Palmer* case, is there any likelihood after the decision in *Palmer v. Palmer* that the parties will happily cohabit as husband and wife?] Can a court order a reconciliation of the parties? Can a court actually order parties to live together happily? to live together at all?

25-4-40 Action for separate maintenance without divorce -- Alimony and support. An action for separate maintenance may be maintained without request for divorce, upon any grounds which would be grounds for divorce, and in such cases the court shall have power to award temporary alimony, suit money, and permanent support for a spouse and the children of the parties, or any of them by the other spouse.

NOTES

1. A more recent look at "extreme cruelty" can be found in the South Dakota Supreme Court's opinion in *Osman v. Keating-Osman*, 521 N.W.2d 655 (S.D. 1994) where the trial court was affirmed in its grant of a divorce to the wife on the ground of husband's "extreme cruelty." The evidence showed that the parties never had "satisfactory sexual relations" after their honeymoon. Evidence of the husband's (seemingly inconsistent) problems with impotency and premature ejaculation, as well as his flatulent behavior supported the finding of "extreme cruelty." (According to the dissent, "It appears the price of gas is going up. . .")

2. By the way, note the language found in the *Schaack* opinion which states "In a marital setting, the definition of extreme cruelty differs according to the personalities of the parties involved." This language

has been repeated over and over again by the South Dakota Supreme Court. It was more recently repeated in *Pellegrin v. Pellegrin*, 1998 SD 19, 574 N.W.2d 644, 647 (S.D. 1998), which affirmed the wife's denial for a divorce on the ground of husband's alleged extreme cruelty. (The trial court had granted husband a divorce on the ground of wife's extreme cruelty, but denied the wife's request for a divorce.)

HYBERTSON v. HYBERTSON

Supreme Court of South Dakota, 1998.
582 N.W.2d 402.

MILLER, Chief Justice.

Robert and Theresa Hybertson both appeal from the judgment in their divorce action. Robert claims the trial court erred in granting the divorce on the grounds of extreme cruelty.

* * *

Theresa and Robert were married on September 1, 1979, and have two children. Their marriage began to deteriorate after Robert joined the Jehovah's Witnesses religion. Theresa claimed Robert tried to continually impose his newfound religious practices on her and the children. This, she alleged, caused her significant mental suffering.

In June 1995, Theresa initiated divorce proceedings. Because divorce other than for adultery goes against his religion's teachings, Robert would not agree to a divorce grounded on irreconcilable differences. The divorce trial was bifurcated. After hearing the evidence in the first stage, the trial court found that, as a result of Robert's actions concerning his religion, Theresa experienced depression, frustration, abandonment, and felt hurt and lost. It therefore granted a divorce on the grounds of extreme mental cruelty.

* * *

SDCL 25-4-4 defines extreme cruelty as "the infliction of grievous bodily injury or grievous mental suffering upon the other, by one party to the marriage." We have held that:

Any definition of extreme cruelty in a marital setting must necessarily differ according to the personalities of the parties involved. What might be acceptable and even commonplace in the relationship between rather stolid individuals could well be extraordinary and highly unacceptable in the lives of more sensitive or high-strung husbands and wives. Family traditions, ethnic and religious backgrounds, local customs and standards and other cultural differences all come into play when trying to determine what should fall within the parameters of a workable marital relationship and what will not.

Pochop v. Pochop, 89 S.D. 466, 467-68, 233 N.W.2d 806, 807 (1975). We must not focus on isolated incidents, but look at the evidence " 'in light of the full context of the marriage[.]' " *Schaack v. Schaack*, 414 N.W.2d 818, 820 (S.D.1987) (quoting *Rykhus v. Rykhus*, 319 N.W.2d 167 (S.D.1982)).

The trial court's findings that Robert's actions caused Theresa to feel depressed, frustrated, lost, abandoned, and hurt are supported by the evidence. Theresa testified that she felt abandoned by Robert and that his religion was like a "mistress." She felt like she and the children were living in a "Gestapo" environment. Robert would tell Theresa that she would not live in paradise on earth if she was a nonbeliever

and that she would "just lay in the dirt." Theresa claims she is no longer able to have a normal conversation with Robert, as he continually states he is there to teach her and the children. He is always quoting Bible verses to her. Theresa also became depressed and felt abandoned because Robert is no longer involved in their former family practices. His religion does not allow him to celebrate holidays and birthdays, or be concerned with other worldly things. This, she claims, has caused a severe rift in the family. She also is concerned over the effect this has had on their children. She specifically worries about some of his beliefs, i.e., he would never permit them to have a blood transfusion should it be necessary.

Robert claims the United States Constitution and the South Dakota Constitution prevent his religious beliefs from being the basis of grounds for divorce. However, he mischaracterizes the trial court's decision. Robert's beliefs are not the basis of the extreme cruelty, his own actions are. As recognized in *Pochop*, religious backgrounds may be considered in looking at the marital relationship and whether extreme cruelty exists. 89 S.D. at 467-68, 233 N.W.2d at 807. As the trial court found, Robert has a right to his own beliefs, but he does not have the right to force those beliefs on Theresa. See *Smith v. Smith*, 61 Ariz. 373, 149 P.2d 683, 684 (1944) (stating that "[i]t is all right for each [spouse] to have his or her own [n]otions and religious beliefs ..., but if one carries such beliefs to the extent of disrupting and destroying the family life, it seems his conduct becomes cruel treatment and outrage[ous] towards his or her mate."); *Sinclair v. Sinclair*, 204 Kan. 240, 461 P.2d 750, 752 (1969) (holding that "[t]he religious zeal of a spouse may be carried to such lengths that domestic harmony is completely disrupted and the legitimate ends of the matrimony destroyed, with the result that the life of the complaining spouse is rendered intolerable."); *Golden v. Arons*, 36 N.J.Super. 371, 115 A.2d 639, 640 (1955) (holding that "[t]he nub of this case is not that defendant changed his religion--that he had a perfect right to do--but he tried to force his religion upon his wife to the point where her life was wretched and miserable, that he cannot do[.]").

It must also be stressed that this is not a situation where Robert was a Jehovah's Witness at the time of the marriage. It was the drastic change through Robert's conversion, coupled with his personal actions towards Theresa, that caused the extreme cruelty, not his religion itself.

* * *

Affirmed in part, reversed and remanded in part.

SABERS, AMUNDSON, KONENKAMP, and GILBERTSON, JJ., concur.

Evidence Which Falls Short of Establishing Adultery

In *Dooley v. Dooley*, 1999 SD 136, 601 N.W.2d 277 (S.D. 1999), the warden of the state prison facility in Springfield, SD, was sued for divorce by his wife of 24 years. Wife had been a Mexican citizen whom he married in Tijuana in 1973 and then remarried for U.S. citizenship purposes in California in 1976. The trial court granted wife a divorce on the grounds of "extreme cruelty" based on evidence which fell short of actually proving an adulterous relationship between husband and his female friend. The evidence showed husband had been spending extensive periods of time with his female friend during morning and evening hours. Husband also spent three weekends away from home without giving an explanation to wife. The matter of "extreme cruelty" was once again recognized by the SD Supreme Court as something which "differs according to the personalities of the parties involved." As to the husband's denials of wrongdoing, the court stated, "When the findings of the trial court of extreme cruelty are based on conflicting testimony, this Court will not disturb them." (Paragraphs no. 10 and 13, 601 N.W.2d at 279.)

A. Grounds

4. Other Fault Grounds

Other fault grounds are set forth in SDCL 25-4-2 which is reproduced below. Each of these grounds is further defined by statute. See generally SDCL 25-4-4 through 25-4-17. Section (7) of SDCL 25-4-2, “Irreconcilable differences,” was added by the south Dakota legislature in 1985 and will be discussed on the following pages.

25-4-2 Grounds for divorce. Divorces may be granted for any of the following causes:

- (1) Adultery;
 - (2) Extreme cruelty;
 - (3) Willful desertion;
 - (4) Willful neglect;
 - (5) Habitual intemperance;
 - (6) Conviction of felony;
 - (7) Irreconcilable differences.
-

A. Grounds

5. An Additional Ground (Fault or Non-Fault?)

25-4-18 Chronic mental illness as discretionary ground. In case of incurable, chronic mania or dementia of either spouse having existed for five years or more, while under confinement by order of a court of record or of the board of mental illness as provided by law, the court may in its discretion grant a divorce.

Source: SL 1925, ch 219; SDC 1939, § 14.0703 (7).

A. Grounds

6. Irreconcilable Differences

Consider the following statutes which the South Dakota legislature enacted in 1985. In particular, take a good look at the last sentence of SDCL 25-4-17.2. How does this affect the availability of this ground?

25-4-17.1 Irreconcilable differences defined. Irreconcilable differences are those grounds which are determined by the court to be substantial reasons for not continuing the marriage and which make it appear that the marriage should be dissolved.

Source: SL 1985, ch 207, § 1.

25-4-17.2 Dissolution of marriage -- Legal separation -- Continuance -- Orders during continuance -- Consent of parties. If from the evidence at the hearing, the court finds that there are irreconcilable differences, which have caused the irremediable breakdown of the marriage, it shall order the dissolution of the marriage or a legal separation. If it appears that there is a reasonable possibility of reconciliation, the court shall continue the proceeding for a period not to exceed thirty days. During the period of the continuance, the court may enter any order for the support and maintenance of the parties, the custody, support, maintenance and education of the minor children of the marriage, attorney fees and for the preservation of the property of the parties. At any time after the termination of the thirty-day period, either party may move for the dissolution of the marriage or a legal separation, and the court may enter its judgment decreeing the dissolution or separation.

The court may not render a judgment decreeing the legal separation or divorce of the parties on the grounds of irreconcilable differences without the consent of both parties unless one party has not made a general appearance.

Source: SL 1985, ch 207, § 2; 1986, ch 213. Amendments. The 1986 amendment, in the second paragraph, inserted “on the grounds of irreconcilable differences” after “divorce of the parties.”

NOTE: Wife bound by written pleading (requesting divorce on basis of irreconcilable differences) despite wife’s attorney’s oral pronouncement otherwise. In *Walker v. Walker*, 2006 SD 68, 720 N.W.2d 67, wife appealed the result in a divorce case. Wife, as plaintiff, sued for divorce on the grounds of extreme cruelty and, alternatively pleaded irreconcilable differences. The trial court found that wife failed to prove extreme cruelty but granted the divorce on the basis of irreconcilable differences upon husband’s indication that he would agree to a decree on that basis. Notably, when the trial court announced that wife had failed to prove extreme cruelty, it asked the wife if she would like to have a divorce granted on the ground of irreconcilable differences and the wife’s attorney said “no.” At no time did wife seek to amend her pleadings. The SD Supreme Court upheld the granting of the divorce on the basis of irreconcilable differences, holding that wife “did not ‘legally discard’ irreconcilable differences as an alternative ground” and that husband was entitled to rely upon wife’s pleading thereof as an alternative ground.

a. Point

From the *Sioux Falls Argus Leader* November 25, 1992

State's divorce law faulted

PIERRE (AP)—South Dakota is one of the last holdouts without a true no-fault divorce law, an associate law professor at the University of South Dakota said Tuesday.

"We don't have a true no-fault divorce situation," said Roger Baron, who teaches family law at the USD Law School. "The problem is, if one side, allegedly the innocent side, wants to stop the other side from getting a divorce, he or she can do it."

The state Legislature passed the framework of a no-fault divorce law in 1985 but made it nearly meaningless by adding that a divorce for irreconcilable differences may be granted only if a husband and wife don't disagree, Baron said.

"Irreconcilable differences only works if both sides agree," he said.

Because that often does not happen, many people are forced to claim extreme cruelty or adultery as the basis for a divorce, he said.

"What happens is a substantial number of people basically almost commit perjury to try to fabricate grounds for divorce," Baron said. "If one side doesn't appear in court, it's a default divorce. But if one side wants to contest it, then it becomes difficult."

Some South Dakotans go to states where no-fault divorces may be obtained, he said.

b. Counterpoint

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April 26, 1993

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Professor Roger Baron
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Re: Irreconcilable differences

Dear Professor Baron:

At the end of last year I read an article and your quotes regarding the state's divorce laws, particularly the issue of irreconcilable differences. I recently was reviewing the Family Law Quarterly and saw your name mentioned there as contributing to the publication. At the time that I read your article I had written a letter to you, but never got around to revising and sending it. In light of your involvement in the area of family law, I thought perhaps I should go ahead and send my thoughts to you.

As a Fellow of the American Academy of Matrimonial Lawyers, (there are three of us in this state), and a lawyer who has worked in the family law area for over 15 years, I handle hundreds of divorces each year. I can assure you that it is not terribly difficult to get a divorce on the grounds of "extreme cruelty."

I was also involved in drafting the law in its current state and must say I have "irreconcilable differences" with your views on the law.

I think the law works well and in fact have had many other state's practitioners indicate they wish their law was drafted like ours. Those divorcing couples who want to use irreconcilable differences can do so. The argument that was made to the legislature was "why should we have to make something up if we have agreed the marriage is over and don't want to stay together?" I do not agree that our law is "nearly meaningless." However, it does protect the rights of the party who is not at fault for the break-up of the marriage.

As long as our Supreme Court holds that fault is a criteria for alimony, it would be inappropriate to allow one party to remove those grounds by merely filing for a "no-fault" divorce. Studies have shown that as soon as states went to no-fault divorce, the alimony awards were greatly reduced or eliminated. The effect was that the judges would not allow the aggrieved party to bring in fault since it was a "no-

fault" divorce. I don't believe that is appropriate. All facts and issues should be before the court in making its decision.

I think our judges have done an excellent job of applying our law and I use the irreconcilable differences quite often. In fact probably more than I do any other grounds.

Sincerely yours,

VIKEN, VIKEN, PECHOTA, LEACH & DEWELL

Linda Lea M. Viken

LLV/sh

NOTES

1. Retreating from No Fault.

Media reports in 1996 indicated that there was a growing "pro-family" movement in the United States. Among other items on the agenda was the repeal of no-fault divorce laws. Such a repeal was viewed as a means of preserving marriages by making divorces more difficult to attain. This same movement has been credited with various legislative enactments throughout the country which define marriage as the union of a man and a woman, as well as proposals to create and strengthen the federal tax code incentives which favor the preservation of marriages. Michigan, Iowa, South Dakota and numerous other states have seen efforts in their legislatures to repeal the no-fault divorce laws. Apparently none of these efforts succeeded. Richard Whitmire, *Marriage Advocates Vow to Re-establish Family in Society*, *Sioux Falls Argus Leader*, April 28, 1996 at 7A. Given the present status of South Dakota law which permits a divorce on the ground of "irreconcilable differences" only if both parties consent or by default, it is doubtful that a repeal of the ground of "irreconcilable differences" would have much of an effect. If the parties are agreeable, they may simply utilize "extreme cruelty" as a ground for divorce as was so often done in the past. (Stated differently, since South Dakota has never really established itself as a true "no-fault" jurisdiction, repealing what little exists in South Dakota would be insignificant at best.)

2. "Covenant Marriages"

In 1997 the Louisiana legislature created a "higher" classification for marriage, describing it as a "covenant marriage." Persons intending to marry in Louisiana now have two options: 1) they may enter into the traditional form of marriage and, in the event one subsequently seeks a divorce, then a no-fault divorce would continue to be available; and 2) enter into the newly authorized "covenant marriage" which requires premarital counseling and then such marriage would not be terminable on a no-fault basis, but rather a divorce could be granted only if a party could establish one of several designated fault grounds.

3. Two recent articles found in the *Sioux Falls Argus Leader* follow:

Monday
June 3, 1996
Sioux Falls. S.D.

Legislator wants divorce debate

Goal is to save more marriages, but some wonder if it's possible

By TERRY WOSTER

Argus Leader Staff

PIERRE—South Dakota could join the growing number of states trying to make getting divorced more difficult.

Rep. Roger Hunt, R-Brandon, plans to bring the issue to public debate in this state.

"There are a lot of people who now believe that one of the cures for a lot of the problems in society is a strong family unit," Hunt said. "Divorce is something that disrupts the family unit."

Hunt has watched the debate develop through legislative publications and public-policy magazines.

It represents, he believes, a swing away from the '70s push to make divorces easy. That led to no-fault divorce laws.

Before, judges granted divorces when one spouse was the victim and the other was at fault.

No-fault divorce allows a couple to split for irreconcilable differences, with neither spouse at fault. Legislators across the country now wonder if that is wise.

The seven reasons

Divorces in South Dakota can be granted for:

- * Adultery.
- * Extreme cruelty—Inflicting physical injury or mental suffering.
- * Desertion—May also include a spouse who persistently refuses to have sex.
- * Neglect—Failing to provide common necessities of life.
- * Intemperance—Chronic drunkenness.
- * Felony conviction.
- * Irreconcilable differences — Conflicts that make the marriage impossible to continue.

Source: South Dakota Codified Laws.

A Michigan lawmaker wants his state's no-fault divorce to resemble South Dakota's law.

South Dakota has a hybrid no-fault law, which allows irreconcilable differences only if both spouses agree. If one spouse objects or doesn't want a divorce, the other spouse must present grounds.

"Our law doesn't make it as easy to get a divorce as in some states. Maybe we can make it a little tougher still," Hunt said.

Karen Crew, a Sioux Falls lawyer who handles divorce and family-law cases, thinks South Dakota's law works fine.

"If you could find a way to require more counseling before marriage and before divorce, I'd be interested," she said.

Former Democratic Rep. Linda Lea Viken of Rapid City helped write the state's current divorce law.

She doubts changes will stop divorce.

"There's a 60 day waiting period right now, even if both parties come in and say they want out and have no disagreements," she said.

Divorces aren't increasing because they're easy, but because society accepts them, she said.

"The motivation to work harder at a marriage sometimes isn't there, and I don't know how to get it back," she said.

La. contemplates 'covenant marriage'

Divorces would be tougher to obtain

By **KEVIN MCGILL**

Associated Press

BATON ROUGE, La. — Go down to the courthouse someday soon for a marriage license and the clerk may well ask, "Regular or high-test?"

Lawmakers are on the verge of making Louisiana the first state to offer "covenant marriage"—an optional marriage contract that requires premarital counseling and all but eliminates the possibility of an easy, no-fault divorce.

"It is a marriage contract that has weight," said Rep. Tony Perkins. The Baton Rouge Republican is a leader of the Legislature's Christian right and author of the bill, which stands a good chance of reaching the governor's desk by Monday.

He and fellow conservatives see it is a possible antidote to societal ills caused by the disintegration of the family.

Bill spells trouble

"It really is a Trojan Horse," countered Martha Kegel of the Louisiana chapter of the American Civil Liberties Union. Kegel fears many couples who opt for the tighter marriage will find themselves subject to "a lot of misery from which they will not be able to get free."

To get out of a covenant marriage, a spouse would have to prove physical or sexual abuse, abandonment, adultery or "habitual intemperance, excesses, cruel treatment or outrages." Legislators also are debating whether to allow a no-fault divorce if the couple has lived apart for three years.

Covenant marriages would be a big shift from no-fault laws that do not require a showing of wrongdoing and allow divorce on the grounds the marriage has simply broken down. Such laws exist in every state, with pro-family groups claiming they

contributed to a sharp rise in divorce since the late 1960s.

There were more than 1 million divorces in the United States in 1995.

Focusing on commitment

Several states are trying to require premarital counseling or make contested divorces more difficult. In Louisiana now, one spouse can move out and file for divorce even if the other doesn't want to split. Six months later, the marriage is over.

Ruby Dawson, a 22-year-old nursing student from Baton Rouge, plans to marry Chad Grindal, a 23-year-old computer consultant, after he gets his degree from Louisiana State University. They met through friends at church five years ago.

Dawson said the covenant marriage idea could make couples think harder about the seriousness of a marriage commitment.

She said she and Grindal will probably go for the covenant mar-

riage. But she added: "As far as we're concerned it really doesn't matter which one we get. Either way, we feel it's going to be a one-time thing for us."

South Dakota's Fault Based Divorce Laws Help Persecute Victims of Domestic Violence

(editorial comments by Prof. Baron submitted to Sioux Falls Argus Leader in September, 2000)

In the state of South Dakota, one cannot obtain a "no fault" divorce, unless both parties agree to it. At least 47 of the other states (or more) do permit "no fault" divorce. The facts brought to light in the criminal prosecution in the *Aesoph* case in Kennebec may hopefully cause our legislature to reconsider. The South Dakota Supreme Court has just recently affirmed the conviction of the husband, Mr. Aesoph, in this case.

A court cannot order parties to live together happily and peacefully. In fact, we have laws on domestic violence which now permit a person to receive an immediate order of protection when domestic peace is threatened. Yet, the victims do not always avail themselves fully of these protections. Why is this? Ultimately, the reason that some victims go back to abusive spouses could rest in the fact that South Dakota's laws concerning divorce override and impose considerations which work against the victims.

In looking at the facts which were reported in the *Aesoph* trial in Kennebec, one finds that this victim of domestic violence initially tried to pursue a divorce for "extreme cruelty," but had some concern that she would not be able to establish grounds in court if her husband contested the case. A good look at these facts shows that the relationship between these two people was one of abuse, fear and control. The deceased wife's initial divorce action was put on hold and she returned to the home. She did not want to have to deal with confrontation of her husband in divorce court where, because of South Dakota's laws, she would have to confront him and prove him guilty of "extreme cruelty." It is clear that the divorce laws of South Dakota worked against Mrs. Aesoph's survival. Would she, a victim of abuse, be able to actually confront her husband and prove "extreme cruelty?" Even if she could, she would have to deal with her husband in an adversarial courtroom setting since the law of South Dakota entitles him to remain married to her unless she "proved" him guilty of one of the fault grounds in the courtroom. The evidence in the criminal trial revolved extensively around the Mr. Aesoph's allegedly controlling nature and his "abuse." Notably, "lack of actual physical harm" was conceded by the many witnesses. Was not this a foreshadowing of the same difficult task which would lie ahead for the wife in the divorce courtroom had she lived and been able to pursue a divorce? Did not South Dakota's "fault based" laws and our adversarial system of justice play right into the hand of the abuser? (Facts from the trial were reported in articles in the Argus Leader on 9/22/00 and 9/23/00.)

At a time when society is now being alerted to the serious concerns of "domestic violence," South Dakota continues to cling to the strict "fault" requirements of divorce. Studies of court proceedings and interviews with judges in South Dakota have long established that litigants utilize divorce grounds only as strategic tools for gaining financial advantages. A courtroom can never really serve as a full and complete forum for the vindication of marital transgressions. To quote one eminent trial judge in South Dakota, "Divorce grounds are like icebergs with only one-tenth of the facts exposed in court." Another judge has said that South Dakota's divorce laws are causing more perjury in the courts than any other thing. [These quotes come from articles published in the South Dakota Law Review.]

The task of becoming "unmarried" in South Dakota should not be a death-trap for victims of domestic violence. One cannot now say with absolute certainty that Mrs. Aesoph would be alive today had she been afforded the opportunity to get divorced on a simple no-fault basis. But, there is no doubt that she would have been much closer to finding freedom from a controlling and abusive spouse had she been given that option. Under the law of South Dakota, victims such as Mrs. Aesoph are required to prove fault grounds in an adversarial setting against their abusers in order to be divorced. Mrs. Aesoph gave up on her pursuit of a divorce when she learned that she could not attain one without confronting and proving her husband guilty of a fault ground. The laws of South Dakota were against her. As a result, she returned home for the last time.

Mr. Aesoph was found guilty by a jury of first degree murder. His conviction was affirmed on appeal. *State v. Aesoph*, 2002 SD 71, 647 N.W.2d 743.

B. The Prospect of “Fault” Notwithstanding its Relevance as a “Ground” for Divorce.

Consider the following statute which was enacted by the South Dakota legislature in 1976 in connection with the next two cases:

25-4-45.1 Fault not considered in awarding property or child custody -- Exceptions. Fault shall not be taken into account with regard to the awarding of property or the awarding of child custody, except as it may be relevant to the acquisition of property during the marriage or to the fitness of either parent in awarding the custody of children.

Source: SL 1976, ch 165.

HANKS v. HANKS

Supreme Court of South Dakota, 1980.

296 N.W.2d 523.

MORGAN, Justice.

* * *

With respect to the alimony provision, however, we do hold that the trial court abused its discretion. The award was for payment of \$200 per month with no provision for cutoff. Considering the relative positions of the parties, we hold this award to be excessive. SDCL 25-4-41 provides that:

Where a divorce is granted, the court may compel one party to make such suitable allowance to the other party for support during the life of that other party or for a shorter period, as the court may deem just, having regard to the circumstances of the parties represented; and the court may from time to time modify its orders in these respects.

As we said in *Guindon v. Guindon*, 256 N.W.2d 894, 898 (S.D.1977):

The amount and length of alimony payments is therefore left to the discretion of the trial court. SDCL 25-4-41. The factors for consideration in exercising that discretion are similar to those used in the property division, *i.e.*, (1) the length of the marriage; (2) their respective earning capacity; (3) their respective financial condition after the property division; (4) their respective age, health and physical condition; (5) their station in life or social standing; and (6) the relative fault of the parties in the termination of the marriage.

We note that relative fault of the parties has generally been removed as consideration with respect to property division and child custody, but the statute³ makes no reference to alimony or support after

³ SDCL 25-4-45.1 reads as follows:

Fault shall not be taken into account with regard to the awarding of property or the awarding of child custody, except as it may be relevant to the acquisition of property during the marriage or to the fitness of either parent in awarding the custody of children.

divorce. We therefore hold that fault continues to be a consideration in such awards.

* * *

Our principal and strongest objection to the award is the failure of the trial court to provide for termination of the payments upon appellee's remarriage. Her adulterous relationship was the grounds for the divorce even though she testified at trial that that particular relationship had ended and that she no longer loved or was involved with Seeley. The trial court should have anticipated that a woman of appellee's age and education would enter into another marriage. The fact that she married Seeley is of no import; that she did so within a few months, however, proves our point.

We hold, therefore, that under the circumstances of this case the trial court erred in its failure to limit the alimony provision until the remarriage of appellee, and as we did in *Guindon* under the provisions of SDCL 15- 30-2, we modify the alimony provision to provide for its continuation only until the remarriage of appellee, and we remand to the trial court for the purpose of determining the amount accrued within that limitation.

WOLLMAN, C. J., and DUNN and FOSHEIM, JJ., concur.

HENDERSON, J., concurring in part and dissenting in part.

MADSON v. MADSON

Supreme Court of South Dakota, 1981.
313 N.W.2d 42.

DUNN, Justice (on reassignment).

James Madson (appellant) appeals from a judgment and decree of divorce which awarded to Lois Madson (appellee) custody of the parties' son. We reverse and remand.

The parties were married on September 5, 1970 and a decree of divorce was entered by the trial court on January 28, 1980. Their son was born on September 30, 1975. The trial court granted both parties a divorce on the grounds of extreme cruelty and found that both parties were fit and proper persons to have custody of their son. The trial court found that the best interests of the child would be protected by placing the child in the custody of appellee, subject to appellant's reasonable rights of visitation. Appellant contends that the trial court abused its discretion in finding that appellee was fit to have custody of the parties' child.

* * *

The record indicates that during the first seven years of the marriage appellant engaged in extra-marital sexual relationships, while appellee did not. In the spring of 1977, the parties agreed to experiment with the concept of an open marriage. Both parties participated in a number of liaisons between the spring of 1977 and the commencement of this divorce action in March of 1979.

During their marriage, both parties used marijuana and had experimented with other drugs. The child was allowed to pass a marijuana cigarette, but he was not allowed to smoke marijuana.

During one of appellee's liaisons, appellee engaged in sexual intercourse with one of her paramours on the ground in a public park with the child observing. Later the child was able to relate the intimate details of this sexual act to appellant. On other occasions, appellee would stay out all night with her paramours and arranged one weekend-long encounter.

In February of 1979, appellee and the child moved out of the marital home and in March of 1979, they moved into the home of another of her paramours in Gayville, South Dakota. This household consisted of the man's former wife, their daughter, and his teenage brother. While living with this paramour, the child again observed appellee while she was engaging in the act of sexual intercourse. The child was then four years old, and appellee testified that she "made no big deal of it" because she did not want the boy to think "it was bad or naughty." At trial, appellee admitted that she regularly had intercourse with this paramour.

Appellee and her son left the residence in Gayville in September of 1979 and established a home in Yankton, South Dakota. She obtained employment at the Yankton Community Day Care Center, where her son was enrolled. The divorce trial was held on October 3, 1979. At the end of October, appellee quit her job and she and her son returned to the Gayville residence.

The record indicates instances of marital misconduct on the part of both parties. "We must remember that marital responsibilities must not be confused with parental responsibilities." *Holforty v. Holforty*, 272 N.W.2d 810, 811 (S.D.1978). Fault for the purposes of divorce is not to be considered with regard to awarding custody of children except as fault may be relevant to the fitness of either parent. SDCL 25-4-45.1; *Holforty v. Holforty*, *supra*.

This court has held that where there is no evidence of a demonstrable effect of a parent's marital misconduct upon the child, it does not follow that the parent is an unfit person to have custody and that an award of custody to that parent is not in the best interest and welfare of the child. *Haskell v. Haskell*, *supra*; *Holforty v. Holforty*, *supra*; *Spaulding v. Spaulding*, 278 N.W.2d 639 (S.D. 1979); *Kester v. Kester*, 257 N.W.2d 731 (S.D.1977). The harmful effect of marital misconduct is self-evident, however, if it is committed in the presence of a child old enough to see and recognize the improprieties. *Haskell v. Haskell*, *supra*; *Spaulding v. Spaulding*, *supra*.

In this instance, the evidence is clear that the child observed appellee's indiscretions on two occasions. Even though the child was only two years old at the time of the first occurrence and four years old when the second indiscretion occurred, the child was able to relate the details of the sexual act to appellant. This indicates that the child was old enough to see and recognize the improprieties of appellee's acts. Furthermore, appellee continued her pattern of marital misconduct right up to the time of the divorce hearing and resumed it shortly after the hearing. As this court noted in *Yager v. Yager*, 83 S.D. at 319, 159 N.W.2d at 127: "The record here is not one of a single or occasional indiscretion, but a course of serious marital misconduct." *See also Hines v. Hines*, 78 S.D. 464, 104 N.W.2d 375 (1960).

In addition to the evidence that appellee associated with other men, the record also indicates that appellee frequently stayed away from her child until the early hours of the morning and planned a weekend-long rendezvous with one of her paramours. The home environment which appellee established for herself and her child in Gayville after separating from appellant was less than desirable. In this environment, in the presence of her son, appellee openly carried on an adulterous affair with her paramour, who was still living with his ex-wife and child. Appellant testified that this paramour threatened his life in front of his son and tried to belittle him in his son's eyes.

In conclusion, appellee's admitted conduct is more than sufficient to reverse the finding that she is a fit parent to have custody of the child.

The testimony regarding appellant's fitness to have custody of the child is unclear. The testimony conflicts as to whether the child also observed appellant having sexual intercourse with other women. Evidence was also introduced indicating that the child was underweight for his age when in appellant's care. Appellee testified that the child often suffered from diarrhea when she picked him up after visitations with appellant, that the child frequently was ill with fever after those visits, and that he vomited during the nighttime on several occasions after returning to appellee's home.

* * *

In light of our finding that appellee is an unfit parent to have custody of the child and in view of the over one and one-half years that have passed since the trial court granted custody to appellee, we remand this matter to the trial court for a redetermination of the custody of the child. The interests of the child are too important to be determined by a record that may be quite stale. *Edel v. Edel*, 97 Mich.App. 266, 293 N.W.2d 792 (1980); *Roudabush v. Roudabush*, 62 Mich.App. 391, 233 N.W.2d 596 (1975). The trial court should determine whether the welfare and best interests of the child will be served by granting custody to appellant or to a third party.

We reverse and remand for proceedings not inconsistent with this opinion.

MORGAN, HENDERSON and FOSHEIM, JJ., concur. WOLLMAN, C. J., dissents.

WOLLMAN, Chief Justice (dissenting).

The record compiled in this action has at its center a detailed expose of both parties' extra-marital sexual relationships, an explicit recital of which would serve no useful purpose. It is uncontroverted that during approximately the first seven years of the marriage appellant engaged in sexual relationships with more than one woman, but that during this same period appellee remained faithful to her marriage vows.

* * *

There was testimony from which the trial court could well have found that the child was underweight for its age when in appellant's custody. Appellee testified that the child was nearly always suffering from diarrhea when she picked him up after visitation with appellant, that the child was frequently ill with a fever after those visits, and that he vomited during the nighttime on several occasions after returning to appellee's home.

Neither party to the marriage presented an attractive choice to the trial court as a candidate for custody. It requires no reversion to puritanism to say that by their hedonistic indulgence of their sexual appetites the parties had created an intolerable marital state. The trial judge was faced with a difficult choice. His finding that it would be in the best interests of the child that custody be granted to appellee necessarily implied a determination that appellee will so conduct herself as not to place the child in circumstances that would be damaging to its welfare. Given the choice it had, I cannot say that the trial court clearly abused its discretion in determining that appellee, the victim of what can only be characterized as a case of arrested emotional development on the part of her husband, offered a better hope of providing an acceptable home for the child.

NOTE

Reconsider SDCL 25-4-45.1 which is reproduced in the text preceding the *Hanks* opinion. The preceding two cases dealt with “fault” on the issues of alimony and child custody. The statute forbids the consideration of “fault” in the division of property “except as it may be relevant to the acquisition of property.” It is somewhat easy to visualize how “fault” could be relevant to the non-acquisition of property — *e.g.* H spent all of the parties’ money gambling and therefore what little property has been accumulated should be arguably given to W. What does “relevant to the acquisition of property” mean when talking about “fault?” Compare *Korzan v. Korzan*, 488 N.W.2d 689 (S.D. 1992).

“Look at each day as a chance to invest life into life. A chance to share your experience and deposit it into someone else's conscience. Each day is a chance to work miracles in the lives of others.”

Jim Rohn

C. Defenses

RECRIMINATION — A DOCTRINE FOR THE PAST

15 South Dakota Law Review 366 (1970)

Recrimination is one of five defenses to divorce in South Dakota.¹ Basically, under this doctrine, when both parties in a divorce action have legitimate grounds for divorce, neither is granted a divorce. In other words, an “innocent” party may divorce the “guilty” party; but if both are “guilty,” the law will not sanction the dissolution of the marriage.

The obvious injustices that can arise from the application of this principle far outweigh any justification for its continuance in divorce law. At a time when many states are liberalizing and modernizing their divorce laws, South Dakota should examine its own divorce statutes, especially the section providing for recrimination as a defense to divorce.

This article will explore the reasons for development of the doctrine, review reasons for its continued existence, and present logical alternatives to it in the hope that South Dakota will abandon the doctrine in favor of a more enlightened approach to divorce and defenses to divorce.

History of Recrimination

The principle upon which the doctrine of recrimination is founded had its origin in Roman property law.² Initially, it served as the basis upon which a Roman wife could recover her dowry upon dissolution of the marriage, a privilege only awarded to a nonadulterous wife.³ However, by applying the doctrine of *compensatio criminis* (a set-off of guilt), an adulterous wife could regain her dowry in spite of her actions if she could show that her husband was also guilty of adultery.⁴

In the eighteenth century, this principle was adopted by Lord Stowell to prevent a separation *a mensa et thoro* (from bed and board) on the grounds of adultery.⁵ Under Canon Law, a party could never get an absolute divorce but only an absolution of his (or her) duty in a marriage. However, by asserting the doctrine of recrimination, a wife could require her husband to continue to support her.⁶ Still, the doctrine was not used as an absolute bar to divorce.

¹S.D. Comp. Laws § 25-4-19 (1967).

²For an excellent history of recrimination, see generally Beamer, *The Doctrine of Recrimination in Divorce Proceedings*, 10 U. Kan. City L. Rev. 213 (1942).

³Moore, *A Critique of the Recrimination Doctrine*, 68 Dic. L. Rev. 157, 159 (1964).

⁴*Id.*

⁵*Forster v. Forster*, 1 Hagg. Con. 144, 161 Eng. Rep. 504 (1790).

⁶Moore, *supra* note 3, at 160.

The doctrine of recrimination was imported to America along with the body of English law to be applied in the common law of divorce.⁷ At this point, however, recrimination was transformed from a defense to separation into a bar to absolute divorce,⁸ even though the purpose for having the defense was not to prevent the dissolution of the marital relationship but only to recover property and the custody of children or to prevent the other spouse from recovering them.⁹

* * *

It is time for South Dakota to take a realistic look at the state's divorce laws. Each day our present divorce laws are causing more perjury in the courts than any other one thing.⁵⁴ The time to update the divorce laws is now. It is obvious from the preceding material that this is exactly what several states are doing.

* * *

The tendency toward liberalization of the divorce laws may be due to a gradual realization that a denial of divorce seldom restores life to discordant marriages. Often what does remain is an attitude in the parties that what cannot be done legally will be done illegally and that which cannot be done openly will be done in secret. Man's innate desires cannot be suppressed by judicial decree. Therefore, if these factors justify permitting a divorce when only one party is at fault, it is reasonable to assume that when both parties have contempt for their marriage, the possibility of reconciliation becomes more remote and the absurdity of applying recrimination becomes even more apparent.

Ronald J. Wheeler

NOTE

The South Dakota legislature repealed SDCL 25-4-27 (the statute which authorized the defense of "recrimination") in 1973. Other archaic defenses remain on the books.

⁷ *Robbins v. Robbins*, 140 Mass. 528 5 N.E. 837 (1885).

⁸ For details of how this transition took place, see Beamer, *supra* note 2, at 241-43.

⁹ Beamer, *supra* note 2, at 243.

⁵⁴ Letter from Judge Andrew W. Bogue to Ronald J. Wheeler, September 25, 1969.

SELECTED SOUTH DAKOTA STATUTES ON “DEFENSES”

25-4-19 Grounds for denial of divorce. Divorces must be denied upon showing:

- (1) Connivance;
 - (2) Collusion;
 - (3) Condonation; or
 - (4) Limitation and lapse of time.
-

25-4-20 Connivance defined. Connivance is the corrupt consent of one party to the commission of the acts of the other, constituting the cause of divorce. Corrupt consent is manifested by passive permission, with intent to connive at or actively procure the commission of the acts complained of.

25-4-21 Collusion defined. Collusion is an agreement between husband and wife that one of them shall commit or appear to have committed or to be represented in court as having committed acts constituting a cause of divorce, for the purpose of enabling the other to obtain a divorce.

25-4-22 Condonation defined -- Required elements. Condonation is the conditional forgiveness of a matrimonial offense constituting a cause of divorce. The following requirements are necessary to condonation:

- (1) A knowledge on the part of the condoner of the facts constituting the cause of divorce;
 - (2) Reconciliation and remission of the offense by the injured party;
 - (3) Restoration of the offending party to all marital rights.
-

25-4-23 Condonation not implied by endurance of continuing conduct constituting ground for divorce. Where the cause of divorce consists of a course of offensive conduct, or arises in cases of cruelty from excessive acts of ill-treatment, which may aggregately constitute the offense, cohabitation, or passive endurance, or conjugal kindness shall not be evidence of condonation of any of the acts constituting such cause, unless accompanied by an express agreement to condone. In such cases, condonation can be made only after the cause of divorce has become complete, as to the acts complained of.

25-4-24 Fraudulent concealment of ground of divorce avoiding condonation. A fraudulent concealment by the condonee of facts constituting a different cause of divorce from the one condoned, and existing at the time of condonation, avoids such condonation.

25-4-25 Conjugal kindness as condition subsequent to condonation. Condonation implies a condition subsequent that the forgiving party must be treated with conjugal kindness.

25-4-26 Revocation of condonation and revival of ground for divorce. Condonation is revoked and the original cause of divorce revived:

- (1) When the condonee commits acts constituting a like or other cause of divorce; or
 - (2) When the condonee is guilty of great conjugal unkindness, not amounting to a cause of divorce, but sufficiently habitual and gross to show that the conditions of condonation had not been accepted in good faith or not fulfilled.
-

25-4-27 Recrimination defined. Repealed by SL 1973, ch 161.

25-4-29 Lapse of time as ground for denial of divorce -- Presumption of acquiescence -- Other limitations not applicable. A divorce must be denied when there is an unreasonable lapse of time before the commencement of the action. Unreasonable lapse of time is such a delay in commencing the action as establishes the presumption that there has been connivance, collusion, or condonation of the offense, or full acquiescence in the same, with intent to continue the marriage relation, notwithstanding the commission of the offense set up as a ground of divorce. The presumption arising from lapse of time may be rebutted by showing reasonable grounds for the delay in commencing the action.

There are no limitations of time for commencing actions for divorce, except such as contained in this section.

RYKHUS v. RYKHUS

Supreme Court of South Dakota, 1982.
319 N.W.2d 167.

DUNN, Justice.

This is an appeal from a decree of divorce in favor of appellee Donald Rykhus that terminated a twenty-six year marriage between the parties. Appellant Lois Rykhus appeals. We affirm.

The parties were married on October 24, 1953. Four children were born to the marriage, two of whom were minors at the time of trial. Appellee is presently employed as the Superintendent of Schools in Onida, South Dakota. He was previously employed as the Elkton Superintendent of Schools. Appellant has worked as a housewife for the last twenty years.

Appellee sought a divorce from appellant alleging infliction of grievous mental and physical suffering. Appellant counterclaimed alleging adultery as grounds for divorce. The trial court found that appellant treated appellee with extreme cruelty, but that the evidence presented by appellant was insufficient to prove adultery.

Appellant contends that the trial court erred by granting appellee a divorce on the grounds of extreme cruelty. The record indicates that during the course of the marriage and particularly after 1971, appellant had repeated outbursts of temper. Appellant threatened to stab appellee on several occasions with knives, stabbed him once with a scissors, hit him in the face once, and ordered him to leave the house. On one occasion, appellant required appellee to write a note promising that "he would not drink, smoke, swear or chase women in the future." The record also indicates that appellant, while angry at her husband and trying to find him, kicked the glass out of an Elkton School door.

Extreme cruelty is defined in SDCL 25-4-4 as "the infliction of grievous bodily injury or grievous mental suffering upon the other, by one party to the marriage." In a marital setting, the definition of extreme cruelty differs according to the personalities of the parties involved. *Brandsma v. Brandsma*, 318 N.W.2d 318 (S.D.1982); *Pochop v. Pochop*, 89 S.D. 466, 233 N.W.2d 806 (1975). We must view the evidence in light of the full context of the marriage and not in the narrow light of isolated incidents. *Brandsma v. Brandsma, supra*; *Palmer v. Palmer*, 281 N.W.2d 263 (S.D. 1979). We find that the showing of physical abuse and mental suffering in this case was sufficient to support the trial court's finding of extreme cruelty.

Appellant contends that appellee condoned her behavior by continuing to live in the family home. In *Gassman v. Gassman*, 296 N.W.2d 518 (S.D. 1980), we stated that to constitute condonation there must be forgiveness, reconciliation, reunion and the restoration of all marital rights. See also SDCL 25-4-22; *Melinn v. Melinn*, 329 Mich. 96, 44 N.W.2d 886 (1950). In this instance, the cause of divorce consists of a course of offensive conduct which aggregately constitutes the claim of extreme cruelty. Thus, under SDCL 25-4-23, continued "cohabitation, or passive endurance, or conjugal kindness shall not be evidence of condonation of any of the acts constituting such cause, unless accompanied by an express agreement to condone. In such cases, condonation can be made only after the cause of divorce has become complete, as to the acts complained of." See also *Brockel v. Brockel*, 80 S.D. 547, 128 N.W.2d 558 (1964). No evidence was introduced at trial to show that an express agreement to condone was reached. Evidence of cohabitation or of appellee's passive endurance of appellant's fits of rage are insufficient under SDCL 25-4-23 to support a finding of condonation.

* * *

Appellant argues that the trial court should have awarded her the total amount of her attorney fees, \$5,500.00, instead of a partial award of \$1,500.00. An award of attorney fees and costs rests in the sound discretion of the trial court. *Park v. Park*, 309 N.W.2d 827 (S.D. 1981); *Balvin v. Balvin*, 301 N.W.2d 678 (S.D. 1981); *Hansen v. Hansen*, 273 N.W.2d 749 (S.D. 1979). In determining a reasonable fee, the trial court should consider the following elements: the amount and value of the property, the litigation's intricacy and importance, the labor and time involved, the skill required to draft the pleadings and try the cause, the discovery procedures utilized, whether complicated legal problems existed, the time required to try the cause, and whether written briefs were required. *Lien v. Lien*, 278 N.W.2d 436 (S.D. 1979).

After determining what constitutes a reasonable fee in a divorce case, the trial judge must then decide what portion of the attorney fees should be allowed as costs and thereby paid by the opposing party. SDCL 15-17-7; *Lien v. Lien, supra*. The trial judge should consider the property owned by each party, their relative incomes, whether the wife's property is in liquid or fixed assets, and whether the actions of the husband or wife increased unreasonably the time spent on the case. *Lien v. Lien, supra*. The trial court found that appellant's assets were sufficiently liquid to enable her to pay the balance of her attorney fees and that counsel for appellant spent more time on this matter than would normally be justified because of appellant's personal desires. Each party received approximately equal portions of the property. In light of these factors, we hold that the trial court did not err in awarding appellant partial attorney fees.

Finally, appellant has requested an award of \$3,600.00 for her appellate attorney fees. Appellee has requested an award of \$1,500.00 for appellate attorney fees. After considering the above-listed factors, we deny both claims for appellate attorney fees.

The order of the trial court is affirmed.

All the Justices concur.

D. Attorney's Fees

The awarding of attorney's fees is an issue which can come up in just about any family law case. In most of the opinions found in this book, the matter of attorney's fees has been edited out.

The matter is largely discretionary with the trial court. There are some general guidelines which do exist, however, and those can be seen in the *Rykhus* opinion. Note that the analysis is a two-step analysis: the first step being for the court to decide what constitutes a "reasonable fee," and the second step being the apportionment step. There are several factors which are enumerated for the court's consideration under each step. This traditional two-step approach was recently reaffirmed by the South Dakota Supreme Court in *Grode v. Grode*, 543 N.W.2d 795, 804 (S.D. 1996).

Rarely is the trial court's decision on the award (or denial) of attorney fees overturned on appeal. One such case in which there was a reversal is *Dussart v. Dussart*, 645 N.W.2d 109 (S.D. 1996). The trial court had denied the wife's attorney's fees, but that was reversed because the husband had created a "secret" bank account during the marriage which was used to cover his legal costs in the divorce proceeding and also because there was a real disparity in the income and earning capacity of the parties. He was making \$30,000 to \$40,000 annually while she worked 17 hours per week at \$6.00 per hour. In addition to awarding the wife \$2,500 appellate attorney fees, the issue of attorney fees at the trial level was remanded with directions to the trial court to make "an award of reasonable trial level attorney fees."

A few more recent decisions involving attorney's fees are described in the following notes.

NOTES

1. In a case where appellate attorneys fees were requested by wife some two months after the case was submitted for consideration, the South Dakota Supreme Court denied the request and expressed its recommendation "that any request for appellate attorney fees be submitted at the time of, or immediately after, filing the appellate briefs." *DeVries v. DeVries*, 519 N.W.2d 73, fn 5 (S.D. 1994).

2. An application for attorney fees and costs in divorce litigation is not limited to the period of 30 days following entry of judgment by SDCL 15-6-54(d). The South Dakota Supreme Court construed SDCL 15-6-54(d) to be inapplicable to divorce proceedings which may consist of only judgment, but which are subject to subsequent determinations and decisions. *Kappenman v. Kappenman*, 522 N.W. 2d 199 (S.D. 1994).

3. Husband was ordered to pay 100% of wife's attorney fees in his failed modification proceeding. Affirmed by the South Dakota Supreme Court. *Kappenman v. Kappenman*, 523 N.W. 410 (S.D. 1994).

4. In *Alexander v. Hamilton*, 525 N.W.2d 41 (S.D. 1994), the father, in a paternity action, was ordered to pay 70% of the attorney fees incurred by mother in a mental commitment hearing. These fees were incurred when father had mother placed temporarily in the psychiatric ward at a hospital, by way of a petition for emergency commitment. The award was upheld under a broad reading of SDCL 15-17-38 and alternatively on the basis of an equitable division of a debt.

5. Consider SDCL 15-17-38, which is reproduced as follows:

15-17-38. Award of attorneys' fees--Taxed as disbursements. The compensation of attorneys and counselors at law for services rendered in civil and criminal actions and special proceedings is left to the agreement, express or implied, of the parties. However, attorneys' fees may be taxed as disbursements if allowed by specific statute. The court, if appropriate, in the interests of justice, may award payment of attorneys' fees in all cases of divorce, annulment of marriage, determination of paternity, *custody, visitation*, separate maintenance, support, or alimony. The court may award the fees before or after judgment or order. The court may award attorneys' fees from trusts administered through the court as well as in probate and guardianship proceedings. Attorneys' fees may be taxed as disbursements on mortgage foreclosures either by action or by advertisement.
(language added by 2006 legislature is bold and italicized.)

6. In *Jameson v. Jameson*, 1999 SD 129, 600 N.W.2d 577, the SD Supreme Court reversed the trial court's elimination of alimony based only upon the former husband's retirement from medical practice at age 70. The court observed that "while retirement can be a change in circumstances, it is not automatic ... [and that] ... a decrease in earning, by itself, does not show a change in circumstances." (Paragraph no. 16. 600 N.W.2d at 581.) Additionally, the Supreme Court held that it was error for the trial court to deny an award of attorney fees to the wife where the former husband had deliberately attempted to deprive wife of what he agreed to give her. The wife was also awarded appellate attorney fees of \$4,994.72.

7. In *Dooley v. Dooley*, 1999 SD 136, 601 N.W.2d 277 (S.D. 1999), the warden of the state prison facility in Springfield, SD, was sued for divorce by his wife of 24 years. The attorney fee award was not fully supported by an itemized bill. The SD Supreme Court affirmed all aspects of the trial court's decision, except for the matter of the attorney fee award which was reversed and remanded. Of the total award of attorney fees of \$6,422.64, only the amount of \$2,437.50 was sufficiently itemized. "Without any itemization or time frame for the \$3,641.64 of Wife's attorney's fees the trial court did not have sufficient information upon which to conclude that an award of \$6,422.64 was reasonable. This also makes it impossible for us to cogently review the issue." (Paragraph no. 27, 601 N.W.2d at 282.)

8. **Wife's request for appellate attorney fees, in defending appeal taken by husband in protracted child support litigation, was granted in full, given that husband earns nearly three times what wife earns and that husband's refusal to pay child support necessitated wife's litigation of the issues, in *Christensen v. Christensen*, 2003 SD 137, 672 N.W.2d 466.** In defending appeal taken by husband on child support issues, wife submitted a motion for appellate attorney fees in the amount of \$1,399.20. Despite the fact husband prevailed on one issue in the appeal (modification of child support during the pendency of the proceeding), the South Dakota Supreme Court granted wife's appellate attorney fee request in full, stating, "Considering the fact that Daniel earns nearly three times the amount that Deanna earns, and that Daniel's refusal to pay child support necessitated Deanna's litigation of this matter, we grant Deanna's motion in the amount of \$1,399.20." ¶ 27.

9. **Award of attorney fees to grandparents in visitation modification proceeding upheld, in light of mother's intransigence and rejection of several proposed stipulations, in *Osgood (Kron) v. Osgood*, 2004 SD 22, 676 N.W.2d 145.** While father was in prison, mother agreed to 1995 court order granting his parents (child's paternal grandparents) visitation rights with child. (This order awarded grandparents visitation from 10:00 a.m. on Saturday to 10:00 a.m. on Sunday on the 2nd and 4th weekends of each month, plus holiday visitation "to the extent possible as agreed between the parties." ¶3) After father had been released and then re-sentenced to prison for life, mother's husband filed petition for stepparent adoption of the child which was granted. The adoption court "made it clear ... that the order for visitation was not to be trifled with and that it was in the best interest of the child that Grandparents be allowed to visitation." ¶6. Mother denied visitation for a period of time, but reinstated visitation after consulting with an attorney. In an effort to appease mother, grandparents presented several different visitation proposals to her. "After Mother rejected the seventh proposed stipulation, Grandparents filed another motion for relief and request for attorney's fees." ¶7. The trial court established a specific visitation schedule and also awarded attorneys fees to grandparents in the amount of \$1,300. The South Dakota Supreme Court affirmed (5-0), in an opinion by Justice Sabers.

The award of \$1,300 in attorney fees to grandparents was upheld. The Court pointed out the difficulty which mother has put forward in facilitating visitation. The Court stated, "We agree with the two trial courts in this case that court orders are not 'invitations, requests, or even demands; they are mandatory.' [citations omitted]... Mother has treated Grandparents court-ordered visitation as a suggestion. She should not be heard to complain that the sanction for disregarding the order is too severe." ¶ 21.

10. **Wife awarded appellate attorney fees incurred in defending against frivolous post-divorce actions brought by husband in *Flugge v. Flugge*, 2004 SD 76, 681 N.W.2d 837 (June 2, 2004).** Because husband's actions for abuse of process, unlawful eviction, barratry and punitive damages were frivolous, wife was awarded \$3,000 appellate attorney fees. (Wife had requested \$5,274.82 appellate attorney fees in total.)

11. **County not obliged to pay attorney fees for custody litigant.** *Guardianship of S.M.N., T.D.N. & T.L.N.*, 2010 SD 31, presents a custody dispute between mother and the paternal grandmother. The trial court appointed an attorney to represent mother and ordered Hughes County to pay the attorney fees (\$9,511.72). The trial court granted grandmother permanent guardianship, with visitation rights to mother, finding "extraordinary circumstances" in accordance with SDCL 25-5-29 and 25-5-30. On appeal the SD Supreme Court reversed the custody decision and also held that the trial court erred in ordering Hughes County to pay attorney fees for a custody litigant. There is a failure of statutory authority to support such an order.

12. Appellate attorney fees awarded where appellant's sole issue on appeal was one of trial court's discretion. In *Clark v. Clark*, 2008 SD 59, 753 N.W.2d 423, husband appealed a permanent alimony award of \$650 per month. The SD Supreme Court affirmed the lower court. The Supreme Court also denied wife's appeal on the trial court's refusal to award her attorney fees. But, since the husband's sole issue on appeal (alimony) was "essentially only ... a discretionary issue," wife was awarded \$1500 in appellate attorney fees. ¶ 19.

13. Stalking protection order affirmed in situation where neighbor was, *inter alia*, agitated with children riding four-wheelers near his property, but attorney fees not authorized under stalking statutes. In *Schaefer v. Liechti*, 2006 SD 19, 711 N.W.2d 257, the South Dakota Supreme Court upheld the entry of a stalking order of protection against the defendant. The order was sought on behalf of 4 minor children against a neighbor who was bothered by their riding of four-wheelers near his property. The various encounters (which included surveillance through binoculars) between the neighbor and children took place over a 2-3 year period. The request for appellate attorney fees for the successful plaintiffs was denied because the plaintiffs failed to cite any applicable authority which would permit attorney fees under the stalking statutes. The award of appellate attorney fees is authorized under SDCL 15-26A-87.3 only if attorney fees are otherwise authorized.

14. Increased time and cost needed for "new counsel" not compensated as part of attorney fee award. Wife secured new counsel for purpose of taking appeal to SD Supreme Court. W's appeal was successful (reversing lower court's award of 56 acres to H as non-marital property), but Court only awarded W about 50% of requested attorney fees in *Godfrey v. Godfrey*, 2005 SD 101, 705 N.W.2d 77. The Court stated in footnote 6, "Pamila's appellate counsel was not her trial counsel. In addition to considering the referenced factors this Court is also taking into consideration that increased time and cost occurs when new counsel appears on appeal which should not normally be the responsibility of the non-prevailing party."

15. Reversal order includes direction to trial court to reconsider its denial of attorney fees to wife. The case of *Nist v. Nist*, 2006 SD 67, 720 N.W.2d 87, was orally argued here at the law school on March 21, 2006. It involves a unique pension plan accumulated through the husband's work in the federal foreign service. According to the applicable federal statute an ex-spouse's interest in such a plan is guaranteed to the ex-spouse unless expressly waived by the ex-spouse or expressly limited by court order. When the parties in this case were divorced in 1995, the trial judge simply awarded husband his retirement plan and wife her retirement plan. The divorce decree did not specifically exclude wife's interest from husband's foreign service plan as required by the federal statute. Some nine years later, husband realized that wife was entitled to a pro rata share of the retirement because her interest had not been specifically limited by the divorce decree. Husband went back to court to modify the decree so as to specifically exclude wife's interest. Husband presented his modification request alternatively under either SDCL 15-6-60(a) or SDCL 15-6-60(b). The original judge (Honorable Roland Grosshans) was retired and the modification proceeding was lodged before Judge Thomas Trimble. Judge Trimble ruled for husband believing that the record clearly showed that Judge Grosshans intended for husband to have the entirety of his retirement plan. Judge Trimble's order was viewed as a *nunc pro tunc* order entered under the apparent authority of SDCL 15-6-60(a). The SD Supreme Court reversed, holding that such an order was not a clerical correction, but rather was "substantive in nature" involving a "judicial function." As such, the mistake could not be corrected with a rule 60(a) motion. In language borrowed from the Montana Supreme Court and previously quoted with approval by the SD Supreme Court itself, the situation is such that "The authority of a court to amend its record by a *nunc pro tunc* order is to make it speak the truth, but not to make it speak what it did not speak but ought to have spoken." Wife was awarded \$5,000 in appellate attorney fees. The case is not over,

however, because the SD Supreme Court also remanded the proceeding back to the trial court for it to consider the parties' remaining claims which include husband's claim for relief under rule 60(b), wife's asserted equitable defenses, and wife's claim for alimony. The remand order also directed the trial court to reconsider its denial of wife's request for attorney's fees at the trial level. Judge Konenkamp, as the lone dissenter in this case, wrote that "All the husband had asked for was that trial judge's decision be stated in the judgment." Justice Konenkamp believes that a liberal approach should be taken to rule 60(a) and that the failure to include the necessary language to satisfy the federal statute was a simple omission.

16. Maternal Grandparents Ordered to pay over \$14,000 in Attorney Fees incurred by Father in litigation arising out of bitter custody dispute. In *Toft v. Toft & Stratmeyer*, 2006 SD 91, 723 N.W.2d 546, we find a follow-up dispute concerning attorney fees in connection with an intensely litigated custody dispute between maternal grandparents and the children's father and mother. Although the children (a set of twins) had lived with the grandparents for 9 or 10 years, ever since their birth, subsequent litigation terminated the grandparents' rights, with the South Dakota Supreme Court affirming that decision in *In Re Guardianship and Conservatorship of A.L.T. and S.J.T.*, 2006 SD 28, 712 N.W.2d 338. In this proceeding the trial court awarded the father attorney fees in the amount of \$11,963 – an amount which was less than half of the total attorney fees requested. The SD Supreme Court affirmed and also awarded father additional appellate attorney fees of \$2,356. The opinion is unanimous and is authored by Justice Zinter.

17. Attorney fee award reversed and remanded due to trial court's failure to make findings of fact and conclusions of law in *Smetana v. Smetana*, 2007 SD 5, 726 N.W.2d 887. In *Smetana v. Smetana*, 2007 SD 5, 726 N.W.2d 887, the trial court's partial award of attorney fees to wife was reversed and remanded because of failure of the trial court to make specific findings of fact and conclusions of law in connection with the award. But, Wife was awarded \$3,000 in appellate attorney fees. Unanimous opinion authored by Chief Justice Gilbertson.

18. Attorney fees incurred in securing return of property are recoverable as part of the damages permitted in a conversion action. In *Jacobson v. Leisinger*, 2008 SD 19, 746 N.W.2d 739, we find another round in the extended litigation between two parties who were previously married to each other. This decision resolves the issues in two separate appeals. (This ongoing controversy possibly qualifies as South Dakota's version of the War of the Roses.) There is a previous reported decision between these parties at 2002 SD 108, 651 N.W.2d 693 in which a punitive damage award of \$120,000 in favor of husband (in connection with a claim of malicious prosecution against wife for filing numerous frivolous actions) was rejected. Although he had the option of accepting a remitted award of \$25,000 or retrying the issue of punitive damages to a jury, he did neither. Furthermore, he did not return the \$120,000 to wife. (Apparently, husband had recovered the \$120,000 prior to the SD Supreme Court's decision in 2002). After time had expired for him to pursue his punitive damage claim on remand, wife sought return of the \$120,000. Husband resisted and then filed another claim against her, this time for defamation. Eventually, wife recovered the \$120,000 but did not recover attorney fees associated with her efforts to get her \$120,000 back. His claim for defamation was dismissed due to the statute of limitations. On appeal, the dismissal of his defamation claim was affirmed, but the SD Supreme Court held that wife is indeed entitled to attorney fees incurred in pursuing the litigation necessary to get a return of her \$120,000. This opinion breaks new ground on the issue of attorney fees recoverable, holding that although such fees are not generally recoverable in civil actions, they are recoverable as part of the damages incurred in a "conversion" case when those fees are "*incurred in recovering the property*" which is the subject of the conversion action. (italicized language is original in the Court's opinion, paragraph 14). This decision is unanimous with the Court's opinion being authored by retired Justice Robert Miller, sitting for Justice Meierhenry.

E. Residency, Cooling Off, Venue

1. Residency Requirement — Uniquely Developed in South Dakota

McCAY v. STATE

366 F.Supp. 1244
United States District Court, 1973.

BOGUE, District Judge.

This action was filed to contest the constitutional validity of the South Dakota durational residency requirement for divorce.¹ Plaintiffs are residents of South Dakota who had not complied with the durational residency requirements at the time of the commencement of this suit. The suit seeks to have the enforcement of the durational residency requirement enjoined. A three-judge district court was convened pursuant to 28 U.S.C. §§ 2281, 2284. A hearing was held upon the matter on October 12, 1973, in Sioux Falls, South Dakota.

We hold that the durational residency requirements contained in S.D.C.L. § 25-4-30 (1967) do not conform to constitutional standards and therefore must be declared invalid.

Durational residency requirements have been the subject of hot dispute in recent years. *See e.g. Dunn v. Blumstein*, 405 U.S. 330, 92 S.Ct. 995, 31 L.Ed.2d 274 (1972) (voting); *Shapiro v. Thompson*, 394 U.S. 618, 89 S.Ct. 1322, 22 L.Ed.2d 600 (1969) (welfare); *Smith v. Davis*, 350 F.Supp. 1225 (S.D.W.Va.1972) (bar examinations); *Cole v. Housing Authority of Newport*, 435 F.2d 807 (1st Cir. 1970) (public housing); *Crapps v. Duval County Hospital Authority*, 314 F.Supp. 181 (M.D.Fla.1970) (medical services). Durational residency requirements for divorce affect one of the most basic institutions of man and society. *See generally, Boddie v. Connecticut*, 401 U.S. 371, 91 S.Ct. 780, 28 L.Ed.2d 113 (1971); *Skinner v. Oklahoma*, 316 U.S. 535, 62 S.Ct. 1110, 86 L.Ed. 1655 (1942). In addition, there can no longer be a question but that the right to travel is embodied in the Fourteenth Amendment to the United States Constitution. *Edwards v. California*, 314 U.S. 160, 177, 62 S.Ct. 164, 86 L.Ed. 119 (1941) (Douglas, J., concurring); *Dunn v. Blumstein*, *supra*; *Shapiro v. Thompson*, *supra*.

The right to travel includes not only interstate but intrastate travel as well. *King v. New Rochelle Housing Authority*, 442 F.2d 646, 647 (2nd Cir. 1971); *Cole v. Housing Authority of City of Newport*, 435 F.2d 807, 809 (1st Cir. 1970).

As announced by the United States Supreme Court in *Dunn v. Blumstein*, 405 U.S. 330, 334-335, 92 S.Ct. 995, 999, 31 L.Ed.2d 274 (1972):

Durational residence laws *penalize* those persons who have traveled from one place

¹ South Dakota Compiled Laws, § 25-4-30 (1967).

"The plaintiff in an action for divorce must have been an actual resident in good faith of this state for one year, and of the county wherein such action is commenced for three months next preceding the commencement of said action"

to another to establish a new residence during the qualifying period. Such laws divide residents into two classes, old residents and new residents, and discriminate against the latter to the extent of totally denying them the opportunity to vote. (Emphasis added).

That same type of classification and discrimination is effected by South Dakota's divorce durational residency requirement. In *Shapiro v. Thompson*, 394 U.S. 618, 634, 89 S.Ct. 1322, 1331, 22 L.Ed.2d 260 (1969), while deciding that the right to travel was, in fact, a constitutionally-protected right, the Court concluded that:

Any classification which serves to *penalize* the exercise of that right, unless shown to be necessary to promote a compelling governmental interest, is unconstitutional. (Emphasis added).

* * *

The likelihood that the South Dakota courts will become divorce mills is contradicted by two factors. One is the fact that S.D.C.L. § 25-4-30 (1967) requires that a person who commences a divorce must be "an actual resident in good faith." In addition, S.D.C.L. § 25-4-34 (1967) provides a sixty-day waiting period before a divorce action may be heard by the court. Both certainly decrease the likelihood of fraud being perpetrated upon the state.

Federal Courts are extremely reluctant to meddle in areas that have traditionally been within the exclusive province of the states. States have always been considered a third party to every marriage. We agree completely with the Court in *Shiffman v. Askew*, 359 F.Supp. 1225, 1231 (M.D.Fla.1973) when it said:

First, it is indelibly ingrained in our federal system that the entire field of marriage and divorce is left to the individual regulation of the several states. Secondly, the states have a vital and individual interest in such regulation, not only with respect to the effective implementation of their own internal policies, but also in avoiding any intrusions upon the authority and policies of a sister state concerning the same marriage or the same parties.

This Court means no intrusion upon those areas traditionally reserved to the states. The ruling of this Court is limited exclusively to the question of whether a one-year residency requirement for the state and a three-month requirement for the county, conform with constitutional dictates. We find that they do not.⁴

We find that the durational residency requirements embodied in S.D.C.L. § 25-4-30 (1967) are not "necessary" nor "tailored" sufficiently to satisfy the Due Process and Equal Protection clauses of the Fourteenth Amendment to the Constitution.

⁴Durational residency requirements for divorce have been the subject of considerable federal litigation recently. *Sosna v. Iowa*, 360 F.Supp. 1182 (N.D.Ia.1973) (three judge) upholding a one-year residency requirement. . .

NOTES

1. Note that the statute under scrutiny in *McCay* is reproduced in footnote 1 of the opinion.
2. The State of South Dakota appealed the decision in *McCay* to the U.S. Supreme Court.
3. In the meantime, the South Dakota legislature amended SDCL 25-4-30 in 1974 so as to delete the durational residency requirements of one year in the state and three months in the county. From 1974 until 2008, the statute provided as follows:

25-4-30 Residence requirements for divorce or separate maintenance. The plaintiff in an action for divorce or separate maintenance must, at the time the action is commenced, be a resident of this state, or be stationed in this state while a member of the armed services, and in order that each party be entitled to the entry of a decree or judgment of divorce or separate maintenance, that residence or military presence must be maintained until the decree is entered.

4. In the case cited in footnote 4 of the *McCay* opinion, the U.S. Supreme Court upheld the Iowa durational residency requirements in the context of requirements necessary in order to file for divorce. *Sosna v. Iowa*, 419 U.S. 393 (1975). As a result of the *Sosna* opinion, the judgment in *South Dakota v. McCay* was reversed and the case was remanded with directions to dismiss it as moot. 420 U.S. 904, 95 S.Ct. 819 (1975).

5. In *Sosna v. Iowa*, it was reported that 48 states imposed a durational residency requirement as a condition for instituting a divorce action, ranging from six weeks (Nevada & Idaho) to two years (Massachusetts & Rhode Island). The most common period was one year, as seen in South Dakota and in Iowa. 95 S.Ct. at 560.

6. Despite the ultimate victory attained by the Attorney General for the State of South Dakota in its appeal, SDCL 25-4-30 remains today in the same form as amended in 1974.

7. **Requirement of continued residence or military presence in state eliminated from jurisdictional residency requirement needed to bring action for divorce or separate maintenance.** The 2008 legislature amended SDCL 25-4-30 so as to provide as follows:

25-4-30. Residence requirements for divorce or separate maintenance. The plaintiff in an action for divorce or separate maintenance must, at the time the action is commenced, be a resident of this state, or be stationed in this state while a member of the armed services. Subsequently, the plaintiff need not maintain that residence or military presence to be entitled to the entry of a decree or judgment of divorce or separate maintenance.

E. Residency, Cooling Off, Venue

2. Cooling Off Period

ZWANZIGER v. ZWANZIGER

Supreme Court of South Dakota, 1979.
286 N.W.2d 123.

PER CURIAM.

Mervyn E. Zwanziger was granted a divorce from Thelma Zwanziger on October 19, 1976, sixty days after Mrs. Zwanziger was served with a summons and complaint. Mrs. Zwanziger challenges the validity of the divorce decree, arguing that it was entered one day prematurely, depriving the trial court of subject matter jurisdiction. We agree.

SDCL 25-4-34 provides, in part, that "(a)n action for divorce or separate maintenance shall not be heard, tried, or determined by the court until at least sixty days have elapsed from the completed service." The sixty-day waiting period is computed by excluding the day when service is completed and including the last day of the period unless the last day is a Saturday, Sunday, or legal holiday. SDCL 15-6-6(a).

Mrs. Zwanziger was served on Friday, August 20, 1976; the judgment of divorce was entered on Tuesday, October 19, 1976. October 19 was the sixtieth day after service was completed, excluding August 20, the day of service. SDCL 15-6-6(a). SDCL 15-6-6(a) and SDCL 25-4-34 require, however, that a divorce action may be tried, heard, and determined "at least sixty days" after service is completed; the earliest day that can legally be done is the sixty-first day after service, excluding the day of service. The trial court lacks subject matter jurisdiction until that time.

Our interpretation of SDCL 25-4-34 and SDCL 15-6-6(a) is consistent with the conclusions reached in Kansas and Nebraska. In *Boring v. Boring*, 155 Kan. 99, 122 P.2d 743 (1942), the Kansas Supreme Court was faced with a similar issue: whether a decree of divorce was premature because it was heard by the trial court on the sixtieth day. The Kansas computation statute was similar to SDCL 15-6-6(a), and its divorce statute provided that "(n)o hearing shall be had in a divorce suit until, at least, sixty days after the filing of the petition" G.S. 1935, 60-1517.

The Kansas Supreme Court held that the statute required sixty full, clear days before the final decree could be heard or tried. The court said that "[t]he divorce statute does not prescribe the time *within* which, or during which, a hearing for divorce shall be, or may be, had but expressly prohibits such hearing until, *at least*, sixty days *after* the filing of the petition." 122 P.2d at 745. (emphasis in original)

The Nebraska Supreme Court came to the same conclusion in *Garrett v. State*, 118 Neb. 373, 224 N.W. 860 (1920), and noted that:

[W]here a statute prohibits a judge or court from trying a case before a certain time, and the court or judge tries said case before the end of the time so limited, the decree or judgment therein rendered is void and may be attacked collaterally. A decree of court which is void

for want of jurisdiction may be attacked in any proceeding in which any person seeks to assert a right under it. . . .

. . . [T]he requirement of the statute is, as we have seen, jurisdictional, and the failure to observe that requirement results in lack of power and authority.

224 N.W. at 862.

In the case before us the divorce was heard and granted one day before it legally could have been granted. The sixty-day waiting period in SDCL 25-4-34 is jurisdictional. The decree of divorce is therefore void.

The judgment is reversed.

NOTES

1. SDCL 25-4-34 is reproduced in full here:

25-4-34. Waiting period before trial of divorce and separate maintenance actions -- Temporary orders and preliminary proceedings during waiting period -- Validity of proceedings commenced before 1964. An action for divorce or separate maintenance shall not be heard, tried, or determined by the court until at least sixty days have elapsed from the completed service of the plaintiff's summons and complaint therein. During said waiting period the court may issue all orders required to effectuate the purposes expressed in §§ 25-4-38 and 25-4-45 or to protect any of the parties to the action during the pendency thereof.

This section shall not be construed to prohibit the taking of depositions, examination of parties before trial, the granting of orders respecting discovery, or proceedings to perpetuate testimony, prior to the hearing or trial of said action by the court.

Nothing in this section shall operate to nullify any action or proceeding for divorce commenced prior to July 1, 1964, notwithstanding the fact that the final judgment or decree in such action or proceeding is entered therein after said date.

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2. The issue was revisited by the South Dakota Supreme Court in 1995 in *Jopling v. Jopling*, 526 N.W.2d 712 (S.D. 1995). In *Jopling*, a divorce decree, approving the parties' stipulated agreement was entered on 7/22/91, which was the 60th day from the date service was admitted by wife. Nearly two years later, upon wife's motion, the trial court set aside the decree on the jurisdictional ground that the statutorily required waiting period permits a decree only after 60 days have elapsed, meaning the trial court acted one day too soon. The trial court set aside the decree and gave the wife a more favorable distribution of property and also imposed an alimony obligation on husband. The South Dakota Supreme Court affirmed, holding that the 1991 decree was "void" and that wife was under no obligation to bring her challenge within a reasonable time.

E. Residency, Cooling Off, Venue

3. Venue

Consider SDCL 25-4-30.1 which is reproduced here:

25-4-30.1 Venue of action -- Change by defendant. An action for divorce or separate maintenance may be commenced in the county of residence of either party, subject to the right of the defendant to have the place of trial changed to the county where the defendant resides.

QUESTION and NOTE

QUESTION: May a South Dakota trial court transfer a divorce case out of state? No, according to *Lustig v. Lustig*, 1997 SD 24, 560 N.W. 2d 239 (S.D. 1997). Neither SDCL 25-4-30.1 (reproduced above) nor SDCL 15-5-11, the “transfer of venue” statute, permit a transfer out of state. The trial court’s dismissal of a South Dakota divorce proceeding was reversed, although the trial court’s deferral of the custody determination in favor of a Minnesota court was affirmed.

NOTE: South Dakota Supreme Court again finds reversible error for trial court to dismiss divorce action in favor of another court’s jurisdiction. The case of *Langdeau v. Langdeau*, 2008 SD 44, 751 N.W.2d 722 contains a hodgepodge of issues dealing with child custody jurisdiction, divorce jurisdiction, tribal jurisdiction, comity recognition and SD’s recently adopted version of the UCCJEA.

H is an enrolled member of Lower Brule Sioux Tribe. W is non-Indian. H & W were married and resided on tribal land with two children (ages 9 and 6) born of the marriage. The children were either enrolled or eligible for enrollment with the tribe. Taking the children with her, W moved away from the reservation. Five days, on February 27, 2007. W filed suit for divorce in state court. H was served with process from W’s state court action on that same day. W also filed for domestic abuse protection in state court on the next day, February 28, 2007. H filed for divorce and associated interim relief in tribal court on February 28, 2007. W was served with process from H’s tribal court action on that same day.

The state court judge subsequently dismissed the state court divorce action and W’s *ex parte* temporary protection order.

As to the trial court’s dismissal of the divorce action, the Supreme Court held such was reversible error. Since W was a non-Indian, state court had concurrent jurisdiction over the divorce action itself. The Court stated, “[H]ere [W] was a resident of South Dakota and the State *at all times* had both subject matter and personal jurisdiction over the dissolution of her marriage to [H].” ¶ 22 (emphasis original with the Court). This is especially true since W’s divorce action was filed *first* in time. This holding is consistent with and follows this Court’s prior ruling in *Lustig v. Lustig*, 1997 SD 24, 560 N.W.2d at 245 wherein the trial court was upheld in its decision to defer the custody determination of the parties’ children to a Minnesota court, but was reversed for dismissing the underlying divorce action.

Postjudgment Change of Venue

The venue statute for divorce actions, SDCL 25-4-30.1, which is set forth above, is found in the SDCL 25-4 which is entitled “Divorce and Separate Maintenance.” There is another venue statute (located in SDCL 15-5 entitled “Venue of Actions”) which permits a change of venue in postjudgment actions as follows:

15-5-14. Change of venue in postjudgment divorce, paternity, or separate maintenance actions.

The court may change the venue of trial or hearing in postjudgment divorce, paternity, or separate maintenance actions if:

- (1) The parties no longer reside in the county where the action was decided; or
- (2) The parties agree; or
- (3) Convenience of witnesses or the ends of justice would be promoted by the change.

"One of the main reasons wealth makes people unhappy is that it gives them too much control over what they experience. They try to translate their own fantasies into reality instead of tasting what reality itself has to offer."

Philip Slater

Chapter Eight

CUSTODY

A. Introductory Comments and Relevant Statutes

The following extract comes from Roger M. Baron, **CHILD CUSTODY DETERMINATIONS IN SOUTH DAKOTA: HOW SOUTH DAKOTA COURTS DECIDE CHILD CUSTODY CASES**, 40 South Dakota Law Review 411, 411-12 (1995):

The task of delineating the rules of law for child custody decisions is a seemingly impossible one. Child custody decisions are inextricably related to factual determinations and personalities – the personalities of the parties, the children, and the court. Indeed, the human and personal nature of the law is no more apparent in any area of practice than in the area of family law and, particularly, in the matter of child custody.

An accurate presentation of the law on child custody must begin with the recognition that the *real* determinative factors are often hidden or inadequately expressed by the courts. At best, one can only talk in terms of guidelines and principles which are utilized or at least mentioned by the courts. These guidelines can be recited, examined, and employed by the courts in custody determinations. In analyzing the cases, one may find a specific principle served as the basis for a particular decision; or, just as easily, one may find that although a specific principle was mentioned by the court, the decision was actually influenced by other considerations.

Hindsight is, of course, twenty-twenty. It is easy to characterize any particular case as following a specific guideline or principle. In looking back at a case which purports to stand for a particular principle, one will likely find that case carried overtures of a number of other principles which could just as easily have been the basis for a contrary decision. In looking forward to cases awaiting resolution, the determination of which principle or guideline will be followed is a matter not often capable of reliable prediction. All of this is further complicated by the fact that the law is constantly subject to reinterpretation, change, and even misapplication.

Nevertheless, “the more things change, the more they stay the same.” This simple statement has special meaning in family law. Despite all the changes, interpretations, and perceived misapplications of law, certain constants in child custody determinations have developed.

There are very few statutes in South Dakota which give direction to the trial court as to how to go about making a custody determination. The most important of these statutes were previously codified under the Probate and Guardianship chapters in South Dakota. These sections, SDCL 30-27-19 and 30-27-23, were a part of the 1877 Revised Codes of the Territory of Dakota. See generally Lafave, *Origins and Evolution of the "Best Interests of the Child" Standard*, 34 S.D.L.Rev. 459, 470 (1989).

In 1991 the South Dakota legislature repealed SDCL 30-27-19 and 30-27-23. Apparently the repeal was inadvertent and was included as part of a massive repeal accompanying a major revision of the probate code.

The statutes, as they appeared before their repeal, are shown below:

30-27-19. General considerations in selecting guardian for minor. In awarding the custody of a minor or in appointing a general guardian, the court or judge is to be guided by the following considerations:

- (1) By what appears to be for the best interests of the child in respect to its temporal and its mental and moral welfare; and if the child be of a sufficient age to form an intelligent preference, the court or judge may consider that preference in determining the question;
- (2) As between parents adversely claiming the custody or guardianship, neither parent shall be given preference over the other in determining custody.

30-27-23. Persons entitled to preference in custody of minors. Of two persons equally entitled to the custody in other respects, preference is to be given as follows:

- (1) To a parent;
- (2) To one who was indicated by the wishes of a deceased parent;
- (3) To one who already stands in the position of a trustee of a fund to be applied to the child's support;
- (4) To a relative.

In 1994, the South Dakota legislature reenacted the gist of former SDCL 30-27-19 as an addendum to SDCL 25-4-45. This action was requested by the Chief Justice of South Dakota Supreme Court and was sponsored by the Senate Judiciary Committee.

1. Current South Dakota Statutes

CHAPTER 25-4: DIVORCE AND SEPARATE MAINTENANCE

25-4-33.1 Automatic temporary restraining order upon service — Modification or revocation.

Upon the filing of a summons and complaint for divorce or separate maintenance by the plaintiff, and upon personal service of the summons and complaint on the defendant, a temporary restraining order shall be in effect against both parties until the final decree is entered, the complaint dismissed, or until further order of the Court:

- (1) Restraining both parties from transferring, encumbering, concealing or in any way dissipating or disposing of any marital assets, without the written consent of the other party or an order of the court, except as may be necessary in the usual course of business or for the necessities of life, and requiring each party to notify the other party of any proposed extraordinary expenditures and to account to the court for all extraordinary expenditures made after the temporary restraining order is in effect;
- (2) Restraining both parties from molesting or disturbing the peace of the other party; and
- (3) Restraining both parties from removing any minor child of the parties from the state without the written consent of the other party or an order of the court.

The provisions of the temporary restraining order shall be printed upon the summons and shall become an order of the court upon fulfillment of the requirements of service. However, nothing in this paragraph precludes either party from applying to the court for any further relief or for the modification or revocation of any order.

Source: SL 1986, ch 212.

25-4-45 Child custody provisions — Modification — Preference of child. In an action for divorce, the court may, before or after judgment, give such direction for the custody, care, and education of the children of the marriage as may seem necessary or proper, and may at any time vacate or modify the same. In awarding the custody of a child, the court shall be guided by consideration of what appears to be for the best interests of the child in respect to the child's temporal and mental and moral welfare. If the child is of a sufficient age to form an intelligent preference, the court may consider that preference in determining the question. As between parents adversely claiming the custody, neither parent may be given preference over the other in determining custody.

Source: CivC 1877, § 72; CL 1887, § 2583; RCivC 1903, § 91; RC 1919, § 164; SDC 1939, § 14.0724; 1994, ch 192.

25-4-45.4. Divorce - Counsel appointed for child in certain divorce or custody proceedings - Duty of counsel - Assistance - Costs. Notwithstanding the provisions of §26-7A-31 if the court determines mediation as provided in §25-4-56 is not feasible the court may appoint counsel for any child involved in any divorce or custody proceeding, in which the child is alleged to be neglected or abused, or if a parent, guardian or custodian request counsel be appointed in such proceeding and if the court determines that it is in the best interest of the child to have counsel appointed for the child. The counsel shall be charged with representation of the child's best interests and may not be counsel for any other party involved. The court may designate

other persons who may or may not be attorneys to assist in the performance of the counsel's duties. The court shall allocate the cost of the appointed counsel between the parents, guardian or custodian of the child.

25-4-45.5. Consideration of domestic abuse and assault conviction in custody award. In awarding custody involving a minor, the court shall consider:

- (1) A conviction of domestic abuse as defined in subdivision 25-10-1(1); or
- (2) A conviction of assault against a person as defined in subdivision 25-10-1(2), except against any person related by consanguinity, but not living in the same household; or
- (3) A history of domestic abuse.

The conviction or history of domestic abuse creates a rebuttable presumption that awarding custody to the abusive parent is not in the best interest of the minor. A history of domestic abuse may only be proven by greater convincing force of the evidence.

Source: SL 1997, ch 156, § 1; SL 2008, ch 122, § 1.

25-4-45.6 Consideration of conviction for death of other parent in custody award. In awarding custody or granting rights of visitation involving a minor, the court shall consider a conviction, excluding vehicular homicide, of a parent for the death of the other parent. A conviction for the death of the other parent creates a rebuttable presumption that awarding custody or granting visitation to the convicted parent is not in the best interests of the minor.

Source: SL 1997, ch 156, § 2.

25-4-45.7. Protective orders and arrest reports considered in determining existence of history of domestic abuse. For purposes of this chapter, in determining whether a history of domestic abuse exists, the court's consideration may include the issuance of a protection order against a parent or any arrest report of a parent following the response of law enforcement to a report of domestic abuse as defined in subdivision 25-10-1(1).

Source: SL 2008, ch 122, § 2.

25-4-56.Custody and visitation disputes--Mediation order --Exceptions --Investigation -- Allocation of costs. In any custody or visitation dispute between parents, the court shall order mediation to assist the parties in formulating or modifying a plan, or in implementing a plan, for custody or visitation and shall allocate the cost of the mediation between the parties. However, mediation shall not be ordered if:

- (1) One of the parents has been convicted of domestic abuse as defined in subdivision 25-10-1(1); or
- (2) One of the parents has been convicted of assault against a person as defined in subdivision 25-10-1(2), except against any person related by consanguinity, but not living in the same household; or
- (3) One of the parents has a history of domestic abuse; or
- (4) Mediation is not readily available or the court determines that mediation is not appropriate based on the facts and circumstances of the case.

The court may also direct that an investigation be conducted to assist the court in making a custody or visitation determination and shall allocate the costs of such investigation between the parties. A history of domestic abuse may only be proven by greater convincing force of the evidence.

Source: SL 1989, ch 218; SDCL Supp. § 26-5A-31; SL 1994, ch 193; SL 2008, ch 123, § 1.

NOTE: 2010 legislation requires that false or groundless reports of abuse shall be considered in deciding best interests of child.

HB 1228 establishes an “ancillary standard in determining the best interests of a child” which draws into consideration false or groundless reports of child abuse. SDCL 25-4 is amended by providing a new section which states,

SDCL 25-4-45.8 Consideration of resorting abuse falsely or without good cause in custody award. In determining what is in the best interest of any particular child, the court shall consider whether the person whose conduct is under review has ever attempted to influence a child custody hearing by, falsely or without good cause, reporting pursuant to chapter 26-8A that some other person has committed sexual abuse, physical abuse, or abuse and neglect against the child or a sibling of the child. Nothing in this Act effects the confidentiality of records and files relating to reports of child abuse or neglect maintained by the Department of Social Services pursuant to chapter 26-8A.

CHAPTER 25-4A: CUSTODY AND VISITATION RIGHTS

25-4A-9 "Standard guidelines" defined. For the purposes of §§ 25-4A-9 to 25-4A-16, inclusive, the term, standard guidelines, means the parenting guidelines established by court rules promulgated by the South Dakota Supreme Court pursuant to § 25-4A-10.

Source: SL 2002, ch 125, § 1; SL 2008, ch 126, § 1.

25-4A-10. Supreme Court to promulgate guidelines for noncustodial parenting time. The South Dakota Supreme Court shall promulgate court rules establishing standard guidelines to be used statewide for minimum noncustodial parenting time in divorce or separate maintenance actions or any other custody action or proceeding. The standard guidelines shall provide a framework for noncustodial parenting time including frequency and time for noncustodial parenting time; hours or days of noncustodial parenting time; definitions for weekends, holidays, birthdays, and other special occasions; and time periods for summer noncustodial parenting time. In establishing the standard guidelines, the court may consider varying ages and circumstances of children and treat varying ages and circumstances differently.

Source: SL 2002, ch 125, § 2; SL 2008, ch 126, § 2.

(NOTE: The Parenting Guidelines (formerly called “Child Visitation Guidelines”) established by the South Dakota Supreme Court (as specified in SDCL 25-4A-9 and 25-4A-10 above) are reproduced in the subchapter on “Visitation Rights”)

25-4A-11. Plaintiff in custody action to file and serve guidelines--Guidelines as court order--Custody of minors. Upon the filing of a summons and complaint for divorce or separate maintenance or any other custody action or proceeding, the plaintiff shall also file and serve upon the defendant a copy of the standard guidelines. The standard guidelines attached to the summons shall become an order of the court upon fulfillment of the requirements of service. Any minor child of the marriage shall remain in the custody of the parent who has been the primary caregiver for the minor child for the majority of time in the twelve months preceding the filing of the summons and complaint, unless the parties agree otherwise. The standard guidelines shall apply and continue in effect, unless the parties agree, or the court orders otherwise. Imposition of the standard guidelines creates no presumption as to who may be awarded custody at any hearing.

Source: SL 2002, ch 125, § 3; SL 2008, ch 127, § 1.

25-4A-12 Visitation agreement other than standard guidelines -- Requirements. Any agreement by the parties for visitation other than the standard guidelines shall be in writing, signed by both parties and filed with the court. The agreed plan shall be approved by court order and replace the standard guidelines or any plan previously filed.

Source: SL 2002, ch 125, § 4.

25-4A-13 Objections to custody or visitation order -- Hearing -- Temporary order. If either party objects to the initial custody arrangement in § 25-4A-11 or the standard guidelines, the court shall order a hearing which shall be held not later than thirty days after the date of the objection. The court shall issue its temporary custody and visitation order after considering the best interests of the child consistent with the provisions of § 25-4-45.

Source: SL 2002, ch 125, § 5.

25-4A-14 Standard guidelines subject to certain court orders. The standard guidelines are subject to any provision established by a South Dakota state court in the following: a temporary or permanent domestic protection order, an order arising out of an abuse or neglect proceeding, a bond condition arising out of a criminal case, and an order in any other proceeding affecting child custody or support.

Source: SL 2002, ch 125, § 6.

25-4A-15 Attorney fees and costs. The court may order either party to pay attorney fees and costs in an action filed under §§ 25-4A-9 to 25-4A-16, inclusive, in accordance with § 15-17-38 or any other applicable statute.

Source: SL 2002, ch 125, § 7.

25-4A-16 Parents responsible for child support. The parents are responsible for payment of child support in accordance with § 25-7-6.1.

Source: SL 2002, ch 125, § 8.

25-4A-16.1. Request for implementation of standard guidelines--Objection--Hearing--Order.

Subject to the jurisdictional and procedural provisions of chapter 26-5B, any parent subject to a court order of this state or subject to the jurisdiction of a court of this state pursuant to chapter 26-5B relating to visitation, custody, or child support may request the court to enter an order implementing the standard visitation guidelines. If the request is made in a child support proceeding, compliance with chapter 26-5B, including appropriate notice and an opportunity to be heard, if not previously provided, is required. The request shall be in writing and shall include a copy of the existing order establishing custody or visitation and provide a current address of the responding party. Upon filing of the written request, the moving party shall serve a copy of the standard guidelines, together with a copy of the request and provide notice that absent an objection, the guideline visitation shall be imposed. The notice shall provide instructions as to the manner in which objections may be made. The service of such notice shall be deemed complete when an affidavit of the service of such notice and of the particular mode thereof, duly signed and verified by the person or officer making the service, shall have been filed with the court and such record or affidavit shall be presumptive evidence of the completed service of the notice herein required. If a party objects to the imposition of the standard guidelines within ten days of service, the court shall conduct an expedited hearing as soon as practical. Based upon the evidence presented at the hearing, the court may order the parties to abide by the standard visitation guidelines or may order any other relief as it deems appropriate.

Source: SL 2006, ch 140, § 1; SL 2008, ch 128, § 1; SL 2009, ch 278 (Supreme Court Rule 08-08), eff. Nov. 1, 2008.

CHAPTER 25-5: PARENT AND CHILD

25-5-7.1 Order for joint legal custody -- Factors for court's consideration. In any custody dispute between parents, the court may order joint legal custody so that both parents retain full parental rights and responsibilities with respect to their child and so that both parents must confer on major decisions affecting the welfare of the child. In ordering joint legal custody, the court may consider the expressed desires of the parents and may grant to one party the ultimate responsibility over specific aspects of the child's welfare or may divide those aspects between the parties based on the best interest of the child. If it appears to the court to be in the best interest of the child, the court may order, or the parties may agree, how any such responsibility shall be divided. Such areas of responsibility may include primary physical residence, education, medical and dental care, and any other responsibilities which the court finds unique to a particular family or in the best interest of the child.

Source: SL 1989, ch 217, § 1.

25-5-7.2 Residential parent to make routine decisions concerning child. During the time a child, over whom the court has ordered joint legal custody to both parents, resides with either parent, that parent shall decide all routine matters concerning the child.

Source: SL 1989, ch 217, § 2.

25-5-7.3. Parents to have equal access to records pertaining to child--Name and address of both parents to be listed. Access to records and information pertaining to a minor child, including, but not limited to, medical, dental, orthodontia, optometric and similar health care, and school records shall be made equally available to both parents. Counseling, psychiatric, psychotherapy, and other records subject to confidentiality or privilege shall only be released in accordance with state and federal law; but, if available to one parent, shall be available to both. The parents shall make reasonable efforts to ensure that the name and address of the other parent is listed on all such records.

Source: SL 1989, ch 217, § 3; SL 2008, ch 129, § 1.

25-5-7.4. Written applications to enroll child in activity or program to provide name and address of other parent. If either parent enrolls the child in any social, beneficent, religious, or peer group activity, service, benefit, or program for which written application is required, the enrolling parent shall provide the name and address of the other parent on, or supplementary to, the application. The provisions of this section do not apply to any written application for any type of annuity or insurance.

Source: SL 2008, ch 129, § 2.

25-5-7.5. Access to records and application requirements not applicable to certain parents. The provisions of §§ 25-5-7.3 and 25-5-7.4 do not apply in any case in which a court has:

- (1) Terminated the rights of either parent; or
- (2) Restrained either parent, by court order, from contact with the child.

Moreover, a court of competent jurisdiction may determine that the application of § 25-5-7.3 or 25-5-7.4, or both, is inappropriate under the facts and circumstances of any particular case.

Source: SL 2008, ch 129, § 3.

25-5-8. Father's rights not superior to mother's while separated. The husband and father, as such, has no rights superior to those of the wife and mother in regard to the care, custody, education, and control of the children of the marriage, while such husband and wife live separate and apart from each other.

Source: SDC 1939, § 14.0305.

25-5-9. Habeas corpus to award child custody when parents separated without divorce--Rules of law governing. When husband and wife live separate and apart from each other without being divorced, the circuit court or judge thereof, upon application of either, may grant a writ of habeas corpus to inquire into the custody of any minor unmarried child of the marriage, and may award the custody of such child to either for such time and under such regulations as the case may require. The decision of the court or judge must be guided by the rules provided by law for awarding custody of a minor or appointing guardians.

Source: SDC 1939, § 14.0305.

25-5-10. Custody and earnings of children born out of wedlock. The mother of an unmarried minor born out of wedlock is entitled to its custody, services, and earnings subject to the court's right to award custody of the child to either parent, considering the best interests of the child as to its temporal, mental, and moral welfare.

Source: SDC 1939, § 14.0304; SL 1982, ch 192; SL 1991, ch 210, § 7.

NOTE: Abuse and neglect registry screening permitted for guardian ad litem and other advocacy specialists. The 2008 legislature amended SDCL 26-8A-12.2 to permit the DSS do a search of the Abuse and Neglect Registry for persons who serve as guardian ad litem or as child advocacy specialists. Many such persons serve on a volunteer basis through CASA. This screening by DSS would determine whether there have been any substantiated cases of Abuse or Neglect for the subject of the search. The testimony in support of this legislation indicated that there are currently Eight (8) Court Appointed Special Advocate (CASA) groups in South Dakota and that some courts utilize guardian ad litem in child custody cases. This legislation does not mandate such screening for all such persons, but authorizes screening where a request is made. The subject of the screening is required to give written consent to the screening and, if consent is denied, then the subject is disqualified from employment or appointment.

2. A Word About “*Parens Patriae*”

The doctrine of *parens patriae* is founded in the notion that the court ought to provide protection for those who cannot protect themselves. This doctrine may be useful in situations involving aged persons, incompetent persons and children. As a result of the doctrine of *parens patriae* a court may exercise greater control over a custody case than it might otherwise exert in a routine civil case. The South Dakota Supreme Court has recognized that this doctrine requires the trial court to insist that adequate evidence be produced in making custody determinations. *Williams v. Williams*, 425 N.W.2d 390, 393 (S.D. 1988) (reversing and remanding disposition hearing, insisting that when the parties and their lawyers “fail to fulfill [their] obligation [to present evidence], trial courts, in their role of *parens patriae* of the child, must insist that more be done [such as requiring home studies and interrogating witnesses]. . .”).

In a more recent decision, the South Dakota Supreme Court relied on the doctrine of *parens patriae* to derail a pending appeal (from a custody determination) to remand the case for a factual determination of sexual abuse allegations that came to light after the trial. *Swenson v. Swenson*, 529 N.W.2d 901, 904 (S.D. 1995).

The doctrine of *parens patriae*, together with the many other issues in this chapter are thoroughly discussed in Roger M. Baron, *Child Custody Determinations in South Dakota: How South Dakota Courts Decide Child Custody Cases*, 40 South Dakota Law Review 411 (1995).

Although not articulated as a decision specifically under the doctrine of *parens patriae*, the underlying principle is seen in the case of *Meldrum v. Novotny*, 1999 SD 127, 599 N.W.2d 651 where the trial court was reversed for its failure to appoint an attorney for a nine year old boy *prior to* a hearing to determine the custodial placement of the boy. The situation was unique because the dispute was between the boy’s de facto father and his natural father. The boy’s mother had died and he was living with his step-brother, under the care of the step-brother’s father. This de facto father figure would have been the “step-

father” had he been married to his mother, however they had not wed. Nonetheless, the de facto father had raised the boy as his own, together with the boy’s step-brother. The SD Supreme Court stated, “Under the unique circumstances of this case, we conclude the circuit court abused its discretion in not appointing an attorney for the child before proceeding with an evidentiary hearing, a hearing that would permanently determine the child’s future. This child had no representation at trial in a case where his mother, his primary custodian, had died, and his father had no regular contact with him for years.” (Quoted material taken from paragraph no. 12, 599 N.W.2d at 654.) The Court also observed that “At every stage in child custody proceedings, ‘our brightest beacon’ is the best interest of the child” and “this standard applies when considering whether a child requires an attorney” under the discretionary statutory provision of SDCL 25-4-45.4. (Paragraph no. 10, 599 N.W.2d at 653.)

NOTES

1. Parens Patriae used in A & N proceeding. The doctrine of *parens patriae* was recognized again by the SD Supreme Court in the case of *Interest of L.S.*, 2006 SD 76, 721 N.W.2d 83 . In this case, the state was permitted to prosecute an abuse and neglect proceeding in Minnehaha County following judicial dismissal of a substantially similar proceeding in Lincoln County. The majority opinion holds that res judicata should not apply in special situations such as this where a child's welfare is concerned. The state acts in the *parens patriae* role and there is an ongoing duty for the court to look at the children's welfare. According to the majority, "A hyper-technical application of res judicata is simply not appropriate in these extraordinary circumstances... the children's welfare still demands that we place greater emphasis on their protection than on a judicial policy against repeat litigation." ¶ 29.

2. Appellate review not based on “how to decide the case.” The South Dakota Supreme Court reminded us that it does not decide most of the issues in a divorce case based on “how it would decide” the case, but rather on the basis of whether the trial court “could reasonably reach the conclusion it did in view of the applicable law and the circumstances of the case.” This was an important point set forth in the beginning of the opinion handed down in *Maxner v. Maxner*, 2007 SD 30, 730 N.W.2d 619, a case where we find a pro se appeal by the husband in a divorce proceeding. The wife did not make an appearance on the appeal. The SD Supreme Court affirmed all aspects of the trial court’s ruling in a unanimous opinion by Justice Konenkamp. This point is made in ¶¶ 10-12 and it is made in connection with the issues of custody, division of property and alimony.

B. The “Best Interests of the Child”

1. Traditional Applications

NOTE

The following case was decided under a former version of SDCL 30-27-19 (which is set forth in the opinion). In 1979, this statute was amended so as to remove the “tender years presumption” for the mother and the “preparation for labor” presumption for the father.

APPLICATION OF G. K.

Supreme Court of South Dakota, 1977.
248 N.W.2d 380.

WINANS, Justice.

Defendant appeals from a judgment granting custody of her child to its natural father. This is the type of case in which the courts are expected to act with Solomon-like wisdom. Any solution reached in a custody case is seldom totally satisfactory. We affirm.

G. K., the natural father of T. T. G., a child, petitioned for a writ of habeas corpus in circuit court seeking custody of the child from M. G., its natural mother. Defendant's return of the writ alleged that the mother of an illegitimate child is entitled to sole custody and prayed that the proceedings be dismissed. Pursuant to a motion to quash the writ the matter came on for hearing. The lower court awarded custody of the child to the father. Defendant seeks to have the judgment reversed; in the affirmative, she would have us remand for further inquiry into her present fitness.

The child is the product of unfortunate circumstances. The contestants in the matter are his unmarried, natural parents. M. G. is a resident of Mitchell, South Dakota. G. K. is now a resident of Kemmerer, Wyoming, but at the time of T. T. G.'s conception was attending college in Mitchell. The couple met in early 1972. He was 26 years old and she was 17. As a result of their relationship, M. G. became pregnant. G. K. learned of the pregnancy shortly before his graduation in August 1972. He secured employment in Boise, Idaho and before he left for that job the couple discussed the possibility of M. G. joining him there. It was financially infeasible at that time, however, so G. K. gave her money for a rental trailer in Mitchell until he could afford to bring her to Idaho.

G. K. stayed in frequent contact with M. G. and in September offered to bring her to Idaho. She requested a delay because of the Corn Palace festivities. Subsequent conversations also produced requests for delay and finally in late October M. G. refused to go to Idaho. G. K. had been sending her money throughout this period. Although M. G. refused to join him, G. K. continued to send money. T. T. G. was born on April 5, 1973. G. K. voluntarily paid the expenses incident to the birth and has contributed to the support of the child on a monthly basis since that time. G. K. visited the child on his return trips to Mitchell whenever M. G. permitted him to do so.

T. T. G. has resided with his mother since his birth. M. G. has lived at various locations in Mitchell, spent three months in Georgia with her brother, and moved into her mother's home in April or May 1974.¹ In June 1974 the maternal grandmother called G. K. and requested that she receive the support payments because M. G. had been keeping all or part of the money herself. Thereafter G. K. added the grandmother's name to the support payments.

In August or September 1974 M. G. was hospitalized as a result of either cutting her wrists or taking an overdose of pills. In January 1975 she was arrested because of an altercation in her mother's home; she was charged with resisting arrest and assaulting a police officer. Pursuant to an agreement with the presiding judge, sentence was withheld because M. G. committed herself to Yankton State Hospital for thirty days of treatment for alcoholism. She failed to remain the full thirty days.

When M. G. left the hospital, she went to Cedar Rapids, Iowa to visit her boyfriend by whom she was pregnant at the time of the hearing. Except for a brief period when M. G. returned to Mitchell, T. T. G. remained in the care of his grandmother until May 1975. At that time M. G. returned and moved into a house with her son. She has never been employed; she subsists on the payments provided by G. K. and on aid provided by the Welfare Department in Davison County. In May 1975 G. K. petitioned for a writ of habeas corpus to gain custody of T. T. G.

Illegal detention is the basis for issuance of a writ of habeas corpus. When custody of a child is involved, however, the scope of the writ is enlarged and the court's equitable powers over the child are invoked. *Application of Habeck*, 1955, 75 S.D. 535, 69 N.W.2d 353. See also, *Vanden Heuvel v. Vanden Heuvel*, 1963, 254 Iowa 1391, 121 N.W.2d 216; *Green v. Green*, 1965, 178 Neb. 207, 132 N.W.2d 380; *In re Mark T.*, 1967, 8 Mich.App. 122, 154 N.W.2d 27; *In re Richard*, 1975, 14 Cal.3d 783, 122 Cal.Rptr. 531, 537 P.2d 363. As is true in all custody cases, the best interest and welfare of the child is the controlling concern. *Application of Habeck, supra*; *In re One Minor Child*, 1972, Del.Supr., 295 A.2d 727.

SDCL 21-27-5 provides:

“The court or judge to whom the application for a writ of habeas corpus is made, shall forthwith award the writ, unless it shall appear from the application itself or from any document annexed thereto, that the applicant can neither be discharged nor admitted to bail, nor in any other manner relieved.”

It is defendant's contention that under this statute the writ should not issue because petitioner did not make a prima facie showing that he was entitled to custody. See *State v. Foreman*, 1942, 68 S.D. 412, 3 N.W.2d 477. She argues that the petition must show legitimation in order for petitioner to have standing to seek custody of an illegitimate child. She assigns as error the deprivation of custody absent legitimation by the natural father.

We start with the proposition that there is a strong public policy favoring legitimation. *In re Richard, supra*. See also *In re Kessler's Estate*, 1956, 76 S.D. 158, 74 N.W.2d 599. The legislature has provided a

¹ The record shows that sometime early in 1974 the maternal grandmother discovered T. T. G. in the care of a minor at the Mitchell Motel where M. G. was living at the time. The infant was lying on the floor, was running a temperature, and could hardly breathe. She took him to the hospital where it was discovered he had pneumonia.

method whereby the father of an illegitimate child may remove the stigma of illegitimacy. SDCL 25-6-1 provides:

“The father of an illegitimate child by publicly acknowledging it as his own, receiving it as such into his family, with the consent of his wife if he is married and otherwise treating it as if it were a legitimate child, thereby adopts it as such, and such child is thereupon deemed for all purposes legitimate from the time of its birth. The other provisions of law relating to adoption shall not apply in such cases.”

That G. K. is the father of the child is not disputed. He has publicly acknowledged his paternity and has otherwise treated the child as his own. The only requirement lacking is receiving the child into his family.

While the typical situation contemplates actual physical presence in the father's home, actual receipt is not required where the father has done all that he reasonably can to fulfill that requirement. G. K. voluntarily provided a place for M. G. during her pregnancy, made repeated requests that she join him in Idaho, voluntarily provided support for the child after its birth, and visited the child when he was able to do so. That the child was not actually received into his home is due only to the actions of the defendant. In view of the strong policy favoring legitimation we find that the acts of petitioner amount to constructive receipt of the child into his home. *In re Richard*, *supra*; *Blythe v. Ayres*, 1892, 96 Cal. 532, 31 P. 915. See also, *Moreno v. Richardson*, 1973, 9 Cir., 484 F.2d 899; *Rodriguez v. Rodriguez*, 1971, D.C.N.D.Cal., 329 F.Supp. 597. Therefore we find that T. T. G. is the legitimate child of G. K. by virtue of the latter's compliance with SDCL 25-6-1.

The question thus distilled is one of custody between parents of a legitimate child. The law is clear. SDCL 30-27-19 provides:

“In awarding the custody of a minor or in appointing a general guardian, the court or judge is to be guided by the following considerations:

(1) By what appears to be for the best interests of the child in respect to its temporal and its mental and moral welfare; and if the child be of a sufficient age to form an intelligent preference, the court or judge may consider that preference in determining the question;

(2) As between parents adversely claiming the custody or guardianship, neither parent is entitled to it as of right, but, other things being equal, if the child be of tender years, it should be given to the mother; if it be of an age to require education and preparation for labor or business, then to the father.”

In making an award of custody the trial court has broad discretion. The controlling factor is the best interests of the child. The court's exercise of discretion will not be disturbed on appeal unless the record presents a clear case of abuse.⁴ *Masek v. Masek*, 1975, S.D., 228 N.W.2d 334; *Anderson v. Anderson*, 1972, 86 S.D. 757, 201 N.W.2d 394; *Oursland v. Oursland*, 1968, 83 S.D. 382, 159 N.W.2d 922. We find no abuse of

⁴ Other standards apply in different custody settings. When someone other than another parent challenges the custody of a parent a clear showing of gross misconduct, unfitness or other extraordinary circumstances affecting the child's welfare is required. *Blow v. Lottman*, 1953, 75 S.D. 127, 59 N.W.2d 825. When custody pursuant to a judicial decree is challenged, the party seeking modification must show a substantial and material change in circumstances since the decree and that the welfare and best interests of the child require the modification. *Miller v. Miller*, 1976, S.D., 245 N.W.2d 501. When the state interferes with parental rights, neglect or dependency must be shown by a preponderance. *People in Interest of D.K.*, 1976, S.D. 245 N.W.2d 644.

discretion in this case.

In an action pursuant to a writ of habeas corpus to determine the custody of a child, the relative fitness of the parents as custodians is a proper subject of judicial inquiry only to the extent that this issue affects the child's welfare. *Pugh v. Pugh*, 1949, 133 W.Va. 501, 56 S.E.2d 901. It was the finding of the trial court that M. G. was not a fit and proper person to have the care, custody, and control of the child; that G. K. was a fit and proper person; and that the best interests and welfare of the child dictated that custody be granted to G. K. with reasonable visitation rights to M. G.

We find substantial evidence to support the finding that the mother was not a fit and proper person. The facts discussed above need not be reiterated here. While the father did not escape unscathed, we also find that the record supports the finding that G. K. is a fit custodian. He is college educated, earns \$1,350/month, has had L.P.N. training including care of young children, has a good reputation in the community, is willing to provide proper care for the child, and intends to marry in the near future to a woman willing to receive the child as her own. There is nothing clearly erroneous about these findings. *Cooper v. Hileman*, 1974, S.D., 222 N.W.2d 299; *In re Estate of Hobelsberger*, 1970, 85 S.D. 282, 181 N.W.2d 455.

The best interests and welfare of the child dictate that custody go to G. K.⁵ Therefore, the judgment giving custody of the child to G. K. with the right of reasonable visitation to M. G. is affirmed.

DUNN, Chief Justice, and COLER, J., concur.
WOLLMAN and ZASTROW, JJ., dissent.

PRIBBENOW v. VAN SAMBEEK

Supreme Court of South Dakota, 1987.
418 N.W.2d 626.

MILLER, Justice.

This is an appeal from an order awarding a father custody of and support for a minor child born out of wedlock. We affirm.

Dana Michael Van Sambeek (Dana) was born on November 9, 1985. His mother is appellant Jodene Van Sambeek (mother) and his father is appellee Steven Michael Pribbenow (father). Mother and father are not now and have never been married.

Shortly after mother became aware of the fact that she was pregnant, she began deliberating as to what to do. Father was informed of the pregnancy and immediately offered moral support. Mother and father discussed their options regarding the birth of the child. Father felt there were three options: (1) get married, (2) mother keep child with father providing support and having visitation rights, or (3) father keep child. Mother felt that the child should be placed for adoption to a two-parent home.

⁵ We do not find that the tender years presumption, SDCL 30-27-19(2) requires a different result. The rebuttable presumption is that all things being equal, the mother should have custody of younger children. We find the presumption sufficiently rebutted in this case. *In re Marriage of Bowen*, 1974, Iowa, 219 N.W.2d 683.

Shortly after Dana's birth, father learned that mother had entered into an agreement with Catholic Family Services (CFS), which granted CFS the temporary care and custody of Dana for purposes of placing the child with a suitable couple for adoption. Armed with this knowledge, father commenced a paternity action to establish his paternity and to gain custody of Dana. Mother answered the complaint, admitted that father was the natural father and generally alleged that father had no experience, facilities, genuine desire, religious background, or financial resources with which to raise Dana. Mother did not seek custody for herself but rather requested that Dana remain with CFS and ultimately be placed for adoption.

A hearing was held on September 19, 1986, at which time the court ruled from the bench awarding custody of Dana to father, with visitation rights in mother. The day after this hearing, mother changed her mind and on November 29, 1986, she filed a separate action and made a motion for change of custody alleging a material change of circumstances. The court joined the two cases and, after a hearing on December 17, 1986, entered its order, supported by findings of fact and conclusions of law, which awarded custody of Dana to father, allowed visitation by mother, and further ordered that mother pay child support in the amount of \$210 per month. Mother now appeals the court's order regarding the custody, visitation, and support of Dana.

ISSUE I
WHETHER THE MOTHER OF AN ILLEGITIMATE MINOR CHILD
HAS THE ABSOLUTE RIGHT TO THE CHILD'S CUSTODY.

Mother claims that SDCL 25-5-10 gives her the absolute right to the custody of Dana. SDCL 25-5-10 provides:

The mother of an illegitimate unmarried minor is entitled to its custody, services, and earnings. In an action for the determination of paternity, the court may award custody of the child to either parent, considering the best interests of the child as to its temporal, mental and moral welfare.

First, we note that the best interests and welfare of the child is always the court's primary concern. *Garnos v. Garnos*, 376 N.W.2d 571 (S.D.1985); *Hanks v. Hanks*, 296 N.W.2d 523 (S.D.1980) aff'd after remand 334 N.W.2d 856 (S.D.1983); *Oursland v. Oursland*, 83 S.D. 382, 159 N.W.2d 922 (1968); *Wiesner v. Wiesner*, 80 S.D. 114, 119 N.W.2d 920 (1963); *In re Doe*, 52 Haw. 448, 478 P.2d 844 (1970); *Heyer v. Peterson*, 307 N.W.2d 1 (Iowa 1981); *In re Barlow*, 404 Mich. 216, 273 N.W.2d 35 (1978). Generally, it has been stated that in a contest concerning the custody of an illegitimate minor child, the best interests and welfare of the child are matters of chief importance and will prevail over any mere preponderance of a legal right. Annot., Right of Putative Father to Custody of Illegitimate Child, 45 A.L.R.3d 216, 220 (1972), citing *In Re Doe*, supra; see also *Heyer*, supra. Although many jurisdictions recognize that the mother has a superior right to the child's custody over that of the father or any other person, such may not be the case where state statutes provide otherwise. *Id.*

SDCL 25-5-10 follows the general rule that mother is initially entitled to the illegitimate child's custody. However, it also clearly provides that in a paternity action the court may award custody of the child to either parent, considering the best interests of the child. Additionally, commensurate with SDCL

30-27-23,⁶ when child custody is involved, preference is generally given to a parent over a non-parent. *Langerman v. Langerman*, 336 N.W.2d 669 (S.D.1983).

The facts in this case reveal that father commenced an action to establish his paternity and to gain custody approximately fourteen days after Dana was born. Mother admitted the paternity, but denied that father should be given custody. She did not request custody of the child for herself at that time. In fact, during the entire proceedings of the initial action before the trial court (approximately ten months), mother denied that she personally wanted custody of Dana, but rather insisted that he be placed with CFS.

In light of the posture of this case, the trial court had no choice but to award custody of the child to father absent a clear showing that he was guilty of gross misconduct or unfitness, or of other extraordinary circumstances affecting the welfare of the child. SDCL 25-5-10; SDCL 30-27-23; *Langerman, supra*.

At the September 19, 1986, trial, mother attempted to demonstrate unfitness of father by showing that he drank beer, visited bars, lived in a small apartment, earned less money than she did, had parents who received welfare and that he did not regularly attend church. However, the trial court, which had received a home study conducted by the Department of Social Services (DSS), found that father was regularly employed as a truck driver (with an expected income of approximately \$15,000 in 1986); that his work would take him away from home on occasion, however he had made suitable arrangements to provide for child in his absence; that father had a small one-bedroom apartment which had room for a crib and had adequate space in the living area; that father had demonstrated reasonable housekeeping skills to personnel from DSS; that he had auto/truck mechanic skills as well as a truck driver; that he had some experience in caring for children of tender years, primarily as baby-sitter for his sister's family and for friends; that he had visited with Dana on several occasions during the proceedings and that based upon the observations of the CFS staff social worker, he had demonstrated a reasonable ability to care for Dana; that father had furnished CFS and its foster home with some clothing and other items for Dana; and that he had indicated a willingness to pay his share of Dana's birth expense and care as well as fees for Dana's guardian ad litem. The trial court determined that father had expressed and demonstrated a sincere desire to exercise the care, custody, and control of Dana as his father and that he strongly objected to his son being placed for adoption by an unknown family. The court concluded that the father was the fit person to have the care, custody and control of Dana; that he had adequate facilities, income, and experience under the circumstances to do so; that the best interests of Dana required his placement with father; and that the placement of Dana with a non-parent was not in the best interests of the child.

We cannot hold that the court was clearly erroneous in finding, under the facts and circumstances of this case, that the mother did not have a superior right to custody over Dana's natural father. SDCL 25-5-10 specifically provides that in an action for paternity, the court may award custody to either parent upon consideration of the best interests of the child as to its temperal, mental, and moral welfare. In addition, mother has not demonstrated that father was guilty of gross misconduct, unfitness, or any other extraordinary circumstances adversely affecting the welfare of the child. SDCL 30-27-23; *Langerman, supra*; *Blow v. Lottman*, 75 S.D. 127, 59 N.W.2d 825 (1953). Thus, mother's contention that she has the right to son's

⁶ See SDCL 30-27-23, which provides:

Of two persons equally entitled to the custody in other respects, preference is to be given as follows:

- (1) To a parent;
- (2) To one who was indicated by the wishes of a deceased parent;
- (3) To one who already stands in the position of a trustee of a fund to be applied to the child's support;
- (4) To a relative.

custody for the sole reason that she is the natural mother is without merit. Nor can we find that the trial court abused its discretion in finding that the best interests of the child were met by placing Dana with the natural father.

ISSUE II
WHETHER THE TRIAL COURT ERRED IN DENYING MOTHER'S MOTION
TO CHANGE CUSTODY OF DANA FROM FATHER TO HER.

Only one day after the court granted custody of Dana to father, mother changed her mind and subsequently filed a motion requesting that the court award her Dana's custody due to a complete change of circumstances. Mother claimed that since she failed in her attempts to provide a two-parent adoptive family home for Dana that she is now trying to do the next best thing for her child, to-wit: to raise the child herself. She asserts that this is a substantial change in circumstances sufficient to justify a change in custody.

The criteria for maintaining an action to change obligations in a paternity action, once a custody order has been entered, is not established in South Dakota. However, it is well settled that in order to maintain an action for change of custody of a minor child when custody was litigated and determined in a divorce proceeding, that the movant be required to show that there has been a substantial and material change in circumstances since the entry of the last custody order and that a change in custody would be in the welfare and best interests of the child. *Mayer v. Mayer*, 397 N.W.2d 638 (S.D.1986); *Flint v. Flint*, 334 N.W.2d 680 (S.D.1983); *Masek v. Masek*, 90 S.D. 1, 237 N.W.2d 432 (S.D.1976); *Hershey v. Hershey*, 85 S.D. 85, 117 N.W.2d 267 (1970).

We now hold that a change in custody of a minor child based upon an order entered as a result of a paternity action should be governed by the principles and factors, applied and followed, in divorce cases where custody is involved.

We find under the facts of this case that mother simply did not meet her burden of proving by a preponderance of the evidence that (1) a substantial and material change of circumstances occurred since the custody order was entered and (2) that the welfare and best interest of Dana required modification. Mother's change of mind simply is not a material and substantial change of circumstances. *Mayer, supra*; *Sneesby v. Davis*, 308 N.W.2d 565 (S.D.1981). Mother knew or should have known from the beginning of the proceedings that placement of custody with father was a possible outcome. Furthermore, nothing prevented mother, in the paternity proceedings, from pleading in the alternative seeking custody of Dana should the court not approve her adoption preference. Mother had consistently sought to place the child for adoption and appeared to rescind this desire or rather, make her plea for custody only for the purpose of resisting the father's quest to gain custody of his son. As the natural father has continually and consistently sought the custody of Dana and was willing and able to assume full responsibility of parenting him from the beginning, we agree with the trial court that the father should retain custody. *Re Anonymous*, 97 Misc.2d 927, 416 N.Y.S.2d 729 (1979). The trial court did not abuse its discretion in entering judgment for him. *Mayer, supra*; *Kolb v. Kolb*, 324 N.W.2d 279 (S.D.1982); *Sneesby, supra*.

* * *

Affirmed.

All the Justices concur.

NOTE: Language neutralizing custody placement presumptions incorporated into both the “in wedlock” (SDCL 25-5-7) and “out of wedlock” (SDCL 25-5-10) situations.

The 2008 legislature amended SDCL 25-5-7 so as to provide,

25-5-7. Parents equally entitled to custody and earnings of child born in wedlock. Subject to the court's right to award custody of the child to either parent, considering the best interest of the child as to its temporal, mental, and moral welfare the father and mother of any minor child born in wedlock are equally entitled to the child's custody, service, and earnings.

Source: SDC 1939, § 14.0303; SL 1991, ch 210, § 6; SL 2008, ch 131, § 1.

The 2008 legislature also added a new section to SDCL 25-5 so as to qualify the provisions found in SDCL 25-5-10. The new section provides as follows:

25-5-10.1. Best interest of child not presumed--Change of custody. Notwithstanding any initial entitlement to custody pursuant to § 25-5-10, there is no legal presumption that such custody is in the best interest of the child, nor is a change of circumstances required for a change of the initial custody as determined by § 25-5-10.

Source: SL 2008, ch 131, § 2.

Extracts from **ORIGINS AND EVOLUTION OF
THE “BEST INTERESTS OF THE CHILD” STANDARD**

34 South Dakota Law Review 459 (1989)

LeAnn Larson LaFave

* * *

B. Historical Development — South Dakota

The history of child custody adjudications in South Dakota begins and ends with the “best interests of the child” standard. During a long interim period,⁹² however, the “tender years” doctrine co-existed with the “best interests of the child” standard.

Long before Justice (then Judge) Cardozo brought the “best interests of the child” standard into legal vogue, South Dakota had codified the “best interests of the child” standard as part of the 1877 Revised Codes

⁹² Justice Henderson, writing in 1979 and referring to S.D.C.L. § 30-27-19, observed: This court, our trial judges, and the Bar of this state have labored over its interpretation since the days of the Dakota Territory. Whether the scales of justice are equally balanced in these child custody disputes is often dependent upon the eyes of the beholder. In its infinite wisdom, the 1979 Legislature repealed the “tender years” doctrine.

of the Territory of Dakota:

In awarding the custody of a minor, or in appointing a general guardian, the court or judge is to be guided by the following considerations:

One — By what appears to be for the best interests of the child in respect to its temporal and its mental and moral welfare; and if the child be of a sufficient age to form an intelligent preference, the court or judge may consider that preference in determining the question.

Two — As between parents adversely claiming the custody or guardianship, neither parent is entitled to it as of right, but, other things being equal, if the child be of tender years, it should be given to the mother; if it be of an age to require education and preparation for labor or business, then to the father.

Three — Of two persons equally entitled to the custody in other respects, preference is to be given as follows:

1. To a parent.
2. To one who was indicated by the wishes of a deceased parent.
3. To one who already stands in the position of a trustee of a fund to be applied to the child's support.
4. To a relative.

The territorial statute was the predecessor to the present-day custody standard, codified at S.D.C.L. section 30-27-19. It was recodified without substantial amendment, until the gender-based presumptions were repealed in 1979 and a gender-neutral “best interests”-only standard evolved.

Although South Dakota's progressive statutory standard survived a century without substantial amendment, the judicial interpretations of that standard indicate that custody law has never been well-settled. The court struggled for decades just trying to define the proper scope, interpretation, and application of the “tender years” doctrine.

The decline of the “tender years” doctrine began in the sixties, when the court's interpretation of the statute focused on the phrase, “*but, other things being equal*, if the child be of tender years, it should be given to the mother. . . .” The “tender years” presumption was involved only in the case of a tie. Where both parents were found to be equally able to meet the needs of the children, or one parent was no worse than the other, the “tender years” doctrine provided justification for awarding young children to the mother. A mother had “no statutory preferential right to the custody of children of tender years unless it [could] be established that the facts, or the equities of the case, [were] ‘equal.’” The facts and equities were rarely “equal.” Several cases during the sixties and seventies upheld awards of young children to father. Justice Wollman vigorously dissented when the “tie-breaker” interpretation of the “tender years” doctrine deprived fit mothers of custody of their young children. Despite Justice Wollman's life sustaining efforts, the “tender years” doctrine was, in all but the closest cases, legally dead long before concerns about gender bias and unconstitutionality prompted its repeal. The legislative repeal of the “tender years” doctrine was a legal post-mortem.

C. South Dakota's “Best Interest of the Child” Standard — In Theory

1. Definitions

In awarding custody, South Dakota courts are to be guided “by what appears to be for the best interests of the child in respect to its temporal and its mental and moral welfare. . . . The terms “temporal,” “mental” and “moral” are not defined in the statute, nor have they been expressly interpreted in the case law. Trial courts are to look at all the facts and circumstances, and out of that gestalt, divine what is in the best interests of the child.

The paramount consideration in any custody proceeding is, in theory, the welfare or best interests of the children involved. “Kids first!” must be the order of the day in any custody fight between natural parents. The court must diligently assess the needs and interests of the children whose future placements are entrusted to its authority and fashion a custody order which best meets those identified needs.

The court must not be distracted from its primary purpose by sensational accounts of the marital transgressions of the parents. The court must be open to the possibility that the “best person” by adult standards of marital conduct may not be the best parent. Marital fault is not necessarily parental fault.

“The parents’ personal wishes and desires must yield to what the court in the discharge of its duty regards as the children’s best interest.” Even a child’s own stated preference, while an important consideration, is not controlling. A child may not possess the maturity and judgment to assess his or her own long-term best interests. A child’s stated preference may also reflect undue parental influence. The ultimate, awesome responsibility to discern the child’s best interests and to fashion a custody award which promotes the best interests of the child rests with the court.

2. Trial Court Discretion

South Dakota’s trial courts have broad discretion in awarding custody of children. A custody award will be reversed on appeal only upon a clear showing of abuse of discretion. A trial court’s discretion is not, however, uncontrolled. The award must have a “sound and substantial basis in the testimony.”

The trial court’s discretion must therefore manifest an informed judgment. The court must consider all relevant facts and circumstances. Where the record developed by counsel during the course of the custody proceeding is inadequate, the court, exercising its *parens patriae* powers, must take an active role in developing an adequate record. Tossing a coin simply won’t do.

The trial court’s decision making cannot be delegated to the parents, to the children, or to psychologists or social workers. The trial court bears the ultimate responsibility for making difficult custody decisions. The buck stops at the bench.

3. Non-parent Custody Claims

A strong statutory preference favors natural or adoptive parents over any non-parent in a custody dispute.¹³³ A non-parent can be awarded custody only upon a showing of “gross parental misconduct or

¹³³ S.D.C.L. § 30-27-23 (1984) provides:

Of two persons equally entitled to the custody in other respects, preference is to be given as follows:

(1) To a parent;

unfitness, or of other extraordinary circumstances affecting the welfare of the child.” Even where, as between a parent and non-parent, the non-parent may be a better custodian, the parent will prevail absent a showing of unfitness.

The term “unfitness,” however, has been broadly interpreted. As a result, loving grandparents, aunts and uncles, or other non-parent caretakers have occasionally been awarded custody, against the protests of a far-from-perfect parent. Grandparents who are unsuccessful in obtaining custody may assert grandparent visitation rights. Such rights survive adoption of grandchildren by a step-parent or the “other” grandparent(s).

* * *

CONSIDERATIONS OF RACE

At the time of their divorce, the mother was awarded custody of the parties’ three year old daughter. The parties were caucasian. Shortly thereafter, the mother began residing with a Negro man whom she soon married. In ruling on the father’s petition to modify, the trial court concluded that the “best interests” of the child would be served by awarding custody to the father. The trial court placed significant emphasis on the fact that the mother’s decision to live with and marry a “black partner” would subject the child to a “social stigmatization” upon reaching school age. This case arose in Florida and the Florida appellate courts upheld the transfer of custody. The U.S. Supreme Court reversed, however, in *Palmore v. Sidoti*, 466 U.S. 429, 104 S.Ct. 1879 (1984). The Court ruled that under the Fourteenth Amendment, “the reality of private biases and the possible injury they might inflict” are impermissible considerations. “The Constitution cannot control such prejudices but neither can it tolerate them.”

The South Dakota Supreme Court distinguished the *Palmore* case in *Jones v. Jones*, 542 N.W.2d 119 (S.D. 1996) when it upheld the trial court’s placement of three minor children with their Native American father. The caucasian mother argued on her appeal that her right to equal protection had been violated. The South Dakota Supreme Court accepted the trial court’s proclamation that it was acting on a “racially neutral” basis. It also held that a trial court may, when determining the “best interests of a child” in a custody dispute, consider the matter of race as it relates to which parent is more prepared to expose the child to its ethnic heritage.

NOTES

1. In the case of *Meldrum v. Novotny*, 1999 SD 127, 599 N.W.2d 651, which is discussed in the section on *parens patriae*, supra, the SD Supreme Court observed that “At every stage in child custody proceedings, ‘our brightest beacon’ is the best interest of the child” and “this standard applies when considering whether a child requires an attorney” under the discretionary statutory provision of SDCL 25-4-45.4. (Paragraph no. 10, 599 N.W.2d at 653.)

(2) To one who was indicated by the wishes of a deceased parent;

(3) To one who already stands in the position of a trustee of a fund to be applied to the child’s support;

(4) To a relative.

The phrase “equally entitled. . . in other respects” has been rendered virtually meaningless by a series of judicial interpretations requiring a clear showing of gross parental misconduct or unfitness.

2. **SD Supreme Court endorses use of custody evaluators.** In *Maxner v. Maxner*, 2007 SD 30, 730 N.W.2d 619, we find a pro se appeal by the husband in a divorce proceeding. The wife did not make an appearance on the appeal. The SD Supreme Court affirmed all aspects of the trial court's ruling in a unanimous opinion by Justice Konenkamp. One of the issues in the appeal dealt with the trial court's utilization of a court-appointed custody evaluator. The SD Supreme Court recognized that such a process is "not perfect, of course, for custody evaluators, like judges, can be mistaken in their judgments." But, the Court did praise the use of such an evaluator as being "vastly superior to simply relying on the parents and their supporters for objective information to reach a proper custody decision." ¶ 15.

3. **Appointment of "Parenting Coordinator" authorized for assistance in custody disputes.** The 2008 legislature added a new section to SDCL 25-4 which provides as follows:

25-4-63. Custody and visitation disputes--Appointment of parenting coordinator. In any custody or visitation dispute between parents, the court may appoint a parenting coordinator to assist the parents in resolving contested issues. The Supreme Court may promulgate rules pursuant to § 16- 3-1 to prescribe the authority, duties, appointment, and compensation of parenting coordinators.

Source: SL 2008, ch 124, § 1.

B. The "Best Interests of the Child"

2. Parental Misconduct

NOTES

1. The student should reconsider SDCL 25-4-45.1 (reproduced earlier) and *Madson v. Madson* (set forth earlier).

2. Consider the following language from *Mellema v. Mellema*, 407 N.W.2d 827, 830 (S.D. 1987), in which the award of custody to the father of two sons was affirmed:

"...while [his behavior] might have been a proper consideration in determining the issue of extreme cruelty and fault for the break-up of the marriage, [it] was not entirely the proper measure of the best interests of the children. . . . The court's primary consideration when awarding custody is the best interest of the children and not the shortcomings of the custodial parent."

KESTER v. KESTER

Supreme Court of South Dakota, 1977.
257 N.W.2d 731.

DUNN, Chief Justice.

This is an appeal from a judgment entered by the Circuit Court of the Seventh Judicial Circuit granting custody of a minor child,¹³⁴ to the father, Richard Kester, on May 6, 1976. The father had also been awarded temporary custody of the child pending trial of the matter. The parties were both granted a divorce on the grounds of mental cruelty, but that part of the judgment is not being appealed. We reverse and direct the trial court to modify its judgment and decree of divorce to grant custody of the minor child of tender years to the mother, Joan Kester.

* * *

The main emphasis of the defendant's evidence dealt with two alleged incidents of immoral conduct by plaintiff. The first incident involved the presence of the plaintiff and John (Ivan) Hebbring in a motel room where the Kesters were living. It was a one-room unit, the only furniture on which to sit being the bed and a chair. The witness found the two people in the room fully clothed, one standing and one sitting on the bed at 10 a.m. The child was asleep at the time. The witness stated that she saw nothing immoral, but she testified that Hebbring asked her not to tell anyone, because they might get the wrong idea. The plaintiff admitted the incident, but she said Hebbring had merely come over to ask if she wanted to go to Rapid City for the day with him and his wife.

The second incident was testified to by defendant's brothers. They claimed that they came across plaintiff and Hebbring parked in the woods one afternoon with the child asleep in the back of the vehicle. The two were fully clothed, but Hebbring's shirt was unbuttoned. The plaintiff allegedly ducked low in the seat and hid her head when the two brothers showed up. Hebbring's boss testified that Mr. Hebbring was cutting trees in Wyoming when this incident was supposed to have occurred. He based his testimony on pay records and not personal recollection. Hebbring's brother confirmed this testimony. The plaintiff denied the second incident completely.

Other testimony indicated that plaintiff drank in public and was occasionally drunk. She did not make breakfast for defendant during the last month or so of her pregnancy. Defendant testified that plaintiff would leave home at night and tell him it was his turn to take care of the baby. There was testimony that plaintiff left him with the baby when she was feverish and that plaintiff became angry when defendant took the baby to a doctor. The child was allegedly disciplined once by "sitting her down hard" on the floor. All of the witnesses, however, stated that plaintiff was a good housekeeper and loved the child and took good care of her. Even the defendant admitted this.

* * *

We now turn to the two incidents where there was testimony of plaintiff having been found with Hebbring while the baby was present. The trial court gave great significance to these incidents. In the first place, it must be pointed out that the proof of plaintiff's immoral conduct is very weak. The witness to the incident in plaintiff's motel home admitted that nothing immoral was observed, and the time records of Hebbring had him forty miles away at the time of the alleged incident in the woods. But assuming that some

¹³⁴ The child will be four years old in October of 1977, and both parties concede that she is of "tender years."

"hanky-panky" was going on between the plaintiff and Hebbring, the trial court completely confused marital responsibilities with parental responsibilities.

The conclusion that the child was harmed in any way by being present during the times when the plaintiff was allegedly observed with her paramour is likewise unsubstantiated in the record. Where a mother has been guilty of marital misconduct and there is no evidence of demonstrable effect of such conduct upon the child, it does not follow that she is an unfit person to have custody and that an award of custody to her is not in the best interest and welfare of the child. *Wiesner v. Wiesner*, 1963, 80 S.D. 114, 119 N.W.2d 920; *Hershey v. Hershey*, 1970, 85 S.D. 85, 177 N.W.2d 267. The child was six months old at the time of the first incident and nine months old at the time of the second, so it is difficult to see how the child was affected by any immoral conduct, even if such conduct did occur. The court stated in *Yager v. Yager*, 1968, 83 S.D. 315, 159 N.W.2d 125, that the fact that children, because of their ages, do not understand the improprieties of their mother is not determinative of the custody question, but we feel that one seeking to take custody from a mother has a burden of showing a harmful effect on the children caused by the mother's conduct.

Accordingly, we conclude that the testimony reveals that all things were not equal but were strongly balanced in favor of the plaintiff having custody of the child. She has a steady job, a permanent home, and she has shown an inclination and ability to properly care for the child. The defendant has no permanent home, no home, and he has actually imperiled the life of the child at times by his drinking and his lack of concern for her welfare while she was under medication.

Therefore, we reverse and direct the trial court to modify its judgment and decree of divorce by granting custody of the child of tender years to the plaintiff.

All the Justices concur.

HANHART v. HANHART

Supreme Court of South Dakota, 1993.
501 N.W.2d 776.

WUEST, Justice.

Karel Anthony Hanhart (hereinafter "Father") appeals a judgment and decree of divorce which granted child custody to Donna Rochelle Hanhart (hereinafter "Mother"). We affirm.

Father and Mother were married in 1976 and had three children: Liesl (DOB: 8/31/80); Melissa (DOB: 5/10/82); and, Michael (DOB: 7/28/83). A fourth child (Nathan (DOB: 8/8/90)) was born during this marriage but is not Father's biological son.

Father has worked for Shopko for approximately four years. He has traditionally worked approximately 60-65 hours per week. It is Shopko's standard policy that employees move every two to three years. However, there was testimony that Father may apply to be a "resident area manager" which would enable him to stay indefinitely in one location. Mother is a music teacher and has worked part-time over the last several years.

On November 1, 1990, Father filed for divorce on the grounds of extreme mental cruelty and alleged Mother was openly carrying on an adulterous relationship with the next-door neighbor, Robert Rochelle. The trial court entered a temporary order granting Father custody of the three eldest children. Nathan

remained with Mother because he was still being breast fed. Mother answered Father's complaint, denied Father's allegations of adultery, alleged extreme mental cruelty, and requested custody of all four children.

At trial, Mother denied having sexual contact with Robert Rochelle during her marriage with Father, although she admitted having sexual contact with him during her separation from Father. The trial court held a full evidentiary hearing and then determined it was in the best interests of the children for Mother to have custody. Father was given liberal visitation rights. Father appealed to this Court.

During the pendency of that appeal, Mother admitted committing adultery during their marriage and told Father Nathan was not his biological son. Blood tests confirmed that Father is not Nathan's biological father. At Father's request, this Court remanded jurisdiction to the trial court so as to present this newly discovered evidence.

The trial court held a second trial. The evidence at the second trial was essentially the same as at the first trial except Mother admitted she lied at the first trial about committing adultery. The trial court reinterviewed the children and found them better adjusted and more outgoing after being in Mother's custody. The trial court issued a new divorce decree again giving Mother custody. Father requested attorney's fees (\$2,565.00) for the costs of the second trial. The trial court awarded Father \$750.00 in attorney's fees. Father appeals.

The facts of this case are essentially undisputed. Father has not alleged the trial court was clearly erroneous in any of its findings of fact. Therefore, the main issue is whether the trial court abused its discretion in concluding it was in the best interests of the children for Mother to have custody.

The trial court considered each of Father's arguments and concluded, in a well-reasoned decision, that the best interests of the children would be served by giving Mother custody, with liberal visitation by Father. A trial court's decision on a custody question will only be reversed if there was a clear showing of an abuse of discretion. *Anderson v. Anderson*, 472 N.W.2d 519 (S.D.1991). The following factors support the trial court's decision.

1. Fault is not considered in determining custody, except to the extent it is relevant to prove unfitness of the parent. SDCL 25-4-45.1. *Hanks v. Hanks*, 296 N.W.2d 523 (S.D.1980) (marital misconduct does not necessarily render a parent unfit). Although Mother had committed adultery, the trial court did not find her affair had any detrimental impact on the children. See *Adam v. Adam*, 436 N.W.2d 266 (S.D.1989) (misconduct harmful to children can be considered). Liesl, the eldest daughter, told Judge Gilbertson she saw mother kiss Bob Rochelle once. Otherwise, there was no evidence the children were aware of Mother's extramarital affair.

2. Siblings should not be split unless there are "compelling circumstances." *Mayer v. Mayer*, 397 N.W.2d 638 (S.D.1986). Nathan is an infant and is not Father's biological son. It appears Father did not seek custody of Nathan after this was discovered. There was significant evidence that all four children are bonded and love one another.

3. Frequent moves and transient lifestyles are not in children's best interests. *Jasper v. Jasper*, 351 N.W.2d 114 (S.D.1984). Father's job requires him to work long hours and to move often. As a result, if Father had custody a significant amount of the children's day

would be spent with a child care provider.

4. If Father was given custody he would have to expend a significant amount of money hiring child care providers. The trial court determined that would be an unnecessary strain on the limited finances available to this family.

5. The trial court interviewed the children and indicated that they were more outgoing and talkative than when Father had custody. Two of the three children interviewed indicated they wanted to live with Mother. The trial court specifically found the children had not been coached. In appropriate circumstances the choice of the children can be considered. See *Isaak v. Isaak*, 278 N.W.2d 445 (S.D.1979).

The trial court had significant articulable reasons for granting custody to Mother. The trial court's custody decision is affirmed. We have considered Father's other argument and find that the trial court did not abuse its discretion when it awarded him only \$750 in attorney's fees. We deny Father's request for appellate attorney's fees.

MILLER, C.J., and SABERS and AMUNDSON, JJ., concur.

HENDERSON, J., dissents.

HENDERSON, Justice (dissenting).

* * *

Mother is an adulteress having taken up a life of adultery with a neighbor across the street. Mother committed perjury in the first trial. A second trial was held because of her perjury at the first trial.

The neighbor, who sired an illegitimate child with Mother, during the course of her marriage to Father, has a record with several felony convictions. He is a multiple convict. Witnesses testified before the trial judge that he was abusive to his own wife, had a violent temper, and abused his children, inter alia, by using vulgar, filthy language to them. Apparently, the trial judge paid no heed whatsoever to this testimony of independent witnesses. Mother described him, at the second trial, as being "quite a nice person, very compassionate and a good listener as well, but when pushed to the wall, he can be--can be hot tempered and he can also be somewhat rude." It is obvious that Mother has a poor value system.

Testimony reveals in this trial that Mother's adulterous relationship was such that neighbors saw him going in and out of the window, saw him partially unclad, and made no effort to hide his relationship from the children. It portrayed an immoral, unethical, and bad impression upon the children. The lovers were concerned with what the neighbors saw. Hence, the sneaking in and out of the window. But the neighbors saw. Mother not only committed adultery in this home, while Father worked, she also secretly discussed her relationship with the oldest girl. A child therapist testified that the conduct of the Mother, concerning her illicit relationship with the felon and the matters pertaining to the divorce, was very detrimental to the oldest girl and placed this young girl in the position of being a "parentified child." This therapist testified that this caused the young girl to take on an adult role, a role she was not equipped to handle. By taking the child into her confidence, this adulteress was trying to win the child over on her side. Trial judge had testimony before him that Mother's actions and deeds were contrary to the best interests of the children. At one time, the felon was released from jail and Mother had children prepare a bed for the felon in the basement of the family home. Society in this age--sinks deep and deeper. How can these children approach problems in life and

try to solve them with any sense of pride and responsibility when adults set this kind of example?

There is no doubt in the wide, wide world that these children were openly exposed to this adulterous relationship. The children's therapist testified that this adulterous conduct, in their presence, harmed them. Notwithstanding, the trial judge opined it was in the best interests of the children to be with the Mother. The children's therapist, who worked with these children as the result of the Mother's terrible conduct, testified that the Father was a competent parent to have care, custody and control of these children.

It is obvious that the relationship between the Mother and the felon affected the children's development of what is right and wrong in this world. During the course of all of these proceedings, at one time Father had custody of these children, namely from January 1991, until on or about May 15, 1992. Teachers and witnesses came to the trial court and testified that the children were clean, well-dressed, well-nourished and were getting along in school and socially quite well. There is nothing to suggest that at any time the Father did not provide a stable and good environment for these children. With him, the children had positive experiences; with the Mother, the children had negative experiences. An example of this conclusion is illustrated in the transcript by the testimony of Karen Hanson, a neighbor. Ms. Hanson testified she saw the convict and adulteress Mother together frequently and listened to violent language of the convict. In the presence of his children, she heard him say: "... 'you fucking little sons of bitches'--that's what he (Bob Rochelle) said to his kids."

The record is replete with the fact that the Father is an extremely hardworking man who makes approximately \$26,000 per year. He works approximately 45 to 55 hours per week. While he had temporary custody of the children, a next door neighbor, well known to the children, took care of the children and Father would pick them up at approximately 6:30 p.m. The children were in the care of the next door neighbor for approximately 3 ½ hours per day while Father was working.

An expert testified that the Father puts the needs of the children first.

* * *

NOTES

1. The 1997 South Dakota Legislature passed legislation which creates a "rebuttable presumption" that it is not in the best interest of a child for its custody to be awarded to a parent convicted of domestic violence or convicted of a crime in connection with the death of the other parent [excluding vehicular homicide]. See SDCL 25-4-45.5 & 25-4-45.6. [The section relating to homicide also creates a presumption against the granting of visitation rights.]

2. In 2008, the SD Legislature established a rebuttable presumption against a custody award created as to a person with a proven history of domestic abuse. This broadens the existing statute (allowing history of domestic abuse to be proven in the absence of criminal convictions) and also authorizes judicial consideration of an arrest report and of the issuance of a protection orders. These new provisions are found in SDCL 25-4-45.5 and 25-4-45.7, set forth *supra*.

3. In *Voelker v. Voelker*, 520 N.W.2d 903 (S.D. 1994), the South Dakota Supreme Court observed how the adversarial process had put the parties in the position of “denigrating one another” and forcing the trial court to determine which was “the least worst.”

4. Father sought to modify joint legal custody arrangement (alternating custody of 8 and 5 year old children weekly) seven months after divorce decree was entered. The trial court awarded mother primary physical custody despite mother’s cohabitation with lesbian partner. The South Dakota Supreme Court affirmed, holding that cohabitation in a lesbian relationship is not per se contrary to the best interests of the child. The evidence showed that mother and her partner were affectionate and attentive to the children as well as “discreet about the sexual aspects of their own relationship.” *Van Driel v. Van Driel*, 525 N.W.2d 37 (S.D. 1994).

4. In *Reider v. Schmidt*, 2000 SD 118, 616 N.W.2d 476, the parties started off with a joint custody arrangement in 1994 and this was modified in 1995 and 1997. Problems resulted because “Both parties interpreted the schedule and made sua sponte modifications to it in a manner most beneficial to them at a particular time.” Accordingly, “extensive judicial involvement with visitation was required.” (Quoted material is found in paragraph no. 3, 616 N.W.2d at 477.) Father’s access or visitation rights with the child were lessened and ordered to be in conformity with the First Circuit Guidelines, subject to some additional requirements. Father appealed, arguing that the trial judge was punishing him for failure to comply with the court’s previous visitation order and was not based on the “best interests of the child.” The South Dakota Supreme Court affirmed the lower court’s decision as “not an abuse of discretion.” Justices Gilbertson and Amundson dissented, arguing that the trial court’s written findings and conclusions “clearly establish that the trial court modified father’s visitation schedule as punishment ... not as an arrangement in the children’s best interests.” (Paragraph No. 38, 616 N.W.2d at 483.)

5. **Custody award to Wife supported by evidence that children witnessed Husband’s anger/rage/spousal abuse during marriage.** In *Haanen v. Haanen*, 2009 SD 60, 769 N.W.2d 836, the trial court awarded primary physical custody of the parties’ three minor children to W, acknowledging that the facts in this case “presented a ‘close decision.’” The SD Supreme Court affirmed the custody ruling on appeal with the Court noting that H’s anger/rage/spousal abuse during the marriage, as witnessed by the children, “has long-term emotionally detrimental effects on children,” citing and quoting SDCL 24-4A-1.16(B) of SD’s Visitation Guidelines.

B. The “Best Interests of the Child”

3. Siblings

MILLER v. MILLER

Supreme Court of South Dakota, 1989.
444 N.W.2d 45.

SABERS, Justice.

Debra Miller (Debra) appeals a decree of divorce granting custody of Doyle James Miller (D.J.) to Delwyn Miller (Delwyn) and dividing the marital property.

Delwyn and Debra were married on September 21, 1979. They had one child during the marriage, D.J., who was seven at the time of divorce. Debra also had a fourteen-year-old daughter, Tina, from a previous marriage and an infant son, Cody. Her boyfriend, James Plueger (Plueger) was Cody's father.

Delwyn was thirty-seven years of age and employed by Hicks Enterprises in Brookings, South Dakota, at the time of divorce. His weekly net income was \$286.71. Debra was thirty-three and unemployed at the time of divorce. She was residing with Plueger who farmed near Verdi, Minnesota.

The marriage of the parties was unstable and there was little communication. Delwyn testified that he had been unfaithful on only one occasion during the marriage, but Debra was unaware of his affair. As the marriage continued to deteriorate, Debra began having an affair with Plueger. In June of 1987, Debra believed she was pregnant with Plueger's child. She left Delwyn and D.J. because of this belief and the poor condition of the marriage. Debra was one and one-half months pregnant at the time she left.

D.J. remained with Delwyn until the time of divorce in June of 1988. The testimony showed that Delwyn had a good relationship with D.J. and provided for D.J.'s needs after Debra left. There was also evidence that D.J. was doing well in school and that Delwyn took an interest in D.J.'s schooling and helped him in his studies.

Delwyn testified that he began having an intimate relationship with another woman, Kathy Lee (Kathy), following his separation from Debra. He admitted to having sexual intercourse with her at his home, but claimed that D.J. was unaware of this relationship. Further, he indicated that Kathy had stayed over an entire night once, because of bad weather, and that she had slept on the couch. Delwyn admitted that he went out socially two to three nights a week and often became intoxicated. On those evenings, he testified that he would leave D.J. overnight with his uncle and aunt, with whom D.J. enjoyed staying.

Debra was D.J.'s primary caretaker prior to the separation and believed that Delwyn was often too hard on D.J. and inflexible with the child. She testified: that D.J. enjoyed visiting her and often cried when he had to leave and return home to his father; and that D.J. and his half sister Tina had a good relationship and often confided in one another. Delwyn believed Tina and D.J. had a normal brother/sister relationship. Debra also testified that D.J. liked Cody and enjoyed holding and feeding him.

Delwyn brought an action for divorce after Debra left in June of 1987.¹³⁵ Trial was held on May 18, 1988. On June 21, 1988, the court entered its judgment and decree of divorce. The decree granted a divorce to Delwyn on the grounds of irreconcilable differences. Delwyn was given custody of D.J. subject to reasonable and liberal visitation rights to Debra. The decree also divided the property between the parties and ordered Debra to pay \$50 per month child support. Debra appeals the custody determination and property division. We reverse and remand custody and affirm the property division.

1. Compelling reasons to separate the siblings.

Debra argues that the best interests of the child require compelling reasons to separate siblings. She argues that the trial court failed to set out compelling reasons to separate D.J. and his half sister Tina, and that no such reasons exist. Delwyn claims that the trial court properly found that it was in D.J.'s best interests to grant custody to him.

We have held that the best interests of the child require compelling reasons to separate siblings. *Adam v. Adam*, 436 N.W.2d 266 (S.D.1989); *Mayer v. Mayer*, 397 N.W.2d 638 (S.D.1986). Compelling reasons are necessary to separate even half-siblings. *Adam, supra*; *Mayer, supra*. In *Mayer*, we stated:

The evidence shows that the trial court gave no consideration to the profound effects of ending Jennifer's valuable relationship with her sister. Nor did it provide any persuasive rationale for splitting them up. Justice requires that society exercise its moral duty to insure that children in a family enjoy the right to remain together, to share each others lives, and to grow up together, until such time as necessity and the welfare of the children, itself, requires their separation.... For the trial court to conclude that it was in Jennifer's best interest to award custody to Frederick without adequate findings regarding such a crucial consequence of the custody arrangement, "requires reversal." (citations omitted).

Id. at 644.

In this case the trial court made a single reference to D.J.'s relationship with Tina, stating that there was testimony the two got along. There are no other references to either Tina or Cody in the findings of fact, conclusions of law or in the memorandum opinion which was incorporated by reference. The court failed to make any findings whether compelling reasons existed to separate the children.

Delwyn distinguishes the present case from *Mayer* in that the separated sisters in *Mayer* were only two years apart in age and had grown up together in a close relationship. He argues that while D.J. grew up with Tina, there are seven years separating the children, as Tina is fourteen and D.J. only seven. He claims that under these circumstances compelling reasons are unnecessary to separate the children. *Mayer* is a bright line rule which requires compelling reasons to separate siblings, regardless of their ages and relationships. However, the ages and relationships of the siblings are factors in determining whether compelling reasons exist to separate them. *Adam, supra*; *Andersen v. Andersen*, 399 N.W.2d 363 (S.D.1987). The failure to consider whether compelling reasons exist to separate the siblings as part of the best interests of the child requires reversal and remand of the custody issue. The trial court should reconsider the best interests of D.J. in light of whether compelling reasons exist to separate D.J. from his half sister,

¹³⁵ The parties originally entered into a custody, support, and property settlement agreement. However, after Debra hired an attorney, she made a motion to set aside the agreement, which motion was granted.

Tina, and his half brother, Cody.

* * *

The division of property was equitable and the trial court did not clearly abuse its discretion. *Hilbrands v. Hilbrands*, 429 N.W.2d 750 (S.D.1988), *Goehry v. Goehry*, 354 N.W.2d 192 (S.D.1984).

Reversed and remanded in part and affirmed in part.

WUEST, C.J., and MORGAN and MILLER, JJ., concur.

HENDERSON, J., specially concurs.

NOTES

1. In *Madsen v. Madsen*, 456 N.W.2d 551 (S.D. 1990), the South Dakota Supreme Court upheld the separation of half siblings. The court noted, "Although the trial court's reasons here are not overwhelming, they are sufficiently compelling so that we cannot say they are erroneous." *Id.* at 554.

2. A more recent decision on this issue is *Mitzel v. Black Cloud-Walberg*, 511 N.W.2d 816 (S.D. 1994). In an appeal considered only on briefs, the South Dakota Supreme Court reversed a custody transfer from the father to the mother because the trial court failed to articulate "compelling reasons" for separating the boy from his half-brother. In a 3-2 decision, the majority noted that the trial court had made the transfer because the mother's family unit was in a better position to financially care for the boy. The trial court had described the case as "unique." The Supreme Court seized on the language used by the trial judge, stating that "'unique' does not equate with 'compelling.'" *Id.* at 818. By the time the appellate decision was handed down, the custody transfer order had been in place for over a year.

3. What about "step siblings?" Must compelling reasons be shown in order to justify a decree that separates step siblings? See *Van Driel v. Van Driel*, 525 N.W.2d 37 (S.D. 1994) [which holds "no"].

4. The issue of "step siblings" came up again in a slightly different context in *Weber v. Weber*, 529 N.W.2d 190 (S.D. 1995) where the trial court entered a restrictive order that no visitation whatsoever could occur when child's ten-year old stepbrother was at father's residence. The trial court did this because there was evidence of stepbrother touching the child in "his private parts" on one occasion and, on another occasion, the stepbrother encouraged a group of children to pull down the child's pants. The South Dakota Supreme Court reversed, holding that such an order was *too* restrictive and constituted an abuse of discretion. The court stated that the trial court "went beyond both the evidence and the requests of the parties." In a footnote, the court clarified that the holding was limited to the facts of the case and that it was "not recognizing any right of step-children to visit one another."

HATHAWAY v. BERGHEIM

Supreme Court of South Dakota
2002 SD 78, 648 N.W.2d 349

[Jody & Heather were divorced in 1993 at which time Heather continued to assume the role of primary caregiver of the parties' son Christian, with joint custody being awarded to the parties. Jody paid child support. Heather remarried and had a second son, Michael. Heather divorced from her 2nd husband, Stephen and was awarded actual physical custody of Michael. Heather remarried a third time. Christian spent the entire summer of 2000 with Jody and Michael spent the summer of 2000 with Heather's 2nd husband, Stephen. Both fathers then filed motions to modify custody so that each would be the primary custodian of his son. The motions were tried at the same time. Dr. Clayborne, licensed professional counselor, did a home study and recommended that Michael should remain with Heather, but that primary custody of Christian be awarded to Jody. Jody was found to be the "best" parent of the three parents involved. Heather was found to be 2nd best and Stephen (father to Michael) was found to be the worst. This appeal involves only the disposition of Christian. The trial court denied Jody's motion for change in custody of Christian. But, in what appears to be an "enigma within a puzzle," the trial court made the finding that it was in Christian's best interests for his custody to be placed with Jody BUT that it was in the best interests for *both* Christian and Michael to remain with Heather. This, thus sets the stage for an examination into "separation of siblings" standard in South Dakota. The South Dakota Supreme Court split 3/2 on the appeal, with the majority affirming the denial of the request to change custody. Edited portions of the opinion follow.]

SABERS, Justice (on reassignment).

* * *

[¶16] Jody argues that the trial court abused its discretion in denying his motion for change of custody because it was in the best interests of Christian to be with him. He argues that the trial court's finding that it was in the best interests of Christian individually to be with him, should override the trial court's finding that it was in the best interests of both Christian and Michael to remain with Heather. He argues that the trial court allowed the rule regarding the separation of siblings to override Christian's best interests.

* * *

[¶19] In determining the best interests of a child, the court must consider the child's "temporal, mental and moral welfare." SDCL 25-4-45; *Fuerstenberg*, 1999 SD 35 at ¶22, 591 NW2d at 806 (citations omitted). The trial court may consider these factors in determining which parent should have primary care of the child: "(1) parental fitness; (2) stability; (3) primary caretaker; (4) child's preference; (5) harmful parental misconduct; (6) separation of siblings; and (7) substantial change in circumstances." *Price*, 2000 SD 64 at ¶18, 611 NW2d at 430. These factors serve as guidelines and the trial court need not address all of them. The trial court's decision regarding custody, however, "should be 'balanced and methodical' and should be based on 'the best interest of children and not the shortcomings of the custodial parent.'" *Id.* at ¶56 (citing *Fuerstenberg*, 1999 SD 35 at ¶35, 591 NW2d at 810) (internal citations omitted).

[¶20] The trial court considered each of these factors and determined what was in the best interests of Christian. It found that Heather was a fit parent and Christian's primary caretaker. It found that there were no compelling reasons to separate the siblings, Christian and Michael, and that, therefore, it was in the best interests of both children as siblings to remain in the custody of their mother. In other words, even though it might have been in the best interests of Christian, individually, to be with his father, when all things are considered, it was in his best interests to be with his brother and his mother, and not his father.

[¶21] The trial court did make a determination of Christian's best interests. It found that in these

circumstances it was in the best interests of both children as siblings to remain in the custody of their mother. There is no real need to unsettle the settled custody situation and the settled custody law.

[¶22] Jody has failed to show that the trial court abused its discretion in determining that custody of Christian should remain with Heather. Therefore, we affirm.

[¶23] AMUNDSON and KONENKAMP, Justices, concur.

[¶24] GILBERTSON, Chief Justice, and GORS, Acting Justice, dissent.

GILBERTSON, Chief Justice (dissenting).

[¶26] I respectfully dissent. The best interests of the child as an individual person has been, and should continue to be, the standard by which child custody determinations are to be made by a trial court.

[¶27] The trial court concluded that it was in Christian's individual best interest to change his custody to his father, Jody. It also concluded that there was no compelling reason to separate Christian from his half-brother Michael. As a result, it ultimately concluded that it was in the best interests of both siblings to remain in their mother's custody. The trial court's two conclusions regarding Christian's best interests are inconsistent with each other. Accordingly, the case should be reversed and remanded.

* * *

[An extensive analysis based on the history of the “best interests” statute is omitted. In this analysis, J. Gilbertson argues that a change in the wording of the statutory language from “children” to “child” in 1994 and the absence of a specific codification of the “compelling interest” rule supports the conclusion that there is a “clear legislative mandate that a determination of the best interests of a child is to be based solely on that child’s interests alone.” quoted material found in last sentence of ¶ 30.]

* * *

[¶33] Here the trial court concluded that there had been a substantial change in circumstances and that Christian's best interests were served by awarding custody to his father. It then concluded that it was in the best interests of both half-siblings to remain with their mother. It, in effect, used the general rule against splitting custody to trump what it determined was Christian's best interest. If it was, in fact, in Christian's best interest to be in his father's care, that provides the compelling reason to split custody. As merely one factor in determining a child's best interest, the general rule against splitting siblings, "must yield to the paramount principle that the best interests of each individual child must be the determining factor in custody decisions." *Haag v. Haag*, 485 A2d 1189, 1193 (PaSuperCt 1984).

[¶34] A rule adopted with good intentions to be a guide to trial courts as to what constitutes the best interests of an individual child has now taken on a life of its own. Rather than the flexible analytical tool it was intended to be, it now has become a wooden barrier that must be vaulted before the best interests of the child can be addressed.

* * *

[¶38] In this case, the order appealed from should be reversed and the case remanded for a redetermination of Christian's best interest, giving the separation of siblings' issue its proper weight and no more. For the above reasons I respectfully dissent.

[¶39] GORS, Acting Justice, joins this dissent.

NOTE

This case is reviewed in Karen Paige Hunt, “*Hathaway v. Bergheim*: Determining the Best Interests of Siblings under South Dakota’s Rules for Deciding Custody,” 48 S.D.L.Rev. 543 (2003).

C. Primary Caretaker

In the preceding case (*Miller v. Miller*), the court noted the fact that the mother had been the child's "primary caretaker" prior to the separation of the parties. There has been a trend among some jurisdictions to give favorable consideration to the parent who has been the child's primary caretaker. Some jurisdictions establish a presumption in favor of the primary caretaker in custody disputes. Such a presumption could be established judicially or legislatively. *See generally*, Marcia O'Kelly, "*Blessing the Tie that Binds: Preferring the Primary Caretaker as Custodian*," 63 North Dakota Law Review 481 (1987).

Reconsider the "tender years presumption." What is all that wrong with it? Even though the legislature has repealed it, the fact remains that it might still exist in the minds of the judges who are deciding the custody cases. Consideration for the "primary caretaker" is certainly important. It is probably considered (and has probably been considered) in most custody cases even though not articulated as such. One might well argue that the "primary caretaker" presumption is nothing more than the "tender years" presumption stated in gender-neutral manner. Perhaps the language "primary caretaker" more appropriately describes what the courts have been considering all along.

The South Dakota legislature recognized the importance of the "primary caregiver" when it enacted SDCL 25-4A-11 in 2002. Under the current wording of this statute, when an divorce (or other custody action) is filed, the custody of a minor child shall remain with the parent who has been the "primary caregiver" for the child for the majority of the time in the 12 months preceding the filing of the action. Prior to 2002, the South Dakota statutes had not addressed the "primary caretaker" or "caregiver" consideration.

JONES v. JONES

Supreme Court of South Dakota, 1987.
423 N.W.2d 517.

MORGAN, Justice.

In appeals # 15509 and # 15734, Mark Edward Jones (father) appeals from decisions of the trial court giving physical custody of the parties' daughter to Julie Marie Jones (mother). We have consolidated the appeals for purposes of this opinion and affirm on both issues.

Father was 21 years old and mother was 19 years old at the time of their marriage. Their daughter, Jennifer, was born on December 14, 1984. The parties lived in Sioux Falls, where father was a mechanic and mother worked at Litton Industries and at Albertson's Grocery Store. During the marriage, primary responsibility for child care rested with mother, although father assisted with child care when mother worked nights.

In October of 1985, mother, dissatisfied with the marriage, moved out of the family home and took Jennifer with her. Mother testified that the primary reasons for the move were father's bad temper

and his preoccupation with cars and television. Mother and Jennifer lived in the home of some friends for about a month before they settled into an apartment of their own. Mother continued to work at Litton until Litton laid off its assembly workers in January of 1986. She then found a job at a dry cleaners, but quit the job in anticipation of being called back by Litton. When the job at Litton failed to materialize, she obtained unemployment insurance benefits and began taking night classes at the National College of Business.

Following the separation, mother dated several men and had sexual relations with two of them. She believed that dating fulfilled her need for adult companionship. Mother admitted that she used marijuana a few times and she once went with a man to obtain some marijuana. Father also admitted using marijuana during the parties' marriage. After mother moved into her own apartment, one of her female friends roomed with her. For about a month the roommate's boyfriend also lived in the apartment. There was some drinking and drug use in the apartment at that time, but it was evidently not in the presence of Jennifer.

Father, who maintained steady employment as a mechanic during the separation, cared for Jennifer during his scheduled visitation periods and on other occasions upon mother's request. He assisted in potty training Jennifer and began taking her to church. On one occasion, father observed what appeared to be cigarette burns on Jennifer's eye and ear. Father testified that a doctor examined Jennifer and contacted the child protection agency. After monitoring the situation, the agency found no reason to take any action. During the separation, father and several of his friends tried to keep track of mother's activities to prove that she is an unfit mother. Once father put Jennifer in the car at 5:00 a.m. and drove across town to see if mother was at her boyfriend's house. In another incident, father gave mother a letter in which he stated, "I, Mark Jones, being of confused mind and body, do hereby leave to my wife my life insurance, car and retirement plan...." In the letter he also declared an intent to give away other items of personal property and stated that he was sorry if he hurt anyone.

The trial court granted each party a divorce and gave father and mother joint legal custody of Jennifer; actual physical custody of Jennifer was given to mother. The trial court stated that many of the examples of mother's conduct were "unacceptable as parental conduct," but the court attributed them to her immaturity. Despite this, the court found that from Jennifer's birth until the divorce trial, mother was primarily responsible for the daily supervision, organization, and care of the child, "all of which she performed at a high level." Further, the trial court found that until the separation of the parties, father did not display an interest in the child's care. The trial court concluded that Jennifer's best interests would be served by awarding physical custody to mother. The trial court also intended to request that a court services officer monitor the custodial care of the child.

The first issue raised by father is whether the trial court abused its discretion by awarding actual physical custody of Jennifer to mother. Father argues that mother's continual movement between jobs, "nomadic lifestyle," sexual conduct, and association with persons of questionable reputation are detrimental to Jennifer, and that the child's best interests would be served by placing her with father.

The paramount consideration in deciding the issue of child custody is the best interests of the child. SDCL 30-27-19. The trial court has broad discretion in awarding custody of minor children, and the trial court's decision will be reversed only upon a clear showing of an abuse of that discretion. *Lindley v. Lindley*, 401 N.W.2d 732 (S.D.1987); *Saint-Pierre v. Saint-Pierre*, 357 N.W.2d 250 (S.D.1984).

After a careful review of the record, we conclude that the trial court did not abuse its discretion in awarding physical custody of Jennifer to mother. Neither parent in this case is a model of maturity. It was undisputed, however, that mother provided most of the care and parenting during the marriage, while father did not take much of an interest in Jennifer until after the separation. Furthermore, the care which mother gave to Jennifer was high quality care. The record reflects that mother is a hard worker, holding down two jobs at one point. As for her movement between jobs, mother cannot be faulted for the periodic layoffs of Litton's assembly workers. Although mother's social activity during the separation is troubling, father failed to present any evidence showing an adverse effect upon Jennifer. Both parties admitted some use of marijuana, while other evidence, such as the letter to mother referred to above, raises questions about father's parental ability. The trial court's decision, based on its first hand opportunity to gauge the credibility and emotional stability of the parties, must be given the appropriate deference mandated under our scope of review. *Saint-Pierre, supra*; *Schmitz v. Schmitz*, 351 N.W.2d 143 (S.D.1984). Since this is a very close case, under our scope of review we would be compelled to affirm the trial court whether it had found for mother or father. Accordingly, we affirm in appeal # 15509.

Shortly after appeal # 15509 was filed, father sought a change in custody because of mother's move from Sioux Falls to Watertown and because of a case of diaper rash suffered by Jennifer. Father claimed that these events constituted a substantial and material change of circumstances since the divorce. The trial court disagreed; it permitted mother to move to Watertown and retain physical custody of Jennifer. Father argues that the trial court abused its discretion by denying his motion for a change of custody.

A parent seeking modification of child custody has the burden of proving 1) that there has been a substantial and material change of circumstances since the decree of divorce was entered, and 2) that the welfare and best interests of the child require the modification. *Larson v. Larson*, 350 N.W.2d 62 (S.D.1984). The mere fact that conditions have changed since the entry of the decree is not sufficient in itself to warrant modification. *Huckfeldt v. Huckfeldt*, 82 S.D. 344, 146 N.W.2d 57 (1966).

Here, mother planned to move into her parents' home in Watertown. In reaching its decision, the trial court ordered a home study to be done on their residence. The study indicated that the home was neat and clean, that it provided a safe environment for the child, and that mother's parents were very supportive of her. In addition, mother planned to attend vocational school in Watertown to acquire new skills. As for the diaper rash, the evidence is conflicting as to its cause. Officials of the Department of Social Services, who were informed of the rash, evidently did not think that it was a serious problem since they took no action to remove Jennifer from mother's custody. Under these circumstances, we conclude that the trial court did not err in denying father's motion for a change in custody.

* * *

Affirmed.

WUEST, C.J., and SABERS and MILLER, JJ., concur.

HENDERSON, J., dissents.

HENDERSON, Justice (dissenting).

Expressly so stating during the trial, the court observed that there was no suggestion at trial that the father was anything but a fit and proper parent. The trial court made an absolute finding that the mother's conduct was "unacceptable as parental conduct." There was a finding by the trial court that the father was a fit and proper parent. We no longer observe the "tender years doctrine," which provided, inter alia, all things being equal, the mother was entitled to custody of a child of tender years. Our State Legislature abrogated this custodial preference based solely upon gender. *Prentice v. Prentice*, 322 N.W.2d 880 (S.D.1982).

Essentially, both appeals should be reversed because there was a clear abuse of discretion in awarding actual physical custody of the minor child of these parties to the mother. A judicial discretion is not an uncontrolled one, and its exercise must have a sound and substantive basis in the testimony. *Aulner v. Aulner*, 296 N.W.2d 533 (S.D.1980).

A "rash" to this child was actually second-degree urine burns caused by the neglect of the mother. This was at a time when her conduct was being monitored by a court services officer due to her "immaturity." In other words, the trial court was watching to see what kind of a mother she would be under dictates of the decree. Needless to say, not changing the child's diapers so that the child ultimately had second-degree burns from urine, is not being a fit and proper parent for the continued custody of a child.

The record is replete of drugs, liquor, and sex, all used and displayed in the presence of this child by the mother. Such conduct is highly detrimental to this child. I would accordingly reverse and respectfully dissent.

NOTE

In *Voelker v. Voelker*, 520 N.W.2d 903 (S.D. 1994), the trial court's award of custody to the mother was affirmed where the mother had been the primary caretaker of the children and the children had both expressed a preference to live with the mother. *Voelker v. Voelker*, 520 N.W.2d 903 (S.D. 1994).

BLASE v. BREWER

South Dakota Supreme Court
2005 SD 7, 692 N.W.2d 785

KONENKAMP, Justice

[¶1.] In this paternity action, the mother and father mediated custody and visitation, and the circuit court approved their agreement. Before the case was completed, however, the mother rescinded her agreement and the matter proceeded to trial. The father now contends that the mediated agreement binds the parties and cannot be disturbed without a showing of a significant change in circumstances. Although a court-approved mediated agreement is binding on the parties, if, after a hearing, the court finds that the best interests of the child require another custody arrangement, then the agreement will not preclude the court from entering an order on child custody at variance with what the parties previously agreed. We affirm the custody order...

* * *

[¶4.] On the question of visitation, the court required the parties to attend mediation. The parties reached a mediated agreement. However, they could not mediate certain other issues, including the child's surname. The court approved the agreement by order on June 9, 2003.

[¶5.] Before a hearing on the remaining issues, Brewer informed the court that she was not satisfied with certain terms in the mediated agreement. Consequently, the court conducted a trial on all the issues and reached a decision inconsistent with the mediated custody agreement. The resulting order, dated October 10, 2003, superseded all earlier orders.

* * *

[¶9.] ... Blase contends that where mediation is "successful" it must be binding. To support his argument, Blase points to the last sentence of SDCL 25-4-61 that states, "The agreement is not binding upon the parties until approved by order of the court." It cannot be denied that once a mediated agreement is approved by the court, the parties to the agreement are bound by its provisions. But the statute does not address to what extent or duration the parties are bound. Therefore, we must look beyond this single sentence to answer whether the Legislature intended to bind the parties and the court to the approved agreement until a change of circumstances is presented.

[¶10.] As authority supporting his argument that public policy requires us to hold mediated agreements sacrosanct, Blase cites Roger M. Baron, *Child Custody Determinations in South Dakota: How South Dakota Courts Decide Child Custody Cases*, 40 SD L REV 411 (1995). In that article, Professor Baron notes that "[p]ublic policy supports settlement and compromise on issues surrounding divorce cases[.]" *Id.* at n21. Fine — but we also agree with Professor Baron when he wrote:

Most divorce cases and custody determinations are settled by agreement. An important question is whether the court is bound by the parties' agreements regarding custody. The answer uniformly given by all courts is "no." In South Dakota, an agreement by the parties is simply "one relevant factor for the court's consideration," and the agreement "does not control the court's exercise of its discretion." Among other things, the court has a duty to ensure that the agreement is in the best interests of the child.

In most cases, agreements by the parties are approved and adopted by the courts. However, parties may occasionally reach agreements which are not necessarily in the best interests of the

child. If this occurs, the court must reject the agreement because it is in conflict with the child's best interests.

Id. at 426-27. We have often confirmed that children's best interests take "chief importance and will prevail over any mere preponderance of a legal right." *Pribbenow v. Van Sambeek*, 418 NW2d 626, 628 (SD 1988) (citation omitted). Here the court approved the agreement, but still owed a duty to ensure that the agreement was in the best interest of the child before issuing a final judgment.

[¶11.] Blase argues that the trial court made no fact finding to justify modifying the temporary order. Instead, Blase contends, the trial court "simply made conclusory statements in its findings of fact that the modification being ordered was in the best interest of the child." Blase points to Finding of Fact 8:

The State of South Dakota has adopted visitation guidelines which are based upon the premise that infants under the age of five have a great need for continuous contact with the primary caretaker who provides a sense of security, nurturing and predictability, and accordingly, it is not in the infant's best interests that the infant be with the non-custodial parent too much.

Regardless of whether this is a conclusion of law or a finding of fact, it was an adequate explanation for the court's ruling. *Cf. Jasper v. Jasper*, 351 NW2d 114, 117 (SD 1984). The child was "under the age of five" at the time the final order was issued, and therefore, the child had "a great need for continuous contact with the primary caretaker who provides a sense of security, nurturing and predictability." These findings support the court's conclusion that "it [was] not in the infant's best interests that the infant be with the non-custodial parent too much."

* * *

[¶16.] Affirmed [as to the custody/visitation rights order, with all Justices concurring on this issue.]

Kreps v. Kreps

Despite fact mother had been primary caretaker, custody of 3 minor children awarded to Father. The trial court in *Kreps v. Kreps*, 2010 SD 12, 778 N.W.2d 835, awarded father primary custody of three minor children despite the fact the mother had served as primary caretaker and despite the fact the custody evaluator's report favored mother. The SD Supreme Court affirmed in a 4-1 decision with the majority opinion being authored by Chief Justice Gilbertson. Two primary issues come into focus in this case:

Primary Caretaker factor is not absolute. In affirming this decision the Court stated, "We have acknowledged that other jurisdictions place greater emphasis on [the 'primary caretaker'] factor than others. However we have always been clear that the trial court analyzes various factors in making custody determinations... We have never held that this factor should prevail over all other factors a trial court may consider." ¶ 28.

Preference for parent who is more likely to foster relationship with opposing parent. In this case the trial court found that the father "is the parent most willing to maturely encourage and provide frequent and meaningful contact between the child and the other parent. [Father] is strongly favored in this regard." ¶ 33. The SD Supreme Court observed that this finding was contradictory to the finding of the custody evaluator, but noted that the evaluator was relying upon "self-reported" statements by the parties. ¶ 35. The SD Supreme Court stated, "In the instant case, the trial court determined that [Father]

was a more credible witness than [Mother]. It also found that [Mother] had blocked [Father's] contact with the children on several occasions, attempting to alienate the children from him, and regarded the children as more hers than his. Although [Mother] strongly disputes it, there is an evidentiary basis in the record to support these findings of fact." ¶ 35.

Overreaching and unwarranted findings. Justice Konenkamp dissented. In his dissent, Justice Konenkamp expressed dissatisfaction with the manner in which the adversarial process in custody cases may result in the trial court's adoption of "overreaching and unwarranted findings prepared by counsel for the winning side." Justice Konenkamp urges that trial courts should render decisions "reflecting their own independent observations and reasoning." According to Justice Konenkamp, "Although the court at the close of trial issued an oral decision from the bench, ... much of findings the court later signed as proposed by winning counsel reflect not the expression of independent judicial thought but the rhetoric of adversarial excess." ¶ 44.

The ADA and Child Custody Determinations

The Americans with Disabilities Act (ADA) does not preclude trial court's consideration of parent's health and physical condition as a factor in the determination of custody, according to the decision in *Arneson v. Arneson*, 2003 SD 125, 670 N.W.2d 904. In this case the trial court awarded custody of the parties' only child to wife. Husband has cerebral palsy and is in a wheelchair. Husband appealed arguing error because of federal ADA (American with Disabilities Act). Husband also argues that trial court wrongly applied the "tender years presumption.

The South Dakota Supreme Court affirmed the trial court in all respects (5-0). The Court rejected idea that ADA precludes the trial court's consideration of H's health and physical condition as a valid factor in deciding custody. "No authority supports the extension of the ADA into parental custody disputes." ¶ 18. The Court also stated, in ¶ 19, "Although the ADA is not applicable here, we stress that a physical disability is not a *per se* impediment to custody."

The Court elaborated in ¶ 21 of the opinion as follows, "Although the health and physical condition of a parent is a valid factor in determining a child's best interest, a judge must neither presume the existence of limitations nor fail to adequately consider other relevant factors. When faced with a parent's disability in a custody dispute, the judge should consider: (1) the person's actual and potential physical capabilities; (2) how the parent has managed and adapted to the disability; (3) how the other members of the household have adjusted to it; and (4) 'the special contributions the person may make to the family despite, or even because of, if any, the handicap' [citing a California case]."

This opinion also reaffirms the guidelines set forth in *Fuerstenberg v. Fuerstenberg*, 1999 SD 35, 591 N.W.2d 798. Additional observations by the Court are set forth below.

In comments from the bench, the trial court emphasized the importance of the role of the mother for this young child. In responding to husband's argument that the trial court had inappropriately "resurrected the 'tender years' doctrine," the Supreme Court noted that wife had been primary caretaker, and that the custody decision was supported by and in accordance with the recommendation of the court-appointed custody evaluator. ¶ 24.

"Concerning the fitness factor, the court found that W was more willing to 'maturely encourage and provide frequent and meaningful contact between the child and the other parent.'" ¶ 22. This case involves the issue of the difficulty which the parties experienced in sharing the child during the parties' separation. The trial court attributed greater responsibility for this difficulty to husband. The trial court found that wife had "demonstrated great willingness to share the child with [husband] whereas [husband] tends to want to hang on to the child to meet his needs rather than focusing on the needs of the child." ¶

25. The Supreme Court found that this was supported by the record which indicated, *inter alia*, that husband was, quoting the trial court, “‘highly resistant to providing monetary support, using the financial issues to attempt to coerce the custody issue...’” ¶ 25.

GUIDING PRINCIPLES FOR CHILD CUSTODY DECISIONS

On March 24, 1999, the South Dakota Supreme Court handed down its opinion *Fuerstenberg v. Fuerstenberg*. Much of the *Fuerstenberg* opinion is reproduced below. This opinion is significant because the Court took the opportunity in this case to set forth a detailed review as to “how” custody decisions are to be made in South Dakota. It is clear in reading this opinion that the Court was setting forth the rules which it intends for trial courts to follow in South Dakota. Many subsequent opinions which deal with child custody, point back to the *Fuerstenberg* opinion as the opinion which establishes the guiding principles for the resolution of child custody cases in South Dakota.

In *Fuerstenberg*, there were basically two issues. The first issue was whether or not the trial court acted appropriately in retaining modification jurisdiction of a child custody decision despite the fact the child had lived with its mother in Minnesota for 10 years. The court ruled that it was within the discretion of the trial court to assert modification jurisdiction. The second issue was whether or not the trial court acted appropriately in transferring custody from the mother (in Minnesota) to the father in South Dakota. The trial court’s decision appeared to be based upon several “negative” aspects of the mother’s behavior, many of which related to mother’s hostilities to the father. The SD Supreme Court reversed and remanded the transfer of custody decision. The trial court was said to have overlooked the “traditional legal factors in deciding the best interest of the child in custody disputes.” This part of the opinion presents an excellent textbook analysis of those “traditional legal factors” including major discussions of “fitness,” “stability,” the role of the “primary caretaker,” expression of the child’s “preference,” the “separation of siblings” (which in this case involves half-siblings), and the modification criterion of “substantial change in circumstances.”

FUERSTENBERG v. FUERSTENBERG

South Dakota Supreme Court
1999 SD 35, 591 N.W.2d 798

KONENKAMP, Justice.

[¶ 1] If a child has lived out-of-state with his mother for ten years following a divorce, may the court that granted the initial custody decree rule on a request for modification from the father who still lives in state? The mother appeals the circuit court's refusal to decline jurisdiction and its order changing physical custody. Because the circuit court entered the initial custody decree and thereafter continued to hear, without objection, custody and visitation disputes between the parents, even though the mother and child lived out-of-state, we conclude the court did not abuse its discretion in finding South Dakota a convenient forum to hear the present dispute. However, we reverse the court's decision to modify custody and remand for a more systematic consideration of the traditional factors relevant to the best interests of the child.

* * *

[¶ 19] With interstate custody disputes, the PKPA plays a superintending role. 28 USC §1738A. Congress enacted the PKPA to create uniformity in dealing with interstate custody determinations, and to fill any gaps in the UCCJA with its variants in many states. The PKPA commands that full faith and credit be given to initial custody decrees rendered in accord with the PKPA. At least to the extent that compliance with the provisions of both the UCCJA and PKPA may be unattainable, the PKPA preempts conflicting state law. *See generally* Roger Baron, *Child Custody Jurisdiction*, 38 SDLRev 479, 487 (1993). Similar to the UCCJA, under the PKPA the state granting the original custody decree maintains exclusive continuing jurisdiction to modify custody decrees so long as the child or one of the contestants remains in that state. 28 USC §1738A(d). As South Dakota was the child's original home state where the initial decree was entered and the father continues to live here, we conclude that the assumption of jurisdiction was not prohibited by the PKPA.

* * *

[¶ 21] ... Therefore, finding no abuse, we affirm the trial court's denial of Jill's motion to decline jurisdiction. We now address the trial court's decision to change custody.

2. Change of Custody

[¶ 22] In deciding the best interests of a child in a custody dispute, the court must consider the child's temporal, mental and moral welfare. SDCL 25-5-10; *Jopling v. Jopling*, 526 N.W.2d 712, 717 (S.D.1995); *see Kost v. Kost*, 515 N.W.2d 209, 212 (S.D.1994) (citation omitted); *Friendshuh v. Headlough*, 504 N.W.2d 104, 106 (S.D.1993) (citing *Peterson v. Peterson*, 449 N.W.2d 835, 837 (S.D.1989)). Between parents adversely claiming custody, neither may be preferred over the other. SDCL 25-5-7. There are no formulas for making child custody decisions. *See, e.g., Hanks v. Hanks*, 296 N.W.2d 523 (S.D.1980); *Spaulding v. Spaulding*, 278 N.W.2d 639 (S.D.1979); *Isaak v. Isaak*, 278 N.W.2d 445 (S.D.1979). It is not for this Court, but for the trial court, to gauge the credibility of the witnesses and to weigh the significance of their testimony. *Kost*, 515 N.W.2d at 212 (citing *Mellema v. Mellema*, 407 N.W.2d 827, 831 (S.D.1987)). Trial courts possess broad discretion in deciding the best interests of a child; their decisions will only be disturbed upon a finding of abuse of discretion. *Id.* (citing *Anderson v. Anderson*, 472 N.W.2d 519 (S.D.1991)).

[¶ 23] Discretion imports wide latitude, but it also imposes solemn responsibility. *Michelson v. United States*, 335 U.S. 469, 480, 69 S.Ct. 213, 221, 93 L.Ed. 168 (1948). Established principles governing child custody decisions cannot be disregarded. Here, the trial court scarcely addressed the traditional factors bearing on the best interests of the child.⁵ Instead, it reproached the mother for what the court perceived as inadequate parenting and lack of cooperation. The court made no findings of fact on the father's fitness, stability, or his parenting assets and liabilities. Indeed, the court made no findings about the father whatsoever, except to note that he was "an involved, concerned parent who exercises his visitation and pays his child support." We encourage trial courts to take a balanced and systematic approach in

⁵ To the trial court's credit, it insisted that Keith receive an impartial psychological assessment. That was the reason he was taken to Dr. Sivesind on both occasions. "The trial court has the right and the duty to have appropriate studies and evaluations made[,] ... even if counsel and the parties fail to present all types of evidence needed for making an informed, fair, and impartial custody decision." *Anderson*, 472 N.W.2d at 523 (Amundson, J., dissenting).

these cases. Child custody disputes should not be decided solely on a listing of faults ascribed to one parent or on the petty and often extraneous quarrels between former spouses. A few of the guiding principles, pursuant to the "best interests" standard, a court may use in adjudging the facts to determine who will have the primary care of a child are set out below.

A. Fitness

[¶ 24] Which parent is better equipped to provide for the child's temporal, mental and moral welfare? SDCL 25-5-10. A court need not find one parent unfit in order to give custody to the other. The shortcomings and foibles of the parents are not determinative. An award of custody is not a reward or punishment for good or bad behavior. *Wiesner v. Wiesner*, 80 S.D. 114, 119 N.W.2d 920, 922 (1963). Some of the factors important to the fitness question are: (1) mental and physical health, *see, e.g., Aulner v. Aulner*, 296 N.W.2d 533 (S.D.1980); *Masek v. Masek*, 89 S.D. 62, 228 N.W.2d 334 (S.D.1975) [*Masek I*]; (2) capacity and disposition to provide the child with protection, food, clothing, medical care, and other basic needs; (3) ability to give the child love, affection, guidance, education and to impart the family's religion or creed; (4) willingness to maturely encourage and provide frequent and meaningful contact between the child and the other parent; (5) commitment to prepare the child for responsible adulthood, as well as to insure that the child experiences a fulfilling childhood; and (6) exemplary modeling so that the child witnesses firsthand what it means to be a good parent, a loving spouse, and a responsible citizen.

[¶ 25] The trial court made few findings on these vital issues. It found that the mother had to be ordered in the past not to provide meals in bars to Keith. Yet apparently this had not been a problem since the last custody decision in 1995. It found that the mother had "consistently" signed off on Keith's uncompleted homework assignments. The mother conceded she had mistakenly signed Keith's homework logs, but there was no substantiation in the record to establish that she had "consistently" done this. In fact, information supplied by the school indicated that Keith was completing his homework assignments. The court also found that Jill had not provided releases to the school and Keith's doctors, so that Glenn could have the same information about Keith that Jill had. It is not clear from the record, however, the extent of this problem or how this adversely affected Keith. Notably, none of the fitness considerations were applied to the father.

B. Stability

[¶ 26] Who can provide a stable and consistent home environment? *Jasper v. Jasper*, 351 N.W.2d 114, 117-18 (S.D.1984); *Langerman v. Langerman*, 336 N.W.2d 669, 671-72 (S.D.1983); *Haskell v. Haskell*, 279 N.W.2d 903, 906 (S.D.1979); *Wright v. Stahl*, 73 S.D. 157, 39 N.W.2d 875, 876-77 (S.D.1949). Factors to be considered in this category include: (1) the relationship and interaction of the child with the parents, step-parents, siblings and extended families, *Hansen v. Hansen*, 327 N.W.2d 47, 48-49 (S.D.1982); (2) the child's adjustment to home, school and community, *Jasper*, 351 N.W.2d at 117-18; (3) the parent with whom the child has formed a closer attachment, as attachment between parent and child is an important developmental phenomena and breaking a healthy attachment can cause detriment;⁶ and (4) continuity, because when a child has been in one custodial setting for a long time pursuant to court order or by agreement, a court ought to be reluctant to make a change if only a theoretical or slight

⁶ Of course, a child may be attached to a parent for the wrong reasons. *See Yarnall v. Yarnall*, 460 N.W.2d 161, 163-64 (S.D.1990) (mental health professionals concluded that children were attached to mother due to mother's indoctrination of hatred toward father).

advantage for the child might be gained. Otherwise, the child's sense of sustainment and belonging may be unnecessarily impaired.⁷ In these circumstances, the court should discern a distinct need to remove a child from one setting and a reason to place the child in a new one.

[¶ 27] The trial court made no findings on these important considerations. Yet, according to Dr. Sivesind, while in the custody of his mother, "Keith has been loved and well taken care of." Also, according to Sivesind's first report, Keith was "happy, healthy, and psychologically well functioning." In his second report, Sivesind saw little change in Keith's situation.

C. Primary Caretaker

[¶ 28] Who is more committed and involved in parenting the child? *Saint-Pierre v. Saint-Pierre*, 357 N.W.2d 250, 255 (S.D.1984). In some jurisdictions the "primary caretaker" parent is given preference in custody disputes either by statute or case authority. *See Garska v. McCoy*, 167 W.Va. 59, 278 S.E.2d 357 (W.Va.1981). Here, this factor is important not by reason of any preference it might accord, but because it is a fair indicator of which parent has been more responsible to the child in the past. *See generally Voelker v. Voelker*, 520 N.W.2d 903, 907 (S.D.1994) (mother, as primary caretaker, was proper custodial parent); *Kost*, 515 N.W.2d at 212 (custody award to father of handicapped child upheld as father was parent primarily responsible for care and mental development of child). After a custody dispute begins, some contestants try to make themselves appear as good as possible. But the trial court must consider who was more devoted to the child when there was no court to impress. The primary caretaker can be identified by determining which parent invested predominant time, care and consistency in raising the child. It is evidenced in such matters as spending time with the child, preparing meals, playing, attending to medical care, choosing clothing, involvement in school, attending the child's extracurricular activities, reading to the child, preparing birthday parties, knowing the pediatrician, consistent disciplining, arranging transportation, and providing appropriate clothing, foods, and toys. Steinberg, *Parental Custody: An Overview*, Trial, April (1981). Closely related to this question is the issue of which parent has more time available to spend with the child. *Prentice v. Prentice*, 322 N.W.2d 880, 882 (S.D.1982).

[¶ 29] Identifying the primary caretaker becomes less important as the child grows older and more independent. A maturing child will probably need more guidance and discipline than the nurturing required in younger years. A person who was the primary caretaker during the child's early youth may still be the best person to care for the older child, but this is not universally true, because different parenting skills are required. Jeff Atkinson, *Criteria for Deciding Child Custody in the Trial and Appellate Courts*, 18 FamLQ 1, 18 (1983). The trial court made no findings in this area, although it is obvious from the record that Jill had been Keith's primary caretaker all his life. It is also disturbing that Dr. Sivesind reported that Keith's former step-father was his "primary male role model and caretaker in his life from 1987 to 1995." (emphasis added).

D. Child's Preference

⁷ Trial courts should not underestimate the importance of maintaining stability in children's lives.

[A]lthough courts have considered both the remarriage of the noncustodial parent and the custodial parent's sexual activity as factors supporting the application to modify custody, it appears that neither factor necessarily supports such a change. When more meaningful variables are considered-- such as interparental conflict, residential changes, and the young child's attachment needs--it becomes clear that custody modification is justified only in special cases.

Joan G. Wexler, *Rethinking the Modification of Child Custody Decrees*, 94 Yale LJ 757, 760 (1985).

[¶ 30] "If the child is of a sufficient age to form an intelligent preference, the court may consider that preference" in deciding custody. SDCL 25-4-45; *Hansen*, 327 N.W.2d at 49; *Isaak*, 278 N.W.2d at 447; *Pochop v. Pochop*, 89 S.D. 466, 233 N.W.2d 806, 808 (1975). We think it is especially important to give attention to the needs and wishes of children either approaching or in adolescence. Of course, the final decision remains in the hands of the court, but the child's concerns deserve consideration. The trial court made no findings on this factor even though Keith emphatically and repeatedly told all the experts that he wanted to remain with his mother.

E. Harmful Parental Misconduct

[¶ 31] Where there is no evidence that a parent's marital misconduct has a harmful effect on a child, it should not be taken into account in awarding custody. *Hanks*, 296 N.W.2d at 525; SDCL 25-4-45.1. On the other hand, when marital misconduct has a demonstrable effect on the child, the fitness of the culpable parent is brought into question. *Madson v. Madson*, 313 N.W.2d 42, 43-44 (S.D.1981); *Haak v. Haak*, 323 N.W.2d 128, 130 (S.D.1982). Furthermore, the harmful effect is self-evident when parental misconduct is committed in the presence of a child old enough to perceive the misconduct. *Wolff v. Wolff*, 349 N.W.2d 656, 658 (S.D.1984); *Nauman v. Nauman*, 336 N.W.2d 662, 664 (S.D.1983) (although court did not condone mother's practice of living with boyfriend, change of custody question was moot after mother married him); *Rivers v. Rivers*, 322 N.W.2d 864, 865 (S.D.1982) (modification of visitation proper because father's practice of living with a woman contradicted religious values mother was trying to teach child). The court found that Jill permitted her boyfriend to stay at her home overnight. The court specifically questioned the moral message this might impress on Keith and his sister. But this factor, like the others, is only one indicator in a matrix of considerations. See generally *Van Driel v. Van Driel*, 525 N.W.2d 37, 39 (S.D.1994). It still must be balanced with all other factors and with the other parent's benefits and shortcomings.

F. Separating Siblings

[¶ 32] Siblings should not be separated absent compelling circumstances. *Mayer v. Mayer*, 397 N.W.2d 638, 642 (S.D.1986) (citation omitted). This is no less significant when children are half-siblings. *Id.* at 644 (citation omitted). "Justice requires that society exercise its moral duty to insure that children in a family enjoy the right to remain together, to share each other's lives, and to grow up together, until such time as necessity and the welfare of the children, itself, requires their separation." *Id.* Keith and Allison are only three years apart. A court ought to be especially concerned about keeping together siblings who are at or near the same age. Of course, maintaining children in the same household should never "override the controlling question of their best interests." *Crouse v. Crouse*, 1996 SD 95, ¶ 21, 552 N.W.2d 413, 419. By all accounts, Keith had a close relationship with his sister. In its oral decision given at the end of the custody hearing, the trial court remarked that their relationship had been a substantial consideration in the past, as the court had previously strove to keep them together. The court stated the present changed circumstances justified overriding that consideration. Yet the court made no fact findings on what compelling circumstances existed to justify separating Keith and Allison. It simply entered a conclusion of law holding that compelling circumstances made it in Keith's best interests to live with his father.

G. Substantial Change in Circumstances

[¶ 33] It has long been the rule in South Dakota that, to modify a custody decree rendered after a contested hearing, the moving party must show a substantial change in circumstances. SDCL 25-4-45;

see Kappenman v. Kappenman, 523 N.W.2d 410, 413 (S.D.1994); *Andersen v. Andersen*, 399 N.W.2d 363, 365 (S.D.1987); *Masek v. Masek*, 90 S.D. 1, 237 N.W.2d 432, 434 (S.D.1976) [*Masek II*]. This requirement shields children and parents from the incalculable detriment caused by "endless and vexatious litigation[.]" *Masek II*, 237 N.W.2d at 434.

[¶ 34] To prevail, Glenn had to show a substantial change in circumstances from the time of the court's denial of his request for reconsideration in August 1995. Although the court rendered fact findings adverse to the mother, it made no findings on what substantial changes occurred between the custody hearings of 1995 and 1997. Sivesind's report indicated no substantial change. A trial judge, of course, is not bound to accept an expert's opinion. Yet the court, after taking some testimony, adjourned the hearing and recommended that Glenn take Keith back to Sivesind for a second evaluation because his earlier report indicated that Keith, in the court's words, was "perfectly psychologically well adjusted." The court reasoned, "If Dr. Sivesind would say he's perfectly adjusted like he was two years ago, I would like to see that." Sivesind's second report effectively confirmed exactly what the court asked to see.

Conclusion

[¶ 35] The guidelines outlined above are, in most instances, merely consultative. A court is not bound to make a finding on every one. Yet in important matters of child custody, a court's decision should be balanced and methodical. After examining the record and the court's findings, we believe the trial court abused its discretion in failing to assess both Glenn and Jill as parents and in overlooking the traditional legal factors in deciding the best interests of the child in custody disputes. On remand, the court will have the opportunity to reconsider the evidence in light of these factors and to compare Keith's circumstances while living with his father.

[¶ 36] Affirmed in part, reversed in part, and remanded.

[¶ 37] MILLER, Chief Justice, and AMUNDSON and GILBERTSON, Justices, concur.

[¶ 38] SABERS, Justice, concurs in result.

SABERS, Justice (concurring in result).

[¶ 39] I concur in result of a reversal and remand for a new hearing because siblings, even half siblings, should not be separated absent compelling reasons. Here, it appears that there are no compelling reasons to separate these half siblings. *Mayer v. Mayer*, 397 N.W.2d 638, 642 (S.D.1986) (citations omitted).

NOTES

1. In *Price v. Price*, 2000 SD 64, 611 N.W.2d 425, the SD Supreme Court again reversed an award of custody that was made in a modification proceeding. In this case, the reversal came after the child had actually been living with the mother in New York (pursuant to the trial court's modification order) for almost a year. The Supreme Court in this case followed the principles established in the *Fuerstenberg* opinion which was decided about one year earlier. These principles clearly elaborate the many points of inquiry which are to be pursued under the "best interests of the child" criteria. Although the SD Supreme Court indicates that the trial court is not specifically required to make findings on each point of inquiry, the trial court's decision is expected to be 'balanced and methodical.' (Paragraph No. 56, 611 N.W.2d at 436.) In this case, the modification of custody in favor of the mother was found to be reversible error primarily because of the following factors: 1) the mother's history of belittling the father and attempting to alienate the child against the father; 2) the mother's failure to complete a psychological evaluation and be enrolled in a parenting class from a trained mental health professional; 3) the father had been providing stability in the child's home environment for nearly 5 years; 4) the father had been the primary caretaker for the child; 5) the child's stated preference for the mother appeared to have been coached and primed by the mother prior to the hearing; and 6) the lack of findings or evidence to show any cessation of the mother's previously-established harmful conduct (telling the child how angry she was at the father, that his father wanted to have him "aborted" during her pregnancy, referring to father as 'your dumb father,' and saying that father might get AIDS from sleeping with his fiancé'); and 7) lack of "compelling reasons" to separate the child from his older sibling who remains in the father's custody. Notably, all five justices concurred in the portion of this opinion which reversed the award of custody to the mother. This case is theoretically (or maybe academically) interesting in that the mother, who had the burden of proving both "a substantial change in circumstances" and that the change was in the "child's best interest" was found to have adequately shown the first half of this criteria, i.e., that there had been "substantial change in circumstances," but she was unable to show that the change was in the child's "best interest." The SD Supreme Court stated it was "convinced that [father] is the parent best equipped to handle [child's] 'temporal, mental and moral welfare.'" (Paragraph no. 57, 611 N.W.2d at 436.)

2. The custody award of four year old son to Wife was affirmed on appeal in *Zepeda v. Zepeda*, 2001 SD 101, 632 N.W.2d 48, as having been appropriately made by the trial court under the "guiding principles" set forth in the *Fuerstenberg* decision by the SD Supreme Court in 1999. In particular, evidence of wife's "highly erotic" cybersex internet conversations and evidence of wife's sexual relations with another man in the marital home did not demonstrate a harmful effect on the child. The trial court found wife's conduct "appalling," but still awarded her custody. This case follows the well-established principle in SD that marital misconduct alone is not a controlling factor in custody decisions, but when such misconduct results in demonstrable harm for the child, then it becomes an issue as to parental fitness. The SD Supreme Court noted that the wife's misconduct all occurred in a three month time span. The "guiding principles" of *Fuerstenberg v. Fuerstenberg*, 1999 SD 35, 591 N.W.2d 798, are referred to by the Court as the foundation for custody decision making in SD, with the *Fuerstenberg* decision recognizing that "In the end, our brightest beacon remains the best interests of the child." (Paragraph 13 of opinion.)

3. Custody evaluator's recommendation in favor of father upheld, notwithstanding mother's allegations of domestic abuse by father. *Stavig v. Stavig*, 2009 SD 89, 774 N.W.2d 454 is a unanimous *per curiam* opinion affirming the trial court's transfer of custody of the parties' 7 year old son from mother to father. A 38 page report filed by a custody evaluator favored father. Mother was unsuccessful in her attempt to disqualify father as a custodian based on her allegations of domestic abuse. This opinion reviews the relatively new statutory provisions (SDCL 25-4-45.1 and surrounding statutes) in connection with the rebuttable nature of the presumption arising out of the "the conviction or history of domestic abuse." The Court states, *inter alia*, that mother's "allegations of domestic abuse do not meet the definition of domestic abuse, SDCL 25-10-1(1)."

4. Failure to adequately support child is relevant factor for court's consideration in determining the "best interests and welfare" of a child in connection with custody decision. The trial court took up a modification of custody request filed by father in *Pietrzak v. Schroeder*, 2009 SD 1, 759 N.W.2d 734. The key issue in this dispute concerning the mother's behavior appears to be her tendency to cause parental alienation in connection with the child's relationship with the father. The key issue concerning the father's behavior revolves around his ongoing failure to pay child support. The trial court "held that the child support dispute was irrelevant to the custody matter"(¶ 32) and ruled for father. The SD Supreme Court reversed in a 3/2 decision. The Court's opinion is authored by Chief Justice Gilbertson. Justices Zinter and Meierhenry dissent. As to the matter of child support, the Court holds that father's behavior is an important and relevant consideration because the duty to support one's child is "paramount" and part of the calculus of determining the "best interests and welfare" of the child. Additionally, the Mother was awarded \$5,000 in appellate attorney fees. Following are some comments made by the Court in this case:

To suggest that a father with a net worth over \$600,000 and cash flow limitations from his farming operation should be excused from timely paying a \$363.00 monthly child support obligation is an invitation to any parent experiencing financial difficulties (real or imagined) to refuse to comply with support obligations. Furthermore, [Father's] repeated use of the legal system to deny [Mother] child support payments was not appropriate parental conduct. ¶ 52.

This was not a case of choosing between two equally satisfactory parents. The difference between the parents that becomes clear on review is their respective ability and willingness to provide for [child's] basic food, shelter and clothing needs. Father demonstrated a clear disregard for [child's] wellbeing when he fought tooth and nail to maintain his child support obligation for [child] at \$150.00 per month, especially in light of [Mother's] modest part-time income, higher education expenses, and lack of assets. [Father] used the full power of his financial resources to keep from paying an additional \$213.00 per month for the basic necessities of life for his child. Instead, [Father] expended at least \$3,678.61 for [Mother's] attorney fees which he was court ordered to pay, in addition to his own legal expenses. As previously noted, [Father] finally paid his overdue child support in the amount of \$3,570.00 the week before trial and \$2,530.78 in medical expenses on day two of the trial... While the trial court did find [Father's] past failure to pay his support obligation "troubling," it found it was not a serious concern. ¶ 54

On review, we consider [Father's] failure to adequately support his child of grave concern... [Father's] failure to adequately provide for his child cannot be justified. "Paramount" means just that – paramount with no caveats. ¶55.

5. **Custody Award to Father Affirmed.** In *Berger v. Van Winsen*, 2007 SD 127, 743 N.W.2d 136, we find a custody dispute between the (unmarried) parents of their 6 year old son. The trial court ordered a home study which favored father, finding that “the home and environment provided by [father] to be much more stable than [mother’s] home.” ¶ 8. Father had been serving as the primary caretaker for the child going into the hearing. Furthermore, the person who conducted the home study, “noted that [father] did a better job of encouraging and facilitating [mother’s] relationship with [the child].” ¶ 16. The trial court ruled in favor of father. The SD Supreme Court affirmed in a unanimous decision with the opinion authored by Justice Sabers.

6. **Custody Award to Father Affirmed.** In *Walker v. Walker*, 2006 SD 68, 720 N.W.2d 67, wife appealed the trial court’s award of primary physical custody of the parties’ two minor children to husband. The SD Supreme Court affirmed, finding that the trial court had “carefully and methodically considered all the evidence.” The SD Supreme Court also ruled against wife on her assertion that (despite wife’s failure to call the evaluator to the witness stand) the parties’ pre-trial custody evaluation should have been admitted into evidence – the court held that wife did not properly preserve this issue because she did not make an offer of proof or attempt to introduce the evidence at trial.

D. Relocations Out of State and Country

1. Uniform Child Abduction Prevention Act

South Dakota enacted the Uniform Child Abduction Prevention Act (UCAPA) through the passage of Senate Bill 88 in 2007. This new Act is found as subchapter SDCL 26-18, occupying the statutory provisions of SDCL 26-18-1 through 26-18-12. Supporting testimony stated that in 1999 there were 262,000 children abducted in the United States, with 78% being done by family members or close members of the family. The Uniform Law Commissioners promulgated this Act in 2006. Provisions of this Act are set forth at the end of Chapter 5 of this book.

This Act provides a broad grant of standing for those who may bring an action seeking “abduction prevention measures.” Those granted standing include, “A party to a child-custody determination or another individual or entity having a right under the law of this state or any other state to seek a child-custody determination for the child.” This Act also specifically permits a “prosecutor or public authority designated under SDCL 26-5B-315” to “seek a warrant to take physical custody of a child” or to seek “other appropriate prevention measures.” Additionally, this Act permits a court to act on its own motion.

An “abduction prevention order” may be entered if the court finds that there is a “credible risk of abduction.” This Act sets forth an extensive list of the forms of relief that may be granted in the “abduction prevention order.” (See forms of relief set forth below.) This Act addresses the issues related to inter-state abductions as well as to international abductions.

Furthermore, in order to prevent “imminent abduction,” a court may issue a warrant for physical custody of the child. The act specifically allows the issuance of an ex parte warrant for physical custody of a child if “there is a credible risk that the child is imminently likely to be wrongfully removed.”

D. Relocations Out of State and Country

2. Relocations at the Time of the Divorce

NOTES

1. An automatic restraining order is imposed by SDCL 25-4-33.1 upon the filing of a summons and complaint for divorce (or separate maintenance). Subsection (3) provides that both parties are, until further order of the court, restrained “from removing any minor child of the parties from the state without the written consent of the other party or an order of the court.”

2. In *Berens v. Berens*, 2004 SD 121, 689 N.W.2d 207, the trial court’s award of primary custody of two children (the son, age 11, and the daughter, age 7) to the husband was affirmed on appeal. Wife had relocated to Oregon upon separation to be with her new boyfriend. Wife had attempted to bring domestic violence cases against husband but without success. The wife was found to lack “credibility” in her assertions of domestic abuse against husband based upon her history of bringing false and pretextual allegations. The Court also rejected the arguments of the wife that husband was unfit to be primary custodian based upon his high cholesterol, his inability to read (illiteracy), and his alleged mental problems.

As to the “relocation” issue, the trial court had actually entered order giving wife primary custody if she would move back to SD within 30 days. Wife chose to stay in Oregon. The South Dakota Supreme Court held that the conditional award to wife if she would relocate back to South Dakota was improper, but the Court also upheld the primary custody award to husband. Court noted that husband’s continued residence in SD with his extended family supported the notion of “stability” for the children who lived in South Dakota. The Court stated, in ¶ 14, “Based on the evidence, the trial court concluded that both parents were fit to be the children’s primary custodian; however, it was not in the best interest of the children to move with Mother. The court has the responsibility to look at what is in the best interest of the children. Moving away from family, friends, and familiar surroundings may, in some cases, not be in their best interests.”

3. There have been a few cases in which, as a result of the trial court’s award of custody in a divorce proceeding, the minor child was relocated to another country. These relocations out of the country were addressed in the corresponding appeals.

a. In *Lindley v. Lindley*, 401 N.W.2d 732 (S.D. 1987), the father who was stationed in Okinawa was awarded custody of the parties’ daughter. Mother, who was living in San Diego at the time, argued on appeal that the award to the father was a de facto termination of her parental rights. The trial court was affirmed. The South Dakota Supreme Court stated, “under the circumstances of this case, visitation would necessarily be difficult no matter which parent was granted custody. The best interests of the child prevail over the noncustodial parent’s privilege of visitation.”

b. In *Bolenbaugh v. Bolenbaugh*, 237 N.W.2d 12 (1975), the South Dakota Supreme Court upheld the trial court’s grant of custody of the parties’ five-year-old daughter to the mother who was then allowed to return to her home in Scotland. The court noted that custody should not ordinarily be awarded to a nonresident or to one contemplating immediate removal from the state. Nonetheless, the appellate court was unable to find that the trial court had abused its discretion.

4. **Wife's removal of children to North Dakota upheld.** In *Maxner v. Maxner*, 2007 SD 30, 730 N.W.2d 619, we find a pro se appeal by the husband in a divorce proceeding. The wife did not make an appearance on the appeal. The SD Supreme Court affirmed all aspects of the trial court's ruling in a unanimous opinion by Justice Konenkamp. One of the issues in the appeal dealt with the trial court's decision to allow the wife and children to move to North Dakota (where wife's extended family resides) while the divorce case was pending. The SD Supreme Court held that although removal of a child by a parent out of state is "generally against policy," the trial court did not error in permitting mother to take the parties' child to North Dakota under the facts of this case. ¶ 23.

D. Relocations Out of State and Country

3. Post Divorce Relocations

The matter of relocation is an appropriate subject for the parties' separation agreement. The ability of a custodial parent to relocate with the children may be restricted or at least addressed. At a minimum, the non-custodial parent would want to secure the right to notice and an opportunity to be heard prior to the relocation of his child or children to a distant location.

This matter of "relocation" has been a source of much litigation in recent years. The legislatures of various states have also been active in dealing with this issue. The substantive law of each state varies as to the criteria necessary for the custodial parent to establish in order to justify the relocation out of state. New York, for example, requires the custodial parent show "exceptional circumstances" which justify the relocation. See generally, Roger M. Baron, *Refining Relocation Laws — The Next Step in Attacking the Problem of Parental Kidnapping*, 25 Texas Tech Law Review 119, 125-26 (1993).

The relevant South Dakota statute, SDCL 25-5-13 (which is reproduced below), traces back to the 1877 territorial code and it is one of the most permissive seen among the jurisdictions. The South Dakota Supreme Court held in 1981 that a custodial parent will be permitted to relocate so long as the relocation is consistent with the best interests of the child. *Matter of Ehlen*, 303 N.W.2d 808 (S.D. 1981).

25-5-13 Power to change residence of child -- Restraining power of circuit court. A parent entitled to the custody of a child has the right to change his residence, subject to the power of the circuit court to restrain a removal which would prejudice the rights or welfare of the child.

Source: SDC 1939, § 14.0306.

In a more recent decision, the South Dakota Supreme Court reaffirmed the custodial parent's right to freely relocate. In *Fortin v. Fortin*, 500 N.W.2d 229 (S.D. 1993) the trial judge granted the father's request for a restraining order preventing the wife from relocating with the parties' son to Ohio. In a 3-2 decision, the case was reversed, with the Supreme Court stating that "[i]n South Dakota, the custodial parent has the right to change his residence unless removal would prejudice the child's rights or welfare" and that the trial court had abused its discretion in restraining the removal.

Fortin v. Fortin is discussed in an excellent law review casenote. See Jennifer L. Linngren, *The*

Feuding Fortins: South Dakota Adopts a Presumption in Favor of the Custodial Parent's Right to Remove a Minor Child from the Jurisdiction in Fortin v. Fortin, 39 South Dakota Law Review 661 (1994).

Mother permitted to take minor children to Philippines for summer visit. *Sullivan v. Sullivan*, 2009 SD 27, 764 N.W.2d 895, involves a dispute concerning international travel for children in a post-divorce situation. Mother (who is originally from the Philippines) was granted permission to take the parties' minor children to the Philippines to visit relatives for 3 weeks during the summer of 2008. Father resisted this effort because the Philippines is not a signatory to the Hague Convention on Child Abduction and also to due to increased risk of terrorism and "gang kidnapping for ransom" events in that region. Father appeals the trial court's adverse ruling. Father's effort to "stay" the court's order permitting international travel was rejected by both the trial court and the SD Supreme Court. Despite the fact this particular travel has already taken place, father persisted in this appeal so that the parties would have a ruling that would address this issue in the event mother's again seeks to take the children to the Philippines. The trial court indicated that travel to the Philippines was an event he would probably be considering every 2 years. Father urged a recognized exception to the "mootness" doctrine – the exception that permits determination of the issue where the situation is "capable of repetition, yet evading review." Father also appeals the trial court's refusal to modify other aspects of the visitation agreement between the parties. The SD Supreme Court ruled that the international travel issue was moot and did not address the merits of this portion of father's appeal, holding that the factual circumstances (terrorist and kidnapping threats, Philippines adopting or not the Hague Convention) were such that could easily change in 2 years' time. As to remaining issue (modification of visitation agreement), the Court affirmed the trial court. The Court's opinion is authored by Justice Sabers. As to the international travel issue, Justice Konenkamp filed a dissenting opinion in which Justice Zinter joined. The dissent stresses the fact that this issue will be recurring and that the "best interests" of the children concerning "their safety and, indeed, their very lives" warrant "meaningful appellate review."

2004 SOUTH DAKOTA RELOCATION LEGISLATION

Until recently in South Dakota, absent an agreement or specific provision in the divorce decree, the custodial parent had been free to relocate with the child without first giving notice to the non-custodial parent and without obtaining either consent of the other parent or leave of court. This was consistent with SDCL 25-5-13 which is reproduced on the preceding page. In 2004, however, the South Dakota Legislature enacted the following:

CHAPTER 25-4A: CUSTODY AND VISITATION RIGHTS

25-4A-17. Notice required before relocating child not living with both legal parents-- Exceptions.

If an existing custody order or other enforceable agreement does not expressly govern the relocation of the principal residence of a child, a parent who intends to change his or her principal residence shall, provide reasonable written notice by certified mail or admission of service to the other legal parent of the child. Reasonable notice is notice that is given at least forty-five days before relocation or a shorter period if reasonable under the specific facts giving rise to the relocation. Proof of the notice shall be filed with the court of record unless notice is waived by the court.

No notice need be provided pursuant to this section if:

- (1) The relocation results in the child moving closer to the noncustodial parent; or
- (2) The relocation is within the boundaries of the child's current school district; or
- (3) There is an existing valid protection order in favor of the child or the custodial parent against the noncustodial parent; or
- (4) Within the preceding twelve months, the nonrelocating parent has been convicted of violation of a protection order, criminal assault, child abuse, or other domestic violence and either the child or the custodial parent was the victim of the crime or violation.

Source: SL 2004, ch 173, § 1.

25-4A-18. Contents of notice of relocation. The notice required in § 25-4A-17 shall contain the following:

- (1) The address and telephone number, if known, of the new residence;
- (2) The purpose for relocating;
- (3) Why the relocation is in the best interest of the child; and
- (4) The relocating party's proposed visitation plan for the nonrelocating parent upon relocation.

Source: SL 2004, ch 173, § 2.

25-4A-19. Request for hearing on relocation--Presumption of consent. At the request of the nonrelocating parent, made within thirty days of the notice of relocation, the court shall hold a hearing on the relocation. If no request for hearing is made within thirty days of notice, the relocation is presumed to be consented to by the nonrelocating parent.

Source: SL 2004, ch 173, § 3

NOTES

1. Relocation denied based upon trial court's balanced determination of child's best interests. In *Hogan v. Pifer*, 2008 SD 96, 757 N.W.2d 160, the trial court denied the mother's request to relocate with the parties' 13 year old son from Vermillion to Channahon, Illinois. The custody evaluator favored mother, but the trial court found that based on the son's age, involvement in school, connection with the community and also relationship with father that it was in his best interests to stay in Vermillion. The SD Supreme Court affirmed the trial court's decision finding that it was appropriately balanced and not an abuse of discretion. Father's request for appellate attorney fees was denied "considering the closeness of this case involving two fit parents." This is a unanimous decision with the opinion being authored by Justice Zinter.

2. SD Supreme Court affirms award of primary physical custody to father, thereby modifying shared parenting arrangement, in wake of mother's effort to relocate to Vermillion from Huron. In *Heinen v. Heinen*, 2008 SD 63, 753 N.W.2d 891, custody of two children was established (at the time of the divorce) as a shared parenting arrangement with periods of access rotating such that Mother would have the children 9 consecutive days and then father would have the children 5 consecutive days. Everyone lived in Huron initially. After the divorce, the mother became pregnant and gave birth to a daughter, half-sister to the children of the marriage. Then Mother sought to move to Vermillion to live with her fiancé and their baby daughter. She sought to take the children with her. The trial court granted primary physical custody to Father. The transfer of primary custody to father resulted in a "separation of siblings" in connection with their younger half-sister. The trial court articulated "compelling factors" to warrant the separation and the SD Supreme Court approved stating, "On this record, there is no demonstration that the circuit court made a fundamental error, reached a decision outside the range of permissible choices, or acted arbitrarily or unreasonably." ¶ 12. The trial court was found to have made a proper analysis under the *Fuerstenberg* factors, with "stability" for the children being the primary compelling reason in support of the award in favor of Father. The SD Supreme Court affirmed in a unanimous *per curiam* opinion.

E. Non-parents (Grandparents and others)

The student should review former SDCL 30-27-23 which is reproduced at the beginning of the “Custody” chapter. Even though this statute was inadvertently repealed in 1991, the South Dakota legislature did not get around to addressing the issue of custody to non-parents until the 2002 legislative session. The impetus for legislation in 2002 came from the highly publicized case involving Timmie Meldrum. That case is discussed in this sub-chapter. What is presented first, however, are a number of cases that were decided prior to the 2002 legislation. These cases help present the historical background against which the law in South Dakota (concerning custody awards to non-parents) has developed.

GUARDIANSHIP of SEDELMEIER

Supreme Court of South Dakota, 1992.
491 N.W.2d 86.

HECK, Circuit Judge.

Although this action was started by the filing of a petition for guardianship, it is, in actuality, a proceeding to determine whether a parent or unrelated person is entitled to primary custody of a young boy.

Elvis Aaron Sedelmeier (Aaron) was born February 8, 1981, to Kris and Randy Sedelmeier. When Aaron was a baby, his parents resided near Bob and Barb Cumber (Cumbers). The Cumbers baby-sat for Aaron. The Sedelmeiers marriage ended in divorce in 1983. Kris was awarded custody of Aaron.

About that time the Cumbers began to have a principal role in Aaron's care. Kris was always a part of Aaron's life and Aaron knew her as his mother. When Aaron was four years of age, the Cumbers asked to adopt Aaron. After some thought, Kris refused the request.

In 1985 Kris married Barry Bendt. In 1987 through 1989 Kris had severe medical problems. Three pregnancies resulted in the loss of all three babies during pregnancy. In early 1990 she was hospitalized for depression.

From 1983 to 1990, the Cumbers provided Aaron's primary care. Kris received counseling toward the end of this period and she decided that she would take a more active role in the rearing of Aaron. In August 1990, Kris took Aaron from the Cumbers to live with her. Shortly after returning to live with his mother, Aaron began to develop psychological problems. Kris and the Cumbers disagreed over custody of Aaron. Aaron was hospitalized for thirty days during which time a professional team of caretakers decided that Aaron should live with the Bendts with visitation for the Cumbers. Aaron overcame his major psychological problems. The Bendts moved out of state. Kris has denied visitation to the Cumbers. Aaron has lived with Kris and Barry continuously from August 1990 to the time of this appeal.

In legal contests between a parent and a non-parent for the custody of a child the threshold question is: Is the parent unfit to have custody of the child? The Cumbers attempted to establish that it

would be in the best interests of Aaron to be in their custody. Without unfitness being established, there is no necessity to look to the best interest of the child.

“The law presumes that the best interests and welfare of a minor will be best served by awarding its custody to the parent *and the burden is upon those who claim otherwise to overcome such presumption by clear and satisfactory proof of abandonment or forfeiture or a legal surrender or unfitness of the parent to have custody.*” (emphasis supplied).

Sweeney v. Joneson, 75 S.D. 213, 216, 63 N.W.2d 249, 251 (1954).

In *Blow v. Lottman*, 75 S.D. 127, 129-131, 59 N.W.2d 825, 826-27 (1953), this Court said:

By nature and under the common law and by virtue of statutory provisions ..., a parent has a preferred legal right to custody of his or her own children. But under the common law and modern statutes as well, ... the state through the courts has a right under proper circumstances to terminate the parental right and deprive the parent of custody. To find the proper delicate balance between this right of the parent and the right of the state is the problem confronting courts in such cases as this where the parent but not the other claimant has a legal right. * * * [T]here is in our opinion this helpful guide well recognized in the body of the law: the parents' right to custody over their own children should never be disturbed except upon a clear showing against the parent of "gross misconduct or unfitness, or of other extraordinary circumstances affecting the welfare of the child." ... The fitness of this mother is therefore a matter of first consideration and her disqualification as custodian is a prerequisite to an award of custody to any other person;* * *

* * *

The Cumbers further contend that the trial court erred in failing to award them reasonable visitation.

This Court has held that the right of visitation is derived from the right of custody. In the absence of a statute to the contrary:

It follows that in order to grant a nonparent visitation rights with a minor child over the wishes of a parent, a clear showing against the parent of gross misconduct, unfitness or other extraordinary circumstances affecting the welfare of the child is required.

Cooper v. Merkel, 470 N.W.2d 253, 255-56 (S.D.1991).

Since there was no clear showing of unfitness, the court cannot order visitation for an unrelated non-parent over the wishes of the mother.

* * *

The trial court is affirmed, except it is reversed in the matter of attorney fees.

MILLER, C.J., and WUEST, HENDERSON and SABERS, JJ., concur.

HECK, Circuit Judge, for AMUNDSON, J., disqualified.

NOTE

The matter of “visitation rights” for non-parents will be taken up, just a little further along in this chapter. It should be noted, however, that at least one case exists in South Dakota where visitation rights to a non-parent has been affirmed by the South Dakota Supreme Court. In *Quinn v. Mouw-Quinn*, 1996 SD 103, 552 N.W.2d 843 (S.D. 1996), the court found “extraordinary circumstances” in that the wife’s husband had been the “only father” known by the wife’s oldest of three children, the other two of which were fathered by the husband.

MAYER v. MAYER

Supreme Court of South Dakota, 1986.
397 N.W.2d 638.

SABERS, Justice (on reassignment).

Linda M. Mayer (Linda), appeals the trial court's order modifying the original Decree of Divorce to vest custody of the parties minor child in Frederick B. Mayer (Frederick). We reverse.

Linda and Frederick Mayer were divorced on January 18, 1982. Their only child, Jennifer Mayer (Jennifer), was born on June 11, 1976. Jennifer had lived her entire life with her half sister Stacie Marie Smith (Stacie). Stacie is Linda's child from a previous marriage. At the time of this action, Jennifer was nine and Stacie was eleven years of age. Although half sisters, the relationship was that of full sisters.

Custody was not a contested issue in the divorce proceedings, and Linda was awarded custody of Jennifer. Shortly thereafter, Linda and her two daughters returned to Topeka, Kansas, where the entire family had lived several years prior to the divorce. At this time, Frederick remained in Mitchell, South Dakota, where he resided in the same trailer court as his mother, Mrs. Bernice Bollack (Mrs. Bollack).

Linda's primary job was with Barcliff Care Center, a nursing home. In February of 1985, Linda was dismissed from this job because she failed to report one cold winter day when her car would not start. Although she held another job, it was only part-time employment. The dismissal from her full-time job, coupled with Frederick's failure to pay court ordered child support, caused Linda to suffer a financial crisis. Unable to pay rent, she was required to vacate her leased home.

To temporarily provide for Stacie and Jennifer, Linda arranged transportation for herself and the children to Mitchell, South Dakota, in late February, 1985. Linda hoped to temporarily shelter the girls with Frederick's mother. A temporary custody agreement was signed by Linda and Mrs. Bollack on March 7, 1985. This agreement provides in part:

It is agreed between Linda M. Mayer and Bernie Bollack that Bernie Bollack may have temporary custody of Stacie Smith and Jennifer Mayer. It is further agreed

that during the time Bernie Bollack has temporary custody of such children that Linda M. Mayer waives her right to child support for such children from Bernie Bollack's son Frederick B. Mayer.

It is further agreed that the temporary custody period shall end upon notice by Linda M. Mayer to Bernie Bollack, and at that time Bernie Bollack agrees to return said children to Linda M. Mayer and at that time child support waiver shall cease and Frederick B. Mayer shall resume paying child support ordered by this Court.

This agreement was made terminable at Linda's will to allow her to recover the children as soon as she was financially stable again.

Linda stayed in Mitchell with a girlfriend for one week to help settle the children. After enrolling them in school, Linda left for Topeka to secure new employment, settle her debts with her former landlord, find a new apartment and return to South Dakota for her daughters.

Within three months and before the girls could rejoin her, Linda was confronted with a change of custody proceeding initiated by Frederick. In this proceeding, which was filed in May and heard in July of 1985, Frederick requested and received custody of Jennifer. Frederick had not adopted, nor did he request, custody of Stacie who returned home with her mother.

In his affidavit supporting the Order to Show Cause and in open court, Frederick only asked for legal custody of Jennifer. In both instances, he requested that physical custody be given to his mother, who was not a party to the action. Mrs. Bollack lives with her second husband who is of no blood relationship to Jennifer. In its Memorandum Opinion dated August 8, 1985, the trial court stated: "The request ... for physical custody with Bernice Bollack is denied. [T]his Court has no objection to Bernice Bollack continuing her assistance with raising this child, but this Court is simply not interested in issuing some hybrid custody order ..."

The trial court entered Findings of Fact and Conclusions of Law, and a Decree modifying custody on September 3, 1985. The court specifically found that Jennifer was too young to intelligently perform a custody preference. In awarding legal and physical custody of Jennifer to her father, the trial court concluded that Frederick sufficiently demonstrated that the child's best interests required that he be granted custody.

Linda advances two arguments for reversal: First, that the trial court erred in awarding custody to Frederick, knowing that Mrs. Bollack would serve as Jennifer's true custodian, and without making the appropriate evidentiary findings applicable to a parent/grandparent custody proceeding. Secondly, that the trial court abused its discretion in holding that the child's best interests were served by the custody change, especially when this change necessitated the splitting up of Jennifer and her half sister Stacie.

In *Kolb v. Kolb*, 324 N.W.2d 279, 283 (S.D.1982), we held that SDCL 25-4-45 vests broad discretion in the trial court to determine which parent in a divorce action should be given custody of their children, and that decision will be reversed only for a clear abuse of discretion. In conformance with this statute, the general rule is that a parent seeking modification of a divorce decree as it pertains to child custody has the burden of proving both (1) a substantial change of circumstances, and (2) the welfare and best interests of the child require modification. *Flint v. Flint*, 334 N.W.2d 680, 681 (S.D.1983) citing

Masek v. Masek, 90 S.D. 1, 237 N.W.2d 432 (1976); *Warder v. Warder*, 87 S.D. 133, 203 N.W.2d 531 (1973); *Hershey v. Hershey*, 85 S.D. 85, 177 N.W.2d 267 (1970). However, an exception to this rule has developed when custody was not a contested issue in the first instance. Thus, in *Kolb*, we held that when the original decree of divorce was based upon an agreement between the parties, the party seeking modification is not required to show a substantial change of circumstances. 324 N.W.2d at 283; *Flint*, 334 N.W.2d 681. See also: *Hansen v. Hansen*, 327 N.W.2d 47 (S.D.1982); *Haskell v. Haskell*, 324 N.W.2d 423 (S.D.1982).

Here, the original decree awarded custody to Linda based on an agreement of the parties. As such, the "substantial change of circumstances" element was lifted from Frederick's burden of proof. Therefore, at the modification hearing, Frederick had the burden of showing that the best interests and welfare of Jennifer required a change of custody. *Flint, supra*. The trial court held that Frederick sustained this burden. We hold that he did not.

1. THE TRIAL COURT ERRED IN CHANGING CUSTODY, KNOWING THAT PHYSICAL CUSTODY WOULD BE IN THE PATERNAL GRANDMOTHER, ALL WITHOUT SHOWING THAT THE MOTHER WAS UNFIT OR DEMONSTRATING EXTRAORDINARY CIRCUMSTANCES AFFECTING THE WELFARE OF THE CHILD

Mrs. Bollack testified that she desired to have custody of Jennifer. Frederick testified that he wished his mother to have custody because his job as a truck driver did not give him time to raise a child. In its Memorandum Opinion, the trial court wrote:

It appears ... that neither party has registered any objection to or problems with Mrs. Bollack raising the child. Plaintiff now desires return of the child but obviously felt content in entering into an agreement for temporary custody with Mrs. Bollack ... The defendant, by virtue of his employment needs his mother to assist the raising of this child on a constant basis. The grandmother ... is a very kind and loving person who obviously finds herself in the middle of a custody issue and is solely concerned for the child and her love and affection for the child has been most adequately demonstrated.

It is obvious from this record that the trial court also wanted Mrs. Bollack to have custody, but realized that granting custody to her was impossible under South Dakota law. SDCL 30-27-23 provides in full:

Persons entitled to preference in custody of minors. Of two persons equally entitled to the custody in other respects, preference is to be given as follows:

- (1) To a parent;
- (2) To one who was indicated by the wishes of a deceased parent;
- (3) To one who already stands in the position of a trustee of a fund to be applied to the child's support;
- (4) To a relative.

Langerman v. Langerman, 336 N.W.2d 669 (S.D.1983), interprets this statute and holds:

Before a parent's rights to custody over his or her own children will be disturbed in favor of a nonparent, a clear showing against the parent of gross misconduct or unfitness, or of other extraordinary

circumstances affecting the welfare of the child is required, and an award cannot be made to grandparents simply because they may be better custodians. (Citing six other cases.) *Id.* at 670.

To circumvent this rule, the trial court gave custody to Frederick. In doing so, the court implied that Frederick was not the proper parent. We need look no further than the trial court's opinion to recognize that the grant to Frederick was, in practical effect, an award of custody to Mrs. Bollack. Finding of Fact XXII states: "[I]t appears that both Plaintiff and Defendant are agreeable with the home environment as provided to the minor child by Mrs. Bollack." The evidence before us suggests that the trial court knew that Mrs. Bollack would have physical custody of Jennifer and that Frederick was not the proper parent. Nevertheless, it ignored the Langerman holding which requires a clear showing of gross misconduct or unfitness, or other extraordinary circumstances affecting the child's welfare, before a parent's right to custody will be disturbed in favor of a nonparent. *Id.*

i. Unfitness

Linda's only financial crisis on record was that which forced her to temporarily surrender custody to Mrs. Bollack. This temporary financial crisis was caused in part by Frederick's failure to pay court ordered child support. The evidence shows that Linda has often worked two jobs at a time, while Frederick's employment history is sporadic at best. The trial court found that Linda is presently employed at the Topeka Convalescence Center, Inc., in Topeka, Kansas, where she cares for the elderly. She lives in an apartment which is located approximately five blocks from her work and three blocks from a school.

The trial court further found that Linda had limited contact with Jennifer while they were initially separated, and that during and after their "infrequent contacts the minor child became upset, but would settle down in a short while." This comprises the sum total of "evidence" of Linda's "unfitness." There is no evidence of misconduct or unfitness in this record to warrant Jennifer's removal from her mother's care and custody.

Frederick testified to a dismal work record characterized by extended periods of unemployment and periods of only partial employment. The record shows that he was unemployed at the time of trial. Frederick stated that his most recent employment was only part-time, that he was fired, and that his employability has suffered due to an accident which increased his risk rating with insurers. In addition, Frederick had recently defaulted on civil debts existing from the time of the divorce, which arose from a criminal infraction on his part. At Finding of Fact X., the trial court found that Frederick has worked as a truck driver, that he was presently employed on a part-time basis hauling hay, and that he lives in a rented trailer in Mitchell, South Dakota. Even when Frederick is working at his trucking job he is away from home and cannot devote attention to parental duties.

ii. Extraordinary Circumstances

The trial court found that upon entering school in Mitchell, Jennifer encountered difficulty, especially due to a lack of reading skills which threatened her ability to pass the third grade. Mrs. Bollack worked daily with the child and Jennifer made considerable progress in her reading and other school work.

The trial court further found that Frederick and Jennifer participated in the following activities:

- 1) Swimming lessons
- 2) Park and Recreation programs
- 3) Bible School
- 4) Book Reading Club
- 5) Family Picnics
- 6) Fishing
- 7) Beer-can hunting
- 8) Monopoly
- 9) Motorcycle riding

In reading the entire record, it is clear that the real participants in these activities were first, Stacie and Jennifer; secondly, Stacie, Jennifer, and to a lesser degree, Mrs. Bollack; and thirdly, Stacie, Jennifer, and to a much lesser degree, Frederick. Furthermore, almost all of the activities listed occurred after Frederick's decision to file the Order to Show Cause for change of custody. A substantial part of this organized activity was done during the same period of time spent in preparation for the anticipated custody fight. It appears that the trial court was overly impressed with this five month rush of accelerated activity.

The fact that Mrs. Bollack was willing and able to spend more time with Jennifer than perhaps either of her parents could, is simply not a sufficient basis to remove the child from Linda's charge. We recognize that any custodial parent who works for a living must make suitable arrangements for child care during the time that he or she is at work.

Frederick had the burden of showing that Jennifer's best interests necessitated the modification. Allegations of parental inadequacy exist on both sides, although neither parent appears unfit. "The court's primary consideration when awarding custody is the best interest of children and not the shortcomings of the custodial parent." *Haak v. Haak*, 323 N.W.2d 128, 130 (S.D.1982) (citations omitted). There is no inference favoring one parent over the other in deciding which one should have custody. *In Re Marriage of Welbes*, 327 N.W.2d 756, 758 (Iowa 1982). The predominant concern is the child's best interest and each case turns on its own facts in determining which parent can administer more effectively to the long range interests of the child. *Id.* We therefore find that the trial court abused its discretion in modifying the custody arrangement.

2. THE TRIAL COURT ABUSED ITS DISCRETION IN SEPARATING JENNIFER FROM HER HALF SISTER, STACIE, WITHOUT COMPELLING REASONS

It is universally recognized that in the absence of compelling reasons to the contrary, the best interest of siblings require that they be raised together whenever possible. *Albright v. Com. ex rel. Fetters*, 491 Pa. 320, 421 A.2d 157, 160 (1980).

* * *

Accordingly, we reverse and return Jennifer to her mother, Linda, and her half sister, Stacie, in accordance with the law and the signed written agreement.

WUEST, C.J., and MORGAN, J., concur.
HENDERSON, J., specially concurs.
HURD, Circuit Judge, dissents.

**CHILD-CUSTODY DISPUTES BETWEEN PARENT AND NON-PARENTS:
A PLEA FOR THE ABROGATION OF
THE PARENTAL-RIGHT DOCTRINE IN SOUTH DAKOTA**

Michael B. Thompson

Mayer v. Mayer provides the supreme court's most recent adherence to the parental-right doctrine. There, the father, in a motion for a change of custody, sought legal custody of his daughter, although he conceded that his mother would have physical custody of the child. The trial judge granted the father's request, indicating in his order that the father would have legal and physical custody of his daughter.

The supreme court, after listening to the mother's entreaty, found that the trial court's resolution amounted to placing custody of the child with the grandmother. Since there had been no showing that the mother was unfit, as mandated by *Langerman* and its forerunners, the court felt compelled to reverse the trial court's decision and return the daughter to the mother's custody.

* * *

The parental-right doctrine has played a significant role in parent versus non-parent disputes in South Dakota since the early 1900's. It is time, however, to abandon this doctrine and to opt for a best-interests standard that would apply in all child-custody conflicts. This is true for at least two reasons.

The parental-right doctrine causes courts to ignore the *parens patriae* doctrine, which stands as a constant reminder to them of their duty to protect the child whenever its custody is threatened. This abandonment of *parens patriae* is especially troublesome in those cases where the parent is awarded custody even though the non-parent is a better custodian. Only by applying a best-interests test to parent versus non-parent disputes can the South Dakota courts act consistently with the *parens patriae* doctrine and, as a result, help the child.

Courts adhering to the parental-right doctrine are also ignoring contemporary psychological research holding that psychological, not biological, ties are the ones that bind a child to an adult. As such, these findings clash with the underpinnings of the parental-right doctrine. The best-interests test, conversely, recognizes developed relationships between adults and children, and, consequently, emphasizes judicial enhancement of the well-being of the child, the person affected most by any custody proceeding.

* * *

Consequently, South Dakota must reassess its scheme for determining custody between parents and non-parents. This reassessment should lead to the adoption of a factored best-interests standard to control all child-custody disputes. Only in this way will the child involved in a custody action experience true court protection of his interests.

LANGERMAN v. LANGERMAN

Supreme Court of South Dakota, 1983.
336 N.W.2d 669.

FOSHEIM, Chief Justice.

Appellant Larry D. Langerman (father) and appellee Vickie L. Langerman (mother) were married on February 14, 1970. Two children were born of the marriage--a daughter, now twelve years old, and a son, now eight. In *Langerman v. Langerman*, 321 N.W.2d 532 (S.D.1982), we remanded the divorce action which dissolved this marriage for the limited purpose of allowing the trial court to enter a specific finding of fact regarding the fitness or unfitness of the father to have custody of the children. On remand, the trial court found that the father was an unfit parent and awarded custody of both children to their maternal grandparents (grandparents) at the mother's request. The father appeals. We affirm.

Consistent with SDCL 30-27-23, the child custody decisions of this court have generally given preference to a parent over a nonparent.⁸ Before a parent's right to custody over his or her own children will be disturbed in favor of a nonparent a clear showing against the parent of "gross misconduct or unfitness, or of other extraordinary circumstances affecting the welfare of the child" is required, and an award cannot be made to grandparents simply because they may be better custodians. *Blow v. Lottman*, 75 S.D. 127, 59 N.W.2d 825 (1953). See also *Langerman v. Langerman*, *supra*; *Application of G.K.*, 248 N.W.2d 380, 384, n. 4 (S.D.1976); *Sweeney v. Joneson*, 75 S.D. 213, 63 N.W.2d 249 (1954); *Ex Parte Summers*, 43 S.D. 617, 181 N.W. 831 (1921); *Haglund v. Egge*, 41 S.D. 433, 171 N.W. 212 (1919); and *Engle v. Yorks*, 7 S.D. 254, 64 N.W. 132 (1895).

The term "unfitness" is to be interpreted broadly:

A parent's disqualification results not only from a lack of ability but also from an unwillingness or from an indifferent lack of desire, as well, to rear a child spiritually, morally, mentally and physically according to the minimum standard the law condones. Thus unfitness would follow from voluntary conduct bearing on a parent's cruelty, morals, extreme neglect, abandonment or any attitude or condition, created through marriage or otherwise, resulting in home surroundings below the minimum standards; and unfitness would also result from involuntary circumstances such as extreme poverty, physical or mental infirmity, or any other condition making it impossible for the parent to care for the child according to the minimum requirements.

Blow v. Lottman, 75 S.D. at 132, 59 N.W.2d at 827.

The trial judge personally observed all witnesses testify. In reviewing findings, we must give due regard to the opportunity of the trial court to judge the credibility of witnesses and to weigh their testimony properly. The findings of the trial court will not be set aside unless they are clearly erroneous. SDCL

⁸ SDCL 30-27-23 provides:

Of two persons equally entitled to the custody in other respects, preference is to be given as follows:

- (1) To a parent;
- (2) To one who was indicated by the wishes of a deceased parent;
- (3) To one who already stands in the position of a trustee of a fund to be applied to the child's support;
- (4) To a relative.

15-6-52(a); *Watt v. Watt*, 312 N.W.2d 707 (S.D.1981); *Masek v. Masek*, 89 S.D. 62, 228 N.W.2d 334 (1975). The record supports a clear showing of the following facts:

In 1973 the mother was diagnosed to have multiple sclerosis. The family was able to maintain a home in Scranton, North Dakota for the next two years, but by late 1975 the mother's condition had deteriorated to the point where she was totally unable to care for herself or her family and required constant attention. The family then moved to the farm of the maternal grandparents located near Scranton. The grandparents had already been providing the mother with assistance five to six times per week since late 1974.

As the trial court found, the father left the family in 1976 "searching for employment and new relationships." In 1977 the mother entered a nursing home in North Dakota, and the children continued to reside with the grandparents, where they have lived most of the time since the breakup of the marriage.

Since leaving the family in 1976, the father has gone through bankruptcy, changed jobs over fifteen times and lived in five different towns in three different states. He has carried on live-in relationships with various women, to which the children have been exposed each time they have visited his home. Appellant has had multiple alcohol-related criminal convictions, and the record indicates that he jeopardized the safety of the children at least once by driving a motor vehicle while drinking liquor. The following colloquy concerning the father took place between the court and the eleven-year-old daughter:

COURT: ... Is there anything else you want to tell me? Did you have a pretty good summer?

DAUGHTER: Yeah. But one time when I was down here when he took me back he told me not to tell Grandma that--well, him and this other guy that were taking me home, they was drinking when they took me home. And he didn't want me to tell Grandma, so I never did, so I thought I would tell you.

COURT: All right. Has this just been recently or has this been a long time ago?

DAUGHTER: No, it's about one or two months ago.

The daughter also expressed fear of her father when he is drunk.

The father has demonstrated a tendency to ignore the safety of his children when he has been drinking. Virginia Woodbeck, a friend of the family, testified that she was babysitting the children at the grandparents' home one night when appellant appeared sometime after the bars had closed. Although he had obviously been drinking he called to his daughter to get up so that they could leave. He told Mrs. Woodbeck he was disgusted with the family and was going to take the children back to Spearfish with him immediately. According to Mrs. Woodbeck it was necessary for her to persuade appellant that, in view of his intoxicated condition, he should wait until the next morning before driving anywhere with the children.

It is the court's duty at every turn to see that the child is protected. *Matter of M.B.*, 288 N.W.2d 773 (S.D.1980). Even where a parent is normally given preference as to custody, statutory and parental rights are not conclusive but must yield to the child's best interests and welfare. *Sweeney v. Joneson, supra*. The father's history of drinking and endangering the children's lives while driving a motor vehicle is therefore a

very important factor for the court to consider in determining fitness.

Other extraordinary circumstances affecting the welfare of the children can also operate to defeat the custody preference of a parent. *Blow v. Lottman*, *supra*. A parent's moral conduct is a valid consideration in determining parental fitness. *Matter of M.B.*, *supra*. The father's relationships with live-in female companions created a bad example, especially for the daughter who was old enough to recognize the impropriety of his conduct. Although a parent's marital misconduct alone does not establish unfitness without further evidence of a demonstrable effect of such conduct on the children, *Kester v. Kester*, 257 N.W.2d 731 (S.D.1977), if it is committed in the presence of a child old enough to see and recognize the improprieties as such, then the harmful effect of the parent's bad example upon the child is self-evident for determining custody. *Haak v. Haak*, 323 N.W.2d 128 (S.D.1982); *Spaulding v. Spaulding*, 278 N.W.2d 639 (S.D.1979).

The trial court may also consider the father's habit of changing jobs and moving frequently. We have previously held that a transient lifestyle which results in frequent shifting of schools can greatly interfere with the education and proper rearing of children and not be in their best interest. *Haskell v. Haskell*, 324 N.W.2d 423 (S.D.1982); *See also Kolb v. Kolb*, 324 N.W.2d 279 (S.D.1982); *Wright v. Stahl*, 73 S.D. 157, 39 N.W.2d 875 (1949).

Applying the broad interpretation of unfitness in *Blow v. Lottman*, *supra*, we cannot conclude the trial court clearly erred in finding the father unfit. The decision of the trial court can result in no great trauma to the children. They have spent most of their young lives with the maternal grandparents since their mother's health deteriorated. Although the age of grandparents is often a circumstance against their having custody, it should be noted that these grandparents have a child at home about the age of appellant's daughter. We agree with the trial court that "it appears in fact and in reality, the maternal grandparents have been the primary caretakers of the Langerman children since almost birth." As of the date of the trial in 1981 the father had made only one two hundred dollar payment to the grandparents for the support of his children while in their care. Both the trial court's finding of unfitness and the surrounding circumstances weigh against disturbing the existing custody of the children with the grandparents.

As noted, *Blow v. Lottman* requires a "clear showing" of a parent's gross misconduct, unfitness, or other extraordinary circumstances before custody can be awarded to a nonparent. Appellant maintains that the recent Supreme Court decision, *Santosky v. Kramer*, 455 U.S. 745, 102 S.Ct. 1388, 71 L.Ed.2d 599 (1982), requires "clear and convincing" evidence of unfitness. We need not, however, consider what, if any, greater burden of proof is mandated by *Santosky*. The *Santosky* standard applies when parental rights are being terminated, not where a custody determination is made incident to a divorce action. The trial court has not terminated appellant's parental rights; it has simply awarded custody of his children to the maternal grandparents subject to visitation privileges. Unlike termination, a custody award is not final or absolute. The trial court retains jurisdiction and may vacate or modify its decision. SDCL 25-4-45.

The trial court's finding of unfitness and its award of custody to the maternal grandparents are affirmed. We grant appellees' motion for attorney's fees on appeal to the extent of \$500.

Affirmed.

All the Justices concur.

NOTES

1. In *E.H. v. M.H.*, 512 N.W.2d 148 (S.D. 1994), the South Dakota Supreme Court reversed the trial court's holding that a step father had adopted a child through the application of "equitable estoppel." The stepfather had taken some steps toward adoption, but the process was not completed at the time the parties separated in anticipation of divorce. The child's name had also been changed to the stepfather's surname and the middle name was changed because it had reflected the natural father's common moniker. This case is found in the Child Support chapter, so you will have the chance to read it later. This case is apparently the first time the South Dakota Supreme Court had been asked to consider the prospect of "adoption by estoppel." The high court reviewed the case law from New Jersey which recognizes "adoption by estoppel," but declined to extend the doctrine of estoppel in the facts of this particular case. Upon reading the opinion in this case, one is left wondering whether or not "adoption by estoppel" might be feasible in South Dakota in another set of facts.

2. A related doctrine, the "equitable parent doctrine" was utilized by the trial court in *D.G. v. D.M.K.*, 1996 SD 144, 57 N.W.2d 235 (S.D. 1996). The trial court based its award of visitation rights to mother's boyfriend, a non-parent, on this basis. The South Dakota Supreme Court rejected the "equitable parent doctrine" and reversed the trial court's award.

3. In *Crouse v. Crouse*, 1996 SD 95, 552 N.W.2d 413 (S.D. 1996), the trial court awarded wife custody of three children, two of whom were fathered by the husband. The oldest child was born 6 months before the marriage and was not fathered by husband. Husband appealed. The SD Supreme Court held that husband had no legal basis to claim custody of child which he did not father. The Court rejected the argument of "estoppel" by husband, in light of the fact that wife was 7 months pregnant when she and husband first met and, accordingly, husband *knew* he wasn't the father.

4. In *the Matter of J.M.*, 546 N.W.2d 383 (S.D. 1996), the custody of a ten year old boy was ordered to be with his grandparents (grandmother and step grandfather). This order came in a proceeding which declared the boy to be a delinquent child. The grandparents maintained custody for a five year period. When the boy was 15, he was discharged from probation and custody ordered to be returned to his mother. The boy's appeal failed. The South Dakota Supreme Court held that SDCL 26-8C (Delinquent Children) cannot be utilized to achieve a permanent change in custody.

THE TIMMIE MELDRUM CASE

A custody dispute over a nine year old boy arose between the natural father of the child and the mother's boyfriend, when the mother was killed in an automobile accident. The child had been living with the mother and the boyfriend for six years, together with a half-brother fathered by the boyfriend. Mother had been an "exotic dancer." The natural father sought, through a "habeas corpus" action, to obtain custody of his nine year old son in the month following the death of the mother. The trial court awarded custody to the natural father. Thereafter the trial court granted the child's pro se motion for the appointment of counsel, although it had previously declined to appoint an attorney for the child before the hearing. The boyfriend appealed, arguing that "extraordinary circumstances" entitled him to custody. The SD Supreme Court reversed in *Meldrum v. Novotny*, 1999 SD 127, 599 N.W.2d 651, holding that "Under the unique circumstances of this case, we conclude the circuit court abused its discretion in not appointing an attorney for the child before proceeding with an evidentiary hearing, a hearing that would permanently determine the child's future. This child had no representation at trial in a case where his mother, his primary custodian, had died, and his father had no regular contact with him for years." (Quoted material taken from paragraph no. 12, 599 N.W.2d at 654.)

The television show "Good Morning America" featured the *Meldrum v. Novotny* case (described in the preceding paragraph) on Tuesday morning, July 3, 2001. It was reported that the trial court had ordered custody of the boy be transferred to his natural father, although there is an absence of a relationship. The trial court said (according to the news story) that the child had to go to the biological parent unless the biological parent is found to be unfit. The news story also indicated that a request for a stay had been filed in the South Dakota Supreme Court, as well as an appeal. The South Dakota Supreme Court entered an order denying a stay of the trial court's order that the boy be transferred to his natural father on July 18, 2001. News reports indicate that the vote (to deny a stay) was 3/2 by the SD Supreme Court Justices.

The merits of the underlying appeal were addressed in *Meldrum v. Novotny*, 2002 SD 15, 640 N.W.2d 460. The opinion is splintered among the five justices and a source of confusion. The confusion is exacerbated by the fact that Chief Justice Miller's permanent replacement (Justice Zinter) had not been named and the retired chief justice returned to the court as an Acting Justice. Despite the confusion experienced in discerning the controlling principles (i.e., figuring out exactly what at least 3 justices -- any 3 justices -- agree upon), the case is extremely important because it was handed down in sufficient time that the South Dakota Legislature could pass new legislation, with an understanding of how the high court viewed the controlling law, without new legislation. The *Meldrum* dispute generated sufficient public outcry that the South Dakota Legislature became dedicated in 2002 to addressing the matter of nonparent custody, regardless of the outcome of the pending appeal in the *Meldrum* case. Nonetheless, this decision solidified the "existing law" clearing the way for the legislative response. In regard to the legislative response, Justice Konenkamp's concurring opinion evolved as the basis for the new standards adopted by the legislature.

As to the underlying appeal in the *Meldrum* case itself, the matter was reversed and remanded to the trial court for a determination of the "best interests of the child." Two Justices (C.J. Gilbertson and J. Konenkamp) believed that "extraordinary circumstances" were shown in this case, and as such "extraordinary circumstances" under existing law is a sufficient basis to defeat the parental preference. With the parental preference defeated, an award to a nonparent under existing law may be made if such an award is in the "best interests of the child." One Justice (J. Amundson) expressed the opinion that the "best interests of the child should always be paramount" and voted to remand regardless of whether or not extraordinary circumstances exist. ¶ 63 & ¶ 68, 640 N.W.2d at 472-73. Justices Sabers and Miller would

have simply affirmed the trial court's award to the natural father, believing that there had not been a showing of "extraordinary circumstances" which would warrant an award to a nonparent.

Of the 68 reported paragraphs of the various opinions of the various justices, ¶ 58 found in Justice Konenkamp's concurring opinion is the one which has become memorialized in the new legislation. In ¶ 58, Justice Konenkamp lists several reasons found by courts in other jurisdictions which have served as an adequate basis for "extraordinary circumstances" justifying an award to a nonparent. Many of these stated reasons appear to be directly applicable to the facts in the *Meldrum* case. More importantly however, for prospective use, these stated reasons were adopted by the South Dakota Legislature and have evolved in the new statutes found as SDCL 25-5-29 and 25-5-30. In particular, ten of the specific reasons are now enumerated in SDCL 25-5-30.

NOTES

1. ***In Re T.H.M.*** On the same day that the South Dakota Supreme Court handed down its decision on the merits in the *Meldrum v. Novotny* dispute, it also handed down its decision in *In Re T.H.M.*, 2002 SD 13, 640 N.W.2d 68. In *T.H.M.*, the paternal grandmother of the children was successful in acquiring custody through a guardianship proceeding. The father of the children had committed suicide, leaving the dispute between the natural mother and the paternal grandmother. The trial court ruled in favor of the grandmother, finding that the children had been abused and neglected under SDCL 26-8A, the subchapter of South Dakota statutes designed to facilitate investigation and action by the Department of Social Services ("DSS"). In this case, despite being requested to get involved, DSS had declined to do anything. The South Dakota Supreme Court reversed the favorable ruling for grandmother, holding that the abuse and neglect statutory provisions of SDCL 26-8A were not available for use by grandmother in a guardianship proceeding. The court further rested its decision on a failure of due process to the mother. The South Dakota Supreme Court also directed the trial court to *order* DSS to intervene in the proceeding. Justice Konenkamp dissented with an opinion which elaborates, in detail, the extent of the misery inflicted on these children. He would allow use of the guardianship statutes to decide custody in cases such as this. As to the role of DSS, he stated "It remains to be seen how the Department will proceed now, when it decided not to proceed before. This is not to fault the Department. Perhaps it never became aware of all the particulars we now have. But the fact remains that, were it not for the grandmother, these children would be without hope." ¶ 22, 640 N.W.2d at 74. Justice Konenkamp further rebuts the mother's claim of a due process violation. **It is IMPORTANT to note that the 2002 South Dakota Legislature overruled the *T.H.M.* decision, by amending SDCL 29A-5-106 to permit a person other than a parent to seek child custody through the guardianship statutes, subject however to a priority resting with other courts which may have a superior claim to jurisdiction such as a court of continuing jurisdiction or a court entertaining a proceeding by DSS under SDCL 26-8A or another juvenile court proceedings under SDCL 26-7A, 26-8B or 26-8C.** If the facts of *T.H.M.* were to be presented today under the amended version of SDCL 29A-5-106, then the guardianship proceeding could proceed so long as DSS did not initiate a proceeding of its own.

2. ***In Re T.L.R.*** *In Re T.L.R.*, 2002 SD 54, 645 N.W.2d 246, was decided on May 8, 2002. In this case, the maternal grandparents had maintained guardianship of their grandson since 1997, pursuant to a guardianship proceeding. The guardianship (and the grandparents' exertion of custody over their grandson pursuant thereto) had been continuously contested by the father of the child – the son of the grandparents. At one point, the trial court had in fact terminated the guardianship in favor of a custody award to the father in December, 1998, only to vacate this order a short time later. Abuse of alcohol by the father appears to have been an ongoing problem, or at least an ongoing concern. Eventually, the father prevailed in his effort to secure custody. The trial court terminated the guardianship in March, 2001 and the grandparents appealed. The South Dakota Supreme Court affirmed, holding that the criteria for termination of guardianship was controlled by the appropriate guardianship statute, SDCL 29A-5-506, which permits termination if the court “determines that the minor is no longer in need of assistance or protection of a guardian.” The grandparents argued *unsuccessfully* that the termination criteria should be the same as that for “modification of custody” and that the father had not shown “material and substantial change in circumstances” which warranted the termination of the guardianship.

This opinion sets forth a three-step analysis to be utilized in deciding whether or not a guardianship should be terminated and a child returned to the natural parent. Those steps are 1) determine whether the parent seeking to terminate the guardianship is fit – if not fit, then the guardianship should not be terminated. If the parent is fit, then 2) determine if there are “extraordinary circumstances” and if not, then terminate the guardianship and return the child to the parent. If there are “extraordinary circumstances,” then 3) determine what is in “best interests” of the child and based upon this “best interests” analysis, either return to the natural parent or retain the guardianship. ¶ 18 of opinion.

Editor's Notes about this opinion:

A) At the time this decision was handed down, the new statutes [SDCL 25-5-29, 25-5-30, 25-5-31, 25-5-32, 25-5-33, 25-5-34, 29A-5-106 and 29A-5-106.1] were in effect, having been passed by the 2002 legislature with emergency clauses and having been signed by Governor Janklow on February 28, 2002. This opinion does not address nor does it cite any of the new statutes.

B) This opinion is unanimous by the court and it is authored by Acting Justice Gors, the trial judge in the *Meldrum v. Novotny* saga.

C) This opinion reviews *Meldrum v. Novotny*, 2002 SD 15, and summarizes its holding in ¶ 14.

3. The Timmie Meldrum case is the subject of the following student law review article: Anthony P. Bolson, *Non-Parents: Overcoming the Law's Presumption of Parental Custody; Meldrum v. Novotny II, Extraordinary Circumstances and the Advent of "Timmy's Law"*, 48 South Dakota Law Review 484 (2003)

4. The new statutes which were passed by the South Dakota Legislature in 2002 are reproduced below. These new statutes have sometimes been referred to as “Timmie's Law” because they were passed in response to the publicity associated with custody dispute concerning Timmie Meldrum in the *Meldrum v. Novotny* saga.

**NON-PARENT CHILD CUSTODY LEGISLATION PASSED IN 2002
(TIMMIE'S LAW)**

CHAPTER 25-5: PARENT AND CHILD

25-5-29 (Effective February 28, 2002) Person other than parent permitted to seek custody of child -- Parent's presumptive right to custody -- Rebuttal. Except for proceedings under chapter 26-7A, 26-8A, 26-8B, or 26-8C, the court may allow any person other than the parent of a child to intervene or petition a court of competent jurisdiction for custody or visitation of any child with whom he or she has served as a primary caretaker, has closely bonded as a parental figure, or has otherwise formed a significant and substantial relationship. It is presumed to be in the best interest of a child to be in the care, custody, and control of the child's parent, and the parent shall be afforded the constitutional protections as determined by the United States Supreme Court and the South Dakota Supreme Court. A parent's presumptive right to custody of his or her child may be rebutted by proof:

- (1) That the parent has abandoned or persistently neglected the child;
- (2) That the parent has forfeited or surrendered his or her parental rights over the child to any person other than the parent;
- (3) That the parent has abdicated his or her parental rights and responsibilities; or
- (4) That other extraordinary circumstances exist which, if custody is awarded to the parent, would result in serious detriment to the child.

Source: SL 2002, ch 126, § 1.

25-5-30 (Effective February 28, 2002) Circumstances suggesting serious detriment to child. Serious detriment to a child may exist whenever there is proof of one or more of the following extraordinary circumstances:

- (1) The likelihood of serious physical or emotional harm to the child if placed in the parent's custody;
- (2) The extended, unjustifiable absence of parental custody;
- (3) The provision of the child's physical, emotional, and other needs by persons other than the parent over a significant period of time;
- (4) The existence of a bonded relationship between the child and the person other than the parent sufficient to cause significant emotional harm to the child in the event of a change in custody;
- (5) The substantial enhancement of the child's well-being while under the care of a person other than the parent;
- (6) The extent of the parent's delay in seeking to reacquire custody of the child;
- (7) The demonstrated quality of the parent's commitment to raising the child;
- (8) The likely degree of stability and security in the child's future with the parent;
- (9) The extent to which the child's right to an education would be impaired while in the custody of the parent; or
- (10) Any other extraordinary circumstance that would substantially and adversely impact the welfare of the child.

Source: SL 2002, ch 126, § 2.

25-5-31 (Effective February 28, 2002) No right created on behalf of stepparent. Nothing in § 25-5-29 creates any right on behalf of a stepparent to seek custody or visitation with a stepchild who has lived with that stepparent merely because the stepparent was married to or living with the child's parent.

Source: SL 2002, ch 126, § 3.

25-5-32 (Effective February 28, 2002) Parental rights need not be terminated if custody awarded to person other than parent. If a court determines that a person other than a parent should be awarded custody or visitation, the court need not terminate either parent's parental rights over the child. A judgment awarding to a person other than a parent custodial rights may award the parent visitation rights with the child.

Source: SL 2002, ch 126, § 4.

25-5-33 (Effective February 28, 2002) Child support, parent's duty to provide for child when custody awarded to person other than parent. If a court awards a person other than a parent custodial rights to a child, the court may set child support in whatever amount it deems appropriate, and notwithstanding the provisions of any other statute to the contrary, may waive the parent's duty to provide monetary or other support for his or her child.

Source: SL 2002, ch 126, § 5.

25-5-34 (Effective February 28, 2002) Applicability of §§ 25-5-29 to 25-5-34. It is the express legislative intent that §§ 25-5-29 to 25-5-34, inclusive, apply to all pending matters involving disputed custody of a child between a parent and a person other than a parent meeting the standing provisions of § 25-5-29, and all subsequent custody disputes involving a person other than a parent.

Source: SL 2002, ch 126, § 6.

CHAPTER 29A-5:
SOUTH DAKOTA GUARDIANSHIP AND CONSERVATORSHIP ACT

29A-5-106 (Effective February 28, 2002) Application of chapter to person other than parent seeking custody of child -- Limitations -- Effect of chapter on other law. Custody of a child may be sought by a person other than the parent under this chapter and the substantive law of this state. A person other than the parent may not use this chapter to seek custody if a proceeding is pending pursuant to chapter 25-3, 25-4, 25-5A, 25-6, 25-8, 26-7A, 26-8A, 26-8B, or 26-8C, or if the child is subject to the continuing jurisdiction of another court. Nothing in this chapter affects the provisions of chapters 25-4, 25-5, 25-5A, 25-6, 25-8, 26-7A, 26-8A, 26-8B, and 26-8C relating to the appointment of guardians and conservators and the administration of guardianships and conservatorships for children who have been adjudicated to be delinquent, abused, neglected, or in need of supervision. Nor may anything in this chapter affect the provisions of Title 27A, relating to individuals with mental illnesses. In the event of any inconsistency or conflict, the provisions of chapters 25-4, 25-5, 25-5A, 25-6, 25-8, 26-7A, 26-8A, 26-8B, and 26-8C or of Title 27A shall control, and the provisions of this chapter are in all respects to be supplementary thereto. A petition pursuant to this chapter seeking custody by a person other than the parent shall be dismissed if an action concerning the child is filed pursuant to chapter 26-7A, 26-8A, 26-8B, or 26-8C. If, while a guardianship petition pursuant to this chapter seeking custody by a person other than the parent is pending, an action is commenced pursuant to chapter 25-4, 25-5, 25-5A, 25-6, or 25-8, the court may, in its discretion, dismiss the guardianship proceeding and defer the child custody matter to the other proceeding or considering the stage of the proceedings, judicial economy, and best interests of the child, retain jurisdiction and establish the guardianship, or enter an appropriate protection order pending resolution of the pending proceedings.

Source: SL 1993, ch 213, § 6; SDCL 30-36-6; SL 1995, ch 167, § 181; 2002, ch 140, § 1.

29A-5-106.1 (Effective February 28, 2002) Applicability of § 29A-5-106 and chapter 25-5. It is the express legislative intent that §§ 29A-5-106 and 29A-5-106.1, together with chapter 25-5 dealing with custody disputes between a parent and a person other than the parent, apply to all pending and subsequent guardianship matters involving a custody dispute between a parent and a person other than the parent.

Source: SL 2002, ch 140, § 2.

NOTES

1. **Custody award to Grandparent overturned, guardianship procedure approved as vehicle for nonparent to seek custody, and order directing Hughes County to pay attorney fee reversed.** *Guardianship of S.M.N., T.D.N. & T.L.N.*, 2010 SD 31, 781 N.W.2d 213, presents a custody dispute between mother and the paternal grandmother. The trial court appointed an attorney to represent mother and ordered Hughes County to pay the attorney fees (\$9,511.72). The trial court granted grandmother permanent guardianship, with visitation rights to mother, finding “extraordinary circumstances” in accordance with SDCL 25-5-29 and 25-5-30. On appeal the SD Supreme Court held in a unanimous opinion authored by Justice Severson:

1) Under the 2002 amendments to SDCL 29A-5-206, 29A-5-106.1 and ch. 25-2, utilization of the guardianship provisions is indeed a permissible procedure by which a non-parent may seek custody “where allegations of abuse and neglect serve as the grounds for the petition, thus bypassing the Department of Social Services.”

2) The non-parent must “demonstrate extraordinary circumstances by clear and convincing evidence to overcome a natural parent’s presumptive right to custody.”

3) The grandmother did not meet the necessary burden in this case where the record shows that mother temporarily left the children with grandmother in order “to escape an abusive relationship and to establish a new life for her family in Sioux Falls” and “took steps to maintain contact with her children and to ensure their return to her custody.”

4) The trial court erred in admitting hearsay statements made by the children to the professional counselor and to the custody evaluator.

5) The trial court erred in ordering Hughes County to pay attorney fees for a custody litigant. There is a failure of statutory authority to support such an order.

2. Visitation rights to non-parent affirmed on the basis of “extraordinary circumstances.” SDCL 25-8-59 considered to be constitutional. In *Clough v. Nez*, 2008 SD 125, 759 N.W.2d 297, the trial court awarded visitation rights to a non-parent on the basis of “extraordinary circumstances.” The award was to a man who 1) was originally believed to be the natural father of the child, 2) who, together with the mother, executed a sworn acknowledgement of paternity, 3) whose name was put on the child’s birth certificate and 4) who served as child’s primary caretaker for an extended period of time, commencing immediately after birth and for at least 4 years thereafter. The SD Supreme Court affirmed in a unanimous decision with the Court’s opinion being authored by Justice Zinter.

3. Maternal Grandparents who served as former custodians lose custody to mother and are given severely restricted access rights to children in *In the matter of the Guardianship of A.L.T. and S.J.T.*, 2006 SD 28, 712 N.W.2d 338. In this case maternal grandparents raised twin granddaughters from birth. Grandparents eventually secured a guardianship for their granddaughters. After extended litigation, the grandparents’ guardianship was terminated, sole custody was given to mother, with scheduled visitation awarded for father. Grandparents were given severely restricted visitation rights because of their ongoing efforts to alienate children from the father. Much of the controversy centers on an allegation of sexual abuse brought by grandparents against the father – an allegation which the trial court found to be untrue. Upon the grandparents’ appeal, the South Dakota Supreme Court unanimously affirmed the lower court stating, “Although there is evidence in conflict, we cannot say that we have a definite and firm conviction that the circuit judge was clearly erroneous.” ¶1. The following principles can be found in the lengthy opinion written by Justice Konenkamp:

1) Grandparents caused the children to speak negatively of the father and would not work to rebuild the relationship between children and father, despite the recommendation of the court-appointed counselor.

2) The lower court found “by the greater convincing force of the evidence that the grandparents have intentionally, deliberately, maliciously, and wrongfully prevented [the father] from exercising his lawful rights of visitation.” ¶ 27.

3) The lower court found implausible the grandparents’ allegation that the father who had been “desperately fighting to have visitation with his children would on the first opportunity that he was given to have overnight visitation, while in the home of his brother and sister-in-law, and while at least the sister-in-law was present, went into a bedroom where [one child] was sleeping with four other children, took all of his clothes off, took all of the clothes off of [the child], had sexual intercourse with [the

child]...” ¶ 29.

4) Guardianship of a minor may be terminated if the court “determines that the minor is no longer in need of assistance of protection of a guardian...” under SDCL 29A-5-506. ¶ 38.

5) Although grandparents asserted “extraordinary circumstances” existed because to return a child to an abusive situation is never in the best interests of the child, the grandparents were found to have never overcome the “threshold” matter of demonstrating the mother was unfit. ¶ 39.

6) The lower court specifically found that the children were doing “remarkably better” under mother’s custody. ¶ 43.

7) In response to grandparents’ assertion that father failed polygraph examinations relating to the allegation of sexual abuse, the Court stated, “we have repeatedly held that the results from a polygraph examination are not admissible in South Dakota civil or criminal proceedings.” ¶ 44.

8) Grandparents were given restricted visitation rights with the trial court following the recommendation of the children’s therapist and attorney as follows: “(1) the mother must consent, (2) advance notice must be given to the father and his attorney, (3) Erin Olson, the current counselor must recommend the visit, and (4) the visit must be specifically authorized by written order of the court.” ¶48. These restrictions were upheld because “the court considered the influence and actions of the grandparents to be detrimental to the welfare of the children.” ¶49.

4. Maternal Grandparents Ordered to pay over \$14,000 in Attorney Fees incurred by Father in litigation arising out of bitter custody dispute. In *Toft v. Toft & Stratmeyer*, 2006 SD 91, 723 N.W.2d 546, we find a follow-up dispute concerning attorney fees in connection with an intensely litigated custody dispute between maternal grandparents and the children’s father and mother. Although the children (a set of twins) had lived with the grandparents for 9 or 10 years, ever since their birth, subsequent litigation terminated the grandparents’ rights, with the South Dakota Supreme Court affirming that decision in *In Re Guardianship and Conservatorship of A.L.T. and S.J.T.*, 2006 SD 28, 712 N.W.2d 338. In this proceeding the trial court awarded the father attorney fees in the amount of \$11,963 – an amount which was less than half of the total attorney fees requested. The SD Supreme Court affirmed and also awarded father additional appellate attorney fees of \$2,356. The opinion is unanimous and is authored by Justice Zinter.

F. Visitation Rights

1. Parents

CHICOINE v. CHICOINE

Supreme Court of South Dakota, 1991.
479 N.W.2d 891.

MILLER, Chief Justice.

Father appeals from an order of the circuit court, which divided the property of the parties and awarded restricted, but unsupervised, overnight visitation to lesbian mother. We affirm in part, reverse in part, and remand.

Michael and Lisa Chicoine were married on March 5, 1983, in Jefferson, South Dakota. The couple had two children, James, who was born on January 30, 1986, and Tyler, who was born October 23, 1987. Sometime during her pregnancy with Tyler, Lisa began the first of a series of admitted lesbian affairs which put a great strain on Chicoines' marriage. This was an open and notorious affair, and Lisa's lover even demanded that she be present for Tyler's delivery.

In February, 1989, Lisa and her lover broke up; thereafter, Lisa entered a treatment program for anorexia nervosa. After Lisa left treatment, she returned to the marital home and openly began a series of homosexual affairs.

In August of 1989, Lisa and the children moved out of the Chicoines' home and into the home of one of her lovers. During this time, Lisa and her lover made plans for Lisa to divorce Michael and obtain custody of the children for them to raise after she and her lesbian lover were "married." Shortly thereafter, Michael obtained a temporary custody order and brought the children home.

In late August, 1989, Michael filed for divorce on the grounds of extreme cruelty. After a trial on the merits, the court granted Michael a divorce and awarded him custody of the children. Lisa, who was undergoing treatment for various psychological problems, did not contest the custody award.

On the issue of visitation, the trial court found that while "Lisa had been less than discrete about her sexual preference" in the past and while she admitted her behavior in front of the children was inappropriate, it was in the children's best interest for Lisa to have restricted visitation rights. Lisa was awarded visitation every other weekend from 7:00 p.m. on Friday to 7:00 p.m. on Sunday; three weeks in the summer; and, alternating holidays as follows: New Years Day, Easter, Memorial Day, 4th of July, Labor Day, Veteran's Day, Thanksgiving Day, Christmas Eve; and Mother's Day. The only restrictions were that no unrelated female or homosexual male could be present during the children's visits.

* * *

Michael argues the trial court abused its discretion in allowing unsupervised overnight visitations to Lisa. The trial court has broad discretion in awarding custody of minor children and likewise

visitation rights; therefore, the trial court's decision can only be reversed upon a clear showing of an abuse of that discretion. *Madsen v. Madsen*, 456 N.W.2d 551, 553 (S.D.1990); *Jones v. Jones*, 423 N.W.2d 517, 519 (S.D.1988); *Lindley v. Lindley*, 401 N.W.2d 732, 735 (S.D.1987); *Saint-Pierre v. Saint-Pierre*, 357 N.W.2d 250, 254 (S.D.1984).

In cases such as this, the court's primary consideration is the best interests of the children. SDCL 30-27-19. Michael contends the children's development will be harmed by the continued exposure to Lisa's homosexual lifestyle; therefore, it is not in their "best interests" to have unsupervised overnight visits with their mother.

The trial court must determine from all the facts and circumstances what is in the best interests of the child "relative to the child's temporal, mental and moral welfare." *Lindley*, 401 N.W.2d at 735; SDCL 30-27-19. In most circumstances, "it will be in the best interests of children that they receive the love, affection, training, and companionship of their noncustodial parent." *Roberts v. Roberts*, 22 Ohio App.3d 127, 128, 489 N.E.2d 1067, 1069 (1985). This is not true, however, "where the evidence establishes that exercise of visitation will be harmful to the welfare of the children; in this event, the right of the noncustodial parent to visit with his children can be limited, or, under extreme circumstances, prohibited altogether." *Id.*

This court, in *Rivers v. Rivers*, 322 N.W.2d 864 (S.D.1982), denied the father overnight visitation because he was living with a woman to whom he was not married. We recognized that, as in child custody cases, the "harmful effect of parental misconduct committed in the presence of a child old enough to see and recognize it is self-evident." *Id.* at 865.

In *Kallas v. Kallas*, 614 P.2d 641 (Utah 1980), the Utah Supreme Court addressed the issue of a parent's right to visitation. "Although a parent's sexuality in and of itself is not alone a sufficient basis upon which to deny completely a parent's fundamental right, the manifestation of one's sexuality and resulting behavior patterns are relevant to custody and to the nature and scope of visitation." *Id.* at 645 (emphasis added); *see also MJP v. JGP*, 640 P.2d 966, 968 (Okla.1982).

The record in this case reveals:

(1) Lisa has experienced a myriad of psychological problems including an eating disorder, depression, suicidal threats, sexual abuse as a child and active homosexual relationships with several female partners.

(2) In the last two years of the marriage, Lisa was absent from the home frequently.

(3) Lisa openly admits that she is an active homosexual and that she had many sexual encounters with female partners during the marriage to Michael.

(4) Lisa and the children moved out of the marital home and into Lisa's lover's home.

(5) Lisa and her lover were affectionate toward each other in front of the children, caressing, kissing and saying "I love you."

(6) The oldest son reacted by saying "Mommy don't touch," or "Don't!" when Lisa and her lover held hands.

(7) Lisa and her lover were in an intimate position in bed when the oldest son entered the room. Lisa told her son to go back to bed and when questioned by her son as to why she was lying on top of the other woman, Lisa told him she was telling secrets. Lisa did not stop the sexual act to comfort her son.

(8) On at least two occasions, Lisa took the children to gay bars in Sioux City when she was out looking for her lover.

(9) On some occasions when the children were not present, Lisa publicly danced with females, kissing and caressing them on the dance floor.

(10) On some occasions, James and Tyler were allowed to get in bed to sleep with Lisa and her lover. Sometimes, Lisa would be unclothed.

(11) Lisa and her lover discussed getting married and raising the children in a homosexual marriage.

(12) Lisa admits that it is inappropriate to hold hands, kiss and show affection to her lesbian partners in front of her children.

(13) Lisa has openly exposed her homosexual feelings in front of her sons on more than one occasion.

(14) Dr. Arbis testified that "unless Lisa blatantly and consciously encourages them [the children] to engage in sexual behavior, *or blatantly exhibits her sexual behavior in front of them*, they will not receive any adverse developmental messages in terms of their own sexual preferences.

Although the trial court tried to protect the children through the visitation restrictions, "we are troubled by the order's incomplete response to the uncontroverted evidence concerning the harm threatened to the children" by its granting extensive, unsupervised, overnight visitation. *Roberts*, 489 N.E.2d at 1069. The trial court has a duty to ensure the children are protected at every turn. *Williams v. Williams*, 425 N.W.2d 390, 393 (S.D.1988); *Jasper v. Jasper*, 351 N.W.2d 114, 117 (S.D.1984). As we said in *Williams*, "at the very least, trial courts have the authority, and at times the obligation, to require a homestudy ... so it can be assured that the children are not placed, or do not remain, in surroundings seriously detrimental to their well-being." 425 N.W.2d at 393.

[T]his is one of those situations where the trial court had the obligation to do more. Judges in these cases have the awesome responsibility to protect children and "[t]he parents' personal wishes and desires must yield to what the court in the discharge of its duty regards as the children's best interest."

Shoop v. Shoop, 460 N.W.2d 721, 727 (S.D.1990) (Miller, C.J., dissenting) (citing *Jasper*, 351 N.W.2d at 117; *Williams*, 425 N.W.2d at 393).

Lisa and her psychologist have indicated that they believe she is now prepared and capable of providing a suitable environment for the children. At this juncture, this conclusion appears to us to be both speculative and premature. We are not reassured, given Lisa's past actions, that she will put the needs of her children first.

The trial court must have shared these doubts, since it placed restrictions on the visitation rights. However, these restrictions, especially considering the liberal visitation rights granted, are difficult, if not impossible, to enforce. Before granting such liberal visitation rights, the trial court must avail itself of other means, including a home study, to be assured that the children are not placed in an unsafe or unstable environment. Similarly, the trial court must provide adequate enforcement measures to assure compliance with any restrictions imposed should it persist in granting overnight visitation.

We reverse and remand with the direction that the trial court reconsider this issue in light of this holding.

* * *

NOTES AND QUESTIONS

1. May the parties' agreed-upon visitation schedule be rejected by the trial court? Consider *Schwab v. Schwab*, 505 N.W.2d 752, 757-58 (S.D. 1993) where the husband alleged error on appeal because the trial court only granted him "reasonable rights of visitation based upon reasonable notice and circumstances." The parties had entered into stipulation which provided that he would have alternating weekends from 6:00 PM Friday through 6:00 PM Sunday, alternating major holidays, and six weeks in the summer. The trial court rejected the agreement because of the age of the children (14 years and 11 years) and the schedule's inflexibility in dealing with the children's school activities and various odd jobs. The South Dakota Supreme Court affirmed.

2. In *Blase v. Brewer*, 2005 SD 7, 692 N.W.2d 785, the South Dakota Supreme Court held that the trial court had a continuing duty to insure that a mediated agreement in a custody/visitation rights dispute was in the best interest of the child. In this case the trial court initially approved a mediated agreement but later modified it, after mother expressed dissatisfaction with the agreement. "Here the court approved the agreement, but still owed a duty to ensure that the agreement was in the best interest of the child before issuing a final judgment." *Id.* at ¶ 10.

3. In *Johnson v. Johnson*, 471 N.W.2d 156 (S.D. 1991), the wife was given restricted visitation with the minor children. Because of wife's problems with bulimia, alcohol, cocaine, and a borderline personality disorder, she was allowed visitation only twice a month, not to exceed eight hours in duration per visit. During the visits, wife was to be supervised by a sober individual who would not permit the visits when wife is drinking. On appeal, wife claimed the visitation award was too restrictive. Result on appeal?

4. In *Weber v. Weber*, 529 N.W.2d 190 (S.D. 1995), the trial court entered a restrictive order that no visitation whatsoever could occur when child's ten-year old stepbrother was at father's residence. The trial court did this because of evidence that the stepbrother touched the child in "his private parts" on one occasion and, on another occasion, the stepbrother encouraged a group of children to pull down the child's pants. The South Dakota Supreme Court reversed, holding that such an order was too restrictive and constituted an abuse of discretion. The court stated that the trial court "went beyond both the evidence and the requests of the parties." In a footnote, the court clarified that the holding was limited to the facts of the case and that it was "not recognizing any right of step-children to visit one another."

5. A temporary protection order under the state's "Domestic Abuse" scheme must be granted upon the request of a fourteen year old daughter who wishes to avoid visitation with father because she "fears" physical abuse from him, even though father had never before abused her. The trial court denied relief, finding the daughter's fears to be irrational and also holding that the domestic abuse laws were not available for use by a minor to avoid visitation. The trial court indicated that alternatives were available through "modification" proceedings and "abuse/neglect" proceedings instituted by the Department of Social Services. The South Dakota Supreme Court reversed in *Beerman v. Beerman*, 1997 SD 11, 559 N.W.2d 868 (S.D. 1997), holding that the daughter was included in the statutory authorization for "any family or household member" to file a petition "against any other family or household member." SDCL 25-10-3. [Note, the holding in this case opens up another forum for litigation in post-divorce visitation.]

6. In *Hybertson v. Hybertson*, 1998 SD 83, 582 N.W.2d 402 (S.D. 1998), the wife was awarded custody. Husband, who had during the marriage joined the Jehovah's Witnesses, complained about the

visitation scheduled being tied to ‘holidays to the extent holidays are celebrated.’ He complained on appeal that this limited award was a violation of state and federal constitutional rights predicated on freedom of religion. The award was affirmed by the South Dakota Supreme Court which held:

“ . . . the visitation order merely accommodates the parent who celebrates the holiday. Robert has been granted liberal visitation, and not having custody of the children on a holiday he chooses not to celebrate does not infringe on any of his religious rights.” *Id.* at 407.

7. Terminology of “visitation” replaced with “noncustodial parenting time.” The 2008 legislature amended SDCL 25-4A-9 so as to change the phrase “child visitation guidelines” to “parenting guidelines.” The legislature also amended SDCL 25-4A-10 so as to replace the references to “child visitation” and “visitations” with the phrase “minimum noncustodial parenting time” or simply “noncustodial parenting time.”

8. Note – 2006 Legislative Action. Restrictions on visitation authorized for person who causes child to be conceived through rape or incest. The 2006 legislature added a new section to SDCL 25-4A as follows:

25-4A-20. Prohibition, revocation, or restriction of visitation rights of person causing conception by rape or incest. If it is in the best interest of the child, the court may prohibit, revoke, or restrict visitation rights to a child for any person who has caused the child to be conceived as a result of rape or incest. **Source:** SL 2006, ch 139, § 2.

9. Note – 2006 Legislative Action. The 2006 legislature enacted a procedure that allows for the implementation of the standard visitation guidelines by adding a new section to chapter 25-4A. The 2008 legislature broadened this provision so as to permit the implementation of the standard guidelines in more scenarios. The current version of SDCL 25-4A-16.1 is set forth below:

25-4A-16.1. Request for implementation of standard guidelines– Objection– Hearing– Order. Subject to the jurisdictional and procedural provisions of chapter 26-5B, any parent subject to a court order of this state or subject to the jurisdiction of a court of this state pursuant to chapter 26-5B relating to visitation, custody, or child support may request the court to enter an order implementing the standard visitation guidelines. If the request is made in a child support proceeding, compliance with chapter 26-5B, including appropriate notice and an opportunity to be heard, if not previously provided, is required. The request shall be in writing and shall include a copy of the existing order establishing custody or visitation and provide a current address of the responding party. Upon filing of the written request, the moving party shall serve a copy of the standard guidelines, together with a copy of the request and provide notice that absent an objection, the guideline visitation shall be imposed. The notice shall provide instructions as to the manner in which objections may be made. The service of such notice shall be deemed complete when an affidavit of the service of such notice and of the particular mode thereof, duly signed and verified by the person or officer making the service, shall have been filed with the court and such record or affidavit shall be presumptive evidence of the completed service of the notice herein required. If a party objects to the imposition of the standard guidelines within ten days of service, the court shall conduct an expedited hearing as soon as practical. Based upon the evidence presented at the hearing, the court may order the parties to abide by the standard visitation guidelines or may order any other relief as it deems appropriate. **Source:** SL 2006, ch 140, § 1; SL 2008, ch 128, § 1; SL 2009, ch 278 (Supreme Court Rule 08-08), eff. Nov. 1, 2008.

Visitation guidelines, authorized by SDCL 25-4A-10, have been promulgated by the South Dakota Supreme Court. The official version, approved in 2002, is found in the Appendix to SDCL 25-4A. Copies of the guidelines, in both English and Spanish, are available as a “pdf” files accessible on the web site for the South Dakota Supreme Court.

SOUTH DAKOTA VISITATION GUIDELINES

(Established by South Dakota Supreme Court on June 26, 2002, effective July 1, 2002)

A powerful cause of stress, suffering, and maladjustment in children of divorce is not simply divorce itself, but continuing conflict between parents, before, during, and after divorce. Similar conflicts can occur between parents who were never married. To minimize harm to their children, parents should agree on a parenting arrangement that is most conducive to frequent and meaningful contact for the children with both parents, with as little conflict as possible. When parental maturity, personality, and communication skills are adequate, the ideal arrangement is reasonable time with the noncustodial parent on reasonable notice, since that provides the greatest flexibility. The next best arrangement is a detailed visitation agreement made by the parents to fit their particular needs and, more importantly, the needs of the children. If the parents are unable to agree, however, the following guidelines will be used, unless a different schedule is court ordered. For most parents, these guidelines should be considered as only a minimum direction for interaction with the children.

1. GENERAL RULES

Parents should always avoid speaking negatively about one another and should firmly discourage such conduct by relatives or friends. In fact, the parents should speak in positive terms about the other parent in the presence of the children. Each parent should encourage the children to respect the other parent. Children should never be used by one parent to spy or report on the other. The basic rules of conduct and discipline established by the custodial parent should be the base-line standard for both parents and any step-parents, and consistently enforced by all, so that the children do not receive mixed messages about appropriate behavior.

Children will benefit from continued contact with all relatives and family friends on both sides of the family for whom they feel affection. Such relationships should be protected and encouraged. But relatives, like parents, need to avoid being critical of either parent in front of the children. Parents should have their children maintain ties with both the maternal and paternal relatives. In South Dakota, grandparents have a legal right to reasonable visitation with their grandchildren, if it is in the best interests of the grandchildren. Usually the children will visit with the paternal relatives during times the children are with their father and with the maternal relatives during times they are with their mother. It is recommended that the parents prepare an annual calendar of agreed dates so that both the parents and the children know where the children will be during the coming year.

In cases where both parents reside in the same community at the time of separation, and then one parent leaves the area, thus changing the visitation pattern, the court will consider apportioning between the parents the children's travel costs necessary to facilitate visitation with the noncustodial parent. In apportioning these costs, the court will consider such factors as the economic circumstances of the parents and the reasons prompting the move.

1.1 Parental Communication. Parents should always keep each other advised of their home and work addresses and telephone numbers. Whenever feasible, all communication concerning the children shall be conducted between the parents themselves in person, or by telephone, at their residences, and not at their places of employment.

1.2 Grade Reports and Medical Information. The custodial parent shall provide the noncustodial parent with grade reports and notices from school as they are received and shall authorize the noncustodial parent to communicate concerning the child directly with the daycare, the school, and the children's doctors and other professionals outside the presence of the custodial parent. Unless there are abuse, neglect, criminal, or protection orders to the contrary, the noncustodial parent shall also be listed as the children's parent and as an emergency contact with the daycare, the school, and all health professionals. Each parent shall immediately notify the other of any medical emergencies or serious illnesses of the children. The custodial parent shall, as soon as reasonably possible, notify the noncustodial parent of all school or other events (for example, church or sports) involving

parental participation. If the child is taking medications, the custodial parent shall provide a sufficient amount and appropriate instructions to the noncustodial parent.

1.3 Visitation Clothing. The custodial parent shall send an appropriate supply of children's clothing with them, which shall be returned clean (when reasonably possible), with the children, by the noncustodial parent. The noncustodial parent shall advise, as far in advance as possible, of any special activities so that the appropriate clothing belonging to the children may be sent.

1.4 Withholding Support or Visitation. Neither visitation nor child support is to be withheld because of either parent's failure to comply with a court order. Only the court may enter sanctions for non-compliance. Children have a right both to support and to visitation, neither of which is dependent upon the other. In other words, no support does not mean no visitation, and no visitation does not mean no support. If there is a violation of either a visitation or a support order, the exclusive remedy is to apply to the court for appropriate sanctions.

1.5 Adjustments in this Visitation Schedule. This schedule is to be understood as imposing specific requirements and responsibilities; however, when family necessities, illnesses, or commitments reasonably so require, the parents are expected to modify visitation fairly. The parent requesting modification shall act in good faith and give as much notice as circumstances permit.

1.6 Custodial Parent's Vacation. Unless otherwise specified in a court order or agreed by the parents, the custodial parent is entitled to a vacation with the children for a reasonable period of time, usually equal to the vacation time the noncustodial parent takes with the children. The custodial parent should plan a vacation during the time when the noncustodial parent is not scheduled to spend time with the children.

1.7 Insurance Forms. The parent who has medical insurance coverage on the children shall supply to the other parent an insurance card and, as applicable, insurance forms and a list of insurer-approved or HMO-qualified health care providers in the area where the other parent is residing. A parent who, except in an emergency, takes the children to a doctor, dentist, or other provider not so approved or qualified should pay the additional cost thus incurred. When there is a contemplated change in insurance which requires a change in medical care providers and a child has a chronic illness, thoughtful consideration should be given by the parents to what is more important, i.e., allowing the child to remain with the original provider or taking advantage of economic or medical benefits offered by the new carrier. When there is an obligation to pay medical expenses, the parent responsible therefor shall be promptly furnished with the bill by the other parent. The parents shall cooperate in submitting bills to the appropriate insurance carrier. Thereafter, the parent responsible for paying the balance of the bill shall make arrangements directly with the health care provider and shall inform the other parent of such arrangements. Insurance refunds should be promptly turned over to the parent who paid the bill for which the refund was received.

1.8 Child Support Abatement. Unless a court order otherwise provides, support shall not abate during any period when the children are with the noncustodial parent. (South Dakota law allows for support abatement. See SDCL 25-7-6.14. However, no abatement may be taken unless there is a court order authorizing it.)

1.9 Missed Visitation. When events beyond either parent's control, such as illness, prevent a scheduled visitation, a mutually agreeable substituted visitation date shall be arranged, as quickly as feasible. Each parent shall timely advise the other when a particular visitation cannot be exercised. Missed visitation should not be unreasonably accumulated.

1.10 Visitation - A Shared Experience. Except with infants and adolescents, it usually makes sense for all the children to share the same schedule. Having brothers and sisters along may provide an important support for children. Infants have special needs that may well prevent a parent from being with both infants and older children at the same time. Adolescents have special needs for peer involvement and for some control in their own lives that may place them on different schedules from their younger brothers and sisters. Because it is intended that visitation be a shared experience between siblings and, unless these guidelines, a court order, or circumstances, such as age,

illness, or a particular event suggest otherwise, all the children should spend time together with the noncustodial parent.

1.11 Telephone Communication. Telephone calls between parent and child shall be liberally permitted at reasonable hours and at the expense of the calling parent. The custodial parent may call the children at reasonable hours when the children are with the noncustodial parent. The children may, of course, call either parent, though at reasonable hours and frequencies, and at the cost of the parent called if it is a long distance call. During long vacations the parent with whom the child is on vacation should make the child available for telephone calls every three days. At all other times, the parent with whom the child is staying shall not refuse to answer the phone or turn off the phone in order to deny the other parent telephone contact. If a parent uses an answering machine, messages left on the machine for the child should be returned. Parents should agree on a specified time for calls to the children so that the children will be made available. A parent may wish to provide a child with a telephone calling card to facilitate communication with that parent.

1.12 Mail and E-mail Contact. Parents have an unrestricted right to send cards, letters, packages, and audio and video cassettes or CDs to their children. Children also have the same right to send items to their parents. Neither parent should interfere with this right. A parent may wish to provide a child with self-addressed, stamped envelopes for the child's use in corresponding with that parent. If the child and the parent have Internet capability, communication through e-mail should be fostered and encouraged.

1.13 Privacy of Residence. A parent may not enter the residence of the other except by express invitation of the resident parent, regardless of whether a parent retains a property interest in the residence of the other parent. Accordingly, the children shall be picked up and returned to the front entrance of the appropriate residence. The parent dropping off the children should not leave the premises until the children are safely inside. Parents should refrain from surprise visits to the other parent's home. A parent's time with the children is his or her own, and the children's time with that parent is equally private.

1.14 Special Considerations for Adolescents. Generally, these guidelines apply to adolescents as well as younger children. Nonetheless, within reason, the parents should honestly and fairly consider the wishes of their teenagers on visitation. Neither parent should attempt to pressure their teenager to make a visitation decision adverse to the other parent. Teenagers should explain the reasons for their wishes directly to the affected parent, without intervention by the other parent.

1.15 Day Care Providers. When parents reside in the same community, they should use the same day care provider. To the extent feasible, the parents should rely on each other to care for the children when the other parent is unavailable.

1.16 Special circumstances.

A. Child Abuse. When child abuse has been established against the noncustodial parent and a continuing danger is shown to exist, all visitation should cease or be allowed only under supervision, depending on the circumstances. Court intervention is usually required in child abuse cases, if either parent abuses a child.

B. Spouse Abuse. Witnessing spouse abuse has long-term, emotionally detrimental effects on children. Furthermore, a person who loses control and acts impulsively with a spouse may be capable of doing so with children. Depending [upon] the nature of the spouse abuse and the time and circumstances of its occurrence, the court may require that an abusive spouse successfully complete appropriate counseling before being permitted unsupervised time with the children.

C. Substance Abuse. The children should not be with a parent who is abusing substances.

D. Long Interruption of Contact. In those situations where the noncustodial parent has not had a continuing relationship the child for an extended period, visitation should begin with brief visits and a very gradual transition to the visitation in these guidelines.

E. Kidnapping Threats. Noncustodial parents who have threatened to kidnap or hide the children should have no

visitation or only supervised visits.

F. Breast Feeding Child. Forcibly weaning a child, whether breast feeding or bottle feeding, during the upheaval of parental separation is not appropriate for the physical health or emotional well-being of the child. Until weaning has occurred without forcing, a nursing infant should have visits of only a few hours with the father. A mother should not use breast feeding beyond the normal weaning age as a means to deprive the father of visitation.

G. A Parent's New Relationship. Parents should be sensitive to the danger of exposing the children too quickly to new relationships while they are still adjusting to the trauma of their parents' separation and divorce.

H. Religious Holidays and Native American Ceremonies. Parents should respect their children's needs to be raised in their faith and in keeping with their cultural heritage and should cooperate with each other on visitation to achieve these goals. These goals should not be used to deprive the noncustodial parent of visitation.

I. Other. The court will consider limiting or denying visitation or changing custody of parents who show neglectful, impulsive, immoral, criminal, assaultive, or risk-taking behavior with or in the presence of the children.

2. NONCUSTODIAL PARENT VISITATION WHEN CHILDREN ARE UNDER AGE FIVE.

2.1 Children Under Age Five Generally. Infants (children under eighteen months of age) and toddlers (eighteen months to three years) have a great need for continuous contact with the primary caretaker who provides a sense of security, nurturing, and predictability. Generally, overnight visits for infants and toddlers are not recommended unless the noncustodial parent is very closely attached to the child and is personally able to provide primary care. Older preschool age children (three to five) are able to tolerate limited separations from the primary caretaker. The following guidelines for children under age five are designed to take into account children's developmental milestones as a basis for time with the noncustodial parent. Since children mature at different rates, these may need to be adjusted to fit the child's individual circumstances. These guidelines may not apply when the parents equally share caretaking responsibilities for the child and the child is equally attached to both parents. Yet in the majority of situations, those in which the custodial parent has been the primary caretaker and the noncustodial parent has maintained a continuous relationship with the child, but has not shared equally in child caretaking, the following guidelines should generally apply.

2.2 Infants - Birth to Six Months. Alternate parenting plans: (1) Three, two-hour visits per week, with one weekend day for six hours; or (2) Three, two-hour visits per week, with one overnight on a weekend for no longer than a twelve-hour period, if the child is not breast feeding and the noncustodial parent is capable of providing primary care.

2.3 Infants - Six to Eighteen Months. Alternate parenting plans: (1) Three, three-hour visits per week with one weekend day for six hours; or (2) Same as (1), but with one overnight not to exceed twelve hours, if the child is not breast feeding and the noncustodial parent is capable of providing primary care; or (3) Child spends time in alternate homes, but spends significantly more time at one of them and no more than two twelve-hour overnights per week at the other. This arrangement should be considered only for mature, adaptable children and very cooperative parents.

2.4 Toddlers - Eighteen to Thirty-six Months. Alternate parenting plans: (1) The noncustodial parent has the child up to three times per week for a few hours on each visit, on a predictable schedule; or (2) Same as (1) but with one overnight per week; or (3) Child spends time in alternate homes, but with more time in one than the other with two or three overnights spaced regularly throughout the week. This arrangement requires an adaptable child and cooperative parents.

2.5 Preschoolers - Three to Five-Years-Old. Alternate parenting plans: (1) One overnight visit (i.e., Saturday morning to Sunday evening) on alternate weekends and one midweek visit, at the conclusion of which the child is returned to the custodial parent's home at least one-half hour before bedtime; or (2) Two or three nights at one home, spaced throughout the week, the remaining time at the other home. In addition, for preschoolers, a vacation of no longer than two weeks with the noncustodial parent.

2.6 Children in Day Care. In families where a child has been in day care before the parental separation, the child

may be able to tolerate flexible visits earlier because the child is more accustomed to separations from both parents. The noncustodial parent who exercises visitation of a child under age five should not during the visits place the child with a baby-sitter or day care provider. If the noncustodial parent cannot be with the child personally, the child should be returned to the custodial parent. Visiting for short periods with relatives may be appropriate, if the relatives are not merely serving as baby-sitters.

2.7 Holidays. For toddlers and preschool age children, when the parents live in the same or nearby communities, the parents should alternate each year Christmas Eve and Christmas Day, so that the children spend equal time with each parent during this holiday period. Other major holidays should also be divided between the parents.

3. NONCUSTODIAL PARENT VISITATION WHEN CHILDREN ARE OVER AGE FIVE AND THE PARENTS RESIDE NO MORE THAN 200 MILES APART

3.1 Weekends. Alternate weekends from Friday at 5:30 P.M. to Sunday at 7:00 P.M.; the starting and ending times may change to fit the parents' schedules. Or an equivalent period of time if the noncustodial parent is not available on weekends and the child does not miss school. In addition, if time and distance allow, one or two midweek visits of two to three hours. All transportation for the midweek visits are the responsibility of the noncustodial parent.

3.2 Mother's Day - Father's Day. The alternate weekends will be shifted, exchanged, or arranged, so that the children are with their mother each Mother's Day weekend and with their father each Father's Day weekend. Conflicts between these special weekends and regular visitation shall be resolved under Paragraph 1.9.

3.3 Summer Visitation. One-half of the school summer vacation. At the option of the noncustodial parent, the time may be consecutive or it may be split into two blocks of time. If a child goes to summer school and it is impossible for the noncustodial parent to schedule this visitation time other than during summer school, the noncustodial parent may elect to take the time when the child is in summer school and transport the child to the summer school session at the child's school or an equivalent summer school session in the noncustodial parent's community.

3.4 Winter (Christmas) Vacation. One-half the school winter vacation, a period which begins the evening the child is released from school and continues to the evening of the day before the child will return to school. If the parents cannot agree on the division of this period, the noncustodial parent shall have the first half in even-number years. Holidays, such as Christmas, are extremely important as times of shared enjoyment, family tradition, and meaning. Families living in the same or nearby communities should plan for the children to spend part of each important holiday at both homes. If the parents are unable to work out a sharing arrangement for Christmas and they live in the same or nearby communities, in those years when Christmas does not fall in a parent's week, that parent shall have from 2:00 P.M. to 9:00 P.M. on Christmas Day.

3.5 Holidays. Parents shall alternate the following holiday weekends: Easter, Memorial Day, the 4th of July, Labor Day and Thanksgiving. Thanksgiving will begin on Wednesday evening and end on Sunday evening; Memorial Day and Labor Day weekends will begin on Friday and end on Monday evening; Easter weekend will begin on Thursday evening and end on Sunday evening; the 4th of July, when it does not fall on a weekend, shall include the weekend closest to the 4th. Holiday weekends begin at 5:30 P.M. and end at 7:00 P.M. on the appropriate days.

3.6. Children's Birthdays. Like holidays, a child's birthday shall be alternated annually between the parents. If the birthday falls on a weekend, it shall extend to the full weekend, and any resulting conflict with regular visitation shall be resolved under Paragraph 1.9. If the birthday falls on a weekday, it shall be celebrated from 2:00 P.M. to 8:00 P.M. (or so much of that period as the noncustodial parent elects to use).

3.7. Parents' Birthdays. The children should spend the day with the parent who is celebrating his or her birthday, unless it interferes with a noncustodial parent's scheduled time during a holiday or vacation.

3.8. Conflicts between Regular and Holiday Weekends. When there is a conflict between a holiday weekend and the regular weekend visitation, the holiday takes precedence. Thus, if the noncustodial parent misses a regular weekend because it is the custodial parent's holiday, the regular alternating visitation schedule will resume following the holiday. If the noncustodial parent receives two consecutive weekends because of a holiday, the regular alternating weekend schedule will resume the following weekend with the custodial parent. The parents are to make up missed weekends resulting from holiday conflicts.

3.9. Visitation Before and During Vacations. The custodial parent will have the weekend before the beginning of the noncustodial parent's summer extended visitation period(s) with the children, regardless of whose weekend it may be. Similarly, the noncustodial parent's alternating weekend schedule shall resume the second weekend after each extended summer visitation period. Weekend visitation "missed" during the summer vacation period will not be "made up." During any extended summer visitation of more than three consecutive weeks, it will be the noncustodial parent's duty to accommodate, at a mutually convenient time, a 48-hour continuous period of visitation for the custodial parent, unless impractical because of distance.

3.10. Notice of Canceled Visitation. Whenever possible, the noncustodial parent shall give a minimum of three-days notice of intent not to exercise all or part of the scheduled visitation. When such notice is not feasible, the maximum notice permitted by the circumstances, and the reason therefor, shall be provided to the other parent. Custodial parents shall give the same type of notice when events beyond their control make the cancellation or modification of scheduled visitation necessary. If the custodial parent cancels or modifies the noncustodial parent's time with a child because the child has a scheduling conflict, the noncustodial parent should be given the opportunity to take the child to the scheduled event or appointment.

3.11. Pick Up and Return of Children. When the parents live in the same community, the responsibility of picking up and returning the children should be shared. Usually the noncustodial parent will pick up and the custodial parent will return the children to that parent's residence. The person picking up or returning the children during times of visitation has an obligation to be punctual, arriving at the agreed time, not substantially earlier or later. Repeated, unjustified violations of this provision may subject the offender to court sanctions.

3.12. Additional Visitation. The children's time with the noncustodial parent should be liberal and flexible. For most parents, these guidelines should be considered as only the minimum and are not meant to foreclose the parents from agreeing to such time-sharing with the children as the parents find reasonable and in the best interests of their children at any given time.

4. NONCUSTODIAL PARENT VISITATION WHEN CHILDREN ARE OVER AGE FIVE AND THE PARENTS RESIDE MORE THAN 200 MILES APART

4.1 Extended visitation. All but three weeks of the school summer vacation period and, on an alternating basis, the school winter (Christmas) vacation and spring break.

4.2 Priority of Summer Visitation. Summer visitation with the noncustodial parent takes precedence over summer activities (such as sports), when the visitation cannot be reasonably scheduled around such events. Even so, the conscientious noncustodial parent will often be able to enroll the child in the same or similar activity in the noncustodial parent's community.

4.3 Notice. At least 60 days advance written notice should be given by the noncustodial parent of the date for commencing extended summer visitation, so that the most efficient means of transportation may be obtained and the parents and the children may arrange their schedules. Failure to give the precise number of days notice does not give the custodial parent the right to deny visitation.

4.4 Additional Visitation. Where distance and finances permit, additional visitation, such as for holiday weekends or special events, is encouraged. When the noncustodial parent is in the area where the children reside, or the

children are in the area where the noncustodial parent resides, liberal visitation shall be accommodated. Because the noncustodial parent does not get weekly time with the children, the children can miss some school to spend time with the noncustodial parent, so long as it does not substantially impair the children's scholastic progress.

F. Visitation Rights

2. Nonparents (Grandparents and Others)

BARRIENTOS v. GARZA

Court of Civil Appeals of Texas, Dallas, 1977.
559 S.W.2d 399.

GUITTARD, Chief Justice.

The question for our decision is whether a grandparent may maintain an independent suit for access to a child under Texas Family Code Annotated, Section 14.03(d) (Vernon Supp.1976), when no managing conservator has been appointed. We hold that the grandparent may not maintain such a suit.

The children in this case were born to appellant, Enrique Barrientos and his wife Mary Lou, now deceased. In Mary Lou's lifetime her mother, Candleria Garza, lived in the home and helped with the children, and after her death Mrs. Garza assumed the mother's responsibility. After the father remarried, differences arose, and Mrs. Garza was required to move out. When further problems developed over Mrs. Garza's contacts with the children, she brought this suit to establish access rights under Texas Family Code Annotated, Section 14.03(d) (Vernon Supp.1976). After trial without a jury, the court entered an order [awarding] (sic) Mrs. Garza "access to and visitation with the children . . . on every other Saturday from 9:00 A.M. until 5:00 P.M." The father appeals, contending that section 14.03 does not provide a grandparent an independent cause of action for access rights to a child in the custody of a fit custodial parent.

The question so presented requires interpretation of section 14.03, * * *

The result of this interpretation is that if a child is in the custody of a parent whose rights and responsibilities do not depend on his appointment as managing conservator, that parent has responsibility and authority to determine what persons may have access to the child, and the terms and conditions of their access, and no order by the court is appropriate or authorized.

This interpretation is based on the language of section 14.03, but it is reinforced by considerations of policy. Before enactment of the Code, Texas decisions had settled the rule that a grandparent had no legal right of visitation with his minor grandchild over the objection of the parents or of a single parent having custody. *Green v. Green*, 485 S.W.2d 941 (Tex.Civ.App. Eastland 1972, writ ref'd n. r. e.); *Smith v. Painter*, 408 S.W.2d 785 (Tex.Civ.App. Eastland 1966, writ ref'd n. r. e. per curiam, 412 S.W.2d 28 (Tex.1967). This has been the general common law rule. *Veazey v. Stewart*, 251 Ark. 334, 472 S.W.2d 102 (1971); *Odell v. Lutz*, 78 Cal.App.2d 104, 177 P.2d 628 (Dist.Ct.App.1947); *Succession of Reiss*, 46 La. Ann. 347, 15 So. 151 (1894); *Flannery v. Sharp*, 151 Pa.Super. 612, 30 A.2d 810 (1943). That rule is based on a policy of non-interference with the authority and control of the custodial parent so as to avoid any harm likely to result

to children from litigation over rights of visitation. Gault, *Grandparent-- Grandchild Visitation*, 37 Tex.B.J. 433 (1974). Litigation concerning children is frequently bitter and emotionally charged, and the resulting harm to the children can be justified only on the ground of necessity to protect their best interests. Although grandparents usually have strong emotional ties to their grandchildren, and contact with grandparents are usually in the best interest of the children, we are persuaded that the children's interest will be better served, in the long run, by leaving such contacts to the discretion of the custodial parent rather than by permitting judicial intermeddling through the process of litigation.

* * *

The judgment of the trial court is reversed and judgment is here rendered that the relief prayed for be denied.

NOTE

The common law rule and the result in *Barrientos v. Garza* was subsequently dealt with by the Texas legislature. See Section 14.03 (e) which specifically authorizes an independent action for access rights by grandparent where the parent of the child is dead.

THE U.S. SUPREME COURT SPEAKS ON THE ISSUE OF PARENTAL INTERFERENCE

We now have a recent U.S. Supreme Court decision on this issue of interference with custodial parent's discretion. In *Troxel v. Granville*, 530 U.S. 57, 120 S.Ct. 2054, handed down on June 5, 2000, the high Court considered a case from the state of Washington wherein the child's paternal grandparents petitioned for visitation rights shortly after the death of the child's father. The custodial mother disagreed with the amount of access that should be allowed to the paternal grandparents but was willing to allow them to see the child once a month for a short time. The trial court awarded the grandparents one weekend per month and one week during the summer and 4 hours on both of the grandparents' respective birthdays. The statute which authorized the award of visitation rights granted standing to "any person" and the grant of visitation rights was a determination to be made in accordance with the "best interest of the child." The Washington Supreme Court struck down the statute as unconstitutional under the reasoning that the federal constitution protected the rights of parents to rear their children and that the statute was inadequate in that it didn't require any showing of harm or potential harm to the child. By permitting any person at any time to petition for visitation rights, subject only to the "best interest of the child" criteria, was constitutionally too broad, according to the Washington Supreme Court.

The U.S. Supreme Court affirmed the judgment, holding only that the visitation order actually entered in this case was unconstitutional. Stated differently, the statute *as applied* in this case was unconstitutional. Only four justices sign on to the opinion for the court which is authored by Justice O'Connor. Those agreeing with Justice O'Connor were Justices Rehnquist, Ginsburg and Breyer. Justice Souter and Justice Thomas each separately concurred in the affirmance. Much insight is gained by looking at the four justice plurality opinion and the concurrences by these two justices, especially Justice Souter's

opinion.

The U.S. Supreme Court's decision is quite significant in that it is an unqualified vindication of the constitutionally-protected right of a custodial parent's right to determine the extent of access rights to be allowed to non-parents. It is also significant that the bare facts of this case – with grandparents asserting rights because of the death of the parent, through whom lineage is established – represent a fairly conservative and typical scenario which, *prior to this decision*, seemed to be a rather straightforward matter.

Stated differently, the grandparents' award of visitation rights was taken away by the Washington Supreme Court because "the statute" (which authorized the award of those rights) was considered to be unconstitutionally too broad. The U.S. Supreme Court affirmed, holding that the particular "order" granting those rights, not the statute, was an unconstitutional invasion of the mother's right. Under either rationale, the grandparents lost! The type of right which is recognized as belonging to the mother is described in the plurality opinion as "the fundamental right of parents to make childrearing decisions." 109 S.Ct. at 2064. Justice Souter refers to this right as a "recognized right of upbringing." 109 S.Ct. at 2066. Justice Thomas agreed with the plurality opinion which articulated "this Court's recognition of a fundamental right of parents to direct the upbringing of their children." 109 S.Ct. at 2068.

The matter of just exactly what is necessary *constitutionally* to interfere with the parent's right escapes conclusive resolution. The four-justice plurality opinion recognizes a "presumption" in favor of the parent which should not be defeated by a mere "best interest of the child" determination, suggesting that harm or lack of parental fitness is required. 120 S.Ct. at 2061. Justice Souter is unwilling to agree to this part of the holding, specifically noting that there is no need to say what must be shown to overcome to infringe upon the parent's rights; however it does appear that Justice Souter believes a mere "best interest of the child" finding would be insufficient, especially as applied to "any party," at "any time." 109 S.Ct. at 2066-67. Justice Thomas' opinion seems to support the notion that a mere "best interest of the child" is not sufficient to interfere with the custodial parent's right to direct the upbringing, although his opinion does not specifically so state. Justice Thomas does say, "I would apply strict scrutiny to infringements of fundamental rights. Here the State of Washington lacks even a legitimate governmental interest – to say nothing of a compelling one – in second-guessing a fit parent's decision regarding visitation with third parties." 109 S.Ct. at 2068.

The U.S. Supreme Court has very rarely involved itself in domestic relations matters and, when it has gotten involved, it has usually been in connection with substantive due process questions accompanying an effort to terminate parental rights. This case is most unusual because it delves squarely into the heart of a traditional domestic relations issue involving access to a child, outside the context of a proceeding to terminate parental rights.

SOUTH DAKOTA'S RESPONSE(S) TO THE *TROXEL* DECISION

The South Dakota statute which addresses grandparent visitation has gone through several changes in recent years. The SD Legislature reacted to the *Troxel* decision in the 2001 legislative session by permitting an award of visitation rights in situations where, in addition to satisfying the “best interest” of the child standard, the visitation “will not significantly interfere with the parent-child relationship” or “the parent or custodian ... has denied or prevented the grandparent reasonable opportunity to visit the grandchild.” Both of these situations (“not significantly interfere” and “denied reasonable opportunity to visit”) were tacitly approved in the *Troxel* opinion as instances where a court may permissibly interfere with the parent’s fundamental right to make child rearing decisions. (The *Troxel* opinion cited, with approval, similar statutory provisions found in Maine, Minnesota, Nebraska, Mississippi, Oregon and Rhode Island.)

The 2001 legislation also included a sentence which stated, “There is a presumption that visitation with the grandparents is in the best interests of the grandchild if a parent of that grandchild, who is also the child of that grandparent, has died.” This sentence was declared unconstitutional in *Curry v. Curry*, 2002 SD 98, 650 N.W.2d 273. The *Curry* decision approved the remainder of the language set forth in the 2001 legislation since it was not “overbroad.” Only the “presumptive” sentence was found to be constitutionally overbroad.

The SD Legislature deleted the unconstitutional “presumptive” sentence in 2003.

The 2004 SD Legislature amended the statute so that it would include great-grandparents.

The current version of South Dakota’s grandparent visitation statute is reproduced below:

25-4-52. Visitation rights for grandparents--Enforcement by circuit court. The circuit court may grant grandparents reasonable rights of visitation with their grandchild, with or without petition by the grandparents, if the visitation is in the best interests of the grandchild and:

- (1) If the visitation will not significantly interfere with the parent- child relationship; or
- (2) If the parent or custodian of the grandchild has denied or prevented the grandparent reasonable opportunity to visit the grandchild.

The circuit court shall issue any orders necessary to enforce or to protect visitation rights granted pursuant to this section.

As used in this section, the term grandparents includes great-grandparents.

Source: SL 1982, ch 191, § 1; SL 2001, ch 130, § 1; SL 2003, ch 144, § 1; SL 2004, ch 172, § 1.

Additional Constitutional Factors Added By SD Supreme Court

Constitutional factors implanted on SDCL 25-4-52, South Dakota’s grandparent visitation rights statute. In the case of *In RE A.L. and S.L.Z.*, 2010 SD 33, ___ N.W.2d___ the parents appealed the trial court’s award of visitation rights to their children’s paternal grandparents. On appeal parents attacked SD’s grandparent visitation statute, SDCL 25-4-52 as unconstitutional. The SD Supreme Court upheld the statute as constitutional, but went on to hold that the trial court applied it in an

unconstitutional manner. At play is the parents' *liberty interest* as recognized in the parents' rearing of their children. In deciding how to accord proper weight to parents' decision as to what is in the best interest of their children, the South Dakota Supreme Court applied principles derived from the U.S. Supreme Court's decision in *Troxel v. Granville*, 530 US 57. The SD Supreme Court held, at ¶ 23, that in applying SDCL 25-4-52, the court

“must (1) presume that a fit parent acts in his or her child's best interests,
(2) give special weight to a fit parent's decision to deny or limit visitation,
(3) consider whether the parent has completely denied visitation or simply limited visitation,
(4) shift the burden to the parent to offer evidence in support of the parent's decision only if the grandparents overcome the parental presumption, and
(5) require the grandparents to bear the ultimate burden of establishing by clear and convincing evidence that special factors exist showing that the visitation they seek is in the child's best interests.”

The case is reversed and remanded to the trial court for application of these factors. This is a unanimous decision with opinion authored by Justice Konenkamp.

NOTES AND QUESTIONS **(discussing both pre-*Troxel* and post-*Troxel* cases in SD)**

1. The student should now review the *Sedelmeier* case which is found earlier in this book. In *Sedelmeier*, the non-parents were denied visitation rights in the absence of a showing that the mother was unfit.

2. Mother's boyfriend claims he had assumed responsibility for raising mother's son for seven years. Mother and boyfriend part company and now the ex-boyfriend petitions the court for visitation rights to mother's son. What result? See *Cooper v. Merkel*, 470 N.W.2d 253 (S.D. 1991).

3. In *Quinn v. Mouw-Quinn*, 1996 SD 103, 552 N.W.2d 843 (S.D. 1996), the trial court awarded the husband visitation rights with all three children born to wife, although he was only a stepfather to the oldest child. He was also ordered to pay child support for all three children, an order which he did not contest. Wife appealed. The South Dakota Supreme Court affirmed. The award of visitation right to a non-parent (stepfather) in this case was upheld as a situation involving "extraordinary circumstances." Recall that "extraordinary circumstances" has been one of the exceptions which has been continuously specified by the court to the general rule that a non-parent lacks standing to seek custody or visitation rights. The Court also relied, *inter alia*, on the repeal of the statutory parental preference [former SDCL 30-27-23] and the recent legislative adoption of more liberalized language in part of the guardianship code [SDCL 29A-5-203]. *Id.* at 845-46. The Court also noted that the doctrine of "parens patriae" supported the trial court's orders respecting the step child. *Id.* at 846-47.

4. In the *Quinn* case described in note 3, the wife (who had been awarded custody of all three children) was found to lack standing to appeal the trial court's order that husband pay child support for his stepchild. [Husband did not appeal this or any other aspect of the trial court's decision.] *Id.* at 847.

5. In *D.G. v. D.M.K.*, 1996 SD 144, 557 N.W.2d 235 (S.D. 1996), the South Dakota Supreme

Court rejected the "equitable parent doctrine" and reversed the trial court's award of visitation rights to mother's boyfriend whose paternity had been conclusively disproved by blood tests. Under South Dakota law, visitation rights to non-parent can be awarded only upon a showing of gross misconduct or unfitness of the parent or "other extraordinary circumstances." And, "extraordinary circumstances" means "more than a simple showing that visitation would be in the child's best interest." *Id.* at 243.

6. The Florida Supreme Court recently declared a state statute which authorized the award of visitation rights to grandparents unconstitutional. The statutory scheme would have permitted grandparents to be awarded visitation rights in situations where the child was living with both natural parents in an "intact family" situation, without showing that the child would otherwise be harmed. The statute was found to impermissibly infringe upon the parents' right of privacy which encompasses the parents' fundamental right to raise their children. *Beagle v. Beagle*, 678 So.2d 1271 (Fla.Sup.Ct. 1996). The opinion cites and agrees with similar rulings from the Georgia Supreme Court and the Tennessee Supreme Court.

7. Mother's arguments (made under the auspices of the U.S. Supreme Court decision in *Troxel v. Granville*) of a denial of due process and inappropriate governmental interference with her rights as a parent were misplaced in situation where trial court has been asked to modify grandparent visitation granted under a preexisting visitation order, according to *Osgood (Kron) v. Osgood*, 2004 SD 22, 676 N.W.2d 145. While father was in prison, mother agreed to 1995 court order granting his parents (child's paternal grandparents) visitation rights with child. (This order awarded grandparents visitation from 10:00 a.m. on Saturday to 10:00 a.m. on Sunday on the 2nd and 4th weekends of each month, plus holiday visitation "to the extent possible as agreed between the parties." ¶3) After father had been released and then re-sentenced to prison for life, mother's husband filed petition for stepparent adoption of the child which was granted. The adoption court "made it clear ... that the order for visitation was not to be trifled with and that it was in the best interest of the child that Grandparents be allowed visitation." ¶6. Mother denied visitation for a period of time, but reinstated visitation after consulting with an attorney. In an effort to appease mother, grandparents presented several different visitation proposals to her. "After Mother rejected the seventh proposed stipulation, Grandparents filed another motion for relief and request for attorney's fees." ¶7. The trial court established a specific visitation schedule and also awarded attorneys fees to grandparents in the amount of \$1,300. The South Dakota Supreme Court affirmed (5-0), in an opinion by Justice Sabers.

Mother complained of the inflexibility of the trial court's order because her husband was an over-the-road truck driver who spends considerable time away from home. Accordingly, mother wanted to be able to "swap visitation weekends should [her husband] come home on a weekend when the child would normally be at Grandparent's home." ¶ 11. Mother argued the trial court "abused its discretion in ordering the visitation schedule without requiring the grandparents to show ... that the ordered visitation does not interfere with the parent-child relationship." This argument was rejected, with the Court stating, "Mother misapprehends the nature and evidentiary requirements of this proceeding. The trial court was not faced with a request by Grandparents to *grant* visitation rights. Grandparents already *had* visitation rights pursuant to the 1995 order..." ¶ 12. The Court then addressed the U.S. Supreme Court decision in *Troxel v. Granville*, pointing out that it is not applicable in a situation where the trial court is not granting visitation rights in the first instance, but is "scheduling visitation under a valid preexisting visitation order." ¶ 12.

As to mother's concern for flexibility, the Court stated, "Given Mother's history of intransigence regarding visitation, and the history of denying Grandparents visitation, there is no showing that the court abused its discretion in not specifically ordering that Grandparents' visitation rights yield whenever the

adoptive father is home for the weekend.” ¶ 13.

The award of \$1,300 in attorney fees to grandparents was upheld. Again, the Court pointed out the difficulty which mother has put forward in facilitating visitation. The Court stated, “We agree with the two trial courts in this case that court orders are not ‘invitations,

8. The trial court’s application of SDCL 25-4-52 was held to be an unconstitutional infringement on the mother’s fundamental right to decide what is best for her son in *Medearis v. Whiting*, 2005 SD 42, 695 N.W.2d 226. The unfortunate facts in this case show that the paternal grandmother had babysat and cared for the child frequently during the first two years of his life. Mother and Father separated and, shortly thereafter, father raped mother twice. Father was convicted of aggravated sexual assault and sentenced to 108 months in federal prison. Mother testified that the paternal grandmother inappropriately supported her son (child’s father) during criminal trial and mother further testified that she was concerned how the rapes would be disclosed to the boy as he grew up. Mother wished to limit contact with father’s family. Grandmother sought visitation rights pursuant to SDCL 25-4-52. The trial court found that it would be in the child’s best interest to allow grandmother visitation rights and that its grant of visitation rights would not significantly interfere with the parent-child relationship and that mother had in fact denied visitation to grandmother.

On appeal the South Dakota Supreme Court found that the trial court had presumed that grandparent visitation was in the best interests of the child and failed to give “special weight” or “deference” to the decision of mother, a fit parent. ¶ 23. The requirement of “special weight or deference to a fit parent’s decision” is mandated by the U.S. Supreme Court’s decision in *Troxel v. Granville*, 530 U.S. 57, 120 S.Ct. 2054, 147 L.Ed.2d 49 (2000). The Court noted that the surviving portion of the statute itself, SDCL 25-4-52, was held constitutional in its previous decision, *Curry v. Curry*, 2002 SD 98, 650 N.W.2d 273, but that the *Curry* decision specifically held that the creation of a presumption for the award of grandparent visitation rights was unconstitutional. [The *Curry* decision held that one sentence in SDCL 25-4-52, as it then existed, was unconstitutional.]

Justice Sabers dissented, suggesting that the trial court appropriately placed the burden of proving what was in the child’s best interest on the grandmother and that the grandmother had met the burden, without the benefit of a presumption. The dissent also reported that the award of visitation rights was only for 4 hours per month to be supervised with the grandmother being ordered specifically to refrain from “discussing ... any details, opinions or facts relating to the sexual assault that Father committed against Mother.” ¶¶ 29 & 41.

9. Consider the phrase “with or without petition” found in SDCL 25-4-52. Certainly “with petition” would authorize grandparents the opportunity to initiate a separate proceeding for the purpose of securing visitation rights. What about “without petition?” There is a very common scenario where visitation rights might be afforded grandparents “without petition.” When could this occur?

10. Visitation rights to non-parent affirmed on the basis of “extraordinary circumstances.” SDCL 25-8-59 considered to be constitutional. In *Clough v. Nez*, 2008 SD 125, 759 N.W.2d 297, the trial court awarded visitation rights to a non-parent on the basis of “extraordinary circumstances.” The award was to a man who 1) was originally believed to be the natural father of the child, 2) who, together with the mother, executed a sworn acknowledgement of paternity, 3) whose name was put on the child’s birth certificate and 4) who served as child’s primary caretaker for an extended period of time, commencing immediately after birth and for at least 4 years thereafter. The SD Supreme Court affirmed in a unanimous decision with the Court’s opinion being authored by Justice Zinter.

11. Litigants (including those who are not grandparents) may pursue visitation rights by utilizing the Timmie Meldrum legislation, enacted in 2002 – namely SDCL 25-5-29 through 25-5-33. SDCL 25-5-29 authorizes suit for “custody or visitation.”

G. Joint Custody

JASPER v. JASPER

Supreme Court of South Dakota, 1984
351 N.W.2d 114.

MORGAN, Justice.

This appeal is from a divorce decree entered on July 7, 1983, by which Kenneth E. Jasper (Father) and Sharyl I. Jasper (Mother) were each granted a divorce from the other, the marital estate was divided and child custody and child support were set out. The child custody determination is the only facet of the divorce decree questioned on this appeal. We reverse and remand that portion of the trial court's decree.

After the parents' separation, from October of 1982 until February of 1983, a period of approximately four and one-half months, the children lived with each parent half of the time. This custody dispute arose partially because of Mother's move from Rapid City, South Dakota, the family home, to Sioux Falls, South Dakota, in order to further her career. The children involved were born April 13, 1974, December 27, 1975, and April 21, 1978; they were nine, seven and one-half and five years old at the time of the trial, May 23, 1983. On February 1, 1983, the trial judge ordered Mother and Father to enroll in the court's mediation program and participate in resolution sessions designed to work out permanent custody arrangements. After three months of negotiations, the parties agreed (1) that they should receive joint legal custody, (2) that the children should reside with one parent during the school year and with the other during the summer, (3) that summer visits be arranged for the school-year custodian, (4) that the summer custodian have access to the majority of holiday time, the exact dates to be negotiated with the other parent, and (5) that the custody arrangement be reviewed six months after the decision. Negotiations broke down on the question of which parent would have custody during the school year and which would be the summer custodian. The social worker who facilitated the negotiations expressed her opinion to the trial court that the parties would cooperate with whatever decision was made.

The child custody portion of the divorce decree awarded Mother and Father joint care, custody, and control of the minor children¹ and then ordered dominant custody for Mother from June 1, 1983, through May 31, 1984, and for Father from June 1, 1984, through May 31, 1985. The parent without dominant custody for the year was awarded visitation on all legal holidays and during one weekend a month, and was awarded custody from August 1 to August 21. The trial court further ordered that dominant custody would thereafter continue to alternate on an annual basis. The trial court also ordered that upon completion of

¹ The trial court defined dominant custody as "the period when one parent has (physical) custody for the greater portion of the "year," ... that period ... from June 1st to July 31st and from August 21st to May 31st."

eighth grade, on August 21 preceding entrance to ninth grade, each child shall be permitted to choose which parent shall have dominant custody thereafter; the other parent to have custody from June 1 to August 21, alternate holidays during the school year, and visitation one weekend per month from that time forward.

The mother objects to the trial court's Finding of Fact XVIII and Conclusions of Law IV, V, VI and VII, dated July 7, 1983. The trial court specifically found and stated in Finding of Fact XVIII that:

It is in the best interest of the minor children to allow both parents approximately equal opportunity to impress their personalities and their ideals into the lives of the children and this is more desirable (sic) than having the children have a stable environment of living with one parent, while being with the other parent only during visitations.

The conclusions of law questioned on this appeal deal with the custody arrangement established by the trial court, and provide that:

IV

It would be in the best interests of the minor children of the parties if the care, custody, and control of the minor children was awarded jointly to the parties with the Plaintiff exercising dominant custody for a period of one year and the Defendant exercising dominant custody for a period of one year. The year of dominant custody shall start on the 1st day of June of each and every calendar year and terminate on the 31st day of following calendar year.

V

It would be in the best interests of the children if the party who does not have dominant custody shall be entitled to have the children during all legal holidays, during the period of August 1 to August 21, and for one additional weekend each and every month.

VI

The Defendant shall be entitled to exercise dominant custody during the first year since the Plaintiff has had the custody since the Defendant moved to Sioux Falls.

VII

On August 21st [preceding] each child's entry into the ninth grade that child shall have the opportunity to choose which parent they would prefer to have their dominant custody thereafter and the other parent shall be entitled to custody from June 1 to August 21 and alternate holidays during the school year and visitation one weekend per month.

We first consider the trial court's Finding of Fact XVIII, which is set out above.

Upon this court's review of the trial court's findings, due regard must be given to the opportunity of the trial court to judge the credibility of the witnesses and to weigh their testimony, and the court's findings will not be set aside unless they are clearly erroneous. SDCL 15-6-52(a); *Spaulding v. Spaulding*, 278 N.W.2d 639 (S.D.1979); *Isaak v. Isaak*, 278 N.W.2d 445 (S.D.1979); *Holforty v. Holforty*, 272 N.W.2d 810 (S.D.1978). This court will also "accept the evidence including any reasonable inferences which are favorable to the trial court's determination." *Isaak v. Isaak*, 278 N.W.2d at 446. *Hanks v. Hanks*, 296 N.W.2d 523, 524 (S.D.1980).

In awarding custody of minors, the trial court must be guided by what appears from all the facts and circumstances to be in the best interests of the child's temporal, mental and moral welfare. SDCL 30-27-19; *Flint v. Flint*, 334 N.W.2d 680, 681-82 (S.D.1983); *Matter of Ehlen*, 303 N.W.2d 808, 810 (S.D.1981); *Haskell v. Haskell*, 279 N.W.2d 903, 906 (S.D.1979); *Isaak v. Isaak*, 278 N.W.2d 445, 446 (S.D.1979); *Holforty v. Holforty*, 272 N.W.2d 810, 811 (S.D.1978). It is the trial court's duty to see that the children are protected at every turn. *Langerman v. Langerman*, 336 N.W.2d 669, 671 (S.D.1983); *Matter of M.B.*, 288 N.W.2d 773, 775 (S.D.1980). This court has repeatedly stated that the welfare and best interests of the children are paramount to all other considerations. *Holforty*, *supra*; *Oursland v. Oursland*, 83 S.D. 382, 384, 159 N.W.2d 922 (1968). Given the focus on the children's best interest, circumstances may operate to defeat the custody preference of a parent. *Langerman*, *supra*. The children's welfare must be considered over the legal rights and claims of the parents. *Huckfeldt v. Huckfeldt*, 82 S.D. 344, 347, 146 N.W.2d 57, 58 (1966); *Hoaas v. Hoaas*, 75 S.D. 55, 59, 59 N.W.2d 254, 256 (1953). The parents' personal wishes and desires must yield to what the court in the discharge of its duty regards as the children's best interest. *Huckfeldt*, *supra*; *Ulver v. Ulver*, 76 S.D. 371, 373, 78 N.W.2d 830, 831- 32 (1956).

* * *

There is no evidence in the record or the trial transcript upon which the finding, that the children's interest is best served by alternating custody, can be based.²

As a conclusion, Finding of Fact XVIII is a misapplication of the law. The trial court apparently gave greater consideration to allowing the parents the opportunity to influence their children than to the children's best interests; the trial judge subordinated a stable environment for the children to the parents' interest in raising their children. This court has made it abundantly clear that frequent moves and transient life styles are not in the best interests of children and continuity, stability, and a good home environment are preferred. *Langerman*, *supra*; *Haskell*, *supra*; *Wright v. Stahl*, 73 S.D. 157, 39 N.W.2d 875, 876-77 (1949); *see also*, *Kolb v. Kolb*, 324 N.W.2d 279 (S.D.1982). In *Langerman*, this court stated that "frequent shifting of schools can greatly interfere with the education and proper rearing of children and [may] not be in their best interest." 336 N.W.2d at 672. The custody order appealed from in this case requires the children to rotate between Sioux Falls schools and Rapid City schools on an annual basis. Without disparaging the schools in either city, we acknowledge that the quality of the education provided by different school systems varies. The possibility that a child may thrive intellectually, emotionally and developmentally in one home and school situation and be uprooted and moved across the state every other year is present in this case. This possibility indicates that the trial court may not have adequately considered the children's welfare.

The trial court concluded, although it was stated as a finding, that "both parties can provide proper and adequate living arrangements for the children and wish to spend as much time as possible with the children," and that "[i]t is in the best interest of the minor children to allow both parents approximately equal opportunity to impress their personalities and their ideals into the lives of the children and this is more desirable (sic) than having the children have a stable environment" The trial court did not, however, make any findings or hear any relevant evidence on why the parents' opportunity to impress their

² The trial court may have based this finding on the affidavits submitted by the children's teachers in which the teachers stated that the shared alternating custody arrangement in effect from October 1982 to February 1983 had no detrimental effects on the children. This evidence is, however, irrelevant to the situation before us in that the previous arrangement involved alternating custody in the same city and allowed the children to attend the same schools, associate with the same friends and basically live in a stable environment with a degree of continuity regardless of which parent had custody.

personalities and ideals upon the children is more desirable than providing the children with a stable environment, or on why or how the parents' opportunity is in the children's best interest. In the absence of such a finding, a custody arrangement which runs counter to what this court has upheld and suggested in the past, *i.e.*, a stable, consistent home environment, cannot be upheld.

This case is similar to *Wright v. Stahl, supra*. There, the trial court amended a divorce decree that allowed the parents to alternate custody every six months. The mother applied for and was awarded modification of the decree. This court upheld the modification and stated that when "[t]he child is now of school age ... [alternating custody] ... is not conducive to [the child's] best welfare and interests. It becomes necessary for the Court, therefore, at this time to award custody ... to one or the other of the parties [.]" *Id.*, 39 N.W.2d at 876. The Wright court said that alternating custody interferes with the education and proper rearing of the child, and those goals must be paramount to parents' rights and wishes. *Id.* at 887. Parental rights are subservient to the children's best interest, and the trial court has a duty to choose between the two parents and award custody to one or the other for the nine school months with summer custody and visitation provided for the other party. *Id.*

The trial court here must resist the temptation to take the path of least resistance and award dominant custody to one or the other of the two equally deserving parents.

* * *

In light of this court's past focus on the children's best interest and our prior holdings in such cases, we find that the trial court in this case abused its discretion in awarding alternating custody.

The trial court ordered that:

At such time as each minor child completes the eighth grade in school and on August 21 [preceding] said child's entrance in to ninth grade, said child shall be permitted to choose which parent shall be permitted to have their dominant custody thereafter, in which event the other parent shall be entitled to custody from June 1 to August 21 and alternate holidays during the school year and visitation one weekend per month

SDCL 30-27-19 provides, in pertinent part:

In awarding the custody of a minor ... the court or judge is to be guided by . . . what appears to be for the best interests of the child in respect to its temporal and its mental and moral welfare; and *if the child be of a sufficient age* to form an intelligent preference, the court or judge *may consider* that preference in determining the question (emphasis added).

This portion of the statute is obviously permissive rather than mandatory and the trial court must use its discretion in considering the child's preference. *Isaak, supra*. The trial judge would be well within his statutory prerogative in considering a child's expressed preference in formulating his decision. *Pochop v. Pochop*, 233 N.W.2d 806 (S.D.1975). The trial court may not, however, abdicate its responsibility to determine the children's best interest by simply turning that decision over to them. The trial court must determine, as each child reaches the 21st day of August preceding his or her entry into the ninth grade, whether that particular child can form an "intelligent preference" regarding custody. If the child is capable, the trial judge may then consider that preference in awarding or modifying custody at that time.

We reverse the child custody portion of the divorce decree and remand to the trial court to reconsider child custody in conformity with this opinion.

All the Justices concur.

NOTES

1. The establishment of a two-month rotating physical custody schedule of the parties' infant son was held to be an abuse of discretion in *Friendshuh v. Headlough*, 504 N.W.2d 104 (S.D. 1993). Neither parent requested the rotating two-month schedule and mother's psychologist stated that such a schedule would be harmful. The South Dakota Supreme Court affirmed the basic award of permanent custody to the father and directed the trial court to establish a visitation schedule for mother.

2. The *Jasper* case has been cited in subsequent South Dakota case law for the proposition that "stability in childrearing" is a very desirable factor in custody determinations. *E.g. Jones v. Jones*, 1996 SD 2 at paragraph 11, 542 N.W.2d 119 at 122 (S.D. 1996); *Hanhart v. Hanhart*, 501 N.W.2d 776 at 778 (an edited portion of the *Hanhart* opinion is presented, *supra*, in this chapter on "Custody".)

COMMENTS ABOUT JOINT CUSTODY

In the preceding case the court stated, "The trial court must resist the temptation to take the path of least resistance and award dominant custody to one of the two equally deserving parents." Do you fully understand this comment?

Divorce proceedings are usually accompanied by varying degrees of hostilities. When there are children, decisions about custody have to be made by the parties, their lawyers, and the courts. Is there an "easy" way out? For some, the prospect of joint custody appeared to be an easy way out at the time. As you consider the next three cases, try to make your own decision about whether or not joint custody is really a viable alternative, even assuming that you as a lawyer could persuade a court to order it.

Frequently, the term "joint custody" does not really mean a sharing of the child on a 50-50 basis, but merely a sharing of the decision-making and the appointment of a primary custodian. The term "joint custody" may make the parties feel better, but if it is utilized in that manner, isn't it really a deception? Historical data demonstrates that parties who have been persuaded to enter into joint custody arrangements very quickly come to feel tricked and complain about not having been fully advised as to its consequences. If there is a joint custody arrangement that really is on a 50-50 basis, isn't that like entering into a 50-50 partnership? The problem with 50-50 partnerships lies with the resolution of problems when the partners don't agree. How are the differences resolved? A joint custody arrangement on a 50-50 basis often resembles a 50-50 partnership with two parties who may very well be worst enemies and, at the least, have indicated a desire to terminate their existing marital relationship with each other.

As a general proposition most of the advantages of joint custody may arguably be attained by co-parenting without a court decree appointing joint custodians. The underlying goals of joint custody are indeed noble because they provide for the continued parenting of both parties to a divorce. In essence, either the parties are going to cooperate or they are not going to cooperate following a divorce. The real hazard

in joint custody is that the law and the courts are not really equipped with a mechanism to promptly designate the most appropriate parent as the custodian in the event of post-decree squabbles. If there are post-decree squabbles (a frequent occurrence), the children are left in a limbo-like status pending a judicial resolution. For more information you may see Baron, *Joint Managing Conservatorship: Why Texas Court Should Not Permit It*, 28 S.Tex.L.Rev. 379 (1986), reprinted in 50 Tex.B.J. 140 (Feb. 1987).

LANE v. HART

Court of Appeals of Texas, 1983.
651 S.W.2d 419.

DICKENSON, Justice.

The principal issue on appeal is whether the "judgment nunc pro tunc" corrected a "clerical error" or whether it improperly attempted to correct a "judicial error" in connection with the agreed terms of a joint custody arrangement involving two children.

The parents of the children, Sandra Lee (Hart) Lane and Everett Kinney Hart, appeared in court on June 4, 1982, in order to present proof as to the terms of their agreement for division of their property, custody and support of their two daughters (Wendy Monette Hart, born September 13, 1971, and Kelly Dee Hart, born September 10, 1977), and related matters incidental to their divorce. A seven page Decree of Divorce, which was "approved as to form and content" by their attorneys of record, was signed by the District Judge on June 14, 1982. After that Decree became final, the mother remarried and moved from Scurry County to Hale County and enrolled the older girl in school there. The father insisted that he had the right to establish and maintain the residence of the children in Scurry County. The mother disagreed. Their dispute resulted in a writ of attachment pursuant to which the Hale County Sheriff's Department assisted the father in taking physical possession of the children; the father's motion to hold the mother in contempt; the mother's application for a writ of habeas corpus; and the father's motion for judgment nunc pro tunc. The trial court refused to hold the mother in contempt, and it also refused to grant her writ of habeas corpus. After hearings on September 3 and 10, judgment nunc pro tunc was signed on October 20, 1982. The mother, Sandra Lee (Hart) Lane appeals. We affirm.

Appellant has briefed two points of error. Point one argues that the trial court erred in signing the Judgment Nunc Pro Tunc because the alleged mistake "was not a clerical error, but was an attempt to change the provisions of the decree." We disagree.

The original decree provided in pertinent part:

* * *

IT IS DECREED that Petitioner, Everett Kinney Hart, as Joint Managing Conservator, shall have the following rights, privileges, duties and powers:

1. The right to have physical possession of the children as set out herein and the sole right to establish the children's legal domicile;

* * *

IT IS DECREED that Respondent, Sandra Lee Hart, as Joint Managing Conservator, shall have the following rights, privileges, duties and powers:

1. The right to have physical possession of the children as set out herein, SUBJECT

to Petitioner's sole right to establish the children's legal domicile;

* * *

9. Any other rights, privileges, duties and powers existing between a parent and children by virtue of law, subject to Petitioner's right to establish and maintain the residence of the children.

The judgment nunc pro tunc added "and residence" after "legal domicile" in each of the paragraphs numbered "1" in the listing of each parent's rights, privileges, duties and powers. No change was made in paragraph "9" which is quoted hereinabove.

At the hearing on June 4 the husband's attorney stated that the parties agreed that the appointment of Mr. Hart as "joint managing conservator also includes the right to determine the residence of the children, exclusive of the wife's right to do that." Neither the wife nor her attorney brought it to the court's attention that they were making any distinction between the terms "legal domicile" and "residence." The original decree, which was "approved as to form and content" by both attorneys of record used the terms interchangeably, as shown by the paragraphs quoted above. The District Court stated during the hearing on September 10:

(T)here is no question that Mr. Hart and his attorney thought the agreement was that the residence of the children would be established by Mr. Hart.... I know that the Court thought at the time we had the hearing on June the 4th that that is what the agreement between the parties was.... (I)f there was any doubt in anybody's mind that it included the right to establish the residence was in Mr. Hart, then it should have been determined right then and--if that was not the agreement--it should have been called to the attention of the court and the parties could have either withdrawn their proposed agreement for judgment from the Court and had a trial on it at that time. That was my understanding and *that was the judgment that I intended to enter and thought I had entered.* (Emphasis added)

The trial court was authorized to correct the mistake made in recording the original decree. See Tex.R.Civ.P. 316. The applicable rule is stated in *Comet Aluminum Company v. Dibrell*, 450 S.W.2d 56 at 58 (Tex.1970):

The law is now well settled in this state that clerical errors in the "entry" of a judgment, previously rendered, may be corrected after the end of the court's term by a nunc pro tunc judgment, but that judicial errors in the "rendition" of a judgment may not be so corrected.

While it is a question of law as to whether the error in the original decree was a "judicial error" or a "clerical error" [see *Finlay v. Jones*, 435 S.W.2d 136 at 138 (Tex.1968)], we agree with the trial court's conclusion that the error in this case was a "clerical error" which could be corrected by entry of the judgment nunc pro tunc. See *Petroleum Equipment Financial Corporation v. First National Bank of Fort Worth*, 622 S.W.2d 152 (Tex.App.-- Fort Worth 1981, writ ref'd n.r.e.), and the authorities discussed therein. The terms "children's legal domicile" and "residence of the children" were used interchangeably in the original decree, and the trial court's quoted statement makes it clear that he intended to enter a judgment in accordance with the announced agreement that the father had the right to establish the "residence" of the children. It may well be that the nunc pro tunc decree was not actually needed, for the original decree could be interpreted by harmonizing paragraph 9 with paragraph 1 of the listing of the mother's rights as to the two children. In any

event the clarification made by the nunc pro tunc judgment will eliminate any uncertainty as to the mother's rights and will, hopefully, avoid any further necessity for contempt hearings.

* * *

The fact that there was an oral agreement, rather than a written agreement, for the joint conservatorship does not render the decree void. *See and compare* Tex.Fam.Code Ann. sec. 14.06(a) (Vernon Supp.1982-1983) with Tex.R.Civ.P. 11.

The judgment nunc pro tunc is affirmed.

RALEIGH BROWN, Justice, dissenting.

RAMSEY v. RAMSEY

Court of Appeals of Texas, 1986.
707 S.W.2d 724.

DIES, Chief Justice.

In October, 1981, William Robert Ramsey, Sr., as petitioner, brought suit for a divorce from his wife, Kristi Rae. They have a son, William, Jr., born October 26, 1980. Respondent answered and brought a cross action; the only issue involved was managing conservatorship of the child.

On August 24, 1982, the trial court granted the parties a divorce and decreed that each should be a joint managing conservator. Petitioner (father) was given possession of the child for the months of July, September, November, January, March, and May of each year along with other temporary visitations. Respondent (mother) was awarded possession for the months of June, August, October, December, February, and April of each year. Petitioner was ordered to pay respondent \$120 monthly support during the months she had the child.

In January, 1984, the father, as "movant" (original petitioner), brought suit to modify the original order alleging a change in condition. The mother, respondent originally, answered and prayed for full managing conservatorship, likewise alleging a change in condition from the original order. Social studies from the Texas Department of Human Resources--ordered by the court-- recommended that the mother be awarded managing conservator of the child. Neither report, however, found anything derogatory about the father.

* * *

On the 30th of August, 1984, the judge signed an "Order Modifying Prior Order" which, *inter alia*, made the following changes:

1. Joint managing conservatorship by the parents is in the best interest of the child.
2. "There has been a material and substantial change of circumstances of the child and of the parent of the child as it relates to the terms and period of possession and support of the child."
3. The court then changed the mother's possession of the child to: two weekends of each month, two weeks in June, two weeks in July, and one week in August.

Except for Christmas visitation, all other possession of the child was awarded the father. The previous order concerning the father's obligation for support was ended, and the mother was ordered to pay \$120 per month through the registry of the court at Lufkin. It is from this order the mother has perfected appeal to this court.

Appellant (mother) contends: The trial court de facto changed managing conservatorship without finding a change in conditions; that the trial court's order does not comply with TEX.FAM.CODE ANN. sec. 14.08; that his subsequent order finding a change of circumstances as relating to possession conflicts with his finding of no change of condition as it relates to management conservatorship; petitioner (father) had requested a change in management conservator but did not ask for a modification of visitation terms.

* * *

In the case at bar, the only evidence before us is a deposition of the mother. This deposition certainly does not show a material change of circumstances to justify the modifications made by the trial court. Therefore, there being no evidence to support the modified order of the trial court, we sustain Appellant's (mother's) first point of error, reverse the trial court's modified order, vacate the same, and reinstate his original judgment and order.

REVERSED AND RENDERED.

RANDLE v. RANDLE

Court of Appeals of Texas, 1985.
700 S.W.2d 314.

DUGGAN, Justice.

This is an appeal from an order modifying conservatorship of a two and one-half year old child. We affirm.

Upon their divorce, the appellant, Floyd Lee Randle, and the appellee, Alice Faye Randle, were appointed joint managing conservators of their minor child. The modification order appointed the appellee mother managing conservator of the child.

* * *

The divorce decree designated the mother and father as joint managing conservators, and specified that they take turns having possession of the child, each parent having alternate months. The child was eight months old when the divorce decree was signed. On the date of the modification hearing, the child was two years and seven months old. Increase in age alone is not a change in circumstance sufficient to justify modification of conservatorship. However, changed needs of the child may be such a circumstance. A small child's need for a dependable, secure, and stable environment may be different from that of a baby.

* * *

In the months during which the appellant had possession of the child, the child's routine was either constantly interrupted, or no routine was established. Sometimes the child stayed with the appellant's sister, and sometimes with the appellant's mother. From one to five times a week, the appellee picked up the child to stay with her from two o'clock in the afternoon until the appellant came to get the child at night. This resulted in the child being awakened about nine o'clock on many nights to go home with the father, only to

be transported elsewhere before five o'clock in the morning. The mother testified that the going back and forth upsets the child. The trial judge could reasonably have found that the constant switching back and forth, and the constant change in the child's routine during the months the father had possession, would be injurious to the welfare of the child.

The appellant contends further that the evidence did not show that the change in managing conservatorship would be a positive improvement for the child. Though the living arrangements of both parents require that the child be cared for by someone else during most of the day, the testimony shows that the mother has established a more dependable routine, and that the mother gets off work and can personally be with the child beginning at two o'clock in the afternoon. The trial judge could reasonably have found that a continuation of this routine, without constant switching back and forth, would be a positive improvement for the child.

Finally, the trial judge could reasonably have found that a modification allowing a stable and continuing routine for the child would be in the child's best interests. We find no abuse of discretion in the order modifying conservatorship. Appellant's points of error one through seven, all regarding no evidence and insufficient evidence, are overruled.

The judgment is affirmed.

EPILOGUE ON JOINT CUSTODY

Consider the following remarks which are extracted from Roger M. Baron, *Child Custody Determinations in South Dakota: How South Dakota Courts Decide Child Custody Cases*, 40 South Dakota Law Review 411, 432 (1995):

From a decade of analysis concerning the successes and failures of joint custody in cases at both the trial and appellate level, the following observations by this author are in order:

(1) Joint custody represents a flexible mechanism through which divorcing parents can maintain natural relations with their children and through which both parents can continue to have an important role in the development of the child.

(2) The number of divorcing parents who are able to successfully carry out a joint custody arrangement is far less than the number of those who initially attempt to do so.

(3) The imposition of joint custody carries with it a high risk of eventual dissatisfaction and subsequent litigation—litigation which tends to be more protracted than would otherwise have been required had joint custody been avoided at the outset.

(4) Despite the drawbacks and failures of joint custody, there exists a fair number of instances where it does successfully work and those successes might not have been otherwise attainable absent the availability of joint custody.

(5) The movement in favor of joint custody has generally increased an awareness of the failures in the current system when addressing the concerns of noncustodial parents.

The prospect of joint custody has itself enhanced the opportunity for courts to provide for greater contact by children with both parents in custody decrees today.

NOTES

1. At the time of the divorce, the trial court declared a “birdnesting” arrangement whereby the divorced parents took turns living in the family home during their respective times of possession of the children. Subsequently, the trial court terminated the arrangement and granted temporary exclusive possession of the home to the father and mother complained that the “birdnesting” provision of the decree was an unmodifiable property division. The Connecticut Court of Appeals rejected the mother’s claim, holding that a “birdnesting” arrangement is not a property assignment but is part of the custody award. *Fiddelman v. Redmen*, 17 Comm. App. 391, 656 A.2d 234, 21 Family Law Reporter 1290 (1995).

2. In *Reider v. Schmidt*, 2000 SD 118, 616 N.W.2d 476, the parties started off with a joint custody arrangement in 1994 and this was modified in 1995 and 1997. Problems resulted because, “Both parties interpreted the schedule and made sua sponte modifications to it in a manner most beneficial to them at a particular time.” Accordingly, “extensive judicial involvement with visitation was required.” (Quoted material is found in paragraph no. 3, 616 N.W.2d at 477.) Father’s access or visitation rights with the child were lessened and ordered to be in conformity with the First Circuit Guidelines, subject to some additional requirements. Father appealed, arguing that the trial judge was punishing him for failure to comply with the court’s previous visitation order and was not based on the “best interests of the child.” The South Dakota Supreme Court affirmed the lower court’s decision as “not an abuse of discretion.” Justices Gilbertson and Amundson dissented, arguing that the trial court’s written findings and conclusions “clearly establish that the trial court modified father’s visitation schedule as punishment ... not as an arrangement in the children’s best interests.” (Paragraph No. 38, 616 N.W.2d at 483.)

3. For an excellent detailed discussion of whether or not “Bird Nesting” is indeed a suitable option as a custody determination, see Michael T. Flannery, *Is “Bird Nesting” in the Best Interest of Children?*, 57 SMU L.Rev. 295 (2004).

4. **Trial court erred in converting joint legal custody into primary custody award for mother based upon frustration seen in visitation dispute.** In *Wiedenfeld v. Wiedenfeld*, 2009 SD 90, 774 N.W.2d 288 the trial court was presented with a visitation dispute arising out of a joint legal custody decree. The trial court found that it was clear that joint legal custody was not working and, *sua sponte*, awarded mother primary custody. The SD Supreme Court reversed, holding that the elimination of “joint legal custody” was an abuse of discretion where neither party had requested its elimination and the record did not reflect “a ‘balanced and methodical’ assessment of [the traditional factors bearing on] the childrens’ best interests.” This is a unanimous *per curiam* opinion.

5. **Automatic and substantial reduction in father’s noncustodial parenting time triggered by change in mother’s work schedule held to be an abuse of discretion.** *Baker v. Holland*, 2009 SD 72, 771 N.W.2d 639 involves a shared custody arrangement which, when implemented was premised upon mother working weekends. The court’s original order attempted to anticipate and specify how shared custody would be altered if the mother quit working weekends. Mother’s work schedule soon changed and the parties interpreted the court’s anticipatory provision differently. The court agreed with mother’s interpretation

which resulted in automatically and substantially reducing father's noncustodial parenting time (formerly described simply as "visitation rights"). Father appealed. The SD Supreme Court reversed, holding that the trial court abused its discretion by reducing father's overnights from 4 times per week to 1 time per week simply because mother's work schedule changed. The case is remanded with the trial court being directed to consider father's noncustodial parenting time in a manner consistent with the child's best interests. This is a unanimous *per curiam* decision.

6. SD Supreme Court affirms award of primary physical custody to father, thereby modifying shared parenting arrangement, in wake of mother's effort to relocate to Vermillion from Huron. In *Heinen v. Heinen*, 2008 SD 63, 753 N.W.2d 891, custody of two children was established (at the time of the divorce) as a shared parenting arrangement with periods of access rotating such that Mother would have the children 9 consecutive days and then father would have the children 5 consecutive days. Everyone lived in Huron initially. After the divorce, the mother became pregnant and gave birth to a daughter, half-sister to the children of the marriage. Then Mother sought to move to Vermillion to live with her fiancé and their baby daughter. She sought to take the children with her. The trial court granted primary physical custody to Father. The transfer of primary custody to father resulted in a "separation of siblings" in connection with their younger half-sister. The trial court articulated "compelling factors" to warrant the separation and the SD Supreme Court approved stating, "On this record, there is no demonstration that the circuit court made a fundamental error, reached a decision outside the range of permissible choices, or acted arbitrarily or unreasonably." ¶ 12. The trial court was found to have made a proper analysis under the *Fuerstenberg* factors, with "stability" for the children being the primary compelling reason in support of the award in favor of Father. The SD Supreme Court affirmed in a unanimous *per curiam* opinion.

"The ultimate result of shielding men from the effects of folly is to fill the world with fools."

Herber Spencer

Chapter Nine

CHILD SUPPORT

A. The Obligation and its Boundaries

1. Initiation of the Obligation

a. Children of Marriages

Until recently, non-custodial parents going through a divorce incurred no set child support obligation until a legal proceeding of some sort actually imposed the duty of making a child support payment. In situations where the custodial parent received welfare (Aid to Families with Dependent Children or “AFDC”), the non-custodial parent may have been pursued for reimbursement of support actually rendered by the state in actions similar to *quantum meruit*. Generally speaking, however, non-custodial parents were free of obligation until a duty and an amount of support were established by the appropriate court.

With the advent of child support guidelines, this has changed. Under SDCL 25-7-6.1, the amount determined under the guidelines chart is automatically imposed “commencing on the first day of [continued] absence” from the home by the non-custodial parent. “Continued absence from the home” is defined to mean “that the parent is physically absent from the home for a period of at least thirty consecutive days, and that the nature of the absence constitutes family dissociation ...” (This statute is reproduced in full *infra*.)

NOTE

In *Huth v. Hoffman*, 464 N.W.2d 637 (S.D. 1991), the husband had been sentenced in 1981 to the penitentiary for 100 years. At about the same time the divorce court concluded that, due to husband’s situation, “no child support will be established at this time.” After husband was paroled in 1988, wife sought child support arrearages for 1981 through 1988 and the trial court awarded her arrearages. The South Dakota Supreme Court reversed, holding that the prior “child support order forecloses the operation of the automatic child support statute,” even though the order directed that he was to pay no child support.

A. The Obligation and its Boundaries

1. Initiation of the Obligation

b. Children Born Out of Wedlock

With respect to a child born out of wedlock, “The father and mother of a child born out of wedlock are jointly and severally liable to pay the expenses of the mother’s pregnancy and confinement.” SDCL 25-8-3.

Prior to July 1, 2005, SDCL 25-8-5 provided that the mother was entitled to recover from the father “a reasonable share of the necessary support.” Prior to July 1, 2005, the statute provided that unless the mother served a written demand on the father personally or by registered or certified mail, she was not permitted to recover “more than six years’ support furnished before bringing an action.”

The former version of SDCL 25-8-5 is set forth, *supra*, on page 40 of this book. The current version of SDCL 25-8-5 is set forth, *supra*, on page in Chapter 3 of this book.

NOTE

1. In *Linard v. Hershey*, 489 N.W.2d (S.D. 1992) a paternity action was commenced when the child was over ten years old. The court retroactively computed net monthly incomes and applied the child support guidelines for the preceding six years (in accordance with what is recoverable under SDCL 25-8-5.) Arrearages of \$8,307.60 were computed which, giving credit for payments already made, left the father with a balance due of \$2,794.10. The trial court’s failure to deviate from the amount determined under the guidelines was not error; however, the case was reversed and remanded for a determination of prejudgment interest.

2. There is some limited authority in South Dakota supporting the use of “laches” and “estoppel” to bar recovery of arrearages where the mother *purposefully* kept her pregnancy secret from the father. *In the Matter of Loomis*, 1998 SD 113, 587 N.W.2d 427. More recent cases suggest that these are “unfavored” defenses in the matter of child support collection. *See e.g., Bonde v. Boland*, 2001 SD 98, 631 N.W.2d 924; *State ex rel. Bennett v. Peterson*, 2003 SD 16, 657 N.W.2d 698; *Faulk v. Faulk*, 2002 SD 51, 644 N.W.2d 632; and *Tovsland v. Reub*, 2004 SD 93, 686 N.W.2d 392.

A. The Obligation and its Boundaries

2. Obligor -- Who is an Obligor?

ESTES v. ALBERS

Supreme Court of South Dakota, 1993.
504 N.W.2d 607.

PER CURIAM.

Terry Albers (Albers) appeals from an order modifying his child support obligation for Taren Estes (Taren). We affirm.

Maria Estes (Estes) and Albers have never been married. Estes asked Albers, however, to father a child for her. Albers agreed to do so after he and Estes agreed that he would have no financial responsibility for the child. Their child, Taren, was conceived naturally and was born on November 22, 1986.

* * *

In November 1989 Estes filed a petition for modification of child support seeking an increase to \$380 per month. Judge Evans appointed attorney Forrest Allred as the referee. SDCL 25-7A-22. Allred refused Albers' request to absolve him from any child support:

Effect of "Arranged Pregnancy". As stated above, the parties have never been married to each other. Terry testified that the pregnancy which resulted in the birth of Taren Estes was arranged or requested by Maria. At a time when each party was single, Maria asked Terry to father a child. She told him, orally, that if he would consent to do so, she would never ask for any child support from him. He thus consented to do so, and did so. He now agrees that this decision was perhaps not wise, but argues that he should now be absolved of child support obligations because of Maria's promise. Even assuming for purposes of argument the complete accuracy of Terry's testimony, sound public policy does not justify such a permanent waiver. Should Terry legally terminate his parental rights this would end his child support obligation with respect to the child as well. S.D.C.L. § 25-5A-18. He has not done so. His requested deviation on this basis is denied.

Allred recommended that Albers' child support be modified to \$165 per month.

The circuit court, Judge Gilbertson, agreed with Referee Allred. The circuit court rejected Albers' claims that he fell within the classification of an anonymous semen donor or the case should be treated as one of artificial insemination. The circuit court found that Albers had a statutory obligation to support his daughter.

ISSUE

CAN A FATHER BE PERMANENTLY RELIEVED OF THE DUTY TO SUPPORT
A MINOR CHILD BY AGREEMENT WITH THE MOTHER?

Albers does not deny that he is the natural father of Taren. Rather, he argues that his legal status is nothing more than a semen donor. Thus, he contends he should be afforded the protection which some

jurisdictions' statutory and case law provide to men who anonymously donate semen to women who are then artificially inseminated. Annotation, Rights and Obligations Resulting from Human Artificial Insemination, 83 A.L.R. 4th 295 (1991). Generally, anonymous semen donors are shielded from the rights and responsibilities, including child support, of parenthood while the married or unmarried donee is protected from the donor's assertion of parental rights. *Id.*

This is not a case of artificial insemination by an anonymous donor. Albers and Estes were friends. Albers agreed to father her child after the two agreed that he would not be responsible for child support. The child was conceived naturally. Albers has acknowledged his paternity and, on three occasions, agreed to child support.

In South Dakota, the parents of a child are jointly and severally obligated to maintain, educate and support their child in accordance with their respective means. SDCL 25-7-6.1. A "mother may recover from the father a reasonable share of the necessary support of a child born out of wedlock." SDCL 25-8-5. A mother's agreement with the alleged father concerning support of a child born out of wedlock is binding "only if adequate support is secured by payment, or otherwise, and if approved by a court having jurisdiction to compel support of the child." SDCL 25-8-8. An agreement not meeting these requirements is void. *Id.*

The agreement between Albers and Estes was not secured by adequate support nor was it court approved and entered as an enforceable judgment. Consequently, it is void. SDCL 25-8-8. This result is consistent with the public policy that parental agreements which have the effect of making a child a public charge cannot be countenanced and a support agreement injurious to the best interest of the child is invalid for any purpose. 67A C.J.S. Parent & Child § 60 (1978).

* * *

The order appealed from is affirmed.

MILLER, C.J., and WUEST, HENDERSON, SABERS and AMUNDSON, JJ., participating.

NOTES AND QUESTIONS

1. Shane was 12 years old when 16-year-old Colleen was given the task of being a babysitter or daycare provider for him. They began a sexual relationship. They engaged in sexual intercourse on an average of twice a week. Colleen became pregnant when she was 17 and Shane was 13. Colleen was subsequently prosecuted through juvenile court and adjudicated a juvenile offender in a plea agreement whereby she stipulated to the offense of contributing to a child's misconduct. Colleen later applied for and received AFDC benefits, for which the state would like reimbursement from Shane. Is Shane subject to a duty of support? *See State ex rel. Hermesmann v. Seyer*, 847 P.2d 1273 (Kan. 1993). *Compare Evelyn v. Shire*, ___ N.W.2d ___, 2004 WL 314915, 30 Family Law Reporter 1186 (Mich.Ct.App. 2/19/04) [addressing issue of whether child support may be imposed against father in situation where 14 year old father was the victim of uncharged criminal act when he had sexual relations with 21 year old married woman].

2. In the *Estes v. Albers* opinion the Court cites and quotes SDCL 25-8-8 to the effect that an agreement concerning child support would be binding “only if adequate support is secured by payment, or otherwise, and if approved by a court having jurisdiction to compel support of the child.” Consider the situation where the trial court did *in fact* approve an agreement which relieved both the mother and the father of a duty of support for the child in the other’s custody. Can the father subsequently be held liable for child support in the event the mother becomes the custodian for both children? Such a court-approved agreement was the subject of the case discussed in the next note.

3. In a post-divorce proceeding where mother and father agreed that each should have custody of one of two remaining minor children, they further agreed that “all claims of either parent for child support against the other party, whether past, present or future, are permanently and irrevocably waived...” This agreement was approved by the trial court at the time in its judgment entered around June, 1999. Shortly thereafter, wife sought and was awarded custody of the child in father’s care and father was ordered to pay child support of \$310 per month. Father appealed in *Thomas v. Hague*, 2002 SD 12, 639 N.W.2d 520, arguing that since the trial court had approved the parties’ agreement for the waiver of child support, his obligation was relieved by virtue of SDCL 25-7A-17 which appears to permit such agreements so long as they are approved by a court of competent jurisdiction. The South Dakota Supreme Court affirmed the imposition of child support and rejected father’s argument, holding that “the trial court approved stipulation of the parties which permanently and irrevocably waived child support was contrary to the public policy of this state, invalid and void.” ¶11, 639 N.W.2d at 523. In addressing what appears to be permitted by the plain language of SDCL 25-7A-17, the court stated in a footnote, “Any suggestion that SDCL 25-7A-17 allows the permanent and irrevocable waiver of child support flies in the face of the public policy of this state found in the statutory child support scheme and the decisions of this Court.” [this footnote found as an “*” accompanying end of ¶8, 639 N.W.2d at 522.]

4. **Parties’ mutual release of child support “absolutely and forever,” in situation where each has custody of one of two children, is no longer binding when older child becomes emancipated, according to *Dahl v. Dahl*, 2007 SD 64, 736 N.W.2d 803.** In *Dahl v. Dahl*, 2007 SD 64, 736 N.W.2d 803, there were two children born of the marriage. The parties agreed at the time of the divorce (2004) that H would have primary custody of the son and that W would have primary custody of the daughter who is three years younger than Son. The parties also agreed that neither would pay child support to the other. Son graduated from high school in May, 2006, and turned 18 in June, 2006. W thereafter sought a modification of child support based on the change in circumstances – that only one child (the daughter in her custody) was now a minor child. The Child Support Referee and the Circuit Judge agreed with H who sought to uphold the language of the parties’ previous agreement which purported to “release absolutely and forever all right and claim of ... support.” The SD Supreme Court reversed in a unanimous opinion authored by Justice Konenkamp. The opinion states, in ¶ 21, “we conclude that excusing [H] of his statutory obligation for child support is not in his daughter’s best interests.” The case was reversed and remanded for application of the SD Child Support Guidelines. The Court also rejected H’s argument that he had made property concessions in the parties’ original agreement and that he should receive an equitable offset as to child support. This opinion additionally holds that Circuit Courts are not required to issue separate findings of fact and conclusions of law when adopting a referee’s report.

5. In the main case, *Estes v. Albers*, the appropriate statute, SDCL 25-8-8, is found in sub-chapter SDCL 25-8 entitled, “Paternity Proceedings.” In the preceding note case, which involved ex-spouses, the appropriate statute, SDCL 25-7A-17, is found in sub-chapter SDCL 25-7A entitled,

“Collection of Child Support.” Both statutes serve the same purpose – the purpose of securing adequate support for children.

WHAT ABOUT STEP PARENTS?

In *Bruning v. Jeffries*, 422 N.W.2d 579 (S.D. 1988), mother married a doctor and father claimed that the doctor’s income should be taken into consideration for the purpose of determining whether a deviation should be made from the child support guidelines which were in effect at the time. The trial court had upheld a determination by the Department of Social Services (“DSS”) which blindly applied the guidelines without consideration of the doctor’s income. The South Dakota Supreme Court reversed, holding that, *inter alia*, the step-father’s income was a proper consideration for the purpose of determining whether a deviation was warranted. The court relied, at least partially, on SDCL 25-7-8 which provides, “A stepparent shall maintain his spouse’s children born prior to their marriage and is responsible as a parent for their support and education suitable to his circumstances, but such responsibility shall not absolve the natural or adoptive parents of the children from any obligation of support.”

Does the stepparent’s obligation end upon divorce? Consider the next case.

E.H. v. M.H.

Supreme Court of South Dakota, 1994.
512 N.W.2d 148.

HENDERSON, Justice.

This is an appeal from a June 2, 1992 divorce decree ordering MH (Stepfather) to pay child support for his two minor stepchildren, MAC and ARC. Stepfather further challenges the divorce court's refusal to review a January 10, 1989 order terminating the natural father's parental rights. We address the following:

I. Does adoption by estoppel exist in South Dakota?

II. Was the order terminating the natural father's parental rights valid?

We decline to extend the doctrine of estoppel under these facts and reverse. Issue II was addressed and affirmed in the companion case, *Matter of M.A.C. and A.R.C.*, 512 N.W.2d 152 (S.D.1994).

When Stepfather married EH (Mother) in 1987, Mother had custody of two children from her previous marriage to CC (Natural Father). Since 1984, Natural Father has had no contact with the children and was repeatedly behind in his child support payments. At one time, he served a 30-day jail sentence for his failure to support, whereupon he began demanding visitation rights. In 1988, Stepfather and Mother spoke to attorney Mark Swanson about terminating Natural Father's parental rights and Stepfather adopting the children.

On January 5, 1989, Natural Father signed a petition voluntarily terminating his parental rights, which was approved by the circuit court five days later. In exchange, he was released from paying future child support. Stepfather, who was out of town when Natural Father signed the petition, soon thereafter

announced he would not adopt the children. A month later, Stepfather sued Mother for divorce. Reconciliation quickly followed, and the action was dropped.

On May 17, 1991, new divorce proceedings were initiated. This time, Mother did the filing. Originally, she did not seek child support. Yet, following a change in counsel and a ten-month wait, she amended her complaint to do so based on the theory of adoption by estoppel.

Throughout the marriage, Stepfather was a good stepparent to MAC and ARC. He took them places, taught them things, entertained them, prayed with them, and disciplined them. In Stepfather's and Mother's joint tax return, MAC and ARC, as well as Stepfather's natural daughter, were listed as dependents. When Stepfather and Mother had marital problems in 1989, to calm the waters, Stepfather agreed to become the children's legal guardian in the event of Mother's death. Additionally, the children's surname was legally changed to Stepfather's surname. When Stepfather recommended that MAC's middle name, which was also Natural Father's common moniker, be changed as well, Mother suggested Stepfather's first name as the substitute, and such was done.

According to the trial court, Mother relied on Stepfather to adopt the children. Despite his refusal to adopt, Stepfather acted in the capacity of father to such a degree that the trial court has estopped him from denying the children his financial support.

We are to decide if a stepparent can be forced, by means of equitable estoppel, to provide child support for minor stepchildren after divorcing their natural parent. Usually a stepparent has no legal duty to support the stepchildren after termination of the marriage to the children's natural parent. *Portuondo v. Portuondo*, 570 So.2d 1338 (Fla.App.1990); *Com. ex rel. McNutt v. McNutt*, 344 Pa.Super. 321, 496 A.2d 816 (1985). Even one who accepts the responsibility for a child as in loco parentis* cannot be required to furnish support for the child subsequent to the dissolution of the marriage. *In re Marriage of Holcomb*, 471 N.W.2d 76 (Iowa.App.1991); *In re Marriage of Carney*, 206 N.W.2d 107 (Iowa 1973). When a trial court does award child support, we review the decision under the abuse of discretion standard. *Nelson v. Nelson*, 454 N.W.2d 533, 534 (S.D.1990).

Mother and the trial court attempt to justify the child support award by stating that Stepfather has adopted MAC and ARC through equitable estoppel. Estoppel is no stranger to South Dakota law; however, under these facts, it creates an issue of first impression for this Court. To maintain estoppel, *there must have been an act or conduct by the party to be estopped which induces reliance by another to his or her detriment, thus creating a condition that would make it inequitable to allow the guilty party to claim what would otherwise be his or her legal rights.* *L.R. Foy Const. Co. v. Spearfish Sch. Dist.*, 341 N.W.2d 383, 386 (S.D.1983). New Jersey has crafted a variation of this legal premise by establishing what Stepfather calls "adoption by estoppel:"

To prove equitable estoppel, the custodial parent has the burden to establish not only representation of support and reliance but also detriment, *i.e.*, that the children will suffer future financial detriment as a result of the stepparent's representation or conduct that caused the children to be cut off from their natural parent's financial support ... The burden of establishing economic

* The phrase "in loco parentis" refers to a person who has put himself or herself in the situation of a lawful parent by assuming the obligations incident to the parental relationship without going through the formalities necessary to legal adoption. *In re Marriage of Carney*, 206 N.W.2d 107, 112 (Iowa 1973).

detriment depends on the facts of the particular case.

Miller v. Miller, 97 N.J. 154, 478 A.2d 351, 358-59 (1984). Mother relies heavily on Miller's holding that it is only when a stepparent's conduct actively interferes with the children's support from their natural parent that the stepparent may be equitably estopped from denying his or her duty to support the stepchildren. *Id.*, 478 A.2d at 359. To be bound, the stepparent must take positive action which interferes with the natural parent's support obligation. *Id.*

Stepfather's role in the termination of Natural Father's parental rights and pledge to adopt the children were key to the trial court's basis of active interference with Natural Father's support obligation. Conclusion of Law IV states that Mother's reliance on Stepfather's statements and conduct concerning adoption of MAC and ARC prompted Mother to release Natural Father from his legal and natural duty to support his children, in effect, surrendering any claim to future support from Natural Father.

Such reliance is not justified. SDCL 25-5A-19 permits appeals to termination orders within 30 days of filing the order. The order was authorized and filed five days after Natural Father signed it. Stepfather made it clear that he had no intention to adopt the children. Although there is a discrepancy as to when Mother became aware of this, she makes no assertion that the decision was revealed more than 30 days after the January 10 filing. In fact, evidence strongly indicates that Mother may have known within a week. Attorney Swanson knew on the day of Natural Father's signing. Adequate time remained under SDCL 25-5A-19 for Mother to remedy the child support and termination situation with Natural Father; rather, she permitted the statutory time to lapse without ever attempting to re-secure Natural Father's child support payments upon which she now claims to have relied. Recall, Natural Father seldom paid support and was in arrears the day he signed the termination petition. From January 1989 (when she learned of Stepfather's decision) until March 1992 (ten months after she initially filed for divorce), Mother never tried to secure an adoption from Stepfather.

When Mother initially served Stepfather with divorce papers, she sought only alimony. Ten months and one attorney later, she amended her complaint seeking the forgotten child support and forgotten adoption upon which she now claims to have relied. For the trial court to find that Mother would have never consented to the termination had she known of Stepfather's decision is contrary to her subsequent inactions and thus, clearly erroneous in light of the 30-day "think it over" period provided by SDCL 25-5A-19. *See Hilbrands v. Hilbrands*, 429 N.W.2d 750 (S.D.1988).

Both Mother and the trial court place great emphasis on the fact that Stepfather treated his stepchildren as his own, spent time with them, and taught them things. In turn, MAC and ARC called him "dad" and his parents "grandpa" and "grandma." *Miller*, the New Jersey case cited above, specifically addressed the issue of the endearment of one's stepchildren.

It is undisputed that Jay, while living with Gladys, developed a loving relationship with the girls, and that the girls relied on him for emotional support. However, no court has ever applied equitable estoppel to force a husband to support the children of his divorced spouse merely because he developed a close relationship with the children, nurtured them into a family unit with himself as the father, and had the children call him "daddy." We decline to be the first to set such a precedent.

Miller, 478 A.2d at 358. *Holcomb*, 471 N.W.2d at 79, also declined. We too reject this rationale.

Otherwise, this Court would be discouraging stepparents from establishing close and loving relationships with the stepchildren, *id.*, and, in a sense, reward the stereotypical wicked stepparent for refusing to show love and support for them during the marriage.

* * *

Reversed.

WUEST, SABERS and AMUNDSON, JJ., concur.

MILLER, C.J., concurs in part and dissents in part.

MILLER, Chief Justice (concurring in part and dissenting in part).

* * *

The result of the majority's decisions in this case and *M.A.C.* leave two children without a legal right of support from either their natural Father or their Stepfather. It is a gross miscarriage of justice in which I will not participate.

NOTES

1. For a more recent look at the use of a claim of “estoppel” to create paternity, *see Crouse v. Crouse*, 1996 SD 95, 552 N.W.2d 413 (S.D. 1996) where the stepfather was unsuccessful in bid for custody of the children of the marriage plus the oldest child who was his stepchild. The South Dakota Supreme Court held that the doctrine of “estoppel” was not available for the stepfather to utilize because the wife was seven months pregnant when he first met her and, accordingly, he *knew* he could not have been the father. This case also holds that the repeal of former SDCL 30-27-23 [the statutory parental preference] did not serve to give non-parents “standing” to seek custody of step children in divorce proceedings.

2. In *Quinn v. Mouw-Quinn*, 1996 SD 103, 552 N.W.2d 843 (S.D. 1996), husband was awarded visitation rights to a stepchild and also ordered to pay child support. Husband accepted the trial court's decision, but Wife appealed. The award of the visitation rights was upheld as a situation involving “extraordinary circumstances.” (Husband was the “only father” child had ever known.) On the matter of child support, the wife was found to lack standing to appeal this aspect of trial court's order.

A. The Obligation and its Boundaries

3. Termination of the Obligation

Consider the following South Dakota statute:

CHAPTER 25-5: PARENT AND CHILD

25-5-18.1. Parental duty to support child. The parents of any child are under a legal duty to support their child in accordance with the provisions of § 25-7-6.1, until the child attains the age of eighteen, or until the child attains the age of nineteen if he is a full-time student in a secondary school. If it is determined by the court that the child support obligation survives the death of the parent, the amount due may be modified, revoked, or commuted to a lump sum payment by the court, taking into consideration all factors deemed relevant, including the financial resources of the child and the other parent and the needs of the decedent's family.

Source: SL 1986; Second sentence added SL 2001

NOTES

1. What happens to existing divorce decrees when the legislature makes a change in the maximum age for which there is a legal duty to pay child? Are existing decrees “automatically” modified? In *Conway v. Grohs*, 466 N.W.2d 641 (S.D. 1991), it was held that SDCL 25-5-18.1 did not automatically modify an existing decree (by extending through the end of high school) the obligation of support where the decree provided for termination of support when the children turned age eighteen. A custodial parent wishing to benefit from SDCL 25-5-18.1 must modify the existing decree *prior* to emancipation.

2. In *Hendricksen v. Harris*, 1999 SD 130, 600 N.W.2d 180, the matter of a daughter beyond age 18 but still in high school was the subject of scrutiny. Prior to this proceeding, the daughter had been living “equal time with the parties” under a joint custody arrangement and the mother had been receiving substantial child support payments from the father (who had extremely high income and substantial assets) pursuant to a previous order. After the daughter (the oldest child) became an adult by turning age 18, she was still in high school and did actually live with the father. Accordingly, the referee concluded that mother was not entitled to child support for this time period from father and, further, that mother actually had a duty to pay father child support for this child. The trial court rejected this legal conclusion by the referee, apparently because father had not secured a court order reflecting a formal change in custody over to him. The SD Supreme Court addressed the conundrum presented in this case – the conundrum of the child for whom the court no longer has authority to determine custody because she is beyond the age of 18, but for whom a child support obligation remains under SDCL 25-5-18.1. The Court resolved the dilemma by siding with the referee stating, “We conclude as a matter of law that after a modification petition was filed, support for Heidi after she reached age eighteen, should be based on her actual residence.” This decision is a bit at odds with the notion that child support should not be retroactively modified, but the court noted that “Heidi was an adult and her custody was not subject to the judgment and decree of divorce. She could choose with whom she wished to live.” (Quoted material taken from paragraph no. 10, 600 N.W.2d at 182.) [Justice Sabers dissented, looking upon the “total contrast in the incomes and standards of living between this millionaire and this teacher” and pointing out that mother still has obligations on her part for the child’s graduation and college preparation expenses.]

LUMP SUM AWARDS – A PROBLEM AREA FOR OBLIGORS

A frequent problem develops when child support for more than one child is designated as a lump sum. Initially, there may be no problem. As the children become emancipated, however, the obligor may seek to take a pro-rata reduction for each emancipated child. Unfortunately for obligors, the courts in South Dakota have not been as eager to grant the reductions as one might expect. To make matters worse (from the standpoint of the obligor), the issue is not made known until it is too late to modify the decree in timely fashion. *See e.g., Houser v. Houser*, 535 N.W.2d 882 (S.D. 1995) (holding that order of “\$400 per month [for three children] . . . until said children attain the age of majority” meant the husband was required to pay \$400 per month until “all the children” attain the age of majority) and *O’Grady v. O’Grady*, 1998 SD 89, 582 N.W.2d 707 (S.D. 1998) (holding that order of \$469 per month for four children did not permit the husband to take pro-rata reductions for each child as the child became emancipated.)

The basic rationale for these decisions (which denied pro-rata reductions from lump sum orders) in the preceding paragraph is that child support is not retroactively modifiable by virtue of SDCL 25-7-7.3. This statute was enacted in South Dakota in 1987 and changed the law as it then existed. This statute will be analyzed in greater detail in the Chapter on “Modifications.”

NOTES

1. A more recent occurrence of this problem can be found in *Culhane v. Michels*, 2000 SD 100, 615 N.W.2d 580. Here the divorce decree awarded child support for two children as “\$800 per month for the support of and maintenance of the minor children until they reach the age of 18 years.” The parties treated the obligation as \$400 for each child, with husband lowering his payment to \$400 per month as the older child became emancipated. The SD Supreme Court held that husband was in fact obligated to pay \$800 per month until the younger child reached age 18 and was not permitted to take a pro-rata reduction, absent obtaining relief through a motion to modify which should have been filed when the older child became emancipated. Despite the parties’ subjective understanding that the award was really \$400 per month per child, the husband was held liable for unpaid arrearages following the emancipation of both children. This decision lines up with a series of similar cases decided in 1991, 1995 and 1998. And, of course, by the time father was brought into court for collection, it was too late to seek modification of child support, because child support obligations are *not retroactively modifiable* by virtue of SDCL 25-7-7.3

2. In *State v. Taecker*, 2003 SD 43, 661 N.W.2d 712, ex-husband was convicted of felony nonsupport of a child. The relevant statute, SDCL 25-7-16, makes “nonsupport” a class 1 misdemeanor, but the same “nonsupport” becomes a Class 6 Felony, “If a parent, during a violation, leaves the state and is absent for more than thirty days.” The South Dakota Supreme Court affirmed the conviction, rejecting all arguments by the defendant ex-husband. In this case, the child support order covered four children. As of the time of trial, one child had died and two had become emancipated. Among his arguments on appeal, the defendant requested the court to rule that his child support arrearage had been improperly calculated because it did not reflect reductions as these three children no longer met the requirements for support. The Supreme Court rejected the opportunity to re-consider the existing South Dakota common law view which provides that a lump sum child support order for more than one child is not automatically reduced pro-rata as each child becomes emancipated or dies.

DEATH OF OBLIGOR

FOX v. BURDEN

South Dakota Supreme Court, 1999
1999 SD 154, 603 N.W.2d 916

[Editors Note: In this case, the father died unexpectedly in a car accident ten days after the divorce decree was entered. The decree had incorporated the parties' agreement in which father promised to change the beneficiaries of his \$100,000 life insurance policy from wife to the two children, Shanna and Michael. This change was not made before his untimely death. Wife, as the originally-designated beneficiary, collected the proceeds. Almost eight years later, daughter Shanna discovered the provisions of the original decree and brought suit against mother for misapplication of the life insurance proceeds, and fraudulent concealment. The son Michael had initially joined in the daughter's suit, but subsequently withdrew. The trial court ruled for the daughter, awarding her \$50,000 plus interest as her share of the insurance proceeds. On appeal, the SD Supreme Court affirmed this award, but also addressed the matter of whether or not the father's child support obligation "survived" his death. This portion of the opinion follows:]

* * *

Whether the trial court erred in failing to find that Kathleen, as the natural guardian and conservator of Shanna during her minority, was entitled to a setoff against such proceeds for amounts expended on Shanna's behalf for her care and welfare.

With respect to a parent's obligation to provide for the care and welfare of their child, SDCL 25-5-18.1 provides:

The parents of any child are under a legal duty to support their child in accordance with the provisions of § 25-7-6.1, until the child attains the age of eighteen, or until the child attains the age of nineteen if he is a full-time student in a secondary school.

See also *Matter of Loomis*, 1998 SD 113, ¶ 35, 587 N.W.2d 427, 433 (Konenkamp, J., dissenting) (noting that a parent has a legal duty to support child until at least age eighteen) (citing SDCL 25-5-18.1); *O'Grady v. O'Grady*, 1998 SD 89, ¶ 13, 582 N.W.2d 707, 710 (stating that "[t]he court may not impose ... a duty [on the father] to support his child beyond the age of eighteen, or nineteen if they are still in high school)" (citing SDCL 25-5-18.1; *Birchfield v. Birchfield*, 417 N.W.2d 891, 895 (S.D.1988)). A parent's support obligation continues beyond divorce of the parents through the implementation of child support payments. See *Metropolitan Life Ins. Co. v. Woodham*, 1995 WL 429259, *7 (E.D.Mich.1995) (stating that "[t]he obligation to support minor children following a divorce decree extends to both parents. 'Divorce does not eliminate the continuing duty of parents to support their children during minority' ").

Whether a child support obligation survives the death of the payor parent and makes his/her estate liable for the payments is a question of first impression. A review of case law from other jurisdictions shows a split of authority. See, e.g., *Abrego v. Abrego*, 812 P.2d 806, 811-12 (Okla.1991) (identifying the majority and minority views); *Edelman v. Edelman*, 65 Wyo. 271, 199 P.2d 840, 844 (Wyo. 1948) (noting that "it is generally held that such an obligation does not terminate upon the death of the father, in cases where he dies before the child arrives at its majority, but survives his death"); Susan L. Thomas, J.D., *Death of Obligor Parent as Affecting Decree for Support of Child*, 14 A.L.R.5th 557 (1993) (addressing both theories and case

examples). Irregardless of the labeling, we find the theory that a child support obligation survives the death of the payor parent should prevail.

* * *

In many states, including South Dakota, attorneys often include provisions in the divorce stipulation and agreement to require the payor spouse to carry a life insurance policy as security for child support payments in case the payor spouse dies during the minority of the child.

* * *

In the present case, paragraph VII of the divorce stipulation provided that Jerald would pay Kathleen \$250 per month for support of their children. Paragraph IX provided that Jerald agreed “to name his minor children as beneficiary of his \$100,000 life insurance policy.” While the agreement does not expressly dictate that the insurance was meant to replace the child support payments should the father die prematurely during the children's minority, it logically seems that paragraph IX of the agreement was intended to represent a guarantee or security for support of the children should Jerald die during their minority.

* * *

Based upon the survival of Jerald's child support obligation beyond his death, we hold that Kathleen is equitably entitled to go forward with her claim of "setoff" from Shanna's recovery herein with respect to the child support obligation. Under the divorce decree, Jerald was legally obligated to pay Kathleen \$250 per month for the support of the children. That is the maximum amount that Kathleen is legally entitled to recover for child support in this case. We reverse and remand this issue to the trial court to determine what amount of money Kathleen is legally entitled to receive for child support from the time of Jerald's death to the time that Shanna reached the age of her majority. Whatever amount the trial court determines represents the support owed is to be deducted from Shanna's \$50,000 share of Jerald's life insurance policy.

* * *

Notes

1. On this issue, survival of the child support obligation beyond death of the obligor, all five SD Supreme Court justices agreed. The Justices were not so agreeable (with each other) on some of the other issues decided in the case.

2. SDCL 25-5-18.1 was amended by the 2001 Legislature to accommodate the opinion in *Fox v. Burden* by adding what is now found as the second sentence in this statute (which is reproduced at the beginning of this sub-chapter on “Termination of the Obligation”). Notably, the 2001 SD Legislature did not overrule the holding in *Fox v. Burden*, but instead provided language (“If it is determined...”) which seems to suggest that each case involving the death of an obligor will have to be separately examined by the court.

COLLEGE FUNDS

The South Dakota Supreme Court has recognized that the parties may agree that the parents' duty of support extends beyond minority. The leading case is *Jameson v. Jameson*, 306 N.W.2d 240 (S.D. 1981), wherein the father's agreement to pay for the college education of the parties' children was held to be enforceable. *Ironically* the mother, who was the custodial spouse, was *not* required to contribute to their college education since she did not so agree.

For a more recent case involving an agreement to pay for college education, see *Kier v. Kier*, 454 N.W.2d 544 (S.D. 1990) wherein the South Dakota Supreme Court construed the father's promise to pay "All of the regular costs in obtaining a college education to the level of an undergraduate degree" so as to *include* only "room, board, books and tuition" and so as to *exclude* the mother's additional request for clothing and other personal expenses.

Notes

1. Trial court lacked authority to order father to pay \$400 per month into college fund. In *Watson-Wojewski v. Wojewski*, 2000 SD 132, 617 N.W.2d 666, the father originally agreed at the time of the divorce in 1997 that he would "in good faith provide for a college education for [child] to the best of his ability at that time." In mother's subsequent modification proceeding, the court ordered husband to pay \$400 per month into a post minority college education account. This was reversible error because child support under SDCL 25-5-18.1 may not be extended beyond age 18 or age 19 if still a full-time student in a secondary school. Although the parties may enter into an enforceable agreement which provides for payment of college expenses, the language utilized in this case relates to father's obligation at the time when the child reaches college age and cannot be construed to require father to make payments now. Father did not agree to an ongoing fund at the time of the divorce and the modification court could not order him to create one.

2. Enforcement of father's obligation to pay for tuition to private school found in settlement agreement which was incorporated into decree was subject to the 20 year statute of limitations for actions on judgments or decrees, not the 6 year statute of limitations for contract obligations.

The parties' settlement agreement in *Culhane v. Michels*, 2000 SD 100, 615 N.W.2d 580, required father to pay for tuition to private school so long as mother lived in Vermillion and the children were eligible to attend St. Agnes school. Mother brought suit for this tuition, as well as back child support and alimony, some 11 years after she remarried. Father's claim that the tuition amount was barred by the 6 years statute of limitations related to contract obligations was rejected, with the South Dakota Supreme Court holding that the 20 year statute of limitations, SDCL 15-2-6(1), was applicable because the agreement had been incorporated into the divorce decree and father's obligation was by virtue of the decree.

3. The 20 year "enforcement of judgments" statute of limitations, not the 6 year "contract" statute of limitations, applies to parents' agreement to pay for college expenses if agreement is incorporated into divorce decree. The father in *Wehrkamp v. Wehrkamp*, 2009 SD 84, 773 N.W.2d 212, agreed in 1977 to pay for daughter's college expenses. This agreement was incorporated into the parties' judgment and decree of divorce. Daughter enrolled in college in 20007 when she was 32 years old and married. Mother sought enforcement of Father's agreement. The trial court granted summary judgment for Father, applying the 6 year "contract" statute of limitations and also the doctrines of waiver and laches. The SD Supreme Court reversed, holding that the limitations period for the enforcement of an agreement which is incorporated into a divorce decree is 20 years under SDCL 15-2-6(1) which pertains to enforcement of

judgments. The Court recognized that it has “consistently applied contract principles to the interpretation of a divorce agreement” and also that language in its prior decision of *Fox v. Burden*, 1999 SD 154, ¶ 26, 603 N.W.2d 916, 923 supported the trial court’s ruling. The language in *Fox* is recognized and overruled by the Court in this decision. The Court stated in ¶ 6,

The circuit court was misled by our language in *Fox v. Burden*, 1999 SD 154, ¶ 26, 603 N.W.2d 916, 923 where we mistakenly noted that because the divorce stipulation (incorporated into the decree) was “governed by the rules of contract[,]”the contract statute of limitations applied to the enforcement of the stipulation. This was error, and to that extent *Fox* is overruled.

The Court further held that neither waiver nor laches applies. This is a unanimous decision with opinion authored by Justice Konenkamp. Judge Timm sat on this case in lieu of Justice Sabers.

PARENTAL SUPPORT

Consider the following statutes:

CHAPTER 25-7: SUPPORT OBLIGATIONS

25-7-27. Adult child's duty to support parent when necessary--Notice required. Any adult child, having the financial ability to do so, shall provide necessary food, clothing, shelter, or medical attendance for a parent who is unable to provide for oneself. However, no claim may be made against such adult child until the adult child is given written notice that the child's parent is unable to provide for oneself, and such adult child has refused to provide for the child's parent. Notice required by this section shall be given within ninety days after the necessary food, clothing, shelter, or medical attendance, claimed in the notice, was first provided for the parent. However, in the case of fraud or misrepresentation, notice shall be provided within ninety days after such fraud or misrepresentation is known or should have been known. If the parent or someone acting on behalf of the parent makes application for assistance pursuant to chapter 28-13, the county shall give the written notice required herein within ninety days after it receives the application or notice required under § 28-13-1, 28-13- 32.3, 28-13-32.4, or 28-13-34.1, whichever is sooner.

Source: SDC 1939, § 14.0320 as enacted by SL 1963, ch 61; SL 2000, ch 118, § 1.

25-7-28. Adult child's right of contribution from brothers and sisters for support of parent-- Notice required. In the event necessary food, clothing, shelter, or medical attendance is provided for a parent by a child, he shall have the right of contribution from his adult brothers and sisters, who refuse or do not assist in such maintenance, on a pro rata share to the extent of their ability to so contribute to such support; provided that no right of contribution for support shall accrue except from and after notice in writing is given by the child so providing for his parent.

Source: SDC 1939, § 14.0312 as added by SL 1963, ch 62.

NOTE

Hospital mistakenly treated man as Medicare patient. Eight days prior to man's admission to hospital approximately \$1.2 million was deposited into trust for man. Man died and hospital obtained Medicare benefits. When man's estate was opened, hospital filed claim for only \$42.73. Subsequently a Medicare audit showed man was not eligible for a substantial portion of benefits paid. Medicare recouped its loss in setting off money paid on other claims to hospital. Hospital then sued adult children of man alleging they were liable for his hospital bill by virtue of SDCL 25-7-27 and also by virtue of "equity and social policy." The trial court ruled for children and the South Dakota Supreme Court affirmed in *Accounts Management, Inc. v. Nelson*, 2003 SD 61, 663 N.W.2d 237 (5/21/03). Under the language of the statute, SDCL 25-7-27, the obligation of the adult child occurs only "for a parent who is unable to provide for himself." This parent was able to provide for himself, his estate was solvent and the hospital was notified of the Medicare recoupment eighteen days before the estate was closed. Hospital was not authorized by SDCL 25-7-27 to sue adult children where the parent was able to provide for himself. The hospital's argument that it should be allowed to recovery based upon "equity and social policy" was declared to be waived by the South Dakota Supreme Court for failure of hospital to cite supporting authority in its brief.

4. The Nebulous Zone Where the Parties Can Agree, But the Court Cannot Order

In some situations the court lacks authority to order the parties to do certain things, but the parties undertake to enter into agreements which delve into this nebulous area. The agreements are, somewhat ironically, usually subject to the approval of the court. Without going into any great detail here, it should be noted that these sort of court-approved agreements may not carry with them the full range of enforcement mechanisms as the areas which are typically subject to court order. On the other hand, these agreements are not meaningless either.*

One situation which falls in this "nebulous" zone deals with the ability of the parties to contractually agree to support children beyond the age of majority. This is typically seen where the parties want to provide for college education. (This is discussed a little bit earlier in this book.) This could also come up where a child is disabled or otherwise in need of some kind of continued support. There is much case law in other jurisdictions dealing with this issue which has thus far apparently escaped any significant discussion in South Dakota.

Another situation which falls into this "nebulous zone" deals with the matter of the Federal Income Tax Exemption. It is accepted as the law today that a court cannot "award" or "proactively allocate" a dependency exemption in a divorce or in a customary child support proceeding. *Voelker v. Voelker*, 520

* In Texas, for example, the trial court has historically lacked the ability to impose a court-ordered alimony obligation because such has been found to be in violation of public policy. Yet, the parties may, by agreement, establish "contractual alimony" payments. Then, the court may approve such agreements without violating public policy. Enforcement of contractual alimony has been relegated to whatever remedies would be available under the law of contracts. Contractual alimony has not been enforceable according to the law of judgments. See generally, Roger M. Baron, *Alimony in Texas*, 24 The Houston Lawyer No. 3, p. 30 (Nov-Dec 1986).

N.W.2d 903, 909 (SD 1994); *Early v. Early*, 484 N.W.2d 125, 128 (SD 1992), *cert. denied* 506 US 895, 113 S.Ct. 272, 121 L.Ed.2d 200 (1992). But, the parties can enter into an agreement which allocates the exemption through the technique of having the custodial parent [who is prima facie entitled to the exemption under current federal statute, 26 U.S.C. 152(e)] agree to execute the necessary form to transfer the exemption over to the non-custodial parent.

Now, in each of the situations described above, we have an anomaly. The court cannot, of its own volition, order any of these things to happen. Yet, the court is put into the position of either “approving” or “not approving” such agreements. Typically, such agreements are approved.

The Jacobson Case

One of the next “arenas” for dispute comes in the context of determining whether or not these agreements, once approved, may subsequently be *modified* by the court. And, this is the exact issue which confronted the SD Supreme Court in *Jacobson v. Jacobson*, 2000 SD 60, 611 N.W.2d 210 which resolves the issue in a 3-2 decision. When the parties were divorced in 1996, the wife was not earning much money. Wife then agreed to execute the necessary documents to give the husband the exemption any time his child support payments to wife exceeded \$4,200 per year. A few years later, after wife secured a full time teaching contract and both parties had remarried, the matter of child support was reviewed and redetermined as per the 1997 guidelines. The referee assumed (wrongly) that wife, as custodial parent, was entitled to the exemption. Child support was re-set and the trial court approved the new computation.

Two days later, wife sought to modify the divorce decree so as to remove that part of the incorporated-in agreement that required her to execute the forms to give the husband the exemptions. The gist of her action was to bring the entire decree around so as to conform with the result intended by the referee. (Or, as stated by the majority opinion, “In essence, what happened in this case is that the cart was put before the horse. The referee’s decision which modified the amount of Scott’s child support obligation assumed that Nancy was entitled to and currently claiming the exemptions.” from paragraph no. 27 of the opinion.) This modification action precipitated all sorts of legal issues! First and foremost, could this part of the decree be modified at all? Secondly, were there adequate grounds (“changed circumstances”) warranting modification? Third, had the referee and court properly considered all factors if the exemption is now allowed to be changed? And, finally, could the change be retroactive, so as to pick up the 1998 tax year?

The trial court ruled favorably for the wife, making the modification by striking and removing the language of the agreement which required the custodial wife to execute the necessary forms and it also made the modification retroactive for the 1998 tax year.

The three justice majority opinion also ruled favorably for the wife on all issues, except on the issue of whether the change could be made retroactive for the 1998 tax year. The key issue, of course, was whether or not a court could later modify a court-approved agreement on an issue which the court could not have initially imposed, absent an agreement of the parties? In answering this question “yes,” the majority opinion, authored by Chief Justice Miller, was persuaded by the fact that the agreement itself had to be “approved” in the first place. Initially, the trial court had the authority to approve or reject the agreement at the time. The Court further relied on the notion that courts generally retain “broad powers to implement modifications” over many facets of divorce decrees, such as child support and alimony. (Quoted language is taken from paragraph no. 16, 611 N.W.2d at 215.) Additionally, the result in this case is consistent with the bottom-line philosophy seen in the tax code that the custodial parent should be given the exemption. It appears that the *Jameson* case which is cited and discussed earlier in this casebook is the most troublesome to the majority opinion. (The *Jameson* opinion enforced the parties’ agreement that father should pay for

college education.) The majority recognizes the “apparent limitation” of the *Jameson* opinion, but tends to suggest that the real issue involving the court-contained agreement in *Jameson* was whether or not it was enforceable at all. Footnote 5 of the majority opinion points out that if there had been sufficiently changed circumstances, the court-approved agreement in *Jameson* could have been modified. [Justices Sabers and Amundson dissented on this key issue, arguing that trial courts simply do not have the authority to allocate tax exemptions and also arguing that trial courts cannot modify provisions which the court had no authority to impose initially. The dissent, of course, relies on the *Jameson* case for support as to this latter notion.]

The Court also held that it was error to make the modification retroactive to the 1998 tax year, due to the prohibition against retroactive modifications found in the child support statute, SDCL 25-7-7.3. (This writer is not completely convinced that this statute applies to the part of a decree which incorporates an agreement for dependency exemptions, but it is “close” and this case already splits way too many fine hairs!)

Final notes on this case: Wife was awarded appellate attorney fees. Also, according to the dissent, the loss of the “bargained-for tax exemptions” results in a monetary loss to husband in excess of \$700 per year.

Child Support Issues for Permanently Disabled Child

The situation concerning child support for a disabled child was the subject of litigation in *Miller v. Jacobsen*, 2006 SD 33, 714 N.W.2d 69. The parties were married in 1989 and divorced in 1993. Their son, born also in 1989, has been disabled from birth as a result of cerebral palsy and a seizure disorder. In a stipulated agreement entered into at the time of the divorce, husband was to continue paying child support so long as the child “is dependent or until further order of the court.” Husband agreed to pay child support at a basic rate of \$516 per month and also an additional amount of \$155 per month based on the child’s special needs. The child “is [now] fifteen years old and weighs sixty-five pounds. His disability requires him to have extensive care and assistance with activities of daily living. [He] must be fed, dressed and diapered daily, as well as requiring assistance with medications, bathing and toileting twice a day... [He] must be turned at least once each night when he is sleeping. He also has a drug pump in his abdomen that delivers medication to his spinal column for relief of muscle tightness. [He] spends the majority of his day in his wheelchair and requires physical assistance for transfers to and from his wheelchair.” ¶ 5. During the school year and summer session child resides on Monday through Friday at Children’s Care Hospital in Sioux Falls, attending school. Wife, who has been the primary caregiver for the child at home (which is just over 50% of the time), brought this action seeking, *inter alia*, modification of child support. Father appeals numerous aspects of the lower court’s rulings. The South Dakota Supreme Court ruled, *inter alia*, as follows:

A. The trial court did not err in including an *upward* deviation as to father’s child support obligation for the purchase of a specialized van for transportation and for payment of paid caregivers for child. ¶¶ 29-38.

B. With respect to a parent’s statutory duty to support his/her child, the Court acknowledged that absent an agreement of the parties, the duty to support “terminates per the provisions of SDCL 25-5-18.1, no later than age nineteen.” The Court specifically stated that, “A trial court may not impose a duty to support a child beyond the age of eighteen, or the age of nineteen if the child is still enrolled full-time in high school... [citations omitted]... However, the parties are free to agree to provide support beyond the age of nineteen.” ¶ 52.

In this case the parties’ stipulated agreement provided, “that [father’s] obligation for child support shall continue as long as [the child] is dependent or until further Order of the Court.” Mother contends that the reference to “dependent” is in regard to the child’s disability and therefore provides a continuing obligation. This issue – interpretation of the parties’ agreement concerning the termination date for husband’s child support obligation – was remanded for the trial court’s resolution. In the event the child support obligation for father is found to terminate on child’s 18th birthday, then the trial was directed “to

reconsider the monthly support amount.” But if the trial court “determines the meaning of ‘dependent’ ... called for support ... for life, the [upward deviation] vehicle payment termination date may stand as originally ordered.” ¶ 58.

Justice Sabers dissented on the “remand” order. According to Justice Sabers’ view, the use of the word “dependent” in the parties’ agreement requires the father’s obligation to run for the life of the child and the agreement should be “enforced, not ... interpreted.” ¶ 66.

B. Child Support Guidelines

1. History and Introduction

There has been no greater changes in the area of family law over the past two decades than the changes seen in the approach to child support. The development of child support guidelines was mandated by federal legislation designed to improve the enforcement of existing support obligations. Although the problem presented itself most severely in the context of reimbursements for AFDC payments, the child support guidelines are designed for usage by both AFDC parents and non-AFDC parents. Similarly, the mechanism provided under the guidelines is usable by both the obligors and obligees, although obligees are usually the initiators of child support proceedings.

South Dakota’s first set of guidelines was enacted in 1986. The concept of “wage withholding” was also required and enacted together with the guidelines. This is a user-friendly system that is far superior to the traditional tool of garnishment. Once initiated, wage withholding can be set into action on a semi-permanent basis. Wage withholding will be taken up again in the chapter on Enforcement.

The 1986 guidelines were based only on the income of the obligor, with certain specified reasons which would permit deviation. Also, under the 1986 scheme, most child support hearings were before officials of the Department of Social Services -- a process that drew much criticism as an unlawful encroachment of the function of the courts under the “separation of powers” doctrine.

THE 1989 CHANGES

In 1989 South Dakota enacted a different version of guidelines. By this time, many of the problems had revealed themselves and this new second version resolved many of the more apparent inequities. The 1989 chart was based on incomes of both the obligor and obligee, as opposed to the “obligor only” philosophy seen in the 1986 chart. Reasons to deviate were expanded to ten and this included the very general reason that allowed deviation if “any financial condition of either parent. . . would make the application of the schedule inequitable.” SDCL 25-7-6.10 (2).

The problem alleged to exist with the “separation of powers” was also resolved. Under the 1989 revision, hearings would be had before “referees” appointed by the court, as opposed to having the hearings assigned to employees of the Department of Social Services.

The development of the child support guidelines in South Dakota through and including the 1989 revisions is thoroughly discussed by Barbara Everist in *Major Changes in South Dakota Child Support: The 1989 Revision*, 34 South Dakota Law Review 573 (1989).

THE 1997 CHANGES

Extensive revisions to the South Dakota Child Support Guidelines and accompanying statutes were enacted by the 1997 Legislature. These revisions were preceded by a study and report by the South Dakota Commission on Child Support, which was re-established for the third time in 1996. The report of the commission was adopted with some minor revisions. A summary of the major changes follows:

- 1.) A new grid was adopted. The new grid:
 - a.) extends the "combined net monthly income" range to \$10,000 [from \$4,000], thereby eliminating the need to consider "extrapolation" in many cases; and
 - b.) generally raises the amount of support required, except at higher income levels where it decreases support; and
- 2.) Other changes in the 1997 revisions include the following:
 - a.) Expenditures for child care may now be handled like health insurance -- the expenses "may be" allocated between the parties under the new SDCL 25-7-6.18. This change also triggered the removal of "child care expenses" as a separate ground for deviation under SDCL 26-7-6.10 (*i.e.* there is no need to deviate if the costs are directly apportioned between the parties.)
 - b.) The first \$250 of uncovered medical expenses for the child is to be borne by the custodial spouse, the excess above the \$250 to be apportioned between the parties. SDCL 25-7-6.16. The new grid seen in SDCL 25-7-6.2 assumes that the first \$250 in child care costs will be spent by the custodial parent and the non-custodial parent's contribution is computed accordingly.
 - c.) Clarifies the computation of income tax deductions ("single" taxpayer status to be used) and restricts deductions for retirement fund contributions to "a reasonable amount;" *See* SDCL 25-7-6.7.
 - d.) Permits all existing orders to be modified without showing a change in circumstances under SDCL 25-7-6.13.
 - e.) changes the law on abatement so as to allow for 38% - 66% abatement in child support under certain circumstances (new SDCL 25-7-6.14):
 - 1.) "appropriate under the circumstances;" and

2.) child spends more than 10 days a month with the obligor [note: need not be "consecutive" days]; and

3.) the visitation and abatement provisions are specified in the court order;

f.) Additional observations about the new handling of "abatements:"

1.) abatement may now be taken in the month that the visitation is actually exercised [under old law, only "after the fact" abatements were permitted]; and

2.) abatement is applied only to the pro-rata share of the monthly obligation -- *i.e.* if the period of visitation is 15 days, then the obligor would receive a reduction of 38%-66% as applied to 50% of the monthly support obligation; and

3.) health care costs are not subject to abatement, because they must be paid regardless of the exercise of visitation; and

4.) Since abatements have to be approved by the court in advance, it may just be simpler to "deviate" under the guidelines for extended periods of visitation -- this deviation factor continues to exist; and

g.) the statutory provision for allocation of travel costs was broadened to allow the court to consider "the circumstances" of the parties, not just which party moved and the reasons therefore. Amended version of SDCL 25-7-6.15.

h.) an alternative computation for health insurance is permitted [allowing the court to consider the true cost of health insurance, not just the amount that the "employee" pays]; Amended version of SDCL 25-7-6.16.

3.) The existing law which prohibits the retroactive modification of child support is amended to allow for a "credit" against arrearages if (new SDCL 25-7-6.19):

a.) the parties agreed to the change in physical custody; and

b.) the obligor actually had primary physical custody; and

c.) the obligor had actual custody for more than four consecutive months.

d.) Additional notes:

1.) The Commission had recommended that actual custody be exercised for at least 12 consecutive months and this was changed to 4 consecutive months.

2.) If all the conditions are met, the "credit" against arrearages is possible for the full amount of the arrearages [not just a percentage amount as seen in the abatement provisions].

THE 2001 CHANGES

A new grid was put into effect, with the high end remaining at \$10,000. Furthermore, the method for computation of child support found in SDCL 25-7-6.2 was modified to reflect an "obligor only" basis for setting child support in certain low-end cases. The basic mechanism of the grid as being a "combined net monthly income" of both obligor and obligee was retained – but in certain situations (designated by emboldened areas on the grid), a comparison of the child support obligation found under the "combined" method is to be compared to the child support obligation for the obligor-only income using the emboldened figures, with the lesser amount to be adopted. (This new approach is described in the 2nd introductory paragraph found in SDCL 25-7-6.2, just before the grid itself.)

The number of deviation factors under SDCL 25-7-6.10 was reduced to eight.

The abatement statute, SDCL 25-7-6.14, was amended so as to state that "The abatement shall be pro-rated to the days of visitation." Also, an optional (non-mandatory) method for the computation of child support was authorized, by way of a cross credit computation, in "shared responsibility" situations where the child spends at least 120 days in the home of each parent.

THE 2005 CHANGES

1. The child support grid found in SDCL 25-7-6.2 remains intact, with no modification.

2. A new section has been added to SDCL 25-7 which preserves the rule for social security payments under *Hawkins v. Peterson*, 474 N.W.2d 90 (S.D. 1990) and also applies (expands) the same rule so as to include veteran's disability benefits and social security retirement benefits received on behalf of the child. This brings SD into alignment with the majority of the states relating to treatment of these types of payments.

In particular, Section 1 of SB 60 states: That chapter 25-7 be amended by adding thereto a NEW SECTION (SDCL 25-7-6.21) to read as follows:

If the child receives social security or veteran's dependent benefits as a result of the obligor's disability, or social security retirement benefits from the obligor, the obligor is entitled to a credit to the amount of the monthly support obligation.

3. Certain revisions have been made in SDCL 25-7-6.7 relating to deductions monthly gross income for the purpose of computing net monthly income.

4. Revision has been made of SDCL 25-7-6.13 to permit modification of support orders entered before July 1, 2005, without requiring a showing of a change in circumstances.

5. Revision has been made in SDCL 25-7-6.14 relating to a shared responsibility parenting plan. This revision requires that the plan should be in writing and that it should require the sharing of expenses for the child's education, recreation and entertainment activities.

6. A new section has been added to SDCL 25-7 – this new provision creates a rebuttable presumption that 2nd job income is not to be considered in establishing a support obligation.

In particular, Section 5 of SB 60 states: That chapter 25-7 be amended by adding thereto a NEW SECTION (SDCL 25-7-6.22) to read as follows:

If a parent is employed full-time at a rate of pay that equals or exceeds the state's minimum wage, it shall be presumed that a parent's second job income is not to be considered in establishing a support obligation. This presumption may be rebutted by evidence that the income source was available to pay expenses related to the child when the family was intact or if the family had formed, by evidence that exclusion of the income would result in a financial hardship upon the other parent, or that exclusion of the second job income will have a substantial negative effect upon the child's standard of living.

7. A new section has been added to SDCL 25-7 – this new provision specifies how to calculate child support in split custody situations. In particular, Section 6 of SB 60 states: That chapter 25-7 be amended by adding thereto a NEW SECTION (SDCL 25-7-6.23) to read as follows:

If the parents have two or more children between them and each parent has primary physical custody of at least one child, the child support obligation shall be determined by computing the amount of each parent's respective support obligation for the children in the other parent's physical custody, and the support obligations shall be offset in determining a monthly support obligation. If one or more of the children are receiving assistance from the department as provided in § 28-7A-7, and in lieu of the offset, each parent shall be obligated to pay the respective support obligation amount to the other parent.

This new provision controls in situations where one parent is the primary custodian of one or more children and the other parent is the primary custodian of the other child (or children). This codifies the formula whereby each parent's respective obligation is calculated under the guidelines and incomes and then the two obligations are offset. This is consistent with the manner found in *Steffens v. Peterson*, 503 N.W.2d 254 (SD 1993). The report of the child support commission states, "Inconsistency exists throughout the state amongst child support referees, family law attorneys, and judges in setting the respective child support obligations between the parents in these situations." [The formula will not apply to situations where the rights to child support have been assigned to the State.]

EXAMPLE: H's net monthly income is \$4,000. W's net monthly income is \$2,000. There are three (3) children. H is awarded custody of two (2) children. W is awarded custody of one (1) child. How is child support calculated?

Combined Net Monthly Income:	\$6,000
Monthly support obligation for one child:	\$ 984
Monthly support obligation for two children:	\$1,422
W's obligation for two children residing with H: (computed as 1/3 of \$1,422)	\$ 474
H's obligation for one child residing with W: (computes as 2/3 of \$984)	\$ 656
H's net obligation after reducing W's obligation: (\$656 minus \$474 equals \$182)	\$ 182

8. Both SDCL 25-7A-6 and SDCL 25-7A-22 have been amended to permit either party an additional five days to file objections to a child support referee's recommended decision and order in the event objections are filed by a party. According to the Report filed by the Child Support Commission, "Oftentimes, one party may not totally agree with the findings, conclusions, and recommended decision of the child support referee, but decides not to file written objections with the circuit court. The other party subsequently files written objections to the referee's report thereby prompting a circuit court hearing. Since the first party did not file written objections within the required ten day period, the issues that concerned that party cannot now be heard by the circuit court. The Commission recommends that the applicable statutes be amended so that if one party files objections within the current ten day period, the other party will be afforded an additional five days to file their (sic) objections, if any. The change will result in a full and complete hearing by the circuit court judge regarding all issues of concern to both parties. This change is consistent with other appellate statutes and procedures within South Dakota."

9. The limitation on retroactive child support which a mother may receive in paternity and order establishment cases has been changed from 6 years to 3 years. SDCL 25-8-5 has been amended and a new section has been added in SDCL 25-7A. Both statutes include the date of application for services with a Title IV-D Support Enforcement Agency as a triggering date.

In particular, Section 9 of SB 60 states: That chapter 25-7A be amended by adding thereto a NEW SECTION (SDCL 25-7A-21.1) to read as follows:

In any order establishment case, the obligee is limited to a prior-period support obligation or arrearage not exceeding three years before either the date of application with any Title IV-D agency, the date of filing with a court of competent jurisdiction, or the date of a written demand served personally or by registered or certified mail, return receipt requested, upon the father at his last known address, whichever occurs earlier.

10. The "Deviation" statute, SDCL 25-7-10 has been amended in a number of respects:

A) A presumptive limit of 50% of obligor's net income has been established for child support obligations including health insurance and day care costs. According to the Report of the Child Support Commission, "The costs of the health insurance and the costs of day care for the child(ren) are a significant portion of the obligor's total monthly obligation. The Commission and the legislature have some control in setting the base child support obligations by review of the guidelines and the respective incomes of South

Dakota families. The Commission and legislature have little control over the spiraling costs of health insurance premiums or the continually rising costs of children's day care. In many situations, when all of these amounts are combined and paid by the non-custodial parent, that parent is left with limited income to maintain an appropriate standard of living... To address this issue, the Commission recommends that the Legislature enact a statute which creates a presumptive limit of 50% of the obligor's net income as his or her total child support obligation, that is, the guideline schedule amount combined with his or her respective share of health insurance and day care costs. This is the same statutory limit which the Division of Child Support can legally withhold from an obligor's net income for payment of child support in order to leave the obligor with sufficient financial resources to maintain an appropriate standard of living."

B) The deviation for "federal income tax consequences arising from claiming the child as a dependent" has been eliminated. The Report of the Child Support Commission stated, "The Commission believes that the child support obligations must be calculated consistently throughout the state to the greatest extent possible. Only in this manner will South Dakota's children be treated equally, no matter where they may reside or which judge or referee hears their case. By continuing to allow the broad federal income tax deviation, the Commission is of the opinion that inconsistency in this area of law will continue. Eliminating this deviation will have a minimal impact upon the parents' actual child support obligations and also result in a much simpler, uniform, and consistent child support calculation."

C) The "special needs" deviation was amended so as to clarify that this relates to "necessary education or health care special needs." According to the Report of the Child Support Commission, "When originally adopted this deviation was intended to cover a child's special medical or education needs. Some parents construe this deviation to include such things as automobiles, computers, piano lessons, etc. This was not the intent behind this deviation and it should not be used in this manner."

D) The deviation for agreements made prior to July 1, 1986, has been eliminated. Children who may have been impacted by this deviation have all turned 18 years of age by July 1, 2004.

11. A new statute has been added to SDCL 25-7 to permit parents to seek a child support modification if they have voluntarily agreed to an informal change of custody without showing any other "change in circumstances." This alleviates the need for the parties to proceed into circuit court with a formal change in custody proceeding before allowing the matter of child support to be addressed by the referee in a modification request based upon the informal change of custody.

In particular, Section 11 of SB 60 states: That chapter 25-7 be amended by adding thereto a NEW SECTION (SDCL 25-7-6.24) to read as follows:

If the parents of a child have agreed to a change in the physical custody of the child without the court's approval, the parent who relinquished physical custody may be ordered to pay child support to the parent who gained physical custody of the child even though the custody order has not been modified to reflect the change in custody.

12. New statutes have been added to SDCL 25-7 and SDCL 15-39 which will simplify the procedure for parents seeking to recover a child's uninsured medical expenses from the other parent. DSS is directed to create and distribute a standardized form which may be utilized to request reimbursement of medical or health care cost from the responsible parent. And, the Small Claims Procedure of SDCL 15-39 is specifically recognized as a means for collecting unreimbursed medical or health care costs. According to the Report of the Child Support Commission, "Under existing law there is no easy or cheap method for a parent to recover these costs from the other parent. The Department pursues collection of unpaid medical expenses if court ordered, but only if these costs and expenses are reduced to judgment... Many circuit courts within South Dakota allow parents to obtain medical expense judgments in small claims courts. A few circuit courts do not, however, ruling that the parties must proceed back to the circuit court which entered the original

divorce decree or support order to obtain this medical expense judgment. This procedure is very costly for the parties since the services of an attorney are generally required. Additionally, most circuit court judges have full calendars and would prefer to have these issues resolved in the more informal setting of small claims court.” (See newly-enacted SDCL 25-7-6.25 and SDCL 15-39-79.)

THE 2009 CHANGES

1) The grid set forth in SDCL 25-7-6.2 was amended so as to reflect current economic data and also to adjust low-income amounts so to correspond with the current minimum wage. The grid now extends the highest amount from \$10,000 to \$20,000 for the combined net monthly income of the parties.

2) SDCL 25-7-6.3 was amended so as to specifically exclude income that is not regular and recurring.

3) SDCL 25-7-6.4 and SDCL 25-7-6.10 were amended so as to address the situation where the obligor is incarcerated, consistent with the SD Supreme Court decisions in *Gisi v. Gisi*, 2007 SD 39, 731 N.W.2d 223 and *Hollinsworth v. Hollinsworth*, 2008 SD 102.

4) SDCL 25-7-6.13 was amended so as to allow existing orders of support to be amended without requiring a showing of a change in circumstances. This treatment is consistent with what the SD Legislature provided in connection with prior adoptions of Child Support Commission Recommendations in 1989, 1997, 2001, and 2005.

5) The abatement statute, SDCL 25-7-6.14, was amended, with the shared responsibility cross credit portion being segregated out into a separate provision.

6) New provisions are enacted into SDCL 25-7 to restrict the availability of the shared responsibility cross credit and to also replace “day” with “night” as a measure to count time a child spends with the non-custodial parent. The new provisions are found as SDCL 25-7-6.27 and 25-7-6.28.

7) SDCL 25-7-6.22 was clarified and refined in regard to the relevant criteria related to 2nd job income. The original version was problematic in its wording when enacted.

8) Revisions dealing with health insurance for the child. SDCL 25-7-6.16 was amended so as to conform to federal requirements for “medical support” for children. The new approach is a shift from dealing with “health insurance” to the broader concern for “medical support.” This new approach recognizes that one can no longer simply assume that health insurance is reasonably affordable through a parent’s employer. Various other provisions (SDCL 25-7A-1, SDCL 25-7A-5, SDCL 25-7A-6, SDCL 25-7A-7 and SDCL 25-7A-22) were also amended so as to conform to the new federal approach.

9) A new statutory provision. SDCL 25-7-26, was created to allow for the imputation of income for a parent who fails to provide financial information. Some referees had imputed income to a parent who failed to provide financial information in a child support proceeding. Authority for doing so is now specifically recognized by this new provision.

B. Child Support Guidelines

2. Referees/Review of Decisions

In most divorce cases, the child support guidelines are initially applied by the circuit court which is called upon to simultaneously dispose of all the issues attendant to a divorce proceeding. The setting of child support may also arise in collection proceedings and modification proceedings.

Post-divorce modifications of child support are not heard directly by the courts, rather by the court-appointed “referees.” Forms are prescribed by DSS and made freely available to both obligor and obligees in both AFDC and non-AFDC cases. *See* SDCL 25-7A-22. The matter is set for hearing before a court-appointed referee who is directed to file his report with the circuit court. Parties have 10 days to file objections to the report of the referee. If there are no objections, the court may enter its order on the report without further notice. If there are objections, the circuit court’s hearing on the objections is limited solely “to the record established before the referee.” SDCL 25-7A-22. Findings of fact by the referee are not to be disturbed unless “clearly erroneous.” Conclusions of law by the referee are “freely reviewable” and entitled to “no special deference by a reviewing court.” *Janke v. Janke*, 467 N.W.2d 494, 497-98 (S.D. 1991).

NOTE

The circuit court is not permitted under SDCL 25-7A-6 to conduct *de novo* review of a referee’s decision regarding child support. In *Tovsland v. Reub*, 2004 SD 93, 686 N.W.2d 392, however, the same trial court that was conducting review under SDCL 25-7A-6 also presided over the corresponding paternity action under SDCL 25-7A-8. In resolving both matters, the trial court announced that it believed a *de novo* hearing was appropriate. The South Dakota Supreme Court held that while *de novo* review was indeed inappropriate as to the referee’s decision, the appellant could not show prejudice. “Because the circuit court had independent jurisdiction to decide the same issues the referee had decided, [Appellant] was not prejudiced by the trial court’s trial *de novo*.” ¶ 15. [Note that the mechanism of SDCL 25-7A-6 applies in DSS situations concerning public assistance and that the similar mechanism of SDCL 25-7A-22 applies generally to all modification of child support proceedings.]

Findings of Fact and Conclusions of Law

1. **Findings of fact and conclusions of law are required in connection with the parties' net monthly income, combined net monthly income, the percentage contribution attributable to each party, and each party's proportionate obligation under the grid.** In *Linard v. Hershey*, 516 N.W.2d 304 (S.D. 1994), husband's child support payments were raised by the trial court from \$116.60 per month to \$490 per month. He appealed, arguing that the circuit court committed error by failing to make findings of fact and conclusions of law, as required by SDCL 15-6-52(a). Husband, himself, never proposed findings or conclusions and the trial court filed a "memorandum opinion." On appeal, the South Dakota Supreme Court agreed with husband's argument and reversed in a 3-2 decision, holding it was "impossible. . .to render a meaningful review." On remand, the trial court was directed to enter findings of fact and conclusions of law on (1) each party's net monthly income; (2) the parties' combined net monthly income; (3) the percentage contribution of each party to their combined net monthly income; and (4) each party's child support obligation calculated according to the applicable figure in the guidelines. In their dissents, Justices Miller and Henderson suggest that South Dakota law requires findings of fact and conclusion of law only when the trial court is deviating from the child support guidelines.

2. **It is reversible error for trial court to simply fail to enter a child support order.** In *Midzak v. Midzak*, 2005 SD 58, 697 N.W.2d 733, the wife was represented by counsel in her divorce action, but the husband appeared pro se. The trial court awarded custody of the parties' minor child to husband but did not enter a child support award. The trial court did not compute the combined net monthly income of the parties, nor did it make any findings concerning a possible deviation under SDCL 25-7-6.10. Husband subsequently secured the services of an attorney and took an appeal. On the issue of child support, the South Dakota Supreme Court reversed and remanded, holding that the trial court was required to "follow the mandatory provisions of the South Dakota child support statutory scheme." ¶ 31. The court noted that SDCL 25-7-6.2 provides that "the combined monthly net incomes of both parents *shall* be used..." (Emphasis supplied by the Court). ¶ 30. The Court also noted that "deviations may be made 'only upon the entry of specific findings,'" citing and quoting SDCL 25-7-6.10. ¶ 30.

B. Child Support Guidelines

3. The Current Statutory Guidelines

25-7-6.1 Obligation of parents to support child — Liability of absent parent — "Continued absence from the home." The parents of a child are jointly and severally obligated for the necessary maintenance, education and support of the child in accordance with their respective means. Until established by a court order, the minimum child support obligation of a parent who fails to furnish maintenance, education and support for his child, following a continued absence from the home, is the obligor's share of the amount shown in the support guidelines, commencing on the first day of the absence. For the purposes of this section, "continued absence from the home," means that the parent or child is physically absent from the home for a period of at least thirty consecutive days, and that the nature of the absence constitutes family dissociation because of a substantial severance of marital and family ties and responsibilities, resulting in the child losing or having a substantial reduction of physical care, communication, guidance and support from the parent.

Source: SL 1989, ch 220, § 1; SL 1992, ch 182, § 1.

25-7-6.2. Support obligation schedule. The child support obligation shall be established in accordance with the following schedule subject to the revisions or deviations as permitted by this chapter. Except as provided in this chapter, the combined monthly net incomes of both parents shall be used in determining the obligation which shall be divided proportionately between the parents based upon their respective net incomes. The noncustodial parent's proportionate share establishes the amount of the child support order.

If the obligation using only the noncustodial parent's monthly net income is an obligation within the emboldened areas of the schedule, that amount shall be compared to the noncustodial parent's proportionate share using both parents' monthly net incomes. The lesser amount establishes the noncustodial parent's child support order.

Monthly Net Income	One Child	Two Children	Three Children	Four Children	Five Children	Six Children
0-1,100	216	279	312	335	357	379
1,150	256	319	352	375	397	419
1,200	296	359	392	415	437	459
1,250	319	399	432	455	477	499
1,300	332	439	472	495	517	539
1,350	344	479	512	535	557	579
1,400	357	519	552	575	597	619
1,450	369	539	592	615	637	659
1,500	381	557	632	655	677	699
1,550	393	574	672	695	717	739
1,600	405	590	700	735	757	779
1,700	428	624	738	815	837	859
1,750	440	640	757	846	877	899
1,800	451	657	777	868	917	939
1,850	463	674	796	889	957	979
1,900	475	690	815	911	997	1,019
1,950	487	707	835	932	1,025	1,059
2,000	498	723	854	954	1,049	1,099
2,050	510	740	873	975	1,073	1,139
2,100	522	757	892	997	1,096	1,179
2,150	533	773	912	1,018	1,120	1,218
2,200	545	790	931	1,040	1,144	1,243
2,250	557	807	950	1,061	1,167	1,269
2,300	568	823	969	1,083	1,191	1,295
2,350	580	840	989	1,104	1,215	1,321
2,400	592	857	1,008	1,126	1,239	1,347
2,450	603	873	1,028	1,148	1,263	1,373
2,550	627	907	1,067	1,191	1,311	1,425
2,600	638	923	1,086	1,213	1,334	1,450
2,650	650	940	1,105	1,235	1,358	1,476
2,700	662	957	1,125	1,257	1,382	1,502
2,750	673	973	1,144	1,278	1,406	1,528
2,800	685	990	1,164	1,300	1,430	1,554
2,850	696	1,007	1,183	1,322	1,454	1,580

Monthly Net Income	One Child	Two Children	Three Children	Four Children	Five Children	Six Children
2,900	708	1,023	1,203	1,343	1,478	1,606
2,950	720	1,040	1,222	1,365	1,502	1,632
3,000	731	1,056	1,242	1,387	1,526	1,658
3,050	743	1,073	1,261	1,409	1,549	1,684
3,100	755	1,090	1,281	1,430	1,573	1,710
3,150	766	1,106	1,300	1,452	1,597	1,736
3,200	776	1,120	1,316	1,470	1,617	1,757
3,250	779	1,125	1,321	1,476	1,623	1,765
3,350	786	1,134	1,332	1,488	1,637	1,779
3,400	789	1,139	1,337	1,494	1,643	1,786
3,450	792	1,144	1,343	1,500	1,650	1,793
3,500	796	1,148	1,348	1,506	1,657	1,801
3,550	799	1,153	1,354	1,512	1,663	1,808
3,600	802	1,158	1,359	1,518	1,670	1,815
3,650	810	1,169	1,371	1,532	1,685	1,832
3,700	819	1,181	1,386	1,548	1,703	1,851
3,750	828	1,194	1,401	1,565	1,721	1,871
3,800	836	1,206	1,416	1,581	1,739	1,891
3,850	845	1,219	1,430	1,598	1,758	1,911
3,900	854	1,232	1,445	1,614	1,776	1,930
3,950	863	1,244	1,460	1,631	1,794	1,950
4,000	872	1,257	1,475	1,647	1,812	1,970
4,050	879	1,267	1,487	1,661	1,827	1,986
4,100	882	1,272	1,491	1,665	1,832	1,991
4,200	889	1,280	1,499	1,675	1,842	2,003
4,250	893	1,285	1,504	1,680	1,848	2,008
4,300	896	1,289	1,508	1,684	1,853	2,014
4,350	900	1,293	1,512	1,689	1,858	2,020
4,400	903	1,297	1,517	1,694	1,863	2,025
4,450	907	1,302	1,521	1,699	1,869	2,031
4,500	910	1,306	1,525	1,703	1,874	2,037
4,550	914	1,310	1,529	1,708	1,879	2,043
4,600	917	1,315	1,534	1,713	1,884	2,048
4,650	921	1,319	1,538	1,718	1,890	2,054
4,700	924	1,324	1,543	1,723	1,896	2,061
4,750	928	1,329	1,548	1,730	1,903	2,068
4,800	932	1,334	1,554	1,736	1,909	2,076
4,850	936	1,339	1,560	1,742	1,916	2,083
4,900	940	1,344	1,565	1,748	1,923	2,091
5,000	947	1,354	1,577	1,761	1,937	2,106
5,050	951	1,360	1,582	1,767	1,944	2,113
5,100	955	1,365	1,588	1,774	1,951	2,121
5,150	958	1,370	1,593	1,780	1,958	2,128
5,200	962	1,375	1,599	1,786	1,965	2,136
5,250	966	1,380	1,605	1,792	1,972	2,143
5,300	970	1,385	1,610	1,799	1,979	2,151
5,350	973	1,390	1,616	1,805	1,985	2,158
5,400	977	1,395	1,622	1,811	1,992	2,166

Monthly Net Income	One Child	Two Children	Three Children	Four Children	Five Children	Six Children
5,450	981	1,400	1,627	1,818	1,999	2,173
5,500	985	1,406	1,633	1,824	2,006	2,181
5,550	988	1,411	1,638	1,830	2,013	2,188
5,600	992	1,416	1,644	1,836	2,020	2,196
5,650	996	1,421	1,650	1,843	2,027	2,203
5,700	1,000	1,426	1,655	1,849	2,034	2,211
5,750	1,004	1,432	1,662	1,856	2,042	2,219
5,850	1,014	1,446	1,678	1,874	2,061	2,241
5,900	1,019	1,453	1,686	1,883	2,071	2,251
5,950	1,024	1,460	1,694	1,892	2,081	2,262
6,000	1,029	1,467	1,702	1,901	2,091	2,273
6,050	1,034	1,474	1,710	1,910	2,101	2,284
6,100	1,039	1,481	1,718	1,919	2,111	2,294
6,150	1,043	1,488	1,726	1,928	2,121	2,305
6,200	1,048	1,495	1,734	1,937	2,130	2,316
6,250	1,053	1,502	1,742	1,946	2,140	2,327
6,300	1,058	1,509	1,750	1,955	2,150	2,337
6,350	1,063	1,516	1,758	1,964	2,160	2,348
6,400	1,068	1,523	1,766	1,973	2,170	2,359
6,450	1,073	1,530	1,774	1,982	2,180	2,370
6,500	1,078	1,537	1,782	1,991	2,190	2,380
6,550	1,083	1,544	1,790	2,000	2,200	2,391
6,650	1,093	1,558	1,806	2,018	2,219	2,413
6,700	1,098	1,565	1,814	2,027	2,229	2,423
6,750	1,103	1,572	1,822	2,036	2,239	2,434
6,800	1,108	1,579	1,830	2,045	2,249	2,445
6,850	1,113	1,586	1,839	2,054	2,259	2,456
6,900	1,118	1,593	1,847	2,063	2,269	2,466
6,950	1,123	1,600	1,855	2,072	2,279	2,477
7,000	1,128	1,607	1,863	2,081	2,289	2,488
7,050	1,133	1,614	1,871	2,090	2,299	2,498
7,100	1,138	1,620	1,879	2,099	2,308	2,509
7,150	1,142	1,627	1,887	2,108	2,318	2,520
7,200	1,147	1,634	1,895	2,117	2,328	2,531
7,250	1,152	1,641	1,903	2,125	2,338	2,541
7,300	1,157	1,648	1,911	2,134	2,348	2,552
7,350	1,162	1,655	1,919	2,143	2,358	2,563
7,400	1,167	1,662	1,927	2,152	2,368	2,574
7,500	1,175	1,673	1,939	2,166	2,383	2,590
7,550	1,178	1,678	1,944	2,172	2,389	2,597
7,600	1,181	1,682	1,949	2,177	2,395	2,603
7,650	1,185	1,687	1,954	2,183	2,401	2,610
7,700	1,188	1,691	1,959	2,188	2,407	2,616
7,750	1,191	1,695	1,964	2,194	2,413	2,623
7,800	1,194	1,700	1,969	2,199	2,419	2,630
7,850	1,197	1,704	1,974	2,205	2,425	2,636
7,900	1,201	1,709	1,979	2,210	2,431	2,643
7,950	1,204	1,713	1,984	2,216	2,438	2,650

Monthly Net Income	One Child	Two Children	Three Children	Four Children	Five Children	Six Children
8,000	1,207	1,718	1,989	2,222	2,444	2,656
8,050	1,210	1,722	1,994	2,227	2,450	2,663
8,100	1,214	1,726	1,999	2,233	2,456	2,670
8,150	1,217	1,731	2,004	2,238	2,462	2,676
8,200	1,220	1,735	2,009	2,244	2,468	2,683
8,300	1,227	1,744	2,019	2,255	2,480	2,696
8,350	1,230	1,749	2,024	2,260	2,486	2,703
8,400	1,233	1,753	2,029	2,266	2,493	2,709
8,450	1,236	1,758	2,034	2,271	2,499	2,716
8,500	1,239	1,762	2,039	2,277	2,505	2,723
8,550	1,243	1,766	2,043	2,283	2,511	2,729
8,600	1,246	1,771	2,048	2,288	2,517	2,736
8,650	1,249	1,775	2,053	2,294	2,523	2,743
8,700	1,252	1,780	2,058	2,299	2,529	2,749
8,750	1,256	1,784	2,063	2,305	2,535	2,756
8,800	1,259	1,789	2,068	2,310	2,541	2,762
8,850	1,262	1,793	2,073	2,316	2,547	2,769
8,900	1,265	1,797	2,078	2,321	2,554	2,776
8,950	1,268	1,802	2,083	2,327	2,560	2,782
9,000	1,272	1,806	2,088	2,332	2,566	2,789
9,050	1,275	1,811	2,093	2,338	2,572	2,796
9,150	1,281	1,820	2,103	2,349	2,584	2,809
9,200	1,285	1,824	2,108	2,355	2,590	2,815
9,250	1,288	1,829	2,113	2,360	2,596	2,822
9,300	1,291	1,833	2,118	2,366	2,602	2,829
9,350	1,294	1,837	2,123	2,371	2,608	2,835
9,400	1,297	1,842	2,128	2,377	2,615	2,842
9,450	1,301	1,846	2,133	2,382	2,621	2,849
9,500	1,304	1,851	2,138	2,388	2,627	2,855
9,550	1,307	1,855	2,143	2,394	2,633	2,862
9,600	1,309	1,857	2,145	2,396	2,635	2,865
9,650	1,310	1,859	2,146	2,397	2,637	2,866
9,700	1,312	1,860	2,147	2,398	2,638	2,867
9,750	1,313	1,861	2,148	2,399	2,639	2,869
9,800	1,314	1,863	2,149	2,401	2,641	2,870
9,850	1,315	1,864	2,150	2,402	2,642	2,872
9,950	1,318	1,867	2,152	2,404	2,645	2,875
10,000	1,319	1,868	2,154	2,406	2,646	2,876
10,050	1,321	1,870	2,155	2,407	2,647	2,878
10,100	1,322	1,871	2,156	2,408	2,649	2,879
10,150	1,323	1,873	2,157	2,409	2,650	2,881
10,200	1,325	1,874	2,158	2,410	2,652	2,882
10,250	1,326	1,876	2,159	2,412	2,653	2,884
10,300	1,327	1,877	2,160	2,413	2,654	2,885
10,350	1,329	1,878	2,161	2,414	2,656	2,887
10,400	1,330	1,880	2,162	2,415	2,657	2,888
10,450	1,331	1,881	2,164	2,417	2,658	2,890
10,500	1,333	1,883	2,165	2,418	2,660	2,891

Monthly Net Income	One Child	Two Children	Three Children	Four Children	Five Children	Six Children
10,550	1,334	1,884	2,166	2,419	2,661	2,893
10,600	1,335	1,885	2,167	2,420	2,662	2,894
10,650	1,337	1,887	2,168	2,422	2,664	2,895
10,700	1,338	1,888	2,169	2,423	2,665	2,897
10,800	1,341	1,891	2,171	2,425	2,668	2,900
10,850	1,342	1,892	2,172	2,427	2,669	2,901
10,900	1,343	1,894	2,173	2,428	2,671	2,903
10,950	1,345	1,895	2,175	2,429	2,672	2,904
11,000	1,346	1,897	2,176	2,430	2,673	2,906
11,050	1,347	1,898	2,177	2,431	2,675	2,907
11,100	1,348	1,900	2,178	2,433	2,676	2,909
11,150	1,350	1,901	2,179	2,434	2,677	2,910
11,200	1,351	1,902	2,180	2,435	2,679	2,912
11,250	1,352	1,904	2,181	2,436	2,680	2,913
11,300	1,354	1,905	2,182	2,438	2,681	2,915
11,350	1,355	1,907	2,183	2,439	2,683	2,916
11,400	1,356	1,908	2,184	2,440	2,684	2,918
11,450	1,358	1,909	2,186	2,441	2,685	2,919
11,500	1,359	1,911	2,187	2,443	2,687	2,921
11,600	1,362	1,914	2,189	2,445	2,689	2,923
11,650	1,363	1,915	2,190	2,446	2,691	2,925
11,700	1,365	1,918	2,193	2,449	2,694	2,929
11,750	1,370	1,924	2,200	2,458	2,703	2,939
11,800	1,374	1,930	2,207	2,466	2,712	2,948
11,850	1,379	1,937	2,215	2,474	2,721	2,958
11,900	1,383	1,943	2,222	2,482	2,730	2,968
11,950	1,387	1,949	2,229	2,490	2,739	2,978
12,000	1,392	1,956	2,237	2,498	2,748	2,987
12,050	1,396	1,962	2,244	2,507	2,757	2,997
12,100	1,401	1,968	2,251	2,515	2,766	3,007
12,150	1,405	1,975	2,259	2,523	2,775	3,017
12,200	1,410	1,981	2,266	2,531	2,784	3,026
12,250	1,414	1,987	2,273	2,539	2,793	3,036
12,300	1,418	1,993	2,280	2,547	2,802	3,046
12,350	1,423	2,000	2,288	2,555	2,811	3,056
12,450	1,432	2,012	2,302	2,572	2,829	3,075
12,500	1,436	2,019	2,310	2,580	2,838	3,085
12,550	1,441	2,025	2,317	2,588	2,847	3,095
12,600	1,445	2,031	2,324	2,596	2,856	3,104
12,650	1,449	2,038	2,332	2,604	2,865	3,114
12,700	1,454	2,044	2,339	2,613	2,874	3,124
12,750	1,458	2,050	2,346	2,621	2,883	3,134
12,800	1,463	2,056	2,354	2,629	2,892	3,143
12,850	1,467	2,063	2,361	2,637	2,901	3,153
12,900	1,472	2,069	2,368	2,645	2,910	3,163
12,950	1,476	2,075	2,375	2,653	2,919	3,173
13,000	1,480	2,082	2,383	2,662	2,928	3,182
13,050	1,485	2,088	2,390	2,670	2,937	3,192

Monthly Net Income	One Child	Two Children	Three Children	Four Children	Five Children	Six Children
13,100	1,489	2,094	2,397	2,678	2,946	3,202
13,150	1,494	2,101	2,405	2,686	2,955	3,212
13,250	1,503	2,113	2,419	2,702	2,973	3,231
13,300	1,507	2,119	2,427	2,710	2,982	3,241
13,350	1,512	2,126	2,434	2,719	2,990	3,251
13,400	1,516	2,132	2,441	2,727	2,999	3,260
13,450	1,520	2,138	2,448	2,735	3,008	3,270
13,500	1,525	2,145	2,456	2,743	3,017	3,280
13,550	1,529	2,151	2,463	2,751	3,026	3,290
13,600	1,534	2,157	2,470	2,759	3,035	3,299
13,650	1,538	2,163	2,478	2,768	3,044	3,309
13,700	1,543	2,170	2,485	2,776	3,053	3,319
13,750	1,547	2,176	2,492	2,784	3,062	3,329
13,800	1,551	2,182	2,500	2,792	3,071	3,338
13,850	1,556	2,189	2,507	2,800	3,080	3,348
13,900	1,560	2,195	2,514	2,808	3,089	3,358
13,950	1,565	2,201	2,521	2,817	3,098	3,368
14,000	1,569	2,208	2,529	2,825	3,107	3,377
14,100	1,578	2,220	2,543	2,841	3,125	3,397
14,150	1,582	2,226	2,551	2,849	3,134	3,407
14,200	1,587	2,233	2,558	2,857	3,143	3,416
14,250	1,591	2,239	2,565	2,865	3,152	3,426
14,300	1,596	2,245	2,573	2,874	3,161	3,436
14,350	1,600	2,252	2,580	2,882	3,170	3,446
14,400	1,605	2,258	2,587	2,890	3,179	3,455
14,450	1,609	2,264	2,595	2,898	3,188	3,465
14,500	1,614	2,271	2,602	2,906	3,197	3,475
14,550	1,618	2,277	2,609	2,914	3,206	3,485
14,600	1,622	2,283	2,616	2,923	3,215	3,495
14,650	1,627	2,289	2,624	2,931	3,224	3,504
14,700	1,631	2,296	2,631	2,939	3,233	3,514
14,750	1,636	2,302	2,638	2,947	3,242	3,524
14,800	1,640	2,308	2,646	2,955	3,251	3,534
14,900	1,649	2,321	2,660	2,972	3,269	3,553
14,950	1,653	2,327	2,668	2,980	3,278	3,563
15,000	1,658	2,334	2,675	2,988	3,287	3,573
15,050	1,662	2,340	2,682	2,996	3,296	3,582
15,100	1,667	2,346	2,689	3,004	3,305	3,592
15,150	1,671	2,352	2,697	3,012	3,314	3,602
15,200	1,676	2,359	2,704	3,020	3,322	3,612
15,250	1,680	2,365	2,711	3,029	3,331	3,621
15,300	1,684	2,371	2,719	3,037	3,340	3,631
15,350	1,689	2,378	2,726	3,045	3,349	3,641
15,400	1,693	2,384	2,733	3,053	3,358	3,651
15,450	1,698	2,390	2,741	3,061	3,367	3,360
15,500	1,702	2,397	2,748	3,069	3,376	3,670
15,550	1,707	2,403	2,755	3,078	3,385	3,680
15,600	1,711	2,409	2,762	3,086	3,394	3,690

Monthly Net Income	One Child	Two Children	Three Children	Four Children	Five Children	Six Children
15,650	1,716	2,415	2,770	3,094	3,403	3,699
15,750	1,724	2,428	2,784	3,110	3,421	3,719
15,800	1,729	2,434	2,792	3,118	3,430	3,729
15,850	1,733	2,441	2,799	3,126	3,439	3,738
15,900	1,738	2,447	2,806	3,135	3,448	3,748
15,950	1,742	2,453	2,814	3,143	3,457	3,758
16,000	1,747	2,460	2,821	3,151	3,466	3,768
16,050	1,751	2,466	2,828	3,159	3,475	3,777
16,100	1,755	2,472	2,836	3,167	3,484	3,787
16,150	1,760	2,478	2,843	3,175	3,493	3,797
16,200	1,764	2,485	2,850	3,184	3,502	3,807
16,250	1,769	2,491	2,857	3,192	3,511	3,816
16,300	1,773	2,497	2,865	3,200	3,520	3,826
16,350	1,778	2,504	2,872	3,208	3,529	3,836
16,400	1,782	2,510	2,879	3,216	3,538	3,846
16,450	1,786	2,516	2,887	3,224	3,547	3,855
16,550	1,795	2,529	2,901	3,241	3,565	3,875
16,600	1,800	2,535	2,909	3,249	3,574	3,885
16,650	1,804	2,541	2,916	3,257	3,583	3,894
16,700	1,809	2,548	2,923	3,265	3,592	3,904
16,750	1,813	2,554	2,930	3,273	3,601	3,914
16,800	1,817	2,560	2,938	3,281	3,610	3,924
16,850	1,822	2,567	2,945	3,290	3,619	3,933
16,900	1,826	2,573	2,952	3,298	3,628	3,943
16,950	1,831	2,579	2,960	3,306	3,637	3,953
17,000	1,835	2,585	2,967	3,314	3,646	3,963
17,050	1,840	2,592	2,974	3,322	3,655	3,972
17,100	1,844	2,598	2,982	3,330	3,663	3,982
17,150	1,849	2,604	2,989	3,339	3,672	3,992
17,200	1,853	2,611	2,996	3,347	3,681	4,002
17,250	1,857	2,617	3,003	3,355	3,690	4,011
17,300	1,862	2,623	3,011	3,363	3,699	4,021
17,400	1,871	2,636	3,025	3,379	3,717	4,041
17,450	1,875	2,642	3,033	3,388	3,726	4,050
17,500	1,880	2,648	3,040	3,396	3,735	4,060
17,550	1,884	2,655	3,047	3,404	3,744	4,070
17,600	1,888	2,661	3,055	3,412	3,753	4,080
17,650	1,893	2,667	3,062	3,420	3,762	4,089
17,700	1,897	2,674	3,069	3,428	3,771	4,099
17,750	1,902	2,680	3,077	3,436	3,780	4,109
17,800	1,906	2,686	3,084	3,445	3,789	4,119
17,850	1,911	2,693	3,091	3,453	3,798	4,129
17,900	1,915	2,699	3,098	3,461	3,807	4,138
17,950	1,919	2,705	3,106	3,469	3,816	4,148
18,000	1,924	2,711	3,113	3,477	3,825	4,158
18,050	1,928	2,718	3,120	3,485	3,834	4,168
18,100	1,933	2,724	3,128	3,494	3,843	4,177
18,200	1,942	2,737	3,142	3,510	3,861	4,197

Monthly Net Income	One Child	Two Children	Three Children	Four Children	Five Children	Six Children
18,250	1,946	2,743	3,150	3,518	3,870	4,207
18,300	1,951	2,749	3,157	3,526	3,879	4,216
18,350	1,955	2,756	3,164	3,534	3,888	4,226
18,400	1,959	2,762	3,171	3,543	3,897	4,236
18,450	1,964	2,768	3,179	3,551	3,906	4,246
18,500	1,968	2,774	3,186	3,559	3,915	4,255
18,550	1,973	2,781	3,193	3,567	3,924	4,265
18,600	1,977	2,787	3,201	3,575	3,933	4,275
18,650	1,982	2,793	3,208	3,583	3,942	4,285
18,700	1,986	2,800	3,215	3,591	3,951	4,294
18,750	1,990	2,806	3,223	3,600	3,960	4,304
18,800	1,995	2,812	3,230	3,608	3,969	4,314
18,850	1,999	2,819	3,237	3,616	3,978	4,324
18,900	2,004	2,825	3,244	3,624	3,987	4,333
18,950	2,008	2,831	3,252	3,632	3,995	4,343
19,050	2,017	2,844	3,266	3,649	4,013	4,363
19,100	2,021	2,850	3,274	3,657	4,022	4,372
19,150	2,026	2,856	3,281	3,665	4,031	4,382
19,200	2,030	2,863	3,288	3,673	4,040	4,392
19,250	2,035	2,869	3,296	3,681	4,049	4,402
19,300	2,039	2,875	3,303	3,689	4,058	4,411
19,350	2,044	2,882	3,310	3,698	4,067	4,421
19,400	2,048	2,888	3,318	3,706	4,076	4,431
19,450	2,053	2,894	3,325	3,714	4,085	4,441
19,500	2,057	2,900	3,332	3,722	4,094	4,450
19,550	2,061	2,907	3,339	3,730	4,103	4,460
19,600	2,066	2,913	3,347	3,738	4,112	4,470
19,650	2,070	2,919	3,354	3,746	4,121	4,480
19,700	2,075	2,926	3,361	3,755	4,130	4,489
19,750	2,079	2,932	3,369	3,763	4,139	4,499
19,850	2,088	2,945	3,383	3,779	4,157	4,519
19,900	2,092	2,951	3,391	3,787	4,166	4,528
19,950	2,097	2,957	3,398	3,795	4,175	4,538
20,000	2,101	2,963	3,405	3,804	4,184	4,548

The share of the custodial parent is presumed to be spent directly for the benefit of the child.

Source: SL 1989, ch 220, § 2; SL 1997, ch 154, § 1; SL 2001, ch 133, § 1; SL 2009, ch 130, § 1.

25-7-6.3. Determination of parents' monthly net income – Sources of income. The monthly net income of each parent shall be determined by the parent's gross income less allowable deductions, as set forth in this chapter . The monthly gross income of each parent includes amounts received from the following sources:

- (1) Compensation paid to an employee for personal services, whether salary, wages, commissions, bonus, or otherwise designated;
- (2) Self-employment income including gain, profit, or loss from a business, farm, or profession;
- (3) Periodic payments from pensions or retirement programs, including social security or veteran's benefits, disability payments, or insurance contracts;
- (4) Interest, dividends, rentals, royalties, or other gain derived from investment of capital assets;
- (5) Gain or loss from the sale, trade, or conversion of capital assets;
- (6) Unemployment insurance benefits;
- (7) Worker's compensation benefits; and
- (8) Benefits in lieu of compensation including military pay allowances.

Overtime wages, commissions, and bonuses may be excluded if the compensation is not a regular and recurring source of income for the parent. Income derived from seasonal employment shall be annualized to determine a monthly average income.

Source: SL 1989, ch 220, § 3; SL 2001, ch 133, § 5; SL 2009, ch 130, § 2.

25-7-6.4. Rebuttable presumption of employment at minimum wage. Except in cases of physical or mental disability, it is presumed for the purposes of determination of child support that a parent is capable of being employed at the minimum wage, including while incarcerated, and the parent's child support obligation shall be computed at a rate not less than full-time employment at the state minimum wage. Evidence to rebut this presumption may be presented by either parent.

Source: SL 1989, ch 220, § 4; SL 2009, ch 130, § 3.

25-7-6.5 Assets considered when income insufficient. If a child's needs are not being met through the income of the parents, assets shall be considered. If the parents have savings, life insurance or other assets in amounts unrelated to income, these holdings shall be considered. The parents' ability to borrow may be used to determine financial ability.

Source: SL 1989, ch 220, § 5.

25-7-6.6 Profits or losses shown on federal income tax schedules as gross income -- Court allowance of deduction. Gross income from a business, profession, farming, rentals, royalties, estates, trusts or other sources, are the net profits or gain, or net losses shown on any or all schedules filed as part of the parents' federal income tax returns or as part of any federal income tax returns for any business with which he is associated, except that the court may allow or disallow deductions for federal income taxation purposes which do not require the expenditure of cash, including, but not limited to, depreciation or depletion allowances, and may further consider the extent to which household expenses, automobile expenses, and related items are deductible or partially deductible for income tax purposes. In the event a court disallows depreciation, it may consider necessary capital expenditures which enhance the parent's current income for child support purposes.

Source: SL 1989, ch 220, § 6.

25-7-6.7 Allowable deductions from monthly gross income. Deductions from monthly gross income shall be allowed as follows:

- (1) Income taxes payable based on the applicable tax rate for a single taxpayer with one withholding allowance and a monthly payroll period rather than the actual tax rate;
- (2) Social Security and medicare taxes based on the applicable tax rate for an employee or a self-employed taxpayer;
- (3) Contributions to an IRS qualified retirement plan not exceeding ten percent of gross income;
- (4) Actual business expenses of an employee, incurred for the benefit of his employer, not reimbursed;
- (5) Payments made on other support and maintenance orders.

Source: SL 2005

25-7-6.8 Schedule used for child support obligations -- Sex of obligor disregarded. The schedule in § 25-7-6.2 shall be used to set child support obligations, and shall be applied regardless of the sex of the obligor.

Source: SL 1989, ch 220, § 8.

25-7-6.9 Income above the schedule — Child support adjusted to appropriate level. For a combined net income above the schedule in § 25-7-6.2, the child support obligation shall be established at an appropriate level, taking into account the actual needs and standard of living of the child.

Source: SL 1989, ch 220, § 9.

25-7-6.10. Factors considered for deviation from schedule. Deviation from the schedule in § 25-7-6.2 shall be considered if raised by either party and made only upon the entry of specific findings based upon any of the following factors:

- (1) The income of a subsequent spouse or contribution of a third party to the income or expenses of that parent but only if the application of the schedule works a financial hardship on either parent;
- (2) Any financial condition of either parent which would make application of the schedule inequitable. If the total amount of the child support obligation, including any adjustments for health insurance and child care costs, exceeds fifty percent of the obligor's monthly net income, it shall be presumed that the amount of the obligation imposes a financial hardship on the obligor. This presumption may be rebutted based upon other factors set forth in this section;
- (3) Any necessary education or health care special needs of the child;
- (4) The effect of agreements between the parents regarding extra forms of support for the direct benefit of the child;
- (5) The obligation of either parent to provide for subsequent natural children, adopted children, or stepchildren. However, an existing support order may not be modified solely for this reason; or
- (6) The voluntary and unreasonable act of a parent which causes the parent to be unemployed or underemployed, unless the reduction of income is due to incarceration.

Source: SL 1989, ch 220, § 10; SL 1997, ch 154, § 3; SL 2001, ch 133, § 7; SL 2005, ch 134, § 10; SL 2007, ch 158, § 1; SL 2009, ch 130, § 4.

25-7-6.11 Periodic adjustments in support. The court setting the support shall have the authority to require periodic adjustments in the support.

Source: SL 1989, ch 220, § 11.

25-7-6.12 Review and amendment of schedule. The Governor shall, commencing in the year 2000, establish quadrennially a commission on child support. The commission shall review the provisions of this chapter, shall report its findings to the Governor and the Legislature, and may propose amendment thereof to the Legislature.

Source: SL 1989, ch 220, § 12; 1997, ch 154, § 5.

25-7-6.13 Modification of prior orders of support. All orders for support entered and in effect prior to July 1, 2009 may be modified in accordance with this chapter without requiring a showing of a change in circumstances from the entry of the order.

Source: SL 2005 Amendments. The 1997 amendment substituted "July 1, 1997" for July 1, 1989"; and substituted "this chapter" for "the schedule." The 2001 amendment substituted "July 1, 2001" for "July 1, 1997." The 2005 amendment substituted "July 1, 2005" for "July 1, 2001." The 2009 amendment substituted "July 1, 2009" for "July 1, 2005."

25-7-6.14. Abatement of child support. If the child resides with the obligor ten or more nights in a month pursuant to a custody order, the court may, if deemed appropriate under the circumstances, grant an abatement of not less than thirty-eight percent nor more than sixty-six percent of the basic child support obligation for the nights the child resides with the obligor. The order granting the abatement shall specify the number of nights for which the abatement is allowed and the amount of the abatement. In deciding whether an abatement is appropriate, the court shall consider whether it would have a substantial negative effect on the child's standard of living. The court shall allow the abatement to the obligor in the month in which the parenting time is ordered or apportion the abatement over a period of twelve months. It shall be presumed that the parenting time is exercised. If the parenting time exercised substantially deviates from the parenting time ordered, either party may petition the court for modification of the support order without showing any other change in circumstances.

Source: SL 1989, ch 220, § 14; SL 1997, ch 154, § 7; SL 2001, ch 133, § 2; SL 2005, ch 134, § 3; SL 2009, ch 130, § 6.

25-7-6.15 Allocation of travel costs by court. If travel costs are substantial due to the distance between the parents, the court may order the allocation of such costs, taking into consideration the circumstances of the respective parties as well as which parent moved and the reason that the move was made.

Source: SL 1989, ch 220, § 15; 1997, ch 154, § 8. Amendments. The 1997 amendment inserted “the circumstances of the respective parties as well as” and substituted “reason that the move was made” for “reason therefore.”

25-7-6.16. Insurance – Computation of costs – Apportioned between parents. The court shall enter an order addressing how the child's health care needs will be met by medical support to be provided by one or both of the parents. The medical support order shall include a provision for medical insurance if the insurance is accessible for the child and available to a parent at reasonable cost. Medical insurance is considered accessible if a medical insurance benefit plan is available and provides coverage for the child residing within the geographic area covered by the insurance policy. Medical insurance is considered reasonable in cost if the cost attributable to the child is equal to or less than eight percent of the parent's net income as determined under this chapter, and the amount shall be specified in the order for support.

The cost of the insurance attributable to the child is the cost of adding the child to existing coverage, the difference between self-only coverage and family coverage, or the cost of private medical insurance for the child. The cost attributable to the child under family coverage is the difference between self-only coverage and family coverage divided by the number of individuals, excluding the parent, enrolled in the family coverage. The cost so computed shall be apportioned between the parents on the basis of income or income imputed as provided in this chapter. If one parent pays the entire amount, that parent shall either be reimbursed by the other parent for that parent's portion of the payment or shall receive a credit against his or her support obligation, whichever is appropriate. Any additional, reasonable health care costs, including medical, optometric, dental or orthodontic, or counseling costs for each minor child which exceed two hundred fifty dollars in any year and are not covered by insurance, shall be apportioned between the parents in proportion to the support obligation of each parent. The parent that has primary physical custody of the child is responsible for the first two hundred fifty dollars of health care costs each calendar year.

Source: SL 1989, ch 220, § 16; SL 1997, ch 154, § 9; SL 2009, ch 130, § 7.

25-7-6.17 Large adjustment in support phased in. In cases resulting in an adjustment of more than twenty-five percent in the support award, the court may phase in the adjustment over time.

Source: SL 1989, ch 220, § 17.

25-7-6.18 Order allocating child care expenses. The court may enter an order allocating the reasonable child care expenses for the child, which are due to employment of either parent, job search of either parent, or the training or education of either parent necessary to obtain a job or enhance earning potential. The court may consider whether the federal child care tax credit for such minor child is available as a benefit to the custodial parent. If the federal child care tax credit is available to the custodial parent, it shall be calculated at twenty-five percent of the eligible expense.

Source: SL 1997, ch 154, § 2.

25-7-6.19 Credit for child support arrearages for parent with primary physical custody during period of custody. Notwithstanding the provisions of § 25-7A-17 or § 25-7-7.3, if, by agreement of the parties, the obligor had primary physical custody of the child for more than four consecutive months, the court may credit the obligor for child support arrearages which accumulated during the period the obligor had actual physical custody of the child.

Source: SL 1997, ch 154, § 10.

25-7-6.20. Lien on payment or installment of support under an order of support--Notice. Any payment or installment of support under an order for support, as defined by § 25-7A-1, whether entered by a court or an administrative entity of this state or any other state or jurisdiction, which is unpaid after the date it is due, is a lien by operation of law, with the full force and effect and attributes of a lien of this state, including enforceability, and is entitled, as a lien, to full faith and credit in this state.

In order to preserve such lien, any Title IV-D agency may perfect and enforce a lien authorized by this section in the same manner as liens are perfected for the specific type of real and personal property upon which the lien is claimed. The priority of the lien shall be established as of its date of filing. The register of deeds office is not entitled to any fee for registering or filing any lien under this section.

However, no lien is attached to any real or personal property which the obligor has transferred to another person who has purchased the property in good faith, for value, prior to the time that the Title IV-D agency's lien on the property has been perfected in the manner provided by law.

Source: SL 1997, ch 155, § 1; SL 1998, ch 156, § 1.

25-7-6.21. Credit on monthly support obligation for social security or veteran's dependent benefits. If the child receives social security or veteran's dependent benefits as a result of the obligor's disability, or social security retirement benefits from the obligor, the obligor is entitled to a credit to the amount of the monthly support obligation.

Source: SL 2005, ch 134, § 1.

25-7-6.22. Presumption second job income not to be considered in establishing support obligation – Rebuttal of presumption. If a parent is employed full-time at a rate of pay that equals or exceeds the state's minimum wage, it is presumed that a parent's second job income is not to be considered in establishing a support obligation. This presumption may be rebutted by evidence that the income source was available to pay expenses related to the child when the parent initially became obligated for the support of the child pursuant to § 25-7-6.1.

Source: SL 2005, ch 134, § 5; SL 2009, ch 130, § 8.

25-7-6.23. Offset of support obligation when each parent has primary physical custody of at least one child--Computation--Assistance from department. If the parents have two or more children between them and each parent has primary physical custody of at least one child, the child support obligation shall be determined by computing the amount of each parent's respective support obligation for the children in the other parent's physical custody, and the support obligations shall be offset in determining a monthly support obligation. If one or more of the children are receiving assistance from the department as provided in § 28-7A-7, and in lieu of the offset, each parent shall be obligated to pay the respective support obligation amount to the other parent.

Source: SL 2005, ch 134, § 6.

25-7-6.24. Change of physical custody of child without court approval--Order to pay child support. If the parents of a child have agreed to a change in the physical custody of the child without the court's approval, the parent who relinquished physical custody may be ordered to pay child support to the parent who gained physical custody of the child even though the custody order has not been modified to reflect the change in custody.

Source: SL 2005, ch 134, § 11.

25-7-6.25. Form to request reimbursement of medical or health care costs from parent--Small claims procedure. The department shall create and distribute a standardized form to allow a parent, guardian, or other custodian to request reimbursement of any medical or health care costs from the responsible parent. A parent, guardian, or custodian shall also be entitled to use the small claims procedure of chapter 15-39 as a means to collect unreimbursed medical or health care costs from the responsible parent.

Source: SL 2005, ch 134, § 12.

25-7-6.26. Effect of failure to furnish financial information. If a parent in a child support establishment or modification proceeding fails to furnish income or other financial information, the parent is in default, and that parent's income for purposes of determining child support shall be computed at a rate not less than the most recent annual pay standard as reported by the Department of Labor.

Source: SL 2009, ch 130, § 9.

25-7-6.27. Shared parenting child support cross credit. If the parents have agreed in writing to a detailed shared parenting plan which provides that the child will reside no less than one hundred eighty nights per calendar year in each parent's home, and that the parents will share the duties and responsibilities of parenting the child and the expenses of the child in proportion to their incomes, and the shared parenting plan has been incorporated in the custody order, the court may, if deemed appropriate under the circumstances, grant a cross credit on the amount of the child support obligation based on the number of nights the child resides with each parent. The shared parenting child support cross credit shall be calculated as follows:

- (1) Multiply the parents' combined child support obligation under the schedule by 1.5 to establish the parents' combined shared parenting child support obligation;
- (2) Multiply the combined shared parenting child support obligation by each parent's percentage share of the parents' combined net incomes to establish each parent's shared parenting child support obligation;
- (3) Multiply each parent's shared parenting child support obligation by the percentage of nights the child resides with each parent based on a three hundred sixty-five day calendar year to establish each parent's prorated shared parenting child support obligation;
- (4) Offset the parents' prorated shared parenting child support obligations; and
- (5) The parent with the larger prorated shared parenting child support obligation shall pay the difference between these amounts.

In deciding whether a shared parenting child support cross credit is appropriate, the court shall consider whether it would have a substantial negative effect on the child's standard of living.

It is presumed that the parenting time is exercised. If the parenting time exercised substantially deviates from the parenting time ordered, either party may petition the court for a modification of the support order without showing any other change in circumstances.

Source: SL 2009, ch 130, § 10.

25-7-6.28. Child residence with parent for a night--Residence for days. For the purposes of §§ 25-7-6.14 and 25-7-6.27, a child resides with a parent for a night if the child sleeps:

- (1) At the residence of that parent at night, whether or not the parent is present; or
- (2) In the company of the parent, if the child does not sleep at a parent's residence.

If, in a calendar year, due to a parent's nighttime work schedule, a child resides with a parent for days, but not nights, the court may condition the abatement on the required days rather than nights. In those instances, on a school day, the child is treated as residing at the primary residence registered with the school.

Source: SL 2009, ch 130, § 11.

25-7-7.1 Continuation of duty to support. A parent's duty to support his child continues if the child is placed with the department of social services for custody, for temporary guardianship or for care and placement.

Source: SL 1987, ch 189, § 1.

25-7-7.2 Expenses incurred on child's behalf -- Fee schedule. The secretary of social services may, pursuant to chapter 1-26, establish a fee schedule for all expenses incurred on a child's behalf while in the care of the department. Such fees may not exceed actual costs.

Source: SL 1987, ch 189, § 2.

25-7-7.3 Past due support payments not subject to modification -- Exception. Any past due support payments are not subject to modification by a court or administrative entity of this state, except those accruing in any period in which there is pending a petition for modification of the support obligation, but only from the date that notice of hearing of the petition has been given to the obligee, the obligor, and any other parties having an interest in such matter.

Source: SL 1987, ch 190.

25-7-7.4 Unpaid payment or installment of support as judgment. Any payment or installment of support under an order for support, as defined by § 25-7A-1, whether entered by a court or an administrative entity of this state or of any other state or jurisdiction, which is unpaid after the date it is due, is a judgment by operation of law, with the full force, effect and attributes of a judgment of this state, including enforceability, and is entitled, as a judgment, to full faith and credit in this state.

Source: SL 1987, ch 191, § 1.

25-7-7.5 Filing of sworn statement or certificate of unpaid support due -- Effective date of judgment. In order to preserve such judgment against subsequent mortgages, purchasers or judgment creditors for value and without actual notice of the lien on any property situated in a county, the support obligee or the secretary of the department of social services may give notice of the judgment by filing in the office of the clerk of courts of the county in which the order for support is filed, or in any county in which a transcript of the order is filed and docketed, a sworn statement or certificate showing the amount of unpaid support due under the order. The clerk of courts shall file and docket the statement or certificate with the order for support or transcript thereof, as evidence of the amount of the judgment for support, as provided in chapter 15-16. The judgment shall be effective from the date and time of docketing the statement or certificate in the office of the clerk of courts.

Source: SL 1987, ch 191, § 2.

25-7-7.6. Court may order payment of arrearages. If, at any time, unpaid child support arrearages exist, the court may order the support obligor to pay towards the arrearages such sums as are ordered by the court, in addition to any other remedies of the support obligee.

Source: SL 2001, ch 133, § 4.

25-7-8. Stepparent's duty to support spouse's children. A stepparent shall maintain his spouse's children born prior to their marriage and is responsible as a parent for their support and education suitable to his circumstances, but such responsibility shall not absolve the natural or adoptive parents of the children from any obligation of support.

25-7-10. Support - Liability of parent for necessities supplied to child. If a parent neglects to provide articles necessary for his child who is under his charge, according to his circumstances, a third person may in good faith supply such necessities and recover the reasonable value thereof from the parent.

Source: SDC 1939, Section 14.0313.

CHAPTER 25-7A

COLLECTION OF CHILD SUPPORT

25-7A-21.1. Order establishment case--Limitation on prior-period support obligations or arrearages. In any order establishment case, the obligee is limited to a prior-period support obligation or arrearage not exceeding three years before either the date of application with any Title IV-D agency, the date of filing with a court of competent jurisdiction, or the date of a written demand served personally or by registered or certified mail, return receipt requested, upon the father at his last known address, whichever occurs earlier.

Source: SL 2005, ch 134, § 9.

25-7A-22. Petition for modification of child support--Hearing--Referee's report – Objections--Service--Objection to modification of report. If the support order was entered in this state and this state maintains continuing exclusive jurisdiction over the support order in accordance with chapter 25-9B, or if the support order was registered in this state and the requirements of § 25-9B-611 or 25-9B-613 are satisfied, an obligor, an obligee, or the assignee may file a petition, on forms prescribed by the department, to increase or decrease child support. For any support order entered or modified after July 1, 1997:

- (1) The order may be modified upon showing a substantial change in circumstances if the petition is filed within three years of the date of the order; or
- (2) The order may be modified without showing any change in circumstances if the petition is filed after three years of the date of the order.

If a petition is filed, the secretary of social services shall file the petition in the office of the clerk of the circuit court where the original order for support is filed. Any response shall also be provided to the petitioning party. The matter shall be set for hearing before a referee who is a member in good standing of the State Bar Association and is appointed by the court, pursuant to statute, and after due notice to all parties by first class mail. The referee shall make a report to the court, recommending the amount of the monthly support obligation of the parent and for medical support.

The referee shall file the report with the court and cause copies thereof to be served by mailing to the parties and the secretary. Any party shall have ten days from the date of service of the report in which to file objections to the report. If a party files an objection, the other party shall have an additional five days from the date of service of the objections to file additional objections. If no objection is filed, the circuit court may thereafter, and without further notice, enter its order. If any objection is filed, the circuit court shall fix a date for hearing on the report, the hearing to be solely on the record established before the referee. The circuit court may thereafter adopt the referee's report, or may modify it, or may reject and remand it with instructions or for further hearing. The secretary shall serve the parent the court's order by certified mail, return receipt requested, at the parent's last known address, and shall file proof of service.

If the circuit court's order modifies the referee's report and no hearing was held before the circuit court before entry of its order, any party has ten days from the date of service of the order in which to file an objection to that modification. If an objection is filed, the circuit court shall fix a date for hearing on the objection and after the hearing shall enter its order. The secretary shall serve the order by certified mail, return receipt requested, at the parent's last known address, and shall file proof of service.

Source: SL 1986, ch 218, § 21; SL 1987, ch 194; SL 1989, ch 175, § 8; SL 1991, ch 213, § 2; SL 1995, ch 144, § 4; SL 1997, ch 155, § 7; SL 2005, ch 134, § 8; SL 2009, ch 130, § 16.

NOTE

The listing of the statutory provisions set forth on the preceding pages is only a partial listing of all the statutes that are related to child support. The practicing attorney should not rely exclusively on this listing of statutes in analyzing child support matters.

FORMER VERSIONS OF CERTAIN CHILD SUPPORT STATUTES

The Deviation statute – 1989 Version, as amended in 1997

25-7-6.10. Factors considered for deviation from schedule. Deviation from the schedule in § 25-7-6.2 shall be considered if raised by either party and made only upon the entry of specific findings based upon any of the following factors:

- (1) The income of a subsequent spouse or contribution of a third party to the income or expenses of that parent but only if the application of the schedule works a financial hardship on either parent;
- (2) Any financial condition of either parent which would make application of the schedule inequitable;
- (3) Whether the federal income tax dependent deduction for such minor child is allocated to the benefit of the support obligor or the custodial parent;
- (4) Any special needs of the child;
- (5) The effect of custody and visitation provisions including whether children share substantial amounts of time with each parent;
- (6) For agreements entered into prior to July 1, 1986, if it is established by clear and convincing evidence, that debts or property were exchanged for child support and it appears equitable to continue such arrangement;
- (7) The effect of agreements between the parents regarding extra forms of support for the direct benefit of the child;
- (8) The obligation of either parent to provide for subsequent natural children or stepchildren. However, an existing support order may not be modified solely for this reason; or
- (9) The voluntary act of either parent which reduces that parent's income.

Source: SL 1989, ch 220, § 10; 1997, ch 154, § 3.

The Deviation statute – 2001 Version

25-7-6.10 Factors considered for deviation from schedule. Deviation from the schedule in § 25-7-6.2 shall be considered if raised by either party and made only upon the entry of specific findings based upon any of the following factors:

- (1) The income of a subsequent spouse or contribution of a third party to the income or expenses of that parent but only if the application of the schedule works a financial hardship on either parent;
- (2) Any financial condition of either parent which would make application of the schedule inequitable;
- (3) The federal income tax consequences arising from claiming the child as a dependant;
- (4) Any special needs of the child;
- (5) For agreements entered into prior to July 1, 1986, if it is established by clear and convincing evidence, that debts or property were exchanged for child support and it appears equitable to continue such arrangement;
- (6) The effect of agreements between the parents regarding extra forms of support for the direct benefit of the child;
- (7) The obligation of either parent to provide for subsequent natural children or stepchildren. However, an existing support order may not be modified solely for this reason; or
- (8) The voluntary act of either parent which reduces that parent's income.

Source: SL 2001

The Abatement Statute – 1989 Version

25-7-6.14. Abatement of portion of child support. An abatement of a portion of the child support may be ordered if a child spends more than twenty-nine consecutive days with the noncustodial parent.

Source: SL 1989, ch 220, § 14.

The Abatement Statute – 1997 Version

25-7-6.14. Abatement of portion of child support. Unless the parties otherwise agree and the agreement is approved by the court, the court may, if deemed appropriate under the circumstances, order an abatement of not less than thirty-eight percent nor more than sixty-six percent of the child support if:

- (1) A child spends ten or more days in a month with the obligor;
- (2) The number of days of visitation and the abatement percentage or amount are specified in the court order; and
- (3) The visitation is actually exercised.

The court shall allow the abatement to the obligor in the month in which the visitation is exercised, unless otherwise ordered.

Source: SL 1989, ch 220, §14; 1997, ch 154, § 7.

The Abatement Statute – 2005 Version

25-7-6.14 Abatement of portion of child support. As used in this section, basic visitation means a parenting plan whereby one parent has physical custody and the other parent has visitation with the child of the parties. In a basic visitation situation, unless the parties otherwise agree and the agreement is approved by the court, the court may, if deemed appropriate under the circumstances, order an abatement of not less than thirty-eight percent nor more than sixty-six percent of the child support if:

- (1) A child spends ten or more days in a month with the obligor; and
- (2) The days of visitation and the abatement amount are specified in the court order.

The court shall allow the abatement to the obligor in the month in which the visitation is exercised, unless otherwise ordered. The abatement shall be pro-rated to the days of visitation. It shall be presumed that the visitation is exercised. If the visitation exercised substantially deviates from the visitation ordered, either party may file a petition for modification without showing any other change in circumstances.

As used in this section, shared responsibility means a parenting plan whereby each parent provides a suitable home for the child of the parties, the court order allows the child to spend at least one hundred twenty days in a calendar year in each home, and the parents have agreed in writing to share the duties, responsibilities, and expenses of parenting, including any expenses for the child's education, recreation, and entertainment activities. In a shared responsibility situation, unless the parties otherwise agree and the agreement is approved by the court, the court may, if deemed appropriate under the circumstances, order a shared responsibility cross credit. The cross credit shall be calculated by multiplying the combined child support obligation using both parents' monthly net incomes by 1.5 to arrive at a shared custody child support obligation. The shared custody child support obligation shall be apportioned to each parent according to his or her net income. A child support obligation is computed for each parent by multiplying that parent's portion of the shared custody child support obligation by the percentage of time the child spends with the other parent. The respective child support obligations are offset, with the parent owing more child support paying the difference between the two amounts. It shall be presumed that the shared responsibility parenting plan is exercised. If the parenting plan exercised substantially deviates from the parenting plan ordered, either party may file a petition for modification without showing any other change in circumstances. The court shall consider each case individually before granting either the basic visitation or shared responsibility adjustment to insure that the adjustment does not place an undue hardship on the custodial parent or have a substantial negative effect on the child's standard of living.

Arrearage Statute for out-of-wedlock children – prior to 2005 amendment

25-8-5. Mother's recovery of support from father—Period for which support recoverable. The mother may recover from the father a reasonable share of the necessary support of a child born out of wedlock.

In the absence of a previous demand in writing served personally or by registered or certified letter addressed to the father at his last known residence, not more than six years' support furnished before bringing an action may be recovered from the father.

RECENT CASES

1. **Dealing with a Simultaneous Award of Alimony.** The issue of “how to deal with a contemporaneous award of alimony” for the purpose of computing net monthly income for application of the child support grid was recently addressed. In particular, in the common scenario where W is awarded child custody and H is contemporaneously ordered to pay W alimony, the matter of incorporating the alimony payment (or not) in applying the child support grid becomes important. The questions are as follows:

1st) Should a monthly award of alimony which H is ordered to pay to W be deducted from his income when computing H’s “net monthly income?”

2nd) Should the monthly award of alimony be included in W’s income in determining her “net monthly income?”

The SD Supreme Court answered “yes” to both questions in *Peterson v. Peterson*, 2000 SD 58, 610 N.W.2d 69. For the answer to the first question, the Court’s opinion was unanimous. The contemporaneous alimony payment is to be deducted from H’s gross income under SDCL 25-7-6.7(6), a conclusion which is readily apparent from reading the statute, particularly section (6) of the statute. [Under the current version of SDCL 25-7-6.7, this is now found as (5)]. For the answer to the second question, the answer may be less obvious and this perhaps explains why the affirmative “yes” answer (for inclusion in W’s income) was delivered by way of a 3-2 vote, with Justices Amundson and Konenkamp dissenting. Although the word “alimony” is not specifically listed in SDCL 25-7-6.3 (a major point relied upon by the dissent), the majority looked at the language of SDCL 25-7-6.6 which includes a reference to gross income as reported on the parent’s federal income tax return to conclude that whatever is to be reported as income on a federal income tax return is to be included as gross income under SDCL 25-7-6.3. This conclusion is further supported by the language of SDCL 25-7-6.6 which picks up income from “other sources.”

In *Christians v. Christians*, 2001 SD 142, 637 N.W.2d 377, the South Dakota Supreme Court held that it was reversible error for the trial court, in its child support determination, not to include wife’s simultaneous award of alimony in the computation of her net monthly income. Under the holding of *Peterson v. Peterson*, 2000 SD 58, 610 N.W.2d 69, for purposes of child support computation, the alimony amount should be deducted from the payor’s income and included in the payee’s income. [Note, the *Christians* case addresses many issues including wife’s successful joinder of the tort intentional infliction of emotional distress, an extensive alimony award, and the valuation of premarital property. These other issues are addressed elsewhere in this book. The only relief which the husband did actually secure on appeal was here – on this issue of inclusion of the alimony payment in the computation of wife’s net monthly income.]

The *Peterson* approach to alimony (deduction to payor and inclusion for payee) was more recently reaffirmed by the South Dakota Supreme Court in *Schabauer v. Schabauer*, 2003 SD 146, 673 N.W.2d 274. ¶¶ 19-21.

Alimony award may not be based upon “equalization of income approach.” Furthermore, child support considerations should not enter into alimony decision (meaning the court should consider *only* spouse’s expenses, not combined with children’s expenses), and that the computation of child support must be made *after* alimony decision with proper accounting for alimony determination (add as income to recipient and subtract from income of payor.) . In *Haanen v. Haanen*, 2009 SD 60, , 769 N.W.2d 836, the trial court awarded W supportive alimony of \$400 per month. In doing so, the court looked at W’s proposed budget (which included expenses for the children), computed child support and then subtracted the child support from W’s budget. Then, comparing the net incomes of H and W, the court awarded W supportive alimony in an amount that was approximately half of the difference. The SD Supreme Court reversed and remanded both the alimony

and child support awards. In connection with the trial court's methodology of giving W half of the difference between the parties' net incomes, the Court held, "Although some jurisdictions allow equalization of income under certain circumstances as a factor in awarding alimony, South Dakota law does not... The purpose of alimony is not to equalize incomes but rather to support the needs and standard of living of the spouse." ¶ 17-18. This opinion also reminds us that children's expenses should not enter into the alimony determination and that child support must be computed *after* the alimony determination, *not before*. Furthermore, in the computation of child support, the alimony award shall be considered as income to the recipient and subtracted from income for the payor in the process of computing net monthly incomes. This decision is unanimous with opinion written by Justice Meierhenry.

2. Income Averaging. In *Hendricksen v. Harris*, 1999 SD 130, 600 N.W.2d 180, the referee utilized income-averaging for the father over a three year period, but did not utilize income-averaging for the mother, instead using simply her current income. The circuit court rejected this and applied income averaging over three years for both parents. The SD Supreme Court declared, "Whether income is best determined by income averaging is a mixed question of fact and law and is reviewed de novo by reviewing courts." And, the trial court was found to have not erred by utilizing the averaging method for both parents.

Income averaging over 4 year period upheld. In *Maxner v. Maxner*, 2007 SD 30, 730 N.W.2d 619, we find a pro se appeal by the husband in a divorce proceeding. The wife did not make an appearance on the appeal. The SD Supreme Court affirmed all aspects of the trial court's ruling in a unanimous opinion by Justice Konenkamp. The Court held, *inter alia*, that the trial court did not error in computing child support for father by averaging father's income over a 4 year time period in lieu of accepting simply the most recent year's figures. ¶ 25.

3. Playing Fast and Loose with Income Reporting. At the time of the parties' divorce in March, 1998, H was ordered, pursuant to the parties' agreement, to pay W the sum of \$1,226 per month for child support for the parties' then four minor children who had not yet become emancipated. (Two of the parties' six children were already over age 18.) The following March, 1999, H sought to reduce his child support alleging that his income was reduced and that there were now only three minor children, with the older of the four having turned 18 already and soon to be graduated from high school. W responded by arguing that no change in circumstances had occurred and that if there were any reduction in income, it was voluntary by H. At the hearing before the referee, H did not complete the financial statement requested and the referee had difficulty in determining H's present income level. The referee then, instead of lowering H's child support level, actually *raised* his child support obligation to \$1,247 (up from the \$1,226) for the remaining three children. In doing this, the referee considered the fact that H sold various stock holdings in July, 1998, realizing \$50,756 in proceeds. The referee annualized this entire amount over a one-year period, thereby boosting H's monthly income up by \$4,229.67. Rather obviously, the referee did not subtract off H's cost basis in the stock. H appealed to the circuit court, but the referee's decision was affirmed. This decision was then appealed to the SD Supreme Court in *Mathis v. Mathis*, 2000 SD 59, 609 N.W.2d 773, which also affirmed in a 4-1 decision, additionally awarding W appellate attorney fees of \$1,329.98. The key to the W's success appears to be that H "was attempting to play 'fast and loose' in his reporting of net income." (Paragraph no. 11, 609 N.W.2d at 776.) The Court further noted that "on several different occasions, [H] would report his income at different amounts depending upon whether the reported amount would benefit him: applying for a loan or getting his child support payments lowered." (Paragraph no. 11, 609 N.W.2d at 776.) The record also contained a loan application, to which H certified that the "the information provided is true and correct," wherein H stated his monthly income at \$4,975 – as compared to his testimony of wages for himself of only \$1000 per month. The majority opinion recognized that the referee and trial court may have committed error, but nonetheless affirmed, finding that H had submitted inadequate justification to support his petition to modify. The Court also noted that, under the circumstances of this case

occurring with a post-1997 decree (1997 being the year of legislative amendments to the child support modification statutes), H's burden was not simply a "change in circumstances," but the more stringent standard of a "substantial change in circumstances" as imposed by SDCL 25-7A-22. There is almost a punitive statement implicit in this opinion, suggesting that H's rough treatment by the lower tribunals in overstating his income through an annualization process which included the cost basis of stock, was warranted because he initiated a proceeding in which he had a very high burden of proof ("substantial change in circumstances") only to play "fast and loose" with financial figures and in failing to be completely forthright in the matter of his own finances. [Justice Sabers dissented, pointing out it was error to annualize the cost basis of the stock which H sold.]

4. Opportunity for Hearing and "Counseling Costs." In an effort to collect expenses related to the children's counseling, dental and pharmacy costs during the years 1991 through 1995, mother submitted an itemized claim for some \$4098.83 and also sought attorneys fees. The original divorce decree included an agreement by father that he would continue the existing medical coverage on the children and that he would "also pay all medical dental, optical and orthodontic expenses not covered because of any deductible or excluded by the insurance coverage." The trial court informed the parties that only 15 minutes had been scheduled for the hearing and there was not time for any testimony. Both parties presented arguments, and the trial court eventually denied the mother's claim. The SD Supreme Court reversed in *Davis v. Davis*, 1999 SD 116, 598 N.W.2d 921, holding that "this decision eludes review as the trial court's abbreviated hearing denied [mother] the opportunity to present her claim and deprived this Court of a record from which there may be meaningful review." The Court further stated that "the parties should have been provided time beyond the 15 minutes allotted them for the hearing to further develop this record." (Quoted material taken from paragraphs no. 8 & 9, 598 N.W.2d at 922). This opinion cites a 1988 SD Supreme Court case which holds that "trial court's familiarity with the parties and the case and its determination that it did not need any additional testimony" expressed a luxury this Court did not have and failed to respond to this Court's need to make a meaningful appellate review." (Paragraph no. 18, 598 N.W.2d at 922.)

As to reimbursement for pharmacy and dental bills, the trial court was reversed as those items were found to be "clearly contemplated by the parties' stipulation and agreement." Mother was also awarded appellate attorney fees. (Quoted material from paragraph no. 11, 598 N.W.2d at 923). As to the issue of "counseling costs," the SD Supreme Court acknowledged that it had not heretofore addressed the issue of whether such costs are reimbursable medical expenses under a divorce decree, but noted the existence of some authority from other jurisdictions – authority which holds that such costs could be properly awarded in similar cases.

5. More on "Counseling Costs." In connection with the *Davis* case in the preceding note, it should be noted that the final sentence of SDCL 25-7-6.16 includes a reference to "counseling ... costs" suggesting that these costs, as well as others stated therein "shall be apportioned between the parents in proportion to the support obligation of each parent."

6. Trial court erred by setting child support award in such a manner that gives the appearance of a "penalty" for non-visitation. Recognizing that with Father in South Dakota and Mother and Child in Houston, Texas, the trial court apparently attempted to facilitate a plan that would allow father to fly to Houston monthly to visit with the child. Accordingly, the trial court in *Watson-Wojewski v. Wojewski*, 2000 SD 132, 617 N.W.2d 666, followed the rationale that father's monthly child support obligation was set lower than it would have otherwise been set and then ordered father to pay mother the additional sum of \$345 each month following a month in which father did not actually exercise visitation. It should be noted that the child support award of \$4,200 was otherwise reversed and remanded as being too high and/or not supported by adequate findings as to the "actual needs and standard of living of the child." As to the additional assessment of \$345 monthly for non-visitation, the South Dakota Supreme Court reversed also. The Court observed that SDCL 25-7-6.15 does indeed

allow for the allocation of travel costs, if substantial, between the parties. The Court then stated, “However, the intermingling of travel costs with the actual child support figure, as was done in this case gives the appearance of a penalty for non-visitation. This situation should be avoided.” (Paragraph No. 47, 617 N.W.2d at 675.)

7. **“Reportable Income.”** There have been some fairly recent South Dakota Supreme Court opinions which address what is to be included in the computation of “gross income” under SDCL 25-7-6.6. These situations typically involve high-income parties who have a portion of their assets in corporate or partnership holdings. Following is a synopsis of these recent decisions:

In *Watson-Wojewski v. Wojewski*, 2000 SD 132, 617 N.W.2d 666, the trial court committed error when it excluded mother’s reportable income from her limited partnership interests. The trial court found that the income did not actually come to mother, but was reportable by mother for income tax purposes. The South Dakota Supreme Court said that such “reportable income” is to be included in the computation of gross income under SDCL 25-7-6.6, consistent with the treatment previously accorded to “corporate retained earnings” as decided in an earlier case. As to mother’s capital accounts in the limited partnerships, the trial court was directed to make findings as to whether or not mother could access her capital contributions and, if so, then those amounts should also be included in the computation of mother’s gross income.

Both Husband and Wife were millionaires in their own right. Husband was president of Security State Bank in Tyndall. Following the divorce, Wife sought an increase in child support. Appeal was taken by Wife in *Laird v. Laird*, 2002 SD 99, 650 N.W.2d 296. The South Dakota Supreme Court held that the trial court did not err in excluding retained earnings of over \$ 4,000,000 from the computation of Husband’s gross income. Retained earnings were properly regarded as an “asset” under SDCL 25-7-6.5 and, hence not needed to be considered since there is already enough income of the parents to support the children. Prior case law in South Dakota was distinguished in that the retained earnings in this case are not readily available to husband – these retained earnings are not reflected in husband’s income tax returns and the decision of whether to pay dividends from the retained earnings in the bank is not one made exclusively by husband. It was apparent that husband could not readily receive his share of the bank’s retained earnings and it was also noted that the banking industry has strict rules and regulations relating to insider transactions. (unanimous opinion)

“Pass through” income from a subchapter S corporation which is reported on a parent’s federal income tax return should *not* be included in the computation of gross income for child support purposes, provided the parent does not actually receive the income and that the parent has no control over its distribution. The philosophy found in the child support statutory scheme is one based upon a parent’s actual ability to provide support and this sort of “pass through” income has not been “received” by the parent as required by SDCL 25-7-6.3. The situation would be different if the parent has “control” over the disposition of the income. The opinion in this case, *Roberts v. Roberts*, 2003 SD 75, 666 N.W.2d 477, harmonizes the existing case law in South Dakota concerning treatment of corporate “retained earnings” This case also holds that money *actually distributed* by the subchapter S corporation should be *included* in the computation of income, even though the distributed money is limited to the amount necessary to meet the parent’s tax liability solely related to the reporting of the corporate income on the parent’s tax return. [At the trial level, since the trial court included the “pass through” income, the computation of child support was an “off the chart” case and the trial court extrapolated, ordering an amount above the grid found in SDCL 25-7-6.2. Because of the South Dakota Supreme Court’s reversal on the issue of “pass through” income, the combined net monthly income should, upon remand, fall within the grid, thereby removing

the issue of whether or not “extrapolation” is appropriate.]

Obligor’s ability to “control” distribution is pivotal in deciding whether “bonus” income should be included in the child support determination. In *Nace v. Nace*, 2008 SD 74, ___ N.W.2d ___, the trial court approved the child support referee’s decision to raise father’s child support from \$574 to \$1194 per month. Father worked for a family-owned construction company in which he had partial ownership. The SD Supreme Court reversed and remanded, holding that it was error to consider father’s bonus of \$25,000 (which was applied to father’s debt incurred in payment for acquisition of a greater ownership interest in the business) as income under SDCL 25-7-6.3 unless father had control over its distribution. The case is remanded for determination of “control.” The Court further held that the company’s payment of father’s federal income tax liability was properly included as income, but that on remand the trial court should explore a possible reduction under SDCL 25-6-7 or deviation under SDCL 25-6-10. The Court’s opinion was authored by Justice Meierhenry. Justice Sabers filed a one-paragraph concurring opinion pointing out that the referee may consider father’s asset (interest in the family-owned construction company) through the operation of SDCL 25-7-6.5.

8. **Obtaining a “Refund?”** In *Kohl v. Amundson*, 2001 SD 4, 620 N.W.2d 606, a default judgment of paternity was entered against Kohl requiring him to pay \$368 per month for child born to Amundson. A total of \$4,362.60 was withheld from Kohl’s wages. Upon subsequent motion and DNA blood testing, the judgment of paternity was vacated. Kohl then brought this action for a money judgment against the mother for the child support withheld from his wages. The trial court awarded Kohl a money judgment for \$4,432.60 and the South Dakota Supreme Court affirmed. Mother unsuccessfully argued that Kohl’s remedy should lie against the biological father (who had not been determined). Kohl’s remedy against the mother is recognized by South Dakota statutes which give him a remedy against both parents [SDCL 25-7-6.1 creates mother’s obligation of support and SDCL 25-7-10 gives a third person who provides necessities a cause of action against a parent]. In addition to the statutory remedy, the South Dakota Supreme Court specifically found that Kohl’s remedy is also recognized under principles of equity relating to unjust enrichment. (Paragraph No. 10, 620 N.W.2d at 607).

B. Child Support Guidelines

4. Study Questions (for 2009 grid)

ANSWER THE FOLLOWING QUESTIONS BASED ON YOUR ANALYSIS OF THE CHILD SUPPORT STATUTES. BACK UP YOUR ANSWERS WITH CITATIONS TO THE RELEVANT SECTIONS.

(1) Applying the table, determine the proper amount of child support in the following situations:

(A.) H's net monthly income is \$1,100. W's net monthly income is \$1,100. Custody of the *only* child is awarded to W. What is H's support obligation using just the emboldened part of the chart for H's net monthly income? What is H's support obligation using the combined net monthly income for both parties? Which would be the appropriate determination under SDCL 25-7-6.2?

(B.) H's net monthly income is \$ 900. W's net monthly income is \$ 1,800. Custody of the parties' two (2) minor children is awarded to W. What is H's support obligation using just the emboldened part of the chart for H's net monthly income? What is H's support obligation using the combined net monthly income for both parties? Which would be the appropriate determination under SDCL 25-7-6.2? What is H's support obligation?

(C) H's net monthly income is \$2,500. W's net monthly income is \$2,500. Custody of the *only* child is awarded to W. What is H's support obligation?

(D) H's net monthly income is \$4,000. W's net monthly income is \$2,000. Custody of the parties' two (2) minor children is awarded to W. What is H's support obligation?

(E) H's net monthly income is \$6,000. W's net monthly income is \$2,000. Custody of the parties' two (2) children is awarded to H. What is W's support obligation?

(F) H's net monthly income is \$3,000. W's net monthly income is \$1,000. Custody of the parties' *only* child is awarded to H. What is W's support obligation?

(G) H's net monthly income is \$2100. W's net monthly income is \$700. Custody of the parties' two (2) children is awarded to H. What is W's support obligation?

(2) W was divorced in 2006 and given custody of the parties' children. There have been no modification proceedings. Under the guidelines which were enacted in 2009, it is apparent that H should be paying much more child support than he was ordered to pay in 2006. What must W show in order to modify the child support obligation imposed on H in 2006?

(3) Obligor appears at a child support hearing claiming that he has no job and no income whatsoever. Obligee also claims that she has no job because she needs to stay home with the kids. In fact, both the obligor and the obligee could work if they so desired. How should the referee proceed?

(4) H owns his own business. He drives a “company car” and uses it for his personal affairs as well. He also takes advantage of huge deductions for depreciation on his income tax return. As a result, H’s net income, for income tax purposes, is much smaller than his lifestyle would otherwise suggest. Must the court or referee accept H’s “net income” as established on his income tax return?

(5) May a parent’s assets be considered in setting child support?

(6) When Richard was divorced from Sandra, she was awarded custody of their two children. After the divorce, Richard remarried and now has two additional children. As a result of his new obligations, Richard now has less money available to pay child support. May Richard seek a deviation from the guidelines? Or, borrowing language from Justice Henderson, “Are children of a second marriage ‘children of a lesser god?’” *Compare Feltman v. Feltman*, 434 N.W.2d 590 (S.D. 1989) (decided under the 1986 version of the guidelines). (The answer to this question today differs slightly from the answer in *Feltman* — what provision of today’s statute applies?)

(7) Does the obligor have to pay child support for the time periods during which he may actually have the child or children in his possession? *e.g.* during weekend visitation? during two-week visitation in the summer? during six-week visitation in the summer?

(8) Under the 1986 guidelines and under *Bruning v. Jeffries*, 422 N.W.2d 579 (S.D. 1988), there was a concern that a custodial spouse would carry a “negative dowery” into a new marriage because the new spouse’s income could be utilized to justify a downward deviation from the guidelines’ amount. *See* Barbara Everist, *Major Changes in South Dakota Child Support: The 1989 Revisions*, 34 S.D. L. Rev. 573 at 579. Does the possibility of a “negative dowery” still exist under the statutes in effect today?

(9) H’s net monthly income is \$5,000. W’s net monthly income is \$2,000. There are two (2) children. H is awarded custody of one child and W is awarded custody of the other child. How is child support determined under the statutory provision enacted in 2005? (You will need a calculator to do this one)

Combined Net Monthly Income:

Monthly Child support Obligation for one child:

W’s obligation for one child residing with H:

H’s obligation for one child residing with W:

H owes W:

B. Child Support Guidelines

5. Application of the Guidelines – Notes

1. In *Klein v. Klein*, 500 N.W.2d 236 (S.D. 1993), the South Dakota Supreme Court recognized that trial courts have authority to deviate from the guidelines in situations involving agreements made by the parties. *Id.* at 241 - 42 (affirming the trial court's refusal to vacate its previous child support award of \$500 per month which was in excess of the statutory guidelines). The *Klein* court relied, *inter alia*, on the deviation presently permitted in SDCL 25-7-6.10(4).

2. **Income above the schedule – extrapolation?.** SDCL 25-7-6.9 addresses situations involving “income above the schedule.” This short statutory provision (which went into effect in 1989 and remains unchanged) provides, “For a combined net income above the schedule in § 25-7-6.2, the child support obligation shall be established at an appropriate level, taking into account the actual needs and standard of living of the child.”

One of the most significant differences in the 1997 child support chart and the 1989 chart is the fact that the grid was extended to \$10,000 for combined net monthly income, as opposed to only \$4,000. There had been many cases prior to the 1997 change which dealt with the notion of “extrapolation” -- i.e. extending the chart in a proportionate manner to see what the obligation should be. Some of those cases include: *Jones v. Jones*, 472 N.W.2d 782 (S.D. 1991); *Early v. Early*, 484 N.W.2d 125 (S.D. 1992); *Bloom v. Bloom*, 498 N.W.2d 213, 217 (S.D. 1993); *Ochs v. Nelson*, 538 N.W.2d 527 (S.D. 1995); *Billion v. Billion*, 1996 SD 101, 553 N.W.2d 226 (S.D. 1996); and *Evans v. Evans*, 1997 SD 16, 559 N.W.2d 240 (S.D. 1997). Basically, the holding in each of these cases by the South Dakota Supreme Court was consistent with the notion that it was permissible for the trial court to “extrapolate,” but such was not mandatory.

In 2009, the grid was extended to \$20,000 for combined net monthly income.

3. **Reversal of trial court for extrapolating.** Although Husband made substantial income as cardiac surgeon, he was only ordered to pay child support of \$2,000 per month at the time of the divorce in 1997 due to a falling off of his practice because of an psychotic episode caused by a bipolar condition. Husband was able to rehabilitate his condition and his practice and Wife thereafter sought review of the child support. The trial court raised the child support to \$4,200 per month in *Watson-Wojewski v. Wojewski*, 2000 SD 132, 617 N.W.2d 666. This case represents one of the first “off the chart” cases since the promulgation of the 1997 grid which sets child support for combined net monthly incomes as high as \$10,000 per month. The South Dakota Supreme Court reversed the \$4,200 amount because the trial court did not accurately follow SDCL 25-7-6.9 which requires the amount be established by “taking into account the actual needs and standard of living of the child.” The evidence upon which the trial court based its decision consisted of a financial budget for both Wife and child, without any allocation between the Wife and the child. The matter was remanded for the trial court to make specific findings as to both the child's actual needs and standard of living, without consideration of any items relating solely to the needs of the mother. The statute “SDCL 25-7-6.9 does not authorize an alimony/palimony windfall contained in the rhetoric of child support.” (Paragraph No. 21, 617 N.W.2d at 671.) [It should be noted that alimony was not an issue here because at the time of the divorce in 1997, wife had “waived any alimony claim in exchange for a negotiated property settlement.” Paragraph No. 5, 617 N.W.2d at 668-69.]

4. **Reversal of a trial court for refusing to extrapolate.** Both Husband and Wife were millionaires in their own right. Husband was president of Security State Bank in Tyndall. Following divorce, Wife sought increase in child support. Appeal was taken by Wife in *Laird v. Laird*, 2002 SD 99, 650 N.W.2d 296. The South Dakota Supreme Court held that the trial court erred in refusing to extrapolate where the parties' combined net monthly income exceeded the maximum set forth in the child support grid. “Here we have children who are accustomed to an extremely high

standard of living and who are clearly old enough to appreciate that high standard... Here, the father obviously has greater financial ability to pay for the lifestyle he helped establish for these children..." §§ 33-34. Although the opinion does not cite SDCL 25-7-6.9, this statute authorizes that, "For a combined net income above the schedule in § 25-7-6.2, the child support obligation shall be established at an appropriate level, taking into account the actual needs and standard of living of the child." (Only a three justice majority supports this holding.) [In his dissenting opinion on this issue, Justice Gilbertson argues that the children's standard of living is maintained without extrapolation. "Emma was unable to demonstrate that her sons' standard of living was not being maintained." ¶ 52. The statutes do not permit extrapolation just because non-custodial parent has had post-divorce success. Justice Gilbertson also asserted that extrapolation will create a de facto award of alimony.]

5. Child Support – Propriety of Extrapolation Clarified and Waiver of Change in Circumstances Requirement Upheld. In *McKittrick v. McKittrick*, 2007 SD 44, 732 N.W.2d 404, the trial court affirmed the ruling of the child support referee which had increased father's child support obligation from \$1,000 per month to \$3,340 per month by "extrapolating" off the chart. With the original order having been entered in 2004, the lower court found that the mother did not need to show a "substantial change in circumstances" due to the 2005 revision in the child support statutes and the blanket waiver granted in SDCL 25-7-6.13 which permits all orders entered prior to 7/1/05 to be modified without requiring a showing of a change in circumstances. Father appealed to the South Dakota Supreme Court. As to whether or not mother was required to show a "substantial change in circumstances" in order to pursue a modification proceeding, the Supreme Court agreed with the lower court that the blanket waiver applied in this case. In so holding, the Court rejected the father's argument that the 2005 statutory changes did not affect obligations at the upper level of the schedule and that SDCL 25-7-6.13 should apply only in situations where the statutory amount of child support was changed. The Court held that the plain meaning of SDCL 25-7-6.13 controls and that *all* prior orders are modifiable without the need to show a change in circumstances.

Nonetheless, the South Dakota Supreme Court reversed the modification made in this case because the extrapolation was not shown to be justified under SDCL 25-7-6.9 which requires the court to take into account "the actual needs and standard of living of the child." The evidence in support of modification was focused on mother's recent disputes with father concerning her requests that he pay additional expenses related to travel and for a dog. There was an evidentiary failure concerning the child's actual needs or standard of living. This unanimous opinion by Justice Meierhenry makes some clarifying comments about the use of extrapolation for off-the-chart situations. In ¶ 11, the Court states as follows:

... straight extrapolation is at odds with the language of SDCL 25-7-6.9... As the [Child Support] Commission pointed out, current studies show that the needs of a child do not increase at the same rate that family income increases once the monthly net income reaches \$10,000... Using straight extrapolation or some other statistical or mathematical formula is contrary to the plain meaning of the statute and may not reflect to the child's actual needs and standard of living.

Reversible Error to Extrapolate without findings as to "actual needs and standard of living" of the children. In *Hill v. Hill*, 2009 SD 18, 763 N.W.2d 818, H was an electrical engineer when the parties were married. W was a cashier and nurse's assistant when married. During the marriage W went to medical school and became a doctor. At the time of divorce W was making \$285,000 annually and H was making \$65,000-\$70,000 annually. The trial court divided the property by giving H \$55,493 in assets and \$8,000 in debt and by giving W \$19,336 in assets and \$103,160 in debt. The debt assessed to W included her student loans. H sought, but was denied, alimony. There were 3 children born of the marriage. The parties agreed upon joint legal custody with W have primary physical custody. The parties' income was "off the chart." Using the highest line on the chart, \$10,000, H's child support obligation would have been 20% of \$2,477 or \$495.40. The trial court ordered H to pay child support of \$750 per month. On appeal H argued that it was error for the trial court to set child support above the charted amount without making findings as to the actual needs and standard of living of the children. The SD Supreme Court agreed with H on his child

support argument, reversing and remanding with directions to the trial court to enter specific findings as to the children's needs and standard of living. The trial court is also permitted to consider H's request for an order relating to an abatement of child support during those months when he has the children more than 10 days. The SD Supreme Court also awarded H \$ 5,000 in appellate attorney fees. The opinion is authored by Justice Meierhenry. The decision is unanimous.

6. Where the combined net monthly income of the parties lies between two categories, it is appropriate for the trial court to use the category "closest to" that figure, according to the holding in *Hawkins v. Peterson*, 474 N.W.2d 90 (S.D. 1991).

7. In going over the questions in the preceding section of this book, you should have learned that farmers and folks in business may have their IRS "income" adjusted upward for child support purposes by the disallowance of expenses which do not require cash expenditure (e.g. depreciation, depletion, etc.). Also, the court may consider disallowing some of the typical business expense items which may also benefit the household situation, such as automobile expenses. In *Grode v. Grode*, 543 N.W.2d 795, 804 (S.D. 1996), the trial court decided *not* to adjust the farmer's income upward even though it could have done so under SDCL 25-7-6.6 because of the "unpredictable" nature of farming. This decision was affirmed on appeal.

8. Nontaxable structured personal injury settlement payments are appropriately considered in the child support computation, as either payments pursuant to an insurance contract or as an asset, according to *Arneson v. Arneson*, 2003 SD 125, 670 N.W.2d 904. In this case the trial court awarded custody of the parties' only child to wife. Husband has cerebral palsy and is in a wheelchair. Husband complained on appeal that the trial court inappropriately included his income from a tax-free personal injury settlement. The South Dakota Supreme Court affirmed the trial court (5-0).

Husband's income was derived through a medical malpractice claim and settlement. He had suffered a lack of oxygen at birth, caused by a doctor's negligence. Pursuant to the settlement, husband receives monthly nontaxable personal injury payments for life. The figures showed that husband received \$88,800 annually or \$7,400 per month. Also, husband has "extraordinary expenses" in the nature of wheelchair repairs and the use of a personal assistant which amount to \$8,000 every six months. In determining child support, the trial court included the payments to husband, less \$16,000 per year related to his "extraordinary expenses." The Court affirmed that trial court's determination of income, holding that the structured settlement payments are appropriately considered under SDCL 25-7-6.3(3) as a payments from an insurance contract, notwithstanding the fact these payments are not considered as income for federal tax purposes. ¶ 30. The Court also held that, alternatively, the personal injury payments could appropriately be considered as an asset under SDCL 25-7-6.5 which permits consideration "if a child's needs are not being met through the income of the parents." ¶ 34.

9. In *Woehl v. Woehl*, 2002 SD 6, 639 N.W.2d 188, father sought to modify his child support downward after he was fired from his prior job where he worked 42.5 hours per week at \$16 per hour. Father's new job only paid him \$8 per hour. The circumstances surrounding his firing were described as follows, "In this case Donald was fired for insubordination and work quality. He testified that the primary reason he was fired was that he hit his girlfriend who was a coworker. He admits that his action of hitting was a voluntary act. He claims, though, that it was not intended to result in a reduction of his income." ¶14, 639 N.W.2d at 191. Following the recommendation of the referee, the trial court "deviated" *upward* from scheduled child support amount for father's actual income, utilizing instead father's former income from the prior job. The court relied on SDCL 25-7-6.10(8) which allows for deviation based upon "The voluntary act of either parent which reduces that parent's income." [This is currently found as SDCL 25-7-6.10(6).] The South Dakota Supreme Court affirmed, in a 4-1 opinion, finding that the trial court's deviation in this manner was not an abuse of discretion. Justice Sabers dissented, stating that this deviation factor should not be utilized unless the

voluntary act which resulted in father's firing was intentionally done for the purpose of lowering his child support.

“Underemployment” by a parent (as in being only “part-time” employed) does not constitute a “voluntary act which reduces that parent’s income.” *Hollinsworth v. Hollinsworth*, 2008 SD 102, 757 N.W.2d 422, is a child support decision. In this case father sought a downward deviation in the child support computation because mother did not work “full time.” The trial court agreed. But, the SD Supreme Court reversed, holding that a parent’s status of being “underemployed” as a “part time” worker does not equate to a “voluntary act which reduces that parent’s income” as specified in SDCL 25-7-6.10(6). Accordingly, a downward deviation in the computation of child support is not permitted on this basis. This decision is unanimous and the Court’s opinion is authored by Justice Meierhenry. This opinion also affirms the trial court’s decision not to deviate upward based on the situation where father lost his job (through no fault of his) and declined to accept a severance payment of \$25,000 in exchange of an agreement not to compete with his former employer in the construction business.

10. ***Laird v. Laird – additional issues.*** Both Husband and Wife are millionaires in their own right. Husband was president of Security State Bank in Tyndall. Following divorce, Wife sought increase in child support. Appeal was taken by Wife in *Laird v. Laird*, 2002 SD 99, 650 N.W.2d 296. The South Dakota Supreme Court held

1) Trial court did not err in using fixed 1999 incomes of the parties, in lieu of speculative 2000 incomes urged by Wife. (unanimous opinion)

2) Trial court did not err in excluding retained earnings of over \$ 4,000,000 from the computation of Husband’s gross income. (This issue is discussed, *supra*.)

3) Trial court erred in refusing to extrapolate where the parties’ combined net monthly income exceeded the maximum set forth in the child support grid. (This issue is discussed, *supra*.)

4) Trial court did not err in continuing to allow Husband to receive a \$ 250 credit against his child support for health insurance paid for by the bank. This credit was agreed to by Wife in the stipulation at the time of the divorce and Wife knew that the bank was paying for the health insurance. Husband “has upheld his end of the bargain by remaining employed at Security State Bank.” ¶ 42. (unanimous opinion)

11. In *Tovsland v. Reub*, 2004 SD 93, 686 N.W.2d 392, the trial court was requested to consider an upward deviation in child support based upon the child’s special needs. (This child had been born premature when the mother was only 23-24 weeks pregnant incurring medical expenses of approximately \$615,000.) In denying an upward deviation on child support, the trial court took into consideration that the mother had other children by other fathers and that she did not pursue these other fathers for child support. The South Dakota Supreme Court reversed stating, “Support that a mother could possibly receive in the future from other fathers is not a factor in determining whether a child is entitled to an upward deviation for special needs. The circuit court abused its discretion in using this as a basis to deny the upward deviation for this child’s special needs.” ¶ 39.

12. **Referee not permitted to raise deviation factor *sua sponte*. Actual income, not imputed income, should be utilized where evidence fails to establish obligor’s change of job was for the purpose of reducing income.** The case of *Kauth v. Bartlett*, 2008 SD 20, 746 N.W.2d 747 is a child support modification proceeding. Father (child support obligor) sought a reduction in child support because he changed jobs and relocated. His new job is not only less stressful but also pays less. Throughout these proceedings mother was without counsel, appearing pro se. The referee (with the trial court approving) imputed father’s income at the level of his former job and actually raised his child support obligation. Father had requested a downward deviation pursuant to SDCL 25-7-6.10(2). The referee did not consider the downward deviation factor sought by father, but did deviate by imputing father’s income to be at higher rate paid by his former employer. In the process of making his decision, the referee opined that he had authority to raise a deviation factor *sua sponte*. The SD Supreme Court reversed, holding that it was error not to address father’s requested deviation factor and also error to impute income to father where the evidence did not

establish that he changed jobs with the intent of reducing his income. Child support should be based on actual income, not imputed income. The Court also held that it would be error for a child support referee to raise a deviation factor *sua sponte*. Our current statutory scheme contemplates that only parties may raise deviation factors. As to dealing with issues not raised by the parties, the Court stated, “when referees or courts interject issues not raised by either party, they run the risk of losing their neutrality and becoming advocates for a party, if not in fact, then in appearance. A referee or court that raises an issue *sua sponte* may compromise its position as a fair and impartial adjudicator.” Footnote 5 of this opinion, which accompanies the language quoted above, gives further guidance to referees as follows, “A better approach for a referee is one we have seen in other cases where the referee goes through each statutory deviation on the record and canvasses the pro se litigants as to whether they wish to raise any of them.” The Court’s opinion is authored by Justice Meierhenry. Justice Sabers filed a concurring opinion in which he disagrees with the majority’s ruling that a deviation factor may not be considered *sua sponte* by the referee or court.

13. The SD Supreme Court addresses the child support issues for an obligor who is incarcerated in prison. *Gisi v. Gisi*, 2007 SD 39, 731 N.W.2d 223, deals with the proper determination of child support for a father/obligor who is incarcerated in a Florida prison. The trial court utilized the minimum wage presumption and set child support at \$180 per month, reasoning that his incarceration was a voluntary termination of employment and there was no reason to deviate. The trial court had set his income at \$830 per month. In a unanimous “per curiam” opinion, the South Dakota Supreme Court reverses on this issue, holding that father’s gross income of \$830 per month should be reduced by \$40 for single taxpayer deduction and also by \$68 for Medicare and Social Security. This brings his income to the lowest bracket of \$0 - \$800 and, since this is within the emboldened area of the chart, his support should be the lesser of \$100 or the number derived from the combined income computation, namely \$190. The trial court’s decision NOT to deviate downward (on behalf of father) is basically affirmed on appeal, but the lesser amount of \$100 is the proper child support amount. (The Court notes that no request for deviation upward had been made by mother.) As to the general issue of “effect of incarceration,” the SD Supreme Court recognizes that there has been an absence of law in SD on this issue and proceeds to provide a thorough review of other relevant SD cases and of the law of other jurisdictions. The Court eventually states, “The Court’s precedent suggests that a deviation or reduction of child support below the mandated minimum amount within SDCL 25-7-6.2 is not required because of incarceration.” ¶ 21. The Court also states, “This result appears to be an equitable one, i.e., it recognizes the reduced income of the obligor as a result of incarceration by imputing a minimum wage income instead of the obligor’s prior income, but it does not totally relieve the obligor of child support payments as a result of that incarceration.” ¶ 22. The Court also holds that the presumption of financial hardship provided by SDCL 25-7-6.10(2) (his child support obligation of \$100 exceeds 50% of his monthly net income of \$0) is rebutted by his voluntary act in reducing his income. The Court also rejects claims of a denial of due process or access to the courts because father (who is incarcerated in Florida prison) was not adequately provided materials related to SD law.

The 2009 Legislature incorporated the rationale of the *Gisi* decision into SDCL 25-7-6.4 and SDCL 25-7-6.10 which now address the situation where the obligor is incarcerated.

14. Child support issues for permanently disabled child addressed in *Miller v. Jacobsen*, 2006 SD 33. The situation concerning child support for a disabled child was the subject of litigation in *Miller v. Jacobsen*, 2006 SD 33, 714 N.W.2d 69. The parties were married in 1989 and divorced in 1993. Their son, born also in 1989, has been disabled from birth as a result of cerebral palsy and a seizure disorder. In a stipulated agreement entered into at the time of the divorce, husband was to continue paying child support so long as the child “is dependent or until further order of the court.” Husband agreed to pay child support at a basic rate of \$516 per month and also an additional amount of \$155 per month based on the child’s special needs. The child “is [now] fifteen years old and weighs sixty-five pounds. His disability requires him to have extensive care and assistance with activities of daily living. [He] must be fed, dressed and diapered daily, as well as requiring assistance with medications, bathing and toileting twice a day... [He] must be turned at least once each night when he is sleeping. He also has a drug pump in his abdomen that delivers

medication to his spinal column for relief of muscle tightness. [He] spends the majority of his day in his wheelchair and requires physical assistance for transfers to and from his wheelchair.” ¶ 5. During the school year and summer session child resides on Monday through Friday at Children’s Care Hospital in Sioux Falls, attending school. Wife, who has been the primary caregiver for the child at home (which is just over 50% of the time), brought this action seeking, *inter alia*, modification of child support. Father appeals numerous aspects of the lower court’s rulings. The South Dakota Supreme Court ruled, *inter alia*, as follows:

A. The trial court did not err in including an *upward* deviation as to father’s child support obligation for the purchase of a specialized van for transportation and for payment of paid caregivers for child. ¶¶ 29-38.

B. The trial court did not err in failing to give father credit for alleged overpayments related to purchase of a previously-used van and medical care expenses.

(1). As to the alleged overpayment of \$2,420 related to the van (paid at \$55 per month), father is not entitled to credit because mother was not *unjustly enriched* in that the money was used for “substantial and legitimate expenses for [child’s] transportation.” ¶ 47. (Such a ruling is consistent with the law of “overpayments” as set forth in *Juttelstad v. Juttelstad*, 1998 SD 121, 587 N.W.2d 447.) ¶¶ 45-48.

(2). As to father’s claimed overpayment of \$9,020 relating to medical care expenses (paid at an additional \$100 per month), the father’s argument is misplaced because the parties’ original agreement provided for such payment for the child’s “special needs” and was not limited solely to medical expenses which were not covered by insurance as father contended. Furthermore, there was no expiration date on this portion of father’s upward deviation payment. ¶¶ 49-50.

C. With respect to a parent’s statutory duty to support his/her child, the Court acknowledged that absent an agreement of the parties, the duty to support “terminates per the provisions of SDCL 25-5-18.1, no later than age nineteen.” The Court specifically stated that, “A trial court may not impose a duty to support a child beyond the age of eighteen, or the age of nineteen if the child is still enrolled full-time in high school... [citations omitted]... However, the parties are free to agree to provide support beyond the age of nineteen.” ¶ 52.

In this case the parties’ stipulated agreement provided, “that [father’s] obligation for child support shall continue as long as [the child] is dependent or until further Order of the Court.” Mother contends that the reference to “dependent” is in regard to the child’s disability and therefore provides a continuing obligation. This issue – interpretation of the parties’ agreement concerning the termination date for husband’s child support obligation – was remanded for the trial court’s resolution. In the event the child support obligation for father is found to terminate on child’s 18th birthday, then the trial was directed “to reconsider the monthly support amount.” But if the trial court “determines the meaning of ‘dependent’ ... called for support ... for life, the [upward deviation] vehicle payment termination date may stand as originally ordered.” ¶ 58.

Justice Sabers dissented on the “remand” order. According to Justice Sabers’ view, the use of the word “dependent” in the parties’ agreement requires the father’s obligation to run for the life of the child and the agreement should be “enforced, not ... interpreted.” ¶ 66.

D. Wife’s award of partial attorney fees by the trial court was affirmed, plus wife was awarded the full amount she requested for her appellate attorney fees.

15. Legislative update (2007): Support of Subsequent Adopted Children Included as Basis for Child Support Deviation. The passage of Senate Bill 61 in 2007 amended the child support deviation statute, SDCL 25-7-6.10, so as to also include subsequent “adopted children” in addition to current language which specifies “subsequent natural children or stepchildren” as a basis for deviation from the child support amount determined by use of the grid. Keep in mind that under this provision, “an existing support order may not be modified solely for this reason.”

16. The 2009 SD Legislature provided authority for the imposition a of late payment fee to be assessed against an obligor who is chronically delinquent in making child support payments. This bill adds a new section to SDCL 25-7. “Chronically delinquent” is defined to mean that the obligor’s payment of child support is at least 10

days late in 3 or more months in any 12 month consecutive period. The late payment fee is calculated to be the greater of \$50 or 10% of child support order. The late payment fee may be assessed on each payment which was at least 10 days delinquent over the preceding 12 months. This bill establishes a procedure by which notice is served on the obligor and the obligor has 10 days within which to object to assessment of the late payment fee. If the obligor objects, the burden is on the obligor to show inability to pay in a timely manner. Testimony in support of this bill indicated that currently in South Dakota there are approximately 31000 orders of support with delinquency occurring in approximately 6000 cases each month. The new statutes provide as follows:

25-7-37. Chronically delinquent defined. For the purposes of § 25-7-38, the term, chronically delinquent, means the child support is paid ten or more days after the date the child support is due in each of three or more months in any twelve-month consecutive period, or the child support paid is less than ninety percent of the amount due in each of three or more months in any twelve-month consecutive period.

Source: SL 2009, ch 135, § 1.

25-7-38. Late fee for certain chronically delinquent child support payments. An obligor found to be chronically delinquent in child support payments or installments as required under an order for support, as defined in § 25-7A-1, is subject to a late payment fee equal to ten percent of the ordered child support or fifty dollars, whichever is greater, for each month in the preceding twelve months that the payment was ten or more days delinquent or the payment was less than ninety percent of the ordered child support. Any obligee seeking the late payment fee shall file in the office of the clerk of courts of the county in which the order was filed, or in a county in which a transcript of the order is filed and docketed, a petition showing the date of receipt of each month of delinquent payment, the amount received, and the amount due and requesting that a late fee be ordered. Upon filing of the petition, the obligee shall serve, by certified mail or as otherwise provided by law, a copy of the petition to the obligor. The service of such notice shall be deemed complete when proof of the service is filed with the court. The obligor has ten days from service to object to the imposition of a late fee. If a party objects within ten days of service the court shall conduct a hearing as soon as practical. The obligor has the burden of showing an inability to timely pay child support payments or installments as required under an order of support. Based upon the evidence presented at the hearing, the court may order the obligor to pay a late fee or may order any other relief as it deems appropriate.

Source: SL 2009, ch 135, § 2.

In the next two cases, *Whalen* and *Sjolund*, the South Dakota Supreme Court was applying the 1989 statutes; however, these two cases have played an important role in the development of South Dakota's statutes and they teach some important lessons that are still valid today.

WHALEN v. WHALEN

Supreme Court of South Dakota, 1992.
490 N.W.2d 276.

WUEST, Justice.

Michael Whalen (Husband) appeals from the circuit court's Order affirming the referee's Report and Recommendation which dismissed Husband's Petition for Modification of Child Support. Husband raises the following three issues:

1A. Whether the extended visitation of a child support obligor's children contemplated in the divorce decree constitutes a change in circumstances sufficient to support a modification of the child support obligation.

1B. Whether a child support obligor must show a change of circumstances in order to modify his child support obligation by reason of payments made pursuant to the divorce decree.

II. Whether the referee and the circuit court abused their discretion by imposing transcript costs upon Husband.

By notice of review, Dianne Whalen (Wife) argues the referee and circuit court should have awarded her attorney fees.

III. Whether the referee and the circuit court abused their discretion by failing to consider all factors before denying wife's motion for attorney's fees.

The parties were married approximately fourteen years before divorcing. They had three minor children. On March 1, 1990, the circuit court granted a divorce to Wife. On May 4, 1990, the circuit court entered a supplemental decree based on a stipulation prepared by Husband, an attorney, which awarded custody of the children to Wife with reasonable and liberal visitation to Husband. Visitation rights included an eight-week summer visitation period during June and July. It also provided Husband pay child support in the amount "of \$800.00 per month during the minority of the parties' children as set forth at SDCL 25-5-18.1 and the Child Support Guidelines of the State of South Dakota." The supplemental decree required Husband to pay all expenses for medical and dental care for the children. In addition, the decree provided for Husband to pay \$600.00 per month as spousal support for seven years. Finally, Husband was required to pay \$250.00 per month payments on the automobile Wife was awarded. When the automobile was paid for, the payments were to continue for the balance of the seven years as "alimony."

Under the supplemental decree the Husband was awarded his interest (50%) in the law office, subject to the debt; the parties' home, subject to the debt; and his vehicles, subject to the debt. Husband had a small amount of furniture. Wife received the bulk of the parties' household goods, furnishings, and furniture, her 1988 automobile, mink coat, jewelry, and one-half of Husband's IRA. No debt was allocated to Wife. Husband assumed the remaining balance of Wife's educational loans and kept his membership in a hunting club.

Husband's Petition for Modification, dated June 1, 1990, claimed a change of circumstances on the following basis:

(A) The minor children would be living with him for two months of each summer and SDCL 25-7-6.14 allowed an abatement during those months; and

(B) Payment of \$600.00 per month alimony was income to Wife and a deduction to Husband under SDCL 25-7-6.6 and 25-7-6.7(6).

From the petition hearing the referee specifically found Husband's monthly gross income was \$2,991.17 and, after allowable deductions (not including a deduction for alimony), his net monthly income was \$2,200.97. The referee further determined Wife's average presumed net monthly income (exclusive of alimony) was \$631.53. The parties stipulated Husband had the minor children for more than twenty-nine consecutive days. The referee concluded she did not have jurisdiction to modify Husband's child support obligation because there were no changes in circumstances since the supplemental decree was entered. The referee denied Wife's request for attorney fees but awarded Wife the cost of preparing the hearing transcript.

The referee entered her Report and Recommendation. Pursuant to SDCL 25-7A-22, the circuit court held a hearing on Husband's objections. Husband did not object to the facts found by the referee, but objected to her

conclusions of law. He objected particularly to the referee's conclusion that she was without jurisdiction to modify the child support obligation because no "change of circumstances" had been shown. More specifically, Husband argued the referee erred by failing to interpret "Child Support Guidelines of the State of South Dakota" as used in the supplemental decree to include the abatement statute and an income adjustment for alimony paid. Finally, Husband challenged the authority of the referee to assess the costs of the hearing transcript against him.

At the hearing, Husband further argued: (1) The abatement statute impliedly confers jurisdiction; and (2) the child support provision of the supplemental decree was vague. The circuit court affirmed the referee's conclusion that she did not have jurisdiction to modify the child support obligation under the "change of circumstances" rationale. The circuit court denied Wife's request for attorney's fees.

This case involves the application and interpretation of South Dakota's revised child support statutes, including the power of the court and referee to modify a divorce decree under SDCL 25-7A-22 and the effects of SDCL 25-7-6.6, -6.7, and -6.14. The construction of a statute is a question of law. *Meyerink v. Northwestern Public Service Co.*, 391 N.W.2d 180, 183 n. 5 (S.D.1986); *In re Petition of Famous Brands, Inc.*, 347 N.W.2d 882, 884 (S.D.1984). The referee's conclusions of law are fully reviewable on appeal. *Janke v. Janke*, 467 N.W.2d 494, 497 (S.D.1991). This case also involves the authority of referees to impose costs and the propriety of awarding attorney's fees. These matters are reviewed for a clear abuse of discretion. *See Shoop v. Shoop*, 460 N.W.2d 721, 726 (S.D.1990).

1. CHANGE OF CIRCUMSTANCES REQUIREMENT

SDCL 25-7A-22 furnishes the rules for modifying a child support obligation. It provides in pertinent part:

[A child support] obligor, an obligee or the assignee may file a petition ... to increase or decrease child support based on a change in circumstances. ... The matter shall be set for hearing before a referee ... appointed by the court, pursuant to statute, and after due notice to all parties.... The referee shall make his report to the court, recommending the amount of the monthly support obligation of the parent or for health insurance coverage. (Emphasis supplied).

SDCL 25-7-6.1 thru -6.17 provide the child support guidelines which are used to establish child support obligations. SDCL 25-7-6.14 provides, "An abatement of a portion of the child support may be ordered if a child spends more than twenty-nine consecutive days with the noncustodial parent." SDCL 25-7-6.7 provides in part:

Deductions from monthly gross income shall be allowed as follows:

....

(6) Payments made on other support and maintenance orders.

Husband points out the last two statutes do not require a change of circumstances. Husband argues the last two statutes are contradictory to the change of circumstance statute and interprets them to mean no change of circumstances is necessary to modify the supplemental divorce decree. He argues the only way to reconcile the statutes is by interpreting the latter two statutes as containing their own "per se" changes in circumstances. We disagree.

* * *

We have consistently required a party seeking modification of a child support order to demonstrate a change in circumstances occurring since the original child support order was entered. *Johnson v. Johnson*, 468 N.W.2d 648, 650 (S.D.1991); *Hoy v. Hoy*, 391 N.W.2d 685, 689 (S.D.1986); *State ex rel. Larsgaard v. Larsgaard*, 298 N.W.2d

381, 384 (S.D.1980).¹ This is true even though the original child support order was based on a stipulation entered into between the parties. *Brunick v. Brunick*, 405 N.W.2d 633, 635 (S.D.1987); *Jameson v. Jameson* (Jameson II), 306 N.W.2d 240, 242 (S.D.1981); *Blare v. Blare*, 302 N.W.2d 787, 791 (S.D.1981).

The change in circumstances requirement was adopted prior to the enactment of SDCL 25-7A-22 in 1986.

* * *

In 1986, the South Dakota Legislature amended SDCL 25-7-7 to provide a schedule and guidelines for setting child support obligations. 1986 S.D. Laws ch. 218, § 11. SDCL 25-7-7, as it then existed, included a proviso that "[a]ll orders for support entered and in effect prior to July 1, 1986, may be modified in accordance with the guidelines without requiring a showing of a change in circumstances from the entry of the order." *Id.* (Emphasis added). This proviso clearly indicated the legislature's familiarity with the change in circumstances requirement construed by this court. SDCL 25-7-7 was repealed in 1989. 1989 S.D. Laws, ch. 220, §19. A very similar proviso is currently codified at SDCL 25-7-6.13 which was enacted contemporaneously with SDCL 25-7-6.6, -6.7, and 6.14.² 1989 S.D. Laws, ch. 220. Indeed, most of what is now codified at SDCL 25-7-6.1, to -6.17 was formerly contained within SDCL 25-7-7. Thus, we must presume when the legislature reenacted the new child support guidelines, it intended to retain the change in circumstances requirement for modification. *See Campbell v. City of Chamberlain*, 78 S.D. 245, 100 N.W.2d 707 (1960); *Stormo*, 75 S.D. at 588, 70 N.W.2d at 834; *Cahalan v. Terry*, 73 S.D. 531, 45 N.W.2d 460 (1951).

A. Abatement,

As the discussion above indicates, the legislature was fully aware of the "change in circumstances" requirement when it reenacted child support guidelines in 1989. Nonetheless, it included a provision which permits a court to abate a party's child support when a child spends over twenty-nine days with the obligor spouse. SDCL 25-7-6.14. Contrary to Husband's argument, this provision does not mean such an event is a "per se" change of circumstances which would justify a *modification*.

In contrast to the meaning of modification, abate means: to demolish; to put an end to; to do away with; or to nullify, make void, or diminish. Webster's Third New International Dictionary 2 (1976). Use of the abatement language indicates the legislature contemplated the obligation would have already accrued when the obligor spouse seeks abatement. This construction is supported by the 1988 Report of the South Dakota Commission on Child Support (Commission Report) which prepared and recommended the 1989 amendments. That report states:

Courts throughout the state vary on their method of handling child support when a parent has the children for an extended time, such as an entire summer. Evidence revealed that the cost savings to the custodial parent when they do not have the children during substantial periods is approximately 30 to 50 percent. Therefore, the Commission is recommending the Court be allowed to grant a reduction during those extended periods of visitation. The Commission could not agree on any

¹ Ample authority from other jurisdictions requires a change in circumstances to have been outside the contemplation of the parties or of the court at the time the previous order was entered. *See, e.g., In re Marriage of Feustel*, 467 N.W.2d 261, 263 (Iowa 1991); *Phelps v. Phelps*, 477 N.W.2d 552, 555 (Neb.1991); *Sweeney v. Hoff*, 478 N.W.2d 9, 10 (N.D.1991). Obviously, *Whalen's* "change in circumstances" does not meet this standard since he knew the extended visitation and alimony payments would occur--as did the trial court--at the time the original decree was entered. However, since neither party raised this argument in their brief and it would be a case of first impression in South Dakota, we do not now adopt this requirement.

² SDCL 25-7-6.13 provides:
All orders for support entered and in effect prior to July 1, 1989 may be modified in accordance with the schedule without requiring a showing of a change in circumstances from the entry of the order. (Emphasis supplied).

particular recommended amount for the reduction. The proposed language provides an after-the-fact abatement to avoid the situation where a parent does not actually exercise extended visitation yet receives a reduction in child support. The Commission also recommends that this abatement only be allowed for periods of 30 days or more of continuous visitation to avoid the potential of the parents fighting over how many days they spend with the child, not out of a desire to spend time with their children, but out of a desire to reduce their child support.

Report of the South Dakota Commission on Child Support 15 (1988) (emphasis added--footnote deleted). Footnote nine of the Commission Report provides an illustration:

For example, if a parent exercises visitation in June for the entire month, he or she would be entitled to the abatement in the July child support. If a 50 percent abatement were allowed, the July payment would be reduced by 50 percent.

Id.

Modification of a divorce decree, on the other hand, implies an alteration which introduces or deletes some elements of the decree "but leaves the general purpose and effect of the subject-matter intact." *See Black's Law Dictionary* 905 (5th ed. 1979). Thus, there is no conflict between the change in circumstances requirement in SDCL 25-7A-22 and the abatement provision.

As Husband suggests, the extended visitation provides the basis for a trial court's abatement of accrued child support. While the court may have granted Husband an abatement after the visitation occurred, Husband did not petition for an abatement. Instead, he sought modification of his child support obligation prior to any visitation. Husband has not demonstrated a change in circumstances to justify a forward-reaching modification of his child support obligation. The stipulation provided for extended visitation with no abatement of child support. The circumstances simply have not changed since entry of the divorce decree.

B. Alimony Payments.

* * *

Here, Husband, an attorney, voluntarily negotiated for and entered into an agreement regarding child support. The very same agreement contained the alimony payments and the visitation schedule, including the extended visitation (which portion was drafted by Husband himself). Husband testified during cross-examination, "as a result of statutory factors, which I considered when I entered into that agreement, and the fact that, yes, I've met my obligation, that I'm entitled to a modification." Husband further testified, "I had looked at the law before that. I understand that I would be entitled to an abatement and that's why I'm here today.... I took into consideration the law in existence at the time, and the right to an abatement and the right to a decrease as a result of ... alimony payments made."

There is no indication the income level of either party has changed since entry of the supplemental decree. The only changes were the payment of alimony and the extended visitation of two of the three children with Husband, both of which were contemplated by the stipulation. This case reduces itself to a situation where Husband entered into a harsh bargain contemplating, through his own interpretation of the child support guidelines, an escape from the bargain a short time later. The situation was similar in *Jameson v. Jameson* (Jameson I), 90 S.D. 179, 239 N.W.2d 5 (S.D.1976) where the husband, with the advice of an attorney and tax experts entered into a harsh divorce stipulation which left little for himself. *Id.* 90 S.D. at 183, 239 N.W.2d at 7. There, we refused to construe the husband's subsequent realization that he could not carry out the terms of the stipulation as a change justifying a modification of child support.

Id. Likewise here, we cannot say there has been a change in circumstances sufficient to support a modification. It was incumbent on Husband to protect himself at the time he entered into the stipulation.

* * *

The referee and the circuit court were correct in refusing to modify the support obligation.

* * *

MILLER, C.J., and SABERS and AMUNDSON, JJ., concur.
HENDERSON, J., dissents.

Relief from HARSH BARGAINS?

On the matter of “relieving” a party from a harsh bargain, one might want to review the *Jameson* case which is a 1976 opinion discussed toward the end of the *Whalen* opinion. The litigation in the *Jameson* case surfaced again, long after the 1976 decision. In *Jameson v. Jameson*, 1999 SD 129, 600 N.W.2d 577, the SD Supreme Court reversed the trial court’s elimination of alimony based only upon the former husband’s retirement from medical practice at age 70. The court observed that “while retirement can be a change in circumstances, it is not automatic ... [and that] ... a decrease in earning, by itself, does not show a change in circumstances.” (Paragraph no. 16. 600 N.W.2d at 581.) This case also supports the notion seen in other cases (as well as in the prior appeal involving the same parties in this case) that it is not the role of the courts in modification proceedings to relieve a party of his or her “bad bargain.” Here, the former husband had entered into a “bad bargain” at the time of the divorce and had already been denied relief from that bad bargain in earlier litigation.

In *Weekley v. Weekley*, 1999 SD 162, 604 N.W.2d 19, the SD Supreme Court upheld the trial court’s determination that it lacked jurisdiction to modify a child support order entered by a California court. [The jurisdictional issues are discussed in Chapter Fourteen (the “Modification” chapter) of this book – in particular, see the “continuing jurisdiction” sections contained in the sub-chapters of Child Support modification and Alimony Modification.] In this case, however, the end result is that the primary custodial parent is required to pay child support to the non-custodial parent and the SD court is not permitted to consider a modification proceeding on the existing child support order. One issue addressed in this opinion deals with the fact that the wife had clearly entered into a “bad bargain” when she signed the Marital Settlement Agreement in California. Nonetheless, the majority opinion noted, with a quote and citations to the existing line of authority in South Dakota, that “it is not the role of courts in modification proceedings to relieve a party of his or her bad bargain.” (Paragraph no. 19, 604 N.W.2d at 24.)

On this matter of “bad bargains,” one might *compare* the case of *Klein v. Klein*, 500 N.W.2d 236 (S.D. 1993). Here the parties were married less than three years before wife filed for divorce. Without the benefit of an attorney husband agreed to pay her \$800 per month alimony and \$500 per month child support for the parties’ only child, an amount higher than that which was set in the guidelines chart. Two months after the divorce decree was entered, husband sought to set aside the decree, to eliminate alimony, and to bring child support down to the amount set in the guidelines. Husband asserted mistake, inadvertence, surprise, and excusable neglect due to his “emotional state of mind after the marriage breakdown.” The trial court denied relief to husband and the Supreme Court of South Dakota affirmed.

SJOLUND v. CARLSON

Supreme Court of South Dakota, 1994.
511 N.W.2d 818.

MILLER, Chief Justice.

Mitchel Allan Carlson (father) appeals the modification of Beth Ann Sjolund's (mother) child support obligation. We reverse and remand.

Father and mother were divorced in 1983. At that time, they agreed to an alternating custody arrangement for their four-year-old son. In 1985, the parties filed cross-motions requesting modification of the custody arrangement. As a result, the circuit court entered an order on October 28, 1986 granting the parties joint legal custody of the child. Father was awarded actual physical custody during the school year and mother was awarded actual custody during summer vacations. Neither party was ordered to pay child support.

In 1989, South Dakota established new child support guidelines codified at SDCL ch. 25-7. However, neither party requested any changes in child support at that time.

On January 10, 1992, father filed a motion for modification of the circuit court's previous child support orders (*i.e.*, the order that neither party pay child support). Father contended that the child support laws had changed in a manner that would make a child support order appropriate. Father's motion was heard on March 18, 1992. The parties agreed to the income earned by each party and how the calculations should be made to determine their respective child support obligations. The circuit court entered its findings of fact and conclusions of law on September 30, 1992. According to the parties' agreement and the child support schedule at SDCL 25-7-6.2, the circuit court found that their mutual child support obligation is \$394 per month. The circuit court further found father responsible for 70% of this amount and mother for 30%. Thus, the circuit court determined that father's child support obligation is \$276 per month while mother's is \$118 per month.

There was no dispute between the parties concerning the above calculations. However, in its findings and conclusions, the circuit court went on to determine that because father has custody during the school year and mother has custody during summer vacations, mother is responsible for her child support obligation only for the time the child actually resides with father (*i.e.*, approximately nine months a year). The circuit court further determined that father is responsible for his child support obligation only for the time the child actually resides with mother (*i.e.*, approximately three months a year). The circuit court totaled the parties' annual child support obligations finding that father would pay mother \$782 for calendar year 1992 and that mother would pay father \$1,060 over the same period of time.¹ The circuit court subtracted father's \$782 annual obligation to mother from mother's \$1,060 annual obligation to father and found a difference of \$278 a year that mother owes father. The circuit court divided the \$278 by the nine months of the year father has custody of the child and directed that mother pay father \$30.89 per month in child support for each of those nine months. Father appeals.

Although father presents his argument in three separate issues, the argument is repetitive and is more accurately reframed and addressed in the following single issue:

¹ These totals were based upon the precise number of weeks the child would spend with each parent as opposed to the nine month/three month approximation mentioned above. Irregardless, the approximate monthly breakdown suffices for purposes of our analysis in this decision.

ISSUE

DID THE CIRCUIT COURT ABUSE ITS DISCRETION IN CALCULATING MOTHER'S CHILD SUPPORT OBLIGATION?

* * *

Father argues that the circuit court abused its discretion in calculating mother's modified child support obligation by holding him responsible for "out of pocket" child support payments for the three months a year she has custody of the child and by totally abating her child support obligation during those three months. We agree.

We perceive two problems with the circuit court's modification order. First, the circuit court's offset of father's annual child support obligation against mother's treats him as though he were making his child support payments "out of pocket" during the three months a year she has custody of the child (*i.e.*, as though he were writing a \$276 check to mother three months a year). However, father is the primary custodial parent who has custody for nine months out of every year. SDCL 25-7-6.2 provides in pertinent part that, "The [child support] share of the custodial parent is *presumed to be spent directly* for the benefit of the child. The share of the noncustodial parent *establishes the amount of the child support order*." (emphasis added). Thus, father's \$276 monthly share of child support is not paid out of pocket to mother but is presumed to be spent directly for the benefit of the child. It is mother's \$118 monthly share of child support that establishes the amount of the child support order.²

While at first glance, the above conclusion might appear to result in an inequity to mother during the three months a year she has custody, it recognizes that father has certain fixed costs such as housing and utilities which are not eliminated when mother has custody. Thus, father's need for at least a portion of mother's child support does not necessarily end merely because mother may be exercising her custody rights to the child. Moreover, any inequity to mother can be adjusted by an abatement of her child support obligation during her custody period.

This brings us to the second problem we perceive with the circuit court's modification order. SDCL 25-7-6.14, the abatement statute, provides that, "[a]n abatement of a portion of the child support may be ordered if a child spends more than twenty-nine days with the noncustodial parent." (emphasis added). Statutes are to be accorded their plain, ordinary and popular meaning. *Whalen v. Whalen*, 490 N.W.2d 276 (S.D.1992). The word "portion" is defined as a "part" or a "share." *Webster's New Dictionary of the American Language* 465 (1975). Thus, SDCL 25-7-6.14 allows abatement of only a part of an obligor parent's support obligation for any period of time that the child spends more than twenty-nine consecutive days with the obligor. Although the statute provides no particular percentage of child support

² It is respectfully submitted that the child support schedule simply does not address shifting child support obligations even in a joint custody situation. Certainly, SDCL 25-7-6.2 does not address a joint custody arrangement. The statute addresses only a "custodial parent" and a "noncustodial parent" and, "the amount of the [note use of the singular] child support order [not the plural, "orders"]." SDCL 25-7-6.2 (emphasis added). What then of the parent who, like mother, exercises temporary custody rights for extended periods of time and, undoubtedly and indisputably, incurs increased expenses as a result of those custody periods? One solution is the abatement statute addressed in the body of this opinion. Another solution is a deviation from the child support guidelines based upon SDCL 25-7-6.10(5) which allows a deviation based upon, "[t]he effect of custody and visitation provisions including whether children share substantial amounts of time with each parent[.]" *See*, Report of the South Dakota Commission on Child Support 11 (1988) (Commission recommends a change in deviations to clarify offsetting child support obligations in shared physical custody situations). Based upon this provision, shifting or offsetting child support obligations in a joint custody situation may appropriately be addressed in terms of a deviation from the child support guidelines under SDCL 25-7-6.10(5). *See, id.* Here, however, no deviation from the child guidelines was sought by mother nor do the circuit court's findings of fact or conclusions of law address deviation in any respect or form. The central focus of the argument before the circuit court was an abatement of child support during mother's extended custody periods and it is obvious that abatement was central to the circuit court's reasoning in this case. For that reason and because abatement is the focus of the argument on appeal, the body of this opinion addresses the propriety of the abatement of child support in this case.

that may be abated, some guidance on this can be found in *Whalen, supra*. *Whalen*, quoted the following passage from the 1988 Report of the South Dakota Commission on Child Support (Commission Report) with approval:

Courts throughout the state vary on their method of handling child support when a parent has the children for an extended time, as an entire summer. Evidence revealed that the costs savings to the custodial parent when they do not have the children during substantial periods is approximately 30 to 50 percent. Therefore, *the Commission is recommending the Court be allowed to a reduction during those extended periods of visitation*. The Commission could not agree on any particular recommended for the reduction. *The proposed language provides an after-the-fact abatement* to avoid the situation where a parent does not actually exercise extended visitation yet receives a reduction in child support.

Whalen, 490 N.W.2d at 282 (emphasis original) (quoting Commission Report at 15) (footnote deleted). Based upon this provision of Commission Report, it would appear that the legislature contemplated an abatement within a reasonable range of thirty to fifty of the obligor parent's child support obligation for periods of extended visitation or custody that exceed 29 consecutive days.

Here, the circuit court's order essentially grants mother a one hundred percent abatement of her child support obligation during three months a year that she has custody of the child. This far exceeds the abatement of "a portion" of child support by SDCL 25-7-6.14. Based upon this erroneous total abatement of child support and further based upon the erroneous offsetting of the parties' mutual child support obligations, we hold that the circuit court's modification order constitutes an abuse of its discretion. Accordingly, we reverse the modification order and remand with instructions to the circuit court to set mother's child support obligation at the stipulated amount of \$118 per month.

Based upon the economic equities of the situation, the circuit court may grant mother a partial abatement of her monthly support obligation for the three months a year she has custody of the child. SDCL 25-7-6.14. An example of the form such an must take is provided in *Whalen, supra*:

For example, if a parent exercises visitation in June for the entire month, he or she would be entitled to the abatement in the child support. If a 50 percent abatement were allowed, the July payment would be reduced by 50 percent.

Whalen, 490 N.W.2d at 282 (quoting Commission Report at 15, n. 9). Applying this example in the instant case, an order of abatement could provide that if mother actually exercises her custody rights for 29 consecutive days in the months of June, July and August of each year, she is entitled to the appropriate percentage abatement of her child support obligation in the months of July, August and September of each year. It is important to recognize, however, that the abatement can only be granted "after-the-fact ... to avoid the situation where a parent does not actually exercise extended visitation yet receives a reduction in child support." *Whalen*, 490 N.W.2d at 282 (emphasis original) (quoting Commission Report at 15). Thus, any order granting a forward-reaching abatement of child support must be made expressly contingent on the obligor parent's actual exercise of an extended visitation or custody period in excess of 29 consecutive days according to the requirements of SDCL 25-7-6.14.⁴

Based upon the procedure and factors outlined in *Malcolm v. Malcolm*, 365 N.W.2d 863 (S.D.1985) and *Whalen, supra*, we deny father's motion for appellate attorney fees.
Reversed and remanded.

⁴ To the extent *Whalen, supra* may be construed as foreclosing a forward-reaching abatement of child support, it is hereby modified.

NOTES AND QUESTIONS

1. Eventually the South Dakota Supreme Court came to recognize that the trial court has some flexibility in applying the child support guidelines to "joint custody" arrangements. In *Alexander v. Hamilton*, 525 N.W.2d 41 (S.D. 1994), the trial court was affirmed in excusing the mother's payment of child support where the father was the dominant custodian. Mother was ordered to pay 30% of the child care payments incurred while the child was under the care of a specific child care provider. Deviation from the rigid child support guidelines was permitted under the authority of SDCL 25-7-6.10(5) because the child was sharing "substantial amounts of time with each parent." (This deviation factor was repealed in 2001.)

2. Should a parent be able to alleviate herself from a child support obligation by attending school? What about SDCL 25-7-6.4? See *Kost v. Kost*, 515 N.W.2d 209 (S.D. 1994).

3. The matter of health and dental insurance is discussed in SDCL 25-7-6.16. The first sentence states that the court "may" enter an order for coverage; however, the next sentence indicates that "Medical insurance shall be provided for the benefit of the minor child whenever practical." The costs "shall be apportioned between the parents on the basis of income or income imputed as provided in Sections 25-7-6.1 to 25-7-6.17." A parent who pays the entire amount *shall* receive either reimbursement or credit for the other parent's share.

A. A non-custodial spouse may not claim credit off the child support award for 100% of the premium he is paying — he may obtain credit for only the proportionate share which the custodial spouse is required to bear. *Janke v. Janke*, 467 N.W.2d 494 (S.D. 1991).

B. consider the situation where the father's disability checks are forwarded directly to the mother (the custodial parent) to cover his child support obligation. Father also carries health insurance for the children through his employer. If mother is to pay her share of the health insurance, she would actually need to reimburse the father \$44 per month. Under these circumstances, should the court order the mother to pay her share to the father? See *Schwab v. Schwab*, 505 N.W.2d 752 (S.D. 1993).

4. Under the 1997 amendments, the first \$250 of uncovered medical expenses for the child is to be borne by the custodial spouse, with the excess above the \$250 to be apportioned between the parties. SDCL 25-7-6.16. The new grid seen in SDCL 25-7-6.2 assumes that the first \$250 in child care costs will be spent by the custodial parent and the non-custodial parent's contribution is computed accordingly. In process of making this change, the legislature was persuaded by the argument that custodial spouses needed an incentive to avoid running up unnecessary costs which are borne primarily by the non-custodial spouse -- costs like those incurred for taking a child to an emergency room for treatment of a condition that a doctor's visit could easily handle.

5. The parties' settlement agreement in *Culhane v. Michels*, 2000 SD 100, 615 N.W.2d 580, required father to keep medical insurance on the children and for mother to pay those expenses not covered by insurance. The divorce decree expressly "adopted" this agreement, but the relevant sentence addressing mother's obligation was omitted from the decree. The South Dakota Supreme Court held that the mere omission of the relevant language did not create an "actual conflict" between the agreement and the decree where the court otherwise expressly "adopted" the agreement. Mother's obligation is as per the agreement.

6. The matter of "abatement" was dramatically changed by the 1997 legislature which amended SDCL 25-7-6.14. The matter of "credit for child support" during the time the obligor has primary physical custody was also addressed by the 1997 legislature. See SDCL 25-7-6.19. (Both of these changes are discussed in more detail in the

chapters on "Modification" and "Enforcement.")

7. Abatement – is it to be taken against full month or just the pro-rated portion? In *Reider v. Schmidt*, 2000 SD 118, 616 N.W.2d 476, the trial court allowed an abatement of 40% of father's child support obligation, but directed that the 40% be deducted only from the pro-rated portion of child support covering the days which father actually had the children. Instead of receiving an abatement of 40% applied directly against his monthly obligation, father was permitted to take 40% off of the pro-rated portion which is computed by dividing the number of days actually spent with father divided by the total number of days in the month. The South Dakota Supreme Court reversed, holding that the abatement should be applied against the full monthly obligation under the plain language of SDCL 25-7-6.14. [Editor's note: The 2001 South Dakota Legislature amended SDCL 25-7-6.14. The most recent version of this statute is not the same as that construed by the South Dakota Supreme Court in this decision.]

8. **Modification made because such is "equitable under the circumstances" fails to satisfy "substantial change in circumstances" requirement imposed for modification attempts brought within 3 years of entry of child support order.** In *Heiss v. Heiss*, 2008 SD 95, 757 N.W.2d 151, husband was ordered to pay child support in the amount of \$1350 per month pursuant to the parties' stipulation. Three months after the divorce decree was entered, husband sought to lower his child support. The referee lowered his support to \$1026 per month effective 10/1/07 and then to \$703 per month effective 4/1/08. The Circuit Court adopted the referee's recommendations. The SD Supreme Court reversed, holding that husband failed to show a "substantial change in circumstances" as required by SDCL 25-7A-22 for modifications sought within 3 years after the entry of the child support order. The referee's statement that it would be "equitable under the circumstances to provide relief" was the wrong legal standard. Mother was awarded \$2,000 in appellate attorney fees. This opinion is authored by Justice Zinter and is a unanimous decision.

9. **Collateral attack on 1995 child support determination fails notwithstanding state's failure to give 3 day notice prior to securing default judgment against defendant who had "appeared" in action.** *State v. Brandt*, 2008 SD 33, 748 N.W.2d 766 involves a collateral attack (motion to set aside a default judgment) filed in 2007 against a child support adjudication entered in 1995. When the defendant (who was never married to the child's mother) was first served with process in 1993 he requested DNA testing to verify paternity. Mother left the state shortly thereafter and the state advised the defendant that the case was being closed at that time, but that it was subject to being reopened if mother returned to South Dakota. Defendant (who was then residing in Arizona) was served with a 2nd summons and complaint in December, 1994 and a default judgment was entered thereon in February 1995. The default judgment assessed an arrearage award of \$12,572 and establishing an ongoing support obligation of \$368 per month. Defendant's collateral challenge was based on the assertion that he was denied the minimum 3 day notice required by SDCL 15-6-55(b)(1) prior to entry of a default judgment because he was a defendant who had "appeared" in the action. Defendant argued that his request for DNA testing constituted the necessary "appearance" which would trigger the 55(b)(1) three day notice requirement. Both the trial court and the SD Supreme Court upheld the default judgment. The SD Supreme Court held that the request for DNA testing did in fact constitute an appearance, but that the 2nd summons and complaint started a second action as to which the defendant defaulted. The Court also held that the defendant's motion for relief under SDCL 15-6-60(b)(6) was not "within a reasonable time" and that the defendant was further barred in his effort to relitigate paternity by the doctrines of laches and judicial estoppel. The SD Supreme Court decision is unanimous with the Court's opinion being written by Justice Sabers.

10. **Child Support order in dispute between parties acting pro se affirmed in *Wagner v. Wagner*, 2006 SD 31, 712 N.W.2d 653.** Father's child support obligation was set in the parties' 1999 divorce decree. Since that time, nine petitions for modification of child support have been filed. In the ninth proceeding, the father refused to cooperate with the referee. He refused to answer questions relating to residence and income. The referee ascertained income information for the father from the Department of Labor and set his child support obligation at \$597 per month. The

circuit court affirmed and the father appealed to the South Dakota Supreme Court, acting pro se. The mother defended the appeal, also acting pro se. The ruling was affirmed by an unanimous per curiam opinion by the South Dakota Supreme Court. The following rulings were part of this decision:

- 1) father's allegations of perjury against mother and referee were rejected;
- 2) father's request for writ of mandamus to require the arrest and prosecution of mother and referee was denied;
- 3) allegation of the existence of federal felony convictions of mother was not material to issue of child support;
- 4) referee's use of outside sources for determination of father's wages was not prejudicial to father where father ultimately affirmed the figures (although the opinion specifically states in footnote 4 that "We express no opinion on the propriety of [the referee's] procedure.");
- 5) father's request for costs and damages were denied because he failed to prevail on any issue.

11. Failure to adequately support child is relevant factor for court's consideration in determining the "best interests and welfare" of a child in connection with custody decision. The trial court took up a modification of custody request filed by father in *Pietrzak v. Schroeder*, 2009 SD 1, 759 N.W.2d 734. The key issue in this dispute concerning the mother's behavior appears to be her tendency to cause parental alienation in connection with the child's relationship with the father. The key issue concerning the father's behavior revolves around his ongoing failure to pay child support. The trial court "held that the child support dispute was irrelevant to the custody matter" (§ 32) and ruled for father. The SD Supreme Court reversed in a 3/2 decision. The Court's opinion is authored by Chief Justice Gilbertson. Justices Zinter and Meierhenry dissent. As to the matter of child support, the Court holds that father's behavior is an important and relevant consideration because the duty to support one's child is "paramount" and part of the calculus of determining the "best interests and welfare" of the child. Additionally, the Mother was awarded \$5,000 in appellate attorney fees. Following are some comments made by the Court in this case:

To suggest that a father with a net worth over \$600,000 and cash flow limitations from his farming operation should be excused from timely paying a \$363.00 monthly child support obligation is an invitation to any parent experiencing financial difficulties (real or imagined) to refuse to comply with support obligations. Furthermore, [Father's] repeated use of the legal system to deny [Mother] child support payments was not appropriate parental conduct. § 52.

This was not a case of choosing between two equally satisfactory parents. The difference between the parents that becomes clear on review is their respective ability and willingness to provide for [child's] basic food, shelter and clothing needs. Father demonstrated a clear disregard for [child's] wellbeing when he fought tooth and nail to maintain his child support obligation for [child] at \$150.00 per month, especially in light of [Mother's] modest part-time income, higher education expenses, and lack of assets. [Father] used the full power of his financial resources to keep from paying an additional \$213.00 per month for the basic necessities of life for his child. Instead, [Father] expended at least \$3,678.61 for [Mother's] attorney fees which he was court ordered to pay, in addition to his own legal expenses. As previously noted, [Father] finally paid his overdue child support in the amount of \$3,570.00 the week before trial and \$2,530.78 in medical expenses on day two of the trial... While the trial court did find [Father's] past failure to pay his support obligation "troubling," it found it was not a serious concern. § 54

On review, we consider [Father's] failure to adequately support his child of grave concern... [Father's] failure to adequately provide for his child cannot be justified. "Paramount" means just that – paramount with no caveats. § 55.

B. Child Support Guidelines

6. Social Security Payments

In the *Nelson* opinion which follows, keep in mind that this case arose at the time the 1986 child support guidelines were in effect. Note that the concurring opinion of Justice Henderson praises certain reform made with the 1989 amendments.

Even though the statutes are considerably different today (for example, the child support grid now goes up to \$10,000 for combined net monthly income), the issues addressed in this opinion are still viable. The initial part of the opinion deals with the continuing problem of a party who attempts to “hide income” and who is less than forthright in revealing financial information. The latter part of the opinion deals with the matter of social security payments made because of a child’s disability and the issue of who, if anyone, should receive credit for those payments.

In the notes following the *Nelson* case, the social security payments are being made not because of the disability of a child, but because of a parent’s disability. The difference is substantial!

NELSON v. NELSON

Supreme Court of South Dakota, 1990.
454 N.W.2d 533.

MORGAN, Justice.

Jerome Scott Nelson (Jerome) appeals from a judgment and decree of divorce entered on January 20, 1989, granting such divorce to Jerome and Connie Kay Nelson (Connie). We affirm.

Jerome and Connie were married on August 23, 1975. Three children were born during the marriage: Laura (dob Nov. 29, 1977); Adam (dob Jan. 19, 1981); and Aaron (dob June 2, 1982). Adam has a serious ongoing medical problem (a cyst on the brain) which requires constant medication, observation, and intermittent hospitalization. Because of this disability, Adam receives \$299 per month from the Social Security Administration as a Supplemental Security Income Disability (SSID) payment.

By stipulation between the parties, a divorce was granted on the grounds of irreconcilable differences. Both parties agreed that Connie would have custody of the minor children, with reasonable visitation rights given to Jerome.

Jerome, who is thirty-two years of age, was employed by his father on his father's farm. He was paid a net monthly wage of \$591.92, plus the use of his father's equipment for use on his own farming operation. Jerome testified that his father only took a portion of the social security tax out of his monthly wage. He did not offer a figure of what the proper tax deduction should have been.

Jerome's farming operation consisted of four hundred acres on a crop/share basis. In 1988, he changed from a crop/share basis to cash/rent basis, making it difficult to predict his future income.

By Jerome's figures, he made \$13,500 in 1988. Additionally, he received a \$5,604 ASCS payment. The trial court also found that Jerome padded his business expenses and personal deductions to compute the \$13,500 income figure. Further, the trial court found that he sold grain in other people's names to avoid declaring it as income. After reviewing all this evidence, the trial court determined that Jerome made at least \$1,578 per month. Connie is employed as a licensed practical nurse, with a net monthly income \$652.90.

The trial court determined that Jerome possessed property worth \$8,317.71 and Connie possessed property worth \$3,554.11. Further, Connie incurred a debt of \$1,145.88 in supporting the minor children during the separation. The trial court ordered Jerome to pay Connie \$2,964.74. This sum represents half the value of the property Jerome was allowed to retain and half the amount of the debt incurred by Connie in supporting the minor children. The trial court set Jerome's child support payments at \$578 per month. The SSID payment received by Adam was not credited to either party's income.

On appeal, Jerome raises three issues:

- (1) Whether the trial court abused its discretion in determining the amount of Jerome's income for child support purposes.
- (2) Whether the trial court abused its discretion in determining that Jerome's child support should not be reduced because of Adam's SSID payments.
- (3) Whether the trial court abused its discretion in dividing the marital property. We will address each issue separately.

DETERMINATION OF INCOME FOR CHILD SUPPORT

Before Jerome may prevail on this issue, he must show that the trial court abused its discretion in setting his child support. *Peterson v. Peterson*, 434 N.W.2d 732, 734 (S.D.1989). We do not "determine whether [we] would have made an original like ruling, but whether we think a judicial mind, in view of the law and circumstances of the particular case, could reasonably have reached a conclusion." *Havens v. Henning*, 418 N.W.2d 311, 312 (S.D.1988).

Under SDCL 25-7-7 (repealed March 1989) as it then existed, the trial court, pursuant to the statutory guideline, set Jerome's support at \$578 per month because his net income was at least \$1,500 per month. Jerome argues that the trial court abused discretion in arriving at his income figure to set child support. He claims three errors in arriving at the figure: (1) the trial court should have averaged his income for the last five years to arrive at an income figure; (2) the trial court improperly credited an ASCS payment to his income that he was required to repay; and (3) the trial court improperly credited income to him because of a loaner agreement for farm equipment with his father. We address them in that order.

First, Jerome's attempt to read *Studt v. Studt*, 443 N.W.2d 639 (S.D.1989), to require five-year income averaging when a farmer is involved is not well taken. While it is true that the trial court in *Studt* used a five-year averaging method, there is nothing within the opinion that mandates it. More critically, there is nothing within SDCL 25-7-7 that requires income averaging. The statute as it then existed provided:

For an obligor with net income above one thousand five hundred dollars, the child support obligation shall be established at an appropriate level. However, in no case may the amount of support ordered be less than the amount as provided at the one thousand five hundred dollar net income range.

On a practical level, income averaging would have been an inaccurate means under these facts to arrive at an

income figure. The court found that Jerome had padded his tax returns and sold grain under other people's names to avoid declaring it as income. Additionally, the loaner agreement on equipment disguised income that he should have received. It would have merely compounded the difficulty the trial court had in arriving at an income figure by using Jerome's inaccurate figures from the previous five years.

Second, Jerome claims the trial court erred in including a \$5,604 ASCS payment he received for grain, since he was forced to repay the majority of this money. The only evidence at trial that Jerome had to repay this money was Jerome's hearsay testimony. The judge chose not to believe his testimony. Since the trial judge had the opportunity to judge Jerome's credibility and weigh his testimony, we will not disturb his finding on the ASCS payment unless it is clearly erroneous. *Hanks v. Hanks*, 296 N.W.2d 523 (S.D.1980); *Spaulding v. Spaulding*, 278 N.W.2d 639 (S.D.1979); *Isaak v. Isaak*, 278 N.W.2d 445 (S.D.1979); *Holforty v. Holforty*, N.W.2d 810 (S.D.1978). There is plentiful evidence, supplied through Jerome's own admissions on the witness stand, that he was less than truthful in supplying accurate data about his income. We do not find the trial court's finding that he received \$5,604 an ASCS payment was clearly erroneous. *Hanks, supra*; *Spaulding, supra*; *Isaak, supra*; *Holforty, supra*.

Third, Jerome claims the trial court overstated his income for child support purposes because it imputed income to him based upon the loaner agreement he had with his father. At trial, no specific dollar value was placed on the use of the machinery. There is no proof that the trial court imputed this income. Jerome now claims that any amount of increase in income he would receive from the use of this income would be offset by the amount it would cost him to rent this same equipment.

Even without "imputing" income because of this loaner agreement, the record justifies the trial court's determination of Jerome's income. By Jerome's figures, he shows an income of \$13,500.⁵ He admitted in the past that he had sold grain under another name and received \$750.83. The trial court also found that Jerome had padded his business expenses with personal items. Taking Jerome's admitted income of \$13,500 and adding the \$5,604 ASCS payment, which the trial court legitimately did with the evidence in front of it, Jerome's income was at least \$19,159. This set his monthly income at \$1,578. The trial court set child support at \$578, which was a conservative figure. Since his income exceeded \$1,500 per month, the trial court could have set it at a higher figure under the then existing SDCL 25-7-7. We do not find that the trial court abused its discretion in determining Jerome's income and setting appropriate child support. *Peterson, supra*.

SOCIAL SECURITY BENEFITS

Jerome next contends that the trial court should have considered the social security payments received by Adam as third-party income received by Connie and the family because the \$299 Adam receives is deposited into the family checking account. Connie argues that the social security benefits are intended as a supplement for Adam's medical expenses, not a substitute for child support. We agree.

Before we may reverse the trial court on this issue, Jerome must show that the trial court abused its discretion in making its award of child support. *Peterson, supra*.

Jerome predicates his argument solely on SDCL 25-7-6.10:

⁵ Jerome claims this figure is too high because it does not reflect a complete tax deduction. Yet, Jerome never supplied evidence of how much more should have been deducted. Faced with this incomplete record, we presume the trial court acted properly. *Isaak, supra*; *Schurman v. Schurman*, 60 S.D. 489, 245 N.W.2d 39 (1932).

Deviation from the schedule in § 25-7-6.2 shall be considered if raised by either party and made only upon the entry of specific findings based upon any of the following factors:

(1) The income of a subsequent spouse or contribution of a third party to the income or expenses of that parent but only if the application of the schedule works a financial hardship on either parent[.]

The trial court found that Adam has a serious ongoing medical condition that requires constant medication, observation, and intermittent hospitalization, and that \$299 per month paid by Social Security was for Adam's benefit and should not be used to lower either parent's child support obligation.

Without any precedent to support his position, Jerome argues that the trial court abused its discretion because Connie puts Adam's Social Security payment into her checking account from which she pays bills. This ignores the obvious facts that, regardless of where the check is deposited, it is still accounted for in subsidizing Adam's medical care and treatment.

Faced with the identical question, an Ohio court decided that the income received under SSID payments should not be attributed to parent's income. In *Oatley v. Oatley*, 57 Ohio App.2d 226, 387 N.E.2d 245, 246 (1977), the court explained why these payments should not be considered income to the parent.

The supplemental income payments are intended to insure a minimum level of income for persons who are over age 65, or blind, or disabled, who do not have sufficient income and resources to maintain a standard of living at the established federal minimum income level. Title 42, Section 1381, U.S. Code; 20 C.F.R., Section 416.110. The amount of supplemental income an eligible individual will receive is based on his income and resources. Title 42, Section 1381a, U.S. Code. In calculating an individual's income, if the individual is a child the support he receives from an absent parent is to be considered. Title 42, Section 1382a(b)(9), U.S. Code. There is a redetermination of eligibility and the amount of benefits at frequent intervals. Title 42, Section 1382(c)(1); 20 C.F.R., Section 416.222. The supplemental security income payments are intended to supplement other income, not substitute, for it. The amount of supplemental security income received is modified as the amount of the recipient's other income changes, not vice versa.

See generally Anderson v. Powell, 235 Ga. 738, 221 S.E.2d 565 (1975) (parent's income not credited with supplemental security income payment); *Thompson v. Thompson*, 205 Kan. 630, 470 P.2d 787 (1970) (contributions from governmental agencies will not diminish parent's obligation to furnish child support).

Jerome's argument that his child support should be tied to the amount of SSID payments ignores the mechanics of the Social Security system. The trial court should not set child support payments based on SSID payments, since under Social Security regulations, SSID payments are based on the parent's support payments, and are raised or lowered by the amount of the parent's support. These payments are paid to provide supplemental income to cover a disability, not as a substitute for child support. Since we agree with *Oatley's* reasoning, we hold that the trial court did not abuse its discretion in not granting a deviation from child support schedule, since the income is provided to Adam, not the parent. *Oatley, supra*; SDCL 25-7-6.10.

* * *

Affirmed.

HENDERSON, Justice (concurring in result).

There is but one facet of this opinion which causes me to concur in result. In my past writings, I have taken the position that minimum statutory guidelines should not turn a judge into a robot nor an automaton. *Feltman v. Feltman*, 434 N.W.2d 590 (S.D.1989); *Donohue v. Getman*, 432 N.W.2d 281, 283 (S.D.1988) (Henderson, J., specially concurring); *Peterson v. Peterson*, 434 N.W.2d 732, 739 (S.D.1989) (Henderson, J., concurring in part and concurring in result in part). We need an independent judiciary, infusing judgment into cases and not to be bound by the dictates of Washington, D.C. bureaucrats who would strip us of our experience and brain power. Therefore, language in this opinion is conceptually unpalatable to those previous writings.

* * *

Is the battle for trial judges to finally engineer their minds--with a degree of independence--finally at end? Note to those domestic practitioners and readers of the fine print: A 1989 amendment, by the South Dakota State Legislature SDCL 25-7-6.10 expresses:

Deviation from the schedule in SDCL 25-7-6.2 shall be considered if raised by either party and made only upon the entry of specific findings based upon any of the following factors.

(2) Any financial condition of either parent which would make application of the schedule inequitable;

Ah, the Lady of Equity is back at our door. "Oh, she doth teach the torches to burn bright; it seems she hangs upon the cheek of night like a rich jewel in an Ethiop's ear."

William Shakespeare, in Sonnets
CVI, Romeo and Juliet I.v.

She is imbued with beauty and needs a tender judicial application.

* * *

NOTES

1. Social Security benefits which are as a result of the non-custodial parent's disability may be directed to the custodial parent and the non-custodial parent should be given credit for those payments. *Hawkins v. Peterson*, 474 N.W.2d 90 (S.D. 1991). The 2005 legislature added a new section to SDCL 25-7 which preserves the rule for social security payments under *Hawkins v. Peterson* and also applies (expands) the same rule so as to include veteran's disability benefits and social security retirement benefits received on behalf of the child. This brings SD into alignment with the majority of the states relating to treatment of these types of payments. In particular, Section 1 of SB 60 states: That chapter 25-7 be amended by adding thereto a NEW SECTION to read as follows:

25-7-6.21. Credit on monthly support obligation for social security or veteran's dependent benefits. If the child receives social security or veteran's dependent benefits as a result of the obligor's disability, or social security retirement benefits from the obligor, the obligor is entitled to a credit to the amount of the monthly support obligation.

2. An interesting scenario developed in the *Grunewaldt v. Bisson*, 494 N.W.2d 193 (S.D. 1992). Father was disabled and received two disability checks. Mother was awarded custody of the two children at the time of the divorce. To satisfy his child support obligation, father turned over his disability checks to mother. In 1990 father was

awarded custody of one child and, as a result, only turned over one of his disability checks to mother who retained custody of the other child. In 1992, father was awarded custody of the second child also. The trial court ruled that father could keep both of his disability checks, but that mother owed no child support to father. What result on appeal? Compare SDCL 25-7-6.10(1).

3. Both the trial court and the South Dakota Supreme Court in *Nelson* allowed for a recomputation of the husband's income because of "padded expenses" and the use of devices to disguise receipt of income. (e.g. selling grain in another person's name, using a "loan agreement" with a relative.) Such is consistent with the philosophy of SDCL 25-7-6.6. Compare *Grode v. Grode*, 543 N.W.2d 795, 804 (S.D. 1996) where the trial court was affirmed when it decided *not* to make similar adjustments to husband/farmer's income because of the unpredictability of farming.

Fluctuation In Social Security Payment Amounts – Effect?

Consider the scenario where a disabled non-custodial parent utilizes his social security payment as a "substitute for" or a "supplement to" the out-of-pocket payments on his child support obligation to the custodial parent. What happens when the amount of the social security payment increases? In particular what happens when it increases and there is no immediate adjustment made in the existing child support order? This is what transpired in *Crago v. Donovan*, 1999 SD 67, 594 N.W.2d 726, where the father's disability checks kept fluctuating upward. His checks went from \$49 per month, to \$68 per month, then to \$146 per month, then to \$324 per month, then to \$334 per month, then to \$342 per month, then to \$352 per month. As these "increases" took place, father paid, out of his own pocket, the balance necessary to meet or exceed the existing child support order of \$335 per month. Eventually the day of reckoning came after custody was transferred to father and mother claimed that father owed an arrearage of some \$12,895 for a period of several years. With support from case law in Iowa and North Dakota, mother argued that each child support payment was a past-due obligation and it could not be retroactively modified under SDCL 25-7-7.3. The trial court found for father, offsetting his arrearage by the social security benefits the children received. The SD Supreme Court affirmed, rejecting the case authorities from Iowa and North Dakota. The Court looked to a recent ALR annotation and pointed out that Iowa and North Dakota were in the minority. The majority view makes a distinction between attempts to retroactively increase or decrease a specific dollar amount ordered (which would be prohibited as an attempt to retroactively modify support) and between payments from another source which are to be *credited* against a child support obligation. "Thus, the increased Social Security benefits were immediately effective as a credit against Father's child support obligation and could not constitute a retroactive modification." (Paragraph 12, 594 N.W.2d at 730).

"Love your neighbor as yourself – but don't take down your fence."

Carl Sandburg

Chapter Ten

Division of Property

A. Introductory Comments — Relevant Statutes

The next three chapters could easily be combined into one chapter covering “Property & Alimony.” Just as easily, there could be simply two separate chapters, one on “Property” and one on “Alimony.” Instead of either approach, there is an attempt in this book to treat each subject separately and, between the two, present “crossover issues.” Regardless of the arbitrary designation of titles, the alert student will continue to observe the close interrelation of all issues that exists in divorce proceedings. This is ever so true with respect to “division of property” and “alimony.”

Unlike the problem of child support, there are very few statutes which control the division of property function of the court in South Dakota. Four of the most important statutes are reproduced below. Of these four statutes, the third one, SDCL 25-4-44, is the primary source of guidance in virtually every case. The other three statutes are important, but certainly are not involved in every case.

CHAPTER 25-4: DIVORCE AND SEPARATE MAINTENANCE

25-4-33.1 Automatic temporary restraining order upon service — Modification or revocation. Upon the filing of a summons and complaint for divorce or separate maintenance by the plaintiff, and upon personal service of the summons and complaint on the defendant, a temporary restraining order shall be in effect against both parties until the final decree is entered, the complaint dismissed, or until further order of the Court:

(1) Restraining both parties from transferring, encumbering, concealing or in any way dissipating or disposing of any marital assets, without the written consent of the other party or an order of the court, except as may be necessary in the usual course of business or for the necessities of life, and requiring each party to notify the other party of any proposed extraordinary expenditures and to account to the court for all extraordinary expenditures made after the temporary restraining order is in effect;

(2) Restraining both parties from molesting or disturbing the peace of the other party;
and

(3) Restraining both parties from removing any minor child of the parties from the state without the written consent of the other party or an order of the court.

The provisions of the temporary restraining order shall be printed upon the summons and shall become an order of the court upon fulfillment of the requirements of service. However, nothing in this paragraph precludes either party from applying to the court for any further relief or for the modification or revocation of any order.

Source: SL 1986, ch 212.

25-4-42 Security for payments required of spouse -- Receivership -- Allowance withheld when recipient's estate sufficient. The court may require a spouse to give reasonable security for providing maintenance, or making any payments required under the provisions of this chapter, and may enforce the same by the appointment of a receiver, or by any other remedy applicable to the case. But when a spouse has a separate estate sufficient to give that spouse proper support, the court in its discretion may withhold any allowance to that spouse out of the separate property of the other spouse.

25-4-44 Division of property between parties. When a divorce is granted, the courts may make an equitable division of the property belonging to either or both, whether the title to such property is in the name of the husband or the wife. In making such division of the property, the court shall have regard for equity and the circumstances of the parties.

25-4-45.1 Fault not considered in awarding property or child custody -- Exceptions. Fault shall not be taken into account with regard to the awarding of property or the awarding of child custody, except as it may be relevant to the acquisition of property during the marriage or to the fitness of either parent in awarding the custody of children.

NOTE (Concerning the “Automatic” Restraining Order”)

Husband and wife had been married for 20 years when wife sued for divorce. Wife was diagnosed with terminal cancer shortly after the divorce proceeding was started. Wife died before the divorce went to court. One day before her death, Wife executed a quitclaim deed to the parties’ property to her father, as a straw party, who then immediately quitclaimed all the property back to Wife. Wife did this in an effort to prevent Husband from receiving all the property as surviving joint tenant. In a probate proceeding, the court nullified the transactions, asserting that the straw transactions violated the statutory restraining order found in SDCL 25-4-33.1. The estate sought to appeal, but the trial court appointed two other representatives who tried to abandon the appeal. *In Re Estate of Hoffman*, 2002 SD 129, 653 N.W.2d 94. The South Dakota Supreme Court reversed, holding:

1) The statutory restraining order restrains the parties from “transferring, encumbering, concealing or in any way dissipating or disposing of any marital assets.” (Language from SDCL 25-4-33.1) The severance of a joint tenancy, which resulted in Husband and Wife still holding title to the property as a tenants in common was not a violation. “All the marital property conveyed in the straw transactions was still available for appropriate disposition, either in probate or, were it possible, in the divorce proceeding.” ¶ 12. The Court also held that the straw transactions did not constitute an “encumbrance.”

2) The trial court erred in entering its order appointing additional representatives for the estate (to try to thwart the appeal) because “judges may not enter an order having the effect of interfering with appellate review of a judgment.” ¶ 17.

3) Lest this opinion be taken as encouragement for avoiding the statutory restraining order, the Court cautioned, “We think it vital to emphasize that our holding today should not be seen as an invitation to divorcing spouses to find creative ways to evade the statutory automatic restraining order. By far, the best procedure is for a party to seek consent from the other spouse or court permission before attempting any conveyance. Nonetheless, the language of our statute does not explicitly prohibit the transactions in question here.” ¶ 15.

B. The “Marital-Separate” Distinction

Many states recognize that there is a distinction between “marital property” and property which is “separate” -- property which a spouse owns separately and which is not included in the marital estate.

In those states which recognize this distinction, the separate or “non-marital” property (if there is any) is set over to each spouse before the court begins to divide the marital estate in the divorce process. A spouse owning “separate” or “non-marital” property will lose the advantage if he or she makes a gift of the separate property to the marital estate. For example if a spouse re-titles separate property as property which is jointly owned, then the re-titling of the property becomes evidence that the spouse intended to make a gift of that property to the marital estate.

Sample statutes from Missouri (Section 452.330) and Texas (Section 3.001, Texas Family Code) are set forth below:

From the Missouri Revised Statutes:

452.330. Disposition of property, factors to be considered

1. In a proceeding for dissolution of the marriage or legal separation, or in a proceeding for disposition of property following dissolution of the marriage by a court which lacked personal jurisdiction over the absent spouse or lacked jurisdiction to dispose of the property, the court shall set apart to each spouse his nonmarital property and shall divide the marital property * * *

2. For purposes of sections 452.300 to 452.415 only, “marital property” means all property acquired by either spouse subsequent to the marriage except:

- (1) Property acquired by gift, bequest, devise, or descent;
- (2) Property acquired in exchange for property acquired prior to the marriage or in exchange for property acquired by gift, bequest, devise, or descent;
- (3) Property acquired by a spouse after a decree of legal separation;
- (4) Property excluded by valid written agreement of the parties; and
- (5) The increase in value of property acquired prior to the marriage or pursuant to subdivisions (1) to (4) of this subsection, unless marital assets including labor, have contributed to such increases and then only to the extent of such contributions.

3. All property acquired by either spouse subsequent to the marriage and prior to a decree of legal separation or dissolution of marriage is presumed to be marital property regardless of whether title is held individually or by the spouses in some form of coownership such as joint tenancy, tenancy in common, tenancy by the entirety, and community property. The presumption of marital property is overcome by a showing that the property was acquired by a method listed in subsection 2 of this section.

4. Property which would otherwise be nonmarital property shall not become marital property solely because it may have become commingled with marital property.

* * *

From the Texas Family Code:

§ 3.001. Separate Property

A spouse's separate property consists of:

- (1) the property owned or claimed by the spouse before marriage;
- (2) the property acquired by the spouse during marriage by gift, devise, or descent; and
- (3) the recovery for personal injuries sustained by the spouse during marriage, except any recovery for loss of earning capacity during marriage.

Prior to taking up the South Dakota material which follows, the student should re-examine SDCL 25-4-44 reproduced above.

RADIGAN V. RADIGAN

Supreme Court of South Dakota, 1991.
465 N.W.2d 483 (S.D. 1991)

* * *

South Dakota is an “all property” state. Under SDCL 25-4-44, all property of either or both divorcing spouses is subject to equitable division by the court, regardless of title or origin.

* * *

HENRICHS v. HENRICHS

Supreme Court of South Dakota, 1988.
426 N.W.2d 569.

SABERS, Justice.

Wife appeals award of alimony and property distribution. Husband appeals claiming excessive alimony award.

Gerald (Jerry) and Marvella (Marvella) Henrichs were married in May of 1954. Three children were born; all were adults at the time of the divorce action. In 1966, Jerry bought the Triple F Feeds business in Ramona, South Dakota. Marvella assisted Jerry in the feed business. In 1978, Jerry became the State Manager for Triple F Feeds. This position required frequent travel and Marvella became responsible for most of the day-to-day operation of the feed store until 1982 when it was sold.

In 1979, Marvella and Jerry were involved in an automobile accident in which Marvella sustained serious personal injuries. She underwent surgery in 1981 to fuse three discs in her neck. In 1982, Marvella and Jerry received net settlement proceeds of \$42,404.87.

In May of 1984, Jerry and Marvella purchased the cafe in Ramona for \$32,000. They assumed an SBA loan of \$25,000 and borrowed \$7,000 from the Ramona Development Corporation. They invested another \$16,000 in remodeling and improvements. Marvella has been exclusively responsible for running the cafe.

After thirty-two years of marriage, Jerry moved from the marital home and filed for divorce on the grounds of irreconcilable differences and extreme cruelty. Marvella counterclaimed for divorce based on extreme cruelty.

The trial court awarded a divorce to Jerry, upon consent of Marvella, based on irreconcilable differences. The trial court divided the property to award Jerry property valued at \$81,731.83 and to award Marvella property valued at \$74,916.27. After consideration for marital debts, Jerry's property had a net value of \$44,387.83 and Marvella's property had a net value of \$45,916.27. Marvella was granted alimony of \$500 per month but no attorney fees.

1. PROPERTY DIVISION

Marvella claims the trial court erred by not granting her a lump sum settlement equal to the proceeds received in settlement of the personal injury action. She also claims the trial court made an inequitable division of the real and personal property of the parties.

Jerry argues that Marvella waived these issues by failing to cite authority for her arguments.¹ SDCL 15-26A-60(6); *Kostel Funeral Home, Inc. v. Duke Tufty Co.*, 393 N.W.2d 449 (S.D.1986). Marvella points out that *Kostel* holds that failure to cite supporting authority may result in the argument being deemed waived. Imposition of the waiver sanction may be appropriate when attorneys fail to uncover statutes and case law which could have been discovered with due diligence. In this case, we do not impose it and reach the merits because the question is sufficiently one of first impression.

A. Personal Injury Award

Marvella claims that the trial court was incorrect in finding the damage award too remote in time and too long merged in the joint assets of the parties to be considered a distributable asset. Marvella argues that four years (1982- 1986) is not too remote in time and that the proceeds are traceable. She claims that Exhibit J establishes the disbursement of the proceeds.²

¹ Jerry's assertion is buttressed by the following:

Marvella's brief, page 14: "Our Courts have previously held that personal injury settlement proceeds are to be handled by a divorce Court the same as inherited property, and it should be considered the separate property of [Marvella]." No supporting authority was cited. After Jerry's brief argued waiver for failure to cite authority, Marvella's reply brief, pages 6-7 stated: "This issue [award of personal injury settlement] is one of first impression in the State of South Dakota, and therefore there is no legal precedent available to be cited by Marvella in her brief."

² Exhibit J shows the following disbursement of the \$42,404.87 in net proceeds:

American State Bank: pay off home mortgage, vehicle loans and other indebtedness and interest	\$31,447.54
Campbell Supply (Jerry's account)	\$ 80.81
Tuition for son	\$ 2,274.82
To other son	\$ 1,000.00
To daughter	\$ 1,000.00
Savings [subsequently withdrawn and used for family support]	\$ 3,000.00
Utility	\$ 55.92
VISA (Jerry's Account)	\$ 1,072.50

The cases of *Wipf v. Wipf*, 273 N.W.2d 124 (S.D.1978) and *Fink v. Fink*, 296 N.W.2d 916 (S.D.1980) appear to support the proposition that the settlement proceeds of personal injury suits are marital assets subject to distribution. In other jurisdictions, there are cases which hold such funds are marital assets, In re *Marriage of McNerney*, 417 N.W.2d 205, 206 (Iowa 1987) ("proceeds of a personal injury claim are marital assets, to be divided according to the circumstances of each case"); *Phillips v. Phillips*, 290 S.C. 455, 351 S.E.2d 178 (S.C.App.1986); *McDonald v. McDonald*, 19 Ark.App. 75, 716 S.W.2d 788 (1986); *Richardson v. Richardson*, 139 Wis.2d 778, 407 N.W.2d 231 (1987), and cases which hold the funds belong to the party injured and are not marital assets, *Regan v. Regan*, 507 So.2d 54 (Miss.1987); *Izatt v. Izatt*, 627 P.2d 49 (Utah 1981).

Jerry claims that the settlement award was made to the parties jointly and that all of the money has been spent so that there no longer remains an asset to be divided. We believe four years is not too remote under these circumstances and that settlement proceeds are marital property subject to distribution. However, whether the distribution constitutes an abuse of discretion depends on the entire property division.

B. Real and Personal Property

Marvella claims the property division is inequitable because Jerry received the marital home (valued at \$27,500) and business property which included a building capable of generating \$350 per month rental income while she received the cafe (which has less value than debt) and a one-half interest in the present value of Jerry's profit-sharing trust³ which is not currently available to her.

Jerry argues that Marvella cannot complain about the award of the marital home because she told the trial court she wanted either the house and the "horse area" or neither. The horses were Jerry's hobby and the area behind the house, used for pasturing and exercising the horses, was of no interest or use to her. She now argues that Jerry could have found another place for the horses if the trial court had awarded both properties to her. Jerry also asserts that she asked the trial court to award her the Cadillac which she now complains is merely a "depreciable" asset.

The trial court must consider equity and the circumstances of the parties when it divides marital property. SDCL 25-4-44; *Cole v. Cole*, 384 N.W.2d 312 (S.D.1986); *Garnos v. Garnos*, 376 N.W.2d 571 (S.D.1985). The principal factors to be considered in determining an equitable property division are: "the length of the marriage; the value of the property; the age and health of the parties; their respective competency to earn a living; the contributions of each party to the accumulation of the property; and the income producing capacity of the parties' assets." *Cole, supra* at 314 (citing *Clement v. Clement*, 292 N.W.2d 799 (S.D.1980)).

Lumber yard
Joint checking

\$ 264.19
\$ 2,209.90

³ According to Jerry's testimony and Exhibit # 10, the profit-sharing plan of Triple F Feeds, Inc. is a stock ownership plan. At the termination of his employment, he will receive shares of stock equal to the amount due to him. The actual monetary amount Jerry will receive is dependent upon the market value of the shares. Additionally, the amount in the profit-sharing plan is subject to reduction by company losses. Exhibit # 10 shows Jerry's "total vested amount" dropped from \$33,853.38 to \$29,763.66 because of a \$6,355.28 loss in 1984/1985.

In this case:

- 1) The parties were married for thirty-two years.
- 2) The trial court valued the property awarded to Jerry at \$81,731.83 (net value--\$44,387.83) and the property awarded to Marvella at \$74,916.27 (net value--\$45,916.27).
- 3) At the time of the divorce, Jerry was fifty-one years old and Marvella was forty-nine years old. The trial court found both parties were "able bodied, in good health." It appears from the testimony that the 1981 surgery removed the substantial disability which Marvella incurred as a result of the 1979 accident.
- 4) The trial court found both parties were capable of earning a living wage.
- 5) The trial court did not make a specific finding as to the contributions of each party to the accumulation of property, however, the award of approximately equal net amounts may indicate that the trial court found an equal contribution.
- 6) In essence, Jerry was awarded his business and the home and Marvella was awarded her business. His profit sharing plan was divided equally. The trial court commented that Jerry's business income had been adversely affected by the poor farm economy and that Marvella could use food purchased for the cafe at home.

The trial court has broad discretion in making a division of the marital property and its judgment will not be set aside absent a clear abuse of discretion. *Goehry v. Goehry*, 354 N.W.2d 192 (S.D.1984). Upon reviewing Marvella's objections, we find that the trial court did not abuse its discretion. The trial court should have been less concerned with Marvella's ultimatum and might have granted the home to the wife and the "horse area" and entire retirement trust to the husband, but we are not prepared to say its failure to do so was an abuse of discretion.

* * *

Therefore, we hold there was no abuse of discretion.
We affirm.

WUEST, C.J., concurs.
HENDERSON, J., concurs in part and dissents in part.
MORGAN and MILLER, JJ., dissent.

HENDERSON, Justice (concurring in part, dissenting in part).
I concur in the property distribution; I dissent on the \$500 alimony award unto wife.

* * *

MILLER, Justice (dissenting).

I dissent. I would reverse on the property division and attorney fee issues and remand for further consideration.

PROPERTY DIVISION

Although the raw monetary figures may indicate that an equitable division of the marital property was made, an examination of the record reveals a most inequitable result. Marvella ended up with a marginal

cafe business (which she does not want) and no home (which she wants). Jerry continues with his viable, successful business, plus the marital home and a place for his horses.

It should be remembered that the house was substantially paid for by Marvella from the proceeds of the settlement of the personal injury suit.⁴ As noted by the majority, from the settlement proceeds she, among other things, paid off the mortgage on the home (\$31,215), in addition to paying over \$1,000 on Jerry's business VISA account and placing over \$5,000 in their bank accounts. Further, she apparently is the person who did all of the fixing and remodeling on the house and took care of it, in addition to performing the typical wifely and motherly functions for the family.

Marvella asserted that she should receive both the home and the adjoining property (Jerry agreed that she should have the home) because she did not want to be required to see Jerry constantly driving through the yard and working and playing with his horses. I disagree with the majority's characterization of her testimony as an "ultimatum." She did state that if she could not have the land behind the house she could "just as well give up the house as well." She seemed to reason that it would be unfair for her to have to maintain all the property for the benefit of his horses.⁵ She strongly asserted many good reasons why she should receive all of the property encompassing the marital residence. The sole reason asserted by Jerry (for receiving the adjoining property) was that he needed or wanted it to work with his horses--a fun, yet very expensive hobby.

To give Jerry a home for his horses and at the same time to deny Marvella the marital home is not only an abuse of discretion but is also manifestly unfair. Are not the priorities somewhat confused here?

Further, the trial court gave Marvella the cafe in Ramona. Big deal!! Even considering its property value, the trial court decision overlooks the cafe's marginal worth. Although characterized as a going concern, the cafe is hardly a money-making venture (for example, for the first six months of 1986 it made a \$208 profit⁶ (\$24 per month)). Considering the great amount of work and large number of hours (approximately twelve hours per day) required by Marvella to work in the business, coupled with the minimal returns therefrom, it clearly appears that she did not receive an appropriate share of the marital property. If the cafe has the worth Jerry suggests, perhaps he should take it (after all, it was his idea to purchase it in the first place)--or perhaps it should be sold with the proceeds appropriately divided (although it should be observed that Marvella has been unsuccessful in her attempts to sell the cafe).

Further, I believe that unless the property is reallocated in an equitable manner, the sum of \$500 is an inadequate amount for alimony, considering all of the foregoing.

I am authorized to state that Justice MORGAN joins in this dissent.

⁴ Jerry argues that it was a joint award, because he was involved in the accident. However, he agrees that she, not he, was the one who was injured.

⁵ When asked why she objected to Jerry having the back area for the horses, she said:
A Lack of privacy mostly. If he doesn't want to be included in the other responsibilities of the place, I do all the mowing and spraying and fixing and cleaning and everything else of the yard and whether I am inside the house, the kitchen windows are all facing the area where they are riding and roping and if I am out in the yard, they are all right there within like I say, 100 steps of the yard.

⁶ In calculating profit there has been no deduction for a salary for Marvella. Therefore, she has, in reality, worked for almost no compensation.

NOTE

Monetary Damages Realized as Personal Injury Award May Be Allocated to Spouse as Separate Property Under “Analytical Approach” according to *Johnson v. Johnson*, 2007 SD 56, 734 N.W.2d 801. The case of *Johnson v. Johnson*, 2007 SD 56, 734 N.W.2d 801, was orally argued at the law school on 3/21/07. This is a divorce case, but the only disputed issues are associated with division of property. The trial court's decision was appealed by the wife and the SD Supreme Court reversed and remanded in a unanimous opinion authored by Chief Justice Gilbertson. The case is especially noteworthy on the issue related to a personal injury award recovered by the parties. On this issue, the trial court's decision was affirmed.

Husband and wife were injured in a car accident. Their claims eventually resulted in a net payment of \$480,786.93 to husband and wife. The trial court determined that \$321,954 was traceable to the award, with the balance having been either spent, commingled, untraceable or otherwise equally divided. As to the amount of \$321,954, the trial court found that 50% belonged to husband, 11% belonged to wife, and 39% was marital. In making this determination the trial court adopted the “analytical approach” which looks at the “nature and underlying reasons for the compensation.” Under the “analytical approach,” that portion of the award which is allocated to medical treatment, out of pocket expenses and loss of income is properly considered as a marital asset. But, that portion of the award which is allocated to disfigurement, physical injuries, pain, suffering, loss of consortium, and loss of post-divorce earning capacity may be appropriately kept separate for the spouse being so compensated. Following this approach, the trial court deducted \$160,977 (50% of \$321,954) as separate property for husband's personal injuries, while giving wife separate property of \$35,415 (11% of \$321,954). The SD Supreme Court affirmed this aspect of the case and the trial court's use of the “analytical approach.” Wife had unsuccessfully argued that the trial court should have followed the “mechanical approach,” a minority view which places all money received into the marital estate. It should also be noted that in this case, the court had the benefit of a “partitioned jury verdict” which allocated the damage awards made to husband and wife. In affirming the trial court's use of the “analytical approach,” the SD Supreme Court cited and quoted the Nebraska Supreme Court decision in *Parde v. Parde*, 602 N.W.2d 657 (Neb. 1999). The SD Supreme Court stated:

We agree with the reasoning in *Parde*, and conclude that the analytical approach is appropriate in deciding the extent to which a personal injury award should be included in the marital estate. Like the *Parde* Court, we add “that the burden of proof to show the property is nonmarital remains with the person making the claim.” *Id.* at ¶ 34.

MORE ABOUT TRACING AND SEPARATE PROPERTY

The doctrine of “tracing” would appear to be more meaningful in states which have statutes like Texas and Missouri. Nonetheless, the wife in *Henrichs* persisted in her argument for the recognition of “tracing” in the preceding case and the South Dakota Supreme Court tacitly recognized the doctrine in dictum. Why even make such an argument in South Dakota in light of SDCL 25-4-44? Perhaps the answer lies in the fact that South Dakota courts recognize the propriety of keeping separate property separate. The recognition of separate property appears to be the rule, not the exception, among the trial courts in South Dakota.

Even though South Dakota is an "all-property" state (under SDCL 25-4-44) wherein the trial court is able to award property in one spouse's name to the other spouse, it was held to be "clearly excessive and an abuse of discretion" for the trial court to award wife a 35% interest in husband's inherited farm in *Voelker v. Voelker*, 520 N.W.2d 903 (S.D. 1994). The probate proceedings for the farm were not finalized until six months after wife had filed for divorce. The *Voelker* case is significant in that it is apparently the *first* reported decision in South Dakota wherein a trial court has been reversed for failing to recognize non-marital property. Up until this case, the South Dakota Supreme Court has consistently held to the belief that although a trial court *may* consider the fact that a party's property would be considered as non-marital (as in most other jurisdictions), it is not required to set it aside to that party.

NOTES ON OTHER RECENT CASES

1. It was reversible error for the trial court to award husband the current value (\$262,500) of "300 head of cattle" as an adjustment for the "300 head of cattle" he brought into the marriage. His non-marital award should be at the value of the cattle at the time of the marriage (\$54,259). The effect of this decision is to hold that the wife is entitled to share in the appreciated value of the cattle herd (even though the herd might be considered "non-marital"). *Bennett v. Bennett*, 516 N.W.2d 672 (S.D. 1994).¹

2. The parties' 80 acre dairy farm was treated as part of the marital estate, even though it was gifted over to husband and wife only 3 months before wife filed for divorce (gifted to husband and wife by husband's parents.) This was affirmed on appeal in *Heckenlaible v. Heckenlaible*, 545 N.W.2d 481 (S.D. 1996). Justice Gilbertson dissented on this issue, pointing out that of approximately 10,000 days which the couple were married, they held joint title to the dairy farm only 180 days or 2% of the time they were together. Justice Gilbertson would have expanded the holding in *Voelker v. Voelker*, 520 N.W.2d 903 (S.D. 1994) which reversed the trial court's inclusion in the marital estate of husband's inherited farm on which the probate proceedings were finalized 6 months after wife had filed for divorce.

3. The denial of alimony to Wife and a property division of 64% to Husband, with 36% to wife was upheld on appeal in *Anderson v. Anderson*, 2002 SD 154, 655 N.W.2d 104. The Supreme Court noted that the income-producing property was essentially divided equally. Husband had entered into the marriage with property worth \$1,229,290 while Wife had no significant assets. They were married in 1975 in the Philippines where husband met Wife who has a native of that country. Husband had previously been married and had four children. They were divorced in Mexico in 1978 and remarried each other in 1984. Each party had substantial funds and property in their name only, which they each managed separately. Wife was given her separate accounts, valued at \$ 854,884. Husband received his separate accounts, valued at \$ 987,000. The marital home real estate, which was valued at \$600,000, was owned by Husband long before the marriage. Husband sought to exclude this real estate from the marital estate. The trial court included it in the marital estate, but awarded it to Husband together with \$ 80,000 worth of gold Krugerrands. In addition to the award of her separate accounts, Husband was ordered to make a cash payment to Wife in the amount

¹ The Oregon Court of Appeals recently decided that husband's 362 pre-marital cows were not "perpetual cows" but rather were "mortal cows." As replacement cows were acquired over the parties' 20 year marriage, these cows were property acquired during the marriage and should not be treated as husband's non-marital property. Accordingly, the trial court committed error when it considered the "replacement cows" as husband's premarital assets. *Mallorie v. Mallorie*, 200 Or.App. 204, 113 P.3d 924 (June 15, 2005).

of \$ 60,000. The South Dakota Supreme Court cited and reviewed previous cases upholding a disproportionate award of property. Factors noted by the Court in supporting this award include, (1) The marital home real estate was owned by Husband before the marriage; (2) Wife's separately-kept assets came from money given by Husband to Wife and, because of this, Wife's own net worth had grown substantially; (3) The total value of the marital estate grew by 1.3 million dollars, with Wife realizing 66% of that growth in the property division; (4) Husband's funds went up and down and were used to pay for all taxes and living expenses, whereas Wife's fund were not dissipated.

The Court rejected Wife's alimony argument because virtually all of the property awarded to Wife, some \$914,884, was income-producing. The Court rejected Wife's argument that the division of property award "will leave her in a financial state 'only slightly above the poverty level.'"

4. In *Billion v. Billion*, 1996 SD 101, 553 N.W.2d 226 (S.D. 1996), the trial court awarded wife her non-marital property worth \$562,000 and then also awarded her \$332,883 which was approximately 50% of the marital property. This was affirmed on appeal by the South Dakota Supreme Court holding that the trial court is *not* required to set aside non-marital property, but it may do so. All that is required is that trial court consider the fact that the property may be non-marital in applying the seven basic common law factors for division of property. [duration of marriage, value of property, ages of parties, health of parties, parties' respective competency to earn a living, contribution of each to the accumulation of the property, and income-producing capacity of the property] This opinion adds a new sentence to the language found repeatedly in these sorts of cases -- The Court stated, "Only in the case where one spouse has made no or de minimis contributions to the acquisition or maintenance of an item of property and has no need for support, should a court set it aside as 'non-marital' property." *Id.* at 232. In this case, the husband did not show a need for support and he made only de minimis contributions to the wife's non-marital property. (two justices dissented on the "division of property" issues)

5. H was given \$28,000 of premarital holdings and other property for a total award of \$138,685. W was given nothing in the nature of premarital holdings and property of \$110,010. W had brought \$50,000 in premarital assets into the marriage. (These figures taken from Justice Konenkamp's dissenting opinion, in which Justice Sabers concurred.) The trial court's disproportionate treatment was upheld in *Pellegrin v. Pellegrin*, 1998 SD 19, 574 N.W.2d 644 (S.D. 1998). The majority opinion quoted the *Billion* case. The rather lengthy quote recites the seven common law factors for consideration in dividing property. It also contains the following additional sentence which first appeared in South Dakota jurisprudence in the 1996 *Billion* case:

"Only in the case where one spouse has made no or de minimis contributions to the acquisition or maintenance of an item of property and has no need for support, should a court set it aside as 'non-marital' property." 574 N.W.2d at 648, paragraph no. 21.

6. In the *Pellegrin* case in the preceding note, the SD Supreme Court also stated, "[Wife] does not point to any authority which stands for the proposition that a court must give both divorcing parties credit for all their premarital assets in order to make an equitable division of property." 574 N.W.2d at 648, paragraph no. 19.

7. The quoted sentence which appears in the preceding note -- pointing out that a party cannot point to any authority which requires a court to give both parties' credit for all of their premarital assets -- surfaced again in *Christians v. Christians*, 2001 SD 142, 637 N.W.2d 377. In this case husband complained on appeal that the trial court under-valued his premarital net worth. In particular, husband testified that his inherited

pre-marital farmland was worth \$229,000. Wife testified that it was valued at \$100,280. The trial court valued it at \$120,000 and this was upheld on appeal because the figure was “within ‘the range of evidence.’” ¶13, 637 N.W.2d at 380. The trial court’s treatment of pre-marital assets was also upheld on the basis that husband “cannot ‘point to any authority which stands for the proposition that a court must give both divorcing parties credit for all their premarital assets in order to make an equitable division of the property.’” footnote 1, 637 N.W.2d at 381.

8. The trial court erred in deducting \$29,000 from the value of the family farm and equipment as a loan allegedly in favor of husband’s father. “We have noted that written documentation is favored to prove the existence of a loan...This factor is even more important...with an interfamily loan.” *Grode v. Grode*, 543 N.W.2d 795, 800 (S.D. 1996).

9. The trial court’s consideration of certain property as being “gifted property” was reversed by the SD Supreme Court in *Albrecht v. Albrecht*, 2000 SD 54, 609 N.W.2d 765. At issue was a piece of real estate described as the “Kenny Albrecht Property,” which was deeded to husband only through a “contract for deed” arrangement established between husband’s first cousin and husband’s father. The payments on the contract came from the father’s farming and ranching corporation, payable to the husband and wife for services rendered, and then passed along to Kenny Albrecht by husband and wife. The treatment of these exchanges on the income tax filings by husband and wife and by the father did not support the argument that this was a “gift.” Nonetheless, the trial court found that property itself was basically a gift to husband and only declared the increase in the fair market value (some \$19,700) of the property as “marital” in nature. The SD Supreme Court rejected the trial court’s treatment and declared the entire value of the property (some \$89,000) as marital property. In looking at whether or not this item of property should be considered a “gift” or not, the SD Supreme Court set forth a couple of useful pronouncements for future cases. Following up on the direction given by the Court in the *Grode* case discussed in the preceding note, the *Albrecht* Court said, “As we have said with loans, if one is claiming a gift, he better bring in some good evidence to prove the existence of a gift.” (quoted language found in footnote 4 of *Albrecht* opinion.) The Court considered the income tax treatment by the parties of the transaction and the lack of any documentation to establish this arrangement to be a “gift.” The trial court’s treatment of this property as a “gift” was found to constitute an “abuse of discretion,” quoting existing case law in SD as meaning that an “abuse of discretion” occurs when the trial court’s discretion is “exercised to an end or purpose not justified and clearly against reason and evidence.” (paragraph no. 10, 609 N.W.2d at 768.) This opinion also reviews the “essential elements of a gift” as constituting “intent, delivery, and acceptance.” In this case, the evidence did not establish a “bona fide intent by Todd’s father to make a gift.” (Paragraph no. 15, 609 N.W.2d at 769.)

The trial court’s award of the marital residence, other substantial farm assets and road maintenance assets, all to the husband was affirmed as being within the discretion of the trial court. (The trial court had awarded the wife an equalizing payment of \$23,185.) In affirming these other awards to husband, the Court noted that the case was ordered remanded for a redetermination of the value of the “Kenny Albrecht Property” to be at \$89,000, which will result in a more favorable determination of a cash or other property award to wife.

10. The determination of how marital assets are acquired (*i.e.* whether by “gift” or otherwise) is *required* to be made by trial courts *prior to* the division of property. *Grode v. Grode*, 543 N.W.2d 795, 800 (S.D. 1996) (upholding the finding that part of the family farm was a gift).

11. Reversible error for trial court to not first determine the status of all assets as either separate or marital. In *Midzak v. Midzak*, 2005 SD 58, 697 N.W.2d 733, the wife was represented by

counsel in her divorce action, but the husband appeared pro se. In communicating with the husband during the trial, the lower court found that husband had “unequivocally ceded numerous items of property to [wife] during the proceedings.” ¶ 10. Also, during the trial the court had a discussion with the husband in which it announced that it intended to award the marital home to wife. In response, husband simply said “fine.” ¶ 24. The final distribution reflected an award of \$57,000 to husband and \$128,100 to wife. ¶ 10. The trial court’s findings did not clearly reflect which assets were considered “marital” and which were considered “separate,” nor did the findings account for funds used by wife from a joint checking account to purchase a new vehicle. Husband subsequently secured the services of an attorney and took an appeal. As to the discussion concerning the marital home and husband’s remark of “fine,” the Supreme Court observed, “It is not clear if [husband] was acknowledging the trial court’s valuation, its decision to award the home to [wife], waiving rights to the property as found by the court or merely acknowledging he heard what the trial court has said.” ¶ 24. The South Dakota Supreme Court reversed and remanded the property division aspect of the case (as well as the child support aspect.) The Court stated that it was “remand[ing] the case for proper fact finding and application of the laws of South Dakota on property division...” ¶ 32. The South Dakota Supreme Court held that “[t]he trial court abused its discretion in not properly determining the status of all assets first as either separate or marital, and then making an equitable distribution of all assets determined to be marital in nature.” ¶ 24.

12. Reversal of property valuation for failure to consider life estate in favor of W's parents.

In *Hansen v. Hansen*, 2009 SD 91, 774 N.W.2d 462, W’s parents deeded a house (in Redfield, SD) to H & W, reserving unto themselves a life estate in the house. This house was used as the parties’ marital home. H & W made significant improvements and additions to the home. Testimony by H’s expert real estate/broker established the Fair Market Value of the house at \$141,000. The expert testified that she did not know how the existence of a life estate in favor of W’s parents would affect the value since she had no experience selling or valuing homes subject to a life estate. The trial court valued the house at \$141,000. The sole issue on appeal by W relates to the trial court’s failure to consider the life estate held by W’s parents in valuing the house. The Supreme Court agreed with W, holding it was reversible error for the trial court to fail to consider the life estate. The case was remanded and the trial court was directed to value only the “remainder” interest owned by H & W. This is a unanimous decision. Justice Meierhenry is the author of the Court’s opinion. [Note: W did present evidence at trial establishing the remainder interest at \$35,968, utilizing a calculation table obtained from the SD Department of Social Services for valuing life-estates in connection with eligibility for long-term indigent care.]

13. Reversible error to treat real estate deed to H & W jointly as non-marital property. H’s parents deeded some real estate to H & W as joint tenants. The trial court awarded H some 56 acres of this land as non-marital property. W had sustained serious injuries in a job-related accident during marriage and received a workers compensation award of \$387,485 during the marriage. W’s award was merged into the parties’ finances and was used to pay off some major debts. W was not given any credit for non-marital property in connection with this award. Also, H was given a judgment of \$181,655 against wife to compensate for the award of the marital home to W. H was also ordered to pay W \$800 per month in alimony. W appealed in *Godfrey v. Godfrey*, 2005 SD 101, 705 N.W.2d 77. The SD Supreme Court reversed (5-0) the lower court’s award of the 56 acres as non-marital property.

Concerning the deed to H & W as joint tenants, the Court stated, “Although the trial court was not bound by the form of the deed, this Court has held that a deed conveying real estate to a husband and wife as joint tenants is convincing evidence of the realty’s status as marital property.” ¶ 23.

The Court also found that W had made more than de minimus contributions to the acquisition or maintenance of the property in that taxes were paid out of marital assets and that W had signed on to

contracts related to road construction, construction of a well, easements, fence, landscaping, etc. This finding dovetails into the language previously used by the Court in *Pellegrin* and *Billion* that, “Only in the case where one spouse has made no or de minimis contributions to the acquisition or maintenance of an item of property and has no need for support, should a court set it aside as ‘non-marital property.’” ¶¶ 16 and 21.

The Court also found that W had a need due to the \$181,655 judgment given to H to equalize the award of the marital home to W and that “the alimony award did not obviate the error in the non-marital property designation in light of the sizeable judgment against the home.” ¶ 22.

14. Inclusion of husband’s inherited farm in parties’ marital estate upheld in *Novak v. Novak*, 2006 SD 34. The parties were married 16 years. During the 10th year of their marriage, husband inherited a farm of 389 acres in Nebraska. The trial court included the farm in its division of property, awarding wife equal title as a tenant in common. But the trial court also gave husband six months from the date of the divorce decree to purchase wife’s interest for \$93,801. This disposition was upheld in an unanimous opinion authored by Justice Meierhenry in *Novak v. Novak*, 2006 SD 34, 713 N.W.2d 551. The Court followed the established rule for non-marital property – namely, that “Only where one spouse has made no or de minimis contributions to the acquisition or maintenance of an item of property and has no need for support, should a court set it aside as ‘non-marital’ property.” ¶ 5. The farm was valued at close to \$200,000. Without the farm being included as an asset, the marital debts would have exceeded the assets. If the trial court would have awarded the farm entirely to husband as his non-marital property, the wife would be left with no assets. Furthermore, the trial court did not award alimony. The South Dakota Supreme Court noted that the trial “court considered evidence of [Wife’s] involvement with the farm, which consisted of more than de minimis involvement.” Wife was also awarded the full amount of appellate attorney fees (\$1,625) which she requested.

15. Trial court reversed for failure to consider husband’s “indirect contribution” to wife’s inherited property, rendering the exclusion of wife’s inherited property an abuse of discretion in dividing the property. In *Halbersma v. Halbersma*, 2007 SD 91, 738 N.W.2d 545, the only issue on appeal was the “division of property” determination in a divorce proceeding. The trial court divided the marital estate awarding H \$465,073 and awarding W \$450,072. The trial court also awarded W all of her inherited property (which consisted of her parents’ family homestead near Brandon and cash assets) bringing her total award to \$2,249,851. W had kept her inherited property separate, not commingling it with marital assets (which consisted primarily of a farming/dairy operation). The SD Supreme Court reversed, holding that the trial court erred in finding that H’s contribution to the inherited assets were de minimis. In this case, the parties had been married over 50 years, with W’s inherited property coming to her 31 years into the marriage. H worked long hours on the parties’ farming operation and placed all of his income from his work into the marital estate. Because of W’s ownership of the property, H did not have control over the property and did not participate in decisions concerning it. Still, according to the Court’s opinion, H should have been credited for his “indirect contribution” which was “valuable.” Comparing H’s role to that of a housewife in previous case law [*Garnos v. Garnos*, 376 N.W.2d 571 (1985)], the Court stated, “If we recognize the significant and substantial contribution of a housewife and homemaker in the contribution of marital assets, then we should recognize the significant and substantial contribution of this dairy farmer to the inherited property in this case.” ¶ 19. The Court’s opinion is authored by Justice Sabers. Both Chief Justice Gilbertson and Justice Konenkamp sign on to Justice Sabers’ opinion, but Justice Konenkamp but writes a separate 3-sentence concurring opinion suggesting that on remand the division of the inherited property should be “equitable” and that H should not automatically receive half of W’s inheritance. Justices Meierhenry and Zinter both dissent, believing that the trial court did not abuse its discretion. Justice Zinter also believes that the majority opinion effectively overrules the law established in *Billion v. Billion*, 1996 SD 101, 553 N.W.2d 226, and

Novak v. Novak, 2006 SD 34, 713 N.W.2d 551.

16. \$103,750 is H's equitable share of W's separate \$1.7 Million. *Halbersma v. Halbersma*, 2009 SD 98, 775 N.W.2d 210. This divorce proceeding was previously presented to the SD Supreme Court at which time the Court held, in a 3-2 decision, that husband's entitlement to an "equitable" distribution of property included consideration of W's separate inheritance of \$1.7 million from W's mother. [Background: H & W had been married 50 years before this divorce action and W's inheritance came 31 years into the marriage.] Upon remand the trial court awarded H the sum of \$103,750 to be paid by W for his interest in the marital home which was acquired with W's inheritance. The trial court also ordered W to pay H an additional \$143,670 which represented the "present value" of H's separate inheritances which were in the original amount of approximately \$50,000 and which were received in the 1970s and 1980s. Wife was also ordered to pay interest on this obligation from October 6, 2006. On appeal from this ruling on remand, the SD Supreme Court affirmed the award of \$103,750 relating to a portion of W's inheritance traceable to the marital home, but the Court reversed the additional award of \$143,670 relating to the "present value" of H's inheritance received during the marriage because this so-called "asset" was not considered in the 1st trial. The case is remanded to the trial court for a determination of the appropriate rate of interest to be applied to the \$103,750 payment (the portion which is affirmed) to be computed from October 6, 2006. This opinion makes it clear that an "equitable" division of property does not always mean an "equal" division of property (a point made by Justice Konenkamp in his concurring opinion in *Halbersma I*) and this opinion also emphasizes that in South Dakota "spouses are entitled to maintain separate property and do with it as they see fit" citing SDCL 25-2-4 and SDCL 25-7-1. The Court's opinion which is authored by Justice Severson. Justice Meierhenry, who dissented in *Halbersma I*, dissented again. Justice Zinter, who dissented in *Halbersma I*, concurred stating that he still believes *Halbersma I* was wrongly decided but accepts the Court's ruling in *Halbersma I* as the applicable "law of the case."

17. Substantial award to wife of husband's inherited property affirmed, with support thereof found in the absence of spousal support award. In *Terca v. Terca*, 2008 SD 99, 757 N.W.2d 319, wife was awarded a substantial amount of property inherited by husband. Wife was awarded two real property parcels of inherited land and other real property with a total value of over \$476,000. Husband's award was valued at over \$1,000,000. This award was affirmed by the SD Supreme Court with a significant emphasis being placed on the fact that wife was denied spousal support in connection with the property award. This case reviews the existing law on treatment of inherited or non-marital property and finds that the trial court acted appropriately. It should also be noted that husband suffers from progressive MS. Wife was also awarded \$3,000 in appellate attorney fees. The SD Supreme Court's unanimous opinion of affirmance is authored by Chief Justice Gilbertson.

C. Fault as a Consideration

KANTA v. KANTA

Supreme Court of South Dakota, 1991.
479 N.W.2d 505.

* * *

3) Unequal Distribution of Property

SDCL 25-4-45.1 allows fault to be considered in property division only when it is relevant to the acquisition of property during the marriage. Our review is limited to a determination of whether there was an equitable property division. *Temple v. Temple*, 365 N.W.2d 561, 565 (S.D. 1985) (citing *Krage v. Krage*, 329 N.W.2d 878 (S.D. 1983)).

The trial court awarded wife various personal property with a total value of \$24, 400.00, proceeds from sale of a house in the amount of \$39,888.00, a savings account worth \$5,783.93, one-half of their Sears stock, her IRA in the amount of \$1,515.54, and savings bonds valued at \$1,700.00.

Husband was awarded various personal property with a total value of \$18,400.00, the Schwab investment fund worth \$6,817.00, one-half of their Sears stock, his Thrift Savings Plan valued at \$4,461.80, and his entire retirement account in the amount of \$40,492.06. The parties are to share in the net proceeds from a sale of their real property in Illinois when it sells. This division reflects approximately fifty-six percent of the property going to wife, forty-four percent to husband.

The trial court in its conclusions of law stated it was dividing the property inequitably due to the relative fault of the parties. There is no finding that fault in any way affected acquisition of marital property. Accordingly, fault was not a proper factor for consideration in this property division.

* * *

For the reasons stated herein, we reverse and remand the property division so that an equitable division may be made based on a consideration of the appropriate factors.

KORZAN v. KORZAN
Supreme Court of South Dakota, 1992.
488 N.W.2d 689 .

MILLER, Chief Justice.

* * *

*Whether the trial court abused its discretion in considering
the effect of the parties' separations.*

The trial court concluded that Suzanne's extended absences from the marital home had a negative impact on the accumulation of marital assets. The trial court is clearly authorized and directed to consider the contribution of each party to the accumulation of assets. *Nelson*, 454 N.W.2d at 537; *Peterson*, 449 N.W.2d at 839. Suzanne contends that the trial court was wrong in finding that her contribution to the accumulation of assets was "minimal." The trial court's findings of fact will not be set aside unless clearly erroneous. SDCL 15-6-52(a). *In Interest of A.D.*, 416 N.W.2d 264 (S.D.1987).

Suzanne testified extensively about the contributions she made to the marriage. She described her cooking, cleaning, gardening, and child rearing. On the other hand, it was undisputed that Suzanne had left the marital home on approximately ten occasions during the marriage. Evidence showed that Floyd provided support to Suzanne and the children during these separations.

The trial court found that Suzanne's separations from Floyd had a negative impact on the marital estate. The trial court acknowledged that Suzanne cared for the children, cooked, cleaned, and gardened. However, for approximately one-half of the marriage she also maintained a second household with its attendant expenses. The trial court found that if they had maintained only one home during the marriage they would have accumulated more marital property. In light of all the evidence, the trial court was not clearly erroneous in finding that Suzanne's contribution to the accumulation of marital property was minimal.

* * *

SABERS, Justice (dissenting).

Floyd and Suzanne were married in 1963. Floyd had some money. Suzanne did not. They had five children despite a troubled marriage and frequent separations. Now, almost 30 years later, they are divorced and Suzanne is awarded 25.4 percent of the "marital estate." This amounts to only \$20,691 in contrast to Floyd's division of the "marital estate" of \$60,891.

To make matters worse, Floyd receives the land (520 acres) now and is permitted to pay Suzanne later. In fact, he may pay over a period of seven years without any interest whatsoever. This reduces the real value of her award even further. *Lien v. Lien*, 278 N.W.2d 436, 444 (S.D.1979).

To make matters even worse, the trial court determined that an even greater amount of property (565 acres) owned by Floyd before the marriage was "non- marital" property. Suzanne receives none of it. The net effect of this determination is to reduce Suzanne's award to about 10 percent of the total property owned by the parties.

* * *

ADDITIONAL CASES WHICH ADDRESS ASPECTS OF "FAULT"

1. Consideration of "who wanted the divorce" is irrelevant to the division of property function of the trial court. Consistent with SDCL 25-4-45.1, the relative fault of the parties is not to be considered in division of property. (Rejecting the husband and dissent's argument that husband did not want the divorce and wife did.) *Abrams v. Abrams*, 516 N.W.2d 348 (S.D. 1994).

2. Wife moved to Arizona, leaving husband to raise the parties' children, maintain the home in South Dakota, and pay off the debts. Husband eventually gave each of the three daughters household goods, family heirlooms and personal property. Eight years after wife left, husband sold the marital home, moved to a different city, retired, and filed for divorce. The trial court divided the property by awarding wife \$38,853 together with 31.3% of husband's federal postal retirement benefits. Husband was awarded \$31,117 plus the remainder of his federal postal retirement benefits. On appeal, wife argued that a constructive trust should be imposed on proceeds of the assets which were dissipated by husband or that she should receive a greater portion of the marital assets. In essence, wife sought relief for husband's alleged "dissipation, concealment and wasting of substantial marital assets." The South Dakota Supreme Court rejected this argument by wife, pointing out that husband had kept wife informed of his handling of the assets. In particular the court found that "While he may have disposed of the property, he did not squander the property." *Roupe v. Roupe*, 544 N.W.2d 540, 542 (S.D. 1996).

D. Equitable Division

HILBRANDS v. HILBRANDS

Supreme Court of South Dakota, 1988.
429 N.W.2d 750.

SABERS, Justice.

* * *

2. DIVISION OF MARITAL PROPERTY

The trial court has broad discretion in making a division of marital property and its judgment will not be set aside absent a clear abuse of discretion. *Goehry v. Goehry*, 354 N.W.2d 192 (S.D.1984). SDCL 25-4-44 requires the trial court to consider equity and the circumstances of the parties when dividing marital property. The principal factors to be considered when making the property division are: "the length of the marriage; the value of the property; the age and health of the parties; their respective competency to earn a living; the contributions of each party to the accumulation of the property; and the income producing capacity of the parties' assets." *Cole v. Cole*, 384 N.W.2d 312, 314 (S.D.1986).

The parties were married for approximately fourteen years. They had accumulated virtually all their assets during the course of the marriage, and contributed equally to the accumulation of the property. The age, health, and competency to earn a living of the respective parties was discussed above.

The parties' major assets were:

House	\$45,000.00
1982 Cutlass	3,500.00
1986 Van	16,000.00
IRA (Husband)	23,000.00
IRA (Wife)	1,071.00
Promissory Note from Roger Hilbrands	7,135.75
Refund cash-Van	1,447.00

Wife was awarded the marital home, subject to a \$15,000 mortgage, the 1982 Cutlass, her IRA, and \$10,000 of Husband's IRA. Husband was awarded the 1986 van, the remaining \$13,000 of his IRA, and the promissory note from his son. The award to Wife appears to far exceed the award to Husband. The award of the marital home to Wife creates this disparity. However, this disparity is substantially offset by several considerations and certain findings of the trial court.

The trial court found that all of the self-employment Social Security payments for the janitorial business were made in Husband's name alone. Similarly, most of the contributions to the IRA accounts were placed into Husband's account. The award to Wife is also supported by the trial court's findings that Wife was unable to return to her previous employment and that Husband's earning capacity was substantially greater than Wife's.

In contrast to Wife, the trial court was aware that Husband had a steady source of income and would soon be eligible for Social Security payments. Therefore, the trial court's decision to award no alimony to Wife also supports the court's property division. Finally, Husband has an interest in additional assets apart from the marital property. These assets include a Certificate of Deposit and an interest in 120 acres of land in Grant County, South Dakota, subject to a life estate in his eighty-six-year-old mother.

The findings of fact and other considerations support the conclusions and there was no abuse of discretion in the division of marital property. *Cole, supra*.

We approve Wife's petition for attorney fees in the amount of \$700.
AFFIRMED.

WUEST, C.J., and MORGAN and MILLER, JJ., concur.

HENDERSON, J., dissents.

HENDERSON, Justice (dissenting).

* * *

If we intend, in South Dakota, to continue to go about being totally unfair to men in divorce cases, we should just, out and out, say so. The issue here is fairness. This case was not decided fairly, as it is a lopsided division of property (the wife awarded two and one-half times more than the husband). The trial court sits as a judge in equity. He is supposed to do equity. Equity would demand an approximate equal division of the property accumulated by these parties. I would reverse.

NOTE
(Consideration of Social Security Benefits as a Property Division Consideration)

Spouse's Eligibility for Social Security Benefits and the Non-Eligibility by the Other Spouse May Be "Considered" by Trial Court in Dividing Property and May be the Basis for an Unequal Division of the Marital Property according to *Johnson v. Johnson*, 2007 SD 56, 734 N.W.2d 801.

The case of *Johnson v. Johnson*, 2007 SD 56, 734 N.W.2d 801, was orally argued at the law school on 3/21/07. This is a divorce case, but the only disputed issues are associated with division of property. The trial court's decision was appealed by the wife and the SD Supreme Court reversed and remanded in a unanimous opinion authored by Chief Justice Gilbertson. The case is especially noteworthy on the issue related to Social Security benefits.

In this case, wife was employed by the Department of Veteran's Affairs and was, accordingly, enrolled in the Civil Service Retirement System (CSRS). Wife's participation in CSRS rendered her ineligible to receive social security benefits. Husband was in fact receiving social security benefits of \$851.20 per month at the time of the divorce. By virtue of the anti-assignment clause of the Social Security Act (42 U.S.C. § 407(a)), a state court is not permitted to make an assignment or transfer of social security benefits. The question presented for resolution in this case, however, is whether or not the trial court may, in the process of dividing property, "consider" the fact that husband is eligible to receive (and is, in fact, receiving) social security benefits while the wife is not. The trial court credited wife with the full value of her CSRS benefits, but did not offset or consider husband's social security benefits. On appeal, wife argued it was error for the trial court to not make an "equitable adjustment for the fact that [husband] receives and will continue to receive social security benefits." (§ 14) The South Dakota Supreme Court agreed with wife and reversed and remanded, recognizing that the resolution of this issue in SD is one of "first impression." The Court reviewed the split of authority which exists on the resolution of this issue and rejected the minority view which prohibits any kind of offset. (Nebraska apparently follows the minority view according to the discussion in §§ 20-23.) In adopting the majority view, the SD Supreme Court stated,

We agree with the majority approach that social security benefits may be considered as a factor, among others, when dividing marital property. This adheres to the federal restrictions, for it is not a direct division of [husband's] social security. And, at the same time, it recognizes and compensates for the inequity of including all of [wife's] CSRS benefits in the marital estate while [husband's] social security benefits are entirely excluded. It also comports with the general rule that the trial court is not tied to any mathematical formula when structuring the division of property, and neither party is entitled to a 50-50 division of the marital estate. Thus, a court may premise an unequal distribution of marital property on the fact one party is likely to receive, or in this case, is receiving social security benefits. *Id.* at § 27.

“HOW THE GAME IS PLAYED”

Since courts typically do not divide each piece of property down the middle, a court will usually award an item of property to a party and credit the value of that item to that spouse's “column.” As items of property are set aside, an eye is kept on the totals so that an equitable division is achieved. One soon learns that if he or she can accurately predict who will be awarded a particular item of property, his or her value could be adjusted so as to enhance his or her “column.” For example, it is not unusual to find a husband placing low values on his boat, sports car, guns, hunting equipment, and similar items which are unlikely to be awarded to the wife. A wife who anticipates receiving custody of minor children may be found placing low values on the home and its furnishings which will, in all probability, be awarded to her.

Sometimes the predictions fail and the parties are “caught” with having placed disproportionate values on property that ends up being awarded to the other side. Consider, for example, *Clarke v. Clarke*, 478 N.W.2d 834 (S.D. 1991), where the husband valued a contract which he anticipated receiving at \$0 and the wife valued it at \$111,000. The trial court assigned a value of \$111,000, but awarded it to the wife. Both sides were unhappy and on appeal, the wife argued it was worth \$0 and the husband argued it was worth \$111,000. *Id.* at 836-37.

ADDITIONAL CASES ON "VALUATION" IN CONNECTION WITH "HOW THE GAME IS PLAYED"

1. The trial court must value property within a "reasonable range of figures." Remand for proper valuation was required where the trial court assigned a value to the household goods awarded to the husband at \$8,305 less than the value given in evidence by the only witness to testify as to their value. Error was also committed when the trial court, after rejecting the low-end valuation (\$50,016) of husband's business for failure to account for certain items, then assessed a value (\$132,000) which was lower than the only other acceptable low-end value (\$135,705) -- since the low-end of the range was rejected outright, the trial court's value did not fall "within the testified range of values." (The range going from \$135,705 to \$285,652) *DeVries v. DeVries*, 519 N.W.2d 73 (S.D. 1994)

2. In *Bennett v. Bennett*, 516 N.W.2d 672 (S.D. 1994), the trial court was affirmed in accepting the lower range of value for "springtime heifers" -- heifers close to calving. The court valued the heifers at \$875 per head, but placed no value on the calves. Wife had urged the trial court to value the heifers at \$875 per head and the calves at \$200 per head. Husband had testified that "springtime heifers" could be valued as high as \$1530 per head to "less than \$900 per head." According to the wife, the trial court accepted the correct value of a heifer without a calf and, in the process, no value was given to the calf crop.

3. In *Christians v. Christians*, 2001 SD 142, 637 N.W.2d 377, husband complained on appeal that the trial court under-valued his premarital net worth. In particular, husband testified that his inherited premarital farmland was worth \$229,000. Wife testified that it was valued at \$100,280. The trial court valued it at \$120,000 and this was upheld on appeal because the figure was “within ‘the range of evidence.’”¶13, 637 N.W.2d at 380.

4. **Personal loan guarantee by husband considered the same as a “contingent liability” which is not required to be considered in division of property and Wife’s testimony based on personal opinion as to value of horses accepted as “hard evidence” in *Larson v. Larson*, 2007 SD 47, 733 N.W.2d 272.** Husband presented two primary issues on appeal from the trial court’s division of property in this divorce action. In a unanimous opinion by Justice Meierhenry, the SD Supreme Court rejected both of husband’s points, affirming the lower court and also denying both side’s request for appellate attorney fees.

FIRST ISSUE: Husband had a 30% interest in a family business and also owned another newly-created business. The newly-created business was valued at 0. Husband did not contest the value of the newly-created business, but believed that his personal loan guarantee in the amount of \$199,604 (for both businesses) should have been deducted from the amount of assets awarded to him. The SD Supreme Court held that husband’s personal loan guarantee was, in essence, a “contingent liability,” the required payment of which was speculative and remote. Accordingly under prior SD case law, the consideration (or not) of such a “contingent liability” is within the trial court’s discretion in dividing property. The trial court’s failure to make a deduction for this “contingent liability” was not an abuse of discretion.

SECOND ISSUE: Husband contested the trial court’s valuation of wife’s equine business. The valuation of Wife’s horses was divided into three categories, premarital horses, horses acquired during the marriage, and horses foaled during the marriage. In each of the categories, the trial court placed a value on the horses which fell between the values presented by the parties. Husband’s argument on appeal related to the fact the wife’s only evidence as to value came from her testimony as to her “personal opinion” as to value while husband produced expert testimony as to value. Husband argued that wife was required to produce “hard evidence,” not just personal opinion, concerning valuation. Husband relied upon prior SD case law which suggested that “hard evidence” as to valuation rather than “personal opinion” was required. The SD Supreme Court rejected husband’s argument, observing that wife “had been training, raising, breeding and selling horses for over 20 years and was qualified to offer an opinion as to their value.” ¶17. The Court held that the trial court’s determination “fell within the range of values presented to the court.” As to the prior case law suggesting that “hard evidence” was required, this Opinion states, “The origin of the ‘hard evidence’ language indicates that [the two prior cases] should not be read to require the trial court to reject proposed valuations of marital assets simply because they are based on a party’s personal opinion. This language more accurately serves as a reminder that it is the duty of the parties, not the trial court, to produce competent evidence regarding the value of the property.” ¶ 19.

5. The parties received \$11,392 in milk checks over the five month period between the filing for divorce and the day of trial. The milk checks were generated as a result of husband's work in running the family dairy farm. The trial court considered all \$11,392 as property to be included in the marital estate for division. The South Dakota Supreme Court reversed, holding that \$5,000 (\$1,000/month) was income used to pay household expenses and that only \$6,392 was subject to property division. *Heckenlaible v. Heckenlaible*, 545 N.W.2d 481 (S.D. 1996).

6. The trial court did not err when it applied a "40% minority discount" to the value of the husband's interest in various family businesses. *Priebe v. Priebe*, 1996 SD 136, 556 N.W.2d 78 (S.D. 1996). He only had a one-quarter interest in the businesses and "the businesses are not readily saleable and any attempted sale would result in the value being discounted by a would-be purchaser." [This quote originally given by the trial court and is reproduced in the opinion. *Id.* at 81] The lack of a controlling interest justifies the "minority discount."

7. In dividing the parties' property, the trial court failed to place a value on four life insurance policies [with a cash value in excess of \$100,000] because the husband was to make the policies payable to

the children in case he should die before they were raised. In this manner, payment of the children's post-secondary education would be guaranteed in the event of his premature death. No value was assigned to the policies because the trial court viewed the policies as being awarded to the children. On appeal, the South Dakota Supreme Court, held that a "discounted value" should have been assigned to the husband and an equalizing payment awarded to the mother. The policies weren't really given to the children, but were awarded to husband with the restriction that the policies be used as security for his obligation until the children's completion of their post-secondary education. At that point, the policies will clearly belong to husband without any restrictions. *Evans v. Evans*, 1997 SD 16, 559 N.W.2d 240 (S.D. 1997)

8. In *Endres v. Endres*, 532 N.W.2d 65 (S.D. 1995), the parties were found to be worth in excess of \$5.3 million. H's concrete business was awarded to H. H appealed alleging error in: 1) the trial court's consideration of "goodwill" (to the tune of \$297,888) in the valuation of his concrete business and 2) the trial court's refusal to reopen to the case for extensive consideration of the tax consequences of the trial court's division of property order. The trial court was affirmed. The South Dakota Supreme Court recognized that "goodwill" of a business is appropriately considered an item of property for division (following the statutory definition of goodwill being "the expectation of continued public patronage"). Furthermore, goodwill may be valued using the "capitalization of excess earnings" method, a method utilized in many other jurisdictions. (The South Dakota Supreme Court observed that it was not necessary in this case to decide whether "professional goodwill" is marital property -- this was a concrete business, not a professional practice or business.) The trial court's effort to require the parties to equally share the tax consequences was sufficient to overcome H's argument that a more thorough analysis should be given to an alleged double taxation problem. The court noted that H's specific argument for the tax consideration did not come until after the trial court had already issued a memorandum decision. The South Dakota Supreme Court re-stated, "the well-settled rule is that theoretical tax consequences on transactions which are not necessary or probable but merely conjectural need not be considered" and noted that H has options available to avoid the liquidation of assets in order to comply with the trial court's order.

Fausch v. Fausch (decided May 18, 2005)

At the time of the divorce, the parties had been married 23 years. H, a physician (cardiologist), was 53 years old and earning \$400,000 per year. W was 56 years old and she suffered from type 2 diabetes, hyperthyroidism, and divorce-related depression. H had ownership interests (ranging from 5% to 7%) in a number of business entities relating to Heart Hospital of South Dakota and North Central Heart Institute. Experts testified for both H & W concerning the value of H's interest in these business entities. The trial court accepted the position of W's expert on two valuation issues which H appealed. The trial court also ordered H to pay \$8,000 per month in alimony to W. The South Dakota Supreme Court affirmed the trial court's ruling on all issues in *Fausch v. Fausch*, 2005 SD 63, 697 N.W.2d 748.

Minority Discount. The trial court failed to give a "minority discount" to the valuation of H's business interests, despite the fact his ownership interests were less than 8%. H argued that a minority discount had been previously approved in *Priebe v. Priebe*, 1996 SD 136, 556 N.W.2d 78 and that under existing case law the "fair market value" must be determined to be "the price a willing buyer would pay a willing seller, both under no obligation to act." The South Dakota Supreme Court rejected H's assertions, holding that the trial court was not required to apply a marketability discount for H's minority interest in this case given the following considerations which impressed the trial court:

- a) a discount for marketability may not be appropriate in situations like a divorce case where no sale is contemplated
- b) although W's expert did not utilize a marketability discount, the expert did apply a 10% discount

for “lack of control”

c) under the holding of the *Priebe* case, the issue of whether or not to apply a minority discount “depends upon the evidence presented in each case. In other words, this is an issue that must be dealt with by trial courts on a case-by-case basis.” quoted language from *Priebe* found in ¶ 9.

d) in this case, other physicians are “willing and waiting to buy [such] interests” – “the other physicians have money and reason to acquire interest in these properties” – and “It would be an attractive investment and I would fully expect the doctors themselves would not want [ownership of such interests] to go outside of their group.” quotes from W’s expert set forth in ¶ 11.

e) the matter of minority discounts had been “a very debated topic in the valuation world at the National Business Valuation Conference last year, a CPA national conference.” footnote 1 accompanying ¶8.

Capital Contribution versus “Buy Back” formula. In one of the corporations, H had invested a capital contribution of \$93,256. According to a “buy-sell” provision in the operating agreement for this business, the Company is required to buy out an owner who wishes to sell his interest. In this agreement, there is a formula which is utilized to determine the amount of the buy-out. [“This provision provides that the purchase price shall be determined by multiplying the book value of the company’s assets, less liabilities and undistributed profits, times the member’s sharing ratio.” ¶ 13.] As per H’s computation, this figure would be \$74,753. W’s expert rejected this figure, however, and placed the value of H’s interest at his capital contribution. W’s expert’s report states, “Use of the original capital contribution is based on a discussion with Kathy Haberling, administrator at [the North Central Heart Institute business], who indicated that an existing owner-physician would likely be paid no less than their original contribution.” (sic) ¶13. The trial court’s adoption of this valuation was “not clearly erroneous.” Additionally, the opinion notes that if there were total sale of the business by all owners, the “buy back” provision would not be applicable.

BOOTH v. BOOTH

Supreme Court of South Dakota, 1984.
354 N.W.2d 924.

WOLLMAN, Justice.

This is an appeal by Lois Booth (appellant) from the property division and alimony portions of the judgment granting her a divorce from Dale Booth (appellee), who has filed a notice of review challenging the award to appellant of certain corporate stock. We affirm the judgment in its entirety.

The parties were married on October 29, 1976. Both parties had been married previously. Appellant had been divorced for a number of years; appellee had been divorced from his wife of twenty-seven years only a few months before he married appellant, a divorce that left appellee obligated to pay some \$32,000 a year to his former wife in the way of alimony and other financial support. Appellant and appellee had been living together for approximately two years before the marriage. During this time they drank heavily and traveled frequently. Their travels included trips to Las Vegas during which they indulged in high stakes casino gambling. This pattern of heavy drinking, traveling, and gambling continued throughout the marriage. Although appellant claimed to have obtained some control over her drinking after 1980, the trial court found that appellant was still habitually intemperate. Appellee acknowledged at trial that he had had a continuing problem with alcohol.

Appellant testified that appellee had been guilty of numerous acts of violence towards her, including

an incident in which he allegedly struck her in the face with a glass of milk, causing her teeth to be pushed against the roof of her mouth. The trial court did not find this to be a fact, however, and found only that appellee had on one occasion kicked appellant in the buttocks.

Appellee acknowledged at trial that he had become involved in an adulterous relationship with another woman late in his marriage to appellant. Although appellant denied any adulterous relationship, she did acknowledge that the boyfriend of the woman whom appellee was seeing had come to her home late one night and had remained until morning and that she had had dinner out of town with him.

Prior to her marriage to appellee, appellant, who was 48 years of age at the time of trial, December 1982, had had several different types of employment, including serving as a bartender and catering manager, doing general office work for a stock brokerage firm, and doing general office work as a secretary for an insurance agency.

Appellee, who was 54 years of age at the time of trial, has spent all of his adult life developing an egg and pullet production business, which he presently operates as two Subchapter S corporations.

No children were born of the marriage.

At appellee's request, appellant gave up her employment following the marriage in order to devote full time to her duties as a housewife and in helping to entertain appellee's business friends. The trial court found that in addition to performing these duties, appellant's contribution to appellee's business consisted of working a week or two on one occasion in helping to clean a chicken house, in filling in for a few days for absent office help, and in spending a week or two cleaning and painting a former office. The trial court specifically found that appellant's behavior while intoxicated at appellee's office and while entertaining appellee's business associates and customers had had an adverse effect upon appellee's businesses.

The trial court found that the parties owned property having a value of approximately \$1.6 million at the time of the divorce. The bulk of this property consisted of appellee's interest in the egg and poultry businesses, the value of which had increased by approximately \$100,000.00 during the course of the marriage. Plaintiff brought approximately \$2,500.00, consisting of various common stocks, to the marriage.

The trial court awarded appellant cash, securities, jewelry, and personal property having a value of some \$48,000.00. In addition, the trial court ordered appellee to pay \$3,200.00 towards appellant's attorney fees in addition to the \$1,750.00 he had previously been required to pay.

The trial court ordered appellee to pay alimony to appellant in the amount of \$600.00 per month for a period of 15 months to aid appellant in the refreshing and retraining necessary to update her job skills.

In making an equitable division of property in a divorce action, the trial court is bound by no mathematical formula. *See, e.g., Owen v. Owen*, 351 N.W.2d 139 (S.D.1984); *Wolff v. Wolff*, 349 N.W.2d 656 (S.D.1984); *Kressly v. Kressly*, 77 S.D. 143, 87 N.W.2d 601 (1958). Rather, the trial court must take into consideration the duration of the marriage, the value of the property owned by the parties, the ages of the parties, the health of the parties, the competency of the parties to earn a living, the contribution of each party to the accumulation of the property, and the income-producing capacity of the property owned by the parties. *See, e.g., Owen v. Owen, supra; Wolff v. Wolff, supra; Watt v. Watt*, 312 N.W.2d 707 (S.D.1981); *Hansen v. Hansen*, 273 N.W.2d 749 (S.D.1979).

Our trial courts have broad discretion in dividing property, and we will not modify or set aside a division of property unless it clearly appears that the trial court abused its discretion. *Id.*

When viewed against the foregoing principles of law, we cannot say that the trial court abused its discretion in dividing the property as it did in the case before us. The trial court entered specific findings with respect to each of the seven factors set forth above in reaching its decision regarding the division of property. After reviewing the record, we cannot say that any of these findings are clearly erroneous. *In re Estate of Hobelsberger*, 85 S.D. 282, 181 N.W.2d 455 (1970).

Without question, this was a short marriage. Although the total value of the assets was considerable, the trial court correctly found that the bulk of these assets were brought to the marriage by appellee. Appellant brought little by way of money or property to the marriage and contributed little to the accumulation or increase in value of the parties' property during the marriage. Indeed, as pointed out above, the trial court found that appellant's conduct had had a negative effect upon appellee's businesses.

The trial court found that both parties were in good health. The trial court specifically rejected as greatly exaggerated appellant's claim that she was disabled and unable to work by reason of arthritis, setting forth in detail its reasons for finding as not credible appellant's testimony regarding her physical condition.

With respect to the income-producing capacity of the assets assigned to each of the parties, it goes without saying, of course, that the income likely to be generated by the share of the assets awarded to appellee will greatly exceed that generated by appellant's share of the property. Given the short duration of the marriage, however, and appellant's capacity to earn an adequate income in her own right, we conclude that the disparity in the income-producing capacity of the parties' separate assets alone does not render the trial court's division inequitable. The trial court took into account, and properly so, the substantial payments that appellee was required to make under the terms of the divorce decree that ended his first marriage.

In summary, then, in view of the fact that there is an adequate basis in the record to support each of the trial court's findings regarding the division of property, and because it quite clearly appears that the trial court took into account all of the pertinent factors in making that division, we cannot say the trial court abused its discretion in dividing the property.

We turn, then, to the question of alimony. In *Guindon v. Guindon*, 256 N.W.2d 894, 898 (S.D.1977), we held that

[t]he amount and length of alimony payments is therefore left to the discretion of the trial court. SDCL 25-4-41. The factors for consideration in exercising that discretion are similar to those used in the property division, i.e., (1) the length of the marriage; (2) their respective earning capacity; (3) their respective financial condition after the property division; (4) their respective age, health and physical condition; (5) their station in life or social standing; and (6) the relative fault of the parties in the termination of the marriage.

In *Hanks v. Hanks*, 296 N.W.2d 523 (S.D.1980), we adhered to the foregoing holding in *Guindon* and noted that although no longer generally a factor in making a division of property, the relative fault of the parties continues to be a consideration in making an award of alimony.

In addition to considering the factors set forth in *Guindon* and *Hanks*, we review the division of

property and the award of alimony together in determining whether the trial court has abused its discretion in making the alimony award. *Lien v. Lien*, 278 N.W.2d 436 (S.D.1979). See also *Goehry v. Goehry*, 354 N.W.2d 192 (S.D.1984); *Krage v. Krage*, 329 N.W.2d 878 (S.D.1983); *Palmer v. Palmer*, 316 N.W.2d 631 (S.D.1982); *Wallahan v. Wallahan*, 284 N.W.2d 21 (S.D.1979).

The trial court appears to have carefully taken the *Guindon*, *Hanks*, and *Lien* factors into consideration in making its award of alimony. As indicated above, the trial court granted appellant divorce based upon the fault of appellee. The trial court also specifically found, however, that appellant had been guilty of nearly equal fault by reason of her intemperance. As indicated above, the trial court rejected as not credible much of appellant's testimony regarding her alleged health problems.

* * *

Accordingly, we conclude that the trial court did not abuse its discretion in concluding that an award of \$600.00 per month alimony for a period of 15 months would be adequate to rehabilitate appellant with respect to her ability to secure appropriate employment.

Appellee's notice of review challenges the trial court's award of \$4,000.00 of the \$14,400.00 worth of certain stock that appellee had purchased out of money inherited from his father's estate during the course of the marriage. This contention is without merit. As we said in *Clement v. Clement*, 292 N.W.2d 799 (S.D.1980), although our trial courts are to consider the fact that one of the parties inherited certain property, the trial court is not bound to set such property aside to that party and may consider it as part of the property to be divided. See also *Laird v. Laird*, 322 N.W.2d 254 (S.D.1982); *Balvin v. Balvin*, 301 N.W.2d 678 (S.D.1981); *Buseman v. Buseman*, 299 N.W.2d 807 (S.D.1980).

Appellant's motion for attorney fees on appeal is granted to the extent of \$500.00.

The judgment is affirmed.

FOSHEIM, C.J., MORGAN and HENDERSON, JJ., and DUNN, Retired Justice, concur.

DUNN, Retired Justice, participating.

WUEST, Circuit Judge, Acting as Supreme Court Justice, not participating.

THE "MARITAL HOME"

The use and possession of the marital home is frequently assigned to the custodial parent where the welfare and best interest of the children so require. Some judges say, "I usually give the house to the kids," meaning that the home is usually awarded to whichever parent is awarded custody.

Sometimes, there is an effort to structure a property disposition that allows the custodial parent to have possession of the home during the minority of the children, but which also attempts to "preserve" some sort of interest in the non-custodial parent. Such orchestration is difficult and generally runs counter to the prevailing notion that property is best divided as of the date of the divorce decree. Nonetheless, efforts continue to exist to accomplish this sort of an arrangement. When such is undertaken, the custodial parent

has a duty to protect the interest of the non-custodial parent. The decree should include "suitable provisions ... requiring the payment of taxes, incumbrance, and the cost of upkeep and repair..." *Johnson v. Lowary*, 132 N.W.2d 823, 825 (S.D. 1965).

It may not be feasible to award the marital home to the custodial parent, especially if it is heavily laden with debt. Consider *Bell v. Bell*, 499 N.W.2d 145 (S.D. 1993), for example, where the lower court awarded the marital home to the custodial wife until the youngest child was emancipated. The South Dakota Supreme Court reversed and remanded for reconsideration in light of the trial court's failure to consider payment of a \$14,000 house loan in favor of the husband's mother.

What about "valuing" a home that will be awarded to the custodial parent? What about the inclusion of alleged costs of a sale in a situation where the home will not be sold? In a case of first impression, the South Dakota Supreme Court upheld the trial court's method of valuing the marital home by considering the "net equity" which would be realized upon a sale of the home, including a deduction of \$10,183 for anticipated "closing costs." *Abrams v. Abrams*, 516 N.W.2d 348 (S.D. 1994). The dissenting opinion is critical of a consideration of "imaginary closing costs," and recognizes that the overall effect of such a consideration is to award the recipient of the marital home (the wife in this case) \$10,183 without ever requiring her to sell the home.

Although at the present time there is an absence of South Dakota case law on this idea, what about a "birdnesting" arrangement which is sometimes utilized in "joint custody" situations? The "birdnesting" idea has evolved from the idea that the child(ren) should not be required to move back and forth from moms and dads in a joint custody situation; rather, the parents should be required to move back and forth into the marital home when periods of possession are alternated. This would be much like a birds taking turns at the nest which holds the babies. In theory, "birdnesting" may make sense but many times the parents may lack a continuing interest in doing this. Under a "birdnesting" arrangement, doesn't the "custody" disposition become "linked" to the "property division" aspect of the decree? Such can cause untoward results. Consider, for example, *Fiddelman v. Redmon*, 37 Conn.App. 397, 656 A.2d 234, 21 Family Law Reporter 1290 (1995). At the time of the divorce, the trial court declared a "birdnesting" arrangement whereby the divorced parents took turns living in the family home during their respective times of possession of the children. Subsequently, the trial court terminated the arrangement and granted temporary exclusive possession of the home to the father and mother complained that the "birdnesting" provision of the decree was an unmodifiable property division. The Connecticut Court of Appeals rejected the mother's claim, holding that a "birdnesting" arrangement is not a property assignment but is part of the custody award.

ADDITIONAL NOTES AND QUESTIONS ON AN "EQUITABLE DIVISION" OF PROPERTY

1. In *Vander Pol v. Vander Pol*, 484 N.W.2d 522 (S.D. 1992) the wife was awarded 100% interest of the marital interest in Fairway Seed, a business partnership between the husband and a corporation composed solely of her husband's friends. Husband had been an active participant in Fairway Seed, but the wife had no meaningful knowledge or control over the business which would be controlled, after the divorce, completely by husband's friends. Wife was also given credit for \$55,000 in her column for the interest of the parties in Fairway Seed. Wife claimed that the disposition was unworkable. What result on appeal? (The South Dakota Supreme Court held it was error to award wife an interest in a business in which she had no meaningful knowledge or control.)

2. The student should *compare* the *Vander Pol* holding with the disposition of the husband's profit sharing plan in the *Henrichs* case – the first main case in this chapter – and also with the description of the losses in that plan as set forth in footnote 3 of the *Henrichs* opinion, *supra*.

3. Husband was ordered to pay wife \$108,000, representing \$5,000 for attorney fees and \$103,000 as wife's interest in the family farming business. Husband was ordered to make annual payments of \$6,000 for 18 years and to pay interest as follows: 1% for the first year, 2% for the second year, 3% for the third year, 4% for the fourth year, 5% for the fifth year, 6% for the sixth year, 7% for the remaining years unless he defaults, at which time the interest rate shall be the legal rate for judgments. On appeal, the South Dakota Supreme Court reversed holding that the wife "should receive the present value of her property settlement." *Grode v. Grode*, 543 N.W.2d 795, 803 (S.D. 1996). The court also recognized the need to "keep the ship afloat" but remanded the case for, *inter alia*, a reconsideration for an appropriate rate of interest.

4. It was error for the trial court *not* to give wife a secured interest in the parties' property awarded to husband in order to secure the husband's obligation to pay her \$108,000 over an 18 year period. Otherwise, husband could declare bankruptcy and leave wife in an unsecured position. *Grode v. Grode*, 543 N.W.2d 795, 803-04 (S.D. 1996). The court cited and quoted SDCL 25-4-42.

5. In *Geraets v. Geraets*, 1996 SD 119, 554 N.W.2d 198 (S.D. 1996), the trial court granted the divorce in January of 1993, but did not finally dispose of the property until April of 1995, after having a trial in February of 1995. The trial court valued the property as of the "date of the trial" in 1995, with no objection having been made by either party to those values at the time of trial. On appeal, the wife claimed that the trial court should have valued the property as of the "date of the divorce." The South Dakota Supreme Court affirmed the use of the "date of the trial" in this case, but noted that the general rule is to value property as of the "date the divorce is granted." [This is an unusual scenario -- when not occurring simultaneously, one tends to see the trial taking place *before* the date of the divorce and, in this more usual scenario, the general rule makes more sense. However, it should be noted that the opinion discusses an exception found in South Dakota case law (the *Miller* case, 157 N.W.2d 537) to the general rule *even in* a case which follows the more usual scenario.]

6. The value of Enron Corp. stock suffered a "precipitous decline in value" after the parties reached an agreement, but before Wife could withdraw her money from Husband's Enron retirement plans. The parties had agreed that Wife would receive \$206,280.17 from Husband's savings and stock plans. They also agreed that Wife would receive an additional \$38,000 from Husband's plans, to be applied to Husband's share of marital debts. The latter part of this agreement was an accommodation to Husband who could not withdraw stock without incurring significant tax penalty. Wife was to receive a total of \$244,280 in retirement plan assets by QDRO. Due to the decline in value, Wife only received \$186,987.82. Wife filed a motion with the court to require Husband to make up the difference. Husband filed a motion with the court to require Wife to pay the full amount of \$38,000 for his share of the marital debt. The trial court held that each party should bear the risk of loss. Wife was required to accept the loss in value on her award of \$206,280.17. Husband was required to accept the loss in value in that portion allocated to satisfy his share of the marital debts. *Duran v. Duran*, 2003 SD 15, 657 N.W.2d 692. The South Dakota Supreme Court affirmed. Interpretation of the contract is a matter of law and the Supreme Court agreed with the trial court's interpretation. As to the date of valuation, "In divorce proceedings, the date of valuation is generally the date of the granting of the divorce. However, a different date may be used if special circumstances are present... [citing the *Geraets* case]... This case presents such special circumstances." ¶ 12. Husband's argument based on the language found in the QDRO was also rejected.

7. **Review by SD Supreme Court.** The South Dakota Supreme Court reminded us that it does not decide most of the issues in a divorce case based on “how it would decide” the case, but rather on the basis of whether the trial court “could reasonably reach the conclusion it did in view of the applicable law and the circumstances of the case.” This was an important point of beginning in the opinion handed down in *Maxner v. Maxner*, 2007 SD 30, 730 N.W.2d 619, a case where we find a pro se appeal by the husband in a divorce proceeding. The wife did not make an appearance on the appeal. The SD Supreme Court affirmed all aspects of the trial court’s ruling in a unanimous opinion by Justice Konenkamp. This point is made in ¶¶ 10-12 and it is made in connection with the issues of custody, division of property and alimony.

8. **Trial court reversed for giving H the farm and not giving W an equitable share or adjusting payment.** In *Edinger v. Edinger*, 2006 SD 103, 724 N.W.2d 852, the trial court’s division of property in a divorce case was reversed on appeal. Both H & W had negative net worth coming into the marriage. The trial court’s division of property left W (a nurse) with a net debt of \$7,420 and awarded H (a farmer) the parties’ entire net worth of \$146,700. The Supreme Court recognized that the trial court desired to give H the farm, but also stated that such a disposition “often necessitates some sort of adjusting payment” to W. (Quoted material found in ¶ 12.) Justice Zinter authored this unanimous opinion.

9. **Spouse’s Eligibility for Social Security Benefits and the Non-Eligibility by the Other Spouse May Be “Considered” by Trial Court in Dividing Property and May be the Basis for an Unequal Division of the Marital Property. And, Monetary Damages Realized as Personal Injury Award May Be Allocated to Spouse as Separate Property Under “Analytical Approach,” according to *Johnson v. Johnson*, 2007 SD 56, 734 N.W.2d 801.** The case of *Johnson v. Johnson*, 2007 SD 56, 734 N.W.2d 801, was orally argued at the law school on 3/21/07. This is a divorce case, but the only disputed issues are associated with division of property. The trial court’s decision was appealed by the wife and the SD Supreme Court reversed and remanded in a unanimous opinion authored by Chief Justice Gilbertson.

1) The case is especially noteworthy on the issue related to Social Security benefits, as described in the note following the *Hilbrands* case, *supra*.

2) The case is also noteworthy on the issue related to a personal injury award recovered by the parties, as described in the note following the *Henrichs* case, *supra*.

3) This case was also reversed and remanded on the following issues:

a) the use of inconsistent dates for valuation of various assets;

b) reconsideration of valuation of livestock, feed and machinery which may be inconsistent with the parties’ pre-trial agreement concerning the necessary operating loan for 2005 (the parties agreed that husband would be fully responsible for payment of the 2005 farm operating loan in exchange for wife’s agreement not assert a claim to the 2005 crop or the 2005 increase in cattle)

c) the erroneous double inclusion of wife’s income tax refund of \$3,460 in determining wife’s share of property – once in her checking account and also in the section dealing with the tax refund

GARNOS v. GARNOS

Supreme Court of South Dakota, 1985.
376 N.W.2d 571.

HERTZ, Acting Justice.

Judith A. Garnos (appellant) and Veran N. Garnos (appellee) were granted a divorce on October 9, 1984. The trial court ordered joint custody of the parties' two minor children, with the appellant having primary custody during the school year. In addition, the court made an award for child support, alimony, a division of the property, and attorneys fees. Appellant appeals from that portion of the decree regarding alimony, property division and child support. The appellee has filed a Notice of Review on the issues of custody, alimony and attorneys fees. We affirm in part, reverse in part and remand.

The parties were married on June 7, 1969. Two children were born of this marriage and at the time of the trial in this matter, were five and seven years of age. Appellant is 37 years of age and the appellee 42. Appellant suffers from hypoglycemia, which is the beginning of diabetes; however, at this stage, it can be controlled by diet. Both parties have a college degree and were employed as teachers at the outset of the marriage. Appellant quit her teaching position in 1976 by reason of the birth of her first child; however, she did some substitute teaching thereafter. Appellant resumed her teaching career in the Hanson County School System in 1984 and continues to remain in that employment.

At the time of their marriage appellant owned no property of her own. Appellee was the owner of a substantial amount of real property, which he acquired through his father pursuant to an estate plan.

Appellant received as a gift from appellee's father 59.7 acres of land, and the parties during their marriage purchased additional ranch land totaling some 1,066 acres.

The trial court ordered that appellant be paid \$25,000.00 in cash as her division of the property, which sum was to be paid by the appellee within six months after the entry of the Decree of Divorce. Further, the trial court ordered that appellee pay to appellant \$600.00 per month alimony for ninety consecutive months, to be terminated upon the death or remarriage of the appellant. Appellant was also awarded the primary custody of the two children for nine months of the school year and appellee to have the children for the three months during the summer vacation. Appellee was required to pay \$200.00 per month per child during the months that the children were in the custody of appellant. The trial court did not designate either party responsible for medical insurance of the children. The personal property of the parties was divided by mutual agreement between the parties.

The various issues raised in this appeal will be separately stated and so treated.

I.

Whether the trial court abused its discretion in only awarding \$25,000.00 in property to the appellant when the parties had an overall net worth, including inherited property, in excess of \$800,000.00.

In reviewing the division of property, we take cognizance of the fact that the trial court has broad discretion in making a division of property and we will not modify or set it aside unless it clearly appears that the trial court abused its discretion. *O'Connor v. O'Connor*, 307 N.W.2d 132 (S.D.1981); *Laird v. Laird*, 322 N.W.2d 254 (S.D.1982); *Kittelson v. Kittelson*, 272 N.W.2d 86 (S.D.1978). SDCL 25-4-44.

In making an equitable division of property, the trial court is not bound by any mathematical formula, but is to make the award on the basis of the material factors in the case, having due regard for equity and the circumstances of the parties. These factors include the duration of the marriage, the value of the property of each of the parties, the ages of the parties, their health and competency to earn, and the contributions of each of the parties to the accumulation of the marital property. *Kressly v. Kressly*, 77 S.D. 143, 87 N.W.2d 601 (1958); *Lien v. Lien*, 278 N.W.2d 436 (S.D.1979); *Wallahan v. Wallahan*, 284 N.W.2d 21 (S.D.1979).

This court has consistently acknowledged that the performance by a housewife and mother of typically domestic duties constitutes a valuable contribution to the accumulation of the marital property. *O'Connor v. O'Connor*, *supra* and *Kittelson v. Kittelson*, *supra*. Keeping in mind the principles above enunciated, we now proceed to dispose of the issue in question.

According to appellee's expert appraiser, he determined that appellant and appellee had ownership interests in a total of 4,136.89 acres. It appears from the records and files herein that of this total acreage, appellee either by way of inheritance or estate planning, had an ownership interest in 3,070.89 acres. This apparently leaves 1,066 acres purchased by the parties during the course of their marriage. Additionally, it is noted that appellant received as a gift from appellee's father 59.7 acres, which had a value of \$11,948.00. The expert appraiser determined that tillable land should be valued at \$275.00 per acre and grasslands at \$170.00 per acre.

Pursuant to these per acre valuations, the purchased land of the parties during the marriage would have a total value of \$236,150.00 based on 496 acres of tillable land and 570 acres as grassland. The trial court found that the parties had paid \$120,613.00 for this land.

The land acquired by appellee, either through inheritance or by estate planning, totaling some 3,070.89 acres, had a value assigned to it of \$570,905.75. The total value of all of the land comes to \$819,003.75, which includes the value of the 59.7 acres gifted to appellant by her father-in-law.

In making the property division it did, the trial court concluded that the inherited real property was to be excluded from any consideration in the determination of the property division. Further, the trial court apparently concluded that appellant had made little, if any, contribution towards the acquisition of the 1,066 acres purchased during the marriage, which had an appraised value at the time of the trial of some \$236,150.00. It should be noted that with respect to inherited property it is not ipso facto excluded from consideration in the overall division of property, but rather it is in the trial court's discretion whether in this case appellee's inheritance should be excluded in making that determination. *Balvin v. Balvin*, 301 N.W.2d 678 (S.D.1981); *Buseman v. Buseman*, 299 N.W.2d 807 (S.D.1980); *Laird v. Laird*, *supra*.

During the fifteen years plus of the marriage of the parties, appellant contributed all of her teaching income to family expenses. When not teaching, she bore two children and performed all of the duties of a housewife and mother. As previously indicated, this court has consistently recognized that the contribution of a housewife and mother is substantial and is an important consideration in the determination of property interests of the parties.

Considering the vested real estate interest of the parties and the factors pertinent thereto, we conclude the award of \$25,000.00 to be clearly inadequate and an abuse of discretion on the part of the trial court. We, therefore, remand the matter of property division for further proceedings consistent with this opinion.

II

Whether the trial court abused its discretion in granting appellant \$600.00 per month in alimony, which is to terminate upon appellant's remarriage or upon 90 consecutive monthly payments, whichever occurs first.

Appellant contends this award in the light of the \$25,000.00 property distribution is inequitable. Appellee, on the other hand, by his Notice of Review, contends the alimony award is excessive.

Since the division of property of the parties will be remanded for reconsideration by the trial court, we are now unable to determine whether the position of either party has merit. We, however, direct the trial court to review the alimony award after the property division has been accomplished under this remand, since the final property division may dictate a change in the award. The trial court, of course, will keep in mind the factors to be considered in making an alimony award pursuant to SDCL 25-4-41 and our many decisions in that regard.

* * *

Accordingly, this case is remanded for proceedings consistent herewith.

All the Justices concur.

WUEST, Circuit Judge, Acting as a Supreme Court Justice, participating.

NOTES

1. In *Johnson v. Johnson*, 471 N.W.2d 156 (S.D. 1991), the trial court awarded the wife less than one-fifth of the property. She received a net value of \$75,000 plus a car. Husband received property worth a net value of \$413,000. The trial court had found that “husband was the sole source of the marital assets and income and that he would have been just as financially successful if he had not married.” *Id.* at 160. The South Dakota Supreme Court reversed, recognizing once again “that the duties performed as a mother and housewife constitute a valuable contribution to the marital property.” [citing *Garnos v. Garnos*].

2. Notice the language which is frequently repeated in just about all these “Division of Property” cases — “the trial court is not bound to any mathematical formula.” The property division should be “equitable” not necessarily “equal.”

3. In *Feldhaus v. Schreiner*, 2002 SD 65, 646 N.W.2d 753, the trial court divided the property in the proportion of 54 % to H and 46% to W. W was awarded \$340,699 in property and assets, while H was awarded \$407,304 in property and assets. Notably, over 3/4 of the award to H was his retirement plan which had *no* cash value. In an unanimous opinion, the trial court was affirmed. While there are many existing South Dakota Supreme Court opinions which state that “the trial court is not bound to any mathematical formula,” this opinion states the same principle, only with different words by saying “The trial court is not, however, bound to any formulaic computation.” ¶ 15 of opinion. In a brief review of the factors for dividing property, the Court said, “[W] is younger than [H], still fully employed, and has the potential to continue increasing her earnings. [H] contributed ‘twice as much as [W], by way of earnings towards the accumulation of assets during the course of the marriage.’ [W] is in good health, while [H] has a heart condition that could

cause significant problems down the road, one of which is surgery. But most importantly, the court was ‘mindful of the fact that nearly three quarters of [H’s] marital estate is comprised of his retirement plan that has no *cash* value.’” (emphasis is original by the court). ¶ 16 of opinion.

4. Unbalanced property division in favor of W upheld where H was found to be chronically under-employed. Efforts by H’s mother to impose mechanic’s liens on parties’ rental property found to be in bad faith and trial court was authorized to order protective measures to protect W’s interest.

In *Muenster v. Muenster*, 2009 SD 23, 764 N.W.2d 712, H came into the marriage with non-marital real estate. During the marriage H went to law school and graduated. H did not take the bar exam but opted to be involved in real estate rental management. H was found to be “chronically under-employed” although he had a law degree and a real estate license. W was awarded custody of the 3 children and was also awarded an unbalanced favorable award of property (the parties’ income-producing rental properties). H was found to be in contempt for failing to pay interim support to W. Additionally, H’s mother filed mechanic’s liens against the parties’ rental properties in an apparent effort to consume the parties’ equity. The trial court found that these liens were not filed in good faith and that they were a “deliberate attempt to make an end run around an equitable division of property in this divorce case.” In connection with H’s mother’s assertion of liens, the trial court ordered H to pay the legal fees incurred in defense of the liens and to assume the debt owed to his mother. H appealed the trial court’s rulings on division of property, child support and the contempt finding against him. The SD Supreme Court reversed and remanded the issue of child support, directing the trial court to use actual earnings (not imputed earning) and to give consideration to possible grounds to deviate which might be raised. The Court affirmed the lower court’s rulings on division of property and contempt. Additionally, H was ordered to pay \$3,183 towards W’s appellate attorney fees. This opinion is authored by Circuit Judge Kern, sitting for Justice Meierhenry. This is a unanimous decision.

In upholding the award of rental property to W, the SD Supreme Court held that “Although [W] did not have premarital funds to contribute to the purchase the properties [as did H], her valuable contributions to the acquisition and maintenance of the properties may not be ignored.” In this case W’s contributions were “consistent income [from employment during the marriage] and contributions as mother and wife [which] were substantial, well beyond de minimis.” *Id.* at ¶¶ 17-18. Furthermore the award of all the income-producing property to W “was necessary to provide adequate assets and a reliable source of support for [W] and children.” Such is justified in a situation where the other spouse is unreliable in repaying obligations and maintaining child support payments. *Id.* at ¶ 23.

As to the protective rulings concerning W’s equity in the property, which was diminished by the mechanic’s liens filed by H’s mother, the Court stated,

The trial court did not render judgment on the validity of the liens but rather, after determining the liens were brought in bad faith, issued orders to protect [W’s] equity in the property. Such consideration is within the ambit of a trial court charged with dividing the marital estate in an equitable manner. *Id.* at ¶ 25.

E. Retirement Plans

DELOREY v. DELOREY

/Supreme Court of North Dakota, 1984.
357 N.W.2d 488.

PEDERSON, Justice.

This is an appeal from a judgment granting the parties a divorce from each other.

* * *

The availability of a military retirement pension as a divisible asset for purposes of a property division has undergone several changes within the past few years. The United States Supreme Court in *McCarty v. McCarty*, 453 U.S. 210, 101 S.Ct. 2728, 69 L.Ed.2d 589 (1981) held that federal law precluded a state court from dividing military nondisability retirement pay pursuant to state community property laws. Congress reacted to the Supreme Court decision by enacting the Uniformed Services Former Spouses' Protection Act, Pub.L. No. 97-252, 96 Stat. 730 (1982), codified at 10 U.S.C. § 1408 (1982). We recently had occasion to consider the Act's effect in *Bullock v. Bullock*, 354 N.W.2d 904, 906-08 (N.D.1984), and noted that many states have ruled that the Act's effect is to allow each state to make the final decision concerning the divisibility of military nondisability retirement pay.

* * *

Nowhere in the record does it appear that the actual provisions of the federal statute were considered and applied to the facts of this case. Instead, the court concluded that because it did not have the present value of the retirement account and the pension might never vest, it was not able to consider the military retirement pay as a divisible asset.

This court has previously held that profit-sharing funds could be considered in the division of property. *See, e.g., Keig v. Keig*, 270 N.W.2d 558 (N.D.1978). We recently held that where present values of annuities cannot be agreed upon, it may be necessary to divide them according to a formula that requires both parties to share in the ultimate risks and benefits involved. *Glass v. Glass*, 344 N.W.2d 677, 678-79 (N.D.1984). We commented in *Glass* that although Minnesota has a statute that implies that only vested pension rights are marital property, the Minnesota Supreme Court has concluded that non-vested pensions are also marital property. The Minnesota Supreme Court offered appropriate guidelines for trial courts that have to divide retirement benefits. We summarized these in *Lentz v. Lentz*, 353 N.W.2d 742, 747 (N.D.1984). Finally, in *Bullock, supra*, at 910-11, we concluded that a non-vested military pension was properly considered an asset for purposes of property distribution and that the district court's formula properly allocated the risks and benefits involved between the parties.

The trial court's failure to consider the military retirement plan was induced by an erroneous view of the law and, consequently, the whole question of equitable property division in this case must be retried. The judgment is reversed to the extent that it involves property division and "spousal support" and the case is remanded for retrial of those issues.

ERICKSTAD, C.J., and SAND, J., concur.

VANDE WALLE, Justice, concurring specially.

I reluctantly concur in the result reached in the majority opinion. Were it not for the specific statutory admonition in Section 14-05-24, N.D.C.C., that the court distribute the real and personal property of the parties as may seem just and proper, I might well dissent. If the parties have presented no evidence of the value of the military pension to the trial court, the trial judge is not in a position to place a value on the pension. The case law of the various jurisdictions is littered with decisions discussing the various methods by which pensions or retirement benefits may be valued for purposes of distribution in divorce proceedings. As Justice Pederson has noted in the majority opinion, we have a few of our own in North Dakota. I believe it is safe to assume that in most of those cases evidence concerning the value of the pension or retirement benefit was at least offered to the court. Here, no evidence concerning the value of the pension was submitted to the court. If the trial judge had attempted to assign a value to the pension and divide it between the parties I have no doubt we would have reversed because there was no evidence in the record upon which the trial judge could have made such a determination.

GIERKE, J., concurs.

NOTES

1. In *Porter v. Porter*, 542 N.W.2d 448 (S.D. 1996), the divorce decree was entered on 9/14/81 and it did not address husband's military pension benefits. This decree was entered less than three months after the *McCarty* decision (which declared that such benefits were the sole property of the retiree and not subject to division). Congress' subsequent enactment of the USFSPA (Uniformed Services Former Spouses Protection Act) was made retroactive to the date of *McCarty*. Eventually the wife in *Porter* then sought to modify the divorce decree so as to request a portion of the military benefits. The wife's motion for modification was filed in October, 1994. The South Dakota Supreme Court held that wife's motion was "untimely" under SDCL 15-6-60(b) in that it wasn't filed within a "reasonable time." The Court noted that her motion came twelve years after the enactment of the USFSPA and ten years after the court's decision in *Moller v. Moller*, 356 N.W.2d 909 (S.D. 1984) (which recognized South Dakota's willingness to divide military pensions).

2. Congress amended the USFSPA in 1990 so as to specifically prohibit the reopening of divorce decrees entered prior to June 25, 1981. This is discussed in the *Porter* opinion described in note 1, *supra*, 542 N.W.2d at 449.

STUBBE v. STUBBE
Supreme Court of South Dakota, 1985.
376 N.W.2d 807.

* * *

The husband next argues that the property division was inequitable because the trial court made no determination of the present value of his pension plan. He also argues that the pension fund should not be included as a marital asset and divided.

We note that under the court's division of the marital property, wife was awarded approximately \$5,252.00 in value and husband was awarded approximately \$19,628.00 in value. The trial court allowed wife use of the family home while the youngest child remains a minor. The house is then to be sold and the sale proceeds are to be disbursed 60 percent to wife and 40 percent to husband. In the interim, wife is responsible for the cost of real property taxes, insurance and repairs under \$100.00 per month on the home. Major repair expenses are to be shared by husband and wife. The trial court awarded each party one-half of the A.T. & T. stock, and wife was awarded one-half of husband's pension plan with Western Electric Company, less alimony.

The trial court is entitled to make an equitable division of all marital assets belonging to either spouse. SDCL 25-4-44. A retirement plan has been recognized as a divisible marital asset since it represents consideration in lieu of a higher present salary. *Hansen v. Hansen*, 273 N.W.2d 749 (S.D.1979). Here, husband's pension contributions would have been otherwise available to the family as disposable income during the marriage. *Boyd v. Boyd*, 116 Mich.App. 774, 323 N.W.2d 553 (1982). Further, this pension plan is vested in the sense that it cannot be unilaterally terminated by his employer, though actual receipt of the benefits is contingent upon his survival and no benefits will accrue to the estate prior to retirement. Expert testimony in the record revealed that had the husband retired at the time of trial, he would have received monthly pension payments of about \$785.00 during a life expectancy of 23 years and 10 months.

We cannot conclude that the trial court erred in considering the pension plan or in the total division of the marital assets. Wife made substantial contributions to the marriage in relocating herself and the children on numerous occasions to enhance husband's employment. She forfeited her own pension possibilities due to intermittent employment as a nurse made necessary by the demands of motherhood. It is true that the 50-50 split of the pension plan does not recognize husband's post-divorce contributions to the plan. This involves the uncertainty as to when husband will retire. When he does retire, husband can then petition the court for adjustment of any inequities. A reduction of wife's share of the pension plan benefits or alimony payments may then be indicated. In this regard, we take note that this manner of pension plan division comports in some respects with the Social Security provision which entitles certain divorced spouses to collect one-half of the former spouse's primary insurance benefits. *See*, 42 U.S.C. §§ 402, 405, 416, 1302 (1973 and Supp. June, 1985); 20 C.F.R. § 404.331 et seq.

We award wife attorney fees in the amount of \$1,000.00 based on her affidavit itemizing appeal expenses.

The judgment is affirmed.

MORGAN, J., and WUEST and HERTZ, Acting Justices, concur.
HENDERSON, J., dissents.

**NOTE (The *Hautala* Formula)
(a/k/a the “Coverture Fraction”)¹**

In *Hautala v. Hautala*, 417 N.W.2d 879 at 880 (S.D. 1988), it was reported that H’s military retirement pay was divided in the following way: W was awarded 42% of each of H’s future payments because the ratio of the length of time in the military while married (226 months) to the length (or projected length) of military service (271 months) yielded 83% as the marital portion of the pension. W was awarded ½ of the marital portion, or 1/2 of 83%, which is approximately 42% of all future payments. H did not challenge this method of division.

In a more general way, the *Hautala* formula would be as follows:

Non-contributing
Spouse’s Award is ½ of
the “Marital Portion” and

$$\begin{array}{l} \text{Marital Portion} \\ \text{(of the Retirement Plan)} \end{array} = \frac{\text{Length of Service or Employment while Married}}{\text{Total Length of Service or Employment}}$$

If the employed spouse is still working at the end of the marriage, the “total length of service or employment may have to be “projected,” if possible.

The phrase “while married” has not always been considered to run to the date of the divorce. As will be seen in the *Roupe* case which follows, it is possible that the “length of service or employment while married” may run only until the “date of separation.” By considering only the time in service or employment up to the *date of separation*, as opposed to the *date of the divorce*, in the numerator of this fraction, this tends to limit the amount which would qualify as a “marital” portion subject to being divided.

This method of division – by the use of the *Hautala* formula – is discussed in detail as the “Coverture Fraction” in Dylan A. Wilde, *Obtaining an Equitable Distribution of Retirement Plans in a Divorce Proceeding*, 49 South Dakota Law Review 141, 157-59 and 174-78 (2003).

STEMPER v. STEMPER

Supreme Court of South Dakota, 1987.
403 N.W.2d 405.

MOSES, Circuit Judge.

This appeal arises from a decree of divorce terminating the marriage between Bernadette L. Stemper (Bernadette) and Kenneth C. Stemper (Kenneth). Kenneth appeals from those portions of the decree dividing the property and awarding alimony. We affirm in part and reverse in part.

¹ Dylan Wilde deserves credit for bringing the phrase, “Coverture Fraction,” to the attention of your author as being the appropriate description of the approach utilized by the *Hautala* formula. .

Bernadette and Kenneth were married on November 10, 1956. At the time of the marriage, both were nineteen years of age and high school graduates. They had little or no property. At the time of the trial in this matter, Bernadette was employed by the Unified Judicial System as a deputy clerk of courts in Davison County. Kenneth was employed as a United Parcel Service driver. Bernadette sued Kenneth for divorce. The trial court granted her the divorce.

The trial court divided the property by having the house sold and the proceeds divided equally between the parties. Bernadette received furniture and appliances valued at \$1,500. The trial court awarded Bernadette one-half of Kenneth's savings account and one-third of the value of Kenneth's United Parcel Service Thrift Plan. As a part of the division of the property, the trial court also awarded Bernadette \$9,862, which constituted one-third of Kenneth's pension plan. The trial court found that the pension plan had a present value of \$25,585. The trial court further awarded Bernadette \$600 per month alimony for her lifetime. She was also awarded \$2,000 for attorney fees.

Kenneth contends that the trial court abused its discretion by awarding one-third of his pension plan to Bernadette. He further contends that the trial court abused its discretion in awarding alimony.

The trial court has broad discretion in awarding alimony and making a property division, and its judgment will not be set aside unless it clearly appears that it abused its discretion. *Goehry v. Goehry*, 354 N.W.2d 192 (S.D.1984). In order to determine whether the trial court has abused its discretion, this court reviews the award of alimony and property division together. *Booth v. Booth*, 354 N.W.2d 924 (S.D.1984).

The United Parcel Service has a non-contributory pension plan which is vested if an employee is employed for at least ten (10) years with twenty or more weeks of pension contributions for each year. It appeared from the evidence that Kenneth had worked for the United Parcel Service nine years. Kenneth alleges that he is therefore not vested. The trial court found that he was vested.² We cannot say the trial court abused its discretion in finding the pension of Kenneth was vested.³

² Pension plans and retirement plans have been a frustration for the court for several years. Each pension plan is different and each is based on different factors.

A vested pension or retirement plan refers to a pension right which is not subject to a condition of forfeiture if the employment relationship terminates before retirement. In other words, it is a right which survives the voluntary or involuntary termination of the employee. A person whose employment is terminated and whose pension plan is not vested only receives money which he paid into the plan. A matured pension is one to which the employee has an unconditional right to immediate payment. Thus, a person may be vested but not yet matured and in that case the party would have no right to immediate payment of the pension benefits. Vested but matured pensions may be forfeited if the employee does not survive until retirement, if the plan so provides. See Note, *Pensions as Property Subject to Equitable Division upon Divorce in Oklahoma*, 14 Tulsa L.J. 168, 182 n. 104 (1978). For an excellent annotation of cases relating to the issue of pension benefits and rights, and their disposition in marital solution proceedings, see Annot. 94 A.L.R.3d 176.

The California Supreme Court in the case of *Phillipson v. Board of Administration*, 3 Cal.3d 32, 89 Cal.Rptr. 61, 473 P.2d 765 (1970), said that when feasible, the trial court should award the employee all pension rights and compensate his spouse with other property of equal value. The discussion was not intended to tie the hands of the trial court. * * *

³ We have not had an occasion to decide whether a nonvested, unmatured pension is marital property. Only the community property jurisdictions have expressly decided that nonvested, unmatured pensions are marital property. See, e.g., *In re Marriage of Brown*, supra, *Cearley v. Cearley*, 544 S.W.2d 661 (Tex.1976); *Wilder v. Wilder*, 85 Wash.2d 364, 534 P.2d 1355 (1975). Minnesota has reached the same result through statutory language. See, e.g., *Janssen v. Janssen*, 331 N.W.2d 752 (Minn.1983). We note with interest that the strongest authority against holding nonvested pension rights and marital property comes from Colorado. The reasoning for the result reached is that such rights have no cash surrender value, loan value, redemption value, lump sum value or value realizable after death. *Ellis v. Ellis*, 36 Colo.App. 234, 538 P.2d 1347 (1975); *Ellis v. Ellis*, 191 Colo. 317, 552 P.2d 506, 507 (1976); *In re Marriage of Camarata*, 43 Colo.App. 317, 602 P.2d 907 (1979). Other jurisdictions have followed this result. See, e.g., *Fenney v. Fenney*, 259 Ark. 858, 537 S.W.2d 367 (1976). *Baker v. Baker*, 120 N.H. 645, 421 A.2d 998 (1980).

In South Dakota a retirement plan has been recognized as a divisible marital asset since it represents consideration in lieu of a higher present salary. *Stubbe v. Stubbe*, 376 N.W.2d 807 (S.D.1985); *Hansen v. Hansen*, 273 N.W.2d 749 (S.D.1979). Contributions made to the pension plan would have been available to the family as disposable income during the marriage. *Boyd v. Boyd*, 116 Mich.App. 774, 323 N.W.2d 553 (1982).

We find that dividing the retirement fund or pension plan as marital property at the time of the divorce in effect destroys Kenneth's future livelihood and means of complying with the alimony award. The trial court's error was further compounded because it considered the retirement fund, which was already a part of the property division, in awarding alimony out of Kenneth's future income or earning capacity. We find that the trial court correctly made a retirement or pension plan a part of the property division after reducing the amount of the pension or retirement plan to present value. But the trial court erroneously provided for payment of alimony based on that fund. Consequently, we reverse the trial court as to the alimony award and order its elimination.⁴

In handling a pension which has been reduced to present value, there should be a "constructive trust" on the amount of money to be paid. A "constructive trust" arises when a person owning title to property is under an equitable duty to convey to another because he would be unjustly enriched if he were permitted to retain it. *Knock v. Knock*, 80 S.D. 159, 120 N.W.2d 572 (1963); *Heinzman v. Howard*, 366 N.W.2d 500 (S.D.1985). Here, a constructive trust imposed on the \$9,862 will allow the money to be available to Bernadette when it matures for Kenneth upon his retirement.

* * *

We find Kenneth's remaining issues to be without merit.

HENDERSON, J., and FOSHEIM, Retired J., concur.

SABERS, J., and KONENKAMP, Circuit J., dissent.

MOSES, Circuit J., for WUEST, C.J., disqualified.

KONENKAMP, Circuit J., for MORGAN, J., disqualified.

SABERS, Justice (dissenting).

* * *

The majority opinion reverses the alimony award and orders its elimination. In my opinion, this is error and I dissent. I would affirm the trial court in all respects except only that I would impose a constructive trust on the present value of the pension rather than a judgment.

I am authorized to state that Circuit Judge Konenkamp joins in this dissent.

⁴ May we suggest to the trial courts that when feasible they should consider awarding the employee all pension rights and compensate the spouse with other property of equal value.

NONVESTED PLANS

In the second footnote of the *Stemper* opinion, the South Dakota Supreme Court acknowledged that it had not yet considered whether "nonvested" plans would be considered property subject to division. In the subsequent case of *Caughron v. Caughron*, 418 N.W.2d 791 (S.D. 1988), the husband's nonvested pension plan was not included by the trial court in the division of property. The appeal in that case raised this issue and part of the *Caughron* opinion can be found a little bit further along in this book.

If there were any lingering notions about "nonvested" plans following the *Caughron* decision, the matter was laid completely to rest in *Grode v. Grode*, 543 N.W.2d 795, 801-02 (S.D. 1996) wherein the husband's nonvested pension plan with the National Guard was determined to be property which should properly be included as marital property for division. The South Dakota Supreme Court held that omission of assets (such as this nonvested plan) is an abuse of discretion and warrants remand. The court defined a "vested plan" as one in which an employee leaves the job for any reason and is still eligible for benefits from the pension. "Nonvested" pensions are pensions that have not "fulfilled the time requirement." Nonetheless, they may be divided by awarding to each spouse an appropriate portion of each pension payment as it is paid. This manner of division -- awarding each spouse one-half of the marital portion of the plan -- had previously been approved by the court in *Abrams v. Abrams*, 516 N.W.2d 348, 351-52 (S.D. 1994), which opinion the *Grode* court cited with approval. (In the *Abrams* decision, the trial court methodically divided three separate plans, awarding each spouse one-half of the marital portion. Two of the plans divided belonged to the husband and one belonged to the wife.)

RADIGAN v. RADIGAN

Supreme Court of South Dakota 23, 1991.
465 N.W.2d 483.

* * *

4. THE MILITARY PENSION

A military pension is property subject to division. *Gibson v. Gibson*, 437 N.W.2d 170, 171-172 (S.D.1989). In this case, it is the principal property to be divided.

Using the formula for dividing military pensions approved as a guideline in *Hautala v. Hautala*, 417 N.W.2d 879, 880 n. 1 (S.D.1988), the trial court arrived at a percentage (33 1/3 %) of William's pension to which it held Margaret was entitled. The court ordered this percentage to be applied to whatever retirement benefits William eventually collects, whenever he chooses to retire. William objects to the open-ended nature of this property division. He would like to remain in the military a few more years in order to attain a higher base pay and to become eligible for a higher percentage of that base pay upon retirement. He claims that it is inequitable that he should have to share with Margaret any additional benefits he acquires on his own between divorce and retirement. He wants his property obligation to Margaret to be reduced to a sum certain by applying Margaret's percentage only to the monthly retirement amount he was eligible to receive on the day of the divorce.

In those states which follow a "dual property" regime, any portion of a pension not attributable to employment during the marriage is not subject to division as a matter of law. 3 Rutkin Family Law and

Practice, s 37.07[4][a] (1990). Even in many "all property" regimes, where the disposition of either spouse's property is theoretically at the court's discretion, there is a preference for dividing only the portion of a pension which accrued during the marriage as being the more equitable approach. *Id.* See also *In re Marriage of Oler*, 451 N.W.2d 9 (Iowa App.1989); *Kilbride v. Kilbride*, 172 Mich.App. 421, 432 N.W.2d 324 (1988).

South Dakota is an "all property" state. Under SDCL 25-4-44, all property of either or both divorcing spouses is subject to equitable division by the court, regardless of title or origin.

Our precedents on prospective pension division are neither numerous nor completely clear. In *Hautala*, for example, we permitted a prospective division of husband's military pension similar to that here. The difference, as William points out, is that husband in *Hautala* did not object and the issue was not litigated. In *Stubbe v. Stubbe*, 376 N.W.2d 807, 809 (S.D.1985), we approved a flat 50-50 split in a future pension, but admitted there might be "inequities" in failing to "recognize husband's post-divorce contributions to the plan." *Stubbe* suggested that husband might petition the court for "adjustment of ... wife's share of the pension plan benefits" upon his retirement. *Id.* That solution, however, tends to overlook the fact that a property division, unlike alimony and child support, is not subject to modification due to change in circumstances. *Rousseau v. Gesinger*, 330 N.W.2d 522, 525 (S.D.1983).

On balance, we conclude that South Dakota law leans toward giving maximum latitude to the trial court in dividing property and placing minimal limitations on what the trial court may find "equitable." In this, we are not unique. See e.g. *Rodak v. Rodak*, 150 Wis.2d 624, 442 N.W.2d 489 (Wis.App.1989) (pension was divisible in its entirety even though ten of the twenty-three employment years to which it was attributable occurred before the marriage); *Bullock v. Bullock*, 354 N.W.2d 904 (N.D.1984) (non-military spouse entitled to percentage of military pension earned after divorce). The *Bullock* Court explained:

[A]n equitable distribution of marital property is generally a matter for the trial court's discretion and depends on the facts and circumstances in each case. [Citations omitted] Certainly in this case Gerald's years of military service during the parties' marriage provided a basis for any future promotions and increases in pay for length of service to which he may become entitled. Gerald's military career and earning ability were developed and enhanced throughout the course of the parties' seventeen years of marriage ... The [Hautala-like] formula ... allocat[ed] ... between the parties the risk that Gerald may never receive military retirement pay.

Id., at 910-911.

To be successful, an appellant must do more than simply allege error. Error must be established in the record. Here William fails to show that the court did not consider his post-divorce contributions to the pension and limit Margaret's share to 33 1/3 % to compensate for that factor.

This court may not set aside the trial court's property division unless we find a clear abuse of discretion. *Henrichs v. Henrichs*, 426 N.W.2d 569, 572 (S.D.1988). We find no such abuse of discretion in the trial court's prospective division of William's military pension.

BELL v. BELL

Supreme Court of South Dakota, 1993.
499 N.W.2d 145.

1. Retirement Plan.

We look first to Steve's allegation that the trial court abused its discretion when it awarded half of his retirement plan to Paulette. Steve has been a member of the Teamster's Union for sixteen years. His Teamster's pension plan vested after ten years. The present retirement value of his retirement plan is \$200/month upon reaching age sixty-five.

"In South Dakota a retirement plan has been recognized as a divisible marital asset since it represents consideration in lieu of a higher present salary. Contributions made to the pension plan would have been available to the family as disposable income during the marriage." *Stemper v. Stemper*, 403 N.W.2d 405, 408 (S.D.1987) (citations omitted). Steve argues that because there was no evidence presented that the retirement plan was funded in lieu of a higher present salary, or that it affected his family's disposable income during the marriage, the retirement plan is not marital property subject to division. We note that even a non-contributory pension plan is a marital asset even though such a plan has no effect on disposable income during the marriage. *Stemper*, 403 N.W.2d at 407-08. The pension plan benefits were clearly accrued during the marriage and are therefore, a marital asset subject to division. *Id.* See also *Kanta*, 479 N.W.2d at 510; *Stubbe v. Stubbe*, 376 N.W.2d 807, 809 (S.D.1985). The trial court did not abuse its discretion by including the accrued pension plan benefits as a part of the marital assets to be divided. However, the division, if any, of this marital asset is to be reconsidered on remand as more fully discussed below.

* * *

NOTES

1. Husband worked for the U.S. Postal Service. He had contributed \$40,492 into his retirement fund. Husband urged the trial court to value his fund at its "present value" of less than \$10,000 because he would not retire for another 17 years. The trial court valued the fund at \$40,492 because that would be the amount husband would receive in the event he would terminate his employment *today*. The Supreme Court of South Dakota affirmed stating "[t]o value his present retirement interest at an amount lower than his actual cash contribution made during the marriage with marital funds would be unjust." *Kanta v. Kanta*, 479 N.W.2d 505, 510 (S.D. 1991).

2. In *Kost v. Kost*, 515 N.W.2d 209 (S.D. 1996), the trial court valued husband's retirement plan at \$16,589 which represented the "fund reduced to present value." The South Dakota Supreme Court reversed because husband had contributed \$27,318.80 to the plan during the marriage. The court cited *Kanta v. Kanta*, 479 N.W.2d 505 (S.D. 1991) and stated that the "trial court's valuation was contrary to settled law."

ROUPE v. ROUPE

Supreme Court of South Dakota, 1996.
544 N.W.2d 540, 1996 SD 25.

PER CURIAM.

Peggy Roupe (Peggy) appeals the valuation and division of property made in the divorce from her former husband Gilbert Roupe (Gilbert). By notice of review, Gilbert challenges the division of his retirement benefits. We affirm in part, reverse in part, and remand.

FACTS

Peggy and Gilbert were married in 1965, and their three daughters are now all adults. Gilbert is in his mid-60's and is a retired postmaster. His health is poor, as he is currently under medical treatment for breathing problems, and has had cancer and mobility problems. Peggy is in her early 50's and is employed by the school system in Phoenix, Arizona. In 1984, Peggy left the marital home in Wanblee and moved to Arizona, leaving the children and her husband behind. There she obtained a doctoral degree and has remained.

Peggy has never returned to the marital home except on two isolated occasions. Over the years between Peggy's departure and the divorce, Gilbert raised two of the parties' children (one child was raised by relatives), maintained the marital residence, and paid off debts the parties had jointly incurred. During her absence, Peggy did not make any contributions to the support of the children or payment of any marital debts.

In 1992, Gilbert was about to retire from his postmaster position and the youngest child was about to leave for college. He allowed each of the parties' three daughters to select household goods, family heirlooms, and personal property to complement those items already gifted to them by Peggy. When the daughters made their selections, Gilbert liquidated the remaining non-essential personal property and moved from the marital residence in Wanblee to Hermosa. Gilbert made no attempt to conceal from Peggy his arrangements for the personal property. He then filed for divorce.

Although the parties stipulated to irreconcilable differences, they were unable to agree upon matters concerning the division of property. Following a court trial, the remaining personal property was divided between the parties. Peggy was awarded the house and 31.3% of Gilbert's federal postal retirement benefits. Peggy filed this appeal, and Gilbert filed a notice of review.

ISSUES

I . Did the trial court abuse its discretion in making the property division?

Peggy contends that the property division does not take into account the dissipation, concealment, and wasting of substantial marital assets by Gilbert. She contends that the court should have imposed a constructive trust or should have awarded her more of the property to compensate for this alleged dissipation of assets. Our review of a division of property is limited to a determination of whether there has been an abuse of discretion, given the requirements of an equitable division based on the seven standard

considerations for dividing property.⁵

It appears that Peggy's principal concerns are her claims that Gilbert dissipated assets by 1) giving the parties' daughters household goods, family heirlooms, and personal property; 2) auctioning off the remaining non-essential goods; 3) using \$12,000 from the Telco Federal Credit Union account (which Peggy alleges is her retirement account) to pay off loans on his insurance policy; 4) not finishing the marital house (which they were building when Peggy left) and selling the furnace intended for the house; and 5) depositing into his accounts a check for \$16,603 payable to Peggy. She also contends she was not credited for having paid a bank loan of \$12,855 which represented a marital obligation, and that Gilbert did not make a significant contribution to the acquisition of marital property.

The trial court was faced with a unique situation in considering the division of property. Peggy had been absent from the marital home for eight years during which time Gilbert maintained the marital property without any help from her, the parties' children had graduated from high school and left home, and Gilbert faced retirement. Peggy had opportunities in those 8 years to retrieve other items she wanted but chose not to do so, and did not inform Gilbert that there were any items she wanted. Gilbert made no secret of his plan to dispose of their personal property by giving some to their daughters and auctioning most of the remainder in keeping with his retirement plans to move to a smaller place in Hermosa. In fact, he supplied itemized lists of the property sold at auction and given to the parties' daughters. While he may have disposed of the property, he did not squander the property.

The trial court was justified in rejecting Peggy's claim that Gilbert had wrongly dissipated assets. Gilbert accounted for all of the assets, including the sale price of the items auctioned, and these values were considered by the trial court in making its division. The value of property awarded to Peggy was \$38,853, and that awarded to Gilbert was \$31,117. (Both figures are exclusive of Gilbert's retirement benefits discussed in Issue II below.)

Essentially, Peggy's unfocused arguments simply seek to relitigate the property division and do not identify any basis on which the trial court's decision was in error. She failed to prove she is entitled to a disproportionate award of assets because she did not establish the trial court was wrong in rejecting her claim that Gilbert dissipated assets. *Cf. Pennock v. Pennock*, 356 N.W.2d 913, 915 (S.D.1984). Peggy has failed to justify reversal of the property division.

II. Did the trial court err in dividing Gilbert's federal postal retirement benefits?

By way of notice of review, Gilbert challenges the award of 31.3% of his retirement benefits to Peggy, contending that she was not entitled to an interest in his retirement. He also argues that it is contrary to the principles of an equitable property division to make such an award. In response, Peggy contends that she should have been awarded the entirety of Gilbert's pension.

We have repeatedly adhered to the principle that retirement benefits which have accrued during the marriage are marital assets subject to property division. *Abrams v. Abrams*, 516 N.W.2d 348, 351 (S.D.1994). As a marital asset, the trial court is compelled to divide this asset based on the seven standard

⁵ The principal factors to be considered in making an equitable property division as reiterated in *Osman v. Keating-Osman*, 521 N.W.2d 655, 659 (S.D.1994), are detailed in the discussion of Issue II, *infra*.

factors to be considered in making an equitable property division:

(1) the duration of the marriage; (2) the value of the property; (3) the age of the parties; (4) the health of the parties; (5) the parties' competency to earn a living; (6) the contribution of each party to the accumulation of the property; and (7) the income-producing capacity of the parties' assets.

Osman, 521 N.W.2d at 659.

The trial court determined that only that portion of the retirement benefits which accrued during the marriage and prior to the lengthy separation was marital property.⁶ The trial court's memorandum decision reveals the following as its only rationale in awarding Peggy an interest in Gilbert's retirement benefits:

[Gilbert's] pension was a result of 16 years of service from 1976 through 1992. [Peggy's] interest in that plan existed from the date of employment by [Gilbert] until 1985. The Court will thus grant her an interest in ten years of the 16 years during which the pension was earned. It would be my intention to award her the percentage of his retirement which is 62.5 divided by 2, which is 31.3%. I would note that retirement which she accumulated during the course of the marital relationship was all expended for marital use, including the severance pay, which she had a right to have upon her termination from her teaching position at Crazy Horse. I would also note that the monies were used to apparently pay marital debts as well as to provide ongoing subsistence to the children and [Gilbert] although not going to her in any fashion. This seems to be the most reasonable way of dealing with this issue.

From this writing, it is apparent the trial court concluded Peggy was automatically entitled to an interest in Gilbert's retirement and did not analyze it as a marital asset subject to division based on the standard considerations. Further, the fact the proceeds from Peggy's retirement benefits were used for the family does not justify a complete disregard of the necessary considerations, even if the court was trying to strike a "balance."

We agree with Gilbert's contention that the equities plainly do not support an award to Peggy of half of his pension. The most compelling facts in favor of Gilbert's argument are that he is in poor health, his employability is restricted by his health, he is ten years older than Peggy, and is on a fixed income. In contrast, Peggy is in good health, has a significantly greater capacity to earn a living (especially given her doctoral degree and current teaching position in Arizona), and she can look forward to approximately fifteen more years in the work force. The age, health, and earning capacity of each of the parties are significant considerations and there is no evidence that the trial court applied these factors in making its award. Further, while neither party received income-producing assets, the value of the property awarded to the parties demonstrates that Peggy was awarded over \$7,000 more in assets than Gilbert. The evidence also clearly

⁶ We note, however, that the trial court's actual calculation of the portion of the Gilbert's retirement benefits which accrued during the marriage is inaccurate. It stated that the portion of his retirement which accrued during the marriage and up to the date of separation were marital assets, and used 1985 as the ending date. As a result, the trial court's calculations were based on a 10 year accrual period, from 1976 to 1985. Gilbert worked for the post office for 16 years, and 10 years of that accrual period coincided with the marriage. Thus, it found that 62.5% of Gilbert's total benefits had accrued during the marriage. However, the uncontroverted facts establish the parties separated in 1984, not 1985. As a result, the benefits earned during the marriage accrued over only 9 years. As a percentage, then, only 56.25% of his retirement benefits accrued during the marriage. Use of the 1985 date is unsupported by the evidence.

established that, while the parties may have equally contributed to the acquisition of assets, it was Gilbert who maintained all of the marital property during Peggy's eight year absence.

In reaching our decision, we are mindful that we may reverse a trial court's property division only if we find that it evidences an abuse of discretion. *See Osman*, 521 N.W.2d at 659. Here, we are convinced that the trial court failed to consider the basic principles which guide the division of marital assets when awarding Peggy a portion of Gilbert's retirement benefits. Gilbert has reached retirement and his advanced age and poor health prevent him from working. He has no income-producing assets, and his only income comes from his \$780 monthly retirement benefit and \$213 monthly social security benefits. In contrast, Peggy remains active in the work force, she earned an annual salary of over \$33,000 in 1992, and has retirement benefits through her employment in which Gilbert has no interest. In light of these circumstances, we conclude that the trial court's award to Peggy of a portion of Gilbert's retirement benefits is contrary to the evidence and against reason. Consequently, this portion of the property division is reversed and remanded.

Each party is responsible for their own attorney fees.

Affirmed in part, reversed in part, and remanded.

MILLER, C.J., and SABERS, AMUNDSON, KONENKAMP, and GILBERTSON, JJ., participating.

NOTE (Feldhaus v. Schreiner)
(Disproportionate Division Upheld, Considering Lack of “Cash Value” in H’s Plan)

In *Feldhaus v. Schreiner*, 2002 SD 65, 646 N.W.2d 753, the trial court divided the property in the proportion of 54 % to H and 46% to W. W was awarded \$340,699 in property and assets, while H was awarded \$407,304 in property and assets. Notably, over 3/4 of the award to H was his retirement plan which had *no* cash value. In an unanimous opinion, the trial court was affirmed.

It appears that the single most important factor which supports the apparent disproportionate award relates to the nature and value of the parties’ respective retirement plans. H, a former employee of the State of South Dakota, had retired in January of 1995. Although he is still entitled to payments under his plan (the South Dakota Retirement System or “SDRS”), there is no “cash out” value to the plan since he has already received more than double what he put into it. An economist testified that the “current” (*current*, not *cash*) value of H’s plan is \$550,320, assuming that H will live to age 78. The marital portion of the plan was valued at \$330,192 which excludes 11 years of the total of 31 years of H’s service, those 11 years occurring prior to marriage. H’s testimony showed that he suffered from chronic heart disease and this has resulted in a number of hospitalizations for H, four different kinds of medication and the fact he will need corrective surgery in the near future. W is 9 years younger than H, fully employed and has an interest in two retirement plans of her own with “current” values of \$119,343 and \$113,000. Unlike H’s interest in his plan, W’s interest in her retirement plans carries with it a combined “cash” value of over \$195,000.

W was apparently offered a 50/50 split of the retirement plans where she could receive a marital share of H’s monthly benefit, but such a division would have required W to pay \$109,993 as an equalizing payment to H. The opinion suggests that W rejected the 50/50 split offer because her interest in H’s plan would be just to her share of the monthly payments as they came in, not a lump sum. This also meant that W would be sharing in the risk that H would not live to receive full value of the plan. The Supreme Court opinion advises W that she “cannot have her cake and eat it too.” ¶ 18 of opinion.

There are a couple of procedural points from this case which are worth mentioning:

The trial court apparently adopted, verbatim, H's proposed findings and conclusions. This, W argues, was an abandonment by the trial court of its' decision-making responsibility. The Supreme Court rejects this argument by W, holding that "it is well within the court's discretion to adopt those findings of fact and conclusions of law which it deems most appropriate, regardless of their source." ¶ 14 of opinion (cases from numerous other jurisdictions are cited in support of this holding.) [NOTE: Initially the trial court delivered its own proposed findings of fact and conclusions of law which "essentially divided the property equally." ¶ 7 of opinion. Then H submitted proposed findings and conclusions which set forth the 54/46 split. Next, in what appears to be a self-fulfilling twist of irony, W's attorney mistakenly copied the text utilized in H's submission when she submitted W's proposed findings and conclusions. The trial court then assumed that the parties were in agreement as to the 54/46 split and amended its own findings and conclusions to conform with the 54/46 split. W discovered the mistake, brought it to the court's attention and was allowed to resubmit her proposed findings and conclusions. Nonetheless, in its final decision, the court still adopted the 54/46 split originally proposed by H and mistakenly copied by W's attorney.]

The trial court did not commit error in considering H's heart condition based solely on the testimony of H. The opinion distinguishes a prior personal injury case in South Dakota which holds that medical testimony is required for injuries which are of a subjective nature and not plainly apparent.

FASTNER v. FASTNER

Court of Appeals of Minnesota, 1988.

427 N.W.2d 691.

In the case before this court, the trial court assumed an early retirement. The trial court made no finding regarding why it chose this date of retirement for valuation of the pension, even in the face of Edward's positive testimony that he had no plans to retire early. Based on *Nash* and *Hein*, we reverse the trial court's valuation of the pension and remand for consideration of whether the pension is capable of valuation at the present time because of uncertainty about Edward's retirement date. If the pension is not capable of valuation at the present time, the trial court should consider division of the asset under the possibilities outlined in *Taylor* and *Larson*, or through entry of a qualified domestic relations order.

c. Qualified Domestic Relations Order (QDRO)

Edward suggested to the trial court that a QDRO⁷ would be a suitable solution to the problems posed by the valuation of Edward's pension asset. There is no case law in Minnesota regarding the circumstances under which a trial court must use such an order. Such an order, however, is merely a refined version of the

⁷ Under 29 U.S.C.A. § 1056(d)(1) (West Supp.1987), "[e]ach pension plan shall provide that benefits provided under the plan may not be assigned or alienated." There is an exception to this rule. Section 1056(d)(1) does not apply to a domestic relations order if the order is determined to be a "qualified domestic relations order." 29 U.S.C.A. § 1056(d)(3)(A). Each pension plan must provide for the payment of benefits in accordance with any such order. *Id.* There are several statutory requirements to a QDRO, see 29 U.S.C.A. § 1056(d)(3)(A)-(D), but the 3M pension expert indicated the 3M plan would certainly abide by any such order. According to 3M's pension expert, the recipient (in this case, Patricia) would have to decide whether to take benefits immediately, and whether to measure the benefits in terms of her life or Edward's life. The amount of value attributed to the pension would be the vested present value; it could not include any subsidized retirement benefit unless Edward actually did retire early. See 29 U.S.C.A. § 1056(d)(3)(E)(in)(II).

"fixed percentage" method of dividing a pension. The obvious advantage of a QDRO (over, for example, an award of 50% of the future benefits actually received) is that the nonpensioned spouse has the option to receive payment during his or her own lifetime . . . Thus, the benefit would not fail in the event of the death of the pensioned spouse.

We conclude that a QDRO is one of the solutions to be used, in the discretion of the trial court, when fashioning the equitable division of a pension right. It is our impression from the record that such an order may be the best solution to the problems posed by the valuation of the pension in this case.

* * *

[Excerpt from Dylan A. Wilde, *Obtaining an Equitable Distribution of Retirement Plans in a Divorce Proceeding*, 49 South Dakota Law Review 141, 166-68 (2003)]

* * *

V. QUALIFIED DOMESTIC RELATIONS ORDER (QDRO)

A tool that is extremely helpful in effectuating the distribution of the retirement plan is the Qualified Domestic Relations Order (QDRO).²⁴⁶ A QDRO provides for an exception to the general rule that retirement benefits are not assignable.²⁴⁷ A QDRO will allow all or part of the participant's "benefits [to be assigned] to a spouse, former spouse, child, or other dependent [of the participant] to satisfy family support or marital property obligations..."²⁴⁸

When a QDRO is used to divide marital property, the benefits are separated into two separate

²⁴⁶ 26 U.S.C. § 414(p)(1)(A) (2000) (defining a qualified domestic relations order as "a domestic relations order....which creates or recognizes the existence of an alternate payee's right to, or assigns to an alternate payee the right to, receive all or a portion of the benefits payable with respect to a participant under a plan...."). See also *id.* § 414(p)(1)(B) (defining a domestic relations order as "any judgment, decree, or order (including approval of a property settlement agreement) which (i) relates to the provision of child support, alimony payments, or marital property rights to a spouse, former spouse, child, or other dependent of a participant, and (ii) is made pursuant to a State domestic relations law (including a community property law.)"). A QDRO must meet specific requirements. *Id.* § 414(p)(2). A qualified domestic relations order must contain the name and last known mailing address of the participant and each alternate payee that is covered by the order, the amount or percentage or the method for determining the amount or percentage of the participant's benefits to be paid to each alternate payee, the number of payments or the time period to which the order applies, and the name of each plan to which the order applies. *Id.* § 414(p)(2)(A-D). The order must "not require the plan to provide any type of form of benefit, or any option, not otherwise provided under the plan,....require the plan to provide increased benefits (determined on the basis of actuarial value);....[or] require the payment of benefits to an alternate payee which are required to be paid to another alternate payee under another order previously determined to be a qualified domestic relations order." *Id.* § 414(p)(3)(A-C).

²⁴⁷ 29 U.S.C. § 1056(d)(1) (2000). "Each pension plan shall provide that benefits provided under the plan may not be assigned or alienated." *Id.* See also U.S. DEP'T OF LABOR PENSION AND WELFARE BENEFITS ADMIN., *supra* note 22, at 3 (explaining that the prohibitions on assignment and alienation were implemented to protect the retirement plan participant by ensuring that the participant would actually receive the benefits upon retirement).

²⁴⁸ U.S. DEP'T OF LABOR PENSION AND WELFARE BENEFITS ADMIN., *supra* note 22, at 3.

accounts, which represent each spouse's interest in the plan.²⁴⁹ This segregation into separate accounts is known as the "separate interest" approach.²⁵⁰ The separate interest approach provides a QDRO with many unique advantages.²⁵¹ Under the separate interest approach, the alternate payee's interest in the retirement plan is assigned "in the form of a[n] . . . annuity on the alternate payee's life."²⁵² This will allow the alternate payee to receive the benefit payments over his or her lifetime, as opposed to receiving payments solely during the lifetime of the employee spouse.²⁵³ The separation will also allow the alternate payee to choose when they want to begin receiving payments as long as it is on or after the earliest retirement date available to the employee spouse, regardless of when the employee spouse actually retires.²⁵⁴ Another advantage is that the alternate payee will be allowed to choose the form in which to receive the benefits from the options that are available to the employee spouse under the retirement plan.²⁵⁵ The separation will also provide the employee spouse more options concerning the remaining post-divorce assets in the retirement plan, such as having the ability to name a new spouse in a qualified joint and survivor annuity, "QJSA."²⁵⁶

When a non-vested or non-mature plan is in question, the QDRO will allow the court to utilize a combination of the deferred distribution method and the reserved jurisdiction method in determining

²⁴⁹ *Id.* at 30.

²⁵⁰ *Id.* Another approach is the "shared payment" approach which divides the actual benefits between the employee spouse and the alternate payee. *Id.* at 29-30. However, the shared payment approach is mainly utilized when the intent of the order is to provide support to the alternate payee. *Id.* at 30. The separate interest approach, on the other hand, is mainly used when the intent of the order is to divide marital property. *Id.*

²⁵¹ See generally U.S. DEP'T OF LABOR PENSION AND WELFARE BENEFITS ADMIN., *supra* note 22, at 22.

²⁵² Finally, *supra* note 38, at 40.

²⁵³ *Id.* Use of the separate interest approach assigns a portion of the employee spouse's benefits to the alternate payee in the form of an annuity which is based on the alternate payee's life. *Id.* The alternate payee will then be able to receive the benefits over his or her lifetime. *Id.*

²⁵⁴ 26 U.S.C. § 414(p)(4)(B) (2000).

For purposes of this paragraph, the term "earliest retirement age" means the earlier of-

(i) the date on which the participant is entitled to a distribution under the plan, or

(ii) the later of-

(I) the date the participant attains age 50, or

(II) the earliest date on which the participant could begin receiving benefits under the plan if the participant separated from service.

Id. See also Brandt, *supra* note 18, at 493. This will allow the non-employee spouse to begin to receive payments at the earliest possible date while allowing the employee spouse to continue to work to maximize his or her future benefits. *Id.*

²⁵⁵ Brandt, *supra* note 18, at 493. A retirement plan may allow its participants to choose the form of benefits from many different options, such as a lump sum payment or various annuities. *Id.* A QDRO can permit the non-employee spouse to choose any form of benefits that the plan allows. *Id.*

²⁵⁶ FINLEY *supra* note 38, at 43. After an annuity is assigned to the alternate payee, the employee spouse's remaining benefits will be unencumbered, which will allow him or her to assign a QJSA for a subsequent spouse. *Id.*

allocation.²⁵⁷ As a result, the QDRO will have the advantages of both methods.²⁵⁸ The QDRO will not require the calculation of a present value and it will not require the determination of the percentage of the future payments that the alternate payee is entitled to at the time of divorce.²⁵⁹ The use of a QDRO will allow the alternate payee's interest to increase through passive growth.²⁶⁰ One unique advantage is that the use of a QDRO establishes how the benefits are to be valued, allocated, and distributed to the alternate payee.²⁶¹ This will eliminate the need for the court to continuously monitor the distribution of the retirement plan.²⁶²

Another important aspect of the QDRO deals with defined benefit plans and those defined contribution plans that provide benefits based on an annuity.²⁶³ While Federal law requires that all retirement plans provide the employee's spouse with survivor benefits in the event of the employee spouse's death, when the employee spouse and non-employee spouse divorce and the benefits are based on an annuity, the benefits that are paid to the non-employee spouse may be terminated at the death of the employee spouse.²⁶⁴ A QDRO can allow for the protection of the non-employee spouse through the use of both a Qualified Joint and Survivor Annuity (QJSA)²⁶⁵ and a Qualified Preretirement Survivor Annuity (QPSA).²⁶⁶

* * *

²⁵⁷ Brandt, *supra* note 18, at 492. "For unvested and/or non-mature plans, the QDRO effectuates a form of deferred distribution." *Id.*

²⁵⁸ *Id.* A QDRO will have the same advantages as deferred distributions. *Id.*

²⁵⁹ 26 U.S.C. § 414(p)(2)(B) (2000). A QDRO is required to have the amount or percentage to be paid to the non-employee spouse or the manner in which the amount or percentage is to be determined. *Id.*

²⁶⁰ Brandt, *supra* note 18, at 492.

²⁶¹ 26 U.S.C. § 414(p).

²⁶² Brandt, *supra* note 18, at 492.

²⁶³ U.S. DEP'T OF LABOR PENSION AND WELFARE BENEFITS ADMIN., *supra* note 22, at 34.

²⁶⁴ *Id.* at 35. "If a participant and his or her spouse become divorced before the participant's annuity starting date, the divorced spouse loses all right to the survivor benefit protections that Federal law requires be provided to a participant's spouse." *Id.*

²⁶⁵ FINLEY, *supra* note 38, at 55. A QJSA will allow for the payment of the retirement benefits over the life of the employee spouse and the non-employee spouse as opposed to only the employee spouse's life. *Id.* at 55-56. Therefore, should the employee spouse retire and die before the non-employee spouse, the non-employee spouse will be able to continue to receive the payments for the rest of his or her life. *Id.*

²⁶⁶ *Id.* at 61. The QPSA is intended to provide a life annuity for a surviving spouse whose husband or wife dies before receiving his or her retirement benefits. *Id.* Again, if the benefits are paid through an annuity, the retirement benefits will stop in the event of the employee's death. *Id.* at 63. This would cause the non-employee spouse to lose his or her portion of the benefits as well. *Id.* The use of a QPSA will treat the non-employee spouse as the surviving spouse in order to obtain his or her portion of the retirement benefits. *Id.*

U.S. SUPREME COURT ADDRESSES QDRO

Divorced spouse who remained named beneficiary entitled to survivor's benefits in absence of QDRO and in absence of relinquishment as per plan provisions. The U. S. Supreme Court handed down its decision in *Kennedy v. Plan Administrator for DuPont Savings and Investment Plan*, 129 S.Ct. 865, 172 L.Ed.2d 662, 77 USLW 4082, on 1/26/09. In a unanimous decision (with opinion authored by Justice Souter), the Court held that a divorced spouse was entitled to a surviving spouse's benefits in accordance with the designation made by her husband long before the divorce. The divorce decree itself did not constitute a QDRO. The Court rejected the argument that a common law waiver by the wife in the divorce decree was sufficient to relinquish her interest. Furthermore neither husband nor wife had invoked the regulations set forth in the plan for the relinquishment of survivor benefits. The trial court in this case awarded the benefits to the husband's estate which was being administered by his daughter. The 5th Circuit reversed in favor of the divorced wife and the U.S. Supreme Court affirmed the 5th Circuit's ruling.

RECENT CASES (from 2000 and later) (Unsuccessful Collateral Attacks on Retirement Plan Dispositions)

Post-decree relief is unavailable to wife who entered into unfavorable settlement agreement in 1985 relating to division of husband's retirement plan. At the time of their divorce in 1985, the parties had been married 28 years. The portion of the agreement relating to husband's retirement benefit was drafted by wife's lawyer at the time. It provided that, "When Gary draws his retirement or becomes 65 years of age, whichever is first, the parties shall divide the present retirement benefit equally, that amount is \$ 12,092.87." The stated dollar amount apparently represented only husband's contribution into his account for the time during the marriage. Wife subsequently sought relief from this unfavorable provision in *Pesicka v. Pesicka*, 2000 SD 137, 618 N.W.2d 725. Wife was denied any relief by the trial court, with the South Dakota Supreme Court affirming in an unanimous opinion. Wife was unsuccessful in arguing that the provision was ambiguous and she should be awarded, through a QDRO, half of the retirement earned during the marriage. She was also unsuccessful in her effort to seek relief under SDCL 15-6-60(b)(6) ["...any other reason justifying relief from the operation of a final judgment."]. Through her Rule 60(b)(6) argument, wife requested an award of "a monthly benefit or at least interest on the lump sum of \$6,056.43." (Paragraph No. 16, 618 N.W.2d at 727-28). Wife lost on all her arguments, but due to her poor financial status, the SD Supreme Court declined to award husband his appellate attorney fees. [Editor's note: At the time of the original divorce in 1985, the law concerning pension plans and how to handle their division in South Dakota had not yet been very well-developed.]

Wife, who originally signed agreement allowing Husband to keep 100% of his U.S. Air Force Retirement fund, held not entitled to post-decree relief because her effort was "not timely" and also because of her inability to show "excusable neglect." Wife was unrepresented by counsel and allegedly emotionally distraught when she signed the stipulation allowing husband to keep 100% of his retirement fund with the U.S. Air Force. Almost one year after the decree, she sought to set aside the judgment, but failed initially to secure actual service of process on husband. The trial court initially granted wife relief, but then when husband found out, he challenged this result and, after a hearing, trial court reinstated original judgment, denying wife post-decree relief. Wife's denial of relief was affirmed in *Crothers v. Crothers*, 2001 SD 78, 630 N.W.2d 102, with the SD Supreme Court holding that wife's motion was not timely. Although it was "filed" within 1 year, actual service on husband was beyond the 1 year required for proceedings under Rule 60(b)(1). Additionally, the Court found that wife's evidence

“does not show circumstances that rise to the exceptional level of excusable neglect.” (Paragraph 20 of Opinion).

Use of *Hautala*-type formula in property settlement, without reference to specific figures, upheld in post-decree attack. *Divich v. Divich*. (*Divich I*) In another of a series of cases involving collateral attacks on divorce decrees which are alleged to inequitably deal with pension plans, the South Dakota Supreme Court handed down its opinion in the case of *Divich v. Divich*, 2002 SD 24, 640 N.W.2d 758 on February 20, 2002. Consistent with other recent cases, the Supreme Court denied relief to the party seeking to avoid the operation of a judgment entered years earlier by the trial court. This case differs, however, in that it appears to be the first reported opinion involving a collateral attack on a divorce-decree which now appears to be *too generous* for the non-pensioned spouse.

Here the parties entered into a written stipulation and property settlement which was approved by the trial court in 1988. According to its terms, wife was to be given 50% of the marital portion of the retirement plan, along the basic guideline seen in the *Hautala* formula, presented earlier in this book. Specifically, the language stated that wife’s interest would be:

“Fifty percent (50%) of the benefit multiplied by the number of years during the marriage in which contributions to the program were made and divided by the total number of years in which contributions were made to the program.”

As husband prepared to retire in March, 2000, he sought relief under SDCL 15-6-60(b)(6), asserting that such a disposition was inequitable and did not reflect the true intention of the parties. The trial court granted husband relief by finding the language to be ambiguous and gave wife a lump sum of \$59,000 which represented the marital portion of the refund value of husband’s retirement account. The marital portion was 26/38 of the retirement fund, 26 being the number of years during the marriage in which contributions were made and 38 being the total number of years of employment during which contributions were made. The refund value was set at \$172,183.40 and this was multiplied by 50% of 26/38 to reach approximately \$59,000. The South Dakota Supreme Court reversed, finding the trial court erred as a matter of law in finding ambiguity. The Court then applied the same formula to determine that wife was entitled to receive a monthly amount of \$1050, being computed as 50% of 26/38 of husband’s monthly retirement benefit of \$3,071.84. (Wife’s share was 34.2% of the monthly payments.)

[Editor’s note -- the following comments are observations made from both the facts reported in the opinion and from this writer’s personal knowledge of the South Dakota State Retirement System: Husband had been employed as a teacher in the Rapid City School System and the retirement plan of the husband was administered by the South Dakota Retirement System. The cause for post-divorce litigation (husband’s alleged “inequity”) might be as a result of the fact that the employer’s contribution does not kick in until actual retirement under this plan and that the “refund” value of the plan would only reflect husband’s actual contribution and not include the matching amount contributed by the employer. Wife, by securing 50% of the marital portion of the actual benefit payments, was apparently able to reach the employer’s contribution as well as husband’s contribution. Apparently the lump sum award utilized by the trial court would afford wife 50% of only husband’s contributed portion of the plan.]

Wife's share, as the non-employed spouse, of retirement plan divided by Hautala-type formula belongs to her estate in the event she should predecease husband and trial court committed reversible error in attempting to provide that wife's share would revert back to husband. *Divich v. Divich*. (*Divich II*) In a case of "first impression," the South Dakota Supreme Court held that it was reversible error for the trial court to attempt to divest wife of her marital share of husband's retirement plan in the event wife predeceases husband. In *Divich v. Divich*, 2003 SD 73, 665 N.W.2d 109 (6/18/03), the trial court had previously been reversed (*Divich I*) for failing to enforce the parties' agreement which awarded wife 50% of the marital portion of husband's retirement with South Dakota Retirement System. Upon remand from the previous reversal, the trial court entered an order which awarded wife 34.2% of the monthly payments, but also ordered, "If the Alternate Payee does predecease the Participant, then and in that event, all of the monthly benefit payment from the Plan shall be paid to the Participant." The Supreme Court noted that this was a case of "first impression." ¶ 12. The Court also observed that it is a "well-settled point of law that a retirement plan is a property right." ¶ 11. The Court accepted wife's argument that if husband had the financial resources, he could buy wife's share of his retirement plan at full value and that money would belong to wife to use as she pleases. "Therefore, it follows that if she receives a monthly payment, instead of a lump sum award, then that payment should continue to be paid to her estate." ¶ 14. The trial court was also reversed for failure to award wife attorney's fees and directed on remand to award no less than \$3,000 to wife. The Supreme Court also directly awarded wife \$3,000 for appellate attorney's fees.

MORE RECENT CASES (2006 & 2007) Addressing Impact of Divorce Upon Ex-Spouse's Interest in Retirement Plan

Divorce decree automatically revokes appointment of spouse as primary beneficiary of state retirement fund. In the case of *Buchholz v. Storsve*, 2007 SD 101, 740 N.W.2d 107, we find a dispute between an ex-husband and a widowed husband concerning the state retirement plan owned by the deceased. W and H-1 were married in 1966 and divorced in 1975. H-1 was named as the primary beneficiary of W's retirement plan in 1971 when she began making contributions to the South Dakota State Retirement Fund. The 1975 divorce decree made no reference to the retirement fund. W then married H-2 in 1979 and remained so married until her death in 2006. H-1 claims he is the primary beneficiary by virtue of the original designation as such. H-2 claims he is the primary beneficiary by virtue of SDCL 29A-2-804(b) which is part of SD's adoption of the Uniform Probate Code in 1995 and which provides that a divorce decree is an automatic revocation of an appointment of property made by a governing instrument. The trial court ruled in favor of H-2 and the SD Supreme Court affirmed in a unanimous decision with the opinion being authored by Chief Justice Gilbertson. The appropriate statute, SDCL 29A-2-804(b), is applied retroactively and such application is constitutional. Sitting on the Court for this case were Circuit Judge O'Brien, sitting for Justice Zinter and Circuit Judge Barnett, sitting for Justice Meierhenry.

Trial court's simple award of federal foreign service retirement plan to H (which is inadequate under federal law) held not subject to correction by *nunc pro tunc* order under Rule 60(b). The case of *Nist v. Nist*, 2006 SD 67, 720 N.W.2d 87, was orally argued here at the law school on March 21, 2006. It involves a unique pension plan accumulated through the husband's work in the federal foreign service. According to the applicable federal statute an ex-spouse's interest in such a plan is guaranteed to the ex-spouse unless expressly waived by the ex-spouse or expressly limited by court order. When the parties in this case were divorced in 1995, the trial judge simply awarded husband his retirement plan and

wife her retirement plan. The divorce decree did not specifically exclude wife's interest from husband's foreign service plan as required by the federal statute. Some nine years later, husband realized that wife was entitled to a pro rata share of the retirement because her interest had not been specifically limited by the divorce decree. Husband went back to court to modify the decree so as to specifically exclude wife's interest. Husband presented his modification request alternatively under either SDCL 15-6-60(a) or SDCL 15-6-60(b). The original judge (Honorable Roland Grosshans) was retired and the modification proceeding was lodged before Judge Thomas Trimble. Judge Trimble ruled for husband believing that the record clearly showed that Judge Grosshans intended for husband to have the entirety of his retirement plan. Judge Trimble's order was viewed as a *nunc pro tunc* order entered under the apparent authority of SDCL 15-6-60(a). The SD Supreme Court reversed, holding that such an order was not a clerical correction, but rather was "substantive in nature" involving a "judicial function." As such, the mistake could not be corrected with a rule 60(a) motion. In language borrowed from the Montana Supreme Court and previously quoted with approval by the SD Supreme Court itself, the situation is such that "The authority of a court to amend its record by a *nunc pro tunc* order is to make it speak the truth, but not to make it speak what it did not speak but ought to have spoken." Wife was awarded \$5,000 in appellate attorney fees. The case is not over, however, because the SD Supreme Court also remanded the proceeding back to the trial court for it to consider the parties' remaining claims which include husband's claim for relief under rule 60(b), wife's asserted equitable defenses, and wife's claim for alimony. The remand order also directed the trial court to reconsider its denial of wife's request for attorney's fees at the trial level. Judge Konenkamp, as the lone dissenter in this case, wrote that "All the husband had asked for was that trial judge's decision be stated in the judgment." Justice Konenkamp believes that a liberal approach should be taken to rule 60(a) and that the failure to include the necessary language to satisfy the federal statute was a simple omission.

EXERCISES IN METHODS OF DEALING WITH PENSION PLANS

During the last 5 years of their marriage, H worked for Employer, contributing \$10,000 into his retirement account. As of the time of the divorce, his contributions into the account are worth \$14,000 due to accumulated interest on his investment. Employer matches H's contributions dollar for dollar.

H is not eligible to retire until he has worked for Employer for a total of 20 years. The plan does not vest until H has worked for Employer for at least 10 years. H claims that the pension plan is worth "zero [0]" since it hasn't vested. H produced an expert at trial that testified that the "present value" of H's interest in this plan is \$2900.

1. Under the *Stubbe* holding, how would the plan be divided?
2. Under the "constructive trust" analysis seen in *Stemper*, how much of the plan would be subject to a "constructive trust" in favor of W?
3. Under the *Kanta* and *Kost* case, what is the minimum value that the court can place on the plan?
4. If the suggestion in footnote 4 of *Stemper* is followed, how much "extra" cash or property should be given to W if H is awarded 100% of his plan?
5. If a QDRO is used to carve up separate accounts for H and W, how much money should be placed in W's account?
6. In your answers to the preceding questions, maybe you assumed that the employer's contribution to the plan is made on an ongoing basis, matching H's contribution dollar for dollar as the contributions are made. What if the employer does not actually increment H's account until H actually retires? How would that alter your answers to questions 4 and 5 above?
7. Assume that H testifies that he will retire after he works 15 more years. If the court decides to simply award W a share of H's retirement when he does retire, then using the *Hautala* formula, how much should W be awarded?

NOTE

For an excellent discussion of the types of retirement plans and the terminology relating to the various retirement plans, see Dylan A. Wilde, *Obtaining an Equitable Distribution of Retirement Plans in a Divorce Proceeding*, 49 South Dakota Law Review 141, 143-48 (2003).

For an excellent discussion of the general methods of division utilized for retirement plans across the country, see Dylan A. Wilde, *Obtaining an Equitable Distribution of Retirement Plans in a Divorce Proceeding*, 49 South Dakota Law Review 141, 160-69 (2003).

For an excellent discussion of the methods of division of retirement plans recognized in South Dakota, see Dylan A. Wilde, *Obtaining an Equitable Distribution of Retirement Plans in a Divorce Proceeding*, 49 South Dakota Law Review 141, 169-80 (2003).

F. The Problem of “Omitted Assets”

What if an asset is overlooked by the trial court at the time of the divorce? What if the asset was never disclosed to the court? Who prevails? Doesn't your answer to this depend, at least in part, on the nature of the asset? What if the asset is an old chair? A piano? A group of ten \$100 dollar bills in the husband's pocket? A piece of real estate? A retirement fund?

What if the overlooked asset is discovered before the divorce decree becomes final? What if the overlooked asset is not discovered until after the divorce becomes final?

There is a natural reluctance against full and complete disclosure of assets by parties going through a divorce. The reasons vary, but it is common to find that parties dislike having to provide a complete list of all their holdings. As you consider the following cases and materials, try to determine what ramifications may follow from a non-disclosure of assets.

CAUGHRON v. CAUGHRON

Supreme Court of South Dakota, 1988.

418 N.W.2d 791.

HENDERSON, Justice.

Appellant Nancy J. Caughron (Nancy) appeals from the circuit court's Judgment and Decree of Divorce filed September 30, 1986. Appellee is James A. Caughron (Jim). Essentially, the appeal stems from a claim of abuse of discretion because of a failure to divide marital assets (as several assets were not included) and failure to award alimony to Nancy. We reverse.

Nancy and Jim were married on September 15, 1957, and subsequently had three children, none of whom were minors at the time of divorce. Nancy is forty-four years old and in good health. She has a high school diploma. Nancy was a homemaker until 1970, when she began working outside the home. At the time of trial, she had been employed full time in a drapery shop for six years and was earning \$4.15 per hour. Nancy's gross income was between \$350 and \$370 every two weeks.

Jim is forty-six years old and in relatively good health. Jim experiences some discomfort as a result of an accident in 1984. However, the discomfort does not hinder his ability to work full time. He is employed full time as a truck driver. At the time of trial, Jim had been employed by the same freight company for fifteen years. His gross income averaged slightly more than \$3,000 per month.

On July 27, 1985, Nancy moved out of the parties' home and commenced divorce proceedings. Trial was held on November 15, 1985. By direction of the circuit court and by agreement of the parties, additional evidence and argument was presented by letter briefs and affidavits.

The circuit court ruled that Nancy and Jim were guilty of extreme cruelty toward each other and

granted each a decree of divorce from the other. According to the findings of fact, Nancy had a cold and unloving attitude toward Jim, and Jim occasionally exhibited a violent temper toward Nancy. On two separate occasions, Jim allegedly assaulted Nancy. Neither party was awarded alimony, and Jim was ordered to pay \$500 toward Nancy's attorney fees. Equity in the parties' real property was divided equally. Personal property of the parties was divided according to the terms of two documents: (1) Defendant's proposed Stipulation and Agreement, and (2) Defendant's counsel's December 10, 1985 letter with attached Defendant's Revised Property and Debt Exhibit.

Nancy contends that the circuit court abused its discretion by omitting certain property from the division of marital property. She maintains that three items were not included in the division: (1) cash value of Jim's life insurance policy, \$750; (2) savings account balance, \$400 (\$1,200 balance, less \$800 reserve account that the bank holds as collateral); and (3) Jim's retirement account, value unknown.

It is well settled in South Dakota law that the trial judge has "broad discretion with respect to property division, and its judgment will not be set aside unless it clearly appears that the trial court abused its discretion." *Cole v. Cole*, 384 N.W.2d 312, 314 (S.D.1986). The basic factors to be considered in a divorce property division are

the length of the marriage; the value of the property; the age and health of the parties; their respective competency to earn a living; the contributions of each party to the accumulation of the property; and the income producing capacity of the parties' assets.

Id. at 314. In divorce cases, the trial court is required to place a value upon all of the property held by the parties and to make an equitable distribution of that property. *Guindon v. Guindon*, 256 N.W.2d 894, 897 (S.D.1977). Finally, it should be noted that "[f]ailure to place a value upon the property of the parties for purposes of equitable distribution is reversible error." *Johnson v. Johnson*, 300 N.W.2d 865, 868 (S.D.1980). With these basic principles of divorce law in mind, we proceed to the case at hand.

Cash Value of Life Insurance and Savings Account. It is clear from the record that the life insurance policy and the savings account were not included by the circuit court in the property division. In fact, Jim openly admits in his brief to this Court that these two items were excluded from the property division. The omission of these property items is probably a result of the piecemeal fashion of the parties' property settlement proposals. Nevertheless, the circuit court failed to include and value the life insurance policy and the savings account in the property division.

Jim's Retirement Account. We learn from the testimony that Jim has been employed by the same freight company for fifteen years. He is also a member of the Teamsters Union and has a retirement account with the union. Jim testified that his retirement account is not vested because he has been contributing to the account for only seven of the required ten years. A computer printout also describes Jim's account as not being vested. The circuit court did not include Jim's retirement account in the property division.

Recent South Dakota cases have held that vested retirement accounts should be included as marital assets and divided between the parties. *Arens v. Arens*, 400 N.W.2d 900, 901 (S.D.1987). Another case held that it was not an abuse of discretion for the trial judge to find that a husband's noncontributory retirement account was vested, even though he had worked for only nine of the required ten years. *Stemper v. Stemper*, 403 N.W.2d 405 (S.D.1987). This case was reheard on a petition for

rehearing, see 403 N.W.2d 405. Of more recent note, this case was modified by *Stemper v. Stemper*, 415 N.W.2d 159 (S.D.1987).

It appears from the record that Jim's retirement plan was not vested. He testified that it was not vested and the computer printout seems to support his testimony. Jim contends that since his account is not vested, he has no present value in the account. However, it must be remembered that Jim personally contributed to the retirement account. Funds from Jim's paychecks were placed into the account. Again, a retirement plan has been recognized as a divisible marital asset because it represents consideration in lieu of a higher present salary. *Stemper*, 403 N.W.2d at 408 (citing *Stubbe v. Stubbe*, 376 N.W.2d 807 (S.D.1985), and *Hansen v. Hansen*, 273 N.W.2d 749 (S.D.1979)). "Contributions made to the pension plan would have been available to the family as disposable income during the marriage." *Id.* at 408 (citing *Boyd v. Boyd*, 116 Mich.App. 774, 323 N.W.2d 553 (1982)).

It is not clear from the record what right Jim has toward his retirement contributions or what present value his account had at the time of trial. It is clear that the circuit court did not include Jim's retirement contributions in the property division. Since Jim's personal funds were supplied to the account, a good argument is made that Jim did indeed have some present value in the retirement funds. If Jim died or walked away from his job and the union, it is difficult to imagine that Jim would have no right to a return of his own money, even if the account was not vested. It appears that the circuit court may have committed reversible error by failing to include the value of the retirement account in the property division. However, since we do not know exactly what right Jim has to his retirement contributions or what the present value of his account is, we remand on this issue so the circuit court, as trier of fact, can make a proper inquiry. It should be established exactly what interest Jim had in his retirement account at the time of trial, if any.

NOTES

1. Failure of the trial court to list and value property of the parties continues to be considered an abuse of discretion, constituting reversible error. *Grode v. Grode*, 543 N.W.2d 795, 802-03 (S.D. 1996) (the trial court failed to consider husband's unvested retirement plan, as well as the parties' "grazing rights" and unharvested crops.)

2. Trial court's attempt to "divide" husband's insurance business through the simple assignment of 40% of gross renewal income to wife for each year of next 10 years held to be reversible error in *Guthmiller v. Guthmiller*, 2003 SD 120, 670 N.W.2d 516. In this divorce proceeding there was a comprehensive listing of 286 marital assets and debts. Each asset was valued by the trial court, with the exception of the husband's insurance business. Husband has been a self-employed agent for American Family Insurance. No expert testimony was presented as to the value of the business. Wife testified the value of the business to be \$62,177.80 and husband testified the value of the business to be zero. There was also evidence by a representative of American Family Insurance who testified that the company would pay husband \$33,873.01 over a five or ten year period, based upon renewal premiums, in the event husband's relationship with American Family were terminated. Historical data was received into evidence which showed the amount of renewal income received by husband's business for each of the eight preceding years. These figures began at the low end of \$42,800

in 1994 and rising in increments each year, with the high end of \$68,000 appearing for the years 2000 and 2001. The trial court indicated that it wished to divide the marital estate equally and then methodically placed a value on each asset, awarding it to one party or the other, except for husband's insurance business. The court ordered that for each of the next ten years, wife was to receive 40% of gross renewal income from the business, with husband receiving 60%. No value was placed on the insurance business. The South Dakota Supreme Court reversed, holding that failure to value an asset constitutes reversible error. The Court accepted husband's argument that by awarding wife a percentage of gross renewal income, the impact would create an "inequity" because wife could end up receiving a disproportionate share off the top, while husband's net income would be impacted. The trial court was instructed that, upon remand, "The value should be based upon the evidence or within a reasonable range of values presented to it... The trial court may set the value based on the current record or has the discretion to allow the parties to present additional evidence." ¶ 8.

3. Reversible error for trial court to not first determine the status of all assets as either separate or marital. In *Midzak v. Midzak*, 2005 SD 58, 697 N.W.2d 733, the wife was represented by counsel in her divorce action, but the husband appeared pro se. In communicating with the husband during the trial, the lower court found that husband had "unequivocally ceded numerous items of property to [wife] during the proceedings." ¶ 10. Also, during the trial the court had a discussion with the husband in which it announced that it intended to award the marital home to wife. In response, husband simply said "fine." ¶ 24. The final distribution reflected an award of \$57,000 to husband and \$128,100 to wife. ¶ 10. The trial court's findings did not clearly reflect which assets were considered "marital" and which were considered "separate," nor did the findings account for funds used by wife from a joint checking account to purchase a new vehicle. Husband subsequently secured the services of an attorney and took an appeal. As to the discussion concerning the marital home and husband's remark of "fine," the Supreme Court observed, "It is not clear if [husband] was acknowledging the trial court's valuation, its decision to award the home to [wife], waiving rights to the property as found by the court or merely acknowledging he heard what the trial court has said." ¶ 24. The South Dakota Supreme Court reversed and remanded the property division aspect of the case (as well as the child support aspect.) The Court stated that it was "remand[ing] the case for proper fact finding and application of the laws of South Dakota on property division..." ¶ 32. The South Dakota Supreme Court held that "[t]he trial court abused its discretion in not properly determining the status of all assets first as either separate or marital, and then making an equitable distribution of all assets determined to be marital in nature." ¶ 24.

MOLLER v. MOLLER

Supreme Court of South Dakota, 1984.
356 N.W.2d 909.

FOSHEIM, Chief Justice.

Bernice (wife) and Emil Frank (husband) Moller were married on November 16, 1950, and divorced on June 8, 1977. The parties entered into a stipulation and agreement, the terms of which were incorporated into the 1977 divorce judgment. One hundred dollars a month alimony was awarded to wife until age 65. On May 18, 1983, wife moved for modification of the decree. She requested one-half of husband's military retirement pay, or, in the alternative, the equivalent of one half of his military

retirement pay as increased alimony. A hearing on that motion was held on June 24, 1983. The trial court denied her military retirement pay request but found changed circumstances and increased her alimony to \$222.90 per month. That increase was based on an inflationary index. She was also awarded \$500.00 attorney fees. Wife appeals the sufficiency of the alimony increase. Husband filed a notice of review contesting any increase in alimony and the attorney fee award. We affirm in part, reverse in part, and remand.

I. MILITARY RETIREMENT PAY

Neither the stipulation and agreement nor the divorce decree mentioned military retirement pay. Wife contends that at the time of the divorce, military retirement pay was legally exempt from claims of an ex-spouse and state courts had no jurisdiction to divide these benefits. *McCarty v. McCarty*, 453 U.S. 210, 101 S.Ct. 2728, 69 L.Ed.2d 589 (1981). Wife argues, however, that the 1982 Uniformed Services Former Spouses Protection Act, 10 U.S.C. § 1408 *et seq.*, created a new property right not formerly available for division in the marital estate. See 10 U.S.C. 1408(c)(1) (allows a court to treat military retirement pay payable after June 25, 1981, either as property solely of member or as marital property).

We note, however, that prior to *McCarty*, *supra*, South Dakota and other jurisdictions treated retirement pay as divisible marital property. See *Hansen v. Hansen*, 273 N.W.2d 749 (S.D.1979) (J.C. Penney retirement account); *McCarty*, *supra* (military retirement pay treated as community property by lower court); *Chisnell v. Chisnell*, 82 Mich.App. 699, 267 N.W.2d 155 (1978), cert. den. 442 U.S. 940, 99 S.Ct. 2881, 61 L.Ed.2d 310 (1979), reh. den., 444 U.S. 887, 100 S.Ct. 187, 62 L.Ed.2d 121 (1979); *Taylor v. Taylor*, 217 Neb. 409, 348 N.W.2d 887 (1984) (statute includes all pensions as marital property); *Bloomer v. Bloomer*, 84 Wis.2d 124, 267 N.W.2d 235 (1978) (state pension account).

Moreover, appellate courts almost unanimously refused to give *McCarty*, *supra*, retroactive effect, so this decision did not affect pre-*McCarty* decrees dividing retirement pay. See *McGinn v. McGinn*, 126 Mich.App. 689, 337 N.W.2d 632 (1983); *Ersparn v. Badgett*, 659 F.2d 26 (5th Cir.1981); *Rodriguez v. Rodriguez*, 133 Ariz. 88, 649 P.2d 291 (App.1982); *In Re Marriage of Fellers*, 125 Cal.App.3d 254, 178 Cal.Rptr. 35 (1981); *In Re Marriage of Sheldon*, 124 Cal.App.3d 371, 177 Cal.Rptr. 380 (1981); *In Re Marriage of Allcock*, 107 Ill.App.3d 150, 62 Ill.Dec. 865, 437 N.E.2d 392 (1982); *Whenry v. Whenry*, 98 N.M. 737, 652 P.2d 1188 (1982); *In Re Marriage of Vinson*, 57 Or.App. 355, 644 P.2d 635 (1982); *Ex Parte Hovermale*, 636 S.W.2d 828 (Tex.Civ.App.1982); *Ex Parte Gaudion*, 628 S.W.2d 500 (Tex.Civ.App.1982). Courts could have, and did, treat pension rights as divisible marital property. "The purpose of § 1408(c)(1) was] to place the courts in the same position that they were in on June 26, 1981, the date of the *McCarty* decision, with respect to treatment of non-disability military retired [sic] or retainer pay." *Taylor v. Taylor*, 217 Neb. 409, 348 N.W.2d 887 (1984). Military retirement pay is no longer treated differently than any other pension. *Id.* See also, *Bullock v. Bullock*, 354 N.W.2d 904, 10 Fam.L.Rep. (BNA) 1598 (N.D.1984); *Contra, Grant v. Grant*, 9 Kan. App.2d 671, 685 P.2d 327, 10 Fam.L.Rep. (BNA) 1585 (Ks. Sept. 4, 1984).

The real effect of the Uniformed Services Former Spouses Protection Act is on divorce decrees granted or modified during the *McCarty*, *supra*, reign, June 26, 1981 to September 8, 1982. Those decrees certainly may now be modified in accordance with the new law, as may pre-*McCarty*, *supra*, decisions which specifically refer to military retirement pay. *Id.*

The divorce decree here was granted in 1977, long before *McCarty*, *supra*, or 10 U.S.C. § 1408 *et seq.* Husband was receiving his military retirement pay when the original decree was granted, and we must assume it was considered by the divorce court. Because military retirement pay was not mentioned in the original decree there was nothing for the trial court to modify on that subject. *Dougherty v. Dougherty*, 76 S.D. 318, 77 N.W.2d 845, 848 (1956). The decree is final and conclusive on military retirement pay. *Id.* To allow wife one-half of husband's allotment now would not be modification, but a new judgment. *Id.* We therefore find that wife, in this case, is not entitled to one-half of husband's military retirement pay. *Compare McGinn v. McGinn*, 126 Mich.App. 689, 337 N.W.2d 632, 634 (1983); *Cockle v. Cockle*, 215 Neb. 329, 339 N.W.2d 63, 67 (1983).

* * *

NOTES

1. The *Moller* case presented a collateral challenge to a divorce decree that had long been final. In *Caughron*, the allegation of an omitted asset was raised in a direct appeal. In light of the hard and fast rule in *Caughron*, it would be interesting to see if *Moller* would be decided the same way today.

2. What would be an alternative theory to the result seen in *Moller*? Consider *Busby v. Busby*, 457 N.W.2d 51 (Tex. 1970) where an ex-wife took the husband back into court because his military retirement pay was overlooked at the time of the divorce. Perhaps she made no claim to it at the time. Perhaps she was ignorant of its availability for division. In any event the Texas Supreme Court held that she was entitled to bring a partition action for her share. In Texas, undivided community property is converted in to property jointly owned by H & W as tenants in common. *Compare Zulk v. Zulk*, 502 NW2d 116 (S.D. 1993) which holds that real property which, at the time of the divorce, the parties agreed to sell (but never did) was converted from joint tenancy to tenancy in common.

3. In *Pekelder v. Pekelder*, 1999 SD 45, 591 N.W.2d 810, the parties had been divorced by decree in 1986. Some ten years later, in 1996, the wife first learned of Husband's retirement plan with Farmland Industries where husband was employed during most of the twenty year marriage. Wife instituted an action to recover 50% of the marital portion of the Husband's retirement plan. The trial court awarded wife 50% of the retirement plan rights earned prior to the date of the divorce and the SD Supreme Court affirmed in an unanimous *per curiam* opinion. The wife's claim was supported by language in the parties' original separation agreement that said, "... any property or property rights not contemplated or known at the time of this Agreement that have been deliberately withheld from the knowledge of the other, and not accounted for at the time of this Agreement, shall be considered to be the common property of the parties hereto, and shall be divided equally between the parties..."

4. In a recent California case decided by the 2nd District Court of Appeal, the facts are quite interesting! The wife had joined a lottery pool at her work about 3 weeks before the pool won a big jackpot. Her share was \$1,336,000. She opted to receive 20 annual payments of \$66,800, directing the checks to be sent to her mother's home. She kept the lottery prize secret and filed for divorce. Both wife and husband signed a stipulation which said that they had fully disclosed all assets and if a concealed asset was later discovered, the other spouse would receive an amount equal to the asset. But, there is also a California statute that authorizes the award of 100% of the concealed asset to the aggrieved spouse, by way of punishing the spouse for breaching a fiduciary duty to disclose. Two years later, husband found out about the lottery winning. He went back into court and the trial court gave him 100% of the lottery winnings, holding the wife had intentionally kept it secret. The Court of Appeal AFFIRMED. *Rossi v. Rossi*, 27 Fam.L.Rep. 1391, Cal.Ct.App. No. B141041, 6/22/01.

5. Unfortunately, there is no statutory guidance in SD on this issue of omitted or hidden assets. Perhaps the SD legislature should enact a statute similar to the California statute utilized in the *Rossi* case. In the meantime, it is *strongly recommended* that lawyers continue to put clauses in settlements like that seen in the *Pekelder* case – clauses that provide that full disclosure has been made, and, if concealed assets are later discovered, then the other spouse should be awarded 50% of the concealed asset or cash or property of equal value.

6. For an interesting legal malpractice case involving an omitted asset (military retirement plan) which was not claimed by the wife's attorney at the time of the divorce, see *Bross v. Denny*, 791 S.W.2d 416 (Mo. App. Wes. Dis. 1990) (imposing a damage award against the attorney in the amount of \$108,000.)

“They have rights who dare defend them.”

Roger Baldwin

Chapter Eleven

“CROSSOVER ISSUES” — PROPERTY AND ALIMONY

SAINT-PIERRE v. SAINT-PIERRE

Supreme Court of South Dakota, 1984.
357 N.W.2d 250.

WOLLMAN, Justice.

The trial court entered judgment granting both parties a divorce on the ground of extreme mental cruelty. Plaintiff, Dr. Ruth M. Saint-Pierre, appeals from the judgment. In turn, defendant, Mark S. Saint-Pierre, has filed a notice of review with respect to certain provisions of that judgment. We affirm in part and reverse and remand in part.

* * *

Plaintiff and defendant were married on November 20, 1971. At the time of trial, March 1983, they were both 32 years of age.

Two children were born to the marriage, a daughter, born January 25, 1974, and a son, was born September 23, 1975.

At the time of their marriage, the parties were college students. Following their graduation from college in May of 1972, defendant obtained employment with the Sioux Youth Development Association in Eagle Butte, South Dakota, in late summer of 1972. Plaintiff obtained employment in Eagle Butte as a teacher's aide. In the spring of 1973, defendant became employed with the Cheyenne River Sioux Tribe.

Plaintiff was accepted as a student in the University of South Dakota School of Medicine, and the parties moved to Vermillion in late summer of 1974. Defendant obtained employment with the University of South Dakota School of Education in September of 1974 at a salary of \$11,500 per year. Defendant later worked at the Division of Allied Health and in the Indian Studies Program at a salary of \$17,500 per year. He also wrote a book on Indian art and earned his master of arts degree during the time that plaintiff was earning her medical degree.

Plaintiff received a waiver of her tuition in return for her agreement that she would practice medicine in South Dakota. She also received student loans in the amount of \$350 to \$400 per month for other school expenses. Plaintiff graduated from medical school in June of 1978. The parties then moved from Vermillion to Yankton, where plaintiff completed her residency training. Upon the completion of plaintiff's residency, the parties purchased some property in the Trojan community near Deadwood, where defendant commenced building a home while plaintiff began practicing medicine in Eagle Butte as a part of her three-year

commitment to pay off her student loans. Although defendant made a desultory attempt to find employment in Eagle Butte, he soon became depressed and ceased his search for employment, whereupon plaintiff suggested that he return to their property at Trojan and work on their house, which he did. Plaintiff became frustrated with her practice in Eagle Butte and moved to the family home in Trojan, where she became associated in the practice of medicine with the Black Hills Medical Center in Deadwood.

The parties' marriage was a stormy one. The trial court found that both parties had inflicted extreme mental suffering upon the other. The record reveals that in December of 1982 defendant struck plaintiff in the eye with such force that she was required to seek medical attention.

The trial court awarded custody of the children to defendant and ordered plaintiff to pay \$400 per month per child in the way of child support. The trial court divided the marital property and denied both parties' claims for alimony and attorney fees. The issues raised by plaintiff's appeal and defendant's notice of review cover the areas of child custody, valuation and division of property, the amount of child support, and the denial of defendant's claim for attorney fees and alimony.

CHILD CUSTODY

Plaintiff contends that the trial court abused its discretion in awarding custody of the two minor children to defendant.

* * *

Based as it was, however, upon the court's first-hand opportunity to gauge the credibility and the emotional stability of the parties as reflected by their testimony and demeanor during the lengthy trial, the trial court's decision must be given the appropriate deference mandated under our scope of appellate review. Accordingly, we affirm this portion of the judgment.

PROPERTY DIVISION

After leaving Eagle Butte and moving to the family home at Trojan, plaintiff became associated in August of 1982 with Black Hills Medical Center (the Medical Center), a professional medical corporation in Deadwood, by purchasing for \$150 five shares of stock in the Medical Center pursuant to a buy/sell agreement that requires her to sell the shares back to the Medical Center for the amount of the purchase price upon the occurrence of a termination event, as defined in the agreement. Plaintiff has incorporated her practice as "Ruth M. Saint-Pierre, M.D., P.C." which is the entity that receives plaintiff's share of the Medical Center's distributable income.

Much testimony, some of which was confusing, was offered regarding the value of plaintiff's individual medical corporation and the value of her interest in the Medical Center. The trial court found that notwithstanding the value of plaintiff's shares in the Medical Center as specified in the buy/sell agreement, plaintiff's individual professional corporation had a value of \$55,000. The trial court found that plaintiff's interest in the Medical Center had a value of \$1,000.

Plaintiff contends that the finding that her professional corporation has a value of \$55,000 is clearly erroneous, while defendant contends that the trial court erred in failing to include good will as a component of valuation when arriving at the value of plaintiff's individual professional corporation. Except as noted below, we conclude that neither contention is well taken.

There was evidence from which the trial court could properly find that plaintiff's earned share of the Medical Center's undisbursed income, which is distributed to the six doctor-shareholders every three months, together with plaintiff's individual accounts receivable had a value of \$55,000. *See Stern v. Stern*, 66 N.J. 340, 331 A.2d 257 (1975). The trial court did apparently fail to take into account, however, some \$12,000 that plaintiff acknowledged was held in her professional corporation's bank account at the time of trial. On remand, the trial court should make whatever adjustment, if any, that is necessary to correct this oversight. *Guindon v. Guindon*, 256 N.W.2d 894 (S.D.1977).

The trial court did not err in refusing to place a value on the good will component of plaintiff's individual professional corporation. Under the terms of the buy/sell agreement, plaintiff is restricted to selling her shares back to the Medical Center. Apart from her interest in the Medical Center, plaintiff has no history of private medical practice that could be valued in terms of good will, assuming that that is a valid component of valuation in a professional corporation. *Cf. Fait v. Fait*, 345 N.W.2d 872 (S.D.1984). *See, e.g., In re Marriage of Fenton*, 134 Cal.App.3d 451, 184 Cal.Rptr. 597 (1982); *In re Marriage of Nichols*, 43 Colo.App. 383, 606 P.2d 1314 (1980); *In re Marriage of White*, 98 Ill.App.3d 380, 53 Ill.Dec. 786, 424 N.E.2d 421 (1981); *Stern v. Stern*, *supra*, 331 A.2d at 261, n. 5; *In re Marriage of Fleege*, 91 Wash.2d 324, 588 P.2d 1136 (1979). *But see Nail v. Nail*, 486 S.W.2d 761 (Tex.1972).

Turning to the remainder of the valuation and division of property, the trial court found that at the time of their marriage the parties owned no significant assets other than their personal belongings and modest savings. Both parties contributed to the accumulation of the marital property. As indicated above, defendant earned as much as \$17,500 annually while working at the University of South Dakota. Since moving to their home at Trojan, defendant has operated the Northern Lights Art Gallery in Deadwood. During 1982 he helped develop the Sundance Mountain Ski Resort in Wyoming. Neither of these businesses is yet profitable. As a practicing physician, plaintiff's income is much higher than defendant's. In 1982 her professional corporation received \$62,903.58 as her distributable share of the Medical Center's income, and for the period January- February 1983, \$37,824.83. Plaintiff testified that she anticipated receiving as much as \$120,000 as her share of the medical corporation's distributable income in 1983. The accountant for the Medical Center testified that plaintiff's 1983 income should be between \$160,000 and \$165,000.

The parties' residence consists of a custom log home situated on twelve acres in the Trojan area of rural Lawrence County. The parties also own an eighteen acre tract of unimproved land. The parties also own real estate in Deadwood, which houses the Northern Lights Art Gallery and a rental apartment.

The court ordered a third party to conduct an inventory and appraisal of the parties' personal property located in the residence, the art gallery, and in plaintiff's medical office. This inventory and appraisal, which runs to some 56 pages, lists the parties' personal property in exhaustive detail.

The trial court divided the property as follows:

Plaintiff

Assets

Family residence (12 acres)	\$ 70,000.00
Medical practice (includes 6 shares BHMC and accounts receivable)	55,000.00
Partnership interest Northern Hills Medical Association	1,000.00
Personal property at medical office	2,610.50
Clock at repair shop	500.00
Personal property (residence) (70%)	57,399.73

	\$186,509.73

Liabilities

1st Federal home mortgage	\$46,500.00
Education loans	45,000.00
Note to Miners & Merchants (rug)	2,000.00
Visa	1,000.00
Note to St. Joseph Hospital	5,000.00
Aldenvilla credit union	900.00

	\$100,400.00
Net Share	\$ 86,109.73

Defendant

Assets

18 acres Trojan area	\$ 42,500.00
Real estate 31 Charles (gallery)	45,000.00
Gallery (fixtures & inventory)	10,600.00
Partnership interest Sundance Mt.	5,000.00
Ford tractor, van, 2 wheel trailer, motorcycles and other personal property at ski area	2,500.00
'79 Jeep Cherokee	2,500.00
Personal property at gallery	23,556.00
Personal property (residence) (30%)	24,599.67

	\$156,255.67

Liabilities

Contract for deed (31 Charles)	\$ 30,700.00
Mortgage on 18 acres and gallery property (M&M Bank)	18,000.00
Business debts gallery	9,300.00

	\$58,000.00
Net Share	\$98,255.67

As a part of the division, the trial court ordered that defendant should have his choice of items from the residence to the extent of thirty percent of the total, with the balance to be retained by plaintiff.

Both parties attack the property division as constituting an abuse of discretion on the part of the trial judge. Plaintiff contends that the trial court erred in giving defendant first choice of the personal property items in the family residence. Defendant contends that the trial court erred in failing to award him the marital home, in failing to exclude from the valuation of the marital property some \$5,400 worth of personal property that the parties had stipulated should be set aside to the children, and in failing to set aside to defendant some \$8,000 worth of family heirlooms which defendant and his brother had inherited from defendant's grandfather. He also contends that the trial court erred in including the value of certain personal property twice in arriving at the value of certain fixtures and inventory of the Northern Lights Art Gallery.

Trial courts have full power to make an equitable division of the property belonging to the parties to a divorce action, and in making such division of the property they shall have regard for equity and the circumstances of the parties. SDCL 25-4-44. In making a division of property in a divorce action, the trial court is bound by no mathematical formula. *See, e.g., Booth v. Booth*, 354 N.W.2d 924 (S.D.1984); *Owen v. Owen*, 351 N.W.2d 139 (S.D.1984); *Wolff v. Wolff*, *supra*; *Kressly v. Kressly*, 77 S.D. 143, 87 N.W.2d 601 (1958). The trial court must take into consideration the duration of the marriage, the value of the property owned by the parties, the ages of the parties, the health of the parties, the competency of the parties to earn a living, the contribution of each party to the accumulation of the property, and the income-producing capacity of the property owned by the parties. *See, e.g., Booth v. Booth*, *supra*, *Owen v. Owen*, *supra*; *Wolff v. Wolff*, *supra*; *Watt v. Watt*, *supra*; *Hansen v. Hansen*, 273 N.W.2d 749 (S.D.1979).

The trial court has broad discretion in dividing property, and a division of property will not be set aside or modified on appeal unless it clearly appears that the trial court abused its discretion. *Id.*

The record reveals that the trial court took each of the above-cited factors into consideration in arriving at its division of the marital property. As indicated above, the parties are of the same age. The trial court found that their health was generally good. Both parties have the skills and training necessary to earn a living, plaintiff, of course, having by far the greater earning capacity. In the light of contemporary statistics, the parties' marriage was a fairly lengthy one. Both parties contributed to the accumulation of the marital property. The property awarded to plaintiff is not of an income-producing nature, while that awarded to defendant has the potential for becoming profitable.

We conclude that the trial court did not err in failing to award the marital home to defendant. It is true that our trial courts have broad authority to award possession of the marital home to the custodial parent. *See Johnson v. Lowary*, 81 S.D. 202, 132 N.W.2d 823 (1965); *Stearns v. Stearns*, 80 S.D. 443, 126 N.W.2d 124 (1964). This does not mean, however, that possession of the marital home must necessarily be awarded to the custodial parent. As a part of the division of the marital property, the trial court as a practical matter was required to award the art gallery and the ski resort property to defendant, given plaintiff's preoccupation with her medical practice. An award to plaintiff of the marital home was necessary in order to bring the property division into anything approaching an equitable balance. Accordingly, we cannot say that the trial court ignored the best interests of the children or abused its discretion in awarding the home to plaintiff.

With respect to his contention that the trial court erred in failing to set aside certain personal property which the parties had stipulated was to be given to the children and in including certain property in the Northern Lights Art Gallery twice in the valuation of property, we note that defendant's objections to plaintiff's proposed findings of fact and his own proposed findings of fact did not clearly bring these alleged errors to the attention of the trial court. In the usual case, therefore, defendant would be precluded from urging these matters on appeal. *See Burke v. Lead-Deadwood Sch. Dist. #40-1*, 347 N.W.2d 343 (S.D.1984).

In view of the fact, however, that we are reversing the judgment in part so that the trial court may take into account the \$12,000 held by plaintiff's professional corporation, we will also reverse the judgment to the extent that the trial court apparently failed to carry out the stipulated intention of the parties with respect to the property to be given to the children and in apparently counting certain items of property twice in arriving at the total value of the personal property.

Turning to defendant's contention that the trial court erred in not setting aside certain inherited family heirlooms, as we recently pointed out in *Booth v. Booth, supra*, although the trial court is to consider the fact that one of the parties inherited certain property, it is not bound to set such property aside to that party and may consider it as part of the property to be divided. *See also Laird v. Laird*, 322 N.W.2d 254 (S.D.1982); *Balvin v. Balvin*, 301 N.W.2d 678 (S.D.1981); *Buseman v. Buseman*, 299 N.W.2d 807 (S.D.1980); *Clement v. Clement*, 292 N.W.2d 799 (S.D.1980).

We have considered defendant's remaining challenges to the property division award and conclude that they are without merit, as is plaintiff's contention that the trial court erred in giving defendant first choice of thirty percent of the property in the family home.

* * *

DEFENDANT'S CLAIM FOR ALIMONY AND/OR LUMP SUM COMPENSATION

Defendant contends that because he gave up his career in order to move to Vermillion so that plaintiff could attend medical school and because he made a substantial contribution to plaintiff's attainment of her medical degree and attendant increase in future earning capacity, he should be compensated for his contributions by being awarded the family home, or, in the alternative, being awarded alimony in such an amount and for such period of time as necessary to enable him to attain competency to earn at a level equivalent to that which he would have had he not sacrificed his career to support plaintiff in her career pursuits.

As defendant correctly observes, most courts have refused to classify a professional degree as an asset for the purposes of property division in a divorce action. *See, e.g., Wisner v. Wisner*, 129 Ariz. 333, 631 P.2d 115 (1981); *In re Marriage of Graham*, 194 Colo. 429, 574 P.2d 75 (1978); *In re Marriage of Goldstein*, 97 Ill.App.3d 1023, 53 Ill.Dec. 397, 423 N.E.2d 1201 (1981); *Inman v. Inman*, 648 S.W.2d 847 (Ky.1982); *Mahoney v. Mahoney*, 91 N.J. 488, 453 A.2d 527 (1982); *Frausto v. Frausto*, 611 S.W.2d 656 (Tex.Civ.App.1981); *Grosskopf v. Grosskopf*, 677 P.2d 814 (Wyo.1984); Annot., 4 A.L.R.4th 1294 (1981).

As we did in *Wehrkamp v. Wehrkamp*, 357 N.W.2d 264, (S.D.1984), we agree with those holdings.
* * *

Reimbursement or restitutionary alimony will not always be appropriate or necessary. In some cases an award of what the New Jersey Supreme Court has termed "rehabilitative alimony" may be more appropriate. This is especially true in a case in which the contributing supporting spouse requires a lump sum or a short-term award to achieve economic self-sufficiency or to improve or refresh his or her job skills. *See Mahoney v. Mahoney, supra. See also Bussell v. Bussell*, 623 P.2d 1221 (Alaska 1981).

In *Booth v. Booth, supra*, we recognized the concept of rehabilitative alimony and held that the trial court did not abuse its discretion in awarding the wife \$600 per month alimony for a period of fifteen months

to aid her in updating her job skills.

In *Wallahan v. Wallahan*, *supra*, we in effect adopted and approved the concept of reimbursement and rehabilitative alimony in affirming an award of \$700 per month alimony. In holding that this award did not constitute an abuse of discretion, we wrote:

The record is replete with evidence that plaintiff made substantial contributions as a homemaker and mother during the couple's twenty-two years of marriage, that she gave up her career as a nurse to raise the children, that her earnings during the early years of their marriage were dedicated to putting defendant through college and law school, that she has not practiced her profession for fifteen years, and that she provided moral support and encouragement to defendant during the twenty-two years that the parties' assets were accumulated. Taken together, these facts support and justify the trial court's division of property and award of alimony The court properly considered the fact that plaintiff is removed from her profession by fifteen years and still has obligations with regard to raising her children. Although evidence was presented to the effect that nursing positions are available in Rapid City, the trial court could properly balance job availability against plaintiff's long absence from the labor market and her family responsibilities.

284 N.W.2d at 26-27.

In accord with our holdings in *Booth* and *Wallahan*, *supra*, as well as on the basis of the other authorities cited above, we hold that in a proper case the trial court should award alimony as reimbursement to the supporting spouse for his or her contribution to the non-working spouse's obtaining of an advanced training or in the way of rehabilitative alimony to enable the supporting spouse to refresh or enhance the job skills that he or she needs to earn a living. We do not propose that the trial court be bound by any specific formula or approach in determining the amount of such alimony. *Cf. DeLa Rosa v. DeLa Rosa*, *supra*; *In re Marriage of Lundberg*, *supra*; *Mahoney v. Mahoney*, *supra*. Just as the trial court is not bound by any mathematical formula in dividing marital property, neither should the trial court be bound by a rigid, inflexible formula in awarding reimbursement or rehabilitative alimony. Rather, the trial court should consider all relevant factors, including the amount of the supporting spouse's contributions, his or her foregone opportunities to enhance or improve professional or vocational skills, and the duration of the marriage following completion of the non-supporting spouse's professional education. *See Mahoney v. Mahoney*, *supra*, 453 A.2d at 534, and n. 5 at 535.

We conclude that the trial court did not err in refusing to award defendant either a lump sum reimbursement by way of transfer of the marital home or in the way of reimbursement alimony. Contrary to his contention, defendant did not forego any career plans or advancement as a result of moving to Vermillion in order to be with plaintiff during her medical education. Indeed, as pointed out above, defendant secured employment with the University of South Dakota. At the same time, he was able to complete a book on Indian art and to obtain his master of arts degree in school administration. This is hardly the type of personal sacrifice and self-deprivation that is characteristic of so many cases in which one's spouse contributes to the professional education of his or her partner. Moreover, plaintiff incurred financial obligations of her own in financing her medical school education. As indicated above, she secured a waiver of tuition by agreeing to practice medicine in the state. Moreover, she incurred student loans that have left her with an outstanding loan balance of \$45,000 to repay. As with the award of alimony in any case, *see, e.g., Guindon v. Guindon*, *supra*, the decision whether to award reimbursement or rehabilitative alimony, and,

if so, in what amount and for what length of time, is committed to the sound discretion of the trial court. After considering all of the relevant factors in the case before us, we cannot say that the trial court abused its discretion in denying defendant's request for alimony.

* * *

CONCLUSION

To the extent that it fails to take into account the \$12,000 bank account balance held by plaintiff's professional corporation at the time of trial, includes personal property that the parties had stipulated should be set aside to their children, and includes certain property located in the Northern Hills Art Gallery, the judgment is reversed, and the case is remanded to the circuit court with directions to make whatever adjustments may be necessary to correct these errors. In all other respects, the judgment is affirmed.

FOSHEIM, C.J., MORGAN, J., and DUNN, Retired Justice, concur.

HENDERSON, J., concurs specially.

DUNN, Retired Justice, participating.

WUEST, Circuit Judge, Acting as Supreme Court Justice, not participating.

HENDERSON, Justice (specially concurring).

* * *

In *Wehrkamp v. Wehrkamp*, 457 N.W.2d 264 (S.D. 1984), we essentially held that a college degree is not "property" to be divided nor is the potential earning capacity stemming therefrom distributable property. We left the door open for rehabilitative alimony, but said that it did not fit the facts.

* * *

NOTES

1. In *Kanta v. Kanta*, 479 N.W.2d (S.D. 1991), the trial court actually treated the wife's "career opportunity costs" as an item of property — she had a "depreciated human capital" for which husband needed to compensate. The trial court had accepted a new theory which had been suggested in a South Dakota law review article written by Ralph J. Brown and Linda Lea M. Viken.²⁶⁷ The trial court reasoned that the wife was presently earning only \$11,000 per year and, if she had pursued her career over the 20 year marriage, she would be making \$23,000 per year. To compensate wife, the trial judge ordered husband to pay her \$1,000 per month for 20 years, calling the award one-half property division and one-half alimony. On appeal, the South Dakota Supreme Court reversed that portion of the award that was called property division, holding that it was error to consider "career opportunity costs" as property subject to division. The court distinguished contrary cases from other jurisdictions as being fostered under different statutory schemes. *Id.* at 508.

2. The listing of factors which are to be considered in South Dakota for division of property is quite similar to the listing of factors which may be considered for alimony. The factors which are in common are as follows:

length or duration of the marriage
the parties' age, health and earning capacity

In dividing property the court is also to consider the contribution of each party to the accumulation of the property and the value and income-producing capacity of the property.

In awarding alimony, the court is to consider fault, the parties' respective financial condition after the property division, and the parties' station in life or social standing.

3. In *Fox v. Fox*, 467 N.W.2d 762 (S.D. 1991), the trial court awarded the marital home to the wife and declared the husband to be responsible for one-half of the outstanding mortgages against it. Husband was also ordered to pay wife permanent alimony of \$700 to meet wife's living expenses. These awards were reversed and remanded for reconsideration by the trial court. The South Dakota Supreme Court noted that the trial court had included the mortgage payment in the computation of wife's monthly living expenses in determining the alimony award. According to the high court, the combined effect of these awards was "to compensate wife twice for the same indebtedness." *Id.* at 767.

4. We now have South Dakota's first reported opinion involving the actual imposition of an alimony award against a wife in favor of the husband. The trial court ordered the wife (a medical doctor) to pay husband (an engineer) \$1,000 per month in "general alimony" until he is 62. Wife was also ordered to pay husband \$400 per month for ten years as "restitutional alimony." Both sides appeal, but the South Dakota Supreme Court affirmed in an unanimous opinion in *DeJong v. DeJong*, 2003 SD 77, 666 N.W.2d 464.

²⁶⁷ *Recognition of Homemaker Career Opportunity Cost in Marital Dissolution Cases*, 35 S.Dak. L. Rev. 40 (1990)

5. Many issues addressed in situation where W attended medical school and became a doctor during marriage. In *Hill v. Hill*, 2009 SD 18, 763 N.W.2d 818, H was an electrical engineer when the parties were married. W was a cashier and nurse's assistant when married. During the marriage W went to medical school and became a doctor. At the time of divorce W was making \$285,000 annually and H was making \$65,000-\$70,000 annually. The trial court divided the property by giving H \$55,493 in assets and \$8,000 in debt and by giving W \$19,336 in assets and \$103,160 in debt. The debt assessed to W included her student loans. H sought, but was denied, alimony. There were 3 children born of the marriage. The parties agreed upon joint legal custody with W to have primary physical custody. The parties' income was "off the chart." Using the highest line on the chart, \$10,000, H's child support obligation would have been 20% of \$2,477 or \$495.40. The trial court ordered H to pay child support of \$750 per month. On appeal H argued

1) error in setting child support above the charted amount without making findings as to the actual needs and standard of living of the children

2) error to include student loans related to W's medical degree as part of the division of property since the medical degree itself cannot be considered as property subject to division

3) error not to award H permanent alimony

4) error not to award H rehabilitative alimony

5) error not to award H restitutional alimony

The SD Supreme Court agreed with H on his child support argument, reversing and remanding with directions to the trial court to enter specific findings as to the children's needs and standard of living. The trial court was also permitted to consider H's request for an order relating to an abatement of child support during those months when he has the children more than 10 days. The SD Supreme Court also awarded H \$ 5,000 in appellate attorney fees. The opinion is authored by Justice Meierhenry. The decision is unanimous.

STUDENT LOANS. As to the inclusion of student loans as a consideration in dividing marital property, the Court held that the loans were appropriately considered since they were incurred during the marriage and utilized to support the family. Such consideration of student loans was previously considered in prior SD case law (the *Saint-Pierre* case).

PERMANENT ALIMONY. The trial court did not abuse its discretion in failing to award H permanent alimony. In reviewing all of the relevant factors, the court noted that the fault for the marital break-up was with H.

REHABILITATIVE ALIMONY. Although H generally testified that he wanted to pursue an MBA degree, he did not put forward a specific educational plan and the trial court found, contrary to H's testimony, that H did not show that he could earn more income with an MBA. H did not show that he had sacrificed his career or that he had otherwise missed an educational opportunity in order to enable W's opportunity to go to medical school.

RESTITUTIONAL ALIMONY. After attending medical school in North Dakota, W accepted a residency placement in Michigan. H quit his job of \$54,000/year and the couple moved to Michigan where H cared for the children. During this time, they lived on W's residency income of \$30,000 - \$38,000 per year. To support his claim for "restitutional alimony," H argued that he gave up "potential lost equity" in a house which could have been purchased in North Dakota and also that he gave up growth in his retirement account because he quit work while W concluded her residency program. The trial court found that these theories by H were "speculative and do not support a finding of restitutional alimony." The SD Supreme Court acknowledged H's argument of lost potential equity in a never-purchased home as "novel" but found that the trial court had not abused its discretion.

WEHRKAMP v. WEHRKAMP

Supreme Court of South Dakota, 1984.
357 N.W.2d 264.

* * *

As we did in *Saint-Pierre v. Saint-Pierre*, 357 N.W.2d 250 (S.D.1984), decided this day, we align ourselves with the majority rule in now holding that a professional degree or license and/or the potential earning capacity stemming therefrom is not distributable property. We therefore find that the trial court did not abuse its discretion in failing to consider appellee's enhanced earning capacity a marital asset subject to property division upon divorce. The factors and variables involved in such a consideration are simply too speculative and could only act to turn the possibility of inequity on the one hand into a probability of such on the other.

We note that not all courts have rejected the concept that potential earning capacity made possible by an advanced degree may be considered an asset for distribution by the court. See *In re Marriage of Horstmann*, 263 N.W.2d 885 (Iowa 1978); *Inman v. Inman*, 578 S.W.2d 266 (Ky.App.1979).

* * *

Even the majority of cases, while refusing to recognize that potential earning capacity is property, do indicate that it is "doubtless a factor to be considered by a trial judge in determining what distribution will be 'equitable' and it is even more obviously relevant upon the issue of alimony." *Stern*, 331 A.2d at 260. Accord, *DeWitt*, 296 N.W.2d 761; *In re Marriage of Vanet*, 544 S.W.2d 236 (Mo.App.1976); see also, *Hubbard v. Hubbard*, 603 P.2d 747 (Okla.1979) (consideration based on theory of unjust enrichment). However, these issues are not pertinent to this case. Appellant did not request alimony, nor is she in need of some sort of rehabilitative contribution. She has already pursued a career of her choice, one that should provide adequate support in the manner to which she is accustomed.

* * *

LIEN v. LIEN

Supreme Court of South Dakota, 1988.
420 N.W.2d 26.

MILLER, Justice.

This is an appeal from an order denying a former husband's motion to terminate "alimony" on the basis of his former wife's remarriage. We affirm.

The original divorce proceeding was tried by the late Honorable Joseph H. Bottum, Circuit Judge (Judge Bottum). The facts of that case are extensively set forth in our prior opinion of *Lien v. Lien*, 278 N.W.2d 436 (S.D.1979) (*Lien I*). Therein, we generally affirmed Judge Bottum's property award of approximately \$1,096,333 to the former Mrs. Lien.

Appellant Bruce H. Lien (Bruce) filed a Motion to Terminate Alimony based upon his former wife's remarriage. The motion was submitted to Presiding Circuit Court Judge Marshall Young (Judge Young) principally on a stipulation of facts. Among the facts stipulated to were that appellee, Barbara Lien (Barbara), married William G. Porter (Porter) on February 19, 1984, and that the separate and/or collective

income of Barbara and Porter is more than adequate to provide her a standard of living substantially equal to that which she had grown accustomed during her marriage to Bruce--without the payment to her of any support from Bruce. Barbara submitted additional evidence for Judge Young's consideration, including her affidavit and a request that judicial notice be taken of the entire court record, which request was granted over Bruce's objection.

Judge Young denied the motion to terminate "alimony," finding that "extraordinary circumstances" had been established by Barbara under *Marquardt v. Marquardt*, 396 N.W.2d 753 (S.D.1986), and that *Lien I, supra*, was dispositive.

* * *

Bruce claims that the "alimony" payments should be terminated due to (1) Barbara's remarriage and (2) the stipulation stating that she has no need for the "alimony" since the remarriage. Barbara claims that the amount of the award in issue was, in fact, a part of a property division and such award was merely labeled as support (or alimony) at Bruce's request, solely for his tax benefit.

In *Marquardt*, we held that remarriage "establishes a prima facie case for termination of alimony payments" and imposes on the remarried ex-wife the burden of establishing that "extraordinary circumstances" exist which justify the continuation of alimony payments. However, it is also well-settled that a property division is not subject to modification. See *Holt v. Holt*, 84 S.D. 671, 176 N.W.2d 51 (1970). Additionally, we have recognized the concept of permanent alimony in lieu of property division. *Vaughn v. Vaughn*, 252 N.W.2d 910 (S.D.1977); *Holt, supra*; Annot., Alimony--Effect of Remarriage, 48 A.L.R.2d 270 (1956).

After reviewing *Lien I*, we find that *Marquardt* has no application here. In *Lien I*, we stated that tax consequences were proper considerations. In addition, we specifically stated:

The trial judge determined that Mrs. Lien should receive approximately one-third of the family's net assets, and that because she was inexperienced in business affairs and because he concluded that Mr. and Mrs. Lien couldn't reasonably be expected to get along as business partners, she should receive her equitable share of the assets in cash. Because of the large amount of money involved which created practical problems of cash availability and the tax consequences to Mr. Lien of acquiring this cash either by liquidation of assets or out of his income, the trial judge, after several hearings, devised the rather elaborate plan previously set out in detail, involving large payments over a relatively short time, deferred payments over a longer time but short enough to make them nontaxable to Mrs. Lien, and support payments over about 13 years which would be deductible to Mr. Lien and taxable to Mrs. Lien. Interest on the deferred payments would also be deductible by Mr. Lien and taxable to Mrs. Lien.

Lien, 278 N.W.2d at 444 (emphasis added).

The above-quoted paragraph from *Lien I* is dispositive. Any other finding would be inconsistent with Judge Bottum's (and this court's) intent. Clearly, what was intended as a property division and part of an award of approximately one-third of the assets to Barbara was designated as support merely at Bruce's request for the purpose of providing him with a tax benefit and to alleviate the harshness of a total cash award of property.

Finally, Bruce argues that the stipulation stating that Barbara does not need the support demands that the payments be terminated. In *Lien I*, Bruce objected to any support award on appeal, claiming that it was unwarranted because she received a large sum of property in the division, citing *Guindon v. Guindon*, 256 N.W.2d 894 (S.D.1977). However, we chose to ignore *Guindon* because the Lien assets were so substantial that, basically, neither party needed the money. Moreover, we have now stated that what was deemed "support" was in reality a property division. Thus, whether or not Barbara needed "support," was irrelevant.

Affirmed.

WUEST, C.J., and MORGAN and SABERS, JJ., and GILBERTSON, Circuit Judge, concur.

GILBERTSON, Circuit Judge, sitting for HENDERSON, J., disqualified.

NOTES

1. The rule is that while support payments are generally "modifiable" following the entry of a divorce decree, that aspect of the decree which divides or distributes (or awards) property is *not* modifiable. This rule will be explored further in connection with the case of *Anderson v. Somers*, 455 N.W.2d 219 (S.D. 1990) which is covered later in this book. This rule is also explored in connection with the several note cases which are set forth following *Anderson v. Somers*. (This rule – that division of property is not modifiable – was also recognized by the South Dakota Supreme Court in *Radigan v. Radigan*, a portion of which is reproduced in the "Retirement Plans" section of Chapter Ten, "Division of Property," *supra*.)

2. In *Beerman v. Beerman*, 526 N.W.2d 127 (S.D. 1995), husband agreed to pay the following to wife at the time of the divorce: \$125,000 over a ten year period, to pay for the living expenses of wife and children, and further to pay for wife's educational expenses. Husband did not comply with the terms of this agreement which was incorporated in the decree. In a subsequent contempt action, husband sought to "modify" the terms of the payments. He was denied the opportunity to seek modification of those payments which were for living expenses. The South Dakota Supreme Court ruled that the husband's obligations were not subject to modification because they were really intended as a "property settlement." (This case lines up nicely with the *Lien* decision which recognizes that property divisions are not modifiable, even when they are characterized by the parties as "alimony" or "support" payments.)

3. In *Harding-Moyer v. Harding*, 2000 SD 126, 616 N.W.2d 899, the parties reached an agreement at the time of the divorce in 1987, with the agreement being incorporated into the decree of divorce. As part of that agreement, husband was to provide wife with major medical insurance coverage. Wife subsequently remarried an Air Force serviceman and was eligible for health insurance coverage through her new husband. Husband sought to be relieved of this obligation. The trial court denied husband's request, holding that the obligation to maintain health insurance was "contractual in nature" and not modifiable. In an unanimous per curiam opinion, the South Dakota Supreme Court reversed holding that the applicable South Dakota's definitions of alimony or spousal support are "broad enough to include medical or health insurance premiums." (Paragraph No. 12, 616 N.W.2d at 902.) Accordingly, the award is subject to modification based on a showing of changed circumstances. Furthermore, under the South Dakota *Marquardt* rule, remarriage establishes a prima facie case requiring termination unless "extraordinary circumstances" exist which justify the continuation of the alimony obligation. The case was remanded to the trial court for a determination as to whether or not "extraordinary circumstances" were present.

“I am always ready to learn, but I do not always like being taught.”

Winston Churchill

Chapter Twelve

Alimony

A. Introduction — Relevant Statutes

Consider the following definition:

Comes from Latin ‘alimonia’ meaning sustenance, and means, therefore, the sustenance or support of the wife by her divorced husband and stems from the common-law right of the wife to support by her husband.”

Black’s Law Dictionary “Alimony.”

Similar to property division (and unlike the matter of child support), there are very few statutes which control the matter of alimony. The two most important statutes are reproduced below:

CHAPTER 25-4: DIVORCE AND SEPARATE MAINTENANCE

25-4-40 Action for separate maintenance without divorce -- Alimony and support. An action for separate maintenance may be maintained without request for divorce, upon any grounds which would be grounds for divorce, and in such cases the court shall have power to award temporary alimony, suit money, and permanent support for a spouse and the children of the parties, or any of them, by the other spouse.

Source: SDC 1939, § 14.0727; SL 1979, ch 165, § 3.

25-4-41 Allowance for support when divorce granted. Where a divorce is granted, the court may compel one party to make such suitable allowance to the other party for support during the life of that other party or for a shorter period, as the court may deem just, having regard to the circumstances of the parties represented; and the court may from time to time modify its orders in these respects.

Source: CivC 1877, § 73; CL 1887, § 2584; RCivC 1903, § 92; RC 1919, § 165; SL 1923, ch 219; SDC 1939, § 14.0726; SL 1977, ch 203, § 1.

NOTES

1. **Enforcement of Alimony Obligation Pending Appeal.** In *Cutler-Christians v. Christians*, 2001 SD 104, 633 N.W.2d 176, the trial court was found to lack jurisdiction to entertain a contempt proceeding against husband for failure to pay alimony where the husband had filed a Notice of Appeal from the underlying judgment and had filed a supersedeas bond which had been approved by the trial court. By virtue of SDCL 15-26A-32, an approved supersedeas bond “shall stay all further proceedings in circuit court.” Furthermore, husband’s participation in the contempt proceeding in front of the trial judge did not operate as a *waiver* of the stay, since subject matter jurisdiction cannot be created by agreement or waiver. It was noted that the trial court did, however, have authority under SDCL 25-4-38, to enter an order for interim alimony pending the appeal, but such was not done.

2. **Necessaries of Life.** A related statute, SDCL 25-2-11, provides that, “Every husband and wife shall be jointly and severally liable for . . . all the necessities of life, consisting of food, clothing, and fuel purchased by either husband or wife for their family while they are living together as husband and wife.” In a recent decision, the South Dakota Supreme Court interpreted this statute to include the costs incurred for life saving medical treatment. *Accounts Management, Inc. v. Litchfield*, 1998 SD 24, 576 N.W.2d 233 (S.D. 1998).

B. Traditional Alimony

EFFECT OF NO AWARD OF ALIMONY

It is generally accepted that if no alimony is awarded at the time of the divorce, then none can ever be awarded in the future as between the divorcing parties (unless perhaps they remarry each other and get divorced another time). *Cameron v. Cameron*, 140 N.W. 700 (S.D. 1913). As a result of this, sometimes parties may agree to nominal alimony awards of \$1 per month or \$1 per year, for the purpose of making the award modifiable in the future. *E.g. Schwandt v. Schwandt*, 471 N.W.2d 176 (S.D. 1991).

What happens when an award of alimony is initially made and then subsequently terminates? Many believed that once an award terminates, then it cannot be reinstated — although such alimony awards were modifiable if the modification were sought before the award terminated. This issue was addressed by the South Dakota Supreme Court in *Saxvik v. Saxvik*, 544 N.W.2d 177 (S.D. 1996). The resolution of this issue involves some knowledge of the “forms” of alimony which will be addressed later in the book. The *Saxvik* case will be reviewed also later in this book. It is important to note at this point, however, that the *Saxvik* opinion reaffirms the basic notion that where there is no basis for the imposition of alimony in the initial divorce decree, then none can be later imposed. *Id.* at 180.

In *Midzak v. Midzak*, 2005 SD 58, 697 N.W.2d 733, the wife was represented by counsel in her divorce action, but the husband appeared pro se. Husband had a full pension as a result of serving 20 years in the Air Force. In the Rapid City area, husband was unemployed and his only opportunity for employment would be as a common laborer at \$9.50 per hour. He had previously served as a flight controller in Hungary at a salary of about \$81,000 per year. Also, he had the opportunity to relocate to

Turkey to again work as a flight controller for a salary of \$100,000 per year. ¶¶ 2-4. The trial court awarded wife a substantial portion of husband's retirement pay (\$570 of the total monthly benefit of \$968.31). As to alimony, the trial court made no award of alimony to wife, but stated, "[husband] currently has only prospective employment, but is currently unemployed therefore alimony cannot be awarded at this time. However [wife] has significant monthly obligations and has far lower earning capacity than [husband]. The Court reserves the right to award alimony to [wife] if [husband] becomes employed." Footnote 3 accompanying ¶ 28. Husband subsequently secured the services of an attorney and took an appeal. This appeal addresses the issue of whether or not the trial court has authority to "reserve" the right to award alimony later where no award is made at the time of the divorce. The Supreme Court of South Dakota affirmed the trial court's action as both appropriate and authorized under South Dakota law. The Court also reaffirmed the holding of *Cameron v. Cameron*, 31 SD 335, 340, 140 N.W. 700, 701-02 which provides that a trial court loses jurisdiction to award alimony where there was "no basis for an award of alimony to begin with." ¶ 26. This situation is not the same as the *Cameron* scenario. "The trial court is without jurisdiction to amend a non-existent alimony award at some point in the future if it denies alimony at the time of the divorce trial and does not expressly reserve the right to award it in the future." ¶ 28. The act of the court in "reserving" the issue is adequate to preserve the court's ability to later impose an alimony obligation. (The South Dakota Supreme Court compared the act of "reserving" to the situation recognized in *Saxvik v. Saxvik*, 1996 SD 18, 544 N.W.2d 177, where periodic award goes to zero – the reduction to zero, according to the *Saxvik* opinion, in the periodic award does not deprive the trial court from later reinstating alimony. Footnote 2 accompanying ¶ 26.)

STRICKLAND v. STRICKLAND

Supreme Court of South Dakota, 1991.
470 N.W.2d 832.

[The parties' net assets were valued at approximately \$2.5 million. W was awarded 39% of the marital estate, "including \$971,968.00 worth of bare land, the Onida house valued at \$47,000.00, her automobile worth \$5,000.00, her clothing, personal effects and jewelry and [some] personal property." Wife was also awarded alimony of \$1,000 per month.]

* * *

A trial court has broad discretion in awarding alimony and making a property division, and its judgment will not be set aside unless it clearly appears that it abused its discretion. *Tate v. Tate*, 394 N.W.2d 309 (S.D.1986); *Goehry v. Goehry*, 354 N.W.2d 192 (S.D.1984). Factors to be considered in determining the amount of alimony are: (1) the length of the marriage; (2) the parties' respective earning capacities; (3) their respective financial condition; (4) their respective age, health, and physical condition; (5) their station in life and the relative fault of the parties. *Booth v. Booth*, 354 N.W.2d 924 (S.D.1984). Factors to be considered in dividing marital property are similar to those used in determining alimony, except the trial court must also take into account the value and income producing capacity of the property and the contribution of each party to the accumulation of the property. *Garnos v. Garnos*, 376 N.W.2d 571 (S.D.1985). To determine if the trial court abused its discretion, we review the award of alimony and property division together. *Studt v. Studt*, 443 N.W.2d 639 (S.D.1989).

Here, the trial court considered the aforementioned factors. We hold the findings are not clearly erroneous. *In re Estate of Hobelsberger*, 85 S.D. 282, 181 N.W.2d 455 (1970). The parties have been married for 26 years. For both, it is a first marriage. DeJuan has the mental, economic, and physical ability to provide for himself and his family. However, Judy is not so fortunate. She has devoted her life

to raising her children and has no job skills or education to produce a substantial amount of income.

The respective age, health and physical conditions of DeJuan and Judy was also considered by the trial court. Judy is unable to obtain health insurance due to previous cancer surgery. The trial court also considered the parties' station in life, finding that during the marriage, Judy enjoyed a social status appropriate to the size of the family business and the money needed to sustain it.

Finally, the trial court found that DeJuan's fault was sufficient to authorize an award of alimony. The trial court was presented with evidence of a liaison with a nurse while he was at the University of Minnesota for prostate surgery. The trial court was also presented with evidence of DeJuan's attempts to seduce a friend of his youngest daughter. In short, he was a "womanizer" over an extended period of time.

We are confronted with a record establishing that the trial court exercised its discretion by considering proper reasoning behind its decision. We find no abuse of discretion in awarding Judy \$1,000.00 per month in alimony, thus deferring to the trial court's judgment. DeJuan has the ability to pay this alimony and ought to pay it. While the parties were married, their farming business thrived. Judy was a major contributor to the success of their farming enterprise. She was in charge of the house, ran the household allowance, cooked the meals, raised the children and also worked in the fields.

* * *

NOTES

1. In *Heckenlaible v. Heckenlaible*, 545 N.W.2d 481 (S.D. 1996), the husband openly called the wife a "bitch" while she was testifying in court. Subsequently, this outburst by the husband during the trial of the case was cited as evidence of his "fault" thereby helping to justify the wife's award of permanent alimony in the amount of \$350 per month. *Id.* at 485. The court found that the trial court had appropriately considered all of the relevant factors in determining alimony.

2. In the *Strickland* case and in the foregoing note, the element of "fault" militated toward the imposition or enhancement of an alimony award. In *Evans v. Evans*, 1997 SD 16, 559 N.W.2d 240 (S.D. 1997), evidence showed the wife was guilty of "fault" through numerous instances of marital misconduct (including adultery with more than one partner), her refusal to attend family vacations, and her refusal to seek counseling. On appeal wife complained of the "inadequacy" of her alimony award which was \$2,500 per month for six months and thereafter \$1,000 per month for five years. The trial court was affirmed, with the South Dakota Supreme Court observing that the trial court had considered all necessary factors including the wife's "fault" and the fact that she was awarded over \$1,000,000 in assets.

3. Wife was denied an award of general alimony, as well as rehabilitative alimony by the trial court. This was affirmed on appeal in *Zepeda v. Zepeda*, 2001 SD 101, 632 N.W.2d 48. Although the parties were married 12 years, the trial court was found to have acted within its discretion, in balancing the recognized common law factors in SD, in denying alimony to wife. As to the prospect of "fault," the trial court found that "'both parties [were] truly at fault.'" (Paragraph no. 23 of opinion.) In particular, wife's infidelity at the marital home and wife's "highly erotic" cybersex internet conversations were

found to be “appalling” by the trial court. The SD Supreme Court acknowledged that such marital infidelity can be considered when awarding or denying alimony, citing *Evans v. Evans*, 1997 SD 16, 559 N.W.2d 240, a prior decision where wife’s marital transgressions militated against a favorable alimony decision. (Paragraph 23 of opinion.)

4. An alimony award for life was made by the trial court in *Christians v. Christians*, 2001 SD 142, 637 N.W.2d 377, despite the fact the marriage lasted only 6 years. The alimony award was for \$1300 the first month, thereafter decreasing \$200 per month until leveling off at \$300 per month and that amount would continue until either party dies or wife remarries. The South Dakota Supreme Court affirmed, noting that the traditional factors support the award, especially considering the disparity in earning capacity and *fault*. Husband’s *fault* conduct was described in the opinion as “less than respectful” with husband having “attempted to control Connie’s behavior regarding use of their vehicles, her job, social life, and especially the spending of money.” ¶18, 637 N.W.2d at 381. At another point in the opinion (which deals with the intentional infliction of emotional distress tort prosecuted by wife), husband’s conduct was characterized as “intentionally hostile and designed to cause as much harm as possible.”¶25, 637 N.W.2d at 383. [Editor’s Note: One can’t help but wonder if the trial court was influenced by the husband’s misconduct *after the filing* of the divorce in making the alimony award, as well as in adjudicating the tort claim for intentional infliction of emotional distress (which awarded wife \$20,000). The issues associated with the possibility of a “double recovery” are discussed by Justice Konenkamp in his special concurrence. ¶43, 637 N.W.2d at 386.]

CAUGHRON v. CAUGHRON

Supreme Court of South Dakota, 1988.
418 N.W.2d 791.

* * *

Nancy also contends that the circuit court abused its discretion by refusing to award her alimony. We agree that Nancy is entitled to some alimony and remand to the circuit court on this issue.

It is clear "that a trial court's alimony award will not be disturbed 'unless it clearly appears that the trial court abused its discretion.' " *Tesch v. Tesch*, 399 N.W.2d 880, 884 (S.D.1987) (quoting *Straub v. Straub*, 381 N.W.2d 260, 261 (S.D.1986)). Abuse of discretion is a very high standard that cannot be easily overturned. Abuse of discretion is defined as " 'a discretion exercised to an end or purpose not justified by, and clearly against, reason and evidence.' " *Herndon v. Herndon*, 305 N.W.2d 917, 918 (S.D.1981) (citation omitted). *Tesch*, 399 N.W.2d at 884, sets forth the frequently quoted factors the trial court should consider when setting an alimony award. They are

"the length of the marriage; the respective earning capacity of the parties; their respective financial condition after the property division; their respective age, health, and physical condition; their station in life or social standing; and, the relative fault in the termination of the marriage."

Id. at 884 (citation omitted). See also *Straub v. Straub*, 381 N.W.2d 260 (S.D.1986); *Morrison v. Morrison*, 323 N.W.2d 877 (S.D.1982); and *Guindon v. Guindon*, 256 N.W.2d 894 (S.D.1977).

At the time of trial, the parties had been married twenty-eight years. Jim was earning

approximately \$3,000 a month in gross pay, while Nancy was earning about \$700 gross income. She has limited earning ability. This is a strong factor in an award of alimony for Nancy. Equity in the marital home was divided evenly. The value of the personal property was split about in half, but Jim was assigned all of the debt from the marriage. Jim and Nancy are in their mid-forties, and both enjoy health that does not prevent them from working full time. Social standing of the parties is not clear from the record. As far as the relative fault of the parties, Jim and Nancy were both guilty of conduct that amounted to extreme cruelty. Nancy possessed a cold, unloving, and distant attitude toward Jim. Jim was a very possessive and domineering husband with an occasionally violent temper. In reversing the lower court's denial of alimony award, we note that Nancy was a homemaker and a mother for the first thirteen years of her marriage and did not return to the labor force until the youngest child attained the age of nine during 1970. Nancy first took employment in a flower shop and began to work as a seamstress making custom drapes in 1972. She has been working full time in a drapery shop earning approximately \$4.15 per hour. For six years prior to trial, she worked at this drapery shop. With her high school education, and her history as a seamstress, with no other apparent skills, her earning abilities would appear to be set in her present employment. We are mindful of our holding in *Guindon*, 256 N.W.2d at 898, wherein we stated: "Alimony will not be awarded in such an amount as would allow a wife capable of work to sit in idleness, nor will it be denied merely because she may be able to obtain employment and support herself."

An examination of these factors leads to a conclusion that the circuit court abused its discretion in refusing to grant alimony to Nancy. The court's discretion was exercised against reason and evidence.

* * *

NOTES

1. For a more recent case in which the trial court was found to have abused its discretion by failing to make an award of "general alimony," see *Urban v. Urban*, 1998 SD 29, 576 N.W.2d 873 (S.D. 1998). Justice Amundson dissented, arguing that wife had failed to put on adequate evidence to show a need.

2. How about a situation where the wife was given a "really big" award, but husband could pay more than wife needs!! In *Johnson v. Johnson*, 526 N.W.2d 119 (S.D. 1995), the husband had a Phd. in electrical engineering and was earning \$125,000 per year. The trial court gave wife a graduated award of \$450,000 in alimony, beginning with monthly payments of \$2,500 for five years. The payments were then to be for \$2,000 per month for ten years, followed by further reductions. This was affirmed on appeal, with the South Dakota Supreme Court noting that the trial court found that husband "has the ability to pay more alimony than [wife] needs." Justice Henderson, the lone dissenter, believed that the trial court failed to properly consider the "respective financial condition [of the parties] after the property division." The dissent also observed that husband's "sin is that he was successful, a white male, frugal and is caught up in a movement which inequitably elevates the rights of womanhood to the detriment of men." Wife "now joins the army of Alimony Drones . . . He joins the Legion Lost."

3. What about a "short" marriage? In *Osman v. Keating-Osman*, 521 N.W.2d 655 (S.D. 1994) the parties were married only a very short time, with the husband first moving out after six weeks. Nonetheless, the trial court's award of alimony payment of \$450 per month for 15 months was affirmed. The trial court noted that the wife "had changed her position in reliance on the marriage promise." The

traditional factors for determining alimony were recited and found to support this award.

4. In *Dooley v. Dooley*, 1999 SD 136, 601 N.W.2d 277, the warden of the state prison facility in Springfield, SD, was sued for divorce by his wife of 24 years. She was a Mexican citizen whom he married in Tijuana in 1973 and remarried for U.S. citizenship purposes in California in 1976. The trial court granted wife a divorce on the grounds of “extreme cruelty” based on evidence of husband’s possible cheating on wife. The trial court also awarded the wife alimony of \$1500 per month until her death or remarriage. The Court reviewed the traditional factors to be considered in making alimony decisions and affirmed the \$1500 per month lifetime award. His earning capacity was up to \$59,200 per year as of the time of trial. Her earning capacity was \$6.00 per hour at Wal Mart. Husband retained his retirement account and wife was given non-income earning assets. The Court also observed that “Fault for the termination of the marriage rests with Husband.” (Paragraph no. 18, 601 N.W.2d at 280.)

5. Denial of alimony to Wife and a property division of 64% to Husband, with 36% to wife was upheld on appeal in *Anderson v. Anderson*, 2002 SD 154, 655 N.W.2d 104. The Supreme Court noted that the income-producing property was essentially divided equally. [The property division aspects of this opinion are discussed in Chapter 10, “Division of Property.”] The South Dakota Supreme Court rejected the Wife’s assertion of error in the failure to award her alimony because virtually all of the property awarded to Wife – some \$914,884 – was income-producing. The Court rejected Wife’s argument that the division of property award “will leave her in a financial state ‘only slightly above the poverty level.’”

6. In the *Schabauer* opinion which is reproduced in the next several pages, the South Dakota Supreme Court stated, in ¶ 14, “Alex argues that an abuse of discretion is established when Terri’s alimony is compared with awards in similar cases. However, when considering alimony awards, we review each case on its own facts and will not reverse absent an abuse of discretion.”

ADVANTAGES AND DISADVANTAGES OF ALIMONY AS COMPARED TO PAYMENTS ARISING OUT OF PROPERTY DIVISION

The parties to a divorce have a great deal of flexibility in achieving a satisfactory settlement through the tools of property division and alimony. There are characteristics of each that the student needs to learn. It is not necessarily true that an award of alimony is better than a division of property order, or vice versa. Rather, as cases vary, so do the importance of these characteristics. Important questions warranting attention are as follows: Can this obligation to pay money be discharged in bankruptcy? Is this obligation to pay money modifiable? Can the amount of the payment be raised? Can it be lowered? Can it be eliminated? What are the tax consequences?

COMMENTS ON ALIMONY

For income tax purposes, alimony payments are to be included in the gross income of the payee for income tax purposes and those payments are deductible by the payor. (“Alimony” and “Separate Maintenance Payments” are specifically defined by the Internal Revenue Code and those definitions require, *inter alia*, that there is no liability to make payments beyond the death of the payee and that the payee is not a member of the same household as the payor.) *See* 26 U.S.C. 71. *See also* §§ 62 and 215.

Support payments (including both alimony and child support) are non-dischargeable in

bankruptcy.

The obligation to pay alimony may be generally re-examined by the court at any time and modified, upward or downward, or eliminated altogether.

COMMENTS ON PROPERTY SETTLEMENT ORDERS WHICH INCLUDE AN ORDER TO PAY MONEY

Generally speaking, money which one party is directed to pay the other party in a divorce decree is non-modifiable if it arises out of the division of property aspect of the decree. An obligation to pay money associated with a property settlement may, however, be dischargeable in bankruptcy.

[**NOTE:** Under the new Bankruptcy Abuse Prevention and Consumer Protection Act of 2005, which goes into effect in October, 2005, a debtor may not discharge any “domestic support obligation.” This includes debts for child support and alimony. Also, there is apparently an amendment which applies to other debts to spouses, former spouses or children which are “not of the kind” encompassed by the term “domestic support obligation.” Presumably this extends the presumption of *nondischargeability* feature to debts arising out of property settlements. The new provisions are to be found in the amended versions of 11 U.S.C. § 101(14A), 11 U.S.C. § 523(a)(5), and 11 U.S.C. § 523(a)(15).]

The payee or intended recipient of an order directing a spouse to pay money (arising out of a property division) can be protected by the granting of a security interest in the property that is being awarded to the payor. Is failure to protect the payee with a security interest in the property reversible error? Such was the holding of the South Dakota Supreme Court in *Grode v. Grode*, 543 N.W.2d 795, 803-04 (S.D. 1996). In this case the trial court ordered the husband to pay wife \$108,000 for her interest in the parties’ farm. On appeal, the trial court was found to have committed error because it did not give wife a secured interest in the farm. The Supreme Court noted that otherwise, husband could declare bankruptcy and leave wife in an unsecured position. The court cited and quoted SDCL 25-4-42 as support for the proposition that the trial court had the authority to impose the security interest in the farm.

NON-BINDING ASPECT OF A DECREE

The preceding discussion has been very general in nature. It should be observed that what the parties may label as “alimony” or as another type of payment (such as an attorney fee award or an assignment of debt), may or may not be binding in another forum. For example, in order to be deductible, alimony must meet the Internal Revenue Code definition of alimony and not all designations of alimony by the parties may meet that definition. Similarly, a bankruptcy court may make its own decision as to whether or not a designated award of alimony is really in the nature of “support” and thereby make an accrued arrearage dischargeable if it is not really in the nature of “support”. Similarly, a bankruptcy court may decide that an attorney fee award or an assignment of debt is really a “support” payment and thereby rule that the debt is non-dischargeable. This matter is further discussed, in considerable detail, in the Chapter on “Enforcement.” In particular, this is discussed in the sub-chapter dealing with “Defenses.”

Fausch v. Fausch

At the time of the divorce, the parties had been married 23 years. H, a physician (cardiologist), was 53 years old and earning \$400,000 per year. W was 56 years old and she suffered from type 2 diabetes, hyperthyroidism, and divorce-related depression. H had ownership interests (ranging from 5% to 7%) in a number of business entities relating to Heart Hospital of South Dakota and North Central Heart Institute. Experts testified for both H & W concerning the value of H's interest in these business entities. The trial court accepted the position of W's expert on two valuation issues which H appealed. The trial court also ordered H to pay \$8,000 per month in alimony to W. The South Dakota Supreme Court affirmed the trial court's ruling on all issues in *Fausch v. Fausch*, 2005 SD 63, 679 N.W.2d 748 (May 18, 2005).

As to alimony, W's monthly budget showed a need of \$10,000 per month. Setting off W's income of \$2,000 per month, H was ordered to pay W \$8,000 per month in alimony. The South Dakota Supreme reviewed the common law factors utilized for determining alimony and upheld the trial court's assessment. H argued on appeal that the inclusion of certain items in W's monthly budget was clearly erroneous, namely that W included certain items of debt which H was already paying, that W inappropriately listed a life insurance expense, and also that it was improper to consider W's asserted expense in providing clothing for their adult children. As to the life insurance, W explained that was really health insurance notwithstanding the fact that there was another entry elsewhere in her budget for health insurance. As to the debt, it was pointed out that W was supposed to pay debts that she incurred and that the trial court might be willing to indulge the wife if she were to carry some debt in the future. As to the provision of clothes to their adult children, the Supreme Court stated, "These activities and expenses would be normal for someone with [W's] station and social standing in life." ¶ 19.

"Never go to bed mad. Stay up and fight."

Phyllis Diller

SCHABAUER v. SCHABAUER

South Dakota Supreme Court
2003 SD 146, 673 N.W.2d 274

MEIERHENRY, Justice

[¶1.] Alexander Schabauer (Alex) appeals the alimony provisions in his divorce decree from Terri Schabauer (Terri). We reverse and remand.

FACTS

[¶2.] Alex and Terri were married in 1989 and subsequently had two children, now ages nine and eleven. For most of the marriage, the couple lived in Rapid City where Alex worked as a cardiologist specializing in vascular medicine. Terri served primarily as a homemaker and mother although she did have some intermittent part-time employment as a social worker.

[¶3.] As time went on, the demands of Alex's heavy patient load began to take a toll on his time and his marriage. Alex eventually hired a nurse practitioner to assist him in his work, but training her only increased the demands on his time. Moreover, the time Alex spent with the assistant and his wishes to socialize and spend time with her outside of work caused Terri to suspect that they were having an affair.

[¶4.] In late 2001, the parties separated and Terri commenced a separate maintenance action against Alex. Alex counterclaimed for divorce. The case was tried on September 5 and 6, 2002. On September 26, the trial court entered findings of fact, conclusions of law and a divorce decree granting Terri a divorce on the grounds of extreme cruelty. The parties entered into a shared parenting arrangement under SDCL 25-7-6.14¹ and the divorce decree imposed a net monthly child support obligation on Alex of \$1,473 including tuition for private school and daycare expenses for a YMCA program. The marital property was evenly distributed and each party was awarded assets valued at \$222,330. As part of the property distribution, the marital home was to be sold and the first \$134,335 in net sale proceeds was to be awarded to Terri. Remaining proceeds were to be divided evenly between the parties. The divorce decree also contained the following provision on alimony: "that [Alex] shall pay [Terri] \$2,450.00 a month alimony for twelve years unless [Terri] shall sooner remarry or die[.]" Alex appeals.

ISSUE

[¶5.] Did the trial court abuse its discretion in its alimony award?

[¶6.] Alex argues that the trial court erred in its alimony award. The standards for reviewing alimony awards are well established:

Our standard of review for the trial court's alimony determination is abuse of discretion. "In determining whether there was an abuse of discretion, we ask, 'whether a judicial mind, in view of the law and the circumstances of the particular case, could reasonably have reached such a conclusion.'" We will not set aside the trial court's findings of fact unless they are clearly erroneous.

* * *

A party requesting alimony has the burden of proving [a] need for support and that [a] former

¹ With regard to shared parenting, SDCL 25-7-6.14 provides in pertinent part:

[S]hared responsibility means a parenting plan whereby each parent provides a suitable home for the child of the parties, the court order allows the child to spend at least one hundred twenty days in a calendar year in each home, and the parents share the duties, responsibilities, and expenses of parenting.

spouse "has sufficient means and abilities to provide for part or all of that need." The factors that must be considered in determining the need for, amount and duration of alimony are: (1) length of the marriage; (2) respective earning capacity of the parties; (3) their respective age, health and physical condition; (4) their station in life or social standing; and (5) relative fault in the divorce.

Dejong v. Dejong, 2003 SD 77, ¶¶ 5-7, 666 NW2d 464, 467-68 (citations omitted).

[¶7.] The trial court entered the following findings on the factors applicable to determining alimony:

Length of the Marriage

[¶8.] The court found that the parties were married for thirteen years and were in an exclusive dating relationship for a number of years before that.

Respective Earning Capacity of the Parties

[¶9.] The court found that, as a doctor, Alex generated annual income of a quarter of a million dollars or more. In addition, the court found that Alex was the beneficiary of significant family investments held by his parents over which he had no control. The court declined to treat these investments as marital property subject to division.

[¶10.] The court found that Terri, with her master's degree in social work and her minor in archeology, was capable of earning less than one-fifth of the income earned by Alex. The record reflects that, in the fall of 2001, Terri began working for the State Archeology Research Center for \$9.25 an hour or a gross of approximately \$19,240 per year.

The Age, Health and Physical Condition of the Parties

[¶11.] The record reflects that both parties are approximately thirty-seven years of age. The court found that although both parties had minor ailments or disabilities, they were not factors affecting the alimony award.

The Parties' Station in Life or Social Standing

[¶12.] The court found that the parties lived in a marital home valued at a quarter of a million dollars and that their standard of living had steadily increased with their income. The court found maintenance of Terri's standard of living an important factor in the alimony award observing that, unless a substantial award was made, Terri would be unable to maintain any semblance of her former lifestyle and that her declining lifestyle would be "readily apparent to the children."

The Parties' Relative Fault in the Divorce

[¶13.] Fault was also a consideration in the alimony award. The trial court found Alex at fault in the breakdown of the marital relationship based upon the low priority he placed on the marriage and family life and based upon his inability or unwillingness to change. Although the trial court did not find any infidelity on Alex's part, it did find that, in essence, he abandoned the marriage by his course of conduct and with actions that raised a reasonable suspicion of marital misconduct.

[¶14.] There is ample evidentiary support in the record for all of the trial court's findings of fact. The findings concerning the length of the marriage, the respective earning capacity of the parties, the maintenance of their stations in life or social standing and their relative fault in the termination of the marriage support the award of alimony to Terri. Alex argues that an abuse of discretion is established when Terri's alimony is compared with awards in similar cases. However, when considering alimony awards, we review each case on its own facts and will not reverse absent an abuse of discretion. Johnson v. Johnson, 471 NW2d 156, 162 (SD 1991).

[¶15.] Alex argues that the following finding of fact establishes that the trial court impermissibly

awarded alimony as a form of child support:

Relationship between Alimony and Child Support. This is not a standard or factor which has been addressed by South Dakota decisions directly. However as a matter of fiscal reality, it is an extremely important factor. The statutes pertaining to child support particularly address greater than guideline income by providing that the Court shall set support at an appropriate level considering the actual needs and standards of living of the children. The Court finds that either a significant alimony award or a substantial child support deviation is necessary for [Terri] to meet the childrens' needs and maintain the lifestyle to which they are accustomed and which they will readily enjoy with [Alex]. If granted in terms of child support, the payments would not be tax deductible while as alimony they are a tax (and medicare) deduction for [Alex] and a taxable income to [Terri]. At [Alex's] tax bracket, each thousand dollars of child support has an additional tax and medicare burden of approximately four hundred dollars. Whereas, if the thousand dollars is paid as alimony, [Alex] will not pay the additional four hundred dollars, and [Terri's] taxes will not include medicare or social security and will be at a markedly lower tax rate. The court's analysis of the relative disposable incomes of the parties establishes that the stability of income established by an alimony award will have marked tax advantages for the parties and provide a more evenly balanced and stable basis for adjusting child support during the childrens' minority years. Essentially, the Court finds that the use of alimony allows [Terri] to maintain, not improve, her standard of living and to include the children therein. It seems the far more equitable approach even without consideration of the marked tax savings it generates.

[¶16.] This finding clearly reflects the trial court's linkage of the issues of alimony and child support because of the tax advantages of one award over the other. The linkage of the two issues is also apparent in the trial court's finding that:

Based upon the foregoing and the evidence relating to the cost of living and expenses associated with all aspects of the post divorce lifestyles of the parties, the Court determines that an alimony award of [\$2,450] per month for a period of twelve years is essential for [Terri] to maintain her social standing, standard of living, *and to allow the children to have the same standard of living in both homes.* (emphasis added).

[¶17.] This Court has long cautioned against confusing alimony and child support awards. The issue arose before this Court in *Price v. Price*, 278 NW2d 455 (SD 1979). In *Price*, this Court condemned the inequities in the property division, alimony and child support awards in that case, but did not reverse on the basis of the inequities alone. Rather, the Court proceeded to separately review the property division and child support awards based upon the factors and considerations applicable to each. It was in the context of its review of the child support award that the Court also considered the propriety of the trial court's linkage of alimony and child support in directing that, as each child reached the age of majority, the husband's alimony obligation should be reduced by \$100 per month. On that issue, this Court wrote that:

Although we recognize that awarding alimony and child support payments are in the trial court's discretion, we must stress that alimony and child support are separate concepts. Child support provides for the maintenance of the children while alimony represents a suitable allowance to a party for his/her support. The amount of the alimony award should not be governed by the number of minor children that are in the household, rather the amount should reflect what is required after an analysis of the factors presented in [*Guindon v. Guindon*, 256 NW2d 894 (SD 1977)] for a suitable allowance to plaintiff. Inasmuch as the alimony award fluctuated with the

child support, we must remand the alimony award to the trial court for further consideration based solely upon a suitable allowance to plaintiff independent of the child support consideration. We must also remand the child support award to the trial court for similar reasons, i.e., it appears that the trial court did not primarily consider the maintenance of the minor children in setting the amount of child support at \$100 per month per minor child and then, in the alternative, set the amount at \$50 per month per minor child accompanied with decreases in alimony of \$100 per month as each child reached the age of majority. *Each question must be considered separately*, and defendant's parental responsibility to provide for the maintenance of his children on the basis of the *Guindon* factors should not be interwoven with his marital obligation to plaintiff to provide a suitable allowance for her support.

Price, 278 NW2d at 458-59 (some citations omitted)(emphasis added). *See also Watson-Wojewski v. Wojewski*, 2000 SD 132, ¶ 21, 617 NW2d 666, 671 (on claim that part of child support award was de facto alimony, held that the child support statutes do not authorize an alimony windfall contained in the rhetoric of child support).

[¶18.] The alimony and child support awards here violate the principles set forth in *Price*. The amount of Terri's alimony should not have been governed by the presence of children in her household or their needs and standard of living. Rather, the amount should have reflected what was required for a suitable allowance to *Terri* based upon an analysis of the factors applicable to awarding alimony. Similarly, the trial court did not primarily consider the maintenance of the children or their actual needs and standard of living in setting Alex's child support obligation. See SDCL 25-7-6.9 (where parents' combined income is above child support schedule, establishment of support obligation must reflect consideration of children's actual needs and standard of living). Alimony and child support must be considered separately, and Alex's parental responsibility to provide for the maintenance of his children on the basis of the factors applicable to setting child support should not have been interwoven with his marital obligation to provide a suitable allowance for Terri's support. Compounding the problem here was the trial court's focus on the tax considerations involved in alimony and child support awards. Yet, tax considerations are not a recognized factor in awarding alimony or child support.

[¶19.] Terri argues that this Court's recent decision in *Peterson v. Peterson*, 2000 SD 58, 610 NW2d 69 links the issues of child support and alimony. In *Peterson*, this Court held that a recipient spouse's alimony must be included as part of his or her income and must be deducted from the payor spouse's income in calculating child support according to the statutory guidelines contained in SDCL ch 25-7. This is far different than increasing alimony as a form of child support because of tax considerations as was done here. In addition, our acceptance of the linkage or combination of alimony and child support would actually make compliance with *Peterson* more difficult. Courts would be required to determine the portion of a combined alimony/child support award that should be considered as income to the recipient spouse and as a deduction by the payor spouse in calculating child support. Use of the total alimony award containing sums actually intended for the support of the children would falsely inflate the income of the recipient in the child support equation in violation of the economic realities stressed by the dissent. Thus, the dissent's advocacy of linked or combined alimony/child support awards leads to potential results that are administratively problematic.

[¶20.] Another administrative problem posed by the linkage of alimony and child support arises from the role fault plays in the alimony determination. As previously set forth, the parties' relative fault in the termination of the marriage is an appropriate factor to consider in awarding alimony. *Dejong, supra*. It is not, however, an appropriate factor to consider in awarding child support. The obligation to support a child is not premised on one party or the other's fault in the events leading to the termination of the marriage. Linking or combining alimony and child support in the same award would permit the issue of

fault to creep into the child support determination. This is not acceptable.

[¶21.] Based upon the foregoing, the alimony and child support awards must be reversed and remanded for reevaluation in conformity with *both Price and Peterson*. On remand, the trial court should calculate a suitable allowance for alimony for Terri independent of any child support consideration and based *solely* upon the factors applicable to determining alimony. *Price, supra*. Once alimony is determined, the trial court must calculate child support in accord with the applicable guidelines and statutory requirements with appropriate adjustments to the parties' incomes for the amount of alimony in accord with *Peterson, supra*. The trial court's reevaluation must be based upon the appropriate factors applicable to the particular award under consideration.

Appellate Attorney's Fees

[¶22.] Terri's counsel has filed a motion for an award of appellate attorney's fees accompanied by an itemized statement of costs incurred and legal services rendered per *Malcolm v. Malcolm*, 365 NW2d 863 (SD 1985). The motion is denied.

[¶23.] Reversed and remanded.

[¶24.] GILBERTSON, Chief Justice, and ZINTER, Justice, concur.

[¶25.] SABERS, Justice, dissents.

[¶26.] KONENKAMP, Justice, disqualified.

[The dissenting opinion of Justice Sabers is omitted.]

Following is the author's summary of the *Schabauer* decision which was utilized in his annual ABA report:

In making an alimony award, it is reversible error for trial court to consider child support issues and tax considerations, according to *Schabauer v. Schabauer*, 2003 SD 146, 673 N.W.2d 274.

In this divorce case, the husband was a cardiologist earning more than \$250,000 a year and the wife served primarily as a homemaker and mother. The marital property was divided evenly. The parties entered into a "shared parenting agreement" for their two children under SDCL 25-7-6.14, which permits the re-calculation of child support when the children spend at least 120 days in calendar year in the home of each parent. This yielded a child support obligation for husband in the amount of \$1,473 per month. ¶¶ 4 & 9. When it came time to decide alimony, the trial court ordered husband to pay \$2,450 per month for 12 years or until wife dies or remarries. The trial court entered findings which were in accordance with the common law factors followed in South Dakota for the determination of alimony awards. ¶¶ 7 - 13. But, the trial court also stated, *inter alia*, "The Court finds that either a significant alimony award or a substantial child support deviation is necessary for [Terri] to meet the childrens' needs and maintain the lifestyle to which they are accustomed and which they will readily enjoy with [Alex.] If granted in terms of child support, the payments would not be tax deductible while as alimony they are a tax (and medicare) deduction for [Alex] and taxable income to [Terri]. At [Alex's] tax bracket, each thousand dollars of child support has an additional tax and medicare burden of approximately four hundred dollars. Whereas, if the thousand dollars is paid as alimony, [Alex] will not pay the additional four hundred dollars and [Terri's] taxes will not include medicare or social security and will at a markedly lower tax rate. The court's analysis ... will have marked tax advantages for the parties and provide a more evenly balanced and stable basis for adjusting child support during the childrens' minority years. Essentially, the Court finds that the use of alimony allows [Terri] to maintain, not improve, her standard of living and to include the children therein. It seems the far more equitable approach even without consideration of the marked tax savings it generates." ¶ 15.

The South Dakota Supreme Court reversed, in a 3-1 decision. Justice Sabers dissented. Justice Konenkamp was disqualified from participating. The majority opinion was authored by Justice Meierhenry and concurred in by Chief Justice Gilbertson and Justice Zinter.

On appeal, husband complained that the alimony award was excessive when compared with alimony awards

made in similar cases in South Dakota. The South Dakota Supreme Court rejected this argument, holding, “when considering alimony awards, we review each case on its own facts and will not reverse absent an abuse of discretion.” ¶ 14.

The Court however reversed the determination of alimony, relying upon a 1979 decision of the Court which holds that alimony and child support must not be linked. The Court quoted, at length, part of the opinion from the 1979 case, with approval. Part of that quoted part states, “Although we recognize that awarding alimony and child support payments are in the trial court’s discretion, we must stress that alimony and child support are separate concepts. Child support provides for the maintenance of the children while alimony represents a suitable allowance to a party for his/her support. The amount of alimony award should not be governed by the number of minor children that are in the household, rather the amount should reflect what is required after analysis of the factors [which had been previously set forth by the South Dakota Supreme Court]... Each question must be considered separately, and defendant’s parental responsibility to provide for the maintenance of his children on the basis of the [alimony] factors should not be interwoven with his marital obligation to plaintiff to provide a suitable allowance for her support.” ¶ 17. The opinion in *Schabauer* goes on to state, in the following paragraph, ¶ 18, “The amount of Terri’s alimony should not have been governed by the presence of children in her household or their needs and standard of living. Rather, the amount should have reflected what was required for a suitable allowance to Terri based upon an analysis of the factors applicable to alimony.”

As to the trial court’s effort to structure the payments so as to gain a favorable tax advantage, the Supreme Court said, “Compounding the problem here was the trial court’s focus on the tax considerations involved in alimony and child support awards. Yet, tax considerations are not a recognized factor in awarding alimony or child support.” ¶18.

The Court also discussed another aspect of the “linkage of alimony and child support” in ¶ 20 where it is stated, “... the parties’ relative fault in the termination of the marriage is an appropriate factor to consider in awarding alimony ... It is not, however, an appropriate factor to consider in awarding child support... Linking or combining alimony and child support in the same award would permit the issue of fault to creep into the child support determination. This is not acceptable.”

The trial court was instructed, upon remand to calculate the alimony award first, in accordance with the holding in *Peterson v. Peterson*, 2000 SD 58, 610 N.W.2d 69. “Once alimony is determined, the trial court must calculate child support in accord with the applicable guidelines and statutory requirements with appropriate adjustments to the parties’ income... in accord with *Peterson*.” ¶ 21. (*Peterson* requires that the alimony award must be deducted from the payor’s income and added to the recipient’s income in computing the payor’s proportionate share of the parties’ combined monthly support obligation under SDCL 25-7-76.2.)

The Supreme Court also suggested that SDCL 25-7-6.9, which addresses situation where the parties’ combined net monthly is above the schedule in SDCL 25-7-6.2, would be the appropriate tool for the trial court to utilize in order to consider “the maintenance of the children or their actual needs and standard of living.” ¶18.

Editor’s Notes: (1) What the trial court attempted to do in this case is exactly what many parties agree to do in the process of settling cases. In those situations, the tax ramifications give the parties “room to negotiate” because husband may offer to pay more in the way of alimony, with a reduction in child support and with the accompanying tax breaks, than he would otherwise agree to pay. And, wife would likewise be agreeable to receiving more money overall, regardless of the fact a greater portion of the payment is labeled alimony and will be considered as income for her. This case does not alter the ability of the parties to so agree. (2) Part of the problem in this case appears attributable to the (somewhat complicated) cross credit mechanism found in SDCL 25-7-6.14 which may be triggered when the children spend at least 120 days in the home of each parent per calendar year. Apparently the use of the cross credit under SDCL 25-7-6.14 yielded an inequitable figure for the wife in this case and the trial court attempted to compensate accordingly through an enhanced alimony award. It should be noted that the use of the cross credit of SDCL 25-7-6.14 is not mandatory – SDCL 25-7-6.14 states, “In a shared responsibility situation, unless the parties agree otherwise and the agreement is approved by the court, the court *may*, if deemed appropriate under the circumstances, order a shared responsibility cross credit.” (emphasis on the word “may” supplied.) Also, as the opinion in *Schabauer* indicates, child support in “off the chart” cases may be adjusted accordingly under the authority found in SDCL 25-7-6.9.

NOTES

1. General alimony award of \$1,750 per month reversed due to trial court's consideration of child-related expenses and also due to lack of findings regarding husband's ability to pay. Rehabilitative alimony reversed because of lack of limitation as to duration. In *Lovejoy v. Lovejoy*, 2010 SD 39, ___ N.W.2d ___, the trial court awarded wife general alimony of \$1,750 per month and rehabilitative alimony of \$500 per month. The SD Supreme Court reversed and remanded both awards of alimony. The trial court's determination of general alimony did not exclude child-related expenses as required under *Schabauer v. Schabauer*, 2003 SD 146, and was further flawed because it did reflect how the court determined that husband had the "ability to pay" this amount. The award of rehabilitative alimony was flawed because it did not have a limitation as to duration.

2. Alimony award may not be based upon "equalization of income approach." Furthermore, child support considerations should not enter into alimony decision (meaning the court should consider *only* spouse's expenses, not combined with children's expenses), and that the computation of child support must be made *after* alimony decision with proper accounting for alimony determination (add as income to recipient and subtract from income of payor.) . In *Haanen v. Haanen*, 2009 SD 60, , 769 N.W.2d 836, the trial court awarded W supportive alimony of \$400 per month. In doing so, the court looked at W's proposed budget (which included expenses for the children), computed child support and then subtracted the child support from W's budget. Then, comparing the net incomes of H and W, the court awarded W supportive alimony in an amount that was approximately half of the difference. The SD Supreme Court reversed and remanded both the alimony and child support awards. In connection with the trial court's methodology of giving W half of the difference between the parties' net incomes, the Court held, "Although some jurisdictions allow equalization of income under certain circumstances as a factor in awarding alimony, South Dakota law does not... The purpose of alimony is not to equalize incomes but rather to support the needs and standard of living of the spouse." ¶ 17-18. This opinion also reminds us that children's expenses should not enter into the alimony determination and that child support must be computed *after* the alimony determination, *not before*. Furthermore, in the computation of child support, the alimony award shall be considered as income to the recipient and subtracted from income for the payor in the process of computing net monthly incomes. This decision is unanimous with opinion written by Justice Meierhenry.

3. Consideration of husband's prospective inheritance upheld as a proper consideration supporting alimony award in favor of wife. In *Clark v. Clark*, 2008 SD 59, 753 N.W.2d 423, husband appealed a permanent alimony award of \$650 per month. At the time of separation husband had been making \$42,000 per year but he subsequently lost his job for non-performance. He had an annual income of only \$10,739 at the time of the divorce. There was "fault" in the nature of adultery in this case. Husband had been having an extramarital affair with a woman who "was murdered by her husband. As a result, law enforcement extensively interviewed both [husband] and [wife] concerning the intimate details of their lives. The murder and the affair also received extensive media coverage." The alimony award of \$650 per month was designed primarily to enable wife to make the monthly mortgage payments for the house. The parties' property was divided largely by agreement, with wife receiving 61% of the property. Husband's mother died prior to the divorce trial, but the trial court did not consider his prospective inheritance in the division of property. The trial court did, however, consider husband's prospective inheritance as a factor supporting the alimony award. The trial court also considered husband's "malingering" in connection with his "ability to pay" alimony. The SD Supreme Court affirmed the trial court's determination as to alimony. With respect to the trial court's consideration of

husband's prospective inheritance as a factor supporting the alimony award, the South Dakota Supreme Court stated in footnote e, "Although the circuit court considered the prospective inheritance under the financial condition standard, we see nothing improper about that consideration. Indeed the parties' respective financial condition after the property division is a proper consideration in determining spousal support." The Court also rejected husband's argument that the trial court improperly considered the children's needs with the spouse's needs in determining alimony, thereby violating the rule set forth in *Schabauer v. Schaubauer*, 2003 SD 146, 673 N.W.2d 274.

C. Hybrid Forms of Alimony

1. Lump Sum Alimony

BLARE v. BLARE

Supreme Court of South Dakota, 1981.

302 N.W.2d 787.

* * *

As noted above, however, the divorce decree directed appellee to pay, by way of property settlement, child support for Emily and Sally Blare and alimony in the sum of \$700.00 per month for a period of 159 months or until the total sum of \$111,300.00 has been paid; of this amount, \$200.00 of each payment was designated as child support, and an additional \$200.00 was allocated as alimony. That was a gross sum award. In *Holt v. Holt*, *supra*, we held that when a gross or lump sum is allowed the wife as alimony, finality attaches, and the fact that the court chooses to make it payable in installments over a fixed period (usually for the benefit of the payor) does not destroy its finality or alter the rule. In *Holt*, we quoted with approval from *Ziegenbein v. Damme*, 138 Neb. 320, 323, 292 N.W. 921, 923 (1940), as follows:

'Obviously, the purpose of both the court and the parties, in providing for or in accepting a gross allowance of alimony, is to define and fix with finality the scope of the rights and the obligations of the parties.... (I)t is our view that an unqualified allowance in gross, in a divorce decree, whether payable immediately in full or periodically in installments, and whether intended solely as a property settlement or as an allowance for support, or both, is such a definite and final adjustment of mutual rights and obligations as to be capable of a present vesting and to constitute an absolute judgment, and the court cannot subsequently modify the amount thereof.' 84 S.D. at 674, 176 N.W.2d at 53.

Since the judgment provided for payment of a gross sum to appellant payable in installments, it constituted a final judgment that cannot be modified.

NOTES

1. **Agreement that 7 year award of alimony is "non-modifiable" is not sufficient to qualify as a "lump sum" award and is, therefore, subject to termination upon W's remarriage.** *Oman v. Oman*, 2005 SD 88, 702 N.W.2d 11. Parties agreed at time of divorce that husband should pay wife \$429 per month in alimony for a seven year period. The agreement provided, "It is specifically understood by the parties that the alimony provided for herein is non-modifiable by either party, as to the amount and duration, for so long as alimony is ordered to be paid." Wife remarried approximately three years later and husband quit paying

alimony. Wife initiated contempt proceeding against husband. Husband filed motion to terminate alimony based upon wife's remarriage. The trial court ruled for wife, finding that the parties intended for alimony to continue in the event of wife's remarriage. The South Dakota Supreme Court reversed in *Oman v. Oman*, 2005 SD 88, 702 N.W.2d 11, a 4-0 opinion authored by Justice Meierhenry. The Supreme Court held, *inter alia*, that Wife's argument that this alimony award is in the nature of a non-modifiable "lump sum" award fails because there is no mention of "lump sum" in the agreement, nor is there any specification of a gross amount payable in installments. Furthermore, there is nothing in the agreement which indicates that the alimony award is connected with or in lieu of a property settlement. (¶¶ 11-12)

2. Premarital assets protected by antenuptial agreement can not be the basis for an award of lump-sum alimony. (But this case illustrates a creative request for lump sum alimony.) In *Walker v. Walker*, 2009 SD 31, 765 N.W.2d 747, H and W were both in their mid-40s when they married. Both had been previously married. They entered into an antenuptial agreement which protected over \$900,000 in premarital assets owned by W. The agreement purported to waive alimony and attorney fees. H & W remained married 11 years. H was in a motorcycle accident 8 years after the marriage, sustaining serious injuries. H was paralyzed from mid-chest down. H sought a lump sum alimony award of at least \$400,000 which could be utilized to secure payment of his needs for the rest of his life. The trial court denied H's alimony request and the SD Supreme Court affirmed. It would be impossible for W to fund such a lump sum alimony award without utilizing W's premarital assets and those assets are protected by the antenuptial agreement. Without consideration of those assets, W does not have sufficient earning capacity to pay alimony to H. The SD Supreme Court did reverse and remand the trial court's denial of attorney fees to H, holding that attorneys fees incurred in connection with an alimony request may not be waived in an antenuptial agreement (just as alimony itself cannot be waived in an antenuptial agreement). The Court also awarded H \$2000 in appellate attorney fees. The decision is unanimous with Justice Meierhenry authoring the opinion.

C. Hybrid Forms of Alimony

2. Rehabilitative, Reimbursement, & Restitutional Alimony

NOTES

1. The student should review the portion of the *Saint-Pierre* decision found earlier in this book.
2. Penelope and Donald were married following the conclusion of Donald's first year in medical school. Penelope had earned a Bachelor's degree in education and she earned the bulk of the family's income during the remainder of Donald's medical training and residency. Nineteen years after their marriage, they separated. In the divorce proceeding the trial court found that because Penelope had quit working in her profession after the marriage, she had suffered a "depreciation in human capital." Accordingly, she was awarded \$50,218 in a lump sum as restitutional alimony and rehabilitative alimony of \$72,000 payable over three years at \$24,000 per year. Penelope appealed claiming the award was "woefully inadequate" in light of Donald's demonstrated earning capacity of \$145,000 per annum. The trial court had

accepted Donald's testimony that he intended to give up his lucrative practice as a pathologist and move to a third world country to become involved with primary patient care. Result on appeal? *See Kelley v. Kirk*, 391 N.W.2d 652 (S.D. 1986).

BRADEEN v. BRADEEN

Supreme Court of South Dakota, 1988.
430 N.W.2d 87.

MORGAN, Justice.

Nancy E. Bradeen (Nancy) and James B. Bradeen (James) were granted a divorce on May 29, 1987. James appeals only that portion of the decree regarding rehabilitative alimony and the partial award of attorney fees.

The parties had been married for approximately twenty-two years. At the time of divorce, James was earning approximately \$28,000 per year and Nancy was earning less than \$5,000, her wages being fixed at \$3.80 per hour. By stipulation of the parties, accepted by the court, the total assets of the parties were distributed, 58% to James and 42% to Nancy. Nancy is 43 years of age and James is 46 years of age. Each has a high school education. James attended two years of college. Both suffer from minor medical ailments which are not disabling. Both are employable. The trial court noted that Nancy had undergone a great decrease in her status in life due to separation of the parties and that she lives on her income and support payments. The trial court found the parties to be of equal fault in the divorce and granted divorce to each.

The trial court ordered James to pay rehabilitative alimony in the amount of \$500 per month for eleven years, then to decrease by \$100 for each of the next four years, to terminate at the conclusion of the fifteenth year.

* * *

Three issues are raised on appeal. (1) Whether the trial court abused its discretion in awarding rehabilitative alimony absent a showing of foregone opportunities....

* * *

We note initially that James does not dispute that rehabilitative alimony may have application to nonprofessional persons. In fact, James points out that rehabilitative alimony was awarded to a nonprofessional whose work career was displaced by marriage in *Booth v. Booth*, 354 N.W.2d 924 (S.D.1984). For a similar holding *see Hautala v. Hautala*, 417 N.W.2d 879 (S.D.1988). The crux of James' argument is that there is no showing in this case that the marriage displaced Nancy's acquisition of job skills or occupational status.

"The amount and length of alimony payments is ... left to the discretion of the trial court. SDCL 25-4-41." *Guindon v. Guindon*, 256 N.W.2d 894, 898 (S.D.1977). *See Martin v. Martin*, 358 N.W.2d 793 (S.D.1984); *Booth, supra*. This court will not disturb an award of alimony unless it clearly appears that the trial court abused its discretion. *Baltzer v. Baltzer*, 422 N.W.2d 584 (S.D.1988). Whether alimony, generally, is warranted, depends upon the trial court's consideration of the length of the marriage; the respective earning capacity of the parties; their respective financial condition after the property division; their

respective age, health and physical condition; their station in life or social standing; and the relative fault in the termination of the marriage. *Arens v. Arens*, 400 N.W.2d 900 (S.D.1987); *Hanks v. Hanks*, 296 N.W.2d 523 (S.D.1980). Likewise, "the decision whether to award 'reimbursement' or 'rehabilitative' alimony, and, if so, in what amount and for what length of time, is committed to the sound discretion of the trial court." *Saint-Pierre v. Saint-Pierre*, 357 N.W.2d 250, 262 (S.D.1984) (emphasis added). The guidelines the trial court should look to when awarding rehabilitative or reimbursement alimony include "the amount of supporting spouse's contributions, his or her foregone opportunities to enhance or improve professional or vocational skills, and the duration of the marriage following completion of the nonsupporting spouse's professional education." *Id.*

The purpose of rehabilitative alimony is to put the supporting spouse in a position to likewise upgrade their own economic marketability. *See Hautala, supra*; *Tesch v. Tesch*, 399 N.W.2d 880 (S.D.1987); *Martin, supra*; *Saint-Pierre, supra*; *Booth, supra*. As *Saint-Pierre* emphasized, we must not put the trial courts to the task of setting awards with mathematical precision; rather, they must be free to set such awards based on the peculiar facts and circumstances of each case. We cannot say, for example, that an award of six months is too short a period of time, and, conversely, several years is too long. Such rigid parameters would be to tie the equitable arms of the trial court. If an initial award of alimony is justified by the trial court and it finds evidence in the record, we are not going to disturb the same because the trial court, in good faith, has miscategorized the type of alimony it has awarded. Categories (reimbursement and rehabilitative) are to be used as guidelines by the trial court for setting the method and defining the purpose of such payments. Misapplication of a guideline is not reason for reversal except in extreme examples of an abuse of discretion. In *Hautala*, we noted that "the issue is not the name placed on alimony, but whether the record supports the award." 417 N.W.2d at 882.

The trial court in this instance entered lengthy findings of fact covering all elements of property division, alimony, and rehabilitative alimony. In the trial court's oral findings, it specifically found

[Nancy] maintained and did those things [faithful homemaker and mother] while he was able to, over the years earn a better income, until he's reached the income of \$28,000 a year. She's now trying to start a career and earning less than \$5,000 a year.... The court should provide that a spouse who has served in the capacity that Mrs. Bradeen has served so long, should be given an opportunity to refresh and enhance her job skills so she can earn her own living. It is difficult to do that when you are still raising a child and attempting to maintain a living. So, rather than grant permanent alimony here, I am going to grant rehabilitative alimony. I am going to grant it over a long period of time, otherwise I'd be strapping Mr. Bradeen with an unreasonable amount of money to pay, and I think it will take quite a long time for Mrs. Bradeen to help rehabilitate herself, so she can earn a decent living.... Her contribution wasn't in the form of money, but in the form of being a homemaker and mother.... When someone gets married, they don't plan on being divorced someday, so in the strict sense, Mrs. Bradeen did not forego opportunities to enhance her professional or vocational skills.

We will not assume that a woman who has devoted more than twenty years of her life to being a wife, mother, and homemaker, would not have enhanced her employment skills had she remained a single person. This leads to the obvious conclusion that opportunities were foregone. After setting the rehabilitative award, the trial court said: "I anticipate that in that term of years Mrs. Bradeen will be able to increase her skills and take whatever necessary courses and training she needs to take so she's able to support herself at that

time." It is obvious that the trial court gave careful and thorough thought to this award and we find no abuse therein.

* * *

Affirmed in all respects.

WUEST, C.J., and SABERS, J., concur.

MILLER, J., concurs in result.

HENDERSON, J., dissents.

CONCURRING OPINION

MILLER, Justice (concurring in result).

I concur in the result of the majority decision.

I cannot blindly embrace the majority's statement that "Categories (reimbursement and rehabilitative) are to be used as guidelines by the trial court for setting the method and defining the purpose of such [alimony] payments. Misapplication of a guideline is not reason for reversal except in extreme examples of an abuse of discretion." (Emphasis added.)

Admittedly, we did note in *Hautala v. Hautala*, 417 N.W.2d 879, 882 (S.D.1988), that "... the issue is not the name placed on alimony, but whether the record supports the award." However, that phrase was prefaced by the caveat "we urge the use of careful and consistent language...."

Subsequent to *Hautala*, we handed down *Baltzer v. Baltzer*, 422 N.W.2d 584 (S.D.1988). In special writings, Justice Henderson and I reviewed the history of rehabilitative and reimbursement alimony cases in this court. In my special writing (which was joined by Justice Morgan), I opined that a trial court errs in failing to properly designate a special type of alimony it intends to award and in failing to make the appropriate findings to support such award. I still hold to such view.

In this case the trial court awarded alimony, improperly characterizing it as rehabilitative alimony. However, as the majority states, it did make findings which supported the award. *Under the specific circumstances of this case*, I cannot find that the trial court abused its discretion.

* * *

WILSON v. WILSON

Supreme Court of South Dakota, 1988.
434 N.W.2d 742 (S.D. 1989).

MILLER, Justice.

William Wilson (Bill) and Karon J. Wilson (Karon) were granted a divorce in 1987. Bill appeals provisions of the divorce decree relating to the property division and alimony award. We reverse and remand.

Karon and Bill were married in 1976. After their marriage the parties lived in various locations until settling in Missouri where their daughter (approximately age 7 at the time of the divorce) was born. In 1982 while still residing in Missouri, the parties purchased an acreage (including a farmhouse and outbuildings) near Viborg, South Dakota. Karon moved to the acreage while Bill continued working in Missouri where he intended to stay until an anticipated layoff would permit him to join his family. However, Bill subsequently secured employment in Montana and later in Pierre, South Dakota, and was able to make only periodic visits to Viborg. By the end of the marriage, Bill and Karon had lived apart for approximately five years.

At the time of the divorce, Bill was still living and working in Pierre, South Dakota, where he had purchased and furnished a trailer and was essentially maintaining his own household. Karon was living on the acreage where she was attempting to develop a small herd of livestock which had not yet earned a profit. Karon did have a part-time job where she earned approximately \$100 per month. Bill's net pay per month was \$1,900.

According to the trial court's findings of fact and conclusions of law, Karon contributed 40 percent and Bill 60 percent toward accumulation of marital assets. As will be noted later, the trial court assigned conflicting values to the marital assets. Bill was awarded property valued at \$9,480 and was also made responsible for payment of the remaining \$7,500 balance owed on the acreage. Karon was awarded total property valued at \$42,923.82. Out of this award, \$17,709.53 was considered Karon's equitable share of the property division. The remaining property awarded to Karon was divided into different categories of alimony: \$7,200 was designated "rehabilitative alimony"; and, \$18,014.29 was designated "permanent or restitutional alimony."

* * *

ISSUE TWO

Whether the trial court abused its discretion in awarding Karon "rehabilitative alimony" and "permanent or restitutional alimony?"

This court will not disturb an award of alimony unless it clearly appears that the trial court abused its discretion. *Henrichs v. Henrichs*, 426 N.W.2d 569 (S.D.1988); *Baltzer v. Baltzer*, 422 N.W.2d 584 (S.D.1988). Bill argues that the trial court abused its discretion in awarding Karon rehabilitative alimony because there was no showing that she relinquished her occupational status or job skills as a result of the marriage. Bill further contends that it was an abuse of discretion to award Karon restitutional alimony because there was no showing that she contributed to Bill's training or education.

Bill's arguments require that we set forth the distinctions between the various categories of alimony

awarded by the trial court in this matter. We must also delineate the appropriate factors to be considered in awarding each category of alimony.

Generally, alimony is an allowance for support and maintenance, having as "... its sole object the provision of food, clothing, habitation, and other necessities for the support of a spouse." 24 Am.Jur.2d Divorce and Separation s 520 (1983). *Rehabilitative alimony* is awarded to enable a former spouse to refresh or enhance the job skills he or she needs to earn a living. *Hautala v. Hautala*, 417 N.W.2d 879 (S.D.1988). The purpose of rehabilitative alimony is to put a spouse in a position to upgrade his or her economic marketability. *Bradeen v. Bradeen*, 430 N.W.2d 87 (S.D.1988). The purpose of *restitutional alimony* (also called reimbursement alimony) is to reimburse one spouse's contribution during the marriage to the advanced training or education of the other spouse. *Saint-Pierre v. Saint-Pierre*, 357 N.W.2d 250 (S.D.1984).

Certain factors must be considered by a trial court in making a general award of alimony: the length of the marriage, earning capacity of the parties, financial condition after the property division, age, health and physical condition of the parties, the parties' station in life or social standing, and fault. *Henrichs, supra*; *Baltzer, supra*. Additional factors must be taken into consideration in awarding rehabilitative alimony or restitutional alimony. These factors are outlined in *Saint-Pierre*, 357 N.W.2d at 262:

... the trial court should consider all relevant factors, including the amount of the supporting spouse's contributions, his or her foregone opportunities to enhance or improve professional or vocational skills, and the duration of the marriage following completion of the nonsupporting spouse's professional education.

In this instance, we perceive three problems with the alimony awarded to Karon by the trial court. First, Karon was awarded "rehabilitative alimony" with only passing consideration given to the factor of relinquishment of professional or vocational skills. Second, a portion of the alimony awarded to Karon was categorized as both "permanent or restitutional alimony." As noted above, alimony and restitutional alimony involve different purposes and require consideration of separate factors to support the award. Third, Karon was awarded restitutional alimony with no consideration given to the factor of Karon's contribution to Bill's advanced training or education or to the factor of the duration of the marriage following Bill's completion of his education. Therefore, we conclude that the alimony awarded to Karon by the trial court must be totally reconsidered and supported by appropriate findings as to each category of alimony awarded.

In reaching this conclusion we are mindful of the past reluctance of this court to interfere with an award of alimony because it has been miscategorized or because the category of alimony awarded is not supported by applicable findings. In *Hautala*, 417 N.W.2d at 882, we stated, "... the issue is not the name placed on alimony but whether the record supports the award." Recently in *Bradeen*, 430 N.W.2d at 89, we said, "[c]ategories (reimbursement and rehabilitative) are to be used as guidelines by the trial court for setting the method and defining the purpose of such payments. Misapplication of a guideline is not reason for reversal except in extreme examples of an abuse of discretion."

In both *Hautala* and *Bradeen*, however, this court was able, through careful analysis of the record, to identify the category of alimony the trial court intended to award despite its miscategorization. Further, we were able to find facts in the record justifying the award of the category of alimony intended. Here, the record is devoid of facts supporting an award of restitutional alimony and the facts supportive of an award of rehabilitative alimony are minimal. Accordingly, it is necessary to remand this matter for further consideration.

* * *

The divorce decree is reversed and remanded to the trial court for further consideration of the property division and alimony award.

WUEST, C.J., and MORGAN, J., concur.

HENDERSON and SABERS, JJ., concur specially.

RYKEN v. RYKEN

Supreme Court of South Dakota, 1989.

440 N.W.2d 300.

HENDERSON, Justice.

PROCEDURAL BACKGROUND

Appellee Patti Rae Ryken (Patti Rae) commenced this divorce action in December 1985 after three and one-half years of marriage to appellant Larry L. Ryken (Larry). Larry also sought divorce, by counterclaim. The circuit court for Yankton County granted divorce to both parties on the grounds of irreconcilable differences, and also granted Patti Rae divorce for extreme cruelty. The trial court divided the parties' property, and awarded Patti Rae both \$25,000 in permanent alimony and \$625 per month for forty-eight months as rehabilitative alimony. She also was awarded \$6,500 in attorney's fees and \$4,000 in appraiser's fees. Larry appeals (Appeal No. 16213), alleging that the trial court erred regarding division of property and its awards of rehabilitative alimony, attorney's fees, and appraiser's fees. In turn, Patti Rae argues, through notice of review (Appeal No. 16224), that the trial court's awards of attorney's, accountant's and appraiser's fees were too low.

We reverse the trial court's awards of property, alimony, and fees, holding: 1) that rehabilitative alimony was unjustified on this record; 2) that the trial court's property division was an abuse of discretion; and, 3) that Patti Rae's awards of attorney's, appraiser's, and accountant's fees were inadequate.

FACTS

Patti Rae and Larry met in the Fall of 1981. She had been married twice before. Her first marriage, of twelve years' duration, ended in 1981 and produced three children. Her second marriage, also in 1981, lasted a month. Larry, widowed in October 1981, also had three children, whose acquaintance with Patti Rae's children brought the parties together. They married on June 15, 1982, after Patti Rae signed an antenuptial agreement by which both parties gave up any claim on the personal or real property of the other. This agreement made no provision for Patti Rae's support in any form. It also stated that both owned real property, a patent untruth.

At the time of the marriage, Patti Rae owned only an inexpensive car, her clothing, and personal effects. Her education consisted of one year of college, and her work history was limited to part-time sales positions. Her first husband paid her \$300 per month in child support. Larry, on the other hand, was a college graduate and owned, among other things, the Yankton Livestock Company and three-quarters of a partnership in the R & R Cattle Company. The trial transcript contains testimony by Larry which indicated

that his net worth, at the start of the marriage, was roughly 2.5 million dollars although, at another point in the transcript, he estimated his net worth to be one million dollars at that time.

Immediately before and during the marriage, the parties spent money lavishly. He bought a diamond necklace, appraised at \$24,000, and gave it to her to wear. The couple went out for dinner three nights a week, and traveled extensively. Larry's financial records were unreliable, as evidenced by his claim that a check for \$24,090 drawn on a Yankton Livestock account, recorded as an expenditure on "feed for calves" in company records, was actually used to pay an old friend for fifty gold Krugerrand coins. Larry left the running of his household to Patti Rae, who paid the expenses with Larry's money. Her own income was limited to her monthly child support payments, which she used to pay off a \$9,000 debt to her father. She did, however, occasionally work without pay for Yankton Livestock, entertain for business purposes, and accompany Larry on business trips.

Deterioration set into the marriage. Larry physically and verbally abused Patti Rae, apparently motivated by jealousy. In December 1985, she left him. Curiously, Larry's children initially went with her. After she departed, Larry hired a housekeeper, to whom he paid \$175 a week. Prior to her departure, Patti Rae assembled approximately \$4,000 to \$4,500 in cash at their house. She also took various items of furniture, and a 1985 Cadillac registered to Yankton Livestock, which she used regularly. Larry later alleged that she or her friends made off with his fifty Krugerrands, but this she denied. This divorce proceeding followed.

DECISION

I. REHABILITATIVE ALIMONY

The trial court directed Larry to pay \$625 in rehabilitative alimony for 48 months, plus 7% interest on unpaid installments. He argues that the award constitutes an abuse of discretion. We agree.

The factors to be considered in awarding alimony are: 1) The length of the marriage; 2) the respective earning capacity of the parties; 3) their respective financial condition after the property division; 4) their respective age, health, and physical condition; 5) their station in life or social standing; and 6) the relative fault in the termination of the marriage. *Caughron v. Caughron*, 418 N.W.2d 791, 793 (S.D.1988); *Tesch v. Tesch*, 399 N.W.2d 880, 884 (S.D.1987). The marriage here was short in duration (separation in three and one-half years). The parties are both relatively young (Larry was 44 at trial, Patti Rae was 37), and in reasonably good health. Both, during their marriage, lived well and Patti Rae is no worse off regarding employment than she was before. Indeed, the record indicates that she has a part-time sales job at a health food store, as she did at the time of her marriage. She has gone into business for herself, although this business was just breaking even at the time of trial.

There is little indication on this record that rehabilitative alimony is justified. Rehabilitative alimony must be designed to enable a spouse "to obtain the educational skills she needs to fend for herself in life." *Tesch*, 399 N.W.2d at 885. There is no testimony that Patti Rae was seeking any rehabilitation. There was no discussion of educational plans. No findings of fact or conclusions of law support rehabilitation. Her vocational inadequacy can be attributed to her twelve-year first marriage, a liability that cannot be laid at Larry's door. As in *Wilson v. Wilson*, 434 N.W.2d 742 (S.D.1989), the trial court gave little or no consideration "to the factor of relinquishment of professional or vocational skills." *Wilson*, at 745. Even Patti Rae's pleadings and briefs are couched in terms of support, not rehabilitation. At trial, Patti Rae's exhibits showed her monthly income, excluding support from Larry, to be \$750, \$300 of which was child support

from her earlier husband. Her monthly expenses, however, are \$1,670.

The vast disparity in these parties' earning abilities, property holdings, needs, and Patti Rae's financial circumstances might well reflect a support award (which was prayed for), but an award of rehabilitative alimony is not, on this record, supportable. In *Shafer v. Shafer*, 283 S.C. 205, 320 S.E.2d 730 (1984), a rehabilitative alimony award was reversed because there was no factual finding regarding any rehabilitative goal to be served, and the duration bore no reasonable relationship to the wife's educational timetable. Here, no such goal or timetable exists. This award is clearly against reason and evidence, and thus is an abuse of discretion. *Straub v. Straub*, 381 N.W.2d 260, 261 (S.D.1986); *Herndon v. Herndon*, 305 N.W.2d 917 (S.D.1981). We therefore reverse the trial court's award of rehabilitative alimony. We remand for reconsideration of a support award.

II. PROPERTY DIVISION

* * *

Considering the antenuptial agreement first, we agree that the trial court erred in its resolution of this matter. The trial court regarded the agreement as inapplicable to a divorce action. We disagree. Paragraph 5 of the agreement provided that "[t]his contract limits the right of either party to participate in the estate of the other, whether the marriage relation is determined by death or legal proceedings." Divorce actions are legal proceedings. The provision, although artlessly worded, indicates that the agreement could apply in a divorce context. The trial court must determine on remand if the agreement is to be rejected on other grounds.

[A]n antenuptial agreement will be held valid if the prospective spouse can be said to have had adequate knowledge of the nature and extent of the other party's property, either as a result of disclosure by the other party or through the independent knowledge, however acquired, of the prospective spouse, or if the prospective spouse has been adequately provided for by the agreement.

Schutterle v. Schutterle, 260 N.W.2d 341, 348 (S.D.1977). Testimony in this case regarding the circumstances under which the antenuptial agreement was executed was contradictory, accompanied by accusations of nondisclosure of assets. Validity of an antenuptial agreement is to be decided on the basis of the facts of each case. *Schutterle, id.* The decision below did not reach the real questions about this antenuptial agreement. On remand, the trial court must reconsider the evidence, and, if the court deems it necessary, take new evidence. We appreciate the difficulty reconsideration will present for the trial court, as the judge who originally heard this case is now retired.

* * *

MORGAN and MILLER, JJ., concur.

SABERS, J., specially concurs.

WUEST, C.J., concurs in part and dissents in part.

SABERS, Justice (specially concurring).

Although I agree with the majority's disposition of Issues II and III, I cannot agree that the trial court's alimony award constituted an abuse of discretion. Under these circumstances, \$625 per month for

48 months does not constitute an abuse of discretion. *Gibson v. Gibson*, 437 N.W.2d 170 (S.D.1989); *Tate v. Tate*, 394 N.W.2d 309 (S.D.1986); *Temple v. Temple*, 365 N.W.2d 561 (S.D.1985). This is so whether the name placed on the award is support, alimony or rehabilitative alimony. *Hautala v. Hautala*, 417 N.W.2d 879 (S.D.1988).

WUEST, Chief Justice (concurring in part and dissenting in part).

I concur with the majority's disposition of Issues II and III. I do not agree that the trial court's alimony award constituted an abuse of discretion. See *Gibson v. Gibson*, 437 N.W.2d 170 (S.D.1989); *Hautala v. Hautala*, 417 N.W.2d 879 (S.D.1988); *Tate v. Tate*, 394 N.W.2d 309 (S.D.1986); *Temple v. Temple*, 365 N.W.2d 561 (S.D.1985).

NOTE (Creative Use of Restitutional Alimony)

We now have the South Dakota's first reported opinion involving the actual imposition of an alimony award against a wife in favor of the husband. The trial court ordered the wife (a medical doctor) to pay husband (an engineer) \$1,000 per month in "general alimony" until he is 62. Wife was also ordered to pay husband \$400 per month for ten years as "restitutional alimony." Both sides appeal, but the South Dakota Supreme Court affirmed in an unanimous opinion in *DeJong v. DeJong*, 2003 SD 77, 666 N.W.2d 464.

With respect to the "restitutional alimony" award of \$400 per month for 10 years, it appears that it was designed to match husband's commitment to pay back his retirement account some \$ 55,478.46 at the rate of \$403.38 per month for 10 years. Husband had cashed in certain retirement accounts over the course of the marriage, using the money to invest in marital assets and to pay family expenses. Wife argued that this award, characterized as "restitutional alimony" was not justified because "restitutional alimony," which is also called "reimbursement alimony," is designed to reimburse one spouse's contribution to the education or advanced training of the other spouse during the marriage." Here, both parties had obtained an education and husband's retirement money was not utilized for advanced training or education. Wife's argument was rejected with the Supreme Court stating, "However, in reviewing alimony, the classification of the award is not as important as the question whether the record supports the award." ¶ 26.

NEED FOR SHOWING OF "EDUCATIONAL NEED & PLAN OF ACTION"

In *Albrecht v. Albrecht*, 2000 SD 54, 609 N.W.2d 765, wife quit college after her marriage in order to be a co-producer with husband in his new farming and ranching operation. They were married for 10 years. During the divorce proceeding, wife requested "rehabilitative alimony" arguing that she had "postponed her schooling." At the time of the divorce, wife was working as a loan processor at First National Bank in Brookings, SD, earning \$8.75 per hour. The trial court *denied* wife's request for rehabilitative alimony. The SD Supreme Court affirmed on this issue. In reviewing the trial court's denial of "rehabilitative alimony," the SD Supreme Court indicated that its review is the same "abuse of discretion" standard utilized in a general alimony decision. The Court quoted and cited other recent SD cases on "rehabilitative alimony," with the key to this decision being the wife's lack of "testimony to show an educational need or a plan of action to meet that need." (Paragraph no. 25 and 27, 609 N.W.2d at 772-73.) Additionally, the court noted that wife was 31 years old, in good health, employed as a loan processor demonstrating that her "earning capacity has not been reduced and that she will be substantially debt-free as a result of the property division." The Court also adopted the trial court's specific findings that wife's

current employment and earning capacity was at a wage level within her station in life and demonstrative of her self sufficiency. Also, wife was found not to have demonstrated that she needed additional training in order to become self sufficient. (paragraph no. 26, 609 N.W.2d 772.)

A similar result was obtained in *Urban v. Urban*, 1998 SD 29, 576 N.W.2d 873 (S.D. 1998), where the trial court awarded no alimony whatsoever to wife. The parties had been married since 1972, during which time husband ran the family farm. Wife was working at a Burger King Restaurant at the time of the divorce. She had previously had a series of short-term jobs only. On appeal, wife claimed error in the lower court's failure to award her either "general alimony" or "rehabilitative alimony." The South Dakota Supreme Court agreed on the issue of "general alimony," holding that the trial court abused its discretion in failing to make an award of "general alimony." With respect to "rehabilitative alimony," there was no error because of lack of evidence as to any educational need or plan of action by the wife.

MISCELLANEOUS CASES

1. In *Billion v. Billion*, 1996 SD 101, 553 N.W.2d 226 (S.D. 1996), the trial court awarded wife her non-marital property worth \$562,000 and then also awarded her \$332,883 which was approximately 50% of the marital property. Husband was ordered to pay an extrapolated amount of child support [off the chart] and also ordered to pay wife \$600 per month for one year as "rehabilitative alimony." Husband appealed. The only relief given husband on appeal was the elimination of the "rehabilitative alimony." The South Dakota Supreme Court found this to really be an effort to award "ordinary alimony" and it was mis-categorized as "rehabilitative alimony." An award of "ordinary alimony" or *any* alimony in this case would be an abuse of discretion because of the wife's lack of need for financial assistance. *Id.* at 234.

2. Rehabilitative alimony of *only* \$200/month for 36 months was affirmed by the South Dakota Supreme Court in *Dussart v. Dussart*, 546 N.W.2d 109 (S.D. 1996). The court noted that if wife is not self-sufficient in three years, wife can return to court to seek a modification. Justices Miller and Sabers dissented, arguing that the award was miserly and that, under the alimony factors for consideration, an award of *only* \$200/month for 36 months was against reason and evidence. (The dissent also details husband's misconduct, part of which is described as "persistent and unabashed infidelity.")

3. Wife was gainfully employed with her bachelor's degree in business administration. Husband also had only a bachelor's degree, but it was in electrical engineering, a degree which wife argued was "specialized." Wife put forth a plan to obtain a master's degree in business administration to enhance her earning capacity. The trial court found that both husband and wife had equal educational levels, denying wife's request for rehabilitative alimony. The SD Supreme Court affirmed in *Zepeda v. Zepeda*, 2001 SD 101, 632 N.W.2d 48, stating "Had we been sitting as trial judges, we might have given greater weight to the disparity in earnings and awarded some alimony, but under these facts, we cannot say the circuit court abused its discretion." (Paragraph 24 of opinion.) The Court further observed, "While [wife's] plan to enhance her earning capacity is commendable, she has not demonstrated that additional training is required for her to become self-sufficient." (Paragraph 26 of opinion.)

4. **Rehabilitative alimony reversed because of lack of limitation as to duration.** In *Lovejoy v. Lovejoy*, 2010 SD 39, ___ N.W.2d ___, the trial court awarded wife general alimony of \$1,750 per month and rehabilitative alimony of \$500 per month. The SD Supreme Court reversed and remanded both awards

of alimony. The trial court's determination of general alimony did not exclude child-related expenses as required under *Schabauer v. Schabauer*, 2003 SD 146, and was further flawed because it did reflect how the court determined that husband had the "ability to pay" this amount. The award of rehabilitative alimony was flawed because it did not have a limitation as to duration.

5. Many issues addressed in situation where W attended medical school and became a doctor during marriage. In *Hill v. Hill*, 2009 SD 18, 763 N.W.2d 818, H was an electrical engineer when the parties were married. W was a cashier and nurse's assistant when married. During the marriage W went to medical school and became a doctor. At the time of divorce W was making \$285,000 annually and H was making \$65,000-\$70,000 annually. The trial court divided the property by giving H \$55,493 in assets and \$8,000 in debt and by giving W \$19,336 in assets and \$103,160 in debt. The debt assessed to W included her student loans. H sought, but was denied, alimony. There were 3 children born of the marriage. The parties agreed upon joint legal custody with W have primary physical custody. The parties' income was "off the chart." Using the highest line on the chart, \$10,000, H's child support obligation would have been 20% of \$2,477 or \$495.40. The trial court ordered H to pay child support of \$750 per month. On appeal H argued

1) error in setting child support above the charted amount without making findings as to the actual needs and standard of living of the children

2) error to include student loans related to W's medical degree as part of the division of property since the medical degree itself cannot be considered as property subject to division

3) error not to award H permanent alimony

4) error not to award H rehabilitative alimony

5) error not to award H restitutional alimony

The SD Supreme Court agreed with H on his child support argument, reversing and remanding with directions to the trial court to enter specific findings as to the children's needs and standard of living. The SD Supreme Court awarded H \$ 5,000 in appellate attorney fees. The opinion is authored by Justice Meierhenry. The decision is unanimous. The rulings concerning alimony are as follows:

PERMANENT ALIMONY. The trial court did not abuse its discretion in failing to award H permanent alimony. In reviewing all of the relevant factors, the court noted that the fault for the marital break-up was with H.

REHABILITATIVE ALIMONY. Although H generally testified that he wanted to pursue an MBA degree, he did not put forward a specific educational plan and the trial court found, contrary to H's testimony, that H did not show that he could earn more income with an MBA. H did not show that he had sacrificed his career or that he had otherwise missed an educational opportunity in order to enable W's opportunity to go to medical school.

RESTITUTIONAL ALIMONY. After attending medical school in North Dakota, W accepted a residency placement in Michigan. H quit his job of \$54,000/year and the couple moved to Michigan where H cared for the children. During this time, they lived on W's residency income of \$30,000 - \$38,000 per year. To support his claim for "restitutional alimony," H argued that he gave up "potential lost equity" in a house which could have been purchased in North Dakota and also that he gave up growth in his retirement account because he quit work while W concluded her residency program. The trial court found that these theories by H were "speculative and do not support a finding of restitutional alimony." The SD Supreme Court acknowledged H's argument of lost potential equity in a never-purchased home as "novel" but found that the trial court had not abused its discretion.

RESURRECTING ALIMONY AWARDS WHICH DIMINISH TO NOTHING

1. In cases where there is no award of alimony initially, then alimony may not later be imposed through a modification proceeding.¹ This principle was confirmed in *Saxvik v. Saxvik*, 544 N.W.2d 177, 180 (S.D. 1996). The *Saxvik* opinion also confirms the notion that awards of *lump sum* alimony and *reimbursement or restitutional* alimony which have been satisfied are not subject to being reinstated by a trial court. *Id.*

2. In the *Saxvik* case referred to in the previous note, the South Dakota Supreme Court rendered a significant decision concerning the more typical awards of alimony which the court described as *periodic in nature*. *Id.* As to such *periodic alimony*, the termination of such an award "does not bring an end to the jurisdiction of the court to consider whether alimony should be reinstated at a later time if a change in circumstances is demonstrated." *Id.* The Court relied on the statutory authority of SDCL 25-4-41. This new interpretation of the statute by the court serves to repudiate the previously-held belief that once an award of periodic alimony ended, it could not be later reinstated.

3. In the *Saxvik* case, the husband had been ordered to pay Wife \$1500/month alimony at the time of the divorce. Two years later, based on Wife's improved health and earning ability, the trial court entered a modification order requiring an incremental reduction in alimony over a three year period. The alimony was to be completely eliminated on 1/1/97. On appeal, the South Dakota Supreme Court held that the trial court acted appropriately in ordering the incremental reduction, but it had abused its discretion in completely terminating the alimony. The case was remanded for the entry of a continuing award of alimony, without a termination date. The court went on to state that in cases where an award of *periodic* alimony does in fact terminate, the trial court would still retain jurisdiction under SDCL 25-4-41 to later reinstate an alimony award.

4. The *Saxvik* holding was, as discussed in the notes above, limited to cases involving *periodic* awards of alimony. The court specifically noted that the trial court's ability to reinstate an alimony award would *not* be available in cases involving *lump sum* awards of alimony, *restitutional or reimbursement* alimony, and cases where there the divorce court found no basis for an award of alimony to begin with. *Id.* at 180

¹ In *Midzak v. Midzak*, 2005 SD 58, 697 N.W.2d 733, the wife was represented by counsel in her divorce action, but the husband appeared pro se. Husband had a full pension as a result of serving 20 years in the Air Force. In the Rapid City area, husband was unemployed and his only opportunity for employment would be as a common laborer at \$9.50 per hour. He had previously served as an flight controller in Hungary at a salary of about \$81,000 per year. Also, he had the opportunity to relocate to Turkey to again work as a flight controller for a salary of \$100,000 per year. ¶¶ 2-4. The trial court awarded wife a substantial portion of husband's retirement pay (\$570 of the total monthly benefit of \$968.31). As to alimony, the trial court made no award of alimony to wife, but stated, "[husband] currently has only prospective employment, but is currently unemployed therefore alimony cannot be awarded at this time. However [wife] has significant monthly obligations and has far lower earning capacity than [husband]. The Court reserves the right to award alimony to [wife] if [husband] becomes employed." Footnote 3 accompanying ¶ 28. Husband subsequently secured the services of an attorney and took an appeal. This appeal addresses the issue of whether or not the trial court has authority to "reserve" the right to award alimony later where no award is made at the time of the divorce. The Supreme Court of South Dakota affirmed the trial court's action as both appropriate and authorized under South Dakota law. The Court also reaffirmed the holding of *Cameron v. Cameron*, 31 SD 335, 340, 140 N.W. 700, 701-02 which provides that a trial court loses jurisdiction to award alimony where there was "'no basis for an award of alimony to begin with.'" ¶ 26. This situation is not the same as the *Cameron* scenario. "The trial court is without jurisdiction to amend a non-existent alimony award at some point in the future if it denies alimony at the time of the divorce trial and does not expressly reserve the right to award it in the future." ¶ 28. The act of the court in "reserving" the issue is adequate to preserve the court's ability to later impose an alimony obligation. (The South Dakota Supreme Court compared the act of "reserving" to the situation recognized in *Saxvik v. Saxvik*, 1996 SD 18, 544 N.W.2d 177, where periodic award goes to zero – the reduction to zero, according to the *Saxvik* opinion, in the periodic award does not deprive the trial court from later reinstating alimony. Footnote 2 accompanying ¶ 26.)

5. What about the reinstatement of an award of *rehabilitative* alimony which has been terminated? The *Saxvik* court did not address that issue, indicating that it would be "prudent to await an appropriate case...to determine the correct rule of law." *Id.* at 180

6. In *Price v. Price*, 2000 SD 64, 611 N.W.2d 425, the trial court increased an initial award of regular alimony in the amount of \$1 to \$1000 per month. By way of background, it should be noted that the parties initially agreed at the time of the divorce in 1994, that wife would receive a lump sum award of \$27,203 representing restitutional alimony (husband was a licensed psychologist in Aberdeen), rehabilitative alimony in an amount which offset her child support obligation to husband, and regular alimony of \$1. Two years later (in 1996) the rehabilitative alimony (which had been initially utilized only to offset wife's child support obligation) was increased to \$600 per month for a two year period. Wife again moved to modify alimony (as well as custody) during the same month that the \$600 per month rehabilitative alimony award ceased. The increase of \$1 to \$1000 per month in regular alimony was affirmed by the SD Supreme Court, with Justice Amundson dissenting. Justice Amundson argued that the increase was based on evidence of expenses which were tied into the custody transfer to the wife, which was reversed by the Court in the same opinion, "therefore a 1000 percent increase in alimony is not appropriate in this case." (Paragraph no. 77, 611 N.W.2d at 438.)

7. Observations about the *Price* case which is discussed in the preceding note: 1) As far as can be determined by this reporter, this is the only reported case in South Dakota where an initial alimony award of \$1 has actually been increased to a substantial amount in a later modification proceeding; 2) This is also apparently the only reported opinion that reflects an award of alimony being utilized specifically to offset a child support obligation, although this aspect of the case was initially done by agreement of the parties at the time of the divorce and hence the propriety of such an arrangement was not an issue for the SD Supreme Court to review; and 3) the increase in alimony was 100,000 %, not just 1000%!

KANTA v. KANTA

Supreme Court of South Dakota, 1991.
479 N.W.2d 505.

* * *

Wife accurately states that other jurisdictions recognize career opportunity costs as a separate compensable item in divorce proceedings. In these other jurisdictions, however, the statutory schemes are designed to allow compensation for career opportunity costs or maintenance. To date, South Dakota has not passed this type of legislation and, under the current statutory scheme, we do not find sufficient basis to recognize an award for career opportunity costs.

Wife further argues that this court has impliedly approved the career opportunity cost theory in our prior decisions. In the case of *Kelley v. Kirk*, 391 N.W.2d 652 (S.D.1986), we affirmed the trial court's award of restitutional and rehabilitation alimony based, in part, on the evidence presented in that case regarding depreciation in human capital. Next, in *Bradeen v. Bradeen*, 430 N.W.2d 87 (S.D.1988), this court stated that a trial court has the right to consider foregone opportunities for enhancement or improvement of professional or vocational skills when considering whether or not to award rehabilitation or reimbursement alimony. Neither of these decisions allows one to extrapolate a new property right for marital dissolution cases, nor should this holding be construed as diluting our previous decisions.

We hold the trial court abused its discretion in awarding compensation for career opportunity costs as part of a property division. Accordingly, we reverse that portion of the trial court's judgment.

* * *

C. Hybrid Forms of Alimony

3. “Necessaries of Life”

Under SDCL 25-2-11, a spouse is jointly and severally liable for the costs of “all the necessities of life, consisting of food, clothing, and fuel purchased by either husband or wife for their family while they are living together as husband and wife.”

What about medical bills? There is no reference in the statute to “medical bills” or “medical care.” In *Accounts Management, Inc. v. Litchfield*, 1998 SD 24, 576 N.W.2d 233 (S.D. 1998), the argument was made that under the principle of *expressio unius est exclusio alterius*, the enumeration of certain things (such as “food, clothing, and fuel”) suggests an exclusion of those things not mentioned (such as “medical care”). The South Dakota Supreme Court rejected this argument and instead construed “necessaries of life” to include medical care and treatment. (This opinion also holds that the failure to record a marriage license after the ceremony does not invalidate the marriage.)

D. Termination

1. Remarriage

MARQUARDT v. MARQUARDT

Supreme Court of South Dakota, 1986.
396 N.W.2d 753 .

MORGAN, Justice.

In 1981, Lloyd Marquardt, Jr., (Lloyd) and Betty Marquardt (Betty) were granted a decree of divorce which incorporated by reference a support agreement. The decree of divorce provided for the payment of alimony in the amount of \$200 per month from Lloyd to Betty. The alimony was to "terminate upon the death of either Plaintiff or Defendant." On August 13, 1983, Betty was remarried and upon learning of this remarriage Lloyd moved the trial court for a termination of the alimony support. The trial court denied Lloyd's motion to terminate and he appeals.

It is Lloyd's lone contention that the trial court abused its discretion by not terminating the alimony payments effective as of the date of Betty's remarriage. Lloyd urges that the trial court erred when it considered Betty's remarriage as "simply one of the factors the Court must consider in determining whether a modification of alimony is deserving." We agree with this contention and reverse and remand.

Initially, we note that the trial court has the general power to modify a decree for alimony even if that decree is based upon an agreement entered into by the parties. *Shoop v. Shoop*, 58 S.D. 593, 237 N.W. 904 (1931). "In a proceeding for modification of alimony [the] burden of proving a change in circumstances sufficient to warrant modification is upon the party seeking modification." *Rousseau v. Gesinger*, 330

N.W.2d 522, 525 (S.D.1983). The operative question, then, is whether Lloyd met his burden in proving a change of circumstances.

"Proof that the spouse receiving spousal support payments has remarried establishes a prima facie case requiring the court to terminate the support payments unless there are extraordinary circumstances which justify continuance of the payments." *Bauer v. Bauer*, 356 N.W.2d 897, 898 (N.D.1984). *See Nugent v. Nugent*, 152 N.W.2d 323 (N.D.1967); *Wolter v. Wolter*, 183 Neb. 160, 158 N.W.2d 616 (1968). *But cf. Carruth v. Carruth*, 212 Neb. 124, 321 N.W.2d 912 (1982). We agree that remarriage establishes a prima facie case for termination of alimony payments. "The general rule in Iowa, and elsewhere, is that while the subsequent remarriage of a spouse does not result in automatic termination of an alimony obligation, it shifts the burden to the recipient to show that extraordinary circumstances exist which require the continuation of the alimony payments." *In re Marriage of Shima*, 360 N.W.2d 827, 828 (Iowa 1985).

While we recognize that in some states remarriage is grounds for automatic termination of alimony benefits,² we feel the more judicious course is to hold that remarriage establishes a prima facie showing supporting termination. Sound public policy abounds to support this holding. South Dakota law places a statutory duty on one spouse to support the other. SDCL 25-7-1. As has been said by a number of other courts, it is "illogical and unreasonable" that a spouse should receive support from a present spouse and a former spouse at the same time. *Marriage of Shima, supra; Wolter, supra*.

In *Hanks v. Hanks*, 296 N.W.2d 523 (S.D.1980), the parties failed to enter into an agreement for support and the trial court ordered support of \$200 per month under authority of SDCL 25-4-41. In *Hanks*, however, the trial court failed to provide for termination of the payments upon the spouse's remarriage. As a result, "we modif[ied] the alimony provision to provide for its continuation only until the remarriage of [spouse]." *Id.* at 528. We obviously recognized the policy supporting this holding, although it was not specifically set out.

Because the trial court considered remarriage as "simply one of the factors the court must consider" we reverse and remand for a determination of whether Betty can show the extraordinary circumstances which must exist prior to the continuation of the alimony payments.

WUEST, C.J., and HERTZ, Circuit Judge, acting as a Supreme Court Justice, concur.

HENDERSON, J., concurs specially.

GERKEN, Circuit Judge, dissents.

HENDERSON, Justice (concurring specially).

I would also reverse the trial court but would remand with instructions to terminate all alimony.

Remarriage automatically terminates alimony. *See Annot.*, 48 A.L.R.2d 270 (1956). I support the holding of the Supreme Court of Alaska, *Voyles*, cited in the majority opinion. Basically, the Alaska Supreme Court holds that it is against public policy that a woman should have support or its equivalent during the same period of time from each of two men.

² *See, e.g., Voyles v. Voyles*, 644 P.2d 847 (Alaska 1982); N.Y.Dom.Rel.Law s 248 (McKinney 1977).

Subsequent to her divorce from Lloyd Marquardt, Jr., Betty Marquardt married a gentleman by the name of Kenneth Holtrop. Take stock of SDCL 25-7-1, which provides:

A person shall support himself or herself and his or her spouse out of his or her property or by his or her labor.

This simply means that Kenneth Holtrop owes a statutory duty to support his wife. She is the recipient of the beneficial language of the statute: she is, by law, entitled to receive support from her husband. Kenneth Holtrop is her husband. Lloyd Marquardt, Jr., is not her husband. Further, during the year 1984, which is the critical year, Kenneth Holtrop had an income of \$27,820 and was well able to support his wife.

* * *

PETERSON v. PETERSON

Supreme Court of South Dakota, 1988.
434 N.W.2d 732 .

BRADSHAW, Circuit Judge.

Janey Peterson (Janey) appeals from a judgment terminating her right to receive alimony from Gregory A. Peterson (Gregory), and increasing from \$500 to \$665 the amount of child support Gregory is obligated to pay each month. In addition, Janey has petitioned this court for attorney fees on appeal. We affirm the trial court and deny Janey's request for attorney fees.

Janey and Gregory were married on August 12, 1967. Megan, who is now 14 years old, and Ryan, now 11 years old, were born to this marriage. The marriage lasted for seventeen years until, because of Gregory's misfeasance, Janey instituted an action for divorce.

On May 2, 1985, Janey was granted a divorce. The judgment and decree of divorce gave custody of Megan and Ryan to Janey, decreeing that Gregory pay \$250 per month, per child, for the support of the children. The trial court concluded further that Janey should receive one-half of the property amassed during the marriage through the joint efforts of the parties, and 30 per cent of the property which had been donated to Gregory by his father. Janey also received, as part of the property award, \$115,063 in cash. She thus obtained a total property award, after deducting liabilities, of \$329,858. Finally, the court decree provided the following language:

(Gregory) is ordered to pay to (Janey) as alimony the sum of \$1,000 per month for a seven-year period starting with the first month after the entry of judgment herein, ... after said seven-year period, (Gregory) shall pay to (Janey) \$500 per month, ... for an additional 10 years unless during this last 10-year period (Janey) dies or *remarries*, at which time this portion of the alimony shall cease. (emphasis supplied)

Gregory petitioned the trial court to amend its divorce judgment and extinguish his duty to provide alimony when he learned that Janey had remarried on August 1, 1987. Janey resisted and countered with a motion to adjust upward the amount of child support Gregory was required to pay.

The trial judge granted both motions. Gregory's monthly child support obligation increased from \$500 to \$665 and, pursuant to our ruling in *Marquardt v. Marquardt by Rempfer*, 396 N.W.2d 753

(S.D.1986), his obligation to pay alimony was cancelled.

Janey has asked us to review these two lower court rulings, contending, first, that the trial court misconstrued *Marquardt*, and, second, that the trial court misinterpreted SDCL 25-7-7 when it failed to include certain items in Gregory's gross income in determining support.

As with all appeals, it is necessary, at the outset, to delineate the applicable standard of review. It is settled law in South Dakota that this court will not disturb an award of alimony or child support, or a division of property, unless it clearly appears that the trial court abused its discretion. *Guindon v. Guindon*, 256 N.W.2d 894 (S.D.1977). We have often said this court must " 'not ... determine whether [we] would have made an original like ruling, but whether we think a judicial mind, in view of the law and the circumstances of the particular case, could reasonably have reached such a conclusion.' " *Havens v. Henning*, 418 N.W.2d 311, 312 (S.D.1988) (quoting *Davis v. Kressly*, 78 S.D. 637, 107 N.W.2d 5 (1961)). With this standard in mind, we embark upon an analysis of the issues in this case.

ISSUE I

DID THE TRIAL COURT ERR IN TERMINATING GREGORY'S RESPONSIBILITY TO FURNISH ALIMONY FOR JANEY?

DECISION

Janey seeks an affirmative resolution of this issue by advancing three alternative assertions:

- (1) That the language of the trial court's alimony award indicates by implication that Gregory's duty to pay alimony would not cease if Janey remarried during the initial seven years following the parties' divorce;
- (2) That the alimony award was an integral part of the property settlement segment of the divorce decree; and
- (3) That extraordinary circumstances exist, i.e., Janey's new husband is unable to support her, which require the perpetuation of her alimony payments.

These contentions will be addressed *seriatim*.

In *Marquardt, supra*, we opined that " '[p]roof that the spouse receiving spousal support payments has remarried establishes a *prima facie* case requiring the court to terminate the support payments unless [the recipient of the support payments can show] extraordinary circumstances which justify continuation of the payments.' " 396 N.W.2d at 754 (quoting *Bauer v. Bauer*, 356 N.W.2d 897, 898 (N.D.1984)). By adopting this stance, we rejected the automatic termination rule espoused in *Voyles v. Voyles*, 644 P.2d 847 (Alaska 1982), and other cases. These automatic termination jurisdictions have allowed alimony to continue, despite remarriage, if the parties' agreement or the decree of the court expressly provided that the flow of alimony was to remain unimpeded by the recipient spouse's remarriage. Janey urges us to adopt this exception in this case.

We must repeat, in order to fully comprehend the gist of Janey's argument, the succeeding pertinent language of the alimony award:

(Gregory) is ordered to pay to (Janey) as alimony the sum of \$1,000 per month for a seven-year period starting with the first month after the entry of judgment herein,

... After said seven-year period, (Gregory) shall pay to (Janey) \$500 per month, ... for an additional 10 years unless during this last 10-year period (Janey) dies or remarries, at which time *this portion* of the alimony shall cease. (emphasis supplied)

Since this language fails to provide that alimony payments will end if Janey remarries during the first seven years, Janey maintains that "it clearly *implies* that remarriage does not operate to terminate alimony during the first seven years." (emphasis supplied) This assertion is without merit.

Janey's reliance on the *Voyles* exception is misplaced because the *Voyles* exception, by its terms, applies only where there is an express statement that alimony is to survive notwithstanding the remarriage of the recipient spouse. Silence in a divorce decree or a voluntary agreement, as to the occurrence of remarriage, falls short of a specific declaration that alimony will endure in the event the recipient spouse remarries. *Ehrenworth v. Ehrenworth*, 187 N.J.Super. 342, 454 A.2d 895 (1982); *Lord v. Shaw, supra*. Thus, the parties to a divorce must, to avail themselves of the *Voyles* deviation, point to either a statement in an agreement or divorce decree which provides that the payor spouse will pay alimony, irrespective of the recipient spouse's remarriage, or evidence that the parties intended that the alimomial obligation would survive past the date of the payee spouse's remarriage. Here, since Janey has shown neither the amount of evidence required nor an agreement that alimony would continue after her remarriage, her argument must collapse.

Next, Janey argues that the alimony award was an intrinsic part of the property settlement segment of the divorce decree. It is well settled in this state that allowances of alimony and support money for the wife and children of a marriage are subject to revision and amendment when conditions change. *See, e.g., Matthews v. Matthews*, 71 S.D. 115, 22 N.W.2d 27 (1946). However, this rule does not apply insofar as property rights of the parties are concerned. *See Holt v. Holt*, 84 S.D. 671, 176 N.W.2d 51 (1970). Consequently, Janey asserts that the alimony award is, in fact, part of the property settlement; therefore, it cannot be modified. We refuse to countenance this contention on the basis of the facts before us.

In *Lien v. Lien*, 420 N.W.2d 26 (S.D.1988) (Lien II), we held that payments, though denominated as "support," were, in fact, part of a property division between the parties. As such, they were not terminable under *Marquardt*. We reached that conclusion due to the husband's insistence, at trial, that the payments be labeled "support" so that he could avoid the adverse tax consequences attendant to a total cash award of property.

It is apparent from a reading of *Lien II, supra*, that when deciding whether an award of alimony is, in reality, a portion of a property settlement, a court must scrutinize the language of the divorce decree, the circumstances encompassing it, and the end sought to be achieved by the parties. After conducting this examination in the present case, we are left with the conviction that the alimony award was not a disguised property settlement.

Here, the divorce decree provided that Janey receive the parties' right, title, and interest in and to Karen's, Inc. (a retail store), the family residence, the personal property situated within the home, a 1978 station wagon, and \$115,063 to be paid in cash within six months of the date of the decree. This amounted to a total property award of \$329,858. The cash award was, in the trial judge's words, necessary to "effectuate the property division."

Based on this language, it is obvious that this money, not the periodically paid alimony, was an integral part of the property settlement necessary to accomplish an equitable division of property. The

wording of the divorce decree, coupled with the circumstances of the divorce, indicates that the monthly payments made by Gregory to Janey were for her support and were not meant to accomplish an equitable property division. Thus, this contention of Janey's must also fail.

In her brief, Janey also attempts to label her alimony "rehabilitative." As such, she says, it may not be terminated. Since we are of the opinion that the rule in *Marquardt, supra*, applies to all alimony, regardless of its classification, and because the cases cited by Janey are factually distinguishable, this argument is also without merit.

Janey's final position under this alimony issue is that extraordinary circumstances exist which require the continuation of her alimony payments. Janey argues that since she has not profited economically from her second marriage, she needs the alimony to live in the style to which she had become accustomed prior to her divorce from Gregory. In one of her affidavits, Janey says that "I did marry Timothy W. Johnson on August 1, 1987; however, his income, together with my child support, is not sufficient to provide for me and my two minor children." The following passage, extracted from the opinion in *Nugent v. Nugent*, 152 N.W.2d 323, 329 (N.D.1967), capsulizes our view of Janey's assertion:

[W]e do not believe that such factors [that the husband's fault caused the divorce, that the wife contributed to the household while the husband obtained a medical degree, and that the wife's new husband was unable to provide for her in the same fashion as her previous mate] constitute extraordinary circumstances as would justify the continuation of the alimony payments in this case, [wife] having voluntarily elected to marry another, who now must assume the responsibility for her support.

Additionally, we have said "it is 'illogical and unreasonable' that a spouse should receive support from a present spouse and a former spouse at the same time." *Marquardt, supra* at 754. See also *Wolter v. Wolter*, 183 Neb. 160, 158 N.W.2d 616 (1968); *Marriage of Shima*, 360 N.W.2d 827 (Iowa 1985).

Since Janey has shown no extraordinary circumstances to rebut the prima facie requirement that alimony should terminate, we hold that the trial court was correct and did not abuse its discretion in terminating Janey's alimony.

MORGAN and HENDERSON, JJ., concur in part and concur in result in part.

SABERS and MILLER, JJ., dissent in part and concurs in result in part.

BRADSHAW, Circuit Judge, for WUEST, Chief Justice, disqualified.

MORGAN, Justice (concurring in part, concurring in result in part).

I concur in the majority opinion with respect to affirming the increase in the child support; however, I can only concur in the result on the issue of termination of the alimony.

With respect to the issue of termination of the alimony, I would simply reject out-of-hand Janey's reliance on the exception in the case of *Voyles v. Voyles*, 644 P.2d 847 (Alaska 1982). As the majority has correctly noted, this court, by adoption of the *Marquardt* rule, has rejected the *Voyles* rule of automatic termination. Having rejected the predicate, how then can an exception be relied upon by Janey? Such reliance should fail out-of-hand.

* * *

HENDERSON, Justice (concurring in part; concurring in result in part).

ALIMONY

Without conceptually marrying myself to the *Marquardt* "prima facie" language, and the *Lien II* holding that "support" is not "support" but is part of a property settlement division, I concur in result with the holding in this opinion on alimony. My dissent in *Marquardt* is alluded to for my specific rationale. Essentially, a woman might well obtain support from one man, but should not obtain support from two in the same equivalent time. One man, one woman, one support. Clearly, this alimony should be terminated and the trial court so held. * * *

SABERS, Justice (dissenting in part and concurring in result in part).

* * * I also join Justice Morgan in that part of his concurrence in result in part regarding termination of alimony. * * *

MILLER, Justice (dissenting in part, concurring in result in part).

I join Justice Morgan in that part of his special writing that concurs in the result on the issue dealing with termination of alimony. * * *

RECENT CASES (from 2000 and later)

Despite the fact wife remarried 1 month after divorce, husband was liable for unpaid alimony (plus interest) some 11 years later when wife finally brings husband back into court. In *Culhane v. Michels*, 2000 SD 100, 615 N.W.2d 580, husband was ordered to pay wife \$1,100 per month for two years. Wife remarried to another one month after the divorce. Husband made only one alimony payment and then stopped. Eleven years later, wife successfully sued husband for alimony arrearage plus interest pursuant to SDCL 21-1-13.1 and SDCL 15-16-3. Alimony may not be retroactively modified by virtue of SDCL 25-7-7.3 and this prohibition also extends to that portion of the arrearage which accrued prior to the effective date (July 1, 1987) of statute (SDCL 25-7-7.3). Husband's arguments of waiver and laches were also rejected. Remarriage does not automatically cancel an alimony obligation. Husband should have petitioned for modification of his obligation upon wife's remarriage.

Husband's agreement, incorporated into divorce decree, to provide wife with major medical insurance coverage is modifiable as an alimony obligation and presumptively subject to termination based upon wife's subsequent remarriage. In *Harding-Moyer v. Harding*, 2000 SD 126, 616 N.W.2d 899, the parties reached an agreement at the time of the divorce in 1987, with the agreement being incorporated into the decree of divorce. As part of that agreement, husband was to provide wife with major medical insurance coverage. Wife subsequently remarried an Air Force serviceman and was eligible for health insurance coverage through her new husband. Husband sought to be relieved of this obligation. The trial court denied husband's request, holding that the obligation to maintain health insurance was "contractual in nature" and not modifiable. In an unanimous per curiam opinion, the South Dakota Supreme Court reversed holding that the applicable South Dakota's definitions of alimony or spousal support are "broad enough to include medical or health insurance premiums." (Paragraph No. 12, 616 N.W.2d at 902.) Accordingly, the award is subject to modification based on a showing of changed circumstances. Furthermore, under the South

Dakota *Marquardt* rule, remarriage establishes a prima facie case requiring termination unless “extraordinary circumstances” exist which justify the continuation of the alimony obligation. The case was remanded to the trial court for a determination as to whether or not “extraordinary circumstances” are present.

Husband’s Alimony Obligation Held To Survive Annulled Marriage. A five month marriage was ended by annulment on the ground of fraud. The effect of this short marriage (and its subsequent annulment) in regard to the wife’s previous award of alimony is the subject of *Amundson v. Amundson*, 2002 SD 60, 645 N.W.2d 837. The annulment proceeding itself is not the subject of this appeal, but the fact that the annulment was granted by a South Dakota trial court is reported in this opinion. Previously wife had been married for 15 years to Mr. Amundson and when that marriage ended by divorce decree in 1998, she was awarded alimony of \$15,000 per year for 15 years. This alimony award was based primarily on the disparity of the parties’ income, with the husband’s annual income at \$150,000 and the wife’s annual income at \$30,000. Wife married another man in 2000 and that marriage was subsequently annulled by a South Dakota trial court. Prior to the annulment, husband from the first marriage (Mr. Amundson) sought to have the alimony award terminated because of wife’s remarriage. Both the trial court and an unanimous Supreme Court held that wife’s right to receive alimony remained intact, even during the 5 months between her remarriage and the annulment. Upholding and applying the rule of *Marquardt*, wife had the burden of showing “extraordinary circumstances” in order to overcome the *Marquardt* principle that remarriage establishes a prima facie case for termination absent extraordinary circumstances. Wife met that burden by showing that the alimony award was still justified and that the annulment rendered her attempted second marriage *void ab initio* or “null from the beginning.” The Supreme Court observed that the trial court found “that the annulment was not a subterfuge.” ¶ 13 of opinion. The opinion also notes that this result is supported by SDCL 25-3-10 which specifically allows for the maintenance of a former spouse after an annulment. At first blush, this statute might appear to apply only to the imposition of an award of alimony against the other party to the annulment proceeding, but the *Amundson* opinion suggests that this statute supports the continuation of an existing alimony obligation.

Agreement that 7 year award of alimony is “non-modifiable” is still subject to termination upon wife’s remarriage, as per the rule of *Marquardt*. *Oman v. Oman*, 2005 SD 88, 702 N.W.2d 11. Parties agreed at time of divorce that husband should pay wife \$429 per month in alimony for a seven year period. The agreement provided, “It is specifically understood by the parties that the alimony provided for herein is non-modifiable by either party, as to the amount and duration, for so long as alimony is ordered to be paid.” Wife remarried approximately three years later and husband quit paying alimony. Wife initiated contempt proceeding against husband. Husband filed motion to terminate alimony based upon wife’s remarriage. The trial court ruled for wife, finding that the parties intended for alimony to continue in the event of wife’s remarriage. The South Dakota Supreme Court reversed in *Oman v. Oman*, 2005 SD 88, 702 N.W.2d 11, a 4-0 opinion authored by Justice Meierhenry. The Supreme Court held as follows:

A.) The rule of *Marquardt* provides that remarriage of the wife constitutes prima facie grounds for termination of alimony, subject only to “extraordinary circumstances,” for which the burden of establishing is placed upon wife. (¶ 7)

B.) As to the argument that the agreement’s “non-modifiable” provision controls, the Court notes that the agreement does not specifically address the prospect of wife’s remarriage. The use of the “non-modifiable” language in the agreement is not sufficient to overcome the rule of *Marquardt*. “Since the agreement does not expressly state that alimony is to continue [in the event of wife’s remarriage], the trial court erred by not applying the *Marquardt* rule.” (¶ 10) The Court also specifically refuses to address whether or not it would enforce an express agreement which purports to provide for the continuation of alimony in the event of remarriage. (Footnote 3)

C.) The case of *Driscoll v. Driscoll* is recognized as having “limited precedential effect.” (¶9) (citing

also *Savage v. Savage*, 2003 SD 46, ¶ 9, 661 N.W.2d 762, 765 in support of this proposition). In *Driscoll*, the wife asserted two grounds to seek modification of alimony, despite the fact she specifically agreed at the time of the divorce that she would not assert those two exact grounds for the purpose of modifying alimony. (¶¶ 8-9)

D.) Wife's argument that this alimony award is in the nature of a non-modifiable "lump sum" award fails because there is no mention of "lump sum" in the agreement, nor is there any specification of a gross amount payable in installments. Furthermore, there is nothing in the agreement which indicates that the alimony award is connected with or in lieu of a property settlement. (¶¶ 11-12)

E.) Absent the showing of "extraordinary circumstances," alimony should cease as of the date of husband's notice of hearing on his petition for termination. SDCL 25-7-7.3 bars retroactive modification except for those payments falling due after notice of hearing. (¶ 10)

D. Termination

2. Cohabitation

Parties may agree to the termination of alimony payments in the event the payee (usually the wife) "cohabits" with a person of the opposite sex (maybe even the same sex, depending upon the situation). This is useful in preempting a strategical decision by the payee to simply cohabit and refrain from marriage in order to remain eligible for the receipt of alimony payments.

In *Paradeis v. Paradeis*, 461 N.W.2d 135 (S.D. 1990), such an agreement was entered. Ironically, the wife did subsequently "cohabit" with a person of the opposite sex — namely the husband! Did the husband's obligation to pay alimony cease? What if the parties eventually separated again?

Some guidance as to the effect of cohabitation on an alimony award may be gained from the opinion in *Olson v. Olson*, 1996 SD 90, 552 N.W.2d 396 (S.D. 1996). In this case, the husband sought reduction in alimony which he had been ordered to pay in the divorce decree. He relied, *inter alia*, upon the fact that his former wife was now cohabiting with a live-in companion. Instead of lowering or eliminating the award, the trial court actually raised husband's alimony payment by \$500 per month (because the award was inadequate at the time of the divorce decree). The South Dakota Supreme Court affirmed, stating that the wife's cohabitation had a "de minimis" effect on her needs. The Court further stated in cases involving "cohabitation" that alimony may be reduced in the event the cohabitant's contributions *reduces* the needs of the alimony recipient. Conversely, however, if the alimony recipient's expenses are increased because of the recipient's voluntary support of one that the obligor is under no duty to support, then those additional expenses may be disregarded in determining if the recipient's needs have increased. *Id.* at 400.

A recent Illinois decision holds that a man's obligation to pay support to his ex-wife ceased when she began cohabiting with an unrelated man. *Snow v. Snow*, Ill. App.Ct., No. 3-00-0369, 6/14/01, 27 Family Law Reporter 1395 (7/3/01). This case apparently rests on a state statute enacted in Illinois which deals with "conjugal cohabitation." Apparently this statute specifically allows for an abatement in support payments when the recipient is cohabiting with another person. See also *In Re Gray*, 731 N.E.2d 942, 26 FLR 1428 (Ill.App.Ct. 2000).

What about cohabitation with a person of the same sex? Is this an adequate basis for the termination of alimony? This is discussed in Patricia A. Krogman, *Maintenance Payments and Same-Sex Relationships: When An Ex-Spouse “Cohabitates” with a Member of the Same Sex*, 109 Penn.St.L.Rev. 317 (2005).

Moore v. Moore

Cohabitation, in and of itself, can not serve as a basis for modification of alimony. Alimony obligor’s subsequent-spouse’s income should not be considered as obligor’s income in making alimony modification determination. In *Moore v. Moore*, 2009 SD 16, 763 N.W.2d 536, the trial court increased Husband’s alimony payment from \$100 per month to \$1500 per month. In doing so the trial court relied on income attributable to husband’s subsequent wife.

The parties were divorced in December, 2003, at which time wife received 87% of the marital assets. Husband agreed to pay wife \$100 per month in alimony. Wife, who was diagnosed with MS in 1999, eventually began living with the man to whom she sold the marital home. This man supported wife and took care of the finances. Wife’s male live-in friend did not appear in the proceedings and wife’s evidence was incomplete in some areas. Husband remarried and became a “house husband” with his new wife making substantial income.

In reversing the lower court, the SD Supreme Court acknowledged that this issue (inclusion of a subsequent spouse’s income as part of the determination of the alimony obligor’s income) is one of 1st impression in South Dakota. The case was reversed and remanded with the Court stating,

... an alimony obligor’s subsequent-spouse’s income may not be included as part of the obligor spouse’s income. Without evidence of [H’s] income or earning capacity as the source of [H’s] ability to pay, the trial court has, in reality, required [H’s current wife] to pay [W’s] alimony. This was an error of law. *Id.* at ¶ 46.

The Court also found that the wife did not meet her burden in this modification proceeding. Noteworthy comments from this opinion are as follows:

Just as courts must be wary of an alimony obligor’s effort to minimize his or her ability to pay through under employment or unemployment, courts must also consider conduct by the alimony recipient to maximize his or her unmet needs through speculative expenses and the minimization of support provided by their live-in cohabitants. This vigilance is especially necessary when the recipient is the moving party who carries the burden of proving a change in circumstances. *Id.* at ¶ 15.

In general, ‘cohabitation, in and of itself, is not a circumstance upon which alimony may be modified or terminated.’ *Id.* at ¶ 22.

This decision is unanimous with the Court’s opinion being authored by retired Justice Miller, sitting for Justice Zinter.

ARIZONA COURT ADDRESSES REQUIREMENT OF “ROMANTIC COHABITATION

In *Chopin v. Chopin*, --- P.3d ----, 2010 WL 2197706, (Ariz.App. Div. 1, 6/3/10), the parties agreed that “Spousal maintenance shall terminate immediately upon Wife's remarriage or romantic cohabitation with anyone...” Wife became “romantically involved” with a man who periodically spent the night at wife’s residence and the two vacationed together. The trial court terminated the spousal maintenance award, but the Arizona Court of Appeals reversed, holding that “cohabitation” requires “there be a physical ‘living together.’” *Id.* at ¶ 19.

D. Termination

3. Death

NOTE

Review SDCL 25-4-41 which is reproduced at the beginning of this chapter. This statute authorizes alimony to run for as long as the life of the payee. What about the life of the payor?

LODDE v. LODDE

Supreme Court of South Dakota, 1988.
420 N.W.2d 20.

MILLER, Justice.

This opinion consolidates two appeals, one in a divorce action and one in a probate proceeding. In both cases below the co-executors appealed from orders that modified the decedent's alimony obligation to his former wife; the orders continued the alimony obligation but reduced it from \$300 per month to \$270. We affirm.

Mary Lou Lodde and her husband Dean Lodde were divorced in 1976. Their settlement agreement, which the trial court incorporated into its divorce decree, provided, among other things, that Dean's alimony payment of \$300 per month would continue following his death.³

Dean died on January 18, 1986. Because Mary Lou was not paid any alimony after Dean's death, she filed affidavits in both the divorce and probate proceeding requesting alimony payments. The co-executors of Dean's estate responded and requested that the divorce decree be modified to eliminate Dean's alimony obligation.⁴

³ Specifically, the settlement agreement stated: "It is further agreed by the parties hereto that said payments of alimony shall continue following the death of Defendant [Dean] in the event his death should occur prior to Plaintiff's death or her remarriage."

⁴ One of the co-executors was Mary and Dean's daughter.

Because of Dean's death and the reduction in his assets since the divorce, the trial court concluded that a change in circumstances had occurred. Consequently, the court reduced the alimony payments to \$270 per month until Mary's death or remarriage. The trial court also awarded Mary attorney's fees of \$538.97.

Both parties have also made requests for appellate attorneys' fees and costs.

The co-executors' first issue is that the trial court abused its discretion in adjusting the alimony obligation to \$270 per month rather than terminating it entirely. Mary, on the other hand, does not argue that the modification was erroneous, but only that it be affirmed.

Generally, in the absence of an agreement between the spouses, the obligation to pay alimony ceases on the death of the obligor spouse. See 1 A. Lindey, *Separation Agreements and Ante-Nuptial Contracts* s 15.10 A(1) (1987); 2A W. Nelson, *Divorce & Annulment* § 17.20 (2d ed. 1961); Annot. 39 A.L.R.2d 1406 (1955). Cf. *Tyler v. Tyler*, 89 S.D. 462, 233 N.W.2d 804 (1975) (In affirming the trial court's award of alimony for the wife's lifetime, the court rejected the husband's contention that the award was an unfair penalty against the husband's heirs.)

In this case, however, Mary and Dean executed an agreement that Dean's alimony obligation was to continue following his death.⁵ Because Dean's obligation rested upon a clear agreement between the parties, which was incorporated into the divorce decree, the obligation was enforceable under terms of the agreement. *Lindey, supra* s 15.10 B(1); *Nelson, supra* fn. 35; *Annot., supra* § 5.

Despite a settlement agreement, the trial court may exercise its discretion and modify alimony; the trial court's alimony determination will be upheld unless its discretion was abused. *Wilson v. Wilson*, 399 N.W.2d 890 (S.D.1987); *Moller v. Moller*, 356 N.W.2d 909 (S.D.1984). In claiming that this discretion was abused the executors' primary argument is that the income producing ability of the estate is insufficient and that continuing the alimony payments will eventually result in Mary receiving all of the property just as if she were a surviving spouse. At the time Dean and Mary entered into the settlement agreement they could have foreseen that Dean's property might eventually be dissipated if his alimony obligation were extended beyond his death. Thus, the executors essentially argue that they should be relieved of what they now perceive to be Dean's bad bargain. But courts are not required to relieve parties from such bad bargains. *Moller, supra*. None of the executors' arguments persuade us that the trial court abused its discretion in continuing the alimony obligation in a reduced amount.

* * *

The judgment of the trial court is affirmed.

WUEST, C.J., MORGAN and SABERS, JJ., concur.
HENDERSON, J., dissents.

⁵ The agreement indicated that its sole purpose was "to adjust and settle the issues of alimony, division of property and assumption of financial obligations ..." In addition to the alimony provisions, Dean paid Mary \$45,000 as a property settlement. In return, Mary gave up all her rights to marital property in Florida, in Davis, South Dakota, and in the family residence.

"More than an end to war, we want an end to the beginnings of all wars."

Franklin Delano Roosevelt

Chapter Thirteen

Agreements

A. Before (Antenuptial)

The criteria for determining the enforceability of antenuptial agreements were first set forth in *Schutterle v. Schutterle*, 260 N.W.2d 341 (S.D. 1977). In this case, the parties' antenuptial agreement was, in fact, upheld by the South Dakota Supreme Court. The following excerpt is from page 348 of the opinion:

Some courts appear to have established a hard and fast rule that there must have been a full and frank disclosure by the prospective husband to his prospective wife concerning the nature and extent of his property before an antenuptial agreement will be held to be valid and binding as against the wife, see generally Annot. 27 A.L.R.2d 883. We conclude, however, that the better rule is that under which an antenuptial agreement will be held valid if the prospective spouse can be said to have had adequate knowledge of the nature and extent of the other party's property, either as a result of disclosure by the other party or through the independent knowledge, however acquired, of the prospective spouse, or if the prospective spouse has been adequately provided for by the agreement. See, e.g., *Del Vecchio v. Del Vecchio*, Fla., 143 So.2d 17; *Watson v. Watson*, 5 Ill.2d 526, 126 N.E.2d 220; *In re Estate of Hillegass*, 431 Pa. 144, 244 A.2d 672; *In re Borton's Estate*, Wyo., 393 P.2d 808.

The *Schutterle* court found that the wife's knowledge of husband's assets satisfied either of the alternative tests of disclosure or independent knowledge. *Id.* at 349. The court additionally found that the wife had "ratified" the agreement prior to husband's death. *Id.* at 350.

South Dakota adopted the Uniform Premarital Agreement Act in 1989. As a result, is the *Schutterle* test still relevant? For an answer to this question, see *Smetana v. Smetana*, 2007 SD 5, 726 N.W.2d 887

CONNOLLY v. CONNOLLY

Supreme Court of South Dakota, 1978.
270 N.W.2d 44.

WOLLMAN, Chief Justice.

This is an appeal from that portion of a judgment and decree in this divorce action that upheld as valid and enforceable an antenuptial agreement concerning appellant's right to alimony. We reverse and remand.

Appellant and respondent were married on February 15, 1969. Appellant was then 64, and respondent was 81. Both parties had been married before. Some five days prior to the marriage, the parties signed an agreement in the office of respondent's attorney that provided in part:

It is understood and agreed by and between the parties hereto that each of them relinquishes and releases the other from any and all claims of support and of any and all interest in the property of the other except as herein provided, meaning and intending that neither of the parties hereto shall acquire any interest in the property of the other by reason of their marriage except as herein provided.

It is further agreed between the parties hereto that in the event of divorce or legal separation of the parties during the lifetime of both parties, then regardless of the fault of either party, the other benefits herein provided for and assured to the party of the second part shall cease. In lieu thereof, party of the first part will provide an annuity for the benefit of party of the second part in such an amount and so designed as to yield to party of the second part an income equal to the benefits she would have received from her widow's pension from Northern States Power Company (which terminates by reason of her marriage) during the period of her life expectancy at the time of such divorce or separation as based on the American Experience Mortality Table; provided further that such annuity shall cease in the event of her remarriage or death before the expiration of the period of her life expectancy, after which the remainder in the annuity fund will be paid to the party of the first part of (sic) to his children if he shall then be deceased.

On March 31, 1970, the parties by written agreement modified the antenuptial agreement by striking a portion that is not material to the issue presented by this appeal. This subsequent agreement also recited that the parties were confirming and ratifying the remainder of the original agreement.

The marriage did not prove to be a happy one, and in August of 1975, appellant commenced divorce proceedings. She included in her prayer for relief a claim for alimony. The trial court held that those portions of the antenuptial agreement set forth above were valid and enforceable. The judgment and decree of divorce accordingly provided that appellant should receive \$149.96 per month (the amount appellant would have received from her pension from her former employer had she not remarried) during her remaining eight year life expectancy, or until her remarriage or death.

Appellant contends that the provisions in the antenuptial agreement that purport to restrict her right to receive alimony in the event of a divorce are void and unenforceable because they are contrary to the public policy of this state. At one time, it was the rule that any attempt by the parties to a marriage to diminish or waive by way of an antenuptial agreement a husband's duty to support his wife by way of

alimony was unenforceable as being contrary to public policy. See *In re Marriage of Higgason*, 10 Cal.3d 476, 110 Cal.Rptr. 897, 516 P.2d 289, and cases cited therein.

* * *

Whatever the trend of judicial decisions in other jurisdictions may be with respect to the continuing validity of the rule that antenuptial agreements of this nature are void as against public policy, we conclude that the provisions in question here are contrary to the public policy expressed in our statutes. It is the obligation of the husband to support his wife. SDCL 25-7-1. SDCL 25-2-13 provides:

A husband and wife cannot by any contract with each other alter their legal relations, except as to property, and except that they may agree in writing to an immediate separation and may make provision for the support of either of them and of their children during such separation. The mutual consent of the parties is sufficient consideration for such separation agreement.

SDCL 25-4-41 provides:

Where a divorce is granted for an offense of the husband, the court may compel him to provide for the maintenance of the children of the marriage, and to make such suitable allowance to the wife for her support during her life or for a shorter period, as the court may deem just, having regard to the circumstances of the parties represented; and the court may from time to time modify its orders in these respects.

Respondent cites our recent decision in *Schutterle v. Schutterle*, S.D., 260 N.W.2d 341, in which we upheld the validity of an antenuptial agreement that concerned the separately owned property of the parties, and SDCL 25-2-10, which provides that parties to a marriage may enter into transactions with each other respecting property. We do not consider the *Schutterle* case nor the cited statute as authority for the proposition that parties to a marriage may validly contract with respect to the matter of the payment of alimony in the event of a divorce. Nor do we believe that this court's decision in *Evans v. Evans*, 55 S.D. 482, 226 N.W. 725, supports the argument that antenuptial agreements limiting alimony are valid in this state. The *Evans* case concerned an agreement for support entered into during the pendency of an action for divorce. Moreover, the terms of the agreement were incorporated in the judgment of divorce. Thus, the agreement was one that was specifically provided for by the terms of what is now SDCL 25-2-13.

* * *

We conclude that when read together SDCL 25-7-1, 25-2-13, and 25-4-41 contemplate that a husband's duty of support may be the subject of a valid agreement entered into between the parties to a marriage subsequent to the marriage and in contemplation of separation or divorce, but that in the event of a divorce the trial court has the ultimate authority to approve or reject the agreement and, if it approves the agreement, to later modify the provisions for support.

The tenor of our statutes and decisions is that the post-divorce obligation of a husband to support his ex-wife is affected with such a public interest that the parties in a divorce action may not conclusively agree upon the terms of future support payments. The same principle should be applied even more strictly in an antenuptial setting where, as pointed out in the *Gudenkauf* case, *supra*, conditions which affect a spouse's entitlement to alimony cannot accurately be foreseen. Accordingly, we conclude that to insure that the public's interest in the enforcement of a husband's duty to support his wife is not thwarted by antenuptial agreements that may bear no reasonable relationship to the subsequent situation of the parties, we must hold

that such agreements are void and unenforceable. Such a holding, we believe, is more consistent with the public policy expressed in our statutes than would be a holding similar to those in *Posner v. Posner*, *Unander v. Unander*, and *Valid v. Valid*, *supra*. Accordingly, we hold that the provisions in the antenuptial agreement in question which purport to limit respondent's obligation to support appellant may not be enforced. That portion of the judgment appealed from is reversed and the case is remanded to the circuit court for further proceedings not inconsistent with the views set forth herein.

All the Justices concur.

NOTES AND QUESTIONS

1. Note the analogy made by the court to the enforceability of agreements as to alimony provisions actually made in contemplation of divorce. Consider also *Peterson v. Peterson* and *Lodde v. Lodde* (set forth in the preceding chapter on "Alimony"). These cases, together with *Connolly*, suggest that the parties to a divorce may not ever conclusively agree as to the duty of support — neither before the marriage, during the marriage, nor even at its conclusion.

2. Does the rule established in *Connolly*, *Peterson*, and *Lodde* promote or discourage litigation?

3. The result in *Connolly* was criticized in a student work by Thomas L. Bird at 24 South Dakota Law Review 494 (1979).

4. Consider the situation where an attorney, acting on behalf of the husband-to-be drafts an antenuptial agreement which purports to call for the *waiver* of a spouse's right to alimony, knowing that such "waiver" is invalid under South Dakota law? Subsequently, the parties are married and then become divorced. In the divorce proceeding, husband is ordered to pay alimony of \$1,000 per month for 24 months. Can husband now turn around and sue the lawyer for malpractice? Compare *Greene v. Morgan, Theeler, Cogley, & Petersen, et ux.*, 1998 SD 16, 575 N.W. 457 (S.D. 1998) [reversing a summary judgment in favor of the lawyer and law firm, holding that the lawyer's silence as to the "invalidity" of the waiver could constitute "fraudulent concealment" so as to toll the running of the 3 year statute of limitations].

5. In the facts of the previous note, assuming *arguendo* that the attorney knew the clause was invalid under South Dakota law and neglected to so advise his client of its invalidity, is the attorney's malfeasance the *actual cause* of the client's loss? No, not according to Justice Gilbertson who filed a dissent in the *Greene* case, pointing out that it was the husband's marital fault during this very short marriage of only four years that was the cause of the alimony award. According to Justice Gilbertson, "The real issue before us is who should pay the alimony which is based on fault, Terry who perpetrated the abuse upon Pamela or [the attorney] who failed to draft an agreement to allow Terry to perpetrate the abuse with impunity."

6. When a lawyer is called upon to draft an antenuptial agreement, isn't he really being called upon to draft a divorce settlement for the two individuals who are about to be wed?

7. South Dakota enacted the Uniform Premarital Agreement Act (“UPAA”) in 1989. Its provisions are reproduced on the next two pages. Would *Connolly* be decided the same way under this act? See SDCL 25-2-18(7) and the recent case of *Sanford v. Sanford* which is discussed immediately following South Dakota’s version of the UPAA. The *Sanford* decision squarely addresses this issue.

9. From your reading of the UPAA (which appears below), are antenuptial agreements more or less likely to be upheld as compared to the *Schutterle* test? See generally Barbara Ann Atwood, “Ten Years Later: Lingering Concerns About the Uniform Premarital Agreement Act,” 19 Journal of Legislation 127 (1993). Professor Atwood “applauds” the UPAA’s move away from the common law view which was not generous toward divorce-oriented antenuptial contracts. She also criticizes the UPAA, however, as giving “antenuptial agreements greater binding affect than they would have under ordinary contract principles.” *Id.* at 153-54.

“The successful person has the habit of doing the things failures don’t like to do. They don’t like doing them either necessarily. But their disliking is subordinated to the strength of their purpose.”

Steven R. Covey

CHAPTER 25-2: RIGHTS AND OBLIGATIONS OF MARRIAGE

UNIFORM PREMARITAL AGREEMENT ACT

(as adopted in South Dakota)

25-2-25 Short title. Sections 25-2-16 to 25-2-25, inclusive, may be cited as the Uniform Premarital Agreement Act.

Source: SL 1989, ch 216, § 10.

25-2-16 Definitions. Terms as used in §§ 25-2-16 to 25-2-25, inclusive, mean:

- (1) "Premarital agreement," an agreement between prospective spouses made in contemplation of marriage and to be effective upon marriage;
- (2) "Property," any interest, present or future, legal or equitable, vested or contingent, in real or personal property, including income and earnings.

Source: SL 1989, ch 216, § 1.

25-2-17 Formalities. A premarital agreement shall be in writing and signed by both parties. It is enforceable without consideration.

Source: SL 1989, ch 216, § 2.

25-2-18 Content.

(a) Parties to a premarital agreement may contract with respect to:

- (1) The rights and obligations of each of the parties in any of the property of either or both of them whenever and wherever acquired or located;
- (2) The right to buy, sell, use, transfer, exchange, abandon, lease, consume, expend, assign, create a security interest in, mortgage, encumber, dispose of, or otherwise manage and control property;
- (3) The disposition of property upon separation, marital dissolution, death, or the occurrence or nonoccurrence of any other event;
- (4) The making of a will, trust, or other arrangement to carry out the provisions of the agreement;
- (5) The ownership rights in and disposition of the death benefit from a life insurance policy;
- (6) The choice of law governing the construction of the agreement; and
- (7) Any other matter, including their personal rights and obligations, not in violation of public policy or a statute imposing a criminal penalty.

(b) The right of a child to support may not be adversely affected by a premarital agreement.

Source: SL 1989, ch 216, § 3.

25-2-19 Effect of marriage. A premarital agreement becomes effective upon marriage.

Source: SL 1989, ch 216, § 4.

25-2-20 Amendment -- Revocation. After marriage, a premarital agreement may be amended or revoked only by a written agreement signed by the parties. The amended agreement or the revocation is enforceable without consideration.

Source: SL 1989, ch 216, § 5.

25-2-21 Enforcement.

- (a) A premarital agreement is not enforceable if the party against whom enforcement is sought proves that:
- (1) That party did not execute the agreement voluntarily; or
 - (2) The agreement was unconscionable when it was executed and, before execution of the agreement, that party:
 - (i) Was not provided a fair and reasonable disclosure of the property or financial obligations of the other party;
 - (ii) Did not voluntarily and expressly waive, in writing, any right to disclosure of the property or financial obligations of the other party beyond the disclosure provided; and
 - (iii) Did not have, or reasonably could not have had, an adequate knowledge of the property or financial obligations of the other party.
- (b) An issue of unconscionability of a premarital agreement shall be decided by the court as a matter of law.

Source: SL 1989, ch 216, § 6.

25-2-22 Enforcement -- Void marriage. If a marriage is determined to be void, an agreement that would otherwise have been a premarital agreement is enforceable only to the extent necessary to avoid an inequitable result.

Source: SL 1989, ch 216, § 7.

25-2-23 Limitation of actions. Any statute of limitations applicable to an action asserting a claim for relief under a premarital agreement is tolled during the marriage of the parties to the agreement. However, equitable defenses limiting the time for enforcement, including laches and estoppel, are available to either party.

Source: SL 1989, ch 216, § 8.

25-2-24 Application and construction. Sections 25-2-16 to 25-2-25, inclusive, shall be applied and construed to effectuate its general purpose to make uniform the law with respect to the subject of the Uniform Premarital Agreement Act among states enacting it.

Source: SL 1989, ch 216, § 9.

SANFORD v. SANFORD

Prospective husband, worth \$55 million, and prospective wife, worth \$127,500, entered into a prenuptial agreement on August 16, 1995. Husband provided wife with a detailed financial disclosure, using figures from April 30, 1995. They were married on September 23, 1995. The agreement provided, *inter alia*, for some limited housing arrangements for wife in the event of a divorce and also that husband would pay wife \$4,000 per month for 36 months for a total of \$144,000 and that wife would not make “any other claim against [husband] ... in the nature of support, alimony, property settlement or otherwise.” Husband sued for divorce in 2003 and wife counterclaimed. In ruling on summary judgment motions filed by the parties, the trial court held that the portion of the prenuptial agreement purporting to waive alimony was void, but also held that the agreement was not unconscionable and was indeed valid and enforceable as to division of property. The South Dakota Supreme Court affirmed with a 5-0 opinion authored by Chief Justice Gilbertson in *Sanford v. Sanford*, 2005 SD 34, 694 N.W.2d 283. This opinion yields the following points:

1) It is against public policy for a prenuptial agreement to attempt to limit alimony obligations. This result is supported directly by the 1978 opinion in *Connolly v. Connolly*, 270 N.W.2d 44, which is reaffirmed. Furthermore, South Dakota’s enactment of the Uniform Premarital Agreement Act (UPAA) in 1989 supports this result since the SD legislature specifically excluded those portions of the uniform act which would have permitted parties to address the modification or elimination of spousal support obligations. [footnote 2 of the *Sanford* opinion states that 41 states do permit the waiver of spousal support in a premarital agreement, citing *In re Marriage of Pendleton & Fireman*, 24 Cal.4th 39, 5 P.3d 839, 99 Cal.Rptr.2d 278 which sets forth the authorities for each of the 41 states.]

2) The agreement is severable. The Court rejected wife’s argument that entire agreement was void due to the alimony provision which she asserted was intertwined with the property provisions.

3) The requirement of SDCL 25-2-21’s “fair and reasonable disclosure” was satisfied in this case by the husband’s use of the detailed listing of assets with valuations as of four months preceding the date of the prenuptial agreement. The Court stated, “It is not necessary, given the language in SDCL 25-2-21, for a spouse to provide a detailed and exact valuation of his or her net worth in a prenuptial agreement. It is sufficient for a spouse to provide, within the best of his or her abilities, a list of assets and liabilities with approximate valuations. The listing must be sufficiently precise to give the other spouse a reasonable approximation of the magnitude of the other spouse’s net worth.” ¶ 44.

NOTE

Premarital assets protected by antenuptial agreement can not be the basis for an award of lump-sum alimony. In *Walker v. Walker*, 2009 SD 31, 765 N.W.2d 747, H and W were both in their mid-40s when they married. Both had been previously married. They entered into an antenuptial agreement which protected over \$900,000 in premarital assets owned by W. The agreement purported to waive alimony and attorney fees. H & W remained married 11 years. H was in a motorcycle accident 8 years after the marriage, sustaining serious injuries. H was paralyzed from mid-chest down. H sought a lump sum alimony award of at least \$400,000 which could be utilized to secure payment of his needs for the rest of his life. The trial court denied H’s alimony request and the SD Supreme Court affirmed. It would be impossible for W to fund such a lump sum alimony award without utilizing W’s premarital assets and those assets are protected by the antenuptial agreement. Without consideration of those assets, W does not have sufficient earning capacity to pay alimony to H. The SD Supreme Court did reverse and remand the trial court’s denial of attorney fees to H, holding that attorneys fees incurred in connection with an alimony request may not be waived in an antenuptial agreement (just as alimony itself cannot be waived in an antenuptial agreement). The Court also awarded H \$2000 in appellate attorney fees. The decision is unanimous with Justice Meierhenry authoring the opinion.

"DIVORCES" AS "LEGAL PROCEEDINGS"

Before leaving the matter of "antenuptial" or "premarital" agreements, a few words should be mentioned about the "irony" involved and the consequences of some early beliefs. The irony lies in the fact that the lawyer may well be drafting the "divorce settlement" for two people who are about to become married. In fact, some might say that such is inappropriate. There were some early beliefs that an agreement made in anticipation of divorce would be invalid if made before the parties were in fact married.

As a consequence, lawyers used to dance around the issue by purposefully avoiding the use of the word "divorce" in the agreement. The fear was that if the agreement specifically mentioned "divorce," then it might be held invalid. A common substitute was the term "legal proceedings." In the case of *Ryken v. Ryken*, 440 N.W.2d 300 (S.D. 1989), which appears *supra*, in this book in the chapter on "Alimony," this issue is addressed. The trial court had held that the premarital agreement executed in that case was not applicable to a divorce action, even though the agreement had referenced the situations of "death or legal proceedings." *Id.* at 304. On appeal, the South Dakota Supreme Court said that "Divorce actions are legal proceedings" and, accordingly, the agreement would be applicable.

On remand in the *Ryken* case, the trial court found that the agreement should not be enforced because the husband had failed to disclose the extent of his assets and that the wife did not have adequate knowledge of the nature and extent of his assets. Nor, did the agreement adequately provide for the wife. Under the *Schutterle* analysis, the agreement failed, and the trial court awarded wife \$215,531 in cash as her share of the parties' property. On appeal (from the remanded hearing), the South Dakota Supreme Court upheld the trial court's determination as to the invalidity of the agreement, but remitted the property settlement award to the wife to \$100,000. *Ryken v. Ryken*, 461 N.W.2d 122, 125-27 (S.D. 1990). Justice Henderson vigorously dissented, protesting that any award to the wife would be "aiding a `golddigger.'" *Id.* at 129.

What if the agreement doesn't reference either "divorce" or "legal proceedings?" Such was the situation in *Roth v. Roth*, 565 N.W.2d 782, 1997 SD 75 (6/25/97). The parties entered into a premarital agreement on June 10, 1985. H was 68 years old and W was 47 years old. They subsequently married on June 22, 1985. The agreement did not mention the prospect of a "divorce," but specifically addressed the distribution of property upon the death of the parties. In a subsequent action for divorce, the trial court held the agreement applicable to the divorce proceeding, but was reversed on appeal in a 3/2 decision by the South Dakota Supreme Court. The majority opinion stated that the agreement was unambiguous, clearly applying to distribution of property upon death. The *Ryken* case [440 N.W.2d 300] was distinguished because there the agreement did reference "legal proceedings" and this agreement did not do that. The question of whether or not the agreement would be enforced according to the provisions of the Uniform Premarital Agreement Act [which South Dakota adopted in 1989] was not addressed since the agreement was not applicable to the divorce proceeding.

NOTES

1. **Antenuptial Agreement which, by its terms, only applies to death of a party, is not applicable in divorce proceeding, according to the South Dakota Supreme Court in *Smetana v. Smetana*, 2007 SD 5, 726 N.W.2d 887.** In *Smetana v. Smetana*, 2007 SD 5, 726 N.W.2d 887, the husband appealed a divorce decree which failed to honor an Antenuptial Agreement entered into between the parties. The South Dakota Supreme Court affirmed this result, finding that the agreement was invalid because by its very language it was only applicable a situation involving death of a party. The agreement did not state that it was applicable in the event of a divorce or legal proceeding. This holding follows the Court's previous ruling in *Roth v. Roth*, 1997 SD 75, 565 N.W.2d. 782.

2. **South Dakota's enactment of Uniform Premarital Agreement Act in 1989 did not alter the legal analysis established by pre-existing case law regarding the enforceability of antenuptial agreements according to the South Dakota Supreme Court in *Smetana v. Smetana*, 2007 SD 5, 726 N.W.2d 887.** In *Smetana v. Smetana*, 2007 SD 5, 726 N.W.2d 887, the husband appealed a divorce decree which failed to honor an Antenuptial Agreement entered into between the parties. This particular agreement was entered into prior to South Dakota's enactment in 1989 of the Uniform Premarital Agreement Act (UPAA), found in SDCL 25-2-16, *et seq.* The trial court had found that the agreement was unconscionable under the Uniform Act due to lack of disclosure to the wife. The South Dakota Supreme Court affirmed this result. As to the impact of the UPAA on existing case law concerning antenuptial agreements, the Court agreed with wife's position that "the enactment of the UPAA did not alter the legal analysis concerning the validity of the antenuptial agreements. Instead, the enactment of the UPAA codified previous precedent." ¶ 11. This opinion reviews the law established in *Schutterle v. Schutterle*, 260 N.W.2d 341 (SD 1977) and adheres to the pronouncements made in that case.

B. After (Postnuptial)

KEITH v. KEITH

Supreme Court of South Dakota, 1916.
156 N.W. 910, 37 S.D. 132.

McCOY, J.

Action to cancel a contract made between plaintiff and defendant. There were findings and judgment in favor of plaintiff, and defendant appeals.

It appears from the record that plaintiff and defendant were married about the 14th day of October, 1908; that at the time of said marriage plaintiff was, and ever since has been, the owner of three quarter sections of land in Spink county; that after said marriage the plaintiff and defendant entered into a contract, bearing date October 1, 1908, but which was dated back to a time preceding the marriage, by the terms of which contract the plaintiff, in consideration of affection, love, and sympathy, agreed that the income of all her property should be used as a common fund for the equal use of plaintiff and defendant, for household expenses, rent of dwelling, and clothing, and taxes, and necessary expenses to keep up said land and income property. On the trial the court, among other things, found that defendant falsely and fraudulently concealed from plaintiff the fact that he had no property, and concealed from plaintiff the fact that he was going through bankruptcy, that at the time of the marriage the defendant had no property of any kind, and was then going through bankruptcy, but that he fraudulently and falsely represented to her that he had property and sufficient means to support himself and wife, and that plaintiff, relying upon the truth of such representations so made by defendant, was induced to and did enter into the contract in question. There was ample testimony given on the trial to sustain this finding, especially that defendant falsely deceived plaintiff as to his ownership of property.

The transaction and contract here involved was in the nature of a postnuptial agreement or settlement. While it is lawful and not against public policy for husband and wife to enter into such contracts, yet they are not dealing with each other as strangers at arm's length. The relationship of husband and wife is one of special confidence and trust, requiring the utmost good faith and frankness in their dealings with each other. A strong instinctive passion for property often leads a husband or wife into schemes for the absorption and conversion of the other's possessions. In such transactions any concealment or misrepresentation by one party as to the value of his or her property will render such contract voidable. Transactions of this character are scrutinized by the courts with great care, to the end that no unjust advantage may be obtained by one over the other by means of any oppression, deception, or fraud. Courts of equity will relieve against any unjust advantage procured by any such means, and less evidence is required in such cases to establish the fraud, oppression, or deception than if the parties had been dealing at arm's length as strangers; and, where deception has been shown, fraud may be constructively presumed therefrom. *Schouler*, Dom. Rel. § 200. *Meldrum v. Meldrum*, 15 Colo. 478, 24 Pac. 1083, 11 L. R. A. 65, and note; *Farmer v. Farmer*, 39 N. J. Eq. 211; *Thomas v. Thomas*, 27 Okl. 729, 109 Pac. 825, 113 Pac. 1058, 35 L. R. A. (N. S.) 129, and note, 24 Ann. Cas. 713, and note; *Weller v. Weller*, 112 N. Y. 655, 19 N. E. 433; *Id.*, 44 Hun, 172.

Finding no prejudicial error in the record, the judgment and order appealed from are affirmed.

ESTATE OF GAB

Supreme Court of South Dakota, 1985.
364 N.W.2d 924.

WUEST, Acting Justice.

This is an appeal from a judgment and order which upheld as valid and enforceable a postnuptial agreement and denied appellant's petition for an elective share of her husband's estate, pursuant to SDCL 30-5A-6. We affirm.

Edwin (decedent) and Frances Gab (appellant) were married on August 2, 1974. Decedent had four children from a previous marriage, all of whom were adults when he married appellant. Appellant had also been married before and had seven children from that marriage. All but two of appellant's children were adults when she married decedent.

Both individuals possessed real and personal property when they married each other and both worked during the majority of the marriage, making substantially equal financial contributions during the eight-year marriage.

In August of 1975, appellant and decedent purchased a house and received a warranty deed conveying the property to them as joint tenants with right of survivorship. Appellant paid \$8,500 on the home and decedent paid approximately \$13,000. The balance was mortgaged, with monthly payments made to Aberdeen Federal Savings and Loan. The basement of the home was converted into an apartment, which was rented out for \$160 per month. These monthly rental payments carried their monthly house payment.

On February 17, 1976, both parties executed wills, specifically excluding each other as heirs to their respective states [sic]. Each will then bequeathed all of the residue of each estate, under various terms, to the children of that decedent. On March 19, 1976, the couple executed a postnuptial property agreement, which states, in pertinent part:

[I]n consideration of One Dollar and other good and valuable consideration, including the benefits to accrue to the heirs of both parties, it is hereby agreed and stipulated by and between the undersigned as follows: (1) That neither of the undersigned shall revoke, or amend, in whole or in part, the Last Will and Testament that each has this day executed, and a true and correct copy of which is attached hereto and incorporated by reference herein the same as if set out in full, without the written consent of the other.

Decedent died on October 13, 1982, and appellant petitioned the trial court to take her elective share in his augmented estate, pursuant to SDCL 30-5A-6. The trial court denied appellant's petition, holding that inasmuch as the nature, extent, and value of decedent's property was fully known and fairly disclosed to appellant and appellant freely and for good consideration entered into the agreement in question. We agree.

This court has endorsed property agreements between spouses as a method of protecting the inheritance rights of their respective children by previous marriages. *Schutterle v. Schutterle*, 260 N.W.2d 341 (S.D.1977). As to this, we stated in *Schutterle* that

courts have recognized that it is natural and proper for a parent to desire to provide for the children of his or her first marriage. *See, e.g., Christians v. Christians*, 241 Iowa 1017, 44

N.W.2d 431; *In re Estate of Jeurissen*, [281 Minn. 240, 161 N.W.2d 324 (1968)]; *In re Beat's Estate*, 25 Wis.2d 315, 130 N.W.2d 739 (post-nuptial agreement).

260 N.W.2d at 348. Such agreements are lawful even when executed after the parties are married. *Keith v. Keith*, 37 S.D. 132, 156 N.W. 910 (1916); *see also Matter of Estate of Lewin*, 42 Colo.App. 129, 595 P.2d 1055 (1979); *Baker v. Baker*, 394 So.2d 465 (Fla.App.1981); *Matter of Estate of Loughmiller*, 229 Kan. 584, 629 P.2d 156 (1981); *Chrisp v. Chrisp*, 207 Neb. 348, 299 N.W.2d 162 (1980).

Nonetheless, because of the confidential relationship which exists between husband and wife, postnuptial agreements are subjected to close scrutiny by the courts to insure that they are fair and equitable. *See, e.g., In re Estate of Harber*, 104 Ariz. 79, 449 P.2d 7 (1969); *Posner v. Posner*, 257 So.2d 530 (Fla.1972); *Rockwell v. Estate of Rockwell*, 24 Mich.App. 593, 180 N.W.2d 498 (1970); *White v. White*, 226 Pa.Super. 499, 313 A.2d 776 (1973). We addressed this issue in *Keith, supra*, stating:

The transaction and contract here involved was in the nature of a postnuptial agreement or settlement. While it is lawful and not against public policy for husband and wife to enter into such contracts, yet they are not dealing with each other as strangers at arm's length. The relationship of husband and wife is one of special confidence and trust, requiring the utmost good faith and frankness in their dealings with each other. A strong instinctive passion for property often leads a husband or wife into schemes for the absorption and conversion of the other's possessions. In such transactions any concealment or misrepresentation by one party as to the value of his or her property will render such contract voidable. Transactions of this character are scrutinized by the courts with great care, to the end that no unjust advantage may be obtained by one over the other by means of any oppression, deception, or fraud. Courts of equity will relieve against any unjust advantage procured by any such means, and less evidence is required in such cases to establish the fraud, oppression, or deception than if the parties had been dealing at arm's length as strangers; and, where deception has been shown, fraud may be constructively presumed therefrom.

37 S.D. at 133, 156 N.W. at 911.

As stated *supra*, the trial court concluded that the nature and extent of decedent's property was fairly disclosed to appellant at the time of decedent's demise. Moreover, the trial court held that appellant entered into the postnuptial agreement freely and for good consideration. Applying the standard of strict scrutiny, the record in the instant action admits of no evidence to support an allegation nor does appellant allege that decedent was guilty of any concealment concerning the nature and extent of his property or that he exercised any undue influence upon appellant. Decedent, an older man, merely wished to provide for the children of his first marriage in the manner of his choosing, while enjoying the benefits of companionship in a marital relationship during the latter part of his life. Appellant's children would receive her property in the same manner, if she died first.

Appellant contends that she could not effectively waive her right to take an elective share in decedent's augmented estate under SDCL 30-5A because that chapter of our codified laws was nonexistent and unknown to her at the time she executed the postnuptial agreement in question. We find this argument of little merit. The agreement is contractual in nature, having been signed by both parties and reciting good consideration. Article VI, section 12 of our state constitution states that "[n]o *ex post facto* law, or law impairing the obligation of contracts or making any irrevocable grant or privilege, franchise or immunity,

shall be passed."

We have repeatedly held that legislation will not be given retroactive effect where such construction would operate to impair existing contracts or defeat vested rights. *See, e.g., Engelcke v. Farmer's State Bank of Canistota*, 61 S.D. 92, 246 N.W. 288 (1932); *Cowell v. Lewis*, 52 S.D. 229, 217 N.W. 218 (1927); *Whitbeck v. McClenahan*, 40 S.D. 246, 167 N.W. 144 (1918); *Fremont E. & M. V. Ry. Co. v. Pennington County*, 20 S.D. 270, 105 N.W. 929 (1905); *Skinner v. Holt*, 9 S.D. 427, 69 N.W. 595 (1896). To give the chapter under consideration any force retroactively would impair the postnuptial agreement between decedent and appellant, contrary to Article VI, § 12 of our state constitution.

Accordingly, we decline to give SDCL 30-5A such effect, and the judgment of the trial court is affirmed.

All the Justices concur.

NOTES

1. **Waiving the elective share.** Under the current statutory scheme in South Dakota, a surviving spouse has the right to take an elective share under SDCL 29A-2-202. That right of election may, however, "... be waived, wholly or partially, before or after marriage, by a written contract, agreement or waiver signed by the surviving spouse." *See* SDCL 29A-2-213. This same statute (29A-2-213) provides further instruction as to the enforceability of the *waiver* using language which tracts the language of SDCL 25-2-21 (which is from the Uniform Premarital Agreement Act and which is reproduced, *supra*.) The operation of these statutes serves to make the elective share *waivable* in either a prenuptial or postnuptial agreement.

2. **Post-Nuptial Agreement signed by distraught wife when husband's death was imminent upheld in the *Estate of Smid*, 2008 SD 82, 756 N.W.2d 1.** This case was argued here at the law school during the Court's March 2008 term. In this case the wife (now widow) signed a post-nuptial agreement shortly before husband's death. This agreement waived wife's homestead rights and resulted in parties' home being transferred to husband's children. The agreement was presented to wife and signed when husband's death was imminent (within 12 hours of husband's death). The agreement represented an estate plan urged by husband's son. The trial court upheld the agreement and the SD Supreme Court affirmed in an opinion authored by Justice Sabers. Justice Konenkamp dissented. The Court found the agreement and its execution complied with 29A-2-213 and that wife's signature was not obtained by fraud, undue influence or mistake.

C. In Contemplation of Divorce

JEFFRIES v. JEFFRIES

Supreme Court of South Dakota, 1988.
434 N.W.2d 585.

MILLER, Justice.

In this appeal we hold that the trial court did not err in (1) refusing to specifically find that the parties to the divorce action enjoyed a confidential relationship while negotiating a property settlement, and (2) refusing to set aside a default divorce decree.

Carolee and Lawrence Jeffries were married in Wyoming in 1965. During the course of their marriage, which produced three children, they encountered marital difficulties. The two most serious occasions prior to their divorce were in 1975 and 1978, at which time they temporarily separated. The couple reconciled after the 1978 separation, but executed a post-nuptial agreement concerning their respective property rights should either of them file for a divorce in the future. The need for a post-nuptial agreement was prompted by Carolee's excessive spending habits.

In August 1986, Carolee indicated that she was planning to leave Lawrence. Lawrence then retained attorney Robert A. Amundson (Amundson) to represent him in the divorce proceedings.¹ Carolee did not retain counsel, although she knew that she was free to do so.² Rather, Carolee decided to negotiate a property settlement agreement with Lawrence without professional assistance. She consulted with Amundson, who advised her that he could not represent her in the divorce proceeding and that she had a right to retain a lawyer of her own choosing. However, during this consultation, Amundson answered Carolee's questions regarding the custody of the couple's children. Later, Amundson advised both Lawrence and Carolee that they could attempt to work out a property settlement and custody agreement on their own, reduce it to writing, and bring it to him to be formally drafted.

Lawrence and Carolee then finalized an agreement regarding the disposition of their property. The agreement, which was handwritten by Carolee, provided for alimony, custody and visitation of the children, and distribution of the couple's property, including payment of all marital bills by Lawrence. Amundson did not participate in these negotiations. The agreement, in Carolee's handwriting, acknowledged the existence of all of the couple's property, including Lawrence's securities, inherited property,³ savings and pension plans. Essentially, Carolee indicated that she wanted only certain items of personal property and one-half of the value of the couple's marital home, which was valued at \$80,000. The value of her one-half interest

¹ Amundson had previously represented Lawrence in divorce proceedings which were instituted but later terminated in 1978.

² Carolee had previously consulted with another attorney regarding their domestic problems.

³ Lawrence's large inheritance came from his aunt and mother. During the course of the marriage, Carolee, by her improvident spending, depleted its value by \$40,000.

in the home (\$40,000) was reduced by Lawrence's agreement to pay Carolee's accumulated debts and to provide for her purchase of a new automobile.

The handwritten agreement was presented to Amundson, who prepared a formal property settlement agreement which was executed by the parties. Carolee acknowledged that the formal property settlement agreement was consistent with her handwritten version. She also stated that she had read and understood the agreement's terms. The trial court later entered a decree of divorce incorporating the settlement agreement formulated by the parties.

Approximately four months later, Carolee moved that the decree of divorce be set aside, pursuant to SDCL 15-6-60(b), on the grounds that Lawrence induced her into signing the property settlement agreement "by making representations which were fraudulent or misrepresentations and by his misconduct." After an evidentiary hearing, the trial court denied the motion and she appeals from that holding.

* * *

Carolee argues to us that a confidential relationship existed between her and Lawrence which increased Lawrence's duties of disclosure and fairness with respect to the property settlement negotiations and the resulting agreement. She asserts that this relationship placed a duty upon Lawrence to disclose the nature and value of all of the couple's assets.

While it is generally true that a husband and wife do enjoy a confidential relationship, *see, e.g.*, SDCL 25-2-10, we do not believe that such a relationship existed here. When the parties to a marriage are negotiating a property settlement, recognizing that their interests are adverse to one another and that they are dealing at arms length, neither spouse owes to the other the duty of disclosure which he or she would normally owe if their relationship remained, in fact, a confidential one. *See Collins v. Collins*, 48 Cal.2d 325, 309 P.2d 420 (1957); *see also In re Marriage of Bradach*, 422 N.E.2d 342 (Ind.App.1981), wherein the court noted that the confidential relationship of a husband and wife applies only in those circumstances where they are *still living together*. Given the fact that Lawrence and Carolee were living apart during the time they were negotiating their property settlement, and that they were negotiating the settlement in contemplation of their divorce, we hold that no unique confidential relationship existed between this couple, and that Carolee was equally responsible for ascertaining the nature and value of the couple's marital assets. While we hold that each spouse must assume equal responsibility for ascertaining such nature and value, we do not intend to grant to estranged spouses any license to hide or misrepresent the value of any marital assets, nor will any such practice be condoned.

We must further observe that in entering its extensive findings and conclusions, the trial court found and held that Carolee had knowledge of the couple's property, (although maybe not specific values) throughout their marriage, and that she failed to make efforts to ascertain any additional information during the negotiation process. These determinations are clearly supported by the record.

* * *

Here, Carolee complains that Lawrence concealed or fraudulently failed to disclose the nature and value of the assets of the parties when they were negotiating their property settlement agreement. She also argues that Lawrence deceived her by stating that the settlement was fair. We note, however, that Carolee, a school teacher with a college education, entered into the agreement voluntarily, freely and intelligently. The evidence also indicates that Carolee received from the marital estate those possessions which she wanted, as well as receiving alimony. Carolee did not operate under a mistake of fact; rather, she entered into the agreement without exercising due diligence to ascertain the specific nature and value of various

marital assets. This does not constitute grounds for relief from the property settlement agreement. In the absence of fraud, free deliberate choices are not subject to relief under Rule 60(b). *Ackermann v. United States*, 340 U.S. 193, 71 S.Ct. 209, 95 L.Ed. 207 (1950). We know of no law suggesting that because a husband is not represented by counsel, a property settlement signed by him is voidable. *In re Estate of Henry*, 6 Ariz.App. 183, 430 P.2d 937 (1967).

Given the fact that Carolee entered into the agreement knowingly and voluntarily, had knowledge of the couple's assets, and did not operate under a mistake of fact, fraud or duress, we do not believe that the trial court abused its discretion by denying Carolee's motion to set aside the judgment of divorce.

AFFIRMED.

MORGAN and HENDERSON, JJ., concur.

WUEST, C.J., concurs specially.

SABERS, J., dissents.

WUEST, Chief Justice (concurring specially).

I do not like the result of this case any better than Justice Sabers does, but it appears to me that the trial court did not abuse its discretion when it found there was no fraud. In the absence of any error by the trial court, we cannot reverse its decision. *See Wegner v. Wegner*, 391 N.W.2d 690 (S.D.1986).

SABERS, Justice (dissenting).

I dissent.

An unrepresented spouse who signs a divorce settlement prepared by counsel representing the other spouse, may attack a settlement which is not fair and reasonable and free from fraud. 28 P.O.F.2d 663 § 3 (1981); *Prophet v. Peterson*, 77 Idaho 257, 291 P.2d 290 (1955). Further, the represented spouse has the burden of proving it is fair and reasonable and free from fraud. 24 Am.Jur.2d Divorce and Separation § 836 (1983). In this case, Carolee was unrepresented and the agreement was not fair and reasonable. The divorce decree should have been vacated under SDCL 15-6-60(b).

* * *

The majority emphasizes the fact that Carolee should have investigated further prior to negotiating the agreement. The majority also emphasizes the fact that Lawrence and Carolee worked out the agreement independent from his counsel and that his counsel merely drafted the finished product. This ignores the reality of the situation. Lawrence was able to negotiate with the benefit of sound legal advise [sic], while Carolee was on her own. Though Lawrence's counsel advised Carolee that she could retain independent counsel, he could not advise her as to the propriety of entering into the agreement. Further, there was evidence that Lawrence had strong influence over Carolee, as he abused her physically. In view of this, and the final inequitable result, the majority's statement that Carolee "entered into the agreement voluntarily, freely and intelligently" is questionable at best, and Carolee should be granted relief under SDCL 15-6-60(b).

NOTES AND QUESTIONS

1. In *Jeffries*, the wife waited four months following the divorce to challenge the agreement. She, at least, secured the vote of Justice Sabers. What if she had waited two and one-half years? See *Anderson v. Somers*, 455 N.W.2d 219 (S.D. 1990) (majority opinion authored by Justice Sabers) which is found in the next Chapter of this book, Chapter XIV on Modifications.

2. Generally speaking, collateral attacks on judgments rarely, if ever, succeed. Keeping in mind that there is a 60 day cooling off period, it would seem that there would be adequate time in most cases for a party to reconsider and present claims of unfairness, fraud, or duress to the trial court prior to the time the court is asked to incorporate the agreement into the divorce decree.

3. South Dakota cases indicate that a party will be given a much greater opportunity to avoid an agreement in contemplation of divorce provided the party's effort to avoid the agreement is presented to the court prior to the court's approval of it. Eg. *Miller v. Miller*, 444 N.W.2d 45 at footnote 1 (S.D. 1989). (The *Miller* case is found in the "Custody" chapter of this book, *supra*.)

4. Consider also *Radigan v. Radigan*, 465 N.W.2d 483 (S.D. 1991). The trial court rejected an agreement signed by the wife while in Germany. She was under the control of Husband and was unrepresented by counsel. The agreement gave H 100% ownership of the parties' only major marital asset, H's military pension, and W "viewed her signature as a precondition for getting out of Germany." The South Dakota Supreme Court affirmed the trial court's award of one-third of H's military pension to W stating, "[u]nder these circumstances, we cannot say the trial court abused its discretion in rejecting the agreement." 465 N.W.2d at 485.

5. In *Klein v. Klein*, 500 N.W.2d 236 (S.D. 1993), the parties were married less than three years before wife filed for divorce. Without the benefit of an attorney husband agreed to pay her \$800 per month alimony and \$500 per month child support for the parties' only child. Two months after the divorce decree was entered, husband sought to set aside the decree, to eliminate alimony, and to bring child support down to the amount set in the guidelines. Husband asserted mistake, inadvertence, surprise, and excusable neglect due to his "emotional state of mind after the marriage breakdown." The trial court denied relief to husband and the Supreme Court of South Dakota affirmed.

6. In *Jopling v. Jopling*, 526 N.W.2d 712 (S.D. 1995), the divorce decree was entered on the 60th day from the date service was admitted by the wife -- not the 61st day, which is required by SDCL 25-4-34. In the parties' initial agreement which was adopted by the court, wife did not seek alimony nor did she seek a portion of the husband's retirement plan. Almost two years later, she was permitted to successfully repudiate her previous agreement because the trial court lacked jurisdiction to enter the decree. Wife was then able to secure a more favorable disposition of property and an alimony award.

7. In *Cramer v. Smith*, 1997 SD 137, 572 N.W.2d 445 (S.D. 1997), there was a squabble over the husband's alleged misappropriation of money and the matter of "interpretation" of an agreement incorporated into a divorce decree. The dispute centered over clauses which dealt with the parties' sale of their principal asset, a business interest, and their responsibility to each pay one-half of the tax liability resulting from the sale. [Factually the dispute centered on some "draw downs" taken by husband the year before the sale, alleged by husband to be necessary taxable events associated with the sale.] The trial court found no violation of the agreement by the husband and that result was affirmed on appeal. The South Dakota

Supreme Court restated the rule which has evolved in South Dakota regarding the interpretations of such agreements as follows:

"A court applies contract principles when interpreting a property settlement agreement incorporated into a divorce decree... The interpretation of these agreements is a matter of law for the courts to decide... [numerous citations omitted] " *Id.* at 447.

8. The main case, *Jeffries v. Jeffries*, was distinguished by the SD Supreme Court in its recent decision in *Pekelder v. Pekelder*, 1999 SD 45, 591 N.W.2d 810. In the *Pekelder* case, the parties had been divorced by decree in 1986 and at that time they agreed that, "... any property or property rights not contemplated or known at the time of this Agreement that have been deliberately withheld from the knowledge of the other, and not accounted for at the time of this Agreement, shall be considered to be the common property of the parties hereto, and shall be divided equally between the parties..." Some ten years later, in 1996, the wife first learned of Husband's retirement plan with Farmland Industries where husband was employed during most of the twenty year marriage. Wife instituted an action to recover 50% of the marital portion of the Husband's retirement plan. The trial court awarded wife 50% of the retirement plan rights earned prior to the date of the divorce and the SD Supreme Court affirmed in an unanimous *per curiam* opinion. About the *Jeffries* case, the Court said, "[husband] construes *Jeffries* too broadly. It does not grant a license to hide or misrepresent the value of marital assets... Rather, it holds that divorcing spouses living apart and negotiating a property settlement bear equal responsibility for ascertaining the nature and value of their marital assets.... Here, in contrast with the wives in *Jeffries* and *Collins* [a California case], [wife] fulfilled her responsibility ... by retaining counsel and negotiating through him and by relying on his request for production of documents and his other arrangements for the exchange of information about assets and liabilities." In the *Pekelder* case, the trial court found that husband had deliberately withheld information about his retirement plan and the SD Supreme Court found no error in this finding.

9. **Wife's Collateral Attack on Agreed-Upon Divorce Decree filed 10 months After Decree Rejected in *Parsley v. Parsley*, 2007 SD 58, 734 N.W.2d 813.** In *Parsley v. Parsley*, 2007 SD 58, 734 N.W.2d 813, the trial court granted a decree of divorce on December 22, 2004, based on wife's admission of service (as defendant) and the parties' "Stipulation and Agreement." Wife subsequently filed a motion to vacate the divorce decree almost 10 months later on October 22, 2005. The trial court upheld its decree, but did "defer" jurisdiction over child custody matters in favor of Arizona. On appeal, wife asserted that the SD trial court lacked subject matter jurisdiction, personal jurisdiction, improper service of process, fraud by husband, that the agreement was unconscionable, and error in denial of attorney fees relating to her challenge as to child custody jurisdiction. The South Dakota Supreme court affirmed the trial court's decision in all respects in a unanimous opinion authored by Chief Justice Gilbertson. Service of process through the mechanism of SDCL 15-6-4(i) was upheld because wife had accepted process and returned the "admission" form.

D. Post-Divorce

NOTE

In Estate of Thomas v. Sheffield, 511 N.W.2d 841 (S.D. 1994), the parties' real estate was sold four years and four months after their divorce. It was sold by the sheriff, pursuant to an order of court. Wife purchased the real estate at the sale. Husband and wife entered into a written agreement for the disposition of the sale proceeds. Under the agreement husband received \$27,727.07. Subsequently, husband indicated that he did not plan on going through with the agreement. Wife died one month later. Husband contends that the agreement is unenforceable because he asked the court to set it aside prior to its submission to and approval by the court. The trial court enforced the agreement and the South Dakota Supreme Court affirmed. The Supreme Court acknowledged that "[w]hile it was within the trial court's discretion to reject the Agreement," it was in fact approved by the trial court. *Id.* at 843. In footnote 1 of the opinion, the court noted that agreements to modify child support obligations must be in writing and that, unless they have received court approval, they are not looked upon favorably.

Chapter Fourteen

Modification

A. Custody

1. Continuing Jurisdiction

Any lawyer involved in the practice of family law may have many active files pending at the same time. Frequently, that lawyer's time and activity may be more devoted to (or, rather, consumed by) modification proceedings.

The vast majority of all divorce cases are settled. In most jurisdictions the settlement percentage exceeds 95% — *i.e.* more than 95% of all divorce cases are settled. Modification proceedings, on the other hand, tend to result in fewer settlements. They frequently end up in protracted litigation. The parties to a modification may have had adequate time to adjust to the divorce, may have become less agreeable in dealings with their former spouse, and generally are more set in their desires. Ironically, there is only one chapter of this book devoted to modification. In reality, contested modification proceedings may dominate the practicing lawyer's time.

The question frequently arises as to whether or not a party must proceed before the same judge in a modification case. Under SDCL 15-12-21 *et seq.*, a party has the right to one change of judge. There must first be an informal request to the judge to have him disqualify himself. SDCL 15-12-21.1. The request is waived unless it is made prior to submission of argument or proof in support of a motion. SDCL 15-2-24. The waiver continues "until the final determination of the action and includes all subsequent motions, hearings. . .and all proceedings to enforce, amend, or vacate any order or judgment." *Id.*

In *Matter of Establishing Boundaries*, 318 N.W.2d 118 (S.D. 1982), the successful appellant (from an earlier appeal) sought to invoke a change of judge when the case was remanded. The issue, thus, was whether or not it was "too late" to seek a change of judge. The South Dakota Supreme Court held that a change of judge was *not* available on remand. The "waiver" provision of SDCL 15-12-24 was triggered when the case was originally submitted to the trial court the first time around, and it continues throughout all subsequent proceedings.

In most cases, by the time a party or her lawyer has decided that a certain judge is undesirable, it is far too late to exercise the statutory right to change of judge.

RELEVANT SOUTH DAKOTA STATUTES

CHAPTER 15-5: VENUE OF ACTIONS

15-5-14. Change of venue in postjudgment divorce, paternity, or separate maintenance actions. The court may change the venue of trial or hearing in postjudgment divorce, paternity, or separate maintenance actions if:

- (1) The parties no longer reside in the county where the action was decided; or
- (2) The parties agree; or
- (3) Convenience of witnesses or the ends of justice would be promoted by the change.

Source: SL 1998.

CHAPTER 25-4: DIVORCE AND SEPARATE MAINTENANCE

25-4-45 Child custody provisions -- Modification -- Preference of child. In an action for divorce, the court may, before or after judgment, give such direction for the custody, care, and education of the children of the marriage as may seem necessary or proper, and may at any time vacate or modify the same. In awarding the custody of a child, the court shall be guided by consideration of what appears to be for the best interests of the child in respect to the child's temporal and mental and moral welfare. If the child is of a sufficient age to form an intelligent preference, the court may consider that preference in determining the question. As between parents adversely claiming the custody, neither parent may be given preference over the other in determining custody.

Source: CivC 1877, § 72; CL 1887, § 2583; RCivC 1903, § 91; RC 1919, § 164; SDC 1939, § 14.0724; 1994, ch 192.

CHILD CUSTODY JURISDICTION

Roger M. Baron

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I. INTRODUCTION

Jurisdictional disputes over child custody may be intrastate, interstate, or international in nature. Child custody jurisdiction disputes may also involve tribal courts pitted against state courts or other tribal courts. This article addresses the considerations inherent in each of these four scenarios.

Jurisdictional disputes over child custody also tend to fall squarely into one of two categories: (a) instances involving initial efforts to establish a custody decree and (b) instances involving efforts to *modify* an existing custody decree. The law of initial jurisdiction differs from the law for modification jurisdiction. Accordingly, it is important to keep the distinction between *initial* jurisdiction and *modification* jurisdiction in mind when dealing with jurisdictional issues.

This article is written for the South Dakota lawyer and is intended to serve as a guide toward the proper resolution of child custody jurisdiction issues. An exhaustive treatment of all possible jurisdictional issues is not feasible in this article. It is hoped, however, that for those issues to which the answers are not provided, at least the methodology for finding the answers is provided together with a general indication as to where the answer lies.

* * *

B. Modification Jurisdiction

Once a South Dakota court has entered a custody decree, that court retains continuing jurisdiction to vacate or modify the decree. The concept that the original court retains continuing jurisdiction is a common and well-accepted principle in family law with the more crucial point of inquiry being whether or not the original court's continuing jurisdiction is exclusive. South Dakota case law indicates that the jurisdiction is indeed both continuing and exclusive. Exceptions to the notion of exclusive continuing

jurisdiction in the original divorce court are limited to subsequent adoption proceedings or situations where juvenile court jurisdiction may be triggered. Requiring that subsequent efforts to modify a custody decree be brought in the original court which issued the decree is a positive step toward enhancing the likelihood of stability in the child's environment. Otherwise, disappointed litigants could constantly attempt to pit one circuit court against another in an effort to secure a more favorable custody disposition through modification proceedings elsewhere in the state.

A drawback under South Dakota's present scheme lies, however, in the scenario where the child and custodial parent have relocated elsewhere in the state and have lived at their new residence for an extended period of time. The original divorce court may be in an inconvenient and awkward location to facilitate the presentation of evidence relevant to the child's best interest and any alleged changed circumstances. At least one other state has, through legislative action, mandated that upon request an intrastate transfer of modification proceedings shall be ordered when the child has resided in a new county of residence for six months or longer. Transfer may also be possible under a state's traditional "change of venue" provisions or even under intrastate versions of *forum non conveniens*.

* * *

"If I had eight hours to chop down a tree, I'd spend six hours sharpening my ax."

Abraham Lincoln

A. Custody

2. The Traditional Standard

MENNING v. MENNING

Supreme Court of South Dakota, 1978.
272 N.W.2d 828.

DUNN, Justice.

Defendant Darrell Menning seeks modification of the original divorce decree provision by which child custody rights to the parties' daughter were granted to plaintiff Sandra Menning. The trial court denied the change in custody sought, and Darrell appeals. We affirm.

The parties were married on March 22, 1957, and four children were born as issue of the marriage, *i.e.*, Terry, Todd, Brian, and Cindy. At the time of the divorce, their ages were 15, 13, 9, and 4, respectively. The divorce decree incorporated an agreement entered into by the parties which gave Darrell the sole care, custody, and control of Terry and Todd and Sandra the sole care, custody and control of Brian and Cindy. Visitation rights were prescribed, and Darrell was deemed responsible for support payments for Brian and Cindy.

On August 10, 1977, Darrell moved the trial court to modify the divorce decree by changing custody of Cindy from Sandra to Darrell upon the grounds that there were changed circumstances since the divorce and changing the custody of Cindy would be in her best interests.⁴ After a hearing on the motion, the trial court denied the motion and entered findings of fact and conclusions of law in support of its judgment denying the motion.

The trial court is vested with broad discretion in deciding questions of child custody modification, and such trial court decisions will be reversed only upon a clear showing of an abuse of that discretion. SDCL 25-4-45; *Ulver v. Ulver*, 1956, 76 S.D. 371, 78 N.W.2d 830; *Weygand v. Weygand*, 1941, 68 S.D. 1, 297 N.W. 689. To aid the trial court in the exercise of its discretion in child custody modification proceedings, we have adopted the rule that the parent seeking modification of custodial rights has the burden of proving by a preponderance of the evidence that (1) there has been a substantial and material change of circumstances since the decree of divorce was entered, and (2) the welfare and best interests of the children require the modification being sought. *Masek v. Masek*, 1976, S.D., 237 N.W.2d 432, 434.

The record reveals that there have been very few changes in circumstances. Darrell has remarried and still resides in Corsica, South Dakota. He has changed his means of earning a living from working in the burial vault business and running a bowling alley to full-time farming and part-time school bus driving. By oral agreement, Sandra has allowed Brian to live with Darrell. Sandra and Cindy moved to Michigan, and

⁴ The motion for change of custody did not include Brian because Brian was already living with Darrell by agreement of the parties, although it appears that Sandra did not expressly waive her right to the sole care, custody, and control of Brian.

Sandra has remarried. At the time of the motion for change of custody, Cindy was almost seven years old.

Reviewing these changed circumstances, we find that the remarriage of both parties is of no consequence, especially in light of the fact that Sandra's husband has accepted Cindy as his own child, and his relationship with her is warm and loving. Further, the fact that Sandra has moved to Michigan is not *per se* a ground for review of custody. There was no territorial restriction placed upon the right to custody; in fact, the divorce decree adopted the stipulation of the parties which contemplated moves outside the state in its visitation provisions. Darrell contends that Brian's move back to South Dakota is a material and substantial change of circumstances, mandating that he have custody of Cindy in order to bring the family together. Simply allowing Brian to stay with Darrell does not constitute a change in circumstances that is sufficiently material to affect Cindy in an adverse manner.

The trial court found that Darrell failed to prove by a preponderance of the evidence that there had been a substantial and material change of circumstances since the entry of the divorce decree. Our review of the record indicates that such a finding is justified; therefore, the trial court did not abuse its discretion in making such a finding.

Darrell attempted to show that Cindy's welfare and best interests required the modification being sought. He testified that he was in a better position to take care of all four children in that he had changed jobs and settled down to more conventional-type living. It was pointed out, however, that Darrell was having trouble paying some of his bills, he had shown very little profit as far as earning income, and his wife was working to help support the family. Terry had been subject to juvenile correction at the Youth Forestry Camp. Since moving in with Darrell, Brian had been expelled from school as the result of a behavioral problem. Other testimony from family and friends indicated that the brothers and sisters were close and loved each other and that the family attended church together regularly. The fact that the brothers and sisters were close and liked being together is only one component within Cindy's total welfare and best interests.

Sandra testified that her husband was committed to treating Cindy as his own child and to providing her with a good home. Sandra's husband was employed as a manager of a grocery store and had a steady salaried income. Her husband had custody of his twelve-year-old son who got along well with Cindy. The family attended church together regularly and Cindy was enrolled in the local Christian school. Cindy was shown to have many friends in her Michigan neighborhood. Testimony from family and friends indicated that Cindy and her mother were close and companionable.

Expert testimony from an educational psychologist who had tested Cindy at Darrell's request indicated that she felt good about both parents and that she was equally happy in both homes. The expert stated that Cindy had a good relationship with her mother and that inferences made about Sandra were very positive. He further testified that Cindy was a well-adjusted little girl and was not harmed emotionally by living with her mother. In reply to a leading question asked by Darrell's counsel, the expert indicated that with all other things being equal, Cindy would be happier and more well-adjusted living with her father, stepmother, and brothers than living with just her mother alone. This is not helpful because the evidence shows that she was equally happy and well-adjusted living with her mother, stepfather, and the twelve-year-old son of the stepfather.

Finally, the trial judge interviewed Cindy in chambers and reported that Cindy loved both parents but wanted to live in South Dakota with her father and her brothers. The expert psychologist testified that the six weeks that Cindy had just spent with her father would have a substantial influence on her, particularly

in the summer months when she was free to play and enjoy her brothers. He further testified that this influence affected his sessions with her and would presumably prompt Cindy to say something to please Darrell such as her stated preference for living in South Dakota.

Darrell concedes that both parents would provide a sufficient home for Cindy and that her development would not be harmed by being in the custody of either parent. He contends, however, that she would be happier with her father and her brothers. The testimony that the children love each other and that Cindy is happy when she is with her brothers falls short of proving by a preponderance that her welfare and best interests require modification of custody. There was no showing that the present custody situation adversely affects Cindy's welfare or best interests, *e. g.*, her mother's failure to properly provide for Cindy's physical, social, moral, and educational needs.

The trial court found that Cindy's welfare and best interests would be served by leaving her in the custody of her mother, Sandra. There is considerable support in the record for such a finding; therefore, the trial court did not abuse its discretion in making such a finding.

The judgment of the trial court denying the motion for change of custody is affirmed.

All the Justices concur.

NOTE (Termination of Guardianship *not* governed by custody modification criteria)

In Re T.L.R., 2002 SD 54, 645 N.W.2d 246, was decided on May 8, 2002. In this case, the maternal grandparents had maintained guardianship of their grandson since 1997, pursuant to a guardianship proceeding. The guardianship (and the grandparents' exertion of custody over their grandson pursuant thereto) had been continuously contested by the father of the child – the son of these custodial grandparents. At one point, the trial court had in fact terminated the guardianship in favor of a custody award to the father in December, 1998, only to vacate this order a short time later. Abuse of alcohol by the father appears to have been an ongoing problem, or at least an ongoing concern. Eventually, the father prevailed in his effort to secure custody. The trial court terminated the guardianship in March, 2001 and the grandparents appealed. The South Dakota Supreme Court affirmed, holding that the criteria for termination of guardianship was controlled by the appropriate guardianship statute, SDCL 29A-5-506, which permits termination if the court “determines that the minor is no longer in need of assistance or protection of a guardian.” The grandparents argued *unsuccessfully* that the termination criteria should be the same as that for “modification of custody” and that the father had not shown “material and substantial change in circumstances” which warranted the termination of the guardianship.

This opinion sets forth a three-step analysis to be utilized in deciding whether or not a guardianship should be terminated and a child returned to the natural parent. Those steps are 1) determine whether the parent seeking to terminate the guardianship is fit – if not fit, then the guardianship should not be terminated. If the parent is fit, then 2) determine if there are “extraordinary circumstances” and if not, then terminate the guardianship and return the child to the parent. If there are “extraordinary circumstances,” then 3) determine what is in “best interests” of the child and based upon this “best interests” analysis, either return to the natural parent or retain the guardianship. ¶ 18 of opinion.

Editor's Notes about this opinion:

1) At the time this decision was handed down, the new statutes [SDCL 25-5-29, 25-5-30, 25-5-31, 25-5-32, 25-5-33, 25-5-34, 29A-5-106 and 29A-5-106.1] were in effect, having been passed by the 2002

legislature with emergency clauses and having been signed by Governor Janklow on February 28, 2002. This opinion does not address nor does it cite any of the new statutes.

2) This opinion is unanimous by the court and it is authored by Acting Justice Gors, the trial judge in the *Meldrum v. Novotny* saga.

3) This opinion reviews *Meldrum v. Novotny*, 2002 SD 15, and summarizes its holding in ¶ 14. [NOTE: The new statutes which were passed by the South Dakota Legislature in 2002 are reproduced in Chapter 8 “Custody,” *supra*, in connection with the materials on “Non-parents.” These new statutes have sometimes been referred to as “Timmie’s Law” because they were passed in response to the publicity associated with custody dispute concerning Timmie Meldrum in the *Meldrum v. Novotny* saga.]

NAUMAN v. NAUMAN

Supreme Court of South Dakota, 1989.
445 N.W.2d 38.

HENDERSON, Justice.

Cheryl A. Cunningham (mother) appeals from an order modifying judgment and decree of divorce which awarded custody of the parties' children to Ralph Nauman (father). We affirm.

The various proceedings in this action have already resulted in two appeals to this court. *See Nauman v. Nauman*, 336 N.W.2d 662 (S.D.1983); *Nauman v. Nauman*, 320 N.W.2d 519 (S.D.1982). Father and mother were divorced in 1980, and custody of the parties' two children was awarded to mother. Pursuant to orders entered in 1982 and 1984, father had extended visitation rights during the months of June, July, and August of each year, although mother was permitted to have the children during the first weekend in July and August. Mother retained custody of the children during the rest of the year at her home in Mitchell, South Dakota.

Father exercised his visitation rights during the summer of 1987, and the children lived with him and his new wife at their residence in Brookings, South Dakota, throughout the month of June. With the consent of father, mother picked up the children on July 3, 1987, for her weekend visitation. The parties agreed that the children would be returned to father on July 6 or 7. However, on July 7, 1987, mother called father and informed him she would not return the children. Instead, mother removed the children to McCook, Nebraska, where she and her new husband had recently moved. Despite telephone calls from father and his wife, mother refused to return the children. She claimed that the children were afraid of father and did not want to go back to Brookings. Ultimately, the children were returned to father, but only after he instituted a criminal action against mother. Father was required to fly to Nebraska to pick up the children.

In an application dated July 14, 1987, father sought a change of custody. Following a hearing, the trial court found that there had been a substantial and material change in circumstances which warranted a modification of the custody provisions of the divorce decree. The trial court concluded that it is in the best interests of the children that they be placed in the custody of father, subject to reasonable visitation rights for mother.

ISSUE

Did the trial court abuse its discretion in determining that the best interests of the children required a change of custody?

DECISION

The paramount consideration in deciding the issue of child custody is the best interests of the child. SDCL 30-27-19; *Lindley v. Lindley*, 401 N.W.2d 732 (S.D.1987). The trial court is vested with broad discretion in deciding questions of child custody modification, and the court's decision will be reversed only upon a clear showing of an abuse of that discretion. *Andersen v. Andersen*, 399 N.W.2d 363 (S.D.1987); *Menning v. Menning*, 272 N.W.2d 828 (S.D.1978). The parent seeking modification of custodial rights has the burden of proving 1) that there has been a substantial and material change of circumstances since the decree of divorce was entered, and 2) that the welfare and best interests of the children require modification. *Id.*

Here, the record indicates that there was in fact a substantial and material change in circumstances since the decree of divorce was entered. Most importantly, mother has been unwilling to abide by the trial court's orders regarding visitation, thereby aggravating an already hostile relationship between the parties. She has also attempted to alienate the children from their father, as shown by the children's parroting of language used by mother in her arguments with father. Furthermore, mother has communicated her hostile feelings through the children rather than by direct communication with father, and she has allowed the children to read the legal documents in this case and has solicited their responses.

A review of the record also shows that the welfare and best interests of the children require modification of custody. A psychologist who examined both children testified that their mental health would suffer unless they have consistent ongoing contact with both parents. He recommended that custody be awarded to the parent who will allow the most contact with the noncustodial parent. This has certainly not occurred when the children are in mother's custody. She has sought to prevent visitation with father, even to the point of disregarding court orders. Therefore, we conclude that the trial court did not abuse its discretion in awarding custody of the children to father. *Flint v. Flint*, 334 N.W.2d 680 (S.D.1983); *Hansen v. Hansen*, 327 N.W.2d 47 (S.D.1982). In doing so, we recognize that father has not been a paragon of virtue in these proceedings, and his testimony has often been in conflict with mother's testimony. However, the trial court's decision, based on its first hand opportunity to gauge the credibility of the parties, must be given the appropriate deference mandated under our scope of review. *Saint-Pierre v. Saint-Pierre*, 357 N.W.2d 250 (S.D.1984); *Schmitz v. Schmitz*, 351 N.W.2d 143 (S.D.1984).

Finally, mother claims that the trial court's order should be reversed since it will disturb the children's relationship with their half-siblings. We refuse to address this argument since the issue was not raised at the trial court level. *Sobolik v. Stone*, 420 N.W.2d 764 (S.D.1988); *Mayrose v. Fendrich*, 347 N.W.2d 585 (S.D.1984).

ATTORNEY FEES

Both parties have filed affidavits itemizing the costs incurred and legal services rendered in this matter. *Malcolm v. Malcolm*, 365 N.W.2d 863 (S.D.1985). After due consideration, we decline to award attorney fees to either party.

Affirmed.

MORGAN and MILLER, JJ., concur.

SABERS, J., dissents.

NOTES

1. In a rather bizarre case involving the recusal of some five judges, custody of the parties' two children was transferred from the father to the mother. The father (who had a tendency to telephone the judges assigned to the case and discuss the case or "rant and rave and scream and curse and flip in and out of reality") was found to have "wilfully engaged in a continuous and intensive course of conduct designed to alienate the children's affections from their mother." The father, *inter alia*, refused to let the children talk to mother on the phone, repeatedly called her vulgar names in front of them, obstructed mother's letters and packages from reaching them, apparently coached the eight-year old daughter to threaten suicide if confronted with placement with the mother, and called mother's new husband a "molester" in front of the children (without substantiation of such allegations). *Jeschke v. Wockenfuss*, 534 N.W.2d 602 (S.D. 1995). This case falls in line with the *Nauman* case which recognizes that when a custodial parent undertakes to alienate the children from the non-custodial parent, those efforts may, in and of themselves, constitute grounds for modification. The trial court's order transferring custody from the father to the mother was affirmed on appeal.

2. **Custody award to wife was supported by recognition that she was more willing (than husband) to facilitate frequent and meaningful contact between child and other parent, according to the decision in *Arneson v. Arneson*, 2003 SD 125, 670 N.W.2d 904.** In this case the trial court awarded custody of the parties' only child to wife. Husband has cerebral palsy and is in a wheelchair. Husband appealed arguing error because of federal ADA (American with Disabilities Act). Husband also argued that trial court wrongly applied the "tender years presumption.

The South Dakota Supreme Court affirmed the trial court in all respects (5-0).

"Concerning the fitness factor, the court found that W was more willing to 'maturely encourage and provide frequent and meaningful contact between the child and the other parent.'" ¶ 22. This case involves the issue of the difficulty which the parties experienced in sharing the child during the parties' separation. The trial court attributed greater responsibility for this difficulty to husband. The trial court found that wife had "demonstrated great willingness to share the child with [husband] whereas [husband] tends to want to hang on to the child to meet his needs rather than focusing on the needs of the child." ¶ 25. The Supreme Court found that this was supported by the record which indicated, *inter alia*, that husband was, quoting the trial court, "'highly resistant to providing monetary support, using the financial issues to attempt to coerce the custody issue...'" ¶ 25.

3. **Despite fact mother had been primary caretaker, custody of 3 minor children awarded to Father.** The trial court in *Kreps v. Kreps*, 2010 SD 12, 778 N.W.2d 835, awarded father primary custody of three minor children despite the fact the mother had served as primary caretaker and despite the fact the custody evaluator's report favored mother. The SD Supreme Court affirmed in a 4-1 decision with the majority opinion being authored by Chief Justice Gilbertson. Two primary issues come into focus in this

case:

Primary Caretaker factor is not absolute. In affirming this decision the Court stated, “We have acknowledged that other jurisdictions place greater emphasis on [the ‘primary caretaker’] factor than others. However we have always been clear that the trial court analyzes various factors in making custody determinations... We have never held that this factor should prevail over all other factors a trial court may consider.” ¶ 28.

Preference for parent who is more likely to foster relationship with opposing parent. In this case the trial court found that the father “is the parent most willing to maturely encourage and provide frequent and meaningful contact between the child and the other parent. [Father] is strongly favored in this regard.” ¶ 33. The SD Supreme Court observed that this finding was contradictory to the finding of the custody evaluator, but noted that the evaluator was relying upon “self-reported” statements by the parties. ¶ 35. The SD Supreme Court stated, “In the instant case, the trial court determined that [Father] was a more credible witness than [Mother]. It also found that [Mother] had blocked [Father’s] contact with the children on several occasions, attempting to alienate the children from him, and regarded the children as more hers than his. Although [Mother] strongly disputes it, there is an evidentiary basis in the record to support these findings of fact.” ¶ 35.

Overreaching and unwarranted findings. Justice Konenkamp dissented. In his dissent, Justice Konenkamp expressed dissatisfaction with the manner in which the adversarial process in custody cases may result in the trial court’s adoption of “overreaching and unwarranted findings prepared by counsel for the winning side.” Justice Konenkamp urges that trial courts should render decisions “reflecting their own independent observations and reasoning.” According to Justice Konenkamp, “Although the court at the close of trial issued an oral decision from the bench, ... much of findings the court later signed as proposed by winning counsel reflect not the expression of independent judicial thought but the rhetoric of adversarial excess.” ¶ 44.

4. The South Dakota Supreme Court reversed the trial court's decision to switch primary custody of the children from mother to father when the mother moved 70 miles from Claire City, SD, to Watertown, SD. The court followed the general rule that insignificant geographical changes will not generally constitute a substantial change in circumstances. *Fossum v. Fossum*, 545 N.W.2d 828 (S.D. 1996). In this case, the court quoted with approval the following language from an earlier decision: "The mere fact that conditions have changed since the decree is not sufficient in itself to warrant modification...This is a heavy burden, but the courts the parties and especially the children must be protected from endless and vexatious litigation and the resulting uncertainty flowing therefrom." *Id.* at 832.

5. Despite the supporting testimony of two independent experts, a change of custody was denied by the trial court. The South Dakota Supreme Court, in a three-two opinion, affirmed holding that the two-prong criteria for modification (material and substantial change in circumstances and best interests of the child) "is a heavy burden" designed to protect the children from endless and vexatious litigation. *Kappenman v. Kappenman*, 523 N.W.2d 410 (S.D. 1994).

A. Custody

3. Where the Prior Decree Was Uncontested

KOLB v. KOLB

Supreme Court of South Dakota, 1982.
324 N.W.2d 279.

FOSHEIM, Chief Justice.

Karie L. Kolb (appellant) and Myron A. Kolb (appellee) were divorced in December 1979. In September 1978, twin girls were born of their marriage. The divorce decree awarded appellant custody of the twins, subject to visitation rights by appellee pursuant to a separation and property agreement. This appeal is from an order which modified the divorce decree, switching custody to appellee. We affirm.

At the time of the divorce both parties were employed and resided in Aberdeen, South Dakota. In October of 1980, appellant moved to Texas with her boyfriend, leaving the children in Aberdeen with her mother. The following month appellant took the children to Mississippi, where she was then living. After about seven weeks, appellant moved the twins to her father's home in Florida where they remained without her until January 21, 1981. She then returned the children to Mississippi where they resided until March 1, 1981, when they all came back to Aberdeen. Appellant originally testified she planned to marry her boyfriend and have the children live with them, although his work involved frequent out-of-state moves. She later testified that her plans had changed and that she did not intend to marry, or to move out of Brown County.

When custody was changed, appellee was employed in the same position he held at the time of the divorce. Appellee testified that he intends to marry his girlfriend with whom he is living. Appellant's frequent moving the children rendered appellee's visitation privileges difficult to exercise and seems to have precipitated the motion to modify the divorce decree. Appellee's girlfriend testified that after she and appellee are married she wishes to assist in the care of the twins.

Appellant claims the evidence does not establish a substantial change of circumstances required to modify the divorce judgment.

SDCL 25-4-45 allows a court to vacate or modify the custody provisions of the judgment. That statute predates statehood. Civil Code 1877, § 72; CL 1887, § 2583. A parent seeking modification of custodial rights, pursuant to SDCL 25-4-45, has the burden of proving by a preponderance of the evidence that (1) there has been a substantial and material change of circumstances since the divorce decree was entered and (2) the welfare and the best interests of the children require the modification being sought. Either factor by itself is not sufficient to justify a change of custody--both must be present. *Sneesby v. Davis*, 308 N.W.2d 565 (S.D. 1981); *Engels v. Engels*, 297 N.W.2d 489 (S.D. 1980); *Masek v. Masek*, 90 S.D. 1, 237 N.W.2d 432 (1976); *Huckfeldt v. Huckfeldt*, 82 S.D. 344, 146 N.W.2d 57 (1966). "The rule of 'changed circumstances' is not statutory, but a creature of judicial expediency. Its purpose is to protect the court, the parties, and the children from continuing vexatious litigation on questions of custody." *Huckfeldt, supra* at 59.

Our custody modification decisions generally do not distinguish between a judgment based on evidence and findings of parental fitness and child interests and a judgment which rests on a custody agreement or upon findings absent existing material custody evidence. It seems to be the consensus of these decisions that the parties cannot relitigate the correctness of the original custody disposition because an award of custody, regardless of its basis, is res judicata as to conditions existing when made. *Masek, supra*; *Hershey v. Hershey*, 85 S.D. 85, 177 N.W.2d 267 (1970); *Huckfeldt, supra*; *Wellnitz v. Wellnitz*, 71 S.D. 430, 25 N.W.2d 458 (1946). Conversely an agreement between divorced parents relating to the custody of their children does not preclude the court from modifying the decree as circumstances require, and we have adhered to the substantial change of circumstances principle even though the original custody order was based on a stipulation of the parties. *Hershey, supra*; *Moser v. Moser*, 82 S.D. 149, 143 N.W.2d 369 (1966); *Wright v. Stahl*, 73 S.D. 157, 39 N.W.2d 875 (1949).

* * *

We believe that a factual absence occurs alike when the divorce decree, as in this case, rests solely on a separation agreement or when it is based on some facts, but devoid of other material facts then existing concerning the best interests of the children. Under either circumstance, evidence concerning child custody has not been litigated and to that extent should not be deemed adjudicated in a subsequent modification hearing.

It is well recognized that the stress, animosities, and economic exigencies which frequently surround divorce proceedings may not provide a suitable setting for a child custody agreement based solely on the best interests of the children. Paramount may be an urgent desire by one or both parties to end the marriage or, as in *Harms v. Harms*, 323 Ill.App. 154, 55 N.E.2d 301 (1944), the parents may use custody as a means of bargaining over whether the application for divorce will be contested. A custody disposition resting on such synthetic moorings should not be permitted to frustrate a subsequent best interest review after the dust from the marital dissolution has at least somewhat settled. As is noted in Annot., 9 A.L.R.2d 623, 624 (1950):

Opposing social interests must be balanced in determining to what extent an award of custody may be regarded as being subject to reopening for consideration of matters in existence but not considered in the original proceedings, the state being interested alike in safeguarding the welfare of the child, innocent victim of its parents' marital mishaps, and in insuring that litigation be conducted in an orderly manner to a definite conclusion.

Under ordinary principles of res judicata, a judgment or decree, absent fraud, is conclusive between the parties, not only as to matters decided therein, but those which might have been properly decided. A bald application of these principles would seem, in the absence of fraud, to preclude a relitigation by either of the parents, parties to the divorce action in which custody was awarded, of matters which could have been presented to the court, and so to bar subsequent consideration of matters in existence at the time of the original proceeding even though not considered therein.

We now conclude that facts pertinent to child custody, which were not put in issue or involved, tried and determined by the court as a basis for the original divorce decree, are not res judicata as to the best interests of the children, as indicated in *Wright, supra*, and may be considered anew in a subsequent custody modification hearing free from the substantial change of circumstances constraints. The modification hearing then becomes the first meaningful opportunity for the trial court to fully hear and decide all unlitigated matters of custody. The record before us reveals no evidence offered at the time of the divorce concerning custody. The court adopted a separation agreement which was dictated into the record by counsel. Thus

facts pertinent to child custody were not put in issue, involved, tried or determined by the court as a basis for the original divorce decree. The modification hearing, on the other hand, was an in-depth inquiry focusing directly on the best interests of the children. When the original decree is based on an agreement of the parties, the modification hearing should be free from the substantial change of circumstances constraints as this is the first meaningful opportunity for a trial court to fully hear and decide all unlitigated matters of custody. Consequently appellee was not required to prove change of circumstances affecting the welfare of the children. The trial court must be free in this type of case to consider and balance any adverse effect a custody modification may now have upon the children, regardless of the basis of the original disposition. This leads us to the discretion test.

SDCL 25-4-45 has been held to leave broad discretion in the trial court to determine which parent in a divorce action shall be given custody of their children and that decision will be reversed only for a clear abuse of discretion. *Sneesby, supra; Engels, supra; Huckfeldt, supra*. We cannot conclude the modification order here was a clear abuse of discretion.

The order of the trial court is affirmed.

WOLLMAN, DUNN and MORGAN, JJ., concur.

HENDERSON, J., concurs in part and dissents in part.

HENDERSON, Justice (concurring in part, dissenting in part).

* * *

I do not wish to see the trial courts in this state inundated with contested child custody modification hearings springing from this opinion. An agreement of the parties is not always shallow, synthetic, meaningless, fraudulent, made under duress, or “unlitigated.” More often than not, these child custody agreements are prepared within the confines of a superb adversarial system and scrutinized carefully by an able trial judge. In closing, I am fearful we are adopting a rule which will foster litigation in an already overburdened judicial system. . .

* * *

NOTES

1. The rule of *Kolb* was criticized by Professor LeAnn Larson LaFave in *Origins and Evolution of the "Best Interest of the Child" Standard*, 34 South Dakota Law Review 459, 525-26 (1989) as encouraging post-divorce litigation on the custody issue and therefore unlikely to promote stability and continuity in the lives of the children. In particular, the fear was raised that an unscrupulous party can trade off his assertion of custody for economic concession in the division of property and in alimony. Then, after time for appeal has run out, go back into court to have custody analyzed solely on the "best interests" standard.

2. The South Dakota Supreme Court has, on at least two occasions, been confronted with sincere efforts to repudiate the *Kolb* rule. *Olson v. Olson*, 438 N.W.2d 544 (S.D. 1989) and *McKinnie v. McKinnie*, 472 N.W.2d (S.D. 1991). In *McKinnie*, the court went to great length in addressing the concerns of vexatious litigation and re-adopted *Kolb* wholeheartedly.

3. Also, in *McKinnie*, the South Dakota Supreme Court made it clear that the *Kolb* rule applies in all situations where custody was not litigated -- whether by agreement or by default. In *McKinnie*, the original divorce decree was by default, and the father's motion to modify was sustained because it was in the child's best interests. 472 N.W.2d at 243-44.

4. What about a mediated agreement for custody? Such was the subject of analysis in *Blase v. Brewer*, 2005 SD 7, 692 N.W.2d 785, a case involving custody/visitation rights litigation which arose in the context of a paternity proceeding. The South Dakota Supreme Court held at ¶ 12, "Approval by court order of a mediated agreement does not amount to a litigated judgment. A mediation agreement is similar to a stipulation incorporated into a divorce decree. Thus, a later hearing to change or modify custody in these situations does not require a change in circumstances because the issues have never been litigated."

5. Many states address the criteria for custody modification through statute. Thus far, South Dakota has utilized only common law rules, as developed in the South Dakota Supreme Court, for determining the necessary criteria which would warrant a change of custody.

A. Custody

4. Relocations

Earlier in this book, materials were presented which addressed the matter of "relocation" by the custodial parent and child(ren) after the divorce. It was pointed out that the relevant South Dakota Statute, SDCL 25-5-13, is a very permissive statute in that it is probably the *least* restrictive type of statute -- at least from the perspective of the custodial parent who wants to move with the child. SDCL 25-5-13 is reproduced here again:

CHAPTER 25-5: PARENT AND CHILD

25-5-13 Power to change residence of child -- Restraining power of circuit court. A parent entitled to the custody of a child has the right to change his residence, subject to the power of the circuit court to restrain a removal which would prejudice the rights or welfare of the child.

Source: CivC 1877, s 104; CL 1887, s 2619; RCivC 1903, s 125; RC 1919, s 198; SDC 1939, s 14.0306.

NOTES

1. Can the custodial parent's relocation constitute grounds to modify custody? This translates into the question of whether or not the relocation is tantamount to a "material and substantial change in circumstances?" In *Fossum v. Fossum*, 545 N.W.2d 828 (S.D. 1996), the mother moved 70 miles from Claire City, SD, to Watertown, SD. The trial court transferred custody to the father based upon her relocation. The South Dakota Supreme Court reversed, following the general rule that insignificant geographical changes will not generally constitute a substantial change in circumstances.

2. The Georgia Supreme Court has recently reversed the previous common law view in Georgia in regard to considering a proposed relocation by a custodial parent. The issue presented was whether or not a custodial parent's proposed relocation out of state may, by itself, be the basis for change of custody in favor of the parent who would remain in state. Prior case law held that a primary custodian could relocate without fear of losing primary custody. This decision overrules this view and affirms a trial court who awarded primary custody to the parent who would remain in Georgia. In the case of *Bodne v. Bodne*, 277 Ga. 445, 588 S.E. 2d 728, the Georgia Supreme Court considered the situation where the custodial parent (Dr. Bodne, father) sought to relocate from Georgia to Alabama and filed petition to modify wife's visitation accordingly. Wife filed motion to modify custody based on father's planned move to Alabama. Trial court awarded wife primary physical custody.

Georgia Court of Appeals reversed, following previously-existing Georgia case law that the primary custodian's relocation out of state "alone cannot constitute a sufficient change in condition to modify custody." The Georgia Supreme Court reversed the Court of Appeals and reinstated the trial court's award of primary custody to wife. In so doing, the Georgia Supreme Court expressly overruled prior case law which "presumes that the custodial parent has a prima facie right to retain custody unless the objecting parent shows that the environment of the proposed relocation endangers a child's physical, mental or emotional well-being." The high court also noted that "the order of the trial court reflects that when making its custodial determination based on the best interests of the children standard, it appropriately considered the myriad factors that had a [n] impact on the children as established by the evidence adduced before it. Therefore, the trial court did not abuse its discretion in changing primary physical custody to [wife]."

3. In *Berens v. Berens*, 2004 SD 121, 689 N.W.2d 207, the trial court's award of primary custody of two children (the son, age 11, and the daughter, age 7) to the husband was affirmed on appeal. Wife had relocated to Oregon upon separation to be with her new boyfriend. Wife had attempted to bring domestic violence cases against husband but without success. The wife was found to lack "credibility" in her assertions of domestic abuse against husband based upon her history of bringing false and pretextual allegations. The Court also rejected the arguments of the wife that husband was unfit to be primary custodian based upon his

high cholesterol, his inability to read (illiteracy), and his alleged mental problems.

As to the “relocation” issue, the trial court had actually entered order giving wife primary custody if she would move back to SD within 30 days. Wife chose to stay in Oregon. The South Dakota Supreme Court held that the conditional award to wife if she would relocate back to South Dakota was improper, but the Court also upheld the primary custody award to husband. Court noted that husband’s continued residence in SD with his extended family supported the notion of “stability” for the children who lived in South Dakota. The Court stated, in ¶ 14, “Based on the evidence, the trial court concluded that both parents were fit to be the children’s primary custodian; however, it was not in the best interest of the children to move with Mother. The court has the responsibility to look at what is in the best interest of the children. Moving away from family, friends, and familiar surroundings may, in some cases, not be in their best interests.”

4. SD Supreme Court affirms award of primary physical custody to father, thereby modifying shared parenting arrangement, in wake of mother’s effort to relocate to Vermillion from Huron. In *Heinen v. Heinen*, 2008 SD 63, 753 N.W.2d 891, custody of two children was established (at the time of the divorce) as a shared parenting arrangement with periods of access rotating such that Mother would have the children 9 consecutive days and then father would have the children 5 consecutive days. Everyone lived in Huron initially. After the divorce, the mother became pregnant and gave birth to a daughter, half-sister to the children of the marriage. Then Mother sought to move to Vermillion to live with her fiancé and their baby daughter. She sought to take the children with her. The trial court granted primary physical custody to Father. The transfer of primary custody to father resulted in a “separation of siblings” in connection with their younger half-sister. The trial court articulated “compelling factors” to warrant the separation and the SD Supreme Court approved stating, “On this record, there is no demonstration that the circuit court made a fundamental error, reached a decision outside the range of permissible choices, or acted arbitrarily or unreasonably.” ¶ 12. The trial court was found to have made a proper analysis under the *Fuerstenberg* factors, with “stability” for the children being the primary compelling reason in support of the award in favor of Father. The SD Supreme Court affirmed in a unanimous *per curiam* opinion.

“I have found the best way to give advice to your children is to find out what they want and then advise them to do it.”

Harry S. Truman

2004 SOUTH DAKOTA RELOCATION LEGISLATION

Until recently in South Dakota, absent an agreement or specific provision in the divorce decree, the custodial parent had been free to relocate with the child without first giving notice to the non-custodial parent and without obtaining either consent of the other parent or leave of court. In 2004, however, the South Dakota Legislature enacted the following:

CHAPTER 25-4A: CUSTODY AND VISITATION RIGHTS

25-4A-17. Notice required before relocating child not living with both legal parents-- Exceptions.

If an existing custody order or other enforceable agreement does not expressly govern the relocation of the principal residence of a child, a parent who intends to change his or her principal residence shall, provide reasonable written notice by certified mail or admission of service to the other legal parent of the child. Reasonable notice is notice that is given at least forty-five days before relocation or a shorter period if reasonable under the specific facts giving rise to the relocation. Proof of the notice shall be filed with the court of record unless notice is waived by the court.

No notice need be provided pursuant to this section if:

- (1) The relocation results in the child moving closer to the noncustodial parent; or
- (2) The relocation is within the boundaries of the child's current school district; or
- (3) There is an existing valid protection order in favor of the child or the custodial parent against the noncustodial parent; or
- (4) Within the preceding twelve months, the nonrelocating parent has been convicted of violation of a protection order, criminal assault, child abuse, or other domestic violence and either the child or the custodial parent was the victim of the crime or violation.

Source: SL 2004, ch 173, § 1.

25-4A-18. Contents of notice of relocation. The notice required in § 25-4A-17 shall contain the following:

- (1) The address and telephone number, if known, of the new residence;
- (2) The purpose for relocating;
- (3) Why the relocation is in the best interest of the child; and
- (4) The relocating party's proposed visitation plan for the nonrelocating parent upon relocation.

Source: SL 2004, ch 173, § 2.

25-4A-19. Request for hearing on relocation--Presumption of consent. At the request of the nonrelocating parent, made within thirty days of the notice of relocation, the court shall hold a hearing on the relocation. If no request for hearing is made within thirty days of notice, the relocation is presumed to be consented to by the nonrelocating parent.

Source: SL 2004, ch 173, § 3

B. Child Support

1. Relevant Statutes

CHAPTER 25-4: DIVORCE AND SEPARATE MAINTENANCE

25-4-45 Child custody provisions -- Modification -- Preference of child. In an action for divorce, the court may, before or after judgment, give such direction for the custody, care, and education of the children of the marriage as may seem necessary or proper, and may at any time vacate or modify the same. In awarding the custody of a child, the court shall be guided by consideration of what appears to be for the best interests of the child in respect to the child's temporal and mental and moral welfare. If the child is of a sufficient age to form an intelligent preference, the court may consider that preference in determining the question. As between parents adversely claiming the custody, neither parent may be given preference over the other in determining custody.

Source: CivC 1877, § 72; CL 1887, § 2583; RCivC 1903, § 91; RC 1919, § 164; SDC 1939, § 14.0724; 1994, ch 192.

CHAPTER 25-7: SUPPORT OBLIGATIONS

25-7-7.3 Past due support payments not subject to modification -- Exception. Any past due support payments are not subject to modification by a court or administrative entity of this state, except those accruing in any period in which there is pending a petition for modification of the support obligation, but only from the date that notice of hearing of the petition has been given to the obligee, the obligor, and any other parties having an interest in such matter.

Source: SL 1987, ch 190.

25-7-6.13 Modification of prior orders of support. All orders for support entered and in effect prior to July 1, 2009 may be modified in accordance with this chapter without requiring a showing of a change in circumstances from the entry of the order.

Source: SL 2009

25-7-6.14. Abatement of child support. If the child resides with the obligor ten or more nights in a month pursuant to a custody order, the court may, if deemed appropriate under the circumstances, grant an abatement of not less than thirty-eight percent nor more than sixty-six percent of the basic child support obligation for the nights the child resides with the obligor. The order granting the abatement shall specify the number of nights for which the abatement is allowed and the amount of the abatement. In deciding whether an abatement is appropriate, the court shall consider whether it would have a substantial negative effect on the child's standard of living. The court shall allow the abatement to the obligor in the month in which the parenting time is ordered or apportion the abatement over a period of twelve months. It shall be presumed that the parenting time is exercised. If the parenting time exercised substantially deviates from the parenting time ordered, either party may petition the court for modification of the support order without showing any other change in circumstances.

Source: SL 1989, ch 220, § 14; SL 1997, ch 154, § 7; SL 2001, ch 133, § 2; SL 2005, ch 134, § 3; SL 2009, ch 130, § 6.

25-7-6.19 Credit for child support arrearages for parent with primary physical custody during period of custody. Notwithstanding the provisions of § 25-7A-17 or § 25-7-7.3, if, by agreement of the parties, the obligor had primary physical custody of the child for more than four consecutive months, the court may credit the obligor for child support arrearages which accumulated during the period the obligor had actual physical custody of the child.

Source: SL 1997, ch 154, § 10.

CHAPTER 25-7A: COLLECTION OF CHILD SUPPORT

25-7A-22. Petition for modification of child support--Hearing--Referee's report--Objections-- Service-- Objection to modification of report. If the support order was entered in this state and this state maintains continuing exclusive jurisdiction over the support order in accordance with chapter 25-9B, or if the support order was registered in this state and the requirements of § 25-9B-611 or 25-9B-613 are satisfied, an obligor, an obligee, or the assignee may file a petition, on forms prescribed by the department, to increase or decrease child support. For any support order entered or modified after July 1, 1997:

- (1) The order may be modified upon showing a substantial change in circumstances if the petition is filed within three years of the date of the order; or
- (2) The order may be modified without showing any change in circumstances if the petition is filed after three years of the date of the order.

If a petition is filed, the secretary of social services shall file the petition in the office of the clerk of the circuit court where the original order for support is filed. Any response shall also be provided to the petitioning party. The matter shall be set for hearing before a referee who is a member in good standing of the State Bar Association and is appointed by the court, pursuant to statute, and after due notice to all parties by first class mail. The referee shall make a report to the court, recommending the amount of the monthly support obligation of the parent and for medical support.

The referee shall file the report with the court and cause copies thereof to be served by mailing to the parties and the secretary. Any party shall have ten days from the date of service of the report in which to file objections to the report. If a party files an objection, the other party shall have an additional five days from the date of service of the objections to file additional objections. If no objection is filed, the circuit court may thereafter, and without further notice, enter its order. If any objection is filed, the circuit court shall fix a date for hearing on the report, the hearing to be solely on the record established before the referee. The circuit court may thereafter adopt the referee's report, or may modify it, or may reject and remand it with instructions or for further hearing. The secretary shall serve the parent the court's order by certified mail, return receipt requested, at the parent's last known address, and shall file proof of service.

If the circuit court's order modifies the referee's report and no hearing was held before the circuit court before entry of its order, any party has ten days from the date of service of the order in which to file an objection to that modification. If an objection is filed, the circuit court shall fix a date for hearing on the objection and after the hearing shall enter its order. The secretary shall serve the order by certified mail, return receipt requested, at the parent's last known address, and shall file proof of service.

Source: SL 1986, ch 218, § 21; SL 1987, ch 194; SL 1989, ch 175, § 8; SL 1991, ch 213, § 2; SL 1995, ch 144, § 4; SL 1997, ch 155, § 7; SL 2005, ch 134, § 8; SL 2009, ch 130, § 16.

B. Child Support

2. Continuing Jurisdiction

NOTES

1. In *McGee v. McGee*, 415 N.W.2d 812 (S.D. 1987), the husband and wife agreed that she would have custody of the parties' two children and that he would pay \$225 per month per child. The agreement specifically provided that husband would pay child support "irrespective of . . . change of custody." Sure enough, four years later husband went back to court and was awarded custody of both children. Wife claims that he is still required to pay child support as per the agreement. The trial court disagreed with wife and terminated husband's support obligation. On appeal, the South Dakota Supreme Court affirmed, stating "[j]ust as the parties' agreement could not prevent the trial court from modifying child support, the agreement could not deprive the court of the power to determine whether circumstances had changed as a basis for modifying the support obligation." *Id.* at 814.

2. Is the result in *McGee* consistent with the results in the alimony cases of *Lodde, supra*, and *Peterson, supra*? Why or why not?

3. In a post-divorce proceeding where mother and father agreed that each should have custody of one of two remaining minor children, they further agreed that "all claims of either parent for child support against the other party, whether past, present or future, are permanently and irrevocably waived..." This agreement was approved by the trial court at the time in its judgment entered around June, 1999. Shortly thereafter, wife sought and was awarded custody of the child in father's care and father was ordered to pay child support of \$310 per month. Father appealed in *Thomas v. Hague*, 2002 SD 12, 639 N.W.2d 520, arguing that since the trial court had approved the parties' agreement for the waiver of child support, his obligation was relieved by virtue of SDCL 25-7A-17 which appears to permit such agreements so long as they are approved by a court of competent jurisdiction. The South Dakota Supreme Court affirmed the imposition of child support and rejected father's argument, holding that "the trial court approved stipulation of the parties which permanently and irrevocably waived child support was contrary to the public policy of this state, invalid and void." ¶11, 639 N.W.2d at 523. In addressing what appears to be permitted by the plain language of SDCL 25-7A-17, the court stated in a footnote, "Any suggestion that SDCL 25-7A-17 allows the permanent and irrevocable waiver of child support flies in the face of the public policy of this state found in the statutory child support scheme and the decisions of this Court." [this footnote found as an "*" accompanying end of ¶8, 639 N.W.2d at 522.]

4. **Parties' mutual release of child support "absolutely and forever," in situation where each has custody of one of two children, is no longer binding when older child becomes emancipated, according to *Dahl v. Dahl*, 2007 SD 64, 736 N.W.2d 803.** In *Dahl v. Dahl*, 2007 SD 64, 736 N.W.2d 803, there were two children born of the marriage. The parties agreed at the time of the divorce (2004) that H would have primary custody of the son and that W would have primary custody of the daughter who is three years younger than Son. The parties also agreed that neither would pay child support to the other. Son graduated from high school in May, 2006, and turned 18 in June, 2006. W thereafter sought a modification of child support based on the change in circumstances – that only one child (the daughter in her custody) was now a minor child. The Child Support Referee and the Circuit Judge agreed with H who sought to uphold the language of the parties' previous agreement which purported to "release absolutely and forever all right

and claim of ... support.” The SD Supreme Court reversed in a unanimous opinion authored by Justice Konenkamp. The opinion states, in ¶ 21, “we conclude that excusing [H] of his statutory obligation for child support is not in his daughter’s best interests.” The case was reversed and remanded for application of the SD Child Support Guidelines. The Court also rejected H’s argument that he had made property concessions in the parties’ original agreement and that he should receive an equitable offset as to child support. This opinion additionally holds that Circuit Courts are not required to issue separate findings of fact and conclusions of law when adopting a referee’s report.

5. In 1994, the South Dakota legislature repealed the Revised Uniform Reciprocal Enforcement of Support Act (“RURESA”) and enacted in its place the Uniform Interstate Family Support Act (“UIFSA”), found in SDCL 25-9B. One of the main differences under UIFSA and RURESA is that under UIFSA there is a concerted effort to limit modification of support proceedings to one court -- the court with *exclusive* continuing jurisdiction. Under Section 611 of UIFSA, absent written consent of all the parties, a support order entered by a court in one state may not be modified by a court in any other state if either the obligor, obligee, or child continues to reside in the issuing state. *See, in particular*, SDCL 25-9B-611. (RURESA was codified at SDCL 25-9A-1 to SDCL 25-9A-43, prior to its repeal in 1994.)

6. In *Weekley v. Weekley*, 1999 SD 162, 604 N.W.2d 19, the SD Supreme Court upheld the trial court’s determination that it lacked jurisdiction to modify a child support order entered by a California court. The parties had entered into a “Marital Settlement Agreement” while residing in Contra Costa County, California. This agreement was approved and incorporated into a Judgment of Legal Separation which was entered by Contra Costa County Court in California. The wife moved back to South Dakota and initiated an action for divorce here. The parties’ agreement had reserved “issues of the minor child” unto the jurisdiction of a California court. The SD trial court granted a divorce, incorporating a stipulation which partially incorporated the Marital Settlement Agreement in December of 1997. In August of 1998, mother sought to modify child support and to eliminate her alimony obligation to husband. The trial court dismissed her modification of child support action, but retained jurisdiction over her modification of alimony request. In upholding the trial court, the SD Supreme Court recognized that under the UIFSA (“Uniform Interstate Family Support Act”), California has continuing *exclusive* jurisdiction since the father still resides in California. SDCL 25-9B-205, as well as the corresponding California provision, make clear that another tribunal cannot modify the existing order. [Chief Justice Miller and Justice Amundson dissented on the child support jurisdiction issue in this case, pointing out the anomalous result here is that the custodial parent is being forced to pay child support.]

7. The Federal Full Faith and Credit for Child Support Orders Act (“FFCCSOA”) was enacted by Congress on October 22, 1994 and is now codified at 28 U.S.C. 1738B. This federal act establishes the notion of *continuing exclusive jurisdiction* in the court that imposes the original child support order. Similar to the Parental Kidnaping Prevention Act (“PKPA”), this act requires sister states to give full faith and credit to orders entered consistently with its provisions and prohibits modification by courts in sister states so long as the state of the original order remains the child’s state or the residence of any contestant.

8. The FFCCSOA has already been found to supersede and preempt state law to the contrary. *In re Isabel M. (Thomas M.)*, NY Fam.Ct. Kings County, NYLJ 3/21/95, 21 Family Law Reporter 1273 (4/18/95). (dismissing requested modification of Pennsylvania child support decree where the obligor and four of the parties’ five children continue to reside in Pennsylvania, thereby preempting New York’s version of URESA).

9. Husband and Wife were divorced in Ohio in 1987, with Wife being given custody of Child. In 1994, while they all lived in Ohio, Husband and Wife entered into an agreement authorizing the Ohio court to suspend Husband's child support obligation. Husband agreed to only have contact with Child by mail. The parties' agreement stated that if Husband violated the contact provision, then his child support, as ordered by the Ohio court in 1989, would be reinstated retroactively to the date of the agreement. The 1994 Ohio court order suspending Husband's child support did not include the "retroactive" provision. Wife and Child moved to Kentucky. Husband moved to Sioux Falls, South Dakota. Wife "registered" the 1989 and 1994 Ohio court orders in South Dakota in 1999 under South Dakota's version of UIFSA. Wife also sought arrears against Husband in 1999, pursuant to the retroactive provision of the agreement. The South Dakota trial court confirmed the Ohio orders on March 1, 1999, stating, "but that there be no money judgment issued in connection with such and that modification may be pursued if so desired." Wife did not appeal this order, but subsequently filed a modification petition, seeking both prospective and retrospective modification of the 1994 Ohio order. A current and prospective child support obligation was established, effective April 1, 1999, with the matter of arrearages being dismissed without prejudice. Wife re-asserted her claim for arrearages in November, 2001. Wife's claim was denied by the trial court in January, 2002, on the basis that the 1994 order was valid and enforceable and that, due to the 1999 South Dakota confirmation order, Wife was barred by "res judicata" from again seeking a retroactive modification. *Barnes v. Matzner*, 2003 SD 42, 661 N.W.2d 372 (4/16/03). The South Dakota Supreme Court affirmed and also awarded Husband \$2,500 in appellate attorney fees.

The South Dakota trial court had proper "subject matter" jurisdiction for consideration of the retroactive modification request because neither the parties nor the child were residents of Ohio. Subject matter jurisdiction was authorized under South Dakota's adoption of the UIFSA (Uniform Interstate Family Support Act), particularly SDCL 25-9B-611(a)(1). Furthermore, subject matter jurisdiction was also mandated by the federal statute, the Federal Full Faith and Credit for Child Support Orders Act, particularly 28 U.S.C. § 1738B(i).

Wife's assertion was indeed barred by "res judicata" since UIFSA authorizes a party to contest the order under SDCL 25-9B-607. Furthermore, SDCL 25-9B-608 provides "Confirmation of a registered order... precludes further contest of the order with respect to any matter that could have been asserted at the time of the registration." The Court also ruled that the language of the trial court in the 1999 confirmation order – "but that there be no money judgment issued in connection with such and that modification may be pursued if so desired." – was not sufficient to "reserve" the issue of retroactive modification.

B. Child Support

3. Criteria Warranting Modification

As part of the changes in the Child Support Commission package, the 1997 South Dakota legislature amended the standard necessary to "modify" child support. These changes are found in SDCL 25-7A-22 which is reproduced at the beginning of this sub-chapter. The standard to be applied depends on when the previous order was entered and, in some cases, how much time has transpired.

If the modification proceeding is brought on an order entered after 7/1/97 and within three years of

its entry, then the movant must show a "substantial change in circumstances." [Note, this is a more stringent standard than the previous "change in circumstances" criterion. The previous standard is discussed in the *Whalen v. Whalen* opinion which is set forth in the chapter of this book on "Child Support."]

If the support order was entered after 7/1/97 and the petition to modify is brought after 3 years of its date, then the movant need not show any "change in circumstances."

It is also important to recall that, under SDCL 25-7-6.13, child support orders in effect prior to 7/1/05 may be modified so as to be brought into alignment with the new statutory provisions enacted in 2005, without the necessity of showing any change in circumstances.

NOTE

Modification made because such is "equitable under the circumstances" fails to satisfy "substantial change in circumstances" requirement imposed for modification attempts brought within 3 years of entry of child support order. In *Heiss v. Heiss*, 2008 SD 95, 757 N.W.2d 151, husband was ordered to pay child support in the amount of \$1350 per month pursuant to the parties' stipulation. Three months after the divorce decree was entered, husband sought to lower his child support. The referee lowered his support to \$1026 per month effective 10/1/07 and then to \$703 per month effective 4/1/08. The Circuit Court adopted the referee's recommendations. The SD Supreme Court reversed, holding that husband failed to show a "substantial change in circumstances" as required by SDCL 25-7A-22 for modifications sought within 3 years after the entry of the child support order. The referee's statement that it would be "equitable under the circumstances to provide relief" was the wrong legal standard. Mother was awarded \$2,000 in appellate attorney fees. This opinion is authored by Justice Zinter and is a unanimous decision.

B. Child Support

4. Prohibition on Retroactive Modification

When a lay person is told that SDCL 25-7-7.3 "prohibits retroactive modification of child support," it is doubtful that the person has any understanding of the ramifications of such a statement of legalese. On the other hand, when an obligor with several thousand dollars in arrearages is facing an order to show cause, he soon realizes the impact of this proposition.

Prior to 1987, South Dakota permitted the retroactive modification of child support. This meant in situations where the ex-husband was brought into court with huge arrearages, the court could "excuse" or "cancel" the arrearages if there had been a deteriorated economic situation for the father. See *e.g. Hoy v. Hoy*, 391 N.W.2d 685 (S.D. 1986) (affirming the trial court's partial cancellation of arrearages). Compare *Castillo v. Castillo*, 714 S.W.2d 440 (Tex. App. - San Antonio 1986) (reversing the trial court which had attempted to "forgive" \$10,000 worth of husband's arrearages).

Because of the practice of many state courts in "forgiving" or "excusing" arrearages, the federal government intervened. Under penalty of loss of federal funds, states were required to prohibit the

retroactive modification of child support. 42 U.S.C. § 666(a)(9) (1991). See also "Prefatory Note," 27 Family Law Quarterly 96, 96-97 n. 9 (1993). Hence, South Dakota gave birth to SDCL 25-7-7.3.

As is demonstrated in the following materials, the statutory "prohibition against the retroactive modification of child support" can have some untoward results.

NOTES

1. Father was not permitted to assert a *quantum meruit* claim for substantial labor and services performed on mother's house in her proceeding to collect \$11,100 of child support arrearages. While father was permitted to assert his cause of action in a separate proceeding, he could not use it to "set-off" the child support because to do so would be an impermissible retroactive modification of child support. *Taylor v. Ellenbecker*, 471 N.W.2d 587 (S.D. 1991). (As reported in Justice Henderson's concurring opinion, Father had added a bedroom, re-roofed the house, built a garage, poured footings and cement under porch, changed windows and doors and added a remodeled kitchen.)

2. Father made a partial payment of his child support arrearages with a check for \$1,572.50. On the memo portion of the check, he wrote "paid in full." Mother cashed the check and then successfully pursued the father for the remaining \$5,277.50. On appeal, the South Dakota Supreme Court rejected father's arguments, holding that agreements to modify arrearages need approval by the court to be effective. The court partially relied on SDCL 25-7A-17 which specifically provides that such agreements are not binding on the Department of Social Services absent court approval. *Vander Woude v. Vander Woude*, 501 N.W.2d 361 (S.D. 1993).

3. Under a 1982 order, father was given actual physical custody of child and mother was not required to pay child support. When mother later acquired physical custody and sought child support in 1993, father was not permitted to offset his future support obligation for the 9 or 10 years of "unpaid child support" from mother. The South Dakota Supreme Court found that to hold mother was obligated to pay child support under the 1982 order would constitute an impermissible retroactive modification of child support. *State of California ex rel. Struck v. Struck*, 526 N.W.2d 500 (S.D. 1995).

4. Even if the trial court originally misapplied the guidelines, a *nunc pro tunc* proceeding may not be utilized to "retroactively" modify the child support installments that have already fallen due. In *Wolf v. Weber*, 563 N.W.2d 136, 1997 SD 52 (5/7/97), the trial court mistakenly applied the guidelines in 1990 and ordered the non-custodial wife to *only* pay \$208 per month (less some deductions) instead of \$325 per month. In a proceeding initiated by the ex-husband in 1996, the trial court retroactively corrected the error, generating some \$8,190 in unpaid arrearage. The South Dakota Supreme Court reversed the retroactive aspect of the proceeding and quoted a Montana opinion which stated "The authority of a court to amend its record by a *nunc pro tunc* order is to make it speak the truth, but not to make it speak what it did not speak but ought to have spoken." The court also indicated that Rule 60(a) [SDCL 15-6-60(a)] cannot be utilized to correct a "mistake of judicial function."

KIER v. KIER

Supreme Court of South Dakota, 1990.
454 N.W.2d 544.

* * *

The trial court found that Charlotte had returned Gordon's June 1984 child support payment and that he did not make or tender ten subsequent monthly payments. The trial court also found that there was no agreement between the parties relieving Gordon of his obligation to make these payments.

* * *

Based upon these findings, the trial court held that Gordon owed ten child support payments of \$375 each plus interest but that he did not owe the payment returned by Charlotte in June 1984.

* * *

The trial court was faced with testimony from Gordon that he had made all required child support payments and that he did not make the ten payments following the return of his June 1984 check because Charlotte told him, "keep the check, you're not seeing Tracy."

* * *

Charlotte, by notice of review, contends that the trial court erred in relieving Gordon of his June 1984 support obligation. We agree.

In 1987, the South Dakota legislature restricted the authority of trial courts to retroactively modify past due child support obligations. SDCL 25-7-7.3; SDCL 25-7-7.4. Only those payments which accrue while a petition for modification is pending may now be modified, but only from the date that notice of hearing on the petition has been given to the interested parties. *Id.* In *Vellinga v. Vellinga*, 442 N.W.2d 472 (S.D.1989), we determined that the legislature intended that these restrictions be given retroactive application. Therefore, under the circumstances of this case, we conclude that the trial court exceeded its authority in refusing to include Gordon's June 1984 support obligation in its award of arrearages.

NOTES

1. Trial court correctly disregarded wife's alleged forgiveness of child support arrearage which occurred prior to filing of modification proceeding because South Dakota's statutory requirements are designed "to inhibit a person's 'ability to contract away a duty of support'" according to *Christensen v. Christensen*, 2003 SD 137, 672 N.W.2d 466. Arrearages accruing prior to the filing of the modification proceeding were not subject to modification and the lower court ruled correctly in that regard. In this case, the wife's attorney had written to husband stating that wife was "willing to forego child support payments for the months of September, October, November, and December, 2000" because wife and husband had agreed to share physical custody equally. Nonetheless, the South Dakota Supreme Court stated that the husband's reliance on "this type of agreement is misplaced as a matter of law." ¶ 14. The obligation to provide child support is a matter of public policy in South Dakota. South Dakota's statutory requirements, pursuant to SDCL 25-7A-17, that agreements relieving a party of child support must be in writing and must be approved by the court are "intended to inhibit a person's 'ability to contract away a duty of support.'" (citing prior South Dakota case law). ¶ 15. Husband was not justified in relying on the letter from wife's attorney because it was "nebulous and susceptible of different interpretations." Furthermore, (and in approval of the trial court's findings), the parties "didn't get it reduced down to any written agreement where there's a firm and clear understanding" and they "didn't get any Court approval."

2. The 2005 South Dakota Legislature enacted a new provision in SDCL 25-7 which addresses the problem which is discussed on the next 5 pages of this book. Under the new statute, child support may be imposed on the parent who relinquishes physical custody in an informal change of custody situation even though the custody order itself has not been modified – i.e., the parties may seek an adjustment of child support before a referee through a modification proceeding without the necessity of initiating a formal change of custody proceeding in circuit court. See SDCL 25-7-6.24.

In July of 1996, the author of this book prepared the cumulative supplement for the 3rd edition of this book. At the very beginning of that supplement, the following "Commentary -- A Call for Reform" could be found:

COMMENTARY -- A CALL FOR REFORM

In reporting the development of South Dakota law, I strive to maintain objectivity. In those areas where I believe changes ought to occur, I have tried to present my views in scholarly fashion. In the classroom and in the preparation of my book and its supplements, I have always attempted to keep my views as to "what the law ought to be" from interfering with the presentation of the "law as it is" in South Dakota. Those familiar with my work know that I do incorporate my views into the materials and into the classroom, but this is done in a manner which clearly signals my views to be precisely that, "my views."

In studying South Dakota Family Law rather intensely over the past six years, I have found that there is an area in which tremendous injustice has developed. I would like to take this opportunity to point out this injustice. In that regard, the reader should be advised that these are "my views."

In particular, I would like to point out that the South Dakota Legislature, responding to a federal mandate, enacted an extensive set of child support guidelines. Part of this package includes a statute which forbids the retroactive modification of child support. South Dakota's version of this statute is found in SDCL 25-7-7.3. This of course means that once a support obligation is imposed, it cannot be modified at later date so as to nullify those obligations which have already fallen due. This prohibition is designed to prevent state court judges from "excusing" or "forgiving" arrearages which have accrued against noncustodial spouses who have not paid their child support and seek to avoid their obligation by the mere passage of time or by tendering weak and/or irrelevant excuses. It also prevents a form of "quasi-fraud" seen in situations whereby the custodial spouse receives welfare benefits from the state and then when the state seeks reimbursement from the obligor, a sympathetic judge might release the noncustodial spouse by making a retroactive modification. Of course such a scenario damages society as a whole and puts an undue burden on the taxpaying public.

There have been a number of recent cases⁵ in which this statute has served as the basis for decisions that put blinders on the courts as to the realities of the situation. In particular, I am talking about cases where the noncustodial spouses have *in fact been caring and providing shelter, food and clothing* for the minor children, yet they are still held obligated to pay the designated custodian all the

⁵ *Bess v. Bess*, 534 N.W.2d 346 (S.D. 1995); *Houser v. Houser*, 535 N.W.2d 882 (S.D. 1995); and, most recently, *Agee v. Agee*, 1996 SD 85, ___ N.W. ___ (7/2/96).

child support which accrues during this time period. Given the relative strengthening of the support amounts (*i.e.* the "guidelines" produce much higher support obligations than were typically seen in pre-guidelines cases) and given the fact that support obligations are nondischargeable in bankruptcy, these decisions serve to perpetrate a complete injustice on noncustodial parents who find themselves in the position of having spent money directly for the care and shelter of their children. The problem is exacerbated by the "abatement" statute which, by its explicit language, insists that the blinders be maintained until more than 29 consecutive days of actual custody have run. South Dakota's abatement statute is SDCL 25-7-6.14.

The federal mandate for child support guidelines did not carry with it the notion that a state should adopt statutes which, under all circumstances, should absolutely and unqualifiedly require the designated "obligor" to pay the designated "obligee." The federal mandate was created primarily to: 1) set child support in a realistic amount initially; 2) to make the obligation more easily enforceable; and 3) to eliminate the "quasi fraud" where the taxpaying public was paying for burdens that were too easily forgiven by some state courts. The child support guidelines were indeed needed. They represent a vast improvement in the law; however the change was dramatic and extensive. We can now observe that collection of child support has increased tremendously. Custodial parents and state agencies are better able to collect the money to which they are rightfully entitled. But, with dramatic changes in the law, sometimes the brush sweeps too broadly. It is time to address the problem which has been created. It was the intention of neither Congress nor the South Dakota legislature to create the situation where the designated obligee should receive windfall payments out of the pocket of the obligor where the resources in that pocket have already been depleted by the providing of shelter, food and clothing for the children who are the subject of the obligation.⁶

This is a problem which was unforeseen and which developed in the relatively quick legislative action which adopted the child support guidelines. There is no particular entity deserving blame for the creation of this problem. Neither the legislature nor the courts in South Dakota intentionally caused this situation to develop. On the other hand, the problem has developed and it should be corrected. I urge both the legislature and the judiciary to find a way to ameliorate the hardship imposed under the present construction of SDCL 25-7-7.3 and 25-7-6.14. I believe that either branch of government, the legislature or the judiciary, may independently solve this problem. I urge both to create a solution. And, perhaps most importantly, I urge neither branch to wait on the other to render a solution first.

Roger Baron
July, 1996

EPILOGUE

In 1997 the South Dakota legislature amended the abatement statute, SDCL 25-7-6.14, and enacted a new statute, SDCL 25-7-6.19. (Note SDCL 25-7-6.14 was again amended in 2001.) The 1997 amendment to the abatement statute, SDCL 25-7-6.14, permitted an abatement (of 38% to 66%) to be approved by the court on a monthly basis whenever the child spends 10 days or more with the non-custodial parent. The days need not be consecutive. These features of the 1997 amendment remain in effect despite the 2001

⁶This was observed by Justice Miller in *Agee v. Agee* wherein he stated, "The [ruling in this case] would require [H] to pay full child support to [W] *when he was raising the children in his own home*. [H] should not be penalized for assuming the custody and care of his children. Nor should [W] receive a financial windfall as a result of relinquishing her custody rights." (emphasis is that of Justice Miller)

amendment. The new statute, SDCL 25-7-6.19, permitted a "credit" against arrearages of up to 100% in situations where the "obligor" under a child support order actually had primary physical custody of the child(ren) for more than 4 consecutive months by agreement of the parties. Both of these statutes are reproduced at the beginning of this sub-chapter.

The 2005 South Dakota Legislature enacted SDCL 25-7-6.24 which also addresses this problem. Under the new statute, child support may be imposed on the parent who relinquishes physical custody in an informal change of custody situation even though the custody order itself has not been modified – i.e., the parties may seek an adjustment of child support before a referee through a modification proceeding without the necessity of initiating a formal change of custody proceeding in circuit court.

MORE RECENT CASES -- A TREND TOWARD LOOKING AT “THE REALITY OF THE SITUATION”

1. The South Dakota Supreme Court has recognized that a “child care expenses” order is not a “past due child-support payment.” In *Juttelstad v. Juttelstad*, 1998 SD 121, 587 N.W.2d 447, (S.D. 12/16/98), the father had been ordered to pay child support of \$435.29 per month and also \$241.80 per month for child care expenses. It was subsequently discovered that this exceeded more than 100% of the child care costs. The original intent was to require the father to pay 62% of the child care. The trial court did not give father “credit or reimbursement” for his overpayment. In a 3-2 decision, the South Dakota Supreme Court reversed. Recognizing that it is “settled law that past-due child support payments cannot be modified” by virtue of SDCL 25-7-6.3, the court went on to state that “this prohibition on retroactive modification of past-due support payments does not apply here. [Father] has no past-due payments. He is current on all support obligations. He is not asking for retroactive modification. He is requesting a correction for overpayment of child care expenses. Child care expenses are not a part of the basic child support obligation, but only a factor for deviation from the schedule.” The majority opinion was authored by Chief Justice Miller. Justices Sabers and Konenkamp dissented.

2. In *Hendricksen v. Harris*, 1999 SD 130, 600 N.W.2d 180, the matter of a daughter beyond age 18 but still in high school was the subject of scrutiny. Prior to this proceeding, the daughter had been living “equal time with the parties” under a joint custody arrangement and the mother had been receiving substantial child support payments from the father (who had extremely high income and substantial assets) pursuant to a previous order. After the daughter (the oldest child) became an adult by turning age 18, she was still in high school and did actually live with the father. Accordingly, the referee concluded that mother was not entitled to child support for this time period from father and, further, that mother actually had a duty to pay father child support for this child. The trial court rejected this legal conclusion by the referee, apparently because father had not secured a court order reflecting a formal change in custody over to him. The SD Supreme Court addressed the conundrum presented in this case – the conundrum of the child for whom the court no longer has authority to determine custody because she is beyond the age of 18, but for whom a child support obligation remains under SDCL 25-5-18.1. The Court resolved the dilemma by siding with the referee stating, “We conclude as a matter of law that after a modification petition was filed, support for Heidi after she reached age eighteen, should be based on her actual residence.” This decision is a bit at odds with the notion that child support should not be retroactively modified, but the court noted that “Heidi was an adult and her custody was not subject to the judgment and decree of divorce. She could choose with whom she wished to live.” (Quoted material taken from paragraph no. 10, 600 N.W.2d at 182.) [Justice Sabers dissented, looking upon the “total contrast in the incomes and standards of living between this millionaire and this teacher” and pointing out that mother still has obligations on her part for the child’s

graduation and college preparation expenses.]

3. Consider the scenario where a disabled non-custodial parent utilizes his social security payment as a “substitute for” or a “supplement to” the out-of-pocket payments on his child support obligation to the custodial parent. What happens when the amount of the social security payment increases? In particular what happens when it increases and there is no immediate adjustment made in the existing child support order? This is what transpired in *Crago v. Donovan*, 1999 SD 67, 594 N.W.2d 726, where the father’s disability checks kept fluctuating upward. His checks went from \$49 per month, to \$68 per month, then to \$146 per month, then to \$324 per month, then to \$334 per month, then to \$342 per month, then to \$352 per month. As these “increases” took place, father paid, out of his own pocket, the balance necessary to meet or exceed the existing child support order of \$335 per month. Eventually the day of reckoning came after custody was transferred to father and mother claimed that father owed an arrearage of some \$12,895 for a period of several years. With support from case law in Iowa and North Dakota, mother argued that each child support payment was a past-due obligation and it could not be retroactively modified under SDCL 25-7-7.3. The trial court found for father, offsetting his arrearage by the social security benefits the children received. The SD Supreme Court affirmed, rejecting the case authorities from Iowa and North Dakota. The Court looked to a recent ALR annotation and pointed out that Iowa and North Dakota were in the minority. The majority view makes a distinction between attempts to retroactively increase or decrease a specific dollar amount ordered (which would be prohibited as an attempt to retroactively modify support) and between payments from another source which are to be *credited* against a child support obligation. “Thus, the increased Social Security benefits were immediately effective as a credit against Father’s child support obligation and could not constitute a retroactive modification.” (Paragraph 12 , 594 N.W.2d at 730).

4. **The Faulk v. Faulk Complexity!** The opinion in *Faulk v. Faulk*, 2002 SD 51, 644 N.W.2d 632, sets forth a long and contorted history of child support obligations against both parties and one formal custody change, tracing back to the 1982 divorce decree. Originally in 1982, W was awarded custody of both of the parties’ two children. H was then ordered to pay \$100 per month per child, later modified to \$150 per month per child. Also, H was ordered to make his payments to the Pennington County Clerk’s office. As of 1986, H was delinquent in the amount of \$6,925. In November, 1994, H’s delinquency was adjudicated, through an administrative judgment, to be a total of \$15,966, representing principal of \$6,925 and interest of \$9,041. During much of the time involved W was on ADC and had assigned her child support rights to the state. Custody of both children was modified in favor of H in 1995, at which time W was ordered to pay child support of \$386 per month for both children. In December, 2000, W brought an “order to show cause” proceeding against H, alleging that H owed her \$39,300 in delinquent child support for the 11 year period from October, 1983 to October, 1994. During the years 1990-94, H only paid child support for one child because (according to H) one or more of children were living with him. W’s action for the arrearages in December of 2000 was apparently precipitated by a garnishment action initiated against her to collect the delinquent support obligation owed by W to H as a result of the custody change in 1995. Additional complications to resolving this mess include the following three factors: 1) the fact that H did not make his sporadic payments through the clerk’s office as required by the decree; 2) the fact that the administrative judgment entered in 1994 in the amount of \$15,966 for W was never signed by a circuit judge, with H’s appeal from that proceeding to the South Dakota Supreme Court having been dismissed for that reason; and 3) in 1996 the trial court set aside the 1994 administrative judgment in favor of W for the reason that W had made an assignment to the state in connection with ADC.

In ruling on the proceeding brought in December, 2000, the trial court denied W any arrearages prior to 1995, because of “res judicata” (as to the 1996 judgment which set aside the 1994 administrative judgment) and because of “laches.” The South Dakota Supreme Court reversed, holding that W was not

barred by these principles in her attempt to collect arrearages for the time period involved.

When the smoke clears, toward the end of this contorted history (of payments, non-payments, enforcement proceedings, counter obligations and custody switches), we see the situation where the current “obligor” is entitled to collect arrearages from the current “obligee” based on the current obligee’s prior non-payment of child support. How is this to be handled? Actually this situation tends to happen a great deal in South Dakota. Traditionally under the very precise and technical provisions of South Dakota’s intricate child support statutes, it has never been “safe” for a current obligor to “not pay” simply because money is owed back to the current obligor by the current obligee. This opinion by the South Dakota Supreme Court directs the trial court to ascertain the amount owed by H and then to subtract that amount the amounts which W owes to H for her own delinquency. ¶ 29. This aspect of the case is a breath of fresh air and hopefully will serve as encouragement to trial courts to engage in the off-setting analysis in the future. Prior to this opinion, courts have been hesitant to off-set and have looked narrowly only at each person’s obligation and permitted the enforcement devices for collection of that obligation, notwithstanding the fact that there may a delinquent obligation owed right back to the obligor under scrutiny.

The following principles of law are to be found in this opinion:

A) the trial court’s most recent ruling and its 1996 ruling (which set aside the 1994 administrative judgment in favor of W) were both erroneous because they were attempts to retroactively modify child support, contrary to SDCL 25-7-7.3.

B) the doctrine of res judicata is not available to help H protect the 1996 ruling because W’s claim for child support during 1990-94 was not an issue in the proceeding and W is only attempting to enforce an obligation which was already in place.

C) The doctrine of laches, as applied in this situation, requires that H show three things:

- (1) that W had full knowledge of the facts upon which the action is based
- (2) regardless of such knowledge, W engaged in unreasonable delay
- (3) that allowing W’s action would prejudice H

Here, H failed to show element (2) unreasonable delay and H could not show element (3) that he was prejudiced.

In connection with the (2) “unreasonable delay” issue, this opinion gives some enlightenment as to when laches may and may not be available. Initially, it is observed that laches is being asserted against the enforcement of a judgment. And, “Logically, enforcing a judgment would rarely invoke the application of laches, especially in a case where the judgment requires periodic payments.” ¶ 22 of opinion, 644 N.W.2d at 636 [citing and quoting *Culhane v. Michels*, 2000 SD 101]. Immediately following this observation, the opinion then cites two *prior* cases where differing periods of time yielded different results. In *Bonde v. Boland*, 2001 SD 98, a five year delay was *not* unreasonable, but in the case of *In re Loomis*, 1998 SD 113, a fourteen year delay was held to be unreasonable. ¶ 23 of opinion, 644 N.W.2d at 636.

In connection with H’s claim of (3) prejudice, H argued that he would have been better able to show actual payments by way of cancelled checks had W brought this action earlier. But, the fact that H did not make his sporadic payment through the court clerk adversely affected his ability to claim prejudice and argue laches. The opinion notes that H had been required by the 1982 decree to make his payments through the clerk’s office and he did not have authority to unilaterally modify the decree so as to allow him to avoid paying through the clerk’s office.

May a Modification be Made Retroactive for Time While Modification Request is Pending?

We know that the court may modify a support order prospectively. But what about during the time the action is pending? Although this is addressed in SDCL 25-7-7.3, the answer is not entirely clear. Under the statute SDCL 25-7-7.3 (which is reproduced in the first part of this subchapter), the relevant language is as follows:

“Any past due support payments are not subject to modification ... except those accruing in any period in which there is pending a petition for modification ..., but only from the date that notice of hearing of the petition has been given ...”

In *Early v. Early*, 484 N.W.2d 125 (S.D. 1992), a case which represented (consistent with its name) an “early” interpretation of the statute, the court held that the trial court had erred in attempting to modify support payments for the time period prior to when father was given notice of hearing of mother’s petition to modify. Although the father had been given notice on December 29, 1990, the trial court had attempted to retroactively increase child support back to July 1, 1990. The South Dakota Supreme Court held that error occurred in the attempt to modify payments due *prior to* December 29, 1990. *Id.* At 129. (There were actually two “earlier” cases involving this statute which were cited and relied upon in the *Early* case. *Id.* at 129.)

In *Jopling v. Jopling*, 526 N.W.2d 712 (S.D. 1995), the father was served with the mother’s motion to modify on January 20, 1993. When the trial court finally decided the case, “arrearages” were awarded from January 22, 1993 to August 31, 1993. The father urged error in this regard, apparently relying on the fact that the particular notice of the hearing (which actually transpired) came much later in the process and that there could be no retroactive modification prior to that particular notice of hearing. The South Dakota Supreme Court affirmed, nonetheless, pointing out that it was within the trial court’s discretion to award arrearages back to a day which was two days after father “was served” with mother’s motion to modify. *Id.* at 716-17.

More recently in *O’Grady v. O’Grady*, 1998 SD 89, 582 N.W.2d 707, the father “filed a motion to determine child support” on August 29, 1996. *Id.* at 708. The trial court attempted to retroactively modify child support back to July, 1994 -- the first month following the second oldest child’s graduation from high school. (This was a case involving an award which was in the nature of a lump sum amount of \$469 per month for the total child support order for the three unemancipated children.) In a 3-2 decision, the South Dakota Supreme Court reversed, holding that “the trial court had the authority to modify the child support from August 29, 1996 forward and erred by retroactively modifying it from July, 1994.” *Id.* at 710. The dissent, authored by Justice Miller and concurred in by Justice Amundson, points out that the parties had “always understood child support was to be paid ‘per child’ and not as one lump sum.” *Id.* at 714.

NOTES

1. Trial court erred in not retroactively modifying (lowering) child support for 12 months during which modification action was pending where wife’s modification request was for the lesser sum of \$428.31 per month compared to the prior order of \$798.04 per month in *Christensen v. Christensen*, 2003 SD 137, 672 N.W.2d 466. Wife filed modification request to lower child support from \$798.04 per month to \$428.31 per month on October 18, 2001. Although wife served notice of hearing at the same time for October 30, 2001, the scheduled hearing was continued four times until it was finally heard in October, 2002. The trial court committed error by continuing to enforce the prior amount until the hearing. The lower court was authorized to retroactively modify during the pendency of the modification

proceeding by virtue of SDCL 25-7-7.3.

2. Party who followed referee's advice (instead of appealing) barred from recovering child support. In *Mack v. Trautner*, 2009 SD 13, 763 N.W.2d 121, custody was originally vested with mother with father paying child support. Father sought change in custody and succeeded in securing an order for temporary custody which was followed by an order of permanent custody over a year later. When father was awarded temporary custody his child support obligation was terminated but mother was not ordered to pay any child support at that time. After father was awarded permanent custody (some 15 months later) he sought child support for the interim period (when she was not paying) and also for the future. The referee indicated that it would not consider back child support for the 15 month interim, but only current and future support. Father did not appeal this decision by the referee but instituted a separate action for back child support – exactly as suggested by the referee. In that separate action, the trial court awarded back child support of \$6,150 for the interim period. Mother appeals this decision. The SD Supreme Court reversed in a unanimous decision with opinion authored by Justice Sabers. The Court holds that father is barred by res judicata. He had his chance to seek back child support and he should have appealed the referee's decision not to consider it at the time. .

C. Visitation Rights

BLARE v. BLARE

Supreme Court of South Dakota, 1981.
302 N.W.2d 787.

* * *

Appeal #13043 is from an order specifying child visitation rights. By the terms of the divorce judgment entered in September of 1977, both parties were granted reasonable and liberal rights of visitation with the children not in their custody.

In October of 1979, appellee initiated proceedings to clarify the child visitation provision of the divorce decree. He claimed to have experienced difficulty exercising his visitation rights with his daughters in the State of Colorado, and requested that the terms and conditions of the divorce decree be made more definite and specific as to visitation. Appellant appeared specially by counsel and resisted the motion on jurisdictional grounds. Both daughters were then enrolled in school in Colorado. The only evidence introduced at the hearing was appellee's affidavit.

The trial court entered findings of fact and conclusions of law determining that it had jurisdiction over the subject matter and the parties by virtue of the divorce action. The order amending the judgment allowed appellee to have custody of his daughters on alternating Christmas and Thanksgiving holidays and further granted him visitation rights in South Dakota for a period of sixty consecutive days each summer.

* * *

We recognize a distinction between custody and visitation rights. *Hershey v. Hershey*, 85 S.D. 85, 177 N.W.2d 267 (1970). Unlike custody, visitation rights can be modified without showing a material change of circumstances of the parties when custodial rights would not thereby be prejudiced. *Andera v.*

Andera, 277 N.W.2d 725 (S.D.1979); *Hershey v. Hershey*, *supra*. The relief sought was not a change in the custody determination of the original divorce decree, but rather a clarification of its reasonable and liberal visitation provisions. We conclude that the trial court acted within its prerogative to make that clarification and, in doing so, did not exceed the purposes or meaning of SDCL ch. 26-5.

* * *

All the Justices concur.

RIVERS v. RIVERS

Supreme Court of South Dakota, 1982.
322 N.W.2d 864.

FOSHEIM, Justice.

This is an appeal from a judgment modifying the visitation provisions of a stipulation and agreement incorporated into a judgment and decree of divorce. We affirm.

Glenn (appellant) and Faith (appellee) Rivers were divorced on December 23, 1980. The stipulation which was incorporated into the divorce decree gave appellee "the sole care, custody and control" of the parties' two daughters (ages 8 and 3) subject to appellant's visitation rights. The visitation rights included appellant's "right to have the children accompany him from Defendant's place of residence every other weekend from 8:00 o'clock a. m. Saturday until 8:00 o'clock p. m. on Sunday."

Three months after the divorce, appellee filed an affidavit asking the court to preclude overnight visitation because appellant started living with a woman to whom he was not married. Appellee claimed that appellant's change in lifestyle was causing his eldest daughter considerable problems because it conflicted with the strong religious convictions that appellant and appellee had instilled in her. Appellee indicated that "this particular lifestyle as witnessed by the children is not in their best interests and is not morally sound."

Appellant testified that his daughters did not express any concern over the propriety of his lifestyle. His eldest daughter did ask whether he was married to the woman he lived with, but he attributed the question to normal eight-year-old curiosity. He indicated that he and appellee do have considerable religious differences regarding the manner of raising children and living life.

The trial judge concluded that the decree of divorce should be modified "so as to prevent overnight visitation of the children with the father any night he allows [the woman], to whom he is not married to spend the night with him." The court found that April, the eldest daughter, had been encouraged to "participate in a sound religious upbringing" and that her father's behavior confused her to the extent that she could not reconcile it with the standards previously instilled in her. The court found and concluded that

... as the parent granted the sole custody of the minor children, Defendant is primarily responsible for the temporal and moral upbringing of the children; that the lifestyle of the Plaintiff in the particulars aforementioned, is a bad example for the children and undermines the moral standards previously learned by the children and currently practiced in the custodial home.

The issue on appeal is whether the trial court properly modified the visitation provisions of the

divorce decree by precluding overnight visitation.

Visitation rights can be modified without showing a material change of circumstances of the parties when custodial rights would not thereby be prejudiced. *Blare v. Blare*, 302 N.W.2d 787 (S.D.1981). In this case, the modification of visitation was reasonable in light of the family religious background and the effect appellant's lifestyle was having on his eldest daughter.⁷

The judgment is affirmed.

DUNN and MORGAN, JJ., concur.

WOLLMAN, C. J., and HENDERSON, J., concur in result.

HENDERSON, Justice (concurs in result).

As visitation rights are only at issue, and not custodial rights, I would stand by the precedent of this Court as enunciated in *Blare v. Blare*, cited in the majority, and *Hershey v. Hershey*, 85 S.D. 85, 177 N.W.2d 267 (1970). However, I believe the trial court's decision to be harsh in view of the fact that appellant is committing no crime such as adultery (our Legislature abolished adultery as a crime, 1976 S.D.Sess.L. ch. 158, s 22-8) nor engaged in criminal conversation (nonexistent tort, see *Hunt v. Hunt*, 309 N.W.2d 818 (S.D.1981)). Further, the showing of an adverse demonstrable effect on the two children is assumed and woefully weak. It appears to be subjective in the mind of the mother and the trial court. Thus, I concur in the results based on stare decisis as I cannot join in the moral judgmental overtones of this opinion. This case, factually, does not begin to approach the circumstances in *Spaulding v. Spaulding*, cited by the majority. In *Spaulding*, the mother openly and notoriously carried on an adulterous affair in the presence of two young boys. Such is not the case here.

In *Krueger v. Stevens*, 90 S.D. 641, 244 N.W.2d 763 (1976), this Court held that the mere fact that a divorced father having custody of his two children chose to live with a woman to whom he was not married did not give rise to circumstances which could deny him custody rights. I hew to that decision and I point out that it was a custody, not visitation, dispute.

I am authorized to state that Chief Justice WOLLMAN joins in this concurrence in result.

NOTE

In *Reider v. Schmidt*, 2000 SD 118, 616 N.W.2d 476, the parties started off with a joint custody arrangement in 1994 and this was modified in 1995 and 1997. Problems resulted because "Both parties interpreted the schedule and made sua sponte modifications to it in a manner most beneficial to them at a particular time." Accordingly, "extensive judicial involvement with visitation was required." (Quoted material is found in paragraph no. 3, 616 N.W.2d at 477.) Father's access or visitation rights with the child were lessened and ordered to be in conformity with the First Circuit Guidelines, subject to some additional requirements. Father appealed, arguing that the trial judge was punishing him for failure to comply with the court's previous visitation order and was not based on the "best interests of the child." The South Dakota

⁷ In child custody cases we have noted that the harmful effect of parental misconduct committed in the presence of a child old enough to see and recognize it is self-evident. See *Spaulding v. Spaulding*, 278 N.W.2d 639 (S.D.1979).

Supreme Court affirmed the lower court's decision as "not an abuse of discretion." Justices Gilbertson and Amundson dissented, arguing that the trial court's written findings and conclusions "clearly establish that the trial court modified father's visitation schedule as punishment ... not as an arrangement in the children's best interests." (Paragraph No. 38, 616 N.W.2d at 483.)

D. Alimony

1. Continuing Jurisdiction

The rule as clearly established in *Lodde v. Lodde* and *Peterson v. Peterson* is that the trial court retains continuing jurisdiction to modify alimony awards despite even agreements by the parties which seek to limit that authority. (The *Lodde* and *Peterson* cases are set forth in the Alimony Chapter, *supra*.)

A useful corollary of this rule is that "it never hurts to ask for modification" despite a previous agreement which suggests that modification would not be permissible. In frivolous and other cases, one may have to pay the toll of attorneys fees¹ and perhaps sanctions. Nonetheless, South Dakota trial courts do retain continuing authority to modify alimony awards notwithstanding language which suggests otherwise in parties' agreements.

The case of *Schwandt v. Schwandt*, 471 N.W.2d 176 (S.D. 1991) is particularly illustrative of the court's continuing power to modify. At the time of the divorce, husband agreed to pay wife alimony of \$1 per year. He never paid the \$1 per year. More than 13 years later wife filed a motion to modify alleging that she was unemployed and disabled. The trial court vacated the original award and denied the request without a hearing, holding that it would be unconscionable to require the husband, after 13 years, to come forward with new support for his ex-wife. The South Dakota Supreme Court reversed and remanded the case for the taking of evidence and a hearing on the merits.

SAXVIK v. SAXVIK

Supreme Court of South Dakota, 1996.
544 N.W.2d 177, 1996 SD 18.

* * *

We now hold that the termination of an award of periodic alimony does not bring an end to the jurisdiction of the court to consider whether alimony should be reinstated at a later time if a change in circumstances is demonstrated. Our holding is in accord with the explicit language of SDCL 25-4-41 which empowers the trial court to provide alimony "for support during the life of that other party or for a shorter

¹ Compare, *Jameson v. Jameson*, 1999 SD 129, 600 N.W.2d 577, where the trial court was found to have committed error in denying an award of attorney fees to ex-wife where former husband's attempt to eliminate alimony was characterized as a husband's "deliberate attempt to deprive Carolyn of what he agreed to give her in 1971." 600 N.W.2d at 584, Paragraph no. 34 of Opinion. The former wife was also awarded appellate attorney fees of \$4,994.72. See also *Kappenman v. Kappenman*, 523 N.W.2d 410 where husband was ordered to pay 100% of wife's attorney fees in his failed attempt to modify custody.

period, as the court may deem just[.]" The statute further authorizes the trial court to "from time to time modify its orders in these respects."

For years, this doctrine has been recognized in this state under the guise of the "one dollar per year" continuing alimony obligation.

* * *

This holding is limited, however, to those awards which are periodic in nature, and it does not apply to lump sum awards of alimony. We held in *Blare v. Blare*, 302 N.W.2d 787 (S.D.1981), that lump sum alimony recognizes that finality attaches and the sum is not modifiable even if it is payable in installments over a fixed period of time. Likewise, our holding would not apply to restitutional or reimbursement alimony which has as its purpose to reimburse one spouse's contribution during the marriage to advance training or education of the other spouse. *Parsons v. Parsons*, 490 N.W.2d 733, 735 (S.D.1992); *Wilson v. Wilson*, 434 N.W.2d 742, 745 (S.D.1989).

The treatment of rehabilitative alimony presents a close question. It is designed to permit a spouse the means necessary to enable him or her to refresh or enhance job skills necessary to become self-sufficient, and provide needed financial support while the spouse is obtaining necessary training. *Johnson v. Johnson*, 471 N.W.2d 156, 163 (S.D.1991); *Hautala v. Hautala*, 417 N.W.2d 879, 882 (S.D.1988). The criteria for consideration of rehabilitative alimony as set forth in *Saint-Pierre v. Saint-Pierre*, 357 N.W.2d 250, 262 (S.D.1984), are: all relevant facts of the case including the amount of the supporting spouse's contributions, his or her foregone opportunities to enhance or improve professional or vocational skills, and the duration of the marriage following completion of the nonsupporting spouse's professional education. Clearly the costs of achieving a goal of rehabilitation may change with time after the divorce is final. Each case will be governed by its facts which cannot be anticipated here. Given that, it is prudent to await an appropriate case and apply its specific facts to our existing case law to determine the correct rule of law.

Our holding also does not apply to divorce cases where the trial court found no basis for an award of alimony to begin with. In *Cameron v. Cameron*, 31 S.D. 335, 140 N.W. 700 (1913), such a rule was found to be jurisdictional as when "the judgment became final without any award of alimony ... the court could not afterwards 'modify' what never existed." 31 S.D. at 340, 140 N.W. at 701-2. We have consistently continued to adhere to that view. *Hershey v. Hershey*, 467 N.W.2d 484, 489 (S.D.1991).

* * *

DRISCOLL v. DRISCOLL

Supreme Court of South Dakota, 1997.
568 N.W.2d 771, 1997 SD 113.

STEELE, Circuit Judge.

Plaintiff and appellant, Helen Driscoll, appeals from an order of the trial court denying a modification of rehabilitative alimony, denying her request to find the defendant, Robert "Mike" Driscoll, in contempt for failure to make payment of alimony, and denying attorney fees. We affirm.

Helen and Mike Driscoll married December 16, 1977; the marriage terminated by decree of divorce entered September 6, 1991. Helen worked until just before the divorce when ill health forced her to quit.

Prior to leaving the work force, she gained experience managing an art gallery, practicing law and teaching. Mike, also an attorney, is the former dean of the University of South Dakota School of Law. Helen now lives in California, and, as her health permits, is pursuing a career as a screenwriter. Mike retired in 1993 and serves as a director of the American Colloid Company.

At the time of the divorce, the court incorporated a stipulation and agreement between Helen and Mike into the judgment and decree of divorce. Pursuant to this stipulation and agreement, Helen was awarded rehabilitative alimony in the amount of \$2,625 per month for a period of five years, subject to reduction on a sliding scale based on changes in Helen's future employment situation.

Two paragraphs of the stipulation and agreement are of particular importance to this appeal. Paragraph 10 of the stipulation and agreement deals with the value of the American Colloid Company stock and provides:

It is expressly stipulated and agreed that an increase in the value of stock in American Colloid Company shall never be raised by the Plaintiff or deemed by the Court to be a material change in circumstances which might otherwise justify a modification of the terms of the Judgment and Decree of Divorce.

Paragraph 17 deals with Helen's health and reads as follows:

It is expressly stipulated and agreed that a change in the health of the Plaintiff shall never be raised by her or deemed by the Court to be a material change of circumstances which might otherwise justify a modification of the terms of the Judgment and Decree of Divorce.

Since the divorce, Helen's health has seriously deteriorated, making employment difficult. Additionally, Mike's stock in American Colloid has substantially increased in value. Helen has suffered through an automobile accident and an injury involving a shopping cart which have contributed to the deterioration of her health. She has also undergone a number of surgeries.

Helen has used a good portion of the property settlement to relocate from an apartment in a bad neighborhood to a house which she purchased in a better location for \$295,000. She has invested an additional \$150,000 in improvements to that house as it was in poor condition at the time of purchase. Her mortgage payment is over \$1,100 per month and the real estate taxes are approximately \$4,000. She receives approximately \$600 in rent per month from an apartment attached to the garage of the home.

Since the divorce, Mike's net worth has increased due to the increase in value of the American Colloid stock, stock splits, and large stock gifts. His current income is approximately the same as it was at the time of the divorce; however, it is largely unearned. He now draws from the South Dakota Retirement System, receives stock dividends and works part time on the American Colloid Board of Directors.

Due primarily to Helen's continued health problems which prevent her working for extended periods of time in a day, she requested a modification or extension of the rehabilitative alimony agreed to in the stipulation, which was incorporated into the judgment and decree of divorce.

Three issues are presented for review:

1. Did the trial court abuse its discretion by refusing to extend or modify rehabilitative alimony when there has been a change of circumstances because of Helen's deteriorating health?

* * *

ISSUE ONE

Did the trial court abuse its discretion by refusing to extend or modify rehabilitative alimony when there has been a change of circumstances?

An important fact which must be considered in this case is that the parties agreed at the time of the stipulation that Helen would not claim her health or the increase in the value of the American Colloid Company stock as a change of circumstance in order to modify the alimony provisions of the divorce decree. These are the very factors she now claims have changed to the extent that a modification of the alimony award is justified.

We conclude that the principles of estoppel should be employed to foreclose Helen's complaint in this case.

"Estoppel occurs when '[o]ne who enters into a stipulation or agreement for judgment ... may not later challenge the judgment or take a position inconsistent with [an] earlier position.'" *Jopling v. Jopling*, 526 N.W.2d 712, 715 (S.D.1995) (quoting *Warren Supply v. Duerr, Pliley, Thorsheim Development*, 355 N.W.2d 838, 840 (S.D.1984)).

The Wisconsin Supreme Court applied estoppel to facts similar to those in this case in *Nichols v. Nichols*, 162 Wis.2d 96, 469 N.W.2d 619 (1991). There, the parties had stipulated that a maintenance award would be non-modifiable, and it was incorporated into the judgment and decree. The payee ex-spouse later petitioned to increase the award. The court identified four elements which, if present, trigger estoppel to prohibit modification of an agreement which has been incorporated into a judgment and decree:

1. The parties entered into the agreement freely and knowingly,
2. The overall settlement was fair and equitable, and
3. The agreement is not illegal or against public policy, and
4. One party subsequently seeks to be released from the terms of the court order on the grounds that the court could not have entered the order it did without the parties' agreement.

Nichols, 469 N.W.2d at 622.

Here, there is nothing in the record to indicate that the parties did not enter into their agreement freely and knowingly, or that the overall settlement was not fair at the time it was entered into. Although SDCL 25-4-41 grants the Court authority to modify support ordered from time to time, there is nothing in the statute which prohibits modification of its provision by agreement of the parties. As the Court in *Nichols* stated: "If the legislature intended to prevent parties from entering into nonmodifiable agreements, it would have expressly prohibited such agreements." 469 N.W.2d at 623. It is generally true that statutes regarding property division and alimony awards may be modified by agreement except when explicitly forbidden. *Id.*

Furthermore, it is good public policy to encourage settlement agreements. The stipulation here was therefore neither illegal nor against public policy. Helen is seeking to be released from the order which under

SDCL 25-4-41 the Court could not have entered absent the agreement of the parties, *i.e.* making a support award which was nonmodifiable. All of the elements of estoppel are present in this case, and Helen should therefore be prohibited from seeking modification of the alimony award.

Because the application of estoppel disposes of this issue, we decline to address the questions of whether an award of rehabilitative alimony can later be extended or modified, and whether the nature of an award can be changed from rehabilitative alimony to supportive alimony in a subsequent proceeding.

* * *

We affirm on all issues.

RECENT CASES ON “CONTINUING JURISDICTION” TO MODIFY ALIMONY

1. In *Price v. Price*, 2000 SD 64, 611 N.W.2d 425, the trial court increased an initial award of regular alimony in the amount of \$1 to \$1000 per month. By way of background, it should be noted that the parties initially agreed at the time of the divorce in 1994, that wife would receive a lump sum award of \$27,203 representing restitutional alimony (husband was a licensed psychologist in Aberdeen), rehabilitative alimony in an amount which offset her child support obligation to husband, and regular alimony of \$1. Two years later (in 1996) the rehabilitative alimony (which had been initially utilized only to offset wife’s child support obligation) was increased to \$600 per month for a two year period. Wife again moved to modify alimony (as well as custody) during the same month that the \$600 per month rehabilitative alimony award ceased. The increase of \$1 to \$1000 per month in regular alimony was affirmed by the SD Supreme Court, with Justice Amundson dissenting. Justice Amundson argued that the increase was based on evidence of expenses which were tied into the custody transfer to the wife, which was reversed by the Court in the same opinion, “therefore a 1000 percent increase in alimony is not appropriate in this case.” (Paragraph no. 77, 611 N.W.2d at 438.)

2. The case of *Weekley v. Weekley*, 1999 SD 162, 604 N.W.2d 19, is discussed in some detail in the sub-chapter which deals with “Continuing Jurisdiction” for the “Modification of Child Support,” *supra*. That discussion shows that the SD Supreme Court deferred to the exclusive jurisdiction of California on the matter of child support modification, applying the appropriate provisions of the UIFSA. (SDCL 25-9B-205, as well as the corresponding California provision, make clear that another tribunal cannot modify the existing order.) As to the matter of “alimony” which wife originally agreed to pay husband, the SD Supreme Court acknowledged that spousal support is also subject to the provisions of UIFSA. However, in this particular case, the husband was found to have *consented* to the jurisdiction of the SD court to address the alimony issue.

3. Wife had been diagnosed with Multiple Sclerosis (MS) some five years before the divorce. At the time of divorce, Husband and Wife agreed that he would pay her \$500 per month until Wife’s “death, remarriage, or cohabitation, or for a period of five years unless no stated qualifying event has occurred prior to the five year period. However, at the end of the fifth year, should a reputable neurologist determine that [Wife] is unable to work, at that time the alimony shall be re-evaluated.” After the final payment date for the five year period had run, Wife filed her motion to modify, asking the court to continue the alimony payments. The trial court granted Wife’s motion and ordered continuation of the \$500 per month payments. Although Wife still worked, her health had declined due to advancement of

the MS. Wife “experiences more fatigue, loss of stamina, and periodic migraine headaches” and Wife “has developed additional problems with tingling and numbness in her hands” and “memory loss and slow speech.” ¶ 4. The court also found that Wife was confined to bed on her days off due to the rigors of her job. Husband appealed. *Savage v. Savage*, 2003 SD 46, 661 N.W.2d 762. The South Dakota Supreme Court affirmed, finding no abuse of discretion in the trial court’s finding that there had been a change in circumstances warranting modification.

The doctrine of *estoppel*, as utilized in the case of *Driscoll v. Driscoll*, is not available to Husband in this case because here Wife had not specifically agreed that her maintenance was unmodifiable. In *Driscoll*, the wife agreed she would never raise her health or husband’s stock increase as grounds to seek additional alimony. The agreement entered into here did not specifically bar Wife from seeking modification due to health problems. Both the trial court and the South Dakota Supreme Court indicated that “*Driscoll* was limited to its facts.” ¶ 9.

The ability of the trial court to modify the alimony award in this case is not affected by the fact the original award was based upon an agreement of the parties. The Court cited *Paradeis v. Paradeis* and *Connolly v. Connolly* in support of this notion.

The Husband also lost on his argument that the Wife’s motion was time-barred because she did not file it until after the date the last payment was due. Under the law set forth in *Saxvik v. Saxvik*, it is clear that “the termination of an award of periodic alimony does not bring an end to the jurisdiction of the court to consider whether alimony should be reinstated at a later time if a change in circumstances is demonstrated.” ¶ 22.

Wife was also awarded \$1,200 in appellate attorney fees.

4. In *Midzak v. Midzak*, 2005 SD 58, 697 N.W.2d 733, the wife was represented by counsel in her divorce action, but the husband appeared pro se. Husband had a full pension as a result of serving 20 years in the Air Force. In the Rapid City area, husband was unemployed and his only opportunity for employment would be as a common laborer at \$9.50 per hour. He had previously served as an flight controller in Hungary at a salary of about \$81,000 per year. Also, he had the opportunity to relocate to Turkey to again work as a flight controller for a salary of \$100,000 per year. ¶¶ 2-4. The trial court awarded wife a substantial portion of husband’s retirement pay (\$570 of the total monthly benefit of \$968.31). As to alimony, the trial court made no award of alimony to wife, but stated, “[husband] currently has only prospective employment, but is currently unemployed therefore alimony cannot be awarded at this time. However [wife] has significant monthly obligations and has far lower earning capacity than [husband]. The Court reserves the right to award alimony to [wife] if [husband] becomes employed.” Footnote 3 accompanying ¶ 28. Husband subsequently secured the services of an attorney and took an appeal. This appeal addresses the issue of whether or not the trial court has authority to “reserve” the right to award alimony later where no award is made at the time of the divorce. The Supreme Court of South Dakota affirmed the trial court’s action as both appropriate and authorized under South Dakota law. The Court also reaffirmed the holding of *Cameron v. Cameron*, 31 SD 335, 340, 140 N.W. 700, 701-02 which provides that a trial court loses jurisdiction to award alimony where there was “no basis for an award of alimony to begin with.” ¶ 26. This situation is not the same as the *Cameron* scenario. “The trial court is without jurisdiction to amend a non-existent alimony award at some point in the future if it denies alimony at the time of the divorce trial and does not expressly reserve the right to award it in the future.” ¶ 28. The act of the court in “reserving” the issue is adequate to preserve the court’s ability to later impose an alimony obligation. (The South Dakota Supreme Court compared the act of “reserving” to the situation recognized in *Saxvik v. Saxvik*, 1996 SD 18, 544 N.W.2d 177, where periodic award goes to zero – the reduction to zero, according to the *Saxvik* opinion, in the periodic award does not deprive the trial court from later reinstating alimony. Footnote 2 accompanying ¶ 26.)

5. Agreement that 7 year award of alimony is “non-modifiable” is still subject to termination upon wife’s remarriage, as per the rule of *Marquardt*. *Oman v. Oman*, 2005 SD 88, 702 N.W.2d 11. Parties agreed at time of divorce that husband should pay wife \$429 per month in alimony for a seven year period. The agreement provided, “It is specifically understood by the parties that the alimony provided for herein is non-modifiable by either party, as to the amount and duration, for so long as alimony is ordered to be paid.” Wife remarried approximately three years later and husband quit paying alimony. Wife initiated contempt proceeding against husband. Husband filed motion to terminate alimony based upon wife’s remarriage. The trial court ruled for wife, finding that the parties intended for alimony to continue in the event of wife’s remarriage. The South Dakota Supreme Court reversed in *Oman v. Oman*, 2005 SD 88, 702 N.W.2d 11, a 4-0 opinion authored by Justice Meierhenry. The Supreme Court held as follows:

A.) The rule of *Marquardt* provides that remarriage of the wife constitutes prima facie grounds for termination of alimony, subject only to “extraordinary circumstances,” for which the burden of establishing is placed upon wife. (¶ 7)

B.) As to the argument that the agreement’s “non-modifiable” provision controls, the Court notes that the agreement does not specifically address the prospect of wife’s remarriage. The use of the “non-modifiable” language in the agreement is not sufficient to overcome the rule of *Marquardt*. “Since the agreement does not expressly state that alimony is to continue [in the event of wife’s remarriage], the trial court erred by not applying the *Marquardt* rule.” (¶ 10) The Court also specifically refuses to address whether or not it would enforce an express agreement which purports to provide for the continuation of alimony in the event of remarriage. (Footnote 3)

C.) The case of *Driscoll v. Driscoll* is recognized as having “limited precedential effect.” (¶9) (citing also *Savage v. Savage*, 2003 SD 46, ¶ 9, 661 N.W.2d 762, 765 in support of this proposition). In *Driscoll*, the wife asserted two grounds to seek modification of alimony, despite the fact she specifically agreed at the time of the divorce that she would not assert those two exact grounds for the purpose of modifying alimony. (¶¶ 8-9)

D.) Wife’s argument that this alimony award is in the nature of a non-modifiable “lump sum” award fails because there is no mention of “lump sum” in the agreement, nor is there any specification of a gross amount payable in installments. Furthermore, there is nothing in the agreement which indicates that the alimony award is connected with or in lieu of a property settlement. (¶¶ 11-12)

E.) Absent the showing of “extraordinary circumstances,” alimony should cease as of the date of husband’s notice of hearing on his petition for termination. SDCL 25-7-7.3 bars retroactive modification except for those payments falling due after notice of hearing. (¶ 10)

D. Alimony

2. Criteria Warranting Modification

LAMBERTZ v. LAMBERTZ

Supreme Court of South Dakota, 1985.

375 N.W.2d 645.

PER CURIAM.

This is an appeal from an order denying appellant Edwin G. Lambertz's motion to reduce alimony payments. We reverse and remand.

Edwin and appellee Frances J. Lambertz were divorced on August 5, 1982, after thirty-two years of marriage and seven children. He was age fifty-four. She was fifty-two years old. Frances, a high school graduate, raised the children and aided the family financially by remodeling and selling their homes. Edwin was an administrator with the South Dakota Air National Guard, an officer in the U.S. Army Reserve, and a real estate salesman. In 1982, at the time of trial, he earned \$45,000 annually.

The trial court granted the divorce to Edwin. It divided the property based in part on the parties' agreement and ordered Edwin to pay Frances \$1,000 per month alimony. The award was based upon Edwin's income, Frances' \$1,200 monthly expenditures, and her limited earning capacity.

Edwin did not appeal from the judgment and decree of divorce. Rather, on September 2, 1982, he filed a motion to reduce the amount of alimony, arguing that Frances now had an income and that her expenses were less than she indicated at trial. Frances admitted earning \$3.75 per hour as a seasonal employee at a country club. By order, the trial court denied the motion.

On April 26, 1983, Edwin filed another motion to reduce the alimony obligation, arguing that he had been forced to dispose of personal property and that he would retire on August 31, 1983, reducing his income to \$2,000 per month. By order, the trial court dismissed the motion "as not being timely brought."

After he did in fact retire, Edwin filed a third motion to reduce the amount of alimony payments. In his supporting affidavit he said that he had retired effective September 1, 1983, his income since retirement was \$2,000 per month, and he was financially unable to pay \$1,000 per month alimony. Frances argued that the trial court was aware of appellant's plan for early retirement and reduction of income at trial. By order, the court denied the motion.

This appeal followed. We remanded the case for findings of fact and conclusions of law. These indicate that the trial court was aware that Edwin might take an early retirement and a decrease in pay when it made the initial alimony award. According to the trial court, Edwin did so knowing what his financial obligation to Frances would be. Hence, the trial court concluded the financial circumstances at the time of the final motion to reduce alimony had not changed.

The sole issue on appeal is whether the trial court abused its discretion by denying Edwin's motion to reduce the \$1,000 per month alimony that he was required to pay Frances. We conclude that it did.

The "substantial change of circumstances" standard necessary for modification of child custody provisions is not applicable in a proceeding to modify alimony. See *Jameson v. Jameson*, 306 N.W.2d 240 (S.D.1981). To justify a change in alimony payments there must merely be a change of circumstances. *Moller v. Moller*, 356 N.W.2d 909 (S.D.1984); *Rousseau v. Gesinger*, 330 N.W.2d 522 (S.D.1983); *Herndon v. Herndon*, 305 N.W.2d 917 (S.D.1981).

Between the time of the divorce decree and the modification hearing Edwin's income was reduced by approximately half. This was not due to a voluntary reduction in income to avoid or evade the payment of alimony. *Simmons v. Simmons*, 67 S.D. 145, 290 N.W. 319 (1940); *Herndon v. Herndon*, *supra*. Rather, he was required to retire within a year of his actual retirement date under Air Force regulations. See 10 U.S.C. § 633. Although the trial court was aware that Edwin might retire after the decree, this evidence was speculative and irrelevant to the initial alimony award. As we noted in *Guindon v. Guindon*, 256 N.W.2d 894, 899 (S.D.1977), "... respondent makes dire predictions of the future decrease in his income. If his income should decrease and/or the appellant's income increase, he may petition the trial court for a modification under such a change of circumstances."

At the modification hearing, the trial court was clearly presented with a different state of facts than he originally adjudicated. It is clear that Edwin's substantial reduction in income after the divorce decree presented the court with change sufficient to warrant a reduction in alimony. *Guindon*, *supra*; *Dougherty v. Dougherty*, 76 S.D. 318, 77 N.W.2d 845 (1956). The trial court abused its discretion by failing to reduce the alimony award. Consequently, we reverse and remand this case for a reduction in alimony based upon the needs of Frances and the financial ability of Edwin. The request for attorney's fees by Frances is denied.

Reversed and remanded.

WILSON v. WILSON
Supreme Court of South Dakota, 1987.
399 N.W.2d 890.

SABERS, Justice.

Thomas O. Wilson (husband) appeals from an order denying his motion to reduce the amount of alimony he is required to pay Delphia Wilson (wife) pursuant to their judgment and decree of divorce. We affirm.

Husband and wife were divorced in 1980 after twelve years of marriage. Wife was granted the divorce because of husband's physical abuse and liaison with a younger woman.

At the time of the divorce, husband, a college graduate, was fifty-eight years old and in good health. He earned \$30,000 working for the BIA. Wife, a high school graduate, was fifty-seven years old and suffered from various ailments she controlled by medication. During the marriage she worked in several clerical positions.

Neither party came to the marriage with any assets. They accumulated a net worth of \$121,637.65, primarily in rental real estate. The trial court divided the bulk of the personal property and automobiles (approximately \$25,000) between the parties. Husband was awarded all of the remaining personal property, bank accounts, and real property subject to any encumbrances of record. He was to pay all marital debts.

As part of the property division, wife was awarded \$16,000, payable \$2,000 plus interest per year. In addition, she was awarded monthly alimony of \$595, payable at the rate of \$275 every two weeks.

In 1985, husband sought to reduce the alimony award because he had retired. His monthly retirement income was \$1,100; his prior monthly income was \$1,646. He had recently remarried a woman who received \$600 per month retirement income. He had retained and was renting the real estate that he received from the property division, although he had placed the property on the market. Wife contended that she was unemployed and dependent on the alimony award. The trial court denied husband's motion to reduce the amount of alimony.

Husband contends that 1) the trial court abused its discretion by failing to reduce his alimony payments since his income has been reduced by one-third and his alimony obligation constitutes one-half of his retirement income, and 2) alimony payments should be reduced to one-third of his income in accordance with the alimony/income ratio originally established by the trial court.

To warrant a modification of an alimony award, there must be a change of circumstances. *Wegner v. Wegner*, 391 N.W.2d 690 (S.D.1986). The burden of proving a change in circumstances sufficient to justify modification of an alimony award is upon the party seeking modification. *Rousseau v. Gesinger*, 330 N.W.2d 522 (S.D.1983). This court will not disturb the decision of the trial court on a question of alimony absent an abuse of discretion. *Moore v. Moore*, 354 N.W.2d 732 (S.D.1984).

This court has considered whether a reduction of the obligor spouse's income necessitates a reduction of alimony to the dependent spouse in three recent cases. In *Moore, supra*, at 733, we affirmed a reduction of alimony payments where the obligor spouse established "sufficient specific facts regarding his reduction of income and other circumstances to support ... changed circumstances" and the dependent spouse failed to contest any of the obligor spouse's claims about his income, her employability or her rental arrangement. In *Lambertz v. Lambertz*, 375 N.W.2d 645, 647 (S.D.1985), we ordered a reduction of alimony in a case where the obligor spouse's income had been reduced by half and he was financially unable to pay the amount of alimony originally ordered. The trial court, on remand, was ordered to reduce the alimony "based upon the needs of [the dependent spouse] and the financial ability of [the obligor spouse]." Finally, in *Lampert v. Lampert*, 388 N.W.2d 899 (S.D.1986), illness reduced the obligor spouse's income by forty-one percent. Because the obligor spouse still had sufficient funds to pay the alimony and because the dependent spouse needed the money to meet ordinary expenses, we affirmed the order denying a reduction in alimony.

This situation is similar to *Lampert*. Husband merely alleged that alimony should be reduced because his income was reduced. There was no showing that he was unable to pay the original alimony award from this reduced income or the income generated from the substantial award of rental property he received in the property division. Nor was there any showing that wife's need for alimony had decreased; indeed, her affidavit recites that she is dependent upon alimony. Without a "complete detailed financial position," *Lampert, supra*, at 903, relief may not be granted. Standing alone, husband's mere reduction in income does not mandate a reduction in alimony.

In view of all the facts and circumstances of this case we hold that the trial court did not abuse its discretion by denying husband's motion to reduce alimony. Accordingly, we need not reach husband's second contention.

Affirmed.

DR. JAMESON LOSES ANOTHER ROUND

In *Jameson v. Jameson*, 1999 SD 129, 600 N.W.2d 577, the SD Supreme Court reversed the trial court's elimination of alimony based only upon the former husband's retirement from medical practice at age 70. The court observed that "while retirement can be a change in circumstances, it is not automatic ... [and that] ... a decrease in earning, by itself, does not show a change in circumstances." (Paragraph no. 16. 600 N.W.2d at 581.) This case also supports the notion seen in other cases (as well as in a prior appeal involving the same parties in this case) that it is not the role of the courts in modification proceedings to relieve a party of his or her "bad bargain." Here, the former husband had entered into a "bad bargain" at the time of the divorce and had already been denied relief from that bad bargain in earlier litigation. Additionally, the Supreme Court held that it was error for the trial court to deny an award of attorney fees to the former wife where the former husband had deliberately attempted to deprive her of what he had agreed to give her in 1971. The former wife was also awarded appellate attorney fees of \$4,994.72.

MOLLER v. MOLLER

Supreme Court of South Dakota, 1984.
356 N.W.2d 909.

[Part of this opinion is also included in the "Division of Property" Chapter, *supra*. In particular, it may be found in the last sub-chapter which deals with "The Problem of `Omitted Assets.'" In that part of the opinion, one learns that the ex-wife was denied relief (by both the trial court and the SD Supreme Court) in connection with her post-decree request that she be awarded ½ of the husband's military retirement pay which had been completely omitted from the divorce decree entered several years earlier. Wife's alimony award, however had been increased by the trial court to \$222.90 and wife also urged on appeal that this increase was insufficient.].

* * *

II. THE ALIMONY AWARDED

The original monthly alimony award of \$100.00 was low. Wife urges us to apply the rationale of *Kolb v. Kolb*, 324 N.W.2d 279 (S.D.1982), to the facts herein. *Kolb*, held that when child custody is based upon a stipulation and agreement, evidentiary facts concerning custody have not been litigated and are not deemed adjudicated in a modification hearing. Child custody, however, involves the rights of third persons who were not parties to the action or participants in the stipulation and agreement. Here the property and alimony agreement was between two responsible adults, both of whom were represented by counsel. We are not inclined to extend the *Kolb* rationale to alimony and property matters. See *Ramsay v. Ramsay*, 305 Minn. 321, 233 N.W.2d 729 (1975); *Kaiser v. Kaiser*, 290 Minn. 173, 186 N.W.2d 678 (Minn.1971). A trial court's determination of alimony must stand absent a clear abuse of discretion, *Herndon v. Herndon*, 305 N.W.2d 917 (S.D.1981); and we will not put trial courts in the position of relieving parties of an initial bad bargain, nor look behind the original decree on an appeal of a modification decision. See *Jameson v. Jameson*, 90 S.D. 179, 239 N.W.2d 5 (S.D.1976).

However, the authority to modify an alimony award is not affected by the fact that the original divorce judgment was based on an agreement between the parties. *Blare v. Blare*, 302 N.W.2d 787 (S.D.1981); *Connolly v. Connolly*, 270 N.W.2d 44 (S.D.1978); *Simmons v. Simmons*, 67 S.D. 145, 290 N.W.

319 (1940). The only issue before the trial court therefore was whether circumstances had changed between the 1977 divorce decree and the 1983 modification hearing which warranted alimony adjustment. *Herndon, supra*. See also, *Guindon v. Guindon*, 256 N.W.2d 894 (S.D.1977); *Jameson, supra*.

Wife is unemployed and suffers from rheumatoid arthritis, inhalant allergies and a hearing loss. Although she submitted no expert medical testimony, husband did not dispute her health problems or her inability to work. The trial court found wife was not a malingerer. She was forced to sell the home awarded to her in the divorce decree because she could not maintain the payments. The record further reveals she was receiving unemployment insurance benefits and food stamps. Conversely, husband's income from his insurance business had substantially increased, as had his military retirement pay.

Husband contends his income increased at a percentage rate lower than wife's. He argues, therefore, that wife's circumstances have actually improved. This reasoning does not fairly reflect the facts. We cannot countenance a percentage comparison of two individual's incomes when one party spent twenty-six years building an income base while the other spouse was not employed, thereby having no base. To do so would produce results "clearly against reason and evidence." *Herndon, supra*.

Upon review of the changed circumstances, we find the trial court insufficiently increased wife's alimony. *Guindon, supra*; *Guintier v. Guintier*, 72 S.D. 554, 37 N.W.2d 452 (1949); *Lines v. Lines*, 69 S.D. 299, 9 N.W.2d 705 (1943). The court included wife's earnings, which had ceased, and her temporary unemployment insurance benefits in her 1983 income. That distorted her true financial condition. Adjusting the alimony based on inflation alone only reflected one important changed circumstance. The trial court's increase should also have accounted for her deteriorated health which impaired, or totally precluded, future employment.

Husband contests the trial court's attorney fee award to wife. The record shows that the trial court adequately considered all factors and did not abuse its discretion by awarding attorney fees. *Peshek v. Peshek*, 297 N.W.2d 323 (S.D.1980); *Lien v. Lien*, 278 N.W.2d 436 (S.D.1979).

We accordingly hold the trial court abused its discretion by inadequately increasing the alimony, but we affirm in all other respects. The case is remanded for further proceedings consistent with this opinion. No attorney fees were requested on appeal.

WOLLMAN, MORGAN and HENDERSON, JJ., concur.

WUEST, Circuit Judge, acting as Supreme Court Justice, concurs.

NOTES

1. In *Olson v. Olson*, 1996 SD 90, 552 N.W.2d 396 (S.D. 1996), the court re-visited the issue of whether or not the *Kolb* approach should apply to modification of alimony orders originally based on agreement of the parties. Again the court rejected the idea and retained the "change in circumstances" criteria. *Id.* at footnote 2 on p. 400.

2. **Alimony obligor's subsequent-spouse's income should not be considered as obligor's income in making alimony modification determination.** In *Moore v. Moore*, 2009 SD 16, 763 N.W.2d 536, the

trial court increased Husband's alimony payment from \$100 per month to \$1500 per month. In doing so the trial court relied on income attributable to husband's subsequent wife.

The parties were divorced in December, 2003, at which time wife received 87% of the marital assets. Husband agreed to pay wife \$100 per month in alimony. Wife, who was diagnosed with MS in 1999, eventually began living with the man to whom she sold the marital home. This man supported wife and took care of the finances. Wife's male live-in friend did not appear in the proceedings and wife's evidence was incomplete in some areas. Husband remarried and became a "house husband" with his new wife making substantial income.

In reversing the lower court, the SD Supreme Court acknowledged that this issue (inclusion of a subsequent spouse's income as part of the determination of the alimony obligor's income) is one of 1st impression in South Dakota. The case was reversed and remanded with the Court stating,

... an alimony obligor's subsequent-spouse's income may not be included as part of the obligor spouse's income. Without evidence of [H's] income or earning capacity as the source of [H's] ability to pay, the trial court has, in reality, required [H's current wife] to pay [W's] alimony. This was an error of law. *Id.* at ¶ 46.

The Court also found that the wife did not meet her burden in this modification proceeding. Noteworthy comments from this opinion are as follows:

Just as courts must be wary of an alimony obligor's effort to minimize his or her ability to pay through under employment or unemployment, courts must also consider conduct by the alimony recipient to maximize his or her unmet needs through speculative expenses and the minimization of support provided by their live-in cohabitants. This vigilance is especially necessary when the recipient is the moving party who carries the burden of proving a change in circumstances. *Id.* at ¶ 15.

In general, 'cohabitation, in and of itself, is not a circumstance upon which alimony may be modified or terminated.' *Id.* at ¶ 22.

This decision is unanimous with the Court's opinion being authored by retired Justice Miller, sitting for Justice Zinter.

3. SD Supreme Court upholds trial court's determination that wife did not establish adequate grounds to justify upward modification of alimony award originally designed to keep wife eligible for healthcare coverage through husband's pension plan. SD Supreme Court also upholds trial court's decision to let husband designate a different survivor-beneficiary for his retirement plan. In *Lowe v. Schwartz*, 2007 SD 85, 738 N.W.2d 63, we find a continuation of the litigation in a divorce action which already generated one SD Supreme Court opinion (*Lowe v. Schwartz*, 2006 SD 48, 716 N.W.2d 777). The current appeal relates to the trial court's denial of wife's request for additional alimony and the trial court's decision permitting husband to deny wife survivor-beneficiary status on husband's Coast Guard pension plan. At the time of the marriage, which was later in life for both parties, wife had accumulated a net worth of \$365,000 while husband had very little except his retirement plan through the Coast Guard. (Husband retired less than 1 year after marriage.) Wife suffered a heart attack 2-3 years after the marriage and began living on her accumulated assets which had dwindled to \$80,000 at the time of the divorce. In the original divorce proceeding, the trial court awarded wife permanent alimony of \$135 from husband's retirement pay of \$1390 per month. The purpose of this award was to insure that Wife would be eligible to receive continued

healthcare benefits through the Coast Guard Program. Receipt of a portion of husband's retirement pay was one of several requirements to be met to insure wife's eligibility for continued healthcare coverage. Wife's assets continued to dwindle after the divorce and she sought an increase in alimony. Also, the issue of her being named (or not) as a survivor-beneficiary on the retirement plan presented itself – if wife is not the designated survivor-beneficiary when husband dies, then she will no longer be eligible for coverage under the Coast Guard healthcare plan upon his death. The trial court's decision in favor of husband on both issues was affirmed by the SD Supreme Court in an opinion written by Chief Justice Gilbertson. Justice Sabers (together with Justice Konenkamp concurring) dissented on the modification of alimony issue.

Concerning alimony, the majority opinion recognizes that the factors now asserted as a change in circumstances by wife were taken into consideration by the trial court at the time the original alimony award was made and that the primary reason for the award was simply to insure wife's continued eligibility for Coast Guard healthcare coverage. The dissenting opinion points out that wife only needs to establish a "change in circumstances" (as opposed to a "substantial change in circumstances") to modify alimony and that, according to wife's evidence, husband's earned and retirement income exceeds her income by a ratio of 17 to 1.

With regard to the trial court's decision to permit husband to designate whomever he desires as the survivor-beneficiary on his retirement plan, all five justices agreed that this matter was previously resolved in the original divorce proceeding.

D. Alimony

3. Prohibition on Retroactive Modification

The student should carefully review the discussion on retroactive modification of child support found earlier in this chapter. The student should also reread SDCL 25-7-7.3 and SDCL 25-7-7.4 which are reproduced here again for your study:

25-7-7.3 Past due support payments not subject to modification -- Exception.

Any past due support payments are not subject to modification by a court or administrative entity of this state, except those accruing in any period in which there is pending a petition for modification of the support obligation, but only from the date that notice of hearing of the petition has been given to the obligee, the obligor, and any other parties having an interest in such matter.

25-7-7.4 Unpaid payment or installment of support as judgment. Any payment or installment of support under an order for support, as defined by § 25-7A-1, whether entered by a court or an administrative entity of this state or of any other state or jurisdiction, which is unpaid after the date it is due, is a judgment by operation of law, with the full force, effect and attributes of a judgment of this state, including enforceability, and is entitled, as a judgment, to full faith and credit in this state.

Do these statutes apply to modification of alimony? What do the words “support payments” in SDCL 25-7-7.3 encompass?

The issue is just as poignant in the context of alimony arrearages as it is with child support arrearages. South Dakota trial courts have historically been inclined to grant retroactive relief for alimony arrearages which had accrued by the time the delinquent ex-spouse was brought in front of the court. *Eg. Thomerson v. Thomerson*, 387 N.W.2d 509 (S.D. 1986).

Recent decisions by the South Dakota Supreme Court indicate that SDCL 25-7-7.3 is applicable to modification of alimony. This means that arrearages may not be “canceled” or “forgiven” by the court.

In *Steffens v. Peterson*, 503 N.W.2d 254 (S.D. 1993), ex-husband had voluntarily made alimony payments following wife’s remarriage. He went to court to have alimony terminated and for a “refund.” The South Dakota Supreme Court held that those alimony payments which fell due prior to “the filing for modification were vested” and non-modifiable, citing SDCL 25-7-7.3 “by analogy”. *Id.* at 259. The court distinguished *Thomerson* (cited above) by noting that in this case, the husband had in fact remained current in his payments and was seeking a refund. *Id.* With respect to those payments he made after filing, ex-husband was entitled to a judgment but was not permitted to reduce his child support payments a method of recouping his overpayment. Because to do so would “equate to ‘robbing Peter to pay Paul.’” *Id.* at 260.

In *Gunn v. Gunn*, 505 NW2d 772 (S.D. 1993) the trial court refused to retroactively modify husband’s alimony payments. The South Dakota Supreme Court affirmed after extensively reviewing the husband’s financial situation. *Id.* at 774-75. The court went on to state, “Past-due support obligations are modifiable only as to the date of filing of a petition for modification. SDCL 25-7-7.3.” *Id.* at 775.

A more recent statement by the South Dakota Supreme Court on this issue can be found in *Taecker v. Taecker*, 527 N.W.2d 295 (S.D. 1995). Affirming the trial court in its refusal to make its modification of support payments retroactive, the court stated the following:

The circuit court had no power to grant retroactive relief extending before the time the father's petition was pending. We held in *Steffens v. Peterson*, 503 N.W.2d 254 (S.D. 1993) that past-due spousal support payments are not retroactively modifiable under SDCL 25-7-7.3 except for that period in which petition for modification is pending. Alimony payments become final judgments as they fall due. SDCL 25-7-7.4. The father, therefore could seek only to modify alimony from the time his petition was pending. The trial court refused this request and we see no abuse of discretion, especially considering that the father contemptuously ignored the alimony order from the outset. *Id.* at 299-300.

RECENT CASES (from 2000 and later)

Despite the fact wife remarried 1 month after divorce, husband was liable for unpaid alimony (plus interest) some 11 years later when wife finally brings husband back into court. In *Culhane v. Michels*, 2000 SD 100, 615 N.W.2d 580, husband was ordered to pay wife \$1,100 per month for two years. Wife remarried to another one month after the divorce. Husband made only one alimony payment and then stopped. Eleven years later, wife successfully sued husband for alimony arrearage plus interest pursuant to SDCL 21-1-13.1 and SDCL 15-16-3. Alimony may not be retroactively modified by virtue of SDCL 25-7-

7.3 and this prohibition *also extends* to that portion of the arrearage which accrued prior to the effective date (July 1, 1987) of statute (SDCL 25-7-7.3). Husband's arguments of waiver and laches were also rejected. Remarriage does not automatically cancel an alimony obligation. Husband should have petitioned for modification of his obligation upon wife's remarriage.

Husband's agreement, incorporated into divorce decree, to provide wife with major medical insurance coverage is modifiable as an alimony obligation and presumptively subject to termination based upon wife's subsequent remarriage. In *Harding-Moyer v. Harding*, 2000 SD 126, 616 N.W.2d 899, the parties reached an agreement at the time of the divorce in 1987, with the agreement being incorporated into the decree of divorce. As part of that agreement, husband was to provide wife with major medical insurance coverage. Wife subsequently remarried an Air Force serviceman and was eligible for health insurance coverage through her new husband. Husband sought to be relieved of this obligation. The trial court denied husband's request, holding that the obligation to maintain health insurance was "contractual in nature" and not modifiable. In an unanimous per curiam opinion, the South Dakota Supreme Court reversed holding that the applicable South Dakota's definitions of alimony or spousal support are "broad enough to include medical or health insurance premiums." (Paragraph No. 12, 616 N.W.2d at 902.) Accordingly, the award is subject to modification based on a showing of changed circumstances. Furthermore, under the South Dakota *Marquardt* rule, remarriage establishes a prima facie case requiring termination unless "extraordinary circumstances" exist which justify the continuation of the alimony obligation. The case was remanded to the trial court for a determination as to whether or not "extraordinary circumstances" are present.

Agreement that 7 year award of alimony is "non-modifiable" is still subject to termination upon wife's remarriage, as per the rule of *Marquardt*. *Oman v. Oman*, 2005 SD 88, 702 N.W.2d 11. Parties agreed at time of divorce that husband should pay wife \$429 per month in alimony for a seven year period. The agreement provided, "It is specifically understood by the parties that the alimony provided for herein is non-modifiable by either party, as to the amount and duration, for so long as alimony is ordered to be paid." Wife remarried approximately three years later and husband quit paying alimony. Wife initiated contempt proceeding against husband. Husband filed motion to terminate alimony based upon wife's remarriage. The trial court ruled for wife, finding that the parties intended for alimony to continue in the event of wife's remarriage. The South Dakota Supreme Court reversed in *Oman v. Oman*, 2005 SD 88, 702 N.W.2d 11, a 4-0 opinion authored by Justice Meierhenry. The Supreme Court held, *inter alia*, that absent a showing of "extraordinary circumstances," alimony should cease as of the date of husband's notice of hearing on his petition for termination. SDCL 25-7-7.3 bars retroactive modification except for those payments falling due after notice of hearing.

"Law reflects but in no sense determines the moral worth of a society. The values of a reasonably just society will reflect themselves in a reasonable just law. The better the society, the less law there will be. In Heaven there will be no law, and the lion will lie down with the lamb. The values of an unjust society will reflect themselves in an unjust law. In Hell there will be nothing but law, and due process will be meticulously observed."

Grant Gilmore, *The Ages of American Law* (1977)

E. Property

Consider the following Rule which is discussed in the next case:

15-6-60(b). Relief on ground of mistake - Inadvertence - Excusable neglect - Newly discovered evidence - Fraud. On motion and upon such terms as are just, the court may relieve a party or his legal representative from a final judgment, order, or proceeding for the following reasons:

- (1) Mistake, inadvertence, surprise, or excusable neglect;
- (2) Newly discovered evidence which by due diligence could not have been discovered in time to move for a new trial under §15-6-59(b);
- (3) Fraud (whether heretofore denominated intrinsic or extrinsic), misrepresentation, or other misconduct of an adverse party;
- (4) The judgment is void;
- (5) The judgment has been satisfied, released, or discharged, or a prior judgment upon which it is based has been reversed or otherwise vacated, or it is no longer equitable that the judgment should have prospective application; or
- (6) Any other reason justifying relief from the operation of the judgment.

The motion shall be made within a reasonable time, and for reasons (1), (2), and (3) not more than one year after the judgment, order or proceeding was entered or taken. A motion under this subdivision (b) does not affect the finality of a judgment or suspend its operation. Section 15-6-60 does not limit the power of a court to entertain an independent action to relieve a party from a judgment, order, or proceeding, or to grant relief to a defendant not actually personally notified as provided by statute or to set aside a judgment for fraud upon the court.

Source: as adopted by Sup. Ct. Order March 29, 1966, effective July 1, 1966.

ANDERSON v. SOMERS

Supreme Court of South Dakota, 1990.
455 N.W.2d 219.

SABERS, Justice.

Tina Somers seeks to be relieved from an unsatisfactory property settlement incorporated into a divorce decree. She appeals the trial court's denial of relief. We affirm.

Tina and Alan Anderson were married in July 1980 while attending the South Dakota School of Mines and Technology. The parties married because Tina wanted to become a South Dakota resident and reduce her tuition at the School of Mines. Both Tina and Alan graduated with highest honors from the School of Mines in 1982.

After graduation, the couple moved to California to work. The parties separated in late 1982 due to Tina's extra-marital affair with another man. Alan commenced divorce proceedings in California at that time but the action was never finalized.

In January 1983, Alan returned to South Dakota to assist his father and brother in starting an electronics business called Anderson Scientific. Tina joined Alan in South Dakota in the summer of 1983 in an attempt to reconcile. The couple lived on Alan's income of approximately \$42,000 per year as Tina worked only sporadically after rejoining Alan.

At Alan's urging, Tina filed for divorce in October 1984. She contends that Alan persuaded her to file by telling her that they needed to divorce in order to protect their property from litigation that might result from a potential sale of Anderson Scientific. Tina could not go through with the divorce, however, and it was never finalized.

In 1985 Alan again approached Tina requesting a divorce. Tina contends that Alan repeated his assertions that a divorce was necessary to protect their financial security and to protect their property from litigation. Alan assured Tina that he would take care of the divorce and that she would not have to appear in court.

Alan filed for divorce in September 1985. The parties entered into a stipulation and property settlement agreement but decided not to finalize the divorce until 1986 for tax purposes. Between the filing of the divorce action and the granting of the divorce decree, Alan sold his stock in Anderson Scientific for \$240,000. Alan contends that in order to take the sale of stock into account, the parties entered into an amended stipulation and property settlement agreement awarding relatively equivalent personal property to each of them, Tina the marital home and Alan the proceeds from the sale of the stock. Tina contends that the only reason she signed the stipulation was because Alan continued to assure her that the divorce was necessary to protect their property and that they would remain together after the divorce.

A hearing was held on the divorce complaint on January 3, 1986. No appearance was entered by or on behalf of Tina. Alan testified that he and Tina had grown apart, no longer enjoyed each other's presence and wanted to go their separate ways. It appears that the sale price of the stock was not disclosed to the trial judge to keep him from raising questions as to the disparity in the property settlement agreement. The trial court entered a divorce decree on January 3, 1986, incorporating the parties' amended stipulation and property settlement agreement.

The parties continued to live and travel together after their divorce. Tina sold the marital home in November 1986 for a profit of \$32,162. The couple moved to California and later vacationed in Australia. They returned to California in January 1987 and lived together until March when Alan abruptly left Tina.

Tina went through a period of depression after the parties' separation and began counseling in November 1987. Alan remarried in December 1987. On July 12, 1988, Tina filed a motion for an order to show cause seeking relief from the property division in the divorce decree. After the filing of affidavits and counter-affidavits, the trial court granted Alan's motion to quash the order. Tina appeals.

ISSUE

WHETHER THE TRIAL COURT ERRED IN FINDING THAT TINA'S MOTION FOR RELIEF FROM THE DIVORCE DECREE WAS TIME BARRED UNDER SDCL 15-6-60(b)(3) OR WHETHER THE MOTION WAS UNTIMELY UNDER SDCL 15-6-60(b)(6)?

At the center of this appeal are the provisions of SDCL 15-6-60(b). The pertinent provisions are

SDCL 15-6-60(b)(3) and (6) which state:

On motion and upon such terms as are just, the court may relieve a party or his legal representative from a final judgment, order, or proceeding for the following reasons:

* * *

(3) Fraud (whether heretofore denominated intrinsic or extrinsic), misrepresentation, or other misconduct of an adverse party;

* * *

(6) Any other reason justifying relief from the operation of the judgment.

The motion shall be made within a reasonable time, and for reasons (1), (2), and (3) not more than one year after the judgment, order or proceeding was entered or taken. (emphasis added).

Tina did not specify whether her motion for relief was brought under Rule 60(b)(3) or 60(b)(6). As support for her motion, Tina cited Alan's alleged assurances that they would remain together after the divorce and that they were only divorcing to protect their property. She argued that Alan defrauded her by concealing his intention to separate and retain for himself the proceeds from the sale of the Anderson Scientific stock. The trial court concluded that these contentions sounded in fraud and quashed its order to show cause based upon the one year time limit applicable to bringing motions under Rule 60(b)(3). Tina now argues that the trial court erred in failing to consider Alan's fraud as a basis for relieving her from the judgment under Rule 60(b)(6) which is not governed by the one year time limit.

A divorce decree which divides or allots property or provides for payment of a gross sum in lieu thereof is a final and conclusive adjudication and cannot be subsequently modified. *Blare v. Blare*, 302 N.W.2d 787 (S.D.1981); *Holt v. Holt*, 84 S.D. 671, 176 N.W.2d 51 (1970). The only exception to this rule of finality is the presence of fraud or any other reason that would allow relief from a judgment. *Id.* Thus, "[i]n *Rogers v. Rogers*, 351 N.W.2d 129 (S.D.1984), we held that SDCL 15-6-60(b) authorizes relief from judgment based on mistake, inadvertence, excusable neglect, surprise and fraud, and is applicable to awards of support and property settlements incorporated in divorce decrees." *Wegner v. Wegner*, 391 N.W.2d 690, 693 (S.D.1986) (footnote omitted). Although fraud is explicitly made a reason for relieving a party from a judgment under Rule 60(b)(3), we have also considered fraud as a basis for granting relief from a divorce decree under Rule 60(b)(6). See *Wegner, supra*; *Blare, supra*.

As Tina asserts, motions brought under Rule 60(b)(6) are not governed by the one year time limit. SDCL 15-6-60(b); *Blare, supra*. Nevertheless, such motions must be made within a "reasonable time." SDCL 15-6-60(b); *Clarke v. Clarke*, 423 N.W.2d 818 (S.D.1988). In reviewing the reasonable time requirement in *Clarke*, we observed:

Lynda's motion was filed within five weeks after judgment, well within the one year limitation of 15-6-60(b). The motion was also filed within a reasonable time. *Rogers, supra*, allowed a motion to vacate judgment when it was filed within six months of the original judgment. The *Rogers* court, while not expressly holding that six months was reasonable, implicitly recognized its reasonableness when it allowed the judgment to be vacated under 15-6-60(b)(1). This court has also held that just under one month was a reasonable time to make a motion under SDCL 15-6-60(b)(6). Subsection (6) does not have the one year limitation that subsections (1), and (2), and (3) have. *Gross v. Kouf*, 349 N.W.2d 652 (S.D.1984). Therefore, a motion made within one year under SDCL

15-6-60(b)(1) which is based upon the compelling factors that exist in this case meets the timeliness element of the statute. Lynda needed at least this amount of time to retain counsel, confer with counsel, allow counsel time to review and evaluate the case, and permit counsel time to determine the appropriate course of action and file appropriate motions. The motion was more than timely made under these circumstances.

Clarke, 423 N.W.2d at 821.

In contrast with the five week delay in *Clarke*, Tina did not file her motion for relief until July 12, 1988, over two and one-half years after entry of judgment and well over a year after Alan actually left her. Although a portion of this delay could be attributable to Tina's depression after Alan's departure, she continued to delay for nearly nine months after beginning counseling to bring her motion. Her counselor's affidavit gives no indication that she was too debilitated during this time to be capable of taking appropriate legal action. Moreover, one of Alan's affidavits makes the uncontroverted assertion that Tina made certain property demands upon him after their separation. The fact that Tina had a sufficient mental state to make these property demands indicates that she had a sufficient mental state to consult an attorney and bring an appropriate motion for relief from judgment.

Based upon the foregoing observations, we find that Tina's motion for relief from judgment was untimely as not having been brought within a "reasonable time." Accordingly, the trial court correctly quashed its show cause order for hearing on the motion. That the trial court reached its conclusion for a different reason does not prevent this court from affirming based upon the correct reason. *Gilbert v. United Nat. Bank*, 436 N.W.2d 23 (S.D.1989); *Owens v. City of Beresford*, 87 S.D. 8, 201 N.W.2d 890 (1972).

Because we affirm on issue one, it is unnecessary to reach the second issue on appeal.

Alan has filed a motion for attorney's fees incurred in this appeal. His motion is accompanied by an itemized statement of costs incurred and legal services rendered as required by *Malcolm v. Malcolm*, 365 N.W.2d 863 (S.D.1985). Based upon our review of the appropriate factors as set forth in *Senger v. Senger*, 308 N.W.2d 395 (S.D.1981), we deny Alan's motion.

Affirmed.

MORGAN, and HENDERSON, JJ., concur.

WUEST, C.J., concurs specially.

MILLER, J., dissents.

WUEST, Chief Justice (special concurrence).

I concur. If a fraud was committed on the Court as Justice Miller's dissent suggests, Tina was a party and does not come into Court with clean hands. For that reason alone, I would deny her any relief.

MILLER, Justice (dissenting).

I respectfully dissent.

I would reverse the order granting the motion to quash (and the order awarding Alan attorney fees) and would remand for further proceedings. *A fraud was allegedly committed upon the court*; however, the

trial court neglected or failed to consider that issue.

The majority correctly notes that "[i]t appears that the sale price of the stock was not disclosed to the trial judge to keep him from raising questions as to the disparity in the property settlement agreement." (This sales price was \$240,000, not some trivial amount!)

That statement comes from unchallenged allegations in Tina's affidavits. She stated that if the information was disclosed to the court "the court would not then grant a divorce," and, further, that it was withheld from the court "in order to protect our financial future and security in the event the sale of his stock in Anderson Scientific would result in litigation." Alan's affidavits *never disputed* these allegations (other than to allege that he never concealed the sales price from Tina and that there was "absolutely no litigation relating to any attempted Anderson Scientific stock sale"). Therefore, Tina's assertions that they were intentionally concealing significant property values from the court must be presumed as true.

* * *

It must be noted that under the clear language of SDCL 15-6-60(b), the time limitation stated earlier in that rule "does not limit the power of a court . . . to set aside a judgment for fraud upon the court." This legal principle was previously stated and adopted by us in *Gifford v. Bowling*, 86 S.D. 615, 200 N.W.2d 379 (1972)(citing Barron and Holtzoff, Federal Practice and Procedure, § 1330).

NOTES

1. In both the *Rogers* case and the *Clarke* case cited in the foregoing case relief from a judgment was granted under SDCL 15-6-60(b). Both cases were divorce cases. A party seeking relief from a final judgment always has an uphill battle. Rarely is relief granted. The result in *Anderson v. Somers* is the more likely result.

2. The South Dakota Supreme Court did grant relief under SDCL 15-6-60(b)(1)'s provision for "excusable neglect" in *Friberg v. Friberg*, 509 N.W.2d 415 (1993). The wife sought to set aside a default divorce decree which awarded custody of four children to the husband. The wife claimed, *inter alia*, that husband was not the father of the youngest child. Although the trial court denied relief, wife prevailed on her request to set aside the decree in the high court, receiving a rare unanimous "per curiam" opinion by the court. Some of the factors which warranted a finding of "excusable neglect" were (1) wife's hospitalization for severe emotional problems, (2) wife's inexperience with court and legal proceedings, (4) wife's having been caught up in a "bureaucratic quagmire" and series of referrals through three different legal aid offices which did not get resolved until after entry of the default divorce.

3. The *Friberg* decision is also significant in that it recognized a probable meritorious defense in that a parent (the wife) should have custody before a non-parent (the husband).

4. In the *Friberg* case, there certainly was no "modification" of a divorce decree -- the decree was set aside. There is no recognized way to "modify" the property portion of a divorce decree. (If not already covered in class, the student may want to compare the suggestion in *Stubbe v. Stubbe* that a property division could be later modified with the court's subsequent retraction of that solution in *Radigan v. Radigan*. Both of these cases are found in the "Retirement Plan" section of the "Division of Property" Chapter, *supra*.) There are, however, situations where further action by the court may be required. This notion is explored in the following notes.

5. In *Davis v. Davis*, 488 N.W.2d 425 (S.D. 1992), the trial court was permitted to clarify its original open-ended property division by addressing the apportionment of interest on a real estate contract. The Supreme Court acknowledged the general rule that property rights are irrevocably fixed by a divorce decree and are not subject to modification. In this case, however, the amendment of an open-ended decree did not violate the prohibition against modification.

6. In *Sjomeling v. Sjomeling*, 472 N.W.2d 487 (S.D. 1991), the wife was originally awarded \$12,365 to be paid in installments as part of her share of the property. When husband refused to pay the installments, wife was awarded an “accelerated” judgment for the entire balance due on the payments. While recognizing the general rule that division of property is not subject to modification, the Supreme Court of South Dakota upheld the trial court’s “acceleration” of payments as an enforcement measure, authorized under SDCL 25-4-42 which is reproduced in the next note.

7. SDCL 25-4-42, which was relied upon in the *Sjomeling* case provides as follows:

25-4-42 Security for payments required of spouse -- Receivership -- Allowance withheld when recipient's estate sufficient. The court may require a spouse to give reasonable security for providing maintenance, or making any payments required under the provisions of this chapter, and may enforce the same by the appointment of a receiver, or by any other remedy applicable to the case. But when a spouse has a separate estate sufficient to give that spouse proper support, the court in its discretion may withhold any allowance to that spouse out of the separate property of the other spouse.

Source: CivC 1877, § 74; CL 1887, § 2585; RCivC 1903, § 93; RC 1919, § 166; SDC 1939, § 14.0728; SL 1979, ch 165, § 4.

8. In *Leonard v. Leonard*, 529 N.W.2d 208 (S.D. 1995), the divorce decree incorporated the parties' agreement which provided that wife would have exclusive possession of house until the children have graduated from high school, with ownership thereafter reverting to husband. Subsequent to the divorce, wife became unhappy with this agreement and attempted to assert a one-half interest in the house alleging she only entered into the agreement because she had been harassed and intimidated by husband. The trial court then awarded wife one-half interest on the theory of "novation," relating to wife's post-divorce agreement to make repairs on the house. The South Dakota Supreme Court reversed, holding that a divorce decree which incorporates a property settlement is "a final and conclusive adjudication which is *not* subject to modification." *Leonard v. Leonard*, 529 N.W.2d 208 (S.D. 1995). In dictum, the court explained that the parties may enter into an agreement following a divorce, which may give rise to a "breach of contract" action, but that is not what wife sought here. Additionally, the court pointed out that wife's claims of fraud and harassment might have been litigated under a motion for relief filed pursuant to SDCL 15-6-60(b). The court also noted (in footnote no. 2) that the parties might present a post divorce agreement to the trial court which could be entered by stipulation, thereby effecting a modification, provided the court did indeed approve of the stipulation.

9. In a case which is described as a "clarification" and an "interpretation" of the parties' original settlement agreement, the South Dakota Supreme Court upheld a *de facto* modification of the property division aspect of a divorce decree. In *Hisgen v. Hisgen*, 1996 SD 122, 554 N.W.2d 494 (S.D. 1996), the wife was awarded 50% of the husband's military retirement pay which, at the time of the divorce amounted to an award of \$394.50 per month. After the divorce, husband was granted disability benefits and then exercised his right to waive [the taxable] retirement pay and thereby receive [the non-taxable] disability pay.

Under existing federal law [as seen in *Mansell v. Mansell*, 490 U.S. 581, 109 S.Ct. 2023 (1989)], "disability pay" is not subject to division by state courts in divorce cases. As a result of the husband's re-classification of his pay, his "retirement pay" was lowered and wife's share was reduced from \$394.50 to only \$50 monthly. Wife went back to court and the trial court found that the parties' intent was for the wife to receive an amount equal to 50% of the husband's total gross annuity, before reduction for "disability pay." The husband was ordered to pay the wife "the equivalent of one-half his total gross annuity payments before any reduction for disability benefits." The South Dakota Supreme Court affirmed, stating:

"While a property division is irrevocably fixed by the terms of the divorce decree and cannot be later modified, if indeterminate language was employed, a court may clarify its decree and the agreement it was based upon." 554 N.W.2d at 497.

10. SDCL 15-6-60(b)(4) permits the court to relieve a party from the operation of a final judgment if the judgment is "void." This provision served as authority for the trial court to set aside a two year old decree that was entered on the 60th day after service of process (as opposed to the 61st day which is required under SDCL 25-4-34) in *Jopling v. Jopling*, 526 N.W.2d 712 (S.D. 1995). (The husband in *Jopling* unsuccessfully contended, *inter alia*, that wife should be "estopped" from relitigating the issues of property division and alimony because of her initial agreement to the parties' stipulation and because of her two year delay in asserting the invalidity of the judgment.)

11. More recently, the "void judgment" provision of SDCL 15-6-60(b)(4) was utilized in *Kroupa v. Kroupa*, 1998 SD 4, 574 N.W.2d 208 (S.D. 1998) so as to grant relief to two persons who were not parties to the original proceeding. The facts and holdings in *Kroupa* are somewhat complicated, so they will be spread out over the next couple of notes. The purpose of this note is to simply identify the *Kroupa* case as another instance of the successful use of the "void judgment" ground for challenge to a final judgment.

12. In the *Kroupa* saga, the wife not only filed for divorce, but she also filed another action against her mother-in-law, husband and three sons. In this other action, she asserted claims of fraud, conversion, civil assault and battery, and for an accounting. The husband's family had a 12,000 acre farming and ranching operation. The parties' three sons had become involved in the operation. The wife's action against the mother-in-law, husband, and sons basically arose out of a claim relating to her interest in the farming and ranching operation. The trial court consolidated the two cases (the divorce case and the case involving the other parties). When called for trial, the parties to the lawsuits reached a settlement, but there was a slight problem -- *not included* in the lawsuit were two daughters of the parties who possessed an interest in a trust which existed on 573 of the 12,000 acres. Nonetheless, those who were parties reached a settlement and attempted to make that settlement "contingent" upon the daughters' acquiescence. The trial court also recognized at the time that the settlement was contingent on that hoped-for acquiescence.

13. One of the daughters in *Kroupa* brought an action to set aside the judgment after the final decree of divorce and judgment had been entered. The trial court agreed and set aside the judgment as it pertained to the daughters and their interest in the trust assets. The trial court recognized that it lacked jurisdiction over the daughters and the trust estate in the earlier proceeding. As to the remainder of the judgment, the trial court left it intact. This was affirmed on appeal.

14. All five justices of the South Dakota Supreme Court agreed in *Kroupa* that the judgment was void and that relief to the daughters was properly granted under SDCL 15-6-60(b)(4).

15. In *Kroupa*, two justices (Justice Sabers and Justice Gilbertson) believed that the entire judgment should be set aside because the agreement of the parties (upon which the judgment was based) was "contingent" upon the acquiescence of the daughters. Since that acquiescence failed, the entire judgment should be set aside, not just the judgment as it pertained to the daughters interest in the trust assets.

16. **Fraud Upon The Court.** In the early months of 1999, the parties presented a stipulation to the divorce court that provided for custody of the children to go to husband and for husband to be relieved of any alimony obligation for wife. It also provided that wife would be relieved of any child support obligation. The original trial court (Judge Kern) rejected the agreement and refused to grant a divorce. Subsequently, the parties modified their agreement to establish a child support obligation, but they also entered into a secret private agreement which provided that wife would not have a duty to pay child support despite the fact the divorce decree so required. This secret agreement was kept in the office of the attorney for husband. In a contested modification proceeding three years later, the existence of the secret agreement was revealed to the court (Judge Delaney) hearing the modification proceeding. The modification court (Judge Delaney), acting on his own motion, vacated the portions of the original divorce decree that dealt with child support, alimony and property division. The portion of the decree which granted the divorce was not vacated. (Although the modification court did initially vacate the portion of the decree which related to child custody, he later reinstated that portion of the decree.) The trial court's action in vacating portions of the divorce decree was affirmed in an unanimous opinion by the South Dakota Supreme Court in *Reaser v. Reaser*, 2004 SD 116, 688 N.W.2d 429. The actions of the parties and the attorney was said to be "egregious conduct involving corruption of the judicial process itself." ¶ 19. Furthermore, "this fraudulent conduct may have violated a criminal statute, and it certainly violated the Rules of Professional Conduct for attorneys." *Id.* The modification court acted properly in vacating the decree because of the "fraud upon the court" and, under Rule 60(b) [SDCL 15-6-60(b)], the one year time limitation does not apply. "This type of fraud upon the court is not subject to the Rule 60(b) one year time limitation. Consequently, Judge Delaney was authorized, upon his own motion, to vacate the relevant portions of the decree, despite the fact it had been in effect for over four years." ¶ 23. The Court noted that "fraud upon the court" [which is specifically mentioned at the very end of the saving clause at the end of rule 60(b)] is different than "fraud upon the parties"[which is subject to the one year limitation applicable to 60(b)(3)]. ¶ 19. Husband's reliance upon *Anderson v. Somers* was found to be "misplaced." Footnote 7, accompanying ¶ 23.

17. The attorney involved in the *Reaser* case described in the preceding note received a nine month suspension from the practice of law as a result of his conduct in that case, notwithstanding the fact that the Disciplinary Board recommended only a public censure. In *The Matter of Ortner*, 2005 SD 83, 699 N.W.2d 865.

18. **Wife's collateral attack under Rule 60(b) failed largely because she had fully participated in divorce trial and failed, through her attorney, to challenge trial court's findings of fact and conclusions of law and also failed to appeal unfavorable decree.** *Lowe v. Schwartz*, 2006 SD 48, 716 N.W.2d 777. In this, wife brought a collateral challenge to an unfavorable divorce decree rendered in a proceeding in which the wife fully participated. Wife's attorney in the divorce proceeding did not challenge the trial court's findings and did not appeal from the decree. Wife's subsequent action was filed under SDCL 15-6-60(b).

At the beginning of this six year marriage, wife had made substantial income (over \$100,000 per year) and had a net worth of \$365,000. Wife suffered a heart attack and her net worth fell to \$80,000 and her income fell to that which was generated only by her "selling beanie babies and beads" over the internet. Husband retired from the Coast Guard seven months after the marriage. At the time of the divorce,

husband's monthly income consisted of retirement pay of \$1,395 and at least \$2,200 as a truck driver. The trial court divided the marital assets and awarded wife alimony of \$135 per month, linking the award to husband's retirement pay. The trial court also made a ruling that rendered "satisfied" a previous judgment in favor of wife against husband in the amount of \$4,300. (This judgment related to money which she loaned him for the purchase of a motorcycle.) Although requested by the trial court to prepare findings of fact and conclusions of law, wife's attorney did not do so. Wife did not object to the trial court's findings and conclusions and did not appeal from the decision.

Wife did bring a challenge to the decree under SDCL 15-6-60(b), asserting that the trial court did not give proper consideration to the husband's retirement plan and that the evidence produced at trial was not sufficient to support the trial court's findings and conclusions. The trial court ruled against wife on her 60(b) motion and the South Dakota Supreme Court affirmed in a 4-1 opinion, with Justice Sabers dissenting. The majority opinion stresses the following points:

- 1) Decisions under 60(b) rest within the sound discretion of the trial court; ¶ 8
- 2) Rule 60(b) "is not a substitute for an appeal"; ¶ 10
- 3) Rule 60(b) may be appropriate when "it refers to some change in conditions that makes continued enforcement inequitable." ¶ 10
- 4) In considering a Rule 60(b) proceeding, there "is more reason for liberality in reopening a judgment when the merits of the case never have been considered than there is when the judgment comes after a full trial on the merits"; ¶ 12
- 5) The record demonstrates that the retirement plan was in fact considered by the trial court; ¶ 14 and accompanying footnote 2
- 6) Wife's argument concerning insufficiency of evidence is precluded at this point because it was not presented by way of objections to the trial court's findings, nor did wife appeal the decision; ¶ 16 (This paragraph also describes a number of scenarios which are reported elsewhere where relief had been denied because an attorney's failure to read documents, losing track of time, being too busy, etc.)

[The quoted material set forth in 2), 3), and 4) above is found in this opinion and also found in other cases which are quoted with approval in this opinion.]

Justice Sabers' dissenting opinion states that the result in this case is "a total injustice, plain error and an abuse of discretion." ¶ 22.

19. Wife's Collateral Attack on Agreed-Upon Divorce Decree filed 10 months After Decree Rejected in *Parsley v. Parsley*, 2007 SD 58, 734 N.W.2d 813. In *Parsley v. Parsley*, 2007 SD 58, 734 N.W.2d 813, the trial court granted a decree of divorce on December 22, 2004, based on wife's admission of service (as defendant) and the parties' "Stipulation and Agreement." Wife subsequently filed a motion to vacate the divorce decree almost 10 months later on October 22, 2005. The trial court upheld its decree, but did "defer" jurisdiction over child custody matters in favor of Arizona. On appeal, wife asserted that the SD trial court lacked subject matter jurisdiction, personal jurisdiction, improper service of process, fraud by husband, that the agreement was unconscionable, and error in denial of attorney fees relating to her challenge as to child custody jurisdiction. The South Dakota Supreme court affirmed the trial court's decision in all respects in a unanimous opinion authored by Chief Justice Gilbertson. Service of process through the mechanism of SDCL 15-6-4(i) was upheld because wife had accepted process and returned the "admission" form.

MORE RECENT CASES (from 2000 and later)

1. Post-decree relief is unavailable to wife who entered into unfavorable settlement agreement in 1985 relating to division of husband's retirement plan. At the time of their divorce in 1985, the parties had been married 28 years. The portion of the agreement relating to husband's retirement benefit was drafted by wife's lawyer at the time. It provided that "When Gary draws his retirement or becomes 65 years of age, whichever is first, the parties shall divide the present retirement benefit equally, that amount is \$ 12,092.87." The stated dollar amount apparently represented only husband's contribution into his account for the time during the marriage. Wife subsequently sought relief from this unfavorable provision in *Pesicka v. Pesicka*, 2000 SD 137, 618 N.W.2d 725. Wife was denied any relief by the trial court, with the South Dakota Supreme Court affirming in an unanimous opinion. Wife was unsuccessful in arguing that the provision was ambiguous and she should be awarded, through a QDRO, half of the retirement earned during the marriage. She was also unsuccessful in her effort to seek relief under SDCL 15-6-60(b)(6) ["...any other reason justifying relief from the operation of a final judgment."]. Through her Rule 60(b)(6) argument, wife requested an award of "a monthly benefit or at least interest on the lump sum of \$6,056.43." (Paragraph No. 16, 618 N.W.2d at 727-28). Wife lost on all her arguments, but due to her poor financial status, the SD Supreme Court declined to award husband his appellate attorney fees. [Editor's note: At the time of the original divorce in 1985, the law concerning pension plans and how to handle their division in South Dakota had not yet been very well-developed.]

2. Wife, who originally signed agreement allowing Husband to keep 100% of his U.S. Air Force Retirement fund, held not entitled to post-decree relief because her effort was "not timely" and also because of her inability to show "excusable neglect," despite initial favorable ruling where husband did not appear. Wife was unrepresented by counsel and allegedly emotionally distraught when she signed the stipulation allowing husband to keep 100% of his retirement fund with the U.S. Air Force. Almost one year after the decree, she sought to set aside the judgment, but failed initially to secure actual service of process on husband. The trial court initially granted wife relief, but then when husband found out, he challenged this result and, after a hearing, trial court reinstated original judgment, denying wife post-decree relief. Wife's denial of relief was affirmed in *Crothers v. Crothers*, 2001 SD 78, 630 N.W.2d 103, with the SD Supreme Court holding that wife's motion was not timely. Although it was "filed" within 1 year, actual service on husband was beyond the 1 year required for proceedings under Rule 60(b)(1). Additionally, the Court found that wife's evidence "does not show circumstances that rise to the exceptional level of excusable neglect." (Paragraph 20 of Opinion).

3. Use of *Hautala*-type formula in property settlement, without reference to specific figures, upheld in post-decree attack. *Divich v. Divich*. (*Divich I*) In another of a series of cases involving collateral attacks on divorce decrees which are alleged to inequitably deal with pension plans, the South Dakota Supreme Court handed down its opinion in the case of *Divich v. Divich*, 2002 SD 24, 640 N.W.2d 758 on February 20, 2002. Consistent with other recent cases, the Supreme Court denied relief to the party seeking to avoid the operation of a judgment entered years earlier by the trial court. This case differs, however, in that it appears to be the first reported opinion involving a collateral attack on a divorce-decree which now appears to be *too generous* for the non-pensioned spouse.

Here the parties entered into a written stipulation and property settlement which was approved by the trial court in 1988. According to its terms, wife was to be given 50% of the marital portion of the retirement plan, along the basic guideline seen in the *Hautala* formula, presented earlier in this book. Specifically, the language stated that wife's interest would be:

“Fifty percent (50%) of the benefit multiplied by the number of years during the marriage in which contributions to the program were made and divided by the total number of years in which contributions were made to the program.”

As husband prepared to retire in March, 2000, he sought relief under SDCL 15-6-60(b)(6), asserting that such a disposition was inequitable and did not reflect the true intention of the parties. The trial court granted husband relief by finding the language to be ambiguous and gave wife a lump sum of \$59,000 which represented the marital portion of the refund value of husband’s retirement account. The marital portion was 26/38 of the retirement fund, 26 being the number of years during the marriage in which contributions were made and 38 being the total number of years of employment during which contributions were made. The refund value was set at \$172,183.40 and this was multiplied by 50% of 26/38 to reach approximately \$59,000. The South Dakota Supreme Court reversed, finding the trial court erred as a matter of law in finding ambiguity. The Court then applied the same formula to determine that wife was entitled to receive a monthly amount of \$1050, being computed as 50% of 26/38 of husband’s monthly retirement benefit of \$3,071.84. (Wife’s share was 34.2% of the monthly payments.)

[Editor’s note -- the following comments are observations made from both the facts reported in the opinion and from this writer’s personal knowledge of the South Dakota State Retirement System: Husband had been employed as a teacher in the Rapid City School System and the retirement plan of the husband was administered by the South Dakota Retirement System. The cause for post-divorce litigation (husband’s alleged “inequity”) might be as a result of the fact that the employer’s contribution does not kick in until actual retirement under this plan and that the “refund” value of the plan would only reflect husband’s actual contribution and not include the matching amount contributed by the employer. Wife, by securing 50% of the marital portion of the actual benefit payments, was apparently able to reach the employer’s contribution as well as husband’s contribution. Apparently the lump sum award utilized by the trial court would afford wife 50% of only husband’s contributed portion of the plan.]

4. Wife’s share, as the non-employed spouse, of retirement plan divided by Hautala-type formula belongs to her estate in the event she should predecease husband and trial court committed reversible error in attempting to provide that wife’s share would revert back to husband. *Divich v. Divich*. (*Divich II*) In a case of “first impression,” the South Dakota Supreme Court held that it was reversible error for the trial court to attempt to divest wife of her marital share of husband’s retirement plan in the event wife predeceases husband. In *Divich v. Divich*, 2003 SD 73, 665 N.W.2d 109 (6/18/03), the trial court had previously been reversed (*Divich I*) for failing to enforce the parties’ agreement which awarded wife 50% of the marital portion of husband’s retirement with South Dakota Retirement System. Upon remand from the previous reversal, the trial court entered an order which awarded wife 34.2% of the monthly payments, but also ordered, “If the Alternate Payee does predecease the Participant, then and in that event, all of the monthly benefit payment from the Plan shall be paid to the Participant.” The Supreme Court noted that this was a case of “first impression.” ¶ 12. The Court also observed that it is a “well-settled point of law that a retirement plan is a property right.” ¶ 11. The Court accepted wife’s argument that if husband had the financial resources, he could buy wife’s share of his retirement plan at full value and that money would belong to wife to use as she pleases. “Therefore, it follows that if she receives a monthly payment, instead of a lump sum award, then that payment should continue to be paid to her estate.” ¶ 14. The trial court was also reversed for failure to award wife attorney’s fees and directed on remand to award no less than \$3,000 to wife. The Supreme Court also directly awarded wife \$3,000 for appellate attorney’s fees.

5. Decline in value of Enron stock to fall upon both parties, with larger measure falling upon wife. The value of Enron Corp. stock suffered a “precipitous decline in value” after the parties reached an agreement, but before Wife could withdraw her money from Husband’s Enron retirement plans. The parties had agreed that Wife would receive \$206,280.17 from Husband’s savings and stock plans. They also agreed that Wife would receive an additional \$38,000 from Husband’s plans, to be applied to Husband’s share of marital debts. The latter part of this agreement was an accommodation to Husband who could not withdraw stock without incurring significant tax penalty. Wife was to receive a total of \$244,280 in retirement plan assets by QDRO. Due to the decline in value, Wife only received \$186,987.82. Wife filed a motion with the court to require Husband to make up the difference. Husband filed a motion with the court to require Wife to pay the full amount of \$38,000 for his share of the marital debt. The trial court held that each party should bear the risk of loss. Wife was required to accept the loss in value on her award of \$206,280.17. Husband was required to accept the loss in value in that portion allocated to satisfy his share of the marital debts. *Duran v. Duran*, 2003 SD 15, 657 N.W.2d 692. The South Dakota Supreme Court affirmed. Interpretation of the contract is a matter of law and the Supreme Court agreed with the trial court’s interpretation. As to the date of valuation, “In divorce proceedings, the date of valuation is generally the date of the granting of the divorce. However, a different date may be used if special circumstances are present... [citing the *Geraets* case]... This case presents such special circumstances.” ¶ 12. Husband’s argument based on the language found in the QDRO was also rejected.

6. Trial court’s simple award of federal foreign service retirement plan to H (which is inadequate under federal law) held not subject to correction by *nunc pro tunc* order under Rule 60(b). The case of *Nist v. Nist*, 2006 SD 67, 720 N.W.2d 87, was orally argued here at the law school on March 21, 2006. It involves a unique pension plan accumulated through the husband’s work in the federal foreign service. According to the applicable federal statute an ex-spouse’s interest in such a plan is guaranteed to the ex-spouse unless expressly waived by the ex-spouse or expressly limited by court order. When the parties in this case were divorced in 1995, the trial judge simply awarded husband his retirement plan and wife her retirement plan. The divorce decree did not specifically exclude wife’s interest from husband’s foreign service plan as required by the federal statute. Some nine years later, husband realized that wife was entitled to a pro rata share of the retirement because her interest had not been specifically limited by the divorce decree. Husband went back to court to modify the decree so as to specifically exclude wife’s interest. Husband presented his modification request alternatively under either SDCL 15-6-60(a) or SDCL 15-6-60(b). The original judge (Honorable Roland Grosshans) was retired and the modification proceeding was lodged before Judge Thomas Trimble. Judge Trimble ruled for husband believing that the record clearly showed that Judge Grosshans intended for husband to have the entirety of his retirement plan. Judge Trimble’s order was viewed as a *nunc pro tunc* order entered under the apparent authority of SDCL 15-6-60(a). The SD Supreme Court reversed, holding that such an order was not a clerical correction, but rather was “substantive in nature” involving a “judicial function.” As such, the mistake could not be corrected with a rule 60(a) motion. In language borrowed from the Montana Supreme Court and previously quoted with approval by the SD Supreme Court itself, the situation is such that “The authority of a court to amend its record by a *nunc pro tunc* order is to make it speak the truth, but not to make it speak what it did not speak but ought to have spoken.” Wife was awarded \$5,000 in appellate attorney fees. The case is not over, however, because the SD Supreme Court also remanded the proceeding back to the trial court for it to consider the parties’ remaining claims which include husband’s claim for relief under rule 60(b), wife’s asserted equitable defenses, and wife’s claim for alimony. The remand order also directed the trial court to reconsider its denial of wife’s request for attorney’s fees at the trial level. Judge Konenkamp, as the lone dissenter in this case, wrote that “All the husband had asked for was that trial judge’s decision be stated in the judgment.” Justice Konenkamp believes that a liberal approach should be taken to rule 60(a) and that the failure to include the

necessary language to satisfy the federal statute was a simple omission.

NOTE (A Plethora of Legal Issues Where Marital Home Deeded to Step-daughter)
(*Thomas v. Thomas v. Thomas*)

Prior to divorce, Husband and Wife deeded marital home to Wife's Step-daughter (Husband's daughter from prior marriage), with Wife retaining a life estate. Some four years later, when Husband and Wife divorced, the divorce court repudiated the deed to Step-daughter, attempting to eliminate her interest although Step-daughter was not a party to the divorce proceeding. In subsequent quiet title action, the deed to Step-daughter was upheld with title quieted in Step-daughter. Wife was given a cash award against Husband of \$34,678.19 for her life estate interest in the marital home. Step-daughter then sued Wife for waste and for property taxes during the time Wife was in possession of the home. The trial court awarded Step-daughter waste and taxes, plus pre-judgment interest on everything but the taxes. Both sides raised numerous issues on appeal, including the assertion that the trial court erred in failing to impose Rule 11 sanctions against Wife's attorney. *Thomas v. Thomas v. Thomas*, 2003 SD 39, 661 N.W.2d 1 (4/16/03).

The South Dakota Supreme Court affirmed the awards of waste, taxes and prejudgment interest, and also awarded prejudgment interest on the property taxes. The matter of Rule 11 sanctions was reversed and remanded.

The Court held that the trial court acted within its discretion in reopening the quiet title action for the purpose of entertaining Step-daughter's action for waste under SDCL 21-7-1. The action for waste was not a collateral attack on the quiet title judgment and therefore the procedure of SDCL 15-6-60(b) was inapplicable.

The Court reaffirmed the rule that a life tenant may be held liable for waste. The Court also affirmed the trial court's ruling that waste was committed by Wife when she allowed and directed substandard electrical wiring by an independent contractor. "The dispositive question is whether the faulty wiring constitutes waste. We hold that it does." ¶ 19.

The owner of a life estate is required to pay property taxes by virtue of SDCL 43-8-2. This duty to pay taxes, as well as the duty not to commit waste, applies even if the life tenant has vacated the property. The trial court did not err in holding that removal of a detachable "entertainment center" did not constitute damages awardable for waste. The "entertainment center," which was attached to the wall with only 2 screws for stability, was not a "fixture" as defined by SDCL 43-33-1.

Prejudgment interest is required on the award against Wife for her nonpayment of property taxes by virtue of SDCL 21-1-13.1.

The trial court did not abuse its discretion by failing to award "treble damages." Under South Dakota law, the award of "treble damages" for waste must be supported "by a finding that the waste was willful, wanton or malicious or in utter disregard for the rights of those who were thereafter to take possession of the property." ¶ 36.

The Court also reversed on the issue of Rule 11 sanctions, finding that Wife's attorney had gone beyond the permissible bounds of vigorous advocacy in making many written statements which were for the primary purpose of embarrassing both Step-daughter and her attorney. The Court rejected the argument of Wife's attorney that other attorneys have said worse things without sanction, stating, "The fact that other attorneys have behaved badly is not an adequate defense for [Wife's Attorney's] behavior. It is presumed that attorneys will act as vigorous advocates for their clients. However, personal attacks on

opposing parties and their counsel do not fall within the bounds of vigorous advocacy.” ¶¶ 41-42. The sanctions “issue is remanded to the trial court for imposition of appropriate sanctions against [Wife’s Attorney] for his uncivil behavior.” ¶ 42.

F. Orders of Protection

NOTES

1. **An Order of Protection, Once Entered, is not Easily Modified or Set Aside.** The trial court did not error in refusing to modify or set aside its order of protection in favor of former girlfriend in *Sjomeling v. Stuber*, 2000 SD 103, 615 N.W.2d 613. The restrained ex-fiancé sought relief only a month after the original order was entered, alleging that he was denied an opportunity to present evidence which would show no basis existed for the entry of the original order. Following a hearing on the motion to set aside or modify, the original order was continued in full force and effect. While acknowledging that such orders can be modified on the basis of changed conditions, the South Dakota Supreme Court noted such was not shown in this case. The opinion points out that jurisdiction to modify can be found in SDCL 22-19A-14, as well as in Civil Procedure Rule 60(b).

2. **Modification of Protection Order to prohibit specific descriptions of conduct held to be warranted where evidence shows continued harassment.** The case of *Altman v. Rumbolz*, 2002 SD 79, 648 N.W.2d 823 presented a situation where the petitioner, who had previously secured an order of protection against his former live-in girlfriend, subsequently sought a modified order which contained more specific descriptions of the conduct which he sought to have prohibited. The trial court granted the petitioner relief. The evidence showed that following the initial order of protection, the respondent created situations of forced encounters with petitioner, his daughter and his fiancé at stores, restaurants and other public places. The evidence also showed that respondent was interfering with petitioner’s used car dealership business. The extended order contained specific prohibitions in connection with respondent’s ability to enter stores or restaurants at the same time as petitioner and also extended similar protection to petitioner’s daughter and fiancé. The extended order also contained specific prohibitions pertaining to respondent’s activity in connection with petitioner’s used car dealership business. As to the “modification” of the protection order, the South Dakota Supreme Court acknowledged that the criteria for modifying protection orders was set forth in *Sjomeling v. Stuber*, 2000 SD 103. In this case, the evidence of the continued harassment and stalking by respondent showed that there were “sufficient changed circumstances to warrant modification and extension of the prior order.” ¶ 10.

"The chains of habit are too weak to be felt until they are too strong to be broken."

Samuel Johnson

Chapter Fifteen

ENFORCEMENT

A. Contempt

1. Division of Property, Child Support & Alimony

HANKS v. HANKS

Supreme Court of South Dakota, 1983.
334 N.W.2d 856.

HECK, Circuit Judge.

This case is before us a second time. Subsequent to our decision, the appellee obtained an order to show cause why the appellant should not be held in contempt for failure to pay the amount awarded as part of the property settlement, alimony, and child support. The appellant in turn requested a modification of the child custody provisions of the divorce decree. The trial court found the appellant to be in contempt of court for failure to pay. The modification of the child custody was refused. We affirm the decision of the trial court.

Although we have previously ruled that alimony and child support payments ordered by a trial court in a divorce action may be enforced by the court's contempt power, we have not had occasion to rule on the enforcement of property settlement provisions of the divorce decree by the same method. Our holdings as to alimony and child support are widely accepted in other states. There is mixed authority on the property division issue. Some courts hold that enforcement of property division by contempt power is violative of their constitutional provisions against imprisonment for debt.

Our Constitution, Art. VI, § 15, prohibits imprisonment for debt "arising out of or founded upon a contract."

SDCL 25-4-44 gives the trial courts the power to make an equitable division of property belonging to the parties in a divorce action. Sometimes this division requires the payment of cash from one party to the other where it is not economical or practical to divide property in kind. This cash obligation is not the consequence of contract or agreement between the parties, but is an obligation created by the court for the division of the property interests of the parties. The trial court must have, and we hold that it does have, the power to punish for willful and contumacious failure to pay money, as well as transfer of property in kind, ordered by the court to accomplish a division of property in a divorce proceeding.

The appellant contends that his conduct in failing to pay was not contemptuous.

The four elements necessary to be established before a finding of contempt can be made by the court have been frequently recited by this court in previous decisions and as recently as *Rousseau v. Gesinger*, 330 N.W.2d 522 (S.D.1983). The first two elements were admitted by the appellant. His defense was inability to pay, which he has the burden of establishing. *Jameson v. Jameson*, 306 N.W.2d 240 (S.D.1981). The evidence before the trial court was clear that he had sufficient income to pay the obligations created by the divorce decree. His showing on inability to pay consisted of his testimony that he could not borrow any money and that he was unable to pay. There was no evidence before the trial court as to the disposition of his income. The trial court was justified in its conclusions that the appellant "has not clearly proven inability to comply with the decree, or that he has complied to the fullest extent of his ability"

* * *

The judgment of the trial court is affirmed.

WOLLMAN, DUNN and MORGAN, JJ., concur.

HENDERSON, J., concurs in part and dissents in part.

HECK, Circuit Judge, sitting for FOSHEIM, C.J., disqualified.

NOTES

1. At the time of divorce, Wife agreed that she "shall within the next 30 days take whatever steps are necessary to effectuate the transfer of \$23,000 from" her retirement fund to Husband. This was not done for a period of 18 months, during which time there were at least three separate contempt hearings. By the time the transfer was made, the value of the funds received by Husband was reduced to \$9,249.57, following the 9/11 tragedy. (The divorce agreement was entered into on September 13, 2000, almost 1 year preceding the September 11, 2001 attack.) At a subsequent hearing, the trial court held Wife in contempt of court for failure to make a timely transfer and ordered Wife to pay Husband the difference between the original amount of \$23,000 and the amount he received, less 10% of that difference. (Wife was given the benefit of the 10% tax penalty which would have been incurred on the difference.) The trial court denied Husband's request for attorney fees. *Keller v. Keller*, 2003 SD 36, 660 N.W.2d 619 (4/9/03). The South Dakota Supreme Court affirmed the trial court's ruling on both the contempt order and the denial of attorney fees to Husband. The Supreme Court did award Husband \$1200 in appellate attorney fees. This opinion reviews the elements required for a contempt proceeding, finding all were met. ¶¶ 9-12. The Court rejected Wife's argument that it was the actions of third parties that caused her inability to comply. The Court found, *inter alia*, her own representative had sent the QDRO to the wrong entity and that Wife, as master, was liable for injuries to Husband caused by the negligence of her agents or employees. Wife could still pursue these agents for a remedy for harm done. As to the trial court's imposition of a money award of \$11,451 in the contempt proceeding, the Supreme Court upheld the award as an appropriate remedy, necessary "to purge" or to put Husband back in the position which he would have enjoyed had the transfer been done as required by the agreement. Quoting an earlier decision, the Court restated, "[T]he appropriate remedy or punishment for contempt of court, and any reconsideration thereof, lies within the sound discretion of the trial court."

2. It was reversible error for the trial court to find wife in civil contempt of court without making

specific findings on wife's "ability to pay" where wife had introduced "some evidence" bearing on her inability to pay, according to *Mundlein v. Mundlein*, 2004 SD 25, 676 N.W.2d 819. At the time of divorce, husband was ordered to pay wife \$45,850 as a property settlement, payable as follows: \$22,925 by 12/31/00 and the remainder payable in three equal installments, plus interest, on December 31 of the each of the next three years. Included in the debt which wife was ordered to pay was a Capital One account with a balance over \$11,000. Because the Capital One account remained in default at the end of 2002, husband instructed his attorney to withhold \$12,000 in the attorney's trust account from the payments he had been ordered to make. Wife then negotiated a settlement by which she paid \$5,588.06 to a collection agency as satisfaction for the Capital One debt which exceeded \$11,000.

Wife sought to hold husband in contempt for failing to make his yearly property settlement payments. Husband sought to hold wife in contempt for failure to pay the full amount owed to Capital One, thereby damaging husband's credit rating. The trial court found that wife's settlement agreement with the collection agency had indeed damaged husband's credit rating, found wife to be in contempt, and ordered husband's attorney to pay the full amount of the Capital One debt from the money retained in his account and then to remit the remaining funds to wife. The Supreme Court reversed (5-0), with the opinion authored by Chief Justice Gilbertson.

The Court first reviewed the standard four elements to be established in a civil contempt proceeding, "In order to hold a party in civil contempt, the following elements must be established: (1) the existence of an order; (2) knowledge of the order; (3) ability to comply the order; and (4) willful or contumacious disobedience of the order." ¶ 7. As to the third element, "When a party raises the inability to pay as a defense in a civil contempt proceeding, that party has the burden of proving her inability to comply with the court's order." ¶ 8. In this case, wife testified that she initially paid \$250 per month payments on the Capital One account, but that after she paid other debts and attorney's fees, she was unable to make further payments. She also testified that she could not find permanent employment due to a disabling back injury which required two surgeries. Wife testified that she was forced to file bankruptcy. In her appellate brief, wife asserted that she was awarded about \$35,000 of marital debt and she only received \$22,925 from the initial property settlement payment made by husband. ¶ 8.

The trial court did not make a specific finding as to whether or not wife had the ability to pay. In reversing for this failure, the South Dakota Supreme Court stated, "Although the circuit court may well have made an implicit finding that [wife] had the ability to pay, its judgment of contempt 'must be based upon clear and *specific findings of fact as to all material elements.*' ... [citation omitted] ... Because [wife] raised the defense of inability to pay and presented as least some evidence in support of this defense, the circuit court erred as a matter of law when it failed to make a specific finding as to her inability to comply with the order." ¶ 9.

3. For an interesting case involving the use of contempt to enforce the delivery of actual property (not cash), see *In Re Patchett*, 156 Or.App. 69, 964 P.2d 1114 (1998). In this case the wife was ordered to turn over to the husband a wallaby (an animal which looks like a small kangaroo) named "Skippy." The trial court's finding of contempt was reversed on appeal because, *inter alia*, Skippy was known to occasionally escape from its cage. Although in the past, Skippy had always returned home, this time he didn't. Wife had apparently left the marital home knowing that Skippy could escape and she did not make any effort to protect Skippy and to care for him. The trial court found wife in contempt and ordered her to pay \$2,000 in compensatory damages. The appellate court reversed, holding that the evidence did not establish that wife acted "wilfully."

THOMERSON v. THOMERSON

Supreme Court of South Dakota, 1986.
387 N.W.2d 509.

FOSHEIM, Chief Justice.

Deloris Thomerson appeals from a trial court's failure to hold her ex-husband, Albert Thomerson, in contempt and from the trial court's modification of alimony and child support awards. We reverse and remand.

Deloris and Albert Thomerson were married in 1965 and divorced in 1979. One child, Guy, was born in 1969. The divorce decree ordered Albert to pay Deloris \$150.00 per month alimony and \$150.00 per month child support. In addition, he was directed to structure a \$20,000.00 trust fund for Guy. Deloris was awarded a lump sum payment of \$20,000.00 and various personal property. Albert was granted sole ownership of a ranch valued at \$347,000.00, machinery and personal property worth \$45,000.00, and miscellaneous real and personal property amounting to over \$6,000.00. The award to Albert was offset with debts of approximately \$180,000.00. No appeal was taken from that judgment.

Litigation has continued throughout the years following the divorce including numerous prior contempt proceedings against Albert for failure to pay alimony and child support. Deloris received her last alimony payment in 1981 following execution on a judgment for arrearages.

In early 1985, when Albert was 70 years old and Deloris was 59, Deloris began this contempt proceeding alleging that Albert had not been making monthly alimony and support payments¹ and that over \$6,000.00 for alimony and excess \$1,000.00 for child support were in arrears. The court issued an order to show cause. Albert responded with a motion for retroactive modification of alimony and abatement of arrearages and cancellation of future maintenance payments. This response was supported by his personal affidavit. At the hearing, no oral testimony was presented and neither party was present. The hearing, however, with counsels' remarks was transcribed. Following the hearing, and with the court's approval, Deloris submitted an affidavit in response to Albert's affidavit.

In May, 1985, the trial court ruled that Deloris had failed to meet her burden of proof on the contempt issue. The court further concluded that: child support obligations were paid and changed conditions since the divorce justified modification of the decree; alimony should be terminated and arrearages abated; and modification of the child support award should be made. The trial court rejected the proposed findings of fact and conclusions of law of both parties and entered its own.

I. Contempt

We first note that the proper procedure for civil contempt was not followed. As the incidence of divorce increases, followed by more legal activity to enforce alimony and child support awards, these procedures gain significance. Since civil contempt can result in incarceration, constitutional safeguards must be observed. Likewise, since the very jurisdiction of the court rests on proper procedure, a detailed review appears appropriate.

¹ The child support award had been reduced from \$150.00 to \$53.00 in 1980 because the minor child became eligible to receive Social Security benefits (equal to the reduction) because of Albert's advanced age.

Courts of general jurisdiction have inherent power to punish contempt by fine or imprisonment, *City of Mount Vernon v. Althen*, 72 S.D. 454, 458, 36 N.W.2d 410, 412 (1949), *Fritz v. Fritz*, 45 S.D. 392, 394, 187 N.W. 719, 720 (1922), or both. *Nauman v. Nauman*, 320 N.W.2d 519, 521 (S.D.1982); *Simmons v. Simmons*, 66 S.D. 76, 79, 278 N.W. 537, 538 (1938). Contempt of court is classified as either criminal or civil. See SDCL s 15- 20-19 and ch. 23A-38. Criminal or direct contempts are words spoken or acts committed in the presence of the court or during its intermissions which tend to subvert, embarrass, or prevent the administration of justice and may be summarily punished by the presiding judge as he may deem just and necessary. *State v. American-News Co.*, 62 S.D. 456, 459, 253 N.W. 492, 494 (1934); *see also Karras v. Gannon*, 345 N.W.2d 854 (S.D.1984). Constructive or civil contempts arise not from matters transpiring in court but rather from a person's failure to comply with orders and decrees issued by the court in a civil action for the benefit of an opposing party. *American-News Co.*, 62 S.D. at 459, 253 N.W. at 494. It is not always easy to classify a particular act as belonging either to criminal or civil contempt. *Id.* It may partake of the characteristics of both. *Id.* However, the distinction in punishment is clear. In criminal contempt, the order itself is in the nature of punishment. *Id.* at 460, 253 N.W. at 493. In civil contempt, the punishment is coercive, that is, it compels the person to act in accordance with the court's order. *Id.*; *State v. Knight*, 3 S.D. 509, 514, 54 N.W. 412, 413 (1893).

Here, we are concerned only with civil contempt, which is sui generis, that is, partaking of a criminal nature by reason of the authority to convict and punish and yet in a sense civil and remedial. *Simmons*, 66 S.D. at 79, 278 N.W. at 538. A prosecution for civil contempt, as distinguished from criminal contempt, involves features of a formal trial including the making of a charge based on an affidavit and the giving of notice to the contemner. *Fienup v. Rentto*, 74 S.D. 329, 332, 52 N.W.2d 486, 488 (1952). A civil contempt proceeding may be brought by an order to show cause, *Simmons*, 66 S.D. at 79, 278 N.W. at 538, and may properly be entitled within a civil action; it need not be a separate proceeding. *Freeman v. City of Huron*, 8 S.D. 435, 437, 66 N.W. 928, 928-29 (1896).² The affidavit seeking an adjudication of civil contempt is treated as the complaint or information to which the accused, in effect, is requested to plead guilty or not guilty. *See, e.g., Simmons*, 66 S.D. at 80, 278 N.W. at 538-39. If he denies the allegations, the burden of proving the allegations necessary to sustain the contempt as charged fall upon the person bringing the proceedings. *Freeman*, 8 S.D. at 437, 66 N.W. at 929.

The affiant must establish four elements for a prima facie case warranting a finding of contempt for failure to pay alimony. These elements are (1) the existence of an order; (2) knowledge of the order; (3) ability to comply with the order; and (4) willful or contumacious disobedience of the order. *Rousseau v. Gesinger*, 330 N.W.2d 522, 524 (S.D.1983); *Myhre v. Myhre*, 296 N.W.2d 905, 907 (S.D.1980); *Hanisch v. Hanisch*, 273 N.W.2d 188, 190 (S.D.1979).

All facts showing the jurisdiction of the court must appear in the affidavit. *Simmons*, 66 S.D. at 80, 278 N.W. at 539. Unless every material fact constituting the alleged violation is stated in the affidavit, the court has no jurisdiction. *In re Solberg*, 51 S.D. 246, 248, 213 N.W. 9, 10 (1927). The contents of the affidavit cannot be stated on presumption, intendments, or upon information and belief. *Freeman*, 8 S.D. at 439, 66 N.W. at 929; *State v. Sweetland*, 3 S.D. 503, 506-07, 54 N.W. 415, 416 (1893). The affidavit filed by the accused in response is to be treated as an answer and upon the issues so raised, evidence is to be adduced on each side. *Simmons*, 66 S.D. at 80, 278 N.W. at 539. No reply to the answer is necessary. *Otten v. Otten*, 245 N.W.2d 506, 508 n. (S.D.1976).

² The procedural problems, however, usually arise when the civil contempt is made part of and treated the same as other aspects of the order to show cause such as a change in alimony or child support payments.

It must be established that a copy of the decree or judgment of the court was personally served on the defendant before he can be convicted of contempt for failure to comply with its requirements. *Kruger v. Kruger*, 32 S.D. 470, 471, 143 N.W. 368, 369 (1913). If, however, the accused had actual knowledge of the contents of the judgment, such personal service is unnecessary. *Freeman*, 8 S.D. at 43, 66 N.W. at 929; *Knight*, 3 S.D. at 517, 54 N.W. at 415. When the court has acquired jurisdiction, an appropriate adjudication can be rendered, including a commitment to jail, even though the committed party in contempt is not personally present. *Fritz*, 45 S.D. at 394, 187 N.W. at 719.

When the defense is the inability to pay alimony, the burden of proof shifts to the defendant to establish his inability to comply with the order. *Jameson v. Jameson*, 306 N.W.2d 240, 241 (S.D.1981); *Talbert v. Talbert*, 290 N.W.2d 862, 863 (S.D.1980); *see also Hanks v. Hanks*, 334 N.W.2d 856 (S.D.1983). Self serving testimony alone is insufficient and corroboration is necessary to establish a defense that a party cannot pay alimony. *Rosseau*, 330 N.W.2d at 524. It is error to deny the request of the defendant to submit oral testimony but absent such a request the court can proceed to determine the matter on affidavit. *Simmons*, 66 S.D. at 79-80, 278 N.W. at 538.

The final adjudication results in a judgment rather than an order. *See Krueger*, 32 S.D. at 470, 143 N.W. at 369. The judgment must be based upon clear and specific findings of fact as to all material elements. *Fienup*, 74 S.D. at 333-34, 52 N.W.2d at 48.

Since the punishment for civil contempt could be imprisonment, the accused is entitled to be represented by counsel as a matter of right. 17 Am.Jur.2d Contempt, s 92. In *Simmons*, 66 S.D. at 79-80, 278 N.W. at 538 we said:

The United States Supreme Court in the case of *Cooke v. United States*, 267 U.S. 517 [536-37], 45 S.Ct. 390, 395, 69 L.Ed. 767 [1925], [774] said:

"When the contempt is not in open court, however, there is no such right or reason in dispensing with the necessity of charges and the opportunity of the accused to present his defense by witnesses and argument.

* * *

"Due process of law, therefore, in the prosecution of contempt, except of that committed in open court, requires that the accused should be advised of the charges and have a reasonable opportunity to meet them by way of defense or explanation. We think this includes the assistance of counsel, if requested, and the right to call witnesses to give testimony, relevant either to the issue of complete exculpation or in extenuation of the offense and in mitigation of the penalty to be imposed."

See also In re Oliver, 333 U.S. 257, 68 S.Ct. 499, 92 L.Ed. 682 (1948).

In *Knight*, 3 S.D. at 514, 54 N.W. at 412, we said:

If the contempt consists in the refusal of the party to do something which he is ordered to do for the benefit or advantage of the opposite party, the process is civil, and he stands committed until he complies with the order.

Adjudication for contempt which contains a commitment for imprisonment is insufficient if the

mandate is to take the prisoner into custody and detain him until the further order of this court or until he shall be discharged by due course of law. *State ex rel. Burke v. Marso*, 63 S.D. 38, 46, 256 N.W. 257, 260 (1934). Such a commitment is illegal and void for uncertainty. *Id.*

In *Uphaus v. Wyman*, 360 U.S. 72, 79 S.Ct. 1040, 3 L.Ed.2d 1090 (1959), the Court held that if imprisonment is imposed in civil contempt proceedings, it cannot be for a definite term, and that if a person who is held in contempt for violating an order, complies with it or shows that compliance is impossible he must be released.

Since it is impossible to succeed in coercing that which is beyond the power of the individual to perform, continued incarceration for civil contempt depends upon the ability of the prisoner to comply with the order of the court. This is the basis for the reasoning in *Uphaus* that a contemner must be released when confinement has lost its coercive force since such confinement would then become punitive and criminal penalties cannot be imposed in civil contempt proceedings. *In re Grand Jury Investigation*, 600 F.2d 420, 424 (3rd Cir.1979).

Applying these standards, we agree with the trial court that Albert should not be held in contempt but reach that conclusion on a different premise. We find that the trial court was without jurisdiction in the contempt proceeding because the affidavit by Deloris was made only on "information and belief." As we have previously held, such an affidavit is insufficient in a civil contempt procedure. *Freeman*, 8 S.D. at 439, 66 N.W. at 929; *see also In re Solberg*, 51 S.D. at 248, 213 N.W. at 10; *compare State v. Bullis*, 315 N.W.2d 485, 488 (S.D.1982).

* * *

We reverse and remand for proceedings consistent with this opinion. The trial court is directed to enter the required specific findings of all elements establishing or precluding contempt and of all facts relevant to modification of support awards. *Fuller v. Fuller*, 312 N.W.2d 729, 730 (S.D.1981); *see also Amiotte v. Amiotte*, 358 N.W.2d 803, 805 (S.D.1984) (Fosheim, C.J., joined by Henderson, J., dissenting); *see also Fienup*, 74 S.D. at 333-34, 52 N.W.2d at 48; *Rosseau*, 330 N.W.2d at 524.

All the Justices concur.

RECENT CASE INVOLVING "DIRECT CONTEMPT"

Utterance of "bitch" in reference to Judge and pounding of hands on wooden railing in courtroom constitutes adequate basis for sentence of 25 days in jail as direct contempt. The matter of "contempt" and its various forms is the frequent subject of litigation in family law cases. Although not a family law case, the case of *State v. Dubray*, 2000 SD 136, 618 N.W.2d 728, provides a recent look at punishment for direct contempt committed in the presence of the court. In this case, after being sentenced to two years in the penitentiary, the criminal defendant pounded a wooden railing and referred to the judge as a "bitch." Although the court did not hear the exact words, the court "heard that he had uttered something under his breath." Upon interrogation by the court, the words were revealed, and the defendant was sentenced to 25 days in jail for which the defendant would receive no credit toward his sentence. The South Dakota Supreme Court affirmed in an unanimous per curiam opinion.

SD SUPREME COURT ADOPTS “NOTICE PLEADING” FOR ALL CONTEMPT PROCEEDINGS

“Notice Pleading” Adopted for Civil Contempt Cases (Technical Pleading Defects No Longer Recognized as Jurisdictional) and the Imposition of a Fixed Sentence (10 days in Jail) in the Event of Future Default in Monthly Payments of Child Support Constitutes Criminal, not Civil, Contempt, according to *Sazama v. State*, 2007 SD 17.

In *Sazama v. State*, 2007 SD 17, 729 N.W.2d 335, the trial court found Ed Sazama in contempt for failure to pay child support. Mr. Sazama had child support arrearage in excess of \$60,000. The trial court crafted an order that “sentenced Sazama to ten days in the Bon Homme County Jail beginning the first of each month if he failed to pay the child support for the previous month.” The South Dakota Supreme Court reversed, holding that this order was “criminal” in nature since it was a sentence to an unconditional period of time (10 days) during which the defendant would have no opportunity to purge himself (by paying the last month’s child support) in order to set himself free from jail. This proceeding was handled as a civil contempt proceeding, not a criminal contempt proceeding. When a defendant is sent to jail in a civil contempt proceeding, he must be able to “carry the keys of his prison in his own pocket.” The trial judge’s order in this case imposes a fixed sentence and is punitive, not coercive, in nature. If the trial court wishes to pursue a criminal contempt proceeding on remand, then the proceeding must be “in compliance with the procedural due process requirements of a criminal trial.”

The *Sazama* opinion also sets forth an important holding relating to all contempt proceedings. In addressing the defendant’s argument that not all of the factual elements of contempt were set forth in the state’s pleading, the Supreme Court specifically overrules prior case law which supported that argument. The Court rejects the idea that “technical pleading defects” in a contempt proceeding should serve to divest the trial court of subject matter jurisdiction. The applicable standard is now to be found in the modern “notice pleading” philosophy found in SDCL 15-6-8(a). *Sazama* is a unanimous opinion authored by Chief Justice Gilbertson.

THE “CRIMINAL-CIVIL” AND “DIRECT-CONSTRUCTIVE” DISTINCTIONS

The *Thomerson* court defines “criminal” contempt as “direct” contempt and it defines “civil” contempt as “constructive” contempt. This linkage is not necessary.

“Criminal” contempt is punitive — *i.e.* punishment that is unconditional, such as confinement to jail for a set period of time or the assessment of a fine to be unconditionally paid to the court. “Civil” contempt is coercive and designed to achieve a result which is beneficial or remedial for the other litigant. In “civil” contempt, the disobedient party may avoid the punishment by coming into compliance. If sentenced to jail, he has the ability to effectuate his own release by complying with the existing court order. A fine is “civil” if paid to the other party to satisfy the order or if payment of the fine is conditional upon continued non-compliance.

Certainly, one would expect direct contempt to be punishable as “criminal” contempt. But, what about constructive contempt — situations where a party may have defiantly disobeyed a court order, but his disobedience did not occur in the presence of the court? Why shouldn’t constructive contempt be

punishable by “criminal” contempt? If the legal system says that constructive contempt may be dealt with only through “civil” contempt, then the disobedient party is able to delay, delay, and delay until he is actually on the verge of going to jail before compliance is achieved. Part of the frustration that can be generated is seen in the next case.

STATE ex rel. DRYDEN v. DRYDEN

Supreme Court of South Dakota, 1987.
409 N.W.2d 648.

HENDERSON, Justice.

PROCEDURAL HISTORY/ISSUES

Plaintiffs-appellees Constance Stock (Constance) and the State of South Dakota (State) filed a Motion for Order to Show Cause against Constance's former husband, defendant-appellant Thomas Dryden (Thomas), praying the circuit court (1) find Thomas in contempt for his failure to make court-ordered child support payments; and (2) modify the existing Decree of Divorce. The circuit court complied with both requests. Thomas appeals asserting that the court erred when it (1) held him in contempt for failure to abide by a child support order when he had fully paid his child support debts prior to trial; (2) required that he execute a wage assignment and pay Constance's attorney's fees (\$477) in order to purge his contempt; and (3) reallocated an Internal Revenue Service (IRS) exemption for one of his daughters from him to Constance.

Due to the natural inclination of the subject matter, Issues one and two are treated simultaneously. Issue three is addressed separately. We affirm in part and reverse in part.

Thomas and Constance were married on August 23, 1970. The marriage produced two children; Christine, born December 29, 1971, and Monica, born July 15, 1974. Constance filed for divorce in August 1983. A Stipulation and Agreement was signed on August 20, 1983. Regarding the children, Thomas and Constance agreed as follows:

- (1) Constance shall have custody;
- (2) Thomas shall pay \$150 a month in child support for each child commencing November 1, 1983 and that subsequent payments are due on or before the first day of each month;
- (3) Thomas need not pay child support when the girls visit him for one month during the summer;
- (4) Thomas be entitled to claim both children as dependents for tax purposes;
- (5) Thomas shall have the right set out in (4) for only so long as his child support payments are current; and
- (6) Thomas shall maintain health insurance coverage on the girls.

On October 21, 1983, Constance was granted a divorce. All terms and conditions of above Stipulation and Agreement were expressly included in the Divorce Decree.

Thomas, however, did not make child support payments as he had promised. Payments were

often late or nonexistent. In January 1984, Constance applied for Aid to Dependent Children (ADC) for Christine and Monica. Consequently, support payment rights were assigned, for a time, to the State of South Dakota.

Later in 1984, two Orders to Show Cause were entered. Both orders addressed Thomas' failure to pay child support. The second Order resulted in a Stipulation between Thomas and the State which was approved by the circuit court on January 5, 1985. Said Order:

- (1) lowered Thomas' monthly support payments to \$200;
- (2) determined that Thomas was \$475 in arrears (\$225 to Constance and \$250 to State), which would be satisfied by an additional monthly payment of \$50 (\$25 to Constance and \$25 to State);
- (3) reinstated the original \$300 per month payment if Thomas' and his current spouse's net income reaches or exceeds \$2,000 per month (proof of wages to be supplied monthly); and
- (4) required that a six-month review be held upon request of any party.

Constance did not sign the Stipulation. But it does appear from the record that she was involved in negotiations and did at least initially agree upon the content of the Stipulation.

On August 23, 1985, a third Order to Show Cause was entered addressing Thomas' failure to make child support payments. Thomas was delinquent in the amount of \$525 to Constance and \$250 to State. On September 13, 1985, a hearing was held and Thomas was ordered to show cause why:

- (1) he should not be held in contempt of court and jailed for refusing to comply with previous court orders;
- (2) child support payments should not be increased;
- (3) he should not be required to pay one-half of the medical, dental, optometric, and related costs for the children not covered by insurance;
- (4) the Divorce Decree should not be modified to provide that Constance receive the IRS exemptions for the children;
- (5) he should not be required to pay Constance's attorney's fees and costs; and
- (6) he should not be ordered to execute a wage assignment.

Thomas responded by requesting an Order Modifying the Decree of Divorce. He specifically prayed that his child support obligation be reduced to \$150 per month, citing a decrease in hours worked at his seasonal job as reason for this request. Thomas noted that his net pay as of August 24, 1985 was \$9,033.80, but felt he might be dismissed from his job by Christmas. Thomas also pointed out that he had paid in full both Constance (\$525 on September 5, 1985) and State (\$250 on September 6, 1985) soon after he received the August 1985 Order to Show Cause.

Upon conclusion of the September 13 hearing, the following rulings were made. First, Thomas was found in contempt and sentenced to serve 30 days in the county jail for willfully disobeying the court's January 6, 1985 Order. This contempt could be purged upon Thomas' execution of a wage assignment and payment of Constance's attorney's fees. Second, the original Divorce Decree was modified to provide Constance with one of two IRS exemptions. Thomas' request for modification of child support amount was refused. Constance's request for one-half medical and other related expenses

was refused, as was her request for increased child support.

Thomas executed the wage assignment on September 28, 1985. Constance's attorney's fees (\$477) were to be paid within 120 days of the September 13, 1985 hearing. Thomas was expecting inheritance estimated at \$6,000, which would enable him to pay his former wife's attorney's fees. Constance's attorney's fees were never paid. Thomas appeals.

DECISION

I. AND II.

This case involves a civil contempt proceeding pertaining to child support. *See Thomerson v. Thomerson*, 387 N.W.2d 509 (S.D.1986); *Simmons v. Simmons*, 66 S.D. 76, 278 N.W. 537 (1938). Thomas was found to be in willful disobedience of a circuit court order of January 6, 1985, for failure to pay child support. We reverse the Judgment and Order of Contempt entered on the thirteenth day of September, 1985, as at the time of the hearing on the Order to Show Cause for Contempt all arrearages had been paid to the State of South Dakota and to Constance. *See Cozik v. Cozik*, 279 Minn. 91, 98-99, 155 N.W.2d 471, 476 (1968) (where the Minnesota Supreme Court stated "[u]nless there has been an overt act which can be called contempt in itself, when the amounts in default are paid there is no longer any ground for a finding of contempt because if there was one it has been purged by the payment."). *Accord Nystrom v. District Court*, 244 Iowa 735, 58 N.W.2d 40 (1953). *See also In re Marriage of Florke*, 270 N.W.2d 643, 646 (Iowa 1978); *McDonald v. McDonald*, 170 N.W.2d 246, 247-48 (Iowa 1969) (both cases essentially noting that compliance with a court's order prior to contempt proceedings is regarded as sufficient purging). We have held when " 'the contempt consists in the refusal of a party to do something which he is ordered to do for the benefit or advantage of the opposite party, the process is civil, and he stands committed till he complies with the order. The order in such a case is not in the nature of a punishment, but is coercive, to compel him to act in accordance with the order of the court.' " *Karras v. Gannon*, 345 N.W.2d 854, 856 (S.D.1984) (quoting *State v. Knight*, 3 S.D. 509, 514, 54 N.W. 412, 413 (1893)). *See State v. Bullis*, 315 N.W.2d 485, 487 (S.D.1982). D. Dobbs, *Handbook on the Law of Remedies*, s 2.9, at 97 (1973). Here, there was nothing to coerce because Thomas had already submitted his child support payments. We reason that, at the time of the contempt hearing, there was simply nothing further that a contempt order could compel appellant to do; therefore, reversal of the circuit court's finding of contempt is mandated.³ Accordingly, we also reverse that part of the circuit court's decision relating to the wage assignment.

The judgment is affirmed in part and reversed in part.

WUEST, C.J., and FOSHEIM, Retired Justice, concur.

SABERS, J., concurs specially.

MORGAN, J., concurs in part and dissents in part.

³ We take note of 1986 S.D.Sess.Laws ch. 218, § 22, and SDCL 25-7A- 23, which essentially provides that any obligor who becomes delinquent in paying any part of the order of support may be subject to an order for the retention of property or income. Apparently, a finding of contempt is no longer a prerequisite to a mandatory execution of a wage assignment. SDCL ch. 25-7A went into effect on July 1, 1986.

NOTES

1. In *Driscoll v. Driscoll*, 1997 SD 113, 568 N.W.2d 771 (S.D. 1997), the wife sought, *inter alia*, to have husband held in contempt of court for missing certain alimony payments. By the time the case was heard, husband had made all his delinquent payments. The South Dakota Supreme Court affirmed the trial court's refusal to hold the husband in contempt, stating,

"Mike did not make all of the alimony payments pursuant to the court order in a timely fashion. The punishment for civil contempt of this sort is for Mike to pay the alimony he owes. While the alimony was not paid in timely fashion, he did bring himself current at the time of the hearing. Since ultimately Mike acted in accordance with the court's order and there is no action to coerce, it follows that a finding of civil contempt is unnecessary." *Id.* at 774.

2. **Mother, whose parental rights were terminated as to child in question, was also found in contempt of court for failure to pay child support, rejecting mother's argument that she did not act willfully and contumaciously because she never personally received a copy of the order and because father never attempted to enforce the child support order against her.** *In the Matter of the Adoption of C.D.B.*, 2005 SD 115, 706 N.W.2d 809 upholds the stepparent adoption of a child where the natural mother was found to have abandoned the child for 6 months or more, thereby waiving the necessity of her "consent" to the adoption under SDCL 25-6-4(2). The child was born in 1998 while mother and father were living together. (They were never married.) They separated in 2000 with the mother having custody of the child. Father was awarded custody in November 2002 and mother awarded visitation rights only when "supervised." Mother was also ordered to pay child support of \$130 per month. Mother never paid any child support and only visited the child four times since November 2002. The trial court found the mother to be in contempt of court for her failure to pay child support. The trial court's finding of contempt was affirmed by the South Dakota Supreme Court. The trial court correctly ruled against mother on her assertion of lack of knowledge because she was present in court at the hearing when she was ordered to pay \$130 per month in child support and because she had subsequently secured a copy of the order in July, 2003, when she contacted the Child Support Enforcement Office. As to mother's assertion that she could not be found to have acted "willfully" or "contumaciously" because father had never sought enforcement of the order, the Court stated in ¶ 22 of its opinion, "While it is true that the father never attempted to enforce the order through the Child Support Enforcement Office, this does not reduce the mother's conduct to something less than willful and contumacious."

A. Contempt

2. Ability to Comply

NAUMAN v. NAUMAN

Supreme Court of South Dakota, 1982.
320 N.W.2d 519.

PER CURIAM.

Ralph Nauman (appellant) appeals from two orders of contempt resulting from his failure to make the alimony and support payments as provided in a divorce judgment. We affirm.

The divorce decree awarded Cheryl Nauman (appellee) custody of the children, \$200 per month alimony for forty-eight months and child support of \$100 per month per child. Appellant was granted "liberal rights of visitation providing that [he] shall first contact [appellee] by phone at every and all times that he desires to exercise his visitation rights." At a show cause hearing before Circuit Judge Gerken in August of 1980 appellant was found in contempt for failing to make marital debt and child support payments. The court ordered appellant committed and refused his request to further structure visitation rights. At a subsequent show cause hearing appellant was again found in contempt for failing to make alimony payments and was again committed to the custody of the sheriff. In the last order appellant's visitation rights were specified from 5:00 p.m. Friday evening until 9:00 p.m. Sunday evening one weekend a month, on alternating holidays and for one month during the summer.

Before the divorce appellant had operated an unsuccessful business in Mitchell, South Dakota, providing flying instruction and air taxi service. The evidence conflicted on whether the business failed due to an economic recession or his personal neglect; the court found the latter. Following his business failure, appellant enrolled in a guidance and counseling program at South Dakota State University, Brookings, South Dakota, looking toward a graduate degree which he claimed was necessary to obtain gainful employment. Appellant now lives in Brookings with his present wife and her eight-year-old son in a home she acquired prior to their marriage. Appellant has earned only a small income as a flight instructor for a Brookings area flying service.

Appellant's children were two and six years old at the time of his divorce. His six-year-old son is now attending school in Mitchell. Appellee is now a student at Dakota Wesleyan University, Mitchell, South Dakota. Her previous work experience was as a grocery store checker or clerk.

Appellant specifically argues that the evidence failed to show he had the ability to comply with the orders or that his disobedience to the orders was wilful or contumacious. *See Talbert v. Talbert*, 290 N.W.2d 862 (S.D.1980); *Hanisch v. Hanisch*, 273 N.W.2d 188 (S.D.1979). The court found that he failed to pursue his business interests, deliberately failed to service the various business clients that were made available to him, and that he spent a substantial portion of his time pursuing non-business interests. The court further found that appellant had not sought suitable employment and had maneuvered himself into a position so as to make it appear that he was unable to comply with the court's order. The trial court consistently found that

appellant had the ability to comply and that his disobedience was wilful and/or contumacious. From the record before us, we conclude such findings are not clearly erroneous. SDCL 15-6-52(a).

While it may be true that appellant did not have the funds to satisfy the full obligation imposed by the court's decree, he obviously had the ability and capacity to do better than he did. In this sense he misplaces his reliance on *Otten v. Otten*, 245 N.W.2d 506, 508 (S.D.1976), where it was said, "An adjudication that defendant be incarcerated for his failure to make support payments can be made only after a finding that defendant had money with which to make the payments." (emphasis added) In *Otten* the trial court had failed to enter findings in the contempt proceedings.

The defense we have recognized in such proceedings has been the inability to comply with an order rather than simply a lack of funds. *Talbert v. Talbert*, *supra*; *Simmons v. Simmons*, 67 S.D. 145, 290 N.W. 319 (1940). "The question of [ability to comply] is not merely one of the amount of cash which the husband has on hand." 3 W. Nelson, Divorce and Annulment § 16.25, 435 (2d ed. 1961 rev. vol.). "[U]nless a defendant shows he has complied with court's order to the fullest extent of his ability his defense of inability fails." *Bailey v. Bailey*, 77 S.D. 546, 549, 95 N.W.2d 533, 534 (1959).

A party is not guilty of contempt of court in failing to pay amounts required by a divorce judgment if he is unable to do so and did not voluntarily create the disability for the purpose of avoiding such payment, and where a party seeks to satisfy the court that his failure to render obedience to the mandate of the court was due to his inability to comply, without fault on his part, the burden is on him to establish such disability.

Simmons v. Simmons, 67 S.D. at 149, 290 N.W. at 321. Appellant has not sought suitable employment. It also appears he did substantially less than his best to avoid the failure of his business. Since appellant is responsible for his inability to comply with the court's order, it was not error to find him in contempt of the court's order.

Once the elements of contempt are found, as they were here, a person failing to make support payments may be incarcerated. *Simmons v. Simmons*, *supra*; *Otten v. Otten*, *supra*.

* * *

The orders are affirmed.

NOTES

1. In *Taecker v. Taecker*, 527 N.W.2d 295 (S.D. 1995), the husband commenced an action to modify his support obligation and the wife countered with a civil contempt proceeding. The trial court sentenced the father to 30 days in jail, after finding him to be in contempt. The trial court also gave the father the opportunity to purge himself of contempt by inviting him to make a good faith effort to find suitable employment and to pledge a portion of the income to his support obligation. This aspect of the case was affirmed on appeal, with the South Dakota Supreme Court recognizing that "proof of inability to pay requires more than an assertion that one lacks adequate funds." *Id.* at 298.

2. In *Beerman v. Beerman*, 526 N.W.2d 127 (S.D. 1995), the trial court's held ex-husband in contempt and this was affirmed on appeal. The SD Supreme Court stated the following at pp. 130-31:

Kevin claims inability to comply with the decree due to loss of income caused by crop flooding on part of his land, and therefore, no willful disobedience. Kevin bears the burden of establishing his inability to comply. *Jameson v. Jameson*, 306 N.W.2d 240, 241 (S.D.1981). The circuit court found Kevin able to comply with the decree since he had complied with it initially.

* * *

"The defense we have recognized in such proceedings has been the inability to comply with an order rather than simply a lack of funds." *Nauman v. Nauman*, 320 N.W.2d 519, 521 (S.D.1982) ... "The question of [ability to comply] is not merely one of the amount of cash which the husband has on hand." *Nauman*, 320 N.W.2d at 521 ... "[U]nless a defendant shows he has complied with the court's order to the fullest extent of his ability his defense of inability fails." *Nauman*, 320 N.W.2d at 521. We agree with the circuit court's finding that Kevin had the ability to comply with the final decree of the court which incorporated the parties' settlement agreement. We further agree with the circuit court's finding that Kevin unilaterally stopped paying and that his action was willful.

3. In *Thomerson v. Thomerson*, the South Dakota Supreme Court stated,

"When the defense is the inability to pay alimony, the burden of proof shifts to the defendant to establish his inability to comply with the order."

387 N.W.2d at 513.

Is this constitutionally permissible? If not, then what provision of the Constitution is drawn into play? Does it matter what sort of contempt is sought?

FEIOCK v. FEIOCK

Supreme Court of the United States, 1988.
485 U.S. 624, 108 S.Ct. 1423.

Justice WHITE delivered the opinion of the Court.

A parent failed to comply with a valid court order to make child support payments, and defended against subsequent contempt charges by claiming that he was financially unable to make the required payments. The trial court ruled that under state law he is presumed to remain able to comply with the terms of the prior order, and judged him to be in contempt. The state appellate court held that the legislative presumptions applied by the trial court violate the Due Process Clause of the Fourteenth Amendment, which forbids a court to employ certain presumptions that affect the determination of guilt or innocence in criminal proceedings. We must decide whether the Due Process Clause was properly applied in this case.

* * *

Instead, the critical features are the substance of the proceeding and the character of the relief that the proceeding will afford. "If it is for civil contempt the punishment is remedial, and for the benefit of the complainant. But if it is for criminal contempt the sentence is punitive, to vindicate the authority of the court." *Gompers v. Bucks Stove & Range Co.*, 221 U.S. 418, 441, 31 S.Ct. 492, 498, 55 L.Ed. 797 (1911). The character of the relief imposed is thus ascertainable by applying a few straightforward rules. If the relief

provided is a sentence of imprisonment, it is remedial if "the defendant stands committed unless and until he performs the affirmative act required by the court's order," and is punitive if "the sentence is limited to imprisonment for a definite period." *Id.*, at 442, 31 S.Ct. at 498. If the relief provided is a fine, it is remedial when it is paid to the complainant, and punitive when it is paid to the court, though a fine that would be payable to the court is also remedial when the defendant can avoid paying the fine simply by performing the affirmative act required by the court's order. These distinctions lead up to the fundamental proposition that criminal penalties may not be imposed on someone who has not been afforded the protections that the Constitution requires of such criminal proceedings, including the requirement that the offense be proved beyond a reasonable doubt. *See, e.g., Gompers*, *supra*, at 444, 31 S.Ct., at 499; *Michaelson v. United States ex rel. Chicago, St. P., M. & O.R. Co.*, 266 U.S. 42, 66, 45 S.Ct. 18, 20, 69 L.Ed. 162 (1924).

* * *

The distinction between relief that is civil in nature and relief that is criminal in nature has been repeated and followed in many cases. An unconditional penalty is criminal in nature because it is "solely and exclusively punitive in character." *Penfield Co. v. SEC*, 330 U.S. 585, 593, 67 S.Ct. 918, 922, 91 L.Ed. 1117 (1947). A conditional penalty, by contrast, is civil because it is specifically designed to compel the doing of some act. "One who is fined, unless by a day certain he [does the act ordered], has it in his power to avoid any penalty. And those who are imprisoned until they obey the order, 'carry the keys of their prison in their own pockets.'" *Id.*, at 590, 67 S.Ct., at 921, quoting *In re Nevitt*, 117 F. 448, 461 (CA8 1902). In *Penfield*, a man was found guilty of contempt for refusing to obey a court order to produce documents. This Court ruled that since the man was not tried in a proceeding that afforded him the applicable constitutional protections, he could be given a conditional term of imprisonment but could not be made to pay "a flat, unconditional fine of \$50.00." *Penfield*, *supra*, 330 U.S., at 588, 67 S.Ct., at 920. *See also United States v. Rylander*, 460 U.S. 752, 103 S.Ct. 1548, 75 L.Ed.2d 521 (1983); *Nye v. United States*, 313 U.S. 33, 61 S.Ct. 810, 85 L.Ed. 1172 (1941); *Fox v. Capital Co.*, 299 U.S. 105, 57 S.Ct. 57, 81 L.Ed. 67 (1936); *Lamb v. Cramer*, 285 U.S. 217, 52 S.Ct. 315, 76 L.Ed. 715 (1932); *Oriel v. Russell*, 278 U.S. 358, 49 S.Ct. 173, 73 L.Ed. 419 (1929); *Ex parte Grossman*, 267 U.S. 87, 45 S.Ct. 332, 69 L.Ed. 527 (1925); *Doyle v. London Guarantee Co.*, 204 U.S. 599, 27 S.Ct. 313, 51 L.Ed. 641 (1907); *In re Christensen Engineering Co.*, 194 U.S. 458, 24 S.Ct. 729, 48 L.Ed. 1072 (1904); *Bessette v. W.B. Conkey Co.*, 194 U.S. 324, 24 S.Ct. 665, 48 L.Ed. 997 (1904).

Shillitani v. United States, 384 U.S. 364, 86 S.Ct. 1531, 16 L.Ed.2d 622 (1966), adheres to these same principles. There two men were adjudged guilty of contempt for refusing to obey a court order to testify under a grant of immunity. Both were sentenced to two years of imprisonment, with the proviso that if either answered the questions before his sentence ended, he would be released. The penalties were upheld because of their "conditional nature," even though the underlying proceeding lacked certain constitutional protections that are essential in criminal proceedings. *Id.*, at 365, 86 S.Ct., at 1533. Any sentence "must be viewed as remedial," and hence civil in nature, "if the court conditions release upon the contemnor's willingness to [comply with the order]." *Id.*, at 370, 86 S.Ct., at 1535. By the same token, in a civil proceeding the court "may also impose a determinate sentence which includes a purge clause." *Id.*, at 370, n. 6, 86 S.Ct., at 1536, n. 6 (emphasis added). "On the contrary, a criminal contempt proceeding would be characterized by the imposition of an unconditional sentence for punishment or deterrence." *Id.*, at 370, n. 5, 86 S.Ct., at 1535, n. 5.

* * *

The proper classification of the relief imposed in respondent's contempt proceeding is dispositive of this case. As interpreted by the state court here, § 1209.5 requires respondent to carry the burden of persuasion on an element of the offense, by showing his inability to comply with the court's order to make the required payments. If applied in a criminal proceeding, such a statute would violate the Due Process

Clause because it would undercut the State's burden to prove guilt beyond a reasonable doubt. *See, e.g., Mullaney v. Wilbur*, 421 U.S. 684, 701-702, 95 S.Ct. 1881, 1890-1891, 44 L.Ed.2d 508 (1975). If applied in a civil proceeding, however, this particular statute would be constitutionally valid, *Maggio v. Zeitz*, 333 U.S. 56, 75-76, 68 S.Ct. 401, 411-412, 92 L.Ed. 476 (1948); *Oriel*, 278 U.S., at 364-365, 49 S.Ct., at 174-175, and respondent conceded as much at the argument. Tr. of Oral Arg. 37.

* * *

Yet the Due Process Clause does not necessarily prohibit the State from employing this presumption as it was construed by the state court, if respondent would purge his contempt judgment by paying off his arrearage. In these circumstances, the proper course for this Court is to vacate the judgment below and remand for further consideration of § 1209.5 free from the compulsion of an erroneous view of federal law. *See, e.g., Three Affiliated Tribes of Fort Berthold Reservation v. Wold Engineering, P.C.*, 467 U.S. 138, 152, 104 S.Ct. 2267, 2276, 81 L.Ed.2d 113 (1984). If on remand it is found that respondent would purge his sentence by paying his arrearage, then this proceeding is civil in nature and there was no need for the state court to reinterpret its statute to avoid conflict with the Due Process Clause.

We therefore vacate the judgment below and remand for further proceedings not inconsistent with this opinion.

It is so ordered.

Justice KENNEDY took no part in the consideration or decision of this case.

Justice O'CONNOR, with whom THE CHIEF JUSTICE and Justice SCALIA join, dissenting.

* * *

A. Contempt

3. Visitation Rights

At least in the *Dryden* case the child support was paid, although the moving party's attorney fees were not recovered. Enforcement through "civil" contempt has its drawbacks, but at least it can get the basic job done when it comes to efforts to enforce (1) child support, (2) alimony, and (3) orders requiring the delivery of property or payment of cash in lieu thereof. In essence, the disobedient party has to comply in order to avoid going to jail.

In the situation involving visitation rights, enforcement through "civil" contempt only is wholly ineffective. Suppose H is awarded visitation on the 1st Saturday of each month from 8:00 A.M. to 5:00 P.M. Sunday evening. What if W does not allow H to visit with the child on Saturday, March 6, 1999? What can H do? If he pursues a contempt proceeding against W, it is impossible for W to be ordered to jail until she delivers the child at 8:00 A.M. on March 6, 1999, because March 6, 1999 has come and gone. Even if she continuously disobeys, "civil" contempt is wholly ineffective for dealing with W.

Are there any other remedies? No, not really.

We saw in *Nauman v. Nauman* (set forth in the custody modification chapter, *supra*) that an extreme case of denial of visitation may constitute grounds to modify custody. But, the prospect of modification of custody would only happen in extreme cases and it does not represent a viable enforcement mechanism. (Consider also that the non-custodial parent may concede that the children are better off with the custodial parent — the non-custodial parent simply seeks lawful enforcement of visitation rights?)

We also know that non-payment of child support is not a permissible response to denial of visitation. *Todd v. Pochop*, 365 N.W.2d 559 (S.D. 1985); *Stach v. Stach*, 369 N.W.2d 132 (S.D. 1985).

There is a possible criminal offense under SDCL 22-19-9, but this takes the attention, time and desire by the state's attorney. Good luck! There are no reported successful prosecutions under this statute.

The only way for contempt to be an effective device for the enforcement of visitation rights is to allow the prospect of "criminal" contempt to be utilized. When W knows that she can actually go to jail for non-compliance, then she may be more apt to comply.

The author of this book was asked by Steve Cutler, then Speaker of the House of Representatives for South Dakota, to draft legislation which would establish a mechanism to allow for the enforcement of visitation rights through contempt of court proceedings. Such legislation was drafted and introduced in the 1994 session as House Bill 1201. With some minor amendments, House Bill 1201 was passed by both houses and has been signed into law by the Governor. Each instance of unjustifiable denial of visitation is now punishable by confinement in the county jail for up to 3 days or a fine up to \$1,000 or both. The statute also allows the court, in lieu of imposing actual punishment, to place the disobedient party on probation. That statute may also be used against non-custodial parents who refuse to return the child at the end of a visitation period. House Bill 1201 was codified as Chapter 25-4A. The legislature amended SDCL 25-4A-5 in 2008 so as provide for an expanded range of available sanctions, including assessment of attorney fees. The current relevant provisions are reproduced here:

25-4A-1 Custody or visitation rights enforceable by contempt proceedings. After notice and hearing, any decree or order of the court relating to custody of or visitation with a child may be enforced by contempt.

Source: SL 1994

25-4A-2 Written request for order to show cause for violation of visitation or custody decree -- Hearing date. Any party granted visitation or custody rights to a child by a court decree may request the court to enter an order to show cause why the other party should not be held in contempt of court for violation of the decree relating to visitation or custody of the child. Upon receipt of a written request for an order to show cause, the court may issue such an order and forthwith schedule a hearing date not less than thirty days in the future. No particular formality may be required of the moving party in making a written request for an order to show cause.

Source: SL 1994

25-4A-3 Affirmative inquiry into contempt -- Contemnor's rights. At the hearing, the court shall affirmatively inquire into the matters of visitation and custody and enter any orders the court deems appropriate. The alleged contemnor has the right to remain silent and the right to counsel.

Source: SL 1994

25-4A-4 Affirmative defense by contemnor. An alleged contemnor may plead and prove that the movant voluntarily relinquished the actual care, control, and possession of the child for time encompassed by the court-ordered periods of possession. Such a relinquishment is an affirmative defense in whole or part to the order to show cause.

Source: SL 1994

25-4A-5. Violation of custody or visitation decree--Sanctions. If the court finds that any party has willfully violated or willfully failed to comply with any provisions of a custody or visitation decree, the court shall impose appropriate sanctions to punish the offender or to compel the offender to comply with the terms of the custody or visitation decree.

Sanctions which the court may, in its discretion, order include:

- (1) To require the offender to provide the other party with make up time with the child equal to the time missed with the child, due to the offender's noncompliance;
- (2) To require the offender to pay, to the other party, court costs and reasonable attorney's fees incurred as a result of the noncompliance;
- (3) To require the offender to pay a civil penalty of not more than the sum of one thousand dollars;
- (4) To require the offender to participate satisfactorily in counseling or parent education classes;
- (5) To require the offender to post bond or other security with the court conditional upon future compliance with the terms of the custody or visitation decree or any ancillary court order;
- (6) To impose a jail sentence on the offender of not more than three days.

The provisions of this section do not prohibit the court from imposing any other sanction appropriate to the facts and circumstances of the case.

Source: SL 1994, ch 195, § 5; SL 2008, ch 125, § 1.

25-4A-6 Probation for contemnor. The contemnor may be placed on probation for a period of time, not to exceed five years or until discharge. The probation, if warranted, may be supervised by a probation officer who shall, if directed by the court, require reports from the contemnor and visit with the contemnor at the contemnor's home.

Source: SL 1994

25-4A-7 Motion to revoke probation of contemnor. Any violation of the terms and conditions of the probation imposed by the court may be brought before the court by a motion to revoke probation. The motion to revoke probation may be made by the original moving party, the attorney general, or the state's attorney. If the motion to revoke probation alleges a prima facie case that the probationer has violated a term or condition of probation, the court may cause the probationer's arrest by warrant. An arrested probationer shall be brought promptly before the court causing the arrest.

Source: SL 1994

25-4A-8 Application of section 23A-38-2 to proceedings for custody or visitation decree violations. The provisions of § 23A-38-2 do not apply to §§ 25-4A-1 to 25-4A-7, inclusive.

Source: SL 1994

NOTES

1. The trial court's finding that mother was in contempt of court for her willful refusal to comply with visitation order was affirmed in *Weber v. Weber*, 529 N.W.2d 190 (S.D. 1995). There were detailed findings by the trial court showing that mother would initiate arguments and act uncooperatively despite the existence of a very specific visitation schedule.

2. The 1997 South Dakota Legislature created a Task Force to study, plan and provide for an effective visitation enforcement program within the Unified Judicial System. Receipt of federal funds of up to \$100,000 by the Unified Judicial System is authorized for this task force. The original bill, which did not pass, would have immediately established "case managers" to act as ombudsmen in the resolution of visitation and custody disputes.

3. The Visitation Task Force entertained hearings across the state of South Dakota during the interim between the 1998 and 1999 legislative sessions.

4. A recent newspaper report indicated that the task force was considering "visitation centers" across the state which could be utilized to educate the parents about visitation issues and which could also be used as locations for visitation. The possibility of using existing domestic shelters as visitation centers is being explored -- based on the model being utilized in Mitchell, South Dakota. "Divorce Parents Get Help Talking to Kids," *Argus Leader*, Thursday, April 21, 1998, p. 1.

5. In a news story put out by AP in 1998, from Pierre, SD, one can find the following:

A state law that was supposed to make it easier for divorced parents to settle child visitation disputes is not working like it should, a member of the state Visitation Enforcement Task Force said Tuesday.

Linda Lea Viken of Rapid City, a lawyer and former legislator, said lack of guidance makes it difficult for parents to provide the initial information judges need to bring the warring parties together when there are problems with court-ordered visitation. "It's a right without a remedy," she

said. "This is about parents' rights to spend time with their children."

Parents who have visiting rights but are not allowed to see their children may write judges and ask for a hearing on the issue. They do not need a lawyer to make the request, but Viken said the lack of an official form to fill out makes it hard for complaining parents to know what information they should present in writing.

* * *

"There are too many people who can't afford a lawyer," she said. "You can't do one of these for less than \$400 or \$500."

* * *

Many parents withhold visits with their children because of running arguments over any number of issues that remain after broken marriages.

(Quoted material taken from the Sioux City Journal article entitled, "South Dakota child visitation system not working as planned," page A-7, Wednesday, November 18, 1998.)

6. The following can be found in the Report of the Child Support Commission submitted in preparation for the 2005 Legislative Session:

"During the public hearings, the Commission once again heard many complaints and testimonials from non-custodial parents regarding the numerous and varied problems faced when exercising their court-ordered visitation rights with their children. Many believe that it is unfair that the Department [of Social Services] is very aggressive in collecting child support from them, but cannot do anything when the custodial parent denies court-ordered visitation rights... The Commission is deeply concerned about parents who deny other parents their court-ordered right to see and spend time with their children. National studies establish that a parent is more willing to pay his or her court-ordered child support obligations, and assist in the welfare of their child(ren), if they are allowed to spend time and bond with the child during all ages of minority. The Commission is also aware that this has been an on-going issue and problem in South Dakota for a great number of years, and continues to be a reoccurring concern... [I]n 1994 the legislature enacted a series of statutes related to custody and visitation rights. *See* SDCL Chapter 25-4A. The primary purpose of these statutes was to simplify enforcement of visitation orders by non-custodial parents and create a penalty of up to three days of incarceration, or a fine of \$1,000, or both, for violation of visitation orders. Commissioner Viken, who also serves on the Visitation Task Force, drafted standard forms to allow non-custodial parents simpler and easier access to courts for enforcement of visitation issues. The problem, however, is that these statutes and procedures are not being routinely used by our courts because of funding, personnel, and other issues. In short, it appears that there are already statutes on the books to greatly assist in this area of law, but the statutes are not being routinely or uniformly used by the court system. In view of these matters, and the on-going problem with visitation issues, the Commission agreed that it was time for the legislature and the Unified Judicial System to address this critical issue for South Dakota's families. Accordingly, the Commission strongly recommends that the Unified Judicial System adopt procedures and develop standardized forms to implement the visitation statutes currently in the code, similar to those being used in the protection order process..."

B. Wage Assignments, Professional Licenses, Drivers Licenses (and Fishing Licenses, too!)

There is a chapter of the South Dakota Codified Laws entitled "Collection of Child Support." It is found as SDCL 25-7A. As the nation has generally been focused on the public outcry against the "deadbeat dad," enforcement devices have been discovered, re-discovered and perfected. This is likely to continue. A few of these improved devices are housed in this chapter.

WAGE ASSIGNMENTS

Presently most of the statutes found in SDCL 25-7A deal with "Wage Assignments." The concept of "Wage Assignments" is best understood in light of the background of "garnishment." Generally speaking the writ of garnishment is a somewhat cumbersome device to utilize for the collection of money. It can be quite effective for a one-time seizure of property in the hands of a third person (not the debtor). When utilized on a continuous basis, it would require frequent renewal and a continued need to obtain service of process.

A "Wage Assignment" is a streamlined mechanism to accomplish the same sort of thing as a wage garnishment. It is like a collection weapon which becomes "cocked and ready to fire."

A withholding order is entered with the entry of every order of support or modification under SDCL 25-7A-23, unless "good cause" exists. Income withholding is not commenced immediately unless required. Thereafter, the income withholding order may be placed into effect whenever the obligor becomes delinquent.

Some due process is built into the process of placing the order into effect, but the issues are narrowed to the identity of the obligor, the existence of the order or the amount of arrearage. See generally SDCL 25-7A-5 (notice of support debt), SDCL 25-7A-6 (right to request hearing), SDCL 25-7A-30 (service of order for withholding on the payor), and SDCL 25-7A-26 (grounds for contesting order).

A "payor" is defined in SDCL 25-7A-1 as "any person or other entity owing income or having personal property or money and credits belonging to an obligor." Payors who have been served with a withholding order must honor the order by virtue of SDCL 25-7A-46 or run the risk of being prosecuted for a "petty offense."

The withholding order shall require the withholding of an amount equal to the order of support plus not less than 10% of the order amount to be applied to arrearages. SDCL 25-7A-31. Not more than 50% of wages (and similarly defined income) may be withheld, however this limitation does not apply to other "personal property, money and credits or other income" which may be used to satisfy the total amount of arrearage. SDCL 25-7A-32.

NOTE

Legislative update (2007): Electronic Service of Child Support Withholding Orders

Permitted. Through the passage of Senate Bill 62 in 2007, the legislature amended SDCL 25-7A-30 to permit income withholding orders to be served electronically on employers who agree to receive such notices electronically. This reduces the need for paper work to be handled by DSS. This change only applies to those employers who voluntarily agree to use electronic service. Testimony in support of this bill showed that South Dakota DSS serves more than 32,000 such notices annually

RECORD KEEPING

Intense record-keeping of new hires by all employers in the state and of child support enforcement records was the target of legislation in 1997. An automated "child support case registry" is authorized by SDCL 25-7A-3.1. A "state directory of new hires" is authorized by SDCL 25-7A-3.3 which also mandates every employer in the state to furnish a report of newly hired employees and their social security numbers at least twice per month.

PROFESSIONAL LICENSES, DRIVERS LICENSES

A child support arrearage of \$1,000 or more will prohibit the issuance or renewal of the obligor's professional license. SDCL 25-7A-56. There is an extensive list of "professionals" who are affected by this. The list includes attorneys, nurses, teachers, administrators, insurance agents, physicians, dentists, cosmetologists, barbers, and many more.

Drivers licenses and recreational licenses may also be revoked, suspended or restricted on the account of past-due child support. SDCL 25-7A-56.1.

Legislative update (2007): Restriction on Licensure for Non-Payment of Child Support Expanded for Additional Occupations and Professions. The passage of Senate Bill 66 in 1007 served to amend SDCL 25-7A-56 so as to include the new professions and occupations which are now subject to licensure in South Dakota but which were not subject to licensure in 1993 when this statute was first enacted. The approach under the new statute is to no longer list the professions but rather to cross reference the licensure provisions found in Title 36. New professions which are now required to be licensed in South Dakota, but which were not so required in 1993, include the following: wholesale drug distributors, marriage and family therapists, polygraph examiners, athletic trainers, home inspectors, alcohol and drug professionals, message therapists, and occupational therapists. The former version of this statute specifically listed each and every profession. This version now states "any profession or occupation as specified in Title 36."

MORE RECORD KEEPING

Social security numbers are to now be recorded in all applications for professional licenses, drivers licenses, issuance of title or for the renewal of registration of motor vehicles. SDCL 25-7A-56.2(1) and (2). Social security numbers are also required of any person who is subject to a support order, divorce decree, paternity adjudication or acknowledgment. SDCL 25-7A-56.2(2). Social security numbers are also required to be on death certificates. SDCL 25-7A-56.2(3).

Extensive federal record keeping procedures and a new "Federal Case Registry" began operation on October 1, 1998. Included in this is an expanded federal parent locator service. *See generally* the discussion under "HHS [Health and Human Services] Announces Registry to Track Delinquent Obligor" found at 24 Family Law Reporter 1597, reporting a recent announcement from HHS Secretary Donna E. Shalala.

C. URESA, RURESA, UIFSA, & FFCCSOA

The Uniform Reciprocal Enforcement of Support Act (URESA) was designed to provide a mechanism for the collection of child support where the parties reside in different states. Under the original version of URESA, if the defendant denied paternity, there was no mechanism to deal with the claim.

The "Revised Uniform Reciprocal Enforcement of Support Act (RURESA) was designed to accommodate paternity as a defense. It was adopted in South Dakota in 1980. Under SDCL 25-9A-28, the local court was given authority to adjudicate the paternity issue. (RURESA was codified at SDCL 25-9A-1 to 25-9A-43.)

The ability to present live testimony and witnesses was always a problem under either URESA or RURESA. Keep in mind that these acts were, in fact, designed to accommodate the custodial parent by creating an enforcement mechanism that did not necessarily require her attendance in a distant state. Frequently affidavits were the proof of the day and, even more frequently the affidavits were stale by the time the case was heard. In *State of Kansas ex. rel. Adams v. Adams*, 455 N.W.2d 227 (S.D. 1990), the trial court's findings were reversed and remanded because of its reliance on an affidavit one and one-half years old. The *Adams* court suggested the following alternatives: (1) up-to-date answer through interrogatories, (2) an order directing the obligor to appear, (3) an order for the obligee to take the deposition of the obligor, at the cost (including attorney fees) of the obligor, or (4) at the least, a more current affidavit. *Id.* at 230-31, note 2.

In 1994, the South Dakota legislature repealed RURESA and enacted the Uniform Interstate Support Act (UIFSA) in its place. The UIFSA has been codified in SDCL 25-9B. One of the main differences between RURESA and the UIFSA is the handling of "modifications." Under the UIFSA, modification jurisdiction is limited to the court of continuing jurisdiction which exercises exclusive jurisdiction so long as one of the affected parties remains a resident of that state. SDCL 25-9B-611.

UIFSA also authorizes the direct enforcement of support orders in states other than the state which

issued the order. There is an effort under UIFSA to have employers treat out-of-state orders for wage withholding purposes the same as in-state orders. *See generally* SDCL 25-9B-501 through SDCL 25-9B-506.

The Federal Full Faith and Credit for Child Support Orders Act ("FFCCSOA") was enacted by Congress on October 22, 1994. 28 U.S.C.1738B. This federal act establishes the notion of *continuing exclusive jurisdiction* in the court that imposes the original child support order. Similar to the Parental Kidnapping Prevention Act ("PKPA"), this act requires sister states to give full faith and credit to orders entered consistently with its provisions and prohibits modification by courts in sister states so long as the state of the original order remains the child's state or the residence of any contestant.

As a result of Congress' quick action, the prohibition against states attempting to modify child support orders entered by sister states is already in effect regardless of whether or not the state has enacted UIFSA.

The FFCCSOA has already been found to supersede and preempt state law to the contrary. *In re Isabel M. (Thomas M.)*, NY Fam.Ct. Kings County, NYLJ 3/21/95, 21 Family Law Reporter 1273 (4/18/95) (dismissing requested modification of Pennsylvania child support decree where the obligor and four of the parties' five children continue to reside in Pennsylvania, thereby preempting New York's version of URESA).

By way of background to both UIFSA and FFCCSOA, it should be noted that there had been a real problem with modifications of out-of-state support orders. In particular, the issuing state decided in many cases that it was not bound by the modification and was entitled to enforce the original order against the obligor. This was done notwithstanding the fact that the obligor may have been in compliance with the order as modified by another state. *See e.g. White-Nathan v. Nathan*, 181 Ariz. 112, 888 P.2d 237 (Ariz. Ct. App, No. 1 1994); *Ward v. Ward*, 29 Ca.App.4th 1452, 35 Cal. Rptr.2d 32 (Ct. App. 1st Dis. 1994); and *Kranz v. Kranz*, 525 N.W.2d 777 (Wis. Ct. App. 4th Dist. 1994).

In *State ex rel. Freeman v. Sadlier*, 1998 SD 114, 586 N.W.2d 171 handed down on November 11, 1998, the South Dakota Supreme Court declared as *void* a South Dakota trial court's attempt to modify a Utah child support order. The Utah order had set support at \$219 per month. Mother and child had moved to South Dakota, yet the father remained in Utah where the child support order was initially entered. Upon mother's petition, a South Dakota trial court raised the support to \$350 per month. In a subsequent contempt proceeding, the issue of South Dakota's ability to modify the Utah order was brought into focus. Because the father (the "obligor") still resided in Utah, South Dakota was prohibited from modifying the Utah order by virtue of SDCL 25-9B-603(c), 25-9B-610, and 25-9B-611 which are found in South Dakota's adoption of the UIFSA (located in SDCL 25-9B). (The finding of contempt was still applicable to that part of the original Utah court's order which Father had not paid.)

In *Weekley v. Weekley*, 1999 SD 162, 604 N.W.2d 19, the SD Supreme Court upheld the trial court's determination that it lacked jurisdiction to modify a child support order entered by a California court. The parties had entered into a "Marital Settlement Agreement" while residing in Contra Costa County, California. This agreement was approved and incorporated into a Judgment of Legal Separation which was entered by Contra Costa County Court in California. The wife moved back to South Dakota and initiated an action for divorce here. The parties' agreement had reserved "issues of the minor child" unto the jurisdiction of a California court. The SD trial court granted a divorce, incorporating a stipulation which partially incorporated the Marital Settlement Agreement in December of 1997. In August of 1998, mother sought to

modify child support and to eliminate her alimony obligation to husband. The trial court dismissed her modification of child support action, but retained jurisdiction over her modification of alimony request. In upholding the trial court, the SD Supreme Court recognized that under the UIFSA (“Uniform Interstate Family Support Act”), California has continuing *exclusive* jurisdiction since the father still resides in California. SDCL 25-9B-205, as well as the corresponding California provision, make clear that another tribunal cannot modify the existing order. [Chief Justice Miller and Justice Amundson dissented on the child support jurisdiction issue in this case, pointing out the anomalous result here is that the custodial parent is being forced to pay child support.]

D. Defenses

1. Abatements and credits.

Presently the idea of giving an obligor an “abatement” or credit on the child support obligation for time periods during which the child is with the obligor is covered by SDCL 25-7-6.14 and SDCL 25-7-6.19, both of which are reproduced in the preceding chapter on modification.

There is a sordid history preceding the enactment of these reform statutes in 1997. A detailed account of the many cases would serve no purpose at this juncture, yet it should be noted that there had been many harsh results under the former version of SDCL 25-7-6.14 which only allowed an abatement if the child had been with the obligor for more than 29 consecutive days. Additionally, the legislative history to the former statute suggested that the abatement be only in the range of 30% to 50% and that range was upheld judicially.

To make matters worse, the enactment of SDCL 25-7-7.3 in 1987 meant that the courts could no longer “retroactively” modify child support. Again, many harsh results attained in situations where the obligor had actually been raising the child, yet was required to pay the original obligee the arrearages which had accrued during that time.

Under the 1997 amendment to SDCL 25-7-6.13, an abatement of 38% to 66% is possible if the child spends ten or more days per month with the obligor. There is no requirement that the days be consecutive; however, the abatement percentage and the days awarded should be specified in the court order. The abatement is to be allowed in the month in which the visitation actually occurs (as opposed to the former law which permitted only after-the-fact abatements).

Under the new SDCL 25-7-6.19, an actual credit of up to 100% of the child support arrearages may be given, if the obligor has had primary physical custody of the child for more than four consecutive months, by agreement of the parties.

NOTES

1. The South Dakota Supreme Court has recognized that a “child care expenses” order is not a “past due child-support payment.” In *Juttelstad v. Juttelstad*, 1998 SD 121, 587 N.W.2d 447, (S.D. 12/16/98), the father had been ordered to pay child support of \$435.29 per month and also \$241.80 per month for child care expenses. It was subsequently discovered that this exceeded more than 100% of the child care costs. The original intent was to require the father to pay 62% of the child care. The trial court did not give father “credit or reimbursement” for his overpayment. In a 3-2 decision, the South Dakota Supreme Court reversed. Recognizing that it is “settled law that past-due child support payments cannot be modified” by virtue of SDCL 25-7-6.3, the court went on to state that “this prohibition on retroactive modification of past-due support payments does not apply here. [Father] has no past-due payments. He is current on all support obligations. He is not asking for retroactive modification. He is requesting a correction for overpayment of child care expenses. Child care expenses are not a part of the basic child support obligation, but only a factor for deviation from the schedule.” The majority opinion was authored by Chief Justice Miller. Justices Sabers and Konenkamp dissented.

2. **“Overpayment” law reviewed in *Miller v. Jacobsen*, 2006 SD 33.** The situation concerning child support for a disabled child was the subject of litigation in *Miller v. Jacobsen*, 2006 SD 33, 714 N.W.2d 69. The parties were married in 1989 and divorced in 1993. Their son, born also in 1989, has been disabled from birth as a result of cerebral palsy and a seizure disorder. In a stipulated agreement entered into at the time of the divorce, husband was to continue paying child support so long as the child “is dependent or until further order of the court.” Husband agreed to pay child support at a basic rate of \$516 per month and also an additional amount of \$155 per month based on the child’s special needs. The child “is [now] fifteen years old and weighs sixty-five pounds. His disability requires him to have extensive care and assistance with activities of daily living. [He] must be fed, dressed and diapered daily, as well as requiring assistance with medications, bathing and toileting twice a day... [He] must be turned at least once each night when he is sleeping. He also has a drug pump in his abdomen that delivers medication to his spinal column for relief of muscle tightness. [He] spends the majority of his day in his wheelchair and requires physical assistance for transfers to and from his wheelchair.” ¶ 5. During the school year and summer session child resides on Monday through Friday at Children’s Care Hospital in Sioux Falls, attending school. Wife, who has been the primary caregiver for the child at home (which is just over 50% of the time), brought this action seeking, *inter alia*, modification of child support. Father appeals numerous aspects of the lower court’s rulings. The South Dakota Supreme Court ruled, *inter alia*, that the trial court did not err in failing to give father credit for alleged overpayments related to purchase of a previously-used van and medical care expenses.

A. As to the alleged overpayment of \$2,420 related to the van (paid at \$55 per month), father is not entitled to credit because mother was not *unjustly enriched* in that the money was used for “substantial and legitimate expenses for [child’s] transportation.” ¶ 47. (Such a ruling is consistent with the law of “overpayments” as set forth in *Juttelstad v. Juttelstad*, 1998 SD 121, 587 N.W.2d 447.) ¶¶ 45-48.

B. As to father’s claimed overpayment of \$9,020 relating to medical care expenses (paid at an additional \$100 per month), the father’s argument is misplaced because the parties’ original agreement provided for such payment for the child’s “special needs” and was not limited solely to medical expenses which were not covered by insurance as father contended. Furthermore, there was no expiration date on this portion of father’s upward deviation payment. ¶¶ 49-50.

D. Defenses

2. Denial of Visitation.

In *Todd v. Pochop*, 365 N.W.2d 559 (S.D. 1985), the South Dakota Supreme Court held that, although the custodial mother had engaged in “grievous and at times contemptuous interference with visitation rights,” the non-custodial father could not raise such interference as a defense in a URESA action. Shortly thereafter, in *Stach v. Stach*, 369 N.W.2d 132 (S.D. 1985), this was expanded to non-URESAs as well:

“While *Todd* was a URESA action, the ruling that support obligations are independent from visitation rights goes beyond URESA cases. . . The children’s best interest requires that they be supported. Children may not be denied support or in any way punished for the sins of the custodial parent.”

Stach, 369 N.W.2d at 135-36.

There has been a recent call for legislative action for the abatement or termination of child support when visitation rights are interfered with, without good cause. Greg Geisman, “*Strengthening the Weak Link in the Family Law Chain: Child Support and Visitation as Complimentary Activities*,” 38 South Dakota Law Review 569, 604-05 (1993).

D. Defenses

3. Limitations.

Child Support Installments controlled by 20 year statute of limitations. In *Hershey v. Hershey*, 467 N.W.2d 484 (S.D. 1991), the South Dakota Supreme Court held that the applicable statute of limitations on unpaid child support is twenty years, being governed by SDCL 15-2-13. In connection with *Hershey*, keep in mind that child support had been set by a court decree. The student should recall that only six years’ worth of arrearages are collectible (in the absence of a previous written demand) for a child born out of wedlock by virtue of SDCL 25-8-5. (This statute is reproduced in Chapter 3 on “Paternity” *supra*.)

Tuition Payments to private school (found in settlement agreement which was incorporated into decree) held subject to the 20 year statute of limitations for actions on judgments or decrees, not the 6 year statute of limitations for contract obligations. The parties' settlement agreement in *Culhane v. Michels*, 2000 SD 100, 615 N.W.2d 580, required father to pay for tuition to private school so long as mother lived in Vermillion and the children were eligible to attend St. Agnes school. Mother brought suit for this tuition, as well as back child support and alimony, some 11 years after she remarried. Father's claim that the tuition amount was barred by the 6 years statute of limitations related to contract obligations was rejected, with the South Dakota Supreme Court holding that the 20 year statute of limitations, SDCL 15-2-6(1), was applicable because the agreement had been incorporated into the divorce decree and father's obligation as to tuition was by virtue of the decree.

Enforcement by Husband's Parents of Contract pertaining to Feed Store, which was entered into as part of divorce process, held subject to 4 year statute of limitations under the UCC as a Contract for the Sale of Goods. In *Sherman v. Sherman*, 2000 SD 117, 616 N.W.2d 393, the parties had operated a feed store during the marriage, acquiring feed at a beneficial wholesale price through husband's parents. In conjunction with the divorce, the parties agreed to sell the feed store business to husband's parents, with the parents being given credit for the feed debt owed to them by the parties. Since the debt was greater than the sale price, there was an obligation still owing to his parents and the divorcing parties each agreed to pay one-half. This amounted to wife being saddled with a debt to husband's parents of \$42,306.67. Wife paid nothing on the debt. Five years later husband's parents sued wife. The trial court granted summary judgment to wife based on the 4 year statute of limitations found in the Uniform Commercial Code provision SDCL 57A-2-725 which relates to "contracts for the sale of goods." The South Dakota Supreme Court affirmed, holding that "feed" was clearly "goods" under the UCC. Also, under the UCC, SDCL 57A-2-310(a), payment was deemed to be due to husband's parents as of the date of the last delivery or sale of feed to husband and wife, thereby allowing the statute to start running two months before the divorce. Justices Sabers and Gilbertson dissented, arguing that the six year limitations provision found in SDCL 15-2-13 (relating to an action on a contract) should apply.

Collection of Minnesota Child Support Judgment barred by 10 year statute of limitations. Some 13 years after the final child support payment was due wife under a 1976 Minnesota divorce decree, the wife commenced an action in South Dakota against the estate of the deceased husband. She was seeking to collect \$26,620 in arrearage. The estate was successful in persuading the trial court that the claim was defeated by the 10 year statute of limitation of SDCL 15-2-8 which is applicable to foreign judgments. The South Dakota Supreme Court affirmed in *Estate of Foss*, 2001 SD 140, 637 N.W.2d 30. Wife unsuccessfully argued that the 20 year statute of limitations found in SDCL 15-2-6 was applicable. Wife was defeated by the language of 15-2-6 which is limited to a judgment of "any court of this state." The opinion points out that there are procedures available which would have allowed wife to register the Minnesota judgment earlier in South Dakota and then she would have been entitled to have it treated as having originated as a South Dakota judgment. [The other procedures – the UIFSA of SDCL 25-9B and Enforcement of Foreign Judgments Act in SDCL 15-16A – are discussed in footnote 3 of the opinion and accompanying text. ¶12, 637 N.W.2d at 33.]

The Faulk v. Faulk Complexity! The opinion in *Faulk v. Faulk*, 2002 SD 51, 644 N.W.2d 632, sets forth a long and contorted history of child support obligations against both parties and one formal custody change, tracing back to the 1982 divorce decree. Originally in 1982, W was awarded custody of both of the parties' two children. H was then ordered to pay \$100 per month per child, later modified to \$150 per month per child. Also, H was ordered to make his payments to the Pennington County Clerk's office. As of 1986, H

was delinquent in the amount of \$6,925. In November, 1994, H's delinquency was adjudicated, through an administrative judgment, to be a total of \$15,966, representing principal of \$6,925 and interest of \$9,041. During much of the time involved W was on ADC and had assigned her child support rights to the state. Custody of both children was modified in favor of H in 1995, at which time W was ordered to pay child support of \$386 per month for both children. In December, 2000, W brought an "order to show cause" proceeding against H, alleging that H owed her \$39,300 in delinquent child support for the 11 year period from October, 1983 to October, 1994. During the years 1990-94, H only paid child support for one child because (according to H) one or more of children were living with him. W's action for the arrearages in December of 2000 was apparently precipitated by a garnishment action initiated against her to collect the delinquent support obligation owed by W to H as a result of the custody change in 1995. Additional complications to resolving this mess include the following three factors: 1) the fact that H did not make his sporadic payments through the clerk's office as required by the decree; 2) the fact that the administrative judgment entered in 1994 in the amount of \$15,966 for W was never signed by a circuit judge, with H's appeal from that proceeding to the South Dakota Supreme Court having been dismissed for that reason; and 3) in 1996 the trial court set aside the 1994 administrative judgment in favor of W for the reason that W had made an assignment to the state in connection with ADC.

In ruling on the proceeding brought in December, 2000, the trial court denied W any arrearages prior to 1995, because of "res judicata" (as to the 1996 judgment which set aside the 1994 administrative judgment) and because of "laches." The South Dakota Supreme Court reversed, holding that W was not barred by these principles in her attempt to collect arrearages for the time period involved.

When the smoke clears, toward the end of this contorted history (of payments, non-payments, enforcement proceedings, counter obligations and custody switches), we see the situation where the current "obligor" is entitled to collect arrearages from the current "obligee" based on the current obligee's prior non-payment of child support. How is this to be handled? Actually this situation tends to happen a great deal in South Dakota. Traditionally under the very precise and technical provisions of South Dakota's intricate child support statutes, it has never been "safe" for a current obligor to "not pay" simply because money is owed back to the current obligor by the current obligee. This opinion by the South Dakota Supreme Court directs the trial court to ascertain the amount owed by H and then to subtract that amount the amounts which W owes to H for her own delinquency. ¶ 29. This aspect of the case is a breath of fresh air and hopefully will serve as encouragement to trial courts to engage in the off-setting analysis in the future. Prior to this opinion, courts have been hesitant to off-set and have looked narrowly only at each person's obligation and permitted the enforcement devices for collection of that obligation, notwithstanding the fact that there may be a delinquent obligation owed right back to the obligor under scrutiny.

The following principles of law are to be found in this opinion:

A) the trial court's most recent ruling and its 1996 ruling (which set aside the 1994 administrative judgment in favor of W) were both erroneous because they were attempts to retroactively modify child support, contrary to SDCL 25-7-7.3.

B) the doctrine of res judicata is not available to help H protect the 1996 ruling because W's claim for child support during 1990-94 was not an issue in the proceeding and W is only attempting to enforce an obligation which was already in place.

C) The doctrine of laches, as applied in this situation, requires that H show three things:

- (1) that W had full knowledge of the facts upon which the action is based
- (2) regardless of such knowledge, W engaged in unreasonable delay
- (3) that allowing W's action would prejudice H

Here, H failed to show element (2) unreasonable delay and H could not show element (3) that he was prejudiced.

In connection with the (2) "unreasonable delay" issue, this opinion gives some enlightenment as to

when laches may and may not be available. Initially, it is observed that laches is being asserted against the enforcement of a judgment. And, ““Logically, enforcing a judgment would rarely invoke the application of laches, especially in a case where the judgment requires periodic payments.”” ¶ 22 of opinion, 644 N.W.2d at 636 [citing and quoting *Culhane v. Michels*, 2000 SD 101]. Immediately following this observation, the opinion then cites two *prior* cases where differing periods of time yielded different results. In *Bonde v. Boland*, 2001 SD 98, a five year delay was *not* unreasonable, but in the case of *In re Loomis*, 1998 SD 113, a fourteen year delay was held to be unreasonable. ¶ 23 of opinion, 644 N.W.2d at 636.

In connection with H’s claim of (3) prejudice, H argued that he would have been better able to show actual payments by way of cancelled checks had W brought this action earlier. But, the fact that H did not make his sporadic payment through the court clerk adversely affected his ability to claim prejudice and argue laches. The opinion notes that H had been required by the 1982 decree to make his payments through the clerk’s office and he did not have authority to unilaterally modify the decree so as to allow him to avoid paying through the clerk’s office.

Laches and Equitable Estoppel may be available as defense. See the discussion of the *David Loomis* case which is found in the very next sub-chapter of this book.

D. Defenses

4. Estoppel and Laches.

In an extreme case of interference with access, the defense of estoppel may arise. In *Hershey*, 467 N.W.2d 484, the South Dakota Supreme Court approved the defense of estoppel where

- (1) the custodial parent has concealed the whereabouts of the child for an extended period of years; and
- (2) the child has attained majority, with no need for ongoing support; and
- (3) the custodial parent is seeking arrearages, not a state agency.

With these conditions, the defense of “estoppel” should be available only for the period of concealment, according to *Hershey*.

Cases on Laches and Estoppel

Laches and Equitable Estoppel may be available as defense. In a decision handed down on November 11, 1998, the South Dakota Supreme Court ruled that, even though retroactive child support for six years is permissible under SDCL 25-8-5, such may not be justified under the “equitable doctrines of laches and estoppel.” In *Matter of David Loomis*, 1998 SD 113, 587 N.W.2d 427 (S.D. 1998), the mother gave birth to an illegitimate child, but *purposefully* kept her pregnancy and the child’s birth a secret from the father. When the child turned 14 years of age, the child wanted to learn about the father. Then the father was

located and a blood test confirmed his paternity. Father did not oppose the imposition of a duty of on-going support prospectively, but did oppose the imposition of retroactive support for the time period he was kept uninformed of the fact he had fathered this child. The trial court accepted the recommendation of the referee which found that father should be required to pay \$14,000 in retroactive child support. The South Dakota Supreme Court reversed, holding that the equitable doctrines of "laches" and "estoppel" prohibited the imposition of retroactive support. Chief Justice Miller's opinion (on reassignment) was adopted by Justices Amundson and Sabers. The majority opinion sets forth the common law elements for both "laches" and "equitable estoppel" and finds that they are satisfied under the facts here. (These elements are not set forth in this description, but may be found in the opinion). Justice Konenkamp dissented, his theory basically centering on "the child" who should not be made to suffer "because of the actions or inactions of consenting adults." According to Justice Konenkamp, child support should not "be withheld to punish miscreant parents. Even when parents behave in ways undeserving, children should not be made to suffer." Justice Gilbertson agreed with the three-justice majority that "laches" and "equitable estoppel" are applicable to SDCL 25-8-5, but would nonetheless award an "arrearage" of only \$7,114.50, which is about half of what the trial court ordered. (Even though Justice Sabers concurred in Justice Miller's opinion for the three-justice majority, he wrote a brief concurring opinion in response to Justice Konenkamp's dissent.)

Defenses of “laches” and “estoppel” held not available to father in action for 5 years of child support arrearages. In *Bonde v. Boland*, 2001 SD 98, 631 N.W.2d 924, child support and child support arrearages for 5 years were sought against father of a child born out of wedlock. An earlier attempt at having the child adopted out failed, despite the fact father signed papers to allow the adoption. Mother sought child support. There was no dispute over whether or not ongoing child support could be obtained. As to arrearages, father raised the defenses of “laches” and “equitable estoppel.” The referee disallowed the defenses and imposed arrearages. The trial court allowed the defenses and held that arrearages were barred by laches and equitable estoppel. The SD Supreme Court reversed, holding that neither defense is available to the father. This case relies on the very significant case of *In re Loomis*, 1998 SD 113, 587 N.W.2d 427, which did permit the defenses of estoppel and laches as to “arrearages” in a child support action. In this case, however, the facts are “significantly different” than the facts in *Loomis*. (Paragraph no. 19). The elements of laches and estoppel are stated in the opinion and the SD Supreme Court indicates that father failed to establish two of the three required elements of laches – “unreasonable delay” and “prejudice.” (Paragraph no. 22). The Court doesn’t advise as to which of the elements of estoppel are lacking, but simply states that father did not meet his burden of proving the four (4) elements of equitable estoppel by clear and convincing evidence. (Paragraph no. 24). Although all five justices agreed to the result, there was a concurring opinion by Justice Konenkamp in which he restates his belief that the defenses of “laches” and “estoppel” fail to consider the rights of the child. He further states, “Under no circumstances can a child be held accountable for laches or estoppel.” (Paragraph no. 28). [This case is significant because it is the first reported opinion on these defenses since the landmark *Loomis* case which permitted the successful assertion of these defenses.]

State ex rel. Bennett v. Peterson. Child was conceived in 1987 through Mother’s encounter with Father, but mother was dating another man who believed he fathered child. In 1992, Father was told that he was father of child and he was requested to consent to adoption by mother’s husband. Adoption never took place. Mother sued Father in 2000 for child support. Trial court gave mother judgment for \$478 per month plus \$47,244 in arrearages. Mother agreed to reduce judgment to \$125 per month and arrearages of \$29,850. Father appealed. *State ex rel. Bennett v. Peterson*, 2003 SD 16, 657 N.W.2d 698. The South Dakota Supreme court affirmed. Mother was entitled to six years of arrearages under SDCL 25-8-5. Father was

unable to establish an adequate defense of estoppel or laches. Although Father relied on the case of *In re Loomis*, 1998 SD 113, (which permitted the equitable defenses of laches and estoppel as to arrearages). The Court was able to distinguish *Loomis* because mother intentionally kept the pregnancy and birth secret from father for 14 years. The Court indicated that this case is governed not by the *Loomis* case, but rather by *Bonde v. Boland*, 2001 SD 98. In *Bonde v. Boland*, there was also a failed adoption attempt, even though the father had indeed signed papers consenting to it.

The doctrine of “laches” as applied to a child support judgment was the subject of elaboration in the case of *Faulk v. Faulk*, 2002 SD 51, 644 N.W.2d 632. The *Faulk* opinion is discussed in the preceding subchapter (“3. Limitations”) of this book.

Disfavored Defenses. In the case of *Tovsland v. Reub*, 2004 SD 93, 686 N.W.2d 392, the trial court held that the mother was barred by the doctrine of laches from seeking child support for the period of time preceding mother’s request that father take a paternity test, which occurred when the child was 7 years old. The South Dakota Supreme Court reversed holding that “laches and estoppel are not favored defenses in the context of child support.” ¶ 13. Mother’s claim for back child support was found to be limited, however, by the six year provision of SDCL 25-8-5. ¶ 24.

D. Defenses

5. Counterclaims.

The South Dakota Supreme Court has consistently recognized that, even where there may be legitimate counterclaims by an obligor against an obligee, those counterclaims may not be asserted in child support collection proceedings. *Hershey, supra*, (holding that father’s claim for alienation of affections may not be asserted in the “show cause” proceeding); *Taylor v. Ellenbecker*, 471 N.W.2d 587 (S.D. 1991) (holding that father’s action in quantum meruit may not be asserted in hearing to determine the propriety of DSS’s action to begin wage-withholding).

D. Defenses

6. Bankruptcy.

Child support payments and alimony payments are not dischargeable in bankruptcy. Under 11 U.S.C. § 523(a)(5), a debtor may not discharge “for a domestic support obligation.”

Prior to 2005, payments which are labeled “alimony” or “support,” but which are, in fact, not support or alimony are dischargeable in bankruptcy. An example of this would be payments which may be designed to effectuate a division of property. 11 U.S.C. § 523(a)(5)(B).

[NOTE: Under the new Bankruptcy Abuse Prevention and Consumer Protection Act of 2005, which goes into effect in October, 2005, a debtor may not discharge any “domestic support obligation.” This includes debts for child support and alimony. Also, there is apparently an amendment which applies to other debts to spouses, former spouses or children which are “not of the kind” encompassed by the term “domestic support obligation.” Presumably this extends the presumption of *nondischargeability* feature to debts arising out of property settlements. The new provisions are to be found in the amended versions of 11 U.S.C. § 101(14A), 11 U.S.C. § 523(a)(5), and 11 U.S.C. § 523(a)(15).]

Excerpts from:

Cassidy Stalley, *Review of 2005 BAPCA Changes Affecting Family Law*

(Advanced Legal Research Paper)

In 2005, the Bankruptcy Abuse Prevention and Consumer Protection Act of 2005 (“BAPCPA”) was enacted. With its enactment came many different changes to the Bankruptcy Code. Section 523(a) now excludes all marital debt from discharge. Section 507(a)(1) changes the priority of support claims. And, there are now eleven new exceptions to the automatic stay section.

Section 523(a) lists all debts which are nondischargeable in a bankruptcy case. The family law attorney should be aware of Sections 523(a)(5) and 523(a)(15) of this section because these sections deal with domestic support-related debts and with the enactment of BAPCA, the scope of these sections were significantly broadened to give family creditors additional protection. Specifically, these two sections now exclude “all marital and domestic relations debts from discharge, regardless of whether they are in the nature of support or property division, with the only requirement being that they are incurred in connection with either a separation or divorce or an action related to divorce.”

Under BAPCPA, Section 523(a)(5) has been simplified to exempt any debts for “Domestic Support Obligations” (“DSO”). Section 101 (14A) defines this new term, “Domestic Support Obligation,” as:

a debt that accrues before, on, or after the date of the order for relief in a case under this title, including interest that accrues on that debt as provided under applicable nonbankruptcy law notwithstanding any other provision of this title, that is--

(A) owed to or recoverable by--

(i) a spouse, former spouse, or child of the debtor or such child's parent, legal guardian, or responsible relative; or

(ii) a governmental unit;

(B) in the nature of alimony, maintenance, or support (including assistance provided by a governmental unit) of such spouse, former spouse, or child of the debtor or such child's parent, without regard to whether such debt is expressly so designated;

(C) established or subject to establishment before, on, or after the date of the order for relief in a case under this title, by reason of applicable provisions of--

(i) a separation agreement, divorce decree, or property settlement agreement;

(ii) an order of a court of record; or

(iii) a determination made in accordance with applicable nonbankruptcy law by a governmental unit; and

(D) not assigned to a nongovernmental entity, unless that obligation is assigned voluntarily by the spouse, former spouse, child of the debtor, or such child's parent, legal guardian, or responsible relative for the purpose of collecting the debt.

Noticeably, much of the language from the prior version of Section 523(a)(5) was transferred to Section 101(14A), however there are significant changes made by this definition.

Section 523(a)(15) was added to the Bankruptcy Code in 1994. Its purpose was to expand the range of marital debts that were nondischargeable to “all debts incurred in the course of a divorce or separation or in connection with a separation agreement, divorce decree or other order of a court of record, or a determination made in accordance with State or territorial law by a governmental unit.” Typically these debts encompassed property settlement and hold-harmless agreements between divorcing spouses. One drawback to this pre-BAPCPA section was that these debts could be discharged if the debtor demonstrated: 1) an inability to pay such debt; or 2) that the benefit the debtor would receive from discharging the debt outweighed the detrimental consequences a spouse, former spouse, or child would face should the debt be discharged. Under BAPCPA much of the language has been retained, however, this section has undergone some substantial changes. First, the above-mentioned defenses have been completely eliminated. This is significant because under pre-BAPCPA many marital debts were discharged due to these defenses. Thus, by eliminating the defenses there is a better chance the debt will be declared nondischargeable and go to the spouse entitled to the marital debt. Next, the subsection adds to whom the debts can be owed to and clearly limits it those specific people, namely “a spouse, former spouse, or child of the debtor.” These same parties are found in Section 101(14A), but 101(14A) also includes “or such child’s parent, legal guardian, or responsible relative.” By adding these parties and omitting the others, Congress was clearly limiting, not expanding, the scope of creditors as it did under Section 523(a)(5) and courts have adhered to this rule of construction. Despite the fact that the scope of creditors has been clearly limited, the subsection still allows for a wide range of debts, including attorney and other professional fees, if they do not fall within Section 523(a)(5). Hold-harmless provisions continue to be upheld as nondischargeable under this section as well, even without the divorce decree containing an express hold-harmless provision.

The family law attorney should be aware that under Chapter 13 bankruptcy, a debtor may still obtain a discharge of Section 523(a)(15) debts. Section 1328(a), which was unchanged by BAPCPA, permits debtors that obtain confirmed plans and complete those plan payments to discharge Section 523(a)(15) debts.

Two final things to note under this section are in regards to jurisdiction and timing. First, BAPCPA expands concurrent jurisdiction between federal bankruptcy court and state family law courts for the adjudication of these types of claims. Before, federal court had exclusive jurisdiction. BAPCPA has also amended the timing requirements for Section 523(a)(15) claims, allowing a party to commence an adversary proceeding at anytime. Pre-BAPCPA, a party was required to file within sixty days after the first date set for the meeting of creditors.

Prior to BAPCPA, support claims ranked seventh in priority. With the enactment of BAPCPA, DSOs now hold top priority. A spouse, former spouse, child, or other responsible relative is entitled to first priority, while debts owed to or recoverable by a governmental unit are the next in line. It should be noted however, that all DSOs, regardless of whom it is owed to or recoverable by, are subject to Section 507(a)(1)(C) which entitles the administrative expenses of a trustee to be paid before any payments are made to DSO creditors. In addition, the family law attorney should be aware that certain provisions in Chapter 13, such as those that provide for the payment of debtor's attorney's fees prior to payment of DSOs, could also displace DSO's top priority. Finally, while DSOs are now afforded first priority, the same is not true for Section 523(a) (15) marital debts, which receive no special priority from Section 507.

MORE NOTES AND CASES INVOLVING BANKRUPTCY

A. The South Dakota Supreme Court has rendered its first decision on the dischargeability in bankruptcy of obligations contained in a divorce decree. The court found that although federal law governs, state courts have concurrent jurisdiction to adjudicate the issue of dischargeability. At issue were two obligations of the husband who, subsequent to the divorce, filed a Chapter 7 Bankruptcy proceeding, to wit: (A) his agreement to pay off Firstline Account, as well as the Visa and Discover charge cards; and (B) his agreement to pay wife \$1,800 in installments "for purposes of equalizing the relative equities in property of the parties." The trial court found that both obligations were in the nature of support and hence non-dischargeable. The South Dakota Supreme Court affirmed the non-dischargeability holding as to the charge accounts, but reversed as to the \$1,800 equalizing payment. The court found that the equalizing payment "had all the earmarks of a property distribution" and, accordingly, was discharged in the bankruptcy proceeding. *Hogie v. Hogie*, 527 N.W.2d 915 (S.D. 1995). The court also noted that the "labels" utilized by the parties or courts in a divorce proceeding are not controlling, but merely "persuasive evidence of intent." Numerous factors were listed as warranting consideration in determining whether or not an obligation was intended to be for support or a property settlement (too numerous to mention here). *Id.* at 919 - 922.

B. In *Barton v. Barton*, 534 N.W.2d 48 (S.D. 1995), H was originally ordered to pay W \$150,000 plus interest, as well as \$700 per month alimony and attorney's fees of \$15,049. Subsequently, H filed bankruptcy in Wyoming and the Wyoming Bankruptcy court sought clarification from the South Dakota divorce court as to which aspects of the award were considered support and, therefore, non-dischargeable. The trial court found that \$40,000 of the \$150,000 lump sum award was intended as maintenance and support, as well as the attorney fee award of \$15,049. The trial court also declared that the sums of \$7,699 and \$2,984 (representing interest on the lump sum award and the attorney fee award) were in the nature of support and non-dischargeable. The South Dakota Supreme Court affirmed, primarily relying on the factors set forth in *Hogie v. Hogie*, 527 N.W.2d 915 (S.D. 1995).

C. In *Holliday v. Kline*, 65 F.3d 749 (8th Cir. 1995), the Eighth Circuit Court of Appeals ruled that H's obligation to pay W's attorney's fees of \$6,305 is not dischargeable in bankruptcy where the intent of the fee award was to equalize the disparity of incomes, enabling W to support herself after the divorce. (The dissenting opinion disagreed because H was ordered to pay W's attorney directly.)

D. Anticipating the possibility of bankruptcy by H, the South Dakota Supreme Court held it was error for the trial court not to give wife a secured interest in the parties' property awarded to H in *Grode v. Grode*, 543 N.W.2d 795, 803-04 (S.D. 1996). The secured interest in the property was to secure the court's order that H pay W \$108,000 over an 18 year period. Without a security interest in the property, H could declare bankruptcy and leave wife in an unsecured position. The court cited and quoted SDCL 25-4-42 as authority for the proposition that H could be directed to give a secured interest to W in the marital property awarded to him.

E. The Bankruptcy Reform Act of 1994 includes the following:

The result in *Farrey v. Sanderfoot* is endorsed (this case is found in the last chapter of this book). Avoidance of liens securing payment of alimony, maintenance & child support is disallowed. The legislative history indicates that this act is intended to supplement the reach of *Farrey v. Sanderfoot*.

The Act makes it more difficult to discharge debts incurred in divorce separation agreements. Basically, the debt is not dischargeable, unless:

- (A) the debtor does not have the ability to pay; or
 - (B) discharge would benefit the debtor to a greater extent than the detrimental consequences to the spouse or children.
-

E. Criminal Prosecutions

1. Non-Support —Cruelty to Minor

RELEVANT SOUTH DAKOTA STATUTES

22-19-9. Taking, enticing away, or keeping of unmarried minor child by parent—Misdemeanor— Subsequent violation felony. Any parent who takes, entices away, or keeps his or her unmarried minor child from the custody or visitation of the other parent, or any other person having lawful custody or right of visitation, in violation of a custody or visitation determination entitled to enforcement by the courts of this state, without prior consent is guilty of a Class 1 misdemeanor. Any subsequent violation of this section is a Class 6 felony.

Source: SL 1979, ch 171, § 7; SL 1980, ch 174, § 1; SL 1985, ch 178, § 1; SL 2005, ch 120, § 118.

25-7-16 Nonsupport of child by parent as misdemeanor -- Felony where parent leaves state -- Spiritual treatment -- Unemployment. A parent of a minor child who intentionally omits without lawful excuse to furnish necessary food, clothing, shelter, medical attendance, other remedial care, or other means of support for the person's child is guilty of a Class 1 misdemeanor. If a parent, during a violation, leaves the state and is absent for more than thirty days, the person is guilty of a Class 6 felony. If a child is under treatment solely by spiritual means, the court may, as provided under § 26-8A-22, order that medical treatment be provided for the child. For the purposes of this section, unemployment without justifiable excuse or without verifiability of searching for employment is not a lawful excuse for noncompliance.

26-10-1. Abuse of or cruelty to minor as felony--Reasonable force as defense--Limitation of action. Any person who abuses, exposes, tortures, torments, or cruelly punishes a minor in a manner which does not constitute aggravated assault, is guilty of a Class 4 felony. If the victim is less than seven years of age, the person is guilty of a Class 3 felony. The use of reasonable force, as provided in § 22-18-5, is a defense to an offense under this section. Notwithstanding § 23A-42-2, a charge brought pursuant to this section may be commenced at any time before the victim becomes age twenty-five.

If any person convicted of this offense is the minor's parent, guardian, or custodian, the court shall include as part of the sentence, or conditions required as part of suspended execution or imposition of such sentence, that the person receive instruction on parenting approved or provided by the Department of Social Services.

Source: SDC 1939, §§ 13.3301, 13.3303; SDCL § 26-10-5; SL 1969, ch 32; SL 1975, ch 179, § 1; SL 1977, ch 189, § 96; SL 1983, ch 211, § 2; SL 1998, ch 162, § 3; SL 2001, ch 145, § 1; SL 2008, ch 140, § 1.

26-10-30. Permitting physical or sexual abuse of child as felony--Affirmative defense. It is a Class 6 felony for any parent, guardian, or custodian to knowingly permit physical or sexual abuse of a child.

It is an affirmative defense, to be proven by clear and convincing evidence, to prosecution under this section if, at the time of the offense, there was a reasonable belief that acting to stop or to prevent the abuse would result in substantial bodily harm to the defendant or the child in retaliation.

Source: SL 2006, ch 146, § 1.

26-10-31. Causing child to be present where methamphetamines used, distributed, or manufactured as misdemeanor. It is a Class 1 misdemeanor for any person to knowingly cause a child to be present where any person is using, distributing, or manufacturing methamphetamines.

Source: SL 2006, ch 146, § 2.

NOTES

1. In *State v. Rome*, 426 N.W.2d 583 (S.D. 1988), the defendant took the child and left the state for more than 30 days. During that time he did not make his child support payments, however he provided the child with food, clothes, school tuition, day care, etc. He was convicted of felony non-support under SDCL 25-7-16. His conviction was reversed on appeal. The state had unsuccessfully contended that the commission of one crime (“childnapping”) should not be permitted as a defense to the crime of non-support.

2. In *State v. Eagle Hawk*, 411 N.W.2d 120 (S.D. 1987), the parents’ convictions of cruelty to a minor under SDCL 26-10-1 were affirmed. On appeal the parents argued, *inter alia*, that they should have been charged with the misdemeanor of parental neglect under the non-support statute, SDCL 25-7-16, instead of the felony of abuse to a minor under SDCL 26-10-1. After reviewing the rather unpleasant facts in the case, the South Dakota Supreme Court rejected their argument, observing that “at some factually determinable point, parental neglect (under SDCL 25-7-16) must become cruelty or abuse of a minor (under SDCL 26-10-1)” and the jury is assigned the task of “identification of this turning point.” *Id.* at 123-24.

3. Defendant’s conviction of felony abuse to a minor under SDCL 26-10-1 was reversed on appeal in *State v. Orelup*, 492 N.W.2d 101 (S.D. 1992). The defendant had allegedly kicked his four-year-old son in the stomach with his boot, causing a tear in the lining of the boy’s colon which lead to bleeding in and through the boy’s stool. The examining physician also found numerous bruises on different parts of the boy’s body. The conviction was reversed because of the admission of hearsay testimony by the social worker, without an adequate showing of unavailability of the boy as a witness. (The opinion indicates that the father’s parental rights had been terminated in another proceeding and the boy had been adopted.) The defendant was convicted on re-trial and that conviction was affirmed in *State v. Orelup*, 520 N.W.2d 898 (S.D. 1994).

4. For a more recent case involving ugly facts, see *State v. Wright*, 1999 SD 50, 593 N.W.2d 792, affirming a conviction and the allowance of evidence of prior acts of abuse where, “Believing his son was responsible for a fire in their home, defendant punched the child in the stomach, banged his head against a wall, then whipped and kicked him.” Justices Sabers and Amundson dissented based on the evidentiary ruling as to prior bad acts. (Quoted sentence is from paragraph no. 1 of opinion, 593 N.W.2d at 795.)

5. Ex-husband was convicted of felony nonsupport of a child. The statute, SDCL 25-7-16, makes “nonsupport” a class 1 misdemeanor, but the same “nonsupport” becomes a Class 6 Felony, “If a parent, during a violation, leaves the state and is absent for more than thirty days.” *State v. Taecker*, 2003 SD 43, 661 N.W.2d 712. The South Dakota Supreme Court affirmed the conviction, rejecting all arguments by the defendant ex-husband. But, the Court also rejected an argument by the State which is worth noting.

In rejecting the argument that he was not a resident of the state, the Court noted that the evidence supported the jury’s finding that he resided in South Dakota until he left in 1996. The evidence showed that he was employed by three construction firms in South Dakota, that he had obtained a South Dakota driver’s license, and that he had filed a tax return for 1995 which indicated his place of residence at Yankton, South Dakota.

In this opinion, however the Court specifically rejected an argument that had been made by the State. The state had argued “that any parent that is either a nonresident or has left the State for thirty days, no matter the parent’s status under the support provision at the time of departure, is guilty of a felony.” ¶ 11. The Court stated, “This argument is untenable and contrary to the legislative dictate.” ¶ 11. The Court clarified the important distinction which was overlooked by the State’s argument, “The statute does not mandate that a parent outside of the state automatically face felony prosecution for nonsupport.” ¶ 12.

The Court also rejected the argument that there would be no violation if the child had indeed been provided with food, clothing, shelter and other necessities by the custodial mother. The defendant’s reliance on *State v. Rome*, 426 N.W.2d 583, was misplaced because in the *Rome* case, the defendant father himself, who was out of state, had been caring for the child. Here, the in-state mother had provided for the child and defendant’s argument, under these facts, is specifically negated by SDCL 25-7-20 which provides, “This chapter may not be so construed to relieve one parent from the criminal liability defined in SDCL 25-7-16 for an omission because... the other parent of the child... voluntarily or involuntarily furnishes necessary food, clothing, shelter, medical attention, other remedial care or other means of support for the child.”

In this case, the child support order covered four children. As of the time of trial, one child had died and two had become emancipated. Among his arguments on appeal, the defendant requested the court to rule that his child support arrearage had been improperly calculated because it did not reflect reductions as these three children no longer met the requirements for support. The Supreme Court rejected the opportunity to re-consider the existing common law view which provides that a lump sum child support order for more than one child is not automatically reduced pro-rata as each child becomes emancipated or dies.

Finally, the Court held that the crime of “criminal nonsupport” under SDCL 25-7-26 is a “general intent” crime and the trial court acted properly in refusing the defendant’s jury instruction on specific intent. Despite the fact the statute states, “A parent ... who intentionally omits,” the state was only required to prove that the defendant committed the act of omission without having to show a specified intent.

6. On June 24, 1998, President Clinton signed the “Deadbeat Parents Punishment Act” into law. It is codified at 18 U.S.C. Section 228. Federal prosecutions for non-payment of child support are now authorized against persons who are in arrears in excess of \$5,000 or for a period greater than 1 year.

NOTE
Elder Abuse Prohibited
[Legislative update (2007)]

Senate Bill 193, which was enacted into law in 2007 amends the criminal statutes SDCL 22-46-2 and SDCL 22-46-3 so as to include “elder” as a victim for the crimes of “abuse or neglect” and “theft by exploitation.” These statutes previously recognized only a “disabled adult” as a victim. This legislation includes a provision which recognizes that one does not commit “neglect” by honoring the wishes of an elder concerning a “do not resuscitate” order or honoring an elder’s wishes to “not” seek medical care. (This is accomplished by adding a new section, SDCL 22-46-1.1) This legislation also includes provisions which permit reports of elder abuse to be made to the state’s attorney, DSS or any law enforcement officer and also for immunity (both criminal and civil immunity) for the person making the report. Immunity is also provided for those public officials who investigate reports of elder abuse. In connection with the reporting and immunity provisions, new sections SDCL 22-46-7 and SDCL 22-46-8 have been added, in addition to amendments being made to SDCL 34-12-51.

E. Criminal Prosecutions

2. Childnapping

RELEVANT SOUTH DAKOTA STATUTES

22-19-9. Taking, enticing away, or keeping of unmarried minor child by parent– Misdemeanor– Subsequent violation felony. Any parent who takes, entices away, or keeps his or her unmarried minor child from the custody or visitation of the other parent, or any other person having lawful custody or right of visitation, in violation of a custody or visitation determination entitled to enforcement by the courts of this state, without prior consent is guilty of a Class 1 misdemeanor. Any subsequent violation of this section is a Class 6 felony.

Source: SL 1979, ch 171, § 7; SL 1980, ch 174, § 1; SL 1985, ch 178, § 1; SL 2005, ch 120, § 118.

22-19-10. Removal of child from state--Felony. Any parent who violates § 22-19-9 and causes the unmarried minor child, taken, enticed, or kept from the child's lawful custodian, to be removed from the state is guilty of a Class 5 felony.

Source: SL 1980, ch 174, § 2; SL 1985, ch 178, § 2; SL 2005, ch 120, § 119.

Most of the reported decisions under South Dakota's childnapping statutes (SDCL 22-19-9 & 22-19-10) are reversals of convictions. The reversals tend to be focused on the lack of opportunity afforded to the defendant to present a defense based on justification or necessity. *State v. Boettcher*, 443 N.W.2d 1 (S.D. 1989); *State v. Rome*, 426 N.W.2d 19 (S.D. 1988); and *State v. Rome*, 452 N.W.2d 790 (S.D. 1990).

F. Attorney's Fees

Consider the following statute:

16-18-21. Attorney licensing - Attorney's lien on proceeds of action. An attorney and counselor at law has a lien for a general balance of compensation in and for each case upon:

- (1) Any paper belonging to his client which has come into his hands in the course of his professional employment in the case for which the lien is claimed;
- (2) Money in his hands belonging to his client in the case;
- (3) Money due his client in the hands of the adverse party or attorney of such party, in an action or proceeding in which the attorney claiming the lien was employed, from the time of giving notice in writing to such adverse party or attorney of such party, if the money is in the possession or under the control of such attorney, which notice shall state the amount claimed and in general terms for what services; after judgment in any court of record such notice may be given and the lien made effective against the judgment debtor by entering it in the judgment docket.

Source: PolC 1877, ch 18, § 9; CL 1887, § 470; RPolC 1903, § 702; RC 1919, § 5266; SDC 1939 & Supp 1960, § 32.1205; SL 1983, ch 157, § 3.

Wife's former attorney was permitted to assert a lien against the alimony owed to Wife by her ex-Husband for the collection of \$22,307 in unpaid attorney's fees stemming from his representation of wife in the divorce proceeding. The trial court had disallowed the lien, relying on the public policy notion that liens should not be assertable against *support* obligations. The South Dakota Supreme Court reversed, with two justices dissenting. *Jasper v. Smith*, 540 N.W.2d 399 (S.D. 1995). The court held the plain language of the statutory provision, SDCL 16-18-21(3), encompassed alimony payments by the ex-husband. From the dictum and the dissenting opinion, it appears that all five justices agree that an attorney's lien is assertable against property or cash awarded in lieu of property. It also appears that all five justices agree that child support is protected from the assertion of such a lien.

G. Habeas Corpus

The “Writ of Habeas Corpus” is a powerful enforcement tool for parties in custody situations. Ideally, the writ examines the “lawfulness” of the restraint placed on a child by its present custodian. The petitioner or relator will assert that (s)he has a “superior right” to custody over the child’s present custodian who will be contended to be unlawfully in possession of the child. Ideally the writ should be served promptly with a very quick return date. The issue of the “lawfulness” of the respondent’s possession should be resolved on the return date. Traditionally this writ has been utilized as a speedy effective remedy. In most cases, the petitioner or relator who seeks the writ will be claiming a superior right to custody by virtue of a judicial decree such as a divorce decree or other custody order. A certified copy of that order is frequently attached to the Petition or Application for the Issuance of the Writ. Occasionally, such as in a dispute between a parent and a non-parent, the “superior” right to custody may be established by virtue of the petitioner’s status (as a parent) as compared to the respondent (non-parent) and there may be no judicial decree or order in existence.

“Habeas Corpus” is the subject of SDCL 21-27, a statutory chapter that appears designed primarily for prisoners who are incarcerated. Nonetheless, “habeas corpus” has been utilized in South Dakota for custody cases. *E.g. Application of G.K.*, 248 N.W.2d 380 (S.D. 1977).

“Habeas Corpus” is generally available in other jurisdictions for usage in securing the enforcement of custody orders. Some states, like Texas, have enacted specific legislation which addresses the usage of the writ in custody situations. *See* Roger M. Baron, “Retrieving Possession of Children in Texas Through Habeas Corpus,” Boston University School of Law, College of Probate Judges, 7 *Probate Law Journal* 145 (1986), reprinted in *The Houston Lawyer*, July-August 1986, Vol. 24, No. 1, p. 11 and the *Texas Bar Journal*, July 1987, Vol. 50, No. 7, p. 716.

Recent Case

The writ of habeas corpus was recently utilized in *Meldrum v. Novotny*, 1999 SD 127, 599 N.W.2d 651, a custody dispute over a nine year old boy which arose between the natural father of the child and the mother’s boyfriend, when the mother was killed in an automobile accident. The child had been living with the mother and the boyfriend for six years, together with a half-brother fathered by the boyfriend. Mother had been an “exotic dancer.” The natural father sought, through a “habeas corpus” action, to obtain custody of his nine year old son in the month following the death of the mother. The first appeal to the SD Supreme Court resulted in a reversal, with the Court holding that “Under the unique circumstances of this case, we conclude the circuit court abused its discretion in not appointing an attorney for the child before proceeding with an evidentiary hearing, a hearing that would permanently determine the child’s future. This child had no representation at trial in a case where his mother, his primary custodian, died, and his father had no regular contact with him for years.” (Quoted material taken from paragraph no. 12, 599 N.W.2d at 654.)

H. Miscellaneous Enforcement Issues

1. Enforcement by Others Benefitted by Decree

In the case of *Fox v. Burden*, 1999 SD 154, 603 N.W.2d 916, the father died unexpectedly in a car accident ten days after the divorce decree was entered. The decree incorporated the parties' agreement in which father had agreed to change the beneficiaries of his \$100,000 life insurance policy from mother to his two children, Shanna and Michael. This change had not been made and mother, as the originally-designated beneficiary collected the proceeds. Almost eight years later, daughter Shanna discovered the provisions of the original decree and brought suit against the mother for misapplication of the life insurance proceeds, and fraudulent concealment. The son Michael had initially joined in the daughter's suit, but subsequently withdrew.

The trial court ruled for the daughter, awarding her \$50,000 plus interest as her share of the insurance proceeds. On appeal, the SD Supreme Court affirmed this award, but also held (in this case of first impression) that the father's child support obligation "survived" his death. As against the daughter's recovery (on the life insurance), mother was entitled to "setoff" the child support obligation which accrued as to daughter during the time between father's death and the daughter's attainment of majority. The issue of child support was remanded to the trial court for a determination of the proper amount of the "setoff" to be allowed mother, with the Court recognizing that the "maximum" amount would be the court-ordered sum of \$250 per month for the children contained in the original divorce decree.

This case presents a plethora of issues. In the process of upholding the trial court's judgment in favor of the daughter, a number of other issues were all resolved favorably for the daughter. Those issues, which are more thoroughly discussed in the opinion, are listed below:

- A) The trial court did not commit error by "interpreting" the agreement to refer to father's only \$100,000 life insurance policy with "Old Line Life," although the agreement described it as "Allied Life." The mother tried to argue that the equitable remedy of "reformation" was applied improperly, but the SD Supreme Court upheld the trial court's action as a correct and an appropriate "interpretation."
- B) The trial court did not err in holding that daughter had an enforceable right which had "vested" in daughter (not a mere "expectancy"), giving daughter a superior equitable right over mother.
- C) Daughter was not barred by the 6 year statute of limitations found in SDCL 15-2-13(1) due to mother's "fraudulent concealment" which served to toll a statute of limitations by virtue of SDCL 15-2-3.
- D) Daughter's cause of action was equitable in nature, calling for the interpretation of the divorce decree, and therefore the trial court did not error in denying the mother's motion for a jury trial. (Justices Sabers and Konenkamp dissented on this issue.)
- E) The trial court did not err in refusing mother the opportunity to amend her pleadings so as to allege the irregularity in the designated name of the life insurance company in the parties' agreement as incorporated into the divorce decree. (Justices Sabers and Konenkamp dissented on this issue.)

H. Miscellaneous Enforcement Issues

2. Corporate Assets

In *Osloond v. Osloond*, 2000 SD 46, 609 N.W.2d 118, the wife had experienced great difficulty in enforcing the divorce decree which awarded her a property settlement of \$143,315.50. Numerous efforts to enforce the decree through contempt proceedings, including numerous hearings, jail time assessments, and awards of attorney fees had all proven unsuccessful. Accordingly, she attempted to proceed with execution and levy against husband's property. In particular she seized all of the accounts of "Stretch's, Inc.," a corporation which was solely owned by husband and in which he was the sole officer and agent.

Husband then, by motion with the trial court, sought to have the corporate funds released. The trial court denied the husband's motion, finding that the corporate assets could be directly reached under SDCL 15-18-17. The SD Supreme Court reversed, holding that, since a corporation is a separate and distinct legal entity, not identical with its officers, shareholders or directors, its assets and funds can only be reached by the process of "piercing the corporate veil," a process not utilized in this case. With respect to SDCL 15-18-17, the Court observed that this statute would authorize wife's levy against husband's stock, monthly salary and the right to his share of profits at the end of each fiscal year; but that nothing in the statute allows for a levy directly upon corporate assets. The Court noted that "A key reason for this is that each are separate entities and other creditors of the corporation may have rights to be interested herein." (Paragraph no. 12, 609 N.W.2d at 122.)

The case was remanded for a determination as to whether or not the corporate veil should be pierced. The existing SD law, as set forth in the opinion, establishes a two-prong test, to wit: 1) whether there is "such unity of interest and ownership that the separate personalities of the corporation and its shareholders, officers or directors are indistinct or nonexistent;" and 2) "would adherence to the fiction of a separate corporate existence sanction fraud, promote injustice, or inequitable consequences or lead to an evasion of legal obligations." (Paragraph no. 13, 609 N.W.2d at 122.) The Court further observed, quoting directly from established case law, that "In deciding whether the corporate veil will be pierced, we recognize that 'each case is *sui generis* and must be decided in accordance with its own underlying facts.'" (quotation from a 1978 SD Supreme Court opinion.)

"Faith is believing in what you do not see. The reward of faith is to see what you believe."

St. Augustine

Chapter Sixteen

Termination of Parental Rights

A. Introduction

IN THE MATTER P.A.M.

Supreme Court of South Dakota, 1993.
505 N.W.2d 395.

[Editor's note: In this case, the trial court terminated the rights of the father to his daughter. Father was in the penitentiary and the effort to terminate his rights was instituted by his ex-wife, the child's mother. The ex-wife had not remarried. This is important because if she had remarried, she and her new husband could have pursued a stepparent adoption and termination of the father's rights would have probably been allowed under SDCL 25-6-4 which is reproduced in Sub-chapter C (Adoption). Since SDCL 25-6-4 was not available because there was no adoption proceeding, the ex-wife persuaded the trial court to terminate the rights of her ex-husband based on the statutory provisions available to DSS under the Abuse and Neglect statutes.]

WUEST, Justice.

This is an appeal from a judgment terminating P.A.M.'s parental rights to his daughter. We reverse.

A.E.M. was born on August 30, 1989. During the marriage of her parents, P.A.M. (hereinafter Father) abused Mother both physically and mentally. Mother obtained a divorce on May 15, 1991, but the threats and abusive conduct continued. On November 18, 1991, Father was arrested after breaking into Mother's home; he is currently serving twelve years in the South Dakota penitentiary for this crime.

Mother, citing Father's past abuse as grounds, filed a petition for the termination of Father's parental rights on March 16, 1992. Father moved to dismiss for failure to state a claim on which relief could be granted. The motion was denied.

At the September 28, 1992, hearing, the trial court adjudicated A.E.M. dependant and neglected. The court proceeded to the dispositional phase and terminated Father's parental rights.

Father appeals from the judgment on three grounds; we address only the first issue as we find it dispositive of this case.

I. THE TRIAL COURT ERRED IN DENYING FATHER'S MOTION TO DISMISS.

We first note that a natural parent's "desire for and right to 'the companionship, care, custody, and management of his or her children' " is a fundamental right. *Santosky v. Kramer*, 455 U.S. 745, 758-59, 102 S.Ct. 1388, 1397, 71 L.Ed.2d 599, 610 (1982) (quoting *Lassiter v. Department of Social Serv.*, 452 U.S. 18, 27, 101 S.Ct. 2153, 2160, 68 L.Ed.2d 640, 649 (1981)).

* * *

Father moved to dismiss Mother's petition on the ground that South Dakota law provided no statute giving her a cause of action to terminate his parental rights. He claims the three SDCL chapters providing authority for the State to terminate parental rights are the exclusive means by which parental rights may be terminated in South Dakota:

SDCL Ch. 25-5A Voluntary Termination of Parental Rights

SDCL Ch. 25-6 Adoption of Children

SDCL Ch. 26-8A Protection of Children from Abuse and Neglect

Mother cited no South Dakota statutory authority in her petition to terminate Father's parental rights.

* * *

Proceedings to terminate parental rights were unknown at common law. *In re Zink*, 264 Minn. 500, 119 N.W.2d 731, 734 (1963). Therefore, termination proceedings are purely statutory. *Petition of Sherman*, 241 Minn. 447, 63 N.W.2d 573, 576 (1954); *see also, Matter of McDuel*, 142 Mich.App. 479, 369 N.W.2d 912, 917 (1985) (the court cannot create a "common law" justifying the termination of parental rights); *D.J.A. v. Smith*, 477 S.W.2d 718, 720 (Mo.Ct.App.1972) (absent a statute the juvenile court has no power to terminate parental rights); *S.K.L. v. Smith*, 480 S.W.2d 119, 123 (Mo.Ct.App.1972) (the power of a court to terminate forever the legal right of parents to their children exists only by creation of a statute); *Matter of Edmunds*, 560 P.2d 243, 245-46 (Okla.App.1977) (court erred in failing to grant motion to dismiss as court had no authority to terminate parental rights without complying with statute); *In re A.A.*, 134 Vt. 41, 349 A.2d 230, 232 (1975) (parental rights cannot be transferred to state absent statutory authority).

The majority of jurisdictions clearly hold that absent statutory authority, private individuals have no standing to initiate and prosecute proceedings to terminate parental rights. *McCall v. District Court, County of Montezuma*, 651 P.2d 392, 393-94 (Colo.1982) (while private persons may file report in neglect and dependency case, only the state may bring a petition); *Davis v. Davis*, 708 P.2d 1102, 1113 (Okla.1985) (only the state, not custodial parent, may bring petition for termination of non-custodial parent's rights under neglect and dependency statute); *In re John*, 605 A.2d 486, 488 (R.I.1992) (custodial mother had no private right of action to terminate father's parental rights under neglect or abandonment statute)¹; *In re Welfare of Kevin L.*, 45 Wash.App. 489, 726 P.2d 479, 485 (1986) (McInturff, J., specially concurring) (conflict with child's interests provides sufficient reason to exclude both foster parents and natural parents from commencing termination proceedings for abuse & neglect). We agree with the Colorado Supreme Court which stated:

[Neglect or abandonment statute] was not designed to be used as a sword in an

¹ We note the Oklahoma legislature subsequently amended Okla.Stat. Ann. tit. 10 § 1130 (West 1992) to allow a custodial parent standing to bring a petition.

ex-spouse's arsenal of weapons against a former mate to preclude involvement of the noncustodial parent forever. A spouse's proper action to prevent his or her ex-spouse from having contact with a child is to make a motion for denial of visitation and custody ... or for a protective order.

In re John, 605 A.2d at 489.

Mother has remedies available under South Dakota law. The court which granted the divorce and determined custody of A.E.M. may deny Father any visitation rights. Justice will be better served if the appropriate relief is granted by the court of continuing jurisdiction. This will also prevent "forum shopping" by disgruntled litigants. Additionally, Mother may report abuse of A.E.M. to the South Dakota Department of Social Services (D.S.S.).²

The trial court erred in denying the motion to dismiss as Father was entitled to a judgment of dismissal as a matter of law. We reverse.

MILLER, C.J., and HENDERSON, SABERS and AMUNDSON, JJ., concur.

NOTE

During the pendency of an "abuse and neglect" proceeding, the trial court permitted the mother and father to file a voluntary termination petition under SDCL 25-5A. Through the voluntary proceeding, the child was placed with her aunt and uncle (father's sister and her husband). This took place on the date that the final dispositional hearing was scheduled in the "abuse and neglect" proceeding which had been instituted by DSS. The result of the trial court's action was to evade control over the final placement of the child by DSS. The South Dakota Supreme Court reversed, in an unanimous *per curiam* opinion. *In the interest of H.O.*, 2001 SD 114, 633 N.W.2d 603. Notably, this opinion was handed down only 20 days after the case was submitted on briefs. According to the Supreme Court, the state's role, acting through DSS, is one of *parens patriae* and this role cannot be circumvented by the trial court's looking to a "voluntary termination [proceeding] exclusively while abandoning the abuse and neglect action." ¶9 & ¶10, 633 N.W.2d at 605.

² SDCL Ch. 26-8A, which governs the D.S.S.'s investigation of child abuse, has safeguards to protect a parent's fundamental constitutional right to his or her child through independent investigation, counseling, rehabilitation and the application of the least restrictive alternative to termination of parental rights. Further, the required appointment of independent counsel for the child helps insure protection of the child's best interests. These safeguards were entirely lacking in this case. The D.S.S. is the proper body to investigate and recommend appropriate action where there are allegations of child abuse.

B. Voluntary Termination of Parental Rights

The procedure for securing a Voluntary Termination of Parental Rights is set forth in SDCL Chapter 25-5A which is summarized below. The student is encouraged to browse through SDCL 25-5A.

A petition for voluntary termination may not be filed prior to five days after the birth of the child. SDCL 25-5A-4. Removal of a child from state prior to obtaining a valid consent is punishable as a crime by SDCL 22-22A-4 which is reproduced in the next sub-chapter.

The contents of the petition are prescribed by SDCL 25-5A-6 which also requires that it be verified.

A minor may validly execute the necessary consents and waivers. SDCL 25-5A-7.

A hearing is required and there are several statutes which deal with issues of notice, service of process. SDCL 25-5A-8 through 25-5A-18.

The personal appearance of at least one parent is required at the hearing. SDCL 25-5A-14. [SDCL 25-5A-14 was amended in 2005 to provide that “for good cause shown, the court may permit the parent [who is consenting to an adoption] to appear telephonically.” Previously the personal appearance of both parents was required at the hearing. This was amended a few years ago to require only the attendance of one parent at the hearing. With the 2005 amendment, “for good cause shown,” that one parent may now appear telephonically. The 2005 amendment also carries the additional proviso that “due regard shall be given to the Indian Child Welfare Act.”]

Counseling for a birthparent is mandated by SDCL 25-5A-22 through 25-5A-24. Failure to comply with the counseling requirements may not, however, be asserted as a basis for setting aside a termination or adoption later. SDCL 25-5A-25.

NOTE

Abuse and neglect proceeding was brought by DSS for three children. Mother admitted children were abused and neglected in the adjudicatory hearing. Following counseling with a social worker, Mother made the decision to voluntarily terminate her rights. The counseling took place on November 7, 2001. “As required by SDCL 25-5A-23, that counseling included: verifying that the decision was not the result of undue influence or the influence of any substance; discussing alternatives and resources available; informing Mother of the permanency of the decision; addressing the emotional issues involved; relaying to Mother her right to legal counsel; and assessing Mother’s ability to understand the consequences of this decision. In addition, the social worker prepared a written report as required by SDCL 25-5A-24.” Two days later, on November 9, the trial court entered an order approving the voluntary termination of mother’s rights. Mother appealed, asserting the order was void because the counseling did not take place “at least fifteen days before termination” as required by SDCL 25-5A-22. *In the Interest of B.C., C.C., and J.C.*, 2002 SD 143, 654 N.W.2d 777. The South Dakota Supreme Court affirmed the termination order, applying the language of SDCL 25-5A-25 which states, “Failure to comply with §§ 25-5A-22 to 25-5A-24, inclusive, may not be considered a basis for setting aside a voluntary termination of parental rights or an adoption.” This opinion recognizes the importance of counseling and instructed trial courts to “liberally grant a continuance so that a birthparent may be provided the time to reflect on a decision of this magnitude. Clearly, the ability of a birthparent to be provided with the time to contemplate such a decision following counseling designed to provoke reflection and thought is contained in the legislative framework... both the trial courts and DSS should be cognizant of this fifteen-day provision and make every opportunity to ensure compliance therewith.” ¶ 12. The Court also noted that no request for a continuance was made in this case.

C. Adoption

SELECTED RELEVANT SOUTH DAKOTA STATUTES

CHAPTER 22-22A: OFFENSES AGAINST THE FAMILY

22-22A-4. Removal of minor from state for adoption prohibited until parents' consent or termination of rights--Violation as felony. No person other than a legal or putative parent may remove or aid in the removal of any minor from the State of South Dakota for the purpose of adoption until a valid consent to adopt or termination of parental rights has been obtained from all legal and putative parents. A violation of this section is a Class 6 felony.

Source: SL 1977, ch 205, § 4; SL 1992, ch 158, § 5; SDCL, § 25-5A-7.1; SL 2006, ch 130, § 9.

CHAPTER 25-6: ADOPTION OF CHILDREN

25-6-1 Adoption of illegitimate child by acknowledgment and conduct of father -- Legitimation from birth. The father of an illegitimate child by publicly acknowledging it as his own, receiving it as such into his family, with the consent of his wife if he is married and otherwise treating it as if it were a legitimate child, thereby adopts it as such, and such child is thereupon deemed for all purposes legitimate from the time of its birth. The other provisions of law relating to adoption shall not apply in such cases.

25-6-1.1 Father of illegitimate child not entitled to notice unless acknowledged. Notwithstanding any other provision of law or court rule the father of an illegitimate child shall, as a requirement of due process, have no rights to the service of process in adoption, dependency, delinquency, or termination of parental rights proceedings unless he is known and identified by the mother or unless he, prior to the entry of a final order, in any of the three proceedings, shall have acknowledged the child as his own by affirmatively asserting paternity, within sixty days after the birth of the child,

- (1) As outlined in § 25-6-1, or
- (2) By causing his name to be affixed to the birth certificate as provided by § 34-25-13.2, or
- (3) Otherwise by commencing a judicial proceeding claiming a parental right.

25-6-2 Adoption of minor child permitted -- Minimum difference in ages — Best interests of child. Any minor child may be adopted by any adult person. However, the person adopting the child must be at least ten years older than the person adopted.

In an adoption proceeding or in any proceeding that challenges an order of adoption or order terminating parental rights, the court shall give due consideration to the interests of the parties to the proceedings, but shall give paramount consideration to the best interests of the child.

25-6-3 Consent of spouse required for adoption. A married man not lawfully separated from his wife cannot adopt a child without the consent of his wife, nor can a married woman, not thus separated from her husband, without his consent, provided the husband or wife not consenting is capable of giving such consent.

25-6-4. Consent of child's parents required for adoption--Court waiver of consent. No child may be adopted without the consent of the child's parents. However, if it is in the best interest of the child, the court may waive consent from a parent or putative father who:

- (1) Has been convicted of any crime punishable by imprisonment in the penitentiary for a period that, in the opinion of the court, will deprive the child of the parent's companionship for a critical period of time;
- (2) Has, by clear and convincing evidence, abandoned the child for six months or more immediately prior to the filing of the petition;
- (3) Has substantially and continuously or repeatedly neglected the child and refused to give the child necessary parental care and protection;
- (4) Being financially able, has willfully neglected to provide the child with the necessary subsistence, education, or other care necessary for the child's health, morals, or welfare or has neglected to pay for such subsistence, education, or other care if legal custody of the child is lodged with others and such payment ordered by the court;
- (5) Is unfit by reason of habitual abuse of intoxicating liquor or narcotic drugs;
- (6) Has been judicially deprived of the custody of the child, if the adjudication is final on appeal to the court of last resort or the time for an appeal has expired;
- (6A) Has caused the child to be conceived as a result of rape or incest; or
- (7) Does not appear personally or by counsel at the hearing to terminate parental rights after notice pursuant to §§ 25-5A-11 and 25-5A-12 which was received at least thirty days prior to the hearing.

Source: SDC 1939, § 14.0403; SL 1973, ch 163, § 4; SL 1984, ch 188; SL 1996, ch 164, § 2; SL 1997, ch 152, § 1; SL 2006, ch 139, § 1.

25-6-4.1 Compelling, coercing, or forcing adoption as felony. It shall be unlawful to compel, coerce, or force by any means, any person to release, sell, place, relinquish or give up for adoption any minor child. A violation of this section shall be a Class 6 felony.

25-6-4.2 Offering, giving, or receiving unauthorized consideration for adoption as felony. Any person who offers, gives or receives any money or other consideration or thing of value in connection with the placing of any child for adoption, or relating to the consent to adoption, or with the petition for adoption except such charges as are approved by the court and fees charged by agencies licensed pursuant to chapter 26-6, is guilty of a Class 6 felony.

25-6-5 Consent of child over twelve required. The consent of the child, if over the age of twelve years, is necessary to its adoption.

25-6-9. Period of residence in home required before petition granted. No petition for adoption shall be granted until the child shall have lived within the proposed foster home for a period of at least six months.

Source: SDC 1939, § 14.0406; SL 1945, ch 47, § 1; SL 1947, ch 54.

25-6-17 Rights and duties of natural parents terminated on adoption — Exceptions. The natural parents of an adopted child are from the time of the adoption, relieved of all parental duties towards, and of all responsibility for the child so adopted, and have no right over it. Adoption of a child shall be final and unconditional except as otherwise provided by § 25-6-21. The natural parents of an adopted child shall retain no rights or privileges to have visitation or other post-adoption contact with the child, except in cases where a natural parent consents to the adoption of a child by the child's stepfather or stepmother who is the present spouse of the natural parent or in cases of voluntary termination where there is a written pre-adoption agreement between the natural parent or parents and the adoptive parents. The South Dakota Supreme Court decision, *People in Interest of S.A.H.*, 537 N.W.2d 1 (S.D. 1995), is abrogated by the South Dakota Legislature in so far as the case gave circuit courts the option to order an open adoption or post-termination visitation. Post-adoption visitation is an extraordinary remedy and may be exercised only by the adoptive parents when in the child's best interests. This section does not apply to pre-adoption agreements entered into before July 1, 1997.

25-6-18 Petition for adoption of adult -- Consent required -- Residence with adoptive parent during minority required. An adult may adopt another adult by filing a petition requesting such adoption with the judge of the circuit court, together with an agreement in writing that the person being adopted shall be treated in all respects as a natural child of the petitioner. Written consent of the adopted person shall also be required. It shall be a further prerequisite that the person being adopted shall have lived in the home of the adoptive parent during his minority for a period of at least six months, and this fact shall appear in the petition.

25-6-21. Care of past irregularities in proceedings. Except in any case involving fraud, any proceeding for the adoption of a child commenced under chapter 25-6 shall be in all things legalized, cured, and validated two years after the proceeding is finalized. If any person has a claim or right arising from any adoption proceeding, that person must initiate any action to enforce such right or claim within two years of the date when the proceeding is finalized.

25-6-22 Medical information on adoptee's birth parent available to adoptee or adoptee's legal guardian -- Written request -- Proof. An adoptee or the adoptee's legal guardian having knowledge of a hospital or clinic with medical information of an adoptee's birth parent may provide a written request to the hospital or clinic for that information. The adoptee shall send a copy of the written request to the Department of Social Services in Pierre. The adoptee or the adoptee's legal guardian shall provide to the hospital or clinic proof that the person whose medical information is being sought is a birth parent of the adoptee seeking the information. When a hospital or clinic receives a written request and the proof as required by this section, it shall release the medical information to the Department of Social Services. Upon receipt of the medical information from the hospital or clinic, the department shall forward the information to the adoptee or the adoptee's legal guardian. A hospital's or clinic's compliance with this section may not be construed as a violation of § 19-13-7 or 34-12-15.

NOTE – SDCL 25-6-4, as it existed prior to 1997 is reproduced here:

25-6-4. Adoption - Consent of child's parents required for adoption - Judicial waiver of consent.

No child may be adopted without the consent of his parents. However, the judge may waive consent from a parent who:

- (1) Has been adjudged guilty of adultery or who has been convicted of any crime punishable by imprisonment in the penitentiary for a period that, in the opinion of the judge, will deprive the child of the parent's companionship for a critical period of time;
- (2) Has abandoned his or her child for a period of one year;
- (3) Has been adjudged by a court of competent jurisdiction to be an habitual drunkard or mentally incompetent; or
- (4) Has been judicially deprived of the custody of the child, if the adjudication is final on appeal to the court of last resort or the time for an appeal has expired.

IN THE MATTER BELLOWS

Supreme Court of South Dakota, 1985.
366 N.W.2d 848.

WOLLMAN, Justice.

This is an appeal by Donna Sue Bellows from a judgment that declared that she had abandoned her two children and that therefore her consent was not required as a condition precedent to the adoption of the children by Sandra Lee Bellows. We reverse and remand with directions to dismiss the petition for adoption.

Donna Sue Bellows (Donna) and James W. Bellows (James) were married on April 19, 1975. Two children were born to the marriage, Candi Sue on December 24, 1975, and James William, Jr. on August 24, 1977.

Donna and Jim lived in Brodhead, Wisconsin, the area in which they grew up, from the time of their marriage until the spring of 1981, when they moved to Sioux City, Iowa, so that James could be closer to his parents, who were then living there. James' parents moved into the residence occupied by Donna and James and slept in the upstairs bedroom, while Donna and James and the children slept downstairs on the floor. This living arrangement continued until August of 1981, when Donna decided to leave the family home out of her concern for the best interests of the children. By her own admission, she and James frequently fought up to the time she left the marital home. In response to a question regarding what they fought about, Donna testified, "The kids. His parents. Family."

On or about August 1, 1981, Donna left Sioux City and went to Janesville, Wisconsin, where her mother and her two sisters were living. James acknowledged that Donna's primary concern at the time she left the marital home was the welfare of the two children. He testified that Donna initially wanted joint custody of the children so that they would visit her during the summers but that he had talked her out of that.

James later commenced divorce proceedings against Donna, which culminated in the entry of a decree on May 25, 1982, granting him a divorce. Among other things, the decree provided that James

should have the care, custody, and control of the two children, "subject to reasonable visitation privileges by the Defendant, *only upon approval of the Court.*" The italicized portion was added to the typewritten portion of the decree by the trial judge in his own handwriting, as witnessed by his signature and date.

In November of 1981, Donna hitch-hiked to Houston, Texas, where she remained until August of 1982, when she returned to Wisconsin.

After Donna left the marital home, James and the children moved from Sioux City to a trailer court near Jefferson, South Dakota. He then moved to a rented house in Elk Point, South Dakota. Neither the Elk Point residence nor the residence at the trailer court had a telephone. James then moved to a trailer court in North Sioux City, South Dakota. He installed a phone in that residence but requested that the number be unlisted.

Petitioner, Sandra Lee Bellows, married James on May 29, 1982.

Donna sent birthday cards to James, Jr. on his birthday in August of 1981 and 1982. She wrote to James and the children from Texas in August of 1982. Among other things, this letter informed James that Donna wanted to make sure that the children always knew who their real mother was. In this letter she also asked James to send her a copy of the divorce decree. He refused to do so, but advised Donna by letter that she was not entitled to visitation of the children until she obtained a court order permitting her to do so. He also advised her that the children were doing well in school and that they had many friends and a good home. He also advised Donna to ask her attorney for a copy of the divorce decree. Donna obtained a copy of the decree in late September of 1982 after writing to the Union County Clerk of Courts.

Donna wrote to James in October of 1982 asking about the children. The letter contained a message to Candi to the effect that Donna was sure that Candi was doing well in school and that she should be a good girl. The letter also contained a message to James, Jr. asking whether he was being good for his father and telling him to listen to his father.

According to Donna's testimony, she attempted to call James after he had moved to Jefferson, South Dakota, but was advised that the telephone company had no listing for him. She tried on several more occasions to reach James by phone and was advised that his number was unlisted.

During 1982 and 1983, Donna occasionally saw James' mother, who was then living in the same area in Wisconsin, while shopping or at the doctor's office. Donna asked Mrs. Bellows if she had heard from James and inquired about the children. Donna also asked James' niece in August of 1982 how James, Jr. and Candi were. Donna kept in her possession a photo album of the children and a book in which she from time to time wrote poems to them.

At the time of the final hearing on the petition, March 27, 1984, Donna had been unemployed during the preceding year and was receiving aid for families with dependent children.

Donna had no contact with the children by way of letter or telephone call from October of 1982 until the petition for adoption was served upon her in December of 1983.

At the time this action was tried, SDCL 25-6-4 provided in pertinent part:

A child cannot be adopted without the consent of the parents, if living, provided that in the following cases consent shall not be necessary:

....

(2) From any parent who has abandoned his or her child for the period of one year;

Whether a parent has abandoned a child within the meaning of SDCL 25- 6-4 is a question of fact to be decided by the trial court, a decision that will not be overturned unless the finding is clearly erroneous. *Matter of Adoption of Everett*, 286 N.W.2d 810 (S.D.1979); *In re Adoption of Christofferson*, 89 S.D. 287, 232 N.W.2d 832 (1975).

The standard for determining whether abandonment has occurred was established by this court in *Mastrovich v. Mavric*, 66 S.D. 577, 579, 287 N.W. 97, 97-98 (1939):

To constitute abandonment under our code it must appear by clear and convincing evidence that there has been by the parents a giving-up or total desertion of the minor child. In other words, there must be shown an absolute relinquishment of the custody and control of the minor and thus the laying aside by the parents of all care for it.

See also Adoption of Ernst, 318 N.W.2d 353 (S.D.1982); *Matter of Adoption of Everett, supra*; *In re Adoption of Christofferson, supra*.

In Christofferson, supra, we held that in order to support a finding of abandonment the evidence must establish an intent on the part of the parent to abandon and to relinquish parental obligations with respect to a child. We also held that this intent to abandon may be inferred from conduct. *In Everett, supra*, we held that in determining whether intent to abandon is established by the evidence the trial court may consider the subjective statements of the parents in addition to objective factors.

In Brown v. Warner, 78 S.D. 647, 653, 107 N.W.2d 1, 4 (1961), this court defined "clear and convincing evidence" as follows:

The measure of proof required by this designation falls somewhere between the rule in ordinary civil cases and the requirement of our criminal procedure, that is, it must be more than a mere preponderance but not beyond a reasonable doubt. It is that measure or degree of proof which will produce in the mind of the trier of facts a firm belief or conviction as to the allegation sought to be established. Evidence need not be voluminous or undisputed to accomplish this.

In Cromwell v. Hosbrook, 81 S.D. 324, 329, 134 N.W.2d 777, 780 (1965), we further defined "clear and convincing evidence" as follows:

Its technical meaning has been expressed as "the witnesses must be found to be credible, that the facts to which they have testified are distinctly remembered and the details thereof narrated exactly and in due order, and that their testimony is so clear, direct and weighty and convincing as to enable either a judge or jury to come to a clear conviction, without hesitancy, of the truth of the precise facts in issue."

We conclude that the evidence in the case before us does not support the trial court's determination that there was clear and convincing evidence that Donna had absolutely relinquished the custody and control of her two children and had laid aside all care for them. True, there were no direct contacts between Donna and the children from October of 1982 until December of 1983, but when viewed in the totality of the circumstances we do not consider this fourteen-month hiatus as sufficient evidence of intent to abandon. Donna left the marital home under conditions of extreme stress. By James' own admission, she left the home in order to avoid further conflict with James in a situation which she had apparently found to be intolerable. Accordingly, her departure was prompted by the best interests of the children and not out of any intent to abandon them. Again by James' own admissions, Donna desired to have joint custody of the children, only to be dissuaded from that desire by James himself.

Although James apparently told Donna about the visitation provisions in the divorce decree, it was not until late September of 1982 that Donna received a copy of the decree itself. Although it may seem a simple enough matter to us lawyers and judges for Donna to have made inquiry of the court regarding her right to visit the children, we must remember that we are dealing here with, by her own admission, a young woman who has had emotional problems and a total lack of financial resources. The record reveals that she had to borrow money to buy a bus ticket to come to the continued hearing on the adoption petition, having been unable to secure funds to attend the hearing on the original date set.

In mentioning Donna's emotional and financial problems, it must be kept in mind that we are not talking about her fitness to have custody of the two children. Rather, the issue is whether her legal rights vis-a-vis her children shall be forever terminated. These rights are in the nature of a fundamental liberty interest. *See, e.g., Santosky v. Kramer*, 455 U.S. 745, 102 S.Ct. 1388, 71 L.Ed.2d 599 (1982); *People in Interest of S.L.H.*, 342 N.W.2d 672 (S.D.1983). Granted that this fundamental right is neither absolute nor unconditional, *People in Interest of S.L.H., supra*; *In re N.J.W.*, 273 N.W.2d 134 (S.D.1978); *In re K.D.E.*, 87 S.D. 501, 210 N.W.2d 907 (1973), more is required to support a finding of abandonment than the record in the case before us provides.

The judgment is reversed and the case is remanded to the circuit court with directions to dismiss the petition for adoption.

FOSHEIM, C.J., and MORGAN and HENDERSON, JJ., concur.

WUEST, Circuit Judge, Acting as Supreme Court Justice, dissents.

WUEST, Acting Justice (dissenting).

I dissent.

The trial court found Donna abandoned the children for a period of one year. This finding is not clearly erroneous, although abandonment must appear by clear and convincing evidence. Whether Donna intended to abandon these children was a factual matter for the trial court to decide.

IN THE MATTER SICHMELLER

Supreme Court of South Dakota, 1985.
378 N.W.2d 872.

WUEST, Acting Justice.

This is an appeal from an order declaring Lance Ronald Sichmeller adopted. We affirm.

Lance Ronald Sichmeller was born on October 8, 1974. His parents, Jill Gross Sichmeller and Ronald Sichmeller, were divorced on August 25, 1975. From August 1975 until August 1977, Ronald visited Lance six times and made sporadic child support payments. After Jill married farmer Frank Mills in 1977, however, Ronald ceased all contact with Lance. That year, Ronald developed multiple sclerosis.

On June 24, 1981, Ronald petitioned the court to terminate his parental rights so that Frank Mills could conduct adoption proceedings. In 1983, with the intention of allowing the adoption, he arranged for Lance to receive Social Security benefits and a military ID card allowing medical benefits and college grants. He also gave Jill \$1,000 on December 28, 1983.

Frank petitioned for adoption on March 6, 1984. Ronald went to visit Frank and Jill to work out the details of the adoption. Jill was then twenty-nine years old, a diabetic, and blind in one eye and partially blind in the other. She had just been released from the hospital after suffering a heart attack. After observing Jill's condition, Ronald decided to oppose the adoption.

Ronald admitted that he had not supported, written to, seen, or talked to Lance from 1977 to 1983, in part, because of his deteriorating health. He did testify that he wanted to see Lance during Christmas 1983, but that Jill and Frank would not allow it. He saw Lance at the adoption hearing but did not talk to him. Ronald was concerned and cared for Lance, but because of his lack of contact with Lance, Ronald "wouldn't go so far as to say I love him."

Ronald was impressed by the way Frank was raising Lance and recognized that Lance was integrated into Frank's extended family. If Jill were to die, he did not intend to seek custody of Lance except in the unlikely event that Frank became an alcoholic. Ronald simply wanted to be informed of Lance's progress and was concerned that the adoption would mean the loss to Lance of the military benefits.

The trial court granted Frank Mills' petition for adoption. The court concluded that Ronald had consented to the adoption, "but even in the absence of that consent ... the natural father has abandoned said child ... which eliminates the need for consent on the part of the natural father."

Ronald raises three issues on appeal. First, he argues that the trial court erred by finding that he consented to the adoption. Ronald admits that he did consent to the adoption in 1981. By resisting the petition for adoption, he argues that he withdrew his consent. In light of the trial court's conclusion that there was abandonment "even in the absence of that consent," we need not discuss this contention.

Ronald's second contention is that he did not abandon his child.

Consent to adoption is not necessary if a parent has abandoned his child for one year. SDCL 25-6-4.³ Whether a parent has abandoned a child within the meaning of SDCL 25-6-4 is a question of fact to be decided by the trial court; unless the finding is clearly erroneous, it will not be overturned. *Matter of Adoption of Bellows*, 366 N.W.2d 848 (S.D.1985).

In Mastrovich v. Mavric, 66 S.D. 577, 579, 287 N.W. 97, 97-98 (1939), this court established the standard for determining abandonment:

To constitute abandonment under our code it must appear by clear and convincing evidence that there has been by the parents a giving-up or total desertion of the minor child. In other words, there must be shown an absolute relinquishment of the custody and control of the minor and thus the laying aside by the parents of all care for it.

There must be a showing of an intent on the part of the parent to abandon and to relinquish parental obligations; this intent may be inferred from conduct. *In re Adoption of Christofferson*, 89 S.D. 287, 232 N.W.2d 832 (1975). In establishing abandonment, factors to be considered include a parent's presence, love, care and affection, and monetary support. *Christofferson, supra*. The trial court may consider the subjective statements of the parents in addition to objective factors. *Matter of Adoption of Everett*, 286 N.W.2d 810 (S.D.1979). An involuntary, temporary inability to assume a parental role is not abandonment. *Matter of Guardianship of D.L.L. and C.L.L.*, 291 N.W.2d 278 (S.D.1980).

We conclude that the evidence in this case supports the trial court's determination that there was clear and convincing evidence that Ronald totally relinquished the custody and control of Lance. Since 1977, Ronald failed to visit the child, send any card or present, make any call, or pay any child support. He admitted that Lance would not recognize him. In late 1983, Ronald did give Jill \$1,000 for Lance and obtained a military identification card for Lance. He did so, however, with an intention of allowing the adoption to proceed, not because of a desire to maintain a parent-child relationship. It was only after he saw Jill's physical condition that he decided to oppose the adoption. Even then, he admitted that he did not love the child and did not have the ability to care for him. Clearly the evidence in this case supports a finding of abandonment.

Finally, Ronald argues that adoption is not in Lance's best interest, *see Matter of Adoption of Zimmer*, 299 N.W.2d 574 (S.D.1980), since he will never attempt to gain physical custody of Lance and adoption may mean the loss to Lance of military benefits. Balanced against this, however, is the fact that Frank Mills has raised Lance since he was thirty-two months old and considers him his son. Lance does not know Ronald and is fully incorporated into Frank Mills' extended family. In addition, neither Ronald nor Jill is physically capable of caring for Lance alone. While Lance may lose military benefits, Frank Mills has the financial capability of caring for him. We will not disturb the trial court's determination on this issue. SDCL 25-6-13.

³ This case was tried on April 16, 1984. At that time SDCL 25-6-4 provided, in part:

A child cannot be adopted without the consent of the parents, if living, provided that in the following cases consent shall not be necessary: * * *

(2) From any parent who has abandoned his or her child for the period of one year; ...
SDCL 25-6-4 was later amended by 1984 S.D.Sess.L. ch. 188.

The order appealed from is affirmed.

FOSHEIM, C.J., and MORGAN, J., concur.

HENDERSON, J., concurs specially.

NOTE

The very short limitations period of 60 days found in SDCL 25-6-1.1 for fathers of illegitimate children was upheld in *Matter of Baby Boy K*, 546 N.W.2d 86 (S.D. 1996). Even though adoption proceedings were initiated before the expiration of 60 days from the birth of the child, the father was found to have no assertable rights because he waited longer than 60 days from the birth of the child to acknowledge the child as his own. The court held SDCL 25-6-1.1 to be constitutional. The court refused to recognize any sort of exception for situations where the mother, through misrepresentations, deceives a father and keeps the fact of pregnancy from him. The court stated, “When a putative father is ignorant of his parenthood due to his own fleeting relationship with the mother and her unwillingness to later notify him of her pregnancy, the child should not be made to suffer.” *Id.* at 101.

ADOPTIONS IN SOUTH DAKOTA

The following statistics were reported on page 1A of the December 17, 2004 *Argus Leader* Newspaper in connection with an article entitled, *Open Adoptions Gain Popularity* and also sub-titled *Bonds between parents a benefit, advocates say*:

“There were 282 adoptions in South Dakota in 2003. The number of open adoptions in South Dakota is not known.

- 98 stepparent adoptions
- 77 Department of Social Services adoptions
- 78 private adoptions
- 29 independent adoptions

Source: Department of Social Services”

NOTE: The topic of “Open Adoptions” is discussed in the next sub-chapter, sub-chapter “D. ‘Abuse and Neglect Proceedings.’”

NOTES

1. Step parent adoption denied because of failure of the evidence to show abandonment by natural father. The case of *Matter of T.E.L.S.*, 2007 SD 50, 732 N.W.2d 740 involves an attempt by mother and her husband to terminate the rights of the child's father as part of an adoption based on SDCL 25-6-4(2) which is the "abandonment for 6 months" provision. The trial court ruled for the father finding that although he had "lost track" of mother and child for 2 and ½ years, the evidence was not sufficient to show abandonment by clear and convincing evidence. Father had been paying child support and had been attempting to stay in contact, attempting to send gifts and attempting to arrange for visitation. The South Dakota Supreme Court affirmed, restating the oft-repeated language that, "to constitute abandonment under our code it must appear by clear and convincing evidence that there has been by the parents a giving-up or total desertion of the minor child." This is a unanimous decision with the opinion authored by Chief Justice Gilbertson.

2. Stepparent adoption affirmed on the basis of natural mother's abandonment of child for 6 months or more. *In the Matter of the Adoption of C.D.B.*, 2005 SD 115, 706 N.W.2d 809 upholds the stepparent adoption of a child where the natural mother was found to have abandoned the child for 6 months or more, thereby waiving the necessity of her "consent" to the adoption under SDCL 25-6-4(2). The child was born in 1998 while mother and father were living together. (They were never married.) They separated in 2000 with the mother having custody of the child. Father was awarded custody in November 2002 and mother awarded visitation rights only when "supervised." Mother was also ordered to pay child support of \$130 per month. Mother never paid any child support and only visited the child four times since November 2002. Mother's last contact with the child was in January, 2003. Father married stepmother on October 13, 2004 and also filed a petition for adoption on that same date. Mother vigorously contested the adoption, putting forward reasons for her lack of contact with the child. The trial court granted the adoption and the South Dakota Supreme Court affirmed, finding compliance with the common law criteria for abandonment set forth in the *Mastrovich* case and upholding the trial court's finding that the adoption was in the best interests of the child. In ¶ 16 of the opinion, the Court stated, "We understand that the seriousness and finality of this decision implicates the mother's fundamental interests as a parent. *Adoption of Bellows*, 366 N.W.2d at 851 (citations omitted). However, the mother's 'right is neither absolute nor unconditional.' *Id.* Decisions to terminate parental rights and allow an adoption are not made to punish wayward parents, but to protect children."

3. South Dakota trial court entertaining an adoption proceeding over children residing in South Dakota must defer to Colorado court which previously determined custody over children because "termination of parental rights," which is necessarily a part of the adoption proceeding, is considered a custody proceeding under the UCCJA. *In the Matter of the Adoption of H.L.C. and B.A.C.*, 2005 SD 110, 706 N.W.2d 90 involves a situation where the maternal grandparents were awarded custody of their two grandchildren in a Colorado proceeding. The other contestants – mother, father, and paternal grandparents all reside in Colorado. Maternal grandparents brought the grandchildren back to their residence in Sturgis, South Dakota. Maternal grandparents subsequently sought to terminate the father's rights and adopt the children in South Dakota state court. The Colorado state court asserted that it had exclusive jurisdiction because both parents were still living in Colorado, but also acknowledged that "... under Colorado law, the court was precluded from exercising jurisdiction over an adoption proceeding unless the children resided in Colorado. Because the children were living in South Dakota, the [Colorado] district court concluded that it could not prevent the South Dakota circuit court from exercising jurisdiction over the issue of adoption." ¶ 22.

The South Dakota trial court terminated father's rights and granted the adoption. The South Dakota Supreme Court reversed and vacated, holding that the South Dakota trial court was required under the UCCJA (which was applicable at the time) and under the PKPA to have refused jurisdiction pursuant to SDCL 26-5A-6. The South Dakota Supreme Court stated that "In the case of *In re M.C.S.*, we held that termination of parental rights is a custody proceeding under the UCCJA" and "Thus, even though the circuit court had jurisdiction to order the adoption, it should have refused to exercise its jurisdiction ... The termination of the father's parental rights, which, was a prerequisite to ordering the adoption, was clearly a custody proceeding" and "the Colorado court had continuing jurisdiction over the matter." ¶ 24.

This opinion notes that South Dakota replaced the UCCJA with the UCCJEA, effective July 1, 2005. It is worth observing that the definition of "child custody proceeding" under the UCCJEA specifically references "termination of parental rights." SDCL 26-5B-102(4). Under the UCCJA's definition, there was no specific reference to "termination of parental rights." SDCL 26-5A-2(3) (now repealed).

4. Legislative update (2007): Recognition of Foreign Adoptions Streamlined. The enactment of Senate Bill 180 into law in 2007 streamlines the process for recognition of foreign adoptions and for the issuance of birth certificates for adoptions finalized in another nation. This bill amends SDCL 34-25-16.1 so as to eliminate the "double adoption" process which had previously been required in South Dakota when a adoption obtained in a foreign nation is brought into South Dakota. The new provision permits a circuit court to enter an ex parte order directing the issuance of a new birth certificate for an adoption finalized in another nation. A new provision, SDCL 25-6-25, has been added so as to provide that, "Any order of adoption entered in compliance with the laws of another jurisdiction or nation shall have the same effect as an order for adoption entered in this state."

5. Legislative update (2007): DSS Involvement in Receiving and Approving Home Studies eliminated for Private and Independent Adoptions. The 2007 legislature also streamlined the process for private and independent adoptions through the enactment of Senate Bill 215 which eliminates home study filing requirements with DSS and DSS approval for adoptions where the child is not in the custody of DSS. This bill amends SDCL 25-6-9.1 and SDCL 25-6-11. This legislation eliminates the requirement for filing a home study report with DSS when the child is not in the custody of DSS. DSS supported the passage of this bill. Under the previous statute, every single adoption in SD had to be processed through DSS Division for Child Protection Services, regardless of whether or not DSS was involved in the situation. In such cases, DSS knew nothing about these cases other than what was reported to them in the home study. DSS was simply provided with the adoption home study done by another qualified person. Everything that DSS was required to examine was already being examined by others involved in the adoption process. Testimony in support of this bill by DSS was that there were about 100 such cases last fiscal year. In this past fiscal year and in the past several years, there has not been a single case where DSS found that the requirements were not being met. This legislation does not affect abuse and neglect cases or other cases where DSS is involved.

D. Abuse & Neglect Proceedings (formerly “Dependency & Neglect”)

SELECTED RELEVANT FEDERAL STATUTES

42 U.S.C. § 671

TITLE 42. THE PUBLIC HEALTH AND WELFARE

CHAPTER 7--SOCIAL SECURITY

SUBCHAPTER IV--GRANTS TO STATES FOR AID AND SERVICES TO NEEDY FAMILIES WITH CHILDREN AND FOR CHILD-WELFARE SERVICES

PART E--FEDERAL PAYMENTS FOR FOSTER CARE AND ADOPTION ASSISTANCE

§ 671. State plan for foster care and adoption assistance

(a) Requisite features of State plan

In order for a State to be eligible for payments under this part, it shall have a plan approved by the Secretary which--

* * *

(15) provides that--

(A) in determining reasonable efforts to be made with respect to a child, as described in this paragraph, and in making such reasonable efforts, the child's health and safety shall be the paramount concern;

(B) except as provided in subparagraph (D), reasonable efforts shall be made to preserve and reunify families--

(i) prior to the placement of a child in foster care, to prevent or eliminate the need for removing the child from the child's home; and

(ii) to make it possible for a child to safely return to the child's home;

(C) if continuation of reasonable efforts of the type described in subparagraph (B) is determined to be inconsistent with the permanency plan for the child, reasonable efforts shall be made to place the child in a timely manner in accordance with the permanency plan (including, if appropriate, through an interstate placement), and to complete whatever steps are necessary to finalize the permanent placement of the child;

(D) reasonable efforts of the type described in subparagraph (B) shall not be required to be made with respect to a parent of a child if a court of competent jurisdiction has determined that--

(i) the parent has subjected the child to aggravated circumstances (as defined in State law, which definition may include but need not be limited to abandonment, torture, chronic abuse, and sexual abuse);

(ii) the parent has--

(I) committed murder (which would have been an offense under section 1111(a) of Title 18, if the offense had occurred in the special maritime or territorial jurisdiction of the United States) of another child of the parent;

(II) committed voluntary manslaughter (which would have been an offense under section 1112(a) of Title 18, if the offense had occurred in the special maritime or territorial jurisdiction of the United States) of another child of the parent;

(III) aided or abetted, attempted, conspired, or solicited to commit such a murder or such a voluntary manslaughter; or

(IV) committed a felony assault that results in serious bodily injury to the child or another child of the parent; or

(iii) the parental rights of the parent to a sibling have been terminated involuntarily;

(E) if reasonable efforts of the type described in subparagraph (B) are not made with respect to a child as a result of a determination made by a court of competent jurisdiction in accordance with subparagraph (D)--

(i) a permanency hearing (as described in section 675(5)(C)), which considers in-State and out-of-State permanent placement options for the child, shall be held for the child within 30 days after the determination; and

(ii) reasonable efforts shall be made to place the child in a timely manner in accordance with the permanency plan, and to complete whatever steps are necessary to finalize the permanent placement of the child; and

(F) reasonable efforts to place a child for adoption or with a legal guardian, including identifying appropriate in-State and out-of-State placements [FN1] may be made concurrently with reasonable efforts of the type described in subparagraph (B);

* * *

42 U.S.C.A. § 674

§ 674. Payments to States

(a) Amounts

For each quarter beginning after September 30, 1980, each State which has a plan approved under this part shall be entitled to a payment equal to the sum of –

* * *

(d) Reduction for violation of plan requirement

* * *

(4) This subsection shall not be construed to affect the application of the Indian Child Welfare Act of 1978 [25 U.S.C.A. § 1901 et seq.].

* * *

SELECTED RELEVANT SOUTH DAKOTA STATUTES

CHAPTER 26-7A: JUVENILE COURT

26-7A-1. Definition of terms. Terms used in this chapter and in chapters 26-8A, 26-8B, and 26-8C mean:

(1) "Abused or neglected child," a child as defined in § 26-8A-2;

(2) "Adjudicatory hearing," a hearing to determine whether the allegations of a petition alleging that a child is abused or neglected are supported by clear and convincing evidence or whether the allegations of a petition alleging a child to be in need of supervision or a delinquent are supported by evidence beyond a reasonable doubt;

* * *

(17) "Dispositional hearing," a hearing after adjudication at which the court makes an interim or final decision in the case;

* * *

Senate Bill 55, which was passed by the 2005 South Dakota Legislature and signed into law by Governor Rounds on 2/15/05, amended SDCL 26-7A-19 and also added two new provisions, SDCL 26-7A-19.1 and 26-8A-29.1. The new provisions are as follows:

26-7A-19. Options of court following temporary custody hearing for abused or neglected child. If the child is an apparent, alleged, or adjudicated abused or neglected child, after the temporary custody hearing the court may:

- (1) Order the release of the child from temporary custody, either with or without restriction or condition or upon written promise of the child's parents, guardian, or custodian regarding the care and protection of the child; or
- (2) Continue the temporary custody of the child under the terms and conditions for duration and placement that the court requires, including placement of temporary custody of the child with the Department of Social Services, in foster care or shelter. The court and the Department of Social Services shall give placement preference to a relative or custodian who is available and who has been determined by the department to be qualified, provided that placement with the relative or custodian is in the best interest of the child. If temporary custody of the child is continued by the court, the court may provide for visitation of the child by the child's parents, guardian, custodian, or family members in keeping with the best interests of the child. If the child is in temporary custody of the Department of Social Services and has not been adjudicated as an abused or neglected child, the court shall review the child's temporary custody placement at least once every sixty days.

As used in this section, the term, relative, means an adult who is related to the child by blood, adoption, or marriage, and who is the child's grandparent, aunt, uncle, sibling, brother-in-law, sister-in-law, niece, nephew, great grandparent, great uncle, great aunt, first cousin, second cousin, stepparent, or stepsibling. As used in this section, the term, custodian, means an adult who is the biological parent, adoptive parent, or guardian of the child's sibling or half-sibling.

Source: SL 1991, ch 217, § 22A; SL 2005, ch 140, § 1.

26-7A-19.1. Preference for placement of abused or neglected child with relatives after hearing. Subsequent to a temporary custody hearing, if a placement is made of an apparent, alleged, or adjudicated abused or neglected child, placement preference shall be given to a relative entitled to placement under § 26-7A-19.

Source: SL 2005, ch 140, § 2.

26-7A-19.2. Action by division when relative desires to take temporary or permanent placement of abused or neglected child. If a family service specialist employed by the Division of Child Protection Services within the department is contacted by a relative about the relative's desire to take temporary or permanent placement of an alleged or adjudicated abused or neglected child who has been removed from the child's parent, guardian, or custodian, the division shall document the contact in the child's file. The division shall send information to the relative within five business days informing the relative of the steps required in order for the relative to be considered for placement. The information shall be sent by first class mail to the last known address of the relative. Nothing in this section prohibits the division from contacting any other person or agency regarding placement of the child.

Source: SL 2008, ch 136, § 1.

26-7A-56. Rules of procedure and evidence apply to adjudicatory hearings--Rules for other hearings prescribed by court. Except as otherwise provided in this chapter and related chapters 26-8A, 26-8B, and 26-8C, the rules of civil procedure and the rules of evidence apply to adjudicatory hearings. All other hearings shall be conducted under rules prescribed by the court. The rules may be designed by the court to inform the court fully of the exact status of the child and to ascertain the history, environment, and the past and present physical, mental, and moral condition of the child and the child's parents, guardian, and custodian, as may be necessary or appropriate to enable the court to determine suitable disposition of the child according to the least restrictive alternative available in keeping with the child's best interests and with due regard for the rights and interests of the parents, guardian, custodian, the public, and the state.

26-8A-29.1. Request for hearing by relative denied adoptive placement--Time limits--Intervention. Except under circumstances where placement was with another relative of the child, any relative who has been denied adoptive placement by the Department of Social Services may request a hearing to determine if the placement was an abuse of discretion. The request shall be filed with the circuit court having jurisdiction pursuant to § 26-8A-29 and shall be filed within thirty days of written notification from the department by regular mail to the relative's last known address. The hearing shall be held within thirty days of the filing of the request for hearing and may be continued for not more than thirty days upon good cause shown. The relative shall be granted limited intervention only for the purpose of the placement review hearing.

No intervention may be allowed in a proceeding involving an apparent, alleged, or adjudicated abused or neglected child, including an adoption or guardianship proceeding for a child placed in the custody of the Department of Social Services pursuant to § 26-8A-27, except as provided by this chapter and under the Indian Child Welfare Act, (25 U.S.C. §§ 1901 to 1963, inclusive), as amended to January 1, 2005.

Source: SL 2005, ch 140, § 3.

CHAPTER 26-8A: PROTECTION OF CHILDREN FROM ABUSE OR NEGLECT

26-8A-1 Purpose of chapter. It is the purpose of this chapter, in conjunction with chapter 26-7A, to establish an effective state and local system for protection of children from abuse or neglect. Adjudication of a child as an abused or neglected child is an adjudication of the status or condition of the child who is the subject of the proceedings and is not necessarily an adjudication against or in favor of any particular parent, guardian or custodian of the child.

26-8A-2. Abused or neglected child defined. In this chapter and chapter 26-7A, the term, abused or neglected child, means a child:

- (1) Whose parent, guardian, or custodian has abandoned the child or has subjected the child to mistreatment or abuse;
- (2) Who lacks proper parental care through the actions or omissions of the child's parent, guardian, or custodian;
- (3) Whose environment is injurious to the child's welfare;
- (4) Whose parent, guardian, or custodian fails or refuses to provide proper or necessary subsistence, supervision, education, medical care, or any other care necessary for the child's health, guidance, or well-being;
- (5) Who is homeless, without proper care, or not domiciled with the child's parent, guardian, or custodian through no fault of the child's parent, guardian, or custodian;
- (6) Who is threatened with substantial harm;
- (7) Who has sustained emotional harm or mental injury as indicated by an injury to the child's intellectual or psychological capacity evidenced by an observable and substantial impairment in the child's ability to function within the child's normal range of performance and behavior, with due regard to the child's culture;
- (8) Who is subject to sexual abuse, sexual molestation, or sexual exploitation by the child's parent, guardian, custodian, or any other person responsible for the child's care;
- (9) Who was subject to prenatal exposure to abusive use of alcohol, marijuana, or any controlled drug or substance not lawfully prescribed by a practitioner as authorized by chapters 22-42 and 34-20B; or
- (10) Whose parent, guardian, or custodian knowingly exposes the child to an environment that is being used for the manufacture, use, or distribution of methamphetamines or any other unlawfully manufactured controlled drug or substance.

Source: SDC 1939, § 43.0301 (12) as enacted by SL 1968, ch 164, § 1; SL 1984, ch 192, § 1; SL 1990, ch 170, § 4; SL 1991, ch 217, § 111B; SDCL Supp, § 26-8-6; SL 1998, ch 204, § 2; SL 2004, ch 181, § 1; SL 2005, ch 141, § 1; SL 2008, ch 137, § 1.

26-8A-3 Persons required to report child abuse or neglected child -- Intentional failure as misdemeanor. Any physician, dentist, doctor of osteopathy, chiropractor, optometrist, mental health professional or counselor, podiatrist, psychologist, religious healing practitioner, social worker, hospital intern or resident, parole or court services officer, law enforcement officer, teacher, school counselor, school official, nurse, licensed or registered child welfare provider, employee or volunteer of a domestic abuse shelter, chemical dependency counselor or coroner, who have reasonable cause to suspect that a child under the age of eighteen has been abused or neglected as defined in § 26-8A-2 shall report that information in accordance with §§ 26-8A-6, 26-8A-7 and 26-8A-8. Any person who intentionally fails to make the required report is guilty of a Class 1 misdemeanor. Any person who knows or has reason to suspect that a child has been abused or neglected as defined in § 26-8A-2 may report that information as provided in § 26-8A-8.

26-8A-21. Abused/neglected children - Reasonable efforts to eliminate need for removal - Reasonable efforts to return child to home - Determining adequacy of efforts. The Department of Social Services shall make reasonable efforts prior to the removal of an alleged or adjudicated abused or neglected child from the home of the child's parents, guardian, or custodian to prevent or eliminate the need for removal of the child. If the child has been removed from the home and has been placed in temporary custody of the department, the department shall make reasonable efforts to make it possible for the child to return to the home of the child's parents, guardian, or custodian. If the child is to be or has been removed from the home, the court shall first make a judicial determination that removal of the child from the home is or was necessary because continued presence of the child in the home would be contrary to the welfare of the child and that reasonable efforts by the department to avoid removal of the child from the home have been made. If the child has been removed from the home and has not been returned to the home, the court shall first make a judicial determination that reasonable efforts have been made by the department to return the child to the home and that the child cannot be returned to the home because it would be contrary to the welfare of the child.

Reasonable efforts to prevent the necessity for removal of a child from the home of the child's parents, guardian, or custodian and reasonable efforts to return the child to the home mean provision by the department of any assistance or services that:

- (1) Are appropriate for the child's parents, guardian, custodian or any other caretaker family of the child existing at the time of removal or possible return of the child, including instruction on parenting;
- (2) Are available pursuant to the comprehensive plan of preventive services of the department;
- (3) Could be made available without undue financial burden on the department; or
- (4) Would have a significant likelihood of protecting the child from substantial danger to the child's physical health or from severe emotional damage while enabling the child to remain in the home or to be returned to the home.

In determining the adequacy of reasonable efforts, the court shall consider the assistance, services, and efforts of the department. The court shall also consider the good faith efforts or the lack of good faith efforts made by the child's parents, guardian, custodian, or other caretaker family to cooperate with the department and to effectively utilize the assistance or services for the benefit and welfare of the child.

Source: Amendments - 1998:

26-8A-21.1. Exceptions to § 26-8A-21. Nothing in § 26-8A-21 requires reunification of a child with a parent who:

- (1) Committed a crime defined in § 22-16-4, 22-16-7, 22-16-15, 22-16-20, 22-22-1, 22-22-24.3, 22-22A-2, 22-22A-3, 26-10-1, or subdivision 22-19-1(5), or committed conduct described by any of those statutes that violated the law or ordinance of another jurisdiction having elements similar to an offense described by any of those statutes;
- (2) Committed a crime defined in § 22-18-1.1 against the child or another child of such parent, or committed conduct described by that section that violated the law or ordinance of another jurisdiction having elements similar to the offense described by that section;
- (3) Has been determined by a court by clear and convincing evidence to have subjected the child or another child to torture, sexual abuse, abandonment for at least six months, chronic physical, mental, or emotional injury, or chronic neglect if the neglect was a serious threat to the safety of the child or another child;
- (4) Is incarcerated and is unavailable to care for the child during a significant period of the child's minority, considering the child's age and the child's need for care by an adult;

- (5) Has had parental rights to another child involuntarily terminated by a prior legal proceeding;
- (6) Has a documented history of abuse and neglect associated with chronic alcohol or drug abuse;
- (7) Has exposed the child to or demonstrated an inability to protect the child from substantial harm or the risk of substantial harm, and the child or another child has been removed from the parent's custody because the removed child was adjudicated abused and neglected by a court on at least one previous occasion;
- (8) Has exposed the child to or demonstrated an inability to protect the child from substantial harm or the risk of substantial harm, the child has been removed from the parent's custody on two separate occasions, and the Department of Social Services offered or provided family services on each of the two separate occasions the child was removed; or
- (9) Has exposed the child to or demonstrated an inability to protect the child from substantial harm or risk of harm resulting from a crime, act, or omission as specified in subdivision (1), (2), or (3) of this section.

Source: SL 1998, ch 161, § 2; SL 1999, ch 136, § 1; SL 2001, ch 141, § 1; SL 2007, ch 167, § 1.

26-8A-21.2. Abused/neglected children - Permanency hearing required if child is not to be returned to parents - Court to determine placement. If the court has determined that reasonable efforts to return an adjudicated abused or neglected child to the home of the parent, guardian, or custodian are not appropriate, a permanency hearing shall be held within thirty days after the determination. At the permanency hearing, the court shall determine whether and when:

- (1) The child should be placed for adoption. If the court determines that the child should be placed for adoption, the state shall notify the parties of its intent to seek the termination of parental rights if such notice has not already been provided;
- (2) The child should be referred for legal guardianship;
- (3) The child should be placed permanently with a fit and willing relative; or
- (4) A compelling reason is documented with the court that none of the permanent plans listed in this section would be in the best interest of the child, and the child should be placed in another planned permanent living arrangement.

The court may immediately proceed with a final dispositional hearing if proper notice of the hearing has been given.

Amendments - 2005

26-8A-22. Final decree of disposition--Permitted disposition when parental rights not terminated --Annual permanency hearing for child in foster care. On completion of the dispositional phase of the proceeding, the court shall enter a final decree of disposition. If the final decree of disposition does not terminate parental rights, the decree shall include one or more of the following provisions which the court finds appropriate as the least restrictive alternative available:

- (1) The court may place the child in the custody of one or both of the child's parents, a guardian, a relative of the child or another suitable person, or a party or agency, with or without protective supervision, or the Department of Social Services, subject to the conditions and the length of time that the court deems necessary or appropriate. If the court returns custody to the child's parent, guardian, or custodian, such return of custody may be with supervision during which the court may require the parent, guardian, custodian, and any other adult residing in the home, to cooperate with home visits by the department and may require the parent, guardian, custodian, and any other adult residing in the home, to submit, at the request of the department, to tests for alcohol, marijuana, or any controlled drug or substance. If the adjudication of abuse or neglect

was related to the use of alcohol, marijuana, or any controlled drug or substance, the parent, guardian, or custodian, and any other adult residing in the home, may be required, in those areas where such testing is available, to submit to regular tests for alcohol, marijuana, or any controlled drug or substance. If a positive test for alcohol, marijuana, or any controlled drug or substance is obtained, or the person fails to submit to the test as required, the department may immediately remove the child from the physical custody of the parent, guardian, custodian, or any other adult residing in the home whose test was positive or who failed to submit to the test, without prior court order subject to a review hearing, which may be telephonic, within forty-eight hours excluding Saturdays, Sundays, and court holidays. As used herein, any controlled drug or substance means a controlled drug or substance which was not lawfully prescribed by a practitioner as authorized by chapters 22-42 and 34-20B;

(2) The court after determining that a compelling reason exists to place the child in another planned permanent living arrangement rather than with a relative or with a legal guardian other than the department may place the child in the custody of the department or a child placement agency, with or without guardianship of the child, until the child attains the age of majority or until an earlier date or event as determined by the court;

(3) The court may order that the child be examined or treated by a physician or by a qualified mental health professional or that the child receive other special care and may place the child in a suitable facility for such purposes under conditions that the court deems necessary or appropriate. On completion of the examination, treatment, or hospitalization and on a full report to the court, the court shall conduct a supplemental dispositional hearing or hearings and shall make disposition of the child as otherwise provided in this section or, if the evidence shows need, the court may consider termination of parental rights as an appropriate possible alternative in keeping with the best interests and welfare of the child.

If disposition of the child under this section involves the removal from or nonreturn of the child to the home of the child's parents, guardian, or custodian and placement of the child in the custody of the department for placement in foster care, the court shall include in the decree a written judicial determination that continuation of the child's placement in the home of the child's parents, guardian, or custodian would be contrary to the welfare of the child and that reasonable efforts were made by the department to prevent or eliminate the need for removal of the child from the home. In no case may a child remain in foster care for a period in excess of twelve months from the time the child entered foster care without the court holding a permanency hearing and making a dispositional decree. The court shall review the child's permanency status and make a dispositional decree every twelve months thereafter as long as the child continues in the custody of the department. The court shall determine whether the state has made reasonable efforts to finalize the permanency plan that is in effect. That determination shall be included in the dispositional decree.

Source: SDC 1939, § 43.0310; SL 1968, ch 164, § 8; SL 1979, ch 172; SL 1989, ch 231, § 1; SL 1991, ch 217, § 131B; SDCL Supp, § 26-8-35; SL 1999, ch 137, § 2; SL 2001, ch 142, § 1; SL 2007, ch 4, § 13.

26-8A-24 Periodic review hearings of foster care status -- Petition for judicial action. If a child has been adjudicated to be an abused or neglected child, parental rights have not been terminated and the court places custody of the child in the department of social services without a court approved plan for long-term foster care, as stated in § 26-8A-22, the court shall conduct a review hearing of the foster care status every six months. The hearing shall be conducted in the same manner as a dispositional hearing. If the department at any time finds that further court action is necessary to clarify the child's legal status or, for any other reason, to protect the interests of the child, the department of social services may require the state's attorney to petition the court for a review hearing.

26-8A-25 Criteria for determining continued placement of child separate from home. In conducting the review hearing required by § 26-8A-24 the court may continue placement of the child separate from the home of the child's parents, guardian or custodian upon a written judicial determination that return of the child to the home would be contrary to the welfare of the child and that reasonable efforts have been made by the department of social services to make it possible for the child to return to the home. In making this determination, the court shall consider the following criteria:

- (1) The goals of the foster care placement and the appropriateness of foster care;
- (2) The assistance and services which have been offered to reunite the child with the child's parents, guardian or custodian and the good faith efforts, or their lack, and ability of the child's parents, guardian or custodian to cooperate with the department and to effectively utilize the assistance and services for the benefit and welfare of the child; and
- (3) If the return of the child to the home of the child's parents, guardian or custodian is not likely, the reasonable efforts of the department that have been made or should be made to provide for other methods of care in keeping with the best interests of the child.

26-8A-26. Termination of parental rights--Return of child to parents or continued placement--Annual permanency hearing for child in foster care. If an adjudicated, abused, or neglected child whose parental rights have not been terminated has been in the custody of the Department of Social Services and it appears at a dispositional or review hearing that all reasonable efforts have been made to rehabilitate the family, that the conditions which led to the removal of the child still exist, and there is little likelihood that those conditions will be remedied so the child can be returned to the custody of the child's parents, the court shall affirmatively find that good cause exists for termination of the parental rights of the child's parents and the court shall enter an order terminating parental rights. If the court does not find at the hearing, which shall be conducted in the same manner as a dispositional hearing, that good cause exists for termination of parental rights, the court may make further disposition of the child as follows:

- (1) Return custody of the child to the child's parents, guardian, or custodian, with or without supervision during which the court may require the parent, guardian, custodian, and any other adult residing in the home, to cooperate with home visits by the department and may require the parent, guardian, custodian, and any other adult residing in the home, to submit, at the request of the department, to tests for alcohol, marijuana, or any controlled drug or substance. If the adjudication of abuse or neglect was related to the use of alcohol, marijuana, or any controlled drug or substance, the parent, guardian, or custodian, and any other adult residing in the home, may be required, in those areas where such testing is available, to submit to regular tests for alcohol, marijuana, or any controlled drug or substance. If a positive test for alcohol, marijuana, or any controlled drug or substance is obtained, or if the person fails to submit to the test as required, the department may immediately remove the child from the physical custody of the parent, guardian, custodian, or any other adult residing in the home whose test was positive or who failed to submit to the test, without prior court order subject to a review hearing, which may be telephonic, within forty-eight hours excluding Saturdays, Sundays, and court holidays. As used herein, any controlled drug or substance means a controlled drug or substance which was not lawfully prescribed by a practitioner as authorized by chapters 22-42 and 34-20B;
- (2) Continue foster care placement of the child for a specified period of time, and, if the child is sixteen years of age or older, direct the department to determine the services needed to assist the child to make the transition from foster care to independent living and, if appropriate, provide a plan for independent living for the child;
- (3) Place the child in the custody of the department or a child placement agency, with or without

guardianship of the child, in another planned permanent living arrangement following a determination that a compelling reason exists that the placement is more appropriate than adoption or with a relative or with a legal guardian other than the department and under a court-approved plan that determines visitation rights of the child's parents, guardian, or custodian. Under this subdivision, the court may retain jurisdiction of the action and proceedings for future consideration of termination of parental rights if termination of parental rights is the least restrictive alternative available in keeping with the best interests of the child.

In no case may a child remain in foster care for a period in excess of twelve months from the time the child entered foster care without the court holding a permanency hearing and making a dispositional decree setting forth one of the above options. The court shall review the child's permanency status and make a dispositional decree every twelve months thereafter as long as the child continues in the custody of the department. The court shall determine whether the state has made reasonable efforts to finalize the permanency plan that is in effect. That determination shall be included in the dispositional decree.

Source: SL 1981, ch 203, § 2; SL 1991, ch 217, § 135B; SDCL § 26-8-35.2; SL 1992, ch 183, §§ 12, 20; SL 1997, ch 160, § 1; SL 1998, ch 161, § 3; SL 1999, ch 137, § 3; SL 2001, ch 142, § 3; SL 2007, ch 4, § 14.

26-8A-26.1. Additional reasons for termination of parental rights. In addition to the provisions of § 26-8A-26, the court may find that good cause exists for termination of parental rights of a parent who:

- (1) Committed a crime defined in § 22-16-4, 22-16-7, 22-16-15, 22-16-20, 22-22-1, 22-22-24.3, 22-22A-2, 22-22A-3, 26-10-1, or subdivision 22-19-1(5), or committed conduct described by any of those statutes that violated the law or ordinance of another jurisdiction having elements similar to an offense described by any of those statutes;
- (2) Committed a crime defined in § 22-18-1.1 against the child or another child of such parent, or committed conduct described by that section that violated the law or ordinance of another jurisdiction having elements similar to the offense described by that section;
- (3) Has been determined by a court by clear and convincing evidence to have subjected the child or another child to torture, sexual abuse, abandonment for at least six months, chronic physical, mental, or emotional injury, or chronic neglect if the neglect was a serious threat to the safety of the child or another child;
- (4) Is incarcerated and is unavailable to care for the child during a significant period of the child's minority, considering the child's age and the child's need for care by an adult;
- (5) Has had parental rights to another child involuntarily terminated by a prior legal proceeding;
- (6) Has a documented history of abuse and neglect associated with chronic alcohol or drug abuse;
- (7) Has exposed the child to or demonstrated an inability to protect the child from substantial harm or the risk of substantial harm, and the child or another child has been removed from the parent's custody because the removed child was adjudicated abused and neglected by a court on at least one previous occasion;
- (8) Has exposed the child to or demonstrated an inability to protect the child from substantial harm or the risk of substantial harm, the child has been removed from the parent's custody on two separate occasions, and the Department of Social Services offered or provided family services on each of the two separate occasions the child was removed; or
- (9) Has exposed the child to or demonstrated an inability to protect the child from substantial harm or risk of harm resulting from a crime, act, or omission as specified in subdivision (1), (2), or (3) of this section.

Source: SL 1998, ch 161, § 4; SL 1999, ch 136, § 2; SL 2001, ch 141, § 2; SL 2007, ch 167, § 2.

26-8A-27 Final decree of disposition terminating all parental rights of one or both parents --

Custody of child. On completion of a final dispositional hearing regarding a child adjudicated to be abused or neglected, the court may enter a final decree of disposition terminating all parental rights of one or both parents of the child if the court finds, by clear and convincing evidence, that the least restrictive alternative available commensurate with the best interests of the child with due regard for the rights of the parents, the public and the state so requires. The court may enter a decree terminating parental rights if the court finds, by clear and convincing evidence, that the parents have abandoned the child for at least six months and during this period the parents have not manifested to the child or to the physical custodian or caretaker of the child a firm intention to resume physical custody of the child and to make suitable arrangements for the care of the child.

Upon the entry of the final decree of disposition terminating the parental rights of both parents or of the surviving parent, the court shall vest the Department of Social Services with the custody and guardianship of the person of the child for the purpose of placing the child for adoption and authorizing appropriate personnel of the department to consent to adoption of the child without need for any notice or consent of any parent of the child. The final decree terminating parental rights is final and unconditional. The natural parents retain no post-termination rights or privileges including post-termination visitation except for any final visitation allowed by the department.

Upon the entry of a final decree of disposition terminating the parental rights of one parent, the court may leave the child in the custody of the remaining parent and end the proceedings.

NOTES

1. **The 2009 SD Legislature revised provisions regarding confidentiality and release of information in situations where the abuse or neglect of a child resulted in a fatality or near fatality of the child.** This bill was introduced by the Senate Health and Human Services Committee at the request of DSS. This bill amends SDCL 26-8A-13. Existing language was too restrictive. Federal grant funds are contingent upon the state's compliance with federal guidelines. The Federal Department of Health and Human Services Children Bureau notified South Dakota DSS of the need for change. This bill also designates foster parents, kinship providers and prospective adoptive parents as proper recipients of this information. This bill also makes style changes.

2. **Marijuana use added to list of substances for which prenatal exposure constitutes abuse or neglect under SDCL 26-8A-2(9).** The 2008 legislature broadened SDCL 26-8A-2(9) by adding marijuana to the list of abusive substances exposure to which in a prenatal state will (by definition) constitute an "abused or neglected child."

THE ADJUDICATORY PHASE

IN THE INTEREST OF T.A.

South Dakota Supreme Court, 2003
2003 SD 56, 663 N.W.2d 225

SABERS, Justice

[¶1.] A petition alleging abuse and neglect of T.A. was filed on October 10, 2001 and T.A. was removed from his home and placed in foster care. After an adjudicatory hearing, T.A. was adjudged abused and neglected. After a dispositional hearing, T.A. was placed in a residential facility where he attended school and received therapy.⁴ J.L., T.A.'s stepfather and A.L., T.A.'s mother (collectively Parents) appeal the trial court's determination that T.A. was abused and neglected.

FACTS

[¶2.] At the time of the events in question, T.A. was twelve years old. He is a special needs child who has been diagnosed with Tourette's Syndrome and Attention Deficit/Hyperactivity Disorder (ADHD).⁵ On October 6, 2001, T.A. and his family were moving into a new home which was located approximately fifty feet from their former home. T.A.'s mother and stepfather testified that throughout the day he was disrespectful and defiant, refusing to assist the family in the move. Toward the end of the day, T.A. was asked repeatedly by his mother to go to the old house and retrieve the trashcan. When he finally complied, he did so by emptying the trash onto the kitchen floor of the old house and tossing the trashcan onto the floor of the new house. His step-sister came to the new house and informed Parents that he had thrown the garbage on the floor. Stepfather testified that T.A. vehemently denied having done so and began crying and screaming. T.A.'s stepfather determined that the child was "out of control" so he took him by the wrist, led him to T.A.'s bedroom and proceeded to spank T.A. with a belt. Stepfather testified that he spanked the child eight to ten times with the belt.

* * *

[¶4.] A petition alleging abuse and neglect was filed on October 10, 2001. The adjudicatory hearing was held on November 14 and 19, 2001 and January 18, 2002. The trial court filed the adjudication order on July 1, 2002. A dispositional hearing was held July 19, 2002 and a dispositional order was entered on August 20, 2002. The Parents appeal...

* * *

We affirm the trial court on all issues.

⁴ While this case was pending on appeal, all parties requested a limited remand to allow the trial court to take evidence, and if appropriate, authorize T.A.'s return home. We granted the request. T.A.'s return home does not, however, moot this appeal because Parents are appealing the trial court's finding of child abuse rather than the child's placement.

⁵ ADHD and its effects are discussed at length in footnote 3 and the surrounding text in *Meldrum v. Novotny*, 2002 SD 15, ¶¶40-45, 640 NW2d 460, 467-68.

* * *

[¶6.] **1. WHETHER THERE IS SUFFICIENT EVIDENCE TO SUSTAIN THE TRIAL COURT'S FINDING OF ABUSE AND NEGLECT.**

[¶7.] * * * Essentially, Parents contend that pursuant to SDCL 22-18-5, Stepfather's spanking with a belt constituted reasonable force used by a parent. SDCL 22-18-5 provides in part:

[t]o use or attempt or offer to use force upon or toward the person of another is not unlawful if committed by a parent . . . in the exercise of a lawful authority to restrain or correct his child or ward and if restraint or correction has been rendered necessary by the misconduct of such child or ward, or by his refusal to obey the lawful command of such parent . . . and the force used is reasonable in manner and moderate in degree.

Based on this statute, Parents argue that the spanking administered by Stepfather was reasonable corporal punishment necessitated by a course of bad behavior by T.A. ... * * *

[¶8.] The proper inquiry under SDCL 22-18-5 is first whether the restraint or correction was "rendered necessary" by T.A.'s action and second whether the force used by Stepfather was "reasonable in manner and moderate in degree." *Id.* The record supports Parents' assertion that T.A.'s behavior on the day in question was disrespectful and defiant. However, on the day the spanking was administered, Parents failed to intervene in any manner before resorting to spanking. No alternative discipline was attempted prior to the spanking. Furthermore, none of the witnesses in the home during this event testified, as Stepfather did, that T.A. was screaming or crying or otherwise "out of control" prior to the spanking. However, Stepfather contends that screaming and crying were the impetus for the spanking. Because the record does not support Parents' assertion that T.A. was "out of control" or that his behavior necessitated hitting him with a belt, there is no showing of error in the trial court's determination that this punishment was not "rendered necessary" by T.A.'s behavior.

[¶9.] There was also no error in the determination that the force used by Stepfather was not "reasonable in manner" or "moderate in degree." This spanking left bruises on T.A. that remained for several days. There were also bruises on the child's arm that Kranz testified were consistent with finger-marks. The bruising on the child was consistent with T.A.'s account of the spanking. Even more significant is the fact that all of the bruising on the child's posterior, belt-line and arm are consistent with Stepfather's account of his own actions during the spanking. Specifically, Stepfather stated that he grabbed T.A.'s arm to take him into the bedroom, that he forced T.A. face-down on the mattress and that he held him there while he spanked him. Stepfather also stated that while spanking T.A., he accidentally hit him too high, resulting in a strike over the belt line and consistent with the bruise discovered by the physician's assistant and DSS. Stepfather claimed that he apologized to T.A. for hitting him too high. Finally, Mother testified that she was aware that Stepfather spanked the child with a belt and that she felt such spanking was permissible, testimony which supports the allegations against Mother that she failed to provide proper parental care by failing to intervene on his behalf.

* * *

[¶11.] Parents' assertion that there was insufficient evidence to support the finding that T.A. was abused and neglected is not supported by the record. The trial court is affirmed as to this issue.

[¶12.] **2. WHETHER THE TRIAL COURT IMPROPERLY JOINED THE ADJUDICATORY AND DISPOSITIONAL HEARINGS.**

[¶13.] At the adjudicatory hearing, the trial court heard cases-in-chief from the State and Parents.

After State and Parents rested, the trial court, over Parents' objection, allowed the attorney for the child to present T.A.'s case. Parents and State were permitted to cross-examine the child's witnesses and at the close of child's case-in-chief, the trial court offered Parents the opportunity for rebuttal. Parents contend that allowing the child's attorney to present a case-in-chief at the adjudicatory phase improperly joined the dispositional and adjudicatory phases of the process and therefore violated the requirement that adjudicatory and dispositional phases be bifurcated.

[¶14.] SDCL 26-7A-1 defines "adjudicatory hearing" as:

a hearing to determine whether the allegations of a petition alleging that a child is abused or neglected are supported by clear and convincing evidence[.]

[¶15.] "Dispositional hearing" is defined as:

a hearing after adjudication at which the court makes an interim or final decision in the case[.]

SDCL 26-7A-56 provides in part that the rules of civil procedure and evidence apply to adjudicatory hearings but that "all other hearings shall be conducted under rules prescribed by the court." The rules prescribed by the court in other hearings "may be designed by the court to inform the court fully of the exact status of the child and to ascertain the history, environment and the past and present physical, mental and moral condition of the child and the child's parents . . . as may be necessary or appropriate to enable the court to determine suitable disposition of the child[.]" SDCL 26-7A-56.

[¶16.] This Court has interpreted these and other statutes pertaining to dispositional and adjudicatory hearings to mean that in most cases, these proceedings should be bifurcated. See e.g. *Interest of P.M.*, 299 NW2d 803, 806 (SD 1980) (stating, "[i]n most cases, the distinctions between adjudicatory and dispositional hearings are important, and a failure to keep those distinctions in mind can cause the wrong issues to be litigated in the adjudicatory hearing"). Furthermore, the court is required to enter separate findings of fact and conclusions of law for each phase of the process. *Matter of J.L.H.*, 299 NW2d 812,814 (SD 1980). This is because the adjudicatory hearing looks to the past, e.g. whether there has been abuse or neglect, while the dispositional hearing looks to the child's future. *In the Matter of S.H.*, 337 NW2d 179, 181 (SD 1983) (citing *Interest of P.M.*, 299 NW2d at 806). The focus of the adjudicatory hearing is to determine whether the allegations in the petition alleging abuse and neglect are supported by clear and convincing evidence. SDCL 26-7A-1(2). The focus of the dispositional hearing is the best interest of the child. *Matter of S.H.*, 337 NW2d at 181.

[¶17.] In this case, the adjudicatory hearing was held on November 14, 2001, continued to November 19, 2001 and completed on January 18, 2002. The dispositional hearing was held on July 19, 2002. There were two separate hearings for each phase of the process, and the findings of fact and conclusions of law for the adjudicatory hearing were filed prior to the dispositional hearing. However, Parents contend that by allowing child to present a case-in-chief at the adjudicatory hearing after the State and Parents rested, the trial court allowed dispositional evidence at the adjudicatory hearing, thus ignoring the statutory requirement of bifurcation. We disagree. These hearings were properly bifurcated, and the evidence allowed by the trial court during the adjudicatory hearing was permissible.

[¶18.] The South Dakota Code is clear that the trial court must appoint an attorney for any child alleged to be abused or neglected. SDCL 26-8A-18. Once appointed, we assume that the attorney will work zealously to protect the interests of the child. Accepting Parents' assertion that the child should have been prevented from presenting evidence at the adjudicatory hearing would mean that the child's interests are not presented to the court unless the child is found abused or neglected and a dispositional hearing is held. We do not agree with this result. The child's interests should be protected throughout the proceedings and the child's attorney is specifically charged with that duty. Furthermore, SDCL 15-14-2

provides, “[i]f several parties, having separate interests, appear by different counsel, the court must determine their relative order in the evidence and argument.” As noted above, rules of civil procedure apply to adjudicatory hearings. SDCL 15-14-2 is a discretionary rule of civil procedure under which the trial court was entitled to allow the child’s attorney to proceed after the State and Parents concluded their cases-in-chief. It was not error to permit the child’s attorney to present evidence at the adjudicatory hearing.

* * *

[¶20.] The majority of the testimony provided by the child’s witnesses was introduced in response to the Parents’ consistent and overriding assertion that T.A. was out of control and that the only way to regain control was to hit him with a belt. That testimony was provided by various adults in child’s life who stated that corporal punishment was not necessary to control his behavior. Those testifying included T.A.’s special education teacher, his foster father, his maternal grandparents and his caseworker from DSS. All of these witnesses testified regarding T.A.’s behavioral problems, his behavior both during and before his placement in foster care and his attitude toward his parents. They also testified that they had never needed to resort to physical punishment in order to control T.A.’s behavior.

[¶21.] This testimony was all in direct response to Parents’ case-in-chief. The record reveals that Parents’ primary arguments were that 1) the child’s behavior was often uncontrollable; 2) the “only person in earth” who could keep the child’s behavior in check was Stepfather and 3) the only way Stepfather could control the child was if he was entitled to spank him with the belt. Parents invited testimony regarding whether the child could be controlled without belt spanking by raising SDCL 22-18-5, the corporal punishment statute, and T.A.’s behavior as justification for the spanking. Parents have failed to show error in the trial court’s decision to allow this evidence.

* * *

[¶33.] **5. WHETHER SDCL 26-8A-2 IS UNCONSTITUTIONAL**

[¶34.] Parents argue that South Dakota’s child abuse statute, SDCL 26-8A-2 is unconstitutionally broad, vague and ambiguous. Parents acknowledge that the predecessor statute to SDCL 26-8A-2 has withstood several attacks on its constitutionality, but argue that this is the first case “with facts and circumstances that do not immediately and automatically lend themselves to a finding of abuse.” This Court has consistently upheld the constitutionality of South Dakota’s child abuse statute. Parents’ assertion that the facts of this case call its constitutionality into clear question for the first time presumes that this Court declared the statute constitutional based only on the specific facts of the previous cases. This is not supported by our precedent. We have held that the predecessor to this statute “convey[ed] sufficiently definite warning as to proscribed conduct when measured by common understanding and practice. Due process requires no more.” *Matter of D.T.*, 89 SD 590, 596, 237 NW2d 166, 169 (1975) (citing *US v. Petrillo*, 332 US 1, 67 SCt 1538, 91 LEd 1877). The fact that Parents’ actions in this case are arguably less egregious than those of parents in prior cases does nothing to lessen the viability of our previous holdings concerning constitutionality. A reasonable person would be aware that forcing a child face down on a mattress, grabbing the child’s arm tight enough to leave bruises and beating him hard enough with a belt to leave bruises constitutes abuse rather than reasonable corporal punishment.

* * *

[¶39.] Affirmed.

[¶40.] GILBERTSON, Chief Justice, and KONENKAMP, ZINTER and MEIERHENRY, Justices, concur.

NOTE

Corporal Punishment Reviewed (Again) by SD Supreme Court. *In the Interest of C.F.*, 2005 SD 126, 708 N.W.2d 313, involves an appeal from an adjudication of an abused and neglected child. This case involves corporal punishment and the application of SDCL 22-18-5. Mother spanked her 10 year old daughter 6 times with a belt over her clothes which, according to mother's testimony, was administered with a degree of force of 4 on a scale of 1 to 10. No bruises were left by the spanking. The trial court found the child was abused and neglected and the South Dakota Supreme Court affirmed. This opinion aligns itself with the Court's previous opinion in *In re T.A.*, 2003 SD 56, 663 N.W.2d 225. The Court recognized that this Court has "crafted a two prong inquiry to assess whether a parents' administration of corporal punishment falls under SDCL 22-18-5 and, therefore, is not abuse under SDCL 26-8-6... The first prong of the inquiry requires the trial court to determine whether the restraint or corrective measure utilized was 'rendered necessary' by the child's actions... The second prong requires the trial court to determine whether the force used was 'reasonable in manner and moderate in degree.'" ¶ 19. Using the clearly erroneous standard of review, the South Dakota Supreme Court upheld the trial court's determination that force utilized by mother was not reasonable in manner and moderate in degree.

Justice Meierhenry filed a concurring opinion in which she points out that the parents had indeed tried other methods of discipline unsuccessfully. Her opinion states, "Evidence indicated the child was out of control—screaming, crying and slamming doors. And despite the spanking administered by Mother, the child showed no bruising. What appears to be unacceptable in this case is that Mother used a belt and hit the child six or seven times with a force that did not leave bruises but made the child uncomfortable. This is certainly a very restricted interpretation of the legal force a parent can use under South Dakota law..." Justice Meierhenry also points out that although the South Dakota legislature has given limited approval for the use of corporal punishment, "This restricted interpretation [applied in this case] could be a very slippery slope for the trial courts. Spanking is out of favor under modern theories of child rearing, yet the Legislature still recognizes the parent's right to enforce physical punishment. Thus, resolution of these conflicting theories is left to the individual judge on a case-by-case basis and indubitably does not give clear direction to parents who might be hauled into court on abuse and neglect claims." ¶ 35.

MATTER OF T.G. AND C.G.

Supreme Court of South Dakota, 1998.
578 N.W.2d 921.

PER CURIAM.

In this case, we affirm the termination of parental rights of a mother who failed to protect her daughters from sexual abuse, attempted to conceal the abuse, and chose to continue living with the perpetrator of that abuse.

* * *

The record is clear that Mother is incapable of placing her children's significant needs beyond those of her own. When aware of the sexual abuse throughout their young lives, Mother ignored it, attempted to conceal it, and failed to protect the children from it. She chose a sexual abuser over her own daughters, despite DSS attempts to help her. Daughters have significant problems which need consistent, stable help if they are ever to have a chance at independent living. Mother cannot provide this.

Affirmed.

NOTES

1. In *State ex rel. DSS, In the Interests of J.G.R.*, 2004 SD 131, 691N.W.2d 586, the trial court proceeded with the adjudicatory hearing despite the fact the mother was not represented by counsel. The child had been in the custody of DSS for 7 months and the mother had previously been appointed counsel and then discharged and retained counsel on her own a couple of times. Mother had changed counsel at least three different times. Still, the mother objected to the proceeding on the basis of lack of counsel and requested a continuance. At the subsequent dispositional hearing, mother's rights were terminated and she appealed.

The South Dakota Supreme Court affirmed, holding that the trial court had indeed erred in proceeding with the adjudicatory hearing without counsel and in not granting a continuance for the mother or alternatively providing counsel or securing a valid waiver of right to counsel. The Court's "right to counsel" analysis was based on the statutory provisions, SDCL 26-7A-31, as well as by analogy to the criminal standards. ¶ 9. Nonetheless, the error in this case was deemed to be "harmless error" with the Court stating, "With due regard for the facts of this case, and the overrarching inquiry of what is in the best interests of this child, we conclude that the error was harmless in that it would not have changed the adjudication in this matter." ¶ 19.

The Court also rejected mother's argument that long term foster care was a less restrictive alternative to termination of parental rights. The Court stated, "Similar arguments have been rejected numerous times by this Court because long term foster care is generally not in a child's best interests." ¶ 21.

Mother's argument that DSS failed to exercise reasonable efforts toward reunification was also rejected. The facts showed that mother did not follow the recommendation of the psychiatric evaluation in that she did not complete the necessary treatments or counseling. "DSS's efforts toward reunification were frustrated almost every step of the way by mother's actions. The trial court did not err in

determining reasonable, but unsuccessful, efforts were made.” ¶ 24.

2. **The 2009 SD Legislature clarified a trial judge’s authority to appoint a special advocate (such as CASA) for a child involved in an Abuse & Neglect proceeding.** Previous statutory authority (SDCL 26-8A-20) permitted the appointment of a special advocate upon “adjudication” of abuse or neglect. This amendment makes it clear that the court has authority to make the appointment of a special advocate for the child as soon as the child is brought into the A & N process. The new language is set forth below:

26-8A-20. Appointment of representative of child's best interest--Duties. If a child is an apparent or alleged abused or neglected child, the court may appoint a special advocate to represent the best interests of the child and to assist the child's attorney. If a child has been adjudicated an abused or neglected child and is removed from the child's home with the child's parents, guardian or custodian, the court shall appoint a guardian ad litem or a special advocate to represent the best interests of the child and to assist the child's attorney. The guardian ad litem or special advocate is an officer of the court for the purpose of representing the child's best interests. The guardian ad litem or special advocate shall receive all reports concerning the child and may cause the case to be reviewed by the court pursuant to § 26-8A-24.

Source: SL 1985, ch 214, § 2; SL 1991, ch 217, § 128B; SDCL Supp, § 26-8-35.3; SL 2009, ch 137, § 1.

3. **Note – 2006 Legislative Action.** The 2006 legislature enacted two new criminal provisions in SDCL 26-10, as follows:

26-10-30. Permitting physical or sexual abuse of child as felony--Affirmative defense. It is a Class 6 felony for any parent, guardian, or custodian to knowingly permit physical or sexual abuse of a child.

It is an affirmative defense, to be proven by clear and convincing evidence, to prosecution under this section if, at the time of the offense, there was a reasonable belief that acting to stop or to prevent the abuse would result in substantial bodily harm to the defendant or the child in retaliation.

Source: SL 2006, ch 146, § 1.

26-10-31. Causing child to be present where methamphetamines used, distributed, or manufactured as misdemeanor. It is a Class 1 misdemeanor for any person to knowingly cause a child to be present where any person is using, distributing, or manufacturing methamphetamines.

Source: SL 2006, ch 146, § 2.

4. **Note – 2006 Legislative Action.** The 2006 legislature enacted two new sections in SDCL 26-8A which are designed primarily to permit notice to noncustodial parents when one of that parent’s children is adjudicated abused or neglected. Apparently under previous law, there was no mechanism which permitted DSS to so notify noncustodial parents of the adjudication. The new provisions are as follows:

26-8A-10.1. Notice to child's parents of determination of abuse or neglect--Contents--Confidentiality. If an investigation by the Department of Social Services determines that abuse

or neglect has occurred, the department shall make reasonable efforts to inform each of the child's parents of the determination with due regard given to the rights of the subject of the report pursuant to § 26-8A-11. The information shall only include identification of the provisions of § 26-8A-2 which constituted the basis for the determination that abuse or neglect occurred. This provision does not limit the department in providing services to a parent who is the subject of the report. A notice of the report shall be sent, by certified mail, to any parent who is not the subject of the report at the parent's last known address. The information shall be maintained confidential by the parent pursuant to § 26-8A-13.

Source: SL 2006, ch 145, § 1.

26-8A-10.2. Exception to notice requirement. The provisions of § 26-8A-10.1 do not apply if the department has good cause to believe that the provisions of the information will be seriously detrimental to the best interests of the child.

Source: SL 2006, ch 145, § 2.

THE DISPOSITIONAL PHASE

IN THE MATTER OF L.A. AND E.A.

Supreme Court of South Dakota, 1993.
507 N.W.2d 83.

SABERS, Justice.

Father appeals from a Decree of Disposition terminating his parental rights to his twin daughters. We reverse.

Mother gave birth to twin girls E.A. and L.A. on November 22, 1988. Father requested a paternity test in February, 1989 but was advised that a blood test could not be performed at that time due to the age of the children. Shortly after the birth of the children, Mother and Father, who were never married, discontinued living together. Other than the removal of the children by the State and placement in foster care, Mother has had sole custody.

An Amended Petition was filed January 8, 1990 requesting the court to find the children dependent and to terminate the parental rights of Mother and Father. Father was notified in March, 1990 that he had been named as the alleged father of the children. After several phone conversations, paternity remained unresolved and Father was served with a summons and complaint in May, 1990. Father requested a blood test, the results of which indicated a 99.7 percent probability that Father was the father of L.A. and a 99.81 percent probability that he was the father of E.A. Paternity was established in October and Father began visiting the children in December, 1990. He was declared the father of the

children on May 8, 1992.

Following a dispositional hearing, the court ordered the transitional return of physical custody in the children to Mother contingent upon specific conditions.⁶ Legal custody remained with the Department of Social Services (DSS). Father's parental and custodial rights to the children were terminated and he appeals.

We must determine whether the trial court was clearly erroneous in finding by clear and convincing evidence that the termination of Father's parental rights was in the children's best interests as the least restrictive alternative. *In re S.W.*, 428 N.W.2d 521, 525 (S.D.1988). It is established that:

[I]n a termination of parental rights at a dispositional hearing, the trial court must find by clear and convincing evidence that termination of parental rights is in the child's best interest and the state must show that there is no narrower means of providing for the best interests and welfare of the child.

In re Z.Z., 494 N.W.2d 608, 609 (S.D.1992) (citing *In re A.D.*, 416 N.W.2d 264, 267 (S.D.1987)). "Although the primary focus of the dispositional court is the best interests of the child, the termination of parental rights is a drastic, final step that should be exercised with great caution." *In re S.H.*, 337 N.W.2d 179, 181 (S.D.1983) (citation omitted). Termination must be the least restrictive alternative available, *Z.Z.*, 494 N.W.2d at 609; *In re R.H.*, 349 N.W.2d 65, 67 (S.D.1984), and should be ordered only upon a showing that services to the family are unavailing. *In re J.Z.*, 410 N.W.2d 572, 576 (S.D.1987) (Miller, J., dissenting) (citations omitted), reh'g granted, 423 N.W.2d 813 (S.D.1988); *In re M.S.M.*, 320 N.W.2d 795 (S.D.1982); *In re R.Z.F.*, 284 N.W.2d 879 (S.D.1979).

The trial court's findings of fact cannot be set aside unless they are clearly erroneous and we are, after a review of all the evidence, left with a definite and firm conviction that a mistake has been made. *Z.Z.*, 494 N.W.2d at 610, (quoting *In re A.M.*, 292 N.W.2d 103, 105 (S.D.1980)). A review of the record indicates that the trial court was clearly erroneous and termination of Father's parental rights was not the least restrictive alternative.

According to Findings of Fact XXIV, XXVI, and XXVIII, Father does not relate well to the children and their needs, there is little likelihood that his deficiencies will be remedied, and he is unfit. It is undisputed that both Mother and Father are alcoholics and Father has received treatment for his alcoholism approximately ten times. Father, however, admitted he was an alcoholic at the dispositional hearing and testified that he was attending Alcoholics Anonymous meetings a minimum of twice a week. While testimony was presented alleging abusive behavior on the part of Father, the credibility of the witnesses was called into question and no evidence was presented which indicated that Father had been abusive to either of the children.

As the United States Supreme Court stated in *Santosky v. Kramer*,

⁶ Physical custody was granted to Mother contingent upon:

1. Absolute sobriety on the part of the mother;
2. Continued extensive and consistent psychotherapy on the part of the mother, with monthly status reports filed by the mother's counselor(s) with the DSS, until further Order of the Court;
3. Gainful employment or attendance at school on the part the mother; and
4. Quarterly updates from the DSS filed with the Court until further Order of the Court.

[t]he fundamental liberty interest of natural parents in the care, custody, and management of their child does not evaporate simply because they have not been model parents or have lost temporary custody of their child to the State.... If anything, persons faced with forced dissolution of their parental rights have a more critical need for procedural protections than do those resisting state intervention into ongoing family affairs.

455 U.S. 745, 753, 102 S.Ct. 1388, 1394-1395, 71 L.Ed.2d 599, 606 (1982). At the time of the dispositional hearing, Father had attempted to stabilize his life in order to provide a secure environment for the children should he be awarded custody. He was working part-time in the construction industry and was planning on attending Mankato State University to pursue an additional degree as well as a post-graduate degree. He had rented a two-bedroom apartment close to campus, taken parenting classes, and investigated support programs available to him in Minnesota and the Mankato area including the YMCA, the Community Educational Service Program and Social Services.

Additionally, clinical psychologist Dr. Bill Arbes (Arbes) testified that Father was highly committed to, and genuinely interested in, the welfare of the children. Arbes stated that Father could, under appropriate conditions, properly parent the children and that there could be a trial placement of the children with the Father for three months without the children suffering permanent harm. Therefore, Findings of Fact XXIV, XXVI, and XXVIII are clearly erroneous.

According to Findings of Fact XXV and XXX, appropriate services to Father have failed, further services would be unavailing, and the least restrictive alternative available required termination of all parental rights of Father. A review of the record, however, indicates that the only "service" offered to Father was visitation of his children, which Father handled responsibly and successfully. According to Michael Sauers, a social worker for Child Protection Services, paternity was established in October, 1990 and Father began exercising his visitation rights in December, 1990. Other than when the children were in Sturgis, South Dakota, Father visited the children at the Child Protection Offices in Brookings and Sioux Falls regularly and took the children to the zoo and the park. Sauers testified that the visitations went very well. The children appeared excited when they saw their father and called him "Dad".

In *In re S.M.M.*, the father's parental rights were terminated, but only after the trial court exhausted all alternatives short of termination. 349 N.W.2d 63, 65 (S.D.1984). Unlike *S.M.M.*, Father has never had custody of the twins. Nor has he "been given the benefit of alternatives short of termination" such as "intensive counseling on child care, parenting skills, parent aid, nutritional aid, ... ADC and food stamps," *id.*, and we cannot say that "efforts to assist [him] through the use of social services prove[d] unavailing." *Id.* In fact, there have not been any efforts on the part of Social Services to assist this Father. Therefore, Findings of Fact XXV and XXX are also clearly erroneous.

After examining all of the evidence, we conclude that less restrictive alternatives to termination exist and that the evidence in support of termination was not sufficiently clear, direct, weighty, and convincing to justify the termination of Father's parental rights. Therefore, we reverse.

WUEST, J., concurs.

HENDERSON and AMUNDSON, JJ., concur specially. MILLER, C.J., concurs in result.

NOTE

Termination not “least restrictive alternative” for father who is incarcerated and only 7 months away from being released. In *Interest of J.I.H.*, 2009 SD 52, 768 N.W.2d 168 the father appealed his termination of parental rights in an Abuse and Neglect proceeding in state court. ICWA applies. The children are eligible for enrollment with the Cheyenne River Sioux Tribe. Father was incarcerated during the A & N proceedings. At the time of the dispositional hearing, Father’s release date was only 7 months away. The SD Supreme Court reversed, but not on a basis associated with ICWA. The Court reversed because termination of father’s rights was not the “least restrictive alternative.” The Court stated, “Due to his limited incarceration period, legal guardianship would have been a less restrictive alternative until Father was able to care for his children.” In this case, the children’s attorney did not request termination of father’s rights. This decision is unanimous with the Court’s opinion being authored by Justice Severson.

IN THE MATTER OF A.S., K.S., AND P.S.

Supreme Court of South Dakota, 1993.
496 N.W.2d 589.

WUEST, Justice.

Y.V.N. (hereinafter "Father") appeals an order terminating his parental rights. While Father was serving a five year sentence in the state penitentiary, his wife left two of their three children with South Dakota Social Services. The circuit court found the children dependent and neglected and terminated Mother's and Father's parental rights. Shortly thereafter, Father was released from the penitentiary and requested reconsideration of the termination of parental rights. The circuit court considered Father's request and reaffirmed its termination order.

We agree with Father that several of the trial court's findings of fact are clearly erroneous because they are unsupported by evidence in the record. For example, the trial court found that "reasonable efforts" had been made to return the children to Father. In fact, there is no evidence that Social Services made any efforts to work with Father. It is fundamental that before parental rights can be terminated, "reasonable efforts" must be made to aid parents in maintaining their children. *In re A.D.*, 416 N.W.2d 264, 267 (S.D.1987).

We reverse the circuit court's order terminating Father's parental rights and remand for a new trial.

MILLER, C.J., and AMUNDSON, J., concur.

HENDERSON, J., concurs with writing.

SABERS, Justice (dissenting).

At times, it is hard to vote to terminate parental rights to children. This is especially true when

there is a showing that the parent is trying to be a good parent. It is even harder when there is a showing that the parent and children love each other.

In this case, father is a forty-five-year old Vietnamese refugee who was convicted of distribution of cocaine. At the time of arrest, he had \$5,000 cash and substantial cocaine in his possession.

Father is a drug user and seller. Despite his conviction, which was based on a recorded conversation, he claims to be innocent of drug dealing. The trial court found that he was "fundamentally dishonest." At his age, he is not likely to change in time to help these children.

Father has been involved in prior child neglect proceedings in regard to two older children. He lost those children to the Department of Social Services.

* * *

There is no showing in this record that he is trying to be a good parent. There is not even a showing that he loves or even cares for his children, nor they for him.

* * *

Under the least restrictive alternative thesis, the majority concludes that the Department of Social Services has not jumped through enough hoops. They would remand to do things over again which appears to me to be like "sending the troops down the hill, simply to march them up the hill again."

* * *

I vote for the children and I vote to affirm.

OBSERVATIONS

The *A.S.*, *K.S.*, and *P.S.* case was decided *before* the SD legislature enacted SDCL 26-8A-26.1 in 1998. This provision was amended again in 1999 so as to increase the number of grounds for termination.

The gist of much legislative action starting in the mid-90s was to make the entire process of adoptions/terminations easier. One should keep in mind that starting in the early 90s, there was much publicity nationwide on cases like "Baby Jessica" and "Baby Richard." This publicity seemed to be targeted against existing laws that were being applied in a way that was detrimental to the interests of the child – *i.e.*, the results were not in the "best interests of the child." SDCL 26-8A-26.1 is just one of many reforms made for the purpose of making the process "easier." There is a constant "give and take." If society wants to continue to provide and/or enhance protections for natural parents, then the process of adoption/termination is necessarily made more difficult. If society wants to make it easier to do what is in the "best interest of the child" regarding placements and to make adoptions/terminations "easier," then the rights of the parents will necessarily be diminished.

NOTE

Use of Hearsay Statements permitted in both Adjudicatory and Dispositional Phases. *Matter of J.B.*, 2008 SD 80, 755 N.W.2d 496 is a *per curiam* opinion affirming the termination of parental rights of J.B.'s mother and father through an abuse and neglect proceeding. Both parents appeal. This A & N investigation was initiated by the report of a dental hygienist who noticed a bruise on J.B.'s face. The SD Supreme Court rejected the appellants' arguments concerning to the admission of hearsay statements in both the adjudicatory and disposition phases. The Court also found that the trial court's determination that termination was the "least restrictive alternative" was not clearly erroneous..

The Federal Adoption and Safe Families Act (ASFA) (Moving More Efficiently Toward Termination of Parental Rights) (Bypassing Reunification Efforts)

Traditionally, the duty of the state to make "reasonable efforts" to return abused and neglected children to natural parents has been imposed by federal statute. Federal funding for child welfare services has been conditioned upon the notion that the states will submit a plan which meets federal specifications. These specifications require, *inter alia*, that the state make "reasonable efforts" to preserve and unify families. *See* 42 U.S.C. § 671/ which is partially reproduced at the beginning of this subchapter. In 1997, Congress enacted the federal Adoption and Safe Families Act (ASFA) which relaxes the requirement that "reasonable efforts" be pursued in many cases. South Dakota responded accordingly. The South Dakota Supreme Court has had occasion, in recent years, to consider cases involving the application of the more relaxed standard under ASFA.

OPINIONS ADDRESSING IMPLICATIONS OF ASFA

1. Pursuant to federal Adoption and Safe Families Act (ASFA), which permits the "bypass" of the requirement of "reasonable efforts" to return child to mother in certain situations, the trial court did not err in finding that no further efforts were required in *In the interest of D.B., III*, 2003 SD 113, 670 N.W.2d 67, notwithstanding the trial court's correct finding that the Indian Child Welfare Act's (ICWA's) requirement of active and reasonable efforts for reunification had been satisfied.

In order for a state to be eligible for federal funding for child welfare services, it must be in compliance with all of 42 U.S.C. 671. Subsection (a)(15) of this statute (i.e., 42 U.S.C. 671(a)(15)) requires, *inter alia*, that reasonable efforts be made to reunify families. The Adoption and Safe Families Act of 1997 (ASFA) amended this statute so as to make adoptions easier in egregious cases where the reunification effort should not be required because it would only serve as an impediment to the desired adoption of abused and neglected children. This is explained in ¶ 10 of the opinion where the Court states that ASFA "establishes a child protection system that subordinates parental rights to the paramount concern for the health and safety of the child when making a decision on whether it is in the child's best interests to preserve the family unit... ASFA is the congressional response to concerns that the

preexisting law acted as a barrier to the adoption of abused and neglected children... Under ASFA, the child protection system is not required to expend its limited resources attempting to reunify children with abusive parents if certain circumstances exist... Thus, the act allows states to move toward termination of parental rights more efficiently under certain circumstances.”

Thus, in certain circumstances the reunification requirement, also referred to as the “reasonable efforts” requirement of 42 U.S.C. § 671(a)(15)(B), is to be “bypassed.” The federal statute specifically lists certain situations such as murder, voluntary manslaughter, attempts or aiding and abetting or solicitation for murder or manslaughter, felony assault, and in situations where there has been an involuntary termination of parental rights of the parent to a sibling of the child in question. 42 U.S.C. § 671(a)(15)(D)(ii)(I),(II),(III), and (IV).

The federal statute also bypasses reasonable efforts where “the parent has subjected the child to aggravated circumstances (as defined in State law, which definition may include but need not be limited to abandonment, torture, chronic abuse, and sexual abuse).” 42 U.S.C. § 671(a)(15)(D)(i). South Dakota’s elaboration of “aggravated circumstances” is found in SDCL 26-8A-21.1 which currently enumerates nine (9) different situations. The seventh enumeration was found to exist in this case, where the parent “has exposed the child to or demonstrated an inability to protect the child from substantial harm or the risk of substantial harm, and the child or another child has been removed from the parent’s custody because the removed child was adjudicated abused and neglected by a court on at least one occasion.” SDCL 26-8A-21.1(7).

The South Dakota Supreme Court elaborated in ¶ 15 of the opinion as follows, “When making an ASFA determination, it should be noted that the existence of aggravating circumstances does not suggest that services are not to be provided at all. Here, despite the entry of the ASFA order, DSS had provided services to the mother. The ICWA expert testified, and the trial court determined, that active and reasonable efforts to further their reunification were provided but were unsuccessful. The reasonable efforts bypass provision found in SDCL 26-8A-21.1 provides the trial court with discretion to identify the most egregious cases early in the process and dispense with futile efforts toward reunification.”

This case is even more intriguing. Because the child was Native American, the Indian Child Welfare Act (ICWA) was triggered. Despite the ability to bypass reasonable efforts under ASFA, the trial court found “that DSS has made reasonable and active efforts to prevent the breakup of this Indian family, but that those efforts were unsuccessful.” ¶ 9. This aspect of the lower court’s ruling was also affirmed. In footnote two (2) of the opinion, the Court stated, “We recognize that there may be a conflict between the requirements of ICWA and AFSA on which act takes precedence in certain instances.” (sic). The Court went on to quote from a law review article by B.J. Jones in which Professor Jones states, “Although there is a provision in AFSA that recognizes that it does not intend to supersede the various provisions of the Indian Child Welfare Act, AFSA is very unclear on how to reconcile its provisions and those provisions in ICWA that seem to conflict.” (sic – the acronym “AFSA” is used consistently throughout footnote two, although the acronym “ASFA” is utilized in the main body of the opinion). The Court also stated, at the end of footnote two, “However, in this case, the issue is not before us because the requirements of both acts were followed.”

The provision in the ASFA which references ICWA is 42 U.S.C. § 674(d)(4) which simply states, “This subsection shall not be construed to affect the application of the Indian Child Welfare Act of 1978.” The “subsection” refers to 42 U.S.C. § 674(d) which authorizes reduction of federal funds in certain situations.

2. “By-pass” of reunification efforts, despite being authorized under ASFA, is not permitted in situations involving ICWA, according to *In the Interest of J.S.B., Jr.*, 2005 SD 3, 691 N.W.2d 611. In this case, the trial court terminated parental rights of an Indian child, holding that the

Adoption and Safe Families Act (ASFA) applied to the case and that DSS was under no obligation to provide services aimed at reunification of the child and parent. ¶ 9. The trial court also found that DSS had indeed “made ‘reasonable’ and ‘active’ efforts to reunite the family.” ¶ 10. The South Dakota Supreme Court affirmed the termination of parental rights, but also held in an unanimous opinion authored by Justice Konenkamp that “ASFA does not override the requirements of ICWA.” ¶ 1. This opinion identifies the goal of the ASFA (moving more quickly toward a permanent placement) and the goal of ICWA (maintaining familial, tribal and cultural ties for Indian children). ¶ 17. Observing that nothing in ICWA itself offers an exception for its mandated reunification effort, the Court stated “... we do not think Congress intended that ASFA’s ‘aggravated circumstances’ should undo the State’s burden of providing ‘active efforts’ under ICWA. Three rules of statutory construction dictate otherwise...” ¶ 21.

3. Determination of “aggravating circumstances,” which under ASFA relieves DSS of burden of making reasonable efforts toward reunification of parent and child, should ideally be made early in the termination process, but trial court’s “retrospective determination of the existence of aggravating circumstances” in the dispositional hearing of A & N proceeding did not constitute reversible error in *In the Matter of I.H.*, 2004 SD 7, 674 N.W.2d 809.

Mother had an extensive history with DSS and she had twice before had children adjudicated for abuse and neglect. This child, I.H., was taken into emergency custody by DSS on October 17, 2002. DSS was given temporary custody in a hearing on October 22, 2002. The dispositional hearing began on March 7, 2003 and was continued to March 24, 2003, at which time mother’s rights were terminated. The trial court found, *inter alia*, that, “Reasonable efforts are not required because the mother has demonstrated an inability to protect the child from substantial harm pursuant to SDCL 26-8A-21.1(8).” ¶ 12.

In mother’s appeal, she argued that the determination of “aggravating circumstances” which excuses DSS from reasonable efforts toward unification should have been made in a “separately noticed hearing ... and as a predicate to another hearing on a permanency plan for I.H. pursuant to SDCL 26-8A-21.2 ...” which provides, *inter alia*, ... “If the court has determined that reasonable efforts to return an adjudicated abused or neglected child to the home of the parent ... are not appropriate, a permanency hearing shall be held within thirty days after the determination...” ¶ 15

The South Dakota Supreme Court affirmed the lower court in a 5-0 per curiam decision. The Court observed, however, “Indeed the preferable course to follow in this case would have been for the State or DSS to seek a separate hearing shortly after I.H.’s removal and early in the termination process on the issue of the necessity of reasonable efforts. Following that hearing and entry of a finding ... a permanency hearing could have been held within thirty days ... Such procedures would have comported with the ASFA goal moving toward termination of parental rights more efficiently in cases where aggravating circumstances are present.” ¶ 16.

As to whether or not the lower court committed reversible error for not following the “preferable course,” the South Dakota Supreme Court held that it did not. The Court stated, “It would be ironic if ASFA, intended to make the termination process more efficient in cases involving compelling or aggravated circumstances, was actually permitted to be used as a tool for extending the process and compelling the provision of services that would clearly be fruitless and contrary to the best interests of the child.” ¶ 20. The Court quoted, with approval, the following language found in a New York appellate decision, “[i]t would be an absurd result to require reasonable efforts until a judicial determination is made when the [statute] itself recognizes that there are situations where reasonable efforts may actually be harmful to the child.” ¶ 19.

In the concluding sentence of the concluding paragraph of the opinion, the Court stated, “Based

upon this record, the trial court did not commit procedural error in its retrospective determination of the existence of aggravating circumstances sufficient to excuse DSS from the obligation to make reasonable efforts to reunify mother and I.H.” ¶ 21.

IN THE INTEREST OF L.N.

Supreme Court of South Dakota, 2004
2004 SD 126, 689 N.W.2d 893

ZINTER, Justice.

[¶ 1.] L.N. was found to be abused and neglected at an adjudicatory hearing. At a subsequent "no reasonable efforts hearing," the court found that aggravating circumstances were present and that reasonable efforts to reunify the family were not required under the South Dakota provisions of the Adoption and Safe Families Act (ASFA). Final disposition occurred at a "permanency hearing" in which the trial court concluded that parental rights should be terminated and L.N. should be placed for adoption. Mother⁷ appeals claiming that this procedure unconstitutionally deprived her of the right to a "dispositional hearing" and the opportunity to consider less restrictive alternatives that were in the best interests of the child. We disagree and affirm the trial court.

Facts and Procedural History

[¶ 2.] L.N., a minor child with Fetal Alcohol Syndrome, was born on May 15, 2003. On June 11, 2003, he was placed in protective custody because of Mother's alcohol abuse. That same day, an abuse and neglect petition was filed. Despite L.N.'s placement in protective custody, both parents were observed under the influence of alcohol by the Department of Social Services (DSS) during these proceedings. Furthermore, on June 16, 2003, Mother pleaded guilty to her fourth DUI and was sentenced to two years in the South Dakota Women's Prison on July 16, 2003.

[¶ 3.] On August 22, 2003, L.N. was adjudicated abused and neglected because of Mother's chronic alcoholism and the child's prenatal exposure to alcohol. That adjudication has not been appealed.

[¶ 4.] On August 25, 2003, DSS filed a motion to be relieved of the requirement that it provide reasonable efforts to reunite L.N. with his parents. See SDCL 26-8A-21 (requiring reasonable efforts to return the child to the home) and 26-8A-21.1 (relieving DSS of that requirement when certain aggravating circumstances are found). A "no reasonable efforts hearing" was conducted on that motion on September 9, 2003. Mother called no witnesses and introduced no evidence. The trial court found that aggravating circumstances existed. It concluded that DSS was not required to provide reasonable efforts to reunify Mother and L.N. This bypass decision was authorized by two provisions of ASFA, which are codified in SDCL 26-8A-21.1.

[¶ 5.] The first aggravated circumstance was a finding that Mother's parental rights had been previously terminated to three other children and Father's rights had been terminated to one other child

⁷ Father has not appealed.

(see SDCL 26-8A-21.1(5)). The second aggravating circumstance was that Mother had a documented history of abuse and neglect as a result of chronic alcohol abuse (see SDCL 26-8A-21.1(6)).

* * *

[¶ 8.] On November 17, 2003, following the court's bypass decision, a "permanency hearing" was held pursuant to SDCL 26-8A-21.2. At the conclusion of that hearing the trial court entered a conclusion of law, based upon clear and convincing evidence, that the best interests of the child would be served by the termination of parental rights and the placement of the child for adoption. Significant to the issues in this appeal, the trial court specifically concluded that the least restrictive alternative compatible with the "best interests and welfare of [L.N.] ... require[d] termination of all parental rights."

* * *

[¶ 11.] Mother appeals, raising the following issues:

1. Whether SDCL 26-8A-21.1 and 21.2 unconstitutionally denied Mother the right to a dispositional hearing and the opportunity to determine whether termination was the least restrictive alternative consistent with the best interests of the child.
2. Whether allowing foster parents and DSS employees to be present during a closed juvenile hearing requires a reversal of the termination of Mother's parental rights.

Analysis and Decision

Opportunity to Litigate Whether Termination Was the Least Restrictive Alternative

[¶ 12.] The Adoption and Safe Families Act, 42 USCA § 671 et seq., provides that "the child protection system is not required to expend its limited resources attempting to reunify children with abusive parents if certain [aggravating] circumstances exist." *People ex rel. D.B.*, 2003 SD 113, ¶ 10, 670 NW2d 67, 70 (citation omitted). ASFA's procedural requirements are codified in SDCL 26-8A-21 (reasonable efforts required), 26-8A-21.1 (exceptions to reasonable efforts), and 26-8A-21.2 (permanency hearing required). *In re I.H.*, 2004 SD 7, ¶ 14, 674 NW2d 809, 812. More specifically, SDCL 26-8A-21 requires that DSS make reasonable efforts to reunify a child who has been removed from the home of the child's parent, guardian, or custodian. *Id.* (citing *Matter of C.W.*, 1997 SD 57, ¶ 17, 562 NW2d 903, 906). However, ASFA provides exceptions to these reasonable efforts requirements where the court determines that a parent has subjected a child to "aggravated circumstances," which are defined in SDCL 26-8A-21.1. *D.B.*, 2003 SD 113, ¶ 10, 670 NW2d at 70.

[¶ 13.] Mother argues that these statutes deny her due process because they deprived her of the opportunity to litigate less restrictive alternatives. This argument is entirely premised on Mother's contention that the statutes provide courts with no discretion to require reunification and to consider other alternatives when an aggravating circumstance is present. However, we have previously concluded otherwise, stating that "the reasonable efforts bypass provision found in SDCL 26-8A-21.1 provides the trial court with discretion to identify the most egregious cases early in the process and dispense with futile efforts toward reunification." *Id.* ¶ 15 (emphasis added). *See also New Jersey Div. of Youth and Family Services v. A.R.G.*, 361 NJSuper 46, 77-78, 824 A.2d 213, 234 (NJSuperCtAppDiv 2003) (stating

that ASFA gives courts the discretion to identify the most egregious cases at the early stages of child protection proceedings without providing fruitless reunification services) (emphasis added). Thus, we reject Mother's argument that the bypass procedure deprives a court of discretion to consider less restrictive alternatives consistent with the best interests of the child.

[¶ 14.] In fact, we conclude that a court must necessarily consider whether a less restrictive alternative is appropriate in making the bypass decision. After all, SDCL 26-8A-21.1 does not preclude reunification efforts when aggravating circumstances are present. Rather, the statute simply provides that if aggravating circumstances are present, reunification efforts are not *required*: "Nothing in § 26-8A-21 *requires* reunification of a child with a parent who ..." meets one of the exceptions. SDCL 26-8A-21.1 (emphasis added).

* * *

Right to a Separate Dispositional Hearing

[¶ 16.] SDCL 26-8A-21.2 provides that if the court has determined that reasonable efforts to return the child are not appropriate, a permanency hearing shall be held within 30 days. *See also, I.H.*, 2004 SD 7, ¶ 16, 674 NW2d at 813. Although there is no dispute that the permanency hearing was held and the court made a dispositional decision to terminate parental rights at that hearing, Mother contends that she was entitled to yet another "dispositional hearing."

[¶ 17.] Counsel for DSS concedes that the "preferable course" is to have a no reasonable efforts hearing, followed by a permanency hearing under SDCL 26-8A-21.1, followed by a final dispositional hearing. *See I.H.*, 2004 SD 7, ¶ 16, 674 NW2d at 813. However, this suggested procedure is not mandatory if the reasonableness of reunification and the appropriateness of alternatives have already been determined adversely to the parents in properly noticed hearings. A further dispositional hearing in such cases would only delay a permanent placement, a result sought to be eliminated by ASFA.

[¶ 18.] A further dispositional hearing was also not necessary to provide Mother with the opportunity to litigate reasonable alternatives in the best interests of the child because it is the nature of the hearings provided, not the name, that is important. In this case, the opportunity to litigate all dispositional issues was provided at the no reasonable efforts and permanency hearings. They therefore became the dispositional phase of this case.

* * *

[¶ 24.] Due process requires a meaningful opportunity to be heard. *State v. I-90 Truck Haven Service, Inc.*, 2003 SD 51, 15, 662 NW2d 288, 292. However, the sufficiency of the "opportunity required is flexible and requires only such procedural protections as the particular situation demands." *Matter of Estate of Washburn*, 1998 SD 11, 19, 575 NW2d 245, 250 (citations omitted). Here, Mother was afforded due process because, as we previously noted, the court's permanency decision under SDCL 26-8A-21.2 necessarily required consideration of less restrictive alternatives and the best interests of the child. After all, in the context of child proceedings, "at every stage, from initial appearance to final disposition, [a courts] brightest beacon is the best interests of the child." *Matter of C.V.*, 1998 SD 47, 11, 579 NW2d 17, 21 (*citing Matter of R.P.*, 498 NW2d 364, 366 (SD 1993)).

* * *

*The Presence of Foster Parents and the Department
of Social Services In a Closed Juvenile Hearing*

[¶ 26.] The controlling statute provides that juvenile hearings are closed unless the court finds compelling reasons to open them. SDCL 26-7A-36.⁸ The party wanting the hearing opened has the burden of proving that "compelling reasons" exist to require opening the proceedings. *In the Matter of M.C.*, 527 NW2d 290, 292 (SD 1995); SDCL 26-7A-36. "The purpose behind closed juvenile proceedings is to 'protectively rehabilitate juveniles' ..., [and] 'the maintenance of confidentiality is a necessary corollary of that purpose.' " *Id.* at 293 (citing *San Bernardino County Dep't of Public Social Services v. Superior Court*, 283 CalRptr 332, 339 (CalDistCtApp 1991)). The trial court's decision on this issue is reviewed under the abuse of discretion standard. *Id.* at 291.

[¶ 27.] Here, the foster parents and certain DSS employees were allowed to be present at the hearings despite Mother's objection. Mother argues that compelling circumstances are required before any individual other than a party may be present at such a hearing. However, considering the purpose of SDCL 26-7A-36, these hearings are only closed to the general public. The general rule of closure was not intended to require a showing of compelling circumstances before those individuals who possess a legitimate interest in the juvenile may attend the proceeding.

* * *

[¶ 29.] Affirmed.

[¶ 30.] GILBERTSON, Chief Justice, and SABERS and KONENKAMP, Justices, and WILBUR, Circuit Judge, concur.

[¶ 31.] WILBUR, Circuit Judge, sitting for MEIERHENRY, Justice, disqualified.

NOTE: The 2005 South Dakota Legislature amended SDCL 26-8A-21.2 so as to require the state to notify the parties of its intent to terminate parental rights, if notice has not already been provided, when the court makes the "by pass" determination that reasonable efforts toward reunification are not appropriate and that the child should be placed for adoption. The 2005 amendment also authorizes the court to immediately proceed with the dispositional hearing if proper notice has been given.

**ADDITIONAL CASES WHERE EFFORTS TO
REUNIFY WOULD LIKELY PROVE UNSUCCESSFUL**

1. Mother, whose rights had been terminated as to prior children, was seen checking into a hospital maternity ward by a DSS worker. DSS, concerned with the parents' prior history of neglect and

⁸ SDCL 26-7A-36 provides:

All hearings in actions under this chapter and chapter 26-8A, 26-8B, or 26-8C are closed unless the court finds compelling reasons to require otherwise. However, all pleadings and hearings shall be open and a matter of public record if a juvenile is summoned into court for an offense which if committed by an adult would constitute a crime of violence as defined in subdivision 22-1-2(9) or a crime involving a drug offense in violation of 22-42-2 or 22-42-3, and at the time of the offense the juvenile was sixteen years of age or older.

sexual/physical abuse, sought to terminate parental rights. The trial court refused to terminate parental rights, but adjudicated the child as dependent and neglected. Long-term protective supervision by DSS was ordered. Both sides appealed. The South Dakota Supreme Court affirmed, holding the child was clearly a member of a dysfunctional family. With respect to DSS's claim that it was left with a "near impossible task," the court reminded DSS that "the goal of social services is to help the family correct identified problems within the home and keep the family intact." *Matter of J.A.H.*, 502 N.W.2d 120, 125 (S.D. 1993). The court also stated that DSS is not precluded from later seeking termination of parental rights based on any additional evidence that may be developed as a result of "as many announced and unannounced visits of the parents' home" as the DSS worker deems appropriate. *Id.* at 126. [NOTE: This case was decided before the enactment of SDCL 26-8A-21.1, as authorized by the ASFA.]

2. In a case described as one with "one parent being unable to properly parent her children alone and the other parent being unwilling to provide proper parenting support," the SD Supreme Court affirmed termination of both mother's and father's rights in *In Re: W.G.*, 1999 SD 85, 597 N.W.2d 430. (Quoted material taken from paragraph no. 19, 597 N.W.2d at 434.) There are very unsettling facts reported in this opinion concerning the children involved, two boys, ages 11 and 6. The mother had repeated stays in mental hospitals in South Dakota and Texas. The children were removed from mother's home the day before the father was released from prison, having been convicted of sexual offense involving a 13 year old female. Father had a history of alcohol abuse, having been drinking at the time of the offense. Father continued to drink following release from prison and was declared a "high risk to sexually reoffend and a danger to the community" by one of his evaluating psychologists.

3. In the case of *In Re A.S.*, 2000 SD 94, 614 N.W.2d 383, the trial court's termination of parental rights to 2 ½ year old daughter was affirmed. The mother appealed. Mother's incarceration in prison and parole violation served as adequate basis to support termination. [Another child, when 4 months old, was left waiting in a motor vehicle while mother and father committed a robbery in Sioux Falls and upon their arrest, he was found in a soiled t-shirt and diaper, both of which were too small for him.]

4. The trial court terminated the rights of both mother and father in abuse and neglect proceeding. Mother did not appeal. Father, who continued to reside with mother, appealed. Both parents had a history of termination of parental rights as to other children and the trial court took "judicial notice" of prior termination proceedings finding "the prior cases show a pattern of abuse and neglect of children by these parents." ¶ 7. The South Dakota Supreme Court affirmed in *In the Interest of D.T., Jr.*, 2003 SD 88, 667 N.W.2d 694. The father argued that the statutory authorization for "judicial notice" of prior termination proceedings found in SDCL 26-8A-26.1(5) applies only to the "dispositional phase," not the "adjudicatory phase" of abuse and neglect proceedings. The Supreme Court addressed this argument by agreeing with father as to the application of the statute but noted, "There is nothing in the statute that indicates that it was intended to limit the trial court's discretion in determining whether and when to take judicial notice of prior terminations." ¶ 9. The opinion also states, "In [a 1993 case], this Court reiterated, '[i]t is appropriate for the trial court to take judicial notice of earlier findings as to abuse and neglect.'" The Supreme Court rejected the father's argument that the trial court was required to find specific instances of abuse as against this particular child. ¶ 11.

As to father's argument that termination was not the least restrictive alternative, the South Dakota Supreme Court observed that father continues to reside with mother who has "violent and abusive tendencies" and that "there is a long and continuing history of domestic violence between mother and father." The opinion states, "This Court has noted that where parents are living together, termination of

the rights of only one parent serves no purpose because the child would still be living in a potentially injurious environment.” (quoted material found in ¶ 22)

The Court stated, once again, that “the best interest of the child must be viewed from the child’s, rather than the parents, perspective.” ¶ 18.

IN THE MATTER OF S.L. AND L.L.

Supreme Court of South Dakota, 1988.
419 N.W.2d 689.

WUEST, Chief Justice.

Parents, S.L. (Father) and L.L. (Mother) appeal the termination of their parental rights to their two children, S.L. and L.L. We affirm.

The son, S.L., was born in August, 1980. The daughter, L.L., was born in July, 1983. In January, 1984, Mother contacted Denise Maricle (Maricle), a psychological counselor at the Dakota Mental Health Center in Mitchell. Mother indicated she was having problems with S.L.'s toilet training and general discipline. Maricle assisted Mother in developing parental techniques designed to correct simple child behavior and development problems. Maricle also made a referral to Kathleen Park (Park), a social worker with the Department of Social Services, and together they helped Mother enroll both children in a special needs day care program.

It soon became apparent that Mother and her children had other problems that needed attention, and in a cooperative effort, staff members from the Dakota Mental Health Center, the Department of Social Services, and the Methodist and St. Joseph day care centers began to share information and institute programmed services. The support given this family developed into a lengthy and involved effort that, beginning in 1984, would involve over two years of professional assistance.

In her psychological counseling with Mother, Maricle learned that Mother had been abusing S.L. psychologically. Mother was locking S.L. in his upstairs bedroom each night from about 7 p.m. until his bedtime at around 9 p.m., apparently out of a concern that S.L. might fall down the stairway in the home because the stairs did not have a hand rail. S.L. was therefore restrained from using the bathroom, sometimes on into the night. With some frequency, Mother was also shutting S.L. in his closet and calling him dirty names through the door. Sometimes she would spank S.L. so long that Father would need to intervene.

Maricle also learned there was other pathological behavior. Mother was inflicting physical harm on herself by burning herself with cigarettes and cutting herself with knives or razor blades, often in front of the children. Maricle initiated psychiatric care for Mother and referred her to the center's psychiatrist for appropriate medication.

Mother had a history of mental illness dating from about 1975. Between 1975 and 1980, Mother had three admissions to the South Dakota Human Services Center. In each of these admissions she presented problems of suicidal ideation and self-mutilation. Mother heard voices--voices directing her to hurt herself or others. She had made several suicide attempts by overdose and had once attempted to abort her son by falling down a flight of stairs.

Following his placement in special needs day care, staff personnel noted that S.L. suffered from a number of physical, psychological, and emotional problems. S.L. suffered a pronounced delay in

speech development for which he was receiving speech therapy. Physical strength and motor skills development were also delayed. S.L. had underdeveloped limbs, and he had little strength, spontaneity, or activity in his play. S.L. could not, for example, play catch with a ball.

As for psychological and emotional problems, at first the staff thought S.L. might have experienced sensory deprivation. He was socially delayed. S.L. had no eye contact or verbalization, and he would not allow physical contact. He had temper tantrums where he would throw himself on the floor kicking and screaming and flailing his arms. He was afraid to enter small rooms.

S.L. made improvements, however. In August, 1984, the director of St. Joseph's day care reported S.L. was no longer having temper tantrums or toileting accidents. He had also learned to sit at the table while eating.

The staff at the day care center was also concerned about L.L. At this time she was one year old. She was not taking any solid food but was still on formula. She was sleeping from 8:30 to 11:30 in the morning. When put down for a nap, L.L. would bang her head in the playpen. She, like S.L., displayed neurotic traits that appear in emotionally neglected children.

In August, 1984, the Department initiated Intensive Placement Services (IPP). A social worker went into the home and worked with Mother on S.L.'s toilet training and speech therapy homework. The social worker also concentrated on the lack of parent-child interaction in the home. Mother later withdrew from the program, however, because she did not want to work with S.L.

Father was aware of S.L.'s developmental problems and had been trying to help in that area, but he did not learn of Mother's inappropriate behavior until after Maricle made a referral to the Department in January, 1985. Maricle was concerned about Mother's continuing behavior toward S.L. and discussed the situation with Father. Thereafter, Father and Mother enrolled in STEP parenting classes and marital counseling. Father also agreed to watch Mother's behavior, but he worked a night shift from 3 to 11 p.m. so his supervision and contact with the children when they were home in the evenings was limited.

The situation with Mother continued throughout 1985. Mother indicated to Maricle that, as of March, 1985 she had stopped locking S.L. in the closet, but she was having continuing difficulty with regard to S.L. On one occasion in May she mutilated some of S.L.'s personal possessions in his presence, including his teddy bear and some art work he had brought home. She continued to have auditory hallucinations that told her to do things to S.L. or to herself. Mother voluntarily admitted herself for treatment at the Human Services Center on October 12, 1985, after she had a "psychotic break" and was found cutting herself with razor blades. Mother was diagnosed schizophrenic, undifferentiated type. Following treatment she was discharged on November 27, 1985.

In January 1986, Father left on a week-long trip to Wisconsin. Given Mother's condition and out of concern for S.L., Father agreed to several days of foster care for S.L. during his absence, after which the grandmother would be available to care for S.L. On the day of Father's departure, January 31, 1986, Mother placed L.L. in her crib at about noon and left her unattended for about eight hours without a feeding or changing. Several days earlier Mother had thrown away her medication because her voices had told her to. On this day, the voices were telling her to ignore her daughter. Mother, realizing her condition, called Maricle about the situation, whereafter L.L. was placed in foster care with her brother on a voluntary basis.

On February 2, 1986, Mother was not taking her medication. On that day she cut her legs with razor blades. She also experienced auditory hallucinations telling her to cut S.L. with a knife and burn him once he returned home. On February 4, a dependency and neglect petition was filed and temporary custody was granted to the Department. Mother was again voluntarily committed for treatment to the Human Services Center on February 13, 1986. She was discharged on May 28, 1986.

An adjudicatory hearing was held on September 4, 1986. The trial court decreed both S.L. and L.L. were dependent and neglected by an order of adjudication dated December 4, 1986. A dispositional hearing was held on November 6, 1986, and on February 6, 1987, the trial court ordered that parental rights be terminated.

* * *

Parents second argument is that the evidence supporting the dependency and neglect adjudication of L.L. was not clear and convincing and therefore the adjudication should be overturned. We disagree.

In *People In Interest of K.C.*, 414 N.W.2d 616 (S.D.1987), we summarized the analysis that governs in dependency and neglect cases.

The ruling in *Santosky v. Kramer*, 455 U.S. 745, 102 S.Ct. 1388, 71 L.Ed.2d 599 (1982)] increased the state's burden of proof at an adjudicatory hearing by requiring each allegation in the petition be proven by clear and convincing evidence.

* * *

In this case the trial court agreed with the allegations in the petition and determined four ultimate facts existed under [SDCL 26-8A-2]. The court found the children lacked "proper parental care," the children's "environment was injurious to their welfare," the children were "threatened with substantial harm," and the children had "sustained emotional harm or mental injury." Under these findings the court concluded the children were dependent and neglected as a matter of law pursuant to [SDCL 26-8A-2].

Under [SDCL 26-8A-2], any one of the eight subparts to that statute standing alone is enough to sustain a dependency and neglect adjudication as long as that ultimate finding is supported by clear and convincing evidence. In this case all four of the trial court's ultimate findings are supported by clear and convincing evidence and apply to L.L. as well as S.L. At the adjudicatory hearing, Dr. W. Vail Williams (Williams), Associate Professor of Clinical Psychology at the University of South Dakota, testified as to the problems and needs of S.L. and L.L.

* * *

Parents third argument is that the certain dispositional findings of fact and conclusions of law were not based on clear and convincing evidence sufficient to support the finding that termination was the least restrictive alternative. We disagree.

* * *

The other appellants in this case, L.R. and A.R., the maternal grandparents of S.L. and L.L., argue that temporary placement with the grandparents would have been a less restrictive alternative that should have been tried before termination occurred. We disagree.

The best interests of the children are controlling. The experts at trial indicated the parents should not be allowed further contact with the children. Such contact would inevitably occur if the children were placed with relatives. Moreover, an eventual return to the parents would be inappropriate because

Mother's condition was not expected to improve. It is also obvious the conditions in the grandparents would not work for the children due to grandfather's health and other considerations.

The decision of the trial court is affirmed.
MORGAN and MILLER, JJ., concur.

NOTES

1. As indicated in *Matter of S.L.*, the state is required by the 14th Amendment to the U.S. constitution to establish its proof by “clear and convincing evidence” in termination cases. [Citing *Santosky v. Kramer*, 455 U.S. 745 (1982).]

2. The requirement that the Department of Social Services make “reasonable efforts” to return children to their parents under SDCL 26-8A-21 does not give the mother [from whom the child was taken] an advantage over the child’s father in a determination of custody which takes place in the context of an abuse and neglect proceeding. In *Matter of C.W.*, 562 N.W.2d 903, 1997 57 (S.D. 1997), the mother had three children taken into protective custody by the DSS. Each child had a different father. Legal and physical custody of the oldest child was placed with that child’s father, by agreement of all the parties. The father of the middle child requested his rights be terminated and that child was eventually returned to the mother. The father of the youngest child was awarded custody over mother’s objection. The result was affirmed on appeal, with the South Dakota Supreme Court noting that “compelling interests” were found to exist so as to justify the separation of half siblings. The court said that “[t]he prime concern is always the child’s best interests.” The court also pointed out that the “reasonable efforts” requirement of the neglect and abuse statutes [SDCL 26-8A-21] did not benefit the mother in this case since the child had been residing with a biological parent (the father) ever since the father’s home was found to be an appropriate placement for the child.

3. In *Matter of Z.Z.*, 494 N.W.2d 608 (S.D. 1992), the lower court terminated the parental rights of the mother. The maternal grandfather (the mother’s father) simultaneously sought guardianship of the child and this, too, was denied. Both mother and grandfather appealed. The termination was affirmed and grandfather’s argument that termination was not the “least restrictive alternative” was declared moot. A rather lengthy dissent by Justice Henderson vigorously argued that there was “clearly a lesser restrictive” by placement with the grandfather. It was later reported by Justice Henderson that, notwithstanding the majority opinion in *Z.Z.*, a long-term placement was effected upon remand with the grandfather (and grandmother), under the continued monitoring by DSS. Furthermore, the mother of *Z.Z.* did continue to have social contact with the child. This is reported in *Matter of L.A.*, 507 N.W.2d at 86-87 (Henderson, J., concurring.)

4. In *The Interest of C.G.(H.), T.N., and M.G.*, 2003 SD 78, 667 N.W.2d 279. The trial court awarded physical custody of oldest of three children to child’s natural father in abuse and neglect proceeding, even though the other two children (half siblings) were returned to mother. Father had served as primary caretaker for child for one year as of the date of the dispositional hearing and the trial court found that the award to the father was “the least restrictive alternative commensurate with the best interests of the child” and also that “compelling reasons” existed for the separation of the half-siblings. The South Dakota Supreme Court affirmed.

5. In *The Interest of L.N., Jr.*, 2004 SD 128, 690 N.W.2d 245. Mother first placed her child in

foster care voluntarily in January, 1997. Over the next several years DSS was actively involved, working with mother. Eventually mother's rights were terminated in June, 2003. The South Dakota Supreme Court affirmed the termination in a detailed opinion which reviews the various problems and the various efforts to work with mother. In its concluding paragraph, the Supreme Court stated, "This is an unfortunate case where an incapable parent was given multiple opportunities to succeed in developing adequate parenting skills and failed in each instance. Obviously the time came for the trial court to determine that child could no longer wait for mother to develop her parenting skills." ¶ 20.

6. In *State ex rel. DSS, In the Interests of J.G.R.*, 2004 SD 131, 691 N.W.2d 586, the trial court proceeded with the adjudicatory hearing despite the fact the mother was not represented by counsel. The child had been in the custody of DSS for 7 months and the mother had previously been appointed counsel and then discharged and retained counsel on her own a couple of times. Mother had changed counsel at least three different times. Still, the mother objected to the proceeding on the basis of lack of counsel and requested a continuance. At the subsequent dispositional hearing, mother's rights were terminated and she appealed.

The South Dakota Supreme Court affirmed, holding that the trial court had indeed erred in proceeding with the adjudicatory hearing without counsel and in not granting a continuance for the mother or alternatively providing counsel or securing a valid waiver of right to counsel. The Court's "right to counsel" analysis was based on the statutory provisions, SDCL 26-7A-31, as well as by analogy to the criminal standards. ¶ 9. Nonetheless, the error in this case was deemed to be "harmless error" with the Court stating, "With due regard for the facts of this case, and the overrarching inquiry of what is in the best interests of this child, we conclude that the error was harmless in that it would not have changed the adjudication in this matter." ¶ 19.

The Court also rejected mother's argument that long term foster care was a less restrictive alternative to termination of parental rights. The Court stated, "Similar arguments have been rejected numerous times by this Court because long term foster care is generally not in a child's best interests." ¶ 21.

Mother's argument that DSS failed to exercise reasonable efforts toward reunification was also rejected. The facts showed that mother did not follow the recommendation of the psychiatric evaluation in that she did not complete the necessary treatments or counseling. "DSS's efforts toward reunification were frustrated almost every step of the way by mother's actions. The trial court did not err in determining reasonable, but unsuccessful, efforts were made." ¶ 24.

7. "Faked" cooperation with DSS and lack of openness and honesty may help constitute basis for termination of parental rights, according to *In the Interest of C.W.*, 2005 SD 54, 697 N.W.2d 18. In this case mother appealed the termination of her parental rights to her 2 year old daughter. The termination was affirmed on appeal in a per curiam opinion. Among other assertions of error, mother claimed that the trial court erred in finding that DSS made reasonable efforts to reunite her with her child. In this regard, "[M]other relies strongly on her compliance with the case service plan and her cooperation with the services and programs provided." ¶ 17. The South Dakota Supreme Court found that mother's cooperation was not genuine and that she "faked" her cooperation, persisting in denial and blame of others for the problems. Concerning the psychological evaluation, the opinion notes, "While mother may have been overtly cooperative, her heart was not in the effort. As found by the trial court, '[m]other's psychological evaluation resulted in a fake good which made the results invalid.'" ¶ 18. With respect to the testimony of the psychologist, the Court observed, "mother's psychologist testified at the dispositional hearing that mother's psychological evaluation was so skewed by her faking that it was 'simply noninterpretable.' When confronted with that result, mother turned her interview into

‘an hour of excusing and blaming.’ Thus, it was the psychologist’s conclusion that he would not be able to produce any beneficial results from psychotherapy with mother and that mother had a ‘deeply entrenched pattern of refusing to take any responsibility or blame or seeing any need for therapy[.]’... Mother’s case-worker corroborated this testimony. Although the case-worker agreed that mother completed or participated in the things that DSS asked her to do, he noted that mother had not been open and honest in all areas and never offered a plausible explanation for how child’s injuries occurred or what could be done to correct the problem.” ¶¶ 18-19.

8. In A & N proceedings, ongoing verification through the 24/7 sobriety program (and through other measures) is authorized in situations involving use of alcohol, marijuana or other drugs/controlled substances. The 2008 legislature amended SDCL 1-11-22 so as to provide as follows:

1-11-22. Program participation as condition of child placement. During any stage of a proceeding under chapter 26-8A, the court may condition the placement or return of an apparent, alleged, or adjudicated abused or neglected child on participation in the 24/7 sobriety program and payment of associated costs and expenses.

Source: SL 2008

The 2008 legislature also enacted another supportive section in SDCL 26-8A which provides:

26-8A-34. Alcohol or drug testing as condition of child placement or return. If the court finds the apparent, alleged, or adjudicated abuse or neglect of a child was related to the use of alcohol, marijuana, or any controlled drug or substance, the placement or return of the child may be subject to the condition, if the court so orders, that a parent, guardian, custodian, or any other adult residing in the home submit to tests for alcohol, marijuana, or any controlled drug or substance prior to or during the placement or return of the child. If a parent, guardian, custodian, or any other adult, who resides in the home and has been ordered by the court to submit to testing for alcohol, marijuana, or any controlled drug or substance, tests positive for alcohol, marijuana, or any controlled drug or substance, or fails to submit to the test as required, the Department of Social Services may immediately remove the child from the physical custody of the parent, guardian, or custodian, without prior court order, subject to a review hearing, which may be telephonic, within forty-eight hours excluding Saturdays, Sundays, and court holidays. As used in this section, any controlled drug or substance means a controlled drug or substance which was not lawfully prescribed by a practitioner as authorized by chapters 22-42 and 34-20B.

Source: SL 2008, ch 6, § 2.

9. Use of hearsay statements in termination proceeding did not violate constitutional right to confront witnesses, nor was it a deprivation of due process. The South Dakota Supreme Court affirmed both parents’ termination of the parental rights to four children in *In the Matter of S.A., A.A., E.A., and A.A.*, 2005 SD 120, 708 N.W.2d 673.

In this case the state utilized hearsay statements (regarding physical abuse) made by the children to a therapist and others who came to their aid following discovery of the abuse by the school principal for one of the children. The state followed the procedure set forth in SDCL 19-16-39 which permits the use of hearsay statements concerning child abuse in certain situations and gave the parents notice of its intent to use such hearsay statement. On appeal the parents argued that they were denied their right to cross-examine and “to confront” their accusers, citing the recent U.S. Supreme Court case of *Crawford v. Washington*, 541 U.S. 36 (2004). With respect to the “right to confront” afforded by the 6th Amendment to the U.S. Constitution, the South Dakota Supreme Court held that the proceeding below was civil, not

criminal, and stated “Therefore, the *Crawford* analysis involving the Sixth Amendment right of confrontation in criminal cases is not applicable in this civil abuse and neglect proceeding.” ¶ 17.

The parents also argued that since they have a fundamental “liberty interest” in their children, as recognized by the U.S. Supreme Court (case citations omitted here), they have a right to confront and cross-examine the witnesses (children) by virtue of the Due Process Clause of the 14th Amendment to the U.S. Constitution. The South Dakota Supreme Court found it “unnecessary to undergo a due process analysis,” however, because “these parents were not denied the opportunity to cross-examine the children.” ¶ 18. The Court adopted the reasoning of the trial court – that since these parents were given notice by the state of its intent to use the hearsay statements in court, the parents could have subpoenaed the children to the adjudicatory hearing for the purpose of questioning them. “[I]n this case, both Mother and Father were aware before the adjudicatory and dispositional hearings that the State intended to offer the hearsay statements. Thereafter, parents could have called the children to cross-examine them but chose not to do so.” ¶ 20.

The parents also argued that termination was not the least restrictive alternative and that DSS had not made reasonable efforts to rehabilitate the family, as required by SDCL 26-8A-21. The trial court had found that the DSS had made “reasonable but unsuccessful efforts to rehabilitate the family.” ¶ 10. The South Dakota Supreme Court agreed, stating that “Although this statute requires DSS to make reasonable efforts, ‘[e]xhaustion of every possible form of assistance is not required.’” [quoting and citing *People in the Interest of T.G.*, 1998 SD 54, ¶ 21, 578 N.W.2d 921, 924]. The Court did acknowledge that “unlike some abuse and neglect cases, Mother and Father did cooperate with DSS in fulfilling a vast majority of the requirements imposed upon them.” ¶ 26. Nonetheless, both parents persisted in a denial of the physical abuse which had been established by “overwhelming evidence to the contrary.” ¶ 10. The Court agreed with the testimony of the expert provided by DSS to the effect that due to the parents’ continued untruthfulness (as exhibited by their continued denial of abuse), additional therapy and classes would not be of any benefit to the parents. The Court stated toward the end of its opinion, “... the parents’ denials made the offered services unsuccessful, and ‘[t]ermination is appropriate where services are unaccepted or unsuccessful.’” [again quoting and citing the *T.G.* case.]

10. Trial court reversed for NOT terminating rights of father. In *People in the Interest of P.K., C.K., & K.K.*, 2006 SD 17, 711 N.W.2d 248, the trial court was reversed for *not* terminating the rights of the natural father who had spent substantial time in prison and did not fully cooperate with DSS when he was released. The mother had taken the three children to DSS and asked that they be put up for adoption while the father was in prison in Montana. The trial court directed that DSS try to work with the father when he was released from prison. The disposition hearing came 3 and ½ years after DSS first got involved and the father did not attend the hearing, but indicated through his attorney that although he did not seek custody, but he did not wish to give up his parental rights. The trial court did not terminate the father’s rights, but instead attempted to establish a permanent guardianship with the maternal grandparents under SDCL 26-8A-21.2, thereby allowing the father the possibility of further contact with the children. The children appealed, arguing that the father’s rights should have been terminated. DSS joined in the brief filed by the children on appeal. Father did not file a brief in support of the trial court’s ruling. This opinion provides a very thorough review of the evidence and procedures involved at the trial level, concluding that “Ultimately, termination was required under the trial court’s own findings.” ¶ 25. The opinion also holds that SDCL 26-8A-21.2 (which authorizes a legal guardianship) was not an available disposition statute in this case since “that statute only applies to dispositions when ‘aggravating circumstances’ are present and reunification efforts will not be undertaken.” ¶ 25.

OPEN ADOPTIONS?

The South Dakota Supreme Court approved the concept of an “open adoption” in the *Interest of S.A.H.*, 537 N.W.2d 1 (S.D. 1995). Although not done in the *S.A.H.* case itself, the court observed that “the most compelling argument for open adoption is founded on the psychological needs of the child.” The court cautioned that post-adoption visitation could result in interference with the relationship between the adoptive parents and the child and suggested that the trial courts should consider the ramifications of such visitation. The court further suggested the appointment of a guardian ad litem to assist in the enforcement of post-adoption visitation, should it be awarded.

It was reported in 1996 in the Sioux Falls *Argus Leader* that “open adoptions” had become common place in South Dakota. The article, entitled “*Replacing Insecurity With Gratitude*,” indicates that the birth mother and sometimes the father “look at profiles of potential adoptive families and choose people who are comfortable with the same level of openness” paraphrasing Dede Glood, Director of Adoptions at Lutheran Social Services in Sioux Falls. The article also states that “up to 90 percent of adoptions arranged by Lutheran Social Services are open to some degree.” Mary Van Beusekiom, *Replacing Insecurity with Gratitude*, Sioux Falls *Argus Leader*, April 29, 1996 at 1D.

Another article on open adoptions appeared on the front page of the December 17, 2004 *Argus Leader* Newspaper. It was entitled, *Open Adoptions Gain Popularity* and also sub-titled *Bonds between parents a benefit, advocates say*. Following is an excerpt from this article:

“The adopted child who doesn’t know her birth mom’s name is becoming less common, due to the growing popularity of open adoptions for babies born in the United States. These arrangements, which can be as simple as both sets of parents knowing each other’s identities, have become the norm in the past 10 years, according to Sioux Falls-based agencies. Because adoptive parents outnumber available U.S. babies, birth moms have a say in who will raise their child and how involved they want to be in his or her life. Birth mothers have become a driving force in the changing face of adoption... The concept of open adoption can mean different things to families. For some, it’s just exchanging first and last names. For others, it means visiting with birth parents and extended family members a few times a year.” page 1A, *Argus Leader*, December 17, 2004.

The difference between the holding in the *S.A.H.* case and the situation described in the news articles of the preceding paragraphs is the existence of an “agreement” to allow for the open adoption. The holding in the *S.A.H.* case was that a court could order an open adoption in a situation where there was no agreement. This was a little too liberal for the SD law makers. Accordingly, the 1997 South Dakota legislature overruled the holding in *S.A.H.*, 537 N.W.2d 1 (S.D. 1995) by making it clear that “open” adoptions are no longer permitted unless it is provided for in a “written pre-adoption agreement” entered into between the natural parents and the adoptive parents. This statute, SDCL 25-6-17, is reproduced in the Adoption sub-chapter, *supra*.

In the “Abuse and Neglect” Chapter, the 1997 SD legislature made certain that “The natural parents retain no post-termination rights or privileges including post-termination visitation except for any final visitation allowed by the department.” Senate Bill 260 added this language to SDCL 26-8A-27 in the “abuse” and “neglect” statutes.

CURBING THE JURISDICTIONAL REACH OF THE ABUSE & NEGLECT COURTS

Court not permitted to steer post-termination adoption. The trial court erred, in *In Re: J.H.*, 1999 SD 36, 590 N.W.2d 473, in trying to preserve access rights for the mother whose rights had been terminated in an abuse and neglect proceeding and in trying to steer the post-termination adoption in favor of the Grandparents. An “open adoption” is not permitted under SDCL 26-8A-27 and, furthermore, the directive of this statute which provides that “the court shall vest the Department of Social Services with the custody” does not permit the trial court to steer a post-termination placement of the child. The reversal in this case is further supported by SDCL 25-6-17 which provides that no post-adoption rights or privileges are retained by the natural parents in this case.

Abuse and Neglect Court cannot retain jurisdiction to make custody orders once state announces it plans to dismiss abuse and neglect proceeding. Initial abuse and neglect proceeding was brought when allegations of improper touching of child’s vaginal area were made against father. Eventually the state announced that it would dismiss abuse and neglect proceeding and then submitted a formal motion to dismiss which generated a formal order of dismissal by the trial judge. Notwithstanding this, the trial court retained jurisdiction over the custodial placement of the child, and entered an order granting legal custody to DSS, with physical custody to mother. Meanwhile, mother’s divorce proceeding was pending in front of another circuit judge. Father appealed the decisions of the abuse and neglect court in *People ex rel. T.G.*, 2001 SD 15, 621 N.W.2d 608. The South Dakota Supreme Court unanimously agreed with father, reversing all orders entered by the abuse and neglect court after the dismissal of the abuse and neglect petition. Under SDCL 26-7A-86, the court was required to terminate its jurisdiction. [applicable language of 26-7A-86 provides that “If the court finds the allegations of the petition ... are not supported by clear and convincing evidence ... the court shall enter a final order accordingly and the action shall be terminated.”] The SD Supreme Court observed in a footnote that the divorce court was ready to assume jurisdiction of any custody dispute involving the child.

Abuse and Neglect Court not permitted to permit last-minute voluntary termination and adoption by relatives. During the pendency of an “abuse and neglect” proceeding, the trial court permitted the mother and father to file a voluntary termination petition under SDCL 25-5A. Through the voluntary proceeding, the child was placed with her aunt and uncle (father’s sister and her husband). This took place on the date that the final dispositional hearing was scheduled in the “abuse and neglect” proceeding which had been instituted by DSS. The result of the trial court’s action was to evade control over the final placement of the child by DSS. The South Dakota Supreme Court reversed, in an unanimous *per curiam* opinion. *In the interest of H.O.*, 2001 SD 114, 633 N.W.2d 603. Notably, this opinion was handed down only 20 days after the case was submitted on briefs. According to the Supreme Court, the state’s role, acting through DSS, is one of *parens patriae* and this role cannot be circumvented by the trial court’s looking to a “voluntary termination [proceeding] exclusively while abandoning the abuse and neglect action.” ¶9 & ¶10, 633 N.W.2d at 605.

MISCELLANEOUS NOTES AND QUESTIONS

1. SDCL 26-8A-26 presently provides that a child may not remain in foster care in excess of 12 months. Prior to being amended in 1997, this statute prohibited foster care in excess of 18 months. In *People in Interest of A.R.P.*, 519 N.W.2d 56 (S.D. 1994), the child had been in foster care for 25 months. The trial court refused to dismiss the dependency and neglect proceeding on the basis that time period of 18 months had been exceeded. The South Dakota Supreme Court affirmed, noting that the child was not “languishing” in foster care and that the delay was, in large part, attributable to the “parents’ difficulty in obtaining and maintaining an attorney.”

2. Mother’s and Father’s rights were terminated following a hearing at which there was extensive evidence as to father’s abuse as to mother and the child. Father was serving a six-year sentence in prison as a result of his abusive conduct toward the mother (he had grabbed her head and bit off her nose). Father was classified as an illegal alien (as an “aggravated felon”) and upon release from prison, was subject to immediate deportation. Following the hearing, the trial court terminated the rights of both mother and father. The trial court declared that the hearing had been a “dispositional” hearing, even though there never had been an “adjudicatory hearing.” At the hearing, Mother stipulated to the evidence of abuse and neglect, but Father did not. The trial court excused the lack of an adjudicatory hearing as unnecessary, since the mother had stipulated to the abuse and neglect. On appeal, the South Dakota Supreme Court held that it was error not to have an “adjudicatory hearing” but that the error was harmless. *Matter of C.V.*, 579 N.W.2d 17, 1998 SD 47 (S.D. 1998). Justice Sabers dissented, relying on *Santosky v. Kramer*, 455 745 (1982) and suggesting that the 14th Amendment has not been interpreted to say “that the Due Process clause may be ignored because the person denied his rights thereunder was sure to lose anyway.” [Footnote 4 of the majority opinion makes it clear that the majority opinion rests on belief that an error of constitutional dimension may still be deemed harmless.]

3. For an excellent student review of the *C.V.* case described in the preceding note, see Denise M. Faehnrich, “The ‘Harm’ in the Application of the ‘Harmless Error’ Doctrine to the Constitutional Defect in *In Re C.V.*,” 44 South Dakota Law Review 340 (1999).

4. **In representing a parent whose rights have been terminated in an abuse and neglect proceeding, court appointed counsel is authorized to utilize a “Korth brief” in which the lawyer indicates that there are no “arguably meritorious” issues for the appeal, according to *In the Interest of A.D.*, 2004 SD 39, 678 N.W.2d 594.** Father who had served time in state penitentiary in different intervals, first on the initial sentence and subsequently for parole violation, had his parental rights terminated in abuse and neglect proceeding. Father’s court-appointed lawyer filed a “Korth brief” on appeal. The state argued that the “Korth brief” should not be available in civil proceedings to terminate parental rights and requested the brief be stricken. The South Dakota Supreme Court held in a (5-0) per curiam opinion that a “Korth brief” was “procedurally appropriate” in a termination of parental rights. The Court also found that the issues asserted by the father in “Section B” of the brief were without merit.

As explained in ¶ 8 of the *A.D.* opinion, “The [Korth brief] procedure requires bifurcated briefing in which counsel indicates in Section A of the brief that he has not identified any arguably meritorious issues for appeal and submits, in Section B of the brief, any claim of error requested by the client.” A “Korth brief” traces back to the case of *State v. Korth*, 2002 SD 101, 650 N.W.2d 528, in which the South Dakota Supreme Court approved of this alternative appellate briefing procedure in situations where court appointed counsel identify that there are no “arguably meritorious” issues for appellate

review. This procedure is in accordance with the U.S. Supreme Court decision in *Anders v. State of California*, 386 U.S. 738 (1967).

The South Dakota Supreme Court surveyed a number of jurisdictions and found that, although there is a split of authority, “it would appear to be the majority view that *Anders* should be held applicable to appeals in termination of parental rights cases.” ¶ 12. The Court sided with the majority view, holding that, “counsel’s submission of a *Korth* brief in this termination of parental rights case was procedurally appropriate and the State’s arguments to the contrary are rejected.” ¶ 12. The Court then proceeded to address Section B of the brief which set forth four issues requested by father to be presented on appeal. The Court found that all four issues lacked merit. ¶¶ 13 through 17.

5. Relatives of child adjudicated as abused and neglected, even though approved by DSS as an adoptive family, have no right to intervene in A & N proceeding for purpose of challenging DSS’ placement of child with non-relatives, according to *In the Interest of D.M.*, 2004 SD 34, 677 N.W.2d 578. DSS approved three adoptive families for the adoptive placement of the child, D.M., who became eligible for adoption through an abuse and neglect proceeding. Two of the adoptive families were related to D.M. Eventually DSS selected the non-related foster family for D.M.’s adoption. Faye and Kelly Degen, who were great aunt and uncle to D.M., filed a motion to intervene in the A & N proceeding. The trial court denied intervention and the South Dakota Supreme Court affirmed in a 4-1 decision, with Justice Sabers dissenting.

The majority opinion, by Justice Meierhenry, upheld the delegation of authority to DSS to act, relying upon the language of SDCL 26-8A-27 which provides that “Upon entry of the final decree of disposition ... , the court shall vest the Department of Social Services with the custody and guardianship of the person of the child for the purpose of placing the child for adoption ...” As to the prospect of an intervention by this aunt and uncle, the court’s opinion simply addresses and refutes the arguments made by the aunt and uncle. The resolution of those arguments, by the majority opinion, are as follows: (1) the right of intervention found in the procedural rule SDCL 15-6-24(a) is not applicable in the dispositional phase of the A & N proceeding under of SDCL 26-7A-34(1) & (2), as interpreted by the Court; (2) nothing in the A & N statutes themselves affords the aunt and uncle the right to intervene; (3) the recent legislative enactment (made in 2002) pertaining to non-parents and the right of intervention found in SDCL 25-5-29 specifically excludes A & N proceedings; (4) the assertion that the adoption statutes, in particular SDCL 25-6-2, might afford the right of intervention to aunt and uncle was not addressed by the majority opinion, however the opinion also leaves open the possibility of the issue being resolved in a subsequent later proceeding (“Whether Degens have a right to intervene in a subsequent adoption proceeding is not the issue in this case nor was it raised or briefed by the parties.”) ¶9; (5) Iowa case law upholding the right of intervention in a similar situation was rejected as being persuasive because it rested on a different statutory basis, unlike the SD statute which instructs that “*the court shall vest the Department of Social Services with the custody ...*” ¶ 10.

In his dissent, Justice Sabers argues that the aunt and uncle have a legally protected interest and also the right of intervention. (“The conduct of DSS is especially arbitrary and unreasonable in these circumstances. First, it invites D.M.’s relatives into the proceeding by approving them for adoptive placement. Second, it causes them to get their hopes up and then third, attempts to cut off their chances without a hearing on the merits.” ¶20.) Their legally protected interest comes from internal policies of DSS which indicate an order of adoptive placement preference in favor of family members related to the child. (This argument is supported by language found in a DSS “Procedures Manual” and also by citation to the U.S. Supreme Court decision in *Chevron v. Natural Resources Defense Council* which suggests that the DSS “guideline” for family preference should be given controlling weight. ¶¶ 25 & 26.

Justice Sabers also finds that the aunt and uncle would have the right to intervene by virtue of

SDCL 25-6-2, a statute found in the Adoption chapter. ¶ 19. Furthermore, since the majority opinion does not recognize the applicability of the adoption statute in this case at this point in time, then further delay in the resolution of this case is necessitated because the right of intervention can be suggested by the aunt and uncle at the next stage of the proceeding. “Now the case can go back to the circuit court for consideration of the adoption, the Degens can attempt to intervene again, the court can deny intervention and the parties can once again bring this case back to this Court.” ¶21.

Justice Sabers also suggests that the relaxation of the rules in civil procedure found in SDCL 26-7A-34 should not be utilized to override the trial court’s duty under SDCL 26-7A-56 to be fully informed “of the exact status of the child.” (“DSS does not have unlimited authority over final adoptive placement. Rather, DSS’ selection of adoptive parents is subject to the court’s review and final approval... The majority opinion elevates DSS from the advisory and investigative role contemplated by the Legislature and presses trial courts into abdicating their role as final arbiter of the best interest of the child.” ¶24.)

6. The *D.M.* case was once again presented to the South Dakota Supreme Court. Oral Argument was entertained on April 26, 2005. The issue presented dealt with whether or not the aunt and uncle were entitled to judicial review of DSS’s selection of the adoptive parents.

7. In connection with the issue raised in the *D.M.* case, it must be noted the 2005 South Dakota Legislature enacted measures that enhance the rights of relatives who may serve as adoptive parents in cases where DSS has been successful in terminating parental rights. Under new legislation, DSS is directed to give a placement preference to a relative or custodian of the child. Furthermore, any relative who has been denied adoptive placement is permitted to seek judicial review in circuit court to determine if the placement by DSS was an abuse of discretion. Judicial review is not available if the child has been placed with another relative. The new legislation takes effect July 1, 2005. The new legislation will be manifested in an amendment to SDCL 26-7A-19 (placements at temporary custody hearing) and in new provisions enacted in SDCL 26-7A (regarding placements subsequent to temporary custody placement – see new SDCL 26-7A-19.1) and SDCL 26-8A (authorization of judicial review in circuit court as to placements not made with relatives or custodians – see new SDCL 26-8A-29.1). Since the new legislation does not take effect until July 1, 2005, it was not available to the aunt and uncle in the *D.M.* case.

8. Aunt and Uncle denied intervention in adoption proceeding which was triggered by termination of parental rights, notwithstanding the fact Aunt and Uncle had previously been approved as an adoptive placement by DSS. (Part II of the *D.M.* litigation.) In its decision in *In the Matter of the Adoption of D.M.*, 2006 SD 15, 710 N.W.2d 441, the South Dakota Supreme Court held that the aunt and uncle who had been previously approved as one of three adoptive placements for their grandniece, D.M., did not have the right to intervene in the adoption proceeding filed by the foster family with whom DSS had placed the child. This aunt and uncle had previously sought to intervene in the A & N proceeding in which the parental rights of D.M.’s parents were terminated. The South Dakota Supreme Court previously ruled that the trial court had acted correctly in denying intervention in the A & N proceeding in *In the Interest of D.M.*, 2004 SD 34, 677 N.W.2d 578.

After this earlier decision (which denied intervention in the A & N proceeding), the 2005 South Dakota Legislature amended the A & N statutes so as to:

- (1) require a placement preference for relatives (SDCL 26-7A-19 & 26-7A-19.1);
- (2) afford a relative denied adoptive placement the right to intervene in the A & N proceeding (SDCL 26-8A-29.1); and

(3) also afford a relative denied adoptive placement a right to hearing to determine whether the denial was an abuse of discretion (SDCL 26-8A-29.1).

(4) the 2005 amendments also specifically deny the right of intervention in an adoption proceeding (SDCL 26-8A-29.1).

Following the resolution of their earlier appeal which denied them the right of intervention in the A & N proceeding, the aunt and uncle sought to intervene in the adoption proceeding which was initiated by the foster family selected by DSS. The trial court denied their motion to intervene and the South Dakota Supreme Court affirmed in a 2-2-1 decision, with 4 justices voting to uphold the denial. Justice Sabers dissented. The aunt and uncle did not have a “legally protectable interest” under the intervention rule, SDCL 15-6-24(a) and the 2005 legislation did not benefit them because all of the A & N proceedings regarding D.M. had been concluded prior to the new law taking affect. Furthermore, the new legislation specifically denies the right of intervention in the adoption proceeding.

Justice Sabers’ dissent looks at the timing of the two proceedings, noting that the Court could have authorized the intervention into the adoption proceeding in its earlier decision. Justice Sabers stated, “... the Legislature, by amending SDCL 26-7A-19, clearly intended that individuals in the [aunt and uncle’s] position have an opportunity to adopt their relatives.” ¶ 27.

9. In *Dubray v. DSS*, 2004 SD 130, 690 N.W.2d 657, Dubray’s name was placed on the Central Registry of Child Abuse and Neglect by DSS based on an alleged incident where a child was left unattended. Dubray challenged this in an administrative appeal and lost. Dubray then appealed to the Circuit Court which ruled for Dubray. The South Dakota Supreme Court affirmed in a 5-0 opinion because Dubray had been denied due process in that “DSS’s case was based entirely upon three documents that were hearsay.” ¶ 1. [In the process of taking her appeal to Circuit Court, Dubray failed to file a timely brief. The Circuit Court “excused the default, finding good cause had been established” because of an error which occurred when Dubray’s “file was placed in Dakota Plains Legal Services’ tickler system.” ¶ 4.]

10. ***In Re T.H.M.*** On January 30, 2002, the South Dakota Supreme Court handed down its decision in *In Re T.H.M.*, 2002 SD 13, 640 N.W.2d 68. In *T.H.M.*, the paternal grandmother of the children had been successful in acquiring their custody through a guardianship proceeding. The father of the children had committed suicide, leaving the dispute between the natural mother and the paternal grandmother. The trial court ruled in favor of the grandmother, finding that the children had been abused and neglected under SDCL 26-8A, the subchapter of South Dakota statutes designed to facilitate investigation and action by the Department of Social Services (“DSS”). In this case, despite being requested to get involved, DSS had declined to do anything. The South Dakota Supreme Court reversed the favorable ruling for grandmother, holding that the abuse and neglect statutory provisions of SDCL 26-8A were not available for use by grandmother in a guardianship proceeding. The court further rested its decision on a failure of due process to the mother. The South Dakota Supreme Court also directed the trial court to *order* DSS to intervene in the proceeding. Justice Konenkamp dissented with an opinion which elaborates, in detail, the extent of the misery inflicted on these children. He would allow use of the guardianship statutes to decide custody in cases such as this. As to the role of DSS, he stated “It remains to be seen how the Department will proceed now, when it decided not to proceed before. This is not to fault the Department. Perhaps it never became aware of all the particulars we now have. But the fact remains that, were it not for the grandmother, these children would be without hope.” ¶ 22, 640 N.W.2d at 74. Justice Konenkamp further rebuts the mother’s claim of a due process violation. **It is IMPORTANT to note that the 2002 South Dakota Legislature overruled the *T.H.M.* decision, by amending SDCL 29A-5-106 to permit a person other than a parent to seek child custody through**

the guardianship statutes, subject however to a priority resting with other courts which may have a superior claim to jurisdiction such as a court of continuing jurisdiction or a court entertaining a proceeding by DSS under SDCL 26-8A or another juvenile court proceedings under SDCL 26-7A, 26-8B or 26-8C. If the facts of *T.H.M.* were to be presented today under the amended version of SDCL 29A-5-106, then the guardianship proceeding could proceed so long as DSS did not initiate a proceeding of its own.

11. Pending criminal charge against parent does not serve as adequate basis for continuance of adjudicatory hearing in A & N proceeding notwithstanding parent's claim that participation in adjudicatory hearing would be restricted because of concern of self-incrimination. In *Interest of D.A.J.*, 2008 SD 92, ___ N.W.2d ___ the father's rights were terminated in an A & N proceeding. (Mother's rights had been previously terminated.) Criminal charges were filed against the father over the same conduct that precipitated the child's removal from father's care. Father argued that he was unable to effectively participate in the adjudicatory hearing because such might be incriminating against him in the companion criminal case. Father sought a continuance on this basis. The trial court denied father's request for continuance and terminated father's rights. The SD Supreme Court affirmed in a *per curiam* opinion.

12. State permitted to prosecute A & N proceeding in Minnehaha County following judicial dismissal of substantially similar proceeding in Lincoln County. The trial court terminated mother's parental rights in *Interest of L.S.*, 2006 SD 76, 721 N.W.2d 83, and the SD Supreme Court affirmed in a 3-2 decision. The grounds against mother in this abuse and neglect (A & N) proceeding centered on her allowing T.O. (mother's boyfriend whom she later married) to "prey" upon her children and perpetrate acts of sexual contact. Initially the A & N proceeding was brought in Lincoln County where Circuit Judge Kathleen K. Caldwell found that abuse and neglect had occurred but ultimately found the evidence was insufficient to support termination of parental rights. Shortly thereafter further contact between the T.O. and two of mother's children was observed. The state's attorney for Lincoln County filed a motion for "reconsideration" of Judge Caldwell's ruling and sought to bring this new evidence to light. Judge Caldwell telephoned the state's attorney and advised him that he would need to bring a new case. Shortly thereafter the state brought a new action, but did so in Minnehaha County instead of Lincoln County. Judge Peter H. Lieberman presided over the Minnehaha proceeding. A substantial portion of the state's case in the 2nd proceeding involved evidence of mother's conduct as established in the Lincoln County proceeding. Furthermore, the state was relieved of its burden to provide "reasonable efforts" toward reunification due to the findings of Judge Caldwell in the Lincoln County proceeding – there had been a prior adjudication of abuse and neglect. At both the trial level and in the SD Supreme Court, mother argued that the Lincoln County proceeding was res judicata over the Minnehaha County proceeding. The majority opinion was authored by Justice Konenkamp. Justice Zinter and Chief Justice Gilbertson concurred with Justice Konenkamp's opinion. Justice Zinter also authored a special concurring opinion to which C.J. Gilbertson also agreed. Justice Sabers dissented. Retired Chief Justice Miller (sitting for J. Meierhenry) agreed with Justice Sabers' dissent.

The majority opinion holds that res judicata should not apply in special situations such as this where a child's welfare is concerned. The state acts in the *parens patriae* role and there is an ongoing duty for the court to look at the children's welfare. According to the majority, "A hyper-technical application of res judicata is simply not appropriate in these extraordinary circumstances... the children's welfare still demands that we place greater emphasis on their protection than on a judicial policy against repeat litigation." ¶ 29.

As to the requirement that the state pursue "reasonable efforts" to reunite the mother and

children, the trial court did not commit error in excusing the state from providing those efforts. Under the federal Adoption and Safe Families Act (ASFA) and the corresponding state statutes, reasonable efforts are not required if there are "aggravating circumstances." The prior adjudication of abuse and neglect in the Lincoln County proceeding constituted the aggravating circumstance, notwithstanding the subsequent dismissal of that action in favor of mother.

Mother's persistent pattern of associating with T.O. was a major concern for the Minnehaha County court and supported the determination that termination of parental rights was the least restrictive alternative. In echoing a theme seen in other cases, the majority opinion stated, "We have consistently held that children are not required to wait for their parents to acquire parenting skills." ¶ 39.

The dissent views this case as one of judge-shopping. The dissent believes that the 2nd proceeding brought in Minnehaha County should have been barred by the doctrine of res judicata. According to Justice Sabers, "I will not join an opinion that allows the State to fail to bring a hearing [in Lincoln County] because it thought it was going to lose, fail to appeal, and then bring a new action in a different county, based on the same facts, the very next day." ¶ 68.

13. *In the Interest of T.I. and T.I.*, 2005 SD 125, 707 N.W.2d 826. This abuse and neglect proceeding involved two Indian boys. The older boy was enrolled in the Yankton Sioux Tribe (YST). Both boys were eligible for enrollment in the Sisseton Wahpeton Sioux Tribe (SWST). Although the Yankton Sioux Tribe originally requested transfer to its tribal court, it subsequently withdrew its request and supported the request for transfer made by the Sisseton Wahpeton Sioux Tribe. The trial court denied the request for transfer and terminated the parental rights of both mother and father. The South Dakota Supreme Court affirmed the lower court, making a number of significant rulings. Two of the rulings will be discussed in connection with the ICWA materials. The following ruling is relevant here:

Parents in A & N Proceeding do not Enjoy Blanket Right to Refuse to Testify Because of Alleged Self-Incrimination. The children's attorney sought to question mother at the dispositional hearing, but was denied the opportunity. The trial court held that neither parent could be required to testify by virtue of the 5th amendment privilege against self-incrimination found in the U.S. Constitution and also by virtue of Article VI, § 9 of the South Dakota Constitution. The trial court's ruling was, in essence, a holding that the parents enjoyed a "blanket right not to testify." The SD Supreme Court chose to address this issue raised on appeal by the children's attorney, despite the fact the termination of parental rights was affirmed. ["While the issue is moot because we are affirming the circuit court's decision to terminate parental rights, we nevertheless choose to address it for the benefit of the bench and bar." ¶ 37.]

The SD Supreme Court recognized that the right not to testify does indeed apply in civil proceedings such as abuse and neglect proceedings which are "civil in nature." ¶ 38. But, it is error to consider the right against self-incrimination as a "blanket right not to testify." When dealing with this issue, the trial court should not deny the questioner an "opportunity to inquire into areas that would be non-incriminating." ¶37. Additionally, the trial court "should determine if the witness 'is confronted by substantial and "real", and not merely trifling or imaginary, hazards of incrimination.'" ¶39 citing *Daly v. United States*, 393 F.2d 873, 878 (8th Cir. 1968) which quotes and cites a 1951 U.S. Supreme Court case.

14. **Termination of Parental Rights of Mother, who was served by publication, upheld in face of collateral attack because of Mother's inability to show lack of "due diligence" by DSS in its obligation to seek out her whereabouts. *In the interest of D.F.*, 2007 SD 14, 727 N.W.2d 481.** In the case of *In the interest of D.F.*, 2007 SD 14, 727 N.W.2d 481, we find an abuse and neglect proceeding which was brought primarily against the father of the child, both of whom lived in South Dakota. In this proceeding Mother was not located and was, accordingly, served by publication. Mother did not participate in the proceedings but she brought a 60(b) challenge about 18 months later. Mother's challenge was based on the assertion that DSS did not use due diligence in trying to locate her. In particular mother asserted that DSS, "did not search any old addresses, did not look for any other members of Mother's family, did not look at D.F.s birth certificate for her old address and did not do an internet search." (quoted material taken from ¶ 21, Justice Sabers' dissent.) It should be noted that mother did live a "nomadic lifestyle" the extent of which is detailed in the majority opinion. The trial court denied mother's collateral challenge and the South Dakota Supreme Court affirmed in a 4-1 opinion authored by Justice Zinter. It should also be noted that the trial court had initially granted relief to mother under 60(b) [SDCL 15-6-60(b)], but then acknowledged that under SDCL 26-7A-108 this type of decree (one which terminates parental rights) is given additional protection against efforts to set aside. The majority declines to make an attempt in this case to harmonize the rule (SDCL 15-6-60(b)) and the statute (SDCL 26-7A-108) holding that the mother's efforts failed under either one because she was unable to show a lack of due diligence. ¶ 16. Justice Sabers dissents, believing that mother indeed established a lack of due diligence and that service by publication was not warranted.

2007 & 2008 LEGISLATION AFFECTING DSS RELATED LITIGATION

The following provisions were enacted into law in 2007:

Legislative update (2007): Central Registry Records Made Available for Juvenile Court Proceedings. House HB 1059, which was enacted into law in 2007, allows for a Central Registry check to be made and available to a juvenile court having jurisdiction over a child. This enables a circuit judge to access Central Registry to see if prospective adoptive/foster parents are on the Central Registry for abuse and neglect. This bill permits Judges to make queries to DSS and it makes the DSS file discoverable by state's attorney and available to the court services officer. The file is useable but remains confidential – the file cannot be copied. This bill adds two new sections, SDCL 26-8A-13.1 and SDCL 26-8A-13.2 in subchapter SDCL 26-8A and one new section, SDCL 26-11A-34, in subchapter SDCL 26-11A.

Legislative update (2007): DSS Permitted to Share Information More Extensively with Tribal Authorities. House Bill 1078, enacted into law in 2007, allows tribal child welfare agencies to obtain results of check with central registry for abuse and neglect. This statute broadens the ability of the State to cooperate and collaborate with tribes in SD by amending SDCL 26-8A-13 and adding the new section, SDCL 26-8A-12.3. The previous version of SDCL 26-8A-13 only permitted the sharing of information with tribes that had existing contracts or licensing agreements with DSS. This statute allows DSS to check the Central Registry and to share information with any tribal child welfare agency to allow it to screen prospective foster or adoptive parents. This new statute broadens the ability of DSS to assist the tribes because it will allow the sharing of information with tribes even if there isn't an existing contract or licensing agreement.

Legislative update (2007): DSS Information to be Shared with Other States. Under House Bill 1079, which was enacted in 2007, there is authorization for release of information from central registry for abuse and neglect in background checks for prospective adoptive or foster parents coming from other states. This statute is required to comply with new federal requirements established by Congressional passage of the Adam Walsh act of 2006. This new provision enables SD to share information with other states and protects such information gained from other states and federal data bases. This statute brings SD into compliance with Adam Walsh Act. New statutory provisions are found as SDCL 26-6-14.13 and SDCL 26-8A-12.4.

Legislative update (2007): Due Process Protections Established for Persons Whose Names Are Placed on DSS Central Registry. The 2007 enactment of House Bill 1152 establishes due process protections for persons whose names are placed on central registry for abuse and neglect. This statute speeds up the process by which a person who is accused of abuse and neglect may contest the placement of his/her name on the Central Registry. If a claim of abuse and neglect is substantiated, then that person's name is placed on the Central Registry. Placement of a name on a Central Agency has consequences because a person whose name is on the Registry cannot be a foster parent, adoptive parent, child care provider and can not seek employment at a child care place such as McCrossan Boys ranch. The new bill amends SDCL 26-8A-11 by removing a delay (for an informal hearing) which existed under the former version of the statute.

Legislative update (2007): A & N Statutes Cross-Referencing Criminal Statutes Updated. House Bill 1153, enacted in 2007, is a "clean up" bill which simply corrects the cross-referenced statutes found in various Abuse and Neglect statutes. These changes were necessitated by the Criminal Code Revision which went into effect July 1, 2006. The cross-referenced criminal statutes are the criminal provisions, the violation of which, alleviates the need for DSS to make reasonable efforts toward reunification of child and parent. The following statutes are amended: SDCL 26-8A-12, SDCL 26-8A-21.1 and SDCL 26-8A

The following provision was enacted into law in 2008:

Fingerprint Criminal Record Checks Required Prior to Placement in Home for Adoption. The 2008 legislature amended SDCL 25-6-9.1 so as to require a "fingerprint based criminal record check" of persons in whose home a child is placed for adoption. This statute already requires a DCI background check as well as central registry screening. This additional requirement of a *fingerprint* based background check is required in order to maintain compliance with federal funding requirements under the Adam Walsh Act.

SHAKEN BABY SYNDROME

Shaken Baby Syndrome – one-time occurrence utilized as a basis authorized by ASFA to bypass the requirement that reasonable efforts be made to reunite mother and children. *In the Interests of E.L. and R.L.*, 2005 SD 124, 707 N.W.2d 841. Mother appealed the termination of her parental rights. Utilizing ASFA (the federal Adoption and Safe Families Act) and South Dakota's corresponding statutory enactment, SDCL 26-8A-21.1(2), DSS persuaded the trial court that it was not necessary for DSS to make reasonable efforts to reunite Mother with her children. Mother's 8 month old baby was found to have "major life threatening injuries including; four healing rib fractures, bilateral subdural hemorrhages, and bilateral retinal hemorrhages." ¶ 3. The baby had been taken from the daycare provider to the Mitchell hospital by ambulance and then airlifted to Avera McKennan Hospital in Sioux Falls. The treating physicians in Sioux Falls served as the state's expert witnesses in the abuse and neglect proceeding. Mother requested an independent expert witness be made available for her to consult and use at trial. This request was denied by the trial court.

In this case mother admitted, in a video taped interview, the conduct which probably caused the injuries, although she did not admit to "shaking" the baby. Apparently this was a one-time occurrence by mother. Also, "Mother has completed all that was asked of her and sought out more in an attempt to regain custody of her children. Mother genuinely loves her children and claims she would do anything for them." ¶ 19. The DSS caseworker testified that "she believed the children would be at risk if they were returned to the custody of their mother... 'even through it was a split second poor decision [to shake the baby] that greatly impacted [the baby's] life, it would cause reason to believe it could possibly happen again.'" ¶ 19.

The relevant provision of SDCL 26-8A-21.1 (2) provides that an effort toward reunification is not required if the parent "Committed a crime defined in § 22-18-1.1 against the child or another child of such parent." The trial court and the SD Supreme Court both found that mother had committed the crime of "aggravated assault" under SDCL 22-18-1.1 against the baby and that such conduct [even though a one-time occurrence] warranted a by-pass of the reasonable efforts requirement for both the baby and its sibling. Mother asserted that she had not been criminally convicted of the crime and that DSS was still obligated to make reasonable efforts at reunification unless she was convicted. The SD Supreme Court held that the use of the word "committed" [and not the word "convicted"] in SDCL 26-8A-21.1 refuted mother's argument.

Mother also argued that the trial court erred in denying the appointment of an expert for her. On this issue, a majority of four justices disagreed with mother, affirming the termination of her parental rights. [NOTE: This opinion presents a good review of SD case law concerning the "guidelines" for determining when trial courts should authorize "court-appointed" experts.] The majority opinion found that the trial court had acted appropriately based upon a number of considerations, to wit: 1) the state's experts were not specifically hired as testifying experts, but were treating physicians; 2) there was no indication in the record that the treating physicians were "any less available" to Mother than they were to the state; 3) Mother had the opportunity to participate in the depositions of the physicians and to question them; 4) Mother did not articulate "any reasonable facts" which supported her request, that she could not "establish an articulable basis for believing that the state's expert will present evidence which could reasonably be contradicted by other experts in the field" (quoting language from existing SD case law); and 5) the trial court was legitimately concerned with the high cost of expert which Mother proposed to utilize. ¶¶ 22-30.

Justice Meierhenry dissented on this latter issue, pointing out that the denial of her request for

an expert was “based upon the court’s predetermination as to the weight and credibility of the State’s witnesses” and as such “goes against the court’s responsibility to ensure a fair trial.” The dissent points out that the trial court found that ““absolutely no other possible explanation was submitted for the cause of these injuries”” notwithstanding the fact that another expert could indeed shed light on attribution to causes other than shaking. Justice Meierhenry further stated that “There should be some attempt to level the playing field and provide Mother with adequate resources to present her case.” ¶ 35. The dissent also points out that mere opportunity to participate in depositions of the state’s experts did not alleviate Mother’s need for own expert and neither did the fact that the State’s experts were the treating physicians. In fact, Mother needed her own expert “to ensure Mother adequate cross examination of the state’s witnesses. Without her own expert, she was hindered in refuting their conclusions.” ¶ 35. Justice Meierhenry would have reversed and remanded for a new hearing, directing the trial court to allow mother to hire an expert.

NOTE: The December 2005 issue of the ABA Journal contains an article, entitled “Battle of the Expert” on pages 52-58. This article details unsuccessful retribution taken by a district attorney against a medical doctor who gave testimony which supported the acquittal of licensed day care provider who had been charged with shaking a baby to death. The article states on page 54, “For nearly two decades, the theory behind shaken baby syndrome went virtually unchallenged in the medical community... By the mid-1990s, however, a number of forensic experts ... began to question the assumption upon which the shake baby diagnosis is based. They suggest that scientific evidence is lacking that infant brain injury can occur from shaking alone. They also contend that the injuries most often attributed to shaking could just as easily be due to other causes, such as a short-distance fall or a pre-existing medical condition.”

Question: What additional burdens, if any, exist when the child, which is the subject of the proceeding, is an Indian child? Hopefully, this question will be answered in the next sub-chapter.

E. Indian Child Welfare Act (ICWA)

1. Selected Relevant Statutory Provisions

From 25 U.S.C. § 1901 *et seq.*

§ 1901. Congressional findings

Recognizing the special relationship between the United States and the Indian tribes and their members and the Federal responsibility to Indian people, the Congress finds--

(1) that clause 3, section 8, article I of the United States Constitution provides that "The Congress shall have Power * * * To regulate Commerce * * * with Indian tribes" and, through this and other constitutional authority, Congress has plenary power over Indian affairs;

(2) that Congress, through statutes, treaties, and the general course of dealing with Indian tribes, has assumed the responsibility for the protection and preservation of Indian tribes and their resources;

(3) that there is no resource that is more vital to the continued existence and integrity of Indian tribes than their children and that the United States has a direct interest, as trustee, in protecting Indian children who are members of or are eligible for membership in an Indian tribe;

(4) that an alarmingly high percentage of Indian families are broken up by the removal, often unwarranted, of their children from them by nontribal public and private agencies and that an alarmingly high percentage of such children are placed in non-Indian foster and adoptive homes and institutions; and

(5) that the States, exercising their recognized jurisdiction over Indian child custody proceedings through administrative and judicial bodies, have often failed to recognize the essential tribal relations of Indian people and the cultural and social standards prevailing in Indian communities and families.

§ 1902. Congressional declaration of policy

The Congress hereby declares that it is the policy of this Nation to protect the best interests of Indian children and to promote the stability and security of Indian tribes and families by the establishment of minimum Federal standards for the removal of Indian children from their families and the placement of such children in foster or adoptive homes which will reflect the unique values of Indian culture, and by providing for assistance to Indian tribes in the operation of child and family service programs.

§ 1903. Definitions

For the purposes of this chapter, except as may be specifically provided otherwise, the term--

(1) "child custody proceeding" shall mean and include--

(i) "foster care placement" which shall mean any action removing an Indian child from its parent or Indian custodian for temporary placement in a foster home or institution or the home of a guardian or conservator where the parent or Indian custodian cannot have the child returned upon demand, but where parental rights have not been terminated;

(ii) "termination of parental rights" which shall mean any action resulting in the termination of the parent-child relationship;

(iii) "preadoptive placement" which shall mean the temporary placement of an Indian child in a foster home or institution after the termination of parental rights, but prior to or in lieu of adoptive placement; and

(iv) "adoptive placement" which shall mean the permanent placement of an Indian child for adoption, including any action resulting in a final decree of adoption.

Such term or terms shall not include a placement based upon an act which, if committed by an adult, would be deemed a crime or upon an award, in a divorce proceeding, of custody to one of the parents.

(2) "extended family member" shall be as defined by the law or custom of the Indian child's tribe or, in the absence of such law or custom, shall be a person who has reached the age of eighteen and who is the Indian child's grandparent, aunt or uncle, brother or sister, brother-in-law or sister-in-law, niece or nephew, first or second cousin, or stepparent;

(3) "Indian" means any person who is a member of an Indian tribe, or who is an Alaska Native and a member of a Regional Corporation as defined in section 1606 of Title 43;

(4) "Indian child" means any unmarried person who is under age eighteen and is either (a) a member of an Indian tribe or (b) is eligible for membership in an Indian tribe and is the biological child of a member of an Indian tribe;

(5) "Indian child's tribe" means (a) the Indian tribe in which an Indian child is a member or eligible for membership or (b), in the case of an Indian child who is a member of or eligible for membership in more than one tribe, the Indian tribe with which the Indian child has the more significant contacts;

(6) "Indian custodian" means any Indian person who has legal custody of an Indian child under tribal law or custom or under State law or to whom temporary physical care, custody, and control has been transferred by the parent of such child;

(7) "Indian organization" means any group, association, partnership, corporation, or other legal entity owned or controlled by Indians, or a majority of whose members are Indians;

(8) "Indian tribe" means any Indian tribe, band, nation, or other organized group or community of Indians recognized as eligible for the services provided to Indians by the Secretary because of their status as Indians, including any Alaska Native village as defined

in section 1602(c) of Title 43;

(9) "parent" means any biological parent or parents of an Indian child or any Indian person who has lawfully adopted an Indian child, including adoptions under tribal law or custom. It does not include the unwed father where paternity has not been acknowledged or established;

(10) "reservation" means Indian country as defined in section 1151 of Title 18 and any lands, not covered under such section, title to which is either held by the United States in trust for the benefit of any Indian tribe or individual or held by any Indian tribe or individual subject to a restriction by the United States against alienation;

(11) "Secretary" means the Secretary of the Interior; and

(12) "tribal court" means a court with jurisdiction over child custody proceedings and which is either a Court of Indian Offenses, a court established and operated under the code or custom of an Indian tribe, or any other administrative body of a tribe which is vested with authority over child custody proceedings.

§ 1911. Indian tribe jurisdiction over Indian child custody proceedings

(a) Exclusive jurisdiction

An Indian tribe shall have jurisdiction exclusive as to any State over any child custody proceeding involving an Indian child who resides or is domiciled within the reservation of such tribe, except where such jurisdiction is otherwise vested in the State by existing Federal law. Where an Indian child is a ward of a tribal court, the Indian tribe shall retain exclusive jurisdiction, notwithstanding the residence or domicile of the child.

(b) Transfer of proceedings; declination by tribal court

In any State court proceeding for the foster care placement of, or termination of parental rights to, an Indian child not domiciled or residing within the reservation of the Indian child's tribe, the court, in the absence of good cause to the contrary, shall transfer such proceeding to the jurisdiction of the tribe, absent objection by either parent, upon the petition of either parent or the Indian custodian or the Indian child's tribe: *Provided*, That such transfer shall be subject to declination by the tribal court of such tribe.

(c) State court proceedings; intervention

In any State court proceeding for the foster care placement of, or termination of parental rights to, an Indian child, the Indian custodian of the child and the Indian child's tribe shall have a right to intervene at any point in the proceeding.

(d) Full faith and credit to public acts, records, and judicial proceedings of Indian tribes

The United States, every State, every territory or possession of the United States, and every Indian tribe shall give full faith and credit to the public acts, records, and judicial proceedings of any Indian tribe applicable to Indian child custody proceedings to the same extent that such entities give full faith and credit to the public acts, records, and judicial proceedings of any other entity.

§ 1912. Pending court proceedings

(a) Notice; time for commencement of proceedings; additional time for preparation

In any involuntary proceeding in a State court, where the court knows or has reason to know that an Indian child is involved, the party seeking the foster care placement of, or termination of parental rights to, an Indian child shall notify the parent or Indian custodian and the Indian child's tribe, by registered mail with return receipt requested, of the pending proceedings and of their right of intervention. If the identity or location of the parent or Indian custodian and the tribe cannot be determined, such notice shall be given to the Secretary in like manner, who shall have fifteen days after receipt to provide the requisite notice to the parent or Indian custodian and the tribe. No foster care placement or termination of parental rights proceeding shall be held until at least ten days after receipt of notice by the parent or Indian custodian and the tribe or the Secretary: *Provided*, That the parent or Indian custodian or the tribe shall, upon request, be granted up to twenty additional days to prepare for such proceeding.

(b) Appointment of counsel

In any case in which the court determines indigency, the parent or Indian custodian shall have the right to court-appointed counsel in any removal, placement, or termination proceeding. The court may, in its discretion, appoint counsel for the child upon a finding that such appointment is in the best interest of the child. Where State law makes no provision for appointment of counsel in such proceedings, the court shall promptly notify the Secretary upon appointment of counsel, and the Secretary, upon certification of the presiding judge, shall pay reasonable fees and expenses out of funds which may be appropriated pursuant to section 13 of this title.

(c) Examination of reports or other documents

Each party to a foster care placement or termination of parental rights proceeding under State law involving an Indian child shall have the right to examine all reports or other documents filed with the court upon which any decision with respect to such action may be based.

(d) Remedial services and rehabilitative programs; preventive measures

Any party seeking to effect a foster care placement of, or termination of parental rights to, an Indian child under State law shall satisfy the court that active efforts have been made to provide remedial services and rehabilitative programs designed to prevent the breakup of the Indian family and that these efforts have proved unsuccessful.

(e) Foster care placement orders; evidence; determination of damage to child

No foster care placement may be ordered in such proceeding in the absence of a determination, supported by clear and convincing evidence, including testimony of qualified expert witnesses, that the continued custody of the child by the parent or Indian custodian is likely to result in serious emotional or physical damage to the child.

(f) Parental rights termination orders; evidence; determination of damage to child

No termination of parental rights may be ordered in such proceeding in the absence of a determination, supported by evidence beyond a reasonable doubt, including testimony of qualified expert witnesses, that the continued custody of the child by the parent or Indian custodian is likely to result in serious emotional or physical damage to the child.

§ 1913. Parental rights; voluntary termination

(a) Consent; record; certification matters; invalid consents

Where any parent or Indian custodian voluntarily consents to a foster care placement or to termination of parental rights, such consent shall not be valid unless executed in writing and recorded before a judge of a court of competent jurisdiction and accompanied by the presiding judge's certificate that the terms and consequences of the consent were fully explained in detail and were fully understood by the parent or Indian custodian. The court shall also certify that either the parent or Indian custodian fully understood the explanation in English or that it was interpreted into a language that the parent or Indian custodian understood. Any consent given prior to, or within ten days after, birth of the Indian child shall not be valid.

(b) Foster care placement; withdrawal of consent

Any parent or Indian custodian may withdraw consent to a foster care placement under State law at any time and, upon such withdrawal, the child shall be returned to the parent or Indian custodian.

(c) Voluntary termination of parental rights or adoptive placement; withdrawal of consent; return of custody

In any voluntary proceeding for termination of parental rights to, or adoptive placement of, an Indian child, the consent of the parent may be withdrawn for any reason at any time prior to the entry of a final decree of termination or adoption, as the case may be, and the child shall be returned to the parent.

(d) Collateral attack; vacation of decree and return of custody; limitations

After the entry of a final decree of adoption of an Indian child in any State court, the parent may withdraw consent thereto upon the grounds that consent was obtained through fraud or duress and may petition the court to vacate such decree. Upon a finding that such consent was obtained through fraud or duress, the court shall vacate such decree and return the child to the parent. No adoption which has been effective for at least two years may be invalidated under the provisions of this subsection unless otherwise permitted under State law.

§ 1914. Petition to court of competent jurisdiction to invalidate action upon showing of certain violations

Any Indian child who is the subject of any action for foster care placement or termination of parental rights under State law, any parent or Indian custodian from whose custody such child was removed, and the Indian child's tribe may petition any court of competent jurisdiction to invalidate such action upon a showing that such action violated any provision of sections 1911, 1912, and 1913 of this title.

§ 1915. Placement of Indian children

(a) Adoptive placements; preferences

In any adoptive placement of an Indian child under State law, a preference shall be given, in the absence of good cause to the contrary, to a placement with (1) a member of the child's extended family; (2) other members of the Indian child's tribe; or (3) other Indian families.

(b) Foster care or preadoptive placements; criteria; preferences

Any child accepted for foster care or preadoptive placement shall be placed in the least restrictive setting which most approximates a family and in which his special needs, if any, may be met. The child shall also be placed within reasonable proximity to his or her home, taking into account any special needs of the child. In any foster care or preadoptive placement, a preference shall be given, in the absence of good cause to the contrary, to a placement with--

- (i) a member of the Indian child's extended family;
- (ii) a foster home licensed, approved, or specified by the Indian child's tribe;
- (iii) an Indian foster home licensed or approved by an authorized non-Indian licensing authority; or
- (iv) an institution for children approved by an Indian tribe or operated by an Indian organization which has a program suitable to meet the Indian child's needs.

(c) Tribal resolution for different order of preference; personal preference considered; anonymity in application of preferences

In the case of a placement under subsection (a) or (b) of this section, if the Indian child's tribe shall establish a different order of preference by resolution, the agency or court effecting the placement shall follow such order so long as the placement is the least restrictive setting appropriate to the particular needs of the child, as provided in subsection (b) of this section.

Where appropriate, the preference of the Indian child or parent shall be considered: *Provided*, That where a consenting parent evidences a desire for anonymity, the court or agency shall give weight to such desire in applying the preferences.

(d) Social and cultural standards applicable

The standards to be applied in meeting the preference requirements of this section shall be the prevailing social and cultural standards of the Indian community in which the parent or extended family resides or with which the parent or extended family members maintain social and cultural ties.

(e) Record of placement; availability

A record of each such placement, under State law, of an Indian child shall be maintained by the State in which the placement was made, evidencing the efforts to comply with the order of preference specified in this section. Such record shall be made available at any time upon the request of the Secretary or the Indian child's tribe.

§ 1917. Tribal affiliation information and other information for protection of rights from tribal relationship; application of subject of adoptive placement; disclosure by court

Upon application by an Indian individual who has reached the age of eighteen and who was the subject of an adoptive placement, the court which entered the final decree shall inform such individual of the tribal affiliation, if any, of the individual's biological parents and provide such other information as may be necessary to protect any rights flowing from the individual's tribal relationship.

2. Triggering ICWA

Observations on DEFINITIONS

1. It would be beneficial for the student to review the material in the *Defender* case which is found in the portion of Chapter 4, *supra*, which deals with “Tribal Orders” under the “Full Faith and Credit” sub-chapter. Recall that one of the holdings in the *Defender* case is that ICWA has no application in routine divorce, separation or domestic disputes concerning the designation of one parent over another as the primary custodian. Rather, ICWA is triggered only in cases involving foster care placement, termination of parental rights or adoptive or pre-adoptive placements. This holding is dictated by the definition of “child custody proceeding” found in Section 1903(1).

2. ICWA is made more expansive in its application by the broad definition of “Indian child” in Section 1903(4). After the enactment of ICWA, those who have lobbied against its broad application have attempted to narrow its application by supporting legislation to restrict the definition of “Indian child” simply to an enrolled member of a tribe, eliminating part (b) of 1903(4) which extends the definition to biological children of tribal members and who are “eligible for membership in an Indian tribe.” Thus far, these legislative challenges on the reach of ICWA have failed, but if such a re-definition were to occur, how significant would it be? What situations would escape the application of ICWA if its application were limited only to children who are actually enrolled members of tribes?

IN THE MATTER OF A.S.

Supreme Court of South Dakota, 2000.

2000 SD 94, 614 N.W.2d 383

PER CURIAM

[¶1] Mother appeals the trial court order terminating her parental rights to two and one-half-year-old daughter, A.S. We affirm.

* * *

[¶10] Mother claims the trial court erred in concluding the Indian Child Welfare Act (ICWA) did not apply in this case. A.S. is of Native American and Asian descent. ICWA applies to termination proceedings where the Indian child is "any unmarried person who is under age eighteen and is either (a) a member of an Indian Tribe or (b) eligible for membership in an Indian Tribe and is the biological child of a member of an Indian Tribe." 25 USC §1903 (1)(ii) and (4); *In re M.C.*, 504 NW2d 598,600 (SD 1993).

[¶11] The record shows A.S. is not an enrolled member of the tribe. Mother testified she believes she herself may be enrolled because she received funding from the tribe at one time. This is not evidence of enrollment. There was no evidence of enrollment forthcoming from the tribe and no additional evidence of enrollment was produced. The trial court found A.S. was not enrolled or eligible for enrollment and concluded that ICWA did not apply to these proceedings

[¶12] Before a trial court applies the higher standard of proof required under ICWA, "some evidence must show that the child is an Indian and that ICWA applies. 'ICWA requires an initial determination by the trial court that the children are Indian children.'" *In re B.R.B.*, 381 NW2d 283, 284 (SD 1986)(quoting *In re K.A.B.E.*, 325 NW2d 840, 842 (SD 1982)). In *B.R.B.*, the evidence was unclear whether Mother and child were enrolled tribal members or eligible for enrollment in the Cheyenne River Sioux Tribe. The tribe had declined jurisdiction without indicating eligibility or enrollment status of Mother or child. We held the trial court did not err in not applying ICWA. *Id.*

[¶13] "It is incumbent upon the party asserting applicability of ICWA to prove the child meets the criteria under ICWA." *In re J.D.B.*, 584 NW2d 577, 582 (Iowa Ct App 1998); *In re A.M.*, 455 NW2d 572, 573 (Neb 1990). In the present case, Mother failed to come forward with such proof and the evidence supports the trial court's finding that A.S. is not an "Indian child" as defined under 25 USC §1903(4). The court did not err in not applying ICWA.

* * *

[¶26] Affirmed.

[¶27] MILLER, Chief Justice, and SABERS, AMUNDSON, KONENKAMP and GILBERTSON, Justices, participating.

NOTE: The A.S. case is also referenced in note 3, page 729, *supra*, of this book.

Does ICWA apply to Guardianship Proceedings?

Does ICWA apply to guardianship proceedings where permanent guardianship of an Indian child is sought, but in which parental rights will not be terminated? In *In Re the Guardianship of J.C.D.*, 2004 SD 96, 686 N.W.2d 647, the South Dakota Supreme Court addressed this issue, holding that ICWA does indeed apply to such guardianship proceedings. The paternal grandparents sought a permanent guardianship of the Indian child. This was opposed by the child's mother who made a timely motion to transfer the case to the Crow Creek Sioux Tribal Court. The Supreme Court reversed the trial court's denial of the request to transfer. The Court acknowledged that it had not yet addressed the question as to whether or not ICWA would apply in a guardianship proceeding where termination of parental rights was not being sought. The Court then followed the lead of prior appellate opinions found in Minnesota and the state of Washington. The rationale of these opinions is that due to the nature of the proceedings, the parent of the Indian child was unable to have the child returned upon demand. Since the return of the child could not be required "upon demand," this is the type of proceeding "contemplated by ICWA." ¶¶ 9 & 10.

Must there be an "existing" Indian family in order for ICWA to be applicable?

A common scenario exists when a non-Indian mother gives birth to a child fathered by an Indian and then seeks to place the child for adoption. Does the Indian Child Welfare Act apply in such situation? The South Dakota Supreme Court held that it did not apply in *Claymore v. Serr*, 405 N.W.2d 650 (S.D. 1987). In particular the court held that ICWA only applied when the child had actually lived as a member of an "Indian family" and that ICWA was not applicable where an illegitimate child had never been a member of an Indian home or culture.

As will be revealed in the cases that follow, the South Dakota Supreme Court has repudiated its holding in *Claymore v. Serr*, primarily because of the U.S. Supreme Court decision in *Mississippi Band of Choctaw Indians v. Holyfield*, a decision which is also found a little further along in this chapter. The U.S. Supreme Court has made certain that we now understand that ICWA protects more than just the rights of Indian parents and families. It extends protection to the Indian tribes themselves.

3. The Requirement of Notice

IN THE MATTER OF N.A.H. AND K.A.H.

Supreme Court of South Dakota, 1988.

418 N.W.2d 310.

PER CURIAM.

M.A.H. (Mother) appeals from a dispositional order which terminated her parental rights and those of R.W. (Father) to their daughters, N.A.H. and K.A.H. Father has not appealed. We reverse.

Mother is an enrolled member of the Oglala Sioux Tribe and Father is apparently affiliated with the Crow Tribe of Montana. N.A.H. and K.A.H. are Indian children entitled to the benefits and protections of the Indian Child Welfare Act. (ICWA) 25 U.S.C. §§ 1901-1963. On appeal, Mother argues that the state failed to prove its case beyond a reasonable doubt, as required by ICWA. However, we need not address Mother's issue, since the trial court did not have jurisdiction to terminate her parental rights.

The ICWA requires that in any involuntary proceedings in a state court, "the party seeking the foster care placement of, or termination of parental rights to, an Indian child shall notify the parent or Indian custodian and the child's tribe, by registered mail with return receipt requested, of the pending proceedings and of their right of intervention ..." 25 U.S.C. § 1912(a). We have consistently ruled that the provisions of the ICWA must be complied with in Indian child custody proceedings. *Matter of K.A.B.E.*, 325 N.W.2d 840 (S.D.1982); *People in Interest of C.R.M.*, 307 N.W.2d 131 (S.D.1981).

Here, neither the Oglala Sioux Tribe nor the Crow Tribe received proper notice of the dispositional hearing. Although the notice sent to the Oglala Tribe indicated that Mother's parental rights could be terminated, it did not inform the tribe of its right to intervene in the case. The record is also devoid of any evidence showing that notice to the Oglala Tribe of the dispositional hearing was sent by registered mail with return receipt requested. The Crow Tribe did not receive any notice of the dispositional hearing in this case.

The ICWA is primarily a jurisdictional statute, 1978 U.S.Code Cong. & Admin.News 7530, 7541; J. McCahey, *Child Custody & Visitation Law and Practice*, § 29.03[4] (1987); and this court must examine jurisdictional questions whether presented by the parties or not. *Lehr v. Dept. of Labor*, 391 N.W.2d 205 (S.D.1986); *Long v. Knight Const. Co.*, 262 N.W.2d 207 (S.D.1978). Therefore, even though Mother did not raise the notice question on appeal, we conclude that inadequate notice to the tribes divests the trial court of jurisdiction to terminate parental rights to these Indian children; consequently, this court has no jurisdiction to address the merits of the case. We reverse the order terminating parental rights and remand for a new hearing after proper notice is given to all parties. See *Matter of L.A.M.*, 727 P.2d 1057 (Alaska 1986). At a minimum, notice must conform to the standards found in 25 U.S.C. § 1912(a). Better practice would be to follow the Bureau of Indian Affairs guidelines set forth at 44 Fed.Reg. 67588 (1979). *Matter of S.Z.*, 325 N.W.2d 53 (S.D.1982) (footnote 1).

Reversed and remanded.

Additional Observations on the Requirement of NOTICE

1. Section 1912 (a) of ICWA mandates notice to parents, Indian custodians, and tribes of the pendency of “any involuntary proceeding.” What about voluntary proceedings?

2. Section 1912 (a) of ICWA also provides “[i]f the identity or location of the . . . tribe cannot be determined, such notice shall be given to the Secretary [of the Interior].” It may be difficult to determine which tribe is involved. In *People ex rel. DSS in Interest of C.H.*, 510 N.W.2d 119 (S.D. 1993), the mother said she was one-half Choctaw Indian, but not an enrolled member of any tribe. DSS mailed notice only to the Mississippi Band of Choctaw Indians. On appeal, termination of parental rights was conditionally reversed pending remand and determination of involvement by the appropriate Indian tribe. Upon remand, the trial court was directed to notify both the Choctaw Nation of Oklahoma and the Secretary of the Interior.

3. The 2005 South Dakota Legislature enacted HB 1226 which sets forth detailed “notice” provisions. SDCL 26-7A-15 was amended to require reasonable efforts to inform the Indian custodian and the Indian child’s tribe of the time, date and place of the hearing on temporary custody. Also, lengthy new sections were added to SDCL 26-7A, as SDCL 26-7A-15.1 and SDCL 26-7A-15.2, which also require notice prior to the adjudicatory and dispositional hearings of an Indian child. The notice must be sent to the Indian child’s tribe and parents and/or custodian. The requirements as to the contents of the notice are set forth, together with a prescribed “form.” There are many specific requirements set forth in this new statute, including the right to a 20 day extension of time and the advice of right to counsel to the Indian child’s parents and/or custodian (and the fact counsel may be appointed, if the parents or custodian are unable to afford counsel). (SDCL 26-7A-15.1 and SDCL 26-7A-15.2 are reproduced on pages 713-714, *infra*.)

4. **Note – 2006 Legislative Action.** The 2006 legislature enacted a new provision in SDCL 26-7A which defines the term “designated tribal agent” and also amended SDCL 26-7A-15 and 26-7A-15.1 to provide for notice to the “designated tribal agent.” The new provisions is as follows:

26-7A-15.3. Designated tribal agent defined. As used in this chapter, the term, designated tribal agent, means the agent, agency, or entity designated by the tribe, through tribal code or resolution, to receive notices of child custody proceedings subject to the Indian Child Welfare Act. The tribe may provide, in writing, to the director of the Division of Child Protection Services, Department of Social Services, the name or title, address, telephone number, and facsimile number, if applicable, of the designated agent. The department shall make the information available electronically by posting the information on the department's website not later than ten business days after the information is received by the director. If a tribe does not designate a tribal agent for receipt of notice, notice shall be given in accordance with 25 C.F.R. 23.12.

Source: SL 2006, ch 144, § 2.

2005 Enactment of §§ SDCL 26-7A-15.1 and SDCL 26-7A-15.2

§§ SDCL 26-7A-15.1 and SDCL 26-7A-15.2 were enacted in 2005 to help insure that the notice requirements of ICWA are properly carried out. SDCL 26-7A-15.2 provides the actual form to be utilized and it is not reproduced in this book. SDCL 26-7A-15.1 is set out below:

26-7A-15.1. Proceedings under certain chapters to which the Indian Child Welfare Act applies--Procedures. In any proceeding under chapters 26-7A, 26-8A, or 26-8B, to which the terms of the "Indian Child Welfare Act", 25 U.S.C. § 1901 et seq., as amended to January 1, 2005, apply:

- (1) If the state's attorney knows or has reason to know that an Indian child is involved, the state's attorney shall notify the parent or Indian custodian and the Indian child's tribe, if known, of the pending proceedings and of their right of intervention. The notice shall be sent by registered mail with return receipt requested but may be personally served on any person entitled herein to receive notice in lieu of mail service. The notice to the Indian child's tribe shall be sent to the designated tribal agent. However, if the tribe appears by counsel or by a representative of the tribe pursuant to § 26-8A-33, the notice shall be sent to counsel or to the representative, as applicable. If the identity or location of the parent or Indian custodian and the Indian child's tribe cannot be determined, the notice shall be given to the United States Secretary of the Interior and to the area director for the Bureau of Indian Affairs in like manner, who have fifteen days after receipt to provide the requisite notice to the parent or Indian custodian and the tribe;
- (2) The state's attorney shall provide the notice prior to any adjudicatory hearing and prior to any final dispositional hearing in which the state seeks termination of parental rights of one or both parents or termination of the rights of the Indian custodian. However, upon intervention, the parent, tribe, or Indian custodian is entitled to notice in the manner authorized by the Rules of Civil Procedure and chapters 26-7A and 26-8A. The notice shall be served on counsel for the tribe or the representative for the tribe pursuant to § 26-8A-33, as applicable;
- (3) The court shall establish in the record that a notice of the proceeding was provided as required in this section. No foster care placement or termination of parental rights proceedings may be held until at least ten days after receipt of the foregoing notice by the parent or Indian custodian and the tribe or the Secretary. The parent or Indian custodian or the tribe shall, upon request, be granted up to twenty additional days to prepare for the proceeding;
- (4) The notice required in this section shall be written in clear and understandable language and shall include the following:
 - (a) The name and tribal affiliation, if known, of the Indian child;
 - (b) A copy of the petition unless the notice is served by publication pursuant to § 26-7A-48;
 - (c) The name and address of the state's attorney;
 - (d) A statement listing the rights of the Indian child's parents, Indian custodians, and tribes, under the Indian Child Welfare Act, 25 U.S.C. § 1901, et. seq., as amended to January 1, 2005, including:
 - (i) The right of a Indian custodian or the Indian child's tribe to intervene in a proceeding for the foster care placement of, or termination of parental rights to, the Indian child;
 - (ii) The right to file a motion to transfer the proceeding to the tribal court of the Indian child's tribe;

- (iii) The right to be granted up to twenty days from the receipt of the notice to prepare for the proceeding; and
- (iv) The right to request that the court grant further extensions of time;
- (e) If the petition alleges the child to be an abused or neglected child, a statement that the termination of parental or custodial rights is a possible remedy under the proceedings;
- (f) A statement that if the Indian child's parents or Indian custodian are unable to afford counsel, counsel may be appointed to represent them;
- (g) A statement in the notice to the tribe that the information contained in the notice, petition, pleading, or other documents are confidential; and
- (h) The location, mailing address and telephone number of the court.

The original or a copy of each notice sent pursuant to this section shall be filed with the court together with any return receipts or other proof of service;

(5) Each party may examine all reports or other documents filed with the court upon which any decision with respect to such action may be based.

As used in this section, the terms, Indian, Indian child, parent, Indian custodian, tribe, Indian child's tribe, foster care placement, termination of parental rights, and secretary, are defined as in 25 U.S.C. § 1903, as amended to January 1, 2005.

Source: SL 2005, ch 139, § 2; SL 2006, ch 144, § 3.

4. Transfer -- Matters of *Concurrent* Jurisdiction

Observations on the TRANSFER Provisions

1. Can a trial court err by granting a Section 1911(b) transfer to tribal court too quickly? Yes, according to *People in Interest of M.C.*, 504 N.W.2d 598 (S.D. 1993). Reacting to an appeal taken only by the attorney for the child, the South Dakota Supreme Court held that the Indian child was entitled to an evidentiary hearing on the issue of whether or not “good cause” exists so as to warrant a denial of transfer.

2 Can a Section 1911 (b) transfer be vetoed? If so, by whom?

IN THE INTEREST OF K.D.

South Dakota Supreme Court, 2001.

2001 SD 77, 630 N.W.2d 492.

AMUNDSON, Justice.

[¶1] The State of South Dakota filed a petition to have K.D.'s parents, F.D. and B.U., parental rights terminated. The Rosebud Sioux Tribe (Tribe) filed a motion to transfer the proceedings from state court to tribal court. After K.D.'s parents had their rights terminated, the trial court granted Tribe's motion. We reverse.

FACTS

* * * On November 9, 1998, the State filed an abuse and neglect petition raising specific allegations against the biological parents, F.D. and B.U.¹ Tribe timely filed a motion to intervene with the court on March 30, 1999. The court granted Tribe's motion to intervene. On June 23, 1999, Tribe filed its initial motion to transfer jurisdiction and dismiss.

[¶3] On July 13, 1999, B.U. filed an objection to transfer pursuant to 25 USC 1911(b) of the Indian Child Welfare Act (ICWA). On July 14, 1999, the court entered its order denying Tribe's motion to transfer based on B.U.'s objection. * * * B.U.'s parental rights were terminated on June 19, 2000. The court also ordered K.D. to be temporarily placed under the supervision of the Department of Social Services, pending final disposition.

[¶4] Tribe renewed its motion to transfer the proceedings to tribal court on September 11, 2000. The motion was argued before the court on September 18, 2000. The trial court granted the motion on September 28, 2000. K.D., through her guardian ad litem, and the State, appeal...

* * *

As stated above, B.U. filed an objection with the trial court to prevent transfer to the tribal court. The court initially denied Tribe's motion to transfer because of B.U.'s objection. After B.U.'s parental rights were terminated, however, Tribe renewed its motion to transfer, which the court then granted.

[¶7] The plain language of 25 USC 1911(b) makes it clear that a parent's objection to transfer prevents such transfer. According to 25 USC 1911(b), "the court ... shall transfer such proceeding to the jurisdiction of the tribe, absent objection by either parent[.]" The statute contains no limiting language, nor are there any latter enacted exceptions to a parent's right to object.

* * *

[¶8] In addition, this Court has also stated that a parent's objection made pursuant to 25 USC 1911(b) is absolute. *See Matter of S.Z.*, 325 NW2d 53 (SD 1982).

* * *

The Indian Child Welfare Act gives either parent the absolute right to object to a transfer and keep the case in state court. The mere fact that the parental rights were subsequently terminated in no way affects a parent's objection to transfer.

* * *

There is no authority for the proposition that termination erases from the record a timely objection by a parent cited to appear in the proceeding.

[¶10] We reverse and remand for the entry of an order consistent with this decision.²

[¶11] MILLER, Chief Justice, and SABERS, KONENKAMP, and GILBERTSON, Justices, concur.

¹ F.D., K.D.'s father, is currently incarcerated for convictions of incest and pedophilia stemming from his treatment of K.D. F.D. is not part of this appeal.

² The issue before the Court is not the ultimate placement of K.D. Rather, it is whether a state court can transfer a matter to tribal court after the termination of the parental rights and despite a parent's objection to such transfer. Our decision today, however, does not prevent Tribe from being part of any proceeding in state court. See 25 USC 1911(c). Tribe may advocate its position, and the state court must follow the strictures of ICWA when determining the final placement of K.D. See 25 USC 1915. Our decision today merely requires a state circuit court to follow ICWA and all pertaining sections.

NOTE

Trial court did not err in sustaining mother's motion for relief under Rule 60(b) from her voluntary termination of rights so that she could object to father's request (under ICWA) to transfer A & N proceeding from state court to tribal court in *In the Interest of D.G.*, 2004 SD 54, 679 N.W.2d 497. Mother voluntarily terminated her rights to this child in this abuse and neglect proceeding. Father, who was incarcerated in the state penitentiary for first-degree burglary and who had "an extensive criminal record including seventeen prior offenses," became an enrolled member of the Rosebud Sioux Tribe during the pendency of the proceeding against him. When father learned that the tribe had accepted him as an enrolled member, he moved to transfer the proceedings to tribal court. Mother objected, but the trial court held she no longer had standing to object since her rights had already been terminated voluntarily. ¶ 3.

Mother then moved for relief from the voluntary termination under SDCL 15-6-60(b) (which is modeled after Federal Rule 60(b)), "alleging mistake or misrepresentation." In essence, mother's argument was that she would not have agreed to the voluntary termination had she known that the tribe would seek jurisdiction over the child and that father had told mother that he was not an enrolled member of the tribe and he sent a letter to DSS stating that he was not enrolled in a tribe. The trial court sustained mother's motion for relief, finding that "these facts constituted exceptional circumstances justifying rule 60(b) relief." ¶ 8. With the prior order terminated, mother then objected (again) to the transfer of the A & N proceeding to tribal court. Since a parent, by objecting, may block a transfer to tribal court under 25 U.S.C. § 1911(b), the state court retained jurisdiction and eventually terminated father's rights. The South Dakota Supreme Court affirmed in a per curiam decision (5-0).

Although the father did not appeal the order which granted mother relief under Rule 60(b), the Court overlooked the father's "procedural error" and considered the merits of his argument that the trial court had abused its discretion in setting aside the mother's voluntary termination. The Court rejected the father's argument, noting that "Mother had previously objected to transfers of jurisdiction to tribal court when her other children were involved." ¶ 9. The Court also observed, in footnote 1, that "A parent's timely pre-termination objection survives to prohibit transfer of jurisdiction to the tribe even when a parent's rights are subsequently terminated." (citing *In re K.D.*, 2001 SD 77, ¶ 9).

The Court also rejected other arguments by the father concerning the trial court's alleged non-compliance with Indian Child Welfare Act (ICWA). The Court held that the trial court did not err in qualifying a DSS caseworker as an ICWA expert. ¶ 13. The Court also held that the State had engaged in "active efforts" to prevent the breakup of the Indian family, noting that father's incarceration served as a "major limiting factor for DSS in seeking to return D.G. to his care." ¶¶ 16 & 17. The Court also upheld the trial court's determination that the evidence established "beyond a reasonable doubt" that "serious emotional or physical harm to the child would result from continued custody with father." ¶ 19.

IN THE MATTER OF THE GUARDIANSHIP OF J.C.D.

South Dakota Supreme Court, 2004

2004 SD 96, 686 N.W.2d 647

KONENKAMP, Justice.

[¶ 1.] In this guardianship action, the mother timely moved to transfer jurisdiction to tribal court. All parties stipulated that the matter was controlled by the Indian Child Welfare Act (ICWA). On considering the motion, the trial court ruled that good cause existed to deny the transfer because witnesses and parties would be unduly burdened if the motion was granted and because the best interests of the child were best served by denying the request. Because these reasons were inadequate to override the mandates of ICWA, we reverse.

* * *

[¶ 11.] We turn now to address the mother's appeal issue. She questions whether the trial court erred in determining that "good cause" existed to deny the transfer. We hold that "good cause" did not exist. Section 1911(b) of ICWA provides:

In any State court proceeding for the foster care placement of, or termination of parental rights to, an Indian child not domiciled or residing within the reservation of the Indian child's tribe, the court, in the absence of good cause to the contrary, shall transfer such proceeding to the jurisdiction of the tribe, absent objection by either parent, upon the petition of either parent or the Indian custodian or the Indian child's tribe: *Provided*, That such transfer shall be subject to declination by the tribal court of such tribe.

25 USC § 1911(b). Because nowhere within the provisions of ICWA is "good cause" defined, we look to the BIA guidelines. *In re J.L.*, 2002 SD 144, ¶ 12, 654 N.W.2d 786, 790. These guidelines suggest that "good cause to the contrary" may include situations where "evidence necessary to decide the case cannot be adequately presented to the tribal court without *undue* hardship to witnesses and parties[.]" *Id.* (emphasis added).

[¶ 12.] In making its determination to deny transfer to the tribal court, the circuit court reasoned that "the expense and inconvenience which would be incurred by petitioners if this matter [were] transferred to Fort Thompson, when all of the witnesses (probably for both parties) are located in Vermillion, outweighs the other applicable guidelines." In their brief, the paternal grandparents list several witnesses who would be required to travel to the Crow Creek Sioux Tribal Court if the motion for transfer were granted. While we admit that there may be some inconvenience involved, we cannot say that the hardship would be "undue." Under the trial court's and the paternal grandparents' reasoning, almost every case involving a child not residing on a reservation could be denied transfer. Generally, courts have denied transfer where very long distances existed between the parties and the tribal court. *See In re S.S.*, 167 Ill.2d 250, 212 Ill.Dec. 590, 657 N.E.2d 935, 943 (1995) (motion to transfer from Illinois to Montana denied); *In re J.R.H.*, 358 N.W.2d 311, 317 (Iowa 1984) (motion to transfer from Iowa to South Dakota denied); *In re A.P.*, 25 Kan.App.2d 268, 961 P.2d 706, 712 (Kan.Ct.App.1998) (motion to transfer from Kansas to South Dakota denied); *Chester County Dep't of Soc. Serv. v. Coleman*, 303 S.C. 226, 399 S.E.2d 773, 775-76(1990) (motion to transfer from South Carolina to South Dakota denied). No similar circumstances exist here.

* * *

[¶ 14.] Left then is the circuit court's reliance on the child's best interests as a factor in determining that jurisdiction should not be transferred. While we have suggested that a trial court may properly consider a child's best interests in determining whether transfer of jurisdiction is proper, we recently cautioned, "that a substitute parent might provide a child with good care or even better care than its natural parent is not an

appropriate standard for determining the best interests of a child" in the context of a ICWA transfer decision. *J.L.*, 2002 SD 144, ¶ 21, 654 N.W.2d at 792. The conclusions of the trial court point to little else. In its decision the court explained, "based on the record at the present time this Court is satisfied that the [paternal grandparents] truly care for [J.C.D.] and have done whatever they could to care for him. They have provided a good home, medical care, and the care and stability that [J.C.D.] needs. Based on the record before the Court at this time the Court concludes that it would be in [J.C.D.'s] best interests to remain with [the Paternal Grandparents]." We have no reason to doubt the veracity of these findings. Undoubtedly, the paternal grandparents love this child and have met all his needs. However, as we point out above, that is not a sufficient standard upon which to deny a motion to transfer. It is for the Crow Creek Tribal Court to consider these matters and decide what is in J.C.D.'s best interests.

[¶ 15.] Reversed.

[¶ 16.] GILBERTSON, Chief Justice, and SABERS, ZINTER, and MEIERHENRY, Justices, concur.

NOTE: According to Mapquest.com, the distance between Vermillion and Fort Thompson is 233 miles and travel time is estimated at 3 hours, 43 minutes.

ADDITIONAL CASES INVOLVING REQUESTS FOR TRANSFER

1. **Trial Court's Order of Transfer Upheld in *In Re J.L.*** Child and both parents are enrolled members of Standing Rock Sioux Tribe. Mother contacted Catholic Family Services on March 12, 2001, seeking to place child for immediate adoption when child was about 7 months old. Child was placed with licensed foster parents on March 22. About one and one-half months later, on May 5, 2001, mother again contacted Catholic Family Services and requested return of child. On the day that the child was to be returned, May 25, DSS took emergency custody of child. Tribe sought transfer of DSS proceeding to Standing Rock Sioux Tribal Court. Following hearing on petition to transfer, trial court granted the transfer. Foster parents, who had intervened, appealed. *In Re J.L.*, 2002 SD 144, 654 N.W.2d 786 (11/26/02). The South Dakota Supreme Court affirmed the transfer, upholding the trial court's application of the transfer provision in the Indian Child Welfare Act, 25 U.S.C. § 1911 (b). Factors set forth in the Federal BIA Guidelines and other factors are reviewed in the opinion which holds the best interests of the child are better served through the transfer. Furthermore, the fact that the foster parents "might provide a child with good care or even better care than its natural parent is not an appropriate standard for determining the best interests of a child." ¶ 21. The decision is also supported by the fact that the original allegations made by DSS were conceded to be false and there were no perceived grounds upon which an adjudication (that the child was "abused and neglected") could be sustained.

2. **Trial Court's Denial of Request to Transfer Upheld in *People In Re S.G.V.E.*** The trial court acted correctly in terminating the rights of the mother, an enrolled member of the Oglala Sioux Tribe, to two minor daughters and was in compliance with the Indian Child Welfare Act in *People In Re S.G.V.E.*, 2001 SD 105, 634 N.W.2d 88. A number of issues were addressed in this appellate decision. The South Dakota Supreme Court held, *inter alia*, that the trial court acted appropriately in denying an application to transfer, made by the tribe, where the state court case had been pending 14 months and mother's rights had actually been terminated over 2 months before the application to transfer was made. The tribe had been given notice of the proceedings when they were commenced in state court and there was no explanation offered for the delay in seeking for transfer.

3. **Trial Court's Denial of Transfer Upheld in *In the Interest of D.M., R.M., III, and T.B.C.*, following hearing upon remand.** This, the seemingly final opinion in this dispute, was handed down on July 28, 2004 and carries the citation of 2004 SD 90, 685 N.W.2d 768.

Background. At issue in this case is the trial court's denial of a motion to transfer an abuse and neglect proceeding to tribal court. The trial court's original denial of transfer was based on the fact the motion was filed by the tribe at an "advanced stage of the proceeding" nearly one year after the tribe had moved to intervene and one month after the dispositional proceedings had been commenced. An appeal from that denial was rejected on April 30, 2003 in *In the Interest of D.M., R.M., III, and T.B. C.*, 2003 SD 49, 661 N.W.2d 768. Subsequently this first decision was "stayed" by order entered on June 9, 2003, reported at 665 N.W.2d 83. As explained in the decision handed down on July 28, 2004, the earlier opinion had been stayed because of questions as to whether or not the tribe had adequate notice and opportunity to be heard on the transfer motion. The July 28, 2004 opinion states, "We granted the petition for rehearing on limited grounds and entered an order remanding the matter to the trial court for the 'limited purposes of holding a hearing, and for reconsideration of, the motion to transfer to tribal court, with instructions to effectuate proper notice to the Indian Tribe of the hearing to be scheduled on the motion to transfer.'" ¶ 3.

Hearing on Remand. A hearing on the requested transfer was held on August 28, 2003. The trial court again denied the transfer by order dated October 30, 2003, adopting the proposed findings of fact and conclusions of law submitted by the attorney for the children.

Appeal. The South Dakota Supreme Court again affirmed the denial of the requested transfer on the same basis that the request for transfer came at an "advanced stage of the proceeding" and that the request was not filed promptly after the tribe's receipt of the initial notification. (This basis is one of several criteria which are recognized under the BIA Guidelines as "good cause" for the denial of a requested transfer.) The main opinion is authored by Justice Sabers, but there are two concurring opinions, each of which is supported by two other justices.

Principles from Justice Sabers's primary opinion. It appears that the primary opinion by Justice Sabers contains the following principles or findings which are supported by a majority of the court:

1) The Tribe was notified of the abuse and neglect action in January, 2001, and filed a notice of intervention in March, 2001. The Tribe's ICWA specialist was "in regular contact with DSS regarding the children." (¶8, ¶14) In November, 2001, the State sent a letter to the Tribe which indicated that reunification with the parents was being pursued since the parents had been cooperating with DSS. Eventually "When reunification efforts proved futile, State pursued termination of parental rights." (¶8) Although formal registered mail notice of the dispositional hearing did not occur, the Tribe's ICWA specialist had actual notice through a letter and a fax of the intent of DSS to seek termination of parental rights. (¶14) The ICWA specialist had also engaged in conversations with the DSS caseworker about the dispositional hearing. (¶14) The delay by the Tribe in its effort to seek transfer was attributable to fact the tribe did not immediately have

a placement option for the children (§ 15). The Tribe did not seek transfer until after it had found a placement for the children (§ 16).

2) Substantial compliance with notice requirements of ICWA, coupled with actual notice to the tribe is sufficient notice under ICWA.

3) 25 U.S.C. § 1912(a) is ambiguous as to whether or not registered mail notice is only required when the proceedings are commenced or is required prior to each and every hearing. Accordingly, this opinion concludes, “Under the facts and circumstances of this case, we decide it [registered mail notice] was not necessary prior to every hearing.” (§16)

4) The delay in making the motion to transfer by the tribe was not attributable to the State’s failure to adequately notify the Tribe. “The delay was attributable to the Tribe’s decision to wait and see what happened in the proceedings and the Tribe’s decision to wait to make a motion to transfer until after it found a placement for the children.” (§16)

Justice Konenkamp’s concurring opinion (joined by Justice Meierhenry) – “Cooperation” and “Standard of Review:”

Cooperation. Denial of transfer of cases to tribal court is permitted for “good cause” but this basis for denial “continues to be a source of conflict” between state and tribal authorities. (§28) The delay in the request for transfer is understandable, given the limited resources available to the Tribe. (§25) The decision to seek transfer is also contingent upon viable placement opportunities within the Tribe. (§25) This is a matter of concern which warrants cooperation between the state courts and the tribes. Faultfinding (as to insufficiency of notice and reasons for delay) does not help resolve the conflict. (§31) Ten states, not including South Dakota, have a statewide coordinator whose position has been created for the purpose of facilitating and expediting the handling of cases of Indian children. It is clear that Congress created ICWA so that tribes would have the authority to determine custody issues for Indian children. (§33)

“Conflicts between state and tribal officials over Native American children must not continue. For the sake of the children, we must find a resolution to this recurring problem. After all, who should be hearing these custody cases has already been decided. ‘We must defer to the experience, wisdom, and compassion of the ... tribal courts to fashion an appropriate remedy in Indian Child welfare cases.’ *Holyfield*, 490 U.S. at 54 (quoting *In Re Adoption of Halloway*, 732 P.2d 962, 972 (Utah 1986)). The answer lies in communication, cooperation and comity.” (§34)

Standard of review. As to the majority’s use of the “abuse of discretion” standard of review, Justice Konenkamp also made some comments. “It is true that some other courts, like ours, have used the abuse of discretion standard. However, the better reasoned decisions hold that determination must be supported by clear and convincing evidence of good cause... Considering the firm congressional intent behind ICWA, the standard most consistent with the Act requires clear and convincing evidence of good cause for a state trial court to refuse to transfer to tribal court. Although this issue was not briefed and thus should not control the outcome today, henceforth we must abandon the abuse of discretion standard in deciding good cause.” (§36)

Concurrences by Justice Zinter and Chief Justice Gilbertson. Justice Zinter stated, “I concur in all but the *obiter dicta* in §§ 22 and 23.” Chief Justice Gilbertson joined in this statement. In § 22 of Justice Sabers’ opinion, he chastised the State for shortcutting efforts to give notice to the tribe and in § 23, he chastised the tribe for prolonging the cases, stating that “There is simply no good reason for the delay in making the motions to transfer.”

4. *In the Interest of T.I. and T.I.*, 2005 SD 125, 707 N.W.2d 826. This abuse and neglect proceeding involved two Indian boys. The older boy was enrolled in the Yankton Sioux Tribe (YST). Both boys were eligible for enrollment in the Sisseton Wahpeton Sioux Tribe (SWST). Although the Yankton Sioux Tribe originally requested transfer to its tribal court, it subsequently withdrew its request and supported the request for transfer made by the Sisseton Wahpeton Sioux Tribe. The trial court denied the request for transfer and terminated the parental rights of both mother and father. The South Dakota Supreme Court affirmed the lower court, making a number of significant rulings:

Evidence of Good Cause to Deny Request to Transfer to Tribal Court Must Be “Clear and Convincing.” In this case, the SD Supreme Court made the pronouncement that in situations where a request for transfer to tribal court is made, the burden of establishing good cause to deny the transfer is on the party opposing the transfer and that burden requires that good cause be established by “clear and convincing evidence.” This heightened standard is more appropriate than a mere discretionary standard and is consistent with Congress’ intent that tribal courts should be the courts deciding custody issues involving Indian children. The Court holds that this higher standard “will have prospective application only.” ¶ 17. [This issue was previously addressed by Justice Konenkamp in his concurring opinion in *In the Interest of D.M.*, 2004 SD 90, ¶ 36, 685 N.W.2d 768, 777.]

For Jurisdictional purposes under ICWA, only one tribe can be an Indian child’s tribe. An “Indian child, even though eligible for enrollment in more than one tribe, can only have *one tribe* exercising jurisdiction for purposes of ICWA.” ¶18. This ruling is required by the definition of “Indian child’s tribe” found in 25 U.S.C. § 1903 (5). In this case, the Sisseton Wahpeton Sioux Tribe (SWST) cannot have jurisdiction over the older boy since he is already enrolled in the Yankton Sioux Tribe (YST). Accordingly, SWST can not have jurisdiction, under ICWA, over both children. South Dakota state court, however, has jurisdiction over both children and this alone constitutes good cause for denial of the request to transfer to the SWST. ¶ 22. This result is also supported by the testimony of an ICWA expert that the children should not be separated. (The trial court had also denied the request to transfer because SWST had made the request at an advanced stage of the proceedings and was untimely.)

Parents in A & N Proceeding do not Enjoy Blanket Right to Refuse to Testify Because of Alleged Self-Incrimination. The children’s attorney sought to question mother at the dispositional hearing, but was denied the opportunity. The trial court held that neither parent could be required to testify by virtue of the 5th amendment privilege against self-incrimination found in the U.S. Constitution and also by virtue of Article VI, § 9 of the South Dakota Constitution. The trial court’s ruling was, in essence, a holding that the parents enjoyed a “blanket right not to testify.” The SD Supreme Court chose to address this issue raised on appeal by the children’s attorney, despite the fact the termination of parental rights was affirmed. [“While the issue is moot because we are affirming the circuit court’s decision to terminate parental rights, we nevertheless choose to address it for the benefit of the bench and bar.” ¶ 37.] The SD Supreme Court recognized that the right not to testify does indeed apply in civil proceedings such as abuse and neglect proceedings which are “civil in nature.” ¶ 38. But, it is error to consider the right against self-incrimination as a “blanket right not to testify.” When dealing with this issue, the trial court should not deny the questioner an “opportunity to inquire into areas that would be non-incriminating.” ¶37. Additionally, the trial court “should determine if the witness ‘is confronted by substantial and “real”, and not merely trifling or imaginary, hazards of incrimination.”’ ¶39 citing *Daly v. United States*, 393 F.2d 873, 878 (8th Cir. 1968) which quotes and cites a 1951 U.S. Supreme Court case.

5. *Exclusive Jurisdiction*

MISSISSIPPI BAND OF CHOCTAW INDIANS v. HOLYFIELD

Supreme Court of the United States, 1989.

490 U.S. 30, 109 S.Ct. 1597.

Justice BRENNAN delivered the opinion of the Court.

This appeal requires us to construe the provisions of the Indian Child Welfare Act that establish exclusive tribal jurisdiction over child custody proceedings involving Indian children domiciled on the tribe's reservation.

The Indian Child Welfare Act of 1978 (ICWA), 92 Stat. 3069, 25 U.S.C. §§ 1901-1963, was the product of rising concern in the mid-1970's over the consequences to Indian children, Indian families, and Indian tribes of abusive child welfare practices that resulted in the separation of large numbers of Indian children from their families and tribes through adoption or foster care placement, usually in non-Indian homes. Senate oversight hearings in 1974 yielded numerous examples, statistical data, and expert testimony documenting what one witness called "[t]he wholesale removal of Indian children from their homes, ... the most tragic aspect of Indian life today." Indian Child Welfare Program, Hearings before the Subcommittee on Indian Affairs of the Senate Committee on Interior and Insular Affairs, 93d Cong., 2d Sess., 3 (statement of William Byler) (hereinafter 1974 Hearings). Studies undertaken by the Association on American Indian Affairs in 1969 and 1974, and presented in the Senate hearings, showed that 25 to 35% of all Indian children had been separated from their families and placed in adoptive families, foster care, or institutions.

* * *

This case involves the status of twin babies, known for our purposes as B.B. and G.B., who were born out of wedlock on December 29, 1985. Their mother, J.B., and father, W.J., were both enrolled members of appellant Mississippi Band of Choctaw Indians (Tribe), and were residents and domiciliaries of the Choctaw Reservation in Neshoba County, Mississippi. J.B. gave birth to the twins in Gulfport, Harrison County, Mississippi, some 200 miles from the reservation. On January 10, 1986, J.B. executed a consent-to-adoption form before the Chancery Court of Harrison County. Record 8-10. W.J. signed a similar form. On January 16, appellees Orrey and Vivian Holyfield filed a petition for adoption in the same court, *Id.*, at 1-5, and the chancellor issued a Final Decree of Adoption on January 28. *Id.*, at 13-14. Despite the court's apparent awareness of the ICWA, the adoption decree contained no reference to it, nor to the infants' Indian background.

Two months later the Tribe moved in the Chancery Court to vacate the adoption decree on the ground that under the ICWA exclusive jurisdiction was vested in the tribal court. *Id.*, at 15-18. On July 14, 1986, the court overruled the motion, holding that the Tribe "never obtained exclusive jurisdiction over the children involved herein...." The court's one-page opinion relied on two facts in reaching that conclusion. The court noted first that the twins' mother "went to some efforts to see that they were born outside the confines of the Choctaw Indian Reservation" and that the parents had promptly arranged for the adoption by the Holyfields. Second, the court stated: "At no time from the birth of these children to the present date have either of them resided on or physically been on the Choctaw Indian Reservation." *Id.*, at 78.

The Supreme Court of Mississippi affirmed. 511 So.2d 918 (1987). It rejected the Tribe's arguments that the state court lacked jurisdiction and that it, in any event, had not applied the standards laid out in the ICWA. The court recognized that the jurisdictional question turned on whether the twins were domiciled

on the Choctaw Reservation. It answered that question as follows:

"At no point in time can it be said the twins resided on or were domiciled within the territory set aside for the reservation. Appellant's argument that living within the womb of their mother qualifies the children's residency on the reservation may be lauded for its creativity; however, apparently it is unsupported by any law within this state, and will not be addressed at this time due to the far-reaching legal ramifications that would occur were we to follow such a complicated tangential course." *Id.*, at 921.

The court distinguished Mississippi cases that appeared to establish the principle that "the domicile of minor children follows that of the parents," *ibid.*; see *Boyle v. Griffin*, 84 Miss. 41, 36 So. 141 (1904); *Stubbs v. Stubbs*, 211 So.2d 821 (Miss.1968); see also *In re Guardianship of Watson*, 317 So.2d 30 (Miss.1975). It noted that "the Indian twins ... were voluntarily surrendered and legally abandoned by the natural parents to the adoptive parents, and it is undisputed that the parents went to some efforts to prevent the children from being placed on the reservation as the mother arranged for their birth and adoption in Gulfport Memorial Hospital, Harrison County, Mississippi." 511 So.2d, at 921. Therefore, the court said, the twins' domicile was in Harrison County and the state court properly exercised jurisdiction over the adoption proceedings.

* * *

Because of the centrality of the exclusive tribal jurisdiction provision to the overall scheme of the ICWA, as well as the conflict between this decision of the Mississippi Supreme Court and those of several other state courts, we granted plenary review. 486 U.S. 1021, 108 S.Ct.1993, 100 L.Ed.2d 225 (1988). We now reverse.

* * *

The meaning of "domicile" in the ICWA is, of course, a matter of Congress' intent. The ICWA itself does not define it. The initial question we must confront is whether there is any reason to believe that Congress intended the ICWA definition of "domicile" to be a matter of state law.

* * *

We therefore think it beyond dispute that Congress intended a uniform federal law of domicile for the ICWA.

It remains to give content to the term "domicile" in the circumstances of the present case. The holding of the Supreme Court of Mississippi that the twin babies were not domiciled on the Choctaw Reservation appears to have rested on two findings of fact by the trial court: (1) that they had never been physically present there, and (2) that they were "voluntarily surrendered" by their parents. 511 So.2d, at 921; see Record 78. The question before us, therefore, is whether under the ICWA definition of "domicile" such facts suffice to render the twins nondomiciliaries of the Reservation.

* * *

"Domicile" is, of course, a concept widely used in both federal and state courts for jurisdiction and conflict-of-laws purposes, and its meaning is generally uncontroverted. See generally Restatement §§ 11-23; R. Leflar, L. McDougal, & R. Felix, *American Conflicts Law* 17-38 (4th ed. 1986); R. Weintraub, *Commentary on the Conflict of Laws* 12-24 (2d ed. 1980). "Domicile" is not necessarily synonymous with "residence," *Perri v. Kisselbach*, 34 N.J. 84, 87, 167 A.2d 377, 379 (1961), and one can reside in one place but be domiciled in another, *District of Columbia v. Murphy*, 314 U.S. 441, 62 S.Ct. 303, 86 L.Ed. 329 (1941); *In re Estate of Jones*, 192 Iowa 78, 80, 182 N.W. 227, 228 (1921). For adults, domicile is established by physical presence in a place in connection with a certain state of mind concerning one's intent

to remain there. *Texas v. Florida*, 306 U.S. 398, 424, 59 S.Ct. 563, 576, 83 L.Ed. 817 (1939). One acquires a "domicile of origin" at birth, and that domicile continues until a new one (a "domicile of choice") is acquired. *Jones, supra*, 192 Iowa, at 81, 182 N.W., at 228; *In re Estate of Moore*, 68 Wash.2d 792, 796, 415 P.2d 653, 656 (1966). Since most minors are legally incapable of forming the requisite intent to establish a domicile, their domicile is determined by that of their parents. *Yarborough v. Yarborough*, 290 U.S. 202, 211, 54 S.Ct. 181, 185, 78 L.Ed. 269 (1933). In the case of an illegitimate child, that has traditionally meant the domicile of its mother. *Kowalski v. Wojtkowski*, 19 N.J. 247, 258, 116 A.2d 6, 12 (1955); *Moore, supra*, 68 Wash.2d, at 796, 415 P.2d, at 656; Restatement § 14(2), § 22, Comment c; 25 Am.Jur.2d, Domicile § 69 (1966). Under these principles, it is entirely logical that "[o]n occasion, a child's domicile of origin will be in a place where the child has never been." Restatement s 14, Comment b.

It is undisputed in this case that the domicile of the mother (as well as the father) has been, at all relevant times, on the Choctaw Reservation. Tr. of Oral Arg. 28-29. Thus, it is clear that at their birth the twin babies were also domiciled on the reservation, even though they themselves had never been there.

* * *

These congressional objectives make clear that a rule of domicile that would permit individual Indian parents to defeat the ICWA's jurisdictional scheme is inconsistent with what Congress intended. See *In re Adoption of child of Indian Heritage*, 111 N.J. 155, 168-171, 543 A.2d 925, 931-933 (1988). The appellees in this case argue strenuously that the twins' mother went to great lengths to give birth off the reservation so that her children could be adopted by the Holyfields. But that was precisely part of Congress' concern. Permitting individual members of the tribe to avoid tribal exclusive jurisdiction by the simple expedient of giving birth off the reservation would, to a large extent, nullify the purpose the ICWA was intended to accomplish.

* * *

Since, for purposes of the ICWA, the twin babies in this case were domiciled on the reservation when adoption proceedings were begun, the Choctaw tribal court possessed exclusive jurisdiction pursuant to 25 U.S.C. § 1911(a). The Chancery Court of Harrison County was, accordingly, without jurisdiction to enter a decree of adoption; under ICWA § 104, 25 U.S.C. § 1914, its decree of January 28, 1986, must be vacated.

We are not unaware that over three years have passed since the twin babies were born and placed in the Holyfield home, and that a court deciding their fate today is not writing on a blank slate in the same way it would have in January 1986. Three years' development of family ties cannot be undone, and a separation at this point would doubtless cause considerable pain.

Whatever feelings we might have as to where the twins should live, however, it is not for us to decide that question. We have been asked to decide the legal question of who should make the custody determination concerning these children--not what the outcome of that determination should be. The law places that decision in the hands of the Choctaw tribal court. Had the mandate of the ICWA been followed in 1986, of course, much potential anguish might have been avoided, and in any case the law cannot be applied so as automatically to "reward those who obtain custody, whether lawfully or otherwise, and maintain it during any ensuing (and protracted) litigation." *Halloway*, 732 P.2d, at 972. It is not ours to say whether the trauma that might result from removing these children from their adoptive family should outweigh the interest of the Tribe--and perhaps the children themselves--in having them raised as part of the Choctaw community. Rather, "we must defer to the experience, wisdom, and compassion of the [Choctaw] tribal courts to fashion an appropriate remedy." *Ibid*.

The judgment of the Supreme Court of Mississippi is reversed, and the case is remanded for further proceedings not inconsistent with this opinion.

IN THE MATTER OF G.R.F.

Supreme Court of South Dakota, 1997.

569 N.W.2d 29, 1997 SD 112.

PER CURIAM.

Father, M.S., and State appeal from a trial court's order dismissing the abuse and neglect action against Mother, L.R., and transferring jurisdiction to the Oglala Sioux Tribe. We affirm.

Father, a non-Indian, and Mother, an Indian, met in Torrington, Wyoming in March 1994 and became involved in a relationship which Father ended in November 1994. When they separated, Father was aware Mother was pregnant with his child. In March 1996 Father learned Mother had given birth to their daughter, G.R.F.

* * *

... [O]n February 5, 1996, DSS filed an abuse and neglect petition against Mother. G.R.F. was adjudged to be abused and neglected on February 21, 1996. On March 20, 1996, the Oglala Sioux Tribal Court issued an order accepting jurisdiction under 25 U.S.C. § 1911(b) and awarding temporary custody of G.R.F. to the tribal court pending a hearing on the matter.

By June 14, 1996, paternity test results revealed M.S. to be the child's father and at a hearing held in the state trial court on August 13, 1996, DSS recommended custody be awarded to Father. At this same hearing, Mother moved to dismiss the action from state court for lack of jurisdiction and transfer jurisdiction to the Oglala Sioux Tribal Court. * * * Both State and Father objected to dismissal and transfer of the action. * * *

At the September hearing, the trial court orally ordered dismissal of the action and transferred jurisdiction to the tribe.

* * *

1. Whether the Oglala Sioux Tribe had exclusive jurisdiction over this matter pursuant to 25 USC § 1911(a) of the Indian Child Welfare Act?

Mother is an enrolled tribal member and Child is eligible for enrollment. The statutory requirements of ICWA control this action. 25 U.S.C. §§ 1901-1963; SDCL 26-7A-2. ICWA recognizes a tribe's significant interest in self-government and in its ability to assert its interest in its children. *See Mississippi Band of Choctaw Indians v. Holyfield*, 490 U.S. 30, 52, 109 S.Ct. 1597, 1610, 104 L.Ed.2d 29, 49 (1989); Jones, *Indian Child Welfare: A Jurisdictional Approach*, 21 Ariz.L.Rev. 1123, 1128 (1980).

* * *

In the present case, the facts represent that Mother has lived a somewhat transient lifestyle, residing in various locations both off and on the reservation for the past several years. The *Holyfield* Court, discussing the definition of "domicile," recognized that "one can reside in one place but be domiciled in another" and that "domicile is established by physical presence in a place in connection with a certain state of mind concerning one's intent to remain there." 490 U.S. at 48, 109 S.Ct. at 1608, 104 L.Ed.2d at 46. G.R.F. has resided in Rapid City since her August 1996 birth and has never resided within a reservation. However, an illegitimate child's domicile follows her mother's. *Id.* The trial court found that on December 5, 1995, the date a petition for temporary legal custody was filed with the trial court, and the date the trial court heard the matter and awarded custody to DSS, Mother was domiciled on the reservation and therefore, the tribal court had exclusive jurisdiction over the custody proceedings under 25 U.S.C. § 1911(a).

* * *

We agree with the trial court that Mother, and therefore G.R.F., was domiciled on the reservation on December 5, 1995. Therefore, jurisdiction rests exclusively with the tribe pursuant to 25 U.S.C. § 1911(a). Affirmance of the trial court's decision to dismiss the action and transfer jurisdiction to the tribe does not determine the outcome of the abuse and neglect action involving G.R.F. but decides only which court will determine that outcome. We affirm.

MILLER, C.J., and SABERS, AMUNDSON, KONENKAMP and GILBERTSON, JJ., participating.

NOTES

1. Trial Court's Finding of Concurrent Jurisdiction Upheld in *People In Re S.G.V.E.* The trial court acted correctly in terminating the rights of the mother, an enrolled member of the Oglala Sioux Tribe, to two minor daughters and was in compliance with the Indian Child Welfare Act in *People In Re S.G.V.E.*, 2001 SD 105, 634 N.W.2d 88. Among a number of issues that were addressed in this appellate decision was the assertion that exclusive jurisdiction rested with the tribal court. The Supreme Court upheld the trial court's finding on this matter, namely that the failure to establish *exclusive* tribal jurisdiction was not erroneous, despite arguments that the children were domiciled on the reservation and were wards of the tribal court. Although mother had previously lived on reservation for a number of years with the children, she had moved to Rapid City with sufficient intent to make the move permanent. An earlier proceeding (more than a year preceding this one) in tribal court concerning involvement of DSS in taking the children and returning them to mother was not sufficient to establish the children as "wards" of the tribal court.

2. Tribal Court's Assertion of Exclusive Jurisdiction for a "Ward" Rejected by SD Supreme Court. In the case of *In Re The Matter of J.D.M.C.*, 2007 SD 97, 739 N.W.2d 796, the South Dakota Supreme Court was called upon to determine whether the state trial court had acted appropriately in upholding a tribal court order (from the Sisseton-Wahpeton Oyate Tribe) in favor of the mother, an enrolled member of the tribe. The father, a non-Indian, contested the tribal order when the mother sought enforcement of the order in state court. In this case the parties had two children from their marriage. Their divorce was granted in state court with a shared joint legal and physical custody arrangement for their two daughters. Tragically, the younger daughter died when the father accidentally left her in his car one day when he went to work during the summer of 2005. No criminal charges were filed against the father. As a result of this death, mother instituted an abuse and neglect proceeding against father in tribal court and sought protective custody of the older daughter. The tribal court granted an *ex parte* temporary custody order in favor of mother. The state court refused to honor the *ex parte* order. Then the tribal Child Protection Program sought emergency protection for the child in tribal court and this resulted in a proceeding in which father participated by specially appearing to contest jurisdiction. The tribal court declared the child to be a ward of court and issued an order placing the child with the tribal Child Protection Program which was to place the child with "an appropriate family member." The tribe then sought enforcement of this order in state court. The state court trial judge upheld the tribal order on the basis of full faith and credit, on the basis of ICWA (since the tribal court had declared the child a ward of the tribal court) and on the basis of comity.

The SD Supreme Court reversed in a 4-1 decision with the majority opinion authored by Justice Sabers. The Court found that the child was not domiciled on the reservation and was not truly a ward of the tribal court because the child was neither domiciled nor residing on the reservation at the time the tribal

proceeding was initiated. Under the language of ICWA, exclusive jurisdiction concerning a “ward” is vested as follows, “Where an Indian child is a ward of a tribal court, the Indian tribe shall retain exclusive jurisdiction, notwithstanding the residence or domicile of the child.” 25 U.S.C. § 1911(a). This opinion reviews case law from Indiana, as well as South Dakota, and places emphasis on the word *retain* as used in the statute. The Court holds, “The plain language of section 1911(a) and the case law demonstrate the only effective way a wardship order can be used to obtain exclusive jurisdiction is to enter the order while the Indian child is domiciled or residing on the reservation and before the proceeding commenced. Therefore, [the tribe] could not obtain exclusive jurisdiction by declaring [the child] a ward of the tribal court after the proceeding began.” ¶ 27. The Court rejected the arguments that the tribal court order was entitled to full faith and credit recognition and comity recognition because, given the record before the Court, it was not possible to review whether or not the jurisdictional issues (both personal and subject matter) were fully and fairly litigated in tribal court. Additionally, all of the conduct at issue in this case occurred entirely off the reservation and the child was not present on the reservation. This opinion also holds that the father did not have sufficient contacts with the forum so as to justify tribal court assertion of personal jurisdiction over him and that “the status exception to due process” which is found in custody determinations is not available when the child is not present in the forum.

Justice Konenkamp dissented, basing his view on the principle that the full faith and credit clause applies to tribal court proceedings and, under the facts of this case, the father is barred by the doctrine of res judicata from raising jurisdictional issues in state court since he had previously contested jurisdiction in tribal court.

6. Complying with ICWA

This next case demonstrates at least two things. First, it demonstrates how additional findings and requirements are imposed on state courts when ICWA has been triggered. These extra burdens are imposed in situations involving *concurrent jurisdiction*.

Secondly, this case involves the scenario where the mother is a non-Indian and the child has apparently never lived in an Indian family. As indicated in the footnote included with this opinion and in Justice Sabers’ concurring opinion, the South Dakota Supreme Court has recognized that the *Claymore v. Serr* holding as to the requirement of an “existing Indian family” is no longer good law.

As you take up the next case, consider also the question of whether or not a non-Indian may assert violations of ICWA on appeal? Recall, the appellant-mother is not an Indian.

IN THE MATTER OF N.S.

Supreme Court of South Dakota, 1991.

474 N.W.2d 96.

HENDERSON, Justice.

N.S. was born on May 10, 1988. J.S., a Caucasian, is the mother of N.S. Prior to the birth of N.S., J.S. experienced psychiatric problems and was hospitalized on at least two occasions. About nine months after the birth of N.S., J.S. was again admitted to a psychiatric unit as the result of a referral from the Addiction Recovery Center. At discharge, J.S. was diagnosed as having a borderline personality disorder and a problem with alcohol.

* * *

At the adjudicatory hearing, N.S. was found to be dependent and neglected. On June 19, 1990, at the dispositional hearing, J.S.'s parental rights were terminated.

The trial court erred by not applying the Indian Child Welfare Act.

Under 25 U.S.C. § 1901 et seq., child custody proceedings involving the termination of parental rights to an Indian child are subject to specific minimum federal procedures and standards. Pursuant to these "minimum federal standards":

No termination of parental rights may be ordered in such proceeding in the absence of a determination, *supported by evidence beyond a reasonable doubt*, including testimony of a qualified expert witness, *that the continued custody of the child by the parent or Indian custodian is likely to result in serious emotional or physical damage to the child.* 25 U.S.C. § 1912(f). (emphasis added).

See Matter of J.L.H., 299 N.W.2d 812 (S.D.1980).

Before the trial court is required to apply the standard for termination of parental rights set out in the Indian Child Welfare Act, some evidence must demonstrate that the child is Indian and that the act applies. *Matter of B.R.B.*, 381 N.W.2d 283 (S.D.1986). In this case, N.S. is an "Indian child" within the meaning of the Indian Child Welfare Act. *See* 25 U.S.C. § 1903(4). Although N.S.' paternity was not established until after termination, N.S.' Indian status was acknowledged prior to termination and the Cheyenne River Sioux Tribe was notified of the right to intervene in this action.

* * *

It is clear from the record that the federal standards were not followed at the dispositional stage of the state proceedings in this case.

* * *

The final Dispositional Order states, in pertinent part:

Ordered, that by clear and convincing evidence it is necessary for the child's physical and mental well-being that the parental rights of the Respondent be terminated to the minor child; and it is further Ordered that by clear and convincing evidence, no lesser restrictive alternative than termination of parental rights are available to this court to protect the minor child from continued serious emotional and physical harm.

The application of the clear and convincing burden of proof to the language "serious emotional or physical harm to the child" as well as the application of the beyond a reasonable doubt burden of proof to the language "the only reasonable alternative in the interests of the child" clearly conflicts with section 1912(f) of ICWA. This section provides that there will be no termination unless it is shown by evidence beyond a reasonable doubt that "the continued custody of the child is likely to result in serious emotional or physical damage to the child."

Contrary to the requirement of 25 U.S.C. § 1912(f), the trial court reached its determination by applying the state law burden of proof (clear and convincing) to the federal language (that the continued custody of the child by the parent of Indian custodian is likely to result in serious emotional or physical harm to the child).

* * *

In a termination case, the trial court must make clear and specific findings which conform to the statutory requirements. This was not done. *Matter of R.M.M.*, 316 N.W.2d 538 (Minn.1982). We therefore reverse the trial court, with instructions to enter new findings of fact, conclusions of law and a dispositional order which conform to the federal standards found in 25 U.S.C. § 1901 *et seq.*¹ The new findings should be based upon the record as it existed at the conclusion of the dispositional hearing.

Reversed and remanded.

SABERS, Justice (concurring specially).

However pointless a remand may appear, the law is clear and the majority has read it correctly.

The Indian Child Welfare Act (ICWA), 25 U.S.C. §§ 1901-1963 (1988), is a preemptive federal law which governs all custody proceedings involving Indian children except those incident to divorce or to criminal acts committed by the child. 25 U.S.C. § 1903(1). The record shows that in this non-divorce, non-criminal proceeding, the circuit court itself identified N.S. as an "Indian child" within the meaning of 25 U.S.C. § 1903(4) prior to the termination of parental rights. *See* majority opinion at footnote 3.

Mississippi Choctaw Indians v. Holyfield, 490 U.S. 30, 109 S.Ct. 1597, 104 L.Ed.2d 29 (1989), authoritatively established the principle that the provisions of ICWA are to be strictly construed and applied. Moreover, this court has acknowledged that pre-*Holyfield* state court cases like *Claymore v. Serr*, 405 N.W.2d 650 (S.D.1987), and *In re Adoption of Baby Boy L.*, 231 Kan. 199, 643 P.2d 168 (1982), are now doubtful authority, and that ICWA has effect even when the Indian child has never been raised in an Indian home. *Matter of Adoption of Baade*, 462 N.W.2d 485, 489 (S.D.1990).

Here, the circuit court found termination of J.S.'s parental rights to be both in the best interests of N.S. and the least restrictive alternative by clear and convincing evidence. Under ICWA, that is not enough. The case must be remanded and J.S.'s parental rights may not be terminated unless the court also finds that her continued custody of N.S. would "beyond a reasonable doubt ... likely ... result in serious emotional or

¹ The appellee argues that ICWA is not applicable to this case, citing various authorities that stand for the proposition that the purpose of ICWA is for the maintenance of the Indian family. However, this Court recently stated that it is incorrect when assessing ICWA's applicability to a particular case, to focus only upon the interests of an existing Indian family. *Matter of Adoption of Baade*, 462 N.W.2d 485 (S.D.1990). *See* Note, *The Indian Child Welfare Act of 1978; Does it Apply to the Adoption of an Illegitimate Indian Child?*, 38 Cath.U.L.Rev. 511 (1989) ("in light of the legislative history of the ICWA, the existing Indian family theory is thus contrary to the intent of Congress." (Footnotes omitted.)). As we stated in *Baade*, such a practice fails to recognize the legitimate concerns of the tribe that are protected under the Act.

physical damage to the child." 25 U.S.C. § 1912(f); *Baade*, 462 N.W.2d at 490.

SUBSEQUENT DEVELOPMENTS ON THE “EXISTING INDIAN FAMILY” REQUIREMENT

In *James R. v. Cindy R. (In re Bridget R.)*, 41 Cal.App.4th 1483, 40 Cal.Rptr.2d 507 (1996), the California appellate court reinstated the requirement that the child be removed from an “existing Indian family.” The court held that ICWA was unconstitutional unless it was limited by the “existing Indian family” requirement. Notably, this California case was decided *after* the U.S. Supreme Court’s decision in *Mississippi Band of Choctaw Indians v. Holyfield*.

For a similar holding, see *In Re Santos Y.*, 92 Cal.App.4th 1274, 112 Cal.Rptr.2d 692 (2001) which held ICWA to be unconstitutional as applied in the case of a child whose placement was to be with a member of an Indian tribe where the child’s sole connection to the tribe was a one-quarter genetic contribution from an enrolled bloodline.

IN THE MATTER OF S. R.

Supreme Court of South Dakota, 1982.

323 N.W.2d 885.

FOSHEIM, Justice.

The issues in this case relate to the Dependent, Neglected and Delinquent Children Act, SDCL ch. 26-8, and the Indian Child Welfare Act of 1978 (ICWA), 25 U.S.C.A. § 1901 *et seq.* On August 21, 1980, the court adjudicated S.R. a dependent and neglected child within the meaning of SDCL 26-8-6. The ensuing Dispositional Order terminated the parental rights of the mother and awarded sole custody to the child's father. Both the mother and father are members of a Sioux Indian tribe. The mother (appellant) appeals from the Dispositional Order. We affirm.

Appellant asserts in her brief that the burden of proof at the adjudicatory hearing, under the ICWA, is clear and convincing; conversely, at oral argument she claimed the adjudicatory burden is beyond a reasonable doubt. We hold that, under the ICWA, dependency and neglect must be proved by clear and convincing evidence. Such a conclusion is indicated by reading together 25 U.S.C.A. § 1912(e) and (f).¹ The clear and convincing burden is preferred as this lesser showing best protects the interests of the child, which

¹ 25 U.S.C.A. § 1912(e) reads: No foster care placement may be ordered in such proceeding in the absence of a determination, supported by clear and convincing evidence, including testimony of qualified expert witnesses, that the continued custody of the child by the parent or Indian custodian is likely to result in serious emotional or physical damage to the child.

25 U.S.C.A. § 1912(f) reads: No termination of parental rights may be ordered in such proceeding in the absence of a determination, supported by evidence beyond a reasonable doubt, including testimony of qualified expert witnesses, that the continued custody of the child by the parent or Indian custodian is likely to result in serious emotional or physical damage to the child.

is of paramount importance at the adjudicatory hearing. *People in Interest of D.K.*, 245 N.W.2d 644 (S.D.1976). Although the trial court did not state what standard of proof it applied, a careful review of the record of the adjudicatory hearing indicates the "serious emotional or physical damage" requirement of 25 U.S.C.A. §1912(e) was proved by clear and convincing evidence. See: *People in Interest of P. M.*, 299 N.W.2d 803 (S.D.1980); *Matter of S. J. Z.*, 252 N.W.2d 224 (S.D.1977).

This brings us to these issues regarding the Dispositional Order terminating appellant's parental rights: (1) whether active efforts were made to prevent the breakup of the family; (2) whether termination was supported by the requisite burden of proof; and, (3) whether termination was the least restrictive alternative.

Concerning the first issue, the ICWA, 25 U.S.C.A. §1912(d), states:

Any party seeking to effect a foster care placement of, or termination of parental rights to, an Indian child under State law shall satisfy the court that active efforts have been made to provide remedial services and rehabilitative programs designed to prevent the breakup of the Indian family and that these efforts have proved unsuccessful.

This section does not specify a burden of proof. However, we assume that the same burden required to prove serious emotional or physical harm under §1912(f), beyond a reasonable doubt, would also be required to prove active efforts by the party seeking termination. The trial court found that while the child was placed with a foster parent, and later the father, appellant made no effort to exercise consistent visitation although she knew the opportunity for visitation was always available. The trial court found that appellant was provided with various types of assistance and direction in caring for her child, yet she failed to exhibit any interest in proffered help or in expanding her knowledge of caring for her special needs child. The trial court also found that it was apparent that appellant would not respond in the future to any additional offers of assistance and that further active efforts towards improvement would be fruitless.

Although the trial court did not so find, it appears appellant's paint huffing addiction was the cause of her inability to function as a parent. Repeated efforts were made to impress upon appellant the vital importance of taking advantage of available treatment programs. The evidence indicates she spurned help and chose rather to deny her addiction. The frustration met by those trying to help appellant was expressed by Rosalie Good Bear, an expert witness: "[I]t's been my experience in working with huffers and chemically dependent children that active efforts can only go so far and that if the client himself or herself is not open or does not recognize the problem and is not open to any kind of treatment, then it's unlikely that it would be successful." ²

After reviewing the record we conclude that the trial court's findings concerning active efforts are supported by evidence beyond a reasonable doubt.

The next issue is whether the burden of proof was met to terminate appellant's parental rights under the ICWA. The ICWA, 25 U.S.C.A. §1912(f), states:

No termination of parental rights may be ordered in such proceeding in the absence of a determination, supported by evidence beyond a reasonable doubt, including testimony of qualified expert witnesses, that the continued custody of the child by the parent or Indian custodian is likely to result in serious emotional or physical damage to the child.

² In *Matter of R. Z. F.*, 284 N.W.2d 879 (S.D.1979), we held that unsuccessful efforts to rehabilitate a paint huffing parent justified termination of parental rights.

The trial court found that the circumstances were such as would warrant, beyond a reasonable doubt, a termination of the parental rights of appellant. We recognize that review under the beyond a reasonable doubt standard is more demanding than under the clear and convincing standard and we have considered the evidence accordingly. *City of Sioux Falls v. Wolf*, 79 S.D. 519, 114 N.W.2d 100 (1962); *State v. Liberman*, 59 N.D. 252, 229 N.W. 363 (1930).

* * *

After carefully reviewing the evidence, we hold that the "serious emotional or physical damage" requirement was proved beyond a reasonable doubt.

Finally appellant argues, citing *Matter of B. E.*, 287 N.W.2d 91 (S.D.1979), that the least restrictive alternative was not followed in terminating her parental rights to the child.

* * *

The trial court's Dispositional Order clearly reflects the State's compelling interest in the well-being and welfare of the child and, under the circumstances of this case, we do not see how the child's welfare could be insured by less intrusive means.

While termination of appellant's parental rights was unfortunate, the spirit of the ICWA was nevertheless fulfilled. The policy of the ICWA, as stated in 25 U.S.C.A. §1902, is:

[T]o protect the best interests of the Indian children and to promote the stability and security of Indian tribes and families by the establishment of minimum Federal standards for the removal of Indian children from their families and the placement of such children in foster or adoptive homes which will reflect the unique values of Indian culture[.]

The trial court's Dispositional Order gave the child's father, also an Indian within the meaning of the ICWA, sole custody, care and control of the child. That disposition was based on a finding, supported by the evidence, that the father is providing the child an appropriate environment with the level of attention and love the child's special needs require.

Issues not discussed are without merit or unnecessary to discuss in view of our decision and the record before us. The trial court's Dispositional Order is affirmed.

All the Justices concur.

NOTES

1. An “order of preference” directive is contained in the ICWA for adoptive placements. 25 U.S.C. § 1915. First priority is given to members of the child’s extended family, then to other members of the Indian child’s tribe, and finally to other Indian families. *In Matter of Baade*, 462 N.W.2d 485 (S.D. 1990), the Indian child was placed with its non-Indian aunt and non-Indian uncle. The South Dakota Supreme Court noted that the placement complied with the ICWA’s directive that extended family be given preference. *Id.* at footnote 3, p. 490.

2. In connection with *Baade* discussed in note 1, review the definition of “extended family member” in 25 U.S.C. § 1903, reproduced earlier. Was the South Dakota Supreme Court technically correct? Did the court construe the ICWA in a manner which protected the “tribal interest” recognized in *Holyfield*? Is it possible for an Indian tribe to prevent this result?

3. Is the holding of *Baade*, which permitted the placement of the child with its non-Indian aunt and uncle, consistent with the Congressional declaration of policy found in 25 U.S.C. § 1902 calling for the placement of Indian children in homes “which will reflect the unique values of Indian culture?”

4. What if the situation involving an Indian child is also a situation where reunification efforts may be by-passed under the Adoption and Safe Families Act (ASFA)? According to the recent decision in *In the Interest of J.S.B., Jr.*, 2005 SD 3, 691 N.W.2d 611, the “active efforts” requirement found in ICWA is still mandated. In this case, the trial court terminated parental rights of an Indian child, holding that the Adoption and Safe Families Act (ASFA) applied to the case and that DSS was under no obligation to provide services aimed at reunification of the child and parent. ¶ 9. The trial court also found that DSS had indeed “made ‘reasonable’ and ‘active’ efforts to reunite the family.” ¶ 10. The South Dakota Supreme Court affirmed the termination of parental rights, but also held in an unanimous opinion authored by Justice Konenkamp that “ASFA does not override the requirements of ICWA.” ¶ 1. This opinion identifies the goal of the ASFA (moving more quickly toward a permanent placement) and the goal of ICWA (maintaining familial, tribal and cultural ties for Indian children). ¶ 17. Observing that nothing in ICWA itself offers an exception for its mandated reunification effort, the Court stated “... we do not think Congress intended that ASFA’s ‘aggravated circumstances’ should undo the State’s burden of providing ‘active efforts’ under ICWA. Three rules of statutory construction dictate otherwise...” ¶ 21.

5. The South Dakota Supreme Court reversed the lower court’s termination of parental rights in *In the Interest of M.H., L.U.H., W.H., Jr., L.S.H., and T.H.*, 2005 SD 4, 691 N.W.2d 622 because the only expert witness produced by the state did not meet the standard required by 25 U.S.C. § 1912(f), as elaborated upon by the BIA guidelines. (The relevant BIA guidelines may be found in ¶ 10 of this opinion.) In this case the state’s expert had experience with other Indian tribes, namely the Yankton Sioux Tribe, the Ponca Tribe, and the Flandreau Santee Sioux Tribe. But, he did not have experience with the Cheyenne River Sioux Tribe (CRST). The shortcomings of the expert were identified as follows: 1) “He had visited the CRST reservation on [only] one occasion”; 2) “He was only aware of parental services offered by the Yankton Sioux or Ponca Tribes” 3) “He was unable to articulate the cultural or religious differences between the tribes he worked with and the CRST” 4) “He was not able to identify the Lakota kinship structure or who was primarily responsible for raising the children in that structure” and 5) “He was unable to identify any services offered by the CRST.” ¶ 13. Justice Zinter dissented in a lengthy opinion.

6. **State’s tendered expert witness held to satisfy ICWA by virtue of, *inter alia*, phone call to tribe to verify similarity of childrearing practices, while offer of telephonic testimony by tribe’s tendered expert witness rejected in *In the Interest of O.S.*, 2005 SD 86, 701 N.W.2d 421.** Mother’s parental rights to her Indian child were terminated in *In the Interest of O.S.*, 2005 SD 86, 701 N.W.2d 421.

The trial court permitted the state's tendered expert witness to testify, holding that the witness was qualified to the extent required by ICWA, 25 U.S.C. § 1912(f). Additionally, the trial court refused the telephonic testimony of the Cheyenne River Sioux Tribe's (CRST) tendered expert witness, where the request for the use of telephonic testimony was first brought to the trial court's attention on the morning of the hearing. The South Dakota Supreme Court affirmed.

As to the matter of the state's tendered expert witness, this opinion distinguishes the *M.H.* case (*In the Interest of M.H., L.U.H., W.H., Jr., L.S.H., and T.H.*, 2005 SD 4, 691 N.W.2d 622 – which is discussed in the preceding note) because of the lack of a specific challenge by the mother as to the witness' qualifications (§ 14, last sentence). The Court also found that the state established that its tendered expert witness had substantial knowledge of Indian culture and childrearing through (1) her participation in ICWA training sessions, some of which were conducted by Native American persons; (2) her extensive experience in working with Native American families over the previous four years of her employment as a DSS case worker, with half of her cases involving Native Americans; (3) her experience working with Native Americans in previous jobs; and (4) her telephone verification which she made with the CRST as to fact that the tribe's childrearing practices were similar to the practices with which the expert was familiar. §§ 12-13. [Justice Zinter concurred on this issue, stating that he believed the expert in the *M.H.* was better qualified and that the holding in the *M.H.* opinion should be revisited. (Note that Justice Zinter had dissented in *M.H.*) Justice Zinter believed that the majority was overly impressed with the telephone call made by the state's witness to confirm similarity of childrearing practices.]

The trial court's refusal to receive telephonic testimony of the tribe's tendered expert witness, first indicated on the morning of trial, was found to be within the discretion of the trial court. The opinion notes that the testimony of an expert witness may be offered by way of deposition, as authorized in SDCL 26-7A-79. §§ 16-17.

QUESTION

It is clear that if an Indian child is the subject of an adoption proceeding in state court, then all of the additional hurdles of ICWA are triggered. This might be discouraging to adoptive parents who wish to have an adoption proceeding take place which is not subject to such stringent requirements and which might be vulnerable to a subsequent collateral challenge after the initial proceeding has concluded. What if these same adoptive parents were to pursue the adoption of the Indian child directly in tribal court? Would the tribal court be required to comply with all of the burdens and technicalities of ICWA?

STATE LAW ENACTMENTS OF ICWA

(Excerpts from Article published at the web site for the National Conference of State Legislatures, found at <http://www.ncsl.org/programs/statetribe/ICWA.htm> – reprinted here with permission of author)

The Indian Child Welfare Act and the States

By: Andrea Wilkins
April 2004

* * *

Enforcement Problems in the States

The goals of ICWA cannot be fulfilled if it is not implemented in state proceedings involving Indian children. Today, lack of ICWA enforcement is a problem throughout the country. Too often state officials are uninformed about the Act or refuse to apply it. This results in Indian children being removed from their homes and placed in non-Indian foster or adoptive homes, despite the contrary intent of the Act. Lack of state enforcement can compromise the best interests of children and their families, which in the end, is a problem for the state as well as the tribe.

A study of nine North Dakota counties with the highest population of Indian children in foster care turned up mixed results concerning ICWA enforcement. For example, the study revealed that there is a high level of county compliance in determining if a child is a member of a tribe or eligible for membership and over half the case records indicated that active efforts were made to prevent out-of-home placement. The study found that compliance is mixed regarding notice given to tribes, parents and Indian custodians about the placement of Indian children, however. In addition, over half the foster care case records indicate that ICWA preferences were not followed in placement decisions.

A study of ICWA compliance in Arizona turned up mixed results as well. While Arizona provides ICWA training to caseworkers at the beginning of their employment, on-going training occurs less often. State efforts to maintain regular contact with the child's tribe appear to be consistent, but state and tribal officials report the time frame required by the state court does not allow enough time for state and tribal officials to collaborate. State and tribal officials report that in many cases, transferring the case to tribal court would be preferable, but tribes often lack the resources to meet the needs of the affected parties. Finally, the study found that Arizona's attempt to comply with the preference system established by ICWA for out-of-home placement is good, although no agreement exists between the state and tribes defining the meaning of "active efforts" to prevent the breakup of the family in the first place. The undefined nature of this requirement leaves caseworkers without clear guidelines for developing case plans to assist these families.

State Activity

While it is not necessary for states to enact their own Indian child welfare act, if they do not, they rely solely on the federal Act. The provisions of the federal Act are somewhat general and this can lead to problems concerning state enforcement. Some states have chosen to enact their own Indian child welfare laws or develop policies that clarify requirements of the federal Act and specify what state action is necessary for compliance.

* * *

ACTIVITY IN SOUTH DAKOTA

In the 2004 South Dakota legislative session, Senate Bill 211 was sponsored by eighteen South Dakota Senators and six Representatives. The original intent of this bill was to establish a South Dakota version of ICWA. SB 211 was subsequently amended, passed and signed into law. The amended version of the bill created a commission to study South Dakota's compliance with ICWA. The Governor was required to appoint up to 18 members of commission and the commission was to include representatives from each of the nine (9) Indian tribes in South Dakota, as well as representatives of various state and judicial entities and political parties. The Commission was to hold no less than four meetings and was to be dissolved on December 31, 2004. The Commission was not to exceed 29 members. Other members to the commission were to be appointed by the President of the Senate, Speaker of the House, the Chief Justice of the South Dakota Supreme Court and the South Dakota State's Attorney Association. The Commission was to provide a final report to the Eightieth (2005) Session of the Legislative Assembly.

Developments in a few other states are the subject of the following notes.

NOTES

1. In 2003, Iowa adopted its own state-law version of the Indian Child Welfare Act. *See* Iowa Code Annotated, Title VI. Human Services, Subtitle 5. Juveniles, Chapter 232B. Indian Child Welfare Act. For a recent case discussing this new statutory scheme, see *In the Interest of D.H.*, 2004 WL 1813420, 688 N.W.2d 491 (Iowa Court of Appeals 7/28/04).

2. The Oklahoma Indian Child Welfare Act was enacted in 1982 and can be found at Okla. Stat. tit. 10, secs. 40-40.9.

3. The Colorado Legislature adopted Colorado's Indian Child Welfare Law in 2002, through its enactment of HB 1064 and further amended various statutory provisions in its Children's Code so as to ensure compliance with the federal ICWA.

4. California and Washington are reported to have adopted administrative regulations which help insure compliance with the federal ICWA by apparently giving wider scope to the definition of “Indian Child” and by specifically requiring notice in a broader range of cases than might otherwise be required under narrow interpretations of the federal statute.

5. The Nebraska Indian Child Welfare Act was passed in 1985. Laws 1985, L.B. 255, codified at 43-1501 through 43-1516 Neb. Stats (2004).

6. The 2005 South Dakota Legislature enacted HB 1226 which sets forth detailed “notice” provisions. SDCL 26-7A-15 was amended to require reasonable efforts to inform the Indian custodian and the Indian child’s tribe of the time, date and place of the hearing on temporary custody. Also, lengthy new sections were added to SDCL 26-7A, as SDCL 26-7A-15.1 and SDCL 26-7A-15.2, which also require notice prior to the adjudicatory and dispositional hearings of an Indian child. The notice must be sent to the Indian child’s tribe and parents and/or custodian. The requirements as to the contents of the notice are set forth, together with a prescribed “form.” There are many specific requirements set forth in this new statute, including the right to a 20 day extension of time and the advice of right to counsel to the Indian child’s parents and/or custodian (and the fact counsel may be appointed, if the parents or custodian are unable to afford counsel).

**THE RESURGENCE OF THE “TRIBAL INTEREST”
IN INDIAN CHILD CUSTODY PROCEEDINGS**

Roger M. Baron¹

- I. The “Tribal Interest” as Recognized by the ICWA
- II. The Resurgence of the “Tribal Interest”
- III. Recognizing the “Tribal Interest” in the Issues of the ICWA
 - A. *Determining the Applicability of the ICWA (Deciding “When to Decide”*
 - B. *Child Custody Proceedings*
 - C. *Indian Child*
 - D. *Indian Tribe*
 - E. *Existing Indian Family*
 - F. *Parent or Indian Custodian*
 - G. *Exclusive Jurisdiction*
 - H. *Voluntary Proceedings*
 - I. *Concurrent Jurisdiction of State and Tribal Courts*
 - 1. Transfer to State Court
 - a. *Good Cause*
 - b. *Veto Power*
 - 2. State Court Proceedings
- IV. Conclusion

I. The “Tribal Interest” as Recognized by the ICWA

The Indian Child Welfare Act of 1978 (“Act” or “ICWA”)² protects Indian children,³ Indian families,⁴ and Indian tribes.⁵ Protection of these interests is expressly declared in the Act⁶ which was

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² 25 U.S.C §§ 1901-63 (1988).

³ *Id.* at § 1901(3) (1988).

⁴ *Id.* at § 1901(4) (1988).

⁵ *Id.* at § 1901(3) (1988).

⁶ *Id.* at § 1902 (1988).

enacted pursuant to Congress plenary power over Indian affairs found in the commerce clause.⁷

Specific recognition of tribal sovereignty and recognition of the threat to the continued existence of the tribes themselves was a key factor motivating the enactment of the ICWA.⁸ Congressional studies indicated that up to thirty-five percent of all Indian children were being separated from their families. In ninety percent of the cases, ultimate placements were effected in non-Indian homes.⁹ Tribal heritage and the ability of the tribes to continue to exist as self-governing communities were major considerations in the passage of the Act.¹⁰

A major cause of the problem was the involvement of non-Indian social workers who were unfamiliar with Indian culture and who were likely to misinterpret Indian behavior.¹¹ Debilitation of Indian culture and Indian communities was exacerbated by state-created rules and policies which actually prohibited Indian child placement with Indian custodians.¹²

* * *

I. Concurrent Jurisdiction of State and Tribal Courts

1. Transfer to Tribal Court

The ICWA provides that, in proceedings where concurrent jurisdiction exists, either parent or the Indian child's tribe may request a transfer to the "jurisdiction of the tribe."¹³ The mandate of the ICWA is that the state court, "in the absence of good cause to the contrary, shall transfer such proceeding to the jurisdiction of the tribe, absent objection by either parent. . .subject to declination by the tribal court."¹⁴ Stated differently, upon request, the ICWA requires transfer subject only to (a) good cause or (b) the veto power of either parent or the tribe.

The transfer provision of the ICWA was designed to give Indian tribes "presumptive jurisdiction

⁷ "The Congress shall have the power. . . to regulate commerce. . . with the Indian tribes." U.S. Const. art I. § 8. cl.3; *see also* 25 U.S.C. § 1901(1) (1988).

⁸ *See generally Mississippi Choctaw Indian Band v. Holyfield*, 490 U.S. 30, 33-34 (1989).

⁹ 124 Cong. Rec. 12,533-34 (1978). *See also* H.R. Rep. No. 1386, 95th Cong., 2d Sess. 9 reprinted in 1978 U.S. Code Cong. & Admin. News 7530, 7531-32. For a compilation of these figures, see Barsh, *The Indian Child Welfare Act of 1978: A Critical Analysis*, 81 Hastings L.J. 1287, 1289 (1980).

¹⁰ 124 Cong. Rec. 38,101-03 (1978).

¹¹ Barsh, *supra* note 8, at 1294. At times, the social workers have even been described as "contemptful." *Id.*

¹² Barsh, *supra* note 8, at 1295.

¹³ 25 U.S.C. § 1911(a) (1988). The right to "petition" for a transfer also extends to Indian custodians. *Id.* at 1911(c).

¹⁴ *Id.* at § 1911(b) (emphasis added).

over nondomiciliaries;”¹⁵ however, in the past, the majority of state courts dealing with a request for transfer have denied the transfer by focusing on the exceptions and technical requirements of the Act.¹⁶ Following *Holyfield*, however, a recent trend by a small number of state courts has developed which upholds the presumptive nature of the ICWA’s transfer provision.¹⁷

(a) *Good Cause*

An exhaustive discussion of the grounds utilized by state courts for “good cause” to deny a transfer is not warranted in this article. It should be noted that the Bureau of Indian Affairs has issued nonbinding guidelines for use in determining whether good cause exists. Included in those guidelines is the recognition that “[s]ocio-economic conditions and the perceived adequacy of tribal or Bureau of Indian Affairs social services or judicial systems *may not* be considered in a determination that good cause exists.”¹⁸ It is precisely these types of considerations, however, which understandably and inescapably weigh heavily on the state courts in ruling on requests to transfer.¹⁹ Unpleasant factual scenarios are common in termination cases, and courts are hesitant to cede jurisdiction to a tribal forum which is perceived to be more tolerant of the abuse or neglect that may have been the reason for the proceeding.²⁰ However, the ICWA recognizes the fact that state courts may have the same unfamiliarity with the Indian culture seen in non-Indian social workers.²¹ The purpose of the ICWA is not to promote child abuse or neglect, but to provide an Indian forum for the solution. Ultimately, the element of trust in the tribal court system becomes the issue. The trust necessary

¹⁵ *Holyfield*, 490 U.S. at 49. “Absent an objection or proof why the transfer should not occur, the transfer is obligatory unless the tribal court declines the transfer.” *In re Bird Head*, 331 N.W.2d 785, 791 (Neb. 1983) (Krivosha J. concurring) (emphasis added).

¹⁶ See *State ex rel J.J.*, 454 N.W.2d 317 (S.D. 1990); *In re N.L.*, 754 P.2d 863 (Okla. 1988); *In re Laurie*, 107 N.M. 529, 760 P.2d 1295 (1988); *In re Bird Head*, 213 Neb. 741, 331 N.W.2d 785 (1983); *In re Robert T.*, 200 Cal. App.3d 657, 246 Cal. Rptr. 168 (1988); *In re T.R.M.*, 525 N.E.2d 298 (Ind. 1988); *In re M.E.M.*, 195 Mont. 329, 635 P.2d 1313 (1981).

¹⁷ See *In re Armell*, 194 Ill. App. 3d 31, 550 N.E.2d 1060 (1990) (upholding trial court’s transfer to the Potawatomi tribal court); *In re B.W.*, 454 N.W.2d (minn. Ct. App. 1990) (strongly suggesting transfer upon remand to the tribal court of the Omaha tribe of Nebraska, observing that “transfer of jurisdiction over Indian child custody matters to tribal authorities is mandated by ICWA whenever possible.”). *Id.* at 446.

¹⁸ 44 Fed. Reg. 67,584, 67,591 (1979) (emphasis added).

¹⁹ Justice Sheehy, dissenting in *In re M.E.M.* noted that [T]he District Court in this case refused to transfer the proceedings to the Tribal Court upon the perceived impression that the child’s custody would be given to persons on the reservation with whom the District Court, and the department of Public Welfare, were not satisfied. . . .It cannot, in my view, be “good cause” to refuse transfer. . . .on the perception that the tribal court may not act with respect to the child in the way we would wish it to act. The purpose of the Indian Child Welfare Act is to remove as far as possible the white man’s perceptions in the matters where Indian values may conflict.

²⁰ *E.g., Ex. rel.J.J.*, 454 N.W.2d 317 (S.D. 1990), where the trial court’s denial of request to transfer was upheld and, in so doing, the court stated.

We are aware of the Act’s intent of preserving Indian culture, values, home life and child rearing. . . . These are laudable objectives that should be carried out. But home life at V.J.’s consisting as it did of child molesting, beatings with shoes, sadistic burnings, and alcohol abuse is certainly not the traditional Lakota culture that the Act seeks to preserve. . . . Actually, the trial court found that ‘V.J. has resorted to the Standing Rock Sioux Tribe to find a way to get these children. . . .’

²¹ See *supra* notes 10-13 and accompanying text.

to make the system work is the type of trust already extended by the United States Supreme Court,²² the Utah Supreme Court,²³ and the appellate courts of Minnesota and Illinois.²⁴

It has been generally recognized that the request for a transfer may be made “orally”²⁵ and that the party opposing transfer carries the burden of establishing good cause.²⁶ The guidelines by the Bureau of Indian affairs suggest that the following circumstances may establish “good cause” for denying a transfer: (1) lack of a tribal court; (2) untimeliness in seeking a request where the proceeding is at an advanced stage; (3) an Indian child over twelve years of age objects; (4) undue hardship on the parties and witnesses in presenting evidence in the tribal court, and; (5) where the child is over five years of age, has had little or no contact with the tribe and the child’s parents are unavailable.²⁷ Some courts have permitted the “best interests of the child” to be considered in ruling on a request for transfer,²⁸ however, this criteria is not suggested by the Bureau of Indian Affairs²⁹ and is out of harmony with the jurisdictional nature of the ICWA.³⁰

(b) Veto Power

Either parent or the tribe may veto a request to transfer.³¹ The veto power of a parent extends to both

²² “. . . we must defer to the experience, wisdom, and compassion of the [Choctaw] tribal courts.” *Holyfield*, 490 U.S. at 54 (quoting *Halloway*, 732 P.2d at 972).

²³ “. . . we must defer to the experience, wisdom and compassion of the Navajo Nations tribal courts to fashion an appropriate remedy.” *Halloway*, 732 P.2d at 972.

²⁴ See cases cited *supra* note 208.

²⁵ *In re Laurie R.*, 107 N.M. 529, 533, 760 P.2d 1295, 1299 (N.M. Ct. App. 1988) (relying on the Bureau of Indian Affairs guidelines).

²⁶ *In re Wayne R.N.*, 107 N.M.341, , 343, 757 P.2d 1333, 1335 (N.M. Ct. App. 1988) (relying on the Bureau of Indian affairs guidelines).

²⁷ See *supra* note 209.

²⁸ *M.E.M.*, 295 Mont. at 336, 635 P.2d at 1317; *In re Robert T.*, 200 Cal. App. 3d, 657, 667, 246 Cal. Rptr. 168, 174-75 (1988).

²⁹ See *supra* note 209.

³⁰ See *supra* notes 210 notes 210-15 and accompanying text.

³¹ See *supra* note 205 and accompanying text; for a case involving the tribe’s right to decline a transfer, see *Wayne R.N.*, 107 N.M. 341, 757 P.2d 1333 (N.M. ct. App. 1981), where transfer was denied on the basis, *inter alia*, of the fact “[t]he Tribe’s attorney stated the Tribes were opposed to the transfer.” *Id.* at 344, 757 P.2d at 1336.

non-Indian Parents³² and Indian parents.³³ The ICWA does not extend the veto power to an “Indian custodian” even though an Indian custodian is authorized to request the transfer.³⁴ Guardians representing the Indian child’s interest under state law or procedure are not extended the veto power over a request to transfer.³⁵

2. State Court Proceedings

Not surprisingly, a number of state court proceedings have successfully adhered to the “minimum standards”³⁶ imposed by the ICWA.³⁷ These standards are not inconsequential. In a termination proceeding, the ICWA requires proof “beyond a reasonable doubt, including testimony of qualified expert witnesses, that the continued custody of the child by the parent or Indian custodian is likely to result in serious emotional or physical damage to the child.”³⁸ At least one state court has found that evidentiary proof satisfying the lesser standard of “clear and convincing evidence” will not satisfy the ICWA.³⁹ The party seeking termination must additionally satisfy the independent state grounds for termination of parental rights. The ICWA does not, in and of itself, provide the substantive law regarding the termination. It simply superimposes federal standards on the substantive law of the state.⁴⁰

The requirement that there be testimony of qualified expert witnesses has been the subject of a fair amount of litigation. The Bureau of Indian Affairs guidelines urge the use of expert witnesses who possess

³² *In re G.L.O.C.*, 205 Mont. 351, 352, 668 P.2d 235, 236 (1983) (non-Indian father’s denial of right to counsel constituted grounds to vacate transfer order where father, acting without counsel, did not “expressly declare he would contest transfer.”)

³³ *In re S.Z.*, 325 N.W.2d 53 (S.D. 1982) (upholding initial objection to transfer made by both Indian mother and non-Indian father where subsequent transfer was apparently consented to by appointed counsel.

³⁴ 25 U.S.C. § 1911(b) (1988).

³⁵ *In re Armell*, 94 Ill. App. 3d 31, 550 N.E.2d 1060 (1990) (Public Guardian’s objection to transfer to Potawatomi tribal court failed).

³⁶ 25 U.S.C. § 1912(f) (1988).

³⁷ *In re Baade*, 462 N.W.2d 485 (S.D. 1990); *In re S.R.*, 323 N.W.2d 885 (S.D. 1982); *J.J.*, 454 N.W.2d 317 (S.D. 1990); *Laurie R.*, 107 N.M. 529, 760 P.2d 1295 (1988); *D.W.H. v. Cabinet for Human Resources*, 706 S.W.2d 840 (Ky. Ct. App. 1986) (case of first impression in Kentucky); *Wayne R.N.*, 107 N.M. 341, 757 P.2d 1333 (1988); *state ex rel. Juvenile Dep’t v. Tucker*, 76 Or. App. 673, 710 P.2d 793 (1985); *D.A.W. v. State*, 699 P.2d 340 (Alaska 1985); *Long v. State Dept. of Human Resources*, 527 So.2d 133 (Ala. Civ. App. 1988).

³⁸ 25 U.S.C. § 1911(b) (1988).

³⁹ *In re Morgan*, 140 Mich. App. 594, 603, 364 N.W.2d 754, 758 (1985) (reversal of termination proceeding where lower court applied only “clear and convincing evidence standard”).

⁴⁰ This point is driven home by the dissenting opinion of Justice Henderson in *In re Baade*, 462 N.W.2d at 493, where he questioned compliance with South Dakota law on abandonment as it applies to the Indian father where the child was at birth immediately removed some 400 miles away for adoption by the mother’s sister and brother-in-law, noting that South Dakota courts have traditionally required that abandonment be shown to be a “giving up or total desertion of the minor child. . . an absolute relinquishment.” *Id.* at 4911.

special knowledge of the social and cultural aspects of Indian life.⁴¹ State courts, however, have entered varying interpretations of this provision ranging from mere “expertise beyond the normal social worker”⁴² to the level of “particular and significant knowledge of and sensitivity to Indian culture.”⁴³ An exception for experts lacking specialized knowledge of Indian culture has been recognized by some courts for situations where “cultural bias” is not an issue.⁴⁴ At least one court has held that despite the Act’s usage of the plural form of the word, “witnesses,” this provision may be satisfied by one qualified expert.⁴⁵

The ICWA further requires that the party seeking foster care placement of an Indian child or termination of parental rights to an Indian child demonstrate the *active remedial* efforts were made to prevent the breakup of the Indian family.⁴⁶ An adoptive placement is, under the ICWA, to be according to the order of preferences⁴⁷ set forth in the Act which, absent tribal resolution to the contrary, give first priority to extended family members.⁴⁸ Several state court proceedings have been reversed for failure to adhere to these additional criteria of the ICWA.⁴⁹ Regrettably, the order of preference directive contained in the ICWA has, on occasion, been construed against the goal of protecting the “tribal interest” recognized by the United States Supreme Court to be at the core of the ICWA.⁵⁰

From the tribal viewpoint: Perhaps the area of greatest vulnerability to the “tribal interest” lies in the ability of state courts to avoid transfer of those cases which “presumptively” belong in tribal courts. As written, the ICWA by use of mandatory language, “shall transfer,” directs that a request to transfer be honored upon presentment. Understandably, there is an exception which warrants denial of the request for

⁴¹ 44 Fed. Reg. 67584, 67593 (1979).

⁴² *In re Morgan*, 140 Mich. App. 594, 603, 364 N.W.2d 754, 758 (1985).

⁴³ *In re B.W.*, 454 N.W.2d 437, 444 (Minn. app. 1990) (citing other cases and questioning the qualifications of a tendered expert of Indian heritage from the child’s tribe who was not knowledgeable in tribal customs); *see also State ex rel. Juvenile Dep’t. v. Charles*, 70 Or. App. 10, 688 P.2d 1354 (1984) petition dismissed 701 P.2d 1052 (1985).

⁴⁴ *State ex. rel. Juvenile Dep’t. v. Tucker*, 75 Or. App. 673, 683-84, 710 P.2d 793, 799 (1985) (issue was one of mental illness); *Long v. State*, 527 So.2d 133, 136 (Ala. Civ. App. 1988) (children not living on Indian reservation and not practicing an Indian lifestyle).

⁴⁵ *D.A.W. v. State*, 699 P.2d 340, 342 (Ala. 1985).

⁴⁶ 25 U.S.C. §1912(d)(1988).

⁴⁷ *Id.* at § 1915(a). See also *supra* notes 200-01 and accompanying text.

⁴⁸ *Id.*

⁴⁹ *E.g.*, *State v. Charles*, 70 Or. App. 10, 688 P.2d 1354 (1984) (reversed for failure to show remedial efforts to prevent breakup of Indian family); *In re Bird Head*, 213 Neb. 741, 331 N.W.2d 785 (1983) (reversed for failure to place with extended family member or to otherwise follow placement preferences of ICWA); *In re N.L.*, 754 P.2d 863 (Okla. 1988) (reversed for failure to comply with placement preferences of ICWA). *Compare, In re Robert T.*, 200 Cal. App. 3d 657, 246 Cal. Rptr. 168 (1988) (affirming placement with Indian family located within immediate geographical area).

⁵⁰ *E.g. In re Baade*, 462 N.W.2d 485 (S.D. 1990) (finding that Indian child’s adoptive placement with non-Indian aunt and non-Indian uncle complied with ICWA directive that extended family be given preference).

“good cause,” but this exception has almost grown as large as the initial grant of concurrent jurisdiction.⁵¹ The “tribal interest” is promoted by a closer adherence to the guidelines established by the Bureau of Indian Affairs on the “good cause” issue⁵² and the elimination of the consideration of the child’s “best interests” in resolving transfer requests.⁵³ The “best interest of the child” criteria has been traditionally eliminated from consideration in dealing with jurisdictional issues in child custody matters.⁵⁴

* * *

IV. Conclusion

Protection of the “tribal interest” in Indian children was a primary goal in the enactment of the Indian Child Welfare Act of 1978. State courts have overlooked and denied this “tribal interest.” The recent United States Supreme Court decision in *Holyfield*, however, has helped the legal community refocus its attention toward the purpose of the ICWA.

There still remains a degree of hostility toward tribal involvement. Some of this hostility is linked to the unfortunate situations surrounding each case. Yet there are also unfortunate situations surrounding non-Indian custody adjudications in state courts, and these courts have not generally been criticized because of the unfortunate facts adjudicated in those unpleasant proceedings. On the other hand, tribal courts are sometimes equated with the facts of the cases which may be subject to transfer to those courts. As a result, state courts have found reasons to avoid transfer focusing on the exceptions contained in the ICWA instead of looking at the overall purpose of the ICWA. Granted, it may take some time and experience before the tribal courts and tribal authorities become proficient in dealing with Indian child custody proceedings. The non-Indian community will need to display patience and understanding in coping with the ICWA and its purpose.

To a certain degree, the plight of the tribal courts is like the unemployed newcomer — no one will hire him because he lacks experience, but he can gain no experience because no one will hire him. State courts are hesitant to transfer cases to the tribal courts because they are perceived as lacking the necessary experience to deal with those cases; the tribal courts lay idle, without experience, because state courts avoid transferring cases to them. In addressing this dilemma, the following remarks are helpful:

tribal courts are the very visible standardbearers for charting much of the future of tribal self-determination. . . . [T]hey need greater understanding, growing support, and continued

⁵¹ See *supra* notes 206-07.

⁵² See *supra* notes 209-18.

⁵³ See *supra* notes 219-21.

⁵⁴ The “best interests of the child” is eliminated from consideration in resolving issues under the Uniform Child Custody Jurisdiction Act (UCCJA) and the Parental Kidnaping Prevention Act (PKPA). For a discussion of the relevant criteria in resolving jurisdictional issues, see *Thompson v. Thompson*, 484 U.S. 174, 175 n. 1 and accompanying text (1988).

recognition. . . .⁵⁵

It is a mistake to view the “tribal interest” in the same manner as one would view the interest of a party-litigant, even though the tribe may be relegated to that role in many instances. Instead, the “tribal interest” is a jurisdictional one. As pointed out by the Supreme Court in *Holyfield*, the question is “*who* should make the custody determination concerning these children — not what the outcome of that determination should be.”⁵⁶ The resolution of jurisdictional questions in child custody cases has not traditionally involved the assessment of the “best interest” of the child, and it should not play a role in the resolution of requests to transfer made pursuant to the ICWA. Notwithstanding this conclusion: is it not in the best interest of all concerned, including the child’s, that jurisdictional matters be swiftly and authoritatively resolved, without clinging to over-stretched exceptions such as “good cause” or narrow interpretations of the ICWA that may ultimately fail? The message of *Holyfield* can be no clearer on this point, with the legal community witnessing the successful collateral challenge on a three-year-old adoptive placement.

Much of the legal commentary on the ICWA has focused on helping the practitioner avoid the “legal pitfalls” of the ICWA. While this approach may have some merit, the best way of avoiding the hazards of the ICWA is through the acknowledgment of the “tribal interest.” No doubt in many cases the “tribal interest” may be aligned with all other legitimate interests. There will, of course, be times when the “tribal interest” will stand alone. The ultimate bond, which has yet to be fully attained but which is closer now than ever before, is trust in the tribal courts. This trust already has been acknowledged and extended by the Utah Supreme Court and the United States Supreme Court. As America litigates, the list will grow longer.

⁵⁵ Pommersheim, *The Crucible of Sovereignty: Analyzing Issues of Tribal Jurisdiction*, 31 Ariz. L. Rev. 329, 363 (1989).

⁵⁶ *Holyfield*, 490 U.S. at 53.

F. The Role of the Attorney

KINGSLEY v. STATE

Court of Appeals of Texas, 1987.

744 S.W.2d 191.

* * *

In the spring of 1984, Lynne Marie Breland went to appellant's law office to inquire about placing her unborn child for adoption. Appellant told her he was "certified" to do adoptions and that he knew a couple, Mr. and Mrs. Rosenfeld, that would adopt her child. During the remainder of her pregnancy, appellant gave Miss Breland numerous checks to pay for her rent, groceries, electricity, phone, gasoline, and miscellaneous items such as cigarettes and makeup. Appellant also paid several taxi fares and purchased maternity clothing for Miss Breland. After the child was born, he was adopted by the Rosenfelds.

TEX.PENAL CODE ANN. § 25.06 reads in pertinent part:

§ 25.06. Sale or Purchase of Child

(a) A person commits an offense if he:

- (1) possesses a child or has the custody, conservatorship, or guardianship of a child whether or not he has actual possession of the child, and he offers to accept, agrees to accept, or accepts a thing of value for the delivery of the child to another or for the possession of the child by another for purposes of adoption; or
- (2) offers to give, agrees to give, or gives a thing of value to another for acquiring or maintaining the possession of a child for the purpose of adoption.

(b) It is an exception to the application of this section that the thing of value is:

- (1) a fee paid to a child-placing agency as authorized by law;
- (2) a fee paid to an attorney or physician for services rendered in the usual course of legal or medical practice; or
- (3) a reimbursement of legal or medical expenses incurred by a person for the benefit of the child.

It is appellant's theory that section 25.06 is unconstitutionally vague because the term "legal or medical expenses," contained in the exception to the application of the offense, is not defined in the statute. Appellant also asserts that the statute is overbroad in that it criminalizes the act of assisting a mother in meeting her obligations under section 12.04(3) of the Texas Family Code.

We hold that appellant's vagueness challenge is without merit because appellant's acts constitute the type of conduct which are prohibited under the statute and do not fall under the exception by an ordinary construction of the statutory term "legal or medical expenses." None of the payments to Miss Breland were

to reimburse her for legal or medical expenses which she incurred. It is an essential element of the exception provided in section 25.06(b)(3) that the payment must be a reimbursement for legal and medical expenses incurred. A review of the record in this case reveals that some payments to Miss Breland were for taxi rides, maternity clothes, gasoline, electricity, rent, groceries, cigarettes, and cosmetics; such items are not "legal or medical expenses." Certainly, it would be incredulous to suggest, for example, that the phrase "legal or medical expenses incurred by a person for the benefit of the child" would include payments for cosmetics or cigarettes for the pregnant mother. A person who engages in some conduct that is clearly proscribed by a statute cannot complain of the vagueness of the law as it might possibly be applied to other conduct of that person. *Hoffman Estates v. Flipside, Hoffman Estates, Inc.*, 455 U.S. 489, 494, 102 S.Ct. 1186, 1191, 71 L.Ed.2d 362 (1982); *Parker v. Levy*, 417 U.S. 733, 756, 94 S.Ct. 2547, 2561, 41 L.Ed.2d 439 (1974). For these reasons, and with the clear record in this case, the vagueness contention as to the exception under the statute is without merit. See *Hoffman Estates*, 455 U.S. at 495, 102 S.Ct. at 1191; *Smith v. State*, 478 S.W.2d 518, 520-21 (Tex.Crim.App.1972); *Deeds v. State*, 474 S.W.2d 718, 722 (Tex.Crim.App.1971); *Smith v. Smith*, 720 S.W.2d 586, 597-98 (Tex.App.--Houston [1st Dist.] 1986, no writ); *Al-Omari v. State*, 673 S.W.2d 892, 896-98 (Tex.App.--Beaumont 1983, pet. ref'd).

Appellant's overbreadth complaint reveals a misunderstanding of the statute. Contrary to appellant's assertion, the statute does not prohibit, nor was appellant convicted of, merely financially assisting a mother with providing her child with clothing, food, shelter, and medical care. The statute proscribes giving a thing of value to another for acquiring or maintaining the possession of a child *for the purpose of adoption*. Appellant gave money to Breland in exchange for possession of her child in order to place the child for adoption. It is precisely that activity that the statute was enacted to prevent and that appellant violated. While the *exception* in the statute may be overbroad in certain hypothetical situations, such as what actually constitutes a medical *expense*, appellant has no standing to assert the overbreadth doctrine where, as here, his conduct is within the core of proscribed conduct.

* * *

Since the only error occurred during the punishment stage of the trial, we remand the cause back to the trial court for it to "commence the new trial" in accordance with article 44.29 of the Code of Criminal Procedure.

NOTE

On remand the defendant was sentenced to two years in prison. This was affirmed on appeal. 834 S.W.2d 82 (1992).

From the *Sioux Falls Argus Leader* April 18, 2002

Woman gets 4-year sentence in adoption case

RAPID CITY—A woman accused of accepting money from two couples and an adoption agency in exchange for a promise to place her unborn child has been sentenced to four years in prison.

Robyn Lile-Smith, 23, of Rapid City pleaded guilty to a grand theft charge Feb. 26, the day her trial was scheduled to begin.

In exchange for the plea, prosecutors dropped a charge of perjury stemming from her alleged use of another woman's name to obtain state services.

According to court files, Lile-Smith took almost \$3,000 in food, rent money and medical assistance from two New York couples and an adoption agency in Massachusetts from December 2000 to January 2001. Lawyers for the couples said each lost \$15,000 to \$18,000 in fees.

Prosecutors said Lile-Smith gave birth, but then decided to keep the child.

"I'm really ashamed of what I did," she said. "This has been the worst nightmare of my life."

Lile-Smith, who is married, gave birth to her third child while in jail awaiting disposition of her case.

Judge Thomas Trimble said Lile-Smith became contrite only after she was caught.

"I have found that the key to the ninety-nine is the one -- particularly the one that is testing the patience and good humor of the many. It is the love and the discipline of the one student, the one child, that communicates love for the others. It's how you treat the one that reveals how regard the ninety-nine, because everyone is ultimately a one."

Stephen R. Covey

Chapter Seventeen

TORT LAW IN THE DOMESTIC RELATIONS ARENA

A. Heart Balm Causes of Action

At common law there were at least three causes of action involving the marital relationship — (1) Breach of Promise to Marry, (2) Alienation of Affections, and (3) Criminal Conversation.

These actions were known as “heart balm” causes of action because they exist to soothe or ease (at least, in terms of money damages) the pain of the heart. These causes of action have been under steady attack for the purpose of elimination. Many states have eliminated one or more of these causes of action, either judicially or legislatively. Ironically, the legislation which is targeted at abrogating these causes of action is frequently called “heart balm” legislation. It would be more accurately described as “anti-heart balm” legislation.

South Dakota’s treatment of these three causes of action is found in the next three subchapters.

Less frequently litigated common law torts were for “seduction” of an unmarried woman and a similar cause of action which a father possessed for the seduction of his minor daughter. At common law, a woman’s cause of action for her own seduction was barred by her consent. She could still recover, notwithstanding her consent, if there was fraud or duress. The daughter’s consent, however, was not a defense to the father’s action. *See generally*, Clark, *The Law Domestic Relations in the United States*, section 11.2, at page 387, notes 37 & 38, 2d ed, Student Edition, West Publishing (1988). *See also*, *McAlpin v. Gremmels*, 44 S.D. 373, 184 N.W.4 (1921).

B. Actions Between Unmarried Partners

1. Breach of Promise to Marry & Seduction

The causes of action for “breach of promise to marry” and “seduction” had been codified in South Dakota at SDCL Chapter 21-4. In 1992 the South Dakota Legislature repealed SDCL Chapter 21-4. There is some language in an older case that suggests that the common law causes of action exist in South Dakota separate from the statutory codification. *Vogt v. Aldrich*, 35 S.D. 180, 151 N.W. 428 (1915).

What about gifts that are made “in contemplation of marriage” and then the marriage never takes place? Are those gifts recoverable by the Donor? Yes, according to *Fanning v. Iversen*, 535 N.W.2d 770 (S.D. 1995), a case in which the South Dakota Supreme Court affirmed the trial court’s award of some \$13,775 and title to real estate. The Court made a distinction between the “heart balm” cause of action of “breach of promise to marry” (which had been repealed in 1991) and an action for the recovery of conditional gifts where the donee breaks the engagement.

B. Actions Between Unmarried Partners

2. Transmission of Venereal Disease

There have been a number of cases from other jurisdictions which have recognized a cause of action by an aggrieved unmarried and uninformed partner against the other for the transmission of a venereal disease. See e.g. *Kathleen K. v. Robert B.*, 150 Cal.App.3d 992, 198 Cal.Rptr. 273 (1984) (genital herpes); *Long v. Adams*, 333 S.E.2d 852 (Ga.App. 1985) (genital herpes); *DeVall v. Strunk*, 96 S.W.2d 245 (Tex.Civ. App. 1936) (crabs).

In the event the transmission of the disease is “negligent,” there may be insurance coverage under the homeowners policy of insurance. If the transmission of the disease was as a result of “intentional” conduct, then coverage would typically be excluded. The characterization of the level of misconduct (as either “negligent” or “intentional”) is a fact question, usually reserved for the jury. For a discussion of the general body of law that has been developing in this area, see Note, 31 Boston College Law Review 1209 (1990). Compare *American Family Insurance v. Purdy*, 483 N.W.2d 197 (S.D. 1992) (denying insurance coverage for damages arising out of insured’s “intentional” acts of sexual molestation of four and six year old victims). Many policies today specifically exclude coverage for “STD”s (“sexually transmitted diseases”).

B. Actions Between Unmarried Partners

3. Stalking

KRAMER v. DOWNEY

Court of Appeals of Texas, 1984.
680 S.W.2d 524.

ROWE, Justice.

In this tort action Fred Downey obtained a money judgment and a permanent injunction against Shirley Kramer. Although the parties properly characterized this as being an invasion of privacy case, the specific thrust of Downey's complaint is the harassment he endured almost daily over a number of years from offensive activities engaged in by Kramer to force him to have a personal relationship with her when he desired none. Finding the pleadings and the evidence sufficient to support the money judgment and finding the injunctive relief to be appropriate under the circumstances, we affirm the judgment of the trial court.

Kramer has characterized this action as being "one woman's novel solution to being swept into oblivion." According to her, after Downey interrupted a regular pattern of sexual intimacy with her, she merely "maintained visual contact with him in public places to fill the emptiness in her life." Little of what this "visual contact" entailed is disputed by Kramer; indeed, she maintains that with impunity she had a right to freely express herself by playing a "cat and mouse game" so long as she kept her distance from Downey, always stayed on public property and always skirted arrest by the police. We cannot agree that, by so doing, she shielded herself from civil liability for mental suffering caused thereby to Downey. To the contrary, the rule in Texas is that damages are recoverable for mental suffering (even if unaccompanied by physical suffering) when the wrong complained of is a willful one intended by the wrongdoer to produce mental anguish or from which such result should be reasonably anticipated as a natural consequence. *Brown v. American Transfer and Storage Co.*, 601 S.W.2d 931, 939 (Tex.1980), cert. denied, 449 U.S. 1015, 101 S.Ct. 575, 66 L.Ed.2d 474 (1980); *Fisher v. Carrousel Motor Hotel, Inc.*, 424 S.W.2d 627 (Tex.1967); *Stafford v. Steward*, 295 S.W.2d 665, 667 (Tex.Civ.App.--Eastland 1956, writ dis'm'd by agr.). Invasion of one's right to privacy is such a wrong. *Billings v. Atkinson*, 489 S.W.2d 858 (Tex.1973). Although it has not previously been so held in this State, we now hold that the right to privacy is broad enough to include the right to be free of those willful intrusions into one's personal life at home and at work which occurred in this case. Further, this right to be left alone from unwanted attention may be protected, in a proper case, by injunctive relief. *Hawks v. Yancey*, 265 S.W. 233 (Tex.Civ.App.--Dallas 1924, no writ).

The evidence shows that, when after a brief extra-marital affair Downey told Kramer he did not want to see her anymore, she did not yield to his wishes but instead began a pattern of conduct to thrust herself into his presence and otherwise to disrupt his domestic and professional life. Several days a week, for several years, Kramer would be at Downey's home when he left for work or at his office when he left for lunch or for dinner and would follow him to his destination, always on a motor scooter or bicycle. She followed him as well on trips he made with his wife and children to school during the day and to restaurants in the evening. Often Kramer was observed waiting in the park across the street from the Downey residence or outside the office entrance to the hospital where Downey worked. At many of these times, she was attired in a fashion so unusual as to attract the attention of Downey's acquaintances. Downey's wife, daughter, neighbors and

co-workers witnessed these activities, and some overheard Kramer on occasion make sexually vulgar remarks to Downey. In addition, by devious means, Kramer caused to be delivered to Downey numerous unwanted letters, cards and gifts. Downey testified that Kramer's incessant behavior increasingly caused him to be upset, agitated, depressed and fearful for the safety of himself and his family. He became unable to sleep at night and unable to concentrate at work; finally, he sought psychological counseling.

The jury by its verdict found that Kramer: (1) followed, spied upon and harassed Downey; and (2) tried to force Downey to have a personal relationship with her when he desired none. These actions by Kramer were found to be: (1) a proximate cause of damage to Downey; and (2) an intrusion upon his seclusion or solitude or into his private affairs. Actual damages were found to be in the amount of \$1,000.00. Exemplary damages were assessed at \$25,000.00 of which \$13,500.00 were remitted. The jury also found that an award of money damages alone was not reasonably likely to deter Kramer from her course of conduct, this being tantamount in our opinion to a finding of malice.

* * *

By her twelfth and thirteenth points of error, Kramer complains about the trial court's failure to give any controlling weight to Downey's promiscuity, certain proffered evidence thereon having been excluded and injunctive relief notwithstanding having been granted to him. On these grounds we find no reversible error. We are cited no cases (and have found none through our own research) granting this claimed defense to a perpetrator of a willful tort of the type involved here. Without intending to sanction extra-marital affairs, we decline to hold that Kramer was justified in treating Downey the way she did because Downey's own sexual immorality made him unworthy of judicial relief. Kramer's twelfth and thirteenth points of error are overruled.

* * *

Affirmed.

NOTES

1. In 1993 the South Dakota legislature enacted SDCL 22-19A-1 which makes "stalking" a criminal offense. This became law on July 1, 1993.

2. On July 14, 1993 a criminal complaint was filed under the new "stalking" statute referenced in note 1. It was based upon 3 letters written by the defendant. The letters were received by the victim on July 12, 1993. The background of this case also shows that there was a stalking pattern developed by the defendant since 1978. The defendant was convicted and the South Dakota Supreme Court affirmed in *State v. McGill*, 536 N.W.2d 89 (S.D. 1995). Evidence of defendant's prior stalking conduct, although not a crime when undertaken, was properly admitted by the trial court to establish a "course of conduct."

3. "Stalking" was made the subject of protection orders in a new statutory scheme which parallels South Dakota's existing scheme for domestic violence (located in SDCL 25-10). The new provisions for stalking are found in SDCL 22-19A and will allow for the entry of an immediate *ex parte* order, effective for 30 days, with a subsequent order of protection [after hearing] which may not exceed three years. SDCL 22-19A-12 and 22-19A-11.

4. The trial court was found to have abused its discretion when it entered a protection order against father of children, upon request of grandparents who were serving as legal guardians and custodians of children. The basis for the petition was that father had just been released from prison in Colorado, having served a sentence for sexual assault on a child, and then he moved to the state of South Dakota. Father, who had been ordered to have “no contact” with children by the custody court in Colorado, had made no attempt to contact children and there was no evidence that he had ever in the past engaged in inappropriate sexual conduct directed at his children. Grandparents’ entire case was premised on the fact he had just been released from prison and also that grandparents “had a feeling that [father] would try to contact the children.” In reversing the trial court in *Shore v. Cruz*, 2003 SD 81, 667 N.W.2d 312, the South Dakota Supreme Court stated that “the evidence fails to show overt acts that fall within the definition of stalking in SDCL 22-19A-1.” ¶ 17.

5. There was a hearing with conflicting testimony as to acts of stalking. After making a general finding that stalking had taken place, trial court entered a three year permanent protection order without “checking” certain boxes on standardized form for court orders. The trial court did not indicate which version of the evidence it believed and did not indicate how the evidence met the statutory elements. The South Dakota Supreme Court reversed in *Goeden v. Daum*, 2003 SD 91, 668 N.W.2d 108, stating that “without findings of fact, there is no way to determine the basis for the trial court’s conclusions that stalking had occurred or whether the findings were clearly erroneous.” The Court noted that protection order proceedings were handled in a more expeditious manner due to the fact there are many pro se litigants and a hearing is mandated to take place within 30 days of receiving the petition. “In order to accommodate the litigants, judges tend to relax procedural and evidentiary rules normally applied in other civil or divorce proceedings. The rules of civil procedure, however, should not be relaxed to the point of skipping a crucial element of a court trial involving contested facts. Unless waived, the judge must insure that findings of fact and conclusions of law are clearly entered.” ¶9. As to “how to do this,” the Court continued by saying, “This may be done orally on the record following the hearing, or with a written memorandum, or by filing formal findings of fact and conclusions of law, or by incorporating them into the protection order itself.” In a footnote to the opinion, the Court stated that “waiver” of this requirement may take place “by failing to appear at the trial, by consent in writing filed with the clerk, by oral consent in open court, or by entering into a stipulation of facts for consideration by the court.”

6. Wife, who was involved in a divorce action (and who is an attorney), sought a stalking protection order against her former sister-in-law. The trial court granted wife an *ex parte* temporary order, pursuant to SDCL 22-19A-12. At the protection order hearing, however, the trial court denied the issuance of a protection order and dismissed wife’s suit because the credible evidence failed to show the defendant was guilty of any stalking. Although the facts are interesting, they will not be reproduced here. The wife appealed, but the South Dakota Supreme Court affirmed in *Marks v. Clark*, 2001 SD 122, 635 N.W.2d 278, finding no abuse of discretion by the trial court in its denial of the protection order.

7. The trial court granted the defendant’s motion to dismiss one of three counts of criminal stalking charges based on the assertion that SDCL 22-19A-1(3) was overbroad on its face and also unconstitutionally vague. This portion of the stalking statute makes it an offense for “Any person... [w]ho willfully, maliciously, and repeatedly harasses another person by means of any verbal, electronic, digital media, mechanical, telegraphic, or written communication...” The South Dakota Supreme Court reversed, holding initially that the defendant did indeed have standing to bring the challenge. The Court rejected the idea that this statute violated the First Amendment’s freedom of expression in an impermissibly overbroad manner. The Court also held that the vagueness challenge, which was governed by a due process analysis, failed.

Defendant in this case had notice and an opportunity to be heard prior to the issuance of the civil protection order which prohibited contact in any manner. (The charged offense, which was that defendant telephoned the subject of the protection order, was encompassed by the order which prohibited the defendant from contacting the subject “directly or indirectly, in any manner.”)

8. In *Hobart v. Ferebee*, 2004 SD 138, 692 N.W.2d 509, the trial court entered a stalking order of protection in favor of the plaintiff forbidding the defendant from filing any complaint against the plaintiff with local, state and federal governmental agencies without first paying a \$25 fee and obtaining permission from the circuit court. This order was based on an egregious history of the defendant making complaints against plaintiff with the U.S. Forest Service, the South Dakota Department of Game, Fish and Parks, the Pennington County Planning & Zoning Board, the South Dakota Brand Board, etc. The South Dakota Supreme Court reversed in a 5-0 decision, holding that the trial court’s order is an unconstitutional restraint on defendant’s right of free speech. The right to petition the government for redress is constitutionally protected. ¶ 16. And, even biased and improperly motivated speech is protected by the 1st Amendment. ¶ 17. The Court also observed that some of the defendant’s complaints were treated as legitimate by the various agencies “And for those that were frivolous, the government agencies themselves were suitably equipped to deal with them.” ¶ 22.

9. 2010 legislation enhances and refines “no contact” restrictions between perpetrator and victim of domestic violence/stalking.

HB 1164 refines and enhances provisions relating to “no contact” between one charged with domestic violence, assault or stalking and the victim. A new section has been added to SDCL 22-19A to provide:

SDCL 22-19A-18. Bond-No contract terms-Misdemeanor. If bond for the defendant in any assault or stalking action is authorized, a condition of no contact with the victim shall be stated and incorporated into the terms of the bond. Willful violation of any such no contact provision is a Class 1 misdemeanor.

And SDCL 22-19A-17 (which prohibits contact with victim) amended by adding the additional sentence,

Willful violation of this section is a Class 1 misdemeanor.

And a new section added to SDCL 25-10 to provide:

SDCL 25-10-43. Defendant prohibited from contacting victim prior to court appearance – Violation as misdemeanor. While in custody after arrest for a crime involving domestic abuse, no defendant may have or be permitted any contact or communications, either directly or by means of a third party, with the victim or the family or household members of the victim, until the defendant's initial court appearance or until such contact or communication is specifically authorized by the court. Willful violation of this section is a Class 1 misdemeanor.

10. The 2009 SD Legislature specifically authorizes ex parte protection orders (which are currently authorized to run 30 days) to be extended for an additional period of 30 days by allowing the court to grant a continuance for good cause. The relevant provisions in both the Domestic Violence sub-chapter (SDCL 25-10-7) and the Stalking sub-chapter (SDCL 22-19A-12) are amended.

11. The 2009 SD Legislature specifically clarifies that the trial court has the discretion to “not” order a hearing simply because a petition for protection order has been filed. The relevant provisions in both the Domestic Violence sub-chapter (SDCL 25-10-4) and the Stalking sub-chapter (SDCL 22-19A-10) are amended. This legislation was introduced by the Judiciary Committee at the request of the Chief Justice. The testimony in support of this legislation indicated that the current system is subject to abuse by litigants who become familiar with the system and may invoke the process for harassment. Sometimes petitions are filed which are facially invalid. There are also situations where a petitioner whose petition is dismissed upon hearing may immediately turn around and file another petition which would, under existing law, mandate another prompt hearing.

12. Res Judicata does not preclude court’s consideration of defendant’s conduct prior to previous denial of stalking order of protection. In *White v. Bain*, 2008 SD 52, 752 N.W.2d 203, the trial court granted a stalking order of protection in favor of the plaintiffs against a neighboring property owner on Lake Madison. The plaintiffs first effort to secure an order of protection resulted in a denial but also resulted in the trial court’s oral reprimand against the defendant for her conduct. Evidence showed the defendant had written “bellicose letters” and made harassing phone calls. Subsequently there was a confrontation at plaintiffs’ home where defendant pushed her way into the house. The plaintiffs’ second request for an order of protection was granted. The SD Supreme Court affirmed in a unanimous per curiam opinion. The Court ruled that it was appropriate for the trial court to consider the conduct prior to its previous denial (of a protection order) notwithstanding defendant’s assertion that such was barred by res judicata. The Court also ruled that the statutory definition of “stalking” was satisfied by the defendant’s harassing conduct.

13. Enactment of statutory remedies for stalking is “cumulative” to other remedies and does not bar or limit those remedies. In particular, the 3 year limitation period for a stalking order of protection does not apply to existing permanent injunction. *Stahl v. Pollman*, 2006 SD 51, 716 N.W.2d 794. Due to numerous incidents of harassment and stalking type of activity against the Stahls, a permanent injunction was entered against the defendant Pollman forbidding him from “going upon their property and from going within 600 feet of any location where the Stahls or any of their immediate family members might be located.” ¶ 5. This injunction was entered in 1995. Eventually the defendant served time in the state penitentiary as a result of his stalking activity relating to the Stahls. After the defendant was released from prison in 2005, he filed a motion to vacate the 1995 permanent injunction, arguing that the injunction was, in essence, a stalking protection order, authorized under SDCL 22-19A, and as such was limited by SDCL 22-19A-11 to no more than three years’ duration. [Note, South Dakota’s stalking statutes, found in SDCL 22-19A, were enacted in 1997.] The trial court denied relief to the defendant and the South Dakota Supreme Court affirmed. Observing that the language of SDCL 22-19A-16 provides that “Any proceeding under §§ 22-19A-8 to 22-19A-16, inclusive, is in addition to other civil or criminal remedies,” the SD Supreme Court acknowledged that the remedies provided by the stalking statutes are “cumulative to other available remedies and do not replace those remedies.” Accordingly, “the enactment of the stalking statutes in 1997 did not turn the Stahl’s permanent injunction into a stalking protection order governed by the three year limitation period in SDCL 22-19A-11.” ¶ 15.

14. Stalking protection order reversed and remanded for findings of fact and conclusions of law which show order is warranted. In *Judstra v. Donelan*, 2006 SD 32, 712 N.W.2d 866, the trial court entertained a hearing on Patricia’s 1st request for a stalking order of protection against Michael, but denied her request. During Patricia’s departure from the courthouse that day, she alleged she had an encounter with Michael which prompted her to again seek an order of protection. A hearing on her 2nd petition was held

about 3 weeks later. Completely divergent stories were presented by Patricia and her witness as compared to Michael and his witnesses. The trial court did not enter any formal findings, but granted an order of protection to Patricia. The South Dakota Supreme Court reversed in an unanimous *per curiam* opinion stating that “evidence of stalking ... requires a showing of a series of acts that constitute willful, malicious and repeated harassment that serves no legitimate purpose.” ¶ 8. The trial court was directed on remand to “include background findings, based on evidence presented in both hearings, that allegedly justify the issuance of a stalking order of protection.” ¶ 9. This opinion defers to *Goeden v. Daum*, 2003 SD 91, ¶ 5, 668 N.W.2d 108,110 for the applicable standards of review in South Dakota pertaining to protection order proceedings.

15. Stalking protection order affirmed in situation where neighbor was, *inter alia*, agitated with children riding four-wheelers near his property, but attorney fees not authorize under stalking statutes. In *Schaefer v. Liechti*, 2006 SD 19, 711 N.W.2d 257, the South Dakota Supreme Court upheld the entry of a stalking order of protection against the defendant. The order was sought on behalf of 4 minor children against a neighbor who was bothered by their riding of four-wheelers near his property. The various encounters (which included surveillance through binoculars) between the neighbor and children took place over a 2-3 year period. The request for appellate attorney fees for the successful plaintiffs was denied because the plaintiffs failed to cite any applicable authority which would permit attorney fees under the stalking statutes. The award of appellate attorney fees is authorized under SDCL 15-26A-87.3 only if attorney fees are otherwise authorized.

16. Note – 2006 Legislative Action. SDCL 25-10-12.1, which provides for in-state enforcement of foreign protective orders was amended in 2006. This statute, which had provided for the enforcement of any “domestic violence protective order,” was broadened so as to also provide for enforcement of “any domestic stalking or physical violence protection order.”

17. Legislative update (2007): Clarification of “Crime of Violence” as Cross-Referenced in Stalking Statute. House Bill 1222, enacted by the 2007 Legislature, clarifies the language found in SDCL 22-19A-8 to make clear that physical injury need not be incurred by the victim of a “crime of violence” as a requirement which must be satisfied prior to the issuance of stalking protection order. This legislation was described as a “substantive clean-up bill” in the supporting testimony. This bill clarifies the language which cross-references SDCL 22-1-2(9). Under former version of the statute, some SD courts had required that there actually be physical injury incurred by the victim of a crime of violence. This makes it clear that physical injury is not required – e.g., an attempted assault (without physical injury) and an attempted murder (without physical injury) would serve as an adequate basis for protection order.

18. Legislative update (2007): Stalking and Protection Orders May Now Extend 5 years. The 2007 enactment of House Bill 1117 amends SDCL 25-10-1 and SDCL 22-19A-11 so as to authorize stalking and protection orders to extend for a duration up to 5 years. The previous versions of these statutes permitted the orders to run 3 years.

19. **Petition for Stalking Order of Protection may be filed in a magistrate court with a magistrate judge presiding. (By declaration of emergency, this statute when into effect on 2/20/08, upon approval by the Governor.)** The 2008 legislature amended SDCL 22-19A-9 to provide as follows:

22-19A-9. Filing petition for protection--Venue. A petition for relief under §§ 22-19A-8 to 22-19A-16, inclusive, may be filed in circuit court or in a magistrate court with a magistrate judge presiding. Venue lies where any party to the proceedings resides.

B. Actions Between Unmarried Partners

4. Other

NOTE

In a relationship that never developed into marriage, Marilyn moved in with James and became a tour guide and business manager in Big Thunder Gold Mine, Inc., a corporation in which he was the sole shareholder. She bought 44% of the stock and became a director. Six years after the relationship began, it turned sour and she moved into her daughter's bedroom. He demanded she move back into his bedroom or be fired. Through the creation of a 3rd seat on the board of directors and the naming of his father to that position, she was eventually fired, expelled from the residence and the corporate car was taken away from her. She sued him and the corporation for "wrongful termination" and "sexual harassment." The jury found for Marilyn, awarding her \$25,000. On appeal, the South Dakota Supreme Court (4-1) reversed, holding that she failed to exhaust her administrative remedies by omitting to file a charge with the Division of Human Rights. (Justice Sabers dissented. He pointed out that even if Marilyn had filed a charge with the Division of Human Rights, she could have proceeded into circuit court because the relief she requested could not be granted by the Division — *i.e.* the reversal promotes form over substance, merely upholding the technical requirement of filing the administrative charge first before going into court.) *Montgomery v. Big Thunder Gold Mine, Inc.*, 531 N.W.2d 577 (S.D. 1995).

C. Between Spouses

SCOTVOLD v. SCOTVOLD

Supreme Court of South Dakota, 1941.
298 N.W. 266.

SMITH, Judge.

A husband appeals from a judgment rendered against him in favor of his wife for damages for

personal injuries found to have been caused by his negligence in driving an automobile in which she was a passenger.

We deal with two questions presented by the assignments.

First: Is a civil action maintainable in this jurisdiction between husband and wife for damages for personal tort committed by one against the other? Decision of this question turns upon a determination as to whether the common law rule governing such suits has been abrogated in this state.

Concededly, such an action would not lie at common law. In the leading case of *Phillips v. Barnet*, 1 Q.B.D. 436, wherein a woman sought recovery from her former husband for assault and battery committed during coverture, Mr. Justice Blackburn said, "I was at first inclined to think, having regard to the old procedure and the form of pleas in abatement, that the reason why a wife could not sue her husband was a difficulty as to parties; but I think that when one looks at the matter more closely, the objection to the action is not merely with regard to the parties, but a requirement of the law founded upon the principle that husband and wife are one person."

* * *

The first legislative changes in these incidents of coverture came in 1866. In January of that year the Territorial Legislature adopted the Civil Code. It provided that (with certain limited exceptions) neither husband nor wife has any interest in the property of the other (§ 78); that either husband or wife may enter into any engagement or transaction with the other, or with any other person, respecting property, which either might if unmarried (§ 79); that a husband and wife may hold real or personal property together, jointly or in common (§ 82); that neither husband nor wife, as such, is answerable for the acts of the other (§ 83); and that a conveyance by a married woman has the same effect as if she were unmarried (§ 522). These provisions continue in our law as a part of SDC 14.02.

Then by Chapter 98 of the Session Laws of 1887, it was provided: "That from and after the passage of this act, woman shall retain the same legal existence and legal personality after marriage as before marriage and shall receive the same protection of all her rights as a woman, which her husband does as a man; and for any injury sustained to her reputation, person, property, character or any natural right, she shall have the same right to appeal in her own name alone to the courts of law or equity for redress and protection that her husband has to appeal in his own name alone; * * *."

The foregoing provision was codified as § 2600, C.L. 1887, and was thereafter revised and appeared as s 105, Rev.Civil Code of 1903, in words as follows: "The wife shall have and retain after marriage all the civil and property rights of a single woman. She may buy and sell, receive and convey or otherwise dispose of any real or personal property belonging to her or in which she may have an interest, without joining the name of her husband except as otherwise provided in case of the homestead and for any injury to her reputation, person or property, she may sue in her own name without joining her husband as party plaintiff and in like manner actions founded upon her separate contracts or torts or relating to her individual property may be brought against her without joining the husband as party defendant. * * *"

This section now appears as SDC 14.0207 and is the particular statute upon which the wife predicates her right to maintain this action.

This legislation must be interpreted in the light of certain fixed principles. While the common law is in force in this jurisdiction except where changed by statute or by other expression of the sovereign will,

SDC 65.0103, the rule of strict construction of statutes in derogation of common law does not obtain in this state. Our function is to effectuate the legislative purpose through liberal construction. SDC 65.0202.

Before we analyze the precise contention of the husband, we pause to state certain more or less obvious conclusions which arise from reading this group of statutes. Obviously this legislation deals with more than the mere right of the wife to sue and be sued in her own name. It makes sweeping changes in her substantive rights. By these changes she emerges as a legal personality with the civil rights of the ordinary person. Among those civil rights with which she is clothed by these statutes is the right to protection from bodily harm. SDC 47.0301. That a wrongful invasion of any of these civil rights gives rise to a cause of action in the wife, is the basis of the holding of this court in *Moberg v. Scott*, 38 S.D. 422, 161 N. W. 998, L.R.A. 1917D, 732.

However the husband, in substance, says that granting all of the foregoing conclusions, SDC 14.0207 *supra* does not reveal a legislative intent to grant remedies between husband and wife. It was enacted, says the husband, to place the wife on a plane of equality with the husband in relation to third persons. It is this contention we now consider.

When these statutes are examined to determine the rights and capacities of a married woman, the conclusion is impelled that their cumulative effect is to declare her a legal individual with the right to own and control her own property, including property held with the husband as in common or as joint tenants, and to enter into contracts with others, including her husband. It seems improbable that the Legislature which created such separate civil and property rights, and made possible such transactions between husband and wife, could have intended that one should be without remedy if the other wrongfully invaded those individual property rights or refused to abide by the terms of their mutual engagements. To sustain the husband's contention would require us to hold a wife without remedy at law if the husband breached his contract or so invaded her property rights. We are unable to discern a basis for a holding that the wife has a remedy against her husband for breach of contract or for invasion of property rights but is without a remedy against him for a personal tort. Either the statute grants sweeping remedies to the wife as against her husband, or none. We think it intended to grant the wife rights and remedies as against the world.

More conclusive considerations remain to be stated. As no statute provides that a civil action for personal tort shall not be maintained between husband and wife in this state, before the contention of the husband may be sustained, we must be satisfied that the rule of the common law upon which he relies has not been abrogated. We have seen that that rule rested upon a combination of the incidents of coverture figuratively described as "unity of the spouses." That this fiction "is meeting with constantly diminished recognition" and is not "in all respects logically defensible" was noted by this Court in *Springer v. Swift*, 59 S.D. 208, 239 N.W. 171, 176, 78 A.L.R. 1171. We have now concluded that it cannot be defended. Under a system of law which has stripped the husband of every vestige of common law right in the ownership and control of the property of his wife, and which has completely clothed the wife with civil personal and property rights, as well as with capacity to convey, contract and to sue and to be sued alone, no basis remains for a rule resting on the fiction that the legal personality of the two are merged in that of the husband. That notwithstanding this change of status, substantive reasons may exist, founded upon implied consents incident to the marriage relation, which will defeat causes of action which might arise except for that relation, we have no doubt. However, we are impelled to the conclusion that the common law rule for which the husband contends was effectively abrogated by the statutes which destroyed the incidents of coverture from which it sprang.

* * *

To summarize, we conclude: First, that a civil action is maintainable in this jurisdiction between husband and wife for damages for personal tort committed by one against the other; second, that in point of law, plaintiff was a "guest" of her husband, "without payment for such transportation" and therefore acquired no cause of action against him.

It follows that the judgment of the trial court must be and is, reversed, and the cause is remanded with directions to enter judgment dismissing the complaint on its merits.

All the Judges concur.

NOTES

1. The South Dakota Statutes which deal with "undoing" the "incidents of coverture" are presently found in SDCL 25-2.

2. The abrogation of inter-spousal immunity has been an issue which has received much attention in the courts of all the states. Most of the states have now abrogated inter-spousal immunity, either partially or completely. At the time of the *Scotvold* decision, South Dakota was in the minority, but it is now aligned with the majority view. Many of the recent decisions in the other jurisdictions analyze and resolve the issue in the same manner as the South Dakota Supreme Court did in 1941. See *Townsend v. Townsend*, 708 S.W.2d 646 (Mo. 1986); *Bounds v. Caudle*, 560 S.W.2d 925 (Tex. 1978) (abrogated as to intentional torts only); *Price v. Price*, 732 S.W.2d 316 (Tex. 1987) (abrogated as to all torts).

MOGFORD v. MOGFORD

Court of Civil Appeals of Texas, 1981.
616 S.W.2d 936.

ESQUIVEL, Justice.

This is an appeal of a divorce case in which a cause of action for personal injuries was joined in the trial court. No appeal is taken from that part of the judgment granting the divorce. To our knowledge, it is a case of first impression in this state.

Appellee, Dorothy Mogford, the wife of appellant, Lorenzo Mogford, for thirty-one years, sued for divorce in the district court. At the time of the divorce there were no minor children of the marriage. By her Second Amended Original Petition, appellee joined a cause of action for personal injuries arising out of willful and intentional torts committed upon her person by appellant during the marriage. In her petition, appellee sought \$100,000.00 actual damages and \$100,000.00 in punitive damages. The trial of the cause was to a jury. The jury awarded appellee \$20,000 in damages for injuries and mental anguish caused by appellant's abuse of her. No punitive damages were awarded. The decree of divorce entered by the trial court on August 31, 1979, stated the grounds for the divorce. In answers to special issues presented to the jury, it was found that appellant was guilty of cruel treatment of appellee; that during the marriage appellant had committed adultery; that appellant had willfully and intentionally struck and abused appellee during the

marriage, and that appellee was injured as a result of the willful and intentional acts of appellant. The trial judge also made a division of the community property and entered a corrective judgment nunc pro tunc, so that temporary orders issued during the pendency of the divorce would continue in effect until the appeal was exhausted.

* * *

The district court unquestionably had jurisdiction to consider the divorce case. The amount in controversy also gave the court jurisdiction to consider the personal injury case. Tex.Const. Art. V, § 8, Tex.Rev.Civ.Stat. Ann. art. 1906, §§ 2, 6 (Vernon 1964). A plaintiff in his or her petition may join as independent claims any or as many claims either legal or equitable or both as he may have against the opposing party. Tex.R.Civ.P. 51(a); 1 Tex.Jur.3d Actions § 52 (1979). Further, a party may state as many separate claims as he or she has regardless of consistency and whether they are based on legal or equitable grounds or both. Tex.R.Civ.P. 48; 1 Tex.Jur.3d Actions § 52, (1979). The courts favor the avoidance of a multiplicity of suits. The courts favor resolution in one suit of all matters existing between the parties and arising out of the same transaction. *Parkhill Produce Company v. Pecos Valley Southern Railway Company*, 348 S.W.2d 208 (Tex.Civ.App. San Antonio 1961, writ ref'd n.r.e.). Appellant's remedy if he did not want both causes of action to be considered at the same trial, was to file a motion for severance. Any claim against a party may be severed and proceeded with separately. Tex.R.Civ.P. 41; 1 Tex.Jur.3d Actions § 77 (1979). This refers to a claim that is a severable part of a controversy that involves more than one cause of action. *Rose v. Baker*, 143 Tex. 202, 183 S.W.2d 438 (1944). It is obvious from the record before us that the divorce action and the claim for personal injuries were set out in separate counts. Appellant's failure to request a severance of the two causes of action waived his right to have this matter reviewed on appeal. *Lewis v. Texas Employers' Insurance Association*, 151 Tex. 95, 246 S.W.2d 599 (1952). In light of this, appellant's point of error no. 2 is overruled.

* * *

Appellant's Fifth Point of Error.

THE TRIAL COURT ERRED IN RENDERING JUDGMENT IN FAVOR OF APPELLEE
AND AGAINST APPELLANT FOR PERSONAL INJURIES TO APPELLEE IN THE
AMOUNT OF \$20,000.00 BECAUSE THE JURY AWARD THEREOF WAS AGAINST
THE GREAT WEIGHT AND PREPONDERANCE OF THE EVIDENCE AND
THE OBVIOUS RESULT OF PASSION AND PREJUDICE.

In special issue number five, the district court instructed the jury properly as to the elements of damage which could be considered. These elements included physical pain and mental anguish which might have been suffered since August 2, 1975, if any, and physical pain and mental anguish which in all reasonable probability would be suffered by appellee in the future. Such elements are proper in a suit for personal injuries. 17 Tex.Jur.2d Damages s 116 (1969). Whether or not a verdict is excessive is to be considered in the light most favorable to the award of the jury, or so excessive as to shock a sense of justice in the minds of the appellate court. *Green v. Hale*, 590 S.W.2d 231 (Tex.Civ.App. Tyler 1979, no writ); *J. A. Robinson Sons, Inc. v. Ellis*, 412 S.W.2d 728 (Tex.Civ.App. Amarillo 1967, writ ref'd n.r.e.); *Texas Consolidated Transportation Company v. Eubanks*, 340 S.W.2d 830 (Tex.Civ.App. Waco 1960, writ ref'd n.r.e.); *Green v. Rudsenske*, 320 S.W.2d 228 (Tex.Civ.App. San Antonio 1959, no writ). Evidence introduced at trial shows that appellee was struck in the ear so that it hurt for a month afterward. It also shows that she was threatened with being struck by a fence stay; that she was kicked on the ankles and legs on numerous occasions; that she was often pushed to the ground and against the house with great force. Appellee was verbally abused and threatened on many occasions. Testimony shows that she was whipped with a rope, bailing wire and other instruments, and that she feared for her safety. At times appellant threw

rocks and sticks at appellee until she cried. Evidence concerning the conviction of appellant for the rape of his daughter along with evidence of time served in the penitentiary for this crime were properly not allowed into evidence. In our opinion, the jury award was clearly not the result of passion or prejudice but rested squarely upon conscientious and sober deliberations of a duly impaneled jury. We find no merit to appellant's point of error number five, and it is accordingly overruled.

* * *

We find no reversible error in the decision of the trial court, and affirm its judgment.

S.A.V v. K.G.V

Supreme Court of Missouri, 1986.

708 S.W.2d 651, 54 USLW 2584.

RENDLEN, Judge.

This appeal concerns Missouri's longstanding rule of interspousal immunity for tort actions, discussed at length in *Townsend v. Townsend*, 708 S.W.2d 646 (1986). This case differs from *Townsend* in that appellant charges her husband with negligence as well as an intentional tort. We now decide if spousal immunity should continue as a bar to negligence actions or whether it too should be removed as we have done for the intentional tort in *Townsend*. For reasons hereinafter discussed we hold that the archaic doctrine of spousal immunity is no longer available as a bar to negligence actions and the cause is remanded for reinstatement of plaintiff's (appellant's) petition.

The trial court dismissed appellant's petition against respondent in which it was alleged that during the marriage, respondent contracted herpes praeputialis and transmitted the disease to appellant. Appellant's three-count petition alleges that respondent willfully, recklessly and negligently transmitted the disease to appellant without informing her of his infection. Count III concludes with the allegation "[t]hat [d]efendant's negligence ... is the proximate and direct cause of [p]laintiff's contracting this disease, herpes, and thereby suffering injury and damage...."

* * *

It is generally argued that total abolishment of interspousal immunity will clog courts with trivial suits, disrupt family harmony and result in collusive claims. Respondent in the present case is particularly concerned that tort claims will be duplicative of property settlements and judgment obtained in dissolution of marriage proceedings.

The "flooding" of the courts argument collides with the requirement that courts must provide a forum to redress legitimate and compensable injuries. Further, that argument has been tested and apparently found wanting in thirty jurisdictions which have totally abolished the doctrine of interspousal immunity.¹ Particularly instructive is a case decided by the Supreme Court of New Jersey which first curtailed the doctrine with respect to negligent operation of motor vehicles, *Immer v. Risko*, 56 N.J. 482, 267 A.2d 481

¹ Alabama, Alaska, Arkansas, California, Colorado, Connecticut, Idaho, Indiana, Iowa, Kentucky, Maine, Maryland, Michigan, Minnesota, Nebraska, New Hampshire, New Jersey, New Mexico, New York, North Carolina, North Dakota, Ohio, Oklahoma, Pennsylvania, South Carolina, South Dakota, Tennessee, Washington, West Virginia, Wisconsin. See *Renfrow v. Gojohn*, 600 S.W.2d 77, 80-81 (Mo.App.1980); Annot. 92 A.L.R.3d 901 (Supp.1985).

(1970) and thereafter abolished the doctrine entirely. *Merenoff v. Merenoff*, 76 N.J. 535, 388 A.2d 951 (1978). Not only was the New Jersey Supreme Court undeterred in expanding its earlier decision, but, after eight years of experience in an area where potential for fraudulent claims is said to be highest, that court found the "adversary system ... equal to the task of screening out fraudulent claims." *Id.* 388 A.2d at 961.² A similar argument is made that removal of the bar will lead to a rash of claims of the "unwanted kiss" and "rolling pin" variety.³ It cannot be said it is beyond the capacity of our courts to examine and on a case-by-case basis define or adjust the duty of care required between married persons to accommodate the "give-and-take" of married life. It seems remarkably inconsistent to argue that connubial bliss will be disrupted to the breaking point by a spouse filing a tort action and in the same breath argue against removing the spousal immunity doctrine because such couples might unite for purposes of collusive claims.

* * *

The judgment is reversed and the cause remanded to the trial court with direction to reinstate plaintiff's petition.

NOTES

1. In *Gassman v. Gassman*, 296 N.W.2d 518 (S.D. 1980), the wife joined an "assault" claim in her suit for divorce. She was denied any separate money damages by the trial court on the tort claim. The Supreme Court affirmed on this issue due to the wife's lack of damages. Nonetheless, the Court acknowledged the propriety of one spouse being able to sue the other in a civil suit for damages caused by the spouse's tortious conduct. *Id.* at 522.

2. Talk about making a divorce complicated! Consider the following case: In *Kroupa v. Kroupa*, 1998 SD 4, 574 N.W.2d 208 (S.D. 1998), the wife not only filed for divorce, but she also filed another action against her mother-in-law, husband and three sons. In this other action, she asserted claims of fraud, conversion, civil assault and battery, and for an accounting. The husband's family had a 12,000 acre farming and ranching operation. The parties' three sons had become involved in the operation. The wife's action against the mother-in-law, husband, and sons basically arose out of a claim relating to her interest in the farming and ranching operation. The trial court consolidated the two cases (the divorce case and the case involving the other parties). When called for trial, the parties to the lawsuits reached a settlement, but there was a slight problem — not included in the lawsuit were two daughters of the parties who possessed an interest in a trust which existed on 573 of the 12,000 acres. Nonetheless, those who were parties reached a settlement and attempted to make that settlement "contingent" upon the daughters' acquiescence. The trial court also recognized at the time that the settlement was contingent on that hoped-for acquiescence. Subsequently, one of the daughters brought an action to set aside the judgment after the final decree and set aside the judgment as it pertained to the daughters and their interest in the trust assets. The trial court

² In automobile cases, "the full glare of truth may be the best antidote for fraud." *Merenoff v. Merenoff*, 76 N.J. 535, 388 A.2d 951, 961 (1978). "Insurance companies might in appropriate circumstances reveal their status in the case, treating the covered defendant-spouse as a hostile witness in order to attack credibility and show that the husband and wife may be scheming to gain a recovery against the insurance company." *Id.*

³ These expressions are shorthand descriptions of those instances when a spouse allegedly subjects the other to minor physical abuse, possibly constituting trivial torts, and often were alleged as general indignities which, when accumulated, might be considered as grounds for divorce under the old "divorce" statutes. Section 452.010, RSMo 1969 (repealed Laws of Mo.1973, p. 470).

recognized that it lacked jurisdiction over the daughters and the trust estate in the earlier proceeding. As to the remainder of the judgment, the trial court left it intact. This was affirmed on appeal.

3. In *Brennan v. Orban*, 145 N.J. 282, 678 A.2d 667 (N.J.Sup.Ct. 1996), the wife included a marital tort claim together with her claim for a divorce. She demanded a jury trial on the marital tort claim which the trial court denied. The New Jersey Supreme Court reversed on the jury trial issue, holding that there was sufficient divisibility of the claims to permit a jury trial on the tort claim.

4. In *Missouri ex rel. M.D.K. v. Dolan*, 968 S.W.2d 740 (Mo.Ct.App.Eas.Dis. 1998), the trial court severed the wife's tort claim (for the transmission of a sexually transmitted disease). In following the lead of opinions from the Utah Supreme Court and the Minnesota Court of Appeals, the Missouri appellate court affirmed, holding that such would not run the risk of allowing a "double recovery" for the wife. The court noted that the husband's misconduct can be such as to *both* be considered in the dissolution of marriage action and to *also* furnish the basis for a separate tort claim.

PICKERING v. PICKERING

Supreme Court of South Dakota, 1988.
434 N.W.2d 758.

WUEST, Chief Justice.

Paul S. Pickering (Paul), brought an action against his estranged wife, Jody M. Pickering (Jody), and her paramour, Thomas Kimball (Tom). Paul's complaint alleged alienation of affections and tortious interference with a marital contract against Tom, fraud and deceit and negligent misrepresentation against Jody, and intentional infliction of emotional distress against both Jody and Tom. The trial court granted summary judgment in favor of Jody and Tom on all causes of action except the cause of action alleging alienation of affections against Tom. From the order of the trial court, Paul appeals. Tom raises by notice of review that part of the trial court's order denying his motion for summary judgment on the cause of action alleging alienation of affections. We affirm.

Paul and Jody were married on February 14, 1981. Sometime thereafter, Jody became acquainted with Tom at work and the two developed a platonic relationship.

In January, 1984, Jody and Tom traveled together to Tampa, Florida. Jody desired to go to Tampa to visit a friend, but wanted a traveling companion with whom she could share the expenses of the trip. Since Tom previously resided in Tampa, Jody asked him if he would be interested in accompanying her. The two spent very little time together in Florida.

During and after the trip, Tom perceived that Jody was unhappy. He approached this topic with her by asking if she was "ninety-nine percent happy with her life." Jody responded that she wasn't even ninety percent happy and indicated that romance was no longer present in her marriage. Although Jody expressed that she loved Paul, she felt that her affection for him was not as strong as it previously had been.

In late February, 1984, Tom mentioned to Jody that he had written a song about their trip to Florida and invited her to his apartment to hear it. Jody and Tom arranged to go to Tom's apartment after work.

After they arrived at the apartment, the two sat on the floor together and began kissing, which ultimately led to sexual intercourse. Thereafter, their sexual liaisons continued for several months until Jody broke off the relationship because of her feelings of guilt.

Tom and Jody subsequently resumed and discontinued their relationship several times. Although Jody usually broke off relations with Tom out of her overwhelming sense of guilt, she always initiated the resumption of their relationship because of her deep affection for Tom and her desire to be with him.

Jody again broke off her relationship with Tom in January, 1985. Shortly thereafter, she discovered that she was pregnant. She was certain that Tom was the father of the child she was carrying because sexual relations between her and Paul had been infrequent. After Jody learned she was pregnant, she seduced Paul and had sexual intercourse with him. Jody wanted Paul to believe he was the child's father. She also desired to avoid hurting Paul and to preserve their marriage. Several weeks later, Jody indicated to Paul that she was experiencing symptoms of pregnancy. A home pregnancy test confirmed these "suspicions." Paul was surprised by the test results, but he was nonetheless pleased by them. In fact, he was so ecstatic about Jody's being pregnant that he "shouted it to the world."

Two months after the advent of her pregnancy, Jody again resumed her sexual relationship with Tom and continued it until two weeks prior to the birth of her daughter. During this time, Tom was under the impression that Jody was pregnant with Paul's child. Jody gave birth to a daughter on September 15, 1985. She and Tom continued to see each other, but they did not resume their sexual relationship until nearly two months had passed. Although Jody maintained her silence about the child's paternity following its birth, it was during this period of time that Tom noticed a family trait in the baby's toes. He then confronted Jody about the paternity of the child and she admitted that Paul was not the father and that he was.

Upon learning this, Tom insisted that he be responsible for raising the child and that Paul be immediately notified of the child's true paternity. Jody hesitated to tell Paul that he was not the child's father because she did not want to hurt him, but she finally disclosed this fact to him on January 21, 1986. Subsequent paternity testing confirmed that Tom was the father of the child.

Paul and Jody attempted to reconcile their marriage and visited a marriage counselor. This attempt, however, was unsuccessful and Jody and the baby moved into a separate apartment.

On July 29, 1986, Paul commenced a suit for divorce against Jody and the present action against Jody and Tom alleging intentional infliction of emotional distress, fraud and deceit, negligent misrepresentation, tortious interference with a marital contract, and alienation of affections. Motions for summary judgment were submitted by defendants and plaintiff on May 1, 1987, and May 15, 1987, respectively. After a hearing, the trial court granted summary judgment in favor of Jody on all causes of action and in favor of Tom on all causes of action except alienation of affections. Paul's motion for summary judgment was denied. It is from these orders that Paul and Tom now appeal.

* * *

We first address the trial court's granting summary judgment in favor of Jody and Tom on the cause of action alleging intentional infliction of emotional distress. We believe the tort of intentional infliction of emotional distress should be unavailable as a matter of public policy when it is predicated on conduct which leads to the dissolution of a marriage. *See Richard P. v. Superior Court* (Gerald B.), 202 Cal.App.3d 1089, 249 Cal.Rptr. 246 (1 Dist.1988); *Haldane v. Bogy*, 208 Cal.App.2d 302, 25 Cal.Rptr 392 (2 Dist.1962); *Van*

Meter v. Van Meter, 328 N.W.2d 497 (Iowa 1983) (McCormick, J., dissenting); *Hafner v. Hafner*, 135 N.J.Super. 328, 343 A.2d 166 (Law Div.1975); *Artache v. Goldin*, 133 A.D.2d 596, 519 N.Y.S.2d 702 (2 Dept.1987); *Baron v. Jeffer*, 98 A.D.2d 803, 469 N.Y.S.2d 815 (2 Dept.1983); *Weicker v. Weicker*, 22 N.Y.2d 8, 290 N.Y.S.2d 732, 237 N.E.2d 876 (1968). Furthermore, the law of this state already provides a remedy for this type of claim in the form of an action against the paramour for alienation of affections.

We next examine Paul's allegation of fraud and deceit against Jody. Paul contends that Jody intentionally kept him "in the dark regarding the illicit affair and the true paternity of the child" and caused him to "profess to his friends, family, and his church" that he was the child's natural father. As a result of these declarations, Paul suffered "untold humiliation, embarrassment, and emotional scarring."⁴

We need not determine whether Paul has established a prima facie case on this tort because we conclude that his action for fraud and deceit also should be barred as a matter of public policy. Although we agree with Paul that his allegations normally would suffice to state a cause of action for fraud,⁵ we believe the subject matter of this action is not one in which it is appropriate for the courts to intervene.

The exact issue that now confronts us was addressed by the California Court of Appeal in *Richard P. v. Superior Court* (Gerald B.), 202 Cal.App.3d 1089, 249 Cal.Rptr. 246 (1 Dist.1988). The court barred the action on the basis of public policy, stating:

Broadly speaking, the word "tort," means a civil wrong, other than a breach of contract, for which the law will provide a remedy in the form of an action for damages. It does not lie within the power of any judicial system, however, to remedy all human wrongs. There are many wrongs which in themselves are flagrant. For instance, such wrongs as betrayal, brutal words, and heartless disregard of feelings of others are beyond any effective legal remedy and any practical administration of the law. To attempt to correct such wrongs or give relief from their effects "may do more damage than if the law leaves them alone."

Id. 249 Cal.Rptr. at 249 (quoting *Stephen K. v. Roni L.*, 105 Cal.App.3d 640, 642-43, 164 Cal.Rptr. 618, 619 (2 Dist.1980)) (citations omitted). The court continued:

We conclude here that any wrong which has occurred as a result of [the defendant's] actions is not one that can be redressed in a tort action. We do not doubt that this lawsuit emanated from an unhappy situation in which the real parties in interest suffered grief. We feel, however, that the innocent children here may suffer significant harm from having their family involved in litigation such as this and that this is exactly the type of lawsuit which, if allowed to proceed, might result in more social damage than will occur if the courts decline to intervene. "We do not believe that the law should provide a basis for such interfamilial warfare."

⁴ In his complaint, Paul also sought recovery of maternity and child care expenses incurred by him. The trial court granted Paul's motion for summary judgment as to these expenses and allowed him to recover from Jody and Tom \$2893.85 plus interest amounting to \$650. None of the parties appeal this portion of the trial court's judgment.

⁵ The essential elements required to sustain an action for fraud include (1) a false representation made as a statement of fact; (2) knowledge (or recklessness) by the party making the representation that it is untrue; (3) an intention that the representation should induce the other party to act; and (4) reliance on the representation to the detriment of the innocent party. *Sperry Corp. v. Schaeffer*, 394 N.W.2d 727, 730 (S.D.1986).

Richard P., 249 Cal.Rptr at 249 (citation omitted).

We find the reasoning of the court in *Richard P.* persuasive. Allowing Paul to maintain this cause of action may cause Jody's and Tom's daughter to suffer significant harm. This innocent party, who is now three years old, should not be subjected to this type of "interfamilial warfare." We are not unsympathetic for Paul because of the embarrassment and humiliation he suffered. Any attempts to redress this wrong, however, may do more social damage than if the law leaves it alone. We hold that the fraud and deceit alleged by Paul is not actionable because public policy would not be served by authorizing the recovery of damages under the circumstances of the present case. Summary judgment in favor of Jody, therefore, was appropriate.

In his third cause of action, Paul contends that Jody negligently misrepresented to him that he was the child's father. Paul, however, mistakenly sets forth a cause of action that is inapplicable to the facts of the present case. The tort of negligent misrepresentation occurs when in the course of a business or any other transaction in which an individual has a pecuniary interest, he or she supplies false information for the guidance of others in their business transactions, without exercising reasonable care in obtaining or communicating the information. Restatement (Second) of Torts s 552 (1977). *See also Moore v. Kluthe & Lane Ins. Agency*, 89 S.D. 419, 234 N.W.2d 260 (1975). Because Paul's complaint did not arise from a commercial or business setting and because no pecuniary injury was suffered, summary judgment was properly entered in favor of Jody.

The fourth cause of action we address is characterized by Paul as tortious interference with a marital contract which he asserts against Tom. In his brief, Paul invokes an analogy to an action for intentional interference with the performance of a contract in a commercial setting. We believe that the cause expressed is more accurately characterized as one for alienation of affections, a claim with which we deal later, and hold that the trial court did not err in granting summary judgment in favor of Tom on this issue.

We find no South Dakota case that has held the tort of intentional interference with a contract to be available as a cause of action in situations arising out of a marital relationship and further note that other courts have also refused to recognize this cause of action in similar settings. *See Howton v. Avery*, 511 So.2d 173 (Ala.1987); *Norris v. Moskin Stores, Inc.*, 272 Ala. 174, 132 So.2d 321 (1961); *Arnac v. Wright*, 163 Ga.App. 33, 292 S.E.2d 440 (1982); *Kunau v. Pillers, Pillers & Pillers, P.C.*, 404 N.W.2d 573 (Iowa App.1987). Those courts held the actions alleging tortious interference with a marital contract were really actions for alienation of affections, a tort which had been abolished in their respective jurisdictions. The courts refused to allow these attempts to circumvent the judicially or legislatively abolished causes of action by disguising the suits as other types of torts. Although this state has not abolished the tort of alienation of affections, we also decline plaintiff's invitation to acknowledge this inventive cause of action. We see no reason to recognize an essentially repackaged cause of action that already has been specifically pleaded.

Paul's final cause of action which he asserts against Tom is alienation of affections. Unlike the other causes of action brought by Paul, this one presents genuine issues of material fact that are appropriate for trial. Tom's motion for summary judgment on this issue, therefore, was properly denied.

This court has previously set forth the following elements necessary to sustain a claim for alienation of affections: "(1) wrongful conduct of the defendant; (2) loss of affection or consortium; and (3) a causal connection between such conduct and loss." *Pankratz v. Miller*, 401 N.W.2d 543, 546 (S.D.1987); *Hunt v. Hunt*, 309 N.W.2d 818, 820 (S.D.1981). In *Pankratz*, we stated:

Consortium is a right growing out of the marital relationship. This term includes the right of either spouse to the society, companionship, conjugal affections, and assistance of the other. A loss or impairment of any such elements will sustain an action for alienation of affections. However, if it appears there was no affection to alienate, recovery is precluded.

Pankratz, 401 N.W.2d at 546 (citations omitted). Since an action for alienation of affections is based on an intentional tort, the defendant's actions must have been calculated from the outset to entice the affections of one spouse away from the other. *Id.* at 548-49. It is not enough that the defendant should have known that continuing the affair might contribute to the diminution of a spouse's affections, where that spouse's affections for the other were alienated before the affair began. *Id.* at 548.

In the present case, a genuine issue of material fact exists as to whether Tom acted purposefully to entice Jody's affections away from Paul. Whether Jody held any affection for Paul prior to the start of her relationship with Tom is also an issue of material fact. Because these factual issues are best determined by a jury, summary judgment on this cause of action was properly denied.

Paul also contends that the trial court dismissed his causes of action on the basis of spousal immunity from tort liability. We note that the doctrine of interspousal immunity in tort actions has been abolished in South Dakota. *See Aus v. Carper*, 82 S.D. 568, 151 N.W.2d 611 (1967); *Scotvold v. Scotvold*, 68 S.D. 53, 298 N.W. 266 (1941). Because Paul's assertion is not supported by the record, we find it totally lacking merit.

The order of the trial court granting summary judgment in favor of Jody and Tom on all causes of action except alienation of affections is affirmed.

MORGAN, J., concurs.

HENDERSON, SABERS and MILLER, JJ., concur in part and dissent in part.

HENDERSON, Justice (concurring in part, dissenting in part).

First, I concur in the majority opinion's expression, as buttressed by decisional law in this state, that the doctrine of interspousal immunity in tort actions has been abolished in this state. Therefore, each tort must be individually assessed as to its merit. *Aus v. Carper*, 82 S.D. 568, 151 N.W.2d 611 (1967). In this case, Solomon, in his finest hour, would have difficulty in assessing the propriety of the cause of actions pleaded. Here, we have a love triangle which was formed in Sioux Falls, our largest city. Social disorder and pregnancy ensued. Grief and sorrow spew into the courts. Now, lacking the wisdom of Solomon, we must adjudicate to determine a just result.

Secondly, it appears that this is a second tort action in which this particular lawyer has shotgunned a pleading with multiple causes of action, some of which are in total conflict with one another in theory, and both within the same appellate time frame. *French v. Dell Rapids Hosp.*, 432 N.W.2d 285 (S.D.1988).

Third, the cause of action for alienation of affections is alive in South Dakota per the special concurrence in *Hunt v. Hunt*, 309 N.W.2d 818, 822 (S.D.1981). As the writer of said decision, which was joined in by then Chief Justice Roger Wollman, I would have abolished the alienation of affections action in this state which is of common-law origin and exists independent of any statute. *Hunt*, 309 N.W.2d at 820.

Criminal conversation, per *Hunt*, was abolished in this state as a tort. We noted in *Hunt* that adultery in South Dakota was statutorily decriminalized. It would appear that the creativity of the pleader in this case, on behalf of plaintiff, seeks to perhaps skirt the holding in *Hunt*, insofar as the criminal conversation tort abolition is concerned.

Fourth, I concur, and for the reasons stated by the majority opinion in its holdings, on tortious interference and fraud and deceit.

Fifth, on alienation of affections, for all of the reasons set forth in my writing in *Hunt*, I respectfully dissent to the majority writing.

This leaves, so far as this Justice is concerned, one available tort action for the plaintiff-appellant to pursue, and that is the tort of intentional infliction of emotional distress. Under my theory, there would be no duality of recovery or overlapping of damages if this case were tried strictly upon intentional infliction of emotional distress. However, I would restrict a survival of action in Paul (husband) against Kimball (lover); thereby, I adopt the public policy arguments insofar as these arguments apply regarding Paul (husband) suing Jody (wife). Hence, I would hold that Paul could sue, under this tort theory, Kimball (lover) who is not within the family. In my opinion, where man and wife are involved in a marriage relationship, there could always exist a tort for intentional infliction of emotional distress where they had an argument. It could be over the family dog, who takes out the garbage, who forgot to pay the bill, or who is spending too much money. In other words, the law should not provide a basis for interfamilial warfare between husbands and wives where our courts would be flooded with litigation. Kimball (lover) was not the husband of Jody. He was the interloper. I am satisfied that a showing has been made that the conduct appears to be outrageous and with an intent to inflict severe emotional distress; furthermore, that it was the intention of the acts to perpetrate and cause great injury upon plaintiff. From these actions, an extreme emotional response was born in the mind and body of plaintiff-appellant. Surely, it is a question of fact under the guidelines of *Wilson v. Great N. Ry. Co.*, 83 S.D. 207, 212, 157 N.W.2d 19, 21 (1968).

Therefore, I respectfully concur in part and dissent in part.

SABERS, Justice (concurring in part and dissent in part).

The trial court determined that there were no genuine issues of material fact to be decided against Jody and granted her motion for summary judgment on all causes of action. Obviously, there are genuine issues of material fact concerning intentional infliction of emotional distress and fraud and deceit. Therefore, the trial court erred and the majority affirms that error. *Bego v. Gordon*, 407 N.W.2d 801 (S.D.1987); *Trapp v. Madera Pacific Inc.*, 390 N.W.2d 558 (S.D.1986); *Wilson v. Great Northern Ry. Co.*, 83 S.D. 207, 157 N.W.2d 19 (1968).

After becoming pregnant with Tom's child, Jody seduced Paul and convinced him that he was the father of her unborn child. This led to Paul's public humiliation and embarrassment and clearly raised sufficient jury questions as to fraud and deceit and intentional infliction of emotional distress. This is not seriously disputed in the majority opinion. Despite this, the majority opinion states:

We are not unsympathetic for Paul because of the embarrassment and humiliation he suffered. Any attempts to redress this wrong, however, may do more social damage than if the law leaves it alone. We hold that the fraud and deceit alleged by Paul is not

actionable because public policy would not be served by authorizing the recovery of damages under the circumstances of the present case. Summary judgment in favor of Jody, therefore, was appropriate.

It is not necessary for the majority opinion to "authorize the recovery of damages" under these circumstances. The legislature already performed that task by enacting SDCL 20-10-1 (liability for damage caused by deceit) and SDCL 20-10-2 (acts constituting deceit). Neither statute prohibits a person from recovering damages for deceit from either a spouse or an ex-spouse. In view of the statute permitting recovery and the absence of any statutory prohibition, how can the majority deny recovery on an unexpressed public policy? If recovery is denied, what is the beginning and what is the end of the policy or rule? The majority is clearly overstepping its bounds and usurping for itself the rightful power and tasks of the legislature.

In this context, it is interesting to note that the trial court granted Paul recovery against Tom for medical costs and expenses in the amount of \$2,893.85, plus interest of \$650.00, and granted Tom indemnity against Jody for one-half of that amount. Although neither Tom nor Jody appealed from that judgment, it is interesting to note that the majority's concern over "interfamilial warfare" was not sufficient to prevent that recovery also and the indemnity based thereon.

MILLER, J., joins in this special writing and I am authorized to so state.

NOTES

1. May an ordinary "assault and battery" civil claim be pursued by one spouse against the other after *Pickering*? Ever wonder why spouses are asked to release any and all claims they have against each other when a separation agreement is signed? Are such releases effective to preclude claims for tortious conduct after the divorce? These questions and more are addressed in the case discussed in the next note.

2. In *Henry v. Henry*, 534 N.W.2d 844 (S.D. 1995), H continued to harass W after the divorce. H sent W a photo of a grave dug by H for W in H's basement. H sent W a videotape of World War II Nazi torture techniques, and H discharged a pistol in W's direction several times. W brought an action against H for Intentional Infliction of Emotional Distress and for Assault and Battery. The trial court granted H summary judgment, relying on *Pickering v. Pickering*, 434 N.W.2d 758 (S.D. 1988) (which holds that conduct which serves as grounds for the dissolution of a marriage cannot also be utilized as a basis for a cause of action for intentional infliction of emotional distress). The South Dakota Supreme Court reversed, recognizing that *Pickering* only relates to conduct *prior to* the divorce. In *Henry* the W had also, at the time of the divorce, released H of any claims she might have "arising out of the marital relation." The release clearly barred any claims W might assert based on conduct of H *prior to* the divorce, but *not* claims arising after the divorce. Nonetheless, the dictum in *Henry* suggests that claims for assault and battery occurring during the marriage would not be barred by *Pickering*.

3. The wife's claim for "intentional infliction of emotional distress" was tried to a jury upon remand in the *Henry* case which is referenced in the preceding note. The jury awarded the wife \$50,000 in punitive damages, but zero in compensatory damages. Wife moved for a new trial and the trial court sustained the wife's motion. The grant of a new trial was affirmed by the SD Supreme Court in *Henry v. Henry*, 2000 SD

4, 604 N.W.2d 285, with the Court recognizing that the jury had “patently believed Lois has been the victim of outrageous misconduct.” Under the appropriate SD standard which the Court followed, “a new trial is an appropriate remedy when it appears that ‘the jury has palpably mistaken the rules of law by which damages in a particular case are to measured.’” The opinion affirming the grant of a new trial was unanimous.

4. In the *Pickering* case, three justices (none of whom remain on the court today) believed that the husband (Paul) should not be able to bring an action against the wife (Jody) because of “public policy” reasons which centered on the innocent child. On this issue, one may wish to contrast the case of *Doe v. Doe*, 122 Md.App. 295, 712 A.2d 132 (Md.App. 1998), wherein the Maryland Court of Special Appeals considered a case with facts quite similar to *Pickering*. Included with his divorce action, husband brought claims of fraud and intentional infliction of emotional distress. These claims were based on the wife's alleged deception and misrepresentation as to his paternity of twins born during the marriage. The trial court dismissed the claims on public policy grounds surrounding the “best interests of the children.” The Special Appeals Court reversed, noting that discord, distrust and suspicion had already entered the marital home and there was already an absence of domestic tranquility. The (allegedly) deceiving wife should not be allowed to use the twins as a shield to the tort claims. Furthermore, the twins won't be subjected to any more intrafamilial warfare than already exists in the divorce action.

RECENT CASES (from 2001 and later)

Recovery of actual and punitive damages for Intentional Infliction of Emotional Distress or “IIED” (based upon post-divorce conduct) upheld. In addition to many other rulings which were favorable to wife, she was awarded \$20,000 for intentional infliction of emotional distress by the trial court. Wife was also awarded \$7,000 against husband for punitive damages. These awards were affirmed in *Christians v. Christians*, 2001 SD 142, 637 N.W.2d 377, with Justice Amundson and Retired Chief Justice Miller dissenting.

The main opinion was authored by Justice Sabers (on reassignment) with Chief Justice Gilbertson fully concurring. Justice Konenkamp concurred specially. The main opinion approves the prosecution of the tort in connection with the divorce proceeding, but notes that the conduct which gave rise to the tort claim arose *after* wife filed for divorce. ¶24, 637 N.W.2d at 382. The main opinion also states that “we have made it clear that the conduct leading to the dissolution of marriage is not grounds for an intentional infliction of emotional distress claim” but also acknowledged that “Independent torts, however, are actionable.” ¶21, 637 N.W.2d at 382. Justice Konenkamp disagreed with that portion of the main opinion which could be construed so as to limit recognition of the tort to conduct *after filing*, stating “Thus, although I reject as artificial a distinction between acts occurring before and after commencement of the divorce action, I join in the Court’s recognition of the tort of intentional infliction of emotional distress in the marital context.” ¶38, 637 N.W.2d at 385. Justice Konenkamp’s special concurrence also addresses many issues and questions about the prosecution of such torts in connection with divorce proceedings – matters such as limiting the actionable torts to legitimate (not mere spiteful or petty) claims, double recovery issues (such as alimony awards which consider fault), joinder, preclusion, and even ethical considerations with potential contingent fee arrangements by lawyers.

After reviewing the main opinion and Justice Konenkamp’s special concurring opinion, it appears that we still don’t have a clear answer as to whether or not a viable cause of action of intentional infliction of emotional distress may be prosecuted for conduct occurring *prior to* the filing for divorce. This is especially true considering the retirement of Chief Justice Miller. The main opinion clearly recognizes that independent torts are still actionable and that the remedy of this tort is available to “every other citizen of

the state” not just to a party who is going through a divorce. ¶21 637 N.W.2d at 382. The main opinion points out that the conduct in this case occurred *after* the filing for divorce and also states that conduct which merely leads to the dissolution of marriage should not be actionable by and of itself. Nonetheless, this writer/observer cannot help but think that sufficiently egregious facts *prior* to the filing for divorce may be recognized as actionable in tort for intentional infliction of emotional distress.

Recovery of actual and punitive damages for Malicious Prosecution (based upon unfounded criminal charges filed by wife against husband during pendency of divorce proceeding) upheld. Following an “acrimonious” divorce, Husband brought action against Wife for “malicious prosecution” in connection with conduct which occurred during the pendency of the divorce proceeding, which had been concluded. Wife had caused a number of criminal charges to be filed against Husband, including several charges for allegedly violating a protection order. Other charges included simple assault and disorderly conduct. In all of the charges at issue, Husband was either found not guilty of committing the alleged act, or the charges were dismissed. According to Husband’s testimony, Wife did this to obtain “leverage” in the divorce. On the “malicious prosecution” claim, the jury awarded Husband \$13,754.67 in compensatory damages and \$120,000 in punitive damages. The South Dakota Supreme Court affirmed, but through remittitur, reduced the punitive damage award to \$25,000. The Court applied an established “five factor” test for determining whether the punitive damage award was appropriate or excessive. *Leisinger v. Jacobson*, 2002 SD 108, 651 N.W.2d 693. **[Postscript:** In *Jacobson v. Leisinger*, 2008 SD 19, 746 N.W.2d 739, we find another round in the extended litigation between two parties who were previously married to each other. This decision resolves the issues in two separate appeals – this ongoing controversy possibly qualifies as South Dakota’s version of the “War of the Roses.” There is a previous reported decision between these parties at 2002 SD 108, 651 N.W.2d 693 in which a punitive damage award of \$120,000 in favor of husband (in connection with a claim of malicious prosecution against wife for filing numerous frivolous actions) was rejected. Although he had the option of accepting a remitted award of \$25,000 or retrying the issue of punitive damages to a jury, he did neither. Furthermore, he did not return the \$120,000 to wife. (Apparently, husband had recovered the \$120,000 prior to the SD Supreme Court’s decision in 2002). After time had expired for him to pursue his punitive damage claim on remand, wife sought return of the \$120,000. Husband resisted and then filed another claim against her, this time for defamation. Eventually, wife recovered the \$120,000 but did not recover attorney fees associated with her efforts to get her \$120,000 back. His claim for defamation was dismissed due to the statute of limitations. On appeal, the dismissal of his defamation claim was affirmed, but the SD Supreme Court held that wife is indeed entitled to attorney fees incurred in pursuing the litigation necessary to get a return of her \$120,000. This opinion breaks new ground on the issue of attorney fees recoverable, holding that although such fees are not generally recoverable in civil actions, they are recoverable as part of the damages incurred in a “conversion” case when those fees are “*incurred in recovering the property*” which is the subject of the conversion action. (italicized language is original in the Court’s opinion, paragraph 14). This decision is unanimous with the Court’s opinion being authored by retired Justice Robert Miller, sitting for Justice Meierhenry.]

Alleged intentional torts committed by wife prior to divorce barred by “res judicata” and “waiver,” but alleged intentional torts committed by husband “post-divorce” are not barred, according to in *Flugge v. Flugge*, 2004 SD 76, 681 N.W.2d 837. When husband and wife were divorced in 2000, the parties entered into a stipulation which provided, *inter alia*, “... it is the purpose of their Stipulation and Agreement to make a complete and final settlement of all rights and claims that each may have against the other...” Prior to the divorce, wife had secured two protection orders against husband. Husband subsequently claims that both protection orders “were falsely obtained.” ¶ 7 For this proceeding,

wife states that this may be assumed, *arguendo*, as true. ¶ 7. One of wife's protection orders "was based on the allegation of the parties' ten year old son that [husband] hit him." ¶ 9. This allegation was later admitted by the minor child to be false. ¶ 9. Husband was present and represented by counsel in each protection order proceeding and, in both proceedings, he stipulated to the entry of orders without asserting that the bases for the orders were false. Approximately 1 year 10 months after the divorce decree was entered, husband filed a motion to change custody of the parties' son. This motion was denied, with husband agreeing to pay attorney fees for wife. This modification proceeding was characterized as "frivolous" ¶ 30. A short time later, husband this lawsuit against wife, asserting abuse of process, unlawful eviction, barratry, and punitive damages. Husband's claims were all based on the pre-divorce protection order proceedings. Wife counterclaimed against husband for intentional infliction of emotional distress ("IIED") and for malicious prosecution, premising her claims on the post-divorce litigation instituted by husband. The trial court granted summary judgments, dismissing all claims. Both sides appealed in *Flugge v. Flugge*, 2004 SD 76, 681 N.W.2d 837 (June 2, 2004). The South Dakota Supreme Court affirmed the dismissal of all of husband's claims because they were either barred by res judicata (because husband had the right to contest each protection order proceeding) or because they were waived by the stipulation entered into by the husband at the time of the divorce (in which he agreed that the purpose of the stipulation was "to make a complete and final settlement of all claims that each may have against the other..."). As to wife's claims, the South Dakota Supreme Court reversed the dismissal of wife's IIED claim because it was based on the post-divorce conduct of the husband. The dismissal of wife's claim of malicious prosecution relating to husband's failed modification proceeding was also reversed. The wife's claim of malicious prosecution relating to husband's present assertion of tort claims was affirmed, however, because it was "legally insufficient" at the time it was brought because there had not (yet) been a favorable and bona fide termination of the action in wife's favor. ¶ 35. (Presumably, as a result of this SD Supreme Court opinion which brings a bona fide termination in favor of wife, wife may now re-institute the malicious prosecution action under scrutiny.)

The following additional points, found in the *Flugge v. Flugge* decision, are worth noting:

1) because husband's actions for abuse of process, unlawful eviction, barratry and punitive damages were frivolous, wife was awarded \$3,000 appellate attorney fees. (Wife had requested \$5,274.82 appellate attorney fees in total.)

2) This opinion solidifies and clarifies aspects of the Court's prior holding in *Christians v. Christians*, 2001 SD 142, 637 N.W.2d 377. "In *Christians*, we acknowledged that conduct leading to the dissolution of a marriage does not constitute grounds for a claim of intentional infliction of emotional distress. However, we noted that independent torts are actionable ... We held that to recover for a claim of intentional infliction of emotional distress, the claimant must establish the necessary elements of the tort separate from the grounds for divorce." ¶ 13.

3) A footnote to this opinion states, somewhat tragically, "For the emotional well-being of the parties and their remaining child, this litigation should come to an end. The fighting between these parties has been before the courts since at least 1998. In that time, not only has the family been torn apart, they have also lost their eldest son to suicide. Among the issues that had to be addressed in the Stipulation and Agreement was an apparent dispute over the design and installation of their child's headstone." See "*" accompanying ¶ 21.

D. Third Parties

HUNT v. HUNT

Supreme Court of South Dakota, 1981.
309 N.W.2d 818.

HENDERSON, Justice.

ACTION

Appellant Kay Hunt appeals from a judgment entered pursuant to a jury verdict rendered in favor of appellee Bonnie Hunt, and also from the trial court's order denying various post-trial motions made by appellant. Appellee instituted an action to recover damages on two counts: alienation of affections and criminal conversation. The jury found appellant liable to appellee on both counts for an aggregate total of \$50,000. Appellant urges this Court, *inter alia*, to abolish alienation of affections and criminal conversation as causes of action in this state.

All five justices would abolish the action for criminal conversation in South Dakota. Two of the justices would also abolish the action for alienation of affections. Three of the justices would preserve the action for alienation of affections but concur in the result of the majority opinion for the reason that the evidence was insufficient to sustain the alienation of affections' action. Accordingly, we reverse the judgment of the trial court.

* * *

In light of our ultimate holding, we do not deem it necessary to recite the specific facts and circumstances which prompted this action. Suffice it to say that appellee brought suit against appellant for the purpose of recovering damages for (1) alienation of affections and loss of consortium allegedly caused by appellant's interference with the marriage of appellee and her ex-husband and (2) carnal intercourse with her ex-husband.

The essential elements of a cause of action for alienation of affections are: (1) wrongful conduct of the defendant; (2) loss of affection or consortium; and (3) a causal connection between such conduct and loss. *Morey v. Keller*, 77 S.D. 49, 85 N.W.2d 57 (1957). The tort of criminal conversation allows one to maintain an action for damages if it is shown that his or her spouse committed adultery with the defendant; the only defenses to this action are consent by the plaintiff or the statute of limitations. *Giltner v. Stark*, 219 N.W.2d 700 (Iowa 1974); see *Pearsall v. Colgan*, 76 S.D. 241, 76 N.W.2d 620 (1956). "Criminal conversation ... and alienation of affections still are often treated as separate torts, but there is no good reason for distinguishing them. They (both) represent ... forms of interference with aspects of the same relational interest, and ... may be present in the same case." W. Prosser, *The Law of Torts* §124, at 876-877 (4th ed. 1980).

The right to recover under the doctrines of alienation of affections and criminal conversation is of common-law origin, and exists independent of any statute. *Holmstrom v. Wall*, 64 S.D. 467, 268 N.W. 423 (1936); *Moberg v. Scott*, 38 S.D. 422, 161 N.W. 998 (1917). This common law origin exists despite our Legislature's subsequent recognition of the doctrines through various codified references.

* * *

The recent tenor of the courts and legislatures across the country is toward the abolishment of

alienation of affections and criminal conversation as legal causes of action. To date, seventeen states and the District of Columbia have statutorily abolished alienation actions. Ariz.Rev.Stat. Ann. § 25-341 (West Supp.1980-81); Cal.Civ.Code § 43.5 (West 1954); Colo.Rev.Stat. § 13-20-202 (1973); Conn.Gen.Stat. Ann. § 52-572b (1977); D.C.Code Encycl. § 16-923 (West Supp.1978-79); Del.Code Ann. tit. 10, § 3924 (1975); Ga.Code Ann. § 105-1203 (Harrison Supp.1980); Ind.Stat. Ann. § 34-4-4-1 (Burns Supp.1980); Me.Rev.Stat. Ann. tit. 19, § 167 (West Supp.1980- 81); Md. Ann.Code, Courts and Judicial Proceedings § 5-301(a) (1980); Mich.Stat. Ann. § 600.2901 (1968); Minn.Stat. Ann. § 553.01 (West Supp.1980); Mont.Code Ann. § 27-1-601 (1979); Nev.Rev.Stat. § 41.380 (1979); Or.Rev.Stat. § 30.840 (1975); Va.Code § 8.01-220 (1977); W.Va.Code § 56-3-2a (Michie Supp.1980); Wyo.Stat. § 1-23-101 (1977).

Both Iowa and Washington have judicially abolished the action for alienation of affections. *Fundermann v. Mickelson*, 304 N.W.2d 790 (Iowa 1981); *Wyman v. Wallace*, 94 Wash.2d 99, 615 P.2d 452 (1980). The courts of Louisiana have never recognized alienation actions. *Moulin v. Monteleone*, 165 La. 169, 115 So. 447 (1927), *accord*, *Ohlausen v. Brown*, 372 So.2d 787 (La.App.1979).

California, Colorado, Connecticut, Delaware, Florida, Indiana, Michigan, New Jersey, New York, Oregon, Vermont, Virginia, Wisconsin and Wyoming have all abolished by statute the doctrine of criminal conversation. Cal.Civ.Code § 43.5 (West 1954); Colo.Rev.Stat. Ann. § 13-20-202 (1973); Conn.Gen.Stat. § 52-572b to 52-572f (1977); Del.Code Ann. 10 § 3924 (1975); Fla.Stat. Ann. 771.01 (1976); Ind.Stat. Ann. 34-4-4-1 (Burns Supp.1977); Mich.Comp. Laws 551.301 (1967); N.J.Stat. Ann. § 2A:23-1 (1952); N.Y.Civ.Rights Law 80-a (McKinney 1976); Or.Rev.Stat. 30.840 and 30.850 (1977); Vt.Stat. Ann. tit. 15, § 1001 (Supp.1977); Va.Code § 8.01-220 (1977); Wis.Stat. Ann. 248.01 (Supp.1977-1978); Wyo.Stat. Ann. § 1-728 (1959).

The Supreme Courts of Iowa and Pennsylvania have abolished actions for criminal conversation in their respective states. *Bearbower v. Merry*, 266 N.W.2d 128 (Iowa 1978); *Fadgen v. Lenkner*, 469 Pa. 272, 365 A.2d 147 (1976).

Money damages are not recoverable for alienation actions in six states. Ala.Code tit. 6, § 5-331 (1978) (abolishes recovery for females 19 years or older) (injunction still permitted), *see Logan v. Davidson*, 282 Ala. 327, 330, 211 So.2d 461, 463 (1968); Fla.Stat. Ann. § 771.01 (West 1964); N.J.Stat. Ann. § 2A:23-1 (West 1952); N.Y.Civ. Rights Law § 80-a (Lawyers Coop. 1974); Ohio Rev.Code Ann. § 2305.29 (Supp.1979); Vt.Stat. Ann. tit. 15, § 1001 (1976).

In accord with these authorities, we believe that alienation of affections and criminal conversation, as viable legal remedies, are outmoded archaic holdovers from an era when wives ⁶ were considered the chattel of their spouse rather than distinct legal entities. Wives are not property. Neither are husbands. The love and affection of a human being who is devoted to another human being is not susceptible to theft. There are simply too many intangibles which defy the concept that love is property.

Defenses which should logically prevent criminal conversation actions have, in reality, no legal effect; to wit:

⁶ Originally, legal recourse for the interference with family relations existed solely for a husband; with the passage of time, however, women were permitted to bring legal action against another for the loss of their husband's affections and consortium. *See* W. Prosser, *The Law of Torts* § 124, at 881-882 (4th ed. 1980).

(C)onsent of the wife is no defense. The fact that the wrongdoer did not know the wife was married but believed her to be single is not a defense. The fact that the wife represented herself as single is not a defense. The fact that the wife was the aggressor is not a defense. The fact that she has been neglected or mistreated by her husband is not a defense. The fact that she and her husband were separated through his fault is not a defense.

Felsenthal v. McMillan, 493 S.W.2d 729, 731 (Tex.1973) (Steakley, J., dissenting). The potential of abuse in this type of action is clear since “the threat of exposure, publicity, and notoriety is more than sufficient to breed corruption, fraud, and misdealings on the part of unscrupulous persons in bringing unjustified and maliicious [sic] suits.” Greer, *Criminal Conversation: Civil Action for Adultery*, 25 Baylor L.Rev. 495, 499 (1973).

Our Legislature has abolished adultery as a crime in South Dakota, 1976 S.D.Sess.L. ch. 158, § 22-8, thus decriminalizing the very behavior upon which an action in criminal conversation rests. The courts in *Fadgen v. Lenkner*, *supra*, and *Bearbower v. Berry*, *supra*, were faced with the identical situation when they abolished criminal conversation actions in Pennsylvania and Iowa, respectively.

* * *

This is not to say that the institution of marriage should be treated with cynicism and disdain. Where, as here, however, neither party holds the marriage in the high regard that it should be held, the existence of both alienation of affections and criminal conversation as remedies fosters bitterness, promotes vexatious lawsuits, uses the marriage as a means of blackmail and character assassination, puts the marriage in the marketplace, and generally exposes the marriage to a public cleansing with a price tag attached upon it.

Of course the judicial abolishment of the common-law doctrines in question circumvents, but does not ignore, the process of stare decisis. The Supreme Court of this state has long recognized the value of this doctrine; but at the same time we have not been blind to its theoretical inherent premise of being in harmony with extant public policy. *See Printup v. Kenner*, 43 S.D. 473, 180 N.W. 512 (1920). To maintain antiquated rules and methods merely for the sake of consistency is akin to secluding oneself from an often volatile world.

* * *

The judgment of the trial court is reversed.

WOLLMAN, C. J., concurs.

DUNN, MORGAN and FOSHEIM, JJ., concur specially in part and concur in result in part.

NOTE

The Hunt case is the subject of a student note. *See* Celia Miner, “*Hunt v. Hunt*: The Status of the ‘Heartbalm’ Torts in South Dakota,” 127 South Dakota Law Review 160 (1982) [suggesting that the tort of alienation of affections serves no valid interest and that it should be eliminated or restricted by shortening the statute of limitations and/or limiting the range of damages recoverable and restricting the parties who may sue.]

PANKRATZ v. MILLER

Supreme Court of South Dakota , 1986.
401 N.W.2d 543.

SABERS, Justice.

Winston Miller (Winston), appeals the trial court's decision holding him liable for damages in a civil suit for alienation of affections. We reverse.

* * *

Winston raises two issues on appeal. First, he urges this court to judicially abolish alienation of affections as a legal cause of action. Secondly, Winston claims that the evidence overwhelmingly demonstrated that there was no causal connection between his conduct and Elke's loss of affection for her husband which had been alienated long before their involvement.

**1. WHETHER THE COMMON-LAW TORT OF ALIENATION
OF AFFECTIONS SHOULD BE ABOLISHED AS A LEGAL CAUSE OF ACTION**

The right to recover under the doctrine of alienation of affections has its origin in the common law. *Hunt v. Hunt*, 309 N.W.2d 818, 820 (S.D.1981). This common law basis exists despite statutory codification. *Id.* In *Hunt*, we abolished the common-law tort action for criminal conversation but preserved the tort of alienation of affections. The national trend is toward the judicial or statutory abrogation of alienation of affections as a legal cause of action. *Id.* at 821-822 and cases cited therein; *Fundermann v. Mickelson*, 304 N.W.2d 790 (Iowa 1981) and cases cited therein.

In his concurring opinion in *Hunt, supra*, Justice Dunn wrote:

While I agree that criminal conversation should be abolished, I am convinced that the tort of alienation of affections should be preserved until repealed by legislative action. It is one thing to abolish an action in tort which is devoid of defenses and unjust. It is quite another to abolish a long-standing legislative and judicial intention to preserve the sanctity of marriage by providing a civil remedy, and where reasonable and just defenses are available to a defendant. ... I feel certain that a case will arise in the future where some party has so flagrantly broken up a stable marriage that we would rue the day that an alienation suit was not available to the injured party.

309 N.W.2d at 823.

We see no reason to deviate from this position and therefore preserve the cause of action for alienation of affections.

**2. WHETHER THERE WAS A CAUSAL CONNECTION BETWEEN WINSTON'S
CONDUCT AND WIFE'S LOSS OF AFFECTION FOR HUSBAND**

The elements necessary to sustain a claim for alienation of affections are: (1) wrongful conduct of the defendant; (2) loss of affection or consortium; and (3) a causal connection between such conduct and loss. *Hunt*, 309 N.W.2d at 820. The gist of the action is the malicious interference with the marriage relationship. *Monen v. Monen*, 64 S.D. 581, 584, 269 N.W. 85, 87 (1936). The loss of consortium is the actionable consequence of an action for alienation. *Holmstrom v. Wall*, 64 S.D. 467, 268 N.W. 423 (1936).

Consortium is a right growing out of the marital relationship. This term includes the right of either spouse to the society, companionship, conjugal affections, and assistance of the other. *Morey v. Keller*, 77 S.D. 49, 51, 85 N.W.2d 57, 58 (1957). A loss or impairment of any such elements will sustain an action for alienation of affections. *Id.* However, if it appears there was no affection to alienate, recovery is precluded. *Trainor v. Deters*, 22 Ohio App.2d 135, 259 N.E.2d 131, 134 (1969).

We review the facts with these elements in mind. Throughout her deposition⁷ testimony, Elke maintained that she had lost her love and affection for her husband many years before her involvement with Winston.⁸

* * *

Simply stated, the evidence fails to support an action for alienation of affections because there was no causal connection between Winston's conduct and Elke's loss of affection for her husband.

Accordingly, the judgment is reversed.

WUEST, C.J., and FOSHEIM, Retired Justice, concur.

HENDERSON, J., concurs specially.

MORGAN, J., concurs in part and dissents in part.

MILLER, J., not having been a member of the Court at the time this action was submitted to the Court, did not participate.

⁷ Elke did not testify in person at the trial. Her deposition was taken after the trial. The evidence suggests that Duane's threats prevented her from doing so. These threats were basically that he would have the press and TV stations at the trial and smear her name all over Sioux Falls.

⁸ **Direct examination:**

* * *

Counsel: [H]ow would you characterize your relationship with your husband [from 1980 to the present time]?

Elke: Our relationship was very strained by that time.... I lost my love and affection for my husband many years ago already. It's been longer ago than five years ago.

Cross-examination:

* * *

Elke: I respected him [Duane] businesswise, yes.

Counsel: And when you filed the divorce action ... did you still have that love and respect?

Elke: I still have some respect for Dr. Pankratz, but I do not love him. I have not loved Duane for about four, five years now. And I can say that very assured.

NOTES

1. In *Veeder v. Kennedy*, 1999 SD 23, 589 N.W.2d 610, the former husband brought an action for the alienation of affections of his wife. The defendant was a bank officer who had moved to Watertown, SD, to head the operations of a branch facility for Norwest Bank. Verdict and judgment for the plaintiff in the amount of \$265,000 (\$65,000 actual, \$200,000 punitive) was affirmed on appeal. Evidence of prior related acts by the defendant was held admissible. This opinion reviews the history of the tort of alienation of affections in South Dakota.

2. In *Richards v. Lenz*, 539 N.W.2d 80 (S.D. 1995), the South Dakota Supreme Court held that the plaintiffs' cause of action against a licensed psychologist and a mental health center for the therapists' involvement with a wife in marriage counseling was governed by the 6 year statute of limitations for breach of contract. The plaintiffs' claims were in the nature of negligence, misrepresentation or fraud and breach of the contract of employment (of the marriage counselor). The trial court had dismissed the suit, relying on the 2 year statute of limitations applicable to medical malpractice claims. The Supreme Court reversed. (Justice Sabers, the lone dissenter, would apply the 2 year statute of limitations.)

3. Patient's suit against her therapist resulted in a jury verdict for the therapist. The jury was instructed according to the 2 year statute of limitations applicable to medical malpractice actions and although patient objected to the instruction, the objection did assert the application of a different limitations period. The verdict was affirmed, with the South Dakota Supreme Court holding that the patient failed to preserve the issue for appeal by failing to properly object. *Knudson v. Hess*, 1996 SD 137, 556 N.W.2d 73 (S.D. 1996). Previous case law in South Dakota suggests that the longer "contract" statute of limitations applies under the theory that the therapist has (allegedly) breached an "employment contract" for therapy. Justice Sabers' concurred in the result, stating "It should be clear by now that the two-year medical malpractice statute of limitations applies." Since he was the only Justice of the five to state this, it perhaps remains less than "clear."

4. Husband brought an action alleging breach of fiduciary duty, fraud, and seduction against wife's psychologist. During discovery phase, the trial court ordered the defendant psychologist to turn over a list of his patients for the purpose of allowing husband to search for other female patients who might have been victimized by the defendant. The trial court further entered an order allowing husband to depose the defendant's own personal counselor. In an "intermediate appeal," the South Dakota Supreme Court reversed both orders. *Weisbeck v. Hess*, 524 N.W.2d 363 (S.D. 1994). The decision rests on interpretations of various statutes found in SDCL 19-13, the portion of the Evidence Code which deals with privileges. The *Weisbeck* case is the subject of a well-written casenote by Molly E. Slaughter, *Misuse of the Psychotherapist-Patient Privilege in Weisbeck v. Hess: A Step Backward in the Prohibition of Sexual Exploitation of a Patient by a Psychotherapist*, 41 South Dakota Law Review 574 (1996.)

5. The ex-wife was held liable for "waste" in connection with her possession of the marital home, in an action brought by former Step-daughter in *Thomas v. Thomas v. Thomas*, 2003 SD 39, 661 N.W.2d 1. This case involves many issues and is more fully described in Chapter 10, "Division of Property" (in the section which discusses the "Marital Home"). A very brief synopsis is presented here. Prior to divorce, Husband and Wife deeded marital home to Wife's Step-daughter (Husband's daughter from prior marriage), with Wife retaining a life estate. Some four years later, when Husband and Wife divorced, the divorce court repudiated the deed to Step-daughter, eliminating her interest although Step-daughter was not a party to the

divorce proceeding. In subsequent quiet title action, the deed to Step-daughter was upheld with title quieted in Step-daughter's name. Wife was given a cash award against Husband of \$34,678.19 for her interest in the marital home. Step-daughter then sued Wife for waste and for property taxes during the time Wife was in possession of the home. The trial court awarded Step-daughter waste and taxes, plus pre-judgment interest on everything but the taxes. Both sides raised numerous issues on appeal, including the assertion that the trial court erred in failing to impose Rule 11 sanctions against Wife's attorney. The South Dakota Supreme Court affirmed the awards of waste, taxes and prejudgment interest, and also awarded prejudgment interest on the property taxes. The matter of Rule 11 sanctions was reversed and remanded.

MORE ON ALIENATION OF AFFECTION

In the case, *Jones v. Swanson*, 341 F.3d 723 (8th Cir. 2003), a jury in federal court (Sioux Falls) awarded husband \$950,000 in damages from an orthopedic surgeon for alienation of affection. The 8th Circuit remitted the damages to \$400,000 on appeal.

There was an effort in 2002 South Dakota Legislature to abolish the "alienation of affection" cause of action. This effort led to the anomalous result of specifically enlarging the scope of the cause of action by insuring that women could seek damages, not just men.

According to the news story, "In South Dakota, breaking up a marriage can cost you," Emilie Rusch Reporter, Rapid City Journal, May 16, 2010, State Senator Stan Adelstein of Rapid City, the sponsor of the 2002 effort, "said that was not his original intention. 'The idea of a jury setting a monetary value of a human being in a marital relationship was very offensive to me,' Adelstein said. 'I wanted to eliminate it.'"

When the House Judiciary Committee expressed its intention to reject his 2002 bill, Senator Adelstein went along with the proposal to make the law gender neutral. SDCL 20-9-7 was, accordingly, amended. (This statute, as amended in 2002 is set forth at the beginning of sub-chapter F, "New Theories," *infra*.)

E. Consortium

BINEGAR v. DAY

Supreme Court of South Dakota, 1963.
120 N.W.2d 521.

HOMEYER, Judge.

Plaintiff claims that his wife was injured in an automobile accident, and defendant has admitted his negligence was the cause of the accident. Damages are sought for the following: 1. Loss of consortium. 2. Expenses of medical treatment. 3. Future expenses of medical treatment. 4. Car damage. The jury awarded plaintiff damages in the amount of \$13,115.46. Proof on items 2 and 4 totaled \$4,115.46. Defendant appeals from the judgment and assigns as error among other things the order denying motion for new trial.

The questions presented for review are: (1) Does plaintiff have a cause of action for loss of consortium? (2) Misconduct of counsel. (3) Error on admission of evidence and on instructions. (4) Sufficiency of the evidence and excessive damages.

We will first consider if plaintiff has a cause of action in this state for loss of consortium. Appellant asks the court to reconsider its decision in *Hoekstra v. Helgeland*, 78 S.D. 82, 98 N.W.2d 669, in which it was held that the wife had such cause of action, apparently implying therefrom that this court has recognized the husband's cause of action, although that specific question has not been presented. The *Hoekstra* case extended to the wife the right to sue for loss of her husband's consortium resulting from a negligent tort. Her right to sue for the so-called intentional or malicious tort was recognized in earlier cases. *Moberg v. Scott*, 38 S.D. 422, 161 N.W. 998, L.R.A.1917D, 732; *Id.*, 42 S.D. 372, 175 N.W. 559; *Holmstrom v. Wall*, 64 S.D. 467, 268 N.W. 423; *Swanson v. Ball*, 67 S.D. 161, 290 N.W. 482.

The weight of authority in this country is to the effect that the husband has a right to sue for loss of consortium resulting from negligent injury of his wife by a third person. See many cases collected and commented on in 21 A.L.R. 1517; 133 A.L.R. 1156. The legal writers on this subject agree that a husband should have, and in most states has, such a cause of action. Prosser on Torts, 2d ed., pp. 698-705; 22 Mich.L.Rev. 1; 30 Col.L.Rev. 651; 38 Harv.L.Rev. 421, 622.

We are urged to hold that by virtue of our adoption of the Married Women's Act, Ch. 98, Laws 1887 (now revised into SDC 14.0207), all causes of action arising from a negligent tort accrue to the wife the same as a feme sole and the husband's right to sue for loss of consortium has been abolished. A few jurisdictions have so held.

* * *

The husband has a common-law right to the wife's services, aid, comfort, society, companionship, and conjugal affection, all generally embraced in the term consortium, and the great weight of authority is that such common-law right was not abrogated by passage of the Married Women's Acts. 27 Am.Jur., Husband and Wife, § 502, p. 101. *City of Chattanooga v. Carter*, 132 Tenn. 609, 179 S.W. 127, succinctly states the rule of the majority when it says: 'The act does not deprive either the husband or wife of the conjugal relationship, with its duties and rights', and until positive and explicit legislation is enacted depriving the husband of such right, we hold that he is not deprived of the right to sue for the loss of the aid and society (consortium) of his wife. The common law is in force and effect in this state, SDC 65.0103, except where it conflicts with the will of the sovereign power as expressed in the manner set forth in SDC 65.0102, and we hold that the Married Women's Act did not deprive the husband of his common-law right to sue for loss of consortium resulting from negligent injury to his wife.

We approve the language of the North Dakota court in *Milde v. Leigh*, 75 N.D. 418, 28 N.W.2d 530, 173 A.L.R. 738, a negligence case, where it was said:

'The cause of action in favor of the husband is not for the injury to the wife but for the damage to the husband on account of the loss of the wife's services and society and for the expenses incident to her care and cure. Spencer, Law of Domestic Relations, sec. 137, p. 130; *Rogers v. Smith*, 17 Ind. 323, 79 Am.Dec. 483; *Thompson v. Ft. Branch*, 204 Ind. 152, 178 N.E. 440, 82 A.L.R. 1413.'

and 41 C.J.S. Husband and Wife § 401 a., p. 890,

'In the absence of statute to the contrary, a personal injury to a married woman caused by the tort of a third person gives rise to two causes of action, one for her personal pain and suffering, and the other for the husband's consequential loss of her society and services and

for expense incurred for medical attention and nursing.'

Robert Binegar at the time of trial was 34 years old and his wife was 26. They were married May 1, 1955, and have one daughter, Garnet, aged 3 at the time of the accident. Binegar was on the Pierre police force and earned \$355 per month. His wife took care of the household. On the night of July 16, 1959, the family and a nephew, 6 years old, had attended a drive-in movie near Pierre and were returning home on U. S. Highways 14-83. Binegar was driving and his wife and daughter were in the front seat and the daughter had her head on her mother's lap. The nephew was in the back seat. Defendant's automobile approached from the opposite direction with bright lights on the wrong side of the road. Binegar slowed down and pulled to his extreme right and the vehicles collided. Before the accident, he noticed his wife sitting stiff and staring ahead. She screamed before the impact. No one sustained any visible physical injury, but when Mrs. Binegar was at home she complained about a small bump on her head which disappeared after a few days. In August 1959 she took the child to see Dr. Knowles, a psychiatrist at Sioux Falls, and later that same month she saw Dr. Leander, also a psychiatrist at Sioux Falls. Dr. Leander saw her eight times as an outpatient and then on February 29, 1960, she entered a Sioux Falls hospital where she remained 38 days and received electric shock and insulin treatments. After her release from the hospital and before trial on December 4, 1961, she had been seen by Dr. Leander as an outpatient 16 times and had one scheduled appointment after trial with an expectation that there would be additional appointments. Plaintiff noticed changes in his wife soon after the accident. She was more irritable, cross with the daughter, neglected her household duties, wanted to stay at home, broke dishes, tore the telephone from the wall, burned food, neglected her personal appearance, refused to talk, didn't take any interest in her husband's business affairs, had fear of driving in an automobile particularly at night, was cold, frigid, and only occasionally had sex relations with her husband. These same conditions continued after her release from the hospital with gradual improvement to the time of trial.

Dr. Leander described Mrs. Binegar as having a shy introvert personality before the accident with a dormant neurosis which was triggered by the accident and developed into a schizo-affective disorder (complete removal from realism) that necessitated her hospitalization. The schizo-affective disorder was absent on her hospital release and she showed gradual improvement to time of trial and the doctor expected a complete return to her pre-accident condition. At the time of trial, she still had a post-traumatic neurosis and phobia (exaggerated fear) of car travel and some of the other pre-hospital conditions still existed. Dr. Knowles, defendant's psychiatrist, agreed that there was a pre- accident neurosis which was triggered by the accident and that she was still suffering from a post-traumatic neurosis on June 8, 1961, when his deposition was taken, and she still had a phobia on auto travel. He expected that she would gradually recover and return to her pre-accident condition. Neither doctor gave a direct opinion on time before Mrs. Binegar would be restored to her pre-accident condition or the cost of future medical treatment. Proof on special damages to time of trial included the following: doctor, \$670; hospital, \$899.51; drugs, \$32.46; phone calls, \$26.69; loss of time (husband), \$360; meals, \$155; baby-sitter, \$295; travel, \$1,260; car damage, \$416.90, or a total of \$4,115.56. Plaintiff's wife did not testify on the trial. She appeared with her sister momentarily during plaintiff's direct examination and he pointed her out to the jury. Other evidence will be referred to in discussion of various points.

Defendant claims seven instances of misconduct of counsel and contends that by reason thereof his rights were prejudiced and he did not receive a fair trial. The alleged misconduct begins with the opening statement and concludes with the final argument to the jury. From the pleadings the only issuable facts were causation, and if this was found, the amount of plaintiff's damages. Virtually all of the alleged misconduct and the action of the court thereon appears from the transcript so we are not confronted with any denial of what took place.

* * *

It can also be said that if any of the conduct set forth stood alone that we might conclude that it was without prejudice, but when we survey the entire record and the continued pursuit of what must be termed as a calculated course of misconduct, without admonition, we believe the claimed prejudice has been established. In coming to this conclusion we reiterate what has been said by this court in numerous previous cases that whether or not error is prejudicial generally depends upon the circumstances of a particular case. *Bean v. Best, supra*.

Other assignments of error have been considered but are not necessary for determination on disposal of this appeal.

The judgment is reversed.

BITSOS v. RED OWL STORES, INC.

United States District Court, D. South Dakota, 1972.
350 F.Supp. 850.

NICHOL, Chief Judge.

* * *

The question presented, then, is whether or not the jury verdict finding the defendant, Red Owl, negligent in the husband's suit is binding upon Red Owl in the wife's subsequent suit for loss of consortium, or, in other words, is Mrs. Bitsos in privity with her husband.

Because this is a federal diversity case, South Dakota law is controlling. *Erie R. Co. v. Tompkins*, 304 U.S. 64, 58 S.Ct. 817, 82 L.Ed. 1188 (1938). My research reveals that the South Dakota Supreme Court has not had occasion to address the issue presented in this motion. It therefore becomes necessary to predict how the South Dakota court would decide if faced with this issue. C. Wright, Law of Federal Courts 240 (2d ed. 1970).

* * *

Recently the South Dakota Supreme Court expressed its opinion relative to a procedural aspect of a wife's consortium suit. In the closing paragraph of *Wilson v. Hasvold*, 194 N.W.2d 251, 255 (S.D.1972), the court instructed as follows:

As an action for loss of consortium is *derivative* in nature it should also be combined for trial with the injured spouse's action in order to avoid the danger of double recovery and the expense of duplicate trials. (cases omitted.) (emphasis added).

* * *

The husband will base his claims upon the identical factual circumstances that the wife will ultimately use for her suit. Once those facts have been litigated and a final determination as to the defendant's liability made, it would be duplicitous to retry the facts in a second derivative action. If the husband is unsuccessful in his initial suit on the facts, the wife's subsequent action could add nothing to facts previously found lacking compensable negligence. The wife's cause of action being born of the husband's actionable loss is controlled by its fate. The wife's cause of action must rise or fall upon the success or failure of her husband's cause of action.

I recognize that the characterization of the wife's loss of consortium action as "derivative" places

South Dakota in the minority. Annot., 12 A.L.R.3d 933, 935 (1967). But the South Dakota court having taken that step, it follows that the wife's claim is dependent upon the validity of the injured spouse's cause of action and the man and wife are thereby in privity.

* * *

Privity having been found between Mrs. Bitsos and a party to the initial suit against Red Owl, the principle of res judicata applies and liability need not be relitigated in the derivative action of Mrs. Bitsos. The court is left only with the damage aspects of her claim. That matter will come on for trial before the court as stipulated by both counsel, on Monday, December 4, 1972, at 9:30 a. m., at the Federal Courthouse in Sioux Falls, South Dakota.

NOTES

1. Consider the situation where the spouse is not just injured, but killed. Does the surviving spouse have a cause of action for “loss of consortium” in addition to a wrongful death claim, or is the wrongful death statute an exclusive remedy? *See Selchert v. Lien*, 371 N.W.2d 791 (S.D. 1985).

2. Is an action for “loss of consortium” subject to the 3 year statute of limitations for personal injuries (SDCL 115-2-14(3)) or is it governed by the 6 year statute of limitations for “any other injury to the rights of another” (SDCL 15-2-13(5))? *See Titze v. Miller*, 337 N.W.2d 176 (S.D. 1983).

3. The South Dakota Supreme Court recently elaborated on the nature of damages which are encompassed by the term “consortium,” as well as the term “pecuniary injury” in *Zoss v. Dakota Truck Underwriters*, 1999 SD 37, 590 N.W.2d 911 (1999). The purpose of this decision is to give guidance as to what damages are subject to the lien of a Workers Comp insurer when a recovery is made from a tortfeasor who is liable for damages in a wrongful death action.

F. New Theories

The following statutes may be discussed in conjunction with the *Hershey* case:

CHAPTER 20-9: LIABILITY FOR TORTS

20-9-6 Right to protection from bodily harm, insult or injury to personal relations. Every person has, subject to the limitations provided by law, the right of protection from bodily harm or restraint, from personal insult, from defamation, and from injury to his personal relations, and every person is bound, without contract, to abstain from injuring any such rights of others and to abstain from injuring the person or property of another.

20-9-7. Abduction, enticement and seduction forbidden by rights of personal relation. The rights of personal relation forbid:

- (1) The abduction or enticement of a husband from his wife or of a parent from a child;
- (2) The abduction or enticement of a wife from her husband, of a child from a parent, or from a guardian entitled to its custody;
- (3) The seduction of a wife, daughter, or orphan sister;
- (4) The seduction of a husband, son, or orphan brother.

Source: SDC 1939, § 47.0302; SL 2002, ch 97, § 1.

HERSHEY v. HERSHEY

Supreme Court of South Dakota, 1991.
467 N.W.2d 484.

SABERS, Justice.

Mother appeals limitation on her recovery of back child support to six years. Father cross-appeals dismissal of his counterclaim against Mother for tortious interference with father-son relationship.

Patricia Hershey (Mother) and Brooke Hershey (Father) were divorced in South Dakota in 1968. The divorce decree awarded custody of their only child Pacion (Son) to Mother, and required Father to pay Mother \$125 per month for Son's support and \$25 per month into an education fund for Son's benefit.

From 1968 to 1971, Mother, Son and Mother's new husband lived first in Nebraska and then in Arizona. Father knew where they were living during this period, and there was protracted litigation over custody and visitation, culminating in the first *Hershey v. Hershey*, 85 S.D. 85, 177 N.W.2d 267 (1970). In 1971, in the midst of more litigation following the Supreme Court decision, Mother suddenly dismissed her

attorney, who informed Father that Mother had taken Son and left Arizona. Father has not seen his Son since. Mother and Son eventually moved to Oregon, where Mother registered Son in school under the last name of a third husband whose name was unknown to Father.

From 1971 to 1985, Mother made no attempt to contact Father and Father had no knowledge of Son's whereabouts. Son graduated from high school in 1985.

During the period from the 1968 divorce to Son's attainment of majority in 1985, Father paid nothing to Mother in child support and established no education fund for Son's benefit. In 1988, Mother brought an order to show cause in South Dakota why Father should not be compelled to pay:

- (1) \$26,750 in back child support from 1968 to 1985;
- (2) \$5,100 in back education fund payments from 1968 to 1985; and
- (3) \$3,000 in reimbursement for orthodontic work done for Son in 1980.

In response and without starting a new action, Father counterclaimed for damages for Mother's tortious interference with his relationship with Son.

* * *

3. Father's Cause of Action Against Mother

The trial court concluded that "[d]efendant's counterclaim for tortious interference of a parent/child relationship fails to state a cause of action and shall be dismissed." Father argues that his counterclaim states a cause of action under South Dakota law under: (1) alienation of affections; (2) intentional infliction of emotional distress; or (3) tortious interference with the parent/child relationship.

In South Dakota, "[a]ll courts shall be open, and every man for an injury done him in his property, person or reputation, shall have remedy by due course of law[.]" S.D. Const., Art. VI, § 20. "Every person has, subject to the limitations provided by law, the right of protection from ... injury to his personal relations, and every person is bound, without contract, to abstain from injuring any such right of others[.]" SDCL 20-9-6.

Furthermore, even though many jurisdictions have abolished alienation of affections as a recognized cause of action, this court has expressly declined to do so. *Hunt v. Hunt*, 309 N.W.2d 818 (S.D.1981). The cause of action is also secured by statute. SDCL 20-9-7 provides in part: "The rights of personal relation forbid: ... (2) The abduction or enticement of ... a child from a parent[.]"

"The essential elements of a cause of action for alienation of affections are: (1) wrongful conduct of the defendant; (2) loss of affection or consortium; and (3) a causal connection between such conduct and loss." *Hunt v. Hunt*, 309 N.W.2d at 820 (citing *Morey v. Keller*, 77 S.D. 49, 85 N.W.2d 57 (1957)). See also *Pickering v. Pickering*, 434 N.W.2d 758, 762- 763 (S.D.1989); *Pankratz v. Miller*, 401 N.W.2d 543, 546 (S.D.1987). Cf. *Strode v. Gleason*, 9 Wash.App. 13, 510 P.2d 250, 251 (1973).

The question presented is not whether a cause of action for alienation of affections exists in South Dakota, for clearly it does, but whether it may be asserted by a parent who claims to have lost the affections and consortium of his child. Mother admits that *Mackintosh v. Carter*, 451 N.W.2d 285 (S.D.1990), does

not foreclose Father's cause of action because the question was not reached. *Mackintosh* held that the evidence was insufficient to support the elements of the tort even assuming the cause of action existed, and noted that only one jurisdiction "appears to have recognized this tort, absent an actual abduction or kidnapping." *Mackintosh*, 451 N.W.2d at 288 (emphasis added).

Most of the jurisdictions which have rejected a parent's cause of action for alienation of affections, or for intentional infliction of emotional distress, have done so when the cause of action was based on simple interference with visitation rights. In general, the reasoning has been that it is neither in the best interests of the child nor in the best interests of the judicial system to encourage the use of this tort in the context of child custody and visitation battles when other legal remedies are already available. See e.g., *Gleiss v. Newman*, 141 Wis.2d 379, 415 N.W.2d 845 (Wis.App.1987); *Owens v. Owens*, 471 So.2d 920 (La.App. 2d Cir.1985).

When the issue is not merely interference with visitation rights but the complete removal of the child from the complaining parent's life, courts are far more willing to hold that the parent has a cause of action against the removing parent, even in cases where the removing parent is the custodial parent. See e.g., *Raftery v. Scott*, 756 F.2d 335 (4th Cir.1985); *Ruffalo v. United States*, 590 F.Supp. 706 (W.D.Mo.1984); *Kajtazi v. Kajtazi*, 488 F.Supp. 15 (E.D.N.Y.1978); *Plante v. Engel*, 124 N.H. 213, 469 A.2d 1299 (1983); *Sheltra v. Smith*, 136 Vt. 472, 392 A.2d 431 (1978); *Pankratz v. Willis*, 155 Ariz. 8, 744 P.2d 1182 (Ariz.App.1987). Some courts have even been willing to recognize a cause of action for alienation of a child's affections or intentional interference in the parent/child relationship when the facts are less extreme than complete removal of the child from the complaining parent's life. See e.g., *Bhama v. Bhama*, 169 Mich.App. 73, 425 N.W.2d 733 (1988); *Dymek v. Nyquist*, 128 Ill.App.3d 859, 83 Ill.Dec. 52, 469 N.E.2d 659 (Ill.App. 1st Dist.1984).

As the *Ruffalo* court observed:

The argument against encouraging damage claims for petty infractions of parental rights is not pertinent to the facts of this case. The state courts could well restrict this type of claim to situations that are not "insubstantial in duration and effect".... In any event, trifling departures from court orders relating to visitation doubtless already plague the state courts in contempt cases, and the possibility of truly petty damage suits does not argue persuasively against recognition of a right to sue. On the contrary, there are specialists in family law who view the potential of damage suits as a useful deterrent to lawless conduct.

Ruffalo v. United States, 590 F.Supp. at 712 (citing Hoff, "Interstate Child Custody Disputes and Parental Kidnapping: Policy, Practice and Law" (Legal Services Corporation--ABA 1982), pages 14-15).

In the present case, Mother kept Son's whereabouts a secret from Father for some fourteen years. Son is now an adult. That fact eliminates the three policy considerations usually advanced for refusing to recognize the cause of action: best interests of the child; availability of other remedies; and opening the floodgates to ongoing custody and visitation battles. Therefore, we hold that Father states a cause of action in tort against Mother for alienation of Son's affections. We need not and do not reach the question of whether Father also states a cause of action for intentional infliction of emotional distress or tortious interference with the parent/child relationship.

Nevertheless, we affirm the trial court's dismissal of Father's counterclaim against Mother for

alienation of Son's affections in this action to show cause--without prejudice to Father's right to bring said claims against Mother within the applicable statute of limitations period. As indicated above, this order to show cause is not a new cause of action, but simply an action for the enforcement of a prior judgment. 24 Am.Jur.2d Divorce and Separation § 806 (1983). While a defendant may petition for a modification of support obligations in response to plaintiff's show cause order to enforce support obligations, *Rousseau v. Gesinger*, 330 N.W.2d 522, 525 (S.D.1983), the proper subject matter in an action to enforce a prior judgment is nevertheless limited to the subject matter of the prior judgment. *Forkel v. Forkel*, 387 N.W.2d 52, 53 (S.D.1986); *Eichenberger v. Eichenberger*, 279 N.W.2d 690, 691 (S.D.1979); *Cameron v. Cameron*, 31 S.D. 335, 340-341, 140 N.W. 700, 702 (1913). The relief available to either party under a show cause order is "necessarily incidental to, and not entirely distinct from, that specifically asked." *In re Carter*, 262 N.C. 360, 137 S.E.2d 150, 156 (1964). Defendant cannot assert a counterclaim for a new cause of action in response to an order to show cause.

Affirmed in part, reversed in part and remanded for proceedings consistent with this opinion.

MILLER, C.J., concurs.

WUEST and HENDERSON, JJ., and MORGAN, Retired J., concur in part and dissent in part.

NOTES

1. Child, acting through her mother, sued Deputy Sheriff, Social Worker, County of Meade, and another for the negligent investigation of sexual abuse charges against child's father, resulting in continued abuse over several months. Eventually father was arrested and convicted. The trial court granted a summary judgment for the defendants on the basis of statutory immunity. (SDCL 26-8A-14). The South Dakota Supreme Court affirmed, recognizing that the immunity extended so long as the defendants acted in "good faith," rejecting the mother's argument that a "negligent investigation" is less than a "good faith" investigation. *B.W. v. Meade County*, 534 N.W.2d 595 (S.D. 1995) ("Within the bounds of our statute, negligence and lack of good faith are not equivalent. Simply put, if good faith immunity can be overcome by establishing negligence, then good faith immunity is a meaningless concept..." *id.* at 598.) *See also Cotton v. Stange* 1998 SD 81, 582 N.W.2d 25 (S.D. 1998) (upholding statutory immunity found in SDCL 26-8A-14 in action against DSS workers for alleged failure to timely discover sexual molestation activities by father -- the Court again indicates that mere negligence is not enough to overcome good faith immunity).

2. In a very recent case, prospective adoptive parents were held unable to pursue the State of South Dakota and its employees in failed adoption. In *Brown Eyes v. South Dakota DSS, et. al* , 2001 SD 81, __ N.W.2d __, prospective adoptive parents sought damages for actual expenses in excess of \$31,000 and also for emotional distress, anxiety and harm against the State of South Dakota, high level Officials and also DSS social workers, when a foster care placement failed to materialize into an adoption. After the initial placement with plaintiffs, the children were found to be subject to the exclusive jurisdiction of a tribal court. Plaintiffs alleged negligence, reckless and negligent performance of duties, reckless and negligent misrepresentation, bad faith and intentional misrepresentation by the various defendants. The trial court granted summary judgment for all defendants and the SD Supreme Court affirmed. The state was protected by sovereign immunity. The high level officials were found to have "discretionary" duties and also granted immunity. The social workers (whose duties were held to be a "ministerial function") were found to be

protected by the statutory “good faith immunity” granted by SDCL 26-8A-14. The adoption was prevented by “legal complications and circumstances beyond the control of the social workers... there is no showing of improper motive or dishonesty and no showing of bad faith.” (Paragraph no. 16).

3. In *Tipton, et al., v. Town of Tabor, et al.*, 538 N.W.2d 783 (S.D. 1995), the plaintiffs sought to impose liability on the town and county for the mauling of child by "wolf-dog" hybrids. The plaintiffs alleged that the defendants failed to investigate and abate a nuisance. The trial court granted summary judgment to the defendants, holding the public entities had "no duty" to the private citizen. The South Dakota Supreme Court reversed, recognizing that there may be a cause of action under the new test adopted in this opinion (from Minnesota case law) which "allows consideration of a broader range of relevant facts." A public entity may be liable when it assumes a special, rather than a public duty. This case may be relevant to similar causes of action sought to be asserted by battered victims when local authorities fail to adequately enforce orders of protection entered against abusive spouses or ex-partners.

4. As to the basic premise of the “public duty” rule, it is alive and well in South Dakota. (The “public duty” rule is that the government owes a duty of protection to the public in general, not to any particular person.) *Tipton v. Town of Tabor*, 1997 SD 96, 567 N.W.2d 351 (S.D. 1997) (upholding the trial court’s summary judgment that city and county had no actual knowledge of the dangerous propensities of the “wolf-dog” hybrids; *Gleason v. Peters*, 1997 SD 102, 568 N.W.2d 482 (S.D. 1997) (refusing to abrogate the “public duty” rule and affirming the trial court’s summary judgment for deputy sheriffs and county in lawsuit brought by parents of minor who was beaten by high school students at underage drinking party which deputies failed to stop).

5. A cause of action for "wrongful adoption" has been recognized by various courts in situations where the adoption agencies failed to disclose critical facts about the child who was the subject of the adoption. See eg. *Juman v. Louis Wise Services*, 608 N.Y.S.2d 612 (1994) (child's mother had suffered a frontal lobotomy and child experienced numerous psychological problems and numerous hospitalizations); *Gibbs v. Ernst*, 538 Pa. 193, 647 A.2d 882 (Pa. 1994) (child had experienced severe physical and sexual abuse and had been in 10 different foster care placements); *Burr v. Stark City*, 491 N.E.2d 1101 (Ohio 1986); *Mohr v. Massachusetts*, 421 Mass. 147, 653 N.E.2d 1104 (1995).

6. The Montana Supreme Court recently recognized a “wrongful adoption” cause of action against the state. In *Jackson v. Montana*, 956 P.2d 35 (Mont. 1998), court held that when the state volunteered information regarding the child’s parents, it owed a duty of care to refrain from negligently misrepresenting that information. In this case, the child to be adopted had suffered several “psychological problems” and apparently the state was in possession of several reports that so indicated. The adoptive parents told the resource worker that they could not provide for a child that had a mental disorder or for a child that might be at risk for developing a mental disorder. Instead of disclosing the history of the particular child, the worker said that the child came from a “several generation welfare family” which was “socially inept.”

7. In connection with the theory recognized by the Montana Supreme Court, one may wish to consider the case of *Aesoph v. Kusser*, 498 N.W.2d 654 (S.D. 1993) in which the South Dakota Supreme Court recognized a cause of action for “negligent misrepresentation” against an insurance agent. Similar to the reasoning of the Montana Supreme Court, the South Dakota Supreme Court held that the agent was under no obligation to advise the plaintiffs whether or not they were eligible for federal crop insurance, but when the agent chose to volunteer an answer (saying they were *not* eligible), he was under a duty to exercise reasonable care.

8. A cause of action for "wrongful adoption" was authorized by the Federal District Court in West Virginia in an opinion handed down on August 26, 1998. The court acted on the belief that West Virginia state courts would also recognize the cause of action. In *Wolford v. Children's Home Society of West Virginia*, 17 F.Supp.2d 577 (S.W.Va. 1998), the plaintiffs alleged that the defendant adoption agency had failed to disclose that the child suffered from Fetal Alcohol Syndrome.

9. In *Harris v. Riegenbach, et al.*, 2001 SD 110, 633 N.W.2d 193, an aggrieved father brought suit against a counselor who signed an affidavit asserting the father had been abusing the child sexually and physically. These allegations were later determined to be false. Suit was brought for defamation, negligence and infliction of emotional distress (negligent and/or intentional). Initially, suit was brought against only the counselor as the sole defendant. The counselor brought a *third party* claim against the attorney who prepared the affidavit for her signature. The aggrieved father then amended his complaint to also assert claims against the attorney. The trial court granted a summary judgment in favor of the attorney on *all* claims, generating this appeal. The South Dakota Supreme Court affirmed, holding that the attorney enjoys an "absolute privilege" by virtue of SDCL 20-11-5(2) which excludes the attorney from liability for defamation and the associated claims for negligence and intentional/negligent infliction of emotional distress, for communications made in judicial proceedings. Such communications, in legislative or judicial proceedings, are absolutely privileged, whether made with or without malice. Applying the law set forth in *Janklow v. Keller*, 90 S.D. 322, 241 N.W.2d 364 (1976), the court looked at a series of factors to determine whether or not the communication fell within the scope of communications protected by the privilege. [The *Janklow* factors inquire as to whether "the publication (1) was made in a judicial proceeding; (2) had some connection or logical relation to the action; (3) was made to achieve the objects of the litigation; and (4) involved litigants or other participants authorized by law." ¶ 12, 633 N.W.2d at 195.]

**A SD Tort Plaintiff Finally Comes Forward with a Triable Issue of “Bad Faith”
(In a suit against DSS officials)**

With only two days left until the calendar rolled over to the year 2000, the SD Supreme Court recognized that employees of the “Department of Social Services” (hereafter “DSS”) could be held liable for a breach of a common law duty to protect a victim from harm caused by a foster child with known dangerous propensities. In this case, the foster child was a 14 year old boy with a history of sexual abuse. The victim was the daughter of neighbors to the foster parents of the boy and the abuse (“inappropriate sexual contact”) took place while the boy’s foster mother was babysitting the neighbors’ daughter. Suit was brought against the foster parents and the DSS employees involved with the foster care placement. The trial court granted summary judgment for all the defendants. On appeal, the summary judgment in favor of the foster parents was affirmed because the foster parents had basically been kept in the dark by DSS about the boy’s dangerous propensities and were not advised as to the adverse psychological reports which described the boy as having antisocial behavior, anger control problems, impulse control problems and that he was a “firecracker” or “bomb ready to explode.” In the opinion handed down on 12/29/99, *E.P. v. Riley*, 1999 SD 163, 604 N.W.2d 7, the SD Supreme Court did recognize, however, that a common law cause of action did exist in this scenario against the DSS employees. This opinion is unanimous, being authored by Chief Justice Miller and with each of the other four justices concurring directly in the opinion of the court.

The Court applied the standards found in existing SD case law. These standards recognize generally that the law imposes no duty on citizens to prevent misconduct of a third person, but “one who takes charge of a third person whom he knows or should know to be likely to cause bodily harm to others if not controlled is under a duty to exercise reasonable care to control the third person to prevent him from doing such harm.” (Quoted material taken from paragraph no. 26, 604 N.W.2d at 14, quoting verbatim language from a 1987 SD case also quoting the Restatement 2nd, Torts, Section 319.) This is also described in the opinion as “our new two prong test,” the first prong being the matter of *control* and the second prong being the *foreseeability* of harm. (Paragraph no. 32, 604 N.W.2d at 16.)

A significant aspect of this opinion is the Court’s holding that the “public duty doctrine” is only applicable in issues involving law enforcement or public safety, neither of which exists in this case. The “public duty doctrine” has generated a fair amount of attention by the SD Supreme Court in recent years, its basic rationale being that law enforcement personnel owe only a duty to the public “in general” and not to any particular person or class of persons who may be injured by a criminal, despite the urging of the victim that the law enforcement personnel arguably could have prevented the criminal conduct from occurring.

Another significant aspect of this opinion is that the Court found there was sufficient evidence to establish a triable issue of “bad faith” by the DSS employees. In other recent cases by the SD Supreme Court, the matter of “bad faith” has been shown to be a particularly difficult burden in situations involving other DSS workers and public employees. This may be the first reported opinion which reflects the possible success by a victim in establishing “bad faith.” (The difficulty in prior cases stems from the statutory immunity found in SDCL 26-8A-14 and the SD Supreme Court’s repeated interpretations thereof which indicate that “mere negligence” is not adequate to overcome the good faith immunity granted by the statute.)

"Power is strength and the ability to see yourself through your own eyes and not through the eyes of another. It is being able to place a circle of power at your own feet and not take power from someone else's circle."

Agnes Whistling Elk

Chapter Eighteen

FEDERAL COURTS AND DOMESTIC RELATIONS CASES

A. Diversity of Citizenship

The acceptance of “domestic relations” types of cases in federal court has been slow to catch on. In prior editions of this book, a variety of diversity-of-citizenship cases was presented. These cases demonstrated the differing views of the federal circuits. This topic can now be easily covered with a brief discussion on the recent *Ankenbrandt v. Richards* decision by the U.S. Supreme Court. But before discussing *Ankenbrandt*, it should be pointed out that there have traditionally been two types of “domestic relations” cases that have wound up in federal court on the basis of “diversity of citizenship”: (1) arrearages cases and (2) tort cases. There may be other categories and cases — this is just a simple observation based on a general review of the cases over the last 25 years.

One additional observation is in order! Congress raised the amount-in-controversy requirement for diversity-of-citizenship cases in 1988 from \$10,000 to \$50,000 and then to \$75,000 in 1997. Under 28 U.S.C. § 1332, the amount in controversy must now exceed \$75,000, exclusive of interest and cost.

1. Arrearage Cases

Arrearage claims have been the least controversial in terms of getting accepted into federal court. These are usually scenarios where the ex-wife is trying to collect arrearages that exceed the amount in controversy requirement and there is diversity of citizenship (or alienage jurisdiction) between her and the defendant. See e.g. *Jagiella v. Jagiella*, 647 F.2d 561 (5th Cir. 1981) where the plaintiff’s claim for arrearages was permitted, but defendant’s counterclaim for the tort of alienation of affections was disallowed.

In this rather noncontroversial category of cases, one might also include suits to collect other forms of money due either contractually or by virtue of a divorce decree. E.g. *Crouch v. Crouch*, 566 F.2d 561 (5th Cir. 1978); *Phillips, Nizee, et.al. v. Rosentiel*, 490 F.2d 509 (2nd Cir. 1973) (Attorney fees collected).

A. Diversity of Citizenship

2. Tort Cases

These were not readily accepted by the federal courts. *E.g. Jagiella v. Jagiella, supra.*

In *Ankenbrandt v. Richards*, 112 S.Ct. 2206 (1992), however, a significant decision was handed down by the U.S. Supreme Court. The mother had filed a tort claim against the father and his girlfriend for alleged sexual and physical abuse of the child. The lawsuit was filed in federal district court in Louisiana, asserting jurisdiction on the basis of diversity of citizenship. The trial court dismissed the lawsuit because “the whole subject of the domestic relations of husband and wife, parent and child, belongs to the laws of the States and not to the laws of the United States” — *i.e.* the “domestic relations” exception to diversity jurisdiction was asserted by the trial court as the basis for refusing to hear the case. 112 S.Ct. at 2209. The Court of Appeals for the fifth circuit affirmed. The U.S. Supreme Court reversed and remanded, holding that the “domestic relations” exception to federal jurisdiction extends only to cases involving (1) the issuance of a divorce decree, (2) determinations of alimony or (child) support, and (3) determination of child custody. 112 S.Ct. at 2215. The Supreme Court noted that the status of the domestic relationship of the parties had already been determined by state law and that status “has no bearing on the underlying torts alleged.” 112 S.Ct. at 2216.

In *Stone v. Wall*, 135 F.3d 1438 (11th Cir. 1998), a tort action was brought against the maternal grandmother, aunt and their lawyer for the custodial interference with father’s rights as to his daughter. The trial court dismissed the case, invoking “abstention” as to domestic relations type of cases. The Court of Appeals reversed, noting that the case would not involve an inquiry into a disputed relationship between parent and child, but rather was “just a tort suit for money damages.” The Eleventh Circuit also certified a question to the Supreme Court of Florida as to whether or not such a cause of action exists.

For more information about the growth of domestic cases in federal court, see Roger M. Baron, “The Evolution of Domestic Relations Cases in Our Federal Courts,” 1985 SIU Law Journal 353 (written and published before the *Ankenbrandt* decision).

B. Arising Under Jurisdiction

ELAM v. MONTGOMERY COUNTY

United States District Court, S.D. Ohio, W.D. , 1983.
573 F.Supp. 797.

DECISION AND ENTRY ON PENDING MOTIONS;
PLAINTIFF'S PARTIAL MOTION FOR SUMMARY JUDGMENT OVERRULED;
DEFENDANTS' MOTION FOR SUMMARY JUDGMENT SUSTAINED IN PART
AND OVERRULED IN PART; NEW TRIAL DATE SET

RICE, District Judge.

This matter involves an action by Plaintiff Ralph Elam, under 42 U.S.C. § 1983,⁹ against several Defendants, for an alleged deprivation of his federal constitutional right to retain custody of his minor child. Both Plaintiff (Doc. # 8) and Defendants (Doc. # 10) have moved for summary judgment, pursuant to Fed.R.Civ.P. 56. For the reasons set out below, Plaintiff's motion is overruled, while Defendants' motion is sustained in part and overruled in part.

I. FACTUAL BACKGROUND

An examination of the record reveals the following relevant facts. Plaintiff Elam and Cynthia Wiggins (nee Elam) were married in 1975, and had one child, Amelia (or Amy), born in January of 1976. Sometime in mid-1976, the Elams separated, and Cynthia left for Colorado, taking Amy with her. Since then, Plaintiff has been in only sporadic contact with his wife and daughter. In March of 1981, Cynthia filed a petition for dissolution of the marriage in a Colorado court. By Court order of August 18, 1981, the marriage was dissolved, and custody of Amy was "granted" to Cynthia. However, in the same decree, the Colorado court retained jurisdiction over, *inter alia*, child custody, "until such time as the Court obtains personal jurisdiction over" Plaintiff. This order was apparently promulgated under the Colorado enactment of the Uniform Child Custody Jurisdiction Act (UCCJA). Cynthia also served a child support claim, which she filed in a Colorado court, upon Plaintiff through a Montgomery County (Ohio) court. This action was taken under the Uniform Reciprocal Child Support Act. Plaintiff had been served with the latter papers, and had heard, through the "grapevine," of the formal dissolution of his marriage.

In January of 1982, Plaintiff was told by his ex-wife's sister that Amy was in need of a home (the circumstances of Cynthia having "left" Amy, at least temporarily, are not clear from the record). Plaintiff arranged for Amy to be sent to Ohio, where she stayed with him for a number of weeks. On March 19, 1982,

⁹ Section 1983 provides, in pertinent part, that "Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress."

42 U.S.C. § 1983 (1976 & Supp. IV 1980).

Cynthia returned to Ohio, and requested the aid of Defendant Cynthia Fosberg, a deputy in the Montgomery County Sheriff's Department, in order to locate her daughter. Fosberg obtained the aid of fellow deputies, Defendants P.G. Snyder and Raymond E. Girard. They went by car, in the company of Plaintiff's ex-wife, to Plaintiff's residence in Dayton, at about 11:30 at night.

Here the parties' versions of the events which gave rise to this lawsuit diverge. Defendant Snyder knocked on the front door, and went around to the back when Plaintiff, roused from his sleep, told him that the front door would not open. Plaintiff permitted the deputies to enter his kitchen through the back, but did not let his ex-wife in the house. The Defendant deputies argue that they merely acted as "mediators" and "peace officers" to aid in "resolving" a family dispute. They acknowledge that they were not purporting to enforce any court order, of Ohio or of Colorado, under the UCCJA,¹⁰ although they did have the aforementioned Colorado decree in their possession and showed it to Plaintiff. Girard Deposition at 25; Fosberg deposition at 16. Defendants state that they told Plaintiff they would not forcibly take the child, although they admit that Plaintiff was told it might be "appropriate" for him to "acknowledge" the Colorado court order. Snyder deposition at 9; Girard deposition at 11, 17, 25; Fosberg deposition at 15. Moreover, Plaintiff did not tell them that Amy could not leave. Girard deposition at 12, Fosberg deposition at 13. After a discussion of approximately 20 minutes, Amy, now awake, ran out of the house to her mother. Defendant Fosberg aided in gathering Amy's clothes, and Defendants soon left the residence. Throughout the whole episode, Defendants emphasize the lack of coercion involved, their "bystander" status, and that they would have left had Plaintiff asked them to do so. Snyder deposition at 8, 13. They point out that no weapons (such as "billy clubs") were involved, although they were carrying large flashlights. Snyder deposition at 2-3; Girard deposition at 8, 18. Plaintiff's version of these events differs dramatically from that given by Defendants. After he let them in the door, Plaintiff claims that the deputies, with billy clubs drawn, told him that they had come "to get Amy." Plaintiff's deposition at 76, 79, 80-81, 94-95, 108. He also states that they did not tell him Amy would not be forcibly taken, *id.* at 79, 88-89, and that he was told to "let her go" when Amy ran out of the house. *Id.* at 83-84, 90-91, 100. Plaintiff emphasizes the coercive nature of the whole affair: he alleges his fright at being in the presence of uniformed officers late at night, *id.* at 94, 106-07, and that despite being shown certain papers, he agreed to nothing, *id.* at 85-88, and only permitted Amy to leave for fear of his being beaten. He acknowledges that the conversations were calm, and that he was not touched or physically threatened by the deputies. *Id.* at 82, 91, 99, 106. He also states that he has not seen or heard of his daughter since the episode. *See also*, Plaintiff's affidavit, attached to Doc. # 8.

Shortly after these events, Plaintiff filed suit in this Court, under 28 U.S.C. § 1343 and 42 U.S.C. § 1983. Named as Defendants were the aforelisted deputies, as well as Tom Wilson, Montgomery County Sheriff, the Sheriff's Office, the Montgomery County Board of Commissioners, and Montgomery County. After reiterating his version of the events on March 19, 1982, Plaintiff set out three claims which, he alleged, established violations of his rights under the Fourteenth Amendment to the United States Constitution, and § 1983. The claims were that Defendants, acting under color of state law, (1) improperly deprived him of his custody to his child without a valid Ohio court order, (2) "willfully and recklessly caused an invalid foreign Court Order to be enforced," and (3) engaged in "reckless, excessive, and oppressive conduct." Complaint, pp 18-28. Relief in the form of monetary damages and attorneys fees was prayed for.

¹⁰ These statements seem to conflict with Defendants' arguments, in their memorandum, that they were giving effect to the Colorado court order. Doc. # 10, pp. 17, 19.

II. DEFENDANTS' MOTION IS OVERRULED IN PART AND SUSTAINED IN PART

* * *

A. Domestic Relation/Child Custody Exception to Federal Jurisdiction

At the outset, Defendants argue that this case is "in essence a custody dispute," since it requires this Court "to review adjudicated facts relating to substantive custodial rights" Defendants' Motion for Summary Judgment, Doc. # 10, pp. 12, 14. As such, they contend, this case falls under the rule that "[f]ederal courts traditionally decline to accept jurisdiction in parent- child, domestic relations or custody disputes and in adoption matters which are subject to state law and state court disposition." *Zak v. Pilla*, 698 F.2d 800, 801 (6th Cir.1982) (per curiam).

This Court cannot agree. In this Circuit, the exception has been applied in such diverse situations as a § 1983 action against a probate judge, *Tonti v. Petropoulos*, 656 F.2d 212 (6th Cir.1981), a § 1983 action against an adoption agency, *Zak v. Pilla*, *supra*, a diversity suit for unfulfilled obligations under a divorce decree, *Firestone v. Cleveland Trust Co.*, 654 F.2d 1212 (6th Cir.1981), a § 1983 and habeas corpus action to obtain custody of children, *Huynh Thi Anh v. Levi*, 586 F.2d 625, 632 (6th Cir.1978), and a § 1983 and diversity action concerning an intra-family dispute, *Denman v. Leedy*, 479 F.2d 1097 (6th Cir.1973) (per curiam). *See generally*, 13 C. Wright, A. Miller & E. Cooper, Federal Practice and Procedure §§ 3609-3610 (1975). However, the exception does not apply to suits which have only domestic relations overtones, *Firestone*, *supra*, 654 F.2d at 1216, and are, in essence, suits for tort or contract. *Lloyd v. Loeffler*, 694 F.2d 489, 492-94 (7th Cir.1982); *Bennett v. Bennett*, 682 F.2d 1039, 1042 (D.C.Cir.1982); 13 C. Wright, A. Miller & E. Cooper, *supra*, § 3609 at 667.

Plaintiff's § 1983 lawsuit, alleging that the Defendants committed constitutional torts by wrongfully depriving him of the custody of his minor child, clearly is not a "custody dispute." He is not asking this Court to return custody of his child to him, or to adjudicate whether he or his ex-wife was or is a more fit parent for Amy. Instead, he requests this Court to determine if Defendants committed certain torts, and to award a damage remedy to compensate him as a result thereof. While this case has "overtones" of a custody dispute, it sufficiently partakes of a typical § 1983 lawsuit, to determine constitutional violations, so as to make the "domestic relations" exception to federal court jurisdiction inapplicable. Accordingly, Defendants' first branch in support of its motion is overruled.

B. Requisites of a Section 1983 Lawsuit

Assuming proper subject matter jurisdiction in this Court, Defendants advance several interrelated arguments that Plaintiff has not met the requisites of a § 1983 lawsuit. As this Court reads their arguments, they contend that no constitutional rights of Plaintiff are invaded, that other available remedies indicate that any such deprivation was accomplished by "due process of law," that any such deprivation was not accomplished under color of law, and that, in any event, they are entitled to "good faith" immunity. For the reasons set forth below, the Court does not find these arguments to be well taken with respect to portions of Claims 1 and 2 of the Complaint; however, the Court does find that, in light of these arguments, the motion must be sustained with respect to parts of Claim 1 and Claim 2 and all of Claim 3.

"Two essential elements must be pled and proven by a plaintiff to recover under 1983." *Dunn v. State of Tennessee*, 697 F.2d 121, 125 (6th Cir.1982), *cert. denied sub nom. Wyllie v. Dunn*, --- U.S. ---, 103 S.Ct. 1778, 76 L.Ed.2d 349 (U.S.1983). First, there must be a deprivation of plaintiff's "... rights, privileges, or immunities secured by the Constitution and laws ..." of the United States. Second, the plaintiff must allege that the defendants deprived him of this constitutional right "under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory." *Id.*; *Parratt v. Taylor*, 451 U.S. 527, 535, 101 S.Ct. 1908, 1912, 68 L.Ed.2d 420 (1981); *Watson v. McGee*, 527 F.Supp. 234, 238 (S.D.Ohio 1981).

It is settled "that freedom of personal choice in matters of family life is a fundamental liberty interest protected by the Fourteenth Amendment." *Santosky v. Kramer*, 455 U.S. 745, 753, 102 S.Ct. 1388, 1393, 71 L.Ed.2d 599 (1982) (citing cases). This right includes the interest of a parent in the "companionship, care, custody and management of his or her children." *Stanley v. Illinois*, 405 U.S. 645, 651, 92 S.Ct. 1208, 1212, 31 L.Ed.2d 551 (1972). Accordingly, numerous courts have entertained § 1983 actions by parents, alleging that the state removed children from their custody without due process of law. *See, e.g., Ellis v. Hamilton*, 669 F.2d 510, 512 (7th Cir.), *cert. denied*, --- U.S. ---, 103 S.Ct. 488, 74 L.Ed.2d 631 (1982); *Duchesne v. Sugarman*, 566 F.2d 817, 824-25 (2d Cir.1977).

Defendants attempt to distinguish these cases by arguing that the alleged deprivation occurred in accordance with the Colorado custody decree and the UCCJA. Doc. # 10, pp. 17-19. In contrast, Plaintiff argues, *inter alia*, that the Ohio statutes enacting the UCCJA, Ohio Rev.Code Ann. § 3109.21-.37, were not complied with. Defendants' arguments are unconvincing. Plaintiff's liberty interest is not dependent for its existence on the procedure established by the State of Ohio. *Logan v. Zimmerman Brush Co.*, 455 U.S. 422, 432, 102 S.Ct. 1148, 1156, 71 L.Ed.2d 265 (1982). More importantly, Defendants acknowledge that they were not enforcing the Colorado decree, or acting pursuant to any provision of the UCCJA. Thus, Plaintiff clearly had a liberty interest in the custody of his daughter.

* * *

Finally, the Court reaches Defendants' most persuasive argument. The deputies assert that they were merely exercising their authority as "peace officers" under Ohio law. Ohio Rev.Code Ann. §§ 109.71, 311.08, and were essentially "mediators," Doc. # 10, p. 19, in a family dispute. Cast in terms of a § 1983 lawsuit, Defendants appear to argue that they took no part in any alleged deprivation or, in other words, that no "state action" or acts performed "under color of law" occurred. This argument also overlaps, in large part, with their contention that they performed no "coercive" acts, meaning that they could not have "deprived" Plaintiff of any constitutional rights.

* * *

As summarized above, Plaintiff's versions of his encounter with the deputies (what with drawn weapons and barked commands) greatly differs from Defendants' version.¹¹ The finder of fact at trial must determine which version, in whole or in part, is the correct one. Once such findings of fact are made, the Court will be able to determine if the Defendant deputies "deprived" Plaintiff of his liberty interest in a coercive manner and, similarly, whether there was "state action" in the alleged deprivation of said interest.

¹¹ The Plaintiff's alleged subjective "fright" also appears relevant, taken together with other facts, to the nature or existence of a coercive atmosphere. *Schneekloth v. Bustamonte*, *supra*, 412 U.S. at 226, 93 S.Ct. at 2047; 2 W. LaFave, *supra*, § 8.2(e). On the other hand, such subjective factors appear to be irrelevant to the existence of excessive force. *See, text, infra*.

C. Application to Plaintiff's Complaint

The above analysis requires that the Court sustain in part, and overrule in part, Defendants' motions for summary judgment. Perhaps because it was filed without a full appraisal of the factual circumstances, Plaintiff's complaint, with the benefit of hindsight, is not a model of clarity. The first and second claims therein (alleging, in part, deprivation of a right without valid Ohio or foreign court orders, respectively) appear to be, in part, beside the point; as noted above, Defendants were not purporting to enforce any court order. (On the other hand, Plaintiff is probably correct in intimating that if Defendants were enforcing a valid court order under the UCCJA, there would be no due process violation. *Cf. Note, The Due Process Dilemma of the Uniform Child Custody Jurisdiction Act*, 6 Ohio North. L.Rev. 586 (1979)). To the extent Plaintiff is alleging that he was "improperly" and "coercively" deprived of a constitutional right (a combination of language in Claims 1 and 2), his § 1983 action can go forward, and Defendants' motion is overruled. However, other aspects of said motions are well taken.

First, Plaintiff has not established a link, through a "policy," "custom," or direct participation, between the deputies and the Defendants County and County Board of Commissioners. With no such facts alleged in the complaint or developed in the record, those Defendants must be, and are, dismissed. *Monell v. New York City Department of Social Services*, 436 U.S. 658, 98 S.Ct. 2018, 56 L.Ed.2d 611 (1978); *Hayes v. Jefferson County*, 668 F.2d 869, 874 (6th Cir.), *cert. denied*, --- U.S. ---, 103 S.Ct. 75, 74 L.Ed.2d 73 (1982). Likewise, the Defendant "Sheriff's Office" is a subunit of Montgomery County, and appears not to be an entity, in and of itself, subject to suit. Accordingly, that Defendant is dismissed, as well. However, Defendant Wilson will *not* be dismissed. Plaintiff alleges that Sheriff Wilson was charged with "supervising" the deputies (Complaint, p 5). From the balance of the complaint, Plaintiff appears to argue that no valid supervision or "training" took place. *See also*, Plaintiff's Summary Judgment Motion, Doc. # 8, p. 8. A "complete lack of training" by a supervisor can be sufficient to attach liability under § 1983 for a subordinate's unlawful acts. *See, Hayes v. Jefferson County, supra; Melson v. Kroger Co.*, 550 F.Supp. 1100, 1103-04 (S.D.Ohio 1982). Here, the deputies stated in their depositions that they had training in "domestic relations" matters in general, but no specific training to enforce court decrees under the UCCJA. Snyder deposition at 13; Girard deposition at 24; Fosberg deposition at 17. Thus, dismissal of Defendant Wilson is not appropriate.

Second, Plaintiff appears to allege, in Claim 3 of his complaint, that Defendants used "excessive" force in depriving him of his rights. While the *coercive* nature of the deputies' actions is a matter of dispute, they did *not* use "excessive force," at least as that term has developed in the caselaw. Plaintiffs in § 1983 actions can bring suit predicated on "[a]llegations of assault and battery and use of excessive force ... when such actions were severe." *Tefft v. Seward*, 689 F.2d 637, 639 n. 1 (6th Cir.1982); *Melson v. Kroger Co., supra*, 550 F.Supp. at 1105. However, whether such force is "excessive" appears to be based on an objective or "reasonable" examination of the facts. *Hamilton v. Chaffin*, 506 F.2d 904, 909, 912 (5th Cir.1975); Annot., 60 A.L.R.Fed. 204, 212 (1982). Thus, Plaintiff's alleged *subjective* fear of being physically threatened is, taken alone, irrelevant. As summarized above, Plaintiff acknowledges that the deputies took no actions which physically threatened his life or safety. Accordingly, the Court holds that Defendants are entitled to judgment on any sort of "excessive force" cause of action Plaintiff may have wished to pursue.

To summarize, Defendants' summary judgment motion is sustained in part, to the extent that Plaintiff seeks to recover for the deputies' alleged use of excessive force, for their improperly enforcing certain court orders, or to recover from Montgomery County, the Board of Commissioners, and the Sheriff's Office. The motion is overruled in all other respects. This case remains viable as a § 1983 action against the three named

Sheriff's deputies and Sheriff Wilson.

Finally, it should be noted that Defendants argue that, assuming the deputies committed a constitutional violation, they are entitled to "good-faith" immunity. To reach this issue would be premature. As the Supreme Court has recently stated, *Harlow v. Fitzgerald*, 457 U.S. 800, 102 S.Ct. 2727, 73 L.Ed.2d 396 (1982), such immunity is now governed by the "objective reasonableness of an official's conduct, as measured by reference to clearly established law." *Id.* at 2739 (footnote omitted). *See generally, Truss v. Collier*, 574 F.Supp. 1249, 1261-62 (S.D. Ohio 1983). Until the events of March 19, 1982, are established by the finder of fact at trial, an "objective" appraisal of the deputies' conduct as a matter of law, is difficult, if not impossible.

III. PLAINTIFF'S MOTION IS OVERRULED

Plaintiff has moved for summary judgment on the first two claims of his complaint. To sustain such motion would be improper. As previously noted, Plaintiff alleges in those claims that the deputies improperly enforced an "invalid" foreign and/or Ohio court order. However, the deputies have stated that they were not purporting to "enforce" any court order. Moreover, the alleged coerciveness of their actions is a matter of profound factual dispute. Since such dispute cannot be resolved by way of summary judgment, Plaintiff's motion must be, and hereby is, overruled.

IV. CONCLUSION

The facts of this case demonstrate the wisdom of the reluctance of federal courts to intervene in "domestic relations" or "custody" disputes. Many, if not most, commentators believe that the use of federal civil rights actions in such disputes is unnecessary and counterproductive, and that these disputes should be left to resolution by informal means, or by state courts. *Santosky v. Kramer, supra*, 455 U.S. at 770, 102 S.Ct. at 1403 (Rehnquist, J., dissenting); Hafen, *The Constitutional Status of Marriage, Kinship, and Sexual Privacy--Balancing the Individual and Social Interests*, 81 Mich.L.Rev. 463, 500 (1983). *Cf. Developments in the Law--the Constitution and the Family*, 93 Harv.L.Rev. 1156 (1980).

Here, Defendants also invoke these principles, and ask this Court to refer Plaintiff to other remedies, principally, the UCCJA. However, it was the Defendant deputies themselves who circumvented such procedures, by purporting to "mediate" a "family dispute" at 11:30 at night. Had the deputies waited till the next day (they offer no reason for the rush to resolve the "dispute"), or otherwise complied with and/or enforced the UCCJA, they probably would not be in this Court. Whether the actions which they did take were improper can only be resolved at trial.

Trial of this case, previously set for April 18, 1983, is reset for the week of July 18, 1983.

NOTES and QUESTIONS

1. In *Elam v. Montgomery County* who were named as defendants? After the court's ruling, who remained in the suit as defendants?
2. One can easily sympathize with the law enforcement officers who were trying to help the mother in *Elam* regain custody, but was it appropriate for them to help at all? If what took place was improper, then how should the mother have proceeded?
3. How much money, in attorneys fees and court costs, did it cost the mother to regain possession of the child?
4. Reflecting back on Question #1 as to "whom was sued," an equally important question is "whom wasn't sued?" Why wasn't the mother named as a defendant?
5. For another case involving a situation similar to *Elam*, see *Hooks v. Hooks*, 771 F.2d 935 (6th Cir. 1985), where frivolous criminal charges were filed against the custodial mother for the purpose of causing her arrest and, during her detention, social workers took the children from her and delivered them to her ex-husband. The assertion of a 1983 claim was permitted against not only law enforcement officers and social workers, but also the ex-husband even though he not an employee of a state or county. In order to find that the ex-husband was "acting under color of state law," the court found that the ex-husband had acted in conspiracy with the law enforcement officers, and by virtue of such conspiracy, he would be deemed to have "acted under color of state law."
6. What about a 5th amendment liberty interest? For a case involving the deprivation of a liberty interest protected by the 5th amendment from deprivation by the Federal Government, see *Ruffalo v. Civiletti*, 702 F.2d 710 (8th Cir. 1983). In this case, the mother's liberty interest under the 5th amendment was deprived when the FBI relocated the father and daughter under the federal Witness Protection Program used to protect witnesses against organized crime activities.

NOTES

1. The 8th Circuit Federal Court of Appeals recognized that a non-custodial parent – the father – possessed a 14th Amendment "liberty interest" in connection with the right of visitation with his child in *Swipies v. Kofka*, 419 F.3d 709 (2005).
2. ***Town of Castle Rock v. Gonzales* – U.S. Supreme Court Rejects Civil Rights Claim Against City Based on Police Officers' Refusal to Enforce TRO.** In *Town of Castle Rock v. Gonzales*, No. 04-278, June 27, 2005, 545 U.S. 748, 125 S.Ct. 2796, 162 L.Ed.2d 658, 73 USLW 4611, the U.S. Supreme Court held that the Colorado state law which commands law enforcement officials to enforce restraining orders in domestic abuse situations did not constitute an "entitlement" warranting protection as a "property interest" under the Due Process clause. In this case, husband abducted the parties' three daughters and wife sought repeated enforcement of the terms of the Colorado state court TRO which protected her and her children from her husband. Although the police initially visited wife at her home shortly after 7:30 P.M. the day of the abduction, they kept putting her off telling her to wait until 10:00 P.M. and then to wait until midnight.

In the meantime, wife knew of her husband's location (at one point in time) because he had telephoned her. The police further did not show up in response to a phone call made at 12:10 A.M. and then did not promptly respond when wife visited the police station at 12:50 A.M. The officer who took 12:50 P.M. report went to dinner instead of making any effort to locate the children. At 3:20 A.M. the husband went to the police station with bodies of the three daughters whom he had murdered. The husband was killed by the police after he opened fire upon them. The Tenth Circuit Court of Appeals (en banc) held that wife had a valid 1983 claim against the City of Castle Rock because she had a protected property interest in the enforcement of the TRO. The Tenth Circuit found that the wife's claim was one of procedural due process, not substantive due process – a basis arguably left open by the previous U.S. Supreme Court decision in *DeShaney v. Winnebago County Department of Social Services*, 489 U.S. 189 (1989). (The *DeShaney* opinion held that state law child protection laws did not generate a substantive due process protection.) The U.S. Supreme Court reversed the Tenth Circuit holding, *inter alia*, despite the Colorado state statute's language directing the police that they "shall use every reasonable means to enforce" the TRO, the police were still vested with discretion as to how to proceed, especially when the perpetrator was not actually present and his whereabouts was uncertain.

KINDLE v. CITY

Supreme Court of South Dakota, 1993.
509 N.W.2d 278.

MILLER, Chief Justice.

Hand County, the City of Miller and agents and officers thereof appeal a trial court's order granting Martha Kindle's motion to extend the time for filing notice of a claim against a public entity or its employees. We reverse.

On May 24, 1991, Martha Kindle (hereinafter Kindle) was abducted from her job at a Miller, South Dakota, day-care center by her estranged husband, Joseph Kindle.¹²

Kindle sought to file an action against Hand County, the City of Miller and their agents and officers (hereinafter Defendants). Kindle asserted that city and county law enforcement officials had earlier promised her protection after she reported she had been raped, subjected to physical violence and threatened by her estranged husband. She claimed said officials still took no action to safeguard her before she was kidnapped and assaulted.

Under SDCL 3-21-2, in order to maintain a lawsuit against a public entity for an injury caused by that entity or its employee, a party is required to serve notice upon the entity within 180 days of the injury. Defendants did not receive notice by the time the statute of limitations expired on November 20, 1991. On April 13, 1992, pursuant to SDCL 3-21-4, Kindle moved the circuit court for an extension of time to serve notice. She claimed she had been mentally incapacitated by extreme fear, anxiety and post-traumatic stress

¹² Joseph Kindle beat Martha, stabbed her with a knife and threatened to kill her. He was arrested, charged with various crimes and eventually pled guilty to kidnapping.

syndrome during the time the statute of limitations was running.

The trial court held a hearing where both sides presented expert testimony as to mental incapacity. The court concluded that: "Mental incapacity, for the purposes of SDCL 3-21-4 should be defined more narrowly than a condition where a person cannot generally make sound decisions concerning the general aspects of their life." It found Kindle was mentally incapacitated under the statute "to make any decisions concerning any claims she may have had against law enforcement officers connected with the assaults upon her" and ordered she be permitted to file notice on Defendants. This appeal followed.

* * *

The trial court found that Kindle was able to make decisions concerning the everyday functions of her life but had a tendency to avoid situations involving her abduction. These findings are not clearly erroneous based on the evidence presented. However, the evidence and findings are insufficient to support the trial court's legal conclusion that Kindle was "mentally incapacitated" under the test we have adopted.

Mental incapacity under SDCL 3-21-4 means the failure to understand the nature and effect of one's actions. The trial court found Kindle possessed the overall ability to function in society. Kindle exercised her legal rights to the degree she consulted with her attorney, obtained a divorce and cooperated in the criminal prosecution of Joseph Kindle. Additionally, she was represented by her divorce attorney during at least part of the time the statute of limitations was running. These findings are insufficient to support the legal conclusion that she was "mentally incapacitated" under SDCL 3-21-4.

The order of the trial court is reversed.

WUEST, HENDERSON, SABERS and AMUNDSON, JJ., concur.

Woman wins \$100,000 in kidnapping lawsuit

By JOE KAFKA
Associated Press

PIERRE — A woman who was beaten and stabbed in a 1991 kidnaping from a Miller day-care center was awarded \$100,000 damages Thursday by a federal court jury.

Martha Kindle, who now lives in Minnesota, sued the city of Miller and police officers Don Rombough and Ron Schwarz for negligence, claiming violation of her constitutional rights of due process and equal protection.

The woman's former husband, Joseph, 52, was sentenced to 90 years in prison for kidnapping her. He is eligible for parole in seven years.

Kindle was going through a divorce when her husband abducted her at knifepoint from the day-care center where she worked. He broke her nose and cheekbone. She refused to get into his car after seeing a gun on the seat, and he stabbed her in the buttocks and ribs.

When police and a Highway Patrol officer arrived, they allowed him to put his wife in the back seat of the car and drive to the hospital. But he drove off, telling his wife he was going to let her bleed to death.

Kindle jumped out, and her estranged husband was arrested after a chase.

Kindle claims her husband raped her at gunpoint three weeks before the kidnapping, but he was not arrested.

She alleged in the federal lawsuit that officer Schwartz, who is a cousin of her former husband, incited him to attack her. Schwartz continues on the Miller police force; Rombough has retired.

Kindle, 36, said the city was negligent in allowing its police officers to use discretion in domestic-abuse cases, adding that the city failed to provide domestic-abuse training to police.

She also said she called police just a half hour before the kidnaping, pleading with them to protect her until she got off work.

Kindle was unsuccessful last year in a state court attempt to sue the city of Miller and Hand County. The South Dakota Supreme Court ruled that she filed that lawsuit too late.

THOMPSON v. THOMPSON

Supreme Court of the United States , 1988.
484 U.S. 174, 108 S.Ct. 513.

[The father claimed the right to custody by virtue of a California decree. The mother claimed a superior right to custody by virtue of a Louisiana court order. From the reported facts, it appears as though California was clearly the "home state" when the divorce action was filed in California, that the jurisdiction of the California court was invoked long before the Louisiana court, and that the court in California had *exclusive* continuing jurisdiction under the PKPA.]

* * * Thus arose the current impasse.

In August 1983, petitioner brought this action in the District Court for the Central District of California. Petitioner requested an order declaring the Louisiana decree invalid and the California decree valid, and enjoining the enforcement of the Louisiana decree. Petitioner did not attempt to enforce the California decree in a Louisiana state court before he filed suit in federal court. The District Court granted respondent's motion to dismiss the complaint for lack of subject-matter and personal jurisdiction. Civ. Action No. 83- 5221 (Apr. 10, 1984). The Court of Appeals for the Ninth Circuit affirmed. Although it disagreed with the District Court's jurisdictional analyses, the Court of Appeals affirmed the dismissal of the complaint on the ground that petitioner had failed to state a claim upon which relief could be granted. 798 F.2d 1547 (1986). Canvassing the background, language, and legislative history of the PKPA, the Court of Appeals held that the Act does not create a private right of action in federal court to determine the validity of two conflicting custody decrees. *Id.*, at 1552-1559. We granted certiorari, 479 U.S. 1063, 107 S.Ct. 946, 93 L.Ed.2d 996 (1987), and we now affirm.

* * *

Finally, the legislative history of the PKPA provides unusually clear indication that Congress did not intend the federal courts to play the enforcement role that petitioner urges.

* * *

In sum, the context, language, and history of the PKPA together make out a conclusive case against inferring a cause of action in federal court to determine which of two conflicting state custody decrees is valid. Against this impressive evidence, petitioner relies primarily on the argument that failure to infer a cause of action would render the PKPA nugatory. We note, as a preliminary response, that ultimate review remains available in this Court for truly intractable jurisdictional deadlocks. In addition, the unspoken presumption in petitioner's argument is that the States are either unable or unwilling to enforce the provisions of the Act. This is a presumption we are not prepared, and more importantly, Congress was not prepared, to indulge. State courts faithfully administer the Full Faith and Credit Clause every day; now that Congress has extended full faith and credit requirements to child custody orders, we can think of no reason why the courts' administration of federal law in custody disputes will be any less vigilant. Should state courts prove as obstinate as petitioner predicts, Congress may choose to revisit the issue. But any more radical approach to the problem will have to await further legislative action; we "will not engraft a remedy on a statute, no matter how salutary, that Congress did not intend to provide." *California v. Sierra Club*, 451 U.S. 287, 297, 101 S.Ct. 1775, 1781, 68 L.Ed.2d 101 (1981). The judgment of the Court of Appeals is affirmed.

It is so ordered.

"Doing what is right isn't the problem; it's knowing what is right."

Lyndon B. Johnson

Chapter Nineteen

MISCELLANEOUS

A. Procedural Matters

1. Soldiers and Sailors

PALO v. PALO

Supreme Court of South Dakota , 1980.
299 N.W.2d 577.

MORGAN, Justice.

The trial court granted appellee a divorce from appellant and divided the parties' property. Appellant appeals from the trial court's denial of his motion for a continuance of the trial date under the Soldiers' and Sailors' Civil Relief Act (Act). We affirm.

Both parties were, at all times material herein, members of the military service. Appellee commenced an action for divorce while both parties were in Sioux Falls, South Dakota. Appellant answered, but before the sixty-day cooling off period had lapsed, both parties were transferred to Germany.

On July 20, 1979, appellant's lawyer received a copy of an order setting the trial date for August 14, 1979. The following Monday, July 23, 1979, appellant's lawyer sent appellee's lawyer a letter saying that appellant could take advantage of the Act. Appellant's lawyer waited, however, until July 27, 1979, to write to appellant to advise him of the trial date.

Appellee received notice of the trial date and she immediately made arrangements to travel to the United States for the trial. She had no leave time accrued and no money for the flight, so she made arrangements to borrow from future leave time and from the military bank. By August 2, 1979, appellant had received notice of the exact trial date. He responded by letter to his attorney, setting out his reasons for wanting to take advantage of the Act. His reasons were as follows:

- 1) He lacked the money necessary to fly to Sioux Falls from Germany.
- 2) He wanted "to get back with her so a settlement [could] be agreed upon [.]"
- 3) He had no accrued leave time and did not want to borrow from future leave time.

Just prior to commencement of the trial on August 14, 1979, appellant's lawyer moved that appellant be allowed to take advantage of the Act. Appellant's letter stating why he would not be present at the trial was incorporated in an affidavit by his counsel in support of the motion. After hearing counsels' arguments on the matter, and after hearing testimony by appellee as to how she was able to be present although also stationed in Germany without sufficient money or leave time available to be present at the trial, the trial court determined that appellant should not be allowed to take advantage of the Act since it was not appellant's inability to be present at the trial that precluded him from being present, but rather that it was his unwillingness to be present. The trial court then proceeded with the trial.

At the close of the trial, the trial court granted appellee a divorce from appellant and divided the property. Appellant appeals from the trial court's determination that he could not take advantage of the Act.

The Act, 50 U.S.C.A. App. § 521 (1968), reads:

At any stage thereof any action or proceeding in any court in which a person in military service is involved, either as plaintiff or defendant, during the period of such service or within sixty days thereafter may, in the discretion of the court in which it is pending, on its own motion, and shall, on application to it by such person or some person on his behalf, be stayed as provided in this Act ... unless, in the opinion of the court, the ability of plaintiff to prosecute the action or the defendant to conduct his defense is not materially affected by reason of his military service.

In *Boone v. Lightner*, 319 U.S. 561, 63 S.Ct. 1223, 87 L.Ed. 1587 (1943), the United States Supreme Court construed the Act. The Court made the following conclusions:

- 1) a) The Act itself cannot be construed so as to require a continuance on a mere showing that the defendant is in the military service.
b) The trial court is vested with judicial discretion by the clause "unless, in the opinion of the court, the ability of plaintiff to prosecute the action or the defendant to conduct his defenses is not materially affected by reason of his military service."
- 2) The Act takes no express provision as to who must carry the burden of showing that a party will or will not be prejudiced, and the Court refrained from setting a rigid burden of proof.

In *State v. Wilson*, 234 Minn. 570, 572, 48 N.W.2d 513, 514-515 (1951), the Supreme Court of Minnesota stated:

While the act does not arbitrarily stay all trials, it should be liberally construed so as to protect the civil rights of those serving in our armed forces during the tenure of their service.... [The trial court's] discretion, however, is one that should be exercised cautiously, with the object in mind of giving effect to the obvious purpose of the act, which is to protect the civil rights of a person who, on account of his service in the armed forces, cannot be present at a trial or proceeding.

In *Norris v. Superior Court of Mohave County*, 14 Ariz.App. 183, 185, 481 P.2d 553, 555 (1971), the court said:

This case, together with numerous other decisions, points up that the Act provides that the court exercise its (sic) discretion in granting a continuance. It is not mandatory that such continuance be granted simply because a plaintiff or defendant is in the military service. *Tabor v. Miller*, 389 F.2d 645 (3rd Cir. 1968), cert. denied, *Stearns v. Tabor*, 319 U.S. 915, 88 S.Ct. 1810, 20 L.Ed.2d 654 (1968), aff'g 269 F.Supp. 647 (E.D.Pa.1967), sets forth that the movant, in order to invoke the protection of the Act, must make a showing of his actual unavailability and that his rights would be adversely affected because of his absence from the trial. The affidavit of (petitioner) does not indicate that he would actually be unavailable for trial, nor does it indicate that he has requested leave or that it is not possible for him to obtain leave, nor does it state that his rights would be impaired if the matter were tried in his absence.

A similar situation is presented in this case. Here appellant not only failed to show that he was unable to obtain leave, but he also failed to show that he had even tried to obtain leave. Appellant did not show his actual unavailability or that his rights would be adversely affected by his absence at the trial.

Accordingly, we affirm.

All the Justices concur.

COMMENTS

Other courts have taken differing views as to *which* party has the burden of establishing that a party will or will not be prejudiced. Some courts take the position that a mere showing of military service shifts the burden to the opponent to show that the military litigant's ability to represent himself is not adversely affected. *See generally*, Baron, *The Staying Power of the Soldiers' and Sailors' Civil Relief Act*, 32 Santa Clara Law Review 137, 143-49 (1992).

The Soldier's and Sailors' Civil Relief Act applies in all civil proceedings. Its presence seems to be especially made known, however, in domestic relations cases. *Id.* at 150-59. Generally speaking, courts have been less generous in granting "stays" in proceedings which deal *only* with "child support" or "contempt" proceedings. Issues involving determinations of "custody" or "paternity" have received more favorable treatment regarding the issuance of "stays" which would afford the military litigant his (her) day in court. *Id.* at 154-58.

Note that the present "stay" is discretionary with the court. Interestingly enough, the historical background to the "stay" reveals that during the Civil War, most states provided "automatic stays" for the militia. Experience during the Civil War demonstrated that the "automatic" stays were unnecessary and that they were actually detrimental in that, because of the "automatic" stays, the soldiers were unable to secure credit for themselves or their families. *Id.* at 141.

INTERSTATE COMPACT FOR MILITARY CHILDREN ADOPTED IN SOUTH DAKOTA IN 2010

SB 88 adopts the Interstate Compact on Educational Opportunity for Military Children. The stated purposes of this Act are to “remove barriers to educational success imposed on children of military families because of frequent moves and deployment of their parents by:

- A. Facilitating the timely enrollment of children of military families and ensuring that they are not placed at a disadvantage due to difficulty in the transfer of educational records from the previous school district or variations in entrance or age requirements.
- B. Facilitating the student placement process through which children of military families are not disadvantaged by variations in attendance requirements, scheduling, sequencing, grading, course content or assessment.
- C. Facilitating the qualification and eligibility for enrollment, educational programs, and participation in extracurricular academic, athletic and social activities.
- D. Facilitating the on-time graduation of children of military families.
- E. Providing for the promulgation and enforcement of administrative rules implementing the provisions of this compact.
- F. Providing for the uniform collection and sharing of information between and among member states, schools and military families under this compact.
- G. Promoting coordination between this compact and other compacts affecting military children.
- H. Promoting flexibility and cooperation between the educational system, parents and the student in order to achieve educational success for the student.

A. Procedural Matters

2. Use of Affidavits

Affidavits are generally considered to be an unsatisfactory form of evidence, however, in *Horton v. Horton*, 503 N.W.2d 248 (S.D. 1993), the trial court considered a one-page affidavit by the husband’s physician relating to husband’s deteriorating medical condition. The affidavit had not been formally offered into evidence. It was found attached to the husband’s motion for reduction of alimony and the trial court considered it as a result of husband’s reference to it in his testimony. The trial court granted a reduction in alimony from \$1,200 per month to \$600 per month, as well as a reduction in the amount of life insurance benefits required to be maintained by the husband for his ex-wife. On appeal, the South Dakota Supreme Court affirmed because the matters contained in the physician’s affidavit did not involve *contested facts*. The Court observed that the trial court’s findings on the husband’s medical condition were derived from the live testimony of the husband himself as to his medical condition.

A. Procedural Matters

3. Findings of Fact and Conclusions of Law

Husband's child support payments were raised by the trial court from \$116.60 per month to \$490 per month. He appealed, arguing that the circuit court committed error by failing to make findings of fact and conclusions of law, as required by SDCL 15-6-52(a). Husband, himself, never proposed findings or conclusions and the trial court filed a "memorandum opinion." On appeal, the South Dakota Supreme Court reversed in a 3-2 decision, holding it was "impossible. . .to render a meaningful review." On remand, the trial court was directed to enter findings of fact and conclusions of law on (1) each party's net monthly income; (2) the parties' combined net monthly income; (3) the percentage contribution of each party to their combined net monthly income; and (4) each party's child support obligation calculated according to the applicable figure in the guidelines. In their dissents, Justices Miller and Henderson suggest that South Dakota law requires findings of fact and conclusion of law only when the trial court is deviating from the child support guidelines. *Linard v. Hershey*, 516 N.W.2d 304 (S.D. 1994).

In *Feldhaus v. Schreiner*, 2002 SD 65, 648 N.W.2d 753, the trial court divided the property in the proportion of 54 % to H and 46% to W. W was awarded \$340,699 in property and assets, while H was awarded \$407,304 in property and assets. In an unanimous opinion, the trial court was affirmed. The trial apparently adopted, verbatim, H's proposed findings and conclusions. This, W argues, was an abandonment by the trial court of its' decision-making responsibility. The Supreme Court rejects this argument by W, holding that "it is well within the court's discretion to adopt those findings of fact and conclusions of law which it deems most appropriate, regardless of their source." ¶ 14 of opinion (citing numerous cases from other jurisdictions to support this holding.) [NOTE: Initially the trial court delivered its own proposed findings of fact and conclusions of law which "essentially divided the property equally." ¶ 7 of opinion. Then H submitted proposed findings and conclusions which set forth the 54/46 split. Next, in what appears to be a self-fulfilling twist of irony, W's attorney mistakenly copied the text utilized in H's submission when she submitted W's proposed findings and conclusions. The trial court then assumed that the parties were in agreement as to the 54/46 split and amended its own findings and conclusions to conform with the 54/46 split. W discovered the mistake, brought it to the court's attention and was allowed to resubmit her proposed findings and conclusions. Nonetheless, in its final decision, the court still adopted the 54/46 split originally proposed by H and mistakenly copied by W's attorney.]

Findings which are inconsistent with Memorandum Decision warrant reversal and remand. *Wiswell v. Wiswell*, 2010 SD 32: This is an appeal from a divorce decree, with division of property being the primary focus. The trial court's "Findings of Fact and Conclusions of Law" were in contradiction with the court's "Memorandum Decision." The case is reversed and remanded to the trial court with directions that it enter consistent findings of fact and conclusions of law. The Court's decision is unanimous with opinion by Justice Konenkamp. The opinion states in ¶ 10, "Here, the inconsistencies in the court's various rulings make a meaningful review impossible. We require some reasonable measure of consistency and exactness in a circuit court's findings as a predicate for adequate appellate review."

A. Procedural Matters

4. Opportunity to be Heard

In an effort to collect expenses related to the children's counseling, dental and pharmacy costs during the years 1991 through 1995, mother submitted an itemized claim for some \$4098.83 and also sought attorneys fees. The original divorce decree included an agreement by father that he would continue the existing medical coverage on the children and that he would "also pay all medical dental, optical and orthodontic expenses not covered because of any deductible or excluded by the insurance coverage." The trial court informed the parties that only 15 minutes had been scheduled for the hearing and there was not time for any testimony. Both parties presented arguments, and the trial court eventually denied the mother's claim. The SD Supreme Court reversed in *Davis v. Davis*, 1999 SD 116, 598 N.W.2d 921, holding that "this decision eludes review as the trial court's abbreviated hearing denied [mother] the opportunity to present her claim and deprived this Court of a record from which there may be meaningful review." The Court further stated that "the parties should have been provided time beyond the 15 minutes allotted them for the hearing to further develop this record." (Quoted material taken from paragraphs no. 8 & 9, 598 N.W.2d at 922). This opinion cites a 1988 SD Supreme Court case which holds that "trial court's familiarity with the parties and the case and its determination that it did 'not need any additional testimony' expressed a luxury this Court did not have and failed to respond to this Court's need to make a meaningful appellate review." (Paragraph no. 18, 598 N.W.2d at 922.)

5. Tax Dependency Exemptions

Under 26 U.S.C. § 152(e), as it was amended effective January 1, 1985, the custodial parent is always entitled to the dependency exemption unless she signs a written declaration disclaiming the child as a dependent for a given tax year or period or years. This amendment changed the prior law which put the IRS in the middle of disputes between parents -- disputes over which parent provided *more* support.

The operation of the dependency exemption today generally removes the state divorce courts from role of "awarding" the exemption. Very simply, the exemption belongs to the custodial parent unless that parent has waived (in writing) the exemption in favor of the non-custodial parent.

For a discussion of the dependency exemption and the role of the courts, see Roger M. Baron, *Modification of Divorce Decrees by Virtue of the 1984 Tax Amendments Relating to Dependency Exemptions*, 8 University of Arkansas at Little Rock Law Journal 683 (1985-86), reprinted in TAXES (tax magazine published by Commerce Clearing House), January 1987 at p. 47.

The South Dakota Supreme Court has acknowledged that the trial courts "do not have authority to award dependency exemptions for federal income taxes." *Voelker v. Voelker*, 520 N.W.2d 903, 909 (S.D. 1994).

In *Alexander v. Hamilton*, 525 N.W.2d 41 (S.D. 1994), the father brought a voluntary paternity proceeding for a child born out of wedlock. The trial court awarded primary physical custody to the father, but also made an alternating award of the IRS dependency exemption. The father challenged the dependency exemption award on appeal. The South Dakota Supreme Court affirmed on this issue because the case was a “paternity” action. The Court distinguished its prior cases (which hold that trial courts are without authority to make such awards) by pointing out that 26 U.S.C. § 152(e) “only applies to *divorces* or *legal separations*.” *Id.* at 45 (emphasis supplied).

The Jacobson Case

May a court-approved dependency exemption agreement be modified by the court, even though the court did not have the authority to allocate the exemptions originally? This is the exact issue which confronted the SD Supreme Court in *Jacobson v. Jacobson*, 2000 SD 60, 611 N.W.2d 210, which resolves the issue in a 3-2 decision. The Court’s opinion holds “yes,” the court may modify.

When the parties were divorced in 1996, the wife was not earning much money. Wife then agreed to execute the necessary documents to give the husband the exemption any time his child support payments to wife exceeded \$4,200 per year. A few years later after wife secured a full time teaching contract and both parties had remarried, the matter of child support was reviewed and redetermined as per the 1997 guidelines. The referee assumed (wrongly) that wife, as custodial parent, was entitled to the exemption. Child support was re-set and the trial court approved the new computation.

Two days later, wife sought to modify the divorce decree so as to remove that part of the incorporated-in agreement that required her to execute the forms to give the husband the exemptions. The gist of her action was to bring the entire decree around so as to conform with the result *intended* by the referee. (Or, as stated by the majority opinion, “In essence, what happened in this case is that the cart was put before the horse. The referee’s decision which modified the amount of Scott’s child support obligation assumed that Nancy was entitled to and currently claiming the exemptions.” from paragraph no. 27 of the opinion.) This modification action precipitated all sorts of legal issues! First and foremost, could this part of the decree be modified at all? Secondly, were there adequate grounds (“changed circumstances”) warranting modification? Third, had the referee and court properly considered all factors if the exemption is now allowed to be changed? And finally, could the change be retroactive, so as to pick up the 1998 tax year?

The trial court ruled favorably for the wife, making the modification by striking and removing the language of the agreement which required the custodial wife to execute the necessary forms and it also made the modification retroactive for the 1998 tax year.

The three justice majority opinion also ruled favorably for the wife on all issues, except on the issue of whether the change could be made retroactive for the 1998 tax year. The key issue, of course, was whether or not a court could later modify a court-approved agreement on an issue which the court could not have initially imposed, absent an agreement of the parties? In answering this question “yes,” the majority opinion, authored by Chief Justice Miller, the Court was persuaded by the fact that the agreement itself had to be “approved” in the first place and the court then had the authority to approve or reject the agreement at that time. The Court further relied on the notion that courts generally retain “broad powers to implement modifications” over many facets of divorce decrees, such as child support and alimony. (Quoted language is taken from paragraph no. 16, 611 N.W.2d at 215.) Additionally, the result in this case is consistent with the bottom-line philosophy seen in the tax code that the custodial parent should be given the exemption. It

appears that the *Jameson*¹ case is the most troublesome to the majority opinion. (*Jameson* is discussed in the Chapter 9 on Child Support, in the sub-chapter which deals with Termination of the Obligation, which is located in sub-chapter “A. The Obligation and its Boundaries.”) The majority recognizes the “apparent limitation” of the *Jameson* opinion, but tends to suggest that the real issue involving the court-contained agreement in *Jameson* was whether or not it was enforceable at all. Footnote 5 of the majority opinion points out that if there had been sufficiently changed circumstances, the court-approved agreement in *Jameson* could have been modified. [Justices Sabers and Amundson dissented on this key issue, arguing that trial courts simply do not have the authority to allocate tax exemptions and also arguing that trial courts cannot modify provisions which the court had no authority to impose initially. The dissent, of course, relies on the *Jameson* case for support as to this latter notion.]

The Court also held that it was error to make the modification retroactive to the 1998 tax year, due to the prohibition against retroactive modifications found in the child support statute, SDCL 25-7-7.3. (This writer is not completely convinced that this statute applies to the part of a decree which incorporates an agreement for dependency exemptions, but it is “close” and this case already splits way too many fine hairs!)

Final notes on the *Jacobson* case: Wife was awarded appellate attorney fees. Also, according to the dissent, the loss of the “bargained-for tax exemptions” results in a monetary loss to husband in excess of \$700 per year.

A. Procedural Matters

6. Effect of Appeal and Supersedeas Bond on Enforcement Power of Trial Court

In *Cutler-Christians v. Christians*, 2001 SD 104, 633 N.W.2d 176, the trial court was found to lack jurisdiction to entertain a contempt proceeding against husband for failure to pay alimony where the husband had filed a Notice of Appeal from the underlying judgment and had filed a supersedeas bond which had been approved by the trial court. By virtue of SDCL 15-26A-32, an approved supersedeas bond “shall stay all further proceedings in circuit court.” Furthermore, husband’s participation in the contempt proceeding in front of the trial judge did not operate as a *waiver* of the stay, since subject matter jurisdiction cannot be created by agreement or waiver. It was noted that the trial court did, however, have authority under SDCL 25-4-38, to enter an order for interim alimony pending the appeal, but such was not done.

¹ *Jameson v. Jameson*, 306 N.W.2d 240 (S.D. 1981)

A. Procedural Matters

7. Lack of Medical Testimony as to Heart Condition

In *Feldhaus v. Schreiner*, 2002 SD 65, 648 N.W.2d 753, the trial court divided the property in the proportion of 54% to H and 46% to W. W was awarded \$340,699 in property and assets, while H was awarded \$407,304 in property and assets. In an unanimous opinion, the trial court was affirmed. Among many other rulings, the Supreme Court held that the trial court did not commit error in considering H's heart condition based solely on the testimony of H. The opinion distinguishes a prior personal injury case in South Dakota which holds that medical testimony is required for injuries which are of a subjective nature and not plainly apparent.

8. Practice of Law by Part-time Magistrate

In the case of *Altman v. Rumbolz*, 2002 SD 79, 648 N.W.2d 823, the petitioner seeking a modified order of protection appeared *pro se* during the hearing. Respondent was represented by an attorney who was also a part-time magistrate judge in the same judicial circuit. Petitioner complained during the hearing that respondent's attorney was improperly using his influence as a part-time magistrate to intimidate witnesses from testifying on petitioner's behalf. At the conclusion of the hearing, the trial court granted the petitioner relief in the nature of a modified and extended order of protection. The trial court also ordered that the part-time magistrate/attorney *not* participate in any further proceedings concerning this matter. On appeal the South Dakota Supreme Court reversed that part of the trial court's order which imposed a disqualification of the attorney who was also a part-time magistrate. The Supreme Court generally shared the trial court's concern with the appearance of impropriety, but found that the practice of law by a part-time magistrate is specifically permitted by SDCL 16-12A-28 & 28.1 and that petitioner raised only vague allegations without any evidentiary support. It was also noted that the preferred approach to handling a "disqualification" issue would be an evidentiary hearing itself on the allegations of impropriety, with the burden on the party who is complaining of the impropriety. Here there was no notice whatsoever prior to the hearing that the attorney's conduct in representing the respondent was in issue. ¶ 16.

B. Domestic Violence

INTRODUCTORY COMMENTS

The problem of domestic violence is quite severe. Frequently, the victims never seek the protection they deserve. For those who do seek help, South Dakota now has in place an effective statutory scheme which permits victims to request and receive an immediate *ex parte* protection order (SDCL 25-10-6, SDCL 25-10-3) pending a full hearing (SDCL 25-10-4).

SELECTED RELEVANT STATUTES

CHAPTER 25-4: DIVORCE AND SEPARATE MAINTENANCE

25-4-45.5. Consideration of domestic abuse and assault conviction in custody award. In awarding custody involving a minor, the court shall consider:

- (1) A conviction of domestic abuse as defined in subdivision 25-10-1(1); or
- (2) A conviction of assault against a person as defined in subdivision 25-10-1(2), except against any person related by consanguinity, but not living in the same household; or
- (3) A history of domestic abuse.

The conviction or history of domestic abuse creates a rebuttable presumption that awarding custody to the abusive parent is not in the best interest of the minor. A history of domestic abuse may only be proven by greater convincing force of the evidence.

Source: SL 1997, ch 156, § 1; SL 2008, ch 122, § 1.

25-4-45.7. Protective orders and arrest reports considered in determining existence of history of domestic abuse. For purposes of this chapter, in determining whether a history of domestic abuse exists, the court's consideration may include the issuance of a protection order against a parent or any arrest report of a parent following the response of law enforcement to a report of domestic abuse as defined in subdivision 25-10-1(1).

Source: SL 2008, ch 122, § 2.

CHAPTER 25-10: PROTECTION FROM DOMESTIC ABUSE

25-10-1. Definitions. Terms used in this chapter mean:

- (1) "Domestic abuse," physical harm, bodily injury, or attempts to cause physical harm or bodily injury, or the infliction of fear of imminent physical harm or bodily injury between family or household members. Any violation of § 25-10-13 or chapter 22-19A or any crime of violence as defined in subdivision 22-1-2(9) constitutes domestic abuse if the underlying criminal act is committed between family or household members;
- (2) "Family or household members," spouses, former spouses, or persons related by consanguinity, adoption, or law, persons living in the same household, persons who have lived together, or persons who have had a child together;
- (3) "Protection order," an order restraining any family or household member from committing any act of domestic abuse or an order excluding any family or household member from the dwelling or residence of another family or household member, whether or not the dwelling or residence is shared. A protection order has a duration of five years or less; and
- (4) "Temporary protection order," an order restraining any family or household member from committing any act of domestic abuse or an order excluding any family or household member from the dwelling or residence of another family or household member, whether or not the dwelling or residence is shared. A temporary protection order has a duration of thirty days except as provided in § 25-10-7.1.

Source: SL 1981, ch 198, § 1; SL 1984, ch 191, § 1; SL 1986, ch 220, § 2; SL 1988, ch 205, § 1; SL 1994, ch 208, § 1; SL 2000, ch 119, § 1; SL 2005, ch 135, § 1; SL 2007, ch 161, § 1.

25-10-2 Application for relief -- Filing -- Venue. An application for relief under this chapter may be filed in circuit court or in a magistrate court with a magistrate judge presiding. Venue lies where any party to the proceedings resides.

25-10-3. Petition for protection order--Parties--Allegations--Affidavit--Pending action-- Standard petition form. There exists an action known as a petition for a protection order in cases of domestic abuse. Procedures for the action are as follows:

- (1) A petition under this section may be made by any family or household member against any other family or household member.
- (2) A petition shall allege the existence of domestic abuse and shall be accompanied by an affidavit made under oath stating the specific facts and circumstances of the domestic abuse.
- (3) A petition for relief may be made whether or not there is a pending lawsuit, complaint, petition, or other action between the parties.

The clerk of the circuit court shall make available standard petition forms with instructions for completion to be used by a petitioner. The Department of Social Services shall prepare the standard petition form.

Source: SL 1981, ch 198, § 3; SL 1987, ch 195, § 1; SL 2002, ch 129, § 1.

25-10-4. Hearing--Time--Service on respondent. Upon receipt of the petition, if sufficient grounds are alleged for relief, the court shall order a hearing which shall be held not later than thirty days from the date of the order unless for good cause the court grants a continuance. Personal service of the petition, affidavit, and notice for hearing shall be made on the respondent not less than five days prior to the hearing.

Source: SL 1981, ch 198, § 4; SL 1985, ch 210; SL 1994, ch 208, § 2; SL 2009, ch 131, § 1.

25-10-5. Relief authorized on finding abuse--Time limitation. Upon notice and a hearing, if the court finds by a preponderance of the evidence that domestic abuse has taken place, the court may provide relief as follows:

- (1) Restrain any party from committing acts of domestic abuse;
- (2) Exclude the abusing party from the dwelling which the parties share or from the residence of the petitioner;
- (3) Award temporary custody or establish temporary visitation with regards to minor children of the parties;
- (4) Establish temporary support for minor children of the parties or a spouse;
- (5) Order that the abusing party obtain counseling;
- (6) Order other relief as the court deems necessary for the protection of a family or household member, including orders or directives to a sheriff or constable.

Any relief granted by the order for protection shall be for a fixed period and may not exceed five years.

If any minor child resides with either party, the court shall order that the abusing party receive instruction on parenting approved or provided by the Department of Social Services as part of any relief granted.

Source: SL 1981, ch 198, § 5; SL 1984, ch 191, § 2; SL 1988, ch 205, § 2; SL 1994, ch 208, § 3; SL 1998, ch 162, § 4; SL 2008, ch 132, § 1.

25-10-5.2. Restrictions on issuance of mutual orders for protection against abuse. No court may, pursuant to the provisions of § 25-10-5, issue a mutual order enjoining both petitioner and respondent from committing acts of domestic abuse unless:

- (1) Both the petitioner and the respondent personally appear;
- (2) The respondent alleges, under oath, the existence of domestic abuse by stating the specific facts and circumstances of the domestic abuse;
- (3) The court finds, by a preponderance of the evidence, that domestic abuse has taken place.

Source: SL 1996, ch 169.

25-10-6 Ex parte temporary protection order. When an affidavit filed with an application under this chapter alleges that immediate and irreparable injury, loss or damage will result before an adverse party or his attorney can be heard in opposition, the court may grant an ex parte temporary protection order pending a full hearing and granting relief as the court deems proper, including an order:

- (1) Restraining any family or household member from committing acts of domestic abuse;
 - (2) Excluding any family or household member from the dwelling or the residence of the petitioner.
-

25-10-7. Limited duration of temporary order--Service on respondent--Notification of service to petitioner--Liability. An ex parte temporary protection order is effective for a period of thirty days except as provided in § 25-10-7.1 unless for good cause the court grants a continuance. No continuance may exceed thirty days. If a continuance is granted, the court by order shall extend the ex parte temporary protection order until the rescheduled hearing date. The respondent shall be personally served forthwith with a copy of the ex parte order along with a copy of the petition, affidavit, and notice of the date set for the hearing. The ex parte order shall be served without delay under the circumstances of the case including service of the ex parte order on a Sunday or holiday. The law enforcement agency serving the order shall notify the petitioner by telephone or written correspondence when the order is served if the petitioner has provided to the law enforcement agency either a telephone number or address, or both, where the petitioner may be contacted. The law enforcement agency and any officer of the law enforcement agency is immune from civil and criminal liability if the agency or any such officer makes a good faith attempt to notify the petitioner in a manner consistent with the provisions of this section.

Source: SL 1981, ch 198, § 7; SL 1986, ch 220, § 1; SL 1994, ch 208, § 4; SL 2000, ch 119, § 2; SL 2004, ch 175, § 1; SL 2005, ch 136, § 1; SL 2009, ch 132, § 1.

25-10-7.1. Temporary order effective until order under § 25-10-5 served. If an ex parte temporary protection order is in effect and a judge issues a protection order pursuant to § 25-10-5, the ex parte temporary protection order remains effective until the order issued pursuant to § 25-10-5 is served on the respondent.

Source: SL 2000, ch 119, § 3.

25-10-13. Violation of protection order or no contact order as misdemeanor or felony. If a temporary protection order or a protection order is granted pursuant to this chapter or a foreign protection order recognized pursuant to § 25-10-12.1, or if a no contact order is issued pursuant to § 25-10-25, and the respondent or person to be restrained knows of the order, violation of the order is a Class 1 misdemeanor. If any violation of this section constitutes an assault pursuant to § 22-18-1, the violation is a Class 6 felony. If a respondent or person to be restrained has been convicted of, or entered a plea of guilty to, two or more violations of this section, the factual basis for which occurred after the date of the second conviction, and occurred within five years of committing the current offense, the respondent or person to be restrained is guilty of a Class 6 felony for any third or subsequent offense. Any proceeding under this chapter is in addition to other civil or criminal remedies.

Source: SL 1981, ch 198, § 13; SL 1984, ch 191, § 3; SL 1994, ch 209; SL 2004, ch 176, § 1; SL 2006, ch 130, § 11; SL 2008, ch 133, § 1.

25-10-22 Effect of divorce or other civil proceedings prior to criminal proceedings. In any action involving domestic abuse, the court may not:

- (1) Dismiss any charge or delay disposition of the domestic abuse action because of the pendency of a divorce or any other civil proceeding, unless agreed to by all parties, including the victim;
- (2) Require proof that either party is seeking dissolution of marriage prior to instigation of criminal proceeding.

25-10-35. Arrest of spouse for abuse--Considerations. If the officer has probable cause to believe that spouses, former spouses, or other persons who reside together or formerly resided together have assaulted each other, the officer is not required to arrest both persons. The officer shall arrest the person whom the officer believes to be the predominant physical aggressor. In making this determination, the officer shall make every reasonable effort to consider:

- (1) The intent to protect victims of domestic abuse under this chapter;
- (2) The comparative extent of injuries inflicted or serious threats creating fear of physical injury; and
- (3) The history of domestic abuse between the persons involved.

Source: SL 1989, ch 207, § 2; SDCL § 23A-3-2.2; SL 2002, ch 19, § 1; SL 2003, ch 147, § 1.

STATE v. STAHL

Supreme Court of South Dakota, 1987.
416 N.W.2d 269.

PER CURIAM.

The state appeals from an order of the trial court dismissing criminal charges against defendant Larry E. Stahl. We reverse.

Stahl and his wife Sheila were divorced in 1984. On February 6, 1986, upon petition of Sheila, the trial court issued a valid temporary ex parte protection order restraining Stahl from harassing and coming near Sheila and their children. Later, the parties stipulated that in lieu of a formal hearing upon Sheila's allegations, the temporary order should be continued. Based on this stipulation, the trial court ruled that the temporary order be extended until further notice.

In June of 1986, the state filed an amended criminal complaint charging Stahl with violation of the protection order. SDCL 25-10-13. Stahl moved to dismiss the charges, arguing that the protection order was invalid. The trial court (which was not the same court that issued the protection order) granted Stahl's motion, since a full hearing on the need for a protection order was never held, as required by SDCL 25-10-6, and since the court issuing the protection order never made any specific finding of domestic abuse, as required by SDCL 25-10-5.

The sole issue faced by this court is whether the extended protection order is an enforceable order which can form the basis for a criminal complaint. Stahl correctly notes that the court issuing the protection order did not follow all the procedural rules set forth in SDCL ch. 25-10. He concludes that the order is, therefore, "patently invalid," subjecting him to a denial of substantive and procedural rights. We disagree.

* * *

Here, Stahl had his opportunity for a full hearing on the matter, but he waived it by stipulation. He not only consented to the continuation of the temporary order, he was instrumental in bringing it about. The record indicates that Stahl's attorney prepared the extended order which he is now attacking. Certainly, any alleged error on the part of the court issuing the protection order was induced by Stahl.

* * *

The order of the trial court is reversed and remanded.
MILLER, J., disqualified.

NOTES

1. A temporary protection order under the state's "Domestic Abuse" scheme *must* be granted upon the request of a fourteen year old daughter who wishes to avoid visitation with father because she "fears" physical abuse from him, even though father had never before abused her. The trial court denied relief, finding the daughter's fears to be irrational and also holding that the domestic abuse laws were not available for use by a minor to avoid visitation. The trial court indicated that alternatives were available through "modification" proceedings and "abuse/neglect" proceedings instituted by the Department of Social Services. The South Dakota Supreme Court reversed in *Beerman v. Beerman*, 1997 SD 11, 559 N.W.2d 868 (S.D. 1997), holding that the daughter was included in the statutory authorization for "any family or household member" to file a petition "against any other family or household member." SDCL 25-10-3. [Note, the holding in this case opens up another forum for litigation in post-divorce visitation disputes.]

2. In *State v. Hauge*, 547 N.W.2d 173 (S.D. 1996), the defendant was sentenced to one year in jail for violating a domestic abuse protection order. The order prohibited verbal contact which the defendant was alleged to violate by sending a letter to the victim. The South Dakota Supreme Court affirmed the conviction, holding that verbal contact encompassed letter writing. The court also rejected the defendant's claims that the statutes (SDCL 25-10-5 and 25-10-13) and order were constitutionally overbroad and vague.

3. Even though the statute does not specifically mention "phone calls," an order entered against the defendant to "not verbally contact plaintiff in any manner, which includes phone contact" was valid under SDCL 25-10-6 which does permit the court to enter an ex parte order "granting relief as the court deems proper." In *State v. Scott*, 1998 SD 2, 574 N.W.2d 595 (S.D. 1998), the defendant's conviction for violating a domestic protection order was affirmed on appeal. The basis of the conviction were a series of five phone calls made by the defendant from a hospital where defendant had himself admitted because of chest pains.

4. The 1997 South Dakota Legislature passed legislation which creates a "rebuttable presumption" that awarding custody to a person convicted of domestic abuse or assault is "not in the best interests" of the child. This new statute is SDCL 25-4-45.5 and reproduced in this book prior to the *Stahl* case. It is important to note that simply being restrained under the provisions of SDCL 25-10-5 and SDCL 25-10-6 is not sufficient to invoke the presumption. The presumption only applies if the person is criminally convicted for violation of the restraining order or for assault.

5. It should be recalled that the custody aspect of a Domestic Abuse Order of Protection is also subject to the jurisdictional requirements of the UCCJA. *Zapitello v. Moses*, 458 N.W.2d 784 (S.D. 1990).

6. Possession or transportation of firearms is presently unlawful for a person subject to a domestic violence protection order under 18 U.S.C. § 922(g)(8). This little-known federal statute was upheld in the recent case of *U.S. v. Wilson*, 159 F.3d280, 24 Fam. L. Rep. 1628, 1998 WL 723884 (7th Cir. 1998).

7. The trial court did not error in refusing to modify or set aside its order of protection in favor of former girlfriend in *Sjomeling v. Stuber*, 2000 SD 103, 615 N.W.2d 613. The restrained ex-fiancé sought relief only a month after the original order was entered, alleging that he was denied an opportunity to present evidence which would show no basis existed for the entry of the original order. Following a hearing on the motion to set aside or modify, the original order was continued in full force and effect. While acknowledging that such orders can be modified on the basis of changed conditions, the South Dakota Supreme Court noted such was not shown in this case. The opinion points out that jurisdiction to modify can be found in SDCL 22-19A-14, as well as in Civil Procedure Rule 60(b).

8. Wife, who was involved in a divorce action (and who is an attorney), sought a stalking protection order against her former sister-in-law. The trial court granted wife an *ex parte* temporary order, pursuant to SDCL 22-19A-12. At the protection order hearing, however, the trial court denied the issuance of a protection order and dismissed wife's suit because the credible evidence failed to show the defendant was guilty of any stalking. Although the facts are interesting, they will not be reproduced here. The wife appealed, but the South Dakota Supreme Court affirmed in *Marks v. Clark*, 2001 SD 122, 635 N.W.2d 278, finding no abuse of discretion by the trial court in denying the protection order.

9. Following an "acrimonious" divorce, Husband brought action against Wife for "malicious prosecution" in connection with conduct which occurred during the pendency of the divorce proceeding, which had been concluded. Wife had caused a number of criminal charges to be filed against Husband, including several charges for allegedly violating a protection order. Other charges included simple assault and disorderly conduct. In all of the charges at issue, Husband was either found not guilty of committing the alleged act, or the charges were dismissed. According to Husband's testimony, Wife did this to obtain "leverage" in the divorce. On the "malicious prosecution" claim, the jury awarded H \$13,754.67 in compensatory damages and \$120,000 in punitive damages. The South Dakota Supreme Court affirmed, but through remittitur, reduced the punitive damage award to \$25,000. The Court applied an established "five factor" test for determining whether the punitive damage award was appropriate or excessive. *Leisinger v. Jacobson*, 2002 SD 108, 651 N.W.2d 693.

10. Conviction for violation of protection order upheld against challenge based upon prosecution's failure to disclose material evidence in *State v. Leisinger*, 2003 SD 118, 670 N.W.2d 371. Defendant, who had been restrained by court from coming within a distance of one mile of estranged wife's rural residence, was convicted for violation of protective order in contested jury trial based upon evidence that he drove his pickup past wife's property. After trial, defendant learned through discovery in a civil law suit against wife of the existence of a "log" which had been faxed to the sheriff's office by wife which related events that occurred on the same day as his alleged drive-by. Because this log was not revealed to defendant in the criminal case, he moved for new trial alleging newly discovered evidence which would have supported his theory that wife was motivated to seek suborned perjured testimony from witnesses in the criminal case. The trial court denied the motion for new trial and this was affirmed on appeal. The South Dakota Supreme Court found that the newly discovered evidence in this case was not favorable to the defendant and that its suppression did not prejudice the defendant. (Notably, the "civil case" against wife, in which defendant alleged malicious prosecution of numerous criminal complaints, was tried to a jury about three months after the criminal case was tried and resulted in a verdict of \$133,755 against wife. This is reported in the preceding note. The South Dakota Supreme Court, which had previously decided the appeal in the civil case, reduced the punitive damage award of \$120,000 entered by the jury to \$25,000.)

11. There was a hearing with conflicting testimony as to acts of stalking. After making a general finding that stalking had taken place, trial court entered a three year permanent protection order without “checking” certain boxes on standardized form for court orders. Trial court did not indicate which version of the evidence it believed and did not indicate how the evidence met the statutory elements. The South Dakota Supreme Court reversed in *Goeden v. Daum*, 2003 SD 91, 668 N.W.2d 108, stating that “without findings of fact, there is no way to determine the basis for the trial court’s conclusions that stalking had occurred or whether the findings were clearly erroneous.” The Court noted that protection order proceedings were handled in a more expeditious manner due to the fact there are many pro se litigants and a hearing is mandated to take place within 30 days of receiving the petition. “In order to accommodate the litigants, judges tend to relax procedural and evidentiary rules normally applied in other civil or divorce proceedings. The rules of civil procedure, however, should not be relaxed to the point of skipping a crucial element of a court trial involving contested facts. Unless waived, the judge must insure that findings of fact and conclusions of law are clearly entered.” ¶9. As to “how to do this,” the Court continued by saying, “This may be done orally on the record following the hearing, or with a written memorandum, or by filing formal findings of fact and conclusions of law, or by incorporating them into the protection order itself.” In a footnote to the opinion, the Court stated that “waiver” of this requirement may take place “by failing to appear at the trial, by consent in writing filed with the clerk, by oral consent in open court, or by entering into a stipulation of facts for consideration by the court.”

12. **Reversible error for trial court (adjudicating a petition for protection order filed by mother on behalf of child) to allow hearsay testimony as to statements made by 4 year old child to mother concerning alleged sexual abuse by father.** In *Shroyer v. Fanning*, 2010 SD 22, 780 N.W.2d 467, the mother of 4 year old girl sought protection order against father based on assertions that father sexually abused the girl. The trial court entered order of protection. The SD Supreme Court reversed, holding that the trial court wrongly relied upon hearsay comments and did not provide any other basis to support the issuance of a protection order. This decision is unanimous. Justice Meierhenry is the author of the Court’s opinion.

13. **2010 legislation prohibits inquiry as to “domestic violence” for life and health insurance coverage.** HB 1189 eliminates discrimination by health and life insurers against victims of domestic violence. This enacts a new provisions which provides:

No insurer may ask any questions relating to domestic violence for the purposes of offering, selling, or renewing coverage; limiting coverage; or charging a rate different from that normally charged for the same coverage under any life or health insurance policy.

14. **2010 legislation enhances and refines “no contact” restrictions between perpetrator and victim of domestic violence/stalking.** HB 1164 refines and enhances provisions relating to “no contact” between one charged with domestic violence, assault or stalking and the victim. A new section added to SDCL 22-19A to provide:

SDCL 22-19A-18. Bond-No contract terms-Misdemeanor. If bond for the defendant in any assault or stalking action is authorized, a condition of no contact with the victim shall be stated and incorporated into the terms of the bond. Willful violation of any such no contact provision is a Class 1 misdemeanor.

SDCL 22-19A-17 (which prohibits contact with victim) amended by adding the additional sentence,

Willful violation of this section is a Class 1 misdemeanor.

A new section added to SDCL 25-10 to provide:

SDCL 25-10-43. Defendant prohibited from contacting victim prior to court appearance – Violation as misdemeanor. While in custody after arrest for a crime involving domestic abuse, no defendant may have or be permitted any contact or communications, either directly or by means of a third party, with the victim or the family or household members of the victim, until the defendant's initial court appearance or until such contact or communication is specifically authorized by the court. Willful violation of this section is a Class 1 misdemeanor.

15. The 2009 SD Legislature specifically authorizes ex parte protection orders (which are currently authorized to run 30 days) to be extended for an additional period of 30 days by allowing the court to grant a continuance for good cause. The relevant provisions in both the Domestic Violence sub-chapter (SDCL 25-10-7) and the Stalking sub-chapter (SDCL 22-19A-12) are amended.

16. The 2009 SD Legislature specifically clarifies that the trial court has the discretion to “not” order a hearing simply because a petition for protection order has been filed. The relevant provisions in both the Domestic Violence sub-chapter (SDCL 25-10-4) and the Stalking sub-chapter (SDCL 22-19A-10) are amended. This legislation was introduced by the Judiciary Committee at the request of the Chief Justice. The testimony in support of this legislation indicated that the current system is subject to abuse by litigants who become familiar with the system and may invoke the process for harassment. Sometimes petitions are filed which are facially invalid. There are also situations where a petitioner whose petition is dismissed upon hearing may immediately turn around and file another petition which would, under existing law, mandate another prompt hearing.

17. The 2009 SD Legislature passed legislation requiring prosecutors notify victims of domestic abuse regarding the status of their case. Previously victims were entitled to notice of status only if the victim made a request to be so advised. The amended version of SDCL 25-10-38 is set forth below:

25-10-38. Report of domestic abuse arrest forwarded to prosecutor--Victim to be notified of status of case. Any report made pursuant to § 25-10-36 shall be forwarded to the appropriate prosecutor within ten days of making the report. The prosecutor shall, within five days of receipt of the report, notify the victim either orally or in writing of the status of the case. If the state's attorney decides not to prosecute, the prosecutor shall inform the victim of the reasons.

Source: SL 1989, ch 208, § 2; SDCL § 23A-3-22; SL 2002, ch 19, § 1; SL 2009, ch 133, § 1.

18. Note – 2006 Legislative Action. SDCL 25-10-12.1, which provides for in-state enforcement of foreign protective orders was amended in 2006. This statute, which had provided for the enforcement of any “domestic violence protective order,” was broadened so as to also provide for enforcement of “any domestic stalking or physical violence protection order.”

19. Legislative update (2007): Stalking and Protections May Now Extend 5 years. The 2007 enactment of House Bill 1117 amends SDCL 25-10-1 and SDCL 22-19A-11 so as to authorize stalking and protection orders to extend for a duration up to 5 years. The previous version of these statutes permitted the orders to run 3 years.

20. **Legislative update (2007): Elder Abuse Prohibited.** Senate Bill 193, which was enacted into law in 2007 amends the criminal statutes SDCL 22-46-2 and SDCL 22-46-3 so as to include “elder” as a victim for the crimes of “abuse or neglect” and “theft by exploitation.” These statutes previously recognized only a “disabled adult” as a victim. This legislation includes a provision which recognizes that one does not commit “neglect” by honoring the wishes of an elder concerning a “do not resuscitate” order or honoring an elder’s wishes to “not” seek medical care. (This is accomplished by adding a new section, SDCL 22-46-1.1) This legislation also includes provisions which permit reports of elder abuse to be made to the state’s attorney, DSS or any law enforcement officer and also for immunity (both criminal and civil immunity) for the person making the report. Immunity is also provided for those public officials who investigate reports of elder abuse. In connection with the reporting and immunity provisions, new sections SDCL 22-46-7 and SDCL 22-46-8 have been added, in addition to amendments being made to SDCL 34-12-51.

21. **Domestic Abuse Protection Order authorized for 5 years (not just 3 years).** The 2008 legislature amended SDCL 25-10-5 so as to authorize the court to enter a protection order which extends to five years. (The former version authorized relief up to three years).

C. More on Bankruptcy and Creditors’ Rights

Bankruptcy has already been discussed in the following areas of this book:

- 1) In the Chapter on Alimony . . . in connection with the non-dischargability aspect of support payments. [Discussed in the subchapter which addresses “Traditional Alimony.”]
- 2) In the Chapter on Enforcement . . . in connection with the determination of what really is a “support” obligation, for purposes of non-dischargability, notwithstanding the “labels” placed on certain obligations by the parties and courts. [Discussed in the subchapter which addresses “Defenses.”]

PRELIMINARY QUESTIONS ABOUT BANKRUPTCY

(which are hopefully helpful to understanding the next case)

A “real” understanding of what can happen in a bankruptcy proceeding is difficult to attain in a purely academic setting. Certainly as a student, the author of this book never really understood the impact of bankruptcy proceedings while in law school. Accordingly, it may be difficult for a student to appreciate what is “really happening.” Also, previous attempts to cover *Farrey v. Sanderfoot* in prior Family Law classes have convinced this author that some basics of the operation of bankruptcy should be made simple at this point. In that regard (and in the hopes of making this case an easier case for the student to digest), the following questions (and answers) are set forth. Actually these questions are addressed in the *Farrey v. Sanderfoot* opinion, but a preliminary review of these questions might enhance

the student's opportunity to come to grips with this decision.

When a debtor goes bankrupt, can he discharge debts he owes to other people?

Yes, ... that is the whole purpose!

Does it matter how big the debt is?

No

What about creditors who have a lien or mortgage on property which is owned by the debtor?

If the lien or mortgage was voluntarily made by the debtor, it remains valid. This means that the creditor has the right to possession of the "collateral" and that the bankruptcy proceeding cannot change that. Of course, the creditor may be temporarily "restrained" from repossessing the collateral because of the automatic restraining order that applies to all creditors whenever a bankruptcy proceeding is filed. Eventually, however, the creditor has the right to get the collateral. (In some cases, the creditor and debtor may enter into a "reaffirmation agreement" which basically recreates the loan and makes it binding *after* the bankruptcy proceeding is over.)

What about a creditor who didn't have a mortgage or lien on any collateral -- suppose the creditor sues the debtor and gets a judgment -- can that judgment become a lien?

Yes. In fact under the law of most states, a judgment becomes a lien on any real property owned by the debtor (provided the judgment is filed of record in the county where the property is located).

What might we call this type of lien?

How about a "judicial lien."

Is a creditor who has sued on an unsecured debt and who has become the holder of a "judicial lien" protected in bankruptcy?

No, not generally ... such judicial liens may be "avoided" ... meaning that the debtor gets to keep the property and still have the debt discharged.

What if, in a divorce case, a husband has been ordered to pay the wife \$40,000 as her share of the property settlement. Can the husband discharge his obligation to pay that debt?

Yes, generally speaking

Is there anything that can be done to help protect the wife in a situation like this?

Well, she would be protected if the husband had given her a mortgage or lien on the property ... if, by agreement of the parties, she gives him 100% ownership in the property and then he voluntarily gives her a lien on the property as "collateral" to insure his agreement to pay her for her share of the property.

What if the divorce case isn't settled by "agreement of the parties" and the court tries to structure the same arrangement by "orders" -- to wit, husband is given the property and he is ordered to pay wife her share of its value and a "lien" is judicially imposed on the property to insure husband's payment of wife's share?

This is what happened in *Farrey v. Sanderfoot*.

In the following case, the debtor is the husband. He sought, in a bankruptcy proceeding, to discharge his court-ordered obligation to pay his ex-wife one-half of the value of their net assets, \$29,208.44. He also sought to avoid the wife's "lien" on the family home which the trial court had awarded her in order to secure the husband's obligation to pay. As you can see from the following opinion, the husband's theory prevailed in the federal district court and in the Seventh Circuit Court of Appeals.

FARREY v. SANDERFOOT

Supreme Court of the United States , 1991.
111 S.Ct. 1825.

Justice WHITE delivered the opinion of the Court.

In this case we consider whether § 522(f) of the Bankruptcy Code allows a debtor to avoid the fixing of a lien on a homestead, where the lien is granted to the debtor's former spouse under a divorce decree that extinguishes all previous interests the parties had in the property, and in no event secures more than the value of the non-debtor spouse's former interest. We hold that it does not.

Petitioner Jeanne Farrey and respondent Gerald Sanderfoot were married on August 12, 1966. The couple eventually built a home on 27 acres of land in Hortonville, Wisconsin, where they raised their three children. On September 12, 1986, the Wisconsin Circuit Court for Outagamie County entered a bench decision granting a judgment of divorce and property division that resolved all contested issues and terminated the marriage. *See* Wis.Stat. § 767.37(3) (1989-1990). A written decree followed on February 5, 1987.

The decision awarded each party one-half of their net \$60,600.68 marital estate. This division reflected Wisconsin's statutory presumption that the marital estate "be divided equally between the parties." § 767.255. The decree granted Sanderfoot sole title to all the real estate and the family house, which was subject to a mortgage and which was valued at \$104,000, and most of the personal property. For her share, Farrey received the remaining items of personal property and the proceeds from a court-ordered auction of the furniture from the home. The judgment also allocated the couple's

liabilities. Under this preliminary calculation of assets and debts, Sanderfoot stood to receive a net award of \$59,508.79, while Farrey's award would otherwise have been \$1,091.90. To ensure that the division of the estate was equal, the court ordered Sanderfoot to pay Farrey \$29,208.44, half the difference in the value of their net assets. Sanderfoot was to pay this amount in two installments: half by January 10, 1987, and the remaining half by April 10, 1987. To secure this award, the decree provided that Farrey "shall have a lien against the real estate property of [Sanderfoot] for the total amount of money due her pursuant to this Order of the Court, *i.e.* \$29,208.44, and the lien shall remain attached to the real estate property ... until the total amount of money is paid in full." (App. to Pet. for Cert. 57a.)

Sanderfoot never made the required payments nor complied with any other order of the state court. Instead, on May 4, 1987, he voluntarily filed for Chapter 7 bankruptcy. Sanderfoot listed the marital home and real estate on the schedule of assets with his bankruptcy petition and listed it as exempt homestead property. Exercising his option to invoke the state rather than the federal homestead exemption, 11 U.S.C. § 522(b)(2)(A), Sanderfoot claimed the property as exempt "to the amount of \$40,000" under Wis.Stat. § 815.20 (1989-1990).² He also filed a motion to avoid Farrey's lien under the provision in dispute, 11 U.S.C. § 522(f)(1), claiming that Farrey possessed a judicial lien that impaired his homestead exemption. Farrey objected to the motion, claiming that § 522(f)(1) could not divest her of her interest in the marital home.³ The Bankruptcy Court denied Sanderfoot's motion, holding that the lien could not be avoided because it protected Farrey's pre-existing interest in the marital property. *In re Sanderfoot*, 83 B.R. 564 (ED Wis.1988). The District Court reversed, concluding that the lien was avoidable because it "is fixed on an interest of the debtor in the property." *In re Sanderfoot*, 92 B.R. 802 (ED Wis.1988).

A divided panel of the Court of Appeals affirmed. *In re Sanderfoot*, 899 F.2d 598 (CA7 1990). The court reasoned that the divorce proceeding dissolved any pre-existing interest Farrey had in the homestead and that her new interest, "created in the dissolution order and evidenced by her lien, attached to Mr. Sanderfoot's interest in the property." *Id.*, at 602. Noting that the issue had caused a split among the Courts of Appeals, the court expressly relied on those decisions that it termed more "faithful to the plain language of section 522(f)." *Ibid.* (citing *In re Pederson*, 875 F.2d 781 (CA9 1989); *Maus v. Maus*, 837 F.2d 935 (CA10 1988); *Boyd v. Robinson*, 741 F.2d 1112, 1115 (CA8 1984) (Ross, J., dissenting)).

Judge Posner, in dissent, argued that to avoid a lien under § 522(f), a debtor must have an interest in the property at the time the court places the lien on that interest. Judge Posner concluded that because the same decree that gave the entire property to Sanderfoot simultaneously created the lien in favor of Farrey, the lien did not attach to a pre-existing interest of the husband. The dissent's conclusion followed the result, though not the rationale, of *Boyd, supra*, *In re Borman*, 886 F.2d 273 (CA10 1989), and *In re Donahue*, 862 F.2d 259 (CA10 1988).

² Section 815.20 provides in relevant part:

"Homestead exemption definition.

(1) An exempt homestead as defined in s. 990.01(14) selected by a resident owner and occupied by him or her shall be exempt from execution, from the lien of every judgment and from liability for the debts of the owner to the amount of \$40,000, except mortgages, laborers', mechanics' and purchase money liens and taxes and except as otherwise provided.... The exemption extends to the interest therein of the tenants in common, having a homestead thereon with the consent of the cotenants, and to any estate less than a fee."

³ Farrey also objected to her former husband's valuation of the home at \$82,750 in his bankruptcy filings. Neither the Bankruptcy Court, the District Court, nor the Court of Appeals resolved this dispute on the merits.

We granted certiorari to resolve the conflict of authority. 498 U.S. 980, 111 S.Ct. 507, 112 L.Ed.2d 519 (1990). We now reverse the Court of Appeals' judgment and remand.

Section 522(f)(1) provides in relevant part:

"Notwithstanding any waiver of exemptions, the debtor may avoid the fixing of a lien on an interest of the debtor in property to the extent that such lien impairs an exemption to which the debtor would have been entitled under subsection (b) of this section, if such lien is--

"(1) a judicial lien...."

The provision establishes several conditions for a lien to be avoided, only one of which is at issue. *See In re Hart*, 50 B.R. 956, 960 (Bkrtcy.Ct.Nev.1985). Farrey does not challenge the Court of Appeals' determination that her lien was a judicial lien, 899 F.2d, at 603-605, nor do we address that question here. The Court of Appeals also determined that Farrey had waived any challenge as to whether Sanderfoot was otherwise entitled to a homestead exemption under state law, *id.*, at 603, and we agree. *See Owen v. Owen*, 500 U.S. 305, 111 S.Ct. 1833, 114 L.Ed.2d 350 (1991). The sole question presented in this case is whether § 522(f)(1) permits Sanderfoot to avoid the fixing of Farrey's lien on the property interest that he obtained in the divorce decree.

The key portion of § 522(f) states that "the debtor may avoid the fixing of a lien on an interest ... in property." Sanderfoot, following several Courts of Appeals, suggests that this phrase means that a lien may be avoided so long as it is currently fixed on a debtor's interest. Farrey, following Judge Posner's lead, reads the text as permitting the avoidance of a lien only where the lien attached to the debtor's interest at some point after the debtor obtained the interest.

We agree with Farrey. No one asserts that the two verbs underlying the provision possess anything other than their standard legal meaning: "avoid" meaning "annul" or "undo," *see* Black's Law Dictionary 136 (6th ed. 1990); H.R.Rep. No. 95-595, pp. 126-127 (1977), U.S.Code Cong. & Admin.News 1978, p. 5787, and "fix" meaning to "fasten a liability upon," *see* Black's Law Dictionary, *supra*, at 637. The statute does not say that the debtor may undo a lien on an interest in property. Rather, the statute expressly states that the debtor may avoid "the fixing" of a lien on the debtor's interest in property. The gerund "fixing" refers to a temporal event. That event--the fastening of a liability--presupposes an object onto which the liability can fasten. The statute defines this pre-existing object as "an interest of the debtor in property." Therefore, unless the debtor had the property interest to which the lien attached at some point *before* the lien attached to that interest, he or she cannot avoid the fixing of the lien under the terms of § 522(f)(1).

This reading fully comports with the provision's purpose and history. *See United States v. Ron Pair Enterprises, Inc.*, 489 U.S. 235, 242, 109 S.Ct. 1026, 1031, 103 L.Ed.2d 290 (1989). Congress enacted § 522(f) with the broad purpose of protecting the debtor's exempt property. *See* S.Rep. No. 95-989, p. 77 (1978); H.R.Rep. No. 95-595, *supra*, at 126-127. Ordinarily, liens and other secured interests survive bankruptcy. In particular, it was well settled when § 522(f) was enacted that valid liens obtained before bankruptcy could be enforced on exempt property, *see Louisville Joint Stock Land Bank v. Radford*, 295 U.S. 555, 582-583, 55 S.Ct. 854, 859-860, 79 L.Ed. 1593 (1935), including otherwise exempt homestead property, *Long v. Bullard*, 117 U.S. 617, 620-621, 6 S.Ct. 917, 918, 29 L.Ed. 1004 (1886). Congress generally preserved this principle when it comprehensively revised bankruptcy law

with the Bankruptcy Reform Act of 1978, Pub.L. 95-598, 92 Stat. 2587, 11 U.S.C. § 522(c)(2)(A)(i). But Congress also revised the law to permit the debtor to avoid the fixing of some liens. *See, e.g.*, 11 U.S.C. § 545 (statutory liens).

Section 522(f)(1), by its terms, extends this protection to cases involving the fixing of judicial liens onto exempt property. What specific legislative history exists suggests that a principal reason Congress singled out judicial liens was because they are a device commonly used by creditors to defeat the protection bankruptcy law accords exempt property against debts. As the House Report stated:

"The first right [§ 522(f)(1)] allows the debtor to undo the actions of creditors that bring legal action against the debtor shortly before bankruptcy. Bankruptcy exists to provide relief for an overburdened debtor. If a creditor beats the debtor into court, the debtor is nevertheless entitled to his exemptions." H.R.Rep. No. 95-595, *supra*, at 126-127, U.S.Code Cong. & Admin.News 1978, pp. 6087-6088.

* * *

As before, the critical inquiry remains whether the debtor ever possessed the interest to which the lien fixed, before it fixed. If he or she did not, § 522(f)(1) does not permit the debtor to avoid the fixing of the lien on that interest.

We turn to the application of § 522(f)(1) to this case.

Whether Sanderfoot ever possessed an interest to which the lien fixed, before it fixed, is a question of state law. Farrey contends that prior to the divorce judgment, she and her husband held title to the real estate in joint tenancy, each possessing an undivided one-half interest. She further asserts that the divorce decree extinguished these previous interests. At the same time and in the same transaction, she concludes, the decree created new interests in place of the old: for Sanderfoot, ownership in fee simple of the house and real estate; for Farrey, various assets and a debt of \$29,208.44 secured by a lien on the Sanderfoot's new fee simple interest. Both in his briefs and at oral argument, Sanderfoot agreed on each point. Brief for Respondent 7-8; Tr. of Oral Arg. 39.

On the assumption that the parties characterize Wisconsin law correctly, Sanderfoot must lose. Under their view, the lien could not have fixed on Sanderfoot's pre-existing undivided half interest because the divorce decree extinguished it. Instead, the only interest that the lien encumbers is debtor's wholly new fee simple interest. The same decree that awarded Sanderfoot his fee simple interest simultaneously granted the lien to Farrey. As the judgment stated, he acquired the property "free and clear" of any claim "except as expressly provided in this [decree]." App. to Pet. for Cert. 58a. Sanderfoot took the interest and the lien together, as if he had purchased an already encumbered estate from a third party. Since Sanderfoot never possessed his new fee simple interest before the lien "fixed," § 522(f)(1) is not available to void the lien.

The same result follows even if the divorce decree did not extinguish the couple's pre-existing interests but instead merely reordered them. The parties' current position notwithstanding, it may be that under Wisconsin law the divorce decree augmented Sanderfoot's previous interest by adding to it Farrey's prior interest. If the court in exchange sought to protect Farrey's previous interest with a lien, § 522(f)(1) could be used to undo the encumbrance to the extent the lien fastened to any portion of Sanderfoot's previous surviving interest. This follows because Sanderfoot would have possessed the interest to which that part of the lien fixed, before it fixed. But in this case, the divorce court did not purport to encumber

any part of Sanderfoot's previous interest even on the assumption that state law would deem that interest to have survived. The decree instead transferred Farrey's previous interest to Sanderfoot and, again simultaneously, granted a lien equal to that interest minus the small amount of personal property she retained. Sanderfoot thus would still be unable to avoid the lien in this case since it fastened only to what had been Farrey's pre-existing interest, and this interest Sanderfoot would never have possessed without the lien already having fixed.

The result, on either theory, accords with the provision's main purpose. As noted, the legislative history suggests that Congress primarily intended § 522(f)(1) as a device to thwart creditors who, sensing an impending bankruptcy, rush to court to obtain a judgment to defeat the debtor's exemptions. That is not what occurs in a divorce proceeding such as this. Farrey obtained the lien not to defeat Sanderfoot's pre-existing interest in the homestead but to protect her own pre-existing interest in the homestead that was fully equal to that of her spouse. The divorce court awarded the lien to secure an obligation the court imposed on the husband in exchange for the court's simultaneous award of the wife's homestead interest to the husband. We agree with Judge Posner that to permit a debtor in these circumstances to use the Code to deprive a spouse of this protection would neither follow the language of the statute nor serve the main goal it was designed to address.

We hold that § 522(f)(1) of the Bankruptcy Code requires a debtor to have possessed an interest to which a lien attached, before it attached, to avoid the fixing of the lien on that interest. Accordingly, the judgment of the Court of Appeals is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

Justice KENNEDY, with whom Justice SOUTER joins, concurring.

I agree with the Court's holding that a debtor cannot use § 522(f)(1) of the Bankruptcy Code to avoid a lien on an interest the debtor acquired after the lien attached.

* * *

I believe the Bankruptcy Code may be used in some later case to allow a spouse to avoid otherwise valid obligations under a divorce court decree. Though adept drafting of property decrees or the use of court orders directing conveyances in a certain sequence might resolve the problem, it appears that congressional action may be necessary to avoid in some future case the perhaps unjust result the Court today avoids having to consider only because of the fortuity of a litigant's concession. With these observations, I concur in the opinion and the judgment of the Court.

NOTE

In *Grode v. Grode*, 543 N.W.2d 795, 803-04 (S.D. 1996), the South Dakota Supreme Court considered it to be error for the trial court *not* to give wife a secured interest in the parties' property awarded to husband. A security interest in the property should have been ordered in favor of the wife for the purpose of securing the husband's obligation to pay her \$108,000 over an 18 year period. Otherwise, husband could declare bankruptcy and leave wife in an unsecured position. The court cited and quoted SDCL 25-4-42 as supporting authority.

SOME ADDITIONAL QUESTIONS ON CREDITORS' RIGHTS (and the answers)

H & W are getting divorced and they have several debts. In particular, there is a debt of \$10,000 to GMAC on the Chevrolet Malibu, which is secured by a lien in favor of GMAC. There is also a debt of \$3000 owed to Visa Credit Card Co. (This debt to Visa is considered "unsecured" because there is no collateral which secures its payment.) These debts are considered "joint" debts because both H & W signed the papers which indicated they would be "liable" on these debts. At the time of the divorce, W is awarded the Chevrolet Malibu, but H is ordered to pay off the \$10,000 owed to GMAC. H is also ordered to pay off the Visa Credit Card bill of \$3,000. The decree not only orders H to pay off these debts, but also has language which says "H is ordered to pay off said debts and to hold wife harmless on said obligations."

If H fails to make payments to GMAC and Visa, can these creditors still pursue W for payments?

Yes

Why wouldn't GMAC and Visa be bound by the language in the divorce decree that clearly indicates that H is *the* one who is supposed to pay off these debts?

W has a contractual obligation to both GMAC and Visa which serves as the basis for their claims against her.

And, also because GMAC and Visa were NOT parties to the divorce proceeding and are not bound by a proceeding which did not include them.

To elaborate further, what if GMAC wants to repossess the Chevrolet Malibu, are you telling me that W can have her car repossessed if H does not make the payments he has been ordered to make?

Yes, exactly.

If H files bankruptcy, can he discharge his obligation to pay off GMAC and Visa?

Yes. (Unless the court would declare these obligations to "really" be "support" payments.)

If H files bankruptcy and discharges his obligations to pay GMAC and Visa, can GMAC and Visa still look to W for payment and can GMAC repossess the Malibu if payments are not made?

Yes, this answer doesn't change! Whether H files bankruptcy proceedings or not, the creditors (who were not parties to the divorce proceeding) may still pursue all those who are lawfully obligated on the debts.

D. Change of Name

NOTES

1. In a divorce proceeding, either party may request the trial court to, in its discretion, grant in the divorce decree a restoration of the wife's maiden name or the name she legally bore prior to the marriage. SDCL 25-4-47. (This statute is reproduced following the *Ogle* case.)

2. Chapter 21-37 of SDCL provides for an independent procedure to utilize in seeking a change of name.

3. As you take up the following case, you should be aware that SDCL 25-4-47 has been amended since the decision in this case. The 2nd sentence of the statute as seen in the *Ogle* opinion has been repealed.

OGLE v. CIRCUIT COURT

Supreme Court of South Dakota, 1975.
89 S.D. 18, 227 N.W.2d 621.

DUNN, Chief Justice.

Petitioner, Bonnie Lee Hay Ogle, was married to Wayne Ogle in February 1969, and divorced in April 1970. Petitioner was granted custody of the child of this marriage, Scott Alan Ogle. Her present household also includes a daughter, Windy Kay Hay, born prior to her marriage to Ogle.

On May 1, 1974, petitioner filed a petition for change of name under SDCL 21-37-1 through 21-37-5. By this petition, she sought to resume her maiden name of Bonnie Lee Hay. She also petitioned for a change of name for her son (to "Scott Alan Hay"). The Circuit Court of Tripp County denied both uncontested petitions. From the order of the circuit court denying her change of name, we issued a writ of certiorari. The Attorney General has filed a brief in response to that of the petitioner.

The circuit court denied petitioner's application for a change of name for the reasons that:

- (1) SDCL 25-4-47 was applicable to this case and did not permit the court to grant petitioner her maiden name,
- (2) The petitioner waived any right she had to change her name because she failed to make her request at the time of her divorce proceedings when her husband had an opportunity to be present, and
- (3) Petitioner presented no valid reason to support her petition for name change.

The first question raised is the effect of SDCL 25-4-47 on a name change proceeding under SDCL 21-37-1 through 21-37-5. SDCL 25-4-47 provides that:

“Whenever a decree of divorce is granted, the trial court may in its discretion or upon the application of either party *by the terms of the decree* restore to the woman her maiden name, or the name she legally bore prior to her marriage to the husband in the divorce suit. If the custody of any minor child being the issue of such marriage is granted to the mother, this provision shall not apply. All decrees of divorce heretofore entered restoring to the divorced woman her former name under the conditions hereby permitted, are hereby declared to be legal and valid and effective from their date of entry.”
(emphasis supplied)

The Attorney General argues that this statute clearly expresses the legislature's intent to except a divorced woman with custody of minor children from the operation of our general name change statutes where the woman seeks to resume either her maiden name or the name held before the marriage in question. It is doubtful that the legislature intended to produce such a result; however, regardless of such speculation, this court will not enlarge a statute beyond its face where the statutory terms are clear and unambiguous in meaning and do not lead to an absurd or unreasonable conclusion. *Elfring v. Paterson*, 1939, 66 S.D. 458, 285 N.W. 443; *Red Wing Sewer Pipe Co. v. City of Pierre*, 1915, 36 S.D. 276, 154 N.W. 712.

The burden upon the applicant under SDCL 25-4-47 is practically nonexistent; the woman need only ask that her maiden name be restored, whereas under the provisions of SDCL 21-37-1 through 21-37-5, one who petitions for change of name must show cause for the change of name and must give notice of hearing. In other words, SDCL 21-37 gives opportunity for anyone to object to a proposed change of name, an opportunity that apparently does not exist under the provisions of SDCL 25-4-47.

If it was the intent of the legislature to protect the interests of minor children, the limitation contained within SDCL 25-4-47 can be construed as effectuating the legislative intent that a woman given custody of minor children in a divorce action should not be permitted to resume the use of her former name without first going through the application and notice proceedings set forth in SDCL 21-37.

Thus construed, the limitation in SDCL 25-4-47 seems to be harmonious with the provisions of SDCL 21-37.

“Where statutes appear to be contradictory, it is the duty of the court to reconcile them and to give effect, if possible, to all provisions under consideration, construing them together to make them harmonious and workable.” (Citations omitted) *In Re Collins*, 85 S.D. 375, 382, 182 N.W.2d 335, 339.

Clearly, SDCL 25-4-47 is designed to statutorily enlarge judicial discretion in a divorce proceeding. In the case of a divorced mother granted custody of minor children of the marriage, the legislature chose to withhold statutory authorization for change of name By the terms of the divorce decree itself. By its terms, this class is excepted only from the operation of this statute and is not affirmatively denied recourse to the general name change statutes. We hold that SDCL 25-4-47 cannot be extended to interfere with petitioner's application for name change under SDCL 21-37-1 through 21-37-5. Because of this decision we have no occasion to consider petitioner's argument that SDCL 25-4-47 is unconstitutional.

As to the second basis for the trial court's denial of petitioner's application, we see no reason to erect a rule of waiver requiring one in petitioner's position to request a change of name at her divorce

proceeding. The third basis on which the trial court denied petitioner's application raises a question of first impression before this court.

Procedures which an individual must undertake for change of name include bona fide county residency for six months (SDCL 21-37-2); filing of petition in county of residence, alleging residency as above, cause for which name change sought, and the name asked for (SDCL 21-37-3); and publication by legal newspaper (SDCL 21-37-4). SDCL 21-37-5 further provides that:

“At the time and place specified in the notice and upon proof in open court to the satisfaction of the judge thereof that notice of the hearing has been given as required in § 21-37-4 and that the allegations of the petitioner are true, and that there exists proper and reasonable cause for changing the name of the petitioner, the court or judge shall make an order directing a change of the name of the petitioner and directing that such order be entered by the clerk.”

The great weight of authority recognizes that at common law one was free to change his name without legal proceedings and that statutory name change procedures do not supplant this right but aid it by the official recordation of those changes. This right is generally conditioned only on the absence of fraudulent purpose. *Clinton v. Morrow*, 1952, 220 Ark. 377, 247 S.W.2d 1015; *Petition of Merolevitz*, 1946, 320 Mass. 448, 70 N.E.2d 249; *In Re Ross*, 1937, 8 Cal.2d 608, 67 P.2d 94, 110 A.L.R. 217.

Since statutory name change proceedings have been held supplemental to the common law right, courts have largely encouraged the granting of such petitions in order to secure the advantages of accurate record keeping. *Petition of Buyarsky*, 1948, 322 Mass. 335, 77 N.E.2d 216; *In Re Slobody*, 1918, 173 N.Y.S. 514.

But the granting of these applications is not automatic; statutes similar to ours have ordinarily been held to vest discretion in the trial court. *Application of Halligan*, 1973, 76 Misc.2d 190, 350 N.Y.S.2d 63 (“no reasonable objection”); *In Re Ross*, *supra* (“right and proper”); *In Re Taminosian*, 1915, 97 Neb. 514, 150 N.W. 824 (“proper and reasonable cause”). In the recent case of *Petition of Hauptly*, 1974, Ind., 312 N.E.2d 857, the Indiana court held that it is an abuse of discretion to deny any application for name change after determining that no fraudulent intent is involved. The applicable statute provided that the trial court may make such order and decree as “shall seem just and reasonable.” Most courts, however, find that such language vests the trial court with a greater degree of judicial discretion. We prefer to adopt the rule which requires that some substantial reason exist to justify the trial court's refusal to grant the petition for name change. *In Re Ross*, *supra*; 57 Am.Jur.2d, Name, § 12, p. 283; 65 C.J.S. Names § 11(2), p. 28.

As to what constitutes sufficient reason to deny a name change, this will vary according to the facts of the case. Relevant to the task is this statement:

“Circumstances of special significance that would militate against the granting of such an application would be an unworthy motive, the possibility of fraud on the public, or the choice of a name that is bizarre, unduly lengthy, ridiculous or offensive to common decency and good taste.” *In Re M*, 1966, 91 N.J.Super. 296, 219 A.2d 906 at 907.

Embarrassment to children might also be considered where known. *In Re Taminosian*, *supra*. The situation here, though, is further complicated by the existence of a child bearing the requested

surname.

Petitioner here testified that she was employed, was supporting both her children without financial aid from her former husband and that she desired to unite her household under her maiden name of Hay. She believed that Wayne Ogle had remarried and was now living in Omaha. Her petition also alleged that no fraudulent purpose was involved and that she desired the change so the community would not think her married to her former husband. Petitioner offered to present additional reasons to support her petition, but she was denied the opportunity to do so by the trial court. It was, of course, the duty of the petitioner to present sufficient evidence to enable the trial court to exercise its discretion wisely and intelligently, but she cannot be held responsible for the trial court's denial of opportunity. No substantial reason appears in this record justifying the trial court's refusal to grant petitioner's application for change of name. Consequently, we conclude that the trial court abused its discretion in denying the petition without giving petitioner an opportunity to present further evidence.

The writ of certiorari did not extend to review of the order denying the petition for change of name of Scott Alan Ogle. Different considerations guide the court in such a proceeding (*see* Annotation 53 A.L.R.2d 914).

Remanded to the Circuit Court of Tripp County for further proceedings in accordance with this opinion.

All the Justices concur.

NOTES

1. The need for legal help in securing an adoption frequently presents itself disguised as a client's simple request for a change-of-name proceeding. In this regard, it should be noted that there is a quick and easy procedure for the adoption of an adult. *See* SDCL 25-6-18 which is reproduced in the "Termination of Parental Rights" chapter.

2. SDCL 25-4-47, as it presently exists, is reproduced hereafter:

25-4-47 Restoration of former name to wife -- Validation of prior decrees.

Whenever a decree of divorce is granted, the trial court may, in its discretion or upon the application of either party by the terms of the decree, restore to the woman her maiden name or the name she legally bore prior to her marriage to the husband in the divorce suit. All decrees of divorce previously entered restoring to the divorced woman her former name under this section are declared legal and valid and effective from their date of entry.

3. Over the objection of the mother, the trial court in a divorce action changed the surname of the child born to the parties prior to the marriage so as to reflect the name of the father (mother's husband). The trial court ordered the child's birth certificate to be corrected. Relying on broad interpretations of SDCL 25-4-45 and 25-5-7.1, the South Dakota Supreme Court affirmed the ability of the divorce court to render such a name change. The case was remanded, however, to allow the trial court to consider whether such change of name was "in the best interests" of the child, as required by

SDCL 25-4-45. *Keegan v. Gudahl*, 525 N.W.2d 695 (S.D. 1994) (two justices dissenting). Justice Sabers' dissent suggested that such a name change could only be effected through an independent proceeding under SDCL ch. 21-37.

4. The case discussed in the preceding note is the subject of an excellent student casenote. See Shannon J. Kennedy-Sjodin, "*Keegan v. Gudahl*: The Child's Surname as a New Bargaining Chip in the Game of Divorce," 41 South Dakota Law Review 166 (1996).

5. In *Block v. Bartelt*, 1998 S.D. 65, 580 N.W.2d 152 (S.D. 1998), the trial court refused to change the name of a child born out-of-wedlock so as to reflect the natural father's surname. In a "per curiam" opinion, the South Dakota Supreme Court affirmed, quoting the "best interest" criteria adopted in *Keegan v. Gudahl*, discussed in the preceding notes.

6. In *Blase v. Brewer*, 2005 SD 7,692 N.W.2d 785, a paternity action blossomed into a dispute over custody/visitation rights, as well as a dispute over the surname for the child. The mother's surname, "Brewer," was put on the child's birth certificate. Father sought to change the child's surname to his surname, "Blase," or to a hyphenated last name that included both the mother's and father's name. The trial court entertained a hearing on the issues and entered its order about 14 months after the child was born, ruling that the child's surname should remain the mother's name "Brewer." The South Dakota Supreme Court affirmed that trial court's ruling on custody/visitation rights, but remanded the issue of the child's surname to the trial court. Although all five justices voted to affirm the custody/visitation rights determination, only three Justices voted to remand the surname issue. The three-justice majority (Justice Konenkamp authoring the majority opinion with Justices Zinter and Meierhenry concurring on the surname issue) addressed the disadvantage which exists for putative fathers at ¶14 as follows:

"[The trial court's] decision places improper emphasis on the mother's unilateral act of naming the child at birth. The finding [supporting the trial court's decision] is couched in terms that seem to be in accord with the length of time a surname has been used. However, Blase has contested the child's surname for virtually that entire time. Thus, by considering the length of time the surname had been used, the trial court was, in effect, giving Brewer the very advantage that this Court has determined to be improper. Thus, the ultimate question should not be whether 'there appears to be no good cause for changing the child's surname,' but whether the child's best interests favor such a change. Brewer argues that Blase's failure to list his name on the birth certificate at the child's birth amounted to an acquiescence of the surname Brewer. We do not believe it would be fair to use this rationale. A putative father is at a disadvantage when he wishes to obtain a paternity test before accepting the duties and privileges of fatherhood. If he admits paternity before testing and the tests later prove he is not the father, he loses the opportunity to challenge paternity, which the law allows him. Thus we conclude the trial court erred in not considering the proper factors [set forth in the case of *Block v. Bartelt*, 1998 SD 65, ¶11, 580 N.W.2d 152,154]."

BROWN v. CARROLL
Court of Appeals of Texas (Tyler), 1984.
683 S.W.2d 61.

SUMMERS, Chief Justice.

Robert Hayden Brown, Movant/Appellant (Brown), brought this action for a permanent injunction seeking to prohibit his former wife, Patricia Ann Lee Brown Carroll, Respondent/Appellee (Carroll), from allowing his children to use the surname of their stepfather. Brown also sought to modify his visitation rights with his minor children. The trial court denied the injunction and refused to modify the visitation rights. Brown appeals from the court's denial of the injunction. We reverse that portion of the trial court's judgment denying injunctive relief and remand the case with instructions that the trial court grant the permanent injunction as hereinbelow ordered.

Carroll and Brown were divorced in Cherokee County, Texas. Carroll was named managing conservator of their two children, Robert Brown, Jr. and Wendee Brown, who were seven years old and four years old, respectively, at the time of the divorce. Carroll married John W. Carroll and, sometime between 1978 and 1980, they moved to Florida. The children moved to Florida with their mother and stepfather and Brown moved to Dallas, Texas. While in Florida, Carroll asked Brown if he would consent to a legal name change of the children from Brown to Carroll. Brown refused to give his consent. No petition for a legal name change has ever been filed on behalf of the children. The Carrolls moved to Shelby County, Texas, and by order dated December 31, 1980, this cause affecting the parent-child relationship was transferred from the District Court of Cherokee County to the District Court of Shelby County. The children were enrolled in the Center Independent School District in Shelby County in August 1981. The children began to use the name Carroll while in the Center schools on their registration cards, report cards, attendance sheets, and in the classrooms. A teacher and two principals of the Center school system testified that the children's teachers and classmates knew them by the name of Carroll. There is also evidence that the children were using their stepfather's surname in other instances. The mother and stepfather testified that the children repeatedly asked them if they could use the name Carroll instead of Brown. Both told the children that they could use whichever name they wished, *i.e.*, Brown or Carroll.

Brown sued to enjoin Carroll from allowing the informal name change of the children. The trial court refused to grant the permanent injunction on the grounds that (1) the court had no jurisdiction to grant the injunction, (2) there was no evidence that Patricia Brown Carroll was allowing the children to use their stepfather's surname rather than their legal name, (3) if granted, the injunctive order would be vague, ambiguous, and unenforceable, and (4) the children's informal use of their stepfather's surname did not impinge on any right or protectable interest of Robert Brown.

Brown argues in his third point of error that the trial court erred in holding that it had no jurisdiction to issue the requested injunction. Article 5, Section 8 of the Texas Constitution provides that "the District Courts shall have ... original jurisdiction and general control over ... minors under such regulations as may be prescribed by law." The Family Code gives the district courts broad power over children involved in divorce proceedings and other instances, including the power to grant or deny a legal name change. *See* Chapter 32, TEX.FAM.CODE ANN. (Vernon 1975). The District Court of Shelby County, Texas, acquired jurisdiction over the Brown children on December 31, 1980, when this cause was transferred from the District Court of Cherokee County to the District Court of Shelby County. Thereafter, on April 27, 1982, this action for a permanent injunction and modification of visitation rights

was filed in the District Court of Shelby County. The District Court of Shelby County had complete jurisdiction to protect the welfare and best interest of the children, as well as the protectable interest of the children's father. Therefore, the court had the power to issue an injunction. *In the Interest of Baird*, 610 S.W.2d 252 (Tex.Civ.App.--Fort Worth 1980, no writ); *see also Newman v. King*, 433 S.W.2d 420 (Tex.1968). Appellant's third point of error is sustained.

Having determined that the trial court had jurisdiction to grant the injunction, we must now decide whether the injunction should have been issued. In reviewing the ruling of the trial court on the permanent injunction, we do not determine whether the trial court abused its discretion in denying the application. Rather, we review the entire record as in any other case on appeal to ascertain whether or not the trial court erred. *Electronic Data System Corp. v. Powell*, 524 S.W.2d 393 (Tex.Civ.App.--Dallas, 1975, writ ref'd n.r.e.). In his first point of error Brown argues that the trial court erred by failing to find that Carroll was allowing the minor children to use their stepfather's name because that fact was established as a matter of law or by the great weight and preponderance of the evidence. Carroll testified at the hearing as follows:

A: They [the children] know their name is Brown, and I have told them they are free to use whatever name they want to use, I will love [them] just the same.

Q: So you are letting them use any name they choose to use, is that correct?

A: Yes.

It is clear from her own testimony that the mother of the children was allowing them to use their stepfather's name and any finding by the trial court to the contrary is against the great weight and preponderance of the evidence. Appellant's first point of error is sustained.

Brown asserts in his sixth point of error that the trial court erred in denying the injunctive relief because the informal name change of the children was against their best interest and in derogation of his interests in preserving the children's use of their legal name and his parental relationship. It is undeniable that a father has a protectable interest in having his children bear his surname. Courts will exercise their power to change a child's name reluctantly and only where the substantial welfare of the child requires the change. *Newman v. King*, 433 S.W.2d 420 (Tex.1968); *see also* Annot. 92 A.L.R.3d 1091 (1979). By preserving the child's use of his legal name, the courts are protecting the relationship between the father and child and promoting the affiliation of the child with the father's family. *Bennett v. Northcutt*, 544 S.W.2d 703 (Tex.Civ.App.--Dallas 1976, no writ). With regard to what is in the best interest of Robert Brown, Jr. and Wendee Brown, the record reflects that they expressed a desire to use the surname of their stepfather. However, the children's preference is not controlling in determining whether it is in their best interest to allow a name change. *See Bennett*, 544 S.W.2d at 708. We hold that it is not in the best interest of the children for the mother to allow the use of the stepfather's name without a legal name change pursuant to Chapter 32 of the Family Code. The evidence is clear that the mother had ample opportunity to prohibit the children from using their stepfather's surname, and the trial court should have issued a mandatory injunction ordering the mother to instruct the children to use their legal name. The failure of the trial court to grant the injunctive relief was error. Appellant's sixth point of error is sustained.

The trial court also refused to grant the injunction on the ground that the order would be vague, ambiguous, and unenforceable. Brown contends in his fourth point of error that this holding of the trial court was reversible error. We agree. While it is true that an injunction will not issue if the enforcement of the writ will require continuous and burdensome judicial supervision, *see* 31 Tex.Jur.2d Injunctions §

27 (1962), mere difficulty in drafting and enforcing an injunction are not sufficient grounds to bar its issuance. *Southwestern Newspapers Corp. v. Curtis*, 584 S.W.2d 362 (Tex.Civ.App.--Amarillo 1979, no writ). Appellant's fourth point of error is sustained.

That portion of the trial court's judgment denying injunctive relief is reversed and remanded to the trial court. The trial court is instructed to order the issuance of a permanent injunction ordering Patricia Ann Lee Brown Carroll to refrain from using any other surname for the children other than their legal surname, namely Brown, and that she instruct the children that they use their legal surname.

“He who is slow to anger is better than the mighty, And he who rules his spirit, than he who captures a city.”

Proverbs 16:32

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“What I spent, I lost; what I possessed is left to others; what I gave away remains with me.”

Epitaph (anonymous)